

THE WORKS

OF

HUBERT HOWE BANCROFT.

VOLUME VIII

HISTORY OF CENTRAL AMERICA.

Vol. III. 1801-1887.



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Inconsistent hyphenation and spelling in the original document have been preserved. Obvious typographical errors have been corrected.

In some cases, Bancroft uses both "u" and "v" to spell an author's name, e.g. Vetancurt and Vetancvrt.

Other archaic letter substitutions include "b" for "v" and "i" for "y" and vice versa. These have been left as printed.

Possible printer's errors include:

On [page 5](#), córtés extraordinary should possibly be córtés extraordinarias.

On [page 149](#), Patsun should possibly be Patzún.

On [page 270](#), quarters should possibly be halves.

On [page 387](#) repeated should possibly be repealed.

On [page 652](#), 1855-5 appears to be an error.

Joaquin Eufracio Guzman should possibly be Joaquin Eufrasio Guzman.

Joaquin Eustacio Guzman should possibly be Joaquin Eufrasio Guzman.

The index reference to "Atrato River" wasn't found.

The index reference to ["Montaignon, M. de, works of,"](#) wasn't found.

Possible alternate spellings or printers errors include:

Jutecalpa and Jutigalpa

Tempsky and Tempski

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Pontaz and Pontaza

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Iztapan and Iztapam

Serapiqui, Sesapiqui, Sarapiqui River

Carataska and Caratasca

Gualcince and Gualcinse

Nandaime, Nandayme, and Nandaimé

mosquitoes and musquitoes

Cuzcatlan and Cuscatlan

Granadans and Granadians

Chimilapa and Chimalapa

Fitzroy and Fitz-Roy

Victor and Víctor

Jil and Gil

Carlos and Cárlos

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HISTORY
OF
CENTRAL AMERICA.

CHAPTER I.

LAST DAYS OF SPANISH RULE.

1801-1818.

POPULAR FEELING IN CENTRAL AMERICA—EFFECT OF EVENTS IN SPAIN—RECOGNITION OF AMERICAN EQUALITY—REPRESENTATION IN THE SPANISH CÓRTEZ—DELUSIVE REFORMS—END OF SARAVIA'S RULE—PRESIDENT JOSÉ BUSTAMANTE—HIS DESPOTIC COURSE—DEMANDS IN THE CÓRTEZ—CONSTITUTIONAL GUARANTEES—OFFICIAL HOSTILITY—CAMPAIGN IN OAJACA—REVOLUTIONARY MOVEMENTS IN SALVADOR—WAR IN NICARAGUA—CONSPIRACY IN GUATEMALA—TREATMENT OF THE INSURGENTS—DISRESPECT TO THE DIPUTACION—THE CONSTITUTION REVOKED—ROYAL DECREES.

The opening century was pregnant with important events both in Europe and America. By 1808 affairs in Spain culminated in the French emperor's detention of the king and other members of the royal family at Bayonne, where he forced them finally to resign in his favor their rights to the Spanish crown. The circle surrounding the captain-general, audiencia, and archbishop of Guatemala was made up, not only of European Spaniards, but of Guatemalans belonging to the so-called noble families. Popular displeasure was manifested both against the Spaniards and against the provincial aristocracy.^[1-1] The oligarchy was hated throughout the province of Guatemala proper, and still more in the other provinces of the presidency.

However, when the news of Napoleon's usurpation reached America, it caused a strong revulsion of feeling in Central America, as well as elsewhere in the Spanish dominions, even among the large class which had hitherto secretly fostered a warm desire for independent national existence. Creoles of pure Spanish descent, though yearning to be free from the old

thralldom, could not bring themselves to discard the country which gave them blood, religion, and civilization. As to the educated Indians, who were also among the wishers for independence, like all of their race, they looked up to the ruling power with reverence and fear. Thus arose a struggle between the old veneration and the love of freedom; a struggle which was to last in Central America a few years longer, though the people were becoming more and more impatient, while leaning to the side of independent nationality. Circumstances seemed to demand that the old connection should not be ruptured till 1821, when decisive results in New Spain brought on the final crisis here. When the news of Napoleon's acts of violence and usurpations reached Guatemala, popular loyalty was aroused, and showed itself in various ways. Manifestations by the authorities, expressive of fealty to the mother country and the royal family, met with an apparently hearty response from the people.

Advices came on the 30th of June, 1808, of the occurrences at Aranjuez of March 19th.^[1-2] July passed amid much anxiety about affairs in Spain, and the public mind became depressed by unfavorable news received on the 13th of August. Next day, at a meeting of the authorities,^[1-3] the state of affairs was anxiously discussed. The mariscal de campo, Antonio Gonzalez Mollinedo y Saravia, had succeeded Dolmas on the 28th of July, 1801, in the offices of governor, captain-general, and president of the audiencia. He had seen forty years of service in the royal armies,^[1-4] and had with him his wife, Micaela Colarte, and offspring.^[1-5]

SARAVIA AND
FERNANDO VII.

President Saravia read to the meeting a despatch from the viceroy of Mexico, and a copy of the *Gaceta* giving an account of the abdication of Fernando VII., and of the surrender by other members of the royal family of their rights to the Spanish crown. After due consideration, the meeting declared these acts to have resulted from violence, being therefore illegal and unjust, and not entitled to recognition. It was further resolved that the authorities and people should renew their allegiance to the legitimate sovereign, continue

upholding the laws hitherto in force, and maintain unity of action, for the sake of religion, peace, and good order. Instructions were received^[I-6] to raise the standard of Fernando VII., and swear allegiance to him, which were duly carried out.^[I-7]

The opportunity has now arrived for a radical change in the political status of Spanish America. The colonies have hitherto had no government, save that of rulers set over them by a monarch whose will was absolute, whose edicts constituted their code of laws; the subject being allowed no voice in public affairs, save occasionally as a timid petitioner. But troubles beset Spain at this time. Her king is powerless; the friends of constitutional government have now the control, and proceed to establish the desired liberal régime. In order to be consistent, and to some extent satisfy the aspirations of their fellow-subjects in America, the provisional government decrees, and the *córtes* upon assembling confirm, all the rights claimed for Spaniards dwelling in Spain, together with representation in the *córtes* and other national councils.

The Junta Suprema Central Gubernativa in the king's name declares on the 22d of January, 1809, the Spanish possessions in America to be, in fact, integral parts of the monarchy,^[I-8] and, approving the report of the council of the Indies of November 21, 1808, in favor of granting to the American dominions representation near the sovereign, and the privilege of forming by deputies a part of the aforesaid junta, issues to the president of Guatemala an order to invite the people of the provinces to choose their deputy to reside at court as a member of the governing junta.^[I-9] On the 3d of March, 1810, the electors assembled in Guatemala and chose for deputy the colonel of militia, Manuel José Pavon y Muñoz.^[I-10] The powers given him by his constituents were general, but enjoined allegiance to the king and permanent connection with the mother country.^[I-11]

The supreme government, early in 1810, in its anxiety to be surrounded by the representatives of the people, hastened the convocation of *córtes*

extraordinary. Fearing, however, that there might not be a sufficient number chosen for their timely attendance at the opening of the session, it apprised the provincial authorities, reiterating the decree a little later,^[I-12] that deficiencies would be temporarily supplied until regularly elected deputies presented themselves to occupy their seats in the chamber. Guatemala, in common with the rest of America, was unable to send her deputies in time, and had to be represented at the inauguration by suplentes, or proxies. These^[I-13] were Andrés del Llano, a post-captain, and Colonel Manuel del Llano. One of the first acts of the córtes^[I-14] was to confirm the principle that all the Spanish dominions possessed the same rights, promising to enact at an early day laws conducive to the welfare of the American portion, and to fix the number and form of national representation in both continents.

At the suggestion of the diputacion americana, as the body of American members was called, a general amnesty for political offences was decreed, with the expectation of its yielding the best results in favor of peace and conciliation. Promises of reform, and of better days for Central America, were held out, but the provincial government paid little attention to them. Meanwhile a jealous and restless police constantly watched the movements of suspected persons. Informers and spies lurked everywhere, seeking for some one against whom to bring charges.

The promised blessings proved delusive. Instead of reforms, the people witnessed the installation of a tribunal de fidelidad, with large powers, for the trial and punishment of suspected persons.^[I-15] This court was short lived, however, being suppressed about the middle of the following year, under the order of the supreme government, dated February 20, 1811. And thus Guatemala was kept quiet and apparently loyal, when the greater part of Spanish America was in open revolt.

Saravia's rule came to an end on the 14th of March, 1811. He was promoted to the rank of lieutenant-general, and appointed by the

government at Cádiz to the command in chief of the forces in Mexico. On his arrival in Oajaca, the viceroy, who was chagrined at his powers having been thus curtailed, detained him at that place. In November 1812, the city being captured by the independents, Saravia was taken prisoner and shot.^[1-16]

BUSTAMANTE Y
GUERRA.

The successor of Saravia was Lieutenant-general José Bustamante y Guerra, appointed by the supreme council of regency, and soon after confirmed by the *córtes generales extraordinarias*. He was a naval officer, and had made several important cruises in the cause of science,^[1-17] and latterly had been civil and military governor of Montevideo, a position that he filled efficiently. His zeal against the independents in that country pointed him out as the one best fitted to retard the independence of Central America. On his return to Spain from South America he refused to recognize Joseph Bonaparte.

Bustamante is represented to have been an inflexible, vigilant, and reticent ruler. He lost no time in adopting stringent measures to check insurrections, and displayed much tact in choosing his agents and spies. No intelligent native of the country was free from mistrust, slight suspicion too often bringing upon the subject search of domicile, imprisonment, or exile. He never hesitated to set aside any lenient measures emanating from the home government in favor of the suspected, and spared no means that would enable him, at the expiration of his term, to surrender the country entire and at peace to his superiors. He was successful, notwithstanding there were several attempts at secession.

Meanwhile the American representatives had been permitted to lift their voice in the national councils. They had called attention to the grievances of their people. In a long memorial of August 1, 1811, to the *córtes*, they had refuted the oft-repeated charge that the friends of independence in America were or had been under Napoleonic influence.

They set forth the causes of discontent,^[I-18] which they declared was of long standing, and called for a remedy. Reference was made to Macanar's memorial to Felipe V.,^[I-19] wherein he stated that the Americans were displeased, not so much because they were under subjection to Spain, as because they were debased and enslaved by the men sent out by the crown to fill the judicial and other offices.^[I-20]

The organic code was finally adopted on the 18th of March, 1812.^[I-21] The instrument consisted of ten titles, divided into chapters, in their turn subdivided into sections, and might be considered in two parts: 1st, general form of government for the whole nation, namely, a constitutional monarchy; 2d, special plan for the administration of the Indies.^[I-22]

NEW ORGANIC
CODE.

In lieu of the old ayuntamientos, which were made up of hereditary regidores, whose offices might be transferred or sold, others were created, their members to be chosen by electors who had been in their turn chosen by popular vote. The ayuntamientos were to control the internal police of their towns, their funds, public instruction within their respective localities, benevolent establishments, and local improvements. They were to be under the inspection of a diputacion provincial, formed of seven members, elected by the above-mentioned electors, in each province, under the presidency of the chief civil officer appointed by the king; the chief and the diputacion were jointly to have the direction of the economical affairs of the province. No act of either corporation was final till approved by the national córtés. In America and Asia, however, owing to great distances, moneys lawfully appropriated might be used with the assent of the chief civil authority; but a timely report was to be made to the supreme government for the consideration of the córtés. Such were the chief wheels in the machinery of provincial and municipal administration. Now, as to popular rights, equality of representation in the provinces of the Spanish peninsula, Asia, and America was fully recognized. The descendants of Africans were alone

deprived of the rights of citizenship. This exclusion was combated with forcible arguments by many of the American deputies setting forth the faithful, efficient services colored men had repeatedly rendered and were still rendering to the nation, and their fitness for almost every position. Many of them, they said, had received sacred orders, or had been engaged in other honorable callings, in which they had made good records; besides which, they comprised a considerable portion of the useful mining and agricultural population. Unfortunately for the negro race, the American deputies were not all of one mind. Larrazábal, from Guatemala, probably acting both on his own judgment and on the opinion expressed in 1810 by the real consulado, asserted the black man's incapacity, advocating that persons of African blood should be conceded only the privilege of voting at elections. This motion was supported by a Peruvian deputy. The peninsular members favored the admission to full rights of colored priests, and all colored men serving in the royalist armies. The measure was lost, however; but the article as passed authorized the admission to full political rights, by special acts of the *córtes*, of colored men proving themselves worthy by a remarkably virtuous life, good service to the country, talents, or industriousness, provided they were born in wedlock, of fathers who had been born free, married to free-born wives, and were residents of Spanish possessions, practising some useful profession and owning property.

Pursuant to the constitution, the *córtes* ordered, May 23, 1812, elections for members to the ordinary *córtes* of 1813. [\[I-23\]](#)

The constitution was received at Guatemala on the 10th of September, 1812, proclaimed on the 24th, and its support solemnly sworn to by the authorities and people on the 3d of November, with great satisfaction and evidences of loyalty. Gold and silver medals were struck off to commemorate the event. [\[I-24\]](#)

The installation of the *córtes* took place, with the apparent approval of Guatemala. The president, members of the *audiencia*, and other dignitaries who had thriven under absolutism, looking on Americans as 'our colonists,'

became at once liberals and constitutionalists, pretending to recognize the wisdom of the national congress in declaring that the Americans were no longer colonists, but citizens of one common country. Their manifestation of September 15, 1812, was followed three days after by one from the ayuntamiento of Guatemala to Deputy Larrazábal, in the same strain, suggesting the creation of a board advisory to the *córtes*, on the reino de Guatemala legislation.

EXPEDITION TO
OAJACA.

After the fall of Oajaca during the Mexican war of independence, the patriot chief Morelos regarded the rear of his military operations as secure. Sympathizing messages had reached him from men of weight in Guatemala, which lulled him into the belief that attack need not be apprehended from this quarter. To Ignacio Rayon he wrote: "Good news from Guatemala; they have asked for the plan of government, and I'll send them the requisite information." It was all a mistake. His cause had friends in Central America, and enemies likewise. Among the most prominent of the latter were Captain-general Bustamante and Archbishop Casaus. The ecclesiastic, with a number of Spanish merchants from Oajaca who had sought refuge in Guatemala, prompted the general, then anxious to avenge the execution of his predecessor, to fit out an expedition, invade Oajaca, and harass the insurgents even at the gates of the city.

About 700 men, mostly raw recruits, were accordingly put in the field, early in 1813, under the command of Lieutenant-colonel Dambrini, a man of little ability and unsavory record, and crossed the line into Tehuantepec. Dambrini could not abandon his money-making propensities; and having been led to believe he would encounter but little or no resistance, took along a large quantity of merchandise for trading. On the 25th of February a small insurgent force was captured in Niltepec, and Dambrini had its commander, together with a Dominican priest and twenty-eight others, shot the next day. This was the usual treatment of prisoners by both belligerents. But on April 20th the Guatemalans were flanked and routed at Tonalá by

the enemy under Matamoros. Dambrini fled, and his men dispersed, leaving in the victors' possession their arms, ammunition, and Dambrini's trading goods. The fugitives were pursued some distance into Guatemalan territory.

[\[I-25\]](#)

Germes of independence, as I have said, were fostered in secret by the more intelligent, and slowly began to develop, the movement being hastened by a few enthusiasts who were blind to the foolhardiness of their attempt. The government tried all means to keep the people in ignorance of the state of affairs in Mexico and South America, and when unsuccessful, would represent the royalist army as victorious. Other more questionable devices were also resorted to. [\[I-26\]](#)

Undue restraint and ill treatment, as practised under the stringent policy of Bustamante, soon began to produce effects. Restiveness and despair seized a portion of the people; the hopes for a government more consonant with the spirit of the age, which had been held out from Spain, evaporated. Men were unwilling to live longer under the heel of despotism; and the more high-spirited in Salvador and Nicaragua resolved to stake their fortunes upon a bold stroke for freedom. It was, indeed, a rash step, undertaken without concert, and almost without resources. It could but end as it did at every place where a revolutionary movement was initiated.

Matías Delgado and Nicolás Aguilar, curates of San Salvador, Manuel and Vicente Aguilar, Juan Manuel Rodriguez, and Manuel José Arce were the first to strike the blow for Central American independence. Their plan was carried into execution on the 5th of November, 1811, by the capture of 3,000 new muskets, and upwards of \$200,000 from the royal treasury at San Salvador. They were supported by a large portion of the people of the city, and in Metapan, Zacatecoluca, Usulután, and Chalatenango. But other places in the province of Salvador, namely, San Miguel, Santa Ana, San

Vicente, and Sonsonate, renewed their pledges of fealty to the government, declaring the movement for freedom a sacrilege. [\[1-27\]](#)

The promoters of the revolt, which had been started in the king's name, became disheartened and gave up further effort, and with the dismissal of the intendente, Antonio Gutierrez Ulloa, and other officials, peace was soon restored. San Salvador had been quiet without other government than that of alcaldes during the disturbance.

AYCINENA IN
SALVADOR.

Upon the receipt of the news of these occurrences, Bustamante despatched Colonel José de Aycinena with ample powers to take charge of the intendencia, and restore quiet. He had been getting troops ready to send down, but by the mediation of the ayuntamiento of Guatemala he had suspended preparations, and had adopted the former course. A member of that body, José María Peinado, was associated with Aycinena. [\[1-28\]](#) They reached San Salvador on the 3d of December, amid the acclamations of the fickle populace; their presence and the exhortations of the missionaries checked all revolutionary symptoms. The authors of the revolt were leniently treated under a general amnesty. [\[1-29\]](#) Peinado was a short time after appointed Aycinena's successor as acting intendente. [\[1-30\]](#)

Another and a still more serious attempt at revolution, which may be called a sequel to that of Salvador, had its beginning in the town of Leon, Nicaragua, on the 13th of December, 1811, when the people deposed the intendente, José Salvador. This action was seconded on the 22d at Granada, where the inhabitants, at a meeting in the municipal hall, demanded the retirement of all the Spanish officials. The insurgents, on the 8th of January, 1812, by a coup-de-main captured Fort San Carlos. The officials fled to Masaya. Villa de Nicaragua—the city of Rivas in later times—and other towns at once adopted the same course.

Early in 1812, after the first excitement had become somewhat allayed, a board of government was organized in Leon, the members of which were

Francisco Quiñones, Domingo Galarza, Carmen Salazar, and Basilio Carrillo. Bishop Fray Nicolás García Jerez was recognized as gobernador intendente by all the towns, and his authority was only limited in one point, namely, he was in no way to favor the deposed officials. The people of Granada resolved to send two deputies to the board.^[I-31]

REVOLUTION IN
NICARAGUA.

The royal officials at Masaya having called for assistance from Guatemala, Bustamante had 1,000 or more troops placed there under command of Sargento Mayor Pedro Gutierrez. The people of Leon had ere this accepted an amnesty from Bishop Jerez, and thereafter took no part in movements against the crown. Granada, more firm of purpose, resolved upon defence; caused intrenchments to be built to guard all avenues leading to the plaza, and mounted thereon twelve heavy cannon. A royalist force, under José M. Palomar, on the 21st of April approached Granada to reconnoitre, and reached the plazuela de Jalteva.^[I-32] Early in the morning he opened a brisk fire on the town, and kept it up for several hours. After a parley, next day the citizens agreed to surrender, on Gutierrez solemnly pledging the names of the king and Bustamante, as well as his own, that they should in no wise be molested. But after the royal troops were allowed to enter the city on the 28th, Bustamante, ignoring the solemn guarantees pledged by his subordinate, ordered the arrest and prosecution of the leaders. The governor accordingly named Alejandro Carrascosa fiscal to prosecute the conspirators of Granada. The proceedings occupied two years, at the end of which the fiscal called for, and the court granted, the confiscation of the estates, in addition to the penalties awarded to those found guilty. Sixteen of the prisoners, as heads of the rebellion, were sentenced to be shot, nine were doomed to the chain-gang for life, and 133 to various terms of hard labor.^[I-33] The sentence of death was not carried out, however. The condemned were taken to Guatemala, and thence transported to Spain, where the majority died as exiles. Four others were removed as convicts to

Omoa and Trujillo. The survivors were finally released by a royal order of June 25, 1817. [\[I-34\]](#)

The conduct of the Leonese in leaving Granada to bear alone the consequences of the revolution had, as I remarked, a bad effect upon the country. [\[I-35\]](#) From that time dates a bitter feeling between Leon and Granada, and between Managua and Masaya on the one part and Granada on the other. [\[I-36\]](#)

Notwithstanding the existing grievances and the generally depressed condition of business, the people did not fail to respond to the calls from the home government upon all parts of the Spanish dominions for pecuniary aid to meet the enormous expenses of the war against Napoleon's forces, and other pressing demands. In 1812 there were collected and remitted as donations \$43,538. The citizens of San Salvador also agreed to give \$12,000 for 1812, and an equal sum in 1813, if they could obtain a certain reform for the benefit of indigo-planters. [\[I-37\]](#)

FANATICISM.

We have seen how the first steps toward independence failed. Nor could any other result have been expected from the degraded condition, socially and intellectually, of the masses. The people were controlled by fanaticism, in abject submission to king and clergy. Absurd doctrines and miracles were implicitly believed in; and every effort made to draw the ignorant people out of that slough was in their judgment treason and sacrilege, a violation of the laws of God, an attempt to rob the king of his rights; certain to bring on a disruption of social ties, and the wrath of heaven. The lower orders had been taught that freedom signified the reign of immorality and crime, while fealty to the sovereign was held a high virtue. Hence the daily exhibitions of humble faithfulness, the kneeling before the images of the monarch and before their bishops, and the more substantial proof of money gifts to both church and crown. [\[I-38\]](#)

The first efforts on behalf of emancipation were not wholly lost, as they led to definitive results in the near future. The next attempts also met with failure, and brought upon their authors the heavy hand of Bustamante. The first one, in 1813, was known as the Betlen conspiracy, which derived its name from the convent where the conspirators usually assembled. Much importance was given to this affair by the government and the loyalists. The meetings were presided over by the sub-prior Fray Ramon de la Concepcion, and were sometimes held in his cell, and at others in the house of Cayetano Bedoya, under the direction of Tomás Ruiz, an Indian.^[I-39] All were sworn to secrecy, and yet the government suspected the plot, and arrested some persons who had the weakness to divulge the plan and the names of their associates.^[I-40]

The conspirators, all of whom were men of character and good standing, soon found themselves in prison, excepting José Francisco Barrundia, who remained concealed six years, and afterward was one of the most prominent statesmen of Central America. Major Antonio del Villar was commissioned fiscal to prosecute the prisoners. He spared no one in his charges, and managed to bring into the meshes of the prosecution several persons who were innocent.^[I-41] On the 18th of September, 1814, he asked the military court for the penalty of death, by garrote, against Ruiz, Víctor Castrillo, José Francisco Barrundia pro contumacia, and Joaquin Yúdice, who were hidalgos; and the same penalty, by hanging, against the sub-prior and ten others who were plebeians.^[I-42] Ten years of hard labor in the chain-gang of the African possessions, and a life exile from America, were pronounced upon others against whom no guilt was proved. The prisoners were all set free, however, in 1819, under a royal order of the 28th of July, 1817.

THE PLOT OF
BETLEN.

Among the men regarded as the most dangerous, and strongly suspected of being the real managers of the Betlen plot, was Mateo Antonio Marure, who had been confined two years in a dungeon for the part he took in the

disturbances of 1811.^[I-43] Bustamante dreaded his presence in Guatemala, and in 1814 despatched him as a prisoner to the supreme council of regency in Spain, with his reasons for this measure. After recounting the Betlen affair, and naming Marure as the real instigator and manager of it, he adds that the conspirators counted on him as a fearless man to carry it out, and that his bold language and writings rendered his sojourn in America a constant menace to Spanish interests.

Another and a worse planned attempt at revolution than the one of 1811 occurred in Salvador in 1814. The government quelled it, and the promoters were arrested, Manuel José Arce suffering an imprisonment of several years.^[I-44]

The reader's attention is now called to matters concerning the capitanía general of Guatemala, which occupied the government both here and in Europe immediately before King Fernando's coup-d'état.

Bustamante, evidently hostile to constitutional government, and loath to suffer readily any curtailment of his quasi-autocratic powers, proclaimed, under the pressure of necessity, the national constitution, and permitted elections under it; but between this and allowing the diputaciones provinciales and ayuntamientos free action under the fundamental law, there was a wide chasm. He had no intention of tamely submitting to such innovations, whatever might be said of their merits in the abstract. In the first place, he postponed for three whole months the installation of the diputacion, and when it was installed, refused to honor the event with a high mass and *te deum*, which would have been the proper thing to do. Such a recognition of the importance of the diputacion might have shaken the faith of the populace in a one-man power. He next insisted on the diputacion having its sittings at the government house, where it would be at his mercy. He treated the body disrespectfully in several ways,^[I-45] and as he could not make it subservient to his will, tried by all means in his power to destroy its

influence and usefulness. In fact, he looked upon it as a mere consultative corporation, whose advice he might ask for or not, as suited his fancy. Lastly, he would not permit the acts of the diputacion to be published; and for the matter of that, there was no liberty of the press.

END OF
BUSTAMANTE'S
RULE.

These complaints were laid before the national *córtes*^[I-46] for redress, coupled with a petition that the royal authority should remove Bustamante from office.

But grievances were unredressed, and their author continued wielding power in the country several years more. Indeed, this was not to be wondered at. The Spanish government had rarely, if ever, shown inclination to do justice to the ruled against the high rulers it placed over them, or to punish the despotic acts of the latter. Residencias had of late become mere matters of form. If the complainants had wealth and influence at court, they might obtain the recall of the ruler obnoxious to them, but no other punishment. The prestige of authority must be upheld; such was the principle acted upon.^[I-47] Guatemala was finally relieved of Bustamante's hated rule on the 28th of March, 1818.

The people of Central America, like the rest of the Spanish dominions, were soon invited to another view in the political kaleidoscope. Fernando VII., upon his release by Napoleon a few months after the treaty of Valençay,^[I-48] returned to Spain without delay, and on arriving at Valencia, issued his manifesto of May 4, 1814, setting aside the constitution, and assuming the authority of an absolute sovereign. He did this with fair promises, which he carried out when and how it suited him.^[I-49] Among many decrees issued by the monarch soon after, which were of interest to Central America, was one enjoining on the archbishop and bishops to see that their subordinates did their duty faithfully, and entertained only wholesome opinions. No associations or leagues were to be tolerated which might lead to a disturbance of the public peace; in other words, liberty and constitutional government were not to be thought of.^[I-50] Another decree of

June 17th, demanded of the deputies from America having in their possession petitions from their constituents to lay them before the royal government, in order that they might be acted upon. Several measures for the protection of morals and the advancement of civilization were also enacted.

CHAPTER II.

INDEPENDENCE ACHIEVED.

1818-1821.

PRESIDENT CÁRLOS URRUTIA—HIS LIBERAL VIEWS—COLOMBIAN ASSAULTS—SPANISH CONSTITUTION RESTORED—THE GAZISTAS, OR BACOS—THE CACOS—JOSÉ DEL VALLE—PEDRO MOLINA—LIBERAL INSTITUTIONS—EXTENT OF THE POLITICAL GOVERNMENT—ECCLESIASTICAL ADMINISTRATION—WORK OF AMERICAN DEPUTIES—PARTY EXCITEMENT IN GUATEMALA—URRUTIA DELEGATES HIS POWERS—SUBSTITUTE PRESIDENT GAVINO GAINZA—CHIAPAS AND HER GOVERNMENT—SHE SECEDES FROM SPAIN AND JOINS THE MEXICAN EMPIRE—GUATEMALA DECLARES FOR INDEPENDENCE—JUNTA GUBERNATIVA—CONVOCAION OF A CONGRESS.

Successor to Bustamante in the position of governor, president, and captain-general, in March 1818, was Lieutenant-general Cárlos Urrutia, [\[II-1\]](#) knight grand cross of the military order of San Hermenegildo, which entitled him to be called excelentísimo señor. It was a difficult position. The country was at peace, it is true, but a political volcano was at work, and no one could foretell when the upheaval of revolution might occur, [\[II-2\]](#) letting loose the elements of destruction, as had happened in other parts of Spanish America. However, another constitutional term under the Spanish monarch was about being inaugurated, and this fact helped to bring on definitive results.

Urrutia was a man of experience, with a well-balanced mind, whose political opinions leaned to the side of progress. He would have been well adapted to guide the course of events in Central America had it not been for the infirmities of old age. Guatemala, being as yet under the sway of Spain, was open to attack from the enemies of that government, or at least, to such

action as they might adopt in aid of the disaffected portion of the people to secure their country's independence. The latter was the plan of the Colombian insurgents in fitting out a combined sea and land expedition to operate against the ports of Omoa and Trujillo in 1820. [\[II-3\]](#)

ATTACK ON
TRUJILLO.

On the 21st of April the watch-tower at Capiro, in Trujillo, announced the approach of a Colombian flotilla of small vessels from the windward. The garrison, commanded by José M. Palomar, at once made preparations for emergencies. The flotilla, consisting of two brigantines, four large and as many small schooners, one felucca, and one sloop, under Commodore Aury, sailed in at two o'clock, [\[II-4\]](#) and despatched a boat to shore to demand the surrender of the place within one hour. Nothing further was done on that day, however; but early the next morning the flotilla moved toward the mouth of the Guaimoreto, and after reconnoitering the defences, opened a bombardment with ball and grape-shot on the intrenchment and demolished it, which compelled the defenders to fall back. The assailants landed 400 men and 15 horses, and advanced against the garrison, meeting with a repulse at the fourth parapet. The garrison retreated to the fifth line, at which the enemy was a second time driven back. The vessels fired broadside upon broadside on the shore batteries, which were warmly returned. The bombardment was kept up from nine A. M. till two P. M., when the flotilla retired out of reach of the batteries. A portion of the land force then attempted to enter the town by the rear of it, but was detected and compelled to retire. Early in the morning of the 23d, the invading troops returned to the vessels, leaving their horses; and soon afterward the flotilla put to sea, each vessel firing a broadside, on passing Point Castilla, against the watch-tower. During the night of the 24th the Colombian vessels dropped out of sight. [\[II-5\]](#) On the 25th the flotilla appeared off Omoa, and for several days was making attempts to effect a landing, which being unsuccessful, it retired on the 6th of May, after setting fire to the larger brig, which had been damaged by the fire from the town.

Fernando VII., under compulsion, restored the constitution of 1812 throughout his dominions. On the 9th of March, 1820, he swore to support it, and the next day issued a manifesto conveying an apology for having set it aside in 1814, and giving plausible reasons for his present change of mind. On the 11th of April he issued another manifesto, addressed to the people of America, expressing sorrow at not having sooner reinstated the constitutional government. In another decree of April 15th he restores to full force and vigor all decrees of the *córtes*, both the extraordinary and ordinary, for the better government and progress of the provinces in America.

It seems that Brigadier Gavino Gainza, appointed sub-inspector-general of the forces in Central America, was commissioned to bring out the royal proclamations and decrees for the reinstatement of the constitution, and of the laws which were passed under it by the *córtes*. There is nothing to show the precise time of his arrival in Guatemala, but it will suffice to state that the diputacion provincial was installed at the capital on the 13th of July.

At a preparatory sitting of the *córtes*, on the 26th of June, 1820, Juan N. San Juan and José Sacasa were present as representatives from Guatemala, and on the 2d of August Juan N. Tuero, or Fuero, presented his credentials as a deputy elected from Chiapas for the *córtes* of 1815-16, which body he found closed on arriving in Spain at the end of 1814.^[II-6] The necessity of such a diputacion was ably discussed in the *córtes* on the 30th of April, 1821, by Deputy Hermosilla, seconded by Deputy Milla, both supporting the report of the committee on the subject. On the 17th of June the chamber was officially informed of the installation of the diputacion, and commended its patriotic labors.^[II-7]

The 'junta suprema de censura,' created to adjudicate upon alleged offences against the law regulating the press, had, on the 9th of August, 1820, nominated, and the *córtes* confirmed, the members of the junta de censura for Guatemala.^[II-8]

BACOS AND
CACOS.

The reestablishment of the constitutional régime under such favorable circumstances soon brought into life two great parties that for a long time bore the respective names of Gazista, or Baco, and Caco. The gazista, with José del Valle as its leader,^[II-9] was made up of Spaniards and artisans. The cacos recognized as their chieftain José María Delgado.^[II-10] Their party was composed of members of the nobility, and of the men calling themselves independents. This party from the first aspired to independence, and its candidates were taken from the independent wing at the election of deputies and other officials.

The gazistas, or bacos, were numerous and strong, for they had in their ranks the rulers, many wealthy merchants, and the artisans, and abundant funds at command, which were scattered without stint among the needy and ignorant, who were ready enough to sell their votes.^[II-11] They likewise strengthened their influence with the lower class by means of a pretended hostility to the aristocracy, or to what from that time went by the name of 'espíritu de familia.' They won the elections, but their triumph proved to be far from a solid one.

The cacos now resolved to use every endeavor to accomplish independence. The connection with the aristocratic element was a drawback; and the absolute necessity of winning over the mechanics being recognized, a middle party was at once organized, which attached itself to the independents, and would have no connection with the nobles. This arrangement facilitated the accomplishment of the object in view.

The political struggle was now fairly inaugurated. Pedro Molina^[II-12] began the publication of *El Editor Constitucional*, to defend American rights. The *Amigo de la Patria* appeared at the same time, and often opposed Molina's radical doctrines. Urrutia, now styling himself jefe político y capitán general, made an address to the people, congratulating them and himself on the happy termination of the election in the several

parishes, and giving assurances that every voter should have full liberty to cast his vote for representative in the general congress, the diputacion, and the ayuntamiento.^[II-13] A portion of his address was specially devoted to artisans and laboring men, whom he warned not to allow themselves to be tampered with to the discredit of the government on the question of trade in cotton goods; for, he told them, it was a positive misconception that the government had it in view to decree freedom of foreign trade; on the contrary, it had endeavored to check illegal traffic, which had been carried on to the detriment of national interests and the royal treasury.

The measures adopted by him had to some extent corrected that evil. By making the traders pay import dues, the treasury had profited, and the people had been saved from new taxes. Formerly, English goods were paid for wholly in coin; now, only one sixth of their cost was covered with money, and the remainder with the produce of the country.^[II-14]

The gobierno político de Guatemala had jurisdiction over the same extent of country as the metropolitan,^[II-15] namely, 214 leagues from the ejidos of Motocinta on the west, and 116 leagues from Golfo Dulce on the Atlantic, to the Pacific coast.^[II-16]

ARCHBISHOPS.

The first archbishop of Guatemala appointed by the Spanish crown in the present century was Luis Peñalver y Cárdenas,^[II-17] who reached his see the 3d of June, 1802, and on the 26th took possession. During his brief incumbency he founded several rectorships, and two primary schools for girls. His sight becoming seriously affected, he relinquished the mitre, and returned to his native city, secretly departing March 1, 1806.^[II-18]

Rafael de la Vara de la Madrid, Peñalver's successor, arrived in Acajutla on the 13th of December, 1807; in Guatemala city on the 4th of January,

1808; and on the 3d of February took possession of his office. In April 1809 he visited the province of Vera Paz, where he died on the 31st of December, much regretted, as he had endeared himself by his peaceable disposition and affability. [\[II-19\]](#)

Antonio Bergoza y Jordan, bishop of Oajaca, was nominated for the succession, but declined the position.

The next and eighth archbishop of the diocese was Ramon Casaus y Torres, nominated by the supreme council of regency on the 30th of March, 1811; who entered the capital on the 30th of July, and being a consecrated bishop, at once began to perform episcopal functions. [\[II-20\]](#) His nomination was ratified by the king on the 27th of August, 1814; the papal bulls of confirmation were issued on the 15th of March, 1815, and Casaus received the pallium on the 28th of September of the same year.

At the sitting of the Spanish *córtes* on the 25th of June, 1821, the American deputies laid before that body a memorial setting forth the condition of their provinces, and the measures which, in their opinion, would lead to a definitive peace. They not only assured their Spanish colleagues that Americans were fully conscious of their rights as freemen, but also of their determination and ability to defend them; nevertheless, if those rights were respected, and justice was done, existing difficulties might be obliterated. They believed, however, that a constitutional system would be impracticable in America, unless new and efficacious measures were adopted to enable the three branches of government to act freely within their respective bounds, and likewise to make effective the responsibility of public officials for their acts. Another point upon which they laid stress was the inutility of American deputies at the Spanish *córtes* unless they were effectively upheld from their respective countries. They found other faults with the existing government, and declared that the solution of the great problem would be found in the establishment of autonomic governments in America.

RIPE FOR
INDEPENDENCE.

Commerce between Spanish America and the mother country should be treated as internal trade, the Americans having equal rights and privileges with their brethren of Europe. The same equality in respect to civil rights and appointment to office was likewise to exist between the natives of America and Spain. If such demands were conceded, Mexico and Central America would pay to Spain ten million dollars within six years, in yearly installments from January 1, 1823, to be applied to the cancelling of the national debt. They would also allow Spain two million dollars yearly for the support of the royal navy. [\[II-21\]](#)

It was now too late, however, for conciliatory efforts to be successful. Events crowded upon each other, and were beyond the control even of the men who made them. Central America was at peace, but the constitutional system recently established, with its popular elections and a free press, after the spirit of nationality had gained so much ground, naturally tended to excite the public mind, emboldening the timid, and increasing the number of the friends of independence. Party spirit controlled everything; it was felt even in the domestic circle. The people were prepared and anxious for a change, when vague rumors were set afloat of renewed revolutionary efforts in Mexico. [\[II-22\]](#) Party leaders were of one mind on the desirability of separation. It was generally admitted that the subjection of the country to Spain could no longer be maintained. Only a few high officials and Spaniards dissented. Now was the time, if ever, for a sound head and strong hand to helm the ship of state. Urrutia, owing to age and physical ailments, was not the man for the occasion; nor was he, though opposed to the scheme of secession, able to retard it. Under the circumstances, the diputacion provincial prevailed on the jefe superior político to delegate his powers to the sub-inspector of the troops, Gavino Gainza. [\[II-23\]](#) This officer at first tried to stem the torrent of revolution, to act as the agent of Spain, disapproving the plan of separation, but at the same time maintained intimate relations with the independents and aided their efforts. This party publicly circulated a paper for signatures to ask Gainza to proclaim

independence himself. He pretended to be indignant; and upon the receipt of the plan of Iguala, formed in Mexico by Iturbide and Guerrero,^[II-24] he issued a manifesto depicting it in the blackest colors, and ordered that all who had called on him to declare independence should be prosecuted.^[II-25] The independents became disgusted, but had to make the best of the situation. They then resolved to play upon his personal ambition, assuring him that for his coöperation in their plans he would be retained in command, and afterward chosen the first chief magistrate of the young nation. While he still hesitated, they despatched Cayetano Bedoya to Oajaca for military aid from General Bravo. But on the messenger's arrival at Ciudad Real de Chiapas, he found that the place had followed the example of Oajaca and Tehuantepec, accepting the plan of Iguala. This step hastened events in Guatemala, and Bedoya had no need of going farther.

The act of Ciudad Real, received September 13th, caused the greatest excitement in the city of Guatemala, and the government had to give way. Urged by the diputacion, Gainza summoned, on the 14th, the high officials and other notables to a meeting next day to resolve on some action responsive to the demands of the people.^[II-26]

GAINZA'S
MEETING.

During the night of the 14th Molina and the cacos scattered their agents throughout the wards to stir up the masses, and at the same time to awe the españolistas, or royal partisans. At 8 A. M. on the 15th a throng of independents filled the porticos, court-yard, halls, and ante-chambers of the government house. Among them and instructing the crowds were Molina, Barrundia, Basilio Porras, and other leaders. Soon after began to arrive at the government house the officials called to take part in the deliberations of the meeting, namely, two members of each corporation deputed therefor; the archbishop and prelates of the religious orders; the chief officers of the army and treasury; who, together with the diputacion provincial, and under the presidency of the acting jefe superior político, Gainza,^[II-27] at once proceeded to business. After reading the declarations in Chiapas, several

members briefly expressed their views. The first speaker was Valle, leader of the gazistas, who eloquently advocated independence as necessary and just, but ended advising that it should not be proclaimed till the other sections had formally declared in its favor. The motion was seconded. The anti-independents^[II-28] opposed all action until final results in Mexico should be received. Every attempt at a vacillating policy was defeated by the energetic efforts of the independents, who voted for an immediate declaration of independence.^[II-29] Every vote favorable to independence was received by the people with loud applause, and every one against it with groans. The popular preference became so marked and boisterous that the anti-independents, fearing for their lives, retired from the palace.

PROCLAMATION
OF
INDEPENDENCE.

The diputacion and ayuntamiento then, as the legitimate organs to express the public will, drew up the Acta de Independencia, which was adopted, signed, and sworn to by all the members present.^[II-30] This instrument, after declaring the aspiration of Guatemalans to be a free and independent people,^[II-31] invited all citizens of the provinces to choose without delay representatives, on the basis of one for every 15,000 inhabitants, to a national congress that was to meet March 1, 1822. In the mean time the Spanish laws, courts of justice, and public functionaries were to continue as heretofore. The representatives were to be chosen by the same juntas electorales that had lately, since the restoration of the constitution, elected deputies to the córtes, without excluding, as the constitution did, men of African descent from the rights of full citizenship.^[II-32] The clause giving the last electoral college, with its majority of Valle's partisans, the power to choose the members of the constituent congress, is said to have been inserted in the acta by himself.^[II-33]

On the 17th Gainza issued a proclamation formally placing before the people the resolutions adopted on the 15th, and enjoining on all the duty of abiding by them, and of respecting the laws and authorities recognized by

them. Any attempt, by word or deed, to restore Spanish domination was declared high treason, punishable with death.^[II-34] The powers of the congress would be constituent to adopt a form of government and frame the national constitution. Meantime Gainza held civil and military authority, acting with the advice of a provisional junta consultiva, formed with the diputacion provincial and seven additional members, representing respectively Leon, Comayagua, Costa Rica, Quezaltenango, Sololá, Chimaltenango, Sonsonate, and Ciudad Real.^[II-35] Neither the people at large nor the meeting of the 15th created such a body. It was the creation of the men who remained behind in the hall, including Valle, who drew up the acta.^[II-36] Continuing his double dealing, Gainza had issued his proclamation, on the 16th, for the election of representatives to congress. He spoke therein of the longing for independence since 1810, of the popular love for the cause which had been so forcibly sustained at the meeting of the preceding day, and concluded by inviting the whole people to approve the plan, and to appoint their deputies to complete the work.

Before proceeding further with the political situation at the capital of Guatemala, I will devote a little space to laying before the reader some information on one of its most important sections, namely, Chiapas. The population was computed in 1813 at over 100,000 inhabitants, of whom 70,000 were Indians; the remainder were Spaniards and mixed breeds, with a few negroes.^[II-37]

As a reward for good services and generous pecuniary contributions to the nation, the Spanish córtes passed, October 29, 1813, a decree bestowing the title of city on the town of Comitán, and that of villa on those of Tusta, Tonalá, Tapachula, and Palenque.^[II-38]

THE
SUBDELEGADOS.

In contravention of law, the first name of the three proposed by the intendente to the president of Guatemala, for chief of each of the eleven

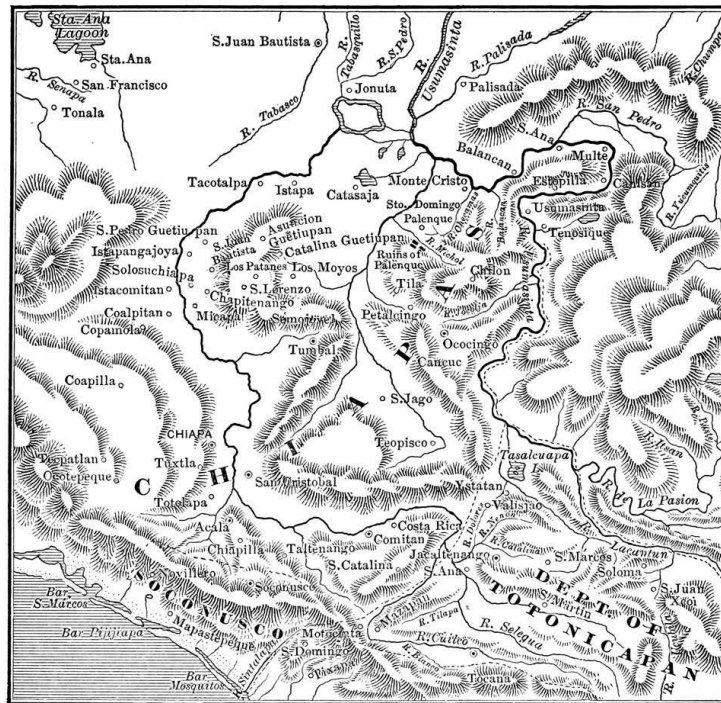
subdelegaciones, was that of some creature of the intendente. Unfitness for the place or immorality counted for nothing if the nomination suited the proposer or the confirming power. These subdelegados, by means of their comisarios, collected the tribute and speculated with it; each being a tyrant who oppressed the Indians at his will.

Education was neglected; ignorance prevailed to such an extent that a large portion of the inhabitants did not know even the first rudiments of their religion. The poorer Spaniards and the mixed breeds were entirely without education. Indeed, in nearly three centuries, not only had the Indians not learned to speak Spanish, but the native Spaniards spoke the six Indian tongues of the province better than their own. [\[II-39\]](#)

Chiapas, it is well known, had been an episcopal see, with its cathedral at Ciudad Real, since the first years of the conquest. [\[II-40\]](#) The country is fertile and well watered. Its agricultural products were wheat—of which there was a surplus for exportation—maize, beans, rice, coffee, and cacao. [\[II-41\]](#) A variety of vegetables in abundance, and the fruits of all climes, could also be obtained. The maguey was extensively cultivated for pulque and aguardiente. A great deal of sugar-cane and good tobacco were grown. Indigo and cochineal were cultivated to some extent. The country had likewise excellent grazing. Cattle, sheep, goats, horses, and mules abounded. The mines of gold, silver, lead, copper, and iron were not worked, owing to the poverty of the inhabitants. The governor-intendente of Chiapas in 1817, Cárlos Castañón, as appears in the records, was a confirmed royalist. [\[II-42\]](#)

From the time that Iturbide proclaimed the independence of Mexico, the canons of the chapter in the diocese of Ciudad Real—bitterly hostile, like the majority of the Mexican and Central American clergy, to the reforms of the Spanish córtes respecting the church [\[II-43\]](#)—had been in communication with that chieftain's auditor de guerra, Fernandez Almansa, who kept them informed on the progress of the revolution. The clericals

looked upon the Mexican chief as the savior of their ancient prerogatives and monopolies, and with this end in view, prepared public opinion for setting aside the authority of Fernando VII. and his *córtes*.^[II-44]



CHIAPAS.

CHIAPAS ACCEPTS ITURBIDE.

The governor-intendente, Juan N. Batres, together with the ayuntamiento of Ciudad Real, proclaimed, on the 3d of September, 1821, the separation of Chiapas from Spain, and her acceptance of Iturbide's plan of Iguala. On the 8th all the authorities and officers, civil and military, took the oath to support that act, which was administered by the governor of the diocese; after which they had high mass and a sermon in the cathedral, where the secular clergy and the people took the same oath^[II-45] before the aforesaid ecclesiastic authority. The obligations assumed were to support the Roman catholic apostolic religion; to secure the independence of the empire, preserving to

that end peace and union between Europeans and Americans; and to obey Fernando VII., should he adopt and swear to support the constitution to be enacted by the *córtes* of the Mexican empire. Chiapas was, therefore, the first province of the captain-generalcy of Guatemala to throw off the Spanish yoke; she at the same time separated herself from Guatemala, and manifested her determination to link her future with Mexico. All this was made known September 21st by the *comandante-general* of Oajaca to Iturbide. The example of Ciudad Real was unhesitatingly followed by the other towns in the province.

We have seen that Guatemala, at her declaration of independence, did not at once accept annexation to the Mexican empire. This course did not suit the rulers and notables of Ciudad Real, who hastened to manifest their displeasure at a meeting held September 20th, and attended by the *intendente*, *ayuntamiento*, and other official bodies, prelates, and a large number of citizens.

CHIAPAS A PART
OF MEXICO.

As a matter of fact, the desire of Chiapas to be detached from Guatemala and annexed to Mexico existed with some strength even before the declaration of independence; [\[II-46\]](#) and Guatemala having failed to return an answer to the letter from the authorities of Chiapas, announcing her action of the 3d, this neglect had strengthened the notables of the latter in their resolution to recognize no other government than that of the Mexican empire under the treaties of Córdoba. It was also resolved at the meeting not to circulate the declaration of independence which the *jefe político* of Guatemala had sent. These sentiments were duly seconded by the other cities and towns.

In order to guard against any action Guatemala might take because of the course of Chiapas, at a formal session of the *diputacion*, presided over by the *jefe político*, and held on the 22d of October, it was resolved to send to Mexico a commissioner to take the necessary steps, and procure his province's separation from Guatemala, even if the latter should come to be thereafter a part of the Mexican empire. [\[II-47\]](#)

CHAPTER III.

UNION WITH MEXICO.

1821-1822.

FIRST ACTS OF GUATEMALAN RULERS—INTRIGUES OF PARTIES—THEIR EVIL CONSEQUENCES—GAINZA'S INTRIGUES—INDEPENDENCE IN THE OTHER PROVINCES—REWARDS TO GAINZA—TROUBLES IN SALVADOR—DISSENSIONS IN HONDURAS—LOCAL SQUABBLES IN NICARAGUA—PREDILECTION FOR IMPERIALISM—COSTA RICA NEUTRAL—CONDITION OF VARIOUS SECTIONS—SECEDING DISTRICTS OF GUATEMALA—PERPLEXITIES OF THE JUNTA CONSULTIVA—ITURBIDE'S DEVICES—MILITARY PRESSURE—HIS PROPOSALS ACCEPTED—ILLEGAL ANNEXATION—PROTESTS AND RESISTANCE—WAR BEGINS.

Among the first acts of the junta at Guatemala was the promotion of two officers who were supposed to be reliable supporters of the late movement. [\[III-1\]](#) Both proved themselves afterward recreant to their pledges, by their hostility to the republican cause.

PARTY STRIFE.

The cacos were republicans. They strove to rid the country of the antiquated errors and practices, including in their plans the abolishment of the privileges of the clergy, and the restriction of their power, which had been a constant source of injury to the people at large. They wanted the adoption of democratic institutions, in order to place the masses on the level heretofore occupied only by the ruling class. They succeeded in prevailing on the people to take an interest and a direct intervention in public affairs. Barrundia, Molina, and Córdoba led them to the galleries of the junta chamber to witness its acts, and even take part in its deliberations. [\[III-2\]](#) They attacked Valle for the clause he inserted in the acta of the 15th, to which I have alluded in the preceding chapter. On that point they certainly had a well-founded grievance, but their

manner of presenting it resulted in a loss of confidence in the junta, the organization of new parties, and general distraction. The point taken by them, however, was decided in their favor by the junta. But the latter held secret sessions after the 29th of September, significant of sinister purposes.

The other party—formerly constituting the ruling class—scouted the idea of equality. Most of the churchmen had the same feeling; for in joining the movement for separation from Spain their motive had been to shield their menaced prerogatives, rather than love for America or freedom.

On the 18th of September Gainza wrote Iturbide, generalissimo of the so-called empire of Mexico, that his course had been hailed with joy, and that political parties had consolidated on the proposition of independence from Spain; hence he had proclaimed it. And that, since then, amid the transition from one system to another, the minds of the people of Guatemala had been fixed on Iturbide, and they had desired to tender him their congratulations as the liberator of New Spain. [\[III-3\]](#)

The junta consultiva passed a number of decrees, which were sanctioned by Gainza. Urrutia, the ex-captain-general, was tendered his salary and the considerations due his rank and former office if he would formally recognize the independence. [\[III-4\]](#) He declined with thanks, departing for Habana soon after. At the time of the adoption of the acta, peaceable persons were assured of protection to their persons and property, which pledge was faithfully fulfilled. No opponent of independence was molested. Officials desirous of returning to their country were allowed to do so. [\[III-5\]](#)

The junta, which bore the compellation of excelentísima, unanimously appointed Gainza captain-general, with the salary of \$10,000 a year, decorating him also with a three-colored scarf, commemorative of the three guarantees. A gold medal was voted to the members of the ayuntamiento, who made the solemn declaration of independence on the 23d of September. [\[III-6\]](#) Committees were next appointed to study and report to the

junta on public instruction, safety and defences, statistics, industry, and finances. José del Valle was instructed to form a plan of government. [\[III-7\]](#)

Several financial measures engaged the attention of the junta. One of them proposed to levy a duty of ten per centum on gold and silver exported to Spain. This was never strictly enforced. Restrictions to foreign commerce, and monopolies existing under the Spanish government, were abolished. Liberal principles were introduced, including freedom of the press, which had been guaranteed by the Spanish constitution, and was now continued in force. [\[III-8\]](#)

SALVADOR
INDEPENDENT.

In Salvador absolute independence had been declared by the ayuntamiento on the 21st of September, and proclaimed eight days after. Pedro Barriere, who as teniente letrado was temporarily acting as chief civil authority, together with the ayuntamiento of San Salvador, decreed the election of seven persons to form a "junta subalterna económica y consultiva." There was great commotion stirred on the one hand by the vicar Ignacio Saldaña, and on the other by the liberals, Arce, Ramirez, and others. The next day, the people being assembled to effect the election, Barriere, pretending that his friends, the so-called serviles, were in peril, retracted his former action. His words enraged the populace. Then he called out the troops to disperse the crowds, and arrested the republican leaders Arce, Rodriguez, and Domingo Lara. [\[III-9\]](#) But on the news of his course reaching Guatemala, Delgado was despatched to Salvador as a peace-maker, clothed with ample powers. On his way to the capital he liberated prisoners, all of whom joined his following and entered the city with him. Barriere was sent out of the province; the troops were disarmed; peace was restored; a subordinate junta consultiva was installed, and Delgado continued at the head of the government. [\[III-10\]](#)

In Honduras, on the receipt at Comayagua of the news that Guatemala had seceded from the Spanish crown, the governor-intendente, Brigadier

José Tinoco de Contreras, and the diputacion^[III-11] refused to recognize the government constituted in that city, and took an oath to support the plan of Iguala. This was a virtual annexation of Honduras to the Mexican empire. The partidos of Tegucigalpa and Gracias, and the ports of Omoa and Trujillo, would not accept as valid the act of the authorities at Comayagua, and maintained relations with those in Guatemala. The independence from Spain had been declared on the 16th of October.

Tinoco took the two ports above named, which were treacherously surrendered to him.^[III-12] He also fitted out a force to march on Tegucigalpa. A counter-revolution, however, on the 1st of December, supported by an approaching Guatemalan liberal force, set aside Tinoco's control and restored that of the junta consultiva.^[III-13]

LIBERTY IN NICARAGUA.

Nicaragua had, since 1813, a diputacion provincial, under the decree of the Spanish córtés of May 24, 1812. Its jurisdiction extended over the districts of Leon, Granada, Segovia, Nicaragua, and Matagalpa. Under the new system, established in 1821, and since Urrutia's retirement, constant questions of jurisdiction arose between the intendente and the superior jefe político.^[III-14]

On the 3d of October Colonel Crisanto Sacasa, commandant at Granada, issued a general order to the officers to report with their troops next morning, and take the oath to support national independence, pursuant to the instructions he had received from Captain-general Gainza. Intendente Saravia had been at enmity with Gainza, and when the first steps were taken in Guatemala for independence, he threw off his authority. In this he had the aid of Bishop Jerez and Colonel Joaquin Arechavala, commander of the militia, all three being natives of old Spain. They induced the diputacion and the ayuntamiento, by an act of the 11th of October, to declare Nicaragua seceded from Guatemala.^[III-15] This action occurred in Leon. But Granada refused to concur, and sent its representatives to the congress

called to meet in Guatemala. Later, October 21st, the authorities in Leon formally accepted the Iguala plan, thereby annexing the whole province to the Mexican empire. The country was accordingly divided into two antagonistic parties, the imperialist and the republican. [\[III-16\]](#)

Gainza said to the diputacion at Leon, on the 22d of October, that neither they nor the junta consultiva, nor any other body of men then existing, could decide upon the future of the country; none had a legal right to declare for or against annexation to Mexico. This could be arrived at only by the representatives of the people in the general congress. [\[III-17\]](#) He appointed Colonel Sacasa comandante general of the forces in Nicaragua, and directed him to install in Granada a subordinate junta gubernativa of five members, clothed with the functions of a jefe político, and which was to continue in power till the status of the country should be fixed. [\[III-18\]](#) Sacasa frankly notified the rulers in Leon of what he was to do, and took steps to carry his orders into execution. But Saravia, with the bishop and the diputacion, determined that no such junta should be installed. The diputacion, on the 1st of December, by a special act, forbade its organization, declaring all attempts toward it subversive of good order and hostile to the Mexican empire, to which they owed allegiance; and warning all citizens to abstain from such efforts.

COSTA RICA
NEUTRAL.

Sacasa had every right to expect that Gainza would support him against attacks from Leon, but he was disappointed. The captain-general wrote him, on the 22d of December, that it was doubtful if Central America could maintain a government separate from Mexico, many towns having already attached themselves to the empire; and that he had expressed the same opinion to Saravia. Whereupon Sacasa, though a republican, made no further opposition to the powers at Leon.

Costa Rica was privileged by distance to keep aloof from political troubles threatening the other provinces. She had seceded from Spain on the 27th of October, and set aside the governor, Juan Cañas; but when called upon to adopt the plan of the capital or that of Leon, she declined both, preferring a neutral attitude. [\[III-19\]](#) A meeting of notables confirmed the act of secession, and set up a provisional government entirely detached from that at Leon, which was to reside alternately in Cartago, San José, Heredia, and Alajuela. But this was found inconvenient, owing to rivalries between the two first-named towns; and finally it was decided, on the 27th of November, to place public affairs in the hands of Manuel Peralta, Rafael Osejo, and Hermenegildo Bonilla, who were to reside at the provincial capital, Cartago. Under this arrangement peace was preserved, and the province never was really under the imperial rule. [\[III-20\]](#)

Dissensions had now brought the country to the brink of civil war, and no time was to be lost in averting it. Measures were adopted to hasten the meeting of congress. With the view of restoring peace between the sections, and of rendering harmless disturbing elements without resort to arms, the junta at Guatemala concluded to despatch trusty commissioners to the provinces where secession was rife, who were to prevail on them to send deputies to the general congress. Other agents were to be despatched to Mexico to watch the turn of events at the capital. [\[III-21\]](#) What good results those agents might have accomplished, it is impossible now to say. They had no occasion to try their efforts. Events in Mexico succeeded one another with such rapidity, and their influence on Central America was so powerful, that, even among the best patriots, many made up their minds to coöperate toward the union, carried away by the idea that only under the ægis of the northern empire could peace, safety, and stability be secured.

Costa Rica, we have seen, was in fact out of the field; at any rate, it had no share in the political strife. The provinces of Guatemala proper and Salvador were the only ones, at present, which together with Granada, in Nicaragua, and some portions of Honduras, attempted to preserve an

independence from Mexico under whatever form of government might be adopted in that country. The idea of annexation to Mexico had been, however, growing popular from day to day in Guatemala. The important section of Quezaltenango adhered to the scheme, on the 13th of November, inviting Suchitepequez, Sololá, and Antigua Guatemala to follow the example, which they did soon after. And Cirilo Flores and Antonio Corzo, who in later years figured as most prominent champions of democracy and suffered martyrdom for their cause, then supported the action of Quezaltenango.

It was contended that Central America, after throwing off the Spanish yoke, acquired, with independence, the right of forming such associations as might be mutually beneficial. This doctrine was warmly advocated by a large portion of the reflecting class. Under such circumstances, Guatemala and Salvador, hemmed in as they were between provinces that had already become annexed to Mexico, could not maintain an absolute independence.

ITURBIDE'S EFFORTS.

Iturbide had large ideas of imperial sway, and was bent on the acquisition of entire Central America, aided efficiently, as he was on this side, by the aristocrats and other dissentient elements, who, perceiving the insignificance they would come to if the nation finally became constituted under a democratic government, which their opponents were aiming at, labored with might and main to defeat the plan.^[III-22] They won over with money and fair promises a part of the people, and with Gainza, who expected high rank and offices from the new empire, bound Central America hand and foot, as will hereafter be seen.

The junta consultiva was much perplexed in view of the situation. The imperialists daily became more insolent and exacting. At this critical time—November 28th—Gainza laid before it a letter^[III-23] from the generalissimo, making allusion to the much abused second article of the acta de independenciam, and declaring that Guatemala was not able to occupy as yet a place in the family of nations, and should therefore link her fate with

Mexico. [\[III-24\]](#) Whereupon the junta, at the suggestion of the marqués de Aycinena, hastily answered that the popular wishes must be ascertained before adopting any action; promising to send the proposal at once to the ayuntamientos and local authorities, with instructions to call on the people to give a formal expression of their will on the subject. This promise was kept in a measure—the ayuntamientos, not the people, were given one month's time to manifest their preference. [\[III-25\]](#)

Soon after the arrival of Iturbide's messenger, the persecution of republicans was begun. The rough element of the population, instigated by their adversaries, during the night insulted them at their homes. [\[III-26\]](#) Any one who either by word or writing opposed the plan of annexation was treated as seditious. At last the opposing parties had a scuffle in the streets, on the night of November 30th, which ended in the discomfiture of the republicans engaged in it. [\[III-27\]](#) Barrundia and Molina were present and exhibited much energy. The latter was in great peril of losing his life.

VOTE OF THE
AYUNTAMIENTOS.

On the day appointed for the receipt of the returns from the several ayuntamientos—namely, the 31st of December—the junta provisional consultiva proceeded to the count. The result was as follows: 21 ayuntamientos declared that none but the general congress had authority to decide for or against the union with Mexico; 104 favored the annexation at once and unconditionally; 11 approved of the union, provided certain terms, which they appended, were stipulated in the act of incorporation; 32 left the matter wholly to the provisional government; and two declined the connection in toto. [\[III-28\]](#) Many others had not, for some reason, returned any answers; or if they had, the government in Guatemala failed to receive them on the appointed day. The result was made known to the regency in Mexico on the 3d of January, 1822, and on the 5th the subject was discussed in all its bearings. Valle moved that the decision should be postponed until the receipt of the returns of the 67 ayuntamientos not yet heard from. Rivera,

Calderon, and Alvarado objected to any action. Gainza advocated the acceptance of the aid and protection tendered by Mexico.^[III-29] The junta, disregarding all objections adduced, and the marked differences in the opinions of the ayuntamientos, decreed on the same day, January 5, 1822, that the whole of Central America should be annexed to the empire of Mexico, without other conditions than the fulfilment of the plan of Iguala and the treaties of Córdoba.^[III-30] In a manifesto of that date, it assured the people that, after obtaining the votes of all the authorities, corporations, and prominent persons, and in view of the census of population formed in September 1821, it was evident that the vote for the union with Mexico had reached a majority in Guatemala proper; and including the votes of Nicaragua, Comayagua, Ciudad Real de Chiapas, Quezaltenango, Sololá, and other towns which had a few days previously declared themselves for annexation, it would be found that almost the whole population had expressed itself in favor of connection.^[III-31] No member failed to record his name in favor of the loss of nationality, though some had, as before stated, suggested that certain guarantees should be required previous to the completion of the surrender.

GAINZA'S EDICT.

Gainza issued a manifesto full of generalities, declared there was no further need of electing deputies to congress, and assured the people of a liberal government, and future peace and prosperity.^[III-32] Erelong events came to show how delusive were the promises thus held out by the incoming régime. It was preposterous on the part of an unconstituted country, as Mexico then was, with a government whose existence was precarious, to undertake the task of affording protection to the people of Central America—to a people that had been brought under the yoke of the so-called empire in such an unprecedented manner.

Forgetting, after a few days, the honeyed words of his manifesto, Gainza,^[III-33] on January 9th, issued a stringent edict, countersigned by José

María Celaya as secretary, giving renewed force to his former edicts of September 17th and December 1st, and forbidding, under the penalties provided by the laws against sedition, that any one should, either by tongue or pen, censure or refute the action adopted as the will of the majority. Conversations on the subject in the streets or public places were prohibited, and citizens were enjoined to report at once to the authorities any attempted conspiracy against the new government which might come to their knowledge. Constitutional alcaldes and other local authorities were charged with the execution of this decree.

Gainza and his junta thus gave way to the wishes of the would-be oligarchs and the clergy, ignoring the fact, formerly recognized by them, that to the representatives of the people in congress exclusively belonged the decision of the question on the future status of the country.^[III-34] The aristocrats and clericals brought about difficulties to prevent the election of representatives, and took advantage of them to carry out their designs. The truth is, that the device resorted to, of acting upon the opinions of ayuntamientos which they well knew had no authority in the premises, was illegal. And, indeed, could a population of upwards of one million, scattered over 75,000 square miles of territory, have duly considered so vital a matter as the abdication of their national autonomy within the short period of thirty days? The whole secret of the aristocratic success lay in the pressure brought to bear on the country with a military force sent by Iturbide to support his pretensions.^[III-35] The following facts appeared in the imperial gazette of Mexico: The regency announced on the 12th of November to the junta soberana that Chiapas, as well as the towns of Guatemala, had signified a wish to be received as a part of the Mexican empire, asking for military aid to uphold its acts. The regency added, that the military aid must then be quite near Chiapas, under the orders issued beforehand by the generalissimo, 5,000 men having already, under the conde de la Cadena, crossed the Tehuantepec River. The junta graciously assented to the so-called wishes of the people of Chiapas and Guatemala, giving them the rights of Mexican citizens.^[III-36]

A division under Brigadier Vicente Filisola, with Colonel Felipe Codallos as his second in command, [\[III-37\]](#) began its march in November 1821; but a large portion of the men deserted on the way, and the ranks had to be recruited in Chiapas; and yet Filisola finally arrived in Guatemala with only 600 men. [\[III-38\]](#)

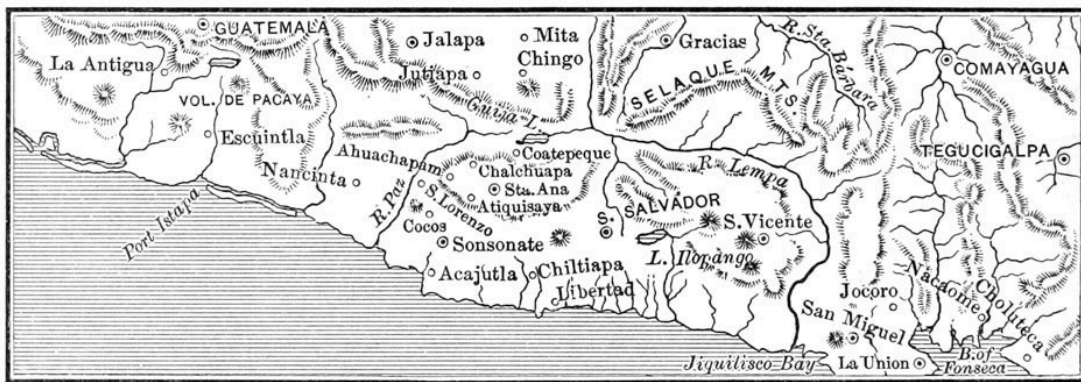
TROUBLES IN
SALVADOR.

The junta provisional, after its action of January 5th, had no further reason for continuing, and so dissolved itself on the 21st of February. Gainza, retaining the offices of jefe superior político and captain-general, called into life a diputacion provincial. [\[III-39\]](#) His authority, however, was not regarded in Chiapas, Honduras, Nicaragua, nor a great part of Salvador. Costa Rica still remained aloof and was unmolested.

During Iturbide's occupation of his rickety throne, Central America had deputies in the imperial congress, [\[III-40\]](#) and the orders of the emperor's government were generally obeyed. Nevertheless, plucky little Salvador kept up the struggle against foreign domination. Nearly a majority of its ayuntamientos, together with the priest Delgado, the acting political chief, had signified their wish to await the action of congress; and on hearing of the surrender to Mexico by Gainza and his junta, entered a protest and seceded, resolving to remain independent till the representatives of the whole people of Central America should decide the question of nationality. [\[III-41\]](#)

But even here dissensions fostered from Guatemala had their pernicious effects. Santa Ana and San Miguel had voted for annexation to Mexico, and to uphold this action, seceded from their own province, which in that year led to a war between Salvador and Guatemala. The government at San Salvador gave the chief command of its forces to Manuel José Arce, with orders to bring the people of Santa Ana to reason, peaceably if he could, forcibly if he must. [\[III-42\]](#)

Arce marched on Santa Ana, when Padilla, commanding a portion of the Sonsonate force which had been stationed in that city, retreated within its own territory. After compelling the town to revoke its act of secession, Arce went in pursuit of Padilla, occupied Ahuachapam, then an annex of Sonsonate, and finally routed that officer in the hacienda El Espinal. [\[III-43\]](#) This was the first act of a bloody war, which will be treated in another chapter.



DEFEAT OF PADILLA.

In Honduras, the districts of Tegucigalpa and Gracias, together with the ports of Omoa and Trujillo, repudiated the union with Mexico. [\[III-44\]](#) Brigadier Tinoco, on hearing that a Salvadoran force had entered Honduras, resigned his office of governor. Comayagua, however, continued recognizing the authority of Mexico, but not that of Guatemala. [\[III-45\]](#)

NICARAGUA AND COSTA RICA.

In Nicaragua, the city of Granada disregarded the authority at Leon, and held relations with Gainza, even after Colonel Sacasa had placed himself under the orders of the former. [\[III-46\]](#) Sacasa had surrendered his charge in Granada to Cleto Ordoñez, [\[III-47\]](#) who thus became the leader of the liberal party in

Nicaragua. After the act of annexation to Mexico, and Salvador's act of secession, both Sacasa and Ordoñez supported the independents.

Ordoñez, finding himself in possession of irresponsible power, soon gave a loose rein to his bad instincts. He began to seize private property, not excepting even that of foreigners. Sacasa's person and property did not escape. [\[III-48\]](#)

Costa Rica did not fail, though maintaining a neutral attitude, to manifest her discontent with the course of Guatemala.

CHAPTER IV.

CENTRAL AMERICAN CONFEDERATION.

1822-1825.

SECESSION FROM MEXICO—ARZÚ'S CAMPAIGN—PREVARICATION OF SALVADOR—FILISOLA'S VICTORY—
HIS SUBSEQUENT COURSE—LIBERAL TRIUMPH IN COSTA RICA—HONDURAS FAVORS UNION—
NATIONAL INDEPENDENCE SECURED—LABORS TO ORGANIZE A NATION—THE CONSTITUENT ASSEMBLY
—PROVINCIAS UNIDAS DEL CENTRO DE AMÉRICA—ABOLITION OF AFRICAN SLAVERY—PROVISIONAL
GOVERNMENT—MODERADOS OR SERVILES—LIBERALES OR FIEBRES—PRINCIPLES AND AIMS OF
PARTIES—MEXICAN FORCES RETIRE—SEDITIONS BEGIN—SALVADORAN FORCE IN GUATEMALA—
CONFEDERACION DE CENTRO AMÉRICA—FUNDAMENTAL LAW—FINANCES—ADJOURNMENT OF THE
CONSTITUENT ASSEMBLY.

DEFEAT OF ARZÚ.

Arce's invasion of territory occupied by Guatemala afforded the latter a sufficient pretext, if any were needed, to declare war against her high-spirited and troublesome neighbor. Colonel Arzú was thereupon despatched on the 19th of March, 1822, at the head of a force, which in a few days had been increased to 1,000 men, to bring Salvador under subjection. Arzú's dilatory movements, however, defeated the object of the expedition.^[IV-1] He lost two months and more waiting for reënforcements and artillery, and by indecision as to whether or not he should heed the protestations of the Salvadorans.^[IV-2] The latter employed the time thus gained in fortifying their city, though short of arms to equip a sufficient garrison. Aroused at last by Gainza's positive commands, Arzú continued his march,^[IV-3] and avoiding the fortifications of San Salvador, entered the city on the 3d of June, taking its defenders by surprise.^[IV-4] Having now every advantage, Arzú might have made himself

master of the place had he not carelessly permitted his troops to disband for purposes of plunder. The result was, that the Salvadorans had time to rally, and a street fight ensued, ending with the total discomfiture of Arzú and his force, who with the loss of their arms were driven from the city.^[IV-5] Had the victors made the most of their success, they might have annihilated the invading force; but they failed to conduct the pursuit with any skill.^[IV-6]

Arzú's defeat produced a deep impression in Guatemala, where such a result had been unexpected, the expedition having been fitted out with the utmost care. Fears began to be entertained that the Salvadorans might become aggressors and invade Guatemala. The friends of Mexico were therefore much pleased on hearing that the Mexican commander, Filisola, had been ordered to supersede Gainza, who was summoned to Mexico.^[IV-7] With about 600 men Filisola arrived in Guatemala on the 12th of June, 1822, and ten days later took possession of the government. He inaugurated a comparatively good state of affairs; for though as a supporter of the Mexican cause, and specially of the empire, he aimed at consolidation, yet his policy was a conciliatory one.^[IV-8] He endeavored to obtain the assent of Salvador to union with Mexico without resorting to force. At first his course presented a promising aspect, inasmuch as the representatives of the former apparently made little objection; and on the news of Iturbide's call to the Mexican throne, among the many congratulations received by Filisola were those of Salvador, delivered by a special deputation. But the object, as it turned out, was merely to gain time. The negotiations were continued several months, hostilities having been suspended by both belligerents, till early in September it was agreed that further negotiations should be carried on directly with the executive and congress of Mexico.^[IV-9] This agreement was not carried out, however, owing to new difficulties raised by San Salvador. Filisola, who evidently would not assume the responsibility of war, referred the whole matter to Mexico for instructions. Iturbide, who had just dissolved the Mexican congress for its opposition to his plans,^[IV-10] felt no inclination to permit little San Salvador to dictate the terms of union, and

disallowing the armistice concluded by Filisola, ordered him to begin hostilities forthwith if unconditional submission were refused.^[IV-11]

FILISOLA'S
CAMPAIGN.

Leaving his second officer, Colonel Codallos, in charge of the government at Guatemala, Filisola began the military operations toward the end of November, taking possession of Santa Ana and marching^[IV-12] upon the city of San Salvador, after having routed several small hostile detachments which attempted to check his progress. At the same time he published the decree of the Mexican government of November 4th, making of Central America, or the former captain-generalcy of Guatemala, three comandancias generales, namely, those of Chiapas, Sacatepequez, and Costa Rica, the capitals being respectively Ciudad Real, Nueva Guatemala, and Leon in Nicaragua.^[IV-13] The government of San Salvador was in a precarious situation; although disposing of an army whose numerical force and equipment were not inferior to Filisola's, yet it had neither discipline nor experienced officers. The few encounters which had already taken place between the two forces had made it evident that the Salvadorans could not cope with Filisola's military skill. Under the circumstances, the authorities of San Salvador resolved upon incorporation with Mexico, and demanded that Filisola should proceed no farther. They declined to inform him of the terms under which they would submit to annexation, though offering to lay them before the congress in Mexico. They based this action on the ground that if their purpose became known in Salvador a revolution would certainly follow.^[IV-14]

The Mexican commander paid no heed to these ambiguous statements, which he considered devices to gain time, and continued his march.^[IV-15]

FALL OF
ITURBIDE.

It was at this critical moment that the congress of San Salvador, carried away by hatred to Guatemala and Mexico, resolved upon a singular step. On the 2d of December, 1822, the act of incorporation with Mexico was repealed, and

the state was placed under the protectorate of the Anglo-American states, as an integral portion thereof. Solemn protests were made in the name of that republic against Filisola's hostile acts. A member of the congress, Juan Manuel Rodriguez, was commissioned to make known the incorporation to the government of the United States.^[IV-16] For a short time it seems that hopes were entertained of an armed protection on the part of the northern republic in favor of the new acquisition; but soon the folly of such expectations became apparent. Filisola disregarded the protests,^[IV-17] and after several victorious encounters, routed the Salvadorans under Arce at Mejicanos,^[IV-18] and entered the city of San Salvador without further opposition on the 9th of February, 1823. Filisola fulfilled the promise he had made the preceding day to the ayuntamiento, that he would respect all rights, and not treat the town as a conquered country. The only Salvadoran force remaining was compelled, on the 21st of February, to surrender at Gualcince, a town on the other side of the Lempa River.^[IV-19] This was the end of the war.^[IV-20] Arce, who departed for the United States, wrote Filisola from Belize a letter full of firmness and dignity, meanwhile thanking him for his humane conduct. Delgado remained at his hacienda. The local authorities swore allegiance to the Mexican empire. Filisola now returned to Guatemala,^[IV-21] where he arrived about the 6th or 7th of March. He had already received the news of the movement in Mexico resulting in the overthrow of Iturbide. It was this that hastened his return to Guatemala, and induced him to adopt a course opposed to his last instructions from Mexico. Granada, in Nicaragua, had not been reduced to obedience. Governor Gonzalez Saravia had asked for troops to accomplish it, but Filisola declined to employ coercion; and after informing him and Juan Fernandez Lindo, governor of Honduras,^[IV-22] as well as other officials in the provinces, of the state of affairs in Mexico, assured them that he would take no important step without first obtaining their assent. Indeed, after he convinced himself that the imperial government had fallen never to rise again, he arrived at the conclusion that he had no right to keep annexed

to Mexico the Central American provinces; as the annexation had been made solely, as claimed by Mexico and her supporters, for the sake of securing stability to their government, and the respect which would be afforded it from a long distance by a great and wealthy country. All this prestige had disappeared, owing to the revolution at Casa Mata in Mexico, [\[IV-23\]](#) the paper money, and other arrangements made by Iturbide with reference to these provinces.

Being asked to summon a congress of all the provinces of Central America, he complied, issuing a decree on the 29th of March, 1823, with the view of carrying out the act of September 15, 1821, which had been annulled by the incorporation of the country with Mexico. This was tantamount to a recognition of the independence of Central America from Mexico. [\[IV-24\]](#) His decree was hailed with joy by the party friendly to absolute independence. The Mexican or imperialist party was vanquished, and the people were ready to take an active part in the coming elections. Peace was not only temporarily restored in Guatemala and Salvador, but in Nicaragua and Costa Rica party struggles were brought to a close.

In Granada, Ordoñez had continued committing many outrages. [\[IV-25\]](#) He had successfully repulsed Saravia, who had come against him from Leon. The latter was in the act of preparing another expedition, when Filisola's decree was promulgated, and he was summoned to Guatemala. Nicaragua subsequently constituted a junta gubernativa of its own. [\[IV-26\]](#)

In Costa Rica, Saravia, with the aid of Bishop Jerez, attempted to force the province into the union with Mexico, and with that view endeavored to overthrow the provincial government established at Cartago. A conspiracy was planned there, and its authors, seconded in Ciudad Vieja, openly espoused the cause of Iturbide on the 29th of March. The men of the liberal party fled to San José, and after strengthening their ranks there and at Alajuela, attacked the imperialists on the field of Las Lagunas, near Cartago, and defeated them. [\[IV-27\]](#) The town had to surrender, and was

occupied by the victorious independents, but the seat of government remained in San José. [\[IV-28\]](#)

In Honduras, the provincial assembly resolved on the 10th of May to enter into the union with the other provinces of Central America, with the view of constituting an independent nation. [\[IV-29\]](#)

SEPARATION
FROM MEXICO.

Central America then, after a fifteen months' connection with Mexico, was again in the same position it had occupied at the time of separation from Spain. No advantages had been derived from that union; but, on the contrary, numerous heavy taxes had exhausted the country, though the treasury was invariably empty. The whole country was suffering from other consequences of the internal wars, in the form of abuses on the part of unscrupulous political parties and military chiefs; none worse, however, than the military sway imposed by Mexico. [\[IV-30\]](#) There have not been wanting those who believe the separation from the northern republic was a false step. [\[IV-31\]](#) The people had for centuries lived under the same superior government, subject only to the Spanish crown. Then followed a period when they often faced one another as foes. Now they were invited to sit side by side and discuss measures for the benefit of the great family to which they all belonged. The elections were conducted with enthusiasm on the part of the republicans, the field having been left to them by the imperialists. [\[IV-32\]](#)

Congress assembled on the 24th of June, 1823, [\[IV-33\]](#) under the presidency of José Matías Delgado, [\[IV-34\]](#) the installation being graced by the presence of Filisola and the municipal council of the city. [\[IV-35\]](#)

On the 2d of July following it assumed the name of Asamblea Nacional Constituyente. The body was in session nineteen months, closing its labors on the 23d of January, 1825. Its work was momentous, having to organize a government imbued with the prevailing liberal spirit; to improve the

imperilled finances; to establish relations with foreign powers; and, what was of the highest importance, to bring unity out of chaos. The first step toward the accomplishment of these purposes was taken on the 1st of July, 1823, with the adoption of the ordinance which declared the provinces of the former captain-generalcy of Guatemala to be free and independent states, confederated into a nation under the name of Provincias Unidas del Centro de América.^[IV-36] Inasmuch as a considerable number of representatives had not arrived on that date, the ordinance was subsequently ratified on the 1st of October.^[IV-37] The new confederation was recognized by Mexico only a little more than a year after.^[IV-38]

ORGANIZATION.

Shortly after independence was proclaimed, a division of the powers of government into three branches was resolved on; namely, the legislative, to be vested in the *asamblea*; the executive, composed of three members, to be elected by and to be subject to that body; and the judicial, to be exercised by the existing courts.^[IV-39] The executive, as then constituted, was to be merely provisional, and until a fundamental code should give it a permanent organization. The public debt was recognized; the catholic religion was declared to be that of the state; and freedom of the press decreed.

From the moment that the choice of the executive occupied the attention of the assembly a division of parties became manifest. The friends of absolute independence formed a large majority; those of the former *Mejicanistas* were few in number. The larger portion of the deputies was composed of the best men of the country, whatever their party affiliations, and their intentions were upright. Those of moderate views from all sections formed themselves into one party, and went by the name of *moderados*; their opponents applying to them the epithets of *servil* and *aristócrata*.^[IV-40] The radicals formed another organization, and were called *fiebres* and *liberales*, their enemies also giving them the appellation of *anarquistas*.

The liberal party advocated the establishment of a federal republic, and as a rule was guided by a liberal patriotism, and a desire to see the abolishment of unjust privileges and antiquated vices in the government. Its opponents, in favor of a centralized government and the continuation of the old fueros, struggled against the restrictions that were being put to the influence of Guatemala. Nevertheless, a liberal spirit predominated for a time, and three well-known liberals were chosen to constitute the executive authority, namely, Manuel José Arce,^[IV-41] Doctor Pedro Molina, and Juan Vicente Villacorta.^[IV-42] It must be acknowledged that this government was not a strong one, the only man of superior talent in it being Molina, and he had little experience wherewith to found a republic and manage its affairs at such a critical period.

A constantly increasing coolness between the government and Filisola became intensified when the deputies from Costa Rica and Nicaragua refused to occupy their seats in the assembly while a Mexican army had virtual sway over the capital. Complaints also came from various quarters, of abuses committed by the Mexican soldiers,^[IV-43] and demands were made for their departure. Some time elapsed in discussions and negotiations, partly because of difficulty in raising the needed funds. But finally, all obstacles being removed, Filisola departed with his force on the 3d of August, 1823, leaving behind him a good name, which was little affected by charges preferred against him at a later date.^[IV-44]

The liberals now were at greater liberty to carry out their plans, which involved, among other things, the disappearance of old practices, including titles and compellations,^[IV-45] not even the hackneyed 'don' escaping the general reformatory tendency.^[IV-46] A coat of arms was likewise decreed, showing the national name in golden letters,^[IV-47] as also a flag, the latter consisting of three horizontal stripes, the middle one being white, with the national coat of arms about half-way from the mast, and the other two blue.



SEAL OF CENTRAL AMERICA.

DECREES OF THE
GOVERNMENT.

Among other decrees enacted by the assembly in 1823, the following are worthy of mention: One of August 21st, to annul all acts of the late imperial government affecting Central America; one of August 26th, declaring the 15th of September to be the national anniversary, and how it was to be observed—this decree was reiterated by the legislative assembly on the 15th of October, 1834; one of October 27th, directing the Central American deputies—those of Chiapas excepted—to withdraw from the Mexican congress; and one of November 15th, to form a general census. [\[IV-48\]](#)

ARIZA'S REVOLT.

Another measure adopted was that which authorized the executive to dismiss without formality all officials having their appointments from the Spanish or Mexican governments. Little discretion was shown in this, and discontent resulted, which was made manifest in the opposition met with by every measure of the government, even such as were generally recognized to be of public utility. Financial and military affairs were in the worst possible condition. To improve the former was a difficult task, the expenses being greater than during the colonial period, and several branches of revenue, which formerly yielded considerable resources, having disappeared with the old

dependence.^[IV-49] As to the army, the greater part of it had been disbanded, and only one battalion of the regular force and a few bodies of militia formed the entire defensive power of the republic. The government was almost at the mercy of a handful of men, and it was not long before they exhibited their lack of discipline and loyalty. The soldiers had for some time past shown dissatisfaction at the neglect of the government to pay them their dues. Under the circumstances, it was rather easy to prevail on them to revolt, and it was done, the leader being Captain Rafael Ariza y Torres.^[IV-50] The authorities, though aware of his machinations, had taken no decisive measures to defeat them,^[IV-51] other than commissioning Ignacio Larrazábal to make an investigation. Ariza, fearing that delay might cause the failure of his plan, in the evening of the 13th of September assumed the title of commander-in-chief of the forces; and the next morning^[IV-52] volleys of musketry and other manifestations apprised the alarmed inhabitants of the insurrection. A scene of excitement ensued. The assembly hastily met, and amidst the confusion a messenger came from Ariza to assure the chamber of his loyal disposition toward the government, and to add in explanation that the position of commander had been forced upon him by the troops. The messenger was peremptorily ordered to retire without receiving any answer. A number of enthusiastic citizens assailed a portion of Ariza's men, only to be driven back to the university building, where the assembly held its sittings. A show of defence was made there,^[IV-53] to enable the assemblymen to seek safety in flight. Few of their number remained. Negotiations were then begun to prevent the commission of outrages by the mutinous soldiers,^[IV-54] and the government finally gave way, and conferred on Ariza the title of commander-in-chief; he thereupon took the official oath on that day. The concession was made only to gain time, hopes being entertained that the auxiliaries summoned from the surrounding country and other states would soon arrive.

The rebellious captain had in the mean time begun to realize his awkward position. Assuming a submissive tone, he protested his readiness to obey the government; whereupon he was commanded to leave the city and retire to Antigua, where his force dispersed before any coercive action on the part of the government and its allies became necessary. Ariza himself escaped by flight the punishment which his reckless behavior deserved. [\[IV-55\]](#)

But the difficulties were not yet over. The feeble conduct of the government, and the humiliating concessions it had made to the rebel, reflected so much discredit that the labors of the moderado party for the election of a new executive now gave promise of fruitful results. [\[IV-56\]](#) On the 4th of October congress reassembled, and the same day Villacorta, Molina, and Rivera tendered their resignations, which were accepted; and in their stead, on the 4th of October, Manuel José Arce was again elected, together with José del Valle and Tomás O'Horan, [\[IV-57\]](#) and as substitutes for the two first, then absent, José Santiago Milla and Villacorta, the same person who had resigned. [\[IV-58\]](#) The new government found at once its attention engrossed by the troublesome situation, which had arisen from the coming of a Salvadoran force, called to help against the revolting soldiers. Although forbidden to approach the city, and ordered to return home, it refused to comply, [\[IV-59\]](#) and on the 12th of October entered the city of Guatemala, all remonstrances to the contrary having proved unavailing. The Salvadorans occupied the capital three weeks, during which rumors were rife of their plans to pillage the place in retaliation of Guatemalan troops having occupied San Salvador the previous year. Brawls and fights between them and soldiers from other provinces were of daily occurrence.

The regular garrison and all the inhabitants breathed more freely when at last, on the 3d of November, the unwelcome guests departed. [\[IV-60\]](#) The same day the auxiliary troops from Quezaltenango, who had been of good use in keeping others somewhat in check, also returned home.

A CONSTITUTION.

The labors of the assembly had been continued in the mean time, and on the 17th of December, 1823, were decreed and published the bases of the constitution for the republic,^[IV-61] adopting a popular, representative, federal form of government. Each one of the five states, Guatemala, Salvador, Honduras, Nicaragua, and Costa Rica, which were to form the confederation of Central America, was to have the same division of powers, and with the same functions, in its internal administration, as the general government with respect to the whole republic.^[IV-62]

The labors of framing the constitution lasted a year longer, and were terminated only on the 22d of November, 1824, when the fundamental law of the Central American republic was promulgated, strict obedience thereto being solemnly sworn on the 15th of April, 1825,^[IV-63] and ratified by the national congress five months later, namely, on the 1st of September. While discussing the constitution, both the liberal and moderado parties used their best efforts for the adoption of their respective principles. The former triumphed, being especially strong in the provinces, whereas its antagonists resided chiefly in the capital. Although a number of good and able men were among the members of the congress, their good purposes were repeatedly balked by party spirit; and thus only an imperfect result was obtained in the constitution adopted November 22, 1824.^[IV-64] It was the first effort to define the rules for the government of a country which at that time was beginning the life of an independent nation. The constitution of the United States had been taken as a model; but it had not been borne in mind that a difference existed between the people of the northern and Central American republics at the time when they respectively gained their independence. However good the intentions of the framers of the Central American constitution, they fell short of their object; for in adopting certain forms, altogether inappropriate, they also introduced contradictory clauses. No provision was made for a federal district to hold the national capital. Thus Guatemala, where the federal authorities then and afterward resided,

became also the seat of the state government, and in the course of time collisions were unavoidable.^[IV-65] The constitution further defined the rights of property and liberty of thought, as well as freedom of the press, and placed the chief authority of the republic in the hands of congress,^[IV-66] in addition to the legislative power with which it was vested. Laws were to be enacted by the two houses forming the congress, one of which was the senate, whose members were also elected by the people, two for every state. This body acted as an executive council, with a general supervision to see that the different high officials and magistrates faithfully discharged their duties. Its president was ex officio vice-president of the republic.^[IV-67] A supreme court of justice was also created, the members being, like those of congress and senate, chosen by popular vote.^[IV-68]

SLAVERY
ABOLISHED.

Among the most important laws enacted were those of December 31, 1823, and April 17 and 24, 1824, which emancipated all slaves, and made free slaves of other countries coming to Central America.^[IV-69] The slave-trade was prohibited, under the penalty of forfeiture of the rights of citizenship.^[IV-70] Of all the nations of North America, to the Central American republic belongs the honor of having first practically abolished slavery.^[IV-71]

The new republic also took a deep interest in a project for the union of all the American states.^[IV-72] The project failed, because of its impracticability. The particulars of this subject are given in treating of the famous Panamá congress of American nations.

The exhausted condition of the treasury appearing to be the chief impediment to all projected improvements, the remedy was looked for in a foreign loan, about \$7,000,000 being borrowed on rather favorable terms from a London firm.^[IV-73] The tobacco and customs revenues were pledged toward its repayment.^[IV-74] It is understood that a portion of the money was

applied to strengthening the fortifications, and the remainder was distributed among the states for their local requirements.

The initiation and execution of the different measures I have made mention of, and others of less magnitude, were the work of the constituent assembly, which closed its session on the 23d of January, 1825. If all its resolutions were not wise ones, allowance must be made for the many difficulties that were in the way, and a full recognition given its members of the good faith and assiduity with which they performed their work. [\[IV-75\]](#)

CHAPTER V.

CONSTITUTIONAL GOVERNMENT.

1825-1830.

GENERAL ELECTIONS—MEETING OF THE FIRST CONGRESS—MANUEL JOSÉ ARCE, FIRST PRESIDENT OF THE REPUBLIC—FOREIGN RELATIONS—ARCE'S PREVARICATIONS—CONFLICT WITH GUATEMALA—PARTY BICKERINGS—LIBERALS QUARREL WITH ARCE—HE JOINS THEIR OPPONENTS—BITTERNESS ENGENDERED—PRESIDENT VERSUS GUATEMALAN RULERS—ARREST OF JEFE JUAN BARRUNDIA—RIOTS AT QUEZALTENANGO—MURDER OF VICE-JEFE CIRILO FLORES—ARCE AS DICTATOR IN GUATEMALA—WAR AGAINST SALVADOR—ARCE DEFEATED—HE GIVES UP THE PRESIDENCY, AND CANNOT RECOVER IT—BLOODY WAR OF 1826-9—MORAZAN THE VICTOR—JOSÉ FRANCISCO BARRUNDIA, ACTING PRESIDENT—LIBERAL MEASURES—PEACE RESTORED—SPANISH SCHEMES.

The first constitutional congress of the Estados Federados de Centro América was installed on the 6th of February, 1825, Mariano Galvez being chosen president, [\[V-1\]](#) as well as the leader of the liberal party. A number of the old delegates had been reëlected for the new body, [\[V-2\]](#) whose principal duties were the election of a president, and the ratification of the constitution. The latter, as we have already seen, was on the 1st of September; the former proved a more difficult task, and was achieved amidst contradictions and stormy discussions. The provisional executive power elected in 1823 had not been harmonious. Arce and Valle assumed their duties soon after their election, and before many days had serious differences, which ended in Arce's resignation of the presidency of the triumvirate. Being replaced by José Manuel de la Cerda, he departed for Salvador and Nicaragua, exerting himself in the pacification of the latter. His services in this direction won him much good-will, and it was proposed to make him the first constitutional president of the republic, a proposition

that met with popular favor. Meanwhile his opponent, Valle, was also working.^[V-3] Since May 1824 the congress had been convoked. Both liberals and moderados had untiringly worked for their respective candidates. The latter seemed to have every prospect of victory; of the 79 votes cast, 41 being for Valle, their candidate.^[V-4] As 42 votes were necessary for a choice under the constitution, congress assumed the right of selecting one of the two candidates. A compromise between the contending parties was effected, Arce pledging himself to remain neutral on certain questions upon which the other party was much disturbed.^[V-5] The moderados then voted for Arce, and congress, on the 21st of April, 1825, declared him to have been duly elected by a majority of twenty-two votes against five for Valle. The latter was recognized as the vice-president, and having declined the position, Mariano Beltranena was chosen in his place.^[V-6] The justices of the supreme court were elected at the same time, and on the 29th of April^[V-7] took possession of their offices.

RECOGNITION BY
THE UNITED
STATES.

The recognition of the Central American republic as an independent nation had engaged the attention of the supreme authorities at the same time that the internal organization was proceeding. The first treaty concluded by the new republic was on the 15th of March, 1825, with Colombia, Pedro Molina acting as its plenipotentiary at Bogotá.^[V-8] A few months later, at Washington, on the 5th of December, 1825, a treaty was entered into with the United States of America, with which power there had been formal relations since the beginning of the year.^[V-9] Antonio José Cañas represented Central America as her plenipotentiary. The United States soon after accredited William Miller as chargé d'affaires near the new republic. Diplomatic relations with Great Britain and the Netherlands were opened early in 1825. Spain continued refusing to recognize the independence of

Central America, and the pope followed in her footsteps, as he had done in regard to Mexico. [\[V-10\]](#)

The republic being now fairly launched, had Arce possessed the ability all might have gone well. But he either overestimated his administrative powers, or underrated the magnitude of his task; and after decreeing some wise measures upon the military defences, he began to sow dissatisfaction by his vacillating policy. A member of the liberal party from the first day that he took part in the political affairs of the country, he now committed the serious error of abandoning the ground upon which he might have trod with safety. In his endeavors to please both parties, he succeeded in offending the liberals without securing the confidence of their opponents, who, though willing enough to admit him to their ranks, declined rendering implicit obedience. His former friends now openly assailed him. [\[V-11\]](#)

A conflict sprang up, also, between the federal government and the local authorities of Guatemala City, because the latter refused to take part in celebrating the anniversary of the installation of the first assembly on the 24th of June, and force was at last brought to bear upon them. [\[V-12\]](#)

ARCE, RAOUL,
AND VALLE.

The ill-feeling against Arce became intensified when the state government soon after decreed a transfer of its seat to Guatemala, and for want of accommodations in public buildings, took possession of the property of private citizens without their consent. The owners claimed protection from the federal congress, and serious disturbances were averted only by a compromise. During this episode the moderados or serviles kept fanning the flame of discord between Arce and the liberals, extolling his measures. When the first congress closed its session, on the 25th of December, 1825, [\[V-13\]](#) the political features of the country had notably changed. But fortunately the danger to the republic from the action of the serviles was avoided, because, upon lots being cast on the 1st of October for the renewals of members of congress, [\[V-14\]](#) the retiring members happened to be

chiefly of districts where the servile party had majorities before, and were now replaced by liberals, the preponderance of the latter being thus increased. The second constitutional congress assembled on the 1st of March, 1826. Among its members was Valle, who, bent on revenge, ere long made common cause with the liberals,^[V-15] though he was not allowed to exercise a predominant influence in their counsels.

On the day congress opened, the president delivered his message detailing the condition of the country, but most of it had reference to the relations with foreign powers.^[V-16] The impending rupture was finally hastened by the president's course toward Colonel Nicolás Raoul, a French officer who had recently arrived from Colombia, and had been made commander of the artillery and a member of the council of war.^[V-17] Notwithstanding the considerations and favors conferred on him by Arce, no sooner had he received his appointment than he openly sided with the liberals and gave utterances against the government. Therefore, when Raoul was summoned by congress to aid in the organization of the federal troops, the president, to get rid of him, sent him to explore the northern coasts.^[V-18] Arce then undertook to increase the federal army to 4,000 men, under the pretext that such a force was needed for the pacification of Nicaragua, and the defence of the country against a Spanish invasion, rumors of which were circulating. In order to facilitate the operation, he proposed that the members of congress should stir up public enthusiasm in their respective states; but instead of acceding to his recommendation, several persons known to be hostile to the government, among them Raoul, were selected by that body. All remonstrances to the contrary on the part of Arce^[V-19] had no other effect than to embitter the liberals against him. Charges were accordingly brought forth, such as his neglecting to lay before congress an account of expenditures during his administration, and his having squandered a considerable portion of the money raised by loan in London. The outcry against his conduct was growing louder from day to day.

This unsatisfactory state of affairs determined Arce to dissolve congress. Still he was loath to use violent means, and in fact, there was no need of it. One of the clauses of the constitution allowed the admission of substitutes for the deputies to congress in certain cases, and both parties had taken advantage of it without opposition. However, when the question of calling the president to account arose, the serviles protested against the presence of the liberal substitutes which gave to that party the majority. [\[V-20\]](#) On the 2d of June the deputies from Salvador, under instructions from their government, which was friendly to Arce, abandoned their seats, their example being followed by those from Costa Rica and most of the serviles, thus leaving the chamber without a quorum. [\[V-21\]](#) The session was reopened, however, ten days later, upon the liberals pledging themselves not to introduce any motion against the president or the serviles, and thenceforth the discussions were confined to matters of a general character till the 30th of June, when the session was closed; but the deputies of Salvador and Costa Rica had not resumed their seats.

STATE AND
NATION.

It was now evident that a collision was unavoidable. The state government, controlled by the liberals, became fearful that the serviles, in their endeavor to support the president, might also attack the authorities of Guatemala, and under the pretext of an invasion threatening from Chiapas, secretly began to make military preparations. Salvador and Costa Rica, on the other hand, offered aid of troops to the federal government. Both parties precipitated the crisis: the liberals by their heedless attacks on the clergy, [\[V-22\]](#) and specially by ridiculing its members; the serviles by fanning, jointly with the clericals, ill feeling among the low, ignorant classes, whom it was easy to persuade that the liberal party aimed at the destruction of their religion. This had now become a matter of greater ease, owing to the irritation already existing, caused by the forced loans and recruiting for the army decreed by the state government. Strange though it may appear, the serviles had no suspicion that the federal authorities were aware of their

intrigues. The clash came in May 1826, when Raoul, without having fulfilled his commission on the northern coast, tendered his resignation, accompanied with a number of invectives against the executive, which he subsequently repeated in a second letter.^[V-23] He was arrested on the 17th of July, and subjected to the action of a court-martial for disrespect and insubordination. This raised a storm of fury in the local legislature, where Raoul's arrest was considered as an encroachment on the state's authority. An order of arrest was issued against Captain Espínola, the officer who had carried out the commands of the federal executive, and the jefe, or chief of the state, Juan Barrundia, was authorized to raise a sufficient force to seize Espínola's person,^[V-24] and the pecuniary contingent of the state for federal expenses was withheld.^[V-25]

The troops despatched to arrest Espínola numbered 300 men, and were commanded by Cayetano de la Cerda, who encountered his man near Acasaguastlan. To avoid bloodshed, a capitulation was agreed upon by both parties until they should obtain further orders from their respective governments.^[V-26]

When news of this agreement reached Guatemala, a few days later, simultaneously rumors came to the ears of Arce that a coup-de-main was contemplated by Barrundia, with the evident intent of effecting his removal. To anticipate the blow,^[V-27] on the 5th of September Arce secretly ordered the commander of the federal forces to arrest Barrundia at an early hour the following morning, and disarm the state troops, using force if necessary.^[V-28] This was done, the officer meeting with no resistance.^[V-29] The liberals had no suspicion of Arce's resolve till after its execution. The vice-jefe of the state, Cirilo Flores, then forthwith assumed the government, and being tendered the aid of federal troops to support his authority, proudly rejected it.^[V-30]

ARREST OF
BARRUNDIA.

On the following day the chiefs of the other states were apprised of Barrundia's arrest, in a circular from Arce defending his course, which he declared to have been pursuant to duty under the constitution.^[V-31] Such was the position assumed by his friends and by the serviles in general; while the radical liberals, taking a different view, denounced him as a violator of the constitution.^[V-32] However, the energy thus displayed by Arce was rather favorably looked upon, perhaps from a feeling of relief arising from the supposition that party bickerings had been brought to an end, more than from any sympathy for Arce. The president might now have strengthened his party, but did not, and went on committing serious mistakes. Instead of turning the imprisoned Barrundia over to the state assembly, as prescribed by the constitution, to be tried upon the several charges that had been ostentatiously preferred against him, he allowed the legal time for prosecution to elapse, and then released the prisoner under bonds.^[V-33]

The second constitutional congress was to meet on the 1st of October, 1826, and the liberal party had, since September, industriously worked to secure a majority. But on the appointed day there was no quorum, the members of the opposition having refused to take their seats, evidently to prevent the adoption of any measures against the president.^[V-34] It was rather suspicious that the government at San Salvador, always friendly to Arce, had forbidden its delegates to occupy their seats in congress unless it were to discuss the expediency of transferring the federal authorities to some place distant from Guatemala.^[V-35] It soon became apparent that the president's aim was to have his own assembly, for on the 10th of October he convoked an extraordinary congress.^[V-36] This was open violation of the constitution, which vested in the senate the authority for convoking, and moreover limited representation to only one delegate for every 30,000 inhabitants. Much indignation was felt by the members of congress, who had constituted themselves into an organizing commission, but dispersed on the same day that Arce's decree was published.^[V-37]

MURDER OF
FLORES.

Exciting events now followed in quick succession. The vice-jefe Cirilo Flores and the state authorities had retired on the 8th of October to Quezaltenango, where he was murdered a few days afterward—on the 13th—by a mob of fanatical Indians.^[V-38] The act was attributed to Arce and his immediate friends, but apparently without much reason,^[V-39] though it must be admitted that intrigues of the servile party and the preaching of hostile priests aroused the fanaticism of the populace to such a degree that the slightest cause would bring about the commission of outrages. The trouble did not end with Flores' death, for many members of the assembly and representative council were compelled to flee for their lives.

The state was now powerless, for even its military forces disappeared before the federal troops. The liberals in the state and republic saw their hopes dashed, and many emigrated.^[V-40] Arce held the executive authority of both the federation and the state of Guatemala; and acting upon the advice of Salvador, he began reorganization, decreeing on the 31st of October the election of a new executive and legislature for Guatemala, from which the inhabitants entertained hopes of a final restoration of peace throughout the republic. But those hopes were frustrated by a sudden change of policy on the part of the Salvador government, which surprised everybody, all the more from the fact that it had heretofore firmly supported the president.

ARCE'S VICTORY
AND DEFEAT.

Pedro Molina arrived at San Salvador from Panamá when Arce had in his charge the affairs of Guatemala, and had decreed the new elections for the state. Being a political opponent of the president, Molina refused to go to Guatemala to report the action of the Panamá congress. It was not a difficult matter for him to find congenial spirits for an intrigue against the federal executive. An estrangement had occurred between Arce and Delgado, who aspired to be bishop of San Salvador,^[V-41] and was a man of great political power. Moreover, it so happened that the jefe of Salvador, owing to ill health, had

to turn over his office to the vice-jefe, Mariano Prado, who was under the influence of the discontented party. His first act was to repeal Arce's decree of October 10th convoking an extraordinary congress at Cojutepeque.^[V-42] Then simultaneously forces were levied in Salvador, ostensibly to protect congress when assembled at Ahuachapan. Internal difficulties in Honduras led the federal government to interfere,^[V-43] and thus, at the end of 1826, there were a number of forces at work to drive Arce from the presidential seat. This state of affairs continued till February 1827, when rumors of an invasion began to circulate in Guatemala. The next month Salvadoran forces, under Trigueros, started on their march toward the capital. All doubts about the plans of the invading army having ceased, Arce displayed unusual activity in his preparations to meet the enemy. With the aid of the newly chosen jefe of Guatemala, Aycinena, he increased the garrison to 2,000 men, and leaving the executive authority in charge of Vice-president Beltranena, took personal command of the troops. He made an effort, however, to avert an encounter, but without avail,^[V-44] and they fought, a few days later, at Guadalupe, a short distance from Guatemala, the invaders being repulsed, and the following day, March 23d, utterly routed at Arrazola.^[V-45] This victory caused great exultation in Guatemala, and Arce's prestige grew rapidly. Money and reënforcements were cheerfully placed at his command, and he allowed himself to be carried away by evil counsels to pursue an aggressive policy and punish Salvador.^[V-46]

CÁSCARAS IN
SALVADOR.

The federal army marched in April into the state of Salvador, and reënforced from Sonsonate and Santa Ana,^[V-47] reached Nejapa without opposition, that place being about twelve miles from the city of San Salvador. After certain negotiations for peace, which had no satisfactory result, Arce attacked the city on the 18th of May, at the head of 2,000 men, and was repulsed with heavy loss. His slow movements had given the Salvadorans time to act.^[V-48] His retreat was in good order to Santa Ana; but from this place,

desertions having greatly diminished the force, it degenerated into flight, of which the pursuing Salvadorans failed to take advantage. Arce reached Cuajiniquilapa toward the end of May, with only 300 men. This early failure of a war from which were to flow such great results brought odium on Arce; but by the efforts of friends, confidence in him was restored, and about 700 men were obtained to resume operations by taking Santa Ana. [\[V-49\]](#) For several months no events of importance occurred. The time was employed by Arce in strengthening his force, with which he made a fruitless attempt to intercept a Salvador division that assailed Sonsonate. Overtures for peace were again made by Salvador, but though not absolutely rejected, no understanding was arrived at. They gave rise, however, to a discussion as to whether the federal president was, as he thought himself, authorized to decide upon the question of peace or war without consulting the state government of Guatemala. [\[V-50\]](#) Piqued at the opposition he had met, which he supposed to arise from want of confidence, Arce received with pleasure a request from Vice-president Beltranena to give up the army and return to Guatemala and take charge of the government. [\[V-51\]](#) Brigadier Francisco Cáscaras was thereupon made commander of the army on the 12th of October, 1827. Soon after Arce's return to Guatemala he took steps to restore peace, and issued, on the 5th of December, a decree to convoke a new congress, [\[V-52\]](#) and at the same time ordered a suspension of hostilities. But his commissioner, Juan de Dios Mayorga, who was to notify the authorities at San Salvador of his measures, was not allowed to proceed to that city, the Salvadorans, now reënforced with officers exiled from Colombia, [\[V-53\]](#) being more than ever opposed to conciliation. Hostilities were resumed and conducted with alternating success, [\[V-54\]](#) but on the whole, disadvantageously for the federal force, owing to Cáscaras' lack of strategy, and the temporizing policy of the enemy; for the latter, whenever pressed, would make overtures of peace, protesting a willingness to terminate the war, though breaking their promises as fast as they were made. [\[V-55\]](#) Cáscaras' situation was daily becoming perilous, on account of

the numerous desertions of his troops. At last, on the 17th of December, a bloody encounter took place in the streets of Santa Ana, which terminated in a capitulation, under which both forces were to leave the place the next day. Cáscaras left it as stipulated, but Colonel Merino with the Salvadorans remained.^[V-56] Cáscaras returned to Guatemala toward the end of December, the Salvadorans having regained possession of Santa Ana, and of all the other places formerly occupied by the federal army.

Shortly after, with Aycinena's assistance, another federal army was organized, but Arce took good care to give positions in it only to trusted friends.^[V-57] As soon as the organization was nearly completed, detachments were sent to check the enemy's raids in Chiquimula, and then, under the command of a foreigner named William Perks, the army marched against the Salvadoran headquarters at Ahuachapan. Once more stratagem was resorted to by the wily Salvadorans, who made proffers of peace, the farce ending as usual.^[V-58] In the mean time troubles broke out in the federal army, and Perks, the commander, was deposed by the field-officers and sent to Guatemala as a prisoner.^[V-59] The command then devolved upon Colonel Antonio José Irisarri. Arce tried in vain to have Perks reinstalled, and his efforts in that direction only served to increase the ill feeling, which grew so strong that on the 14th of February, 1828, he turned over the executive office, though without a formal resignation, to Beltranena,^[V-60] who conferred the command of the federal army on Brigadier Manuel Arzú. This officer marched at once against the Salvadorans, refusing to listen to any overtures for negotiations from their chief, Merino. The armies met at Chalchuapa on the 1st of March, and the federal troops obtained a victory, which drove the foe back to San Salvador.^[V-61] Arzú followed and made an assault on that city, in which both sides gave proofs of extraordinary bravery. The assault failed; at the end of six hours' fighting the assailants had to retreat behind their intrenchments.^[V-62] From this time San Salvador and San Miguel became the theatres of war. A series of encounters, none of sufficient importance to be lengthily described, followed, with varying

success for either side.^[V-63] The Salvadorans having besieged the remnants of the federal army under Colonel Manuel Montúfar, at Mejicanos, after eight months compelled them to surrender, on the 20th of September. Their commander and general staff were held as prisoners of war.^[V-64]

GUATEMALA AND SALVADOR.

The division of the federal army that occupied the department of San Miguel, which had been defeated by General Morazan at Gualcho on the 6th of July, being intercepted on its retreat toward the Lempa, laid down its arms, under honorable terms, at San Antonio, on the 9th of October.^[V-65]

The condition of federal affairs was now far from encouraging. It may be that Arce, had he been replaced, might have turned disaster; but his application had met with a refusal, and he took no further part in the political events of the republic.^[V-66] After all hostile forces had been either captured or expelled from Salvador, Morazan made a triumphant entry into the state capital on the 23d of October, 1828.^[V-67] Shortly before this a commission had come from Costa Rica to mediate between Guatemala and Salvador, but the latter demanded too much.^[V-68] Morazan's presence in San Salvador greatly strengthened the warlike party, and the idea of invading Guatemala gained favor from day to day, till it was finally carried out. After peace overtures had been rejected by the federal authorities, Morazan began his march toward Guatemala in the latter end of November 1828.^[V-69] The news struck terror into the hearts of the now defenceless Guatemalans, and no steps to meet the emergency could be taken, owing to lack of order, official rivalries, and party intrigues. It was, as a saving measure, finally decided in the assembly to detach the state from the federation, though it was never sanctioned or carried out. To increase difficulties, a revolution broke out in the department of La Antigua, placing it under the protection of Morazan,^[V-70] who, at the head of about 2,000 men, assuming the title of 'ejército aliado protector de la ley,' laid siege to the city of Guatemala, assailing it from the side of the Garita del Golfo, on

the 5th of February. He was repulsed after a brisk fire.^[V-71] This was followed on the 15th by a sally of the garrison, which annihilated at Mixco a considerable portion of the invading army.^[V-72]

SUCCESS OF
MORAZAN.

In consequence of this reverse, Morazan raised the siege of Guatemala, and concentrated his forces at La Antigua. The success of Mixco was the last experienced by the federal army; for with the same neglect which had characterized its operations almost throughout the whole campaign, no advantage was taken of the victory, nor of several military errors of Morazan.^[V-73] A strong division under Pacheco sallied out of Guatemala toward the towns of Zumpango and El Tejar, as if to confine Morazan in La Antigua; but Pacheco disseminated his force, and was beaten.^[V-74] Early in March Morazan's troops reoccupied Mixco, and when attacked, shortly afterward,^[V-75] by the federal forces at Las Charcas, signally defeated them, and the fate of the servile party in Guatemala was thus sealed.^[V-76]

Through the mediation of General Verveer, minister from the Netherlands, an attempt was made to bring peace to the distracted country. Commissioners representing the several belligerents assembled, on the 27th of March, at the house of Ballesteros, and discussed the propositions laid before them, which were rejected, and they then retired. Morazan, who was anxious for a compromise, specially as he had good reasons to apprehend the dissolution of his army by the small-pox epidemic which had broken out, urged Verveer to invite the commissioners to hold another conference. It took place; and those of Salvador, Honduras, and Nicaragua presented four propositions, which were likewise rejected by the federal and Guatemalan negotiators.^[V-77] Morazan had felt certain that those proposals would be accepted, and believed them to be exceedingly generous in view of the fact that the city could no longer hold out. However, hostilities were resumed, and on the 9th of April the forces under Morazan attacked the city, and a part of it was taken and plundered.^[V-78]

FALL OF
GUATEMALA CITY.

Aycinena applied on the 11th to Morazan, as commander-in-chief of the allied army of Honduras and Salvador, for a suspension of hostilities, in order to negotiate a capitulation which he was disposed to enter into. Morazan replied at once that he could agree to nothing but the unconditional surrender of the city, though offering to guarantee the lives and property of all persons existing therein.^[V-79] The fighting continued, and on the 12th the place capitulated. The occupation was effected on the following day,^[V-80] and immediately Vice-president Beltranena and his ministers of relations and treasury, Aycinena and his secretary Piélagó, and Ex-president Arce^[V-81] were placed under arrest.^[V-82] Morazan, assuming then all the powers of state, restored Juan Barrundia to the position of jefe of Guatemala,^[V-83] whereof he had been deprived by Arce. The capitulation of April 12th was on the 20th declared void, on the ground that the federal commander had failed to comply with its terms in not giving up all the arms his forces held at the time of the surrender.^[V-84] Morazan treated the functionaries, both federal and of the state of Guatemala, who had taken part in the revolution of 1826 to 1829, with much rigor.^[V-85]

MORAZAN'S
MEASURES.

A period of reaction, or restoration as it was properly called, was now inaugurated. During several years the servile party had held undisputed control of public affairs in Guatemala, crushing out all opposition to the best of its ability. Its policy had been one of intolerance, and its downfall was hailed with joy. Morazan seemed to have been chosen by providence to inflict condign punishment on those who had so cruelly exercised a usurped power. Surrounded as he was by so many diverse elements, the severity of the blows he dealt must not be all laid to his account. The state assembly, which had been dissolved in 1826, having again met on the 21st of April, 1829,^[V-86] with its old president, Nicolás Espinosa, was practically a tool in the hands of the

victorious general, and enacted several vigorous laws against the vanquished party.^[V-87] On the 4th of June the assembly passed an act, which was sanctioned by the consejo representativo on the 12th, and by Jefe Barrundia on the 13th, declaring null all elections made pursuant to the unconstitutional decree of the president of the republic dated October 31, 1826, and the subsequent ones of 1827 and 1828. It furthermore stamped as revolutionists and usurpers all persons who by virtue of those decrees had obtained and held office of the federation or the state of Guatemala, and as such guilty of high treason, and amenable to the death penalty.^[V-88] On the same day was issued a so-called amnesty law; but the number of exemptions from its benefits made its name a piece of irony.^[V-89] The position of the prisoners taken in Guatemala at the time of the capture of said city, and others, became a more complicated one, in consequence of a decree passed by the assembly of Salvador on the 9th of June, declaring that it would not recognize in the assembly of Guatemala any authority to grant, without the assent of the other states, amnesty to the factious disturbers of public order; and that the capitulation entered into between Morazan and Aycinena having been annulled, the captives were really prisoners of war of the allied states.^[V-90] A number of the prisoners were, however, permitted to go into exile within fifteen days, paying first the expenses of their support while in prison, and one third of the value of their estates^[V-91] into the federal treasury, as indemnification for the damages they had inflicted on the country. That privilege was not granted to the president and vice-president and their ministers, the former chief of Guatemala, and others. In fact, it was a proscription of all the principal men who had sided with the servile party.^[V-92] It was also decreed that all salaries paid from October 1826 to April 1829 should be refunded. Harsh measures were used to force a compliance.

The federal congress that was dismissed in October 1826 assembled on the 22d of June,^[V-93] under the presidency of Doroteo Vasconcelos, and on

the 25th José Francisco Barrundia^[V-94] assumed the office of president of the republic, he being the senior senator, and having been specially called thereto by the congress, though the real power in the country was Morazan.

EXPULSION OF
FRIARS.

The chief point of discussion in congress^[V-95] was, what to do with the prisoners. Some members favored their execution, and though others disapproved of such a disposal of them, none had sufficient courage to openly condemn such vindictiveness. The discussions continued till July 9th, when a number of the prisoners were sent under an escort to Sonsonate, to be embarked at Acajutla and expatriated.^[V-96] Two days later a similar blow was struck at the church, evidently because of the sympathy of its head men with the servile party.^[V-97] During the night between the 10th and 11th of July, an armed force, acting under orders of Morazan, who issued them in accordance with the views of the acting president and the jefe of Guatemala, seized the archbishop and the friars of several orders, and despatched them to the Atlantic coast, where they were embarked for Habana. Several of the friars are represented to have died on the voyage.^[V-98] Whether there was sufficient cause for so violent a proceeding is doubtful. However, the federal congress thanked the executive for his zeal. The sentence of expatriation against the archbishop was not formally issued till about a year after.^[V-99] On the 28th of July the assembly of Guatemala decreed the suppression of all monastic establishments of men, excepting only the Bethlehemite hospitallers, who were allowed to remain as secular priests, and prohibited in the nunneries vows and professions in the future. All the temporalities of the suppressed convents were declared confiscated to the state. The federal congress approved this act on the 7th of September, declaring that the nation would no longer receive or recognize within its territory any religious orders.^[V-100]

Peace being finally restored, the large army of Morazan was gradually dissolved, and the leader became a candidate for the presidency. The

necessity of an energetic man, such as Morazan was, at the head of affairs, was quite apparent, for new difficulties were threatening from different quarters. Costa Rica, disapproving the course of Salvador, declared her secession from the union, and it was only after much persuasion that she retracted it. The federal government, and that of the state of Guatemala, now in charge of Pedro Molina,^[V-101] clashed on several occasions, and specially when, in 1830, the question of constituting Guatemala city as a federal district again came upon the tapis. The state rejected the plan, as on every previous occasion.^[V-102] A project of Molina to reform the confederation met with the same fate. He favored the model of the Swiss republic at that time, abolishing the expensive machinery of a federal government, which was almost continually at variance with the different states.^[V-103] The failure of this scheme brought with it the downfall of Molina, who was afterward suspended on fictitious charges and tried, and though acquitted, was not reinstated.^[V-104]

SPANISH EFFORTS.

The plan of King Fernando VII. of Spain for the reconquest of his former American dominions, and the steps he was taking to accomplish it, naturally caused a sensation in Central America, where that monarch would be sure to find elements favorable to his views. The so-called nobles, who had endeavored, after the downfall of Iturbide and the separation from Mexico, to establish in Central America an aristocratic republic, such as that of Genoa or Venice, had been again balked in their aims by the successes of Morazan. In their disappointment they turned their eyes to Fernando, and through special agents, as well as through Archbishop Casaus, made known to the captain-general of Cuba that the circumstances Central America was then in were most propitious for the restoration of the royal sway; for, as they asserted, all honest, right-thinking men and women in the country yearned for it, and the Indians were likewise anxious for the change. Therefore, the only opposition thereto lay in the comparatively small number of aspirants to public offices, who made

revolution in order to control the public funds for their own benefit. Such reports were full of encouragement for the Spaniards who were intriguing in behalf of Fernando's interests, which were probably also their own.

Positive information was at last received from a reliable source that Spain was preparing, in Habana, an expedition to land at Omoa and march on Guatemala, where it expected to find the requisite coöperation. [\[V-105\]](#) This report coincided with the departure of the Spanish expedition under Brigadier Barradas to Tampico. [\[V-106\]](#) President Barrundia, on the 3d of September, 1829, issued a stirring address; and the congress, in October and November, with the sanction of the executive, passed an act forbidding Spaniards to enter or land in Central American territory under any pretext. The ports of the republic were closed to the Spanish flag, and to the products and manufactures of Spain, her colonies, and dependencies.

There were not a few Spaniards who, together with the self-styled nobles of native birth, desired to see the flag of the old country waving again over Central America. That anxiously wished for day had become almost the only subject of conversation in their circles, of which the assembly of Guatemala took due warning. In November it declared the sequestration of all property belonging to Spaniards who dwelt in the republic, coupled with the assurance that none should be restored till Spain had formally recognized the independence of Central America. [\[V-107\]](#)

CHAPTER VI.

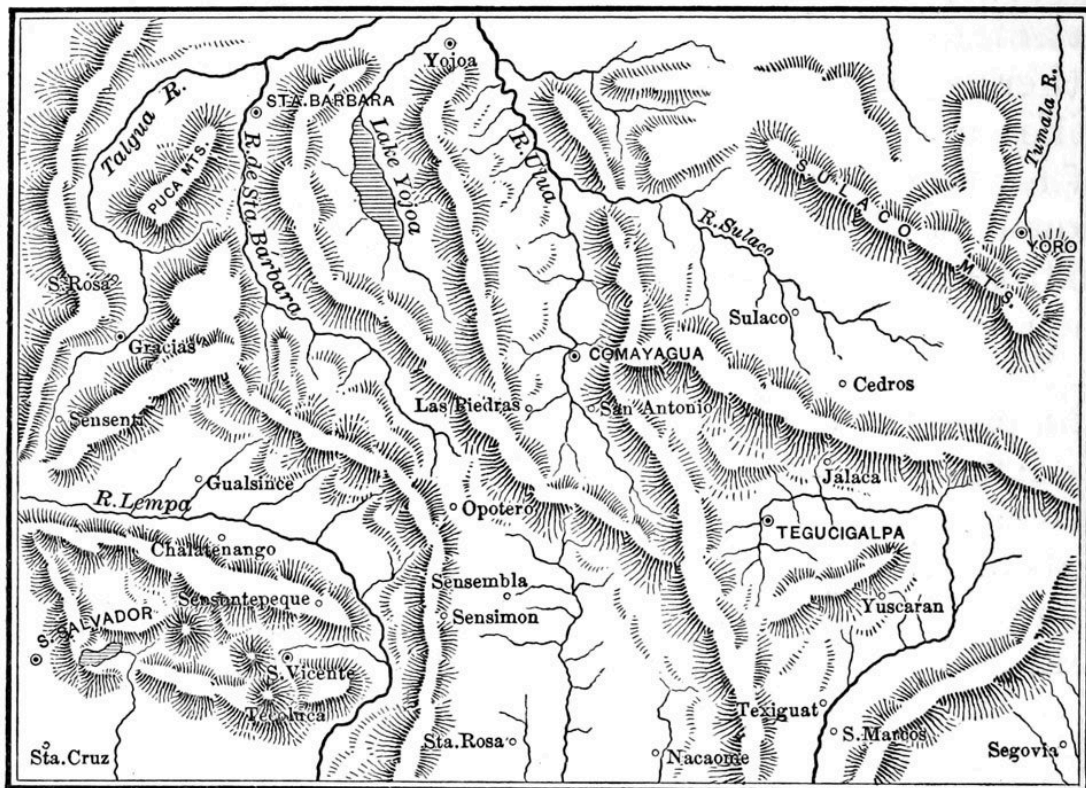
CIVIL WAR.

1829-1838.

REVOLUTION IN HONDURAS—CONSERVATIVES INVADE THE STATE—SECOND GENERAL ELECTIONS—FRANCISCO MORAZAN CHOSEN PRESIDENT—PLOTS OF THE SERVILES—ARCE'S INVASION FROM MEXICO—OCCUPATION OF HONDURAS PORTS BY EXILED REBELS—SPANISH FLAG HOISTED IN OMOA, AND AID FROM CUBA—SALVADORAN AUTHORITIES IN REBELLION—THIRD GENERAL ELECTIONS—MORAZAN REELECTED—FAILURE OF COLONIZATION PLANS—RAVAGES OF CHOLERA—INDIAN REVOLT UNDER CARRERA—HIS EARLY LIFE.

It is difficult for us to realize how long it takes and how hard it is for progressive man to throw away the fetters, temporal and spiritual, which in times past he stupidly forged for himself. Intellectual light breaking in on our old savagism finally tells us that the hurtful manifestations of nature are not the chastisements of offended deity; and then we wonder how we could have been so stupid so long, with our pope-worship and king-worship, and our servility to their satellites. Then when we first gain our liberty we know not what to do with it. We feel lost without the harness, the reins, the whip and spur. The people of Central America, high or low, knew little at this juncture of self-government. In times past they had observed that rulership consisted largely of personal wranglings for place, from king and pope down to the lowest aspirant; of wars, political and ecclesiastical, brother against brother, priests and people butchering and burning as if the great object of religion and civilization was to preserve upon this earth as long as possible the hell which we all hope in one way or another to escape hereafter.

Note further in regard to Central America the strange union of widely distinct classes in their efforts to sacrifice the country for self. Though from somewhat different motives, we see join hands the highest and the lowest, a self-styled aristocracy and the ignorant rabble, aided by the priests who would not see their power slip from them in the general overturnings, all spending their energies and blood in the direction of utter destruction for themselves, their families, and their country. Fortunately there were others at hand whose ideas of self-government were different; who earnestly desired that this new plant of liberty—a boon which had so unexpectedly dropped down to them from heaven—should have in their midst a healthy growth, in spite of ignorance, ambition, or superstition.



HONDURAS.

The legislative assembly of Honduras, pursuant to the proscriptive law enacted by the federal congress in August 1829, issued a decree of expulsion, and the government of the state transmitted to Guatemala a list of those who had come within its provisions.^[VI-1] Some exiles from Honduras and other states of Central America went to Belize to carry on their plots from that quarter, and soon caused a sedition in the department of Olancho. The vice-jefe, Vijil, used his best endeavors to bring the seditious to terms peaceably, but failed.^[VI-2] It became necessary then to resort to force, and Lieutenant-colonel Terrelonge was authorized to move his troops from Trujillo against Olancho. The state of Guatemala was also requested to send its force stationed in Chiquimula to Gracias, for the purpose of aiding in the preservation of order. The assembly of Guatemala, on the 24th of November, 1829, directed that 500 men, subject to the orders of the chief of the state, should repair at once to Honduras and quell the insurrection. The wording of the decree caused a disagreement between the president of the republic and Jefe Molina. The latter insisted that the 500 men to be sent to Honduras should be under his orders. President Barrundia could not accede to it, because the command of a military force operating out of the state belonged by law to the federal government,^[VI-3] and through his minister of war, Nicolás Espinosa, applied to the Guatemalan legislature for a change in the decree. Espinosa's communication caused much sensation, and the assembly repealed the act of November 24th, and in its stead provided that the money needed to muster in and equip 500 men should be furnished the general government out of the state treasury.

Morazan, jefe of Honduras, and general-in-chief of the Central American forces, had marched with a division upon the departments of Olancho and Opoteca, and to him were despatched the troops newly raised in Guatemala. Colonel Vicente Dominguez was one of the chief promoters of the revolution of Honduras.^[VI-4] Morazan's military reputation made easy his road to victory. He encountered no great difficulties. The year 1830

was inaugurated with new triumphs. The Olancho rebels surrendered to him at Las Vueltas del Ocote, and on the 21st of January solemnly bound themselves to recognize and obey the government.^[VI-5] Morazan next, on the 19th of February, routed the insurrectionists of Opoteca.^[VI-6] Morazan, after pacifying Honduras, intended marching into Nicaragua, if political measures should prove insufficient to establish regularity there. He first despatched Dionisio Herrera to the seat of Nicaraguan differences, who fulfilled his trust with zeal, and Morazan had no need of going to the state. Herrera had been chosen jefe, and was duly inducted in his office on the 12th of May.

REVOLT AND
ELECTION.

The time for renewing the supreme federal authority having arrived, elections were held throughout the republic. Congress opened its session with due solemnity on the 27th of March, 1830. The supreme court of justice was likewise installed.^[VI-7] The election of president of the republic had been also made. Morazan, José Francisco Barrundia, José del Valle, Antonio Rivera Cabezas, and Pedro Molina obtained votes; but by far the largest number of them had been polled for Morazan and Valle.^[VI-8]

The votes were counted in June. Morazan had the largest number; but in order to ascertain if the election had been legal, it was necessary first to declare if the basis was to be the number of votes which the citizens of the republic had the right to poll, or that of the votes actually given and counted. If the former, there had been no popular election, and congress had to decide the point between Morazan and Valle; in the latter case, Morazan had been popularly elected.^[VI-9]

MORAZAN
PRESIDENT.

The congress consisted for the most part of friends of Morazan, and he was declared president. He made a triumphal entry into Guatemala on the 14th of September, and should have been inaugurated on the 15th; but it was

decided that Barrundia should turn over to him the executive office on the 16th, in the midst of the festivities of national independence. This was done by Barrundia with that republican simplicity which had ever characterized the man. All the states sent their congratulations to Morazan, and to Barrundia for the good judgment and success of his administration.^[VI-10] Mariano Prado, the distinguished citizen of Salvador, who did such good service to the liberal cause as vice-jefe of that state during the campaign that ended in April 1829, was elected vice-president.

One of Barrundia's measures that did him honor was his saving the island of Roatan to Central America. The British had driven away the few inhabitants and small garrison and taken possession.^[VI-11] Barrundia made energetic though courteous remonstrances, and the island was restored after Morazan had become president.

The country now required peace. Morazan exerted himself to foster education and national industry. Agriculture and trade began to revive; but it was not to be continued long, for the demon of political strife was let loose again. The servile party, though defeated, had not remained inactive. In 1831 it prepared a plot for the destruction of the liberals, which had ramifications everywhere. Arce was to invade the republic from Mexico through Soconusco. Dominguez was to occupy Honduras with elements gathered for the purpose at Belize. Meantime, Ramon Guzman seized the fort at Omoa with 200 negroes.^[VI-12] Arce effected his invasion with about 100 men, exiled and discontented Central Americans,^[VI-13] and was defeated at Escuintla de Soconusco, on the 24th of February, 1832, by the forces under General Raoul. He succeeded in escaping with a few men into Mexico again.^[VI-14] Guzman, being hard pressed at Omoa by the government troops under Colonel Terrelonge, hoisted the Spanish flag over the fort, and despatched, on the 10th of August, the schooner *Ejecutivo*, whose name had been now changed to *General Dominguez*, to ask assistance from the captain-general of Cuba, offering himself and those

with him as subjects of the Spanish king. But the vessel was captured on her return with supplies, and the rebel garrison surrendered on the 12th of September, after a siege of five months.^[VI-15] Almost at the same time that Omoa was seized by the rebels, the port of Trujillo was occupied by Vicente Dominguez, who had in his company Pedro Gonzalez.^[VI-16] The Central Americans had two armed schooners at Izabal, besides two national vessels under Terrelonge, and an armed schooner at Belize. Duplessis, a Frenchman, commanding the national vessel *Fénix*, was captured by Dominguez, taken to Omoa, and shot in the plaza.^[VI-17]

Dominguez' vanguard reached Yoro on the 7th of March, 1832, and was defeated at Tercales on the 9th, and again at Olanchito. He fled to Trujillo, leaving behind 200 muskets, other arms, some money, and other things.^[VI-18] He then transferred himself to Omoa, and with 600 men, on the 26th of March, attacked the government troops at Jaitique, being defeated. He was again routed at Opoteca, pursued in all directions, captured, and taken to Comayagua, where he was put to death on the 14th of September.^[VI-19] The rebel plot thus defeated was a formidable one. Archbishop Casaus from Habana moved his clergy. Bishop Fray Luis García of Chiapas favored Ex-president Arce, whose friends confidently asserted that he also had the support of the Mexican government.^[VI-20] Arce's plans were also in combination with the jefe of Salvador, José María Cornejo.^[VI-21] The fallen party would not admit that they had been vanquished, that their principles were antiquated and repugnant to the people; they still believed that a reaction was not only possible, but right and natural.

HONDURAS AND SALVADOR.

Cornejo's intrigues led to a disturbance of the peace in Salvador. The state assembly had been installed in February 1831, and the tendencies of its members elect, together with Cornejo's workings, had awakened mistrust among the liberals of Guatemala. The assembly of the latter state directed the executive, in congratulating the Salvador assembly upon its installation, to

remind it of the necessity of harmony and of upholding liberal principles.
[\[VI-22\]](#)

On the news of the invasion of Honduras, already described, reaching Guatemala, Morazan decided to establish his headquarters in San Salvador as a more convenient centre for future operations. His relations with the authorities of Salvador were anything but harmonious; neither could they be harmonious under the circumstances. Mariano Galvez, jefe of Guatemala, [\[VI-23\]](#) desiring to avoid conflicts, despatched Colonel Nicolás Espinosa with letters to Cornejo, advising him that his agent was instructed to use his best offices to settle the differences between him and Morazan. Espinosa, when near Atiquizaya, heard that orders for his arrest had been issued, and therefore went back. Galvez became justly indignant at the conduct of Cornejo's agents.

SALVADOR
SECEDES.

The president of the republic started from Guatemala on the 29th of December, 1831, accompanied by his ministers, and journeyed toward San Salvador without any military force other than his body-guard; consequently Cornejo had no cause to apprehend any sudden blow at his authority. [\[VI-24\]](#) Nevertheless, on the 6th of January, 1832, Cornejo broke out in open rebellion, commanding the national executive, then at Santa Ana, to quit the state forthwith or he would be driven away. Morazan, having no means of resistance, obeyed. This insult to the republic was followed next day, January 7, 1832, by an act declaring the suspension of the federal compact and the secession of the state of Salvador. Congress then empowered the executive to repel invasions. The jefe of Guatemala admitted the obligation of his state to aid the general government with all its means. [\[VI-25\]](#) The assembly of Nicaragua, backed by the jefe Dionisio Herrera, who was a stanch friend and supporter of Morazan, passed an act disallowing the legitimacy of the Salvador authorities and their acts, and providing means to support the federal government. [\[VI-26\]](#)

Costa Rica, through her minister of state, Joaquin Bernardo Calvo, in a note from San José of March 3, 1832, to the government of Guatemala, signified her readiness to support the laws, and with that end to place at the disposal of the federal executive all the aid in her power. A Guatemalan force was stationed on the frontier of Salvador, first under Colonel Cárlos Salazar, and afterward under Colonel Juan Prem, a distinguished officer of the campaign of 1829. Even now Galvez hoped to avert war, sending commissioners to confer with Cornejo at Ahuachapan. The latter received them, and appointed his own to continue the conferences; but they were suddenly brought to an end without results.^[VI-27] Further efforts on behalf of peace were useless; the contest had to be decided by war.^[VI-28]

Morazan with a force of Salvador and Honduras men marched from the river Lempa to Portillo. Cornejo had 600 men in Jocoro of the department of San Miguel. The latter were signally defeated on the 14th of March, losing 500 men in killed, wounded, and prisoners.^[VI-29] This was soon followed by pronunciamientos in several departments against Cornejo and in favor of Morazan. The latter lost no time in marching upon San Salvador, which he took by assault on the 28th of March, notwithstanding the obstinate resistance of Cornejo and the garrison, the assailing force being made up of Nicaraguans and Hondurans.^[VI-30] The state authorities were deposed, sent to Guatemala under a guard, and subsequently tried by a special court created ex post facto, with the name of jurado nacional.^[VI-31] Morazan then assumed control of Salvador until constitutional authorities should be reorganized.^[VI-32] This step, illegal as it was, gave dissatisfaction, not in Salvador alone, but in the other states, which subsequently seceded from the union; and though later retractions took place, it may be said that the confederation was dissolved at this period.^[VI-33]

Meantime, the federal congress had continued its sessions, striving to promote the welfare of the country by a liberal policy. Among the acts adopted at this time, and deserving special mention, was that of May 2,

1832, abolishing the exclusiveness of the Roman religion, and recognizing freedom of conscience and of worship.^[VI-34] This law, though practically of little effect, inasmuch as there were but few foreigners in the country, showed that a spirit of toleration was gaining ground. Another important measure was the adoption of Livingston's Louisiana code, and trial by jury. This form of trial was not understood by the people, and fortunately fell into disuse.

ELEMENTS OF
DISUNION.

Notwithstanding the acts of disunion passed by the several states, there was no serious disturbance during the remainder of 1832 or in 1833. In the middle of the latter year^[VI-35] congress adjourned, and there were fair prospects of peace. Indeed, the liberals had been made to see the folly of disunion. The states, relinquishing their antagonisms, quietly returned to the confederacy. The federal government, on the 20th of April, 1833, convoked a new congress to adjust differences. But now a new element of discord appeared. This was the jealousy felt by the smaller states toward Guatemala, which being larger in extent and population, naturally had a corresponding influence in the national congress.^[VI-36] These states demanded an equal voice in that body, and insisted that this right should be recognized before proceeding to the elections.^[VI-37] Guatemala, heeding the anxiety of the liberal leaders, assented to the demand. Some of the states proceeded with their elections, but it soon became obvious that the plan of compromise could not be satisfactory or permanent, and it was dropped. The proposed congress accordingly did not meet.^[VI-38]

Rumors were current for some time in 1833 of an intended invasion of Salvador by Arce, by sea from Acapulco,^[VI-39] but they proved to be unfounded. The federal government transferred its seat on the 5th of February, 1834,^[VI-40] first to Sonsonate, and later to San Salvador, which for the time being quieted the jealous feeling of the several states against Guatemala. But after a few weeks the dissensions between the federal and

state governments, of so frequent occurrence when the former was in Guatemala, were renewed in San Salvador. On the 23d of June, 1834, a fight took place between troops of the two parties, and the affair ended in another overthrow of the local authorities, [\[VI-41\]](#) who were proscribed under ex post facto laws. [\[VI-42\]](#) The state government went first into the hands of General Salazar, who called himself jefe provisorio, and afterward into those of the vice-president of the republic. Neither had any legal authority in the premises. This state of affairs caused dissatisfaction in Salvador. Political disturbances were also experienced in other states. The flame of discord was fanned everywhere by the oligarchs, who found their task made easier by the extreme religious liberalism of the ruling party. Their influence was felt when, on the 7th of February, 1835, after San Salvador, together with a few surrounding towns, was constituted a federal district, [\[VI-43\]](#) a new constitution, based on the former one of 1824, was generally rejected. [\[VI-44\]](#)

ELECTION AND
DEATH OF VALLE.

Elections for supreme authorities of the republic were decreed on the 2d of June, 1838. The end of Morazan's term was approaching, and his popularity was to be again put to the test. There was really but one man that could compete with him, José del Valle, who was leading a retired life devoted to scientific and political studies; but his reputation was a national one, eminently Central American, and a large portion of the people summoned him to rulership. He was elected, but died before the certificates of election were opened.

The death of Valle occurred on the 2d of March, 1834. The highest honors were paid to his memory. [\[VI-45\]](#) This untoward event necessitated another election to carry out the decree of June 1833, and José Francisco Barrundia having declined to be a candidate, Morazan encountered no opposition and was reëlected. [\[VI-46\]](#) For the office of vice-president, no one

having obtained the constitutional number of votes, congress, on the 2d of June, 1834, chose from among candidates having forty votes and upward José Gregorio Salazar, to be inducted in office on the 16th. Mariano Prado, the former vice-president, had been as such at the head of the federal executive authority in 1831; but he was chosen jefe of the state of Salvador, and took charge of that office on the 25th of July following. The vice-presidency and the office of a state jefe were incompatible. He chose the latter, and was most unfortunate in the discharge of its duties. There being then no vice-president, José Gregorio Salazar had charge of the executive in 1834 as the senior senator, Morazan having for a time, and with the permission of the senate, absented himself. Upon being elected on the 2d of June, Salazar continued in charge, and it was by his order that the federal authorities transferred themselves to the city of Santa Ana during San Martin's insurrection against the national government. The day after the inauguration of Morazan for the second presidential term, congress closed its session. [\[VI-47\]](#)

No important event affecting the confederation occurred during the remainder of 1835, but the atmosphere was filled with folly and misrule, foreboding the storm which was to make of Central America for many a day the theatre of the bloodiest of civil wars.

It has been shown that the party in power pursued in general a liberal policy—too liberal, in fact, as later events proved. In view of the tardy development of the country in the old way, inducements were offered for foreign immigration, and an English company was organized for the purpose of fostering colonization in the department of Vera Paz. [\[VI-48\]](#) Settlers were sent out, and several hundred thousand dollars expended, but the scheme failed because of unskilful and dishonest management. [\[VI-49\]](#) Nevertheless, the servile party turned this incident to account, filling the minds of the lower classes, especially the Indians, with prejudice against the government, which it accused of an intent to exterminate the native

population by throwing open the country to foreign influence, religion, and administration of justice. The innovations in this last respect had, more than anything else, embittered the natives, and on the 6th of March led to an outbreak at Ostuncalco, where the Indians had become irritated at being compelled to work at the construction of prisons.^[VI-50] An armed force was sent to quell the disturbance, out of which the judges and some officials had great difficulty to escape with life.

REVOLT AND
CHOLERA.

Scarcely was this trouble over when a worse one stole in—the cholera. The scourge began its ravages in Central America early in 1837,^[VI-51] and soon spread throughout the towns of the republic. The governments of the different states, and notably that of Guatemala, used the utmost efforts to relieve suffering. Physicians and medical students, provided with medicines, were despatched to the several districts. But their efforts were largely frustrated by the opposition of the servile party, which never ceased its work even in these days of awful distress. Determined to bring to an end the influence of the liberals, the servile party hesitated at nothing. All means to that end were made available. The priests made the ignorant masses believe that the waters had been poisoned in order to destroy the natives and make way for foreigners.^[VI-52] Their deviltry was crowned with success. The low murmurs of hatred soon swelled to loud cries of vengeance against the government and foreign residents. Several physicians became the victims of popular fury, being put to death with cruel tortures.^[VI-53] Others barely escaped death. The greatest violence was in the district of Mita, where it assumed the form of a general insurrection. The government despatched a body of troops to dissolve a large assemblage of insurrectionists. The instructions were to use gentle means to allay the disturbance, resorting to force only in case of necessity. The magistrate of the district, having imprudently left the strong body of infantry behind, had no sooner attempted to explain his mission than the mob fell upon him and his guard of forty dragoons, killing a number of them and putting the rest to flight.

This was on the 9th of June.^[VI-54] The leader of the mob on this occasion was Rafael Carrera, a mixed-breed, who now for the first time, at the age of twenty-one, possibly a few years older, appeared on the stage, to become afterward the bitterest foe of the liberal party, and eventually the dictator of the country.

RAFAEL CARRERA.

Rafael Carrera was a native of Guatemala, of Indian descent, of a violent, irascible, and uncommunicative disposition, base-born, ignorant, though gifted with talents, bold, determined, and persevering. From common servant he became a pig-driver, and while such obtained much influence among the lower class of Indians—an influence which was due no less to his blood connections and the force of circumstances than to his bravery and capabilities.^[VI-55]

Carrera was at first a mere tool of the priests, and seemed to have been a believer of the lies they had circulated. After he became powerful, they and their allies, the so-called nobles, humored his idiosyncrasies, and often had to put up with his insults and abuse. He had upon them the heel of insane revolt.^[VI-56]

CHAPTER VII.

DISSOLUTION OF THE REPUBLIC.

1837-1840.

CAMPAIGN AGAINST CARRERA—SEVERAL DEPARTMENTS OF GUATEMALA IN REBELLION—JEFE GALVEZ DEPOSED—CARRERA TAKES GUATEMALA—MURDER OF SALAZAR—CARRERA ACCEPTS MONEY TO LEAVE THE CITY—DICTATORSHIP OFFERED MORAZAN BY THE ARISTOCRATS AND REFUSED—CARRERA'S SECOND REBELLION—THE REPUBLIC IN PERIL—MORAZAN'S EFFORTS TO SAVE IT—NICARAGUA AND HONDURAS FORCES INVADE SALVADOR—MORAZAN DEFEATS THEM—HIS RETREAT TO SAN SALVADOR—HE EMBARKS—IS REFUSED HOSPITALITY IN COSTA RICA—GOES TO SOUTH AMERICA—THE REPUBLIC IS DEAD—SALVADOR AT THE MERCY OF CARRERA.

Only a week after the success of the insurgents on the field of Ambelis, a numerous armed force was sent against them by the government, which achieved victory near Mataquescuintla.^[VII-1] The revolution might have ended here but for the excesses of the government troops, which roused the Indians, and rendered reconciliation impossible.^[VII-2] Henceforth the war was one of races. Carrera, upheld as he was by the priests, found no difficulty, in his visits from village to village, to induce the native population to join the revolt, which, notwithstanding the triumphant language of the military officers in their reports—calling the rebels cowards and themselves intrepid and invincible—was fast spreading. Carefully avoiding encounters with the regular army, Carrera succeeded in getting together a large force, which, though raw and undisciplined, often surprised and defeated detachments of the regulars, seeking a refuge when pursued in the inaccessible mountain fastnesses.^[VII-3]

To make matters worse, the departments of Sacatepequez, Chiquimula, and Salamá, declared themselves independent of the government, and the rebels of the first district,^[VII-4] concentrating at La Antigua, threatened to attack the capital. In the latter place a division had occurred in the liberal party,^[VII-5] some of whose members from this time sided with the serviles; which circumstance made it more difficult to place the city of Guatemala in a proper state of defence. A mutiny of the federal troops in the city^[VII-6] increased the danger, but it soon was quelled with the execution of the ringleader. On the 27th of January, 1838,^[VII-7] Galvez despatched the vice-president, José Gregorio Salazar, and the secretary of relations, Miguel Álvarez, as commissioners, to confer with General Carrascosa, the commander of the rebel forces, and bring about an amicable arrangement. The commissioners signed at Guarda Viejo^[VII-8] a convention containing the following stipulations: 1st, resignation of Galvez; 2d, occupation of the capital by the forces of Sacatepequez; 3d, the forces in the capital to go out, and place themselves under the orders of General Morazan; 4th, the forces of Sacatepequez to guarantee the persons and property of all; 5th, the commissioners would arrange the manner of evacuating the city; 6th, upon the ratification of these clauses, they were to be carried out within twenty-four hours. Nothing was done, however,^[VII-9] and after four hours' waiting, Carrascosa continued his march toward the gate of Buenavista, where he met the government commissioners, who assured him, with great mortification, that the convention had not been ratified.^[VII-10]

ATTACK ON
GUATEMALA.

Sacatepequez' force, 800 strong, entered the capital during the night of the 29th of January, from the Calvario side, reaching the plazuela de San Francisco, afterward known as plaza de la Concordia. The roar of artillery apprised the inhabitants at 1 o'clock in the morning that the struggle had begun. Generals Prem and Gorris, colonels Yañez, Arias, Mariscal, Cerda, and Córdoba, and the other officers of the garrison, made a stout defence. Their troops, though inferior in number, were for their discipline more efficient than their

assailants, who were mostly raw recruits. It was quite evident that Carrascosa and his colleague Carballo would waste their efforts unless they were strongly reënforced. But the opponents of Galvez were resolved to depose him, [\[VII-11\]](#) even if they had to make use of Carrera to accomplish their purpose. It was a fatal thought.

José F. Barrundia was authorized by President Morazan to enter into peaceable negotiations with Carrera, and the clergymen José María de Castilla, Manuel María Zeceña, and José Vicente Orantes. Barrundia, together with Manuel Arrivillaga, started for the hacienda of La Vega to confer with Carrera; but at Ojo de Agua they ascertained that he was at Mataquescuintla, and declined to hold any conferences, and yet an arrangement with other opponents had been signed at Santa Rosa. This document, which was shown by Father Duran to Barrundia, stipulated the immediate coming of a bishop, the abolition of the code and of other liberal measures decreed by Barrundia, and that Carrera should become the commander of the reform forces, or in other words, the arbiter of the country, which was what the clergy wanted. Barrundia was indignant, but he had to submit and keep calm, else he might lose his life. He merely said that the arrangement needed some discussion, which might lead to the adoption of some amendments. Duran had not worked to promote Barrundia's nor Molina's ideas, but his own interests. He coolly replied that the matter had been well considered, and admitted of no changes.

Barrundia wrote Carrera, asking for an interview to explain Morazan's views, but Carrera appeared angry at the mention of Morazan's name, and declined the invitation, saying that the time for negotiations had passed, and that his march against Guatemala was in order. [\[VII-12\]](#) He became much mollified on receiving from La Antigua a request for his coöperation, [\[VII-13\]](#) and was now satisfied that the fate of the country was in his own hands. Three days after Carrascosa's failure, Carrera joined him with a numerous force of Indians, and after some fruitless negotiations, marched into the city on the 1st of February, [\[VII-14\]](#) at the head of about 10,000 men, women, and

children, the troops of the government having retreated in an opposite direction. The result of this was that Galvez ceased to be the jefe of the state, and was succeeded by the vice-jefe, Pedro Valenzuela. [\[VII-15\]](#)

CARRERA TAKES
THE CAPITAL.

The entry of Carrera's hordes into Guatemala might well create consternation. Outlaws and robbers were among the leaders; the soldiers were in rags, [\[VII-16\]](#) and equipped with a variety of arms, from the rusty musket down to clubs, and knives secured at the end of long poles, while others carried sticks shaped like muskets, with tin-plate locks. Conspicuous among the mass of followers were thousands of women having bags to carry away the booty, and who gazed with amazement on the fine houses. [\[VII-17\]](#) Shouting 'Viva la religion! Mueran los extranjeros!' the invaders entered the main plaza. After a few hours the work of rapine began. [\[VII-18\]](#) No regard was paid by Carrera and his hordes to the wishes of the vice-jefe Valenzuela, who had asked that only the force from La Antigua should occupy the plaza.

The leader of the opposition urged Carrera to leave the city; but he manifested much indignation at such a request, and several of his chiefs refused compliance. Carrera himself wanted to sack the city, [\[VII-19\]](#) and it was only with great effort that he was prevented. In lieu of pillage he was given \$11,000, [\[VII-20\]](#) \$10,000 for his troops and \$1,000 for himself. He was also flattered with the commission of lieutenant-colonel and the appointment of comandante of Mita. A number of those who had defended the city having voluntarily joined the Sacatepequez force, Carrascosa was now better able to meet emergencies. He at once, by order of the vice-jefe, made known to Carrera that the interests of the public service demanded that he should repair to Mita and take charge of the comandancia there. He made no resistance, and went away with his horde, [\[VII-21\]](#) the inhabitants again breathing freely for a time. [\[VII-22\]](#) Thus were the serviles balked once more. Carrera was sent away from Guatemala, Valenzuela remaining in charge of the state executive. Morazan was at San Salvador recognized as

the chief magistrate of the republic, and Vijil held the executive office of that gallant little state.

MORAZAN
VERSUS
CARRERA.

Carrera and his supporters continued, however, their menaces, creating no little alarm, which was quieted on receipt of the tidings that Morazan was marching toward Guatemala with 1,500 men. On his arrival he found not only that the serviles had been deriving advantages from the disturbed political situation, but that the western departments of Los Altos, namely, Quezaltenango, Totonicapan, and Sololá, had declared themselves, on the 2d of February, a separate state under an independent government.^[VII-23] Without interfering with those arrangements, Morazan endeavored to secure by peaceful means the submission of Carrera, or rather, the disbanding of his force; failing in which, he opened, on the 30th of March, the campaign against him. Three months of military operations ensued, the federal arms being victorious at every encounter, but without obtaining any definitive result, for the enemy defeated in one place rallied in another, continually increasing in numbers, and never crushed.^[VII-24] Morazan returned at last to Guatemala, where in the mean time servile influence had become predominant.^[VII-25] The most strenuous efforts, even to fulsome sycophancy, were used by the serviles to win him to their side, and to prevail on him to accept the dictatorship.^[VII-26]

The president returned in July to San Salvador to quell a revolt. A few weeks later, on the 20th of July, 1838, the eleventh and last federal congress of Central America, presided over by Basilio Porras, closed its session.^[VII-27] Subsequent efforts to bring it again into life proved unavailing, and from this time the dismemberment of the republic made rapid progress. Two days after the adjournment of congress, on the 22d, the state government of Guatemala was also dissolved, and was temporarily intrusted to the federal authorities,^[VII-28] though the executive office finally was assumed by Mariano Rivera Paz, as president of the council, which satisfied the people,

and peace was unbroken, it being understood that a constituent assembly would be summoned at once.

SALAZAR
DEFEATS
CARRERA.

As soon as Morazan was at some distance from Guatemala on his way to San Salvador, Carrera, the supposed beaten rebel leader, for whose capture a liberal reward had been offered, [\[VII-29\]](#) began to show signs of rallying. He gathered a numerous force, with which, about the middle of August, he defeated the federal troops, first at Jalapa and next at Petapa. He then, unresisted, took possession of La Antigua, a portion of which was pillaged, and forthwith started on his march for Guatemala. [\[VII-30\]](#) A general clamor for Morazan was aroused; but it was impossible for him to reach Guatemala in time, and the danger was imminent that Carrera would not only take the city, but also carry out his threats of burning every house in it. In this emergency, General Cárlos Salazar, with the garrison of 900 men, sallied forth, and aided by a thick fog, surprised Carrera at Villanueva, where the latter was concentrating his forces, now about 2,400 strong, with the plunder secured at La Antigua. A battle ensued, the bloodiest that occurred in 1837 or 1838, and Carrera was routed, [\[VII-31\]](#) with the loss of 350 killed and 24 prisoners, one of whom was the notorious Father Duran, the representative and agent of the aristocrats near the person of Carrera; [\[VII-32\]](#) besides giving up a number of federal prisoners and losing three pieces of artillery, 305 muskets, and a large number of other arms, besides ammunition. A portion of the defeated forces fled to La Antigua, and a smaller one joined the rebel Mangandí, who had 500 men. The latter, being ignorant of Carrera's mishap, approached Guatemala on the 11th, at 10 o'clock in the morning, causing no little commotion; but on learning of his leader's defeat, he retired to the mountains. The war might have ended here had the victors followed up their success; but petty annoyances prevented Salazar from doing so, and he threw up his command in disgust, [\[VII-33\]](#) though he was afterward induced to resume it.

The greater part of the clergy friendly to Carrera never forsook him. It was not so with the aristocrats, Manuel Pavon, Luis Batres, and Pedro and Juan Jose Aycinena, who feared at times that they could not control him. After his defeat at Villanueva they called him an 'antropófago sediento de sangre humana.'^[VII-34] At that time they asked the vicar-general, Larrazábal, to fulminate censures against Carrera, which he did.^[VII-35] Friar Bernardo Piñol also railed against him from the pulpit in the cathedral.^[VII-36] However, not long afterward Carrera was called from that same pulpit 'hijo predilecto del Altísimo.'

CARRERA AGAIN
DEFEATED.

The lack of energy on the part of the authorities after the affair of Villanueva^[VII-37] enabled Carrera to reorganize his forces, with which he made a successful raid, in the latter part of October, against Ahuachapan and Santa Ana,^[VII-38] returning afterward to Guatemala, when, on the 4th of November, he was attacked in Chiquimulilla by Colonel Carballo, defeated, and driven back to the mountain recesses of Mita.^[VII-39] Morazan had in the mean time concentrated forces in Guatemala, and aided Carballo's operations by marching against the Indian chieftain from a northern direction. But all efforts to crush the enemy failed, though the federal troops were everywhere victorious; many of Carrera's followers were taken and shot, but he always managed to escape.^[VII-40] This warfare, or rather chase, was kept up nearly two months. At last a capitulation was concluded, on the 23d of December, at Rinconcito. Carrera and his followers were to surrender their arms^[VII-41] and recognize the government, which in turn was to confirm the former in his office of comandante of the district of Mita, and respect the lives and property of its inhabitants.^[VII-42] Thus was Carrera a second time given a legal standing. General Guzman, who treated with him, seemed to place on the treacherous and barbarous mountaineer the same faith as if he were a civilized man and a respecer of treaty stipulations.^[VII-43] The agreement was not carried out by Carrera, for he delivered only a

small portion of useless arms, and kept his force under the pretext that the safety of his district demanded it. The government not only had the weakness to enter into this arrangement, but also that of not enforcing its fulfilment to the letter. This rendered the renewal of hostilities but a question of time.

I have mentioned the congressional decree of May 30, 1838, granting the states the privilege of acting as best suited their views. This was tantamount to a dissolution of the union; and when Morazan's second presidential term expired, on the 1st of February, 1839, [\[VII-44\]](#) not even an outward tie remained to hold together the several states. Morazan, and he alone, did not relinquish all hope of restoring the republic, and without delivering up an office which had ceased to exist, the strife was continued under his leadership. His efforts, supported by force though they were, met with resistance on the part of Nicaragua and Honduras, united by a treaty of alliance since January 18, 1839, which had been entered into for the purpose of maintaining the independence and sovereignty of the two states. [\[VII-45\]](#) Similar agreements were made in the following months between nearly all the other states, always protesting a willingness to form a federal convention of the Central American states, but opposing the idea of confederation. [\[VII-46\]](#)

FIGHTING IN
SALVADOR.

A conciliatory spirit, to bring to an end the war against Salvador, and to act as mediator, was effected in these treaties; but it had no influence for good, and the hostilities continued between Nicaragua and Honduras on the one part, and Salvador on the other. Troops of the two former states entered Salvador territory in March 1839, and surprising a federal party at the crossings of the Lempa River, called Xicaral and Petacones, took without resistance the town of San Vicente; but having advanced to the heights of Xiboa, were repulsed and beaten by Colonel Narciso Benitez. [\[VII-47\]](#) The allies were signally defeated at Espíritu Santo, near the Lempa, by the Salvadorans,

called federals, under Morazan, on the 6th of April.^[VII-48] Equally successful were Morazan's operations during the rest of the year. His officers invaded Honduras, took the capital and Tegucigalpa, and routed the allies in several encounters.^[VII-49]

But affairs underwent a change against him early in the following year. A joint force of Nicaraguans and Hondurans, under Manuel Quijano,^[VII-50] attacked the federals under Cabañas at the hacienda del Potrero, on the 31st of January, 1840, and forced them to leave the state of Honduras.^[VII-51] A formidable servile coalition was being formed against Morazan. Nicaragua was resolved to drive this jefe of Salvador from the executive chair. Honduras, under Jáuregui, was controlled by Quijano's sword. Los Altos had become again a department of Guatemala, which was subject to Carrera's will. This chieftain, in his pronunciamiento of March 24, 1839, had avowed his intention to champion the sovereignty of the several states as concordant with his own ideas.^[VII-52] Morazan thought the situation might be saved with an extraordinarily bold move, attacking the serviles in their headquarters, and made preparation to bring matters to a final issue in the city of Guatemala. The serviles, on their part, pursuing their aim of overthrowing Morazan, entered into a league with Carrera, and invited him to take possession of Guatemala.

TRIUMPH AND
DEFEAT OF
MORAZAN.

Morazan convoked the assembly of Salvador, and caused the vice-jefe, Silva, to assume the executive office of the state, in order to enable himself to take command of the forces for the campaign in Guatemala, which at first amounted to 900 men. He was afterward joined by many who had been persecuted by the aristocrats, who pledged themselves to conquer or perish at his side, and faithfully carried out the promise.^[VII-53] Morazan marched upon the city of Guatemala, and his movement created the greatest alarm when he neared Corral de Piedra. Consternation then seized the serviles.^[VII-54] Preparations were made, however, for defence. All men

capable of bearing arms were called to the service,^[VII-55] and Carrera established his headquarters at Aceituno, his plan being to catch the men of Salvador between the fortifications of the city and his own force.^[VII-56] The plan failed. Morazan entered the city on the 18th of March at sunrise, by the Buenavista gate, and after some fighting, made himself master of it, and of all the defences.^[VII-57] Liberals who were in the prisons were set free. Among them was General Agustin Guzman, whom Carrera had outrageously treated, confining him shackled in a dungeon. Guzman hailed the victor who returned him to freedom, but was unable to afford any aid; the shackles had made him a cripple. The numerous prisoners taken were all treated with every kindness. Such had always been his practice. However, it was not destined that he should enjoy his victory. Carrera attacked him on the next day—the 19th—and after a fight of twenty-two hours, compelled Morazan to retreat.^[VII-58] His forces had been shattered at the Calvario. The number of assailants, known as cachurecos, was overwhelming.^[VII-59] At 4 o'clock in the morning he left the city by the plaza de Guadalupe with upwards of 400 men, and was far away before the escape became known. No pursuit of the fugitives was attempted.^[VII-60]

FALL OF MORAZAN.

On arriving at San Salvador, Morazan found the tables turned against him. He was openly insulted in the streets; and becoming convinced that it would be impossible to raise a new army and continue the war, he concluded to cease the struggle and leave the country. He accordingly called a meeting and made known the necessity of such a course in order to save the state from anarchy. On the 5th of April he embarked at La Libertad upon the schooner *Izalco*, together with Vice-president Vijil and thirty-five of his supporters.^[VII-61] The vessel reached Puntarenas, where the chief of Costa Rica, Braulio Carrillo, who had congratulated Guatemala on the defeat of Morazan, refused him residence in the state, though it was granted to some of his companions.^[VII-62] Morazan and his remaining companions

continued their voyage to South America, where he remained about two years. After a time, touching at David, in Colombia, he issued a stirring manifesto to the Central American people.^[VII-63] He was the last champion of the 'Confederacion de Centro América,' whose establishment had been greeted with so much joy on the 1st of July, 1823.

The governments of Nicaragua and Honduras, which had promised Guatemala aid to resist Morazan, on hearing of his downfall congratulated the victor on the defeat of the 'common enemy of all the states.' They thought that with the fall of Morazan, Central American nationality would be revived. They could not yet see that they had been the dupes of the aristocrats and their clerical allies in Guatemala, who, while holding out the promise of reuniting Central America, had been all along working for the destruction of federal nationality.

After the departure of Morazan and Vijil, Antonio José Cañas, by virtue of his position as a councillor of state, assumed the rulership of Salvador, and called the assembly to hold a special session. It was expected that, Morazan being out of the way,^[VII-64] with so honorable and upright a man as Cañas at the head, concord would be restored. But Salvador was still the subject of abuses, and on the remonstrances of Cañas, the government of Guatemala despatched a diplomatic mission to San Salvador. It was composed of the former pig-driver Rafael Carrera, and Joaquin Duran, and had for an attaché Francisco Malespin, a military officer whose sword had been dyed in the best blood of Quezaltenango.^[VII-65] A convention was concluded on the 13th of May, 1840, placing Salvador at the mercy of Guatemala, Cañas having to submit to the conditions imposed.^[VII-66] The most humiliating condition of the understanding was not mentioned in the convention, namely, that the attaché Francisco Malespin should remain in San Salvador, with the office of comandante de armas. This treaty convinced the people of Salvador that they could expect no favor from the aristocracy of Guatemala, their implacable foe.

CHAPTER VIII.

GUATEMALA AND HONDURAS.

1824-1840.

STATE GOVERNMENT OF GUATEMALA—BARRUNDIA'S RADICALISM—HIS OVERTHROW—VICE-JEFE FLORES ASSASSINATED IN QUEZALTENANGO—DOWNFALL OF THE LIBERALS IN GUATEMALA—ARISTOCRATIC LEADERS EXILED—JEFE MOLINA—HIS DIFFERENCES, IMPEACHMENT, AND ACQUITTALS—RIVERA CABEZAS' REFORMS—EARTHQUAKES—GALVEZ' RULE AND ITS BENEFITS—PARTY OPPOSITION TO HIM—INDIAN OUTBREAKS—CARRERA CAPTURES GUATEMALA—GALVEZ RESIGNS—SUBSEQUENT RULE OF THE ARISTOCRATS—GUATEMALA AGAIN INDEPENDENT—HONDURAS' STATE GOVERNMENT—JEFE DIONISIO HERRERA—EARLY DISSENSIONS—COMAYAGUA ASSAULTED BY REBELS—MORAZAN IN THE FIELD—HONDURAS SECEDES FROM THE CENTRAL AMERICAN CONFEDERATION—FEDERALISM ROOTED OUT OF HER TERRITORY.

Having sketched the life of Central America, first as an appendage of the Spanish crown, next as a portion of the short-lived Mexican empire, and lastly as a confederation of states, embracing the period from 1801 to 1840, it is well now to glance over the internal affairs of each state separately, for the period after its accession to the federal union down to 1840, beginning with Guatemala as the most important.

I have said elsewhere that the states were organized on the same principle as the confederation, namely, under a popular, democratic, representative government. The first constituent congress or assembly of the Estado de Guatemala was installed at La Antigua on the 16th of September, 1824, [\[VIII-1\]](#) under the presidency of the clergyman José María Chacon, and its first act was to call Alejandro Diaz Cabeza de Vaca to be the provisional chief of the state. [\[VIII-2\]](#) On the 30th, the votes for jefe and vice-jefe having

been counted, and neither of the candidates having the requisite majority, the congress named Juan Barrundia to be jefe and Cirilo Flores to be vice-jefe, the former assuming the reins of government on the 12th of October, and at once inaugurating a radical policy, which tended to widen the breach between liberals and serviles.^[VIII-3] No person opposed to him in politics was allowed to have a voice in public affairs. However, no open rupture occurred, even during a tumult in February 1825, when the Franciscan friars of the college de propaganda fide refused to take the oath recognizing the constitution of the republic. The rabble supported the friars,^[VIII-4] but owing to the energetic attitude of the state government, the priests had to submit.

The assembly continued its labors. A coat of arms was decreed January 20, 1825, and on the 2d of May took place the installation of the executive council, whose prerogatives and duties were similar in state matters to those of the federal senate in national affairs. On the same date was also installed the superior court of justice. The framing of a state constitution was not completed till the 11th of October, on which date it was decreed.^[VIII-5] After passing a law for the political division of the state into departments,^[VIII-6] the assembly adjourned sine die one month later. Clouds had already appeared in the political horizon, the state authorities having transferred the seat of government from La Antigua to Guatemala, against the opposition of the national executive.



ARMS OF GUATEMALA.

BARRUNDIA AS
JEFE.

The liberal party has been accused of having, with the connivance of the jefe Barrundia, committed frauds at the elections held in January 1826 for a partial renewal of the representative council. In the first ordinary legislature, which met on the 1st of February, a law was passed for new elections to fill the council. But these and other arbitrary measures of the liberal party gave rise to such warm discussions in the assembly, that Barrundia at last ignored the authority of the council as then existing. [\[VIII-7\]](#) The latter then denounced him, and called the vice-jefe to assume the government. But through the mediation of commissioners of the federal government, harmony was

restored. This harmony was not to last long, new complications arising from another quarter. I have, in detailing federal affairs at this period, spoken of the plans attributed to president Arce to overthrow the liberal party, and the events which culminated with the deposal of Barrundia from his position as jefe of the state. The first resolution taken by the legislature and representative council was to remove the capital to Quezaltenango. The new jefe, Flores, was at the same time empowered to organize a military force, raise funds, and adopt other proper measures to uphold the state's sovereignty.^[VIII-8] Flores had advocated the removal of the state capital, but strenuously opposed the selection of Quezaltenango as an unfit place for the seat of government of a liberal state.^[VIII-9] The assembly paid some heed to his remonstrances, and tarried a while at San Martin Jilotepec, where it was resolved that Barrundia should resume the reins of government; but he declined, pleading ill health.^[VIII-10] The assembly remained at that place till the 29th of September, and then concluded to repair to Quezaltenango, considering Jilotepec not quite safe.

PIERZON'S
CAMPAIGN.

Flores, accompanied by a few deputies, arrived at Quezaltenango on the 8th of October, and was received with a shower of flowers. He at once set himself to complete the defence of the district, which had been already begun by Colonel José Pierzon,^[VIII-11] who had mustered into the service of the state several hundred men.^[VIII-12] Having reason to apprehend an attack from the federal authority, Pierzon was ordered to Patsun to watch the enemy. It was during his absence that the events occurred leading to the murder of Jefe Flores by an ungovernable fanatical mob, of which a description is given elsewhere. Upon hearing of those occurrences, and of the friars at Quezaltenango having called the Indians of the neighborhood to take up arms for the common defence, Pierzon retreated to Totonicapan,^[VIII-13] encountering the Quezaltec rebels on the 18th of October near Salcajá, and easily defeated them. He gave no quarter. He demanded the immediate surrender of all arms in Quezaltenango, guaranteeing the lives of the

inhabitants, otherwise he would destroy the place.^[VIII-14] The rebel authorities had to submit, and on the following day Pierzon recovered possession of the place. Several draconic ordinances were issued to keep in check the spirit of rebellion.^[VIII-15] The leaders of the riots had, however, fled, thus escaping the punishment they so richly deserved.

Juan Barrundia now made another effort, from Sololá, to resume his former authority, but his prestige was lost, and most of his friends had forsaken his cause.^[VIII-16] Pierzon abandoned Quezaltenango on the 25th of October, and was pursued, overtaken, and defeated by the federals, under Brigadier Cáscaras, at Malacatan.^[VIII-17] Pierzon, together with his friends Saget and Fauconnier, escaped, and were proscribed, but they managed to cross into Chiapas.^[VIII-18] But it seemed that it had been preordained that he should perish at the hands of his foes. On his way to San Salvador to take part in the war against the federal government, he was taken prisoner, brought to Guatemala, and shot, on the 11th of May, 1827, without a trial.^[VIII-19]

Another body of liberal troops, under Cayetano de la Cerda, not being aware of Pierzon's defeat at Malacatan, prepared to march from Los Altos to Guatemala, but the soldiers were induced to rebel, and thus the last armed force of the state disappeared. The members of the assembly and council who were not in prison either secreted themselves or emigrated, and the state was left without authorities. The federal president assumed power, and replaced the *jefes políticos* and military commanders with his own creatures. He published, on the 31st of October, a decree for new elections of state authorities. The new assembly met on the last day of the year, and on the 1st of March, 1827, Mariano Aycinena was chosen by popular vote chief of the state.^[VIII-20] It is hardly necessary to state that the elections were wholly controlled by the servile party, whose views were reflected in the new jefe's policy. Lest the existing courts should not deal to the liberals subjected to criminal prosecution such punishments as their enemies

desired, a military court, with three voting members, was created, to adjudicate verbally upon all causes for treason.^[VIII-21] During the seven months of its existence—to the 29th of October, 1827—it sentenced to the death-penalty upwards of ten persons, but the sentence was carried out in one case only.^[VIII-22]



GUATEMALA MEDAL OF ABOUT THIS DATE.

**RULE OF
AYCINENA.**

The history of Guatemala during Aycinena's rule was identical with that of the federal government, this jefe being a supporter of President Arce, and affording him all possible aid in his warfare against Salvador, all of which has been narrated. Toward the end of 1828, however, the successes of the arms of Salvador, together with certain alleged false steps of Aycinena,^[VIII-23] aroused such a spirit of discontent against him and his administration, that on the 20th of October the assembly passed an act for the renewal of all the chief authorities of the state.^[VIII-24] Soon afterward the project was entertained of detaching Guatemala from the federation. Neither of the plans led to the proposed results. The latter was disapproved by the

representative council, and the former was useless, as the incumbents were continued in office. [\[VIII-25\]](#) This caused the breaking-out of a revolution at La Antigua in January 1829, [\[VIII-26\]](#) which, though easily quelled, hastened the march of the liberal forces under Morazan from San Salvador upon Guatemala. [\[VIII-27\]](#) After this leader took the city, on the 13th of April, 1829, Aycinena and the other chief men of his administration being thrown into prison, Juan Barrundia was placed at the head of the government, [\[VIII-28\]](#) and the authorities of La Antigua were transferred to Guatemala. [\[VIII-29\]](#) The deposed congress [\[VIII-30\]](#) of 1826 also reassembled on the 21st of April. [\[VIII-31\]](#) It must be remarked, in connection with the state's affairs at this time, that, though nominally in the hands of Barrundia and the assembly, they were virtually under Morazan's control. To meet his constant demands for money to support his forces, a number of financial schemes were devised, the property of the serviles being almost exclusively affected by them. Their property, as well as that under control of the church, was taxed severely. [\[VIII-32\]](#) Not satisfied with depleting the resources of the enemy, under the decrees of June 4th and August 22d, the late officials were made amenable to prosecution in a summary manner, though finally a sort of ironical amnesty was granted them, involving expatriation, which was enforced on the 28th of August. [\[VIII-33\]](#)

RULE OF MOLINA
AND RIVERA
CABEZAS.

New elections for state authorities resulted in the choice of Pedro Molina as jefe, [\[VIII-34\]](#) and he was inducted in August 1829. His subsequent disagreement with the temporary president, José Francisco Barrundia, the novel ideas he suggested for remodelling the federation, and the intrigues of his opponents, among whom has been named the vice-jefe Rivera Cabezas, brought on his overthrow, when he was superseded on the 9th of March, 1830, by said vice-jefe. [\[VIII-35\]](#)

During the administration of Rivera Cabezas the state of Guatemala enjoyed the blessings of peace. There was only an encounter between the people of Ilotenango, now Quiché, in Sololá, and those of Chiquimula in Totonicapan, upon land questions. There were a few wounded. Rivera Cabezas arranged the matter to the satisfaction of both towns. He also accomplished many reforms, ascertained the amount of the state debt, and introduced a proper economy in the expenditures. [\[VIII-36\]](#)

While internal dissensions were exciting the people of Guatemala, they were forced to undergo, on the 23d of April, 1830, the tribulations resulting from one of the severest shocks of earthquake experienced in the country. [\[VIII-37\]](#) Nearly all the inhabitants passed the night in the streets, public squares, or in the open fields. The assembly adjourned the following day, and the state authorities removed to Jocotenango. Fortunately, no more shocks occurred, and the public alarm gradually subsided, the damage done being less than had been supposed. [\[VIII-38\]](#) The clergy made use of the earthquakes to arouse the rabble against the liberals. [\[VIII-39\]](#)

After the removal of the national seat of government to San Salvador, Guatemala found itself in a great measure freed from the constant bickerings between the federal and state authorities. The servile party gained by it; but for all that, the liberal spirit of the federal administration was still felt. Pursuant to a decree of the assembly at Jocotenango, elections for state authorities were made, and José F. Barrundia was the popular choice for jefe, and Gregorio Marquez for vice-jefe. Barrundia declined the office, pleading a previous election as senator. The assembly refused his resignation, and Barrundia reiterated it, till his wishes were granted. [\[VIII-40\]](#) The vice-jefe Marquez then assumed pro tempore the executive office, and retained as his secretary-general the clergyman of talent, Antonio Colom. New elections were called for, to be made by the same electoral bodies which had effected the last, and Mariano Galvez was chosen jefe, assuming

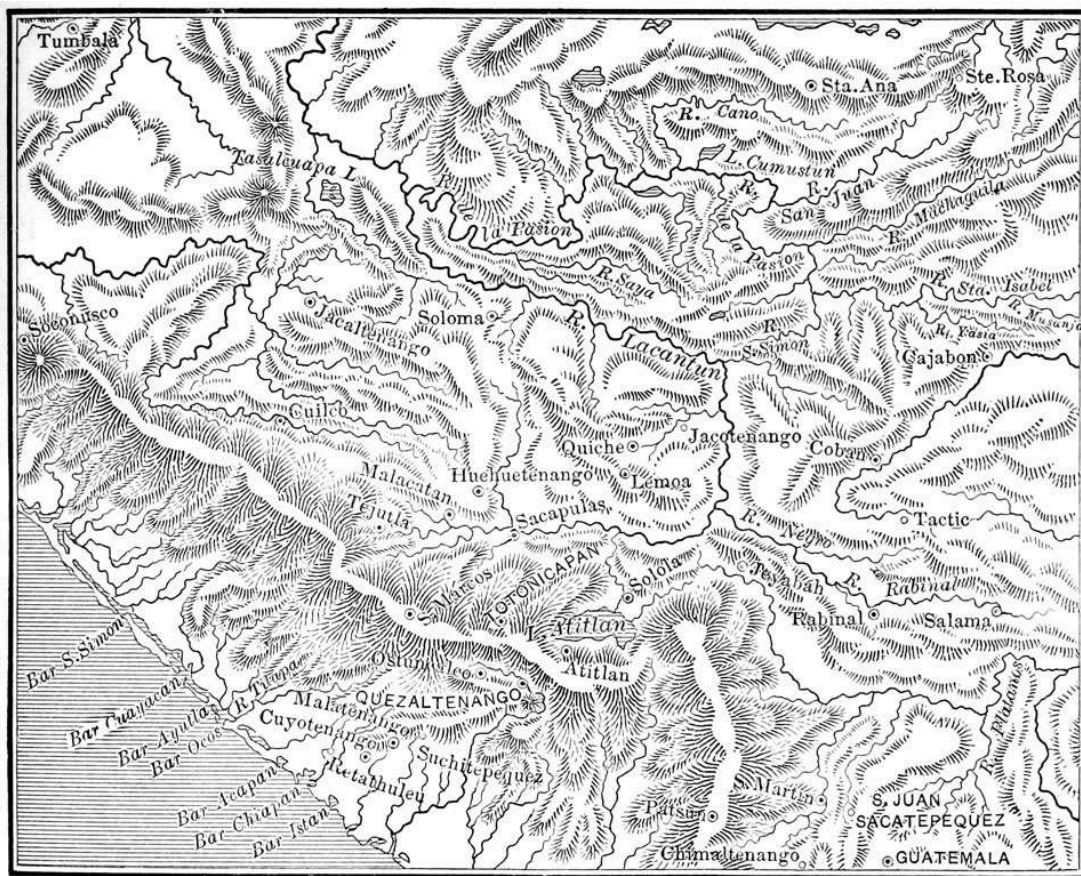
office in August 1831.^[VIII-41] This chief of the state endeavored to steer a middle course in the management of public affairs, but he was only partially successful.^[VIII-42] Several important measures were adopted to relieve the burdens of the people, and to advance their intellectual development.^[VIII-43]

RULE OF GALVEZ.

Galvez was not content with encouraging science and literature; he also directed his efforts to the advancement of arts and industries, and the improvement of towns, public health, etc. Friars who had become secularized were granted the rights enjoyed by other citizens, and could, therefore, bequeath and accept inheritances.^[VIII-44] At Galvez' suggestion, the assembly passed the act of February 27, 1834, to enable nuns to abandon their convents, if they so desired, taking the dowries they brought with them. Later, marriage was declared to be a civil contract that could be dissolved.^[VIII-45] The measures affecting the clergy in their privileges and revenues, the introduction of the Livingston code with trial by jury, and the colonization by an English company at Vera Paz, gave rise to displeasure among the ignorant, which the clergy and the serviles did not fail to fan into a flame that ere long became a conflagration.^[VIII-46] Added to this was the jealousy engendered by San Salvador having been made the national capital.^[VIII-47]

The first outbreak occurred in March 1837, when the Indians of San Juan Ostuncalco rebelled. It was at once quelled, but the ravages of cholera caused in June the uprising at Mita. It has been shown in another place that here, at this juncture, Rafael Carrera made his first appearance in the political field, inaugurating the war that eventually dissolved the republic, and through its consequences brought Guatemala to the verge of ruin. On the 16th of June, 1837, the assembly met in extra session, but was unable to effect any favorable change in the situation. There were two bitterly opposing parties striving for control. To make matters worse, insurrections broke out in several parts,^[VIII-48] ending with the capture of the capital by Carrera on the 31st of January, 1838, and the replacing of Galvez by

Valenzuela on the 2d of February. That same day the departments of Los Altos, namely, Sololá, Totonicapan, and Quezaltenango, declared themselves detached from Guatemala to constitute the sixth state of the federation, under the name of Los Altos. [\[VIII-49\]](#) A constituent assembly was installed at Quezaltenango on the 25th of December, and Marcelo Molina elected first jefe of the state. He was inducted in office on the 28th. [\[VIII-50\]](#)



LOS ALTOS.

STATE OF LOS ALTOS.

The constituent assembly adopted, May 26, 1839, a constitution which was democratic and representative, with the Roman catholic as the religion of the state. [\[VIII-](#)

^{51]} Later, it passed instructions to guide the executive in his relations with the other states. They were based on equity and justice, and prompted by a spirit of fraternity.^[VIII-52] The state concluded with Salvador, on the 10th of August, a treaty defensive and offensive, but it came to naught, for reasons that will be explained.

The jefe, Molina, was an honest man and an able jurist. He loved Los Altos, and considered it a necessary organization for the greater lustre of the Central American republic; but he had little knowledge of human nature, and was easily deceived. The government of Guatemala pursued toward him, since April 13, 1839, a machiavelian policy, and led him into the fatal belief that it really desired the prosperity and happiness of the new state, which had become the residence of the liberals who had left Guatemala, fleeing from Carrera,^[VIII-53] and constantly published severe strictures against Carrera and the aristocratic clique which surrounded him. Molina had been persuaded that the Guatemalan authorities were friendly toward the state of Los Altos, though requiring that it should discourage the attacks of the exiled liberals. However, Molina, abiding by the constitutional clauses declaring freedom of the press to be inviolable, answered that the government of Guatemala had the right of prosecuting the writers before the courts of Los Altos for libel. This ill feeling was all that Pavon, the Guatemalan machiavelian minister, desired for future hostile proceedings. The opportunity was not wanting, and the state of Los Altos was destroyed by Carrera on the 29th of January, 1840, and reincorporated with Guatemala.^[VIII-54] Molina, though credulous and vacillating, at the last moment showed himself to be possessed of a brave heart. He well knew that his administration had been a just one, that all charges against his government, on the part of Guatemala, by Pavon and his fellow-aristocrats, were false. He did not forsake his post. Carrera grossly insulted him, and sent him as a prisoner to Guatemala. General Guzman was reviled, forced to wear rags, beaten, and his hair and beard pulled out. Other citizens were shamefully treated, and their homes plundered.^[VIII-55]

RIVERA PAZ AS
JEFE.

Affairs in Guatemala had undergone a great change since the removal of Galvez from the position of jefe. His successor, Valenzuela, was deposed July 22, 1838, by a popular movement, and Mariano Rivera Paz placed at the head of affairs.^[VIII-56] His first official act was one deserving of special commendation, as it exhibited a conciliatory spirit which, unfortunately, had been a stranger in the country during many years past. Three days after being installed, at his special suggestion the state assembly nullified all acts of proscription, and decreed a general amnesty for all persons implicated in political offences since September 1821.^[VIII-57]

From the moment Rivera Paz was made the provisional head of the state government, reaction set in and went on with flying colors. Measures in consonance with the wishes of the retrogressionists were adopted one after another as fast as they could be drawn up.^[VIII-58] These decrees should have satisfied Carrera and his supporters; but it seems that they did not; his faction became more and more recalcitrant. He found himself closely pressed; but, unfortunately, General Guzman was persuaded to enter into arrangements with him at El Rinconcito. This, however, did not bring peace to the state for any length of time.

In the latter part of January 1839 Rivera Paz was deposed by Cárlos Salazar, military commander of Guatemala,^[VIII-59] but reinstalled by Carrera on the 13th of April.^[VIII-60] This disturbed condition lasted some time longer. The state declared itself independent on the 17th of April of the same year, and the only form of union maintained with the other states was by special treaties of allowance,^[VIII-61] in which the states mutually acknowledged their independence and sovereignty, and pledged themselves to reconstruct Central America. All efforts, however, to reestablish order were in vain, owing to the political complications caused by Carrera's rebellion in March 1839. His capture of Guatemala on the 19th of March, 1840, and the end of the struggle between him and Morazan, which has

been narrated, did not materially change the state of affairs; at all events, resolutions subsequently adopted by the assembly had little weight. [\[VIII-62\]](#) The only important ones were the restoration of the fuero eclesiástico, [\[VIII-63\]](#) and the creation of a medical faculty in the university. Thus, after sixteen years of continual strife, Guatemala found herself again an independent and impoverished state. Neither of the parties which had striven for supremacy had gained anything. The commonwealth was practically under the dictatorship of an Indian chieftain, whose will even those who had helped him to attain his position dared not dispute.

CARRERA'S
TRIUMPH.

From the moment that the plan of a Central American confederation was contemplated, Honduras manifested her willingness to be one of its members; and upon the federal constituent assembly fixing, on the 5th of May, 1824, the basis of organization for each separate state, a local assembly of eleven deputies was assigned to Honduras. The state constituent assembly met at the Mineral de Cedros, [\[VIII-64\]](#) and on the 16th of September Dionisio Herrera was chosen jefe del estado, and José Justo Milla vice-jefe. In July 1825, the territory was divided into seven departments, [\[VIII-65\]](#) and on the 11th of December the state constitution was promulgated. This ended the labors of the constituent body, which four months later was replaced by the ordinary legislature, the installation of which at Tegucigalpa was followed by that of the representative council at Comayagua.

Honduras was not allowed to enjoy a long term of peace. The assembly ordered new elections for chief of state, on the ground that Herrera's tenure of office had been intended to be merely provisional; but he held to a different opinion, and refused to surrender his authority. Matters were made worse by the enmity existing between Herrera and Irias, the governor of the diocese. [\[VIII-66\]](#) Anarchy now prevailed, some of the departments, especially Gracias, refusing Herrera recognition. This state of things was mainly

instigated by the president of the republic, Arce, who strove to overthrow the liberal party in Honduras. Under the pretence that Santa Rosa, in the department of Gracias, out of which the federal government drew a revenue from tobacco, needed protection, Arce despatched there 200 men under Milla, the vice-jefe, [\[VIII-67\]](#) who, after a short encounter with Herrera's force, marched upon Comayagua, [\[VIII-68\]](#) arriving there early in April 1827. The town had been hastily fortified, and energetically resisted thirty-six days; but not receiving timely reënforcements, succumbed on the 9th of May, 1827. [\[VIII-69\]](#) Herrera was sent as a prisoner to Guatemala, and new elections were ordered in Honduras. [\[VIII-70\]](#) A new legislature on the 13th of September chose Gerónimo Zelaya jefe, but he was recognized as such only in Santa Bárbara. All liberals were dismissed from office. Francisco Morazan, who had been imprisoned, notwithstanding the safe-conduct given him after the fall of Comayagua, managed to escape, and subsequently rendered efficient aid to defeat the federals at Trinidad. [\[VIII-71\]](#) The government installed by Milla disappeared, Morazan temporarily assuming the reins in November. The further interference of the federal government in the internal affairs of Honduras has been fully narrated elsewhere. The country was not exempt from internal troubles from the close of 1829 [\[VIII-72\]](#) to the beginning of 1833, requiring nearly always the final intervention of the federal government to bring them to an end. [\[VIII-73\]](#)

LIBERAL IDEAS IN
HONDURAS.

Morazan's ascendancy awakened in Honduras more liberal ideas than had ever prevailed in the country, as was evidenced in the laws then enacted. [\[VIII-74\]](#) During the following years Honduras was comparatively tranquil, the political agitations of the republic scarcely affecting her. There was a local sedition in December 1836, and the early part of 1837, contributing to render much worse the financial condition of the state, which had been bad enough before. [\[VIII-75\]](#) The friends of the federation decreased from day to day. Honduras accepted the act of the federal congress authorizing the states to

constitute themselves as they liked; and in June 1838 the legislature and executive called for a constituent assembly to do so, which met at Comayagua on the 7th of October.^[VIII-76]

The declaration of independence was solemnly promulgated in a single sentence on the 26th of October, 1838.^[VIII-77] All further efforts on the part of Morazan and his fellow-federalists to restore the disrupted republic proved unavailing, as we have seen.^[VIII-78] At the end of January 1840, the secessionists were victorious, and federalism was rooted out.

I append a list of Honduras rulers after Morazan's short provisional administration in 1827-28.^[VIII-79]

CHAPTER IX.

SALVADOR, NICARAGUA, AND COSTA RICA.

1824-1840.

SALVADOR STATE GOVERNMENT—LIBERALS OVERTHROWN—SECESSION FROM THE UNION—SAN SALVADOR AS THE FEDERAL SEAT OF GOVERNMENT—GUATEMALA IMPOSES HER WILL—JEFE CAÑAS AND COMANDANTE MALESPIN—NICARAGUA'S EARLY TROUBLES—SIEGE AND BOMBARDMENT OF LEON—ORGANIZATION OF STATE GOVERNMENT—DISSENSIONS AND WARFARE—ERUPTION OF COSIGÜINA—SECESSION FROM THE CONFEDERATION—COSTA RICA AS A CONFEDERATED STATE—JUAN MORA'S ADMINISTRATION—TOWNS' BICKERINGS SETTLED—BRAULIO CARRILLO'S RULE—FINAL SECESSION FROM THE CENTRAL AMERICAN REPUBLIC—PROSPERITY OF THE STATE.

Salvador, from the earliest days that utterance was given to the idea of liberty and independence from Spain, was ready to echo and champion it, and was the first to effect an organization for self-government.^[IX-1] The state was divided into four departments, San Salvador, San Vicente, San Miguel, and Sonsonate.^[IX-2] Under the direction of the constituent assembly a state government was organized, with Juan Vicente Villacorta as jefe,^[IX-3] and Mariano Prado as vice-jefe. After installing a superior court, the constituent assembly adjourned sine die on the 23d of November, 1824.

For a long time past there had been differences between Guatemala and Salvador upon ecclesiastical matters. The latter not only claimed an authoritative voice in the political affairs of Central America, but also to be placed upon an independent footing as regarded the ecclesiastical. Hence the anxiety to have a bishopric erected at San Salvador. This matter assumed a threatening aspect, and engaged the attention of ecclesiastics and statesmen, as well as the public at large in both sections of the country. The

details will be given in a separate chapter treating of the church in Central America. It is in order to state here, however, that the disputes about the diocese of San Salvador had a deep influence in the country's politics. The contending parties had taken up the question. The liberals in both states sided with José Matías Delgado, who had been appointed by the Salvador legislature the first bishop. The servile element, on the other hand, supported the archbishop of Guatemala. But after a time Delgado, who was not unmindful of his purposes, supported President Arce, thus forsaking his former friends, and joining the servile party. A marked change occurred soon after, however, the relations between Arce and Delgado becoming cold because the latter suspected that Arce really sympathized with the archbishop. The liberals failed not to strengthen that suspicion, nor to fan the flame. [\[IX-4\]](#)

Jefe Villacorta, owing to impaired health, surrendered the government to the vice-jefe, Mariano Prado, [\[IX-5\]](#) whose first act was one of opposition to the national government, by repealing Arce's convocation of October 10th for a new congress, and issuing one of his own, on December 6, 1826, appointing Ahuachapan, in Salvador, as the place of assemblage. Prado now began the military preparations which were followed by a war between Salvador and the federal government, and which terminated with the overthrow of the servile party by Morazan.

RULE OF CORNEJO
AND PRADO.

A liberal policy was for a short time pursued in Salvador under the rule of José M. Cornejo, who had become the jefe in January 1829, [\[IX-6\]](#) and peace reigned during the next three years. But in 1832 it was again disturbed. The government of the state, becoming dissatisfied with its former hero, Morazan, attempted to secede from the union, but was brought under subjection. [\[IX-7\]](#) Cornejo was deposed, and, together with those who aided him in the rebellion, was sent to Guatemala as a prisoner, to be dealt with according to law. [\[IX-8\]](#) Elections for authorities were then held, and Mariano

Prado was chosen jefe,^[IX-9] and Joaquin San Martin y Ulloa vice-jefe. A period of liberalism now commenced, like that of Guatemala in 1829. Several liberal measures were adopted, one of which was the establishment—decreed August 21, 1832—of a single, very moderate, direct tax.^[IX-10] This enactment, intended to relieve the exhausted treasury, met with violent opposition in San Salvador, and sedition broke out on the 24th in several wards; but the rioters were dispersed. Prado issued a proclamation expressing his resolution to uphold the law and maintain order; but as the excitement continued, he ordered that the supreme authorities should transfer themselves to the villa de Cojetepeque on the 31st.^[IX-11] On the 14th of November there was also a seditious movement in San Miguel, which was quelled by Colonel Benitez.

The vice-jefe, San Martin, was in accord with the revolutionists, and kept up a correspondence with Galvez in Guatemala, who wanted Prado overthrown. This was known in San Salvador, and gave encouragement to the remnants of Cornejo's party. The removal of the capital was not sufficient. Another revolt broke out at San Salvador early in 1833, and Prado, together with the members of the co-legislative bodies and of the superior court, had to abandon their places. On the 13th of February the state followed the example of Nicaragua and seceded from the union. The vice-jefe, San Martin, who had gone into hiding on the 9th of February to save himself from harm, was called by the revolutionists to assume the executive authority.^[IX-12] In July a revolt broke out among the Indians of Santiago Nonualco. Headed by Anastasio Aquino, they formed the plan of exterminating the white and colored population, and installing a government of natives.^[IX-13] The utmost cruelties characterized this war of races, which was fortunately soon suppressed. Most of the ringleaders, among them Aquino, were captured. The chief was executed on the 24th of July, 1833, at San Vicente.^[IX-14] But peace did not follow the suppression of this rebellion. Salvador, always jealous of Guatemala, insisted on having the federal government removed from her rival's territory. At last, in

February 1834, the federal authorities came to reside in Sonsonate, and later, in June, at San Salvador. It was a great mistake to expect harmony. Before the month was out there was a street fight of several hours between troops of the two powers. The federals were victorious, and the state's jefe, San Martin, was deposed.^[IX-15] The executive authority was assumed first by Cárlos Salazar, commander of the federal forces, and afterward by Gregorio Salazar, the vice-president of the republic. Neither of them had a legal title.^[IX-16] From this time the state remained wholly under the control of the federal government and the liberal party, which became still more cemented when in 1835 the capital was made the federal district. In the great struggle between Morazan and Carrera, of which a detailed account has been given in a former chapter, Salvador had to rely entirely on her own resources when her territory was invaded in 1838 and 1839.

MORE TROUBLE
AT SAN
SALVADOR.

After Morazan's signal defeat at Guatemala, Salvador no longer was disposed to make sacrifices; indeed, she was too exhausted to raise a new army. However, she was by no means willing to uphold the victorious Carrera; but being unable to resist, had for a while to submit to the force of circumstances, and to recognize the government placed over her.^[IX-17] But as soon as Carrera went back to Guatemala, that government was overthrown by the people, and the jefe, José Antonio Cañas, had to resign,^[IX-18] Norberto Ramirez becoming the jefe provisional.^[IX-19] More than any other of the Central American states, Salvador needed a period of peace to recover from the wounds inflicted in nearly twenty years of warfare. She had upheld the principles of liberty and union long after the others had given them up, and now required a prudent and wise government to restore her almost extinct life and strength.

While the other provinces experienced but few difficulties in organizing themselves after the separation from Spain and Mexico, Nicaragua suffered for years from intestine strife. This was not exactly a

contest between two political parties, but rather between towns, and between the partisans of one leader and another; in other words, the results partly of sectional hatred, and partly of personal ambition. Persecutions for political causes were of daily occurrence.^[IX-20] A junta gubernativa, recognized by the general government, had been installed at Leon,^[IX-21] where Basilio Carrillo was the commander of the forces, and claimed the right to rule the province; but there was another junta at Granada, where the notorious Cleto Ordoñez held sway in accord with the jefe político, Juan Argüello, which, of course, ignored the pretensions of the Leonese authorities. Managua, though siding with Leon, had become the headquarters of the anti-republicans, with Bishop García at their head, who strove to rid the place from Leonese influence. Most of the other towns were in a similar condition; so that it may be asserted that the whole province was in a state of anarchy. The junta gubernativa of Leon accepted, on the 2d of July, 1823, the decree of the national government of March 29th, calling for a national congress, and declared Nicaragua united with the other provinces that had formerly been the reino de Guatemala.

NICARAGUAN COMPLICATIONS.

On the 13th of January, 1824, a popular uprising in Leon caused the junta gubernativa to remove Basilio Carrillo from his command, replacing him with the jefe político, Cármen Salazar.^[IX-22] Early in the same year Justo Milla came with the appointment of intendente from the general government, and with instructions to pacify the country; but his mission failed.^[IX-23] On the 22d of July Ordoñez had himself proclaimed comandante general by the garrison and populace. Some of the wards of Leon attempted, on the 6th of August, to overthrow Ordoñez and restore Melendez, the successor of Milla; but they were overpowered, and the city was sacked.^[IX-24] On the 14th the forces of Managua, under Colonel Crisanto Sacasa, captured portions of the city of Granada. After twenty days of incessant fighting the besiegers retired in good order. On the other hand, a division of Leonese

and Granadans attacked Managua on the 24th of August, with the same result.

A junta gubernativa had been installed on the 9th of the month at El Viejo, in opposition to that of the capital, [\[IX-25\]](#) and organized a force of 2,000 men, intended to lay siege to Leon. The united forces of El Viejo and Managua, commanded by Sacasa and the Colombian Juan José Salas, assaulted Leon, captured the suburbs, and penetrated to the plazuela de San Juan. The garrison, composed of Leonese and some Granadans, now found itself confined to the chief plaza and contiguous blocks. During the siege, which lasted 114 days, there was incessant fighting, both besiegers and besieged exhibiting bitter animosity. Sacasa was mortally wounded, and died twelve days after. The fighting often took place inside of the houses, and even of the churches. Upwards of 900 houses were either demolished or burned, and the number of dead and wounded on both sides was large, probably over 900 killed. The contest ceased only on the 4th of January, 1825, when the besieging forces retired. [\[IX-26\]](#)

The villa de Managua laid down its arms on the 22d of January, 1825, peaceably receiving Manuel José Arce, who had entered Nicaragua with an auxiliary force from Salvador, and with instructions to pacify the state. In consequence of his arrival, the dissensions were quieted for a time. [\[IX-27\]](#) Arce, without bloodshed, also disarmed the troops of Ordoñez at Granada, and despatched him, together with Bishop García, to Guatemala. After having made arrangements for elections, the peace-maker returned to Salvador, leaving, however, a portion of the force at Leon.

RULE OF
ARGÜELLO.

On the 10th of April, 1825, preliminary arrangements being completed, the first constituent assembly of Nicaragua met under the presidency of Juan Manuel Zamora, and ten days later Manuel Antonio de la Cerda was installed as jefe of the state, [\[IX-28\]](#) and Juan Argüello as vice-jefe. Unfortunately there were disagreements on the part of Cerda with both the

constituent assembly and Argüello, which delayed the labors on the state constitution, so that it was not decreed till the 8th of April, 1826. [\[IX-29\]](#)

The convention then adjourned sine die, and the regular or ordinary assembly met on the 13th of August, at Leon, but in the middle of the following month removed to Granada. [\[IX-30\]](#) Meantime the dissatisfaction with Jefe Cerda had assumed such proportions that the legislative body resolved to impeach him. He was, accordingly, suspended, and Argüello placed temporarily in charge of the executive authority. New elections were also decreed. [\[IX-31\]](#) But Argüello had not fostered all these troubles merely to surrender the government to a new man, and by intrigues contrived to bring about, in February 1827, the dissolution of the assembly. [\[IX-32\]](#)

The indefatigable Colonel Cleto Ordoñez made, with the aid of troops of Leon and Senator Hernandez, an unsuccessful attempt [\[IX-33\]](#) to seize the government, declaring Argüello suspended. An effort was also made by the president on behalf of Cerda, but it was defeated by Herrera, the jefe of Honduras. The state of war continued; Arce reluctantly had removed, at Argüello's request, the few men of Salvador that had been stationed in Nicaragua since 1825, [\[IX-34\]](#) and thus the only adversary of importance Argüello had was Cerda. The contest remained for a long time undecided. Argüello took Granada, while Cerda's headquarters were first at Managua, and, when that place seceded, at Rivas, the ancient town of Nicaragua.

In September 1828, Cerda's party had made so much headway that Argüello and his followers had vessels in readiness to effect their escape should the jefe gain another victory. But the priests, who worked against the latter, inspired the disheartened Argüellistas with renewed courage, and in another encounter they were victorious. Cerda's star now waned. A revolt planned by two of his officers was quelled, and the leaders were shot. [\[IX-35\]](#) This severity, and the heavy taxes he levied, increased his foes. [\[IX-36\]](#) At last, on the 8th of November, 1828, when Rivas was almost without troops,

one of his officers, who was a relative, named Francisco Argüello, made him a prisoner, and before his troops could come from Jinotepe to his rescue, a force of the vice-jefe entered Rivas. A military court was at once organized, and Cerda, being subjected to its action, [\[IX-37\]](#) was sentenced to death, and executed. [\[IX-38\]](#)

HERRERA'S RULE.

Argüello was now free from his strongest adversary; but the struggle went on as new pretenders sprang up, and its effects in the course of time were most disastrous. It brought the state to a condition of desolation unequalled in Central America. Dionisio Herrera, chief of Honduras, undertook, under instructions of the federal government, in 1829, the task of pacifying Nicaragua. He visited Leon, and succeeded in conciliating parties and restoring order; and when new elections took place in May 1830 he was himself chosen its jefe. [\[IX-39\]](#) Managua, the last place to hold out, was finally, without the use of force, prevailed upon to recognize the newly constituted authorities, and in June was already enjoying the benefits of peace. In order to consolidate the peace throughout the state, Herrera made the leaders of parties leave its territory. His rule was a quiet one for the next two years, and until Nicaragua was called upon by the national government to furnish her contingent of troops to suppress revolutionary movements beyond her boundary. [\[IX-40\]](#)

The revolutionary spirit showed itself again in 1832. On December 3, 1832, the state assembly attached the federal revenue, and refused further recognition of the general government. A few months later a revolt broke out against Herrera. The movement originated in Managua, and was seconded in Masaya and Matagalpa. Granada and Leon opposed it. Jefe Herrera at first was loath to resist it, and laid his resignation before the legislature, and it was accepted on the 1st of March, 1833. But that body, under popular pressure, four days after revoked the resolution, and recalled

Herrera to hold the executive authority, with the extraordinary powers that had been decreed him on the 8th of February previous. [\[IX-41\]](#)

The insurrection had spread also in Metapa, Chocoyos, Nandaime, San Jorge, and throughout the department of Nicaragua. At the head of the movement was an ecclesiastic. Herrera exhausted all peaceful means, and had to employ force, and Managua was taken on the 29th of June, 1833. [\[IX-42\]](#) Nicaragua and other places accepted the amnesty tendered them. [\[IX-43\]](#) But it seemed almost impossible to maintain peace for any length of time. In May 1834 Granada and Metapa rebelled, under one Cándido Flores. The rebels were successful for several months, and took possession of Managua. But on the 13th of August they were defeated; a few days later Granada was recovered, and four of the ringleaders were shot.

A GREAT
EARTHQUAKE.

In the morning of the 20th of January, 1835, there was an eruption of the volcano Cosigüina, [\[IX-44\]](#) attended by one of the most terrific earthquakes ever experienced in Central America. [\[IX-45\]](#) The event was a memorable one for the Nicaraguans, and its abatement was attributed to the efficacious intercession of their saints; and in commemoration of it they still have a feast of thanksgiving every year on the 23d of January. [\[IX-46\]](#)

A short period of peace followed. Puny are the efforts of man at killing each other when heaven fires its artillery! The exhausted state seemed unable to continue its suicidal course. The tranquillity was broken, however, though only for a short time, in 1837. [\[IX-47\]](#) The assembly had, on the 21st of February, 1835, recognized José Zepeda and José Nuñez as the duly elected jefe and vice-jefe respectively. Colonel Zepeda was a distinguished patriot, who had rendered important services to the cause of liberty. His election was hailed with approval in Nicaragua, and in the other states of

the union. He took possession of office April 23, 1835.^[IX-48] The government experienced no serious difficulty during 1836 in the administration of public affairs. It was engaged in improving the public roads, and in other matters of general utility. But 1837 was inaugurated with infamous crimes, with the murders of the jefe Zepeda, and of the citizens Roman Valladares, Evaristo Berrios, and Pascual Rivas, which resulted from a revolt of the garrison at Leon.^[IX-49] The movement was promptly suppressed, and the ringleader, Braulio Mendiola, executed. The vice-jefe, Nuñez, assumed rulership, and during his administration a second constituent assembly was convened, and commenced its labors on the 31st of March, 1838.^[IX-50] One month later, on the 30th of April, the state seceded from the federation, an act which may be called a mere formality, inasmuch as Nicaragua had not taken part, to any notable degree, in the affairs of the general government. Nominally, however, the idea of a union of the Central American states was upheld, and still expressed in the new state constitution framed by the assembly and confirmed on the 12th of November, 1838.^[IX-51] All this was pure affectation, however, for Nicaragua lent her hearty aid to eradicate the last remnants of the federation. The coveted sovereignty was attained at last. Later events will show whether or not it brought Nicaragua prosperity. The present generation had grown up midst the noise of war, hearing the battle-cry of one or another contending party, and it could hardly be expected that it could appreciate the blessings of peace.^[IX-52]

EVENTS IN COSTA
RICA.

Costa Rica, owing to her geographical position, was almost isolated, politically, from the rest of Central America. It would be wrong, however, to infer that her participation in the general affairs of the republic had been one of mere formality or policy for her own convenience or safety. Nowhere had the idea of a union been more warmly embraced. Four months only had elapsed after the bases for the organization of the state had been adopted by the national constituent

convention, when Costa Rica's first assembly met,^[IX-53] and on the 21st of January, 1825, decreed a state constitution.^[IX-54] In the middle of April the first ordinary legislature began its labors, and on the 24th of September Juan Mora was installed as chief of the state.^[IX-55] This was a happy choice; for during his rule Costa Rica escaped the evils which protracted warfare wrought in the other states of the union. Following the example of Salvador, a decree was passed in September creating a bishopric independent from Nicaragua, and appointing Fray Luis García the first bishop; but the decree became a dead letter.

The first effect of Mora's quiet rule was the enlargement of Costa Rican territory. Dissatisfied with the jefe, Cerda of Nicaragua, the district of Guanacaste, or Nicoya, which formerly belonged to that state, declared its separation, and asked to be incorporated with Costa Rica.^[IX-56] The arrangement was approved by the federal congress on December 9th, and since then Nicoya formed one of the five departments of that state.^[IX-57] Nicaragua protested; Costa Rica refused to restore the territory, and the matter remained an open subject of discussion, but never leading to hostilities.^[IX-58]

Early in 1826 an attempt was made^[IX-59] by a Spaniard named José Zamora, at Alajuela, to overthrow the government. He attacked the quarters of the garrison, but after several hours' fighting was repulsed, with most of his followers slain, wounded, or made prisoners. A few days afterward he was captured and shot.^[IX-60] During several years this was the only public disturbance. The struggle between serviles and liberals in the other states did not affect Costa Rica, which prudently maintained neutrality. She endeavored, however, to bring on peace between the belligerents, by accrediting, in 1828, Manuel Aguilar as special envoy to Guatemala and Salvador; but his mission proved fruitless, chiefly owing to the success of the Salvador arms, and the irreconcilable feeling thereby engendered.^[IX-61] It was the unsatisfactory result of this effort, which in a great measure

prompted Costa Rica, after Mora's reelection in 1829, to secede from the union till the federal authority should be reorganized. When this took place, the secession act was revoked in January 1831.

In March 1833 the second term of office of Mora expired; and in acknowledgment of his beneficent and wise policy, the assembly decreed that his portrait should be placed in the hall of sessions, with a highly complimentary inscription.^[IX-62] Costa Rica had made great progress from both the material and intellectual points of view. A number of clergymen endeavored to introduce a decree of the ecclesiastical authorities of Guatemala to burn certain so-called forbidden books. They failed, the result being the importation of a large number of the denounced works. Jefe Mora treated the pious proposal with the contempt it deserved.^[IX-63]

RULE OF
GALLEGOS AND
CARRILLO.

Mora's successor duly elected was José Rafael Gallegos, who assumed his duties in April 1833.^[IX-64] The state at this time was enjoying liberty, and perfect freedom of the press.^[IX-65] It was the asylum of the exiles from other Central and South American states. It was not, however, altogether exempt from the spirit of localism. Cartago had been the capital, and wanted to recover that position. San José felt as a loss the absence of the supreme authorities. Heredia and Alajuela would not be less than the other two places. Guanacaste was the only one out of the question. Hence the resolution adopted^[IX-66] that the state capital should alternately be at San José, Cartago, Heredia, and Alajuela. A later law, of June 9th, prescribed that the residence of the supreme authorities at each of said places should be for the period of four years. Gallegos' rule was of short duration. He resigned in March 1834.^[IX-67]

Braulio Carrillo was elected jefe, and went into office in April 1835.^[IX-68] In his time several liberal innovations were made, in addition to those introduced some time previously; namely, suppression of tithes and

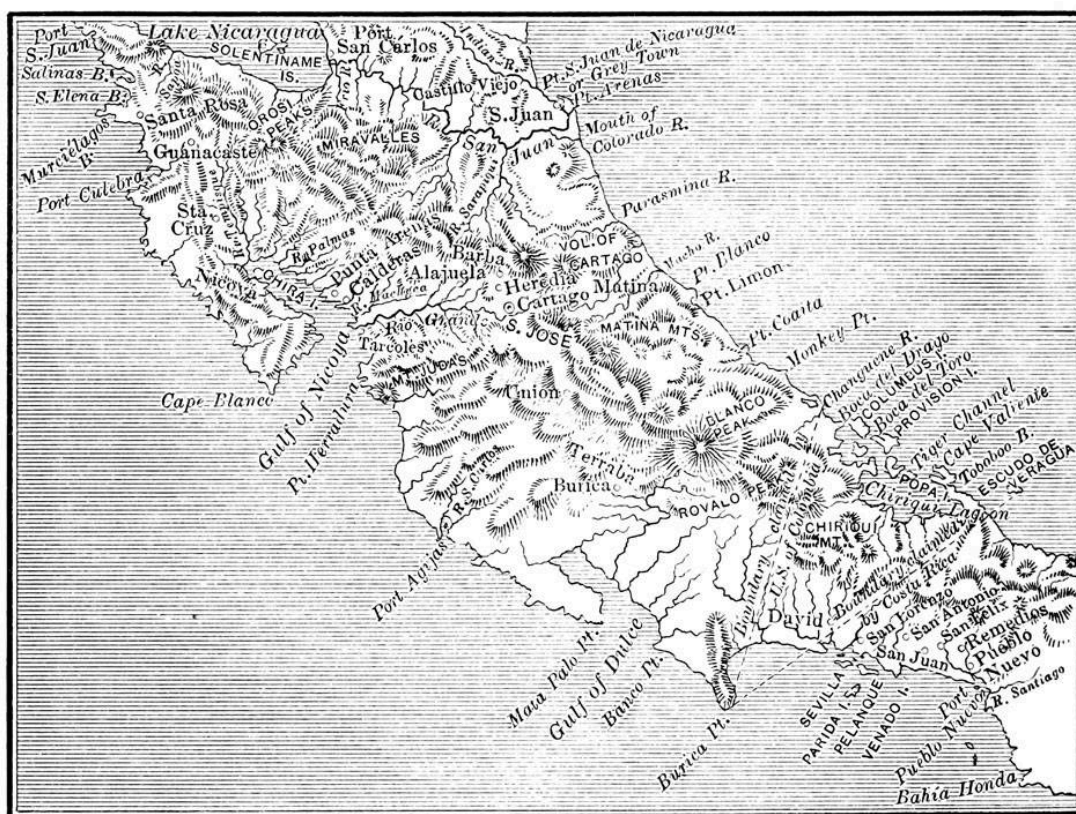
decrease of holidays;^[IX-69] those enactments aroused the clergy, and prompted them to fan, in retaliation, the flame of discord existing between San José and Cartago, which culminated in an open revolt on the 24th of September, 1835.

An alliance was entered into by Cartago with Alajuela and Heredia, to refuse recognition to the government, and to convoke a new assembly with equal representative rights for the different towns.^[IX-70] The allied forces marched upon San José, then the seat of government; but were defeated in several encounters, and they again submitted.^[IX-71] The result of this revolt was the further strengthening of San José, to which place was conveyed all the armament of the state. The government was equally successful in the following year, when an armed force from Nicaragua, led by the Costa Rican Manuel Quijano, formerly in his country's military service, Pedro Abellan, and Manuel Dengo, entered the department of Guanacaste, and marched upon its chief town, where they expected to find support; but they only met with disappointment. They were first repulsed by the inhabitants, and afterward routed by the troops.^[IX-72]

REVOLT IN COSTA
RICA.

The peace thus restored was not of long duration. Braulio Carrillo was succeeded as jefe of the state^[IX-73] by Manuel Aguilar, in April 1837. A plot intended to overthrow the government was soon after detected, and the authors were sent into exile.^[IX-74] But Carrillo had also been disappointed at Aguilar's election, and being influential with the soldiery, he had but little difficulty in getting together a party with which, on the 27th of May, 1838, he deposed this official, sending him, together with the vice-jefe, Juan Mora, into banishment.^[IX-75] This was the first instance in Costa Rica when the legitimate government of the state was overthrown by force of arms. It cannot be said that the change was altogether for the worse. Under Carrillo's active and energetic rule the country made rapid progress in a material point of view.^[IX-76] He saw at once the hopelessness of reëstablishing the Central

American confederation, [\[IX-77\]](#) or of reorganizing it so as to render it beneficent to the several states; and therefore, instead of making fruitless efforts in that direction, strove rather to isolate Costa Rica. This policy he impressed on the second constituent convention, which met on the 1st of November, 1838, [\[IX-78\]](#) and on the 15th the formal separation was declared, the convention still manifesting a willingness to maintain a sort of union by means of special treaties. [\[IX-79\]](#)



COSTA RICA.

He also took effective steps to pay off Costa Rica's share of the foreign debt, contracted by the Central American republic. The state was for a long time exempted from the afflictions and consequent injurious results which

visited the other states during the bitter last struggle in 1840 between Morazan and Carrera for the existence of the republic. The other states were impoverished and brought to the verge of ruin, whereas Costa Rica, with comparative tranquillity, was constantly marching forward.

COAT OF ARMS
AND FLAG.

The president, on the 21st of April, 1840, decreed a coat of arms and flag for the state of Costa Rica. [\[IX-80\]](#)
This was abrogated by the provisional government two years later. [\[IX-81\]](#)

CHAPTER X.

DISSOLUTION OF THE UNION.

1839-1852.

INTERSTATE DISSENSIONS—PACTO DE CHINANDEGA—CONFEDERACION CENTRO AMERICANA—SUPREMO DELEGADO CHAMORRO—HOSTILITY OF GUATEMALA AND BRITISH OFFICIALS—ARCE INVADES SALVADOR—WAR OF THE CONFEDERACY AGAINST GUATEMALA—HELPLESSNESS OF CHAMORRO—END OF THE PACTO DE CHINANDEGA—CONDITION OF THE STATES—FERRERA'S BAD FAITH—SALVADOR AND HONDURAS AGAINST NICARAGUA—HORRORS OF LEON—VICE-PRESIDENT JOAQUIN E. GUZMAN—HONDURAS AND SALVADOR AT WAR—GUARDIOLA'S VANDALISM—MALESPIN OVERTHROWN—RENEWED EFFORTS TO CONFEDERATE—GUATEMALA AN INDEPENDENT REPUBLIC—COSTA RICA FOLLOWS—SALVADOR, NICARAGUA, AND HONDURAS A CONFEDERACY—ITS SHORT LIFE—FURTHER UNSUCCESSFUL ATTEMPTS.

ENGLISH INTERVENTION.

The government of Nicaragua, on the 13th of September, 1839, following the advice of Minister Pavon of Guatemala, asked for the mediation of Frederick Chatfield, the British consul, in an endeavor to bring to an end the existing dissensions with Salvador. Chatfield declined to interfere, on the plea that Salvador, in a treaty with the state of Los Altos, on the 10th of August, had insulted the British crown.^[X-1] However, on the 27th of May, 1840, he sent to the government of Nicaragua an extract of a despatch of March 2d from the British foreign office, saying that his sovereign would cordially mediate between the two states, provided such mediation was asked for by both, or by all the governments interested, in which event he, Chatfield, was authorized to use his good offices. But he was at the same time directed to add that Great Britain was not disposed to enter into any engagement binding her to employ armed forces in Central America. This

course was not pleasing to Pavon, but fully satisfied the executive of Nicaragua. Chatfield's mediation was never called for.

Buitrago, director of the state of Nicaragua, was drawn by the force of public opinion to give his assent to the state taking part in a convention intended to reorganize the republic of Central America.^[X-2] The Nicaraguan delegates used their best endeavors for the accomplishment of their mission; but from the beginning they found their efforts hindered by the machiavelism of the aristocrats of Guatemala, and in disgust left the convention after filing a protest.^[X-3] They returned to it afterward, however, and on the 11th of April, 1842, the convention made a declaration in seven articles establishing a 'gobierno nacional provisorio,' having at its head a 'supremo delegado,' with a council composed of one representative chosen by each of the respective state assemblies.^[X-4] Antonio José Cañas was appointed supremo delegado. But this great effort on the part of the men imbued with a truly patriotic spirit came to naught, because the assembly of Guatemala indignantly rejected the compact of Chinandega, and Ferrera of Honduras acted in bad faith. Costa Rica accepted it with certain restrictions.^[X-5]

A second effort was made on the 27th of July at Chinandega by the delegates of Salvador, Honduras, and Nicaragua, who passed an act to form a league under the name of Confederacion Centro Americana.^[X-6] Sixteen of the articles in the constitution conformed with the instructions given by the aristocrats of Guatemala through the state assembly to the commissioners despatched to the villa de Santa Rosa on the 28th of September, 1839; and yet, after their adoption by the convention of Chinandega, these same persons made opposition to them. The fact was, that they had been all along using deception, appointing commissioners to several diets, but never intending that a reorganization of Central American nationality should be arrived at.^[X-7]

PACTO DE
CHINANDEGA.

Guatemala accredited a legation at Leon, Gerónimo Carcache being the envoy. He tried to exculpate his government for its opposition to the compact of Chinandega, asserting at the same time its firm resolve to uphold the treaty concluded in October 1842, by Pavon, Arriaga, and Duran, and accepted by Costa Rica in May 1843.^[X-8] This opposition, notwithstanding the organization of the executive and council, under the compact of Chinandega, was effected at San Vicente, in Salvador, on the 29th of March, 1844; Fruto Chamorro, delegate from Nicaragua, being chosen supremo delegado, Juan Lindo, delegate from Honduras, president of the council, and Justo Herrera, ex-jefe of the same state, secretary of that body. The installation of the confederate government was at once communicated to the several states.

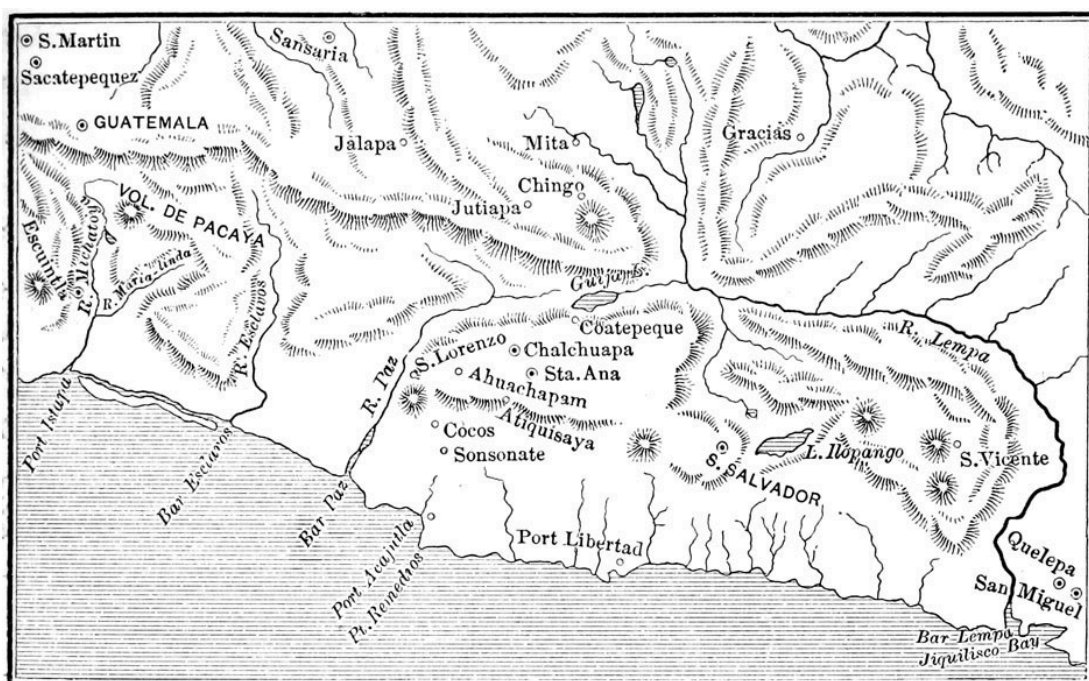
Honduras, on the 27th of April, recognized and accepted what had been done at San Vicente. Salvador and Nicaragua expressed much satisfaction. The reactionary government of Guatemala kept silent, and on being pressed for an answer, returned a cold and laconic one, to the effect that the matter would be laid before the legislative body; that is to say, the assembly which, on the 17th of April, 1839, had declared the Central American confederation dissolved.^[X-9] It could not be expected that such an assembly would give its assent. The committee to which the subject was referred made an unfavorable report, which the assembly accepted. Costa Rica suggested amendments to the 'pacto de Chinandega.'^[X-10] This document never had any practical value, for the governments which were parties thereto took no account of the duties it imposed on them. It will be seen that the executive of Honduras was its covert enemy, and that the government of Salvador openly infringed a number of its clauses.

MALESPIN AND
ARCE.

Malespin, president of Salvador, was arranging affairs for a change in favor of a theocratic régime to please Viteri, bishop of San Salvador, when news came that the state had been invaded at Atiquizaya by Manuel José Arce. The ex-

president had with him troops of Guatemala, and a supply of arms and ammunition to put in the hands of Malespin's enemies. The question will be asked, Why did the aristocrats of Guatemala cause the invasion of Salvador, her executive being their agent Malespin, who was, moreover, under the control of Bishop Viteri? This is easily explained. Malespin was, in the eyes of the aristocrats, another Carrera, disposed at times to slip out of their hands. It was, therefore, important to have him superseded by Arce, when affairs in the state would go on smoothly and to their satisfaction. In Arce ruling over Salvador, they would have, besides, a support against Carrera.

[\[X-11\]](#) But the people of Salvador, albeit much dissatisfied with Malespin and Viteri, were decidedly opposed to Arce with aristocratic surroundings. His invasion of the state only served to strengthen Malespin's power for a time. The president set the whole state in motion to meet the emergency. He did even more: he asked for the assistance of the supremo delegado of the confederacy, which was promised him. Each state was to furnish 1,000 men; but meanwhile Salvador was to place 2,000 men at the disposal of the confederate executive.[\[X-12\]](#) The general government agreed to use its utmost endeavors to avert the subjugation of Salvador by Guatemala. Malespin was enjoined, on his part, to confine his military operations within the territory of his own state. He easily got together in a few days at San Salvador 4,000 men, with which force he marched to the front. One portion of the vanguard, under Lieutenant-colonel Pedro Escalon, on the 5th of May, reached the Chingo Valley in pursuit of Arce, Aquilino San Martin, and Guillermo Quintanilla, who fled to their headquarters at Coatepeque. They were attacked there, and took to flight a second time, leaving a large quantity of arms and ammunition. Another portion of the vanguard occupied Chalchuapa, placing a force and the artillery at Santa Ana.[\[X-13\]](#)



GUATEMALA AND SALVADOR.

Malespin, in disregard of the command he had received from the supremo delegado, marched triumphantly to Jutiapa, in Guatemala; in consequence of which, the government of Rivera Paz assumed that Guatemala was in a state of war, her territory having been invaded; and Carrera was called upon to use her forces against the invaders. A forced loan was decreed, and a change took place in the cabinet, Manuel F. Pavon assuming the portfolios of relations, government, and war.^[X-14] Pavon was certainly the man for the occasion.^[X-15] He returned an answer to a note from the minister of the supremo delegado, which Milla, his biographer, has pronounced an able and conclusive one. But it was in reality a mass of abuse against Salvador and Malespin. He did not attempt to show that Arce's invasion was not the act of the Guatemalan government, as he should have done; but claimed that the war against Malespin was not a consequence of Arce's act, but of the malice of the Salvadoreños.^[X-16]

TREATY BETWEEN
HONDURAS AND
SALVADOR.

The bad climate of Jutiapa soon began to decimate the Salvador army, reducing it to about 3,000 men. Moreover, the government of Salvador, then in charge of Vice-president Guzman, could not easily procure means for the support of such a force. It was quite evident that the time for upsetting Carrera had not yet come; and Malespin's defeat would only bring greater outrages upon the people. Patience was necessary under the circumstances. It was consequently decided to abandon Jutiapa and recross the rio de la Paz, which was effected on the 17th of June.^[X-17] The assembly empowered the government to negotiate for peace, and a convention was entered into at the hacienda de Quezada on the 5th of August, 1844,^[X-18] under which friendly relations were restored, and Guatemala promised to accredit a commissioner near the confederate government.^[X-19] This convention was, however, annulled by the Guatemalan commissioners, because the supremo delegado had refused to ratify it.^[X-20] But the government of Guatemala determined that it should be held valid by Malespin's accepting it as law for the Salvadoreños. Bishop Viteri undertook to accomplish this, and succeeded.^[X-21] Malespin gave his assent to the convention being ratified by the supremo delegado, and made a declaration of peaceful intentions toward Guatemala.^[X-22] He refers to the liberals residing at Leon, who had been driven from Honduras by Ferrera, and from Salvador by himself; and he accuses them of being the cause of much trouble, for which they should be discountenanced by honorable men. The pacto de Chinandega, as we have seen, had become a dead letter. Honduras and Salvador entered, on the 10th of July, 1844, at San Salvador, into a treaty, which was ratified by both governments.^[X-23]

Chamorro's government was notified by Ferrera that auxiliary forces from Nicaragua would no longer be allowed to traverse Honduran territory.^[X-24] Chamorro's minister, M. Aguilar, remonstrated against a measure which would prevent the arrival of friendly troops to defend the

confederacy, whereof Honduras was a component part.^[X-25] Chamorro, using his lawful authority, ordered J. Trinidad Muñoz, who commanded the Honduras force of operations, not to obstruct the passage of the Nicaraguan troops. Muñoz disobeyed the order; and upon the Nicaraguans arriving at Choluteca, on the 17th of August, he required them to leave the territory of Honduras forthwith; which not being done, he assailed and conquered them on the 19th, after a three hours' fight.^[X-26] This action had a great influence on the fate of Central America; for it satisfied the aristocrats of Guatemala that the supremo delegado had no means for enforcing his authority or for carrying out his plans. It was virtually a declaration of war between Honduras and Nicaragua. Malespin was likewise emboldened by it to assail Nicaragua. The latter must then move with the utmost activity against Ferrera, before Malespin, now at peace with Guatemala, could come to his aid. But difficulties that could not be overcome were in the way; and it was only on the 23d of October that upwards of 1,000 Nicaraguans appeared before Nacaome, which they assaulted the next day, and after two hours of hard fighting, were repulsed.^[X-27]

WAR ON
NICARAGUA.

Trinidad Cabañas and Gerardo Barrios, two of Morazan's officers, made, on the 5th of September, 1844, an attempt at San Miguel to overthrow Malespin without bloodshed; but having failed, they went off to Nicaragua by way of La Union. Malespin's minister, José Antonio Jimenez, then demanded of the Nicaraguan government that Cabañas and Barrios should be either expelled or surrendered to Salvador for punishment. The demand was rejected. The two officers were by no means discouraged. They persevered in their efforts, which, more than anything else, finally brought about the tyrant's overthrow. By virtue of a special decree, Malespin took, on the 25th of October, personal command of the state forces, placing the executive office in charge of the vice-president, Joaquin Eufracio Guzman, who on the same day entered upon the discharge of his duties, giving Malespin unlimited powers for the defence of the state. Such authorization did not justify

Malespin's carrying the war into Nicaragua.^[X-28] This state, after the defeat of its troops at Nacaome, had removed them from Honduran territory, and sued for peace. And yet Malespin, in violation of the laws of Salvador, made preparations for an offensive war against Nicaragua.

It will be well, before relating the events of this campaign, to cast an eye upon the present lamentable condition of the four states thus bent upon each other's destruction. Guatemala was ruled by the aristocrats with a rod of iron. Her financial affairs were completely disorganized. In Salvador Malespin had no other rule of conduct than his own will and Bishop Viteri's evil counsels. He believed himself surrounded by enemies, and indeed he was.^[X-29] Honduras was in a disturbed state, and the victim of Ferrera's despotism. Nicaragua was in anything but a satisfactory situation. The men who with their superior talents, statesmanship, and influence might have carried the ship of state safely through the coming storm, Francisco Castellon and Máximo Jerez, were in Europe working to undo the evils wrought against Central America by Pavon and Chatfield. The director of the state, Manuel Perez,^[X-30] lacked the prestige that the occasion required. Casto Fonseca, the commander of the forces, had been given the rank of 'gran mariscal.'^[X-31]

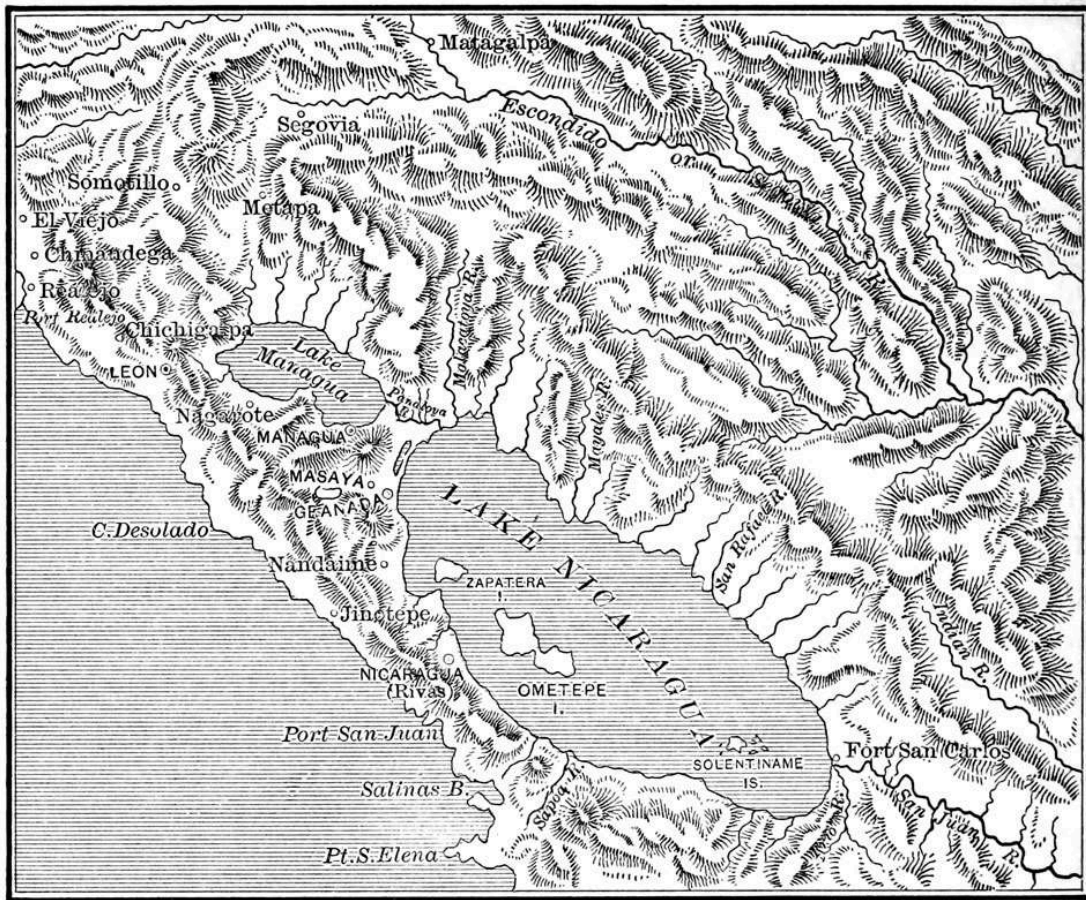
The pacto de Chinandega had ceased to exist. Owing to hostile acts of Malespin, Chamorro had to seek safety in flight. Ferrera treated Chamorro with contumely, and shamefully abused him in a report to the chambers of Honduras, in January 1846.^[X-32] Malespin and his army against Nicaragua entered Honduras, and at Nacaome made an address to the president and army of Honduras.^[X-33] The two allied presidents had a conference at Sauce on the 7th of November, and agreed that Malespin should be recognized as the general-in-chief of their forces. At Choluteca proposals for peace came from Leon; and on the 21st of the same month the treaty of Zatoca^[X-34] was concluded, which was disgraceful to the Nicaraguan negotiators.^[X-35] A secret clause was also agreed to, binding Nicaragua, among other things, to

retire her troops from Chinandega to Chichigalpa. But the authorities and people of Leon preferred death with honor to submission to such degrading demands. The treaty and secret clause were indignantly rejected. Perez, the director, surrendered the executive office to Senator Emiliano Madrid.

ATTACK ON LEON.

In the night of November 21st the allied forces encamped in the barranca de San Antonio.^[X-36] On the 26th, at 8 in the evening, they were in front of Leon, and threw bombs into the city. The next morning at 3 o'clock Malespin, being drunk, ordered an assault, which resulted disastrously for the invaders; for at sunrise he found his camp strewn with corpses.^[X-37] The attack was, however, continued that day till 4 o'clock in the afternoon, when the allies found themselves short of ammunition, and with many of their chief officers killed or wounded. Discord now broke out among them, and the Hondurans wanted to abandon the campaign; but J. Trinidad Muñoz, acting for Malespin, quieted them, and the struggle went on. That night Muñoz erected intrenchments, and at break of day on the 28th the allies were in condition to act vigorously.^[X-38]

Commissioners came out to the allied headquarters, and on the 1st of December a treaty was negotiated,^[X-39] to which no ratification was given in the city, and the war continued. Meanwhile there was much agitation in Salvador, with occasional revolutionary attempts, which becoming known at Leon, emboldened the authorities and citizens to keep up the fight, notwithstanding the other departments had turned against them.^[X-40]



SOUTH-WESTERN NICARAGUA.

José Francisco Montenegro and Juan Ruiz were the commissioners of Rivas and Granada, near Malespin. Their mission brought about the creation of a new government, which had no recognition in Leon. Senator Silvestre Selva lent himself to be made by Malespin and his allies director supremo of Nicaragua, under the stipulation of ratifying the convention of December 1st, adding the name of Pio Castellon to the list of the proscribed. [\[X-41\]](#)

SIEGE OF LEON.

Several partial actions took place in other parts of the department of Leon, which turned out favorably for the invaders. [\[X-42\]](#) But Malespin was furious at his failure thus far to capture

Leon. The firing of his guns was incessant. He made a final effort, throwing himself at the head of a force upon the works of Sutiaba, which were in charge of Gerardo Barrios; and after some hours' hard fighting was repulsed, leaving the field covered with his killed and wounded. But there was no unity of action in the city at this time. Some officers believed that Casto Fonseca, though brave, was not competent to make a proper defence; and one of them, named José M. Valle, alias El Chelon, suggested that he should turn over the command to Cabañas. Fonseca looked upon the suggestion as an insult, and in consequence Valle retired, and Cabañas became an object of suspicion to Fonseca. The siege with its horrors continued. The fatal spirit of localism that maintained discord between the several towns, specially between Granada and Leon, was now as ever, and till the transfer of the capital from Leon to Managua, a great misfortune for the whole country. The besiegers made the most of it. [\[X-43\]](#)

A vessel arrived at this time at Realejo with arms for the besieged, of which Malespin got information from the Englishman Manning, and through Selva's agent he obtained possession of 1,000 muskets, 200 rifles, 200 barrels of powder, 200 quintals of lead, and 12,000 flints. With this supply the operations against Leon were pushed with still greater vigor, and the city succumbed to an assault by Guardiola on the 24th of January, 1845. Malespin now gave full sway to his bloody instincts, by shooting a number of prominent citizens and surrendering the town to the soldiery for plunder. [\[X-44\]](#) The outrages committed defy description. [\[X-45\]](#)

INDEPENDENCE
OF SALVADOR.

While Malespin was engaged in the Nicaragua campaign, the state of Salvador was preparing to throw off the yoke, and his brother Calixto was issuing arbitrary orders without the knowledge or assent of Vice-president Guzman. At last, at midnight between the 30th and 31st of December, 1844, the garrison at San Salvador was surprised by a party of armed men from the Calvario, and captured, together with the arms in the barracks. [\[X-46\]](#) After that the revolt went on

gaining large proportions; but the rebels were defeated in the plain of Jucuapa, Cojutepeque, on the 4th of January, 1845.

The liberal chiefs Cabañas and Barrios, who escaped from Nicaragua, reached La Union. Barrios, [\[X-47\]](#) with the view of rousing the Salvadorans, spread the report that Malespin had succumbed at Leon. Cabañas, a truthful man, disliked the scheme, but finally allowed his companion to pursue his plan without contradiction. They both entered San Miguel on the 28th of January, 1845, and loudly congratulated his friends and acquaintances on Malespin's defeat. The whole department was soon in commotion, and letters poured upon Guzman to sound the cry for liberty. Calixto Malespin continued his arbitrary acts, and Guzman concluded to oust him from his command, without bloodshed if possible. In this he was successful on the 2d of February; [\[X-48\]](#) the barracks were soon surrendered to him, the troops following his lead. The capital seconded the movement, and was soon followed by the other departments. [\[X-49\]](#) The government sent a circular to the other states announcing the change effected, and it was recognized by all but Honduras. [\[X-50\]](#)

The chambers of Salvador assembled on the 15th, before which Guzman made an energetic speech, and Malespin was not only dethroned, but his election to the presidency was declared null. [\[X-51\]](#) However, there was much to do yet to uproot him from Central American politics, as he had the support of Honduras. In an encounter at Quelepa Cabañas was defeated, which gave the reactionists courage to approach San Vicente; but public opinion was now so clearly pronounced against Malespin that Bishop Viteri turned against him, and began his efforts to win over to the clerico-oligarchic party the new president, Joaquin Eufracio Guzman. [\[X-52\]](#) He at once issued a decree of excommunication against Ex-president Malespin. [\[X-53\]](#) But the government of Honduras being bent on supporting Malespin at all hazards, Guardiola landed at La Union with an armed force, and occupied San Miguel; notwithstanding which act Guzman did not declare

war against Honduras. Attributing it to ignorance of the true state of affairs in Salvador, he sent a second note, which, like the first, remained unanswered. Malespin continued—with the assent of Honduras, and without that of Nicaragua, which had assumed neutrality in the contest—calling himself general-in-chief of the armies of Salvador, Honduras, and Nicaragua, and declared Guzman, the Salvadoran chambers, and the inhabitants of upwards of 100 towns which had set him aside, guilty of treason.

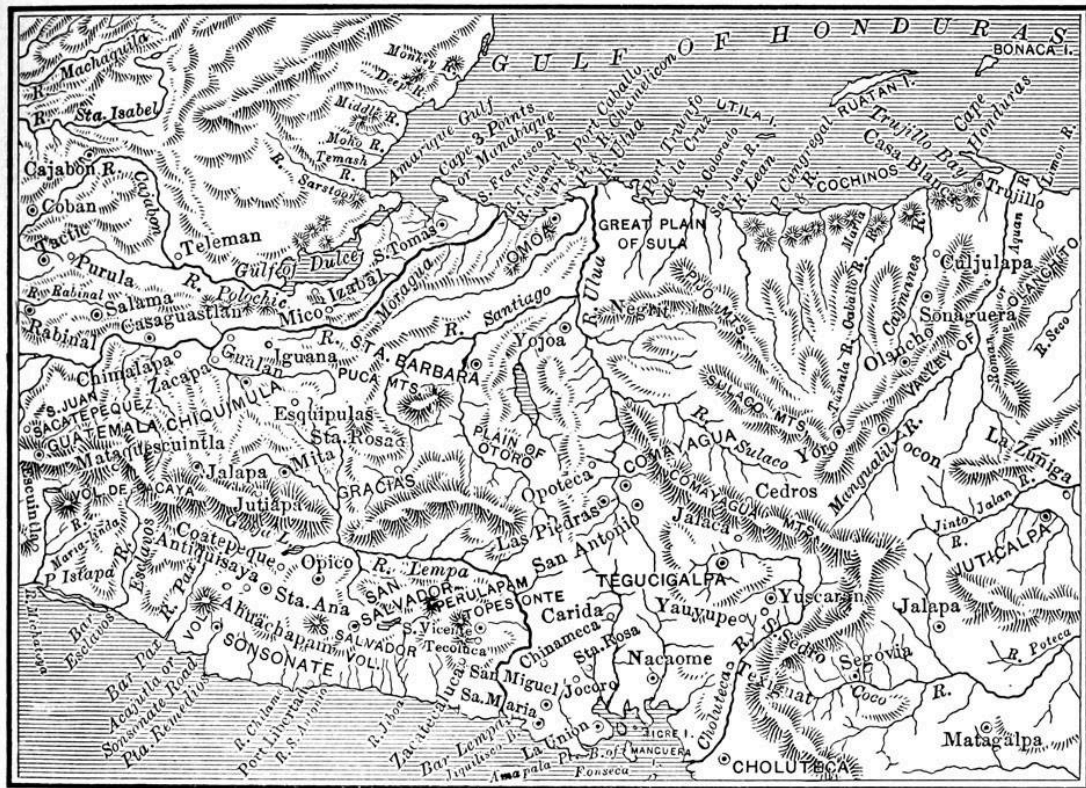
Guzman was now menaced from several quarters; namely, from Malespin's partisans in San Salvador, the military at Comayagua, J. Trinidad Muñoz, who wanted to destroy the liberals that had escaped from Leon, and lastly, Rafael Carrera, who, though at times inclined to wheedle the liberals, generally had his claws ready to tear them to pieces. Guzman found the panther more untractable than the other wild beasts. It was therefore necessary to place in Guatemala experienced tamers; but he was unsuccessful in this. His commissioners, though they managed by fawning to approach Carrera, met with poor success in their mission. [\[X-54\]](#)

TREATY OF PEACE.

Guzman marched against Belloso at San Vicente and defeated him. He next went to San Miguel, which he entered amidst the plaudits of the people. [\[X-55\]](#) Malespin entered with him into a convention at Jocoro, binding himself to surrender all national property of Salvador and to leave the country. But the authorities of Honduras disapproved the arrangement, and it fell to the ground; [\[X-56\]](#) the war continued, till on the 18th of April a treaty of peace and friendship was concluded at Chinameca, to which the minister of Salvador, Dueñas, added another clause, requiring that both Salvador and Honduras should disband their troops immediately after the ratification of the treaty. [\[X-57\]](#) Honduras failed to ratify it, and proposed that new conferences should be held at Gualcinse, and at the same time despatched 900 men upon that place under Malespin. Armed parties from Honduras invaded Salvador; and, indeed, Ferrera was using all possible means to exasperate the latter state into

committing acts of hostility against the former, so that Carrera might have an opportunity to take a hand in the game.

The chambers of Salvador assembled at this time, and Minister Dueñas reported a treaty of peace, amity, and alliance with Guatemala.^[X-58] He seemed to expect aid from that side of the river Paz.^[X-59] Nicaragua had extended a friendly reception to two Salvador commissioners.^[X-60] The chambers gave Guzman ample powers for the defence of the state. This did not include authority to invade any other state, unless as a retaliatory measure. A resort to this was finally resolved upon, and a Salvadoran army under Cabañas marched the 24th of May upon Comayagua, meeting with defeat there on the 2d of June, and again at Sensenti on the 10th of the same month.^[X-61] The Hondureños inhumanly put to death all the wounded Salvadoreños left at Comayagua and Santa Rosa. Ferrera, now flushed with victory, thought that he could dictate terms to Salvador.^[X-62] It was a mistake on his part, for the people of Salvador rose en masse to repair the disasters of Comayagua and Sensenti.



SALVADOR AND HONDURAS.

GUARDIOLA'S VANDALISM.

Guardiola committed many acts of vandalism in La Union, in consequence of which Minister Dueñas, on the 25th of July, addressed a circular to the agents of foreign nations protesting against the seizure of foreign goods in the government's warehouse at that port. Cabañas, after the disasters before related, arrived at San Miguel with scarcely fifty men, and endeavored to collect his scattered forces; but his efforts were unavailing, and Guardiola marched into the city—which had been abandoned by nearly all the inhabitants—and gave it up to be plundered by his soldiers. [\[X-63\]](#)

All that part of Salvador on the Lempa and the district of Chalatenango were in the hands of the enemy, who acted as the master of a conquered country. One of the commanders was the notorious Manuel Quijano. The

Salvadoreños attacked him and were defeated. The Hondurans now felt certain that they could capture San Salvador. But on the 15th of August Guardiola with 900 men attacked the Salvadoreños at the hacienda del Obrajuelo and was routed, losing two thirds of his force and most of his war material. [\[X-64\]](#) He evacuated San Miguel at midnight. The authorities of Honduras soon after published a suspension of hostilities in order to negotiate a peace. [\[X-65\]](#) An armistice was afterward signed at Sumpul. [\[X-66\]](#) Muñoz of Nicaragua, for motives of his own, exerted himself to bring about peace between Honduras and Salvador, to which end he despatched Sebastian Escobar as commissioner to the two belligerents. Sensenti was finally fixed upon as the place for holding the conferences, and a treaty of peace, amity, and alliance was concluded on the 27th of November, 1845, under which Malespin and Espinosa were forbidden to set foot in Salvador without leave of her government. [\[X-67\]](#)

GUATEMALAN
INDEPENDENCE.

The government of Guatemala, with a view of not too openly going counter to public opinion in the states desiring to see a national government established, inserted in the treaty concluded with Salvador on the 4th of April, 1845, a clause apparently intended to promote that end. [\[X-68\]](#) And yet it was at the same time considering the expediency of declaring the entire independence of Guatemala, and gathering material which was made public in a manifesto in March 1847. Indeed, she had no desire to carry out the stipulations, though she named Joaquin Duran and Doctor Mariano Padilla her commissioners. [\[X-69\]](#) Pretexts were not wanting, and new commissioners appointed, namely, Marure and Rodriguez, both of whom favored Guatemala's absolute independence. The result was the abandonment of the plan of reorganization as entirely impracticable. [\[X-70\]](#) The declaration of independence was made in the decree of March 21, 1847. [\[X-71\]](#) Carrera, the president, in a manifesto, set forth the causes that had prompted such a measure, which he called one of regeneration, and asked the people to greet

it with the same enthusiasm that was shown in 1821, when the cry for separation from Spain was raised. [\[X-72\]](#)

The secessionists pronounced it an able effort; but it caused a disagreeable impression in the states, and in none more so than in Salvador. It wounded public sentiment. Carrera had no legal right to take such a step. The constituent assembly had placed him in charge of the executive, but had not made him a legislator. For all that, the separation from the rest of Central America became an accomplished fact, and Carrera was declared a hero, the founder of the republic, and coin was struck with his bust on it. [\[X-73\]](#) This act was ratified on the 14th of September, 1848, by the constituent assembly of Guatemala, when Carrera was no longer in power.

Lindo was ruling in Honduras and Guerrero in Nicaragua, but these two states were in accord with Salvador, from fear of British pretensions, on the necessity of a Central American union. They constituted, early in 1848, the diet of Nacaome, which urgently invited Guatemala and Costa Rica to join it; but the former peremptorily declined, alleging that the decree of March 21st precluded her taking any step backward. Costa Rica sent deputies to Nacaome. [\[X-74\]](#) The celebrated Ecuatorian general, Juan José Flores, arrived in Costa Rica in July 1848, and was received with much consideration, which flattered his vanity. He wanted the aid of Costa Rica for his own plans, and got himself into the good graces of President Castro. The dissolution of the Colombian republic had enabled him to become the ruler of Ecuador; and being of the same way of thinking as Pavon and his fellow-secessionists of Guatemala, he counselled a complete separation of the states of Central America. Several influential men of Costa Rica favored the policy of a wholly independent government for their state. [\[X-75\]](#)

REPUBLIC OF
COSTA RICA.

Congress, on the 30th of August, 1848, consummated the work of final separation, with a decree declaring that the title 'Estado de Costa Rica' was not in consonance with the 22d article of the constitution, which

established the principle of Costa Rica's sovereignty, freedom, and independence; that with this understanding, and as a free, sovereign, and independent nation, other powers had treated with her on a footing of equality. It was therefore resolved, carrying out the wishes of the municipal districts, that the term 'república' be substituted for that of 'estado.'^[X-76] President Castro sanctioned its promulgation on the 31st.

Notwithstanding so many difficulties, the friends of union never resigned the hope of accomplishing their purpose. In November 1849 commissioners of Honduras, Salvador, and Nicaragua assembled at Leon, and on the 8th agreed upon a basis of union of the three states, the terms of which were subsequently promulgated;^[X-77] and it was left optional with Guatemala and Costa Rica to join it or not. The remnants of the aristocratic element, with the support of British officials,^[X-78] opposed the union, and in order to defeat it, promoted revolutions in Nicaragua and Honduras. The compact went into effect, however, on the 9th of January, 1851, when the national representatives assembled in Chinandega, José F. Barrundia, representative from Salvador, being chosen their president.^[X-79]

The national constituent congress was installed at Tegucigalpa on the 9th of October, 1852, and began its labors on the following day.^[X-80]

A SHORT-LIVED
FEDERATION.

Trinidad Cabañas was on the 13th elected jefe supremo of the federation, but he declined the honor, being desirous of disarming opposition to the new organization on the part of his political opponents. His resignation was accepted on the 26th, and Francisco Castellon chosen on the 28th.^[X-81] An organic law was enacted on the 13th of October, and communicated to the government of the federation.^[X-82] The supreme executive authority, on the 20th of November, 1852, was held by Pedro Molina, vice-jefe, four senators, and two acting ministers of state. The federation thus organized was not destined to be long lived. Upon the allegation that the congress had

created a dictatorship, and referred the organic statute to the people instead of the legislatures of the states, the assemblies of Salvador and Nicaragua set aside the federation, and declared themselves independent states. [\[X-83\]](#) Nicaragua may have receded from that act; but whether it was so or not, the union between Honduras and Nicaragua was dissolved by the war which broke out in February 1863 between Salvador and Guatemala, Honduras joining one of those states, and Nicaragua the other. Further efforts have been made from time to time—1871-76, and even as late as 1885—to accomplish the union of the states under one government; but obstacles have been in the way, the chief doubtlessly being the personal ambition or jealousy of rulers, and the project still remains as a possible event to come about in a few years, as it is believed to be much desired by the majority of Central Americans. [\[X-84\]](#)

CHAPTER XI.

REPUBLIC OF COSTA RICA.

1841-1856.

RULE OF CARRILLO CONTINUED—PLOTS FOR ITS OVERTHROW—INVASION OF MORAZAN—CHANGE OF GOVERNMENT—MORAZAN'S POLICY—OPPOSITION—REVOLTS—MORAZAN'S DEFEAT AND DEATH—SATISFACTION OF THE OLIGARCHS—MEASURES OF THE VICTORS—NEW CONSTITUTION—SUBSEQUENT AMENDMENTS—SEDITION—CASTRO'S ADMINISTRATION—COSTA RICA DECLARED A REPUBLIC—RECOGNITION BY SPAIN—RELATIONS WITH OTHER POWERS—BOUNDARY QUESTIONS WITH NICARAGUA AND COLOMBIA—PRESIDENT JUAN RAFAEL MORA—HIS REPRESSIVE MEASURES.

Carrillo, believing himself clothed with unlimited authority, on the 8th of March, 1841, issued what he called a 'ley de garantias,' giving himself a life tenure of office and inviolability.^[XI-1] The supreme government was made to consist of the executive, and two chambers, named respectively 'consultiva' and 'judicial,' whose members were to be chosen by electoral colleges.^[XI-2] Intending to celebrate with éclat the inauguration of the cámara consultiva, Carrillo recalled from exile Juan Mora and four others.^[XI-3] The consultiva, following Carrillo's wishes, elected Manuel Antonio Bonilla segundo jefe.^[XI-4] The enemies of the present ruler were numerous, and increasing. They called Morazan to their aid, through General Bermudez of Peru.

MORAZAN AND
SARAVIA.

Morazan sailed from Chiriquí in Panamá, and after visiting several places in Central America landed with about 500 men at Caldera^[XI-5] on the 7th of April, 1842. With him were generals Saget, Cabañas, Saravia, and Rascon.^[XI-6]

Carrillo heard of the invasion in the evening of the 8th, and at once assumed personal command of the troops to operate against the enemy, turning over the executive office to Bonilla, the vice-jefe, [\[XI-7\]](#) and providing other measures for an active campaign. Nearly 1,000 men under Colonel Vicente Villaseñor composed the expedition, among whose captains and lieutenants were some of the wealthiest persons in the country. [\[XI-8\]](#) Morazan had issued a manifesto assuring the Costa Ricans that his policy would be one of order, union, and progress, to accomplish which Braulio Carrillo must be ousted from power. As the government forces approached the invaders, Villaseñor made known its contents to his command, and asked whether they were for fighting or for a peaceable arrangement. Both officers and men almost unanimously [\[XI-9\]](#) favored the latter, and a convention was concluded at Jocote on the 11th of April, by virtue of which the two forces fraternized, becoming one army. It was further agreed that a constituent assembly should be called to reorganize the state, the government meanwhile remaining in charge of Morazan, or in his absence in that of Vicente Villaseñor. [\[XI-10\]](#) This convention was accepted on the next day at San José by Carrillo, with a few additions which did in no wise vitiate it, and Morazan afterward ratified the whole at Heredia. [\[XI-11\]](#) He was enthusiastically welcomed at Alajuela and Heredia, and with an augmented force marched on San José, which he entered without hindrance. As jefe supremo provisorio he made José Miguel Saravia his sole minister of state, and issued a proclamation embodying complete forgetfulness of all past political offences, and tendering an asylum in Costa Rica to all persons, of whatever party, suffering persecution in the other states. [\[XI-12\]](#) He next appointed a committee to revise the laws enacted by Carrillo, with the view of repealing such as were deemed unwise or arbitrary, and a number of them were accordingly annulled, the preposterous one of March 8, 1841, not being, of course, excepted. The state constitution of January 21, 1825, was revived, and the people were called upon to elect a constituent assembly, which was to meet at San José on the 10th of July. [\[XI-13\]](#) This

body, composed of thirteen members, one of whom was the distinguished ex-jefe Juan Mora, was installed on the appointed day under the presidency of José F. Peralta, deputy for Cartago, and on the 15th of July unanimously elected Morazan provisional jefe of the state. [\[XI-14\]](#)

The great political change thus effected in Costa Rica greatly alarmed the reactionists; and specially those of Guatemala, who lost no time in adopting measures to destroy Morazan. This chief, on the other hand, took steps toward the reorganization of Central America, equipping troops therefor. Some of his measures were deemed too severe, giving rise to rebellion in some localities. There were intimate relations between Carrera of Guatemala and General Antonio Pinto of Costa Rica, as well as between the serviles of both states, who, together with the clergy, worked to promote a revolt. An attempt in Guanacaste by Colonel Manuel A. Molina failed, and caused his arrest, trial, and execution at Puntarenas. [\[XI-15\]](#) Colonel Molina was a son of Pedro Molina, the noted champion of free principles, and however legal his execution may have been, it was certainly impolitic. His sentence might have been commuted, thus averting the disruption which at once broke out in the liberal ranks. [\[XI-16\]](#)

WAR AND
REBELLION.

Saget was at Puntarenas attending to the embarkation of 45 officers, 200 men, 2,000 or 3,000 muskets, and about 1,300 pounds of powder and lead. At Alajuela were 300 recruits of that department and 100 of Cartago, all commanded by Florentin Alfaro. This officer was won over by Morazan's enemies, and revolting on the 11th of September marched upon San José, where the people followed his example. The revolutionists then called General Pinto to the command. [\[XI-17\]](#) Morazan's body-guard of forty Salvadorans thrice repulsed the assailants, but finally had to retreat to the chief barracks. [\[XI-18\]](#) The jefe, together with Cordero, Cabañas, and Saravia, and 80 men sustained another terrible onslaught on the 12th. The besiegers were constantly on the increase till they numbered 5,000, and the besieged

on the decrease by death and desertion.^[XI-19] Chaplain José Antonio Castro came to propose a capitulation based on Morazan's abandonment of the country, and a pledge of security to his supporters. Believing that his loyalty and military honor were at stake, Morazan declined the propositions.^[XI-20] Pinto's secretary, Vicente Herrera, was very virulent, demanding Morazan's blood; and the chaplain reported that the jefe wanted war, refusing to recognize any authority on the part of his adversaries to give pledges, which enraged their commander and his secretary all the more.^[XI-21] The fight continued, and blood flowed freely.^[XI-22] Mayorga, comandante at Cartago, rebelled, and Morazan's situation had become a desperate one on the 13th. No reinforcements could reach him, and provisions were exhausted. Juan Mora and Chaplain Castro endeavored to bring about an arrangement, but the terms offered, being oppressive, were rejected. The firing was resumed between one and two o'clock in the morning of the 14th. Morazan and his handful of supporters, worn out by fatigue, hunger, and wounds, made their way through the besiegers and reached Cartago,^[XI-23] Cabañas covering the retreat with 30 men. Mayorga's wife, who disapproved her husband's disloyalty, sent them word of their danger. But it came too late. Morazan and the rest were surrounded and captured. Young Francisco Morazan and Saravia, arriving a little later, were also secured. Deception toward Cabañas was used,^[XI-24] and treachery toward Morazan, who was promised his life.

BLOODY WORK.

Early the next morning, an officer named Darío Orozco came to inform Morazan and his companions that they were to be put in irons, by demand of the troops. Saravia rose and seized a pistol to blow his brains out; but Morazan prevented the suicide, though only for a few moments. He then walked a while smoking, and finally submitted to have the shackles put on his feet, and just as it was being done he had a horrible convulsion which ended in death. It is said that he had swallowed poison. The shackles were riveted on a corpse!^[XI-25] Villaseñor stabbed himself with a dagger, and fell to the ground covered with blood, unfortunately for him, not dead. Morazan was shackled. The

prisoners were at once taken to San José. Morazan, though wounded, rode on horseback, and Villaseñor was carried in a hammock; but on arriving at the Cuesta de las Moras, Captain Benavides, a Peruvian who commanded their guard, made them walk to the court-house. Morazan on the way conversed with Pardo and Vijil, and remembering that it was the 15th of September, remarked to Vijil, "How solemnly we are keeping the anniversary of independence!" The other prisoners were confined in the building called Los Almacenes, and Morazan was left with Villaseñor as his sole companion.

Moderate men strongly urged a strict observance of law, aside from prejudice or passion;^[XI-26] but their voice was drowned in the uproar of the enemies of Morazan,^[XI-27] clamoring for his death without form of trial, regardless of the requirements of the constitution of 1825, and of the fact that he was the legitimate chief of the state.^[XI-28] But nothing availed to save his life. Pinto, like his prototype Pontius Pilate, after a slight hesitation, signed the order of execution of both Morazan and Villaseñor, to be carried out within three hours. Morazan then summoned his son Francisco, and dictated to him his last will and testament; some of its clauses are epitomized below.^[XI-29] After placing in charge of Montealegre a handkerchief and a few other objects for his wife, so soon to become a widow, he walked with dignity and a firm step to the place of execution. Villaseñor, who was nearly dead from his wound, was carried in a chair. On arriving at the fatal spot Morazan embraced Villaseñor, saying, "My dear friend, posterity will do us justice." Barrundia thus describes the last moments of the ex-president: He gave the order to prepare arms, saw that a good aim was taken, then gave the command to fire, and fell to the ground. Still raising his bleeding head, he cried out: "I am yet alive;" when a second volley despatched him. Thus on the 15th of September, the anniversary of Central American independence, just as the sun was sinking in the west, the soul of the noble patriot returned to the region whence it came.^[XI-30]

MORAZAN'S
GREATNESS
RECOGNIZED.

Morazan's death caused much satisfaction to the ruling powers of Guatemala and Honduras.^[XI-31] In Guatemala it was an occasion for rejoicing, with high mass and other religious ceremonies.^[XI-32] The time came, however, when Morazan's greatness was recognized in Guatemala and Honduras, when the servile element no longer had a voice in public affairs.^[XI-33] Relations had been suspended by the Guatemalan government with that of Costa Rica, while the latter recognized Morazan as its chief.^[XI-34] Treaties of union and mutual defence had been made by the states of Guatemala, Salvador, Nicaragua, and Honduras against Costa Rica on the 7th and 16th of October.^[XI-35] After Morazan's downfall an attempt was made to prevail on the new government to subscribe to these treaties, but it failed.^[XI-36]

CONSTITUENT
ASSEMBLY.

On the 23d of September the civil and other authorities at San José passed acts setting aside the supreme powers that had ruled the state since its occupation by Morazan, and proclaiming J. M. Alfaro as jefe provisorio, with Antonio Pinto as comandante general.^[XI-37] These acts were subsequently confirmed by the people of the state.^[XI-38] Among Alfaro's first measures were to forbid the return of political exiles, including Carrillo; to check attempts at rebellion; to invite Morazan's soldiers to return to their homes;^[XI-39] to restore confiscated property; to establish an official journal; and to raise a forced loan.^[XI-40] Disregarding the remonstrances of Guatemala, the government, of which José María Castro was now minister-general, by its decree of the 5th of April, 1843, called upon the people to send deputies to a constituent assembly. This body was installed on the 1st of June, and soon after adopted the groundwork upon which was to be erected the fundamental law of the state.^[XI-41] The assembly likewise enacted a law declaratory of the rights of man; and another on freedom of the press under certain limitations. Among the other

acts worthy of mention passed by this body were the following: The jefe, Alfaro, was to hold his office till the promulgation of the constitution and the election of his successor under it. All his acts were approved, and a vote of thanks was awarded him. A similar vote was given to General Pinto. Francisco M. Oreamuno was chosen segundo jefe, and a short time afterward he was called to fill the executive chair, upon leave of absence being given to Alfaro.^[XI-42] The assembly adjourned on the 22d of September, to meet again on the 13th of November. The constitutional bases, nicknamed by the conservatives "de los tribunos," did not meet the approval of the government. The assembly then adopted a constitution, which made provision for two chambers, the executive authority being exercised by a jefe, as formerly, and all the functionaries constituting the supreme powers being chosen by the whole people. The promulgation of the new fundamental law was made on the 11th of April, 1844,^[XI-43] and all officers were required to take an oath to support it. Pinto, the comandante general, refused to do so without first consulting Alfaro and others. He tried to make an armed opposition, but did not succeed, and was dismissed, Colonel José María Quiroz superseding him.^[XI-44]

The publication of the new fundamental law was celebrated with feasts for three days. But the fact of Pinto's dismissal from the command of the forces caused serious divisions in families,^[XI-45] which has been felt ever since in the political events of the country. The two chambers decreed by the constituent assembly complicated the political machinery, and the enemies of the new constitution exaggerated its defects. The necessity of a senate in Costa Rica was not clear, for the composition of the house of deputies was such that it required impulsion rather than checks. Therefore, what would be the mission of the senate?^[XI-46]

MOYA, GALLEGOS,
AND ALFARO.

Alfaro reassumed the duties of the executive office on the 28th of June, on which date Castro resigned his position of secretary-general,^[XI-47] to take a seat in the

chamber of deputies, which was installed on the 3d of July. The first duty of this body was to count the votes for senators; but the returns were coming in very slowly, so that the senate did not assemble till the 12th of November.^[XI-48] Both houses then on the 15th declared Francisco María Oreamuno duly elected jefe of the state. He took possession of the office with reluctance.^[XI-49] The spirit of localism which caused so much trouble in 1835 was still rampant, and Oreamuno found himself confronted by it. Whatever measure was proposed in favor of any one locality was certain to displease the others. Rather than contend with such difficulties, he tendered, on the 26th of November, his resignation, which was not accepted; but he was resolved to retire, and one day, being more than usually disgusted, he abandoned his post and went off to his home in Cartago.^[XI-50] His successor was Rafael Moya, then president of the senate,^[XI-51] who exerted himself to do away with localism, and to promote harmony between the several sections; but his senatorial term expiring on the 30th of April, 1845, he could no longer continue holding the executive authority, and the chamber of deputies called to assume its duties Senator José Rafael Gallegos,^[XI-52] who was made chief of the state at the expiration of Juan Moran's second term. He took the chair on the 1st of May. An ominous cloud could already be descried away in the horizon. The new constitution had thus early become an object of abuse, even by the men who had enthusiastically proclaimed it, and acrimoniously censured Pinto for refusing it recognition.^[XI-53]

During the elections a bloodless revolt of four regiments simultaneously occurred, on the 7th of June, 1846, at San José, Cartago, Heredia, and Alajuela, to overthrow the organic law. The movement was seconded at once by the people,^[XI-54] and José María Alfaro was summoned to assume the reins of government, Gallegos returning to the presidency of the senate. Every one recognized Gallegos as an upright man, against whom no complaint was made.^[XI-55] Alfaro accepted the rôle, went

into office on the 9th, and immediately proceeded to carry out the purposes of the revolution. Elections took place under the existing constitution, Alfaro being chosen jefe, and José M. Castro vice-jefe and secretary-general. The latter being the intellectual superior of Alfaro, every branch of the administration finally fell under his control.

The constituent assembly met on the 15th of September, and completed, on the 21st of January, 1847, the new constitution, which was promulgated at once, to have effect from and after the 7th of March. [\[XI-56\]](#) Experience having shown that several clauses of this instrument were practically inexpedient, and that others were not clearly worded, under article 187 of the same congress subsequently adopted a number of amendments, which had been asked for by a majority of the municipalities. [\[XI-57\]](#) The elections for supreme authorities, decreed on the 17th of February, took place; the constitutional congress assembled on the 1st of May, and after counting the votes for president and vice-president on the 5th, declared Castro duly elected for the first position and Alfaro for the second. They were inducted into office on the 8th. [\[XI-58\]](#)

Castro's administration had to overcome serious obstacles which might bring on political convulsions in the near future. [\[XI-59\]](#) Indeed, several disturbances broke out at Alajuela, headed by Alfaro and his friends, which were, however, easily quelled by President Castro, and once by Vice-president Mora, when the president was absent. [\[XI-60\]](#) The last of these troubles caused some bloodshed. [\[XI-61\]](#) Albeit the revolts were put down, the state continued much agitated. Inflammatory writings against the president were secretly circulated, which the government gave importance to, and the official press tried to counteract their influence. Castro concluded to resign his office, but congress by a unanimous vote refused to accept the resignation. [\[XI-62\]](#) Costa Rica having by the act of her congress, on the 30th of August, 1848, declared herself a sovereign and independent nation, under

the title of República de Costa Rica, that body, on the 29th of the following September, adopted a flag, coat of arms, and seal. [\[XI-63\]](#)

INDEPENDENCE
DECLARED.



ARMS OF COSTA RICA.

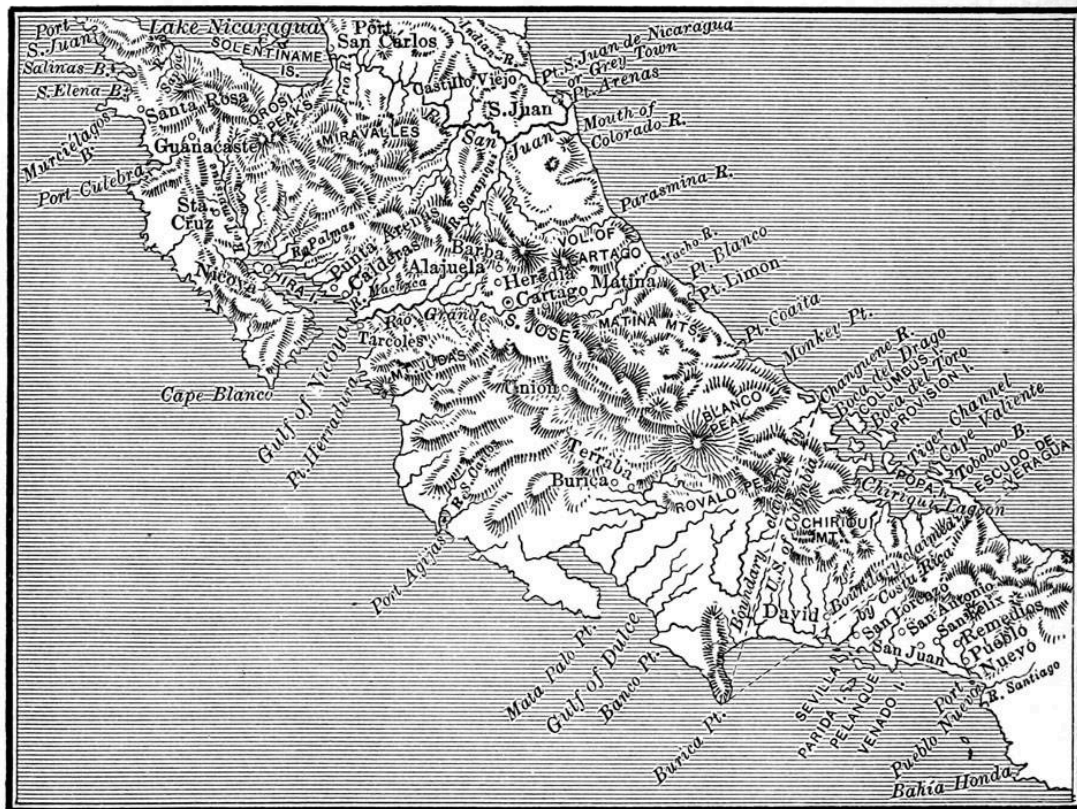
Costa Rica was the first state of Central America to be recognized as an independent nation by Spain, which was done in the treaty of May 10, 1850, which was ratified by Costa Rica March 6, 1851. The republic made a concordat with the Roman pontiff, for the understanding of ecclesiastical affairs, on the 7th of October, 1852. She has endeavored to maintain cordial relations with the powers of Europe and America. To that end she concluded treaties with the United States of America, the Hanseatic Towns, France, [\[XI-64\]](#) Great Britain, Belgium, Holland, Italy, Germany, and several

of the Spanish-American republics. With Guatemala a treaty was entered into in February 1850, and the government awaited the result of the efforts of the other three states to constitute themselves under one nationality; and when they failed, and the states assumed the rôle of independent republics, it made similar diplomatic arrangements with them as foreign nations. [\[XI-65\]](#)

THE BOUNDARY
QUESTION.

The boundaries of Costa Rica with Nicaragua on one side, and with Panamá, one of the states of Colombia, on the other, have been a source of constant anxiety, repeatedly occupying the minds of the diplomats of the three countries. Fortunately, the points in dispute have been peaceably discussed by the governments, though the press and politicians have not always touched upon them with the same spirit. The district of Nicoya or Guanacaste, at one time under the government of Nicaragua, became annexed to Costa Rica in 1824. This annexation was accepted by the Costa Rican assembly, and the federal congress allowed it, in a decree of December 9, 1825, as a provisional arrangement, to be in force till an opportunity was had to run the boundary between the two states. This congress took no further action in the premises; and since the dissolution of the Central American union, the district remained attached to Costa Rica. Nicaragua never assented to the segregation, though she made no attempt to recover the territory by force of arms. She has, however, endeavored to sustain her right to it in repeated diplomatic negotiations. [\[XI-66\]](#) The time came when Nicaragua, being invaded by William Walker's filibusters, and the independence of all Central America threatened, the citizens of the five republics at once saw the necessity of having the question amicably settled. [\[XI-67\]](#) The other republics, more particularly Salvador, brought their influence to bear, and a treaty was concluded, duly ratified, exchanged, and published as the law, to govern the boundary between Nicaragua and Costa Rica. [\[XI-68\]](#) Under its second article, both contracting parties ceded a portion of their claims, Costa Rican territory not reaching the lake, nor the Flor River, but merely the centre of Salinas Bay. On the other hand, Nicaragua

no longer claimed territory to the Salto or Alvarado River, but limited it to the aforesaid bay, and to the line prescribed in the treaty.^[XI-69] The acts of several congresses of Nicaragua in after years indicated that the treaty was recognized beyond cavil or dispute. Not a word was officially uttered by Nicaragua in seven years against its validity. After such a period had elapsed, Tomás Ayón, her minister of foreign affairs, in a report to the national congress, disputed its validity, and the boundary question was reopened,^[XI-70] giving rise to grave diplomatic discussions, and no little ill feeling between the citizens of both countries from 1868 to 1883.^[XI-71] At last, early in 1883, a treaty was signed in Granada by plenipotentiaries of both countries to bring the dispute to an end.^[XI-72] President Cárdenas, in laying the treaty before the Nicaraguan congress early in 1885, urged its favorable consideration; but no action was taken.



COSTA RICA.

DIVERS TREATIES.

DISPUTED
TERRITORY.

Under the Gual-Molina treaty, concluded at Bogotá, March 15, 1825, the Provincias Unidas del Centro de América and the Republic of Colombia agreed to respect the boundaries then existing between them, and to enter at an early convenient opportunity into a special convention directed to fix the dividing line.^[XI-73] The antecedents of the subject will be found in a note at foot.^[XI-74] All subsequent royal provisions, down to 1803, tend to confirm the limits of Costa Rica that were fixed for Cherino on the Atlantic side. But on the 20th of November, 1803, a royal order placed the island of San Andrés, and the coast of Mosquito from Cape Gracias á Dios to the River Chagres, under the supervision of the viceroy at Bogotá. Nueva Granada, now República de

Colombia, has maintained that this royal order made a new territorial division between the capitanía general of Guatemala and the vireinato of Nueva Granada; and to the latter belongs all the territory alluded to in the royal order, and that said territory was recognized as hers by the Gual-Molina treaty. On behalf of Costa Rica, it has been alleged that the Spanish crown never made a territorial division with a mere royal order. The division of provinces, vice-royalties, and captain-generalcies was effected under a pragmatic sanction, a royal decree, or a royal cédula. The royal order aforesaid made no division of territory, but merely placed San Andrés and the Mosquito Coast under the care of the viceroy at Bogotá because Spain at that time had military and naval resources at Cartagena. Nevertheless the order had no effect; it became a dead letter, the viceroy never having protected that coast. Such was the impression of the Central American negotiator of the treaty of 1825.^[XI-75] With this same understanding the federal government of Central America made a contract in 1836 to settle an Irish colony in the region of Boca del Toro,^[XI-76] which was not carried out because the New Granadan authorities drove away the settlers, and have ever since held control of the region, disregarding Costa Rica's claims.^[XI-77]

Several diplomatic efforts were fruitlessly made to fix the boundary.^[XI-78] The last one was made at San José on the 25th of December, 1880, in the form of a convention to refer the settlement of the question at issue to the arbitration of a friendly power, namely, the king of the Belgians or the king of Spain, and in the event that neither of them could or would undertake it, then the president of the Argentine confederation.^[XI-79] It is understood that the matter was finally submitted to the king of Spain, and that the resolution was long pending.

PRESIDENT MORA.

Political disturbances continuing in 1849, Castro resigned the presidency on the 16th of November,^[XI-80] before congress,

which had met in extra session October 2d; his resignation was accepted, [\[XI-81\]](#) and the same day Juan Rafael Mora was chosen vice-president, and on the 24th president of the republic, being inducted into office on the 26th of November. [\[XI-82\]](#) One of his first acts was to grant an amnesty for political offences. The bonds of discipline and subordination having become relaxed, Mora had before him a difficult task to restore peace and order. [\[XI-83\]](#) He dealt severely with the authors of revolutionary movements. Castro became a fugitive, and the others were exiled. For his efforts to restore order, congress, on the 25th of June, 1850, granted him the title of benemérito de la patria.

The president's policy was one of repression by all means; but finding himself opposed in the chamber, he resigned the executive office, and his resignation not being accepted, took upon himself to dismiss the congress, calling on the people to choose new representatives. [\[XI-84\]](#)

The continued revolutionary attempts placed the government in a difficult position, and prompted the president to adopt severe measures; hence the orders of exile issued against prominent citizens. [\[XI-85\]](#)

Mora and Oreamuno were on the 3d of May, 1853, elected president and vice-president respectively. [\[XI-86\]](#) Peace was now restored, and the government devoted its attention to the promotion of education, and of the material interests of the country. [\[XI-87\]](#)

CHAPTER XII.

REPUBLIC OF NICARAGUA.

1838-1855.

STATE GOVERNMENT—DIRECTOR BUITRAGO'S CONSERVATISM—BRITISH AGGRESSION—DIRECTOR SANDOVAL'S RULE—INTERNAL TROUBLES—GUERRERO'S ADMINISTRATION—THE MOSQUITO KINGDOM—ITS ORIGIN AND HISTORY—BUBBLES—BRITISH PRETENSIONS—SEIZURE OF SAN JUAN DEL NORTE—DIPLOMATIC COMPLICATIONS—CLAYTON-BULWER TREATY—NICARAGUA RECOVERS HER OWN—RELATIONS WITH FOREIGN POWERS—AN AMERICAN WAR SHIP BOMBARDS SAN JUAN DEL NORTE—PINEDA'S GOVERNMENT—ESTABLISHMENT OF THE REPUBLIC—PARTY DISSENSION—LEGITIMISTS VERSUS DEMOCRATS—CHAMORRO AND CASTELLON—CIVIL WAR—DEATH OF CHAMORRO—ESTRADA SUCCEEDS HIM.

Little, if anything, has been said in this history of the internal affairs of Nicaragua since 1838. Under her first constitution, that of 1826, the chief executive officer of the state was called jefe del estado, and his term of office was for four years. The second organic law, promulgated in 1838, gave that functionary the title of director supremo, limiting his tenure of office to two years. Pablo Buitrago seems to have been the first director called upon to enforce the constitution of 1838.^[XII-1] He was declared by the chambers, on the 4th of March, 1841, to have been constitutionally chosen. His first step was to remove from the office of ministro general Francisco Castellon, who held it ad interim under appointment by Patricio Rivas,^[XII-2] calling to succeed him Simon Orozco, whom he could more easily control.

Buitrago treated a communication from Morazan, sent him from San Miguel, with contumely; and afterward, when the ex-president, as jefe of

BUITRAGO,
OROZCO, PEREZ.

Costa Rica, accredited near him two commissioners, he declined to receive them.^[XII-3] His course won him commendation from the rulers of Guatemala.^[XII-4] His term of office came to an end on the 1st of April, 1843, and he was temporarily succeeded by Juan de Dios Orozco. The official press asserted that the election for director had been made with perfect freedom. But no candidate having received the requisite number of votes, the assembly chose Manuel Perez to fill the position.^[XII-5] The state was at peace,^[XII-6] but was not to enjoy that benefit long. In a previous chapter I have spoken of the desolating war waged within her borders by the tyrants of Salvador and Honduras. She was, moreover, harassed by the intemperate demands for British claimants made by Chatfield, the ally of the aristocrats of Guatemala, who went so far as to dictate to Nicaragua how to recognize and pay these claims.^[XII-7] The assembly then authorized the executive to arrange the matter in the best way possible, and Castellon, the ministro general, proposed to Chatfield to submit the disputed claims to arbitration, naming Bishop Viteri as the Nicaraguan arbitrator. Finally, a legation was despatched to London, Castellon being the minister and Máximo Jerez the secretary.^[XII-8] The British authorities resolved, however, to use coercion in order to force a settlement of the claims, the corvette *Daphne* blockading the port of Realejo in August 1846; and the government, being without funds to meet such demands at once, had to pledge the revenue from the tobacco monopoly during the next four years.

Leon, after its terrible conflict with the forces of Salvador and Honduras, aided by Nicaraguan allies, was in a shattered condition, and most of the families dwelling therein were in mourning, and reduced to indigence. Muñoz, who so efficiently coöperated to that result, had secured the coveted reward, the command in chief of the western department. The seat of government was at San Fernando, and Blas Antonio Saenz assumed the executive duties on the 20th of January, 1845.^[XII-9] Under the sword of Muñoz the elections for director supremo were effected, and José Leon

Sandoval obtained a plurality vote.^[XII-10] He was declared duly elected on the 4th of April. The assembly passed several important measures.^[XII-11]

REVOLUTION
UPON
REVOLUTION.

Peace had not been restored. Disturbances were breaking out in several parts. There were revolutionary movements in Managua, and the government sent thither Ponciano Corral to make an investigation, and quell the sedition. His report brought about the imprisonment of several citizens.^[XII-12] Manifestations in favor of Cabañas at Rivas were put down with an iron hand. On the 24th of June there was a revolt at Leon, which Muñoz quelled, and the government had its authors confined in San Juan del Norte.^[XII-13] The executive had proclaimed neutrality in the contest between the government of Salvador and Malespin, who was sustained by Honduras; and though he concluded with Salvador at San Fernando a treaty of peace, friendship, and alliance, he also entered into a similar one with Honduras.^[XII-14] The latter treaty was intended to be a reality, and it is undeniable that Nicaragua was a faithful ally and coöperator of Honduras down to the treaty of Sensenti. The treaty with Salvador was not made in good faith on the part of Nicaragua.

The town of Chinandega was, in the latter part of July, captured by 200 revolutionists under José M. Valle, alias El Chelon,^[XII-15] who had come with sixty or eighty men on a schooner from La Union, and landed at Cosigüina.^[XII-16] On the 26th Muñoz was attacked in Leon, but defeated his assailants.^[XII-17] The government abandoned San Fernando and went to Managua.^[XII-18] Muñoz, victorious again at Chichigalpa, marched on Chinandega, which he occupied without opposition; but having to return to Leon, the insurgents retook it. He came back with a large force on the 16th of August, and reoccupied the place.^[XII-19] Sandoval had, on the 9th, forbidden the men who accompanied Morazan to Costa Rica from entering Nicaraguan soil. A ministerial crisis occurred at this time, Rocha and César

resigning their portfolios, which were given to Máximo Jerez and Buitrago. [\[XII-20\]](#) Their tenure was necessarily short, and they were superseded in the latter part of the year by Fruto Chamorro and José Guerrero, the latter being almost immediately succeeded by Lino César. This new arrangement gave the director an homogeneous cabinet. The government was now a decidedly conservative one.

The revolution came to an end in the latter part of September 1845, an amnesty being issued excepting only the chief leaders, and persons guilty of common crimes. [\[XII-21\]](#)

SANDOVAL AND
MORALES.

This short truce enabled Sandoval to pay an official visit to the several districts. In Chinandega the inhabitants having abandoned their homes, he issued orders to bring them back. [\[XII-22\]](#) The government was levying heavy taxes. The citizens of Leon, Chinandega, El Viejo, and other places, who were the victims of the self-styled "ejército protector de la paz," were compelled to support the régime which had its being out of the destruction of the first-named town. It is, therefore, not a matter of surprise that the people of many towns went off to the woods. The insurrection broke out again, Valle appearing in Segovia, and reëntering Chinandega on the 26th of November. The amnesty decree was thereupon revoked. [\[XII-23\]](#) The state of Honduras took part in the war, sending an army under Guardiola to the aid of Sandoval. The insurgents were defeated first by Muñoz, and soon after by Guardiola, who occupied Chinandega. [\[XII-24\]](#) At the end of the campaign Muñoz signified a desire to leave the state, and asked for a passport; but the government replied with words of fulsome praise that his services could not be spared. [\[XII-25\]](#) This was precisely what Muñoz had fished for. [\[XII-26\]](#)

Efforts were made by Buitrago and others to prevail on Sandoval to call the chambers of 1846 to sit in Leon, but he objected to the proposition. The assembly met first in San Fernando June 7, 1846, and on the 14th of August

sanctioned every past act of the government.^[XII-27] At a later date it removed to Managua, and adjourned leaving much unfinished business, for which it was summoned to an extra session,^[XII-28] and after doing what was required of it, retired on the 18th of December.

The end of Sandoval's term was approaching, and elections for supremo director took place. The assembly met again on the 12th of March, 1847, and Senator Miguel R. Morales assumed the executive. Minister Salinas in his annual report made a number of suggestions to the chambers; namely, an amendment of the constitution in the direction styled by the conservatives, "moderado y de orden;" good relations with the pope, and cordial friendship with the priests; public instruction based upon the requirements of the council of Trent. The office of supremo director passed, on the 6th of April, into the hands of José Guerrero, who had been chosen for the constitutional term.^[XII-29] Acceding to the repeated petitions of the people of the western department, Guerrero decreed^[XII-30] to make Leon the residence of the government, and the transfer was effected July 20th, the people of that city greeting the director and his officials with joy. The assembly, however, preferred to sit at Managua, and did so on the 3d of September.^[XII-31]

The country stood in need of a new constitution, but this could not be framed at the present time, because the whole attention of the government and people was absorbed by the questions with Great Britain, which were a menace to Nicaraguan territory, and even to the independence of all Central America. These difficulties were connected with the possession of the territory known as the Mosquito Coast, or Mosquitia. The Spanish authorities to the last moment of their rule over Central America acted in a manner indicative of Spain's claim of full sovereignty over that territory, disallowing the pretended right of the Zambo chief who under British protection had been dubbed King of Mosquitia.^[XII-32]

THE MOSQUITO
COAST.

A British agent claimed some years afterward that the relations of the Spanish and Mosquitian authorities had been in 1807, and even before, such as are held between independent powers. [\[XII-33\]](#) The so-called king of Mosquitia claimed sovereignty over an extent of country 340 miles long from north to south, and about 235 miles in breadth. He also claimed the district of Talamanca in Costa Rica, and that of Chiriquí in Panamá. [\[XII-34\]](#) The British authorities maintained a sort of protectorate over these Indians, occasionally sending presents to their chiefs. [\[XII-35\]](#)

Belize to receive some education,^[XII-36] and next to Jamaica, where they were the objects of some attention on the part of Lord Albemarle, the governor-general. George Frederick's education was an indifferent one. In 1815 he was back in Belize to be crowned there at his own request, Chaplain Armstrong performing the ceremony, and his chiefs taking the oath of allegiance in regular form.^[XII-37] He was then proclaimed king of the Mosquito shore and nation, and a British war vessel conveyed him and his chiefs to Gracias á Dios.^[XII-38] It seems that kingly life afforded him little or no satisfaction. Aware of his lack of qualifications, and fully sensible that he could not retrieve himself from vicious habits, especially from the bottle, which soon controlled him, his heart failed him, and his life became embittered.^[XII-39] The British government at first manifested a friendly interest, sending him presents, and Chaplain Armstrong his advice; but the latter was disregarded by the king and his chief minister, who often remarked that a present of rum would be more welcome. The instruction on government was beyond his understanding, and looked on as falsehood. Such was the effect of his West India education in civilization. It has been asserted that he was murdered in 1824.^[XII-40] Robert, his brother, succeeded, and was deposed, his successor being James, descended from an older branch of the family,^[XII-41] who took the name of George Frederick. Mosquito annals do not record what became of him. The next king was Robert Charles Frederick, who believing himself a real monarch, for and in consideration of abundant contributions of rum, to which he was much addicted, began to make large grants of land, some of which carried with them the rights of absolute sovereignty. Most of these grants were afterward cancelled, and the king was taken by the British authorities to Belize, and kept under control. He died there, leaving, in a so-called last will, dated in February 1840, to Superintendent Macdonald the regency of his dominions during the minority of his heir, the princess Inez Ann Frederick.^[XII-42] Macdonald, whether as such regent or as an officer of the British crown, appointed his private secretary, Patrick Walker, to reside at Blewfields, and

have charge of the affairs of Mosquitia; since which time the shore began to assume much importance, at least in a political sense. Walker established a council of state, and soon opened a dispute about boundaries with the Central American states, giving rise to grave questions which occupied the attention of other governments, and of which I will treat later.

COLONIZATION
FAILURES.

Several attempts were made since the early days of the present century to colonize the Mosquito shore, for which large tracts of land were granted. Among the most important was one made to the Scotchman Sir Gregor MacGregor,^[XII-43] who soon after started a wild project, which later was known as the Poyais bubble, and ended, about 1823, disastrously for the dupes who had been drawn into it.^[XII-44] In 1839 the British Central America Land Company of London made another experiment on the same place where MacGregor had tried his, and it ended in failure.^[XII-45] A German colony named Carlsruhe, near Blewfields, which was started about 1844, had to be abandoned in 1849 after losing about two thirds of the emigrants.

The climate of the coast is moist, hotter than in the interior, and not as healthy. The greater part of the soil is fertile, and it may be said that the country possesses many natural elements of wealth.^[XII-46] Blewfields, the capital of Mosquitia, is on the river and lagoon of the same name. In the latter part of 1847 Blewfields and its dependencies had 599 inhabitants, of which 111 were white and 488 black,^[XII-47] in two villages, the larger, Blewfields, having 78 houses, and the lesser, Carlsruhe, 16. Few of the houses were built of boards. One of this kind was then occupied by Walker, the British agent and consul-general, with whom the sovereign resided.^[XII-48]

On the 12th of August, 1841, Macdonald, superintendent of Belize, came to San Juan del Norte on the frigate *Tweed*, bringing with him the so-

called king of the Mosquitos or Moscos. At the same time an armed sloop, under the Mosquito flag and commanded by Peter Shepherd, entered the port. The comandante and revenue officer, Lieutenant-colonel Quijano, went to see the commanding officers at Shepherd's house, but was not received, on the plea that both the king and superintendent were unwell. An official letter from him was left unanswered. At last, the superintendent's secretary, together with the captain of the frigate and the king's secretary, called on Quijano and told him that on the following day his letter would be answered, requiring his recognition of the Mosquito king as the ally of her Britannic Majesty. Quijano refused, and his visitors retired. He reiterated his refusal in a letter to the superintendent, and in the name of his government solemnly protested against his pretension, as well as against the insults inflicted on his country.^[XII-49] He was finally notified that if he interfered with any British or Mosquito subject, both he and his government would be held responsible.^[XII-50]

BRITISH
INTERFERENCE.

The demands and insults of the British officers continued until the 15th, when they seized Quijano and carried him on board the frigate, intending to take him to Belize.^[XII-51] The Nicaraguan government, in a note to British Vice-consul Foster, denounced the acts of the British officials at San Juan as high-handed, accusing Macdonald of usurping the name of her Britannic Majesty in supposing her to be an ally of the so-called Mosquito king.^[XII-52] The whole American continent became indignant at the British proceedings in San Juan. There was one exception, however, which must be classified as vile. Ferrera, jefe of Honduras, under the influence of the servile element of Guatemala, allied with Chatfield, recognized the Mosquito nation.^[XII-53]

Chatfield informed Nicaragua that the whole Central American territory lying between Cape Gracias á Dios and the mouth of the San Juan River belonged to the Mosquito king, without prejudice to other rights the king

might have south of the San Juan.^[XII-54] In January 1848 two British war vessels occupied the port of San Juan without resistance, replacing the Nicaraguan officials by Englishmen as servants of the Mosquito king, after doing which they sailed away; but no sooner had the intelligence reached the interior than a force was despatched to San Juan, which reoccupied the place and sent to the capital as prisoners the intruders.^[XII-55] Whereupon the British returned in force in March 1848, and defeated the Nicaraguan detachment. Hostilities being further prosecuted, the Nicaraguans had to succumb before the superior power of their foe, and consented to an armistice, providing that they would not disturb San Juan, or attempt to reoccupy the port, pending the negotiations which must follow on these events.^[XII-56]

TREATIES.

Nicaragua, by her ablest diplomates, defended her rights to the disputed territory both in Europe and America, without obtaining a satisfactory result, until the fears of Central Americans for the independence of their country were brought to an end by the Clayton-Bulwer treaty, otherwise called the Ship Canal convention, concluded at Washington between the United States and Great Britain on the 19th of April, 1850, by the first article of which neither power could occupy, fortify, colonize, nor exercise dominion over Nicaragua, Costa Rica, the Mosquito Coast, or any other portion of Central American territory, nor make use of a protectorate in any form.^[XII-57] Thus was this vexed question terminated, England resigning all her claims to the Mosquito Coast, and by a subsequent treaty concluded at Managua on the 28th of January, 1860, known as the Zeledon-Wyke treaty, ceded to Nicaragua the protectorate absolutely.^[XII-58] Since then Nicaragua has subjected the Mosquito Coast to a prefecto.^[XII-59] Nevertheless, it is understood that the Indian reserve is still ruled by a chief chosen by the natives, assisted by a council, which assembles at Blewfields; but subject to the supreme authority of the Nicaraguan government.

Nicaragua, as soon as she assumed the position of an independent nation, hastened to open friendly relations with other powers.^[XII-60] Spain made with the republic July 25, 1850, a treaty of friendship, commerce, and navigation, the first and second articles of which fully recognize Nicaragua's independence.^[XII-61] Early efforts were made to arrange ecclesiastical affairs with the papal see, a concordat being finally concluded at Rome November 2, 1861.^[XII-62]

With the other Central American states Nicaragua made treaties, which underwent from time to time alterations, as circumstances seemed to demand for her own or the general defence. Several of these will be made apparent in the course of my narrative. Nicaragua has endeavored to maintain cordial relations with her neighbors.^[XII-63] The republic entered into friendly diplomatic relations with the powers of Europe and America, most of them having treaties of amity, commerce, and extradition of criminals. Its relations with the United States have generally been intimate, made so by considerations of neighborhood, business interests, and similarity of institutions, as well as by a mutual desire to forward the construction of a ship canal across Nicaraguan territory. They have been disturbed at times, however, while Nicaragua was a transit route between the eastern states of the American union, and during the execution of schemes of American filibusters, such as those of Kinney and Walker.

ARBITRARY ACTS.

While the Mosquito question was pending between Nicaragua and Great Britain, circumstances were hastening a practical solution of it. An American company, acting under a Nicaraguan charter, opened a transit route for passengers through the state, beginning at San Juan del Norte, which place rapidly filled up with emigrants from the United States, who becoming numerically predominant, met in a primary capacity and organized an independent government.^[XII-64] After an indiscreet attempt on the part of a British commander to levy duties on an American steamer, which was disavowed by his government,

the British protectorate over San Juan at last virtually ceased. The town and port remained under the direct control of the inhabitants, most of whom were Americans, as a free city.^[XII-65] The prosperity of the place was retarded by a dispute with the persons into whose hands the transit had fallen, which produced bitter feeling, and resulted in alleged insults to Solon Borland, United States minister to Nicaragua, whose belligerent instincts carried him away to interfere in matters which were foreign to his office. The sloop of war *Cyane*, Commander Hollins, was despatched by the American government to look into the case. Hollins assumed a hostile attitude,^[XII-66] made arrogant demands, and the latter not being complied with, he bombarded the town on the 13th of July, 1854, and landing a party of marines, burned it to the ground.^[XII-67] This act has been generally condemned. The American government hardly contemplated it; but not having punished Commander Hollins, it must bear the odium. Notwithstanding these difficulties, peaceable relations were not disturbed.^[XII-68] Nicaragua also has treaties with Belgium, Italy, France, England, Peru, and other nations.^[XII-69]

A squabble occurred in 1876 at Leon, in which the German consul and a Nicaraguan citizen were concerned, giving rise to a conflict between the German and Nicaraguan governments, the former making of it a *casus belli*, and demanding, backed by a naval force, a considerable sum of money.^[XII-70]

The political situation in the interior of Nicaragua, during the winter, of 1848-9, was anything but satisfactory to the lovers of peace. Parties were again venting their animosities. The leader Bernabé Somoza captured Rivas, and afterward became notorious for deeds of cruelty and robbery. Director Norberto Ramirez^[XII-71] despatched there a strong force under J. T. Muñoz. Somoza was defeated and captured at San Jorge on the 14th of June.^[XII-72] Ramirez was succeeded by José Laureano Pineda in 1851,^{[XII-}

^{73]} against whom a revolt broke out August 4, 1851, having J. Trinidad Muñoz for its leader. Pineda and his ministers Francisco Castellon and F. Diaz Zapata were arrested. The plan failed, however. Leon, Muñoz' headquarters, was taken by government forces assisted by troops from Honduras, and Muñoz surrendered.^[XII-74] On the expiration of Pineda's term in 1853, Chamorro became chief of the state, having been elected by the suffrages of the moderados. The new director was a well-meaning man, and hoped by pursuing a moderate course to allay party bickerings. But his political opponents, together with a portion of the military element, did not permit him to develop his policy in peace.

The legislative assembly rejected, April 30, 1853, a provisional constitution which had been framed and published by the national constituent assembly on the 13th of October, 1852,^[XII-75] and at the same time declared the state to be independent and sovereign. This was followed on the 28th of February, 1854, by another decree of the state constituent assembly assuming for the state the title of República de Nicaragua, and giving its executive the name of president.^[XII-76] The coat of arms and flag of the new republic were decreed April 21, 1854.^[XII-77]

CONSTITUENT
ASSEMBLY.

A constituent assembly, called on the 11th of December, 1853, to meet on the 8th of January, 1854, for the purpose of framing a constitution for the republic, was installed on the 22d of that month.^[XII-78] It continued its session without interruption, and on the 7th of April assumed, for urgent cases, the powers of an ordinary legislature, enacting that, in the event of a temporary vacancy in the office of president, his duties should devolve on the member of the constituent assembly called by him to assume them. Chamorro was then chosen provisional president, to hold the office till the 1st of March, 1855. The new charter of the republic was sanctioned on the 30th of April,^[XII-79] which was in force only in Granada and other towns acknowledging Chamorro's government.



NICARAGUA.

LONG AND BLOODY WAR.

The opposition of the liberals culminated in an attempt at revolution in Leon, promoted by Castellon, Jerez, and Mariano Salazar. The government then residing at Managua defeated their plan for the time, and banished the leaders and a few of their influential followers.^[XII-80] The exiles sought refuge in Salvador and Honduras, and with the favor of Cabañas, who was then on bad terms with Chamorro,^[XII-81] obtained resources for a second attempt against the government of the latter. With a few men and a quantity of arms and ammunition, they went from Tigre Island to Realejo. The invaders were enthusiastically received, Leon, Chinandega, and immediate

towns proclaiming Castellon provisional director, which office he assumed June 11, 1854.^[XII-82] This was the beginning of a long and bloody war, which Salvador and Guatemala vainly tried to avert.^[XII-83] Chamorro approached Leon, but finding it had declared for Castellon, retired to Granada and fortified the place, sustaining afterward an irregular siege of several months from thrice the number of his force, under Jerez, till the early part of 1855. Castellon, meantime, gained possession of the republic, Granada excepted; but the long siege of this town wrought a change in the feelings of the unstable people, and in a short time Chamorro or his party recovered Managua, Masaya, and Rivas, after a series of bloody encounters. The siege of Granada was consequently raised.^[XII-84] Even Chamorro's death, which occurred at this time,^[XII-85] did not favor the democrats. He was succeeded by José María Estrada. Corral was the general-in-chief of the legitimist forces, and was organizing at Masaya an army to capture Leon. The government had called the constituent assembly, which met on the 8th of April with only fourteen members, and on the 10th resolved that Estrada should retain the executive until a president should be chosen under the constitution. This greatly displeased Corral, who had expected to be called to that position. He had his headquarters in Managua, and threatened to be revenged of the men who had slighted him.^[XII-86]

Meanwhile Muñoz had gone to Honduras and returned with a small division of troops, the chief command of both the democratic and Honduran forces being vested in him. By his advice Castellon appointed Rosalío Cortés and P. Aleman commissioners to ascertain the views of the legitimist chiefs with reference to peace negotiations. Estrada consented to receive Cortés, but not Aleman, and the former had interviews with him and his supporters, prevailing on them to enter into negotiations either in their official or private capacity. Muñoz had authorized Cortés to tell Corral he wished to have a direct understanding with him.^[XII-87] Cortés first saw Corral, and by his advice next had interviews with Estrada, Vega, and others, all of whom showed a willingness to treat for peace, and asked him

to return to Leon, which he did, touching at Managua, where Corral assured him of his disposition to come to an understanding with Muñoz.

DEMOCRATS AND
LEGITIMISTS.

The situation of the democrats was improved since the return of Muñoz. That of the legitimists was not so good, but the rulers felt confident. By its moderate course the legitimist government was gaining favor in democratic towns. Estrada's confidence was increased with the arrival of two foreign ministers accredited to his government. [\[XII-88\]](#) By this time Corral had an efficient division at Managua. His subordinate, Colonel Tomás Martínez, who in late years became president of the republic, not only cleared Nueva Segovia of Hondurans, but also occupied the town of San Marcos in Honduras. Lieutenant-colonel Andrés Murillo obtained a victory over the democrats at Tecuaname on the 17th of May. A few days after—May 31st—Estrada's government decreed an amnesty to all soldiers, from private to sergeant inclusive, presenting themselves within twenty days. [\[XII-89\]](#) On the 13th of June came two men who afterward were fatal to the legitimists, Santos Guardiola, and the clergyman Manuel Alcaine. The latter was a commissioner from Salvador to both belligerents, and his efforts on behalf of peace had been favorably entertained by Castellon. Estrada listened to him, but did not accept his proposals. [\[XII-90\]](#) Alcaine went back to Leon, and reported that the legitimists were bent upon exterminating the democrats, and his statements were fully believed. All hope of bringing the war to an end by peaceful negotiations was now abandoned. [\[XII-91\]](#)

CHAPTER XIII.

REPUBLIC OF GUATEMALA.

1840-1865.

PRESIDENT RIVERA PAZ—CARRERA'S COURSE—PRETENDED SEDITION—DISSOLUTION OF THE ASSEMBLY—A CONSEJO CONSTITUYENTE CREATED—CARRERA BECOMES PRESIDENT—ATTEMPT AGAINST HIS LIFE—REVOLT OF MONTERROSA—CARRERA'S DESPOTISM—THE REPUBLIC ESTABLISHED—RELATIONS WITH OTHER POWERS—REVOLUTION OF THE MOUNTAIN—CONSTITUENT ASSEMBLY CONVENED—CARRERA'S FORCED RESIGNATION AND EXILE—LIBERALS TRIUMPHANT—THEIR SQUABBLES AND DISINTEGRATION—THE MODERADO PARTY—REVOLUTION OF LOS ALTOS—INTRIGUES OF THE SERVILES—PRESIDENCIES OF MARTINEZ AND ESCOBAR—CAUSES OF THEIR RESIGNATIONS—PAREDES—RECALL OF CARRERA—DEEDS OF VENGEANCE—CARRERA AGAIN PRESIDENT—PARTIAL RESTORATION OF PEACE.

REIGN OF DESPOTISM.

Carrera had become so inflated by flattery that he actually believed himself able to govern upon instinct Guatemala, and even all Central America.^[XIII-1] He tried to shake off aristocratic control, and showed pugnaciousness toward the assembly and the administrator of the diocese. Obedience not being in every instance given to his whims, he threatened, in August 1840, to resign the command of the troops, which he held with the rank of lieutenant-general.^[XIII-2] The aristocrats were much alarmed, and the assembly, in flattering terms, declined accepting the resignation. He now appeared in the rôles of financier, political economist, and enemy of the nobles, presuming to dictate a policy for the protection of manufactures, agriculture, and other interests. His displeasure with the nobles was because he believed them hostile to the masses.^[XIII-3] They managed to mollify him, and he then contented himself with issuing a long address, on the 9th of October,

reiterating his anxiety for the general welfare, and remonstrating against the intrigues of his personal enemies. [\[XIII-4\]](#)

A reign of despotism was now established, which continued upwards of thirty years. Liberal laws were abrogated one after another, and retrogressive ones substituted, including a complete restoration to the clergy of the fueros they had been deprived of by the liberal *córtes* of Spain in 1820. Carrera's enmity to the assembly became more apparent from day to day. He showed it by word, and by the press. [\[XIII-5\]](#) He could not write a line, but others wrote for him, and printed articles appeared over his name. [\[XIII-6\]](#) José Francisco Barrundia had returned from his exile, and had been chosen a deputy, but he resigned on the 11th of March, 1842, giving powerful reasons for his course. [\[XIII-7\]](#) Indeed, Barrundia would have been out of place in a body mostly made up of ultramontane priests, self-styled nobles, and reactionists.

The treasury was so exhausted that the assembly had no means to pay its clerks. But the ecclesiastical coffers had an abundance of money from the tithes tax, and Carrera's troops had to be paid, or he would resent the neglect. This was made evident in September 1844. Rivera Paz, the president, with the utmost difficulties, managed to procure money for the pay of the soldiers from day to day; but for some reason unexplained, it did not reach them. Carrera found a way to secure his ends. He had a conference with some of his officers, and the result was that the battalion of regular troops revolted on the 20th, and sacked a number of shops, and the stalls in the market-place, getting an abundant supply and ruining several traders. [\[XIII-8\]](#) Carrera then gathered his soldiers in the barracks, and in order to keep up appearances, the next day without much ado or any form of trial, had six men shot. [\[XIII-9\]](#)

Rivera Paz, finding his position unbearable, resigned it. The assembly accepted his resignation, to take effect after his successor should be appointed, and qualify. Carrera was chosen, but declined the office.

Venancio Lopez and Bernardino Lemus, appointed in the order named, followed his example. Rivera Paz had to remain as nominal head of the government, Carrera being the actual ruler, whose demands clashed with the fiery-tempered Viteri, minister of state. They had a serious quarrel, which culminated in the arrest by Carrera, on the 7th of December, 1841, of Rivera Paz, together with Viteri and his subordinates.^[XIII-10] But after explanations he retired his force, and calm was restored. On the refusal of Carrera to accept the presidency resigned by Rivera Paz, December 14, 1841, the councillor Venancio Lopez was called upon to assume the office.^[XIII-11] The lieutenant-general asked for a passport to leave Guatemala, his object being only to obtain more honors and money. His plan seems to have succeeded.^[XIII-12] Lopez gave up the presidency, and Rivera Paz for the third time, on the 14th of May, 1842, was appointed to fill it.

SANGUINARY
POLITICS.

The assembly adjourned on the 4th of November, 1843, to meet again on the 1st of April, 1844. But Carrera had resolved to suppress it, and pretending an intended seditious movement at Pinula, he had the supposed rebels fired upon, and the criminal farce ended with a simulated capitulation at Guadalupe on the 11th of March, 1844, by which the assembly was set aside, and a council of government was to take its place.^[XIII-13] The assembly was convoked, ratified its own dishonor, gave the government full power to regulate administrative affairs, and decreed its own dissolution.^[XIII-14] The decree convoking members for the new council^[XIII-15] was issued on the 26th of April, and it was formally installed on the 8th of December, having among its members a number of liberals. Rivera Paz resigned the presidency,^[XIII-16] and Carrera was chosen his successor, assuming on the 11th of December an office that he had virtually controlled since the 13th of April, 1839. At the election of justices of the supreme court, the nobles were defeated.^[XIII-17] The consejo, or congreso, as it had begun to call itself, became an object of bitter enmity on the part of the aristocrats and serviles; and Carrera's overthrow was also contemplated by

them, pretending coöperation with the liberals for its accomplishment. The plan fell through before maturity, owing to distrust between the leaders of the two parties. Carrera was informed of his danger by the confession of a dying man, but never penetrated to the sources of the plot. [\[XIII-18\]](#) During Carrera's absence from the capital on furlough in February 1845, Joaquin Duran occupying the executive chair, a revolt took place, headed by Monterrosa and an officer named Mendez, but not being seconded by the people, they entered into a capitulation with Duran to leave the city, on his solemnly pledging them that they would not be molested. They accordingly went out on the 5th as promised, and on the next day Sotero Carrera, A. Solares, and Vicente Cruz entered at the head of their respective forces. Carrera arrived afterward, and was received in triumph. [\[XIII-19\]](#)

CONSTITUTION
AND CONGRESS.

At the expiration of his furlough Carrera reassumed the reins of government. Joaquin Duran resigned the portfolio of treasury and war, being succeeded by Brigadier Gerónimo Paiz. The state was now virtually under the control of a triumvirate composed of Rafael and Sotero Carrera, and Paiz. [\[XIII-20\]](#) The subsequent resignation of Minister Nájera and appointment of José Antonio Azmitia inspired a little confidence. [\[XIII-21\]](#) The constituent congress passed liberal laws, and issued a new constitution on the 16th of September, 1845, that did not suit the aristocrats, and they made it an object of ridicule and contempt. [\[XIII-22\]](#) The congress closed its session on the 21st of the same month. Carrera had obtained another leave of absence, and Brigadier Vicente Cruz, the vice-president chosen by congress, assumed the executive office. [\[XIII-23\]](#) The aristocrats kept a strict watch on Cruz, and breathed more freely when Carrera with his ministers Paiz and Azmitia were again at the head of the government. The succeeding congress on the 1st of February, 1846, rejected the constitution framed the previous year, and authorized the government to call another constituent congress. This was the result, not only of aristocratic intrigue, but of violent threats on the part of Carrera and

his minions against all attempting to sanction the act of the 'desorganizadores' to undermine his power.^[XIII-24]

Carrera and Paiz, aided by Sotero Carrera, corregidor of La Antigua, now ruled supreme. Citizens had no protection unless they approved of every act. During the funeral services of Archbishop Casaus a plot was made to assassinate Carrera, which failed, and the conspirators were seized and tried. Those who had powerful friends were sent into exile; the rest had to perish in the damp dungeons of the fort.^[XIII-25]

Guatemala, in view of the political change resulting from the dissolution of the federal compact, decreed by her assembly, on the 14th of November, 1843, a new coat of arms for the state.^[XIII-26] On the 6th of April, 1857, the government was empowered to make in the coat of arms such changes as it might deem judicious, but preserving the inscription, *Guatimalæ Respublica sub Dei Optimi Maximi protectione*. The change was decreed on the 31st of May, 1858.^[XIII-27] A law of March 14, 1851, confirmed in that of May 31, 1858, establishes the national flag.^[XIII-28]

The national independence of Guatemala was ere long recognized by foreign powers, with which she opened diplomatic relations and made treaties.^[XIII-29] The formal recognition by Spain took place in the treaty of May 29, 1863, subsequently ratified by both governments. Guatemala has endeavored to maintain friendly relations with all. With the United States they have been quite cordial. During Carrera's rule his government gave recognition to the imperial régime of Maximilian in Mexico.^[XIII-30] During the South American struggle between Chile on one side, and Peru and Bolivia on the other, Guatemala maintained herself neutral. She accepted in 1881 the invitation of the United States government to be represented at a proposed American congress to be held in Washington, but which did not take place. In that same year, owing to the maltreatment of a French citizen,

a difficulty arose with France, but it was amicably settled, the French flag being saluted, and a pecuniary compensation allowed by Guatemala. [\[XIII-31\]](#)

REVOLUTION AND
ROBBERY.

On the 8th of April the official journal gave to the public a decree appointing Pedro Molina, Alejandro Marure, and J. M. Urruela a committee to frame a constitution for the new republic, [\[XIII-32\]](#) a project of which they presented in due time; but, though conservative, the government would not adopt it. [\[XIII-33\]](#) The self-styled nobles were delighted with their republic, and made it appear in the official paper that the people in the departments were equally so. But a scarcity of breadstuffs, attributed by many to the contrivances of monopolists, created disturbances in some districts, alarming the government. Certain taxes were temporarily removed, and other measures were adopted to alleviate the distress. [\[XIII-34\]](#)

In May there was a revolutionary movement in Sacatepequez. [\[XIII-35\]](#) Robbery and murder became of frequent occurrence in several departments. The government saw a serious revolution at hand, and made efforts to meet it. It tried, however, to show that the public peace was not disturbed. [\[XIII-36\]](#) All measures to check the revolution were unavailing, and the policy of the rulers of Salvador made the condition of affairs more alarming to Carrera and his supporters. Their political opponents now thought the overthrow of the tyrant was not far distant. His counsellors advised him to call a constituent congress, and provisionally place the executive office in the hands of Vice-president Cruz, to which he acceded. The decree for summoning the congress was issued, and Cruz assumed the presidency on the 25th of January. [\[XIII-37\]](#) Nájera and Azmitia retired, which indicated a change of policy. This greatly exercised the reactionists, and the ayuntamiento of Guatemala, on the 4th of February, urgently begged Carrera to resume his office, whereupon Cruz threw it up, and the former took the chair at once. He organized a new cabinet, [\[XIII-38\]](#) the personnel of

which was a challenge to the whole liberal party, which thereby was roused to action. The first act of the government was to revoke the decree calling the constituent assembly. All hope of reform was now given up.

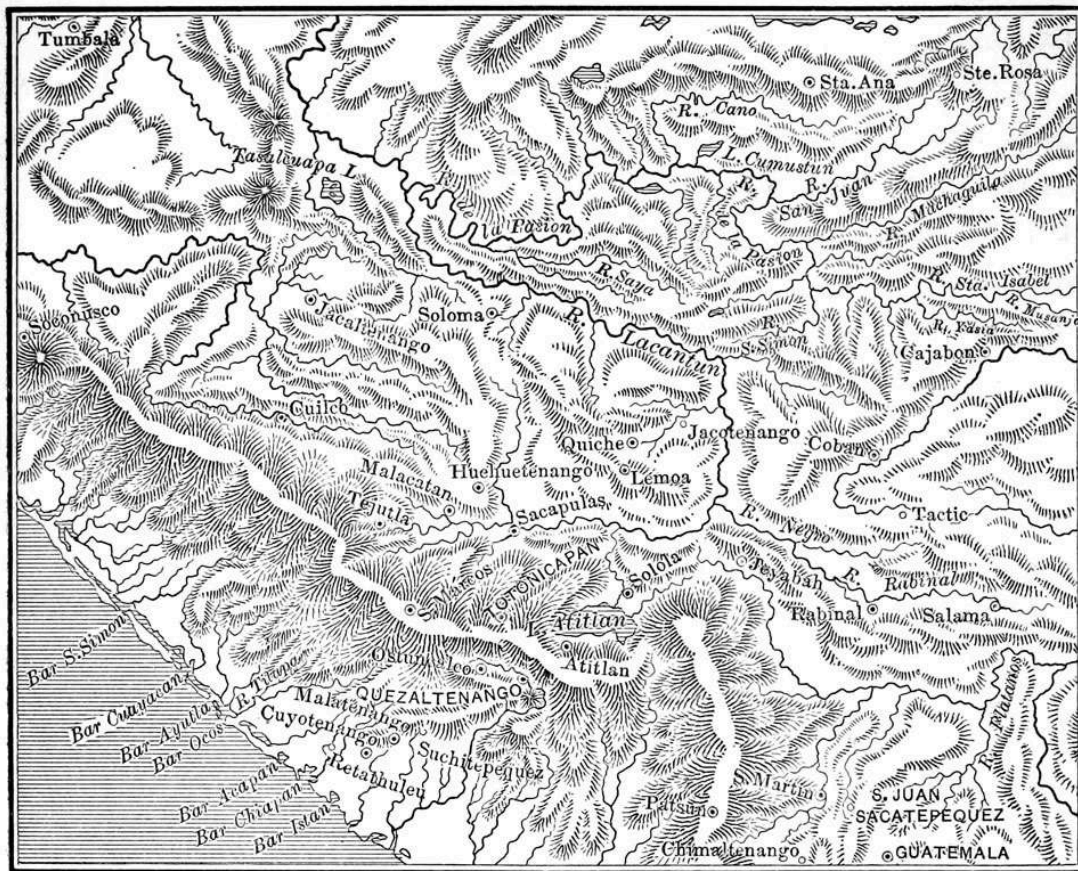
The revolution went on, and notwithstanding occasional reverses made much headway, Serapio Cruz, a brother of the vice-president, and an estimable man and experienced soldier, taking sides with the mountaineers. The government was sinking under the weight of its depravity; and yet in those moments of despair, it struck a blow at its opponents. Molina was arrested on the 10th of May. A similar order was issued against Barrundia, but he escaped the clutches of the sbirri, first giving the government his mind in the *Album*, which publication was of course suppressed.^[XIII-39] Together with Molina were conveyed to the fort José Marino Vidaurre and the printer Luciano Luna. An order of the court of first instance, issued at the petition of Molina's wife, was treated with contempt by Palomo Valdez, acting comandante of the department, who merely said that Molina had been imprisoned upon a verbal order of the president. The prisoners, were released after some time of suffering in the dungeons of the fort. The *Gaceta* repeatedly contained abusive remarks against the republicans of France, The French consul demanded a retraction, and not being heeded, struck his flag and discontinued relations with the government.^[XIII-40]

POLITICAL
UNREST.

The position of the government was daily becoming more untenable, when it concluded to call a constituent assembly, to begin its labors on the 15th of August.^[XIII-41] A scandalous occurrence took place a few days before the installation of the assembly, when the comandante, Palomo Valdez, violently arrested the deputy M. Pineda de Mont, who was released at the demand of that body, but the perpetrator of the act went unpunished.

Carrera made known his intention to resign^[XIII-42] on the installation of the assembly, and the insurgent chief Francisco Carrillo tendered his submission to that body. The liberals could not expect to elect any candidate

of their own, and the reactionists, though having a working majority in the assembly, from motives of policy abstained from presenting one of their party; but they finally fixed upon a political nonentity, who was known to be in accord with Nufio and the revolutionists of Chiquimula, named Juan Antonio Martinez, [\[XIII-43\]](#) believing that though a liberal he would not be antagonistic to their interests. The assembly was installed on the 15th of August with Pedro Molina presiding, when Carrera sent in three documents, one of which was his resignation, [\[XIII-44\]](#) which was accepted, no attempt being made to detain him, as it was the general desire that he should leave the country. [\[XIII-45\]](#) Martinez was appointed his successor. [\[XIII-46\]](#) The new president kept Carrera's officers in their commands. [\[XIII-47\]](#) His appointment did not satisfy the chiefs of the revolution, [\[XIII-48\]](#) and through commissioners they made known their demands, dated August 27th, in 18 articles. [\[XIII-49\]](#) The government rejected them, but in a decree requiring their submission offered certain terms, which in their turn were not accepted, and the war went on.



LOS ALTOS.

POLITICAL PARTIES.

Colonel Nufio had made an arrangement with commissioners Dueñas and Angulo of Salvador for the organization of Los Altos as a separate state. This roused the aristocrats, and their spokesman, Andreu, made such broad statements in the chamber that the president accused him of falsehood, and closed the discussion. The affair widened the breach among the liberals. Luis Molina now organized a third party, that took the name of moderado, most of whose members were from the liberal party and the latter was left an almost insignificant minority. The aristocratic party, albeit divided in appearance, was really united. [\[XIII-50\]](#) They were disquieted, however, by the attitude of Salvador in upholding the independence of Los Altos, which

had been organized as a state;^[XIII-51] but did not despair of breaking up the friendship between the liberals and the government of Salvador.^[XIII-52] The aristocrats set themselves to work to have a motion made by a liberal in the assembly for the confirmation of Carrera's decree of March 21, 1847, to create the republic of Guatemala. Such an act on the part of the liberals would alienate from them the support of the Salvadorans, and reduce them to a nullity. And yet Barrundia made the motion,^[XIII-53] and it was received with a shout of applause, and passed on the 14th of September, with only two negative votes.^[XIII-54] This ratification was hailed with ringing of bells and salvos of artillery.

DEATH OF
VICENTE CRUZ.

The revolutionists of Los Altos being defeated at San Andrés,^[XIII-55] were obliged to submit, but the situation of the government was made precarious by the defeat of Nufio by the brothers Cruz, who approached the capital.^[XIII-56] Unable to negotiate peace, Martinez resigned the executive office, and José Bernardo Escobar succeeded him on the 28th of November.^[XIII-57] The new president found all his plans antagonized by the aristocrats and moderados, and the clergy especially mistrusted him and his ministers.^[XIII-58] He might easily have dissolved the assembly, but the act would have been repugnant to his principles. He concluded to retire, but his resignation was not accepted.^[XIII-59] Vicente Cruz demanded the surrender of the capital, offering security for life and property, a few persons only excepted.^[XIII-60] The negotiations for peace having failed, Escobar a second time sent in his resignation, and it was accepted, with marked disrespect on the part of the serviles and moderados.^[XIII-61] Manuel Tejada was chosen president on the 30th of December, and declined the honor. Mariano Paredes was then appointed, on the 1st of January, 1849, and took the oath which had been prepared by Paredes, but he soon perjured himself, following explicitly the advice of Luis Batres, and thus becoming a tool of the aristocrats to bring back Carrera to power.^[XIII-62] Arrangements were made with the

mountaineers, under which Brigadier Vicente Cruz, having recognized the government, entered Guatemala on the 9th of February.^[XIII-63] It was noticed, however, that Serapio Cruz and other chiefs remained outside. The men of Agustin Perez afterward committed several murders, and Vicente Cruz went against and defeated them on the 20th of March, but while engaged in the pursuit was struck by a bullet in the chest and fell dead.^[XIII-64]

Carrera was known to be on the frontier, and Batres undertook to obtain the assent of the chiefs of the mountain for his return. Not all of them assented, however, Serapio Cruz issuing a very significant manifesto. General Agustin Guzman, the loyal liberal leader, well understood Batres' aims, and having a force at Huehuetenango made a move on Quezaltenango, defeating a large party of Indians, on the way, at San Bartolome. This move further complicated affairs, and Batres resolved to get rid of him by subterfuge.^[XIII-65] There were constant skirmishes on the frontier, Carrera having under him a considerable number of Indians.^[XIII-66] He finally reached Quezaltenango, and the assembly empowered the government to institute measures for an active campaign.^[XIII-67] On the 13th of April, just ten years after the occupation of Guatemala by Carrera, his second entry had been announced. Paredes swore to defend the city against Carrera,^[XIII-68] which oath he never intended to keep. Major Victor Zavala, corregidor and comandante of Suchitepequez, made common cause with Carrera.^[XIII-69] Paredes, by the advice of Luis Batres and against the wishes of the liberal and moderado leaders, opened negotiations with Carrera, which resulted in the submission of the latter and his forces at Quezaltenango, whereupon it was decreed that all hostilities against him were to cease; the order forbidding his return was revoked, his rank of lieutenant-general was restored, and finally he was given the command-in-chief of the army. The compact between the oligarchy and barbarism was consummated.^[XIII-70] He assumed the command on the 8th of August, and

on that date and the 18th he issued proclamations conveying his purpose of restoring peace and order, and assuring the people that he was free from hatred. [\[XIII-71\]](#) But the work of vengeance soon began. Efforts were made to convene the assembly with the object in view of arresting the liberal deputies who voted for Carrera's proscription in 1848, [\[XIII-72\]](#) but many of them had fled, and only those remaining were confined in the fort by Carrera's order without remonstrance on the part of the president. It is also said that some persons were shot. Such of the prisoners as did not crave Carrera's pardon were forced to leave the country. [\[XIII-73\]](#)

THE WAR OF 1850.

The difference in the principles underlying the policy of the rulers of Guatemala and Salvador, and the bitter animosity existing between them, brought about a war in 1850, in which Salvador, Honduras, and the democrats of Nicaragua were allied against Guatemala. [\[XIII-74\]](#) President Vasconcelos invaded Guatemala, [\[XIII-75\]](#) at the head of an allied force of Salvadorans, Hondurans, and Nicaraguans, but seems to have met with a signal defeat at the hands of an inferior force under Carrera, near Arada, in Chiquimula, on the 2d of February, which compelled a precipitate retreat into Salvadoran territory. [\[XIII-76\]](#) Carrera then marched across the line and established his headquarters in Santa Ana. This move demanded vigorous measures on the part of Salvador for self-defence. [\[XIII-77\]](#)

Carrera wrote the government of Salvador February 22d, that, understanding it wished to make peace, but hesitated to propose it because of the presence of Guatemalan troops in Salvador, he would recross the line, starting on the next day. [\[XIII-78\]](#) Yet the war continued, until a definitive treaty of peace between Guatemala and Salvador was concluded at Guatemala on the 17th of August, 1853, and ratified by Guatemala on the 14th of September. [\[XIII-79\]](#)

The civil strife raging in Guatemala led to differences with Honduras, whose government was accused of favoring the rebels of the mountain. Recriminations and border raids ensued, which culminated in a three years' war between the two countries, Guatemala aiding Guardiola and other enemies of Cabañas, the president of Honduras, in their attempts to overthrow the latter. [\[XIII-80\]](#) At last a treaty was concluded at Guatemala on the 13th of February, 1856, which the government of Guatemala ratified on the 5th of April. [\[XIII-81\]](#)

REORGANIZATION OF GOVERNMENT.

The victorious aristocrats now saw their opportunity to reorganize the government under a system more in accordance with their ideas; that is to say, investing the executive with power to crush revolution. Paredes summoned the constituent assembly which had been called by Carrera's decree of May 24, 1848, and it was installed on the 16th of August, 1851. This body on the 19th of October adopted a new constitution under the title of Acta Constitutiva de la República de Guatemala, containing 18 articles. [\[XIII-82\]](#) Another decree regulated the election of representatives of the church and other corporations in the national congress. [\[XIII-83\]](#)

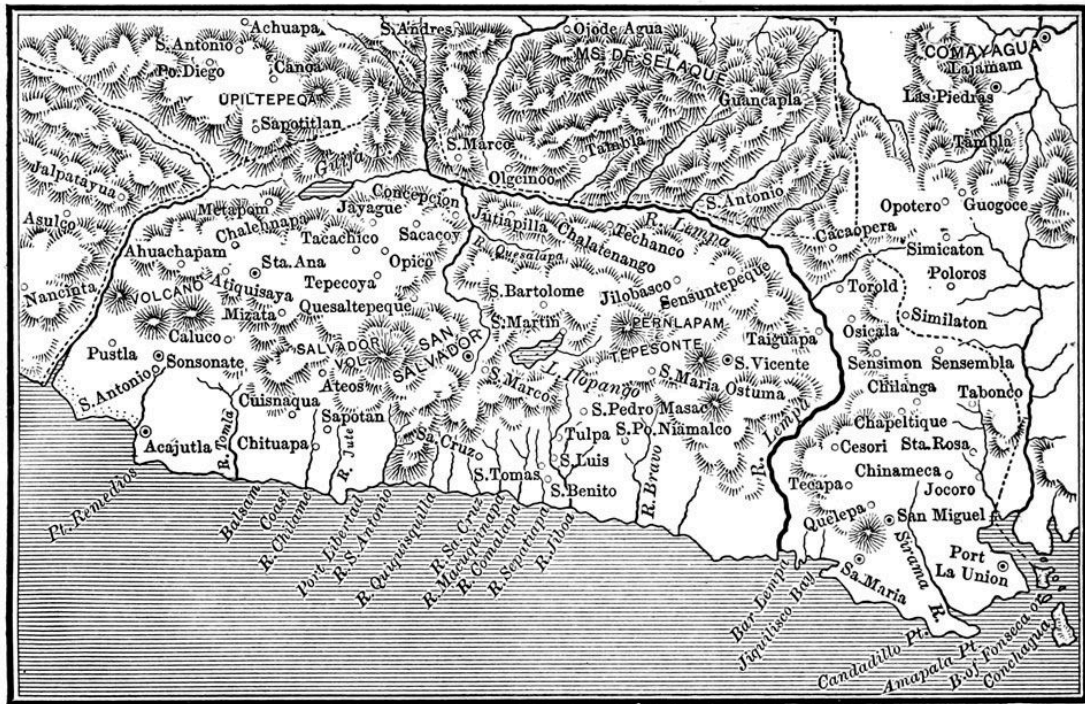
CARRERA REX.

The constituent assembly having by the 18th article of the acta reserved to itself the right of choosing the president for the constitutional term from January 1, 1852, to January 1, 1856, chose the only possible candidate, Rafael Carrera, [\[XIII-84\]](#) who on the appointed day assumed the executive office. His reputation for courage, respect for the church, and other circumstances secured a firm support to his administration. On the 21st of October, 1854, Carrera was proclaimed by a general junta of superior authorities president for life, [\[XIII-85\]](#) and the house of representatives on the 29th of January, 1855, passed an act exempting the president from all responsibility for the acts of his government, and devolving it on his ministers. [\[XIII-86\]](#) This change was a near approach to the

monarchical system, for which Carrera was supposed to have a decided penchant.^[XIII-87] Notwithstanding the strong power thus placed in his hands, a revolt at Quezaltenango the next year almost overthrew him, requiring the use of all his forces to defeat it, at the expense of much disaster and a large number of executions. It was only by great efforts that he succeeded, after so many years of warfare, in quieting the revolted mountaineers. This was accomplished only after peace had been signed with Honduras. His strong supporters, Manuel Francisco Pavon and Luis Batres, died, the former in 1855, and the latter in 1862.^[XIII-88]

From this time, peace being finally restored, with only occasional and partial disturbances, the régime established with Carrera at its head was generally acquiesced in. The republic took an active part in the campaign against William Walker and his filibusters in Nicaragua. The services rendered by its forces will appear in the description of the operations of that campaign in a separate chapter.

The year 1863 was inaugurated with another bloody war with Salvador, the details and consequences of which will be treated elsewhere. It is sufficient to say here that Guatemalan arms were successful, and Carrera's power became still more consolidated, and its supremacy was felt over the rest of Central America. He ruled the country uninterruptedly till his death early in April 1865. The highest honors, civic, military, and ecclesiastic, were paid to his remains.^[XIII-89] Carrera died in the full conviction that he had been the instrument of providence in saving society and good order in Guatemala. He had been so assured by his supporters, and had come to believe it, in the face of the fact that he had been guilty of heinous crimes and was notoriously immoral.^[XIII-90] So die those who pass hence from the murderer's gallows under the banner of the cross, and with priestly consolation.



SALVADOR.

CHAPTER XIV.

REPUBLIC OF SALVADOR.

1839-1865.

MALESPIN'S ACTS—LINDO'S COUP D'ETAT AND DEPOSAL—JEFE GUZMAN—REVOLT AT SANTA ANA—PRESIDENT AGUILAR—THE BISHOP EXPELLED—VITERI'S ALLIANCE WITH MALESPIN AND HONDURAN OLIGARCHS—PRESIDENT VASCONCELOS—BRITISH HOSTILITIES—SALVADOR'S RELATIONS WITH FOREIGN POWERS—SAN MARTIN'S ADMINISTRATION—DESTRUCTION OF SAN SALVADOR—PRESIDENT CAMPO—CAMPAIGN AGAINST WALKER IN NICARAGUA—ESTABLISHMENT OF THE REPUBLIC—SANTIN'S OVERTHROW—PRESIDENCY OF GERARDO BARRIOS—WAR OF SALVADOR AND HONDURAS AGAINST GUATEMALA AND NICARAGUA—THE LATTER VICTORIOUS—BARRIOS' FLIGHT—RESTORATION OF PEACE—DUEÑAS AS PRESIDENT—BARRIOS' SUBSEQUENT RETURN—HIS CAPTURE AND SURRENDER BY NICARAGUA—HIS EXECUTION IN SAN SALVADOR.

The constituent assembly of Salvador, installed at Zacatecoluca on the 1st of August, 1839, after a recess reopened its session on the 2d of January, 1841, and on the 4th there was laid before it an address, signed by Colonel Francisco Malespin, as comandante general, and his officers who took part in the revolt of September 20th, spoken of elsewhere. In the document they disclaimed hostility to Jefe Cañas or his minister, or any intent to override the laws, asserting that they were, on the contrary, actuated by a strong desire to give security to the state, and save themselves from impending destruction. [\[XIV-1\]](#) This address was regarded by the liberals as a threat, inasmuch as Malespin with the garrison had wrongfully assumed a right to deliberate upon public affairs.

Norberto Ramirez, now jefe of Salvador by the grace of Malespin, could no longer brook that officer's interference, and resigned, [\[XIV-2\]](#) Juan

Lindo being called to succeed him on the 7th of January. The assembly and chief magistrate of the state were both now under the sword of Malespin, which in its turn was controlled by Carrera of Guatemala. That body, on the 30th of January, 1841, passed an act to call the state in future República del Salvador.^[XIV-3] The second constitution of Salvador was adopted on the 18th of February.^[XIV-4] Under it the legislature had two chambers. Lindo, the jefe, had a most unpleasant position, believing himself surrounded by conspirators. Counting on Malespin's support, on the 6th of November, 1841, with a coup d'etat he dissolved the chambers, because among its members were some friends of Morazan.^[XIV-5] His act caused much indignation in several towns, and on the 13th of January, 1842, three senators, namely, J. V. Nuila, Lupario Vides, and Antonio José Cañas, at San Vicente, resolved to restore constitutional order. The legislative body in consequence assembled there, and made a stirring address to the people, embodying the policy they intended to pursue.^[XIV-6] Lindo tried to justify his act of November 6th, but failed, and Senator Escolástico Marin was called to temporarily occupy the executive chair,^[XIV-7] with authority to establish the state capital where most expedient.^[XIV-8] The government continued for the time being in San Vicente, and the people were called upon to choose a president of the state.

ARCE, MARIN,
GUZMAN.

Marin held the executive authority a few days only. He had been preceded by Pedro Arce, and was succeeded by Juan José Guzman. The difficulties of the state had not come to an end. Guzman favored the conservative element, as shown in his decree of June 3, 1842, issued after hearing that Morazan was in Costa Rica, to cut off all relations with that state.^[XIV-9] He left the executive office in July, and resumed its duties again in September, declaring in a proclamation that he would deal mercilessly with disturbers of the public peace.

The two legislative chambers were installed at San Vicente on the 17th of September, and on the 20th counted the votes for president of the state. No candidate having the requisite majority, Guzman was asked to continue provisionally in charge of the government. His inaugural address was a repetition of his manifesto of the 7th, greatly pleasing the conservatives.

[\[XIV-10\]](#) But harmony was not long to prevail between Salvador and Guatemala. The trouble arose from the independent action of Salvador in granting an asylum to the remnants of Morazan's forces against the protests of Guatemala and Honduras, even though the final decree of admission contained some very severe clauses. [\[XIV-11\]](#)

Another cause of dissatisfaction against Salvador was that Guzman would not muzzle the press. The independence of Guzman, and the disposition shown by Malespin not to be at all times a facile instrument of the aristocrats, prompted the latter to promote an insurrection of the volcaneros of Santa Ana for their overthrow.

[\[XIV-12\]](#) Salvador, though under the pressure of aristocratic control, still had a leaven of progression that made itself felt. The publication of *El Amigo del Pueblo* was an evidence of this fact. The Aycinenas, Pavon, Luis Batres, and Chatfield, unable to compete with it in the field of discussion, demanded its suppression. [\[XIV-13\]](#)

Guzman in his correspondence with Pavon upheld that journal, and Malespin would read it with satisfaction. [\[XIV-14\]](#) Guatemala resolved at least to use coercion. Carrera established his headquarters at Jutiapa to favor the volcaneros in their rebellion. [\[XIV-15\]](#)

REVOLUTION.

The cordial reception given in October to Colonel M. Quijans, commissioner accredited by Nicaragua to Salvador to negotiate a treaty of friendship and alliance, was displeasing to Bishop Viteri, who took advantage of Guzman's absence at San Vicente, in the latter part of that month, to bring about a quarrel between him and Malespin. The latter at this time was said to be in poor health, and the bishop often visited him, and in other ways manifested interest for him.

Viteri had directed his clergy to abstain from interference in political affairs, and yet he preached against Morazan and those who had banished Archbishop Casans. The Dominican Vazquez^[XIV-16] was virulent, declaring that the ecclesiastical authority would never be under the civil, and threatening the people that the priests would abandon them to suffer from plagues, epidemics, war, and famine, if they continued their iniquitous hostility to the church.^[XIV-17]

The revolution was now a fact. Viteri and Malespin supported Fray Vazquez, or Fray Veneno, as he was nicknamed. Once Vazquez fulminated from the pulpit a number of diatribes against President Guzman, at the same time bestowing much praise on Carrera. The result was an order from Guzman, then at San Miguel, to bring the friar there as a prisoner. The bishop remonstrated to Malespin against the order, demanding an escort, as he wished to end the insults to the church by himself leaving the state. Malespin tried to dissuade him from his purpose, and he grew more energetic.^[XIV-18] A great tumult ensued one night in the city, when Viteri, Malespin, and Vazquez received an ovation from the rabble of La Vega and San Jacinto, amid repeated cries of "Mueran los judios! mueran los herejes! mueran los impíos!"

Malespin went off to San Miguel, and had some violent correspondence with the president; the latter threatened to expose his intrigues if he did not forthwith depart from San Miguel, and then retired to his hacienda, leaving the state in the hands of Malespin.^[XIV-19] Guzman's downfall was hailed with joy in Guatemala and Honduras. In Comayagua it was celebrated with salvos of artillery. After Malespin's return to San Salvador, to please the bishop several persons were banished, and the *Amigo del Pueblo* was suppressed. The executive office, by Guzman's abandonment of it, went into the hands of Pedro Arce, the vice-president. The two chambers of the assembly opened their session on the 30th of January, 1844. No presidential candidate having a constitutional majority, the assembly chose Malespin president, and he assumed his new duties on the 5th of February, after

reading before the two bodies in assembly convened a discourse on his great love for law, justice, and peace. It would have sounded well from the lips of a liberal, and it is barely possible that Malespin expressed his sentiments at that moment. But his education, his habits, and the fatal influence of the men that swayed him, constantly took him out of the right path. As he was under the control of Bishop Viteri, the country must go back to the days of obscurantism. The effects of it were soon made patent.

[\[XIV-20\]](#)

The bishop succeeded in driving out of the state the opponents of his theocratic ideas, and in bringing about a change in the government; in fact, everything had been conceded him, and his influence was paramount. And yet he was not satisfied. He would have the Salvadorans believe him a deity, but they arrived at the conclusion that by a great fatality their first bishop had turned out to be a pernicious revolutionist.

In connection with the general history of Central America, I have given the principal events of Salvador down to 1845, when, under the treaty of Sensenti, after a long and exhaustive war with Honduras, the state was rid of the ominous rule of the brutal Malespin. With the discontinuance of the war there was no need of raising further loans; the military establishment was reduced to a minimum, and the authorities and people hastened to restore the constitutional régime; to which end elections of senators and deputies were at once had, in order that the assembly should meet on the 15th of January, 1846, for the term of Vice-president Joaquin Eustacio Guzman, who had charge of the executive authority, would expire on the 1st of February. [\[XIV-21\]](#) On this date he surrendered the office to Senator Fermin Palacios. The assembly did not meet till four days after. The presidential election did not yield a sufficient majority in favor of any one, and the assembly then appointed Eugenio Aguilar. [\[XIV-22\]](#) The president was a good Christian, and attended with regularity to his religious duties as a catholic; and yet Viteri called him a heretic; the reason of it being that Aguilar was a stickler for a constitutional government of the people, and the bishop was

an oligarch. The latter now invented the fiction that the president had the intention of exiling him; he had the people in the wards of Candelaria, San Estévan, and Calvario told that their bishop was to be sent out of the country in the night of the 11th of July. He was believed by the simple-minded people when he assured them that Aguilar and others [\[XIV-23\]](#) were at the bottom of it. His report made a commotion though not quite so great a one as he had expected. Nevertheless, he made the most of it, writing to the president, on the 11th of July, that he knew of the plot to repeat with him what had been done with Archbishop Casans, in 1829. [\[XIV-24\]](#) Aguilar was greatly surprised, and believing that with a few words he could convince the bishop of his error, that same afternoon paid the prelate a visit. He found a large concourse of people, before whom the charge was reiterated, and no assurance to the contrary was accepted. A tumult following, the president had the chief guard-house reënforced. Fortunately, a heavy rain scattered to their homes the crowds in the streets; but a considerable number of men ran into the episcopal residence. That night, several persons representing Viteri went to the barracks and demanded Aguilar's resignation. The president meekly assured them of his willingness to retire to private life rather than be the author of any disturbance. Viteri now thought Aguilar was vanquished, but he had not counted on the determination of other Salvadorans to uphold the laws and the government. Quiet was restored for the time, and Aguilar went to his home at midnight unmolested. The next day there was much rioting, and an attempt failed to release the prisoners in the jail. [\[XIV-25\]](#) The rioters were finally defeated, and the bishop had nothing to show for his conduct but the blood shed at his instigation. [\[XIV-26\]](#) Aguilar again, after the people had upheld his authority, showed the weakness of his character in placing the executive office in the hands of Senator Palacios; which emboldened Viteri to continue his intrigues and cause further trouble. He issued a pastoral on the 16th of July, printed in his own house, which reiterated the accusation against the president, and other matters; that pastoral [\[XIV-27\]](#) was fatal to his views, for the people of Salvador made Aguilar resume the presidency. The president, in a long manifesto,

explained his conduct, and issued a decree to enforce the articles of the penal code against ecclesiastics who made use of their ministerial office to promote political disturbances.^[XIV-28] The bishop, condemned by public opinion, fled to Guatemala, and the president then on the 29th revoked a decree of Palacios of July 12th, and ordered Viteri not to return to Salvadoran territory.

A WEAK
EXECUTIVE.

Peace and order prevailed after Viteri's departure, and the people again devoted themselves to their usual vocations. But the bishop managed with Malespin and the Honduran oligarchs, notwithstanding the treaty of Sensenti, to bring about a revolution in Salvador.^[XIV-29] Malespin attacked Chalatenango, in Salvador, whereupon orders were given to send troops after him.^[XIV-30] Viteri who had once excommunicated Malespin, and aided in his overthrow, now said that he was destined by divine providence to defend the religion and rights of the people of Salvador, which had been infamously abused and usurped by their government. Malespin preached religion, and acted like the famous king of the Huns. But his prestige was gone, and at Dulce Nombre de la Palma he met with his first reverse, when he retreated to Dulce Nombre de María, a town twelve miles from the Honduran frontier, and invited Viteri to join him; but that worthy sent him his blessing, and would not expose his person to the hazards of war. Malespin was defeated again by eight hundred men under General Nicolás Angulo, and fled into Honduras, leaving arms and ammunition. Efforts were made to induce the people of Santa Ana to join Ignacio Malespin; but the bishop's letters to rouse them availed but little. He found no favor among the volcaneros, and on his way along the coast to reach Santiago Nonualco was captured, prosecuted, and executed, with some of his accomplices.^[XIV-31] Francisco Malespin was killed at San Fernando, near Honduras, the inhabitants cutting off his head, and carrying it as a trophy to San Salvador.^[XIV-32] Bishop Viteri in 1847 went to reside in Nicaragua, becoming a citizen of the state, to which diocese he was subsequently translated by the pope. Nothing

worthy of mention occurred within the state in 1847. The Salvador government now represented the liberal party in Central America, and devoted its attention to education, arts, and industries.

PRESIDENT
VASCONCELOS.

The presidential term under the constitution being only of two years, elections were orderly effected, and the assembly opened its session on the 25th of January, 1848. Doroteo Vasconcelos was the popular choice for the presidential term of 1848, and entered upon his duties on the 7th of February, 1848. [\[XIV-33\]](#) In a conciliatory address he eschewed all spirit of partisanship, tendering to all his fellow-citizens peace, justice, and union. [\[XIV-34\]](#) For all that, the oligarchs abhorred him. Indeed, his government and Carrera's could not exist so near each other. The aristocrats well knew he was not to be won over to their side, as well as the difficulties they must work against to undermine his popularity. But they looked for early success from internal dissension and other sources. [\[XIV-35\]](#) Aguilar's administration had refused to recognize the republic of Guatemala, and Vasconcelos' could do no less. [\[XIV-36\]](#)

The territory was twice invaded by troops of Guatemala in pursuit of insurgents, against which Vasconcelos remonstrated, and satisfaction was given and accepted with good grace. He was observing a policy of expectancy, albeit on his guard. Guatemala was then in the throes of revolution from which he expected to see the Central American nation spring into a second life; but he was mistaken in the means he employed. A few proclamations, written in Guatemala by well-known persons, and appearing in the name of Francisco Carrillo, spoke of the independence of Los Altos as the aim of a revolution such as Vasconcelos wanted. [\[XIV-37\]](#) Not that he expected to see an absolute equality of the state, but that there should not be such differences as existed under the constitution of 1824. He believed himself supported, and steadily marched on upon a path that led to

his ruin, carrying down with him the whole liberal party of Central America.

Vasconcelos labored for a federation of three states—Guatemala, Salvador, and Los Altos—which once consolidated, Nicaragua and Honduras would doubtlessly join, and later on attract Costa Rica to do the same. This idea had no opposition before the revolution of August 1848, in Guatemala. Vasconcelos received many offers of support to prosecute his plan. He accordingly instructed Dueñas and General Angulo to enter into arrangements with General Nufio of Chiquimula, and made every possible effort to force Carrera's resignation on the 15th of August, 1848; but some of the liberals of Guatemala, after ridding themselves of Carrera, neglected Vasconcelos. Dueñas was sent there with ample powers for the organization of a republic of Central America, but he was slighted, and accomplished nothing. During his stay in Guatemala, a decree was enacted on the 14th of September, 1848, according to which that state was declared a sovereign nation and independent republic. [\[XIV-38\]](#) Vasconcelos, with all his liberalism, and placed as he was at the head of a liberty-loving democratic people, was still under the influence of the old colonial traditions. He as well as his people looked with admiration at the greatness of the United States of America, but lacked the courage to emulate their example. The United States had no official church, but Salvador recognized one. Licenciado Ignacio Gomez was despatched to Rome to negotiate the recall of Bishop Viteri, the appointment of another prelate, and the conclusion of a concordat. [\[XIV-39\]](#) His mission was so far successful that on the 3d of July, 1848, Tomás Miguel Pineda y Zaldaña was preconized as bishop of Antigua in partibus infidelium, and given the administration of the diocese of Salvador, with the right of succession. The news of this appointment was received with joy, and Vasconcelos erroneously expected to have a support in the new prelate, [\[XIV-40\]](#) when there was more likelihood of his coinciding with Pavon and his confrères. Indeed, Zaldaña, from his greater wariness, was a more dangerous man than Viteri.

The legislative chambers met on the 5th of February, 1849. The president's term would end with the beginning of 1850, and there could be no reëlection under the constitution.^[XIV-41] But Vasconcelos' friends insisted on his being reëlected, necessitating an amendment of the fundamental law, and in spite of opposition obtained an act of the assembly permitting the reëlection.^[XIV-42] This was an unfortunate move, as it divided the liberal party, and encouraged Dueñas, who wanted the presidency, and was not scrupulous as to the means of attaining it, to redouble his manœuvres, even though he must call to his aid Carrera and Luis Batres.

BRITISH
INTERMEDDLING.

In 1849, Salvador became involved in a quarrel with the British chargé d'affaires, Chatfield, resulting from alleged claims preferred by him with his usual haughtiness, on behalf of fellow-subjects of his. Vasconcelos' government looked on these claims as unjust, and refused them recognition. Chatfield then caused the blockading by a naval force of La Union, the port from which Salvador derived the greater portion of her revenue.^[XIV-43] Unable to resist, her government agreed on the 12th of November, 1849, to acknowledge the indebtedness, and make provision for its payment. The blockade was then raised.^[XIV-44] But this did not end the disagreements between Chatfield and the Salvador government. On the 6th of August he made peremptory demands,^[XIV-45] coupled with a menace that if not complied with at once the coasts of the state would be blockaded by British war ships then coming to act under his instructions. The government of Salvador did not comply with the demands,^[XIV-46] and on the 16th of October port La Union was blockaded by the British ship *Champion*, whose commander notified the authorities that if within ten days full satisfaction were not given for the insults to the British flag, the blockade would be extended to the whole coast, another vessel being despatched to Acajutla to enforce it. No satisfaction having been given as demanded, that menace was carried out.

The difficulties remained unsettled in the latter part of February 1851, though the British war vessels had retired.^[XIV-47] But they were subsequently arranged in an amicable manner. With the exception of these troubles, and the repeated differences with the other states of Central America, Salvador has maintained friendly relations with foreign powers, most of which have treaties with her on terms satisfactory to all concerned.^[XIV-48]

MULTIPLIED
HOSTILITIES.

Vasconcelos was not more successful in preserving peace within the state than in forcing Guatemala to abandon the policy she had adopted of maintaining an absolute autonomy. In his invasion of that neighbor's territory early in 1851, as we have seen in the previous chapter, he was worsted, which roused popular indignation against him, followed by a revolt, and his deposal by congress.^[XIV-49] On the 1st of March, the substitute, J. F. Quiroz, was called to occupy the executive chair, and did so.^[XIV-50] The president for the constitutional term 1852-3 was Francisco Dueñas, who succeeded in settling the differences existing between Salvador and Guatemala.

A serious disagreement having occurred between Salvador and Honduras, leading to hostilities, the government of Guatemala, then at war with Honduras, despatched a force to Ahuachapan in aid of Dueñas, who apprehended an invasion.^[XIV-51] Toward the end of this term José María de San Martín was chosen for the next. The state now returned in peace to its interior affairs, adopting important improvements.^[XIV-52] There were not wanting, however, some attempts to disturb the public peace, which were fortunately defeated. But the country became at that time the victim of other calamities, such as cholera, scarcity of food resulting from a visitation of locusts, and an earthquake which destroyed San Salvador on the 16th of April, 1854,^[XIV-53] in consequence of which the capital was removed to Cojutepeque, where it remained for some time.

Rafael Campo and Francisco Dueñas were elected president and vice-president, respectively, for the ensuing term of 1856-7; and the latter being in charge of the executive office in January 1856, in Campo's absence, fitted out a contingent of troops to aid Nicaragua in her struggle with Walker's filibusters. Campo despatched reinforcements in 1857, the Salvador forces being under command of General Gerardo Barrios, who, according to Perez, never went beyond Leon, [\[XIV-54\]](#) but undertook to arrange the internal affairs of Nicaragua, convoking a junta de notables, which proclaimed Juan Sacasa president. This had no effect, however.

The state had, in 1856, constituted itself as a free and independent nation, under the name of República del Salvador. [\[XIV-55\]](#) This act was confirmed March 19, 1864, by the national constituent congress.

CAMPO AND
BARRIOS.

General Belloso, Colonel Choto, and other officers of the expedition deserted in June from Leon. Barrios sent troops after them, and they were arrested in Salvador and taken as prisoners to Cojutepeque, where they told President Campo that Barrios had invited them to make a revolution against his government. They were set at liberty on the 8th. Barrios landed at La Libertad with his forces on the 6th, and marched to San Salvador, whence he wrote Campo he had occupied that place to defeat the revolutionary schemes of Belloso and Choto. Orders were sent him to dissolve the forces and go to Cojutepeque with 200 men. On the 11th Barrios, together with his officers, made a pronunciamiento to depose Campo and call Dueñas to the presidency. [\[XIV-56\]](#) The president on the 12th called troops to the support of his government, placed San Salvador and Cojutepeque under martial law, and declared all acts emanating from the vice-president void. But it seems that the latter refused to lend himself to Barrios' plan, but on the contrary, supported Campo. [\[XIV-57\]](#) Barrios himself submitted. [\[XIV-58\]](#)

Campo's successor was Miguel Santin del Castillo. This president's tenure of office was of short duration. In 1858 a coup d'etat of Barrios, then

a senator, in which he was aided by the vice-president Guzman, his father-in-law, forced Santin to resign. Barrios subsequently obtained from the legislative assembly, sitting from January 17 to February 12, 1859, the sanction of his coup d'etat, as well as the constitutional amendments that he had not been able to carry through legally during Santin's rule, namely, to extend the presidential term from two to six years, and that of the deputies from two to four years.^[XIV-59] The year 1859 was one of restlessness, engendered partly by the ungrounded fear of invasion by Santin's friends, who had taken refuge in neighboring states, and partly by Barrios' efforts to secure his own election to the presidency, in which he was successful. In August 1859 the existing disagreements between Salvador and Honduras, resulting from intrigues of refugees from the former, were brought to an end through the mediation of Guatemala.^[XIV-60]

INVASION OF
SANTA ANA.

The republic seemed to have attained a comparatively stable condition at the incoming of 1860. Barrios had been elected president, and recognized as such by the assembly.^[XIV-61] He concluded in 1862 to hold diplomatic relations with the vice-president, who under the constitution of Honduras was entitled to occupy the executive chair of that state at the death of President Guardiola, and was favored by public opinion, although Carrera of Guatemala was upholding Medina, a usurper of the presidency. A treaty of alliance, both defensive and offensive, was entered into between Salvador and this vice-president,^[XIV-62] which displeased Carrera; he demanded explanations, and they were given him.^[XIV-63] The latter found an excuse to pick a quarrel with Barrios in the question with the Salvador clergy, who had been required to take an oath of allegiance to the government,^[XIV-64] which they refused to do, Bishop Pineda y Zaldaña and a number of his subordinates repairing to Guatemala, where they were honorably received. Barrios was accused in the official journal of setting aside the conservative policy promised at his inauguration.^[XIV-65] An expedition, under Colonel Saenz, believed to have been aided by Carrera,

invaded Santa Ana at the cry of Viva la religion! Viva el obispo! and took the city, but were soon driven away by the citizens. Carrera disclaimed any connection with this affair. Some time after came Máximo Jerez, as minister of Nicaragua, proposing a plan of national union for Salvador, Honduras, and Nicaragua, with the intention of inviting Guatemala and Costa Rica to join them; but the project failed because of the refusal of Honduras to enter into the arrangement. Carrera had meantime dissuaded President Martinez of Nicaragua from the scheme.

The Guatemalan government was preparing for war against Salvador, and succeeded in winning the coöperation of Martinez.^[XIV-66] Honduras, being an ally of Salvador, Florencio Xatruch was assisted by Carrera to make a revolt in several departments against the government of Honduras. Salvador tried to avert hostilities. Friends of peace, among them the American and British representatives, mediated, but all was of no avail.^[XIV-67]

OFFICE-SEEKERS
WAR.

The war contemplated by Carrera was unpopular in Guatemala, where the people of late years had been enjoying peace and prosperity, and feared a recurrence of the former desolations. But their ruler was prompted by a deadly animosity to Barrios, and by the fear that the alliance of the latter with Jerez would endanger conservatism, and consequently his own power. Whereupon he resolved to crush at one blow the disturber of the public peace, as Barrios was called by the oligarchs.^[XIV-68] He invaded Salvador with a large force, a proclamation preceding him to inform the people that the war would be against Barrios and not themselves. He felt certain of a speedy victory, and blindly assailed Coatepeque, where Barrios was entrenched. He was repulsed with such heavy losses^[XIV-69] that he had to retreat to his own capital, which he entered March 6th at the head of only 3,000 men. But this reverse did not discourage him. He fitted out another army, and started upon a second campaign that should be decisive^[XIV-70]

against Salvador and Honduras, the latter having espoused Barrios' cause. Meantime Martinez of Nicaragua had gained a battle at the town of San Felipe on the 29th of April, against a united force of Jerez' partisans and Salvadorans.^[XIV-71] Moreover, Honduras was invaded by 800 Guatemalans under General Cerna. The Salvadoran and Honduran troops were defeated^[XIV-72] by the allied Guatemalans and Nicaraguans, on the plains of Santa Rosa, which prompted revolts in the greater part of the departments of Salvador, proclaiming Dueñas provisional president, who organized a government at Sonsonate.^[XIV-73] Intrigues were successfully brought into play upon several Salvadoran commanders to induce them to revolt against Barrios, and to aid his enemies.^[XIV-74] One of those officers was General Santiago Gonzalez, commanding the troops at Santa Ana during Barrios' temporary absence at San Salvador. He made a pronunciamiento on the 30th of June, telling the soldiers that a similar movement had taken place the previous day at the capital, and Barrios was a prisoner, and his government dissolved. On discovering the deception some battalions escaped and joined the president at San Salvador, Gonzalez being left with a small number of troops. Carrera was now near Santa Ana, and demanded Gonzalez' surrender and recognition of Dueñas as provisional president, which, being declined, Carrera attacked and easily defeated him on the 3d of July,^[XIV-75] the Salvadoran artillery and a large quantity of ammunition falling into the victor's hands. Carrera was now master of the situation,^[XIV-76] and his opponent virtually without means of defence, superadded to which the influence of the clergy had turned the Indians to Carrera's side. Barrios continued his efforts, however, and held out four months at San Salvador, though closely besieged and suffering from want of food and ammunition.^[XIV-77] He had refused to listen to proposals offering him the honors of war, believing that once in Carrera's hands his fate would be sealed.^[XIV-78] At last further defence was impossible, and Barrios escaped out of the city early on the 26th of October, and subsequently out of the country.^[XIV-79] The surrender of the city took place the same day, and on

the 30th Dueñas, now placed at the head of affairs, decreed thanks and honors to Carrera and Martinez, and their respective armies. [\[XIV-80\]](#)

DEATH OF
BARRIOS.

Barrios, having with him arms and ammunition, embarked at Panamá in 1865, on the schooner *Manuela Planas* for La Union, to place himself at the head of a movement initiated by Cabañas in that port and San Miguel in his favor. It was only on arrival that he heard of the failure of that movement, [\[XIV-81\]](#) and on his return the schooner was struck by lightning in waters off Nicaragua at the Aserradores. He sent to Corinto for water and provisions, and the consequence was that a Nicaraguan force came on board and captured him. He was taken to Leon on the 30th of June. [\[XIV-82\]](#) The government of Salvador demanded his extradition that he might be tried, the national congress having impeached him. The result of this was a convention entered into at Leon July 14, 1865, between Gregorio Arbizú, minister of Salvador, and Pedro Zeledon, plenipotentiary for Nicaragua, by which the latter government assented to the surrender of Barrios, under the express stipulation that his life should be spared whatever might be the result of his trial. [\[XIV-83\]](#) But the government of Salvador, in disregard of this obligation, had Barrios sentenced to death by a court-martial, and he was executed at 4:30 in the morning of August 29th, against the remonstrances of the representative of Nicaragua. The latter could do nothing but protest, and throw the infamy of the deed upon Dueñas and his administration.

Bishop Zaldaña returned to his diocese at the termination of the war in the latter part of 1863, and issued a pastoral letter recommending concord and union among his flock. The provisional government called on the people to choose a constituent assembly to reorganize the government and frame a new constitution. This assembly met on the 18th of February, 1864, and on the same date sanctioned the last revolutionary movement, which deposed Barrios from the presidency, and called Dueñas to fill it. His acts to that date were approved, and he was recognized as provisional executive till

a constitutional one should be elected. That body at a later date promulgated a new constitution in 104 articles, which like the fundamental charters of the other Central American states at that time was exceedingly conservative. The only religion recognized was the Roman catholic.

At the elections which took place ten months after the promulgation of the new charter, Dueñas was apparently elected president for the first constitutional term, and the constitutional congress recognized him as such. He took formal possession of the office February 1, 1865. Congress closed its session on the 21st of the same month.

CHAPTER XV.

REPUBLIC OF HONDURAS.

1840-1865.

PRESIDENT FERRERA—REVOLUTIONARY MOVEMENTS—POLITICAL EXECUTIONS—PRESIDENCY OF JUAN LINDO—NEW CONSTITUTION—LINDO OVERTHROWN—BELIZE—HONDURAS' TROUBLES WITH GREAT BRITAIN—BRITISH OCCUPATION OF TIGER ISLAND—BOMBARDMENT OF OMOA—BAY ISLANDS—PRESIDENT CABAÑAS—WAR WITH GUATEMALA—GUARDIOLA'S ASSASSINATION—PROVISIONAL RULES OF CASTELLANOS AND MONTES—ALLIANCE WITH BARRIOS—UNSUCCESSFUL WAR WITH GUATEMALA AND NICARAGUA—MONTES DEPOSED—ESTABLISHMENT OF THE REPUBLIC—JOSÉ M. MEDINA CHOSEN PRESIDENT—AMENDMENT OF THE CONSTITUTION.

The house of representatives of the Estado Libre y Soberano de Honduras, on the 30th of December, 1840, chose Francisco Ferrera president, [\[XV-1\]](#) and he took possession of the office on the 1st of January, 1841. The chamber closed its session on the 6th of March.

It is unnecessary to repeat here the history of Honduras down to 1844, as it has been given in connection with other sections of Central America. The state assembly was installed on the 11th of January, with ceremonies more religious than political, as befitted a country where the influence of the church was so overwhelming. [\[XV-2\]](#) The chamber bepraised Ferrera with as much gusto as the church had smoked him with incense at the cathedral, and on the 26th he was formally declared a benemérito de la patria, and confirmed as a general of division, which rank had been conferred on him by the government in March 1839. [\[XV-3\]](#)

Much was said at the opening of the legislative session about peace, but the fact was, that a number of towns were greatly agitated, owing to the heavy burdens weighing on them, and to the displeasure caused by many citizens having been driven into exile. Among these towns were Texiguat, La Plazuela, and Comayagüela. Santos Guardiola was sent against them, and was not successful, though he asserted in a proclamation that he had defeated the rebels. The war spread, [\[XV-4\]](#) and Ferrera deemed it expedient to leave the executive office in charge of the ministers for a time, and to personally take command of the forces to operate against the insurgents. Guardiola defeated them at Corpus on the 1st of July, and captured their correspondence, with Rivera, Orellana, and the other leaders. [\[XV-5\]](#)

REVOLUTION AND
ELECTION.

An insurrection of the troops at Olancho took place in December, which was soon quelled, and stringent measures were adopted by Ferrera against its promoters. [\[XV-6\]](#) Amid this state of affairs Ferrera's term was approaching its end, and he could not be reëlected a second time under the constitution of 1839. Elections were held, and arrangements made so that he could continue in power as minister of war with the chief command of the forces. [\[XV-7\]](#) Guardiola had been also dubbed a benemérito, and his friends wished to raise him to the presidential chair, but did not succeed. [\[XV-8\]](#) No candidate obtained the requisite majority, and the legislature chose Coronado Chavez president. [\[XV-9\]](#)

Ex-jefe Rivera, taking advantage of the absence of Ferrera with most of his forces in Nicaragua, invaded Honduras for the purpose of overthrowing the existing government. The people failed to coöperate with him, and he was defeated and made prisoner. On the 4th of January, 1845, he, with Martinez, Landa, and Julian Diaz arrived at Comayagua in irons. The official journal announced that Rivera was to be tried and punished. He was in fact doomed to the scaffold before he was tried. [\[XV-10\]](#)

Guardiola's atrocities in La Union and San Miguel, spoken of in a former chapter, won him additional honors from the subservient assembly of Honduras. He was a second time declared a benemérito, and awarded a gold medal. Chavez, the tool of Ferrera, was not neglected. He was given the title of Padre conscripto de la patria, with an accompanying medal. [\[XV-11\]](#) The assembly closed on the 23d of March, well satisfied of the wisdom of its measures. Another presidential election came up, and no one having the requisite number of votes, the assembly, January 14, 1847, chose Ferrera, who declined the position, and Juan Lindo was then appointed, Ferrera continuing as war minister, with the command of the troops annexed, which was what he desired. Guardiola was retained in the office of minister of foreign relations, though unfit for it.

When the army of the United States was in Mexico, Lindo seemed greatly exasperated thereby; the president, without first obtaining the sanction of the representatives, issued manifestos, on the 1st and 2d of June, 1847, which were an open declaration of war against the United States. [\[XV-12\]](#)

Lindo desired to control affairs for an unlimited time, and the constitution allowing him only a two-years tenure, and containing, besides, several clauses repugnant to him, it was doomed. [\[XV-13\]](#) A constituent assembly was accordingly called to frame a new charter, which was adopted at Comayagua February 4, 1848. [\[XV-14\]](#)

Lindo continued as president under the new régime. [\[XV-15\]](#) The legislature had assembled at Cedros on the 10th of June, 1849, when the president reported the state at peace, and its relations with the other states on a satisfactory footing. But he acknowledged that his government was harassed by party contentions. Order had been maintained thus far by a strict impartiality toward the factions, with the coöperation of some good and influential citizens. [\[XV-16\]](#) This was not to last long; for on the 12th of

February, 1850, Guardiola, deceived by representations of Felipe Jáuregui and the aristocrats of Guatemala, in which the British chargé, Chatfield, had no little part, made a pronunciamiento at Tegucigalpa, where the government then was, and Lindo had to flee. The latter finally entrenched himself at Nacaome, near the bay of Fonseca, and asked for assistance from the governments of Salvador and Nicaragua, which under the terms of their confederacy they were bound to afford him. Salvador at once sent a considerable force under General Cabañas, and Nicaragua prepared to do the same if necessity required it. Guardiola's movement was not seconded elsewhere. But he marched against Nacaome, and at Pespire commissioners of Salvador and Lindo made him understand his false position, and an understanding was then had, on the 25th of March, by which he submitted to Lindo's authority.^[XV-17]

WAR AND TREATIES.

The treaties of 1783 and 1786 between Great Britain and Spain reserved to the latter the sovereignty over Belize, otherwise called British Honduras, granting to the settlers merely the privilege of cutting dye and other woods,^[XV-18] using the spontaneous products of the soil, fishing along the coast, repairing their vessels, and building houses and stores. The colonists were not to set up any government, either civil or military, construct forts or defences, maintain troops of any kind, or possess any artillery.^[XV-19]

BELIZE.

Governor O'Neill of Yucatan made an expedition in 1798 against the English settlers during war between the two nations, and destroyed a number of settlements on the Rio Nuevo, but was afterward repulsed by the colonists and slaves of Belize. This circumstance was claimed to have given the victors the right of conquest over the territory occupied by them. But neither Spain, nor Mexico after her independence, recognized that pretension, nor was it admitted by the British parliament.^[XV-20] Furthermore, the treaty signed in London, December 26, 1826, between Great Britain and Mexico was negotiated on the express

condition that the treaty of July 14, 1786, between the Spanish and British crowns should be held valid and observed in all its provisions.^[XV-21] Therefore the conclusion we must arrive at is, that the sovereignty over Belize belongs to Mexico and not to Great Britain. Mexico's claim has been recognized by the settlers, when it suited their interests, but they were never equally disposed to abide by the obligations of the treaty of 1826.^[XV-22] Their encroachments on Yucatan have continued to the extent that they now hold much more than was conditionally allowed them for wood-cutting by the treaty of 1783.^[XV-23]

Affecting to forget that they were entitled merely to the usufruct of the country, the settlers set up as early as 1798 a government,^[XV-24] raised troops, built forts, tilled the soil, and exercised every right implying full sovereignty. Alexander M'Donald, while holding the office of superintendent,^[XV-25] on the 2d of November, 1840, set aside the laws and usages of the country, declaring that from said date the law of England should be the law of the settlement or colony of British Honduras, and that all local customs and laws repugnant to the spirit of the law of England, and opposed to the principles of equity and justice, should be null.^[XV-26] In later years the government has been in the hands of a lieutenant-governor, with an executive and legislative council, and the colony has the usual judicial establishment.^[XV-27]

The assumption of sovereignty is not Mexico's only cause of complaint. Since the war of races broke out in Yucatan in 1847, the people of Belize have sold arms and ammunition to the revolted Indians. Early in 1848 the authorities promised that the Indians should not be aided, directly or indirectly; but the promise was not fulfilled.^[XV-28] The population is mainly negro, originally introduced as slaves; the rest, excepting a few white men, is a hybrid race resulting from intercourse with Europeans and Indians. The total population in 1871 was nearly 25,000, of which there were probably

1,000 more males than females.^[XV-29] Slavery was abolished by an act of the inhabitants on the 1st of August, 1840.^[XV-30]

The chief product of the country is mahogany, of which some 20,000 tons were exported annually, but the demand for it lately has decreased. Its logwood is much valued, and about 15,000 tons are yearly exported. Besides these staples, the country produces other woods of value, and the cahoon or coyal palm in abundance, from the nuts of which is extracted a valuable oil. Sarsaparilla and vanilla are found in the interior. Of domestic animals there are enough for the needs of the people. The colony during the last fifteen or twenty years has been on the downward course.

In former times the port of Belize was an entrepôt for the neighboring states of Yucatan, Guatemala, and Honduras,^[XV-31] but after the opening of direct trade between those states and the United States and Europe, and the diversion of trade on the Pacific to Panamá, that source of prosperity ceased. Total tonnage entered and cleared in 1877, exclusive of coasting trade, 73,974, of which 46,168 were British. Value of imports, in ten years ending in 1877, £1,781,175; for that year, £165,756, of which £84,540 were from Great Britain. Value of exports for 1877, £124,503, of which £94,548 went to Great Britain.^[XV-32] The average rate of duties on imports is ten per cent ad valorem; machinery, coal, and books entering free. The gross amount of revenue for 1863, £27,398; for 1877, £41,488. Public expenditure for the latter year, £39,939.

ENGLISH
COERCION.

The relations of Honduras with Great Britain were during many years in an unsatisfactory state, due in a great measure to the schemes of certain officials of the latter government, who pushed ungrounded claims against the former in the furtherance of their plans to gain control of a large extent of the Central American coast. On the 3d of October, 1849, a British war ship at Trujillo demanded the sum of \$111,061, alleged to be due to subjects of her nation. The demand not

being complied with, an armed force was landed from her the next day, which occupied the fort and town. The British commander finally accepted on account \$1,200—all that the Honduran comandante could procure—and on reëmbarking fired a volley. [\[XV-33\]](#)

On the southern coast the British steamship *Gorgon*, on the 16th of November, seized the island of Tiger, hoisting the British flag at Amapala. [\[XV-34\]](#) The authorities of Honduras, after protesting against the act, called the attention of the United States representative to the British proceeding, for this island had been ceded to his government in September previous. [\[XV-35\]](#) It is presumed that Chatfield's purpose, among other things, was to prevent the construction of a canal across Nicaragua by Americans. But Admiral Hornby, commanding the British naval forces in the Pacific, disapproved of the proceeding, removing his men and restoring the Honduran flag under a salute of twenty-one guns. [\[XV-36\]](#)

A preliminary convention was entered into at San José, Costa Rica, December 29, 1849, between Felipe Jáuregui, calling himself commissioner of Honduras, and Chatfield, the British chargé d'affaires, in nine articles, some of which involved undue responsibility on the part of Honduras. [\[XV-37\]](#) This treaty was disavowed by her government, March 22, 1850, in a note to Admiral Hornby, declaring that Jáuregui had no authority to make it, and its stipulations being offensive to the dignity of the state, the legislature would never sanction them. [\[XV-38\]](#) Meanwhile Honduras had agreed with Chatfield to accredit a commissioner to arrange with him for the settlement of British claims. This was done; and the long and tedious question was finally arranged on the 27th of March, 1852, Honduras assuming an indebtedness of \$80,000. [\[XV-39\]](#)

FUTILE PROTESTS.

The debt question was not the only source of disquietude for Honduras in her relations with Great Britain. British officials, on trumped-up pretexts, usurped and held, during

several years, portions of her territory. M'Donald, superintendent of Belize, occupied Roatan and other islands belonging to Honduras situated in the bay of this name. The Honduran government protested against such usurpation, but no attention was paid to its remonstrances. It does not appear, however, that Great Britain was claiming territorial rights over the Bay Islands, as they were called.^[XV-40] Soon afterward, a number of Cayman islanders settled in Roatan, and in the course of a few years there were about 1,000, when the superintendent of Belize found a pretext to assume the control. In 1849, the islanders applied to Colonel Fancourt, then superintendent of Belize, for a regular government. He promised to comply with their wishes, but was unable, and they continued choosing their authorities. At last, in August 1850, the war schooner *Bermuda*, Lieutenant Jolly commanding, took formal possession of Roatan, Guanaja or Bonaca, Utila, Barbarreta, Morat, Elena, etc., in behalf of the British crown, declaring them a British appendage under the name of Colony of the Bay Islands; against which the acting chief magistrate, William Fitzgibbon, protested on the 15th of September, 1850, in the name of the sovereignty of Honduras.^[XV-41] The islands were, in August 1852, under the rule of a lieutenant-governor.^[XV-42] A treaty was finally concluded between the queen of Great Britain and Honduras, on the 28th of November, 1859, respecting the Bay Islands, the Mosquito Indians, and the claims of British subjects, which settled the question in favor of the latter power.^[XV-43] Still one more trouble has occurred between the two nations, in which the weaker one had to submit to the demand of the other at the mouth of her cannon. On the 19th of August, 1873, the war ship *Niobe*, Sir Lambton Loraine commanding, bombarded Fort San Fernando of Omoa.^[XV-44] The bombardment ceased on the Honduran authorities agreeing to redress the alleged grievances, and paying damages.^[XV-45] With other nations of Europe and America—excepting the sister states, with which repeated bickerings have occurred, leading sometimes to war—Honduras has succeeded in maintaining friendly relations.^[XV-46] The boundary between

Honduras and Nicaragua was finally agreed upon in a convention dated September 1, 1870. [\[XV-47\]](#) In 1866 the Honduran government entered into a concordat with the pope for an understanding on affairs ecclesiastical.

PRESIDENT
CABAÑAS.

President Lindo, having been a third time elected to the presidency for the term to begin February 1, 1852, published on the 25th of November, 1851, a manifesto to the people, suggesting the expediency of calling some other citizen to the executive chair, pleading at the same time need of rest. [\[XV-48\]](#) The people took him at his word, and chose Trinidad Cabañas president, who was inducted into office at Comayagua on the 1st of March, 1852, [\[XV-49\]](#) and on the next day in his address to the assembly pledged his word to pursue a liberal policy in observance of the principles that had guided him throughout his career. His election was hailed as an auspicious event, and a safeguard against Guatemala's encroachments. [\[XV-50\]](#) The state was at peace in the interior, and with the other states of Central America, except Guatemala, with which the relations were not harmonious, owing to the usurpation by the latter of a portion of Honduran territory on the Copan side. This, with divergence in political principles between the two rulers, soon brought on a bloody war, [\[XV-51\]](#) which has been detailed in a previous chapter. [\[XV-52\]](#) The fruitlessness of this contest prompted Salvador and Nicaragua to use their endeavors for peace; but they proved unavailing. What Guatemala's superior resources failed to accomplish on the field of battle was, however, brought about by means of intrigue, with the coöperation of the party opposed to Cabañas in Honduras, headed by General Santos Guardiola, which received efficacious aid from Carrera. General Juan Lopez supported the revolutionary movement with 700 men, [\[XV-53\]](#) and Cabañas was overthrown on the 6th of July, 1855. [\[XV-54\]](#)

At last, being unable to cope with the daily increasing forces of the enemy, he abandoned the field, and retreated to Salvador. The serviles again

took possession of the government under Lopez.^[XV-55] The presidential election took place amid this turmoil. The state was divided into two factions, one supporting Lindo and the other Guardiola. The friends of Lindo, not feeling certain of success, proposed Lopez as a compromise candidate, he being credited with the expulsion of Cabañas, but finally abandoned the plan and cast their votes for Guardiola, who assumed the executive office, February 17, 1856, on his return from Nicaragua, where he had been defeated by William Walker. Lindo had meantime been in charge of the government.^[XV-56] A system of despotism was now established, Guardiola being but a satellite of Carrera.^[XV-57]

POLITICAL
DESPOTISM.

The country at this time was in a distressed condition. Agriculture was neglected, most of the field hands having emigrated. Business of all kinds was at a stand-still. There was no available revenue, for every one of its branches was burdened with debt. The state had a contingent of troops serving in Nicaragua against Walker, supported from a special forced loan. To the credit of Guardiola's administration must be recorded, however, that it secured peace with Guatemala, and a settlement of questions pending with Great Britain. At the end of his term he was reëlected. Early in 1861 the government had a difference with the vicario capitular. The see being then vacant, this ecclesiastic assumed the right of excommunicating the president, whom he accused of persecuting the church; but the government forbade the publication of his decree, and expelled its author from the state.^[XV-58] This difficulty was subsequently arranged through the metropolitan of Guatemala. Disturbances occurred at various places,^[XV-59] which were brought to an end in a short time. On the 11th of January, 1862, the president was assassinated.^[XV-60] At first it was feared that discord would reign again, and the other Central American governments prepared to mediate in the interests of peace.^[XV-61] Fortunately, good counsels prevailed, and anarchical tendencies were for a time checked.

BRIEF REIGNS.

Guardiola's constitutional successor, Victoriano Castellanos, was in Salvador, and much against his will was pushed by Barrios to accept the position. He repaired to the frontier, and had the oath of office administered to him by the alcalde of the little town of Guarita; which was considered a strange proceeding on his part by Senator José María Medina, who had received the executive office from J. F. Montes, [\[XV-62\]](#) and invited him to the capital to enter upon his duties. [\[XV-63\]](#) Castellanos concluded soon after an alliance offensive and defensive with Barrios, and at a time when their states were at peace with the other governments of Central America. This step, and the diatribes of the press in Salvador and Honduras against the governments of Guatemala and Nicaragua, paved the way for fresh troubles in Central America. Castellanos held the government about ten months, nearly all the time in a turmoil; and at his death was temporarily succeeded by José Francisco Montes, who followed in the footsteps of his predecessor, continuing the alliance with Barrios, and hostilities against Guatemala and Nicaragua. The serviles, assisted by the troops of these two states, being victorious, overthrew him, and on the 21st of June, 1863, placed at the head of affairs, as provisional president of the republic of Honduras, the senior senator, José María Medina, [\[XV-64\]](#) who issued a decree of outlawry against Montes. [\[XV-65\]](#) In December the capital was for a time transferred to Gracias, and on the last day of the same month Medina surrendered the executive office to Francisco Inestroza. [\[XV-66\]](#) On the 15th of February of the following year, the presidential election took place, and Medina and Florencio Xatruch appeared to have obtained the popular suffrages, the former for president and the latter for vice-president. [\[XV-67\]](#)

Disturbances at Olancho were with little difficulty brought to an end, the rebels being defeated at Tapescos. A constituent assembly was convoked and met to reform the constitution, which was done on the 19th of September. [\[XV-68\]](#) On the 29th of October, the constituent assembly just prior to adjournment appointed Medina provisional president, [\[XV-69\]](#) the

date for the election of the constitutional one being fixed on the 1st of December. Another decree of the same date granted a full amnesty for all political offences committed since February 4, 1848.

CHAPTER XVI.

WALKER'S CAMPAIGN IN NICARAGUA.

1855-1856.

KINNEY'S EXPEDITION—WILLIAM WALKER JOINS THE DEMOCRATS—FAILURE OF HIS EXPEDITION TO RIVAS—CHOLERA DECIMATES THE LEGITIMISTS AT MANAGUA—DEATH OF MUÑOZ—WALKER'S VICTORIES AT LA VÍRGEN AND GRANADA—EXECUTION OF MINISTER MAYORGA—WALKER'S CONVENTION WITH CORRAL—PROVISIONAL GOVERNMENT ORGANIZED—PRESIDENT PATRICIO RIVAS—COMMANDER OF THE FORCES, WALKER—MINISTER OF WAR CORRAL PUT TO DEATH FOR TREASON—RECOGNITION BY SALVADOR AND HONDURAS—SEIZURE OF THE TRANSIT COMPANY'S STEAMERS—COSTA RICANS ON THE WAR-PATH—HAVOC OF CHOLERA.

Certain men of the United States, with ideas somewhat warped in regard to the relative rights of humanity, now come forward, as in the line of their destiny, to interfere in the affairs of their neighbors. The legitimist government of Nicaragua, in May 1855, felt certain of ultimate triumph over its democratic opponents at Leon. Circumstances seemed to point that way, when the infusion of this foreign element at this time came to defeat all preconceived plans.

DEFEAT AT RIVAS.

News arrived from the United States of the organization in New York, Philadelphia, and Washington, by H. L. Kinney, Fabens, American commercial agent at San Juan del Norte, and others, of an expedition ostensibly to establish a colony on the Mosquito Coast for the purpose of developing its resources, but really designed to overthrow the governments of Central America, and usurp sovereignty over the whole country.^[XVI-1] Remonstrances against the scheme were duly made to the American government, which partially

succeeded in their purpose. However, the project was not exactly the source of the dire calamities that were ere long to befall Nicaragua.^[XVI-2] The real danger lay in another direction, to explain which I must go back in my narrative to previous events. An American named Byron Cole, who had conceived plans with respect to Central America, and was well informed on her affairs, arrived at Leon, in August 1854, when the democratic leaders became convinced that they could not take Granada. They entered into a contract with him to bring an expedition of foreigners, under the garb of colonists, who should receive grants of land.^[XVI-3] Cole transferred his contract to William Walker, who at once set to work in organizing the expedition.^[XVI-4] He sailed from San Francisco, California, May 4, 1855, on the brig *Vesta*, with 58 men,^[XVI-5] touched at Amapala to meet Captain Morton, Castellon's agent, and on the 13th of June reached Realejo, where he received the greetings of the government he was to serve from Lieutenant-colonel Félix Ramirez.^[XVI-6] At Leon he refused to serve under General Muñoz.^[XVI-7] He was made a colonel of the Nicaraguan army, and with 55 foreigners and 100 natives was despatched to the department of Rivas, having in his company colonels Ramirez and Mendez, and Máximo Espinosa, the last-named going there as prefect. Muñoz at once informed Corral of the movement, and the town of Rivas was reënforced and prepared for defence. Walker obtained some advantages at first, on the 29th of June, but being assailed on his left by Colonel Argüello, his foreigners were dispersed, and Ramirez' native force fled, and entered Costa Rican territory.^[XVI-8] Walker and his phalanx reached San Juan del Sur, whence they returned to Realejo on the brig *San José*;^[XVI-9] and shortly after, Estrada, the legitimist president, went to Managua in June, staying there until early in July, when the first cases of cholera occurred.^[XVI-10] The mortality in Managua from the epidemic was greater than in any other town, owing to the concentration of troops there. The army which had been organized for assailing Leon was destroyed within a few days; and only a small body of officers of all grades, some of them in a dying condition,

transferred themselves to Granada, entirely abandoning Managua. The epidemic was still doing its work, when the action of El Sauce took place on the 18th of August, between forces respectively commanded by Guardiola and Muñoz, in which the former were defeated, and abandoned the place to their assailants; but just as success was crowning democratic efforts, Muñoz was killed by a bullet entering his side. [\[XVI-11\]](#) The victors, now under Colonel Sarriá, did not pursue the enemy, but resolutely countermarched to Leon, and meeting Jerez on the road, who wished to lead them against the legitimists, they refused to follow him.

SAN JUAN DEL
SUR EXPEDITION.

Another expedition under Walker, composed of 50 foreigners and 120 natives, whose immediate chief was J. M. Valle, alias El Chelon, sailed from Realejo on the 23d of August, and landed at San Juan del Sur on the 29th, his main object being to take up a position on the transit route between the two oceans. The news of his landing reached Granada on Guardiola's return from his ill-fated fight at El Sauce. Guardiola went to Rivas, and assuming command of 500 men, in the night between the 2d and 3d of September, marched against Walker. Once on the main road he heard that the latter had gone to La Virgen, on Lake Nicaragua, and rapidly countermarched to that place, expecting to surprise the enemy. But he made the mistake of attacking an opponent whom he could not see, and in a little while his men became dispersed, and hurried back to Rivas. This may be said to have been the end of Guardiola's career in Nicaragua. [\[XVI-12\]](#) Corral was now placed in command of the legitimist forces in the south.

Castellon, the head of the democratic government, died of cholera on the 2d of September, and Senator Nazario Escoto was called to succeed him.

Walker's force, after his victory at La Virgen, became greatly augmented with native democrats. [\[XVI-13\]](#) His movement on La Virgen was intended to show that he had a sufficient force to take the offensive. After

the action he returned to San Juan del Sur, where he received from Corral a paper hinting at a desire to enter into confidential relations with him, to which he paid no attention. His plan was to make a dash upon and occupy the legitimist seat of government, the battered city of Granada.^[XVI-14] In furtherance of which Espinosa was despatched to Leon to ask the government for a diversion toward Managua, so as to draw resources away from Granada. General Pineda was accordingly stationed with a respectable force in Pueblo Nuevo. The legitimists, under General Hernandez, attacked Pineda on the 11th of October, defeated and drove him out of the place, after which he demanded of the government at Leon the surrender of the town, together with its garrison and military stores, as the only means of averting the bloodshed which must follow any attempt at resistance. The democrats suffered reverse, but Walker gained his point. Granada was left with a weak garrison. He had a force of 250 natives and about 80 Americans, with which he left San Juan at daybreak on the 11th of October, arriving at La Virgen early the same morning. In the afternoon Colonel Hornsby seized the steamboat *Virgen*, and the next morning the troops were embarked and informed that their destination was Granada. They effected a landing at 3 o'clock in the morning of the 13th, and took Granada with little resistance from the insignificant civic guard which constituted the garrison.^[XVI-15] The place was taken before a majority of the inhabitants knew who their visitors were. President Estrada, and the ministers Nicasio Castillo and Francisco Barberena, saved themselves on foot in different directions, which the other ministers, Mayorga and Ruiz, failed to do. The fact is, that persons who did not get away at the moment of the invasion found themselves unable to do so, and at the mercy of the enemy. Walker, however, checked the abuses of his soldiery, and liberated nearly 100 political prisoners, who had been kept in chains and at hard labor, and who now joined his banner to a man. He next issued a proclamation guaranteeing the lives, liberty, and property of legitimists promising to be peaceable.^[XVI-16]

ATTITUDE OF THE
BELLIGERENTS.

Walker now manifested a disposition to treat with Corral, who had prepared five hundred men for an attempt to recover Granada. Juan J. Ruiz, Estrada's minister of war, was despatched by water in company with John H. Wheeler, the American minister, to convey a message to Corral at Rivas; but on finding that the legitimist general had gone off to the eastern department, he escaped into Costa Rica. Another commission went by land, and meeting the legitimist army near Nandaime, communicated to the general Walker's message to this effect: peace, on the condition that the two leaders should govern the republic, Corral as president, and Walker as commander of the forces. [\[XVI-17\]](#) The proposition was not accepted. The expedition which had been prepared for an effort to recuperate Granada finally went to Masaya, where the legitimist government became organized, with President Estrada, and his ministers, Castillo and Barberena.

ASCENDENCY OF
THE FILIBUSTER.

The officers who had won the victory at Pueblo Nuevo, fearing that their country would become a prey to the foreign adventurers, proposed to Escoto's government a fusion of the parties, to drive Walker and his myrmidons out of the country. This effort failed. [\[XVI-18\]](#) Walker and Valle, for their successful campaign in the south, were on the 22d of October promoted to brigadier-general. The first named, angered by Corral's refusal to accept his proposals, and ignoring his own pledges to the prisoners taken at Granada, reduced to close confinement some of the most prominent, among them the ex-minister Mayorga, [\[XVI-19\]](#) whereupon a commission, composed of the Frenchman Pierre Rouhaud of Granada, and Fermin Arana, represented to Corral the necessity of his coming to amicable arrangement with Walker, but he declined a second time. Meanwhile an incident occurred which greatly aggravated the evils of the situation. Parker H. French [\[XVI-20\]](#) brought fifty men to Walker from California, who, under a so-called Colonel Fry, were to capture Fort San Carlos, which they failed to do. The steamer then returned to Granada to leave the recruits, and to La Virgen to

land the rest of the passengers. This was done just as some legitimist troops, under Captain F. Gutierrez, arrived. Gutierrez asserted that he had been fired upon from the house of the Transit company, and returned the fire, keeping it up till hostilities from the other side ceased. The result was, that two or three passengers from the United States were killed. The San Carlos also fired shots at the river steamer on her return from the north with passengers, a gun killing a woman and child.^[XVI-21] This news reached Granada together with Corral's second refusal. Walker then resolved upon retaliation, to avenge the slain of San Carlos and La Virgen, and to frighten the legitimists into accepting terms of compromise. Mayorga, a young man of twenty-nine, generally esteemed for his fine qualities, was the chosen victim, and shot in the morning of the 23d.^[XVI-22] Rouhaud and Arana went on the 22d to Masaya, reporting Mayorga's fate, and urging the absolute necessity of disarming Walker's wrath to avert greater calamities.^[XVI-23] Added to their statement was a petition from the prisoners in favor of peace, and the alarming news that four hundred more riflemen had arrived to swell Walker's army. The legitimist authorities concluded then to negotiate for peace, and sent Corral to Granada on the 23d for that purpose, which was tantamount to a capitulation. The chief clauses agreed upon between him and Walker were: suspension of hostilities; recognition of Patricio Rivas as provisional president; and reorganization of the two contending forces into one army, with Walker as its commander-in-chief.^[XVI-24] Corral returned to Masaya, and Estrada, submitting to the force of circumstances, approved it, though his army was disposed to disregard the capitulation.^[XVI-25] However, he filed a protest declaring that the arrangement had been forced upon him, and therefore void.^[XVI-26] He called on the other governments to come, without further invitation, and save the independence, sovereignty, and liberties of Nicaragua; and to that effect appointed commissioners with unlimited powers^[XVI-27] to conclude adequate treaties. The fall of Cabañas in Honduras opened an opportunity in that direction. Estrada dissolved his

government October 28th, and departed for Chontales, but soon after had to take refuge in Honduras.

MURDEROUS
PROCEEDINGS.

Fermin Ferrer and Valle, alias El Chelon, were despatched as commissioners to obtain the assent of the government at Leon to the convention of October 23d, which, in view of Walkers rebellion, was given only after some hesitation. [XVI-28] A commission was despatched to Walker to thank him for his services, which had made possible a peace, and to authorize him to ratify the arrangement. After which the government, October 28th, dissolved itself. The commissioners [XVI-29] arrived at Granada on the 31st, and found there the provisional president, Patricio Rivas, [XVI-30] who had arrived from San Juan del Norte on the 30th, and occupied the presidential chair. He had at first appointed Corral minister of war, Walker general of division and in chief of the forces, and Norberto Ramirez minister of relations. Corral was pleased with this arrangement, as Rivas was disposed to rely on him; but Walker became suspicious, and the result was that, Corral's opposition notwithstanding, Rivas was made a blind tool of Walker, and in obedience to orders appointed a new cabinet with a majority of democrats; namely, Máximo Jerez, of relations; Fermin Ferrer, of public credit; Parker H. French, of the treasury; Corral retaining the war portfolio. The latter now saw the abyss his weakness had thrown him into. The man who, ignoring the duty he owed his cause, threatened with death any one proposing to him plans against Walker, now writes Martinez, comandante at Managua, that all is lost, and he, Martinez, must take some steps to save the country. With this letter were enclosed others to the same effect addressed to generals Guardiola and Pedro Xatruch, who had returned to Honduras. [XVI-31] These letters went into the hands of Walker, [XVI-32] who at once called to his presence the legitimists then in the city to forbid the departure of any of them, and laid the letters before Rivas and his cabinet. Corral acknowledged the authorship, declaring that he was solely responsible for them. It was then decided to confine in prison Corral and his chief supporters. This was

on the 5th of November, the day after Corral's troops had been, without any previous notice, disarmed.^[XVI-33] On the 6th, it was decreed that Corral should be dealt with as a traitor and tried by court-martial, which was done in the presence and with the approval of the government, notwithstanding its illegality.^[XVI-34] The trial took place, and the prisoner was sentenced to death.^[XVI-35] The prisoner's family used the utmost exertions to have the sentence revoked, but Walker was inflexible, and the penalty was inflicted on the 8th of November,^[XVI-36] causing the utmost consternation in the native community. The portfolio of war was given to Selva by a decree of November 5th. Valle went to Managua to place Pascual Fonseca in command, vice Martinez, and to report if the latter made any resistance, in which event Walker would have shot his legitimist prisoners. But as none was offered, Martinez having had timely warning, Walker had them released.^[XVI-37]

Walker was now master of Nicaragua. As a matter of fact, the secondary leaders were scattered and powerless, and but for the execution of Corral, and the wanton imprisonment of subordinate officials and private citizens, the conservative party would have submitted with a good grace to the new order of things, if pledged security of life and property. It is undeniable that the legitimists feared the Yankees^[XVI-38] less than they did the native democrats. Walker pretended a great respect for religion, without whose support, he said, no government could have stability.^[XVI-39] He succeeded in borrowing from the vicar 963 ounces of fine silver belonging to the church; and it is evident that he placed great reliance on a numerous foreign immigration to keep his ranks well filled.^[XVI-40] A decree was issued at this time by the government, and published in its official journal, which might be called one for the confiscation of the property of absentees, who were required to return to their homes under heavy pecuniary penalties, collectible without any previous legal process.^[XVI-41]

The exiles who reached Honduras^[XVI-42] endeavored to obtain help from the government, but Guardiola, now chief of the state, declined giving any, and in fact permitted no hostile words against Walker or the Yankees. Cabañas had come to Granada for aid to recover his lost position,^[XVI-43] which alarmed Guardiola, who despatched Manuel Colindres with the ostensible mission of negotiating a treaty of friendship with the government, but really to watch Cabañas. Colindres announced himself from Yuscaran, but on reaching Leon, and ascertaining that Cabañas got no assistance, went back pleading fear of the cholera, which was doing havoc in the foreign force; but the recognition by his government was already accomplished. The cabinet of San Salvador also returned a satisfactory answer to a circular from Nicaragua.^[XVI-44] Guatemala apparently inclined toward neutrality, until Estrada applied to Carrera for assistance, and was told that he would be recognized as the legitimate president of Nicaragua, but must first establish his government somewhere.^[XVI-45] Estrada, being unable to set it up in Honduras, asked for 50 men to escort him to Nueva Segovia in Nicaragua, but did not get them, though he laid before Guardiola the letters from Carrera and Pedro de Aycinena. In Costa Rica, the situation of Nicaragua was differently viewed. President Mora despatched Nazario Toledo to Guatemala to arrange for concerted action against Walker.^[XVI-46] Mora in an energetic proclamation asked the people to prepare for the defence of their lives and property at a moment's call.^[XVI-47] Walker watched the conduct of Costa Rica, believing it prompted by British influence mainly against the United States. Rivas' relations with the cabinet of Washington were not encouraging. It is true that Wheeler, the American minister, had prematurely recognized him, but he had not been upheld in it by his government. Parker H. French, being accredited in November 1855 as minister at Washington with powers to negotiate a treaty, was not received in any diplomatic capacity.^[XVI-48] He was thereupon recalled, and diplomatic relations were discontinued with

Wheeler.^[XVI-49] President Pierce issued a proclamation against the departure from the United States of filibustering expeditions, which were declared disgraceful and criminal. Cabañas, in whose behalf Jerez had used his best endeavors, having been refused by the government any aid,^[XVI-50] retired to Salvador,^[XVI-51] and Jerez resigned his portfolio on the 8th of January, 1856. Soon after, the cabinet was reduced to one, Fermin Ferrer, who served as ministro general.

Walker now endeavored to gain the good-will and coöperation of the legitimist party, but his intrigues, cajolings, and even threats failed to secure the desired effect.^[XVI-52] The legitimists saw in Walker's disagreement with the democrats their opportunity to bring about the fusion of all Nicaraguans against the common enemy; but both Walker and the democrats concluded that they must work together for their mutual safety; hence the removal of the capital to Leon.^[XVI-53]

SEIZURE OF
STEAMSHIP
PROPERTY.

Walker now committed one of the greatest blunders of his life in quarrelling with the founders and chief men of the Accessory Transit Company, whose ships had brought him much to recruit his needed men and military supplies.^[XVI-54] He and Edmund Randolph, after studying the company's contracts made in 1851, arrived at the conclusion that there were good reasons to revoke their charter and acts of incorporation, and to make a grant to other parties.^[XVI-55] This was secretly done without communicating their plans to President Rivas or his cabinet. After completing their arrangements in New York, Walker and Randolph drew up a decree suppressing the Accessory Transit Company, which was laid before Rivas, who issued it on the 18th of February, 1856. On the following day he, in obedience to Walker's command, signed a new charter in favor of Randolph.^[XVI-56] Cleto Mayorga, E. T. C. Kewen, and George F. Alden were appointed commissioners to ascertain the amount of the company's indebtedness, and to attach their property, all of which was done with the

explanation of its course.^[XVI-58] But it persisted in leaving unanswered the Nicaraguan notes, and refused to receive Louis Schlessinger, the envoy sent, who retired threatening war and Walker's resentment.^[XVI-59] Costa Rica accepted the challenge of war, President Mora, with the authorization of the legislative body, resolving to carry the arms of the republic into Nicaragua, and to aid in driving out the foreigners. War was accordingly declared, the strength of the army raised to 9,000 men, and a loan levied for expenses.^[XVI-60] After surrendering the executive office to Vice-president Oreamuno, Mora placed himself, on the 8th of March, at the head of an army about 3,000 strong,^[XVI-61] and in a few days was in Bagaces, at the extreme end of the gulf of Nicoya, ready to cross the frontier into Nicaragua. Walker, who seemed to misjudge Costa Rican prowess, sent only 500 men under Schlessinger, who on the 20th^[XVI-62] encountered the enemy's avant guard, and after a few minutes' fighting were put to flight, losing a quantity of arms and several killed and wounded.^[XVI-63] A number of prisoners captured by the Costa Ricans were at once tried by court-martial and shot.^[XVI-64] Schlessinger with a few men reached Rivas, where Walker had concentrated his forces, and unsuccessfully tried to exculpate himself.^[XVI-65]

COSTA RICA TO
THE RESCUE.

The Costa Ricans marched to Rivas, and as they approached Walker retired on the Transit company's lake steamers to Granada. Two columns of 300 each dislodged on the 7th of April the Nicaraguan garrisons left by Walker in La Virgen and San Juan del Sur, and on the following day the rest of the army occupied Rivas. But Walker soon came upon them. Under cover of the thick plantain and cacao plantations, he entered unperceived in the morning of the 11th. His attack began about 8:30 and lasted till night. He captured the main plaza, and from the church and houses kept up a deadly fire on the enemy, stationed only two blocks away. The latter fought desperately, till Walker, finding himself closely pressed by Costa Rican reinforcements

from La Virgen and San Juan del Sur,^[XVI-66] and surrounded by burning buildings, gave orders for retreat, which was silently effected under cover of the darkness, never tarrying till he reached the Gil Gonzalez River. He left behind a considerable number of rifles, revolvers, and other arms, and about 50 saddled horses, besides his seriously wounded in the church. The Costa Rican victory was complete, though at the expense of heavy casualties.^[XVI-67] The victors were relentless toward the first prisoners that fell into their hands. According to Mora's report, the wounded in the church were bayoneted, and seventeen others shot. Walker tried to make out that he had won a great victory, and the event was celebrated in Granada with salutes and ringing of bells; and his government published that the Costa Ricans had been dispersed and were in full flight.^[XVI-68]

UNSTABLE POWER
OF THE PIRATE.

Mora expected heavy reënforcements from Punta Arenas, and had formed the plan, after securing eastern Nicaragua between the Pacific and the great lake, and cutting off the transit communication, already suspended by a general order, to assail Walker in his stronghold of Granada. He was further encouraged in this by news that forces of Salvador and Honduras were already on the western frontier, under Bellosó and Xatruch, ready to coöperate with him. But the breaking out of cholera in his army, with terrible havoc in its ranks, necessitated the abandonment of the project for the time. And a report having come of plottings in Costa Rica against his authority, with his brother José Joaquín and his personal staff, he returned home, leaving General Cañas in command of the remnants of the army, with orders to send it back to Costa Rica in the most convenient manner, which was done, many of the men being left dead or dying on the march. Cañas found it unavoidable to leave his wounded and sick in Rivas, and fearing retaliation because of the executions of prisoners at Santa Rosa and Rivas, he wrote Walker on the 26th of April, recommending these men to his protection, and proposing an exchange of prisoners, of whom he had twenty, according to the usages of war. This letter had the desired effect.^[XVI-69]

CHAPTER XVII.

END OF FILIBUSTERING IN CENTRAL AMERICA.

1856-1867.

RECOGNITION OF PRESIDENT RIVAS BY THE UNITED STATES—WALKER'S HOSTILE ATTITUDE—FLIGHT OF RIVAS—WALKER MAKES HIMSELF PRESIDENT—ALLIANCE AGAINST HIM—DEATH OF ESTRADA—THE LEGITIMISTS ACCEPT RIVAS—COSTA RICANS AND NICARAGUANS IN RIVAS—DESTRUCTION OF GRANADA—IT IS OCCUPIED BY ALLIED FORCES—WALKER REOCCUPIES RIVAS—WHERE HE IS BESIEGED—SUCCESES OF THE COSTA RICANS—FAILURE OF LOCKRIDGE'S EXPEDITION—SURRENDER OF WALKER—WAR OF NICARAGUA AND COSTA RICA—COMMODORE PAULDING AND WALKER'S SECOND ATTEMPT—WALKER'S INVASION OF HONDURAS, CAPTURE, AND EXECUTION—GOVERNMENT REORGANIZED—PRESIDENT MARTINEZ' ADMINISTRATIONS.

After the departure of the Costa Rican forces from Rivas, toward the end of April or beginning of May 1856, Walker visited the town, treating harshly the principal citizens—men who loved their country better than they loved designing interlopers—and causing one to be hanged.^[XVII-1] This was done to terrify his enemies. Leaving Hornsby as military governor, with a garrison, Walker went back to Granada. His army here was also being decimated by the epidemic, but its ranks were replenished from the passengers brought by the steamships, which still were his efficacious auxiliaries. Meanwhile the presence of the combined forces of the other states in the west was felt in the towns of the western departments, chiefly in Chontales and Matagalpa,^[XVII-2] the natives yearning for relief from foreign domination. A meeting of military officers held on the 20th of April at Matagalpa, and presided over by General Fernando Chamorro, adopted resolutions in favor of restoring Estrada as the legitimate president.^[XVII-3]

This movement came to naught; Chamorro, being defeated, passed into Honduras.

The democratic party, desirous as much as possible of being away from Walker's oppressive influence, had the government seat removed to Leon. [\[XVII-4\]](#) The general started from Granada May 31st with his best officers and 300 infantry, for Leon, where he was greeted as a conquering hero. [\[XVII-5\]](#) While there he approved of, or maybe prompted, the decree of June 10th, convoking congress, and for the election of a chief magistrate. He had in view to bring about his own election as president, intending after that to throw off his democratic friends, whose loyalty he distrusted. Very satisfactory news, both to him and the government, came at this time. The government of the United States had recognized Father Agustin Vigil as minister plenipotentiary accredited at Washington by Rivas. This recognition was of great advantage to Walker. [\[XVII-6\]](#)

DISSENSIONS. On the 11th, after Walker had departed on his return to Granada, leaving Colonel Bruno Naztmer in command, this officer ordered foreign soldiers to take the place of the natives in the steeples of the cathedral. Minister of war Jerez countermanded it, and being disobeyed by Naztmer, [\[XVII-7\]](#) the government became much alarmed, Rivas and Jerez starting forthwith for Chinandega, [\[XVII-8\]](#) whence Walker was directed to concentrate the foreign forces in Granada. Upon hearing at Masaya of the occurrences of the 11th and 12th, he countermarched as far as Nagarote, ordering Naztmer to bring there his command; after which he quartered his troops in Granada, placing, however, strong garrisons in Managua and Masaya. Rivas thereupon declared Walker a usurper, traitor, and enemy of the republic, depriving him of his rank and command. [\[XVII-9\]](#) Walker, on his part, deposed Rivas, calling Fermin Ferrer, minister of hacienda and government at Granada, who had identified himself with his cause, to assume the executive office, for the main purpose, it seemed, of decreeing an election for supreme authorities,

pursuant to the convocation of June 10th, though Rivas had revoked it on the 14th. [\[XVII-10\]](#)

Under the national constitution, the chief magistrate was not chosen by the direct suffrages of the people; neither did it permit a military officer in actual command, much less a foreign one, to be voted for. Nevertheless, in disregard of that law, the people of the region controlled by Walker's bayonets were made to give him their suffrages for the office of president, and 15,835 votes appeared as cast in his favor. [\[XVII-11\]](#) He was declared elected, and on the 12th of July was inducted into office with much pomp. [\[XVII-12\]](#) Wheeler, the American minister, recognized Walker as the legitimate president, and Rivas' government protested against it, [\[XVII-13\]](#) and declared all relations between the Nicaraguan government and Wheeler suspended.

Walker's first act was to appoint his cabinet, the chief of it being Fermin Ferrer. [\[XVII-14\]](#) One of his earliest decrees sounds the keynote to all this silly usurpation and accompanying infamy; it was the annulling of the federal law abolishing slavery. [\[XVII-15\]](#) Another infamous measure was the confiscation of the estates of Nicaraguans who might take up arms against him.

In a circular of July 3d Rivas appealed to the other Central American governments for aid to drive out the invaders. The call was answered, and his government recognized by Guatemala, Honduras, and Salvador, these three powers agreeing to unite their forces against Walker. Costa Rica was invited to coöperate, and promptly did so. [\[XVII-16\]](#)

DEFEAT OF THE LEGITIMISTS.

While the events thus far recorded were occurring, Estrada, the legitimist chief, entered Nicaragua, and established his government in Somotillo, appointing Pedro Joaquin Chamorro his minister-general, and General Tomás Martinez commander of the army to be raised. [\[XVII-17\]](#) On hearing that Rivas had

been recognized, it was concluded to leave Somotillo, via Nueva Segovia to Matagalpa, where Gros aroused the Indians. But on the way, at Ocotol, on the 13th of August, a party of democrats attacked and defeated them. Estrada tried to flee, but was overtaken and hacked to death.^[XVII-18] The town was plundered, and papers scattered, after which the assailants went away. Afterward an instrument was picked up in which Nicasio del Castillo was named Estrada's successor, who at once assumed the responsibilities of the position. However, General Martinez and Fernando Guzman, who, though respecting Estrada's good motives, had disapproved of his persistence in going contrary to accomplished facts, after his death held a consultation and concluded that the best policy was to coöperate with Rivas' government, bearing in mind the principle of legitimacy, though disregarding means and persons. Martinez and Guzman went to Leon, and succeeded with the assistance of the allied generals, and Gregorio Arbizú, the commissioner of Salvador, in making an arrangement by which there should be but one government in the republic, with certain legitimists in the cabinet;^[XVII-19] pursuant to which the latter was organized as stated below.^[XVII-20] Castillo accepted the arrangement and assumed the duties to which he was called.

The allied forces, having entered Nicaragua, occupied Leon in July, and in October advanced upon Managua, forcing Walker, after several encounters near Nindirí and Masaya, to reconcentrate in Granada.^[XVII-21] Masaya was occupied by the allies October 2d. There was much division among them, owing to old rivalries, and the need of an influential commander was evident.^[XVII-22] General Martinez was earnestly requested to hasten his movements and join the army. He had organized at Matagalpa a body of troops that subsequently bore the name of Ejército Septentrional, with which he came on; but cholera having played havoc among his Segovians at Tipitapa, he had to remain in Nindirí till the scourge abated, when he joined the allies.^[XVII-23]

THE
BELLIGERENTS IN
ACTION.

Walker's forces consisted of about 1,200 effective men, mostly Americans, the rest being English, French, and Germans. [\[XVII-24\]](#) The climate was his worst enemy. A number of his men succumbed daily, victims of cholera and fever. [\[XVII-25\]](#) The ranks were further depleted by desertions. [\[XVII-26\]](#) This was one of the chief reasons why Walker abandoned Managua and Masaya to concentrate in Granada, keeping, however, the transit line from San Juan del Sur to La Virgen. The filibuster chief now took advantage of the division of the allied forces—Belloso and Jerez in Masaya, Zavala and Estrada in Diriomo—and on the 11th of October made a dash with 800 men on Masaya, which had a garrison of 1,000. He entered the place at eight o'clock and took positions in Monimbó, south of the town. Early on the 12th he advanced as far as the blocks contiguous to the plaza, which he would undoubtedly have taken but for Zavala's attack on Granada. [\[XVII-27\]](#) On hearing of Walker's movement, Zavala started to the relief of Masaya. At Diriá he was informed that Walker was routed and in full retreat to Granada. He then changed his course, and turned up at the burying-ground of Granada with the view of getting the start of the enemy; but as the latter did not come, and he had positive information of the place being weak, he resolved to occupy it at once, though a heavy rain somewhat retarded the movement. He might have taken the town by surprise either from the north to south, but went round by Jalteva. [\[XVII-28\]](#) The allied force had not till then been detected from the city. But on the officer of the day descrying groups, he went to ascertain if they were Walker's men, and immediately giving the alarm, preparations were made to meet the expected assault. Nevertheless, the allies at two o'clock in the afternoon occupied the buildings on the plaza, excepting the church, where the foreign sick were intrenched. Zavala took Walker's house, and finding there a flag, rushed out waving it, until a bullet struck the flag, and another his surtout, when he realized his danger. Both the Guatemalans and legitimists gave themselves up to excesses. [\[XVII-29\]](#) The night of the 12th came on, and the church had

not been taken. Hearing the cannonading or receiving a report, early that morning Walker hurried back, it being preferable to save Granada than to take Masaya. In the morning of the 13th, Zavala learned that the enemy was rapidly approaching, and vainly tried to check them at Jalteva. Zavala and Estrada fled in the direction of Diriomo, leaving a considerable number of drunken men in the streets, who were butchered. Several Guatemalans fell prisoners. [\[XVII-30\]](#) Zavala's assault of the place where Walker had his base of supplies was a failure, but it saved the allied army. [\[XVII-31\]](#)

VERY FAIR
FIGHTING.

A Costa Rican division under General José M. Cañas started for Nicaragua, November 2d, and notwithstanding the enemy's efforts to hinder it, occupied San Juan del Sur and the road to La Virgen, thus cutting off Walker's communication with either point. It concentrated at Rivas on the 13th, and was joined by Jerez with 300 Nicaraguans. It was now in communication with the main combined army, which was preparing to assail Granada. Belloso received information from a friend in that city that Walker was on the point of making another dash on Masaya with 600 men. The allied army, in the city and vicinity, was now of about 3,600 men, [\[XVII-32\]](#) and leaving out wounded, sick, and servants, the effective force must have been no less than 3,000. The filibusters came on the 15th under Bruno Von Naztmer, a German, and were met outside by Nicaraguans and 600 Guatemalans at three o'clock in the afternoon. The enemy opened fire, and the Guatemalans fled panic-stricken. However, the first charge of the filibusters was checked, and they now assumed the defensive. The Guatemalans returned to the charge, and heavy fighting followed, which lasted till night. The next morning Walker took command, Naztmer being wounded, and pushed his operations into the town, where the allies had concentrated in the night, burning a number of buildings; but he soon convinced himself of the impossibility of accomplishing his purpose, and retreated to Granada in the night of the 18th. [\[XVII-33\]](#) At a council of war, it was resolved to evacuate the city, after setting fire to the buildings, leaving

a garrison to keep the enemy in check. This work of destruction was intrusted to Henningsen, who at once ordered the citizens to leave the place within a few hours before it was consigned to the flames. And all the time the authors of this vandalism were calling the Central American defenders of life, home, and liberty savages and greasers, and themselves lovers of freedom and disseminators of civilization![\[XVII-34\]](#)

In the early morning of the 24th the allied forces marched out of Masaya by the Carretas road; at 2 o'clock in the afternoon they were defiling on the low hills of the Otra banda, from which they could see the bonfire, made by the self-styled regenerators of Latin America, consuming seven churches and the public buildings, together with the dwellings of the citizens of Granada. The same day the allies had skirmishes with the enemy, and were defeated.[\[XVII-35\]](#) Martinez with his men from the north next day operated against the San Francisco building, and the filibusters in fear of being cut off abandoned it, and concentrated in the plaza. The night of the 25th was a very rainy one. The 26th the filibusters, being hard pressed in the plaza and Guadalupe street, kept up a constant cannonade to keep open the way to the lake. On the 27th the filibusters had been driven from the plaza and reduced to Guadalupe street between La Sirena, a high house on the east of the parish church, and the ruins of the church. The Guatemalans pressed them from the south; the Nicaraguans from the north.[\[XVII-36\]](#) Henningsen's force was on the 1st of December only 150 men, out of 300 that he had retained to hold the position of Granada with, and being invited by Zavala to surrender, proudly refused.[\[XVII-37\]](#)

WALKER
WORSTED.

Walker had occupied San Jorge, distant three miles from Rivas, where Cañas and Jerez were intrenched, leaving his sick and wounded with a small guard on the island of Ometepe,[\[XVII-38\]](#) where he thought they would be safe; but a party of Indians with their priest Tijerino captured them on the 1st of December, and destroyed everything on the island that could be of use to

the enemy. Walker did not lose sight of his lieutenant Henningsen, to whom he finally sent relief on the steamboat *Vírgen*, with which Henningsen captured the small fort that had so harassed him, and then, December 13th, left on the boat, taking with him the 115 emaciated men that remained of his original force. The site of Granada was now fully in possession of the allies, [\[XVII-39\]](#) who discovered in the woods a number of wounded filibusters, and treated them humanely, excepting one whom they put to death.

December 11th had been a day of joy in the allied camp, owing to the arrival of General Florencio Xatruch with the first contingent of Honduran troops; [\[XVII-40\]](#) but they were cut up in the attack of the 13th by Henningsen. This officer's success in extricating himself with so much loss to his opponents caused a panic among the allied leaders, and the breaking out anew of dissension. Belloso and his Salvadorans went back to Masaya, reporting the discomfiture of the army. Whether out of spite, or from ignorance of the state of affairs, the general ordered Cañas to return to Costa Rica, and Jerez to retreat to Masaya. The latter, as a subordinate, had to obey; but Cañas, having come to fight the filibusters, would not go back, and accompanied Jerez to Masaya. Thus was Rivas evacuated by the allies, and reoccupied by Walker without firing a shot.

The lake steamers were of great advantage to Walker for the quick transportation of men and supplies, and on the other hand, made it necessary that the allied chiefs should have strong garrisons in Granada and Masaya, preventing a movement on La Vírgen and Rivas. The president of Costa Rica determined to deprive Walker of those facilities. To this end he despatched his brother, General José Joaquín Mora, with troops to the confluence of the San Carlos and San Juan rivers, who reached it on the 19th of December, and then going down in canoes to San Juan del Norte, without encountering much resistance, captured on the 24th four steamers. [\[XVII-41\]](#) They then went up the San Juan with the steamers, two of which were left at the junction with the Sarapiquí, and on the 28th took the

Castillo Viejo with the steamboat *Vírgen*, laden with artillery, rifles, and ammunition. They next possessed themselves of Fort San Carlos, and soon after of the steamboat of the same name, which had incautiously approached the fort. All this being accomplished, Mora was placed in communication with the allied forces of Granada, and left Walker without means of transportation by water, or to communicate with the northern sea-coast. Had the allies acted with reasonable promptness, both on land and water, Walker's end would have been a matter of only a few days. But it was retarded by their lack of union and generalship. [\[XVII-42\]](#) His situation was now critical. Desertions, which were frequent, sickness, and scarcity of food, daily decreased his force. For all that, he resisted in Rivas several assaults from both the land and lake till the 23d of February, and struck some heavy blows to the besiegers in San Jorge. [\[XVII-43\]](#)

THE INVADERS
BESIEGED.

The allied leaders had, after a council of war on the 23d of January, at Nandaime, appointed a general-in-chief, and heads of the several departments. The chief command was conferred on Florencio Xatruch. [\[XVII-44\]](#) His tenure lasted but a few days, José Joaquin Mora being finally selected by the governments commander-in-chief, when he was recognized as such in general orders of February 19th and 20th. [\[XVII-45\]](#)

The allies came to the conclusion that it was advisable to closely besiege the enemy rather than to attempt further assaults. Xatruch occupied and held, March 26th, the barrio de la Puebla, south of the city, which was the only means of free ingress and egress for the filibusters. Thus was Walker penned. But his friends abroad had not forgotten him. Three Americans, Lockridge, Anderson, and Wheat, brought 500 men to San Juan del Norte in March, and undertook to ascend the river. Lockridge occupied La Trinidad, but Titus was repulsed at the fort. They then concluded to invade Costa Rica, as was then supposed, for they essayed to go up the

Sarapiquí; but soon after entering the river their steamer blew up, and the expedition came to naught. [\[XVII-46\]](#)

The besieged, on hearing of the arrival, April 3d, with reënforcements, of General Martinez, whose prowess they had learned to respect, became alarmed, and the next day eighty deserters entered the allied lines. An assault in force was made April 11th, which failed. Walker's casualties were quite small, while those of the assailants were heavy. [\[XVII-47\]](#) The latter secured possession of San Juan del Sur, in order that Walker should receive no further aid from that quarter. It was now evident that the filibusters could not hold out much longer. The original force of 1,000, though more or less augmented with the arrival of every steamer, had become reduced to about one half that number. The garrison had an abundance of plantains, but no meat other than that of asses, mules, and horses.

CAPITULATION OF
WALKER.

An officer of the United States corvette *Saint Mary's*, which had been some time lying at San Juan, came on the 24th to Mora's headquarters to solicit in the name of Commander Charles H. Davis a truce of six hours, which was granted, for the removal from Rivas of the women, children, and other non-combatants. Walker, becoming apprised by that officer of the failure of Lockridge's attempt to succor him, signified a willingness to capitulate, not to the general-in-chief of the besieging forces, as was natural, but to commander Davis. To this Mora assented, in order to bring the war to an end at once, and save himself from certain complications he apprehended. [\[XVII-48\]](#) The capitulation being signed and carried out, Walker and sixteen officers, after bidding adieu to the army on the 1st of May, departed under the escort of Zavala, for San Juan del Sur, where they embarked on the *Saint Mary's*. [\[XVII-49\]](#) Davis then delivered the city of Rivas to Mora, and the rest of Walker's men, about 400 in number, were transported to the United States. [\[XVII-50\]](#)

The war being ended, the allied troops retired to their respective states. But prior to their departure there was an affair which might have ended in a sanguinary conflict had it not been for the prudent course pursued by most of the generals. The trouble arose from the hot-headedness of Zavala, the commander of the Guatemalans, who had been led to believe, by an evil counsellor, that the government would not return him some arms he had lent, nor furnish him transportation, nor even pay him the honors due his rank. All this was unfounded, but he maltreated the officer of the guard at the government house, and grossly insulted the president, his ministers, and others, threatening to hang them on the church of La Merced. His conduct was violent and scandalous. [\[XVII-51\]](#) Máximo Jerez and hundreds of soldiers rushed to the government's defence, and there would have been bloodshed but for Barrios of Salvador, who had command of 1,800 men, and prevailed on Zavala to go back to Chinandega, whence he marched to Guatemala, where he was received with the honors he had fairly won.

Mora returned to Costa Rica, leaving the command in charge of Cañas. It is said that he had planned to extend the boundaries of Costa Rica to the lake, which he deemed an easy undertaking, as the Costa Ricans had the lake steamers, and the Nicaraguans would be sure to break out into civil war. [\[XVII-52\]](#) War was declared by Costa Rica against Nicaragua on the 19th of October, 1857, and accepted by the latter in defence of her territory. [\[XVII-53\]](#) But upon a second invasion by Walker, peace was concluded on the 16th of January, 1858. [\[XVII-54\]](#)

SECOND AND
THIRD
EXPEDITIONS.

Walker arrived safely in his own country. But he was not yet satisfied with the misery and desolation he had wrought upon a foreign and unoffending people. He must play the vampire further; he must conquer Nicaragua and be a great man. Taking advantage of the rupture between this republic and Costa Rica, he prepared another expedition, with which, eluding the vigilance of the United States authorities, he sailed from New

Orleans for San Juan del Norte. He was arrested, however, at Punta de Castilla, December 8th, and sent back by Commodore Paulding, commanding the American home squadron.^[XVII-55] The officer's course obtained the highest commendation and gratitude in Central America, and particularly in Costa Rica and Nicaragua, the latter conferring upon him high honors. Loyal men who took up arms in the country's defence were also rewarded.^[XVII-56] But like a wild beast maddened by its wounds, Walker was still bent on blood, if blood were necessary to subjugate Central America to his will. He fitted out a third expedition, and landing with its avant guard at Trujillo on the 6th of August, 1860, seized the funds of the custom-house, which were pledged to the British government for the payment of Honduras' indebtedness to its subjects.^[XVII-57] The British war vessel *Icarus* entered the port on the 20th, and her commanding officer, Norwell Salmon, demanded that Walker should forthwith leave the place, which he did, fleeing to the eastern coast, where he and his men underwent the utmost suffering in that uninhabited marshy region. A party of Hondurans harassed them, and Walker was wounded in the face and leg. Finally, General Mariano Álvarez arrived with a Honduran force at Trujillo, and together with Salmon proceeded to the mouth of Rio Tinto, arriving there on the 3d of September. Walker surrendered to the *Icarus*, and was turned over to Álvarez, who had him tried at Trujillo by court-martial. He was sentenced to death, and executed on the 12th of September. Thus ended on the scaffold the career of William Walker, filibuster, pirate, or what you will.^[XVII-58]

The provisional government of Nicaragua on the 14th of January, 1857, organized a consultive council of five members and three substitutes,^[XVII-59] which was installed on the 20th. To that body were referred the strictures of ministers Cardenal and Castillo, upheld by General Martinez, the two former having resigned their portfolios because the president had declined to transfer the seat of government to the eastern department.^[XVII-60] The

council did not approve of their course, and suggested that Martinez, under a clause in the agreement of September 12, 1856, should summon R. Cortés and P. J. Chamorro to fill the vacancies in the cabinet. It does not appear, however, that Martinez took any steps in that direction.

The old dissensions which Walker's war had kept in abeyance now threatened to break out afresh. Legitimists and democrats alike saw in bloodshed and desolation the only means to settle their differences. Martinez and Jerez, with some of their friends from the east and west, and assisted by General Gerardo Barrios, commissioner of Salvador, labored in vain to effect an amicable arrangement.^[XVII-61] Jerez concluded that the only recourse now left to avert a war was for himself and Martinez to assume the responsibility of jointly governing the country dictatorially until it could be again placed under a constitutional régime. This plan being accepted, the two leaders organized themselves, on the 24th of June, into a junta de gobierno, otherwise called Gobierno Binario, which was recognized by both parties, and the dreaded calamity of war was avoided. The organization was completed with the appointment of Gregorio Juarez and Rosalío Cortés as the cabinet. Martinez and Jerez continued at the head of affairs until the 19th of October, when war with Costa Rica having been accepted, they resolved to assume personal direction of military operations, and resigned the executive office into the hands of the ministers. Martinez was then made general-in-chief of the forces, with ample powers, and Jerez second in command.^[XVII-62]

REORGANIZATION OF GOVERNMENT.

The first acts of the new government were to reconstitute the supreme and other courts, and to summon the people to choose a constituent assembly for framing a constitution,^[XVII-63] and a president of the republic. At the suggestion of Cortés, and with the assent of Jerez, Tomás Martinez was named to the people as a proper person for the executive office, and he was elected almost unanimously.^[XVII-64] He took the oath of office on the 15th

of November, promising to pursue a policy of peace and conciliation,^[XVII-65] and appointing Juarez, Macario Álvarez, and Cortés, his ministers respectively for foreign relations, treasury, and government.^[XVII-66] During his first term there were several changes in the personnel of the cabinet.^[XVII-67]

Martinez' administration not only gave Nicaragua the longest period of internal peace she had ever had, but promoted her prosperity in every branch, and notably in finances. At the time of its inauguration, the government had not one hundred dollars in the treasury. The liberating army had not been paid during the late war, and the only way to adjust the arrears was by issuing warrants, which the merchants soon got possession of at sixty to eighty per cent discount, and returned to the treasury at par in payment of import duties on merchandise, thus greatly reducing the revenue from that source. The government also adopted the unusual course of assuming to indemnify private persons for the losses they had sustained during the civil war, those resulting from the burning of Granada included.^[XVII-68] And yet Martinez, after his victory of April 29, 1863, against the united forces of Salvador and Honduras, succeeded within six years in doubling the amount of public revenues, and in arranging for the payment of the foreign debt.

NEW
CONSTITUTION.

The constituent assembly, on the 19th of August, 1858, adopted a new constitution, declaring Nicaragua to be a sovereign, free, and independent republic under a popular representative government.^[XVII-69] Two days later the assembly resolved to continue acting as an ordinary legislature, and decreed that all public functionaries should retain their respective offices until the new constitutional régime should have been installed. Prior to this, on the 30th of January, that body had declared illegitimate all the provisional administrations which had ruled Nicaragua from 1854 till the 8th of

November, 1857, excepting only the gobierno binario from June 24, 1857.
[\[XVII-70\]](#)

PRESIDENT
MARTINEZ.

During the first years of Martinez' rule, the most friendly relations seemed to exist between him and the leaders of the two political parties. Jerez was intrusted with important diplomatic duties.[\[XVII-71\]](#) At the beginning of 1861, the president in his message to congress stated that the country was at peace at home and abroad, Salvador being the only nation that had suspended diplomatic relations with Nicaragua.[\[XVII-72\]](#) Again, in January 1863, the president congratulated congress that peace reigned, and the country was prospering. He said with pleasure that no Nicaraguan was undergoing penalty for political causes.[\[XVII-73\]](#) The country was at the same time an asylum for the persecuted and exiles of other states. However, this hospitality extended to exiles gave rise to serious differences with Salvador, whose demands were invariably disregarded, until Barrios threatened to blockade the port of Realejo.[\[XVII-74\]](#) The consequence was, that Nicaragua and Guatemala, pursuant to the treaty made September 20, 1862,[\[XVII-75\]](#) became allies in the bloody war that broke out this year against Salvador and Honduras, details of which have been given in the history of Salvador for this period.[\[XVII-76\]](#) Martinez having been reëlected president for the quadrennial term from March 1, 1863,[\[XVII-77\]](#) offered his resignation on the ground that there might be opposition to his holding the office a second term. But congress, on the 5th of February, 1863, declined to accept it, and requested that he should continue at the head of affairs at least for a time. During the war with Salvador and Honduras, Martinez commanded the army in the field, and Nicasio del Castillo acted as president. At the end of the campaign, Martinez and the troops were rewarded for their services, he being raised to the rank of captain-general.[\[XVII-78\]](#) He resumed the executive office August 31, 1863.[\[XVII-79\]](#) The most stringent orders were issued against Jerez and others, declaring them traitors, and decreeing that

revolutionists were severally answerable with their property for the expenses the government had been put to by their acts. However, on the 20th of April, 1864, an amnesty law was passed, though not including the chief leaders. [\[XVII-80\]](#)

Toward the end of Martinez' second term some attempts at revolution were made, and easily quelled. They arose from a representation that Martinez contemplated retaining power for life; but in a proclamation of April 24, 1866, he pronounced the statements false. [\[XVII-81\]](#) Following the example of Washington, he insisted on his countrymen calling another citizen to the executive chair, and Fernando Guzman having been chosen, [\[XVII-82\]](#) he surrendered his authority to him on March 1, 1867. His rank as captain-general had been confirmed, and upon his tendering a resignation, congress refused to accept it. [\[XVII-83\]](#) However, scarcely one year later, congress suppressed the rank altogether. [\[XVII-84\]](#) Ex-president Martinez' death occurred on the 12th of March, 1873, and his remains were buried with high honors on the 20th. [\[XVII-85\]](#)

CHAPTER XVIII.

POLITICAL EVENTS IN COSTA RICA.

1856-1886.

REWARDS TO WALKER'S CONQUERORS—RE-ELECTION OF MORA—HIS DOWNFALL AND EXILE—HIS RETURN, CAPTURE, AND EXECUTION—MONTEALEGRE'S ADMINISTRATION—VIOLENCE OF PARTIES—COMPROMISE ON JESUS JIMENEZ—HIS PEACEFUL RULE—PRESIDENT JOSÉ M. CASTRO—CHARGES AGAINST HIM—HIS OVERTHROW—SEVERAL NEW CONSTITUTIONS—JIMENEZ AGAIN PRESIDENT—HIS ARBITRARY ACTS—HOW HE WAS DEPOSED—PRESIDENT CARRANZA—OTHER TEMPORARY RULERS—PRESIDENT GUARDIA'S DESPOTISM—FAILURE OF HIS WARLIKE PLANS—HIS DEATH—ADMINISTRATION OF PRÓSPERO FERNANDEZ—PREPARATIONS TO DEFEND INDEPENDENCE—HIS SUDDEN DEATH—BERNARDO SOTO'S PEACEFUL RULE.

In describing the early operations of the Costa Ricans in Nicaragua against Walker in 1856, I alluded to the sudden departure of President Mora and his brother from Rivas for Costa Rica, because of tidings received of an attempted insurrection against the government, then temporarily in charge of Vice-president Oreamuno. This revolt was soon quelled, and the leaders and officers connected therewith were arrested and expatriated. Oreamuno having died, Vicente Aguilar was chosen vice-president on the 17th of September, but resigned the position the next month. [\[XVIII-1\]](#) A change of ministry took place on the 26th of September, the distinguished statesman taking charge of the portfolio of foreign relations. [\[XVIII-2\]](#) The president, owing to war against the filibusters, suspended the action of the constitution on the 15th of November, but repealed the decree a few days later. [\[XVIII-3\]](#)

The successful termination of the war was hailed in Costa Rica with great joy, and the men who gave this glorious page to her history were

highly honored. The president was made a captain-general, [\[XVIII-4\]](#) and the officers, as well as the rank and file, were promoted and otherwise rewarded. [\[XVIII-5\]](#)

The elections for president and vice-president of the republic took place, and congress on the 4th of May, 1859, declared that Juan Rafael Mora had been reëlected, and Rafael G. Escalante chosen for the second position. [\[XVIII-6\]](#)

Mora's administration had initiated a number of measures tending to the advancement of the country. Among other improvements was that of the fine national palace in San José. Costa Rica had enjoyed a long period of internal peace with an increasing prosperity. Mora was quite popular with the masses, but encountered opposition from the property owners, merchants, and army men. For this reason he could not strengthen his government, and found himself at the mercy of a coup de main the moment the people thought their interests were jeopardized by his power. [\[XVIII-7\]](#) Hence the revolutionary movement that hurled him from his executive office in the night of August 14, 1859. A provisional government, composed of his political enemies, was at once organized, meeting with no opposition on the part of the people. It was a palace revolution, and no blood was spilt. Mora was kept in confinement, though otherwise well treated during three days at the end of which he was taken to Puntarenas, and sent out of the country on an American steamer. He settled with his family in Salvador, where he introduced the cultivation of coffee.

VICENTE
AGUILAR.

The new government now took steps to have itself confirmed by a constituent assembly, and to cause its provisional president, José María Montealegre, regularly elected. The influential man of the administration was Vicente Aguilar, ex-vice-president, a wealthy man, and the deadly enemy of Mora. He was the minister of the treasury and of war, and by his instigation some reactionary and despotic measures were adopted, thereby increasing the

general uneasiness. The country was henceforth divided into two political parties, each claiming to be the representative of law and order. [\[XVIII-8\]](#)

The constituent assembly, pursuant to convocation, met on the 16th of October, and on the 26th of December adopted a new constitution in 142 articles, which was promulgated the next day. This fundamental law was liberal except in the matter of religion, as it neither recognized nor tolerated any form of faith but the Roman catholic. All other rights of man were conceded. [\[XVIII-9\]](#) The constituent congress adjourned sine die on the 27th of December, and the ordinary congress opened its session on the 22d of April, 1860, on the next day declaring that José María Montealegre had obtained a popular majority for the office of president of the republic, and appointing the 29th for his inauguration. On the 24th that body designated the persons who were to fill the executive chair in the temporary or absolute absence of the president. [\[XVIII-10\]](#)

DEATH OF MORA.

Before many months had passed, Costa Rica witnessed a catastrophe which filled the whole of Central America with sorrow, indignation, and shame. Mora, the deposed president, had solemnly protested against the revolutionary acts which deprived him of his office. There were not wanting men, who, either honestly or with evil intent, beguiled him into the belief that he was wanted back, and would meet with a cordial reception and support. He allowed himself to be thus deceived, and committed the error of going against an accomplished fact, in an attempt to recover by force the executive authority, which was now legitimately held by Montealegre. He landed in September at Puntarenas with a few friends, was received with apparent enthusiasm, and got together about 300 or 400 men; [\[XVIII-11\]](#) but believing it safer to increase his force before marching to the capital, he tarried behind, thus allowing the government an opportunity to organize superior forces, and to issue relentless decrees. The government's forces assailed Mora on the 28th of September at La Angostura, [\[XVIII-12\]](#) and defeated him. He soon found

himself forsaken by his men, and though aware that stringent orders for his arrest had been issued, he surrendered to his enemies on the 30th, when he was tried by a drum-head court-martial, and shot three hours after. [\[XVIII-13\]](#) This judicial murder of this honorable, just, and progressive man, who had rendered such great services in saving national independence, caused general consternation and displeasure. His invasion was not approved of, but no one had imagined that his life could be in peril if he were captured. Public opinion was pronounced against such relentless vengeance. Even Nicaragua, which had grievances against Mora, and had excluded his supporters from her territory, regretted his untimely end. [\[XVIII-14\]](#) In Costa Rica his death was attributed to bitter personal and sordid animosity. Public opinion was not at fault. Mora wrote his wife, one hour before his execution, on his faith as a Christian, that Vicente Aguilar justly owed him upwards of \$200,000; and if he ever expected to die in peace with his God, he should make restitution of that sum to Mora's family. Aguilar, as minister of war, signed the orders for the execution, and was responsible for Mora's death. These orders included the execution of two others, namely, General J. M. Cañas, and Manuel Argüello, a young lawyer. The latter was saved by General Máximo Blanco, but Cañas was shot two days after Mora. [\[XVIII-15\]](#)

The penalty of death was doubtless intended by Aguilar to be a settlement of accounts with the man he detested; but it did not satisfy him; he added confiscation, and to the end showed himself relentless in his animosity to Mora's family and supporters. But he did not long survive his victims, dying on the 26th of April, 1861, of ossification of the heart. After his death, a milder policy was inaugurated. A general amnesty, from which were excluded only a few military men who while in active service had joined revolts, was issued; [\[XVIII-16\]](#) exiles returned to their country, and regularity in affairs was restored. The government gained in popular esteem by a scrupulous observance of the promises made at the time of its creation, restoring internal peace based on constitutional liberty and a proper economy. [\[XVIII-17\]](#) However, Mora's friends, though disposed to do justice to

Montealegre's administration, never would forgive its origin and early acts. They and their political confrères brought on a reaction against it. Party excitement became great, and there was danger of civil war. Two presidential candidates for the next term, namely, Aniceto Esquivel and Julian Volio, were in the field, the former being a warm friend of the administration, and the latter independent. Montealegre was the first to suggest a compromise. There was in Cartago a former minister of Mora, Jesus Jimenez, who was finally agreed upon by all parties for the executive office, and was accordingly elected. [\[XVIII-18\]](#) He took possession of the chair on the 7th of May, Montealegre surrendering it with greater alacrity than he had occupied it in 1859. [\[XVIII-19\]](#)

JIMENEZ AND
CASTRO.

Jimenez, during his administration, fully answered expectations. He maintained peace by pursuing a just and conciliatory policy. The country kept on its career of progress and prosperity. [\[XVIII-20\]](#) The next president duly chosen was the founder of the republic, José María Castro, for the term from May 8, 1866. [\[XVIII-21\]](#) The number of ministers of state having been reduced to two, the president decreed the organization of a privy council whose members were to serve without pay. [\[XVIII-22\]](#) Castro's government was a strictly economical one. It diminished the number of officials, and suppressed the president's guard of honor. The result was that the treasury was enabled to meet obligations contracted for the development of education, and of the interests of the country. [\[XVIII-23\]](#)

During the presidential election in 1868, party agitation jeopardized the public peace. The press became virulent, not sparing even the families of prominent men. The government was accused of making no effort to check such abuses, or to restore harmony. There would certainly have been a resort to arms but for the moderation of the two chief officers of the army, generals Lorenzo Salazar and Máximo Blanco. [\[XVIII-24\]](#) These officers and others placed themselves at the head of a pronunciamiento which took place

at San José on the 1st of November to depose Castro and suspend the constitution of December 27, 1859. Jesus Jimenez, the first designado, was then called to assume the executive office, with ample powers to call a constituent assembly. He accordingly placed himself at the head of affairs, and convoked the assembly, to meet on the 1st of January, summoning the people also to choose the next president, together with senators and representatives for the next constitutional term to begin May 1, 1869. [\[XVIII-25\]](#)

The new constitution was framed on the 18th of February, and promulgated in April 1869, consisting of 149 articles, and containing very liberal principles. [\[XVIII-26\]](#)

REVOLUTION.

The ordinary congress met, and declared Jimenez to be the constitutional president for the next term, and he was inducted into office with the usual formalities. [\[XVIII-27\]](#) But owing to congress having refused to pass a railroad bill, Jimenez lost his temper, resigned his office, and left the capital. But the resignation was not accepted, and he was induced to return. Subsequently, on his representing that the country was in danger from internal disturbances due to party violence, that body decreed a suspension of the constitution. [\[XVIII-28\]](#) This order of things lasted until the 27th of April, 1870, on which day sixteen men, among whom were Tomás and Víctor Guardia, Pedro and Pablo Quiroz, and Próspero Fernandez, captured the artillery barracks of San José by a coup de main. There were a few killed and wounded, among the former being the commander, Colonel A. Biscoubi, a French officer who distinguished himself in the defence of San Salvador in 1863. [\[XVIII-29\]](#)

After the capture of the barracks the president was seized, and kept a prisoner about twenty-four hours. Bruno Carranza was then proclaimed provisional president, and assumed the duties on the 28th. Jimenez and his ministers were detained to answer charges that would be preferred against

them.^[XVIII-30] Jimenez was allowed to reside in Cartago under surveillance; but, fearing for his life, as he alleged, escaped.^[XVIII-31] The men who brought about the overthrow of the oppressive government of Jimenez were not left unrewarded.^[XVIII-32] All proscriptive orders which had emanated from it were revoked, and persons in exile were enabled to come back.

The people were again summoned to elect a constituent assembly to meet on the 8th of August, which took place; it declared the constitution of 1869 no longer in force, and temporarily revived that of December 1859. Carranza resigned on the same day that the convention assembled, and Tomás Guardia^[XVIII-33] was appointed his successor on the 10th. One of Carranza's last acts, July 30th, was to suspend the treaty of friendship with Guatemala of 1848, because the latter had closed diplomatic relations with Costa Rica.^[XVIII-34] It is to be said to the credit of Carranza's short rule that though clothed with dictatorial powers they were used very sparingly.^[XVIII-35]

TOMÁS GUARDIA.

Public tranquillity was constantly menaced, till finally a number of assemblages passed resolutions to rescind the powers conferred on the constituent assembly, and granted the authority of a dictator to Tomás Guardia, whereupon on the 10th of October that body was dissolved by him.^[XVIII-36] That same day he decreed a full amnesty to Ex-president Jimenez and his ministers Agapito Jimenez and Eusebio Figueroa. He next, on the 13th, created a council of state with prominent political men,^[XVIII-37] assumed personal command of the forces, and appointed Rafael Barroeta his substitute. In May 1871, several prominent citizens were ordered to reside on the Golfo Dulce.^[XVIII-38]

A constituent assembly was convoked on the 12th of August,^[XVIII-39] and met on the 15th of October, which adopted another fundamental law for the republic on the 7th of December. It was a most liberal constitution, recognizing all the rights of man. On religion it accepted the Roman

catholic as the only one to be supported, but tolerated other forms. Foreigners were allowed the privilege of trading and other lawful industries, including navigation of rivers and coasts, of holding property, marrying, and testating. They could not be compelled to become citizens, but if they wished it, one year's residence sufficed to obtain naturalization. The government was declared to be popular, representative, alternative, and responsible. It was divided into three branches; namely, legislative, executive, and judicial. [\[XVIII-40\]](#)

The national congress being installed May 1, 1872, on the 30th declared Tomás Guardia duly elected president, and on the same date appointed José Antonio Pinto and Rafael Barroeta first and second vice-president respectively. The same body June 20th granted Guardia leave of absence, with permission to visit foreign countries for the benefit of his health, and authorized the government to appropriate out of the treasury a sum not exceeding \$25,000 for his travelling expenses. José A. Pinto had charge of the executive in his absence. [\[XVIII-41\]](#) Guardia reassumed his office on the 26th of January, 1873.

The policy Guardia's government had pursued toward Guatemala, Salvador, and Nicaragua caused these three powers to prepare for any emergency which might arise. They accordingly entered into a treaty of alliance on the 26th of August, 1873. [\[XVIII-42\]](#) Minister Montúfar had been the only one to endeavor to check Guardia's hare-brained plans; but he was despatched to Europe with the intent of dismissing him in his absence. Costa Rica, on the 24th of October, addressed a circular to other governments remonstrating against that treaty. [\[XVIII-43\]](#) Her government implied that the treaty had been prompted by private animosity, which the others indignantly denied. [\[XVIII-44\]](#)

MORE
PRESIDENTS.

This state of affairs created much alarm in Costa Rica, as well as elsewhere in Central America, and Guardia, professing to give way to the demands of

public opinion, which pointed to him as the sole promoter of war, temporarily resigned the executive office into the hands of the first designado, Salvador Gonzalez, on the 21st of November.^[XVIII-45] Gonzalez formed a new cabinet, with José M. Castro as minister of foreign affairs, and fixed upon a policy that would secure public confidence at home and peace with the other states.^[XVIII-46] Gonzalez and his ministers had believed in Guardia's sincerity, but they soon discovered that he had been playing a hypocritical rôle. Pretending indignation at what he called lowering the country's honor, and trailing its flag in the dust,^[XVIII-47] he resumed the presidential office on the 1st of December, and the next day placed it in charge of Rafael Barroeta,^[XVIII-48] who held it till the 28th of February, 1874, when Guardia resumed it. The latter was again granted a leave of absence May 19, 1875, and was absent several months.^[XVIII-49]

Some further correspondence passed between the governments of Costa Rica and Nicaragua, resulting from an abortive attempt at revolution in Guanacaste, when the insurgents, being defeated, escaped into Nicaragua. A force of Costa Ricans landed from a steamer, killed some persons and arrested others in territory claimed to be within the neutral district, under the boundary treaty of 1858, which both parties had bound themselves to respect till the question of limits should be finally settled.^[XVIII-50] Congress, in March 1876, authorized the executive to station troops in Guanacaste, on the frontier of Nicaragua, and defend the country's honor, if assailed. He was also to arrange, if possible, the troubles with that republic. Guardia visited the frontier, where General Máximo Jerez and a number of officers also went via Puntarenas.^[XVIII-51]

On the 27th of March a general amnesty was issued to all political offenders, which implied that the government was confident the public peace would not be disturbed.^[XVIII-52]

Congress declared, May 3d, that Aniceto Esquivel had been constitutionally chosen president of the republic, [\[XVIII-53\]](#) and on the 9th appointed Tomás Guardia and Vicente Herrera first and second designados in the order named. On the 8th Guardia took the chief command of the forces; and as the constitution did not allow of his reëlection to the presidential chair, he could reoccupy it at pleasure by virtue of his position as first designado. [\[XVIII-54\]](#)

MORE
REVOLUTIONS.

Esquivel inaugurated his administration under favorable circumstances. He pledged himself to pursue a conciliatory policy, at home and abroad, though never failing to uphold the rights of Costa Ricans in foreign lands. Discord, however, broke out, and the opponents of Guardia vented their hostility by the press. A revolt, with bloodshed, occurred in Cartago, July 29th, and 30th, to depose Esquivel, [\[XVIII-55\]](#) which movement proved successful. Vicente Herrera, second designado, was called to occupy the executive seat. [\[XVIII-56\]](#) The new ruler made Saturnino Lizano his minister-general, closed diplomatic and commercial relations with Nicaragua, [\[XVIII-57\]](#) and on the 11th of August established censorship of the press as a necessity for the preservation of order.

Herrera's administration was noted for its illiberality toward foreigners, and for religious bigotry. [\[XVIII-58\]](#) The press was gagged; capitalists and merchants were heavily mulcted on the pretext of their being malecontents; men of reputation and standing were driven from their homes upon the reports of paid spies; and other outrages were committed.

A revolutionary movement on the 11th of September, 1877, forced Herrera to surrender the executive office [\[XVIII-59\]](#) to Tomás Guardia, who assumed the duties, the municipal governments recognizing him as provisional president with unlimited powers. [\[XVIII-60\]](#) On the 24th he called on the people to choose a constituent assembly to meet on the 23d of

December. The same day he created a gran consejo nacional, delegating the choice of the majority of its members to the municipalities. That body, under its constitution, had devolved upon it several important duties.^[XVIII-61] A general amnesty law for political offences was decreed October 15th, and on the 17th the gran consejo nacional issued a ley de garantías, declaring life, liberty, and property inviolable.^[XVIII-62] This law was in force only about three months.

ARBITRARY RULE.

Costa Rica was not, it seemed, to be free from actual or impending trouble. Guatemala refused to recognize Guardia's government, and the latter closed relations with her as long as Barrios should be her ruler.^[XVIII-63] Early in the following January rumors came that the republic would soon be invaded by a party of men who had in Nicaragua organized a government, and purposed establishing it in Costa Rica by force of arms, if necessary. The invasion took place through Limon, under the leadership of Federico Mora, who called himself provisional president. In consequence of this the law of guaranties, and the elections for the constituent assembly, were suspended, and a decree issued for the punishment of the invaders when taken.^[XVIII-64] The attempt to overthrow Guardia failed, Mora being defeated at El Zapote and Matina, and fleeing to Nicaragua. The campaign lasted only eight days.^[XVIII-65] Quiet having been restored for a time, an amnesty was granted to political offenders.^[XVIII-66]

Very little worth mentioning occurred in 1879, except that in October Costa Rica suspended relations with Salvador. Guardia on the 10th of July, 1880, restored the law of guaranties, and repeated those of January 21 and February 1, 1878, appointing August 1st for the election of deputies, and the 29th of the same month for the instalment of the constituent assembly. This body met on the appointed day,^[XVIII-67] but had been in session only about three weeks, when from the liberal views introduced and discussed, and likely to be incorporated in the new constitution, it became apparent that

Guardia would not be the popular choice for the next presidential term. The last day's proceedings were an indication of the doom of despotism. [\[XVIII-68\]](#) Guardia and his satellites, alarmed at their impending downfall, resolved that their safety lay in dissolving the assembly, suspending the law of guaranties, and imposing on the people anew the dictatorship. This was done at once on the pretext of suppressing an imaginary revolution. The military being all powerful, Guardia on the 28th of September revived the gran consejo nacional to meet at San José on the 16th of October. He continued his usual arbitrary practices of imprisoning and exiling such persons as made themselves obnoxious to him. [\[XVIII-69\]](#) In 1881 he revisited Europe, and in his absence Salvador Lara acted as president. A constituent assembly was convoked, which adopted a constitution containing very liberal clauses, on the 7th of December. This constitution Guardia suspended on his return to power, early in 1882, but restored with amendments by his decree of April 26th. Guardia's health had not been much benefited by his journey to Europe, and death overtook him at Alajuela in the evening of July 6, 1882. The highest honors were paid to his remains, such as were never seen in Central America before or after the independence. They were buried in San José. [\[XVIII-70\]](#)

Saturnino Lizano had charge of the executive office until the 20th of July, when he surrendered it to the designado General Próspero Fernandez, who being subsequently elected president was inducted into office on the 10th of August. [\[XVIII-71\]](#) The new administration soon restored diplomatic intercourse with Guatemala, Salvador, and Honduras. [\[XVIII-72\]](#)

CHURCH AFFAIRS.

The relations of the government with the church became strained in 1883. Early that year a decree was issued forbidding the entry of members of the society of Jesus into the republic, though a few who had charge of a college at Cartago were allowed to remain. The clergy began an agitation, and had to be advised by the government, and the bishop as well, to moderate their zeal. [\[XVIII-73\]](#) But the

trouble did not end. The old struggle between the civil and ecclesiastical powers was revived. Bishop Thiel, with the aid of the jesuits, attempted to interfere with and to place himself above the government, which, on its part, under the authority conferred by congress, resolved to uphold its supreme authority at all hazards. Hence a decree of July 18, 1884, expelling the bishop and the jesuits from the country.^[XVIII-74] Other important measures affecting the clergy were also adopted at this time.^[XVIII-75] The bishop was recalled in the following year.

The republic was at peace, when a measure of the legislative assembly of Guatemala came to create a great alarm. I refer to the decree of February 28, 1885, declaring the union of Central America in the form of a single republic, to carry out which scheme President Barrios assumed military command over Central America. The news of this was received by President Fernandez from Barrios himself in a telegram on the 7th of March.^[XVIII-76] The national congress was then summoned to meet on Sunday the 8th, and the president called on the people to prepare for the defence of Costa Rican independence. The call was responded to with much enthusiasm. Congress clothed the executive with extraordinary powers.^[XVIII-77] But fate had decreed that Fernandez should be saved the vexation of spirit and anxiety which the situation must have caused him. He died suddenly in Aténas between 3 and 4 o'clock in the morning of March 12th. Fernandez was greatly esteemed both as a private and public man. His funeral took place from the presidential mansion on the next day, with the honors due his position as the national chief magistrate.^[XVIII-78]

PEACE AND WAR.

The first designado, General and Licentiate Bernardo Soto, immediately assumed the duties of president, as well as of commander of the forces,^[XVIII-79] and at once called to form his cabinet José M. Castro, Mauro Fernandez, and Santiago de la Guardia.^[XVIII-80] Preparations for war were continued, and other nations advised of Costa Rica's disapproval of Guatemala's action.^[XVIII-81] Peace

was proclaimed on the 19th of April, and the president on the 30th called congress to meet on the 8th of May, when he would surrender the extraordinary powers it had clothed him with.

General Fadrique Gutierrez attempted a revolution in August, which failed. He was taken prisoner, tried by court-martial, and cashiered. [\[XVIII-82\]](#)

CHAPTER XIX.

DEMOCRATIC INSTITUTIONS IN SALVADOR.

1865-1885.

RULE OF PRESIDENT DUEÑAS—HIS CONSERVATISM—QUARREL WITH HONDURAS—THE LATTER ALLIED WITH SALVADORAN LIBERALS—BATTLE OF SANTA ANA—DUEÑAS DEPOSED—HIS IMPEACHMENT, RELEASE, AND TEMPORARY EXILE—SANTIAGO GONZALEZ PROVISIONAL PRESIDENT—GONZALEZ ELECTED CHIEF MAGISTRATE—GUATEMALA AND SALVADOR AT WAR WITH HONDURAS—MURDER OF VICE-PRESIDENT MENDEZ—EARTHQUAKES—PRESIDENT VALLE—TROUBLE WITH GUATEMALA—EXEUNT VALLE AND GONZALEZ—ZALDÍVAR'S LONG RULE—CONSTITUTIONAL CHANGES—ALLIANCE WITH NICARAGUA AND COSTA RICA—RESISTANCE TO BARRIOS' PLAN OF CONQUEST—SALVADOR VICTORIOUS—RESTORED PEACE—ZALDÍVAR ELIMINATED—REVOLUTION—F. MENENDEZ MADE PRESIDENT.

PRESIDENT DUEÑAS.

Francisco Dueñas, called to preside over the destinies of Salvador in 1865, by the grace of President Carrera of Guatemala, was a member of the legal profession, and had already figured in public affairs. He was from early youth destined for the cloister, and in due time took the vows as a Dominican. But being of an ardent temperament, he came after a while to think himself adapted for a political leader rather than to serve God under a monk's habit. [\[XIX-1\]](#) He accordingly entered the political field, and soon attained prominence. In 1845 he was a minister of state, and had previously been a deputy to the federal congress, wherein for lack of eloquence he made no display; but in committees and private conversations with his colleagues, he often managed to have his ideas accepted. He was one of the deputies who voted against the fatal decree leaving the states free to constitute themselves. He was then a friend of Central American nationality,

and often defended it almost as warmly as Barrundia. Pretending to follow public opinion, he was affiliated with the liberals. But his chief aim was even then the furtherance of his own political advancement. Thus we see him join the oligarchic clique, and ally himself with Carrera of Guatemala, from which time he discountenanced every attempt to restore true democracy. The republic became one in name only, for his government was personal and absolute. [\[XIX-2\]](#) With the aid of the oligarchs he managed to sustain himself for years, the country enjoying peace and material prosperity, for which, as well as for his not neglecting public education, he should have some credit. [\[XIX-3\]](#)

In December 1868, he was elected president for the next term, and public affairs continued in a nominal condition for some time, the most friendly relations being maintained with foreign powers, and specially with the other Central American states. But in the latter part of 1870 serious differences occurred with the government of Honduras, the latter imputing to Salvador marked favors to Honduran and Nicaraguan refugees, who were constantly plotting to overthrow the administration of President Medina. At last the Honduran government accredited two commissioners, namely Céleo Arias, and Teodoro Aguiluz, in San Salvador, with the view of settling those differences, if possible, in a friendly manner. Salvador on her part named Rafael Zaldívar her commissioner to treat with them, and their conferences began on the 16th of January, 1871, but they led to no satisfactory result. [\[XIX-4\]](#) At the fourth and last conference, on the 21st of January, the Honduran commissioners, after protesting against Salvador's course in rejecting their demands, proposed as a last resort to preserve friendship—in view of the fact that all hope of arriving at an understanding had disappeared, as confidence between the two governments no longer existed—that the legislatures of both states should be convoked to meet on the 12th of March, and the two presidents, Medina and Dueñas, resign their offices. After which elections for chief magistrates should be held, with the express condition that during those elections both Medina and Dueñas should reside out of their countries. Four days having elapsed without any

answer having been returned to that proposition, the Honduran commissioners on the 25th renewed their protest, declared the conferences closed, and demanded their passports. However, after this, Zaldívar signified to them an acceptance of the proposal concerning the resignation. This inspired some hope that peace might yet be consolidated. But it proved to be a vain hope; for the government of Honduras on the 7th of February suspended all treaty stipulations between the two republics, and Salvador despatched in the same month a body of troops to invade her neighbor's territory;^[XIX-5] in consequence of which President Medina on the 5th of March declared war against Salvador, or rather against Dueñas' government.^[XIX-6]

HOSTILITIES WITH
HONDURAS.

The liberal party took advantage of the situation to adopt active measures for the overthrow of despotism, and the restoration of democratic principles. General Santiago Gonzalez, who had been called to head a movement, made an address to the people, which produced a great excitement. Dueñas tried to strengthen himself by means of a so-called plebiscite, but this only served to show that a revolution was impending. Gonzalez applied for aid to the government of Honduras,^[XIX-7] which, being then on the point of waging war against Dueñas, was prevailed on to place under command of that officer the forces he had organized to invade Salvador through Sensuntepeque. With his Salvadorans and Honduran allies Gonzalez made himself master of the departments of Santa Ana and Sonsonate,^[XIX-8] from which he could procure abundant supplies. The government forces, which had been kept in suspense, not knowing which would be the invaders' objective point, attacked them at Santa Ana, and after four days' hard fighting, though much superior in numbers, were utterly routed on the 10th of April, with heavy casualties; the main army was put to flight, and the reserve forsook their standard.^[XIX-9] Gonzalez was then proclaimed provisional president, and Dueñas' government collapsed, he, together with Tomás Martinez, ex-president of Nicaragua, who commanded in chief the

government's army, and others, seeking a place of safety in the United States legation, then in charge of General A. T. A. Torbert, minister resident. The next day Gonzalez and his army marched into the capital amid the most enthusiastic acclamations. His first step was to protect the person of Dueñas against possible violence from his exasperated enemies, among whom were the friends of the never-forgotten Gerardo Barrios, whom Dueñas had caused to be shot in cold blood, and to obtain his surrender that he might answer before the nation for his alleged illegal acts.^[XIX-10] Both Dueñas and Martinez were surrendered to the provisional government on its giving a pledge that their lives would not be imperilled. The surrender of Dueñas was made on the 20th of April, with his own acquiescence; he was then transferred as a state prisoner to the military school building.^[XIX-11] Martinez was released and permitted to leave the republic.^[XIX-12]

Ex-president Dueñas was, on the 13th of April, 1872, declared by the senate legally deposed, and amenable to the laws for acts of usurpation. Murders, among which was reckoned the execution of Ex-president Barrios, unjustifiable executions, and imprisonments of citizens, incendiarism, misappropriation of public moneys, and other misdemeanors. It was further ordered that the accused should be turned over to the jurisdiction of the courts for trial, pursuant to article 71 of the constitution.^[XIX-13] In July of the same year, while the constitution was in suspense, during a temporary internal disturbance, the supreme court set him at liberty, which caused much agitation in Salvador. He left the country after giving bonds in \$100,000 that he would not land in any port of Central America. He went to and remained in Europe some time, then returned to America, residing a while in New York, and afterward in San Francisco, California. Subsequently he was permitted free access to his country, and was treated with high consideration both in Salvador and Guatemala.

NEW
CONSTITUTION.

The constituent assembly, which had been convoked by the provisional government, was installed

July 28, 1871, and began its labors on the 31st, when the provisional president gave an account of his official acts, all of which were legalized at once. [\[XIX-14\]](#) The following persons were, in the order named, designated to take charge of the executive, provisionally, in the event of disability of Gonzalez; namely, Rafael Campo, Manuel Gallardo, and Cruz Ulloa.

On the 16th of October, the assembly adopted a new fundamental law in twelve titles, which may be said to have been in perfect accord with democratic principles. [\[XIX-15\]](#) This constitution was amended on the 9th of November, 1872, in a few particulars by a constituent assembly, the presidential term being made of four years instead of two. He could neither be reëlected for the next immediate term, nor act as president even a single day beyond the time for which he was chosen. [\[XIX-16\]](#) This same assembly in 1872 enacted several secondary laws of importance, to wit: on freedom of the press; trial by jury in criminal and libel cases; use of martial law; elections by universal suffrage; public instruction; codification of the laws in force since 1821; and appropriation of private property for great public uses.

The presidential election under the new charter of 1871 resulted in Gonzalez, the provisional president, being chosen the constitutional chief magistrate, his term to begin on the 1st of February the following year. The amendment to the constitution of November 9, 1872, extended it to February 1, 1876.

CALAMITOUS
TIMES.

The political relations of the governments of Salvador and Guatemala with Honduras had, early in 1872, become so unfriendly that a war was unavoidable. Salvadoran and Guatemala forces invaded Honduras, and were successful in their operations, the details of which will be given in connection with the history of the latter country. [\[XIX-17\]](#) President Gonzalez and his victorious army on their return to San Salvador in June received an ovation. Subsequent events demanded the despatch of more troops to

Honduras, which, together with Guatemala's, completed the work of the first campaign. The government also felt compelled to exile a number of persons who were manifestly conspiring for the destruction of the liberal régime.^[XIX-18] The ministers addressed an exposé to the constituent congress, which had been in session since September 27th, reviewing the policy of the administration, and submitting for its sanction the late war measures, at variance with the constitution. All the acts of the president were subsequently approved by congress.^[XIX-19]

The only other event of 1872 worthy of mention was the murder of the vice-president, Manuel Mendez, on the night of the 1st of September, in the public street,^[XIX-20] by a man named Juan Melendez. At first it was supposed that the act might have been prompted by other motives than personal revenge; the latter proved, however, to be the real cause. The assassin fled into Honduras, but was finally discovered and surrendered to Salvador, where he was tried and executed.^[XIX-21]

The year 1873 in its first part was a calamitous one for Salvador. A series of earthquakes caused destruction in many places, specially on the 19th of March, ruining the capital for the eighth time in its history. The national congress, after approving the government's acts to the date of closing its session, left the country to devote its best energies in repairing the havoc of that catastrophe. The rest of the year and 1874 formed, indeed, a period not only of restoration but of marked progress in every respect. National industries went on developing, public instruction, under the fostering care of the authorities, was constantly being spread among the masses, and the financial condition had become much improved. Peace reigned at home, and the relations with foreign powers were on an amicable footing; cordiality seemed to preside over those with the other Central American states. The future, at the inception of 1875, promised concord and good-will as well as undisturbed progressiveness.^[XIX-22] But these expectations were not realized. The public peace was disturbed on two

occasions; the first, by the Indians of Dolores Izalco, who, because of a dispute with the authorities anent their community lands, rose in arms, and on March 14th assaulted the garrison of the city of Izalco, to be repulsed with considerable loss. Their head men were arrested and imprisoned some months, until, promising good behavior in the future, they were released.

[\[XIX-23\]](#) The other affair was a more serious one, calling for energetic action on the part of the military power. An armed mob of reactionists and religious fanatics, led by one Tinoco and a clergyman named José Manuel Palacios, on the 20th of June, fell upon the city of San Miguel, slaying the small garrison, together with the comandante general, Felipe Espinosa, and several citizens, sacking the business houses, and burning down a portion of the town. Such deeds of blood, robbery, and incendiarism as those of the 20th to the 24th had seldom been witnessed in Central America. Troops arrived from La Union, and the Honduran port of Amapala, on the 24th, and the malefactors fled, but not before about thirty of their number, including Father Palacios, were taken prisoners. A considerable part of the stolen goods was recovered. Reënforcements followed, and the department was secured from further molestation. President Gonzalez was at San Miguel on the 27th. [\[XIX-24\]](#)

On the other hand, a sanguinary and disastrous war with Guatemala caused an entire change in the administration.

The general assembly had, on the 1st of March, convoked the people to elect on the first Sunday of December a president and vice-president for the second constitutional term to begin February 1, 1876, and end February 1, 1880. Andrés Valle was chosen president, and Santiago Gonzalez, vice-president. The latter offered his resignation, but the assembly did not accept it. They were inducted into office on the appointed date. But previous to this, Guatemala having assumed a menacing attitude, congress decreed that in the event of the president going to the field at the head of the army, Valle, then a senator, should act in his stead, pro tempore. On the same date a forced loan of \$500,000 was also ordered to be raised.

The difficulties arose from a supposed understanding of President Gonzalez with Guatemalan refugees in Salvador, and the government of Ponciano Leiva in Honduras, with the ulterior object of bringing about the downfall of Barrios. The latter alleged also that Gonzalez intended to uphold with his forces the government of Leiva, which, according to him, was entirely unpopular, because of its subserviency to Salvador. This intervention was deemed not only an attack against Honduran autonomy, but a menace to Guatemala. Gonzalez was notified that if he persisted in that course, Guatemala would then interfere in favor of General Medina, who was then trying to overthrow Leiva. The result of this attitude was a renewed assurance by Gonzalez of friendly feeling, and a proposition to hold a verbal conference on Honduran affairs, which Barrios accepted, and such a conference was held now with President Valle at Chingo, and a convention was signed on the 15th of February, under which Marco Aurelio Soto, an Honduran by birth, was to undertake the pacification of his country, backed by equal forces of Guatemala and Honduras. [\[XIX-25\]](#) Barrios contended that, though Valle was president, Gonzalez was the real power in Salvador, whom he accused in a public manifesto of hypocrisy and treachery. Angry words continued, the two nations being now armed for the conflict, till they agreed to disband their forces. Both governments claimed to have done so, imputing to the other a wilful neglect of its obligation. The probability is, that, distrusting one another, they merely pretended compliance, keeping their troops ready for action. Barrios sent 1,500 men into Honduras, and came himself with a force to threaten Salvador on the west, and actually invaded the latter without a previous declaration of war. At last, on the 20th of March, José María Samayoa, minister of war in charge of the executive of Guatemala, formally declared all official relations with Salvador at an end, and then again on the 27th, alleging that Salvadoran troops had invaded Guatemala, decreed the existence of war, giving Barrios unlimited power to make such uses of this declaration as befitted the dignity of Guatemala. [\[XIX-26\]](#) The government of Salvador on the 26th of March

decreed the treaty of amity and alliance concluded with Guatemala January 24, 1872, to be no longer in force. [\[XIX-27\]](#)

THE WRATH OF
BARRIOS.

Barrios' plan for the campaign was to assail Salvador on the west direct from Guatemala with an army under his personal command, and at the same time by a movement from Honduras under General Gregorio Solares on the eastern departments of San Miguel and La Union.

The Mexican general, Lopez Uraga, adjutant-general of Barrios, was stationed with a garrison at Jutiapa to guard the army supplies. At this time the Salvadorans unsuccessfully attacked an isolated position on the frontier, which roused the ire of Barrios. He then directed Uraga to move the supplies to Chingo, whence he started himself to the invasion of Salvador. Solares had not yet been heard from. He had first of all to get Medina and Leiva out of the way in Honduras. The Guatemalan president then marched to the Coco hacienda, and hearing that Chalchuapa was abandoned, occupied it at once. The Salvadorans had their headquarters at Santa Ana. The armies which were to encounter each other on the field of battle were the most numerous Central America had ever seen. Barrios with 8,000 or 9,000 men laid siege of Ahuachapan. Uraga stationed himself at Chalchuapa with about 1,500, and Chingo was left with a handful of men. [\[XIX-28\]](#)

The Guatemalans who have occupied Apaneca were driven away, and on returning thereto encountered the Salvadorans on the 15th of April, and after a fight lasting from eight in the morning till nightfall, were routed, and pursued as far as Atiquizaya, sustaining heavy losses. [\[XIX-29\]](#)

Meantime the belligerent armies in the east were not idle. Solares after hard fighting from the 17th to the 19th of April won a signal and decisive victory at Pasaquina over the Salvadorans commanded by generals Brioso, Delgado, Sanchez, and Espinosa; the results of which were that he obtained control of the departments of San Miguel and La Union, menacing those of

San Vicente and Usulután, and even the official residence of President Valle; thus depriving the government of large resources, and disheartening the army of González in Ahuachapán and Santa Ana.^[XIX-30] After this victory, Solares being reinforced, the Salvadorans, now reduced to 800 or 900, precipitately retreated to San Miguel, but by desertions on the march dwindled down to less than 200. The defence of San Miguel became impossible, and Solares occupied it, as well as La Unión. There being insufficient elements to defend San Vicente, the government ordered the scattered garrisons to concentrate at the capital.

CONVENTION AND
TREATY.

The condition of the army of the west was not much better. There were in Ahuachapán about 2,600 men, and in Santa Ana hardly 3,500. The former was greatly decreased by constant fighting during the holy week, and on the day after easter hardly exceeded 900 demoralized troops. An unsuccessful attempt was made against Chalchuapa. A few days later Salvadoran commissioners visited Barrios' headquarters, as he was, it is averred, on the point of raising the siege of Ahuachapán.^[XIX-31] He then marched to Atiquizaya, and the next day to Chalchuapa, where the negotiations for peace were held,^[XIX-32] which resulted in a convention, preliminary to a treaty of peace, concluded on the 25th of April, ratified the next day, and coupled with the condition sine qua non of a complete change in the personnel of the Salvadoran government.^[XIX-33]

Under the preliminary convention of April 25th, Rafael Zaldívar was chosen provisional president, and on the 1st of May appointed his cabinet.^[XIX-34] A definitive treaty of peace, friendship, and alliance, offensive and defensive, was signed at Santa Ana May 8th,^[XIX-35] in which Honduras joined on the 27th of May. General González had meantime repaired on board the British war ship *Amethyst* at La Libertad, transferring himself afterward to the American mail steamship *Costa Rica*, on which he left Central America.

Pursuant to the 6th clause of the convention of April 25th, the people were called upon to choose, on the first Sunday of June, a president and vice-president, as well as representatives to the legislative assembly, the latter to meet at San Salvador on the 1st of July. This clause having been duly carried out, the Guatemalan forces withdrew from Salvador, in accordance with the 7th.^[XIX-36] The elections took place, the national congress being installed July 3d, and Rafael Zaldívar declared to have been duly chosen constitutional president to continue the term from February 1, 1876, to February 1, 1880. He was accordingly inducted into office on the 19th of July.

Rafael Zaldívar had previously served in both houses of congress, in the cabinet, and filled several diplomatic missions, notably that of minister plenipotentiary in Berlin.^[XIX-37] On his return he became President Dueñas' right-hand man and supporter. He was president of the last general assembly at the time of Dueñas' downfall, and considering his life in danger, he concealed himself, and finally escaped out of the country.^[XIX-38] After this he lived in exile about five years.^[XIX-39]

CONSTITUTIONAL CONGRESS.

The new administration had no home or foreign complications to distract its attention from the usual routine of duties, and progress was soon noticeable in every branch of industry as well as of the public service. The executive, on the 3d of April, 1879, called the people to choose a constituent congress to effect reforms in the constitution of November 9, 1872. This body was duly installed June 9th, under the presidency of Teodoro Moreno; but after appointing a committee to frame a constitution, it adjourned July 2d to meet again between the 1st and 15th of January, 1880. It reassembled on the latter date, and proceeded to consider the project of a fundamental law laid before it by that committee. Some amendments were finally adopted on the 19th of

February, and Zaldívar was reëlected president for the ensuing term from February 1, 1880, to February 1, 1884.

Nothing worthy of special mention occurred till the end of 1882. The constitutional congress opened its session on the 5th of January, 1883, when the president gave an encouraging account of the political situation. Peace reigned, and the people were devoted to their industrial pursuits. The relations with the other nations of the earth were cordial, Salvador, though a small power, being the recipient of respect and regard from all others. With Costa Rica the relations, interrupted since October 1879, were renewed, and with Nicaragua the most perfect understanding existed. The treaty of alliance with Guatemala and Honduras was in full force. [\[XIX-40\]](#)

But this happy state of things was not to last. At 2 o'clock in the morning of April 16th, a body of men armed with rifles, shot-guns, revolvers, and machetes attacked the garrison at Santa Tecla, crying Viva la religion! Viva el Doctor Gallardo! Mueran Zaldívar y Barrios! They were repulsed by the troops commanded by Colonel Matías Castro Delgado, who captured forty prisoners. The government forces went in pursuit of the others in the region of the neighboring volcano. [\[XIX-41\]](#) The insurrectionary movement had ramifications in other towns, namely, La Libertad, San Salvador, Santa Ana, Ahuachapan, and Sonsonate, where its authors expected to be seconded. The president at once placed the departments of San Salvador, La Libertad, and the west under martial law. This and other prompt measures prevented any further action on the part of the would-be revolutionists. Quiet having been fully restored, the decree of martial law was repealed. [\[XIX-42\]](#)

Another change in the constitution was made this year. The executive called a convention on the 18th of October to meet between the 15th and 20th of December, to revise the charter of February 19, 1880, adapting the fundamental institutions of the country to its present needs; and also to take cognizance of other matters which the executive would lay before it. [\[XIX-43\]](#)

CHRONIC
REVOLUTION.

A new constitution was adopted soon after, containing all the political rights recognized in the most liberal instruments of the kind, guaranteeing also the free exercise of all religions not repugnant to morality and public order. [\[XIX-44\]](#) President Zaldívar was reëlected and reinaugurated on the 1st of February, 1884. [\[XIX-45\]](#) But obtaining leave of absence to visit Europe, where his family had been some time, he turned over the executive office to the first designado, Angel Guirola, who was to hold it till his return. [\[XIX-46\]](#) He was again in San Salvador in August, and resumed his duties.

Another period of trouble is now again impending on Salvador. Elsewhere I give the particulars of the undertaking of Barrios, president of Guatemala, to reconstruct Central America as one republic by force of arms. It is unnecessary to do more than glance at the same here. On finding a deliberate opposition to his project on the part of the governments of Salvador, Nicaragua, and Costa Rica, he placed his army in the field to support any movements in those republics toward the end he had in view. The people of Salvador responded to the call of their authorities, [\[XIX-47\]](#) who in a short time had about 1,800 volunteers enrolled, and relied, moreover, on the aid of the other three governments equally interested in defending their autonomy. About 12,000 men were stationed on the western frontier under the direct command of President Zaldívar, but no act of hostility was committed, out of respect for the American minister, who had been mediating, and obtained from Barrios that he would not invade Salvador if his own territory were not assailed. But this pledge went for nothing. The Guatemalans invaded Salvador March 30th, compelling the Salvadorans who had been fortifying the hacienda del Coco to abandon that position, though only after severe fighting, and retire into their fortifications of Chalchuapa. [\[XIX-48\]](#) The latter were assailed by the whole force of the enemy, but the garrison returned the fire with success, and gallantly met the desperate onslaught until a signal victory crowned their well-directed efforts. Barrios, the intrepid leader of the Guatemalans, lost his life, but this

did not put an end to the fight for several hours yet.^[XIX-49] The discomfited assailants began their retreat to the frontier at six o'clock, or a little later, in the evening, unpursued.^[XIX-50]

FRANCISCO
MENENDEZ.

With the friendly intervention of the foreign diplomatic corps an armistice was signed, giving time for negotiations, which culminated in a treaty of peace with Guatemala, the particulars of which are given elsewhere.^[XIX-51] With Honduras^[XIX-52] a treaty was concluded, with the assent of the three allies, which restored friendly relations. Zaldívar called congress to hold an extra session, and laid before it, May 4th, an account of the campaign and its results, and concluded, asking that body to accept his resignation. This was unanimously refused; nor was his subsequent request for a year's leave of absence granted. But on his declaring his intention of taking the unused time of the leave given him in 1884, that body acceded, and allowed him to be absent twelve months. On the 14th, he placed the executive authority in the hands of the second designado, General Fernando Figueroa, his minister of the treasury, who had the support of Zaldívar's friends; and on the following day departed for Europe.^[XIX-53] An insurrection had already broken out in the west, promoted by political adversaries, whose leader was General Francisco Menendez. The government reported a victory over the insurgents at Armenia the 19th of May, but the revolution gained ground so rapidly that Menendez, who had been proclaimed presidente provisorio, made his triumphal entry in San Salvador on the 22d, midst the acclamations of the populace.^[XIX-54] The revolution was successful, and the new government was afterward recognized by foreign powers.^[XIX-55]

In August, Menendez called on the people to choose a constituent convention, and preparations were made therefor; but disturbances having occurred in several places, he prolonged his dictatorship and redeclared martial law.^[XIX-56] Zaldívar was charged with improper uses of the public funds, and the government refused to recognize a certain indebtedness

incurred in his administration. His property in Salvador was seized, and an attempt was made by certain persons to lay hands on some real estate of his in Costa Rica, but they were not permitted to do so.^[XIX-57] Shortly after there was a rupture with Nicaragua, which did not last long, a treaty of peace being signed at Amapala in January 1886.

CHAPTER XX.

DEMOCRACY RESTORED IN GUATEMALA.

1865-1873.

PRESIDENT CERNA'S RULE—PARTIAL REVOLTS—LIBERALS IN THE ASSEMBLY—CERNA'S REELECTION—RIOTS IN THE CAPITAL—ZAVALA'S COURSE—CRUZ' REBELLION, DEFEAT, AND DEATH—ARRESTS OF LIBERALS—MODERATION OF THE GOVERNMENT—REVOLUTION OF GARCÍA GRANADOS AND BARRIOS—PLAN OF PATZICIA—CERNA DEFEATED AND OVERTHROWN—GRANADOS AS PRESIDENTE PROVISORIO—SEDITIONOUS MOVEMENTS QUELLED—ABOLITION OF PRIESTLY PRIVILEGES—PRELATES, JESUITS, AND CAPUCHINS EXPELLED—WAR WITH HONDURAS—BARRIOS AS SUBSTITUTE PRESIDENT—HIS SEVERITY—ELECTIONS—BARRIOS CHOSEN CONSTITUTIONAL PRESIDENT.

Upon the demise of President Carrera, April 14, 1865, the government devolved for a time on Pedro de Aycinena, minister of foreign affairs, who summoned the legislative body to choose a successor in the executive seat. The person then selected was Vicente Cerna, [\[XX-1\]](#) who took possession of the chair with the usual formalities on the 24th of May, and in his manifesto and inaugural made known that his policy would be that of the preceding administration, being assured of the coöperation of the late president's ministers, whose qualifications he could not too highly extol. [\[XX-2\]](#) Though a brave man, and not an unskilful general, Cerna was not gifted with the extraordinary acuteness of Carrera; and not possessing the support and overawing power which the late ruler had over the liberals, omens of trouble began to appear in the political horizon. The fact is, that the assembly and people, at the time of his election, had expected some reforms of the former policy. But at the end of nearly two years these expectations had vanished, and insurrections were ere long set on foot; for the liberal

party, though kept under so many years, had not died out. Justo Rufino Barrios, hitherto a refugee in Chiapas, [\[XX-3\]](#) now appeared on the theatre of war, rendering efficient aid to the most influential opponent of the government, Serapio Cruz, one of Carrera's generals, who had early in February 1867 initiated a revolution in Sanarate, recruiting men and capturing arms from Guastatoya. [\[XX-4\]](#) Though corpulent, Cruz was energetic and strong, active in his movements, and possessing a knowledge of the mountainous region, could not be easily subdued by the government. [\[XX-5\]](#) However, it so happened that Brigadier Solares pressed him hard, and he had to flee, when his followers abandoning him, he asked for a safe-conduct out of the country, which was given him on the 8th of April, and he was taken under a guard to the frontier of Salvador. [\[XX-6\]](#) The government did not sanction this proceeding of Solares.

BARRIOS' PRONUNCIAMIENT O.

A pronunciamiento took place at the Malacate hacienda, belonging to Barrios, August 3d, the same year, which also failed, the insurgents being defeated, and their leader, Francisco Cruz, and thirty-seven others captured by Indians friendly to the government, and sentenced. [\[XX-7\]](#) Serapio Cruz with twenty men invaded Guatemala from Chiapas in March 1869. The government decreed stringent measures. [\[XX-8\]](#) Cruz on the 27th of April destroyed a small party of troops under Lieutenant Abelar in the mountains. He was on the 2d and 3d of May at Huehuetenango, [\[XX-9\]](#) and on the 4th marched to Momostenango with five hundred Indians and some ladinos. About one hundred of his men had fire-arms, a number only machetes, and the rest were unarmed. He continued his march to Santa María Chiquimula, thence to Santa Lucía, five leagues distant, but abandoned it on the 6th, upon the approach of government troops, going to Sacapulas, as if to return to the mountains of Nebaj. Colonel Battle reported May 20th from Nebaj the utter discomfiture of Cruz that morning. His men had taken flight, scattering in the mountains. [\[XX-10\]](#) Another report of the

23d stated that Cruz with only 23 men was on the 21st fleeing through the unsettled region of Chimal, as if bound to Chiapas by way of Chaculá. It seems that being pursued from all directions, he fled from Verapaz, where he found no followers, to Canillá, and succeeded in entering the Sierra Madre. In Guatemala it was reported, July 30, 1869, that Cruz had again taken refuge in Chiapas. [\[XX-11\]](#)

While the government had been thus harassed by insurgents in arms, the liberal opposition in the legislative chamber was daily growing in strength. Deputy Miguel García Granados repeatedly denounced the arbitrary acts of the ministers. After a while there came to be but few less liberals than conservatives in the legislature, and when Cerna's term was approaching its end, the opposition felt strong enough to have a candidate of their own at the presidential election. Cerna was brought forward by his party for the next term—May 24, 1869, to December 31, 1872. The liberals nominated General Victor Zavala, who had won so much distinction in the Walker campaign, and was popular with the military element. [\[XX-12\]](#) Zavala was defeated, though he had a respectable support in the assembly, [\[XX-13\]](#) which was an omen of a not distant change in the political situation.

On the 24th of May, 1869, the date of Cerna's second inauguration, there was a great popular excitement at the capital. A revolution was impending. At the approach of night every precaution was adopted by the ministers to guard the president's mansion and the public buildings. The troops were kept in the barracks under arms. As darkness increased, cries of Viva Zavala! were repeatedly heard, shots were fired, several persons being wounded, and one killed in the plaza del teatro. Zavala's friends tried to prevail on him to lead them in an attempt to overthrow the administration. He refused to do so, from motives of prudence and unwillingness to cause bloodshed. He strongly doubted that such a movement could be successful, and was probably right, but his course on that occasion lost him the regard of the more enthusiastic portion of his political supporters. There had been

an escape from a sanguinary revolt, but the public mind remained greatly agitated.

DETERMINED
REVOLUTIONISTS.

Cerna in his inaugural address had said that the troubled state of the country had demanded his acceptance of a reëlection, and that this opportunity, when the republic was at peace with the other Central American states, and with all foreign powers, was a favorable one for good citizens to aid the government in securing quiet at home. But his advice was unheeded. Neither he nor his ministers were allowed any peace. García Granados continued his agitation in the legislative chamber, his denunciations of the government growing from day to day louder and more menacing. The president and his cabinet were aware that a large portion of the middle class in the chief towns sided with the liberal agitator, and that the leaven of liberalism already was working in the army. Several superior officers were accordingly distrusted, and the lower ones serving under them were of course looked on as unreliable. The treasury was empty, and the country burdened with a heavy debt, both internal and foreign.^[XX-14] Meantime, Serapio Cruz was daily gaining strength on the north-western frontier. He was supplied with money by the liberals, with which he bought arms for his followers. His Indian allies kept him advised of every advance of government troops.^[XX-15] He was exceedingly active and successful in the latter part of 1869, having at this time from 700 to 1,000 men, and being efficiently seconded by J. Rufino Barrios. Various collisions with the government troops were favorable to the insurgents. The latter assaulted Huehuetenango, a strongly garrisoned place, and were repulsed, but not before they had burned down a large part of it. In December 1869, Cruz approached the capital, and by rapid movements evaded the superior forces of the government.

On Saturday, the 15th of January, 1870, the liberals in the capital had made preparations for an outbreak the following day, when Cruz was expected to march in and support them. Early on Sunday there was much

excitement in the city. Unfortunately for their cause, Cruz had relaxed his vigilance. Before noon it was whispered that on the road leading from the eastern gate to Palencia, a severe encounter had taken place; next came a report that Cruz had been defeated and killed, soon followed by another that his head was on its way to the city. This proved to be a fact.^[XX-16] The victors marched into the capital with their ghastly trophy, the head of the man who had expected at that moment to be master of the place.^[XX-17]

EXCEPTIONAL
CLEMENCY.

All hope of success for the liberals was now at an end, at least for a time. The correspondence of their chief men with Cruz having been captured, the government ordered their arrest, but most of them escaped. José María Samayoa, the wealthiest of them, was imprisoned a short time, and then banished, and went to sojourn in San Salvador. García Granados, after being some time concealed, was ultimately discovered, and sought asylum at the British legation, from which, by the intercession of other foreign representatives, he was permitted to leave the country. He went to reside in Chiapas.^[XX-18] The administration must be commended for its magnanimity. Not a single execution or confiscation of property followed its triumph. Whatever the motive was which prompted clemency to such bitter opponents^[XX-19] against the opinion of many firm supporters, it may not be denied that it eventually brought about the government's overthrow; for the condition of the liberals, though overspread with gloom, was not altogether hopeless. The government strengthened their bands by failing to satisfy the people with liberal measures.^[XX-20] The discontent grew apace. Neither the authorities nor García Granados were idle during 1870, both laying in a supply of breech-loading rifles.

Early in 1871, the liberals of Salvador, with the assistance of the president of Honduras, overthrew the government of Dueñas.^[XX-21] This was a heavy blow to the conservatives. García Granados was organizing an expedition in Chiapas, probably in concert with the liberals of Salvador, and

as soon as Dueñas' downfall was accomplished, he invaded Guatemala, where he was joined by J. Rufino Barrios, who, upon the defeat of Cruz, had retired into Mexican territory. Vicente Mendez Cruz invaded on the 5th of March at Charulá and proceeded to the sierra of Nebaj, relying on the aid of the Indians of Chajul. He was joined by another party under E. Giron, and together they occupied Coban, which was ungarrisoned. Barrios with about sixty men encountered, April 4th, on the Tacaná heights, a government force, which retreated to San Márcos. Lastly, Lieutenant-colonel Juan Viteri joined them with some servants of his hacienda. [\[XX-22\]](#)

GARCÍA
GRANADOS.

García Granados, by way of Cuilco and Tejutla, reached, May 10th, Serchil, distant three leagues from San Pedro Sacatepequez. He, together with Barrios, occupied San Márcos, and on the approach of Lieutenant-colonel Calonge, retreated toward Coatepeque. [\[XX-23\]](#) The result of the operations was that on June 1st Calonge, at the head of 800 men, was routed by García Granados near La Antigua, losing his artillery, 500 rifles, and ammunition. Of the government troops hardly 100 men got back to the capital. The people of Jutiapa revolted, and sent a commissioner to General Gregorio Solares, then at Santa Ana, in Salvador, to invite him to command a considerable force for coöperation with García Granados. Solares lost no time in answering the call.

The officers of the liberating army held a meeting on the 3d of June at the town of Patzicia, and in a preamble and series of resolutions made known their purpose to overthrow Cerna and his administration, and establish a republic based on democratic principles, to which effect Miguel García Granados was called to act as provisional president with ample powers. [\[XX-24\]](#) García Granados had previously made a proclamation to his countrymen detailing the arbitrary acts of the government, one of which had been the order to confine him and other representatives of the people [\[XX-25\]](#) in the dungeons of Fort San José. He was fortunate, however, in escaping arrest. He now urged the necessity of overthrowing a despotism under

which the nation could make no progress whatever.^[XX-26] Again, after the pronunciamiento of Patzicia, he issued another manifesto, pledging himself to labor for the establishment of a republican government.

The troops sent against the insurgents at first made little or no resistance. They were disaffected men, and led by lukewarm or faithless officers.^[XX-27] Cerna then took the field with the troops which could be spared from the defence of the capital, a good portion being his faithful battalions of Santa Rosa and Chiquimula Indians; but it was too late. He was in no condition to cope with the enemy, most of his best officers having deserted him. There were several encounters, in only one of which he had any chance of success. On the 23d of June he surprised the insurgents on the hills between Totonicapan and Quezaltenango, in Tierrablanca; his brave Indians drove back the Quezaltenangos, but Barrios came with reënforcements of his best troops, and regained the lost ground. At this moment Cerna was no longer fit to command, being taken very ill.^[XX-28] His friends hurried him off, and his men were utterly routed, and made a hasty retreat in the afternoon. Next morning Colonel Julio García Granados went in pursuit, and captured nearly 100 prisoners and a quantity of war material.

IMPORTANT
VICTORY.

Cerna reached Chimaltenango, and thought of fortifying himself there. With reënforcements received from the capital he now had 2,100 men. The insurgent army, though increased in Los Altos, was only 1,200 strong; but it was flushed with victory, and counted on the superiority of its Remington and Winchester rifles. García Granados resolved not to attack Cerna in Chimaltenango, but to march by way of San Andrés Itzapa to La Antigua, and occupy the heights of Santa Lucía, thus menacing the capital.^[XX-29] On reaching Chicoj he heard that Cerna was at La Antigua. Changing his plans, he marched to Chimaltenango, and thence to Santiago, a town six leagues from Guatemala, where he spent the night. In Zumpango he was advised of the occupation of Amatitlan by Solares, whom he at once directed to harass

Cerna on his march to the capital. Granados' intent was to meet Cerna on the Mixco road; and to this end early on the 29th of June repaired to San Lucas, to ascertain with certainty the time when Cerna would pass through Rancho de San Lucas toward Bárcenas. He occupied that town, and after a consultation with his second in command, Barrios, went with a body of cavalry to the Mixco heights, where he presently heard shots from the direction of San Lucas. Cerna had made ready for the struggle. Barrios saw victory on the San Lucas hill; and without waiting the return of his chief, directed Julio García Granados with 800 men to support his front, and rapidly marched with 400, and occupied the hill, thus winning the day. Cerna's troops, finding their retreat cut off, disbanded by hundreds, and by nightfall the number of prisoners and deserters, most of the latter with their arms, exceeded 1,000. [\[XX-30\]](#) The victory was complete; for of Cerna's 2,400 men—he had lately received 400—scarcely 30 entered the capital that day. [\[XX-31\]](#)

The provisional president passed the night in Bárcenas, and the next morning after the civil authorities of Guatemala had met him outside and quietly delivered the keys of the city together with the castle and barracks, he, accompanied by Barrios, the other leading officers, and the troops, marched into the capital amid the most enthusiastic plaudits. [\[XX-32\]](#) With the exception of a few hostile cries against Cerna, Bolaños, the comandante general, and others, perfect order prevailed; no acts of violence or retaliation were permitted. [\[XX-33\]](#)

The task of reorganizing public affairs was an arduous one. [\[XX-34\]](#) The first attempt to appoint a cabinet was unsuccessful. Persons who were tendered portfolios declined them. However, Felipe Galvez, who had been secretary-general during the campaign, became minister of foreign affairs, public instruction, and ad interim of hacienda; and Arcadio Estrada, minister of government, justice, and ecclesiastical affairs.

The act of Patzicia was accepted by the principal towns in the republic, save those of the departments of Santa Rosa and Chiquimula. The government decreed several liberal measures, and restored diplomatic relations with Costa Rica. [\[XX-35\]](#)

DOWNFALL OF
THE CLERGY.

The new administration had hardly initiated reforms when an insurrection broke out in Santa Rosa, promoted by the priests and their aristocratic allies. It does not appear that García Granados had at first intended open hostility to the religious orders. The tone of his address, early in September 1871, to the Santa Rosa Indians, indicated that his plans involved absolute religious tolerance. [\[XX-36\]](#) The priests would not rest contented with the loss of their former high standing. [\[XX-37\]](#) Had they remained quiet, it is not likely they would have been molested. The president's call on the insurgents of Santa Rosa to submit was disregarded, but their movement was quelled by the end of the month with much bloodshed. [\[XX-38\]](#) An amnesty was granted to rebels surrendering to the authorities. The decree of martial law was repealed; and the ministers then in charge of the executive made García Granados a captain-general and Barrios a lieutenant-general. [\[XX-39\]](#)

SUPPRESSION OF
RELIGIOUS
HOUSES.

The new régime now resolved to cut loose of the ecclesiastical incubus, and to establish the supremacy of the civil authority in the state on a firm basis. Its first step was to carry out a decree of the revolutionary government, dated May 24, 1870, to expel the society of Jesus forever from the republic. [\[XX-40\]](#) This was not effected without some scandal and disturbance from the zealous partisans of the order. Seventy-three jesuits, most of whom were foreigners, were sent away on an American steamship, bound to Panamá. [\[XX-41\]](#) They did not go so far down, however, as will be shown elsewhere. The decree under which this expulsion was effected resembled that of April 2, 1767, issued by Carlos III. [\[XX-42\]](#)

Archbishop Piñol of Guatemala, and Ortiz Urruela, bishop of Teya in partibus infidelium, for their marked hostility in promoting rebellion, were, on October 17th, ordered to leave the country, and they departed without offering any resistance. The tithes tax was at once suppressed.^[XX-43] On the 7th of June, 1872, religious communities of men were extinguished, causing great excitement, but owing to the energy of the government it soon died out.^[XX-44] Nor did the action of the government stop here. The fuero eclesiástico in both civil and criminal causes was done away with March 12, 1873, and freedom of worship decreed on the 15th.^[XX-45]

The turn of the nunneries came at last. On the 28th of February, 1874, it was ordered that all the nuns should be concentrated in one convent, the Santa Catarina, and be allowed to receive their families and friends without hindrance. This convent was placed under the immediate protection and vigilance of the civil authorities, which roused the ire of the ecclesiastics, who endeavored to nullify the order.^[XX-46] The consequence was, that in February 1874, President Barrios decreed the suppression of many religious houses, prohibiting professions in the future, and permitting nuns who so desired to leave the cloister, and to each one so departing would be given a monthly allowance of twenty dollars. On the 3d of March the nuns residing in Santa Catarina were put out of the cloister.^[XX-47]

The aspect of public affairs in Central America at the inception of 1872 was not promising of stability and peace. Honduras, together with Archbishop Piñol, Bishop Ortiz Urruela, the jesuits, and their conservative friends, all combined, had assumed a reactionary attitude, with the avowed intent of upsetting the governments which were laboring to consolidate democratic principles, and serious complications were apprehended.^[XX-48] The two governments thus menaced were, however, fully prepared for the emergency.^[XX-49]

President Medina, of Honduras, having become the leader of the reactionary element, Guatemala and Salvador entered into a treaty of alliance and despatched troops against him, after a formal declaration of war.^[XX-50] The president took command of the Guatemalan troops for the campaign, leaving the executive office temporarily in charge of Barrios. The war was but a short one, ending advantageously for the allies, who, after concluding a satisfactory arrangement, retired their troops. García Granados returned to Guatemala on the 10th of June, and reassumed his executive duties, Barrios going to Quezaltenango as comandante general of Los Altos.^[XX-51] The cabinet was now organized, as appears in the note at foot.^[XX-52] The reactionists would not keep still. Colonel Vicente Mendez Cruz, jefe político of Amatitlan, placed himself at the head of an insurrection.^[XX-53]

ELECTION OF BARRIOS.

The reactionary forces took the name of "ejército de la reaccion dirigido por los santos padres," and their avowed object was to bring Cerna back to uphold their rights and religion, which they claimed to have been assailed by heretical rulers. The government adopted active measures, and the rebellion was quelled in a short time, Cruz losing his life at the hands of his own men.^[XX-54] After peace was nearly restored, García Granados, who had gone to the front, returned to the capital, and resumed the presidency.^[XX-55] On the 29th of March he convoked the people to chose a constitutional president, although the constituent assembly, which had been installed March 10, 1872,^[XX-56] had failed to frame a constitution.^[XX-57] The elections were to begin April 20th, and last seven days. The term for which the elect should hold the office was to be established by the new charter, taking into account the time already served. The assembly was to be summoned for the 5th of May, to count the votes. The election took place, and Justo Rufino Barrios was declared by the assembly on May 7th to have been popularly elected. He was formally inducted into office on the 4th of June, 1873.^[XX-58]

The late administration must be held to have been somewhat weak. García Granados was an enlightened and able man, but easy, unassuming, indolent, and kind-hearted; too much so, indeed, for the place he had been called to fill at a period demanding of him great energy, and an unbending will. His was not a disposition to deal harshly with any one, or inflict suffering. Another drawback was his connection by the ties of family and early association with the men and women who were laboring to undo the work of the revolution he had accomplished. Among his own relatives were some of his most strenuous opponents. The reactionists took advantage of his good nature to keep the country in a turmoil, hoping thus to restore the old régime of fanaticism and general retrogression. They defeated themselves, however, bringing into existence the iron power of Barrios, who tolerated no opposition to his will, nor overlooked sedition in any form.

CHAPTER XXI.

RENEWED EFFORTS FOR CENTRAL AMERICAN UNITY.

1873-1885.

PRESIDENT BARRIOS OF GUATEMALA—END OF REACTIONARY WAR—GUATEMALAN PROGRESS—WAR WITH SALVADOR AND HONDURAS—BARRIOS' SUCCESSES AND GENEROSITY TO THE VANQUISHED—CONSTITUTIONAL RÉGIME IN GUATEMALA—BARRIOS' REELECTIONS—HIS VISIT TO THE UNITED STATES—PEACEFUL EFFORT TO UNITE CENTRAL AMERICA—RESORT TO ARMS—ALLIANCE OF GUATEMALA AND HONDURAS—BARRIOS ATTACKS SALVADOR—HIS DEFEAT AND DEATH—HIS PLAN ABANDONED—M. L. BARILLAS, PROVISIONAL PRESIDENT OF GUATEMALA—RESTORATION OF PEACE.

Justo Rufino Barrios, now president of the republic by the popular choice, was born about 1834 in San Márcos, department of Quezaltenango. He received his education in Guatemala, and fitted himself for a notary public, and received his commission as such; but it does not appear that he performed notarial duties. [\[XXI-1\]](#) He was of about middle height, and rather light complexion, with a cold, distant look, and plain and unassuming in his dress. His manners were brusque, unrefined, and unconventional, as if it were easier for him to despise good manners than to acquire them. However, after a while they become more polished. Without any claim to enlightenment, or to a knowledge of public affairs, [\[XXI-2\]](#) it is not too much to say that he possessed natural talents, a far-reaching mind, and a disposition to labor unremittingly for the welfare of his country, though at the same time looking after his own aggrandizement. His energy of character and iron will have been generally recognized. Whatever his enemies may say, the fact stands that his country owes him much; for

example, liberal institutions, internal peace, and with them the advancement of intellectual pursuits, industries, and wealth. [\[XXI-3\]](#)

The cause of education was fostered as it had never been before, efforts being constantly made to elevate the lower classes; [\[XXI-4\]](#) and the country was endowed with many of the improvements of the age, like the railroad and the telegraph. Acts of despotism and brutality without number have been rightly imputed to Barrios, [\[XXI-5\]](#) some well founded, but most of them inventions of his enemies, among whom were of course the would-be oligarchs and the priests, together with their fanatical followers. Still, it must be said that his government was one in which fear of the sword was constantly holding its opponents in check. [\[XXI-6\]](#)

COSTLY INSULT.

The efforts of the reactionists to regain the upper-hand were finally defeated in the latter end of the year, when an amnesty was granted to the remnants of rebels in Santa Rosa and elsewhere. [\[XXI-7\]](#) In the following year an outrageous act was perpetrated by a military officer, bringing upon his government a serious complication with a foreign power. Colonel Gonzalez, a native of Spain, who had been intrusted with the responsible command at the port of San José, for some disagreement with the British vice-consul, had him seized and beaten as a common criminal in the most barbarous manner. Realizing, on the next morning, the responsibility he had incurred, he tried to escape on the American mail steamship, but his infamous conduct had preceded him, and he was driven away. Both he and his accomplice, Bulnes, were promptly arrested, tried, and sentenced to undergo heavy penalties. [\[XXI-8\]](#) The British government demanded prompt reparation of the insult, which Barrios unhesitatingly acceded to. Guatemala saluted the British flag at San José with every mark of respect, [\[XXI-9\]](#) and was mulcted in the sum of \$50,000, which she paid. [\[XXI-10\]](#)

The government had another foreign difficulty on its hands in 1875, resulting from a hasty recognition of the independence of Cuba on the 6th of April. In August, Commodore E. Butler, of the Spanish royal navy, arrived at Guatemala, bearing a note from Conde de Valmaseda, captain-general of the island, to President Barrios, demanding satisfaction. It was finally agreed^[XXI-11] that Guatemala would at once accredit a minister at Madrid to discuss the subject and arrange it satisfactorily. This was done, and the difficulty was amicably settled.^[XXI-12]

FURTHER
HOSTILITIES.

The political outlook at the beginning of 1876 was not such a one as promised a continuance of peace. Serious troubles were impending over three of the important sections of Central America. Barrios had brought about the assembling of a diet, which was installed in Guatemala January 15th, with the object of reorganizing the country under one government.^[XXI-13] Civil war raged in Honduras, and while the diet was sitting, Barrios was moving his troops; 600 men were stationed in Esquipulas, and 1,200 more marched to Jutiapa.^[XXI-14] Salvador was not slow in preparing for hostilities. On the 23d of January, however, Guatemala and Salvador agreed to disarm.^[XXI-15]

It was believed in Guatemala that Enrique Palacios, and about 3,000 of her refugees sojourning in Salvador, had been wheedled and promised aid by President Gonzalez for the overthrow of Barrios, and that they were exasperated, and would insist on those promises being carried out. On the other hand, Barrios was chagrined at the failure of the diet to arrive at a conclusion in favor of consolidation.^[XXI-16] He now resolved, whether with the purpose of pursuing the reorganization scheme or with that of further securing himself, or both, to change the rulers of Salvador and Honduras, replacing them with his supporters. The task in Honduras was an easier one, that country being in the throes of revolution. Salvador, as he thought, with a hostile government in Honduras, and war threatening from the side of Guatemala, must succumb. The results of his policy were as he had planned

them. The fortune of war favored him,^[XXI-17] and from 1876 to 1884 he could count on the resources of Guatemala, Salvador, and Honduras^[XXI-18] to effect what he undertook to accomplish single-handed at another time. But this will be treated of at the proper time.

After his successful campaign, Barrios was received in triumph at his capital,^[XXI-19] and ere long other honors poured upon him. Costa Rica made him a general of division of her army.^[XXI-20] The constituent assembly declared him a benemérito de la patria; and the legislature of conquered Salvador voted him a sword of honor.^[XXI-21] The political atmosphere, however, became cloudy immediately after the return of the forces. Barrios would have dismissed his ministers then had they not been preparing their reports to present to the constituent assembly which was to assemble in a short time.^[XXI-22]

The assembly was installed on the 11th of September, 1876,^[XXI-23] and passed a few acts; namely, October 19th, approved all the acts of Barrios during the time he had held the executive office, and his budget for the fiscal year from July 1, 1876, to June 30, 1877; October 23d, declared that the proper time for framing a national constitution had not yet arrived; the work was therefore postponed to a more suitable period. The presidential term for Barrios was fixed at four years from the date of the decree.^[XXI-24] The change of ministers Barrios desired to make finally took place.^[XXI-25]

MURDEROUS PLOT.

With the exception of an insignificant affair in Quiché, the year 1877 had nearly run itself out without any alarms or disturbances, when on the 1st of November a plot was detected in the capital, having for its objects, as appeared, to murder the president and other leading men, sack the city, and effect a general change in affairs. The persons implicated were tried by court-martial and convicted; seventeen of the chief leaders being executed

in the plaza de armas, and accomplices of a lower degree sentenced to other penalties. Most of the latter were subsequently pardoned. [\[XXI-26\]](#)

On the 9th of November, 1878, the president issued a convocation for a constituent assembly of 71 members to meet on the 15th of March following, for the purposes of framing a national constitution, and resolving upon such matters as the government would submit to its deliberations. [\[XXI-](#)

[27\]](#) The assembly was installed on the appointed day, and the president, whose term of appointment in 1876 had not expired, surrendered his dictatorial powers. In a lengthy message he gave a detailed account of public affairs, with the assurance that the republic was enjoying peace and prosperity. [\[XXI-28\]](#) For further particulars he referred to the reports of his

ministers. This much-valued peace continued uninterrupted, notwithstanding the efforts of refugees in Chiapas to invade Guatemala with views hostile to the government. But they were balked by the action of Mexico at Barrios' request, in keeping the parties away from the frontier.

[\[XXI-29\]](#) The constituent assembly adopted on the 11th of December, 1879, a new constitution for the republic, which was promulgated a few days after. It recognized the great principles of democracy and social reform, and was in harmony with the social condition and political needs of Guatemala. [\[XXI-](#)

[30\]](#)

BARRIOS
DICTATOR.

Pursuant to the requirements of the constitution, the government issued on the 13th of December, 1879, and 12th of January, 1880, decrees for the elections of president of the republic and deputies to the assembly, which took place without any disturbance. Justo Rufino Barrios was chosen, by popular suffrage, president of the republic for the term from March 1, 1880, to March 1, 1886. [\[XXI-31\]](#) Peace continued without interruption, [\[XXI-32\]](#) and the government was enabled to devote its attention to the advancement of the country's educational and material interests. Judicial and administrative reforms were introduced, and the army was reorganized, receiving marked

improvements in every branch. Agriculture and commerce progressed, and the national finances had never been in so promising a condition. [\[XXI-33\]](#)

Barrios took advantage of this quiet to pay a visit to the United States. He landed at New Orleans, and thence repaired to Washington, where he was received with the high consideration due to the chief magistrate of a friendly nation. In other cities of the union he was also welcomed and hospitably entertained. [\[XXI-34\]](#) His visit was one of business rather than of pleasure, having the double object of inviting the American government, Mexico having likewise done so, to act as mediator for the final settlement of their long-pending boundary question; and also of bespeaking the influence and good offices of the same power to bring about the union of the five Central American states, in order that they might form a single republic. The first request was acceded to, and the boundary difficulty was terminated. [\[XXI-35\]](#) As regarded the other matter, the United States, while recognizing the wisdom of the five Central American republics becoming consolidated, declined to interfere.

BARRIOS
RESTLESS.

Barrios made a flying visit to Europe, and returned by way of the United States, embarking at San Francisco, California, for his country, where he arrived early in November 1882. [\[XXI-36\]](#) On the 29th of December he laid before the legislative assembly, then sitting in extra session, his resignation of the executive office, pleading the precarious state of his health, which demanded rest and special care. He said that the constitutional régime being restored and consolidated, his further services might be dispensed with. He considered the occasion a propitious one for a change in the chief magistrate. [\[XXI-37\]](#)

Barrios' act caused much anxiety to his friends, [\[XXI-38\]](#) but the assembly, while appreciating his motives, declined to accept the resignation, alluding to the alarm the news of it had created among the people. It did not seem to concur with him on the point of internal peace

being secure, apprehension existing against reactionary projects which might arrest the progress of the past few years. The chamber promised, however, to devise some means of conciliating the demands of his health with the need of his services.^[XXI-39] It was understood that if the project of the union of the states, then engaging the attention of their governments, should be carried out, the measure to be suggested by the assembly would be granting him a leave of absence. The decision of the legislature was received with great satisfaction by the people. Barrios accepted it, and on the 6th of January, 1883, in an address to the people, announced his resumption of the presidency, though only for a short time.^[XXI-40]

Meanwhile the scheme of Central American reconstruction had not been neglected. Barrios at an early day renewed negotiations with that object in view. Salvador and Honduras seemed to be in full accord with his plan; but Nicaragua and Costa Rica had failed to see the practicability of its realization. Delfino Sanchez, a Guatemalan commissioner, and Salvador Gallegos, minister of foreign affairs of Salvador, together visited Honduras, whose president, ministers, and influential citizens renewed assurances of concerted action. They next repaired to Nicaragua, and then to Costa Rica, at both of which places they met with cordial receptions, and their propositions were attentively considered, leading them to expect a successful result to their joint mission.^[XXI-41] Those governments consented to accredit five delegates each to a congress, which was to sit in March 1884, either at Ahuachapan, or Santa Tecla, in Salvador, with powers limited to discuss and subscribe to the plan for a general constitution, and organic laws intended for the reorganization of Central America. Costa Rica's promise was subject to sanction by her legislature. She subsequently receded, and officially made it known to the government of Nicaragua.^[XXI-42]

The project was early in 1884 as far from realization as ever. Barrios in his message of that year to the national assembly alludes to the result as a

sore disappointment to him; adding that no one had dared to declare himself against the lofty idea, and yet there had been so many elements, both of personal ambition and localism, hostile to its success, [\[XXI-43\]](#) that the use of force would have had to be resorted to, which had formed no part of his peaceful plan, to conquer the covert and persistent opposition. But his government would not let slip any opportunity favorable to its realization, continuing meantime with its liberal institutions, laws, and general policy, to exhibit unequivocal proofs of a fraternal spirit. He soon had a falling out, however, with President Soto of Honduras, who, believing himself in peril of overthrow, or other form of revenge, at the hands of his more powerful neighbor, was charged with abandoning his slippery position, and seeking safety in a foreign land, well provided with pecuniary means to lead a luxurious life. But on this subject more particulars are given in connection with Honduras history in another chapter.

With Nicaragua a general treaty of friendship, defensive alliance, commerce, navigation, and extradition of criminals was concluded at Guatemala, December 27, 1883. [\[XXI-44\]](#)

ATTEMPTED
ASSASSINATION.

An attempt was made, with a metallic bomb, against the life of President Barrios, as he was walking in the Plaza del Teatro with the minister of war, J. Martin Barrundia, on the evening of April 13, 1884. The bomb burst, happily, failing of its object. No one was injured; but the incident served to excite alarm and indignation against the perpetrators of the crime throughout Central America. Expressions of sympathy and congratulation at the narrow escape of Barrios and his companion, came in from the diplomatic corps, and from all classes of society. [\[XXI-45\]](#)

The investigations made by the authorities led to the discovery of the perpetrators, and they were tried, convicted, and sentenced. [\[XXI-46\]](#) But the president, exercising his prerogative, granted them a full pardon on the 4th of July, and they were at once set at liberty.

Barrios, who had been visiting the western departments, returned to the capital on September 13th, having with him as national guests the presidents of Salvador and Honduras with their suites, and Tomás Ayon, representing the chief magistrate of Nicaragua, who had been unable to respond in person to the invitation of the government of Guatemala, and be present with the others at the inauguration of the southern railroad. [\[XXI-47\]](#) The visit of these personages lasted till the termination of the festivities, when they took their departure the 21st; Barrios and his ministers accompanying them as far as Port San José.

The scheme of Central American unification was never lost sight of. Barrios had been watching for a propitious opportunity, and early in 1885 resolved to initiate it. He accordingly issued, on the 28th of February, a decree wherein, after explaining in a long preamble the advantages which would accrue to all concerned from his action, he proclaimed, in accord with the legislative assembly of Guatemala, the consolidation of the five states into one republic, and the manner of effecting it. [\[XXI-48\]](#) He likewise made a manifesto to the people of Central America at large, assuring them that he was not prompted by personal ambition, or the desire of holding power, for he had had abundant experience of its bitterness. [\[XXI-49\]](#)

The president of Honduras on the 7th of March telegraphed to Guatemala the resolutions adopted that same day by the state assembly in favor of Central American consolidation. [\[XXI-50\]](#)

DIVERSIFIED
OPINIONS.

The people of Guatemala and Honduras seemed to be generally disposed to support their governments. But it proved to be otherwise in Salvador, Nicaragua, and Costa Rica, though many citizens of the three states favored the initiative of Guatemala. The administration of Salvador having failed to second the movement, Barrios' passionate temper was roused. He wrote President Zaldívar that, relying upon the assurances of Salvador and Honduras, [\[XXI-51\]](#) he had launched his decree of February 28th, and as he had not shown the

proper disposition to fulfil his pledges, the government of Guatemala would employ its abundant resources to force compliance;^[XXI-52] for he was resolved to carry out his enterprise at all hazards. He announced at the same time the appointment of Francisco Menendez, a Salvadoran general of division, to command the western departments of the latter republic,^[XXI-53] with instructions to raise over them the standard of Central America, and expressed the hope that Zaldívar would not permit obstacles to be thrown in that officer's way. Zaldívar telegraphed him on the 9th to await the visit of their mutual friends, Menendez and Avilez, and not act hastily, nor look upon him as a foe, for he had no wish to be one. Barrios then concluded to wait for the coming of those commissioners.^[XXI-54]

COERCION
CONDEMNED.

The decree of February 28th, which was now raising such a political storm, had been officially communicated to the foreign diplomatic and consular corps on the 6th of March. The German minister was the first to answer it; he seemed to commend the effort about to be made. The other representatives acknowledged its receipt in more or less expressive terms. The Spanish minister endeavored, however, though unofficially, to dissuade Barrios from carrying out his plan without the concurrence of the other states. His effort, he said, was to avert bloodshed. Barrios was indisposed to brook this interference, returning on the 10th a haughty reply to the effect that the question of Central American unification was not an international one, and solely concerned the people of Central America. He therefore requested him to discontinue his officious intervention, and finally added, that if Zaldívar fulfilled his engagements, paying attention only to the wishes of patriotic citizens, there would be no bloodshed. The minister then went to Guatemala, and wrote an explanatory letter, closing his interference, to which Barrios replied that, being engaged with other important affairs, he could not give his letter all the attention it demanded; but he was glad the discussion had been brought to an end. The government of Mexico, to which the Guatemalan minister, Francisco Anguiano, had made known Barrios' action, replied through its minister of foreign affairs, Ignacio

Mariscal, disapproving of the movement, and signifying its intention to provide for the defence of Mexico's frontiers and interests. [\[XXI-55\]](#)

The government of the United States also looked with disfavor on the plan of forcible organization, promptly ordering naval forces to the Central American coasts for the protection of American interests. The Nicaraguan congress had, on the 8th of March, resolved to reject the union decreed by Guatemala, and to energetically oppose what they called Barrios' attempt to impose his will, and to constitute himself a dictator over Central America. The executive was accordingly empowered to make provision, singly or conjointly with other states, for national defence at whatever sacrifice. The government of Costa Rica adopted a similar course, the executive being clothed with extraordinary powers. [\[XXI-56\]](#)

DEATH OF
BARRIOS.

Finally, the three republics of Salvador, Nicaragua, and Costa Rica appealed to the governments of the United States and Mexico to interfere on their behalf against Barrios' projects. Mexico responded at once. President Diaz notified Barrios on the 10th by telegraph, that the governments and people of those three republics had rejected his scheme, which had, moreover, produced an impression on the Mexican people, demanding on the part of their government the assumption of an attitude suitable to an emergency by which the independence and autonomy of nations of this continent had been menaced. Barrios telegraphed back that his answer would go by mail. He afterward issued an address to the Mexican nation, of a friendly nature. [\[XXI-57\]](#) But the die was cast. War was now unavoidable. The three opposing governments, for their mutual protection, entered on the 22d of March into an alliance offensive and defensive, [\[XXI-58\]](#) and took active measures to give effect to the union. Guatemala on her part, and her ally Honduras, had not been slow in their preparations for the impending strife. Regardless of all opposition, Barrios was still bent upon his difficult task, and for its accomplishment marched an army into Salvadoran territory. The events of

this campaign are given in another chapter, in connection with the history of Salvador, where the fighting took place. Let it suffice to say here that the invaders met with disaster, and Barrios lost his life, fighting heroically, on the 2d of April. [\[XXI-59\]](#) His remains were rescued, it is said at the cost of twenty lives, and conveyed to Guatemala, where they were interred with civic and military honors. His widow, Francisca Aparicio de Barrios, and their seven children, being escorted to the port of San José by a military guard, embarked for San Francisco, accompanied by friends. They afterward transferred themselves and their belongings to New York, where Señora Barrios established her residence, it being understood that the family has been left amply provided with pecuniary means. [\[XXI-60\]](#)

Upon the news reaching Guatemala of the disasters which had befallen the army operating in Salvador, and of the death of the president, the legislative assembly, and the provisional president, Alejandro Sinibaldi, [\[XXI-61\]](#) in accord with it, revoked on the 3d of April the decree of February 28th. Subsequently, through the mediation of the diplomatic corps, preliminaries of peace were agreed to, but not before the president of Salvador had signified an unwillingness to treat with Sinibaldi and Barrios' ministers. The former then surrendered the executive office to the second designado, Manuel Lisandro Barillas, and the ministers retired with him.

The new government on the 15th of April restored peace with Salvador and her allies Nicaragua and Costa Rica. [\[XXI-62\]](#) All treaty stipulations existing between Guatemala and Salvador on the 28th of February last were also restored, to remain in force until a new treaty should be concluded. [\[XXI-63\]](#) An amnesty was granted to all Guatemalans who took part in the late president's movement, and to all Guatemalans who were absent for political offences committed six months prior to the aforesaid date; the government signifying its intention of making the amnesty general as soon as circumstances would permit. [\[XXI-64\]](#) With the change of ruler diplomatic relations were reestablished with the government of Mexico. [\[XXI-65\]](#)

PEACE AT LAST.

The cabinet of Salvador now proposed to the other four republics the meeting of a congress of plenipotentiaries on the 15th of May at Santa Tecla, with the object of reconstructing Central America as one republic, or at least of adopting measures conducive to that end. President Zaldívar then signified his intention of resigning his office on the assembling of congress, and as soon as it should have arrived at some resolution on the scheme. Guatemala deemed it premature. Nicaragua declined. Honduras accepted the proposition. The government of Costa Rica, though her magistrate was clothed with ample powers, did not feel justified in entering into such an arrangement without first obtaining the assent of congress, which was not then in session, and would not be for some time. [\[XXI-66\]](#)

Peace and quiet being generally reëstablished, martial law was removed, the country placed under the rule of the constitution, a general amnesty decreed, and a constituent congress convoked. [\[XXI-67\]](#) Congress assembled on the 24th of August, the acting president manifesting much confidence in its wisdom to accomplish much good to the country. But it does not appear that after a long session, it accomplished any thing worth recording. [\[XXI-68\]](#)

The election took place on the 22d of November, Barillas being chosen president by a unanimous vote of the electoral college. Colonel Vicente Castañeda, a deputy, was elected vice-president. [\[XXI-69\]](#) Barillas was quite the opposite of Barrios in some respects. He was a man of the kindest and most benevolent instincts, who would rather suffer wrong than do wrong. The discontented were not long in taking advantage of his clemency to create disturbance. A number of generals and others were detected in a diabolical plot, intended to murder Barillas and destroy the foreigners. The parties implicated were arrested, and surrendered to the courts, the president refusing to interfere.

The ministers were requested to resign their portfolios, which were intrusted to the following persons, all young men of recognized abilities and progressive ideas, namely: A. Lazo Arriaga, of foreign relations; Abel Cruz, of government and justice; Escobar, of the treasury and public credit; Cárlos Herrera, a son of the late Manuel M. Herrera, one of Barrios' best assistants, minister of fomento; and Manuel Valle, journalist, poet, and orator, minister of public instruction.

CHAPTER XXII.

HONDURAS AFFAIRS.

1865-1886.

NATIONAL FLAG AND ESCUTCHEON—ORDER OF SANTA ROSA—MEDINA'S LONG RULE—HIS DIFFERENCES WITH DUEÑAS, AND TRIUMPH—WAR WITH SALVADOR AND GUATEMALA—MEDINA DEFEATED AND OVERTHROWN—CÉLEO ARIAS SUCCEEDS HIM—HIS LIBERAL POLICY—HE IS BESET BY THE CONSERVATIVES—HIS FORMER SUPPORTERS DEPOSE HIM—PONCIANO LEIVA BECOMES PRESIDENT—HIS COURSE DISPLEASES BARRIOS, WHO SETS MEDINA AGAINST HIM—HE IS FORCED TO RESIGN—MARCO AURELIO SOTO MADE PRESIDENT BY BARRIOS—ATTEMPTED REVOLT OF EX-PRESIDENT MEDINA—HIS TRIAL AND EXECUTION—SOTO'S ADMINISTRATION—HE GOES ABROAD—HIS QUARREL WITH BARRIOS, AND RESIGNATION—PRESIDENT BOGRAN—FILIBUSTERING SCHEMES.

There is very little to record for Honduras in the five years from 1865 to 1870; the country enjoyed comparative peace under the same conservative system existing in Guatemala and Salvador. President Medina being reëlected was again inducted into office on the 1st of February, 1866, and a few days later the military rank of lieutenant-general was conferred on him. [\[XXII-1\]](#) On the 16th of the same month congress decreed a change in the national coat of arms and flag, in the manner described at foot. [\[XXII-2\]](#)

Early in 1868 Medina and congress, with the approbation of the council of state, [\[XXII-3\]](#) resolved upon the creation of an order of merit to reward important civil, military, and religious services rendered to the nation, and other praiseworthy acts of its citizens. Congress then on the 21st of February established the Órden de Santa Rosa y de la Civilizacion de Honduras. [\[XXII-4\]](#) The executive promulgated the decree on the 24th with the signature appended of Trinidad Ferrari, minister of the interior. The idea

met with the approval of some, and excited the ridicule of others. The order soon fell into discredit, many unworthy persons having obtained it, and its suppression was decreed. [\[XXII-5\]](#)

Medina was chosen president for another term of four years. In order to do this, the clause in article 33 of the national constitution forbidding reëlection for the next immediate period was repealed, which Medina's partisans effected through a constituent assembly convoked ad hoc. [\[XXII-6\]](#) He was accordingly reinaugurated February 1, 1870.

Honduras was now to experience another series of troubles, which lasted several years. In the last days of December 1869, disturbances were apprehended in Olancho and Paraiso, in connivance with Nicaraguan exiles, for which reason those refugees were concentrated in Comayagua. Some seditious attempts were made in the following year, but were easily put down.

TROUBLES WITH SALVADOR.

Early in 1871, serious differences existed between the governments of Honduras and Salvador, or, to be more exact, between presidents Medina and Dueñas, on several points. The causes, as well as the fruitless efforts made by Honduran commissioners in San Salvador to effect a peaceable settlement of long-existing differences, are fully explained elsewhere. [\[XXII-7\]](#) Medina, on the 7th of February, declared all treaties between the two republics suspended, and war soon broke out. A Salvadoran army, under General Xatruch, invaded Honduras and took Comayagua, that commander styling himself provisional president. The Honduran government had entered into a correspondence with the United States ministers resident at Tegucigalpa and San Salvador, calling their attention to the 14th article of the treaty of July 4, 1864, between their nation and Honduras, under which the former recognized the rights of ownership and sovereignty of the latter in the line of the Honduras interoceanic railway, the works on which, it said, were in danger of interruption by the Salvadoran invaders. From the tenor of its

notes, it would seem as if it expected the United States to hoist their flag over Comayagua, which might have hindered the operations of Xatruch. Medina's pretension was untenable, the understanding being that the obligation of the United States did not attach till after the completion of the work.^[XXII-8] Moreover, the Honduran government could not reasonably expect that those ministers had an armed force at their command. The United States had no need, even if willing to accept the duty of protecting those works, to adopt any measures, being assured by the Salvadoran government that the neutrality of the Honduras railway would not be interfered with in any manner.

Medina was not idle in devising means to injure the enemy. He occupied Sensuntepeque on March 17th, and next Ilobasco. Dueñas' forces under General Tomás Martínez attacked the latter place on the 19th, and being repulsed retreated to Cojutepeque. General Santiago González with Hondurans and disaffected Salvadorans occupied San Vicente on the 19th, the reserve remaining in Sensuntepeque, which revolted against Dueñas.^[XXII-9] The campaign in Salvador ended at Santa Ana, where the fate of Dueñas' government was decided.^[XXII-10] Peace was then concluded between the new government of Salvador and that of Honduras. Medina started after Xatruch, who then had about 700 men in Gracias; but the news of the result at Santa Ana reaching there his troops deserted him. The war was soon over, Xatruch himself in a proclamation of May 11th signifying his intention to leave the country. After this the political situation was for a while satisfactory. Still Medina deemed it expedient to invite a plebiscite, and ascertain if the people wished him to continue at the head of affairs the rest of his term.^[XXII-11] The result was as he desired it.

A great commotion was caused in August by 300 or 400 Indians and revolutionists, against whom the government forces never obtained but partial successes. The disturbance lasted until an understanding was arrived at with the rebel leaders on the 13th of December.^[XXII-12]

PERPETUAL WAR.

Further trouble was impending, this time between Medina and the liberal governments lately established in Salvador and Guatemala. He claimed of Salvador an indemnity for his services in overthrowing Dueñas, which that government deemed preposterous and disallowed. The two governments, which had entered into an alliance offensive and defensive, on the other hand accused Medina of having formed a coalition with the oligarchs to restore the latter to power. [\[XXII-13\]](#)

Medina closed official relations with Salvador March 25th; and this act, being looked upon by Salvador and Guatemala as a declaration of war, they invaded Honduras, and soon after a victory over Medina's general, Velez, occupied the principal towns, all of which revolted against Medina, and a provisional government was set up [\[XXII-14\]](#) with Céleo Arias at the head of affairs. Medina had temporarily placed the executive office in charge of Crescencio Gomez, and taken command of his troops in the field. Upon Comayagua being occupied by the Salvadorans, Gomez and his officials fled to Gracias. Medina attempted, May 27th, to recapture Comayagua, but was repulsed. [\[XXII-15\]](#)

Omoa had been given up July 20th to Juan Antonio Medina, a Salvadoran general, for Arias' government. Medina, the president, suffered a defeat on the same day at Potrerillos, and a crushing one on the 26th, in Santa Bárbara, at the hands of the allied forces of Arias, Guatemala, and Salvador, escaping with only six officers to Omoa, [\[XXII-16\]](#) where he joined the other man of the same surname, who had a few days previously accepted the executive office, transferred to him by Crescencio Gomez, proclaiming himself provisional president, and appointing a cabinet. But a revolt of the troops put an end to this arrangement, José M. Medina, his substitute Gomez, and others being made prisoners, and sent at once to Comayagua, where they arrived on or about August 9th. [\[XXII-17\]](#) Arias' government now had but little difficulty to secure its tenure of power. Ex-

president Medina was held in confinement to answer such charges as would be preferred against him before the next national congress.^[XXII-18] A full amnesty was decreed for all political offences committed from March 5, 1871, to November 1, 1872, the only persons excluded from its benefits being José María Medina, and his ministers, Manuel Colindres and Rafael Padilla, who were also to abide the action of congress.^[XXII-19]

The constitution of 1865 having become a dead letter, the provisional government, in a decree of November 15th, recognized as existing in their full force all the rights of citizens under republican institutions,^[XXII-20] though reserving the privilege of suspending some of them in the event of public disturbance. This decree was countersigned by the three ministers of state.^[XXII-21] The people were on the 17th of March, 1873, convoked to choose deputies to a convention which was to frame a new constitution. The last Sunday of the following April was named for the elections.^[XXII-22]

COMING OF
CONSERVATIVES.

Guatemala was experiencing troubles in her eastern departments. An expedition of conservatives landed at Trujillo from the ship *General Sherman*, menacing the government of Arias, and at the same time aiding the faction which was trying to overthrow that of Guatemala.^[XXII-23] The latter and Salvador attributing the scheme to President Guardia of Costa Rica, jointly accredited a minister in Nicaragua, the result of whose mission was a tripartite defensive alliance. Arias decreed martial law, and reassumed the dictatorship which the people conferred on him the previous year.^[XXII-24]

The revolutionary forces under Miranda were signally defeated by the Guatemalan commander, Solares, on the north side of the Chamelecon River on the 9th of August, with great loss, General Casto Alvarado and Colonel A. Muñoz being killed, and a large quantity of war material falling into the victor's hands.^[XXII-25] The presidents of Guatemala and Salvador, after the insurrection in the former republic had been quelled, held

conferences at Chingo on the situation in Honduras, and came to the conclusion that Arias' government, being unpopular, could not sustain itself without their material as well as moral support, which would be a heavy burden. He was then asked in a joint note to give up the executive office to some one more in the confidence of the people. He refused to accede to the demand, and the allied troops approached Comayagua to carry out their suggestion. The first notice of their intent was the proclamation in the town of Aguanqueterique, of Ponciano Leiva as provisional president, who organized his administration at Choluteca on the 23d of November, and on the 8th of December declared all the acts of Arias null. [\[XXII-26\]](#)

The allied forces of Leiva under his minister of war, General Juan Lopez, of Guatemala under Solares, and of Salvador under Espinosa, laid siege to Comayagua on the 6th of January, 1874, and after seven days' resistance, Arias, together with his ministers and chief supporters, had to capitulate on the 13th. Ex-president Medina was released from confinement, and eventually, having recognized the new ruler, was set free, when he went to live in La Paz. [\[XXII-27\]](#)

LEIVA SUCCEEDS
ARIAS

Leiva's government was soon recognized by the other states. It was of course expected to pursue a policy in accord with the governments that gave it existence. But it seems that Leiva preferred to follow an independent course, [\[XXII-28\]](#) and in a short time the two powers that so elevated him were in antagonism, Guatemala using her influence against and Salvador for him, as will be seen hereafter. A constituent congress convoked by Leiva adjourned in May, after adopting three important measures; namely, confirming Leiva as provisional president, restoring the constitution of 1865, and ordering Arias into exile for five years. [\[XXII-29\]](#) The political state of affairs was not satisfactory to Guatemala. The elections had yielded a majority of conservatives and reactionists in congress, and many if not most of the public offices had gone into the hands of men of that party, one of the most prominent being Manuel Colindres. The regular congress was installed

on the 20th of January, 1875, and the next day the executive sent in his message, giving in detail the condition of public affairs. February 1st he took the oath of office as constitutional president, having been elected by the people.^[XXII-30] A full amnesty for political offences was granted by congress February 9th, and promulgated the same day by the president and his minister of relations and justice, Adolfo Zúñiga.

The people of Honduras were not allowed, however, to enjoy the benefits of peace but for a short time; for Ex-president Medina instigated, as it was generally believed, by President Barrios of Guatemala, raised at Gracias, on the 21st of December, the standard of revolution, proclaiming himself provisional president.^[XXII-31] He afterward suffered for his lack of wisdom. The government at once prepared to meet the emergency. Salvador organized a force to support it, and Guatemala resolved to sustain Medina, whose real plan was to hurl Gonzalez from the executive chair of Salvador, as well as Leiva from that of Honduras.

The revolution assumed proportions, and Medina had come to believe himself master of the situation. The presidents of Salvador and Guatemala arranged at Chingo, on the 15th of February, 1876, to intervene in Honduras and stop the revolution. At this time it was thought that Leiva could not hold his own, his forces having been routed at Intibucá, and his authority being felt only in the eastern departments. The rebels had captured the capital, Comayagua, and delivered it to the horrors of an exterminating war. But the battle of Naranjo changed the aspect of affairs, Leiva's troops gaining there a decisive victory, which restored his authority over almost the whole extent of the republic.^[XXII-32] There was no further need of Guatemala and Salvador pacifying Honduras; peace had been virtually restored, and only a few scattered parties of rebels in the departments of Copan and Gracias had to be eliminated.^[XXII-33] But soon after another contestant for the presidential office appeared on the field, namely, Marco Aurelio Soto, ex-minister of foreign relations of Guatemala,^[XXII-34] whom

a Guatemalan force supported. A treaty of peace was concluded, however, with the mediation of Salvador, at Los Cedros June 8, 1876, [\[XXII-35\]](#) and the executive office went into the hands of Crescencio Gomez by transfer from Marcelino Mejía, to whom the treaty had given it. Gomez decreed August 12th to turn over the office to Medina, who declined accepting it; but as the republic was thereby left without a chief magistrate, he concluded on the 18th to call Marco Aurelio Soto to fill the position, [\[XXII-36\]](#) denying in a manifesto that Guatemala purposed controlling the affairs of Honduras. [\[XXII-37\]](#)

PRESIDENT SOTO.

Soto announced August 27th from Amapala [\[XXII-38\]](#) his assumption of the executive duties, declaring that his policy would be fair and friendly at home and toward the other Central American states, and that he was free from internal or foreign entanglements. He was soon after recognized by other governments as the legitimate chief magistrate of Honduras. [\[XXII-39\]](#) Under his administration the people were once more enabled to devote themselves to peaceful pursuits. On the 27th of May, 1877, in an extensive message to congress, he set forth the condition of public affairs, and what his government had done in every branch of the public service during the last nine months. He assured the representatives that no branch had been neglected; and expressed the hope that if peace and order were preserved, the country would ere long begin to reap the benefits of his measures. [\[XXII-40\]](#) He had been chosen by the people, on April 22d, constitutional president, and the extraordinary congress acknowledged him as such on the 29th of May. He was formally inaugurated on the following day.

Ex-president Medina, and the Salvadoran general Ezequiel Marin, together with two colonels and several other officers of less rank, and a number of civilians, for an attempted rebellion in the latter end of 1877, were subjected to the action of a court-martial at Santa Rosa, on the charge of high treason and other offences, [\[XXII-41\]](#) and sentenced to death. The

cause being taken, for revision, to the supreme council of war, the sentence against Medina and Marin was confirmed, the court having found no extenuating circumstances; one lieutenant and one sergeant obtained a commutation to ten years' confinement in the fortress at Omoa. The other prisoners were set at liberty, but with a warning never again to engage in similar conspiracies, or the sentence of the court-martial against them would be enforced. Medina and Marin were shot at Santa Rosa at 8 o'clock in the morning of February 8, 1878. [\[XXII-42\]](#) The other two men were at once despatched to their prison at Omoa.

AN INFAMOUS
RULER.

José María Medina has been styled a genuine liberal, and his friends gave him credit as a commander of resources, and an able administrator. His military record showed that he surrendered the fortress of Omoa to General Carrera, and followed him to Guatemala, where he was rewarded for that service with a lieutenant-colonelcy. He never won any action of importance. During the insurrection of Olancho in 1864, he never went beyond Yoro until informed that the affair was over. He issued the order of December 25, 1864, countersigned by his minister, Francisco Cruz, empowering all his officers to put prisoners to death, [\[XXII-43\]](#) and that in the face of several constitutional clauses abolishing the death penalty, and forbidding the trial of citizens by military courts. He was also guilty of incendiarism in burning many towns and haciendas, and of confiscation. He made himself and his satellites wealthy at the expense of his country and his victims. He reached the presidency by the favor of the oligarchs of Guatemala. As a ruler he was an unmitigated tyrant; as an administrator he left nothing to entitle him to a place among the benefactors of his nation—no schools, no material improvements of any kind. In lieu thereof he left the national name dishonored abroad, the national character degraded, financial ruin, corruption, immorality, poverty, bitter animosities, and almost every misfortune that could have befallen hapless Honduras.

Nothing worthy of particular mention occurred from this time on till November 2, 1880, when the national capital was removed to Tegucigalpa. In December of the same year Marco Aurelio Soto was reëlected president, [\[XXII-44\]](#) and the people continued enjoying the benefits of peace. The national assembly met at Tegucigalpa on the 19th of February, 1883. Doctor Soto was again installed as president by virtue of a reëlection, and in an able and lucid address congratulated the representatives of the people that since their last meeting in 1881 quiet had reigned, and the liberal constitution framed in 1877 had worked successfully. Relations with Costa Rica, interrupted in 1878, were renewed on the 15th of last October; and those with the rest of the Central American states, as well as with other powers, were on the most friendly footing. The long-pending boundary question with Salvador had been referred to the arbitration of President Zavala of Nicaragua. The government had, on the 15th of September, 1882, sanctioned the plan of Central American unification. Finances were in a satisfactory state, large payments having relieved the treasury of heavy burdens. The administration of justice had become improved, and public education advanced. Agriculture was progressing, trade on the increase with the facilities afforded it; and mining had engaged the attention of capitalists both at home and abroad. [\[XXII-45\]](#)

President Soto sent in his resignation to congress on March 10th, pleading ill health. It was not accepted, and instead a leave of absence was granted him with a liberal pecuniary allowance for expenses. [\[XXII-46\]](#) Congress thought proper, however, to utilize his intended visit to Europe to place on a better footing the financial affairs of the republic. [\[XXII-47\]](#) Before taking his departure, Soto placed, on the 9th of May, the executive office in charge of the council of ministers, namely, Enrique Gutierrez, Luis Bogran, and Rafael Alvarado. This was in accordance with the constitution. In bidding good by to his fellow-citizens, Soto congratulated them upon the reign of peace at home, [\[XXII-48\]](#) and the cordiality existing with other

nations. He promised to come back as soon as possible to complete his term, and to surrender the trust to his successor. [\[XXII-49\]](#)

SOTO AND
BARRIOS.

A serious quarrel occurred soon after, while Soto was in San Francisco, California, between him and Barrios. He received, as he considered it, from a reliable source, information that Barrios, being displeased with his government, had resolved to promote a revolution in Honduras as an excuse for war and for overthrowing that government. He wrote Barrios on July 6, 1883, that his government having been ever loyal and friendly to and fulfilled its treaty obligations with Guatemala, he must attribute to personal motives Barrios' intended course. He was not, he said, disposed to give the latter an opportunity to sow distraction in his own country, and to let loose again the dogs of war in all Central America. To avert those calamities he was ready to bring about a legal transfer of his office, and would lay his final resignation before congress. But he wished Barrios to know that he did so actuated by patriotic motives, and not by fear, for he had sufficient power in Honduras to sustain himself, and to defend her against unjust aggression. Barrios returned a scathful answer on August 3d. After denying Soto's accusations, he attributes his resignation to a preconceived resolve to desert by actual flight his post, and lead abroad a life of ease and luxury upon his ill-gotten wealth; and now was using his, Barrios', name as a pretext to justify his conduct. He asserts that Soto left Honduras with the intention of not returning, and indeed, with a full knowledge that the Hondurans would never permit his return. [\[XXII-50\]](#) The writer in the plainest language accuses him of having enriched himself at the expense of a country which he had ruined, and of private parties alike. As to Soto's brave words, they are taken, he says, at their true worth in Guatemala, where he is well known. It would be easier and less costly to hurl him from power, than it was to raise him to and keep him at the head of the government.

Barrios concluded that he would take no further notice of Soto's remarks, as there was a broad sea between them. His charges about Soto's

incompetency, disloyalty, and general dishonesty are certainly exaggerated. Soto sent his resignation from San Francisco, and congress unanimously accepted it on the 3d of September. [\[XXII-51\]](#)

General Luis Bogran was spontaneously and almost by unanimity chosen by the people president of the republic, [\[XXII-52\]](#) and assumed the duties on the 30th of November, soon after organizing his cabinet with the ministers named below. [\[XXII-53\]](#)

The country continued at peace, and there was no reason to apprehend any immediate disturbance. In the attempt made by Guatemala to reorganize Central America by force of arms, in the early part of 1885, Honduras pledged her coöperation, but had little opportunity to take an active part. Upon hearing of the Guatemalan defeat, and of the death of President Barrios on the 2d of April, she wavered, but finally made peace with Salvador, Nicaragua, and Costa Rica.

PEACE RESTORED.

About the middle of 1885 there were near Trujillo some slight disturbances, but quiet was restored. A filibustering expedition was expected at Trujillo on the ship *Dorian*, said to have been fitted out by Ex-president Soto, with the view of recovering power. The government of Belize, at the request of the Honduran authorities, despatched the gun-boat *Lily* to Trujillo, where she arrived September 29th, and made known the object of her visit. [\[XXII-54\]](#) No such expedition came to create disturbance. Still later, in 1886, a similar attempt was made but failed, the ship supposed to have been engaged for the purpose being captured at sea by an American cruiser.

CHAPTER XXIII.

POLITICAL AFFAIRS IN NICARAGUA.

1867-1885.

PRESIDENT FERNANDO GUZMAN—INSURRECTION—MISCONDUCT OF PRIESTS—DEFEATS OF THE INSURGENTS—FOREIGN MEDIATION—GENEROSITY OF THE GOVERNMENT—PRESIDENT VICENTE QUADRA—INCEPTION OF THE JESUITS—AIMS OF PARTIES—INTERNAL AND FOREIGN COMPLICATIONS—COSTA RICA'S HOSTILITY AND TINOCO'S INVASION—PRESIDENTS CHAMORRO AND ZAVALA—MORE POLITICAL TROUBLES—JESUITS THE PROMOTERS—THEIR EXPULSION—PEACE RESTORED—PROGRESS OF THE COUNTRY—PRESIDENT ADAN CÁRDENAS—RESISTANCE TO PRESIDENT BARRIOS' PLAN OF FORCED RECONSTRUCTION.

The administration of President Fernando Guzman entered upon its duties on the 1st of March, 1867, under good auspices. Peace reigned, the country was prosperous, and the public treasury equally so. [\[XXIII-1\]](#) This was the first time that the government could lay so flattering a picture before the nation. Guzman pledged himself to use his best endeavors to consolidate republican institutions. [\[XXIII-2\]](#) He promised further to pursue a conciliatory policy, and this was received with joy throughout the land, a policy which was initiated on the same day of his inauguration with an amnesty to all citizens undergoing prosecution or punishment for political offences. Those in exile were invited to return to their homes; among them was Máximo Jerez, who had been sojourning in Costa Rica, and accepted the pardon. The bishop of the diocese was apprised of the president's desire for continued harmony between the civil and ecclesiastical jurisdictions, which was responded to in the same spirit by the prelate. There was then every prospect of a long peace. At the opening of the congressional session,

January 25, 1869, the president made a cheering report, and it was believed that the course of the government was generally well received; but when it was proposed in congress to vote an approval of it, some remarks were made in the senate which the president was displeased at, and he tendered his resignation of the executive office on the 19th of March.^[XXIII-3] Congress unanimously refused to accept it. The session lasted fifty-seven days, coming to an end March 22d, and in the course of it several laws were enacted to benefit agriculture and commerce; but on the other hand, congress was accused of having too lavishly voted pensions to military men.

REVOLUTIONARY
MOVEMENT.

The public peace was disturbed by a revolutionary movement June 26th, when a party of men calling themselves liberals assaulted and captured the barracks at Leon. The chief leaders of this revolution were Máximo Jerez, Ex-president Martinez,^[XXIII-4] Hilario Oliva, and Pascasio Bermudez.^[XXIII-5] On the following day they organized a provisional government, Jerez being its chief, with unlimited powers to overthrow the existing authorities, and implant the liberal principles set forth in the plan accompanying his proclamation of the same date.^[XXIII-6] The next step was to levy a contribution of \$62,000 in Leon, and then to occupy the port of Realejo. Jerez installed the government on the 29th with Buenaventura Selva as minister-general, but on the same day transferred the supreme authority to Francisco Baca, retaining himself the chief command of the forces.^[XXIII-7]

The government at Managua adopted stringent measures to quell the revolt.^[XXIII-8] A number of the clergy having taken a prominent part in it, promoting discord and animosity against the government, some parish priests abandoning their flocks and taking up arms, and even upholding principles not acceptable to their church,^[XXIII-9] superadded to which were their consorting with gamblers and drunkards, and shedding blood, the bishop's attention was called to all that on the 12th of August, with a request

that he should check such violations of the constitution of the country, of canonical law, and of the concordat with the pope.^[XXIII-10] But he returned no answer. Both he and his vicar-general were in Leon and could not be ignorant of such doings, and yet, whether from apathy, negligence, or complicity, tolerated them.^[XXIII-11]

CHURCH AND
STATE.

Commissioners from Honduras, Salvador, and Costa Rica exerted themselves to bring about a friendly settlement of the differences, but their efforts proved unavailing,^[XXIII-12] and the forces of the opposing governments soon came to blows. The insurgents obtained some advantage in the unsuccessful attacks made in Correvientos and Chocoya or Metapa, on the 28th of July, by General Urtecho.^[XXIII-13] They claimed to have again repulsed the enemy's attack under Medina against Nagarote on the 30th of August, inflicting heavy loss of men, arms, and ammunition.^[XXIII-14] The official organ of the government at Managua makes no mention of this affair.

President Guzman took command of the forces in the field,^[XXIII-15] leaving the executive office temporarily in charge of Senator Pedro Joaquin Chamorro. The insurgents took Jinotepe, and about the middle of September were concentrated in Masatepe, surrounded from north to south by the well-fortified and garrisoned towns of Managua, Granada, Rivas, and Nandaimé. An attempt made by them October 13th against Matagalpa proved disastrous, and they had to retreat to Leon. On the 14th they were utterly undone by Guzman at Niquinohomo. Their force, 1,500 strong, attacked Guzman at a little past one o'clock, and was repulsed with heavy losses. The next morning Guzman went in pursuit, and on approaching Jinotepe the enemy dispersed in all directions, abandoning the western department.^[XXIII-16] Guzman reached Pueblo Nuevo on the 21st, and sent a proclamation on the 22d to the Leonese, assuring them that he had no desire of doing them any injury, but he must punish the men who had so unreasonably caused the desolation and misery of the past four months.

[\[XXIII-17\]](#) However, upon a mediation being offered by General Charles N. Riotte, United States minister resident, at the request of the insurgent leaders, for a settlement of the difficulties without further bloodshed, Guzman accepted it, and the war terminated with the surrender of the rebels.[\[XXIII-18\]](#)

PEACE AGAIN.

The acting president, on the 29th of October, gave Guzman a vote of thanks for his services, and conferred on him the rank of general of division. After a short visit by the government and Guzman to Granada, and peace being fully restored, Guzman resumed at that place the presidential office on November 25th.[\[XXIII-19\]](#) On the 17th of December he decreed the reestablishment of the constitution from the 1st of January, 1870. The national congress was installed on the 20th following, and on the 22d gave vote of thanks to Guzman.[\[XXIII-20\]](#) Nothing worthy of particular notice occurred this year, except the election of president for the next term, Vicente Quadra having been the candidate favored with the requisite majority of votes. He took possession of the office on the 1st of March, 1871.[\[XXIII-21\]](#) Congress being about to close its session, the executive in a special message, March 30th, called its attention to important affairs demanding prompt measures. The treasury was exhausted, and the government needed resources to meet its obligations. It also should be clothed with powers and means to face the complications that might arise from the disturbed relations of Salvador with Honduras. But congress suspended the session for twenty days, though not without having first authorized the president to raise loans for covering the more pressing needs of the treasury, and empowered him to act as he might think best on behalf of the honor and interests of the country during the recess.[\[XXIII-22\]](#) In the war between the above-named states, Nicaragua maintained the strictest neutrality, and had the good fortune to escape being mixed up in that trouble.

The country being at peace, both at home and abroad, the government was enabled to devote its whole attention to the finances, which were in an unsatisfactory state, owing to a marked decrease of the revenues in the two last fiscal years. [\[XXIII-23\]](#) The general situation, if not good, was nevertheless far from discouraging. But a new element was now ushered in, which was destined to become ere long an agent of disturbance. I refer to the coming of seventy members of the society of Jesus, who on their expulsion from Guatemala landed unopposed at Realejo, and journeyed to Leon, where a portion of the inhabitants gave them a warm reception. Discussions ensued; some were in favor of giving the new-comers convents, turning over to them public education, and allowing them every privilege as they had had at their late field; others demanded that they should be sent away. The government took no action, other than permitting them to remain, and they soon ingratiated themselves with the masses. [\[XXIII-24\]](#)

PARTIES AND
PRINCIPLES.

Toward the end of the year rumors of an impending revolution were rife. There was no cause for it. Quadra's administration certainly was deserving of public support. [\[XXIII-25\]](#) But it seemed the fashion of Nicaragua either to be on the eve of or in the throes of revolution, or at least to talk of one. [\[XXIII-26\]](#) At the present time there were three political parties, and a club aspiring to that rank. The party in power was called by some of its members liberal conservador, and by others republicano. This party had a large following of well-to-do and sedate citizens. It had no monarchical, aristocratic, or theocratic tendencies; on the contrary, its principles were liberal and progressive, but it moved slowly, from fear of disturbing peace and order. Another party was formed, of men who at one time used to call themselves democrats, but had lately taken a conservative for a leader, become associated with the clergy, and adopted the name of moderado. The third party, hardly entitled to the rank, was made up of young men anxious for the greatest development of liberty and progress. Its members were scattered, or affiliated with other parties. Then there was the club,

composed of a few hot-heads who insisted on being the mountain, and parodying the French Jacobins of 1793. The fears of revolution were on the increase in the first part of 1872. The self-styled moderados of the five states were working together in Leon, the native clergy and the jesuits being the common centre of the revolutionary propaganda, and the government of President Medina of Honduras encouraging them.

The congressional elections took place in October with much agitation and disturbance in several localities.^[XXIII-27] There was considerable independence exhibited by the voters. The liberal conservatives obtained a working majority, and high hopes were entertained from the congress which was to sit on the 1st of January, 1873.

The year 1872 was a happy one for Nicaragua. Not only was peace consolidated, but party animosity greatly decreased. Trade and agriculture yielded good results; the public administration was much improved; the treasury also felt easy, and public credit was restored. Congress assembled on the appointed day, and the president's message contained an encouraging report. He said that the rights of citizens had been respected, and an asylum allowed to the refugees of other states, including the jesuits.^[XXIII-28] He labored to impress upon the representatives the necessity of providing means to increase the revenue; but nothing had been done at the end of February, and the president saw, besides, that notwithstanding his moderate, impartial, and conciliatory policy, a considerable portion of the citizens refused to lend him their coöperation. In view of all this, and of his advanced age and ill health, he tendered his resignation on the 1st of March, setting forth the reasons for his doing so; but the chambers refused to accept it.^[XXIII-29] Congress adjourned on the 20th of March to continue its labors in 1874. Several important laws had been passed, for which the legislature deserved credit. On the other hand, it was blamed for a lavish bestowal of pensions, and for an excessive number of pardons and other favors to criminals. The jesuit question was resolved February 12th in favor of permitting the priests to remain.^[XXIII-30]

PRESIDENT
QUADRA.

The relations with Costa Rica were most unsatisfactory, and the government took action to meet any possible emergency. Pursuant to its decree of August 28th, congress assembled September 16th, when President Quadra's message made known that events had taken place calling for an abandonment of the policy he had hitherto pursued of absolute abstention from interference in the affairs of the other Central American states. [\[XXIII-31\]](#) His administration reported the intrigues of President Guardia of Costa Rica with discontented Nicaraguans for its overthrow. It was generally believed that a disturbance of the public peace was impending, and that Costa Rican money had circulated among the men concerned in the plot. [\[XXIII-32\]](#) These men, some of whom were officers in the service of Nicaragua, concealed themselves, and a number of them went to Costa Rica to tender their services to the enemy of their country. Meantime a body of armed men raised by the reactionary party of Central America made its appearance in Honduras, which alarmed the governments of Guatemala and Salvador. These powers represented to Nicaragua the movements to be unquestionably the work of Costa Rica, proposing an alliance against the latter. [\[XXIII-33\]](#) A defensive alliance was concluded on the 26th of August, the plenipotentiaries being Anselmo H. Rivas and B. Carazo. This treaty was approved by the three governments. [\[XXIII-34\]](#) It contained, besides, two other clauses; namely, the allied powers were to endeavor to bring about a settlement of the boundary question between Nicaragua and Costa Rica, and coöperate toward the reorganization of Central America under a single government. [\[XXIII-35\]](#)

Congress closed the session on the 15th of October, and shortly after the government was apprised of the departure from Puntarenas, Costa Rica, on the vessel named *Tigre*, of an expedition of Nicaraguans under Tinoco bound to Nicaragua. [\[XXIII-36\]](#) The expedition landed on the 3d of November, not in Nicaraguan territory, but in San Bernardo, a small port of Honduras. Nicaragua at once sent a force to the frontier, and Minister Delgadillo

started for Honduras to obtain permission from the government to pursue the invaders within her limits, which being granted, the Nicaraguans marched from Somotillo into Honduras, and acting in accord with another force from Salvador, the invaders abandoned Corpus, and repaired to Tegucigalpa, where Tinoco capitulated.^[XXIII-37] The Nicaraguan government's force then returned home.^[XXIII-38]

The elections for president and members of congress took place within the last three months of 1874 under no hindrance, and without any serious disturbance of the peace.^[XXIII-39] Quadra's message of January 13, 1875, announced that public confidence in a continued peace was not yet fully restored; but a disposition to work and maintain order was taking deep root among the masses.^[XXIII-40]

PRESIDENT
CHAMORRO.

Pedro Joaquin Chamorro, the elect of the people for the next presidential term, was inducted into office on the 1st of March, 1875.^[XXIII-41] Quadra returned with alacrity to private life. The new administration soon had to deal with seditious attempts which had been prepared during Quadra's rule. One of Chamorro's first acts was to issue an unconditional pardon to the parties implicated, hoping that it would bring the government's opponents to a better feeling. But the result was quite different; for they began a series of plots, and it then became necessary to issue, on the 17th of November, 1875, a decree of expulsion and of partial banishments. This quieted the country, and peace would have become consolidated but for the opportunities afforded the agitators in the neighboring states to start another conflagration. Costa Rica became the asylum of the discontented of Nicaragua, who took advantage of the interrupted relations between the two governments to promote a war that might give them the control of affairs in their country.

Costa Rica suspended diplomatic and commercial relations with Nicaragua; but the latter concluded not to decree a suspension of trade, with

the view of not injuring innocent persons. No actual war existed, but it might break out at any moment, in view of Costa Rica's menacing attitude.

[\[XXIII-42\]](#) At last the government found itself threatened from various quarters. It then called on all patriotic citizens for new sacrifices, to which they responded with enthusiasm. [\[XXIII-43\]](#) Martial law was proclaimed, and the president assumed personal command of the forces, the executive office being temporarily placed in charge of Senator Pedro Balladares. When the danger of war had passed, the decree of martial law was repealed. [\[XXIII-44\]](#) Elections for supreme and local authorities took place without hindrance and in good order. But the country suffered severely from natural causes. [\[XXIII-45\]](#)

Peace reigned during the last two years of Chamorro's rule, which enabled him to devote his attention to the advancement of the country's interests. Notwithstanding the past difficulties, the national finances had attained a better organization, and the national credit was on a higher plane. The people showed a growing disposition to employ themselves in the arts of peace, their civil and political rights being fully respected by the authorities. Friendly relations existed with foreign powers, and no complications were apprehended with the neighbors. [\[XXIII-46\]](#) The elections for president, deputies, and senators were effected at the usual time, the government abstaining from all interference. General Joaquin Zavala, having been the popular choice for chief magistrate, took possession of his office with the customary formalities on the 1st of March, 1879, promising to follow the conciliatory policy of his predecessor. He congratulated the representatives on the stability which the republic was evidently arriving at. [\[XXIII-47\]](#)

PEACE AND
PROGRESS.

Congress closed the session on the 1st of April. The results of its three months' labors were quite important.

[\[XXIII-48\]](#) Though acting with independence, the utmost harmony prevailed in its relations with the executive. At the opening of the

next legislative session in January 1881, the president made known that peace had been undisturbed both at home and abroad, and there was no cause to apprehend any immediate change. As far as the government's scanty means permitted, works of public utility had been fostered.^[XXIII-49] Public education made considerable progress. The finances were duly attended to, and a few reforms introduced.^[XXIII-50] The president congratulated the nation on the fact that all had been accomplished with the ordinary revenues. The public credit stood higher than ever. The foreign debt had been cancelled, and the internal, which amounted to \$1,600,000, reduced to one half this sum.^[XXIII-51] Congress adjourned March 6th. Several important measures were introduced and discussed, but left for completion in the following year.^[XXIII-52]

JESUIT
DISTURBANCES.

The apprehensions felt by a large number of citizens of serious troubles from the presence of the jesuits were realized in May 1881. On the 6th there was an Indian insurrection in Matagalpa, accompanied with considerable bloodshed, and the jesuits were said to be the instigators.^[XXIII-53] Twenty members of the order residing in that place were arrested and taken under guard to Granada. A still more alarming revolt took place in Leon. At the opening of the Instituto de Occidente, an educational establishment under the special protection of the national authorities, Professor J. Leonard, from Spain, made certain remarks, at which the jesuit fathers took umbrage.^[XXIII-54] They, together with a certain Apolonio Orozco, accused Leonard and Calderon of being free-thinkers and assailants of religion. The forty or fifty fathers living in Leon took the matter in hand energetically, and in two days there was hardly a person in the place who had not been told that the religion of their fathers was imperilled by the propaganda of the free-thinkers of the instituto. Relying on the support of a fanatical rabble, they assumed a bold attitude, and demanded prompt action on the part of Bishop Ulloa y Larios. But the latter would not uphold them. This greatly exasperated them. Meantime the rabble became seditious. Parties of armed

men intrenched themselves in the old Recoleccion convent, and laboring under the excitement produced by the speeches of their leaders and the free use of rum, they resisted the troops engaged in an effort to preserve order, eight or ten being killed, and many more wounded. The mob retreated to the Recoleccion, resolved to continue the fight, defying the local authorities, who, in fact, did not show much disposition to put them down, the prefect being a friend of the jesuits. The commander of the forces was an aged soldier, who could not do much active service. However, he captured the two chief leaders, Bermudez and Duvon, and sent them to Managua, where they were imprisoned. The supreme government adopted prompt measures, despatched troops to Leon, who brought the rebels under subjection, and then expelled the jesuits from the country.^[XXIII-55] It was believed that the real object of those movements was to overthrow Zavala and place Pedro Balladares in the executive chair. The question for a time seemed to be who should rule—the government or the jesuits. Zavala's energy settled it.

In July 1882 there was a slight rebellion in Gracias á Dios, and later disturbances in Matagalpa, Telica, and Subtiaba; but though causing some expense, because the government had to station a strong force there during a considerable time, public works were not thereby interrupted. The president, in his message to congress at the inception of 1883, expressed himself as gratified with the report he had to make, and retained the most perfect confidence in the future progress and prosperity of the republic. His successor, Adan Cárdenas,^[XXIII-56] elected by popular suffrage, was placed in possession of the office on the 1st of March, 1883.^[XXIII-57] Congress adjourned on the 12th of March. The new government issued a decree pardoning all who were concerned in the revolutionary disturbances at Matagalpa and Leon in 1881 and 1882.

The question of reconstructing the republic of Central America was now being considered by the five governments.^[XXIII-58] Nicaragua was at peace and progressing both morally and materially. It must be confessed, however, that priestcraft and bigotry still reigned almost supreme. The

country had suffered, however, during the last two years from epidemics and other causes. [\[XXIII-59\]](#)

DISCOMFITED
REVOLUTIONISTS.

On the receipt at Managua in March 1885 of information respecting the resolution of the assembly of Guatemala to effect the reconstruction of Central America by force, and the order of President J. Rufino Barrios, styling himself general-in-chief of the Central American forces, the people became greatly excited, manifesting a resolution to oppose Barrios' schemes with all their might. The government entered into an alliance offensive and defensive with Salvador and Costa Rica to provide for their mutual defence against Barrios, and troops were organized, President Cárdenas taking command of the Nicaraguan forces in the field, first calling Pedro Joaquin Chamorro to temporarily occupy the executive office. [\[XXIII-60\]](#) Nicaragua at once despatched 500 men to the aid of Salvador, and prepared 500 or 600 more. [\[XXIII-61\]](#) After the defeat and death of Barrios, the scheme of forcible reconstruction was abandoned by Guatemala, and peace being restored, Nicaragua returned to her normal condition. In the latter part of 1885, however, a movement was made with the view of overthrowing Cárdenas. A party of revolutionists, calling themselves liberals, landed at Nancital; but being unable to effect their purpose, took refuge in Honduras, where they were disarmed. [\[XXIII-62\]](#)

CHAPTER XXIV.

INDEPENDENCE OF THE ISTHMUS.

1801-1822.

ADMINISTRATION UNDER SPAIN—INFLUENCE OF EVENTS IN EUROPE AND SPANISH AMERICA ON THE ISTHMUS—HOSTILITIES IN NUEVA GRANADA—CONSTITUTIONAL GOVERNMENT—GENERAL HORE'S MEASURES TO HOLD THE ISTHMUS FOR SPAIN—MACGREGOR'S INSURGENT EXPEDITION AT PORTOBELLO—REESTABLISHMENT OF THE CONSTITUTION—CAPTAIN-GENERAL MURGEON'S RULE—THE ISTHMUS IS DECLARED INDEPENDENT—ITS INCORPORATION WITH COLOMBIA—JOSÉ FÁBREGA IN TEMPORARY COMMAND—JOSÉ MARÍA CARREÑO APPOINTED INTENDENTE AND COMANDANTE GENERAL—ABOLITION OF AFRICAN SLAVERY.

The intimate relations of the Panamá Isthmus with Central America, and indeed with the whole Pacific coast, led me in the first instance to give its history; and in continuation of that purpose, I herewith carry on the narrative of events in that quarter, although in the later political partition Panamá is not classed among the Central American states.

We have seen in a preceding volume how Panamá, formerly the entrepôt for the trade of Spain with her South American colonies on the Pacific, in the course of the eighteenth century descended from her lofty position, and became veiled in obscurity, until the name of the once famous Castilla del Oro is well-nigh consigned to the pages of modern mythology. The events of the following century, which so beneficially changed the political condition of most of the American provinces, only tended to impoverish the Isthmus. However, its important geographical position, making it a bridge between the two great oceans, brought back for a time

the old prosperity, notably by reason of the discovery of gold in California, the building of a railway, and the much-discussed project of an interoceanic ship canal.

UNDER THE
VICEROYS.

The Isthmus was enjoying in 1801 its usual tranquillity under the rule of the Spanish viceroy at Santa Fé de Bogotá, Pedro de Mendinueta y Muzquiz, as well as under the more immediate one of Brigadier Antonio Narvaez y la Torre, the governor and comandante general. He was in 1803 promoted to mariscal de campo, and relieved on the 15th of March the same year, by Colonel Juan de Márcos Urbina, who at his death in 1805 was succeeded^[XXIV-1] by Brigadier Juan A. de la Mata. The latter is represented to have been a man of estimable character, and as he was both respected and liked, he found during his term but little difficulty to rule the three provinces of Portobello, Veragua, and Darien, and the partidos of Natá and Alange, into which this region had been divided.^[XXIV-2] Pursuant to the customary policy of Spain, an asesor, or legal adviser, was appointed to consult with him, while the military functions of the governor, in case of his being prevented, were assumed by another substitute, also nominated beforehand, with the title of teniente de rey.

The judicial organization was equal to those of other Spanish colonies; matters of little importance were decided by the ordinary alcaldes or the city councils, and only appeals were brought before the courts of Bogotá.^[XXIV-3] There was also an extensive financial department, comprising the custom-houses of Portobello, Chagres, and Panamá, a general treasury with its dependent offices and the different administrations of customs and monopolies belonging to the crown. But their product was not sufficient to cover the expenses of the provinces, with their numerous officials and a permanent military force,^[XXIV-4] required as garrisons for Portobello, Chagres, and Panamá, all of which places were then fortified, and temporarily financial subventions from Peru became necessary. The reason was the decline of commerce which involved a corresponding neglect of

husbandry, and other branches, agriculture producing only what was required for home consumption. Stock-raising, for which the soil of Veragua was so well adapted, decreased; and mining in Portobello and Darien was scarcely worthy of mention. Such a depressing state of affairs could but have a degenerating influence on the inhabitants, which, if not fostered by the government, at least was allowed to go on without an effort to check it. Education was at a low ebb everywhere; in the capital there was one primary school and a Latin class. Nearly all books not of a certain religious character^[XXIV-5] were forbidden, intercourse with foreigners was hindered, and the diffusion of liberal ideas was effectually repressed. The facility of obtaining the few means of subsistence required in such a climate contributed to produce that state of indolence which characterized the inhabitants at the beginning of the nineteenth century. Most of their time was spent in bull-fights, gambling, and religious performances, there being more than one hundred holidays in the year. The regular clergy, as in other parts of Spanish America, had always been powerful in Panamá, and possessed, notwithstanding the decadence of the country, a number of establishments independent from those belonging to the bishopric.^[XXIV-6]

HAPPY DAYS.

Thus all was lethargy in Panamá while the new viceroy of New Granada, Antonio Amar y Borbon, quietly assumed the government at Bogotá. Few of the inhabitants of the Isthmus had a clear understanding of the political convulsions that had taken place in France and in the United States. The masses were totally indifferent to and suffered little from the policy of the government, which carefully suppressed all information about the countries where anti-monarchical principles prevailed. The course pursued by the crown in this respect was as fruitless as was another effort made at the time to revive trade by reëstablishing on January 20, 1803, the casa de contratacion de Indias. The hope of Panamá again becoming the great entrepôt for all ports on the Pacific was not realized. Not a single vessel came from Spain during the year; and open trade with foreign countries being unlawful, smuggling was resorted to by the merchants of Panamá and Jamaica, their rendezvous

being generally in the neighborhood of Chagres, where English vessels transferred their cargoes to small boats, which took the goods on shore.

[\[XXIV-7\]](#) This trade was continued, even in 1804, after Spain had declared war against England, an event which otherwise caused much excitement on the Isthmus. But the people, instead of preparing for defence, contented themselves with invoking the Lord of hosts for favor to the Spanish arms, and for relief of their own distress, or in other words, their laziness. [\[XXIV-8\]](#)

The government and priesthood, acting in accord, thus kept most of the population under control; and it was only in 1808 that liberal ideas began to have expression in the province, and this was due altogether to foreign influence. The government of the mother country, having declared the American possessions to be no longer colonies, but integral parts of the monarchy, their people having the same rights as the people of Spain [\[XXIV-9\]](#)—although the declaration of the *córtes* to this effect was not generally known or appreciated, to the intelligent, its significance was fully understood. The movements for independence made in other provinces could no longer be concealed from the people, and the idea rapidly gained ground that Spanish domination of America was approaching its end. This greatly exacerbated the ill feeling always existing, though only to a limited extent on the Isthmus, between the Spaniards and the native Panameños. [\[XXIV-10\]](#)

In connection with it, a system of espionage was established by the rulers, the discussion of politics was discountenanced, and the holding of meetings forbidden. But this policy was without effect; the liberty to trade with Jamaica, granted in 1809 with a view to appease the discontent of the Isthmians, invigorated not only their commercial but also their political life. [\[XXIV-11\]](#) Newspapers from Jamaica were occasionally received, and the contact with an enlightened people gave rise to new ideas.

REVOLUTIONARY

In New Granada the first resistance occurred at Cartagena, where the governor, Francisco Montes,

WAR.

opposed the establishment of a diputacion provincial, and assumed an attitude hostile to the liberal cabildo. He made his report to the viceroy, but before any redress could be made he was arrested on June 14, 1810, and sent away to Habana.^[XXIV-12] Hardly one month later a similar movement broke out at Bogotá, where several previous plans to overthrow the viceregal authority had failed;^[XXIV-13] but the agitation being continued, on the 20th of July a trifling incident^[XXIV-14] sufficed to cause an outbreak. Three days later the viceroy was imprisoned and the government placed in charge of a junta.^[XXIV-15] The revolutionary movement in Bogotá as in Cartagena did not at the time purpose to break wholly with Spain; its real object was to obtain an autonomic government without ignoring the supremacy of that of the mother country.^[XXIV-16] It was with such intent that both juntas extended invitations to all the provinces of New Granada to meet in congress and discuss the form of government to be adopted. The governor of Panamá declined to take part, and endeavored to persuade the people of the Isthmus that there was no need for such a revolution.^[XXIV-17] That the absence of the Panameños from the congress, which met early in 1811, had not been of their own choice, was not a secret to that body; and when the fundamental act of the federation was passed, it contained a clause binding all those represented in the congress to labor for the freedom of the other provinces which were still under Spanish control.^[XXIV-18]

It seemed, however, as if Panamá was more distant than ever from gaining her independence. Early in 1812 a new viceroy, Benito Perez, arrived, and being unable to get to Bogotá, established his residence on the Isthmus,^[XXIV-19] where the audiencia and other offices were also established. Thus Panamá became temporarily the capital of New Granada, an honor little cherished at that time by the friends of independence. Perceiving the unsafe condition of the government, the new viceroy took steps to increase his military force. Upon his request, three men-of-war

were sent from Cuba and a battalion of soldiers from Spain, part of which reënforcements were despatched to Santa Marta, then at war with Cartagena. The latter place was blockaded, and being hard pressed for supplies, the insurgents despatched two commissioners with the avowed object of treating with the viceroy for an armistice. The project was favored by the vice-admiral of the English squadron at Jamaica, Charles Sterling, who guaranteed the commissioners a safe return. They arrived at Panamá in October 1812, and at once began pretended negotiations, their real purpose being to gain time for the besieged town, obtain if possible a suspension of hostilities, and ascertain the feeling of the population. But some correspondence intercepted by the governor of Santa Marta, [\[XXIV-20\]](#) and forwarded to Viceroy Perez, apprised the latter, who at once had the commissioners arrested and brought to trial. They would have been severely dealt with but for the timely interference of Sterling, who energetically demanded their release, which the viceroy at last acceded to, returning them to Cartagena. They had meantime become satisfied that the intelligent part of the population strongly favored the emancipation, and that the new governor, Cárlos Meyner, [\[XXIV-21\]](#) could not prevent any effort for independence. The only opposition to be feared would be from the viceroy and the chief officers of the garrison, most of whom were loyal and energetic. But fortune seemed to smile on the revolutionary party; several vessels with troops and military supplies despatched by Perez to the relief of Santa Marta, then besieged by the insurgents, fell into the hands of the latter, and the viceroy himself was removed from his position by the government in Spain. [\[XXIV-22\]](#) His successor was the mariscal de campo, Francisco Montalvo, who with some reënforcements furnished by the government of Cuba proceeded from Habana directly to Santa Marta, where he arrived in May 1813, and forthwith began to push the military operations against the revolutionists of Cartagena.

THE VICEREGAL
PARTY.

The natives of Panamá rejoiced on hearing of the establishment of the viceregal seat at Santa Marta, and for obvious reasons. The danger was removed that

Panamá might become the theatre of a bloody war, and on the other hand, there would be less difficulty in working for the emancipation of the province. The cause of independence gained more and more sympathy; and when toward the close of 1813 it was proposed to form a confederation, comprising New Granada, Quito, Venezuela, and Tierra Firme, the idea was eagerly embraced by the patriotic party on the Isthmus. The friends of independence gradually became bolder; they openly manifested their dislike of Spanish rule at parties and in public songs, and induced the cabildo to demand and obtain from the government at Cádiz the removal of the bishop, [\[XXIV-23\]](#) and the transfer of the officials of the audiencia, then in Panamá, to other places. But the latter met with opposition from the senior oidor, Joaquin Carrion, who well understood the workings of the patriotic party, and disregarding the protestations of the city council, continued alone to exercise the jurisdiction of the audiencia till 1816. Strange though it may appear, and perhaps owing to the listlessness Panamá had thus far exhibited, when revolution prevailed everywhere else, the city came to be looked upon by the government in Spain as most loyal; whereupon the córtes resolved to reward it, establishing there a diputacion provincial, [\[XXIV-24\]](#) which did not then come to pass, for only one month later King Fernando suppressed all such bodies, together with the constitution of 1812. [\[XXIV-25\]](#)

Unwilling to relinquish her hold on the American colonies, Spain, early in 1815, fitted out an expedition comprising sixty-five large and several smaller transport vessels, convoyed by the line-of-battle ship *San Pedro Alcantara* of seventy-four guns and several frigates; the total number of sailors, soldiers, and marines being 15,000, [\[XXIV-26\]](#) all well provided with artillery and supplies, the soldiers being veterans of the war against Napoleon's army.

GOVERNOR HORE.

The original plan had been to send both fleet and army to Montevideo, but subsequently it was considered more urgent to regain possession of Venezuela and New

Granada, and to strengthen the forces on the Isthmus.^[XXIV-27] The general-in-chief was Mariscal de campo Pablo Morillo, a brave man of firm character, who, in nine years, had risen from sergeant to general. Soon afterward more forces were sent out from Spain to coöperate with those of Morillo, after which they were to be stationed at Panamá. Their commander, Alejandro de Hore, was appointed governor. Military supplies were also sent to equip troops for a campaign in Peru. The expectations of the Isthmians were now almost beyond the possibility of realization. It made but little difference that a part of Hore's force fell into the hands of the insurgents of Cartagena,^[XXIV-28] and that Hore himself barely escaped with the auxiliaries that Morillo could furnish almost at any time; he was always able to maintain the Spanish régime on the Isthmus. No sooner, indeed, had he arrived at Panamá and established the government on a military basis,^[XXIV-29] than he displayed his harsh, despotic character.^[XXIV-30] An extensive system of espionage was organized, and it is said that Hore treated the members of the patriotic party "according to their proclivities for independence, always availing himself of some false pretext to strike." Much as the Isthmians suffered under his iron rule, their anxiety became greater when it was said that Morillo was on his way to Panamá to place the city in a state of defence; fortunately it proved to be a false alarm.

Hore was a partisan of absolute authority; but when it suited his purposes he would support liberal ideas and policies. Thus we see him coöperating with the people of Panamá in opposing the reinstatement of the jesuits.^[XXIV-31] He did not like priestly interference in state affairs. The governor also manifested a strong inclination to foster trade with foreigners, and it is said that he never refused to honor, with his acceptance, such gifts as the smugglers awarded him.

ENGLISH
EXPEDITION.

Early in 1819, news arrived that a formidable expedition had been prepared in England by friends of the insurgent cause, and was on its way to America, intended to wrest the Isthmus from Spanish domination. The rumor proved

well founded. A former officer of the revolutionists, one Gregor MacGregor, together with José María del Real, the agent in London of the "United Provinces of New Granada," had, with the aid of some English merchants, fitted out an expedition, [\[XXIV-32\]](#) which, consisting of three ships, carrying 417 fighting men, sailed from Gravesend on the 18th of December, 1818, and in the following February cast anchor off Aux Cayes in Hayti. Here they were joined by two other vessels, and together they continued the voyage to San Andrés, the rendezvous, of which, on the 4th of April, 1819, they took formal possession in the name of the United Provinces. Four days after, the squadron appeared off Portobello and captured the place, meeting with scarcely any resistance. Governor Hore had expected the landing at Chagres, and made preparation to meet the invaders. [\[XXIV-33\]](#) Most of the troops were forthwith landed, and the town having been almost entirely deserted, the soldiers found ready quarters, and garrisons were placed in the forts, and the batteries were manned. MacGregor issued a high-sounding bulletin, in which he set forth that "the first division of the army of New Granada had won immarcesible glory." Detachments were sent out to reconnoitre, and no hostile force being discovered, the march to Chagres and Panamá, was spoken of as if neither nature nor the Spaniards would offer any obstacles. [\[XXIV-34\]](#) Two exiles from New Granada, José Elías Lopez and Joaquin Vargas Besga, who had accompanied the expedition, were made governor and vice-governor respectively. After a te deum, and a few days time, the inhabitants of the town who had returned to their homes were harangued to induce them to take up arms against the Spanish yoke. About 100 men, mostly colored, responded to the appeal and enlisted, forming the nucleus of a regiment called América Libre, which, under the command of some foreign officers, was to be the advanced guard on the march to Panamá. The scheme proved a failure, for soon these same free Americans disbanded or deserted, most of them joining the enemy.

The condition and general discipline of the invading force were far from satisfactory. The men clamored for their pay, and there being no

money in the military chest, the people were called upon to furnish funds, which caused them to again leave the place. Sickness also broke out among the troops, several of the officers and men becoming victims of the climate. Discipline was neglected, and all semblance of order disappeared. The soldiers sold their ammunition and effects for liquor. [\[XXIV-35\]](#) This same carelessness prevailed even when toward the end of April news came of the near approach of Spanish forces from Panamá. It seems that as soon as Hore heard of the loss of Portobello he concentrated his forces, and with about 500 men marched across the Isthmus, bent upon expelling the invaders. Taking a route different from the usual one, and favored by the carelessness of the English and the thick forests surrounding Portobello, Hore arrived near the town unperceived on the 29th of April.

On the same day a vessel with supplies and provisions for the invaders had arrived from Jamaica, an event which was gayly celebrated in the town. In the evening the alcalde and some priests took part in the carousals, which were kept up to a late hour, with a complete neglect of duty on the part of the officers. At six o'clock next morning one division of Hore's troops, under the command of Lieutenant-colonel José de Santa Cruz, surprised the soldiers and took the town, killing all who came in their way. Among the slain were the newly appointed governor, Lopez, and many of the officers, who perished either at their quarters or while attempting to reach the fort. MacGregor leaped over the balcony of the government house, ran to the beach, and thence swam to one of his vessels. Unsuccessful attacks were made on the forts, though the besieged were unable to use the unwieldy guns, unsupported as they were by the vessels, which made no preparation to aid them. The Spaniards were not disposed to storm the forts, but knowing that the garrisons had suffered severely, they demanded their surrender. This was refused; and notwithstanding the cowardly conduct of some of the officers, the negotiations might have been broken off, but the soldiers declined further to fight. A capitulation was then entered into, under which the invaders, after delivering up their arms, were to retain their baggage and reëmbark to go whither they chose. At this juncture, orders

came from MacGregor not to surrender, giving assurance that the ships would soon be ready to open upon the Spaniards. But the surrender had already been made, and the men, about 340 in all, had been disarmed and marched to the main plaza, where, instead of being permitted to go their way, they were declared prisoners, to be conveyed as convicts to Panamá. [\[XXIV-36\]](#) On learning the result, the gallant MacGregor, from whose coming the New Granadinos had expected so much put to sea, leaving his companions to their fate. [\[XXIV-37\]](#)

FAILURE OF THE
EXPEDITION.

The matter did not end at Portobello, however. Hore despatched his prisoners to Panamá on the 2d of May, and reported his achievement to Viceroy Sámano, who commanded that the prisoners, none excepted, should be shot. [\[XXIV-38\]](#) But for some reason Hore did not carry out the order. The prisoners were, nevertheless, subjected to cruel treatment, being kept in chain-gangs at work on the fortifications, roads, and streets, which, added to the ravages of the deadly climate, soon reduced their numbers. Several of the officers were shot afterward at Cana in Darien on the pretext of their having attempted to escape. [\[XXIV-39\]](#) When after seventeen months of suffering the release of the survivors was ordered on September 20, 1820, only 121 remained, [\[XXIV-40\]](#) who were at an early day taken to Chagres, whence they embarked for Jamaica.

Important events had meantime taken place in Spain, by which constitutional régime was restored. A change in the government of the Isthmus soon followed, the people for the first time being called upon to exercise the right of suffrage. [\[XXIV-41\]](#) The newly organized ayuntamiento [\[XXIV-42\]](#) was composed of men well disposed toward independence. The change of system curtailing Hore's powers so preyed upon his mind that he died. [\[XXIV-43\]](#) This was a serious loss to the Spanish cause, whose interests the deceased had ever been ready to uphold by fair or foul means.

COMING OF
SÁMANO.

Brigadier Pedro Ruiz de Porras, who succeeded Hore in the military command, if not a partisan of independence, was a friend of constitutional government. The civil governor, or jefe político, Pedro Aguilar, showed so much indifference that little opposition was feared from him. The new cabildo demanded the installation of a diputacion provincial, the election of a deputy to the Spanish córtés, and other measures provided for in the national constitution. [\[XXIV-44\]](#) These demands were not, however, complied with. The independent party saw the necessity of close relations with their friends outside of Panamá, and developed them, without disregarding the precautions demanded by the presence of a strong hostile garrison in their midst. They were now greatly hindered by the sudden appearance in Panamá, of Viceroy Sámano, who came by way of Jamaica. His object was to establish his government on the Isthmus, which the cabildo and constitutionalists opposed on the ground of his having forfeited the viceregal office by a refusal to take the oath to support the constitution. He had been detained several days at Las Cruces, but the military party proved the stronger, and admitted him into the city. His coming caused general uneasiness, [\[XXIV-45\]](#) as he was known to be a man of bad temper. However, as he met with no further opposition, and as his health was precarious, he limited himself to levying a forced loan. [\[XXIV-46\]](#)

Free ideas had, however, gained too strong a hold to be easily suppressed by the mere opposition of the ruler, and when in 1821 a new city council was elected, the members [\[XXIV-47\]](#) were again liberal-minded men. They repeated the demand for the establishment of a diputacion provincial, and for the election of a deputy to the Spanish córtés; but the viceroy only returned evasive answers. Fortunately, the province was soon relieved of him, by his death, on the 3d of August, 1821. [\[XXIV-48\]](#) Then the press resumed a bold tone, and hopes were revived in political circles. Soon after came to succeed Sámano, the mariscal de campo Juan de la Cruz Mourgeon. [\[XXIV-49\]](#) He had been appointed as captain-general of New

Granada only, with the promise of the office of viceroy when he should have reconquered two thirds of New Granada. [\[XXIV-50\]](#)

Mourgeon brought from Spain some troops, adding to their number at Puerto Cabello in Venezuela. His rule was based on principles entirely opposite to those of his predecessor, namely, on the constitution and the new organic laws of the monarchy. Members for the diputacion provincial and a deputy to the Spanish *córtes* were elected, and the former was installed amidst the usual demonstrations. This liberal policy permeated his whole administration; the press was protected, patriotic societies were formed, and to strengthen the ties between Spaniards and Americans a masonic lodge was founded, and offices of trust and honor were bestowed on men from both branches. Every effort was made by the new ruler to do away with the old rivalry. But it all came too late. The idea of independence had become deeply rooted, and could not be affected by the new policy, the duration of which was also uncertain. The natives of the Isthmus exhibited a remarkable circumspection, which deluded the captain-general and the Spaniards. Mourgeon felt confident of Panamá's loyalty, and still more so after José de Fábrega, a native of the Isthmus, was appointed temporary comandante of Tierra Firme; [\[XXIV-51\]](#) and began to think of securing his promised viceregal office by the reconquest of Quito or Ecuador. He accordingly set himself to make preparations for that undertaking; but the impoverished condition of Isthmian finances greatly hampered him. Nevertheless, though with the utmost difficulty, [\[XXIV-52\]](#) he fitted out a squadron, composed of the corvette *Alejandro*, and three schooners, on which he embarked two battalions of infantry, two dismounted squadrons of cavalry, and some artillerymen; and assuming personal command of the force, set sail on the 22d of October, 1821. [\[XXIV-53\]](#)

SUB-REVOLUTION.

This was the most propitious opportunity the friends of independence could hope for, and they lost no time in availing themselves of it. Secret meetings were held, at which they matured their plans. While thus engaged at Panamá, a revolutionary

movement broke out in the villa de Los Santos, which, not being the result of any preconcerted plan, caused the greatest alarm at the capital. The outbreak had been, indeed, one which merely proclaimed independence, without pretending to establish any form of government.^[XXIV-54] The governor, local authorities, and other prominent officials, after a hasty consultation, resolved upon gentle means to quell the disturbance, and commissioners were despatched at once to Los Santos to restore peace if possible.^[XXIV-55] But the more impatient among the friends of independence hoped that their mission would fail, and that the spirit of sedition, known to exist throughout the Isthmus, would boldly assert itself as soon as the capital should give the signal. But this signal could not as yet be given. Both the cabildo and diputacion countenanced the revolution, and it was believed that Fábrega would not oppose a movement to free his own country; but resistance was certain from the troops of the garrison. Any sudden insurrection would, therefore, be untimely, and probably end in disaster.

New plans were devised, and it was finally resolved to undermine the military power by encouraging desertions,^[XXIV-56] and at the same time to spread among the masses the scheme of independence. Four prominent citizens^[XXIV-57] undertook the first task, to facilitate which a fund was raised, and were very successful. Desertions became frequent, and their number increased from day to day, till the government began to suspect the cause, but the independent agents were reticent. Measures were adopted which only partially succeeded in checking desertions. The garrison was soon so reduced that there were hardly men enough to guard the jail, hospital, and powder magazine. In the night of November 27, 1821, sixty soldiers disappeared, together with their muskets.^[XXIV-58] The government now became convinced that a revolution was impending, and took measures to resist it. The few remaining troops were distributed in the most convenient places, and artillery was placed at street-crossings.

The day so anxiously waited for, the memorable day in the history of the Isthmus, came at last. On the 28th of November, 1821, at the call of a number of citizens, the ayuntamiento held a session, and the governor, diputacion provincial, bishop, and other chief officials were invited to take part in their deliberations. The meeting was held with open doors; people might come and go as they chose. The question was, Should or should not the Isthmus of Panamá declare its independence from Spain? A motion to that end met with approval. [\[XXIV-59\]](#)

DECLARATION
AND
REORGANIZATION

The next subject discussed was the form of government to be adopted, which resulted in a voluntary annexation to the republic of Colombia, [\[XXIV-60\]](#) to whose general congress the Isthmus was to accredit a deputy. Other resolutions were passed concerning the military force in the state, [\[XXIV-61\]](#) and the organization of a new government, which was intrusted to the former governor, José de Fábrega, who now assumed the title, Jefe Superior del Istmo. All the civil, municipal, and ecclesiastical authorities were to continue in office, and in the same manner the existing laws were to remain in force, when not conflicting with the independence, and until a new code could be framed. Fábrega was directed to adopt measures for preserving peace, to obtain the surrender of Chagres and Portobello, and to raise a loan to meet necessary expenses. The several authorities and officials of all grades were to take the oath of allegiance, and copies of the proceedings were to be circulated, together with requests for pecuniary contributions. A special committee then drew up a formal minute of the declaration and of the resolutions passed, and amid the cheers of the multitude, the document was signed by José de Fábrega, the bishop José Higinio Duran y Martel, a number of other citizens, [\[XXIV-62\]](#) and the public notary José de los Santos Correoso. Thus ended the 28th of November, 1821. [\[XXIV-63\]](#) Two days later the support of the declaration of independence was publicly sworn to with great solemnity, and on the 1st of December a similar proclamation was made at Santiago de Veragua. [\[XXIV-64\]](#)

On the day, however, that the celebration occurred at Panamá, the inhabitants were thrown into consternation by the arrival of two Spanish frigates accompanied by Mourgéon's transports. It was at first feared that he had returned from Ecuador, [\[XXIV-65\]](#) till it was ascertained that the war ships had come in quest of the general, and the transports for reënforcements. The alarm was well founded, for the place had no means of defence. Nevertheless, the authorities made preparations for resistance, and the town soon assumed a warlike appearance. The suspense lasted six days, at the end of which the commanders of the frigates offered to surrender to the new government, the only condition required in return being that the latter should pay the wages due the crews. It will be a matter of surprise that so modest a demand was not complied with. It is true that the treasury was empty, but it does not appear that any efforts were made to procure the funds. An agreement was, however, entered into, the two commanders binding themselves not to assail the Isthmus, nor afford aid to Mourgéon, but to surrender to the government of Peru, which was done. [\[XXIV-66\]](#)

About the time that Panamá became free, other Spanish colonies also secured their independence. Consequently, Panamá found no difficulty to effect a union with the then republic of Colombia, whose constitution, framed in the latter part of 1821, [\[XXIV-67\]](#) became the political groundwork of Tierra Firme. In January, 1822, Fábrega assured the people that there was no further cause to fear Mourgéon's attacks, should he attempt them; troops in sufficient number for defence had arrived; but funds for their support were at the same time called for. However, as late as October, 1827, there were apprehensions of a Spanish invasion, and Bolívar, the president of Colombia, issued a military order for the protection of the coast. [\[XXIV-68\]](#) Early in February 1822, José María Carreño was appointed intendente and comandante general of the Isthmus, with a command independent from Cartagena, and Fábrega was made governor and comandante general of Alange, Veragua, and annexes. [\[XXIV-69\]](#) This same year Mexico received

with high honors a Colombian minister, and formally recognized the independence of the republic. [\[XXIV-70\]](#)

ABOLITION OF
SLAVERY.

The republican government, among its first acts, not only prohibited the importation of African slaves, but made provision for extinguishing slavery within its limits in the near future. Slaves were allowed to purchase their own freedom, and all children born of slave parents after the 21st of June, 1821, were declared free, the masters being required to feed, clothe, and educate them, in return for which the children were to work till their eighteenth year for the masters of their mothers. [\[XXIV-71\]](#) In 1850 the government redeemed, by offering compensation to the owners, all colored men and women who had not at that time attained their freedom. [\[XXIV-72\]](#)

CHAPTER XXV.

DIVERS PHASES OF SELF-GOVERNMENT.

1819-1863.

PANAMÁ CONGRESS—PROVINCIAL ORGANIZATIONS—ALZURU'S REBELLION AND EXECUTION—SECESSION FROM COLOMBIA AND REINCORPORATION—DIFFERENCES WITH FOREIGN GOVERNMENTS—CRIME RAMPANT—SUMMARY TREATMENT OF CRIMINALS—RIOTS AND MASSACRE OF FOREIGN PASSENGERS—ATTEMPTS TO ROB TREASURE TRAINS—NEUTRALITY TREATIES—ESTABLISHMENT OF FEDERAL SYSTEM—PANAMÁ AS A STATE—REVOLUTIONARY ERA BEGINS—A SUCCESSION OF GOVERNORS—SEDITIONOUS CHARACTER OF THE NEGRO POPULATION—REVOLUTION AGAINST GOVERNOR GUARDIA AND HIS DEATH—ANOTHER POLITICAL ORGANIZATION—ESTADO SOBERANO DE PANAMÁ—LIBERAL PARTY IN FULL CONTROL—STRINGENT MEASURES.

PANAMÁ CONGRESS OF NATIONS.

Owing to its geographical position, Panamá was selected as the place of meeting of a congress of American states, called at the suggestion of Bolívar, the liberator of South America, in 1822, for the purpose, as it was understood, of devising measures to counteract the menacing plans of the so-called holy alliance of European monarchs. [\[XXV-1\]](#) The government of the United States being invited to send representatives agreed to do so, and did appoint plenipotentiaries, declining, however, to bind itself to any course of action, but to remain a passive witness of the proceedings, so long as the executive and congress should be in ignorance of the real aims and tendencies of that assembly. Its representatives did not take any part in the deliberations. [\[XXV-2\]](#) England, which had recognized the independence of Colombia in 1824, and Holland, having been likewise invited to be present

by commissioners, partly complied, but refrained from participating in the work of the congress.^[XXV-3]

The congress assembled on the 22d of June, 1826, the only American nations therein represented being Colombia, Central America, Peru, and Mexico.^[XXV-4] Chile had reluctantly promised her attendance, but failed to comply, owing to civil war. Buenos Aires refused her coöperation. Without waiting for further arrivals, the commissioners present entered into certain covenants, establishing the contingent of land and naval forces each nation was to contribute to the projected league; and likewise agreeing upon the points to be submitted to the acceptance of the several allies. Some not very practical propositions were agreed to.^[XXV-5] Bolívar was displeased at the course of affairs, and disappointed at the failure of a plan which, if realized, would have been his crown of glory.^[XXV-6] He thereupon turned his attention to other objects.

The congress then adjourned to meet again at Tacubaya in Mexico. This step was attributed to the influence of the Mexican plenipotentiary Michelena, who, it has been said, had in view to secure his country's predominance in America.^[XXV-7] It was also resolved at the adjournment that the legations should divide themselves, one member from each going to report to his government what had been done, and the others repairing at once to Mexico. The ministers of Colombia and Central America, after waiting two years in vain for the ratification by Mexico of the treaties, had finally to depart, deeply regretting the dissolution of a body upon which Spanish America had centred her hopes, and the enlightened world had so long fixed its attention.^[XXV-8]

PANAMÁ AND
VERAGUA.

A congress held in Angostura,^[XXV-9] in December 1819, under the presidency of Simon Bolívar, constituted the republic of Colombia, with the former viceroyalty of Nueva Granada, including Ecuador, and the captain-

generalcy of Caracas or Venezuela. One of its departments was the Isthmus divided into two provinces, namely, Panamá, which embraced the region of Darien, and Veragua.^[XXV-10]

The secession of Venezuela after some years having brought on the disruption of Colombia, a convention assembled at Bogotá^[XXV-11] in 1831 organized the Estado de la Nueva Granada with the central provinces, those of the Isthmus forming a section of the new organization.^[XXV-12] The new state was divided into provinces, under governors who received their appointments from the general government.^[XXV-13] The decree was dated November 21, 1831. The new constitution, sanctioned by the convention on the 29th of February, 1832, was published in Panamá on the 28th of April.^[XXV-14] Each province was subdivided into departments.^[XXV-15]

Civil war broke out in 1831. Colonel Alzuru, who had arrived from Guayaquil with troops, by the instigation of some prominent men, rose in arms in Panamá to detach the provinces from Nueva Granada. On the news reaching Bogotá, the national government despatched Colonel Tomás Herrera with a force to quell the rebellion; and upon his approaching the city, the more prominent families fled to the island of Tabogá. Those who had prompted Alzuru's act now forsook him, and rendered aid to Herrera, with all the information they possessed. The rebels were attacked on their way to La Chorrera, while crossing marshy ground, and defeated. Alzuru was taken prisoner, tried by court-martial, and shot in the cathedral plaza of Panamá.

REPUBLIC OF
PANAMÁ.

General José Fábrega restored order in Veragua, and made it known to the general government on the 30th of August.^[XXV-16] The garrison at Panamá, together with Tomás Herrera, the comandante general, assured the president of the Nueva Granada convention of their unswerving fealty.^[XXV-17] Later, in March 1832, an attempt was made by two subalterns^[XXV-18] to induce

the sergeants of their battalion to join them in a conspiracy for upsetting the government. The two officers were tried and executed, and two of the sergeants sent into exile. Chaos reigned throughout the republic in 1840; then came revolution. The chief men of Panamá met in a junta and resolved to detach the Isthmus and form an independent republic. Cárlos Icaza, the governor, who was a Panameño, signified his acquiescence, and the proclamation of independence was made, Tomás Herrera assuming by appointment of the junta the office of jefe superior, on the 18th of November, 1840.^[XXV-19] On the 21st the governor of Veragua, Cárlos Fábrega, was asked to join the movement; but he answered from Santiago on the 29th declining,^[XXV-20] whereupon Herrera issued addresses, on the 5th and 11th of December, announcing his march with troops to Veragua.^[XXV-21] The expedition, however, marched only a part of the distance, the people of Veragua submitting to the force of necessity. The independence existed de facto nearly two years. In 1841 Tomás Herrera and Cárlos de Icaza were chosen president and vice-president, respectively, of the ephemeral republic. Mariano Arosemena, secretary of foreign affairs, despatched Pedro de Obarrio as a special commissioner to the government of Costa Rica to notify it of the organization of the state of the Isthmus, and apply for its formal recognition.^[XXV-22] During this period of independence, persons and property were protected, and commerce was liberally encouraged.^[XXV-23]

The government had carefully avoided the commission of any act of hostility against Nueva Granada; but the time came when news reached Panamá that the government of Bogotá was fitting out a force to bring the Isthmus into subjection. Whereupon the officers of the British chargé d'affaires at Bogotá were asked to obtain the consent of Nueva Granada to receive a commissioner in the interest of peace.^[XXV-24] But the other parts of Nueva Granada having become pacified in the course of 1841, two commissioners came from the general government, and the people of Panamá, being convinced of the folly of resistance, peacefully submitted.

[XXV-25] Herrera so managed that he was appointed governor of the restored province. [XXV-26] The constitutional reforms of 1842 and 1843 tended to reestablish good understanding between the provinces, and Panamá again appeared satisfied with the connection. [XXV-27]

PROVINCE OF
CHIRIQUÍ.

The Canton de Alange, detached from Veragua, and the districts of David, Dolega, San Pablo, and Alange, were on the 24th of July, 1849, formed into a separate province under the name of Provincia de Chiriquí, with its governor and assembly of seven members. [XXV-28] This organization continued several years, though the province subsequently took the name of Fábrega, and so continued until August 1851, when it resumed the former name of Chiriquí. [XXV-29] The territory which in early days was embraced in the province of Veragua appeared in August 1851 divided into three provinces, each having a governor and legislature; namely, Chiriquí, Veragua, and Azuero. [XXV-30] This new arrangement lasted only till April 30, 1855, when the province of Azuero was suppressed. [XXV-31]

The district, or as it was called, Canton de Bocas del Toro, was organized by decree of the government of Chiriquí or Fábrega, with a jefe político at its head. But a law of the republic [XXV-32] formed into a canton or district the territories of San Andrés, Darien, and San Martin. Another law of April 12, 1851, applied the former one to Bocas del Toro. [XXV-33]

Owing to grievances complained of by foreigners against acts of the officials on the Isthmus, the relations of the national government with foreign powers have been at times complicated. The first difficulty arose from the arrest in 1836 of Russell, the British vice-consul, and led to the blockade of the whole Atlantic coast of the republic, which finally compelled Nueva Granada to submit to such terms as the British commander chose to impose. [XXV-34] Another trouble with the British

government resulted from a certain claim of one Mackintosh, which for a time interrupted diplomatic relations in 1856. [\[XXV-35\]](#)

RAN RUNNELS'
ISTHMUS GUARD.

On the 26th of January, 1854, the consuls of the United States, France, Great Britain, Brazil, Portugal, Denmark, Peru, and Ecuador addressed a protest to the governor of Panamá, against the neglect of his government to afford protection to passengers crossing the Isthmus, notwithstanding that each passenger was made to pay the sum of two dollars for the privilege of landing and going from one sea to the other. [\[XXV-36\]](#) Governor Urrutia Añino, on the 14th of February, denied the alleged neglect, as well as the right of those officials who had no recognition from the New Granadan government to address him in such a manner. He pointed to the public jail, which was full of prisoners, some already undergoing punishment, and others being tried or awaiting trial. He also reminded the consuls that only a short time had elapsed since three men were executed for crimes. [\[XXV-37\]](#) It was a fact, nevertheless, that the government could not cope with the situation—the Isthmus being infested with criminals from all parts of the earth, that had been drawn thereto by the prospect of plunder—in view of which a number of citizens and respectable foreigners combined in organizing the Isthmus guard, whose chief was Ran Runnels, charged with the duty of guarding the route between Panamá and Colon, and empowered to punish even with death all persons guilty of crimes. Urrutia Añino, the governor, unhesitatingly acquiesced in the arrangement. [\[XXV-38\]](#)

Americans had occasional misunderstandings with the authorities, a notable one occurring in 1855, when the local governor of Panamá returned unopened an official letter from the consul of the United States, who at once threatened to strike his flag; but the matter was settled amicably by the chief officers of the Isthmus. [\[XXV-39\]](#) A more serious affair was the demand of the state government that steamships arriving at Panamá or Colon should pay tonnage money. [\[XXV-40\]](#) This raised the protest of the American consul and

the railway and steamship agents. The controversy was finally terminated by the executive of the republic declaring that the law under which the tonnage money was claimed had been enacted by the state of Panamá, without any right to legislate on such matters, as they were of the exclusive province of the general government. [\[XXV-41\]](#)

The lack of proper protection, as well as a marked spirit of hostility on the part of the lower class toward foreigners, [\[XXV-42\]](#) was made further evident in the riot of the fifteenth of April, 1856, when a considerable number of American passengers were killed, and others wounded, much property being also appropriated. [\[XXV-43\]](#)

PANAMÁ RIOT.

As might have been expected, exaggerated accounts of this affray flew far and wide. The official report, however, showed smaller figures, though bad enough—of foreigners, 15 slain and 16 wounded, of whom one died afterward; of natives, 2 killed and 13 wounded. The conduct of the police and people was certainly most blamable. The affair might, perhaps, have been averted if the authorities had shown proper energy. I will admit, however, that there was cause of provocation. [\[XXV-44\]](#)

Consequent on this affair, the city of Panamá, which, owing to the misgovernment of previous years, was already on the decline, had to suffer still more. Many business houses closed their doors, because the American transient passengers, who during their stay were wont to scatter gold, thenceforth remained on shore only a few minutes. [\[XXV-45\]](#) Much diplomatic correspondence passed between the American and New Granadan governments on the subject, the former sending a commissioner to Panamá, to investigate the circumstances, [\[XXV-46\]](#) and finally claiming a large indemnity. At last a convention was concluded on the 10th of September, 1857, between Secretary Cass, and General P. A. Herran, minister of New Granada, for the settlement of all claims, the latter having acknowledged

the responsibility of his government for the injuries and damages caused by the riot. [\[XXV-47\]](#)

The relations with Americans on the Isthmus continued to be unsatisfactory for some time longer. Notwithstanding that New Granada was apparently inclined to cordiality, cases of injustice or ill treatment to American citizens often occurring, at last the president of the United States asked congress, on the 18th of February, 1859, for power to protect Americans on the Isthmus. [\[XXV-48\]](#) In later years Americans have seldom had any serious cause of complaint.

The question of neutrality of the Isthmus has occasionally been on the tapis. A case in point occurred in 1864, during the sectional war in the United States, when a number of southern confederates went on board the American steamer *Salvador* at Panamá, with the purpose of seizing her at sea, and turning her—as she had guns on board—into a confederate cruiser, to be used in capturing the first treasure steamer from California. The men engaged in the enterprise were themselves arrested at sea on the *Salvador*, [\[XXV-49\]](#) by an American war vessel. The admiral, Pearson, asked the government of Panamá for permission to send the prisoners overland to Colon, where they might be embarked for New York. The request was refused; [\[XXV-50\]](#) in consequence of which the prisoners were sent to San Francisco. [\[XXV-51\]](#)

At the commencement of the French intervention in Mexico, the legislature of Panamá asked the general government of Colombia to allow no French troops to pass over the Isthmus. The United States government was not called upon to aid this policy. In the autumn of 1864 a body of French marines arrived at Colon to cross to the Pacific and replace invalids of the fleet on the Mexican coast. The president of Panamá refused them a pass, and asked the railroad company not to transport them. The French officers argued that American and English troops had on several occasions been allowed to cross. It so happened that at this time some American

soldiers arrived and crossed over to the Pacific under a permit previously granted by the former president of the state. The French then alleging the so-called 'most-favored-nation' clause also crossed over. [\[XXV-52\]](#)

ISTHMUS
ROBBERIES.

With other nations occasional misunderstandings have taken place, but in no instance did they lead to serious complications. [\[XXV-53\]](#) Minor riots, attended with more or less killing and wounding of foreigners, had occurred in 1850 and in 1851, both on the Atlantic and Pacific sides. [\[XXV-54\]](#) The gold-dust train from California was thrice assailed by robbers, while crossing from sea to sea, without success. The last attempt was in September 1851, by Americans, several of whom were captured. [\[XXV-55\]](#)

Whilst the Isthmus was under the direct rule of the national government, peace and quiet reigned. The few political commotions that occurred at long intervals had no effect detrimental to public morals, nor to the obedience paid by the people to the authorities. It is a fact that when, upon the discovery of the gold placers in California, the large influx of foreigners first arrived, they were surprised at the extraordinary prestige the authorities enjoyed, and at the blind obedience paid to their mandates. [\[XXV-56\]](#) Bayonets were not necessary to enforce order. This was owing to the harmony then existing between the government and the clergy. [\[XXV-57\]](#) And throughout the land for sixteen years from 1840, peace prevailed, save certain disturbances in the provinces of Azuero and Veragua in July 1854. [\[XXV-58\]](#)

PANAMÁ A STATE.

Nevertheless, the white population of Panamá had been for some time past discontented with the general government, and a desire had sprung up to get rid of a yoke which was deemed oppressive. The supreme authorities at Bogotá were not unaware of this, and whether prompted by the fear of losing the territory, or by a

sentiment of justice, or by both, concluded to allow the Isthmians the privilege of controlling their local affairs, which was hailed with joy by all classes. An additional clause to the national constitution was then enacted by the New Granadan congress, on the 27th of February, 1855, by which Panamá was made a state, and a member of the confederation with the four provinces of Panamá, Azuero, Chiriquí, and Veragua,^[XXV-59] its western boundary being such as might come to be fixed upon by treaty with Costa Rica.^[XXV-60] A constituent assembly of 31 members was convoked March 13th by the national executive, to meet at Panamá on the 15th of July to constitute the state. The assembly was presided over by Francisco Fábrega, and on the 18th passed an act for the provisional organization of the state. Justo Arosemena, being chosen jefe superior provisorio, took possession of office at once, and appointed Cárlos Icaza Arosemena government secretary.^[XXV-61] The city of Panamá was declared to be the capital, and residence of the superior authorities of the state.

The constitution of the now entitled Estado de Panamá was promulgated on the 17th of September, 1855. It was a liberal instrument, including freedom of religion. The executive authority was vested in a governor, who was to assume the office on the 1st of October of the following year, and hold it two years. A vice-governor and two designados were also to be elected by popular vote, to take charge of affairs should the governor die or be otherwise disenabled to discharge his duties. In the absence or inability of all the elect, then the superior civil authority of the capital was to act as governor.^[XXV-62] A misunderstanding having occurred between the jefe superior and the assembly, the former resigned his office on the 28th of September, and having insisted on his resignation being accepted, Francisco Fábrega, who had been elected vice-governor on the 22d, was inducted into the executive office on the 4th of October.^[XXV-63]

Notwithstanding the hopes of a bright future, from this time the Isthmus was the theatre of almost perpetual political trouble, and revolution

became chronic, preventing any possible advancement. In 1856 there was a stormy electoral campaign, [\[XXV-64\]](#) that culminated in a coup d'etat, for which the responsibility must be about equally divided between the executive, Francisco Fábrega, and the demagogues. [\[XXV-65\]](#)

DISPUTED
ELECTION.

The election for governor took place on the 15th of August, 1856. The white element claimed Bartolomé Calvo, a colored man from Cartagena, and a conservative in politics, to have been elected by 4,000 majority. The negroes insisted that Manuel M. Diaz, a white man, had been chosen. The declaration by the legislature as to who was the elect had not been made, as required by law, by the 15th of September. The radicals then demanded that the vice-governor, who was in their interest, should assume the executive. On the 15th of September trouble was expected against the white men, many of whom took refuge on the American sloop of war *St Mary's*. [\[XXV-66\]](#) Calvo was finally declared by the legislature on the 18th of September to have been constitutionally chosen for two years; and Francisco Fábrega the vice-governor. [\[XXV-67\]](#) If not a man of high order of talent, Calvo possessed good judgment, and he eventually succeeded in making himself respected, even by those who opposed his election. His course was moderate, and it may be said of him that he was an honest man, and his administration a successful one. The finances were improved, and public education was encouraged. [\[XXV-68\]](#) After serving nineteen months he resigned office and left the state. [\[XXV-69\]](#) Ramon Gamboa, as first designado, succeeded him for the rest of the term.

José de Obaldía was chosen by popular vote over J. M. Hurtado, the government candidate, amid a great political commotion, his election being recognized by the legislature at midnight. His term began on the 1st of October, 1858. Obaldía was one of the most talented and best informed men in the republic, and an eloquent orator. However, though a power in the tribune, he proved himself unfitted for a ruler. [\[XXV-70\]](#) During his term, on

the 17th of April, 1859, the colored population attempted to assail the whites, and after some violence were dispersed by a force sent against them.^[XXV-71] Another outbreak of the negroes against the whites took place the 27th of September, 1860, necessitating the landing of an armed force from the British ship *Clio*, which, after order was restored, returned on board.^[XXV-72]

ESTADO
SOBERANO DE
PANAMÁ.

Governor Obaldía was succeeded by Santiago de la Guardia,^[XXV-73] elected against the opposition of the liberal negro vote. In September 1860 the states of Cauca and Bolívar seceded from Nueva Granada, and formed a confederation under the name of Estados Unidos de Colombia, with General T. C. Mosquera at the head. By a clause of their agreement any other state opposing them was to be conquered and annexed. Wishing to keep Panamá neutral in the horrible struggle going on in the rest of the republic, Guardia entered into a convention on the 6th of September, 1861, with Manuel Murillo Toro, who represented those states, by which Panamá was to join the confederacy, but to take no active part in the family quarrel.^[XXV-74] Early in July 1862 the state assumed the official name of Estado Soberano de Panamá, which it has retained to the present time.

This contest, out of which the liberal party came triumphant throughout the country, was known as 'la revolucion de Mosquera.' The minister of Nueva Granada in Washington, on the plea that a mere naval force could not afford security to the Isthmus transit, asked the United States to provide also a land force of 300 cavalry, but the request was not granted.^[XXV-75]

GOVERNOR DIAZ.

The efforts of Guardia to keep the Isthmus out of the general turmoil were of no avail. A force of about 150 or 200 men under General Santa Coloma came from Cartagena to Colon, with the apparent purpose of enabling the governor to carry out certain liberal measures. The latter protested against such a violation of a solemn agreement; but the force insisted on coming across to Panamá, and

there was no way of preventing it. In the course of a few weeks Guardia, being convinced that he was being employed as a puppet, removed himself and the capital to Santiago de Veragua. As soon as he was gone, with the connivance of Santa Coloma, a party of men, all but one of whom were of the colored race, assembled at the town hall and deposed Guardia, naming one of their own party, Manuel M. Diaz, provisional governor.^[XXV-76] A few days after, on the 19th of August, in a skirmish between forces of the two factions, Governor Guardia and two or three others were killed.^[XXV-77] The government continued with Diaz at the head,^[XXV-78] till under the national constitution framed by the convention of Rio Negro,^[XXV-79] which constituted the nation under the name of Estados Unidos de Colombia, the Isthmus became one of the federal and sovereign states. To Governor Diaz was assigned the duty of carrying out Mosquera's stringent decrees against the clergy, an account of which is given in the next chapter.

CHAPTER XXVI.

FURTHER WARS AND REVOLUTIONS.

1863-1885.

PRESIDENTS GOITIA, SANTA COLOMA, AND CALANCHA—UNDUE INTERFERENCE OF FEDERAL OFFICIALS—COLUNJE'S ADMINISTRATION—PRESIDENT OLARTE'S ENERGY—ENMITY OF THE ARRABAL'S NEGROES—SHORT AND DISTURBED RULES OF DIAZ AND PONCE—PRESIDENT CORREOSO—NEGRO ELEMENT IN THE ASCENDENT—CONSERVATIVES REBEL, AND ARE DISCOMFITED—ARMED PEACE FOR A TIME—FEVERISH RULES OF NEIRA, MIRÓ, AIZPURU, CORREOSO, AND CASORLA—CERVERA'S LONG TENURE—TEMPORARY RULE OF VIVES LEON—PRESIDENT SANTODOMINGO VILA—OBTAINS LEAVE OF ABSENCE—IS SUCCEEDED BY PABLO AROSEMENA—AIZPURU'S REVOLUTION—AROSEMENA FLEES AND RESIGNS—OUTRAGES AT COLON—AMERICAN FORCES PROTECT PANAMÁ—COLLAPSE OF THE REVOLUTION—AIZPURU AND CORREOSO IMPRISONED—CHIEF CAUSES OF DISTURBANCES ON THE ISTHMUS.

A constituent assembly installed on the 6th of May, 1863,^[XXVI-1] decreed a constitution to conform with the national one.^[XXVI-2] Pedro Goitia, who for some time past had been president of the constituent assembly, was chosen president of the state, to hold the position till the 1st of October, on which date the elect of the people was to assume the executive authority.^[XXVI-3] After this, the state being tranquil, the military force was placed on a peace footing. But Goitia was not permitted to complete even the short term for which he had been appointed. He had to resign the position, General Peregrino Santa Coloma being chosen by the legislative assembly to fill it, and he took possession of the office on the 13th of August.^[XXVI-4] Santa Coloma, being afterward as was made to appear elected president, held the executive office a short time only, for the reason that he was chosen a representative in the national congress at

Bogotá.^[XXVI-5] José Leonardo Calancha, as vice-president, now took charge of the executive, which he was allowed to hold only till the 9th of March, 1865, when he was deposed.^[XXVI-6]

RAPID
SUCCESSION OF
RULERS.

Jil Colunje^[XXVI-7] was placed at the head of affairs by the revolution, and a convention called on the 8th of April to meet on the 1st of July, and reconstruct the state.^[XXVI-8] Colunje was appointed president for the term from August 9, 1865, to September 30, 1866.^[XXVI-9] At the expiration of that term Vicente Olarte Galindo, who had been apparently elected, became president on the 1st of October, 1866, and appointed José M. Bermudez his secretary of state.

Olarte's election is represented as an enthusiastic one, and intended as a reward for the services he rendered to the better portion of the Isthmian community, with his defeat of the Caucano invaders.^[XXVI-10]

He found himself in a constant disagreement with the legislature of the state, which he forced to submit to his dictation.^[XXVI-11] The whole negro party of the arrabal was his mortal enemy, but he managed to keep it under by making it feel occasionally the effect of his battalion's bullets. In the last attempt against his power, the negroes were severely punished, and they never tried again to measure strength with him.^[XXVI-12] His power was now more secure than ever, and his way became plain to procure the election as his successor to the presidency of his brother, then residing in Chiriquí.

BLACK
PROCEEDINGS.

The negroes were in despair, as they could find no means of seizing the government. From the time of Guardia's deposal they had been enjoying the public spoils, and could not bear the idea of being kept out of them, when their number was four or five times larger than that of the white men. The success of Olarte's plans would be the death of their aspirations, which were the control of public affairs, by ousting the whites, who were mostly

conservatives.^[XXVI-13] It became, therefore, a necessity to rid the country of that ogre; and as this could not be done by force of arms, poison was resorted to. The plan was well matured, and carried out in San Miguel, one of the Pearl Islands, where Olarte went upon an official visit. Olarte's death occurred on the 3d of March, 1868, without his knowing that he had been poisoned. This crime was not the act of one man, but of a whole political party, which took care to have the death attributed to a malignant fever. It became public, however, through the family of another man, who also became a victim.^[XXVI-14] No official or post-mortem examination was made, and the matter was hushed up.

Olarte's death was greatly deplored by the better class of the community, and high honors were paid to his remains,^[XXVI-15] by the legislature and the community, the foreign consuls and their countrymen joining. In the absence of the first designado, Manuel Amador Guerrero, the second, Juan José Díaz, took the reins of government.^[XXVI-16] His tenure of the presidential office was a short one, however; for in the morning of the 5th of July, a revolution by the black men of the arrabal broke out in Panamá, headed by General Fernando Ponce, commander of the national forces, and Díaz was overthrown.^[XXVI-17] They said that the liberal party had been cheated out of its majority at the late election for deputies, by the unlawful devices of its conservative opponents; and it was but logical to conclude that the same practices would be again resorted to at the coming election of president of the state.^[XXVI-18] There was really no cause for this revolution. The excuses alleged by the promoters were frivolous. They only wanted to seize power and secure the spoils.

Ponce was placed at the head of affairs as provisional president, to rule in accordance with the national and state constitutions, and existing laws; and in his absence, the following persons, in the order named, were to assume the duties: Buenaventura Correoso, Pablo Arosemena, Mateo Iturralde, Pedro Goitia, and Juan Mendoza.^[XXVI-19] Thus was the

movement accomplished; a provisional government was recognized by the foreign consuls, and by four of the interior departments, which submitted to the change rather than become involved in civil war. On the 20th of July a general amnesty was decreed. [\[XXVI-20\]](#)

PANAMÁ AND
CHIRIQUÍ.

The situation was by no means enviable. The military element was not united, much animosity existing between the state battalion 'Panamá,' and the 'Santander,' which led to a second revolution on the 29th of August, and Ponce resigned the presidency to Buenaventura Correoso, [\[XXVI-21\]](#) who received it on the next day. Carlos Icaza Arosemena was appointed secretary of state. Correoso [\[XXVI-22\]](#) was not permitted to enjoy his office peaceably. He used his best endeavors to that end; but was ere long summoned to crush a revolt of the conservatives in Chiriquí, at the head of which were the prefect of that department, and Colonel Arístides Obaldía, a son of the ex-president.

The conservatives desired change. To accomplish this, the people of the interior armed themselves to come to the capital and crush the negro element. [\[XXVI-23\]](#) Correoso sailed with a considerable force provided with superior arms on the steamboat *Montíjo*, [\[XXVI-24\]](#) and had the good fortune to return triumphant with 350 men on the 16th of November. The conservatives, about 400 strong, under Obaldía, attacked Correoso's force of about equal number, at the Hatillo, near Santiago, and were defeated, [\[XXVI-25\]](#) after which, the government of the 29th of August being proclaimed, prisoners were set at liberty. The revolution was at an end. Correoso then summoned a constituent assembly, which elected him constitutional president for the term of four years ending September 30, 1873. With occasional attempts at disturbance, which were successfully quelled or peaceably adjusted, Correoso held the office till the 1st of October, 1872, when he resigned it, and was succeeded by Gabriel Neira to fill the rest of the term. Neira was not permitted to hold the position long,

for a little before eleven o'clock in the forenoon of April 5, 1873, the revolutionary party of the arrabal, headed by Rafael Aizpuru, commander of the state troops, and fourth designado, revolted against the government, marched into the city, and made prisoners President Neira and Secretary Eladio Briceño. Dámaso Cervera, as fifth designado, was called by the superior court to the presidency. [\[XXVI-26\]](#)

The Pichincha—battalion of national troops—interfered to restore Neira. After some firing, it was agreed that Cervera should continue in power, and Neira remain in the custody of the national force. [\[XXVI-27\]](#)

ISTHMUS
RECONSTRUCTION

The national force having taken part in the troubles, its efficiency to protect the transit was rendered doubtful, for which reason troops were landed from the United States ships of war by order of Rear-admiral Steedman. [\[XXVI-28\]](#) Finally, terms of peace were arranged in the evening of May 9th, based on the conditions that Neira's government should be reëstablished. The state militia surrendered their arms to the foreign consuls the next day, the Pichincha performing the duties of the state force. Meantime, till Neira's return, Colonel Juan Pernett was to act as president. [\[XXVI-29\]](#) Neira heard of the change at Barranquilla on the 13th of May, and returned at once. On the 21st he made José María Bermudez secretary of state, and Colonel Pernett comandante general. [\[XXVI-30\]](#) The votes for senators and representatives to the national congress were counted on the 15th of July, and the names of the elect were published. [\[XXVI-31\]](#)

The people of the arrabal made another disturbance on the 24th of September, attacking the government outposts at Playa Prieta. Hostilities were continued during twelve or fourteen days, when the rebels, under Correoso, abandoned their ground, and were afterward defeated in the country. Meantime an American force of nearly 200 men, sent on shore by Rear-admiral Alony, a second time within four months, occupied the

railway station and the cathedral plaza.^[XXVI-32] The minister resident of the United States, William L. Scruggs, on the 19th of December, 1873, laid before the Colombian government, of which Colunje was secretary for foreign affairs, a protest of the Panamá railway company upon the recent disturbances of the Isthmus, and a demand that the transit should in future be under the immediate protection of the Colombian government against the acts of violence of local factions.^[XXVI-33] The latter acknowledged the justice of this demand on the 26th of December, pledging that in future there would be a national force stationed in Panamá, for the purpose of protecting the transit.

On the 1st of October the constituent assembly, which had been summoned on the 1st of August, assembled. Neira sent in his resignation, requesting the appointment of a chief of the executive who could secure peace. The assembly appointed Neira provisional president, and a number of designados.^[XXVI-34] Afterward the assembly passed an act reducing the presidential term to two years.^[XXVI-35] A new constitution in seven titles, comprising 144 articles, was issued on the 12th of November, and nine transitory articles on the following day.^[XXVI-36] A general amnesty to political offenders was decreed on the 15th of November. President Neira having attempted in the morning of the 14th of November to make a revolution with the Herrera battalion for the purpose of setting aside the assembly, in which he failed, and afterward concealed himself, that body met at 8 o'clock and deposed him. Whereupon Gregorio Miró, the first designado, was summoned to assume the executive for the term ending September 30, 1875, which he did on the 16th,^[XXVI-37] appointing José M. Bermudez his secretary of state, and Ramon Vallarino Brájimo secretary of the treasury. These two departments of government were abolished on the 25th of July, 1874, and the office of secretary-general created, which was intrusted to Pablo Arosemena on the 11th of August.^[XXVI-38] This

arrangement lasted only till the 8th of April, 1875, when the offices of secretary of state and of the treasury were reestablished. [\[XXVI-39\]](#)

CHRONIC UNREST. Miró's administration was a restless one, owing to constant conspiracies based on various causes. The last one was headed by Rafael Aizpuru, who claimed to be acting in the interest of the federal policy in that stormy period of Colombian history. [\[XXVI-40\]](#) An attempt was made to establish a provisional government with Aizpuru at its head, annulling Miró's authority. The latter took the field, leaving Juan J. Diaz, the second designado, in charge of the executive; but after some unsuccessful efforts to quell the rebellion, his official term came to an end, and Pablo Arosemena [\[XXVI-41\]](#) succeeded him on the 1st of October; but he was allowed to retain the position only till the 12th, when he was ousted by General Sergio Camargo, commander of the federal force, [\[XXVI-42\]](#) and Rafael Aizpuru was placed at the head of affairs, first as 'jefe provisional del poder ejecutivo,' and later was recognized as provisional president. [\[XXVI-43\]](#) Dámaso Cervera became secretary of state, and Francisco Ardila of the treasury.

A constituent assembly, presided over by B. Correoso, met on the 25th of November, and on the 28th approved all Aizpuru's acts, and authorized him to retain the executive office until a constitutional president should be chosen by it. The assembly on the 6th of December adopted another constitution for the state, containing 126 articles. [\[XXVI-44\]](#) On the same day Rafael Aizpuru was elected constitutional president, and was at once inaugurated. [\[XXVI-45\]](#) A law of December 25, 1876, ordained that the president of the state should take possession of his office on the 1st of January following his election. His term was for two years. [\[XXVI-46\]](#) The republic being now the prey of a general civil war, promoted by the clergy, the state of Panamá, complying with the demands of the national government, sent an armed brig with troops and arms to the port of Buenaventura, and the Colombia battalion to the headquarters of the army

of the Atlantic. [\[XXVI-47\]](#) The legislature, early in 1877, authorized the executive to raise troops for the defence of the state, and to obtain money by voluntary or forced loan. [\[XXVI-48\]](#)

ISTHMUS
POLITICS.

Buenaventura Correoso, having been elected, assumed the presidential office on the 1st of January, 1878; but being worried by the frequent disturbances, and desirous of averting further scandals, resigned in December following, and was succeeded by the designado José Ricardo Casorla. [\[XXVI-49\]](#) This president was disturbed by two revolutions. The first was occasioned by the battalion 3d of the line, under the supposition that the state authorities were hostile to the national government. [\[XXVI-50\]](#) The second partook more of the nature of comedy than of tragedy. General Aizpuru, having returned from Bogotá, whither he had gone as a senator from Panamá, went off to Colon on the 7th of June, and proclaimed himself provisional chief. That same night Casorla was arrested near his residence, and carried off to Colon, where he was held by the revolutionary chief. The second designado, Jerardo Ortega, then took charge of the executive. [\[XXVI-51\]](#) But under a subsequent arrangement Casorla was surrendered, and replaced in the executive office, which he resigned three days later into the hands of Jerardo Ortega, who held it till the 1st of January, 1880, when Dámaso Cervera, chosen for the next constitutional term, was inaugurated, [\[XXVI-52\]](#) his term of office being two years.

The legislative assembly, June 13, 1881, passed a law amending the constitution. Under this law the assembly [\[XXVI-53\]](#) after 1882 was to meet on the 1st of October, and within the first fifteen days of its ordinary sittings count the votes for president of the state, and for senators and representatives to the national congress. Among other things, it was enacted that the present assembly would name the substitutes of the executive for the term to begin on the 1st of January, 1882. Cervera succeeded in

maintaining order during his term, though constantly disturbed with intrigues of the most reprehensible character.

Rafael Nuñez, who had been declared the president elect of the state, [\[XXVI-54\]](#) should have appeared to assume the executive duties on the 1st of January, 1882, for a term ending on the 31st of October, 1884; but as he failed to do so, Dámaso Cervera, the first designado, was summoned to take charge pro tempore of the office. [\[XXVI-55\]](#) Nuñez resigned the position in November 1882, on the ground of ill health; and though he offered, at the request of the legislature, to reconsider his action, he never came to fill any part of his term. [\[XXVI-56\]](#) Nothing worthy of mention occurred in the politics of the Isthmus during this year, except a continued opposition on the part of the so-called ultra-liberals to Cervera's occupancy, notwithstanding which he had been chosen 1st designado for 1883, and on the 1st day of January following was again placed in possession of the presidency. [\[XXVI-57\]](#)

PANAMÁ
PRESIDENTS.

The election for president of the state for the next term became a question upon which there was a disagreement between the superior court during recess of the legislative assembly, which decreed the election should take place on the fourth Sunday of July, and Cervera, who claimed that it ought not to be till the following year. The latter proposition was acted upon. [\[XXVI-58\]](#) Cervera obtained early in the year a month's leave of absence, during which the executive office was in charge of the second substitute, J. M. Vives Leon, whose first act was to suppress the comandancia general, and to muster out of service a number of officers of all grades. [\[XXVI-59\]](#) The state was in constant expectation of war, owing to affairs in other states, and particularly to the presence of agents of the general government having no recognized official position. In the apprehension of political troubles, the states of Panamá and Cauca entered into a convention [\[XXVI-60\]](#) to support one another's interests in the expected contest. Cervera thought, however,

that the time was now past when the national troops could interfere in the internal affairs of the state.^[XXVI-61]

The presence of federal forces on the Isthmus had often been a source of danger to the state government. But it was required by international obligation, and its necessity could but be recognized in view of the fact that the construction of the interoceanic canal, already under way, demanded the employment of thousands of men from all parts of the world, who in the event of strikes or for other causes might commit outrages.^[XXVI-62] The election of senators and representatives to the national congress was effected this year by the legislature, Dámaso Cervera, Ricardo Nuñez, and José C. de Obaldía being chosen to the former position.^[XXVI-63] Cervera having been also elected first designado of the presidency for 1884, he again was placed in possession of the chief magistracy of the state on the 1st of January.^[XXVI-64]

An abortive attempt was made, at the instigation of Cervera's political enemies, to have him removed. One of the justices of the superior court, on the 2d of July, impeached and suspended him from office. General Benjamin Ruiz, as second designado, was accordingly handed the reins of government. But Cervera resisted, and appealed to General Wenceslao Ibañez, commanding the national brigade, to support his authority. Meantime, the superior court by a majority decided on the 6th that Plaza's decree should have no effect, and that Ruiz had illegally assumed the president's functions.^[XXVI-65] Ibañez, however, on the 8th insisted on Cervera's leaving the government, and himself took control, his troops besieging Cervera in the state house. The latter then applied to the superior court for a leave to proceed to Bogotá to take his seat in the senate. Ruiz again seized the presidency, and appointed B. Correoso secretary-general. By some misunderstanding he was recognized by the national executive. At this time, General Eloi Porto, who ranked Ibañez, arrived in Panamá, and through his good offices Cervera was replaced.^[XXVI-66] Ruiz might have

been permitted to rule a while had he followed in Cervera's footsteps; but he began to remove prefects, and to despatch commissioners into the interior, the peace of the state being again jeopardized, which compelled Cervera to remain.

FIGHTING AT SEA.

A revolution broke out at David in the night of September 19th, proclaiming a genuine suffrage, and setting aside the declarations made by the judges of election for president of the state and deputies to the assembly. Movements of the same kind followed in other parts. In the night of the 27th Cervera's authority was pronounced in Panamá at an end, and Ruiz was made the executive. Cervera on the 14th of October proclaimed that public order had been disturbed by Ruiz and his supporters, [\[XXVI-67\]](#) and established martial law. An encounter between a government force on board the steam-tug *Morro*, and another of the rebels on the steamboat *Alajuela*, took place at sea in the afternoon of the 15th of October. The former experienced damage and loss of crew. [\[XXVI-68\]](#) Cervera, who was on board, was blamed for the repulse. The *Alajuela* kept away a while, and then returned to land some wounded men. The rebel chiefs, B. Ruiz, Gonzalez, and Andreve, marched into the interior, respectively to Veragua, Aguadulce, and Penonomé. This condition of affairs being telegraphed to the national government, the executive decreed that public order was disturbed in Panamá, and directed the commander of the national forces to arrest the guilty persons. [\[XXVI-69\]](#) General Gónima, the federal commander, repaired to Aguadulce, and prevailed on Ruiz and his friends to lay down their arms, which he reported to Cervera on the 2d of November. [\[XXVI-70\]](#)

The elections for president of the state took place on the 27th of July, 1884. Juan Manuel Lambert was chosen, [\[XXVI-71\]](#) and was recognized by the assembly in October. But the intrigues of the liberal party, supported by Gónima, deprived Lambert of his office. [\[XXVI-72\]](#)

On the 1st of October, upon the assembling of the legislature, Cervera sent in his resignation; and no notice having been taken, he reiterated it on the 20th, reminding that body that it had enacted measures which would necessitate his retaining power till the end of December, when his term should cease on the 31st of October, and the president elect assume his duties. The resignation was not accepted, and the assembly on the 21st, by all the votes present, but one, desired him to continue at the head of the government. [\[XXVI-73\]](#)

PANAMÁ POLITICS

The assembly had on the 14th of October passed an act empowering the executive to call a convention to be elected by direct popular vote on the 7th of December, and to assemble on the 1st of January, 1885. [\[XXVI-74\]](#) The convention met on the appointed day. It has been alleged that the election of members thereto was a mere farce. [\[XXVI-75\]](#) In the still unsettled condition of affairs President Cervera concluded, on the 24th of November, to retain in service a force of officers for any emergency that might occur. [\[XXVI-76\]](#) Still, he considered his position one that was by law untenable, and on the next day laid his irrevocable resignation before the superior court, alleging that he had held power too long—four years and eleven months—and referring to the interference of the federal government, he said that he must either submit to or oppose its influence. His opposition would prolong an anomalous situation in the country. [\[XXVI-77\]](#) The court, in view of the reasons adduced, accepted the resignation, and summoned the second designado, Vives Leon, to the presidential seat, which he held till the 6th of January, inclusive, on which date the convention almost unanimously chose General Ramon Santodomingo Vila president of the state. [\[XXVI-78\]](#) A few days previously—on the 3d—Benjamin Ruiz and the other liberals in the convention, after declaring that they would hold as traitors all liberals who, by joining the conservatives, who would strengthen the latter to make themselves masters of the state, abandoned the chamber. [\[XXVI-79\]](#)

The new president at once appointed his secretaries and his so-called cabinet. [\[XXVI-80\]](#) In the apprehension of disturbances at Colon, the executive requested the commander of the American war vessel *Alliance* to land a force there to guard the transit. [\[XXVI-81\]](#) The request was complied with, but the force not being needed then was reëmbarked.

The Isthmus now becomes again the theatre of deadly strife, with its concomitant bloodshed and general destruction, to the disgrace of the nation of which it forms a part, and the scandal of the world. A plot by some men of the national force to seize the revenue cutter *Boyacá* having been detected, thanks to the loyalty of other members of the same force, the executive notified the convention that the time had come to proclaim martial law, which he did on the 9th of February. The convention accordingly closed its session on the 11th. [\[XXVI-82\]](#) On the 17th, Santodomingo Vila obtained a leave of absence to proceed to Cartagena, where his military services were required, and Pablo Arosemena, the first designado, was summoned to assume the executive authority. [\[XXVI-83\]](#) At about five o'clock in the morning of the 16th of March the population was awakened by the cries of Vivan los liberales! Viva el general Aizpuru! accompanied with numerous shots. Aizpuru, at the head of about 250 men, attacked the Cuartel de las Monjas, and the tower of San Francisco, which were defended by a handful of government troops, and a running fight from corner to corner ensued. [\[XXVI-84\]](#) The assailants overran the city. The British war ship *Heroine* then landed some marines and sailors to protect the railroad. The president called for troops from Colon, which came at once under General Gónima, and entering the city early on the 17th, compelled the portion of the revolutionists who had remained in the city to rejoin their main body in the plains. [\[XXVI-85\]](#)

PANAMÁ RIOT.

Upon the government troops leaving Colon, a notorious man, Pedro Prestan, [\[XXVI-86\]](#) with a motley gang, among whom were many of the worst characters, seized the town,

[\[XXVI-87\]](#) and sacked several merchants' houses, demanding forced loans from such as were known to have pecuniary means. [\[XXVI-88\]](#) It is stated, however, that he gave orders for the protection of foreigners and their property.

The revolutionists under Aizpuru encamped at Farfan refused to listen to any propositions. Their chief, on the 24th of March, notified the foreign consuls of his intention to assail the city of Panamá, which he also made known to President Arosemena. [\[XXVI-89\]](#) This functionary at once resigned his office into the hands of the superior court, and sought safety on the British ship *Heroine*. No other designado having been appointed by the convention, General Gónima assumed civil and military control, and appointed B. Correoso his secretary-general. Another decree proclaimed the neutrality of the state of Panamá in the war raging in the rest of the republic. This proceeding restored calm for a while, as it was taken to be the result of an understanding between the revolutionists and the government. But it seems to have become known too late at the headquarters of Aizpuru and Prestan. [\[XXVI-90\]](#)

On the 29th of March the American mail steamer *Colon* arrived at the port of the same name from New York, and the government directed that she should not deliver arms to the rebels. This gave rise to most high-handed proceedings on the part of Prestan, culminating in the arrest by his orders of the American consul, Mr Wright, Captain Dow, general agent of the steamship line, Connor, the local agent at Colon, Lieutenant Judd and Cadet Midshipman Richardson, of the United States war steamer *Galena*. [\[XXVI-91\]](#) Soon afterward Richardson was released and sent on board the *Galena* to tell his commander, Kane, that the other prisoners would be kept in confinement till the arms were surrendered, and if the *Galena* attempted to land men, or to do any hostile act, the boats would be fired upon, and every American citizen in the place would be shot. Kane, knowing Prestan's character, did not attempt any hasty act. Prestan then went to the prison and

told Consul Wright that he must order Dow to deliver the arms, or he would shoot the four prisoners before that night. Wright complied, and they were set at liberty.

ACTION OF THE
REBELS.

But Kane took possession of the *Colon*, and in the night landed a force and three pieces, under Lieutenant Judd, with orders to release at all hazards Dow and Connor, who had been again imprisoned.^[XXVI-92] No sooner had the Americans occupied the offices of their consulate, and of the railway and Pacific mail companies, than a force of Colombian national troops^[XXVI-93] came on, driving the rebels before them into the intrenchments. During the whole morning the firing was kept up, and ended about 12, noon, when the rebels being routed, Prestan and his rabble set fire to the town at various places, and fled.^[XXVI-94] A strong wind blowing, the flames spread violently, and the town was consumed with all its contents.^[XXVI-95] The American forces continued some days longer holding the place, Commander Kane's authority being recognized, and the Colombian officers coöperating with him in the preservation of order.^[XXVI-96]

But to return to Panamá. Aizpuru took advantage of the situation, Gónima being left with only 60 soldiers, and a few civilians that had joined him, to occupy the principal streets, on the 31st. To make the story short, by 3 o'clock in the afternoon he was master of the place, Gónima having surrendered.^[XXVI-97] Aizpuru announced in a proclamation on the 1st that he had assumed the functions of jefe civil y militar, to which he had been called by the supporters of free political principles, and on the 4th appointed his advisers,^[XXVI-98] and adopt measures to protect the city from incendiarism, and specially to guard the interoceanic transit. Marines and sailors having been landed on the 8th of April from the United States frigate *Shenandoah*, by Aizpuru's request, both ends of the Isthmus were on the 10th guarded by American forces. Soon after the United States sent reënforcements of marines and sailors with special instructions to protect

the transit and American citizens and their interests, avoiding all interference in the internal political squabbles. Several war vessels of the U. S. home squadron, under Rear-admiral Jouett, arrived at Colon. [\[XXVI-99\]](#) In the night of the 24th of April, while the revolutionists were erecting barricades, against an understanding with the American commander, the marines under Commander McCalla took possession of the city, as a necessary measure to protect American property, and Aizpuru and others were arrested. However, on the next day, Aizpuru having pledged himself not to raise barricades or batteries, the prisoners were released, and the Americans retired to their encampment outside. [\[XXVI-100\]](#)

RESULT OF
COLUNJE'S
SYSTEM.

On the 27th a well-equipped Colombian expedition of about 850 men, under General Rafael Reyes, arrived from Buenaventura to support M. Montoya as civil and military chief of Panamá until a constitutional government could be organized. [\[XXVI-101\]](#) With the good offices of the foreign consuls, a peaceable arrangement was entered into, by which Aizpuru bound himself to disband his forces, deliver all arms, and retire to private life. [\[XXVI-102\]](#) But having failed, as it was alleged, as late as the 2d of May to surrender all the rifles and caps in the hands of the rebels, he and others were arrested and confined in the town hall. [\[XXVI-103\]](#) On the 12th Aizpuru was sent to Buenaventura and held at the disposal of the supreme government of Colombia. [\[XXVI-104\]](#) It is understood that the rebel leaders were called upon to pay large sums of money to meet the government's necessarily increased expenditures; and that, in order to secure payments, their property was seized. This is the result of Colunje's system, which Correoso followed. He has been now repaid in the same coin.

The Isthmus being now pacified, and 500 more Colombians having arrived on the 9th of May, under Colonel Dominguez, being another portion of Reyes' force to relieve Santodomingo Vila at Cartagena, the American marines, who had been expressly sent out by their government, returned

home, leaving a good name for discipline and general good conduct. [\[XXVI-105\]](#) The flagship *Tennessee* of Admiral Jouett, and the *Galena*, Commander Kane, went to sea from Colon on the 11th of May. The former conveyed General Reyes, with relief for the Colombian government's troops at Cartagena.

After the death of President Olarte in 1868, the Isthmus for many years did not enjoy a single day of peace. The general wealth having declined throughout the country, and more so in the interior, poverty prevailed. Capital, both foreign and native, abandoned so dangerous an abode. The cattle ranges and estates disappeared; likewise agriculture, except on a small scale. [\[XXVI-106\]](#)

The black men of the arrabal in the city of Panamá, after they were made important factors in politics, accustomed themselves to depend on the public funds for a living, and the people of the interior, who were always peaceable and industrious, came to be virtually their tributaries. The state became the puppet of the men at the head of the national government, or of political clubs at Bogotá, whose agents incited disturbances, removing presidents indisposed to coöperate with or to meekly submit to their dictation, substituting others favorable to their purposes, and thus making themselves masters of the state government, together with its funds, and with what is of no less import, the state's vote in national elections.

SOCIETY AND
POLITICS.

Since the establishment of the constitution of 1863, Panamá has been considered a good field by men aspiring to political and social position without risking their persons and fortunes. They have ever found unpatriotic Panameños ready to aid them in maintaining the quondam colonial dependence, and investing them with power, that they might grow fat together on the spoils. Almost every national election, since the great war of 1860, has brought about a forced change in the state government. The first victim, as we have seen, was Governor Guardia, deposed by national troops under Santa

Coloma. That was the beginning of political demoralization on the Isthmus. Every similar illegal device to insure party triumph and power at Bogotá has been, I repeat, the work of agents from the national capital assisted by men of Panamá to push their own interests, and supported by the federal garrison. [\[XXVI-107\]](#)

The office of chief magistrate is desired for controlling political power, and the public funds to enrich the holder and his chief supporters. Patriotism, and a noble purpose to foster the welfare of the country and the people in general, are, if thought of at all, objects of secondary consideration. At times, the presidency is fought for with arms among the negroes themselves, and the city is then a witness of bloody scenes. The aim of every such effort is to gain control of power for the sake of the spoils.

Panamá cannot, being the smallest and weakest state of the Colombian union, rid itself of the outside pressure. Neither can it crush the unholy ambition of its politicians. Both entail misfortunes enough. But the Isthmus must also share the same sufferings as the other states in times of political convulsion in the whole nation. [\[XXVI-108\]](#)

In view of the fact that the Isthmus of Panamá may before many years become much more than it has heretofore been, a great highway of nations, and that the great interests which will be constantly at stake on the route will demand an effectual protection, it is self-evident that measures of a permanent character must in time be adopted to secure that end. Panamá, as an appendage of Colombia, and at the mercy of an irresponsible population, cannot afford that protection; neither is Colombia, with her constantly recurring squabbles, better able to fulfil any international obligations she might assume in the premises. Without intending to cast any slur upon her, or to doubt her honorable intentions, all—herself among the number—must own that it would be extremely dangerous to lean on so weak a reed. The question therefore occurs, and must soon be solved, What is to be the future status of the Isthmus? A strong government is doubtless a necessity, and

must be provided from abroad. Shall it assume the form of a quasi independent state under the protectorate of the chief commercial nations, eliminating Colombia from participation therein? or must the United States, as the power most interested in preserving the independence of the highway, take upon themselves the whole control for the benefit of all nations? Time will tell.

PANAMÁ A
DEPARTMENT.

Since the foregoing remarks were written, a change has taken place in the political organization of the United States of Colombia, by which the government has been centralized, the name of the republic being changed to República de Colombia, and the state of Panamá, being reduced to a mere national department, to be ruled by a civil and military governor appointed by the national executive at Bogotá. Under the new order of things, General Santodomingo Vila, the former president, became civil and military ruler, with powers to inaugurate the departmental organization. [\[XXVI-109\]](#) He took possession of his office, and dictated several measures toward that end, and the suppression of gambling and other abuses. But without good grounds, after recognizing the press to be free, suddenly suspended that freedom, though he soon after restored it. Meantime, however, he caused the suspension for sixty days of the *Star and Herald* and *Estrella* newspapers, alleging their hostility to the government because they declined to publish some of his measures. [\[XXVI-110\]](#)

CHAPTER XXVII.

CENTRAL AMERICAN INSTITUTIONS.

1886.

EXTENT OF THE COUNTRY—CLIMATE—MOUNTAINS AND VOLCANOES—EARTHQUAKES—RIVERS AND LAKES—COSTA RICA'S AREA, POSSESSIONS, AND POLITICAL DIVISION AND GOVERNMENT—HER CHIEF CITIES—NICARAGUA, HER TERRITORY, TOWNS, AND MUNICIPAL ADMINISTRATION—HONDURAS' EXTENT, ISLANDS, CITIES, AND LOCAL GOVERNMENT—SALVADOR, HER POSITION, AREA, TOWNS, AND CIVIL RULE—GUATEMALA'S EXTENT AND POSSESSIONS—HER CITIES AND TOWNS—INTERNAL ADMINISTRATION—ISTHMUS OF PANAMÁ—AREA, BAYS, RIVERS, AND ISLANDS—DEPARTMENT AND DISTRICT RULE—THE CAPITAL AND OTHER TOWNS—POPULATION—CHARACTER AND CUSTOMS—EDUCATION—EPIDEMICS AND OTHER CALAMITIES.

Central America proper embraces the region situated between the state of Chiapas in the republic of Mexico on the north, and the former state, now department, of Panamá on the south, extending from about latitude 7° to 18° north, in length from 800 to 900 miles, and in breadth varying from about 30 to about 300 miles. The united area of the five republics comprised therein is about 175,000 square miles. [\[XXVII-1\]](#)

PHYSICAL FEATURES.

The climate of this region on the Atlantic coast is about the same as that of the West Indies, somewhat modified by various causes. The Atlantic coast from Trujillo downward, including the Mosquito region, is low and insalubrious. That of the Pacific coast is better in every respect, the heat not being so oppressive, which is due to a drier and purer atmosphere. The result is, that while the coasts on the Atlantic are nearly uninhabited, those on the Pacific are lined with towns and well settled.

Beginning with Guatemala, and going southward, in Los Altos, the highlands of the republic, the average temperature is lower than anywhere else. Snow falls occasionally near Quezaltenango, but soon disappears. The heat is never excessive.^[XXVII-2] In the vicinity of the city of Guatemala, the thermometer ranges from 55° to 80° with an average of 72°. In Vera Paz, the north-eastern department, it is nearly 10° warmer. The whole coast from Belize down to Izabal and Santo Tomás is hot and unhealthy.^[XXVII-3] The state of Salvador, lying entirely on the Pacific slope, has probably a higher average temperature than Guatemala or Honduras; but the heat is oppressive only at some points on the coast.^[XXVII-4] Honduras has a fine climate, excepting the portion spoken of on the coast of the Atlantic.^[XXVII-5] Nicaragua, with the exception of her department of Segovia, which borders on Honduras and has the same surface and temperature, has a topography and climate of her own, with an average temperature in the lake region of about 79° to 80°, due more to favorable causes than to elevation. In Costa Rica there is almost every degree of temperature, from the intensest heat of Puntarenas to the constant spring of San José, or the autumnal temperature of the belt above Cartago. The coast from Chiriquí lagoon to the north is hot, wet, and unhealthy.^[XXVII-6] Properly speaking, there is no dry season on the Atlantic coast of Central America. However, from June to September, inclusive, there is less rainfall on the Atlantic side. During these months the Pacific slope has its rainy season, but the rains are brief, occurring in the afternoon and night.^[XXVII-7]

At a short distance from the Pacific coast the country is traversed from north-west to south-east by an unbroken chain of mountains,^[XXVII-8] at least to Nicaragua Lake, and covered with diversified vegetation. This cordillera is a connecting chain between the Rocky Mountains of the northern, and the Andes of the southern, continent.^[XXVII-9] On the slopes and summits are fine table-lands, some of which are quite extensive, and all temperate and surpassingly fertile. It may be asserted that no portion of the

earth presents a greater diversity of level on an equal extent of surface than Central America, or a greater variety of climate.

The majority of the highest peaks are volcanoes, and no less than thirty volcanic vents are said to be in activity. Extinct craters, rent rocks, lava beds, scoriæ, vitrified, charred, and pumice stones, hot and sulphurous springs, mark Central America as a most volcanic region. [\[XXVII-10\]](#)

HISTORIC
EARTHQUAKES.

In a region abounding with volcanoes, and where great convulsions of nature have taken place, earthquakes—violent ones, at times—frequently occur.

[\[XXVII-11\]](#) The great shocks experienced by the city of Guatemala in 1751, 1757, 1765, and the one of 1773, which caused the abandonment of the old site, have been elsewhere mentioned. [\[XXVII-12\]](#) The year 1809 was noted for a succession of violent temblores, causing much distress among the inhabitants of Guatemala and Honduras, and doing much damage, particularly in the latter state. [\[XXVII-13\]](#) Since that time the five republics have constantly had such visitations, causing at times loss of life and damage to property. I give in a note a number of such occurrences. [\[XXVII-14\]](#) The Isthmus of Panamá has likewise repeatedly experienced the effects of earthquakes, some of which have created much alarm and injured property. [\[XXVII-15\]](#)

LAKES AND
RIVERS.

From the lofty sierras and volcanic cones descend streams, which, meeting on the plains below, form beautiful lakes, or swell into rivers that roll on to either ocean. They are numerous, and though not of great length, because of the narrowness of the region they traverse, are by no means insignificant. [\[XXVII-16\]](#) The country has several lakes, some of which have occupied the attention of scientists, statesmen, and merchants, and I will have occasion to treat of them in connection with interoceanic communication and commerce farther on. [\[XXVII-17\]](#)

The republic of Costa Rica is that portion of Central America extending between Nicaragua and Panamá, and having on one side the Pacific Ocean, and on the other the Atlantic. [\[XXVII-18\]](#) Costa Rica has the islands of Colon, San Cristóbal, Bastimento, La Popa, and others in Boca del Toro; the Escudo de Veragua in the Atlantic, the Cocos, Caño, San Lúcas, and Chira in the Pacific; these latter two and smaller ones lying within the gulf of Nicoya.

The political division of the republic is in provincias and comarcas; [\[XXVII-19\]](#) namely, provincias of San José, Cartago, Alajuela, Heredia, and Guanacaste, and the comarcas of Puntarenas and Limon. The provincias and comarcas are alike divided into cantones, and the latter subdivided into barrios. At the head of each provincia and comarca is a governor, and of each canton a jefe político, all of executive appointment. The police department is under the governor, unless, in special cases, the supreme government should assume the immediate control over it in certain localities. Each provincial capital has a municipal corporation, [\[XXVII-20\]](#) acting, like the governors and other subordinate authorities, under the general ordinances, made and provided for the government of the whole republic.

The cities of the republic are San José, Cartago, Heredia, Alajuela, Liberia, Puntarenas, and Limon. There are, besides, seven or eight villas, and nine or ten pueblos. [\[XXVII-21\]](#)

The republic of Nicaragua, probably the most important section of Central America, is bounded on the south by Costa Rica, on the north-west by Honduras, on the east by the Atlantic Ocean, and on the south-west by the Pacific. [\[XXVII-22\]](#) Nicaragua has a few insignificant isles or cays on her coasts of both oceans.

POLITICAL
DIVISIONS.

The republic is politically divided into seven departments; namely, Granada, Leon, Rivas,

Chinandega, Chontales, Matagalpa, and Nueva Segovia. Their capitals or head towns are respectively Granada, Leon, Rivas, Chinandega, Acoyapa, Matagalpa, and Ocotal.^[XXVII-23] The departments are subdivided into distritos, and the latter into cantones. For the purposes of civil administration there is a prefect at the head of each department, who is also a subdelegado of the treasury; a subprefect rules over each district, and the cantones have jueces de paz.^[XXVII-24] These officials are appointed by the executive government. The capitals of departments and head towns of districts and cantones have elective alcaldes, and regidores constituting the municipal corporations.^[XXVII-25] In each department there is a gobernador de policía, who likewise derives his appointment from the national executive.

NOTABLE CITIES.

The principal cities of the republic are Granada, Managua, Masaya, Leon, Rivas, and Chinandega. Managua was an insignificant town, but being situated between Granada and Leon, was made the national capital, in order that the government might be rid of the complications arising from their constant rivalry, and intrigues to control the destinies of Nicaragua. The position of the capital is a splendid one, the surroundings being very picturesque.^[XXVII-26] The streets are not paved; the town has not a building worthy of mention. The government house is a low, square edifice, with balconies in the old Spanish style, without any exterior ornamentation or architectural character, Leon, the old capital, is situated on a beautiful plain, and spreads over a very wide area.^[XXVII-27] In the central part the streets are paved and lighted. There are some fine buildings in the city, those most worthy of notice being the cathedral, a strong piece of masonry, often used as a fortress in times of civil war, the old and new episcopal palaces, the university, government house, two churches of greater architectural beauty than the cathedral, four buildings which were formerly convents, and now devoted to objects of public utility. The place being in the region of earthquakes, and the temperature extremely warm, the buildings are made to meet these

conditions. There is also a fine stone bridge, which García Jerez had constructed. Near Leon, and with only the width of a street from it, is Subtiaba, which has a separate municipality, and whose church is the largest, after the cathedral, and the oldest of the temples in Nicaragua. [\[XXVII-28\]](#) I give in a note some information on other cities deserving of special notice. [\[XXVII-29\]](#)

The republic of Honduras is bounded on the north and east by the bay of Honduras and the Caribbean Sea, extending from the mouth of the River Tinto to the mouth of the Wanks or Segovia. On the south it is bounded by Nicaragua—the line of division following the Wanks for about two thirds of its length, and thence deflecting to the south-west, to the sources of the Rio Negro, flowing into the gulf of Fonseca; it has a coast line of about sixty miles on this gulf from the Rio Negro to the Rio Goascorán. On the west and south-west are the republics of Salvador and Guatemala. [\[XXVII-30\]](#)

Honduras possesses in the gulf of Fonseca the islands Tigre, Zacate Grande, and Gueguensi; and in the Caribbean Sea the group known as Bay Islands; namely, Roatan, Guanaja, or Bonaca, Utila, Helena, Barbaretta, Morat, and other smaller isles.

The republic is politically divided into seven departments: Choluteca, Comayagua, Gracias, Olancho, Santa Bárbara, Tegucigalpa, and Yoro. Nacaome is the capital of Choluteca, and Jutecalpa of Olancho. The other capitals bear the same names as the departments to which they belong. The departments are subdivided into districts, and at the head of each of the former is a jefe político, appointed by the executive, who is the organ of communication between the supreme government and the people. [\[XXVII-31\]](#)

TOWNS AND
HOUSES.

The principal cities in the republic are Comayagua, anciently called Valladolid, the former capital, and Tegucigalpa, the present seat of government. The former is on the right bank of the Humuya or Ulúa River, and on the southern border of the wide and fertile valley of Comayagua. From its

position, upwards of 2,000 feet above the sea-level, surrounded by high mountains, its temperative is mild and equable. The political disturbances of the country have reduced Comayagua to a low condition, [\[XXVII-32\]](#) and the loss of its standing as the capital has tended to bring it down still lower. Most of the houses are of a single story, and built of sundried bricks. The former fine fountains, monuments, and public buildings have gone to decay. The only building still in good condition is the cathedral, which is a rather imposing edifice. [\[XXVII-33\]](#) Tegucigalpa enjoys a cool temperature, and has an excellent climate. The city is the largest and finest in the republic. It is built with regularity, and has six churches, the parochial edifice comparing favorably with the cathedral at Comayagua. There are also a number of magnificent convents, and the university also deserves mention. [\[XXVII-34\]](#) There are other places in the state not entirely devoid of interest, a few particulars about which I append in a note. [\[XXVII-35\]](#)

The republic of Salvador, the only one of Central America not having a coast line on the Atlantic, is bounded on the north and east by Honduras, on the south-east by Fonseca Bay, on the south by the Pacific Ocean, and on the north-west by Guatemala. [\[XXVII-36\]](#) It possesses the small islands called Punta Zacate, Martin Perez, Conchagüita, and Mianguera in the bay of Fonseca.

For the purposes of government the republic is divided into fourteen departments; namely, San Salvador, Cuscatlán, San Vicente, La Paz, Usulután, San Miguel, Gotera, [\[XXVII-37\]](#) La Union, Cabañas, Chalatenango, Santa Ana, Ahuachapan, Sonsonate, and La Libertad. The departments are subdivided into districts, and the latter into cities, villas, pueblos, and aldeas. The chief towns of the departments bear the same names as the latter, excepting those of Cuscatlán, La Paz, Gotera, La Union, Cabañas, and La Libertad, which are respectively called Cojutepeque, Zacatecoluca, Osicala, San Carlos, Sensuntepeque, and Nueva San Salvador. They all have the rank of cities. Chinameca, Jucuapa, Ilobasco, Suchitoto, Metapan,

and Izalco enjoy the same distinction. There are, besides, about 36 villas, and 176 pueblos.

MUNICIPAL
REGULATIONS.

At the head of each department is placed a governor, who has a substitute to fill the office in his absence, both being appointed by the national executive for a constitutional term. They may be impeached for misdemeanors in office before the senate. [\[XXVII-38\]](#) The alcaldes of district head towns are the chief authorities of their respective districts, and like the alcaldes of other towns, are subordinate to the governor. In the event of absence or disability of an alcalde, the regidor depositario assumes his duties pro tempore. Alcaldes are represented in distant country places by comisionados of their own appointment. Each town has for its internal management a municipal corporation chosen by the direct votes of the citizens, and consisting of one alcalde, one síndico, and from two to six regidores, according to population. [\[XXVII-39\]](#) Such corporations act under the general ordinances provided for the government of municipal districts. [\[XXVII-40\]](#)

The principal cities are San Salvador, San Miguel, Santa Ana, which has been the capital, Cojutepeque, which has also been the seat of government, Sonsonate, Zacatecoluca, San Vicente, Sensuntepeque, Chalatenango, Santa Rosa, Ahuachapán, and Santa Tecla or Nueva San Salvador.

San Salvador was first founded at a place now called Bermuda, about eighteen miles to the northward of the present site. During the Spanish domination it was the residence of the gobernador intendente. After the separation from the Spanish crown it became the capital of Salvador, and for a while was the federal district, and seat of the Central American government. The city, as I have stated elsewhere, has been repeatedly shattered by earthquakes, but in each instance rebuilt, notwithstanding efforts to abandon the site. Both the town and its position are beautiful. It is in the midst of a broad elevated plateau in the coast range, between the

valley of the Lempa River and the Pacific Ocean, 2,115 feet above the sea. [\[XXVII-41\]](#) The place has a cathedral, and other churches, a national palace, a university, and other government buildings. Excepting the central and paved park, San Salvador is embowered in tropical fruit-trees.

San Miguel is justly considered the second city of Salvador. Its houses have a home aspect, comfort in the interior, and elegance in the exterior. It is supplied with water by an aqueduct. There are fountains to refresh the air and to please the eye. Two iron bridges cross the San Miguel River, said to have been constructed by Guzman at an expense of \$90,000 of his own money. Back of the town is the majestic volcano of San Miguel. In the bay of Fonseca is the excellent port of La Union, to the west that of La Libertad, and beyond that of Acajutla at a short distance from Sonsonate and the Izalco volcano.

The republic of Guatemala is bounded on the north and west by the Mexican states of Yucatan and Chiapas; on the east by British Honduras, the bay of Honduras, and the republics of Honduras and Salvador; and on the south by the Pacific Ocean. [\[XXVII-42\]](#)

DEPARTMENTAL
GOVERNMENT.

The state is divided for the purposes of civil government into departments; namely, Guatemala, Sacatepéquez, Amatitlan, Escuintla, Chimaltenango, Sololá, Totonicapan, Quiché, Quezaltenango, Retalhuleu, Suchitepéquez, Huehuetenango, San Márcos, Peten, Baja Verapaz, Alta Verapaz, Livingston Izabal, Chiquimula, Zacapa, Jalapa, Jutiapa, and Santa Rosa. [\[XXVII-43\]](#) They are subdivided into municipalidades, each of which forms regulations or ordinances for the management of its own affairs, subject to approbation or amendment by the supreme government. At the head of each department is a jefe politico, and some of them likewise have a sub-jefe.

The general government makes its administrative action felt in the departments. Down to 1879 the laws relating to civil administration in them were not only confused, but contained clauses which were, some of them,

opposed to the principles of modern legislation, and others directly contrary to the liberal and progressive system the nation had adopted since 1871. [\[XXVII-44\]](#) Hence the necessity of prescriptions consonant with the existing situation. [\[XXVII-45\]](#) A decree was also issued to insure common principles and rules for the municipal corporations. [\[XXVII-46\]](#) Under the new order of things, the sum total of receipts by all the municipalities in 1883 was \$530,040, and of expenditures \$489,422. [\[XXVII-47\]](#)

Guatemala, the capital, together with the whole republic, has had its beauties more or less extolled by every foreign traveller who has visited it and published a book, from 1822 to late years. These praises were well deserved; but they fall short of what they now should be, considering the improvements introduced by the energetic administration of President Barrios, which placed it on a level with many cities of greater pretensions and resources. [\[XXVII-48\]](#)

The city stands about 5,300 feet above the sea, upon a fertile plateau traversed by the Rio de las Vacas, being almost surrounded by ravines. It is laid out in wide, regular, well-paved, and clean streets, forming right angles, and has extensive suburbs. The number of houses is probably 5,000, most of them of one story. There is, however, a considerable number with two stories. They are mostly constructed with solidity and comfort, and many have fountains, gardens, and courts. [\[XXVII-49\]](#) Besides the cathedral, archepiscopal palace, government house, mint, and other public buildings, there are several beautiful churches, and a number of fine and extensive edifices, formerly occupied by religious orders, and now devoted to practical uses. [\[XXVII-50\]](#) There are many reservoirs filled with potable water, some of them of handsome construction, and surrounded by beautiful grounds. Water is supplied the city by aqueducts from a distance of several miles. [\[XXVII-51\]](#) Most of the houses also have wells. The city is likewise well provided with educational and benevolent establishments, as well as places of amusement, such as the theatre and the hippodrome. [\[XXVII-52\]](#) From the

Jocotenango ward to the circus there is a fine boulevard along which runs the tramway from the Calvary. The city will soon be in communication with Port San José by railway, as it has long been by telegraph with the other chief towns. The monkish, funereal appearance which Guatemala presented prior to 1871 has disappeared, being succeeded by a pleasing aspect of life. The city police has been organized and equipped in American style, and the body of men is second to none in Spanish America. [\[XXVII-53\]](#)

PANAMÁ
ISTHMUS.

Panamá was formerly a state, but under a recent organization of the republic of Colombia, has been reduced to the condition of a national department. It lies partly between the Caribbean Sea and the Pacific, and is bounded on the south-east by the state of Cauca in the same republic, and on the west by Costa Rica. [\[XXVII-54\]](#)

There are a number of islands belonging to the department, among which are the Mulatas archipelago, the Pearl group, Coiba, Taboga, and Flamenco. [\[XXVII-55\]](#) The range of mountains traversing the Isthmus is a continuation of the Andes, but the elevation in some parts does not exceed 300 feet above the sea. From this ridge flow about 150 streams into the Atlantic, and more than double that number into the Pacific. [\[XXVII-56\]](#)

The state has been hitherto divided into departments; namely, Panamá, Colon, Coclé, Chiriquí, Los Santos, and Veragua, [\[XXVII-57\]](#) which are subdivided into distritos parroquiales. At the head of the distrito capital and departamento de Panamá is a governor, and the other departments have prefectos. Each distrito is under an alcalde. [\[XXVII-58\]](#)

BUILDINGS AND
POPULATION.

The city of Panamá is laid out with regularity, on a rocky peninsula, presenting a fine appearance from the sea, as it stands out from the dark hills inland with an air of grandeur. The Ancona hill 540 feet high rising a mile westward of the city—helps to render the place conspicuous. But on entering, the visitor

finds himself disappointed. The principal streets cross the peninsula from sea to sea, intersected by the Calle Real, running east and west. The place has a quiet and stately appearance, without promising comfort. The houses are mostly of stone built in the Spanish style, the larger ones having heavy balconies in the upper stories, with court-yards or patios. There is little relief or variety.^[XXVII-59] The smaller ones are of a single story. The churches and public buildings, namely, the cathedral, casa de la gobernacion, cabildo or town hall, ecclesiastical seminary, and four convents for friars and one for nuns, were strongly built; but years of neglect and the deteriorating effects of the climate have brought many of them to decay; notwithstanding which some of the ecclesiastical edifices are still used for the service of God, whilst others, not utterly ruined, are applied to other purposes.^[XXVII-60] The place was at one time tolerably well fortified, but the fortifications no longer exist; the south and west ramparts are, however, in good condition forming an agreeable promenade. The drainage is very bad; many necessary things to insure cleanliness and comfort are wanting; good potable water being scarce and high-priced.^[XXVII-61] The city has enjoyed the benefit of gas light for several years past, and since the construction of the canal was begun, it has had many improvements introduced, among them a fine and spacious hospital.^[XXVII-62]

The place next in importance on the Isthmus is Colon, otherwise known as Aspinwall, on the island of Manzanilla. It is the Atlantic port of the Isthmus, and contains the stations, offices, and wharf of the railway company, as well as those of the several steam-ship companies, and likewise a number of buildings of the ship-canal enterprise. The town was progressing rapidly, and had a number of fine modern buildings other than those before mentioned, but it was ruined by the vandalic act of revolutionists, which event has been elsewhere described in this volume.^[XXVII-63]

The official census of population in the Isthmus of Panamá for 1880 showed the number of inhabitants to have been 307,598. [\[XXVII-64\]](#) The report laid by the state government before the assembly in September 1882 stated that the population had increased since 1880 to 343,782, which was due to the influx of men employed on the canal-works. There have been many fluctuations since. The proportion of negroes and mixed breeds has ever been larger than the pure whites in the city of Panamá and on the Caribbean Sea coast, and after the opening of the canal-works it became greatly increased with laborers from the coast to the south, Jamaica, etc., almost all being negroes. In the interior departments the case is quite different, the majority of the inhabitants being of pure whites.

Efforts made from time to time to develop foreign colonization through land grants have never led to any advantageous acquisition of immigrants. [\[XXVII-65\]](#)

ISTHMUS SOCIETY.

The number of American indigenes on the Isthmus is computed at about 10,000. [\[XXVII-66\]](#) The chief of the Savaneries claimed the sovereignty over the land they occupied, and their rights thereto were recognized by the authorities of Veraguas. [\[XXVII-67\]](#)

The Manzanillos occasionally visit Portobello and neighboring villages, and at one time, if not always, were in a state of warfare with the Bayanos. The latter hate the Spaniards and their descendants, but are friendly to the English. [\[XXVII-68\]](#)

In 1873, a law was enacted to compel the wild Indians to adopt the usages of civilized life, and prompt action was recommended by the executive of Panamá in 1874, but nothing came of it. [\[XXVII-69\]](#)

There are but few families of the higher class in Panamá, and time is required to establish a footing of intimacy with them. Considerable has been said in Europe against the character of the women of Panamá, which is not borne out by fact. Much real worth exists among them. Indeed, the

native women of the Isthmus generally, possess the best qualifications. They are not only pretty, graceful, and refined, but are dutiful daughters, and excellent wives and mothers. Those in the higher positions, even while laboring under the disadvantage of a limited education, which during a long time was the case with a majority of them, have, as a rule, been of industrious and economical habits. In later years the young girls of the better class have been enabled to acquire an education. The same cannot be said of the women of the lower classes, whose moral scale is quite low, marriage with them being the exception rather than the rule. For this state of things the upper class is partly responsible, inasmuch as from a misguided feeling of charity it looks upon the practice with indifference instead of frowning upon it. [\[XXVII-70\]](#)

The women of Panamá, since the early days of railway travelling, have abandoned their former ways of dressing and of arranging their beautiful hair, adopting European fashions and putting on hats. The women of the lower order, till very recently, wore the polleras; [\[XXVII-71\]](#) but this is becoming a thing of the past. These women are very untidy; they move about their houses slipshod and stockingless. The dress of the native laboring man is a pair of cotton or linen trousers and a shirt.

The young men of the educated class are well-mannered, and most of them have an average share of ability, but application and steadiness of purpose are wanting. Like their sisters, they are kind and affectionate to their families and relatives. [\[XXVII-72\]](#) Nearly all the male inhabitants speak English as well as their native language, and a number, who have been abroad, are conversant with French and even German.

In their domestic life, notwithstanding their constant intercourse with people of other nations, the Panamanians keep themselves secluded, much as they did before the railway was constructed. They still hug a portion of their old opinions and prejudices. Nevertheless, the fullest liberty of

conscience and of religion being recognized by the Colombian laws, all forms of worship may be publicly practised. [\[XXVII-73\]](#)

EDUCATION.

The government of Panamá has not always manifested a proper interest in the diffusion of knowledge among the masses. It must be acknowledged, however, that during the existence of the central régime, prior to 1860, the children throughout the Isthmus had a better opportunity to acquire instruction, there being schools with paid teachers in nearly all the towns. [\[XXVII-74\]](#) After the revolutionary period became inaugurated, the funds of the government hardly ever satisfied the greed of political leaders, or sufficed to meet the cost of a large military force, and public instruction suffered. This occurred more particularly in the interior, and even the capital has seen its public schools closed for the want of funds. [\[XXVII-75\]](#) The legislators in 1871 gave a new organization to this branch of the public service, but for various reasons nothing was accomplished until 1873, when the philanthropic Manuel J. Hurtado undertook the task of getting some light out of the existing chaos. His efforts soon began to yield good results, though more satisfactory ones might have been obtained had the state government afforded larger means. [\[XXVII-76\]](#) Normal schools have been also established for training teachers, and several other educational institutes have been founded, one for females under women of a religious order. Nevertheless, the majority of young men possessed of means go abroad or to Bogotá to complete their education.

The Isthmus has not produced any notable literary or scientific men, properly so-called, though there are and have been among its people bright intellects. In political and diplomatic life, however, may be mentioned as notabilities Justo Arosemena, José Obaldía, Pablo Arosemena, and Jil Colunje.

The newspaper press has been during many years represented on the Isthmus by the *Star and Herald*, [\[XXVII-77\]](#) which is the vehicle for the

communication of news between Europe and the United States on the one side, and the countries in Central and South America on the other. It has been for many years, and continues to be, entitled to rank as a first-class newspaper. Its local edition now appears daily in English, Spanish, and French; the edition for Europe and the United States, to leave by each departing steamer, is in English; and the one for Central and South America is in Spanish, the publication then bearing the name of *La Estrella*.^[XXVII-78] Several other newspapers have been published, besides the official organ, from time to time in English and Spanish, or wholly in Spanish, but they have been short-lived.

Bull-worrying is a popular amusement among all classes.^[XXVII-79] Cock-fighting is also much patronized on Sundays and holidays.^[XXVII-80] Horse-riding, and in later years driving, are recreations of the better classes. Public and private balls, and an occasional play, concert, or circus, when artists cross the Isthmus, help to break the monotony of life.^[XXVII-81]

HEALTH AND DISEASE.

The Isthmus has suffered, not only from revolutions, but from calamitous visitations in the form of epidemics, particularly small-pox; also by convulsions of nature, and devastating fires.^[XXVII-82]

Asiatic cholera visited Panamá in 1849,^[XXVII-83] at a time when the Isthmus was crowded with strangers, early in the California gold fever. The destruction of life was heart-rending, as it spared no class or condition.^[XXVII-84] Malignant fevers, pulmonary and throat diseases, and other maladies do their work of destruction, and yellow fever often carries off its victims from among unacclimated strangers.^[XXVII-85] The tablon, a disease imported in 1873 from Cartagena, assumed an epidemic form, and carried off many of the aged and children.^[XXVII-86]

Few, if any, precautions are taken to improve the sanitary condition of the capital, and much less of any other town. In fact, any partial efforts will be of little avail so long as drainage is so bad, and the habits of the lower classes continue so filthy. The necessity of sanitary measures is generally admitted, and ordinances have been enacted to that effect; [\[XXVII-87\]](#) but their observance is spasmodic at best.

The public hospital of Panamá city in 1865 was a poor affair. [\[XXVII-88\]](#) In late years, through the efforts of the private charity, improvements have been introduced, and greater pains taken in the care of the sick poor. The canal company has likewise made ample provision for the attendance of its sick employés and laborers.

Hurricanes and floods have helped to destroy life and property, and cause general distress. Fire has on several occasions left large numbers of people without shelter and utterly ruined. [\[XXVII-89\]](#)

CHAPTER XXVIII.

THE PEOPLE OF COSTA RICA, NICARAGUA, AND SALVADOR.

1800-1887.

CENTRAL AMERICAN POPULATION—ITS DIVISIONS—GENERAL CHARACTERISTICS AND OCCUPATIONS—
LAND GRANTS—EFFORTS AT COLONIZATION—FAILURE OF FOREIGN SCHEMES—REJECTION OF
AMERICAN NEGROES—CHARACTER OF THE COSTA RICAN PEOPLE—DWELLINGS—DRESS—FOOD—
AMUSEMENTS—NICARAGUAN MEN AND WOMEN—THEIR DOMESTIC LIFE—HOW THEY AMUSE
THEMSELVES—PEOPLE OF SALVADOR—THEIR CHARACTER AND MODE OF LIVING.

The total population of the five states of Central America in 1883 was set down at about 2,831,847 souls, [\[XXVIII-1\]](#) divided as follows: in Costa Rica, 182,073; Nicaragua, 400,000; Salvador, 612,813; Honduras, 360,000; and Guatemala, 1,276,961. The figures for Costa Rica and Guatemala are the results of actual count, the others by computation. The census of August 10, 1885, showed Costa Rica's population to be 189,425; that for Guatemala, January 1, 1884, exhibited 1,278,311, to which must be added an increase during that year of 6,293. [\[XXVIII-2\]](#) The population of the last-named state on June 30, 1885, has been computed at 1,303,009. [\[XXVIII-3\]](#)

COLONIZATION COMPANIES.

The republic of Central America, as well as the several states that formed it, has from the earliest days of its national autonomy endeavored to encourage foreign immigration, offering inducements, such as liberal grants of land, exemption from taxes and military service, and the privileges of citizenship. At the same time care has been had to respect the property and other rights of foreigners. Colonization decrees were passed in 1831, 1834, and 1836,

[\[XXVIII-4\]](#) the legislators feeling as sanguine of good results as they were earnest and sincere in their purpose. An English company, called the Eastern Coast of Central America Commercial and Agricultural Company, organized in London, was the first to enter the field, having obtained from the state of Guatemala a grant of land which included the whole department of Vera Paz. [\[XXVIII-5\]](#) Dishonesty presided over the operations of the company. [\[XXVIII-6\]](#) About 300 persons, many of them from the refuse of the population of London, were sent out, without proper preparations or knowledge of the country, to places in or near the hot and insalubrious coasts, where the unhappy creatures wandered, suffered, and almost all perished. Meanwhile, the directors of the company labored in vain to induce the British government to sanction their proceedings. [\[XXVIII-7\]](#) The whole project ultimately failed, the directors being in their turn deceived by the men in whom they had reposed most confidence. After wasting many lives, and misappropriating some £40,000, lost of course by the share-holders, the charter became forfeited for non-fulfilment of its terms. [\[XXVIII-8\]](#)

Another colonization scheme was started in May 1842, and ratified in a further convention of October 1843, between a Belgian company established in Brussels, and the government of Guatemala. [\[XXVIII-9\]](#) The company, under that contract, assumed the obligation of introducing at least 100 families of five members each, annually, till 1,000 families had been settled. The colonists were to be catholics, and from the moment of their landing were to be considered Guatemalan citizens, with all the rights and duties of such. [\[XXVIII-10\]](#)

All the articles of the agreement were most favorable to Guatemala, and yet the company, which was under the patronage of the king of the Belgians, signed it without his approval being first obtained. It is known that his government disapproved many parts of it. It would seem as if the Belgians were bent on getting possession of the district on any terms, hoping afterward to retain it by negotiation as a Belgian colony. The

company fulfilled the conditions for the first two years, but the great mortality of colonists at Santo Tomás made it impossible to induce others to emigrate; and though the Belgian government rendered pecuniary aid to the amount of \$200,000, the settlement shared the fate of the one attempted by the British in 1836. The company was dissolved, and the government of Guatemala resumed possession of the district, including the port of Santo Tomás. [\[XXVIII-11\]](#)

IMMIGRATION
AND
COLONIZATION

Since that time Guatemala has not failed to pass laws for the encouragement of foreign immigration, and the protection of foreign settlers. [\[XXVIII-12\]](#) In 1883 the government entered into a contract with F. F. Millen to introduce 10,000 immigrants from Europe or the United States, the former agreeing to give each immigrant, of upwards of 21 or under 50 years of age, a grant of 45 hectáreas of land, upon his complying with the terms of it. [\[XXVIII-13\]](#) Vain efforts had been made by the American government prior to the civil war to obtain permission from the Central American republics for the colonization, under its patronage on their waste land, of negroes voluntarily emigrating from those states. The scheme was opposed in toto by the leading men. [\[XXVIII-14\]](#)

In 1867 and 1868 a considerable number of immigrants, many of whom were Americans and some Cubans, settled in Honduras, the government by its liberal laws and other facilities encouraging foreign immigration. This policy it has continued to pursue, and in late years many foreigners have been drawn to the country by the discovery of valuable gold placers. [\[XXVIII-15\]](#)

Salvador has done little or nothing toward increasing her population by immigration; but foreigners of good moral character and industrious habits are always welcomed and protected in their rights. They can also become naturalized after five years' residence, or at the end of three years by contracting marriage with a native of the state.

In Nicaragua the executive was authorized on the 6th of May, 1853, to enter into colonization contracts.^[XXVIII-16] One such was made with James Welsh May 11, 1859, and another with Adolph Adlesberg May 11, 1861, neither of which had effect.^[XXVIII-17]

A colonization decree was issued by President Rivas, November 23, 1855, granting each immigrant 250 acres of public land, and 100 additional to each family.^[XXVIII-18] The liberality of the grants, together with the facilities then afforded by the Transit route brought a rapid increase of immigration. In 1861 a contract to foster colonization was made with Gattel.^[XXVIII-19] Again, on the 7th of March, 1865, an immigration law was enacted granting a number of privileges to persons availing themselves of it. A number of Americans came, and in March 1867 the town of Guzman was founded.^[XXVIII-20]

The government of Costa Rica has often offered inducements, in the way of land grants, for European immigration.^[XXVIII-21] It must be said, however, that the Costa Ricans are jealous of foreign influence, and though willing to have the benefits of foreign capital, are not disposed to share with foreigners the wealth which that capital develops. Nevertheless, foreigners are permitted to hold real and other kinds of property, and to become citizens of the country.^[XXVIII-22]

LAND GRANTS.

In 1849 a grant of land of 20 leagues in length by 12 in breadth was made to a French company for 1,000 colonists.^[XXVIII-23] The conditions of the contract were not carried out, though a considerable number of immigrants formed under it an establishment. The project failed.^[XXVIII-24] In the fall of 1850, 51 persons, after two months' sail from Bremen, arrived at San Juan del Norte, and underwent great hardships and privations to reach San José. After three years only three families remained.^[XXVIII-25]

A similar grant to that of the French company was made on the Atlantic coast to a British company, [\[XXVIII-26\]](#) which had no effect.

Still another concession was made May 7, 1852, to a German company, organized at Berlin, who seemed to be actuated by a desire to carry out their obligations, even though the people and government of Costa Rica early showed a disposition to look upon their scheme with disfavor. [\[XXVIII-27\]](#) Baron Bülow was the director of the company. He died in 1856, and in all probability his enterprise died with him. Another attempt was made by Crisanto Medina, to whom a large grant of land was made for colonization purposes, at Miravalles, at the foot of the volcano of that name. The grant embraced a fine plateau about 2,500 feet above the sea. [\[XXVIII-28\]](#) In 1852 thirty-seven Germans were settled there, and possibly a few more came afterward, but the project was abandoned. [\[XXVIII-29\]](#)

In 1856 there was an arrival of French immigrants. [\[XXVIII-30\]](#) On the 23d of April, 1858, another colonization law was passed. [\[XXVIII-31\]](#) The idea of augmenting the population by offering inducements to foreign immigrants has not been abandoned. Thus we see further contracts entered into with private parties to that end. [\[XXVIII-32\]](#)

CLASS
DISTINCTIONS.

The most numerous class of population in Central America, next to the pure Indians, are the ladinos, most of whom are half-breeds, which include the mestizos, mulattoes, quadroons, octoroons, and zambos. [\[XXVIII-33\]](#) The mestizos are of a light yellow hue; numbers of them, however, are found as white as the natives of southern Europe. They are generally a fine-looking race of men, resembling in bodily and mental features the creoles or pure native whites, though more hardy. In temperament they are passionate, revengeful, treacherous, and cowardly, ambitious and yet lazy, sensuous, and in a majority of cases, at least in the lower class, devoid of moral principle. The

pure Indian is more reliable than the mestizo, the latter having all the vices of the two races out of which he sprang.

The ladino class furnishes the domestic servants, muleteers, small farmers and tenants, herdsmen, and not a few beggars and robbers. In revolutionary times many of its numbers have been banditti, preying, under the garb of guerillamen, upon both friend and foe. A considerable number of ladinos, however, become mechanics and traders, and many have attained high positions in the church and the state, and become distinguished for their talents and abilities. [\[XXVIII-34\]](#) The zambos and other mixtures of the negro race, like most of the negroes and mulattoes, reside in the coast districts. They do the heaviest work in the towns, and often engage in agriculture.

The Creoles, or pure native whites, calling themselves Americans, though less numerous, form the ruling class. In the towns they are the leading element, filling the most desirable positions, such as those of land and mine owners, merchants, manufacturers, lawyers, physicians, mechanics, officials, and higher clergy. [\[XXVIII-35\]](#) The creole is generally well built, and of about medium height, with a pleasing expression of countenance. His eyes are usually black like his hair and beard. He lacks the steadfastness of the Anglo-Saxon, and the trustworthiness of the German, often allowing himself to be swayed by passion and caprice. There are, nevertheless, many honorable exceptions, which are probably the result of education and contact with the people of other and older nations. Indeed, whatever may have been the defects of character of the creole, when he lived comparatively isolated from the world, and entertained the conceit of his own excellence and superiority, a great change for the better is noticeable in many individuals in after years, since Central America has been enjoying facilities of communication with other peoples, which has enabled her sons and daughters to study their ways, and to adopt whatever is good in them, not to mention the bad ways which have also taken root.

The population of Costa Rica is represented to be nearly all white, the Indians not being numerous, and the negroes and mixed breeds living on the coast.^[XXVIII-36] The Costa Ricans are a well-formed people. There is, perhaps, not as much manly dignity and female grace as are yet to be found in Spain; nor is the color of their females, as a rule, to be compared with that of their European sisters; but what is lacking in that is fully compensated by elegance of form, regularity of features, splendid eyes, and an abundance of glossy hair,^[XXVIII-37] and not least by their affability and sweetness of manner. The people are generally intelligent, and noted for the absence of hauteur in their manner.^[XXVIII-38] They are sedate, industrious, economical, fairly honest,^[XXVIII-39] and peaceable. Upon occasions they have shown themselves possessed of good soldierly qualities when their independence or rights have been in peril, as during Walker's filibuster war; but they cannot be called a warlike people.^[XXVIII-40] They are not ambitious, aspiring to a moderate independence to be attained without an excessive effort. Indigence is almost unknown. All Costa Ricans own property of some kind, and even the humblest of them has the ambition of possessing a piece of land.

DOMESTIC
AFFAIRS

The houses of the wealthy and well-to-do are quite comfortable. They are built with ordinary doors and windows, and of one or two stories.^[XXVIII-41] Window-glass is only used in the better houses of the principal cities. In the smaller towns windows are dispensed with as superfluous. Carpets are to be found in a few houses of the wealthy, or of foreigners. Instead of them, floors are covered with matting. The rich exhibit paintings or engravings on their walls. The houses of the poor are comfortless.^[XXVIII-42]

The higher classes enjoy the pleasures of the table. In the populous cities inns are kept for the better class of travellers, at which a tolerably good table is provided. The usual food of the peasants and other poor people consists of tasajo, or jerked beef, black beans, corn, rice, tortillas,

plantains, and other fruits.^[XXVIII-43] Intoxication is prevalent among the lower classes. Guaro, or aguardiente, and gin are deemed a necessity for the peasant and laborer. With the action of the heat and the poor food, liquor soon overpowers him.^[XXVIII-44]

Saturday is the day upon which the cities are supplied with comestibles and other commodities for the week. Natives of both sexes and all ages throng the market-places, particularly in San José,^[XXVIII-45] bringing vegetables, fruits, and other food for the table. Others bring manufactured articles, like earthen-ware, hammocks, charcoal, hats, rebozos, etc.^[XXVIII-46] From sunrise till noon the market-places are crammed with sellers and buyers. The ladies of all ranks do their own marketing, and are seen, basket on arm and bareheaded, strolling about and driving bargains. The market-women move rapidly, carrying goods on their heads or in strings. The better class of women follow in their dress the fashions of Europe, except that they wear no hats. The females of the lower classes have their own mode of dress, which is generally more studied than in other places of Central America. Some of them wear ear-rings and expensive collars, a jipijapa hat costing \$16. The gowns are of muslin, printed calico, or some other light material, and cover half a dozen embroidered petticoats. The hair is divided into two tresses hanging down behind, and in the braids runs a bright-colored ribbon. Others wear on the head a rebozo, which like the hat is significant of the taste or wealth of the wearer.^[XXVIII-47] Only a few among them complete this studied toilet with shoes or boots. The men bring their mules, or carts, or merely their machetes. They generally wear a coarse cloth coat and a pair of drill or cotton trousers. The hat varies; it is either of straw, otter, or felt. Most of the people of the interior go barefooted, but carry plenty of pesos in their pockets and make them jingle. After purchasing in the market-place such articles as they need, which go under the general term *habilitaciones*, and selling their products, they seek the *vinaterías* or *pulperías*, and invite one another to drink.

The great amusement of Costa Rica is gambling. The people have a command of money, and their only ways of spending it, to afford them entertainment, are the church, the bottle, and gambling.^[XXVIII-48] On Sundays and feast-days after the church service^[XXVIII-49] the men resort to the cockpit, many staking from \$200 to \$500 on the result of a fight between two cocks.^[XXVIII-50]

NICARAGUAN
SOCIETY.

The Nicaraguan women of pure Spanish stock are quite fair, and have the embonpoint characterizing the sex under the tropics. Many of them are handsome, having an oval face, regular features, large and lustrous black eyes, small mouth, good teeth, small hands and feet; and withal a low but clear voice. Some of the descendants of white and Indian of the higher class are also quite beautiful. The Indian girl with her full lithe figure, long glossy hair, and erect walk should not be overlooked.^[XXVIII-51] Nicaraguan society has a peculiar charm and grace, with little conventionality. Both men and women of all classes are extremely courteous.^[XXVIII-52] Strangers are well received, if decently clad, well-mannered, and of good behavior. They will find it rather difficult to obtain the privilege of visiting respectable families. When a young man desires to pay his addresses to a young lady, he applies for the permission of her parents, guardian, or relations, as the case may be. Marriages are invariably according to the rites of the catholic church. Burials of members of rich families are in churches.^[XXVIII-53]

The Nicaraguans of the higher order—there is no middle one—cannot be credited with industrious habits. Life is easy with them, and the climate is enervating. So they spend much of their time lying in a hammock and smoking cigarettes.^[XXVIII-54] The lower order in the towns follow the example, at least the male portion. The peasantry, however, is docile and fairly industrious, and may be called an excellent rural population. The peon system is unknown in Nicaragua.

The Nicaraguan people have a fine muscular development, and a mild soft expression. Though not warlike, they are brave, and will fight desperately when reduced to it by necessity. The masses are not so demoralized as some travellers would have us believe them. Crimes are relatively rare, and the public roads are safe from highwaymen. [\[XXVIII-55\]](#) A servant may steal a small amount, or some object thrown in his way, and yet will convey a large sum of money to a long distance without thinking of running away with it. It must be confessed that there is too much proneness to condone offences against morality and honor. [\[XXVIII-56\]](#)

DRESS AND
DWELLINGS.

There is no national costume. The wealthy follow to some extent to European fashions, generally suppressing the silk hat, which is replaced with any hat that is broad-brimmed and suited to the climate. [\[XXVIII-57\]](#) Men of the lower class go barefooted, or wear the caite, which is a species of sandal. The rest of their dress is a pair of cotton trousers, frequently not reaching lower than the knees, a shirt, its lower part often outside the trousers, and a palm-leaf hat.

There are many fine horsemen in Nicaragua, as well as in all Central America. A caballero is in his element when mounted on a spirited, champing horse, with a pellone thrown over the saddle, which is the Mexican saddle modified and with high peaks. He carries also to complete his equipment a pair of bolsters and pistols. [\[XXVIII-58\]](#) Women imitate the European summer costumes, but use no hat except when riding on horseback. They generally appear in a loose and flowing dress, with neck and arms exposed. A light shawl is thrown over the shoulders, or worn over the head at church. A red or purple sash may be wound around the waist, and a narrow golden band, or a string of pearls extending around the forehead and binding the hair, which often falls in luxuriant waves over the shoulders. The usual way of dressing the hair is to have two braids knotted behind the head, and to place a few natural flowers in it. The feet are incased in satin slippers. The women of the lower class use a petticoat

without waist, covering the undergarments. A floating short shirt quite open in the upper part, and almost sleeveless hardly concealing the bust. In the street they wrap themselves in a rebozo. Stockings and shoes are worn only in cities. [\[XXVIII-59\]](#)

The dwellings of the poor in the country are usually of canes thatched with palms, many of them open at the sides, and with the bare earth for floors. Some of them have the canes plastered over, and whitewashed, with tile roofs, or otherwise improved. Those of large proprietors are strongly built, neat, comfortable, and generally cool. In the towns there are many dwellings of the same character; but the residences of the wealthier class are built of adobes, of one story, enclosing large courts which are entered under archways, these being frequently constructed with much beauty. [\[XXVIII-60\]](#) The interior is divided into large rooms around the gallery or corridor. The walls are whitened on both sides. One of the rooms is used as a parlor, the others for different purposes. [\[XXVIII-61\]](#) The furniture is generally of home manufacture and simple enough. [\[XXVIII-62\]](#) The house is lighted with stearine candles, imported or common tallow dips. Petroleum and lamps have also been introduced. [\[XXVIII-63\]](#)

FOOD AND DRINK.

The characteristics of Nicaraguan life are sobriety and uniformity of food. [\[XXVIII-64\]](#) Families make a practice of not laying in supplies, but purchase what they need from day to day. Some buy their food already cooked.

The custom of extending invitations to dinner with one's family, so common in other countries, does not obtain in Nicaragua, except among relatives or very intimate friends. Men are asked to eat only on special occasions, when banquets are given, at which the English custom of giving toasts is followed.

Amusements are few in Nicaragua. However, the upper classes have their tertulias and balls, often improvised, at which the polka, waltz, bolero,

and other well-known Spanish dances are performed with grace and spirit. The lower classes frequently have fandangoes and other characteristic dances. There is no place of general resort for the better classes, unless it is the billiard-room, which serves alike as a gambling-den.^[XXVIII-65] The cockpit is in full operation every Sunday, the people being fond of the amusement, and even the most respectable indulge in it.^[XXVIII-66] Gambling at monte and other games of hazard is common enough, but the vice has not attained the development noticed in other parts of Spanish America.^[XXVIII-67] It is certainly conducted with less publicity.

There are neither bull-pits nor professional bull-fighters. Now and then a performance of the kind takes place in some plaza; the bull is much worried, but not killed.^[XXVIII-68]

After describing the manners and customs of the Nicaraguans, there is but little left to say of their neighbors the Salvadorans, who resemble them in most characteristics. It must be acknowledged, however, that the people of Salvador are entitled to the first rank in Central America for their industry, general intelligence, and love of order. Individual rights are respected among them, and well-behaved foreigners are at all times made welcome. The Salvadorans seem to understand what are the duties of republicans.^[XXVIII-69]

The population of Salvador consists of Indians, ladinos, and zambos. The ladinos comprise the whites, of which class the proportion is small, and the several mixtures of white and Indian. The mode of living of the latter scarcely differs from that of the Nicaraguans or other Central Americans of the same standing.

SALVADORAN
SOCIETY.

The aboriginal peoples have undergone considerable modification from the three centuries of contact with the white men, and of subjugation to the

Spanish rulers. But there are towns, even near San Salvador, the capital, which have retained many of their primitive customs, and where the aboriginal blood has suffered but little, if any, intermixture. The native language has fallen into disuse in most places, and only a few words, also accepted by the whites, are retained. [\[XXVIII-70\]](#) The region known as costa del bálsamo [\[XXVIII-71\]](#) is entirely occupied by Nahua nations, whose habits have scarcely changed since the conquest. They are not absolutely hostile to the Europeans, but certainly dislike any intrusion on their part. They are an industrious people.

The aboriginal Salvadoran is, as a rule, slender in form but muscular. Some of the women have fine figures and graceful carriage; they walk with a firm step and body erect. They are, both men and women, gentle, affable, and rather hospitable; their temperament is melancholy and dreamy. They are well-disposed toward foreigners, and though they will not tolerate any doubt as to the purity of their blood, yet consider themselves insulted by being called indios. They also look upon the whites and ladinos as usurpers in the land. They are much given to boasting of their courage and generosity, and wish to be taken for a brave people. The Indian possesses a certain quantum of honesty, but will fulfil his contracts faithfully when his interests do not suffer by it; otherwise, he will find a loop-hole of escape. He cannot understand the value put by others on capital; his present needs being covered, he cares nothing for the superfluous. [\[XXVIII-72\]](#)

The men are quite reserved in their manner; the women are different. Their desire to have children by white men promotes looseness. They do not see any dishonor in having foreign lovers, and children born out of wedlock. Nearly all the Indians can read and write, and have some knowledge of arithmetic.

The dress of the Salvadoran Indians is extremely simple; probably the same as that worn by their ancestors. The women use a piece of blue cotton wrapped round the waist, and reaching only a little below the knees; the

upper part of the body being scantily covered with a sort of chemise with an aperture at the top for the head, and open at the sides. [\[XXVIII-73\]](#) The head-dress consists of two long tresses of their own black hair, interlaced with a red ribbon, and wreathed round the head like a turban. They wear neither shoes nor stockings. The men generally have caites to their feet. Their dress is a light suit of cotton, a straw hat or colored kerchief on the head, and a chamarra of coarse cloth, which answers all the purposes of cloak, blanket, carpet, and bed.

The dwellings are simple and comfortless; indeed, they seem to have been put up with the expectation of their being tumbled down at any moment by earthquakes.

MUSIC AND SKY-ROCKETS.

The men leave to the women all the cares of the house; the latter, consequently, lead a laborious and hard life. Their food consists of eggs, venison, tortillas, beans, rice, and fruit. They are fond of coffee, and the men indulge freely in the use of chicha, rum, and every other alcoholic drink that comes in their way. The women, on the contrary, are strictly sober. [\[XXVIII-74\]](#) Like all other christianized Indians, they devote much of their time and substance to religious feasts, which are generally followed by carousals and gambling, cock-fighting being a prevalent amusement. They have a decided liking for music, accompanying their sad strains with the guitar, accordion, marimba, or dulcema. The practice of burning fire-crackers and letting off sky-rockets is quite common upon every occasion, whether of rejoicing or mourning. At funerals they let off rockets as they march along to the cemetery. [\[XXVIII-75\]](#)

CHAPTER XXIX.

THE PEOPLE OF HONDURAS AND GUATEMALA.

1800-1887.

AMALGAMATION IN HONDURAS—POSSIBLE WAR OF RACES—XICAQUES AND PAYAS—ZAMBOS OR MOSQUITOS—PURE AND BLACK CARIBS—DISTINGUISHING TRAITS—LADINOS—THEIR MODE OF LIFE—GUATEMALA AND HER PEOPLE—DIFFERENT CLASSES—THEIR VOCATIONS—IMPROVED CONDITION OF THE LOWER CLASSES—MESTIZOS—PURE INDIANS—LACANDONES—WHITE AND UPPER CLASS—MANNERS AND CUSTOMS—PREVAILING DISEASES—EPIDEMICS—PROVISION FOR THE INDIGENT.

In Honduras, the amalgamation of races has almost obliterated the line distinguishing whites from blacks. The mixture of white, negro, and Indian has brought about a population ranging in hue from chocolate to cream color. Now and then a pure white descendant of the old aristocratic families may be seen; but such instances are quite rare, as few families have escaped the amalgamation.

A war of races is among the possibilities. In former times some families were wont to enlist blacks and Indians in the deadly feuds of the country; now they stand in dread of elements which will overshadow or exterminate them, unless a timely influx of whites from the United States and Europe shall counter-balance the ever-increasing preponderance of the black race.

[\[XXIX-1\]](#) However, there are a number of respectable negro families, some of whose members have occupied high positions in the government.

WHITE, RED, AND
BLACK.

The Indian or aboriginal element predominates here as in all Central America. In some districts it is difficult to say whose habits of life prevail, the white or

the Indian. In the eastern portion of the state, [\[XXIX-2\]](#) the population is almost entirely of Xicaques and Payas, portions of which native tribes have accepted the catholic religion and live at peace with the white inhabitants; the rest, living among the mountains, conform more to their original mode of life, but maintain friendly relations with the white race.

The coast around Carataska Lagoon, and as far to the westward as Brewer or Brus Lagoon, was at one time occupied by zambos, or Mosquitos, but the Caribs spreading rapidly eastward from Trujillo and Black River have displaced them. The zambos have of late years lost their former activity, and surrendered to the besetting vice of drunkenness, which, together with other causes, is hastening their extinction. Most of them having been driven by the Caribs into territory belonging to Nicaragua, the proportion of them still remaining in Honduras must be small.

The Caribs are the descendants of the original inhabitants of the leeward island of Saint Vincent. [\[XXIX-3\]](#) The presence of negro blood among the Caribs is explained by the foundering, when they were still dwelling in Saint Vincent, of an African slave ship, on one of the small islands of the vicinity. [\[XXIX-4\]](#) The Caribs, both the pure and the black, are active, industrious, and provident, and far more civilized than the zambos, living in well-constructed huts, which are kept clean and comfortable. They still retain their original language, though most of them can speak Spanish and a little of English. While professing to be catholics, they retain many of their old rites and superstitions. Being a good, frugal, intelligent, and useful laboring population, much aid may be expected from them in the future development of the country.

In Comayagua and Choluteca there are several towns wholly occupied by Indians, who retain their ancient language and many of their primitive customs. They are industrious, provident, and peaceable; but if left to their own unaided efforts, will never bring about the development of the country;

but with the introduction of an intelligent and enterprising people their good qualities could be rendered useful.

Among the ladino class the men are all polite; the educated are well-bred; and even in the lowest walks of life courtly language and manners prevail. [\[XXIX-5\]](#)

The women of the higher class are rather tall, but straight; their every movement is elegant and modest. The brunettes with raven hair prevail as to numbers; yet a fair complexion, with light hair, blue eyes, and ruddy cheeks is found, particularly in the highlands. Pretty hands and arms are common. The women of the lower classes are generous and kind-hearted, hospitable, gentle, frank, and patient. Upon them falls a large share of the work done. [\[XXIX-6\]](#) This does not, of course, apply to women of wealthy families, but the fact stands that the women of the lower orders are mere slaves, albeit they appear cheerful and happy. The practice of men and women living together without being married prevails here, as elsewhere in Central America, chiefly among the lower order. [\[XXIX-7\]](#)

DOMESTIC
AFFAIRS.

Women of the higher class are taught but little beyond reading, writing, and a few rules of arithmetic, playing on the guitar or piano, dancing, and presenting a good appearance in society. This done, they are soon taken to the altar, and their matronly duties begin. A few young women, however, are sent to the United States for an education. [\[XXIX-8\]](#)

Dwellings in Honduras are mostly of one story; the Hondureños, not having the excuse of earthquakes, say that it was the mode established by their ancestors. The sala, or parlor, is the room where the family pass the greater part of the day, doing nothing in the forenoon. [\[XXIX-9\]](#) The construction of the house is very much like that described for Nicaragua. The residences of the wealthier classes are cleanly and cool, and have neat gardens in the rear, adorned with beautiful flowers and birds in cages. There

is no excess of furniture. A bedstead, one or two chairs, and a clothes-press form the ordinary furnishing of a bedroom. But in the houses of the wealthier families, and where several women reside, the rooms are more generously supplied.

Breakfast and dinner are substantial meals with the wealthy.^[XXIX-10] The manners observed at table are very sedate, and always courteous. When wine or other beverage is drank, the health of the master and mistress of the house is pledged with the first glass. The poor, especially in eastern Honduras, are badly fed, and though generally fleshy and well formed, are not constitutionally strong. In the cattle districts of Olancho they fare better, getting all the beef they need. Yet even the former make patient and enduring soldiers, capable of travelling twenty leagues a day through the mountains.^[XXIX-11]

The upper classes adopt American and European fashions, and costly articles of wearing apparel are in demand. Women, as a rule, wear white dresses the year round, or those of a light pink or blue gauzy stuff. At parties or balls the dress is usually white and very light. Little jewelry is worn. In the street a woman always wears a mantilla or a shawl covering her head. The hair is oftener worn plaited, and put up behind the head. Ringlets are seldom seen. Women are rarely seen out except in the morning and toward sunset.

Men of means travel on fast mules worth at least \$150 each; the trappings being silver mounted, and some of the bridles and head-stalls adorned with plates of virgin silver. The Hondurans are fine riders. Many of the females are graceful and fearless horsewomen. The habit of riding on the right side prevails. Sometimes the bottom of the rider's dress is loaded with small silver coins fastened through holes in the skirt.^[XXIX-12]

All classes of the people, from the clergy down—or up—indulge in bull and cock fights, horse-racing, dancing, and the excitements of the monte-table, all of which amusements generally follow the services of the

church on great civic or religious festivities.^[XXIX-13] Gambling is quite general, and thousands have been ruined by this vice; however, there is less of it here than in other parts of Central America. Begging is a prevalent practice throughout the country, and various devices are resorted to by the halt, maimed, blind, and others to obtain alms.^[XXIX-14] Good domestic servants are not easily procured in Honduras; they are generally mulattoes of poor intelligence, and exceedingly indolent.^[XXIX-15]

CASTES AND
CLASSES.

The population of Guatemala is set down at about 750,000 Indians, 430,000 ladinos or mestizos, 10,000 persons white or nearly so, 8,000 negroes or colored, and 2,000 foreigners.^[XXIX-16] The white men are mostly owners of estates, and several of them belong to the learned professions; others are engaged in trade, or keep shops.^[XXIX-17] The mestizos are mechanics, retail shopkeepers, or servants. The Indians are the cultivators of the soil, and generally speaking, the agricultural laborers. Many mestizos, and not a few pure Indians, however, belong to the learned professions, and for that reason are counted among the gentry, though not among the so-called nobles, supposed to be descendants of the Spaniards who in colonial times held positions under the government, or were connected with them.

Until the liberal régime became established in 1871, a régime which did away with the privileges of class, there were two castes in the country; namely, the laboring and producing class, and the governing one which was wholly made up of consumers. Between the two classes custom and the rulers had built up a Chinese wall, an almost impassable barrier. That distinction has been rapidly disappearing under the influence of liberal laws.

The Guatemalans of the educated class are noted for their kindly disposition, simplicity of manners, and high sense of justice. Both sexes are amiable, courteous, and attentive to strangers.^[XXIX-18] Notwithstanding their good intellectual powers, owing to the effects of climate, habit,

educational and religious training, bad government, and perhaps the combination of those causes, they have been inclined to indolence, and have lacked in vigor of thought, energy, and enterprise; punctuality could not be counted among their good traits, but a most confirmed religious bigotry prevailed for years among all classes.^[XXIX-19] An enlightened public opinion, in both government and religious matters, has been, however, growing from the time that the detestable old system was overthrown, it is hoped forever.

The youth of Guatemala are made conversant with the etiquette of society. The higher class are quiet, reticent, grave, and seemingly impassible, but as a rule make good husbands, fathers, and neighbors. They are studiously polite and punctilious, expecting a full return from others. The women are more free, impressive, and impressible than the other sex, gracious in speech, unaffected and winning. They also rank high for morality.^[XXIX-20] Many of them are blondes; many have a white skin, with dark eyes and hair.^[XXIX-21]

The mestizos, who are the issue of white fathers and Indian mothers, and of the promiscuous intercourse,^[XXIX-22] habitually seek the towns. They are, as a class, much the superior intellectually of the pure Indian, better educated, and less superstitious, as well as less loyal to church and government, and too often wicked, treacherous, and dissolute. When not injured by early excesses the mestizos are finely built. The younger and uncorrupted females are distinguished by the voluptuous swell of their busts, fine lithe forms, erect and graceful carriage. They walk with an elastic footstep and inimitable grace and freedom.

PHYSIQUE AND DWELLINGS.

The Indians mostly dwell by themselves in villages, many on the estates of planters, and a few in the cities and towns.^[XXIX-23] They are supposed to be intensely catholic, but they mix in with their christianity many heathen rites; and being partially educated by the clergy, nearly all understand and

can speak the Spanish language. When not corrupted by military service the aboriginal is industrious, mild, and temperate. Those who dwell apart in their villages raise most of the fruits and produce marketed, and make most of the domestic articles sold in shops. Nearly all, and particularly those of the departments of Los Altos, have a fine physical development.

The race has been from the time of the conquest oppressed and kept in a state of barbarous ignorance and superstition. The régime, established since 1871, energetically enforced by the late President Barrios, has done much to bring about a change for the better. [\[XXIX-24\]](#)

The Lacandones have been specially spoken of by several authors who have written on Guatemala. The Spaniards, after attempting in the latter end of the seventeenth century to pacify the warlike Indian provinces, including the Lacandon region, resolved upon forcibly removing the Indian towns. The Indians of the town of Dolores were generally quiet, but as an expensive garrison would be required to make sure of their continuing at peace, the inhabitants were removed first to Aquespala, next for some unknown reason to San Ramon, and finally to Santa Catarina de Retalhuleu.

[\[XXIX-25\]](#) These changes caused much suffering; a large number died, others became scattered, but most of them returned to their native mountains.

[\[XXIX-26\]](#) The government of Guatemala tried in 1831 and 1837 to bring the Lacandones under its authority, but all its efforts failed, and they have since retained their independence, though seemingly they have abandoned their old predatory habits, contenting themselves with preserving their isolation.

[\[XXIX-27\]](#)

The above remarks refer to the western Lacandones, who live on or near the Pasion River, and its tributaries. The eastern Lacandones are a harmless tribe who hold no relations with and fear the others. [\[XXIX-28\]](#)

The dwellings of the citizens of Guatemala are generally of only one story, but the capital and other cities present fine houses of two stories; as a

rule the houses are commodious, and abundantly supplied with water. Those of the wealthy are elegantly furnished, and the rest tolerably well provided, the floors being covered with mattings. The habitations of the poor and Indians are mere thatched huts and altogether comfortless.

DRESS AND FOOD.

The upper or educated class follow in their dress the fashions of Europe and the United States. The women, however, wear a mantilla or shawl and veil when going to church, and appear without any covering of the head when walking out or on a visit. They like to adorn their hair with flowers.^[XXIX-29] The men are rather modest in their apparel, and only when equipped for travelling do they exhibit some ostentation. At such times, their weapons, the trappings of their horses or mules, and other ornaments are expensive, provided their means will allow the indulgence.

The following was the dress worn in the first quarter of the present century by the women of the lower order, not included in the wealthy class. Short red petticoats, with deep plain white flounces round the bottom, gathered up in very thick plaits over their hips with a white border; thence upwards, they had only a chemise to cover them.^[XXIX-30] The hair in front was in the madonna form, and the hinder part, being of great length, was divided into tightly plaited cords, which were twisted round the head in various devices. A pink satin shoe, without stockings, completed the costume. Most of the Guatemala damsels of the lower classes dressed in that style, excepting that more frequently they went without shoes, this being specially noted in the servant class.^[XXIX-31] Some changes have occurred since then, and a considerable number of the lower order have adopted the custom of dressing like the wealthy, but as a rule a marked difference exists between the two classes.

Men of the mechanic class generally dress like the upper class; the laborers rarely have more than a shirt and trousers; and occasionally a round jacket. Many go barefooted or wear the caite. A common palm or

straw hat covers the head. The village or agricultural Indians go scantily clad. The best wear of a male consists of a straw hat, a short-sleeved shirt, short breeches, and caites. The females rarely sport more than a loose waistcoat, and a short petticoat, or a cloth wrapped round the waist, reaching a little below the knees. Children of both sexes run nude.

The food of the Guatemalans is about the same as that of other Central Americans of their respective classes. Travellers will find mesones to provide shelter and refreshments for man and beast at certain distances on their journey.^[XXIX-32] At places where no inns exist, the traveller will be accommodated by the priest, or by the alcalde in the town hall.

The Guatemalans, like all Central Americans, are fond of bull and cock fighting,^[XXIX-33] as well as of games of chance, which are indulged in with great frequency.^[XXIX-34] The government endeavors to provide amusements of a more intellectual and refined character. It built a fine theatre in the capital, and from time to time subsidizes musical and dramatic troupes.^[XXIX-35]

Begging is common. The sight of a crowd of beggars in rags, many of them exhibiting their sores, is very repulsive. Those beggars are supported by public charity and are rarely sent away without relief.^[XXIX-36]

DISEASES AND HOSPITALS.

The several states of Central America have often been visited with calamities in the form of storms and hurricanes, freshets, and fires, causing heavy losses of property, and at times of life also. Disease causes its destruction as elsewhere, and often maladies in an epidemic form have decimated the population. Fevers are rare, except on the coasts, where they prevail during the hottest months.^[XXIX-37] The small-pox has on several occasions done havoc among the population. The invasions of the malady in 1851 in Costa Rica, 1862 in Guatemala and Honduras,^[XXIX-38] and in 1883 in Costa Rica, have been specially recorded in those countries.^[XXIX-39]

Leprosy prevailing in several parts of Central America, special hospitals have been established in some of the republics for the reception and care of persons thus afflicted.^[XXIX-40] Syphilis exists in Central America, but is not so prevalent as in Mexico. In some parts laws have been enacted to regulate the social evil.^[XXIX-41]

That great scourge of the present century in Europe and America, Asiatic cholera, has repeatedly invaded the Central American states, carrying vast numbers to destruction. In 1836 it desolated the largest cities, and everywhere created the utmost consternation.^[XXIX-42] It again made its appearance in the early part of July 1855. A soldier died in Fort San Juan. A few days later a boat-load of cholera patients came to Granada, and forthwith the malady spread throughout Nicaragua and the rest of Central America, its heart-rending effects not ceasing in Salvador and Guatemala till toward the latter part of 1857.^[XXIX-43] The disease broke out again epidemically in Nicaragua toward the end of 1866, and continued its ravages there and in Honduras in 1867 and 1868, and it appears that some cases occurred in Honduras even as late as 1871.^[XXIX-44]

The several republics have provided hospitals for the care of the indigent poor, as well as other benevolent establishments for the comfort of orphans and others needing public support. There are also charitable societies affording great relief to the sick and destitute.

CHAPTER XXX.

INTELLECTUAL ADVANCEMENT.

1800-1887.

PUBLIC EDUCATION—EARLY EFFORTS AT DEVELOPMENT—COSTA RICA'S MEASURES—SMALL SUCCESS—
EDUCATION IN NICARAGUA—SCHOOLS AND COLLEGES—NICARAGUAN WRITERS—PROGRESS IN
SALVADOR AND HONDURAS—BRILLIANT RESULTS IN GUATEMALA—POLYTECHNIC SCHOOL—SCHOOLS
OF SCIENCE, ARTS, AND TRADES—INSTITUTE FOR THE DEAF, DUMB, AND BLIND—UNIVERSITY—
PUBLIC WRITERS—ABSENCE OF PUBLIC LIBRARIES—CHURCH HISTORY IN CENTRAL AMERICA AND
PANAMÁ—CREATION OF DIOCESES OF SALVADOR AND COSTA RICA—IMMORALITY OF PRIESTS—THEIR
STRUGGLES FOR SUPREMACY—EFFORTS TO BREAK THEIR POWER—BANISHMENTS OF PRELATES—
EXPULSION OF JESUITS—SUPPRESSION OF MONASTIC ORDERS—SEPARATION OF CHURCH AND STATE—
RELIGIOUS FREEDOM.

During the last years of colonial rule the government displayed some interest on behalf of public education in Central America. It was, however, religious rather than secular, and the consequence was that liberal ideas were not countenanced. After the establishment of the republic, and while the liberal system prevailed, this important branch was not neglected. [\[XXX-1\]](#) Later, after the dissolution of the confederation, some of the states, having fallen under the rule of a despotic oligarchy, were lukewarm, to say the best. Costa Rica cannot be accused of neglect. [\[XXX-2\]](#) In 1856 she had public schools in all the towns, supported by the government, and in the chief places others receiving aid from the municipalities. [\[XXX-3\]](#) The university of Santo Tomás, at San José, has chairs of Spanish and Latin grammar, philosophy, mathematics, law, medicine, and pharmacy, and confers diplomas. [\[XXX-4\]](#)

The efforts of general and local authorities, as well as of private individuals, for the spread of instruction among the masses were never discontinued, education being more or less under ecclesiastical control till August 1881, when it was placed under the supervision of the national executive. Thus far educational results were far from satisfactory, the statistics in November 1883 showing, that throughout the republic only 14.70 per centum of the population could read and write. [\[XXX-5\]](#) Nevertheless, there are many well-educated men, who received their instruction in the schools, colleges, and university, and have attained good standing in the several learned professions, and in political life.

The labor to enlighten the masses continues unabated, with hopes of better success. No works of literary importance have been issued from the press in Costa Rica, and only a few newspapers, other than the official journal, are published.

EDUCATION IN
NICARAGUA.

The advantage to Nicaragua of possessing an educated people has not been unknown, and efforts to that end have been made since early times, though without the desired results. [\[XXX-6\]](#) The general supervision was finally given the executive, and local boards in the departments. Since that time some progress has been made. The number of primary schools has been increased; and schools of agriculture, arts, and trades, new colleges, and a national library have been established. Teachers of both sexes have been brought from the United States and Europe. It is hoped that these efforts, persistently sustained, will yield the better fruits. Indeed, President Cárdenas' message of January 15, 1885, gave a hopeful account, though primary instruction still is quite backward for want of competent teachers. [\[XXX-7\]](#)

There are no data as to the number of those who can read and write, or as to the mental condition of the population. There is no national literature. Persons assuming to write for the public generally do it through a

newspaper or loose sheet. Among this class are some who wield powerful pens. [\[XXX-8\]](#) Occasionally there appears a work in book form from the pen of Tomás Ayon, Gerónimo Perez, and others on history or politics. [\[XXX-9\]](#)

The Spanish language was introduced in Nicaragua, as in the rest of Spanish America, but a great number of Indian words are in daily use even by the educated classes.

Salvador, from the earliest days of her autonomous life, has been a warm advocate and supporter of public instruction. [\[XXX-10\]](#) As early as 1846 it was already progressing considerably under President Aguilar's administration. [\[XXX-11\]](#) Attendance having been made compulsory, and schools established to fill the requirements, primary instruction has been brought within the reach of nearly all Salvadorans. [\[XXX-12\]](#) The republic has a large number of educational establishments, to wit, three universities, [\[XXX-13\]](#) a seminary, a botanic garden, schools of agriculture, design, medicine, and military academy. There is also a national library at the capital. [\[XXX-14\]](#) A school of mechanics was ordered founded in 1885.

Salvador does not lack for men of good attainments in science and literature, nor for writers possessed of power and elegance, especially in diplomacy and other political topics. [\[XXX-15\]](#)

EDUCATION IN HONDURAS.

The spread of education among the masses in Honduras was until late years sadly neglected. [\[XXX-16\]](#) The state has two universities, one in Comayagua and another in Tegucigalpa, both having, nominally, chairs of law, medicine, and theology. [\[XXX-17\]](#) Most of the educated men of Honduras have received their instruction in foreign countries, or at the universities of the other states. [\[XXX-18\]](#)

The Lancasterian system of education was introduced in Honduras, as in the rest of Central America, early during the confederation system, and has been continued with some modifications. There may, possibly, be 400 schools in all the state, each with an average attendance of 25 pupils, making an average of 10,000 pupils of all classes in a total population of 350,000 to 400,000 souls. There are no libraries in the country worthy of mention, and hardly any newspapers other than the official journal. [\[XXX-19\]](#)

Greater interest has been manifested in public education in late years. [\[XXX-20\]](#) Larger appropriations have been made, and competent teachers procured. [\[XXX-21\]](#)

The retrogressive government which ruled over Guatemala for more than thirty years, down to 1871 when it was overthrown, not only failed to make adequate provision for the education of the masses, but endeavored to keep them in a state of ignorance and fanaticism. The new régime hastened to bring on a change, being convinced that without an educated people, democratic institutions would be impossible. Primary schools were accordingly established as fast as circumstances and the condition of the treasury permitted, in every town and village. In 1876 their number had already reached 600, and progress was uninterrupted after that. [\[XXX-22\]](#) Secondary and professional education have also been fostered. There are three national institutes of secondary instruction for males and two for females, a normal school for training teachers; also several of special instruction, namely, agriculture, design, arts, and trades; one for the deaf and dumb and two of law, one of medicine, and one of engineering. Since 1882 schools of music and elocution and a mercantile academy [\[XXX-23\]](#) have been added. Special mention should be made of the Politécnica, or military academy, in which a liberal education is afforded, comprising English and French, a thorough course of science, including mathematics and drawing, in addition to the specialties of the military profession. [\[XXX-24\]](#)

The national university, which during the old régime had been governed by the ordinances of Carlos II., the Bewitched, who ruled in the latter part of the seventeenth century, was placed under regulations more in consonance with modern ideas. The establishment has been since imparting the highest order of instruction. The old Sociedad Económica, whose mission is to advance agriculture, and the fine and mechanic arts, likewise has undergone improvements.^[XXX-25] The expenditure for public instruction has increased from year to year, as appears in the note below.^[XXX-26]

Notwithstanding the retrogressive policy of the oligarchic rule, Guatemala was not devoid of men of ability and learning. Several works have issued from Guatemalan pens, the writers deserving special mention being José Valle, Domingo Juarros, Alejandro Marure, Pedro Molina and his sons, Francisco Barrundia, Lorenzo Montúfar, José Milla, and others, including the brothers Dieguez as poets.^[XXX-27]

Newspapers as a rule have had a precarious life, though several of them often contained productions from able Central American pens. The government has at times afforded aid with subsidies.

RELIGION AND THE CLERGY.

It is hardly necessary to mention the fact that the catholic religion was the only form of worship recognized or tolerated in Central America during the Spanish domination. Its clergy enjoyed here the same privileges, and were subject to the same duties and restrictions, as in Mexico. In the short period that the country was an appendage of the Mexican empire, no change took place in the relations between church and state. But soon after the establishment of the Central American confederation, and while the liberal democratic party was in power, efforts were made to do away with the privileges of the clergy, and to bring them under subjection to the civil authority.^[XXX-28] Pursuant to this policy several laws and measures were adopted against the clergy in general, and Archbishop Casaus in particular,

[XXX-29] which irritated the anti-liberals and roused the ire of the clericals, who at once gave utterance to the most fanatical language; and there were even liberal-minded men who took up the cause of the friars and abused in the press some of the wisest measures. [XXX-30] Serious troubles ensued; but during several years the legislative action was sustained, and still more radical resolutions were adopted. In 1829 the archbishop and a portion of his clergy being detected in plotting against the government were forthwith sent out of the country. Two months later the general congress declared religious orders at an end in the republic. [XXX-31]

RELIGIOUS
FREEDOM.

Finally, in 1832, religious freedom was proclaimed, [XXX-32] and it was moreover declared that the appointment to church dignities pertained to the nation, and should be made by the executive. [XXX-33] The church was thus brought low; but a reaction came ere long, and with the practical dissolution of the confederation, the serviles, then in power, undid what their opponents had done, and among other acts restored the privileges of the clergy, and also the monastic orders. [XXX-34] For all that, the church had been struck blows from which it never fully recovered. It is true that the masses still cherished a portion of their former religious bigotry, but from year to year it has been giving way to more liberal sentiments, and foreigners never encountered any difficulty to remain on the score of religion, so long as they respected the prejudices of the people. [XXX-35] The shameless immorality of the priests has tended to develop a feeling of indifference to religion, and to weaken the reverence formerly felt toward its ministers. Being shielded by the fuero eclesiástico from trial by the common courts, the clergy were practically exempt from deserved punishment, provided they were submissive to their superiors. [XXX-36] Superadded to which was the repeated interference of the clergy in political affairs, which had been so baneful that the people came to learn what was the proper orbit of church and state respectively.

Archbishop Casaus died November 10, 1845, aged eighty years.^[XXX-37] During his absence, the archdiocese of Guatemala was in charge of Francisco de Paula Pelaez, archbishop of Bostra in partibus infidelium and coadjutor with right of succession, who became Casaus' successor^[XXX-38] and held the office till his death, on the 25th of January, 1867.^[XXX-39] The next occupant of the see was Bernardo Piñol y Aycinena, late bishop of Nicaragua, from September 1868. The expulsion by the provisional government, in 1871, of the jesuits, together with the confiscation of their estates, and the apprehension of further action against the clergy, prompted the archbishop and many of his subjects to promote a counter-revolution; their plans failed, and the archbishop, together with Mariano Ortiz y Urruela, bishop of Teya in partibus infidelium, was expelled from the country; neither of them ever returned.^[XXX-40] The Guatemalans have been since without a pastor.

THE CHURCH
STRIPPED.

The government soon after concluded to adopt radical measures in order to crush the power of the clergy,^[XXX-41] which being accomplished, the government has since provided for the support of public worship and of the benevolent establishments. But freedom of conscience and of worship is fully recognized and protected by law.^[XXX-42]

Bishop Barranco occupied the see of Honduras from 1811 to 1819.^[XXX-43] It was then vacant until 1841, when Francisco de P. Campoy, a Spaniard, was made bishop. The tithes were restored for the support of the church; they amounted to a large sum, especially in Olancho. Campoy's death occurred on the 24th of September, 1849.^[XXX-44] The next incumbent was Hipólito Casiano Flores, appointed in 1854, and consecrated in 1855.

Since the abolition of the monastic orders by President Morazan in 1829 there have been no convents in Honduras.^[XXX-45] The clergy are mostly negroes, mulattoes or mestizos; their power for evil has been greatly

curtailed.^[XXX-46] The authorities and people are neither intolerant nor bigoted; on the contrary, they are very liberal in regard to religion. Freedom of worship exists by law, but the catholic is the religion of the state.^[XXX-47]

The aristocrats, who in the early days of the Central American confederation, opposed the creation of a bishopric in Salvador, concluded, in 1842, upon its creation with a bishop who should uphold their ideas. Jorge Viteri y Ungo went to Rome on this mission, and its object was granted.^[XXX-48] Viteri himself was made the first bishop^[XXX-49] and took possession of his office on the 25th of September, 1843, after swearing allegiance to the state of Salvador. His career has been detailed elsewhere, as well as the cause of his banishment. After his departure the pope, at the request of the Salvadoran government, made Tomás Miguel Pineda y Zaldaña, bishop of Antígora, in partibus infidelium, guardian of the diocese, and upon Viteri's translation to the see of Nicaragua, he became the real bishop.^[XXX-50] Zaldaña had troubles with the government, and left the diocese, but after the overthrow of President Gerardo Barrios returned, and ruled till his death on August 7, 1875.^[XXX-51] His successor, José Luis Cárcamo y Rodriguez is represented to be intolerant and hostile to the supremacy of civil over ecclesiastical authority. However, freedom of thought and of religion has existed in the country since 1872, and in 1881 marriage was declared to be a civil contract.

The diocese of Nicaragua has had, from its creation till the present time, 41 bishops, though only 37 have ruled over it.^[XXX-52] It was originally a suffragan of the archbishopric of Lima, but in 1743 was transferred to that of Guatemala. Since the decree of 1829, suppressing the monastic orders, there have been none in Nicaragua. There never was any nunnery.^[XXX-53]

The government allows for the support of the church a sum exceeding \$14,000 yearly.^[XXX-54]

CHURCH AND
STATE.

According to the national constitution, the Roman catholic is the state religion, but there is no law against other creeds. Treaties with foreign nations guarantee to their subjects or citizens the most perfect religious liberty, and worship in private houses, chapels, etc. They may also have their own cemeteries. [\[XXX-55\]](#) The relations between church and state are held under a concordat with the holy see of August 29, 1862. Since then there have been dissensions, but they were settled at Rome. [\[XXX-56\]](#) After several vain attempts, Costa Rica was finally made a separate bishopric by a bull of Pius IX., dated March 1, 1850, and since that time the see has been ruled by only two bishops. [\[XXX-57\]](#)

Under the concordat with the pope of October 2, 1882, the government of Costa Rica is bound to make the church an allowance of \$9,000 yearly, [\[XXX-58\]](#) but it has almost invariably paid more than double that sum. [\[XXX-59\]](#)

The concordat places the clergy under restrictions. There exists in Costa Rica but little bigotry, except in the lower people. In fact, the educated classes merely acquiesce in the pretensions and formulas of the church. [\[XXX-60\]](#) The most perfect freedom of religion exists, and those not professing the catholic are protected in the exercise of their own forms of worship. [\[XXX-61\]](#)

INQUISITION
ABOLISHED.

Harmony had prevailed for years in the relations of the state with the church, until Bishop Thiel and some of his priests undertook to assume a superiority over the government. Their attempts failed. President Fernandez expelled the bishop in August 1884, [\[XXX-62\]](#) and Vicar Antonio C. Zamora, who took charge of the diocese, restored friendly relations. After the death of President Fernandez, Bishop Thiel was recalled.

Before bringing the ecclesiastical subject to an end, I must add some remarks on church affairs of the Isthmus of Panamá. The diocese of the Isthmus has had, from its creation in 1514 till 1884, 45 bishops appointed. [\[XXX-63\]](#)

The inquisition was abolished in 1821. The bishop and his clergy were partly supported from the tithes, which at that time yielded about \$25,000 a year. The number of clergy was then 89 secular and 25 regular. [\[XXX-64\]](#) Panamá had been well provided with religious buildings, most of which have since been completely ruined. [\[XXX-65\]](#)

There existed from the earliest days of the republic an intimate alliance between the national government and the ecclesiastical authorities, and they aided one another. [\[XXX-66\]](#) The clergy were quite wealthy, possessing many valuable estates, and mortgages on almost all the landed property in Colombia. [\[XXX-67\]](#) In the course of centuries the church became, if not the sole owner, the co-owner of all estates. It also derived a large revenue from first-fruits, tithes, fees, etc.

The republican government from a very early time understood that the immense power wielded by the church was incompatible with the spirit of the age, and began gradually, almost year by year, to curtail it, and to loosen the ties formerly existing between the civil and ecclesiastical authorities. In the decade from 1851 to 1860, the church lost much of its political sway, but still held the powerful lever of its great wealth. It was afterward deprived of that wealth, and its much-abused power ceased. This occurred during the war begun in 1860 by the liberal party under General Mosquera against the conservatives, in which the clergy took sides with the latter. Mosquera triumphed; and his first measure was to destroy the power of the church. He issued decrees confiscating its whole property. [\[XXX-68\]](#) That was, of course, accompanied with banishments of bishops and priests. [\[XXX-69\]](#) But afterward, when affairs became more settled, they returned poor and

submissive to live on fees for the ministration of religious rites.[\[XXX-70\]](#)
From all accounts the people had not lost much by the absence of the priests. The clergy, taken all in all, did not deserve any consideration, and with a few honorable exceptions, do not deserve it now, for they have taken no pains to enlighten the masses, and their discipline and morals have not been and are not exemplary.

PANAMÁ CHURCH
AFFAIRS.

It was made unlawful to settle property on the church. Religious communities, such as friars, or monks, nuns, etc., were strictly forbidden.[\[XXX-71\]](#)
Church and state have been since that time independent of one another, but by law no person can become a bishop or the guardian of a diocese who is not a native citizen of the republic. All religious sects not indulging in immoral practices are recognized and protected by the laws.[\[XXX-72\]](#) In Panamá the cemeteries are in charge of a commission deriving its powers from the civil government.

CHAPTER XXXI.

JUDICIAL AND MILITARY.

1887.

JUDICIAL SYSTEM OF GUATEMALA—JURY TRIALS IN THE SEVERAL STATES—COURTS OF HONDURAS—
ABSENCE OF CODES IN THE REPUBLIC—DILATORY JUSTICE—IMPUNITY OF CRIME IN HONDURAS AND
NICARAGUA—SALVADOR'S JUDICIARY—DILATORY PROCEDURE—CODIFICATION OF LAWS IN NICARAGUA
—COSTA RICAN ADMINISTRATION—IMPROVED CODES—PANAMÁ COURTS—GOOD CODES—
PUNISHMENTS FOR CRIME IN THE SIX STATES—JAILS AND PENITENTIARIES—MILITARY SERVICE—
AVAILABLE FORCE OF EACH STATE—HOW ORGANIZED—NAVAL—EXPENDITURES—MILITARY SCHOOLS
—IMPROVEMENTS.

During the Spanish rule the administration of justice in Central America was vested in the real audiencia, composed of a regente, several oidores, a fiscal, and secretary, the governor, captain-general of the provinces, being ex-officio the president. The courts of first resort were filled by *alcaldes mayores*.^[XXXI-1]

One great step taken early in the nineteenth century was the abolition of torture of prisoners and witnesses.^[XXXI-2] The *córtes* had previously, in September 1813, decreed the abolishment of flogging for crime, or in houses of correction, seminaries, schools, etc.^[XXXI-3]

Soon after the establishment of the Central American confederation, the national constituent assembly organized a supreme court of justice for the state of Guatemala. Since the dissolution of the confederation, the judicial system of the several states has undergone many changes, which it would occupy too much space to detail here.^[XXXI-4] I will therefore confine

myself to the present organizations, giving such other particulars as are of general interest.

PRESENT
JUDICIAL SYSTEM.

In Guatemala the administration of justice is intrusted to a supreme court, four chambers or sections of second resort in the capital, and one court of second resort in Quezaltenango. [\[XXXI-5\]](#) There are also courts of first resort and lower courts for the adjudication of petty civil cases, or the correction of trivial offences. The jury system was formally established by the liberal government in 1872. [\[XXXI-6\]](#)

The legislature, recognizing the necessity of amending the existing codes, authorized the executive to issue laws conducive thereto, which was done. [\[XXXI-7\]](#) The government has caused the construction of two penitentiaries, one in the city of Guatemala, and the other in Quezaltenango. [\[XXXI-8\]](#)

Under the late organization justice is administered with fair regularity and promptness. [\[XXXI-9\]](#) During Barrios' rule an efficient police was organized in the capital.

In Honduras the absence of a penal code caused delays in the prosecution of criminals, and there being no good jails or prisons, their offences often went unwhipped of justice. [\[XXXI-10\]](#) Hence the numerous robbers and assassins then infesting the frontiers. However, we are assured that in the well-settled portions of the country life and property were secure. Capital punishment being abolished by the constitution, the severest punishment that could be inflicted was that of 500 blows with a heavy withe of the consistency of India-rubber. [\[XXXI-11\]](#)

The government in 1876 and succeeding years introduced reforms in the police department. The political disturbances, which had nullified the action of the courts, being now at an end, the supreme and lower courts

were at once reorganized, and permitted to exercise their functions. But the non-existence of suitable penal establishments, and the antiquated legislation, were powerful drawbacks. The minister-general was directed by the president to procure the best works on legislation, and the most noted codes on civil and criminal matters, as well as on mining, commerce, etc., with the view of placing the materials in the hands of competent persons, who were to form codes suited to the requirements of the country.^[XXXI-12] Such work demands careful study, and time to accomplish it. I am not aware that it is even commenced.

SALVADOR AND
NICARAGUA.

The laws of Salvador were codified in 1875.^[XXXI-13] The judiciary is vested in a supreme court, tribunals, juries,^[XXXI-14] and inferior judges established by the constitution and the laws.^[XXXI-15] The president in his message of 1878 to congress stated that the administration of justice was not yet as expeditious as it should be, owing chiefly to confusion in the laws, to obviate which he had appointed commissioners to study them, and introduce harmony in the legislation.^[XXXI-16] During the year 1878 the chamber of third resort issued 188 decisions, comprising final sentences and decrees in civil and criminal causes.^[XXXI-17]

The administration of justice in Nicaragua is vested in a supreme court and a variety of lower courts.^[XXXI-18] The supreme court is divided into two sections, one residing at Leon, and the other at Granada.^[XXXI-19] The alcalde of each town has cognizance of civil cases not exceeding \$100 in value, and of simple infractions of police ordinances. Cases of greater importance must go before the judge of first resort.^[XXXI-20]

The laws have never been collected and revised to form one body of legislation. The only ones published, to my knowledge, are the code of commerce, on March 12, 1869; the civil code, on March 31, 1871; that of civil procedure, in May 1871; and lastly, the laws on hacienda, in 1872.

[XXXI-21] The executive in his message of 1871 complained that the legislation was defective, and that it was almost impossible to terminate suits at law. [XXXI-22] In criminal causes the constitution enjoined the greatest precautions and restrictions for inflicting the death penalty, which was by shooting the prisoner. But that penalty was finally abolished on the 31st of March, 1873. [XXXI-23] Trial by jury for grave offences was established on the 31st of March, 1871. Punishments for other offences are, under the penal code of 1839, [XXXI-24] detention for a long or short term, with or without pecuniary fines, in chains or without them, and with hard labor, or none. Women sentenced for serious crime are made to work in the hospitals. Incurrible criminals of the male sex may be sentenced to receive a number of blows on the bare back, even as many as 500, as elsewhere. [XXXI-25]

The number of criminal prosecutions initiated from December 1, 1880, to Nov. 30, 1882, throughout the republic, were 1,976 of men and 161 of women, a total of 2,137. [XXXI-26]

COSTA RICA
JUDICIARY.

Costa Rica, as soon as she became a member of the Central American confederation, organized a judiciary of her own, consisting of a superior court, several tribunals of first resort in the provinces, and the alcaldes of towns, who were justices of the peace, with jurisdiction over petty affairs both civil and criminal. The supreme court has since undergone many changes, which would occupy too much space to detail. Its members have been sometimes appointed by the executive, and at others chosen by the people or the legislative body. [XXXI-27] At present, they are elective, the court being formed with the following personnel: president of the full court, presidents of the first and second sections, six justices, secretary, and the requisite clerks, etc. [XXXI-28] The administration of justice in the first instance is vested in courts sitting in each province, and having civil and criminal

jurisdiction, except in the province of San José, which has a civil and a criminal court, distinct from one another. [\[XXXI-29\]](#)

Costa Rica adopted in or about 1841 a civil and penal code, and likewise a code of procedure, with which she rid herself of the old cumbersome and expensive legislation. [\[XXXI-30\]](#) But nothing was done toward improving this work. Indeed, the administration of justice in Costa Rica is not what it should be, not for lack of honesty, ability, or laboriousness on the part of the courts, but because of the antiquated and inadequate civil legislation and mode of procedure. [\[XXXI-31\]](#)

The government, after obtaining the authorization of the national congress, appointed a commission to form new codes. [\[XXXI-32\]](#) No difficulties were apprehended in regard to the civil code; but the penal code, involving the manner of dealing with criminals, has required a more careful study, with the view of abandoning the old vindictive system. [\[XXXI-33\]](#)

Under the new penal code there were to be three separate presidios for different grades of criminals; but owing to scarcity of funds only two were established, one on Coco Island, and the other on San Lucas. [\[XXXI-34\]](#) But later, under an executive order of November 6, 1882, the prisoners on Coco were removed to San Lucas, and thus were the three presidios which should have been separate merged into one.

Under the latest constitution of the state of Panamá, the judiciary was comprised of the following: a superior court in the state capital; [\[XXXI-35\]](#) one district court for civil and one for criminal affairs in the same city; in the other departments the district judge has jurisdiction over civil and criminal causes. In each ward of the capital there is an alcalde, and in the country a regidor for each canton. [\[XXXI-36\]](#)

A penal code was adopted by the constituent assembly in July 1863, under which capital punishment was abolished, and the highest penalty

established was that of ten years in chains with hard labor. [\[XXXI-37\]](#) A contract was entered into with Justo Arosemena in 1868 to revise some codes and form others, [\[XXXI-38\]](#) and in general to codify all existing laws. The contract was fully carried out, and the state became possessed of a full and well-arranged system of legislation.

Of the criminal prosecutions initiated in 1876 only thirteen per centum resulted in convictions, which elicited from the government secretary some deprecatory remarks. [\[XXXI-39\]](#) The state had in 1880 an organized body of police of a little over forty men including the officers. The men are armed with a club, and on extraordinary occasions with carbines or rifles. [\[XXXI-40\]](#) The prison arrangements have nothing to commend them. [\[XXXI-41\]](#)

In regard to the military department of the Isthmus, hardly anything can be said with certainty. It might possibly, in an emergency, keep under arms 3,000 or 4,000 men for a short period. The force in active service has varied with circumstances from 400 or 500 to 75. [\[XXXI-42\]](#) The number of commissioned officers has ever been large, and not a few of them received pay without rendering any service worth mentioning. [\[XXXI-43\]](#) The general government of Colombia usually keeps a force of its own, varying between 150 and 500 men, with the double object of guarding the transit from interruption, and of controlling the political situation.

The available military force of Costa Rica for active service is close upon 15,000 men, to which must be added a reserve of nearly 6,000, the national guard of about 3,500, and the field and company officers numbering 2,485. The garrisons of San José, Cartago, Heredia, Alajuela, Liberia, and Puntarenas in 1883 aggregated less than 500, including officers, and 85 musicians, a reduction of 128 from the preceding year. [\[XXXI-44\]](#) The garrison formerly kept at the president's house was

suppressed. Schools exist for instructing the militia officers. A good supply of arms, ammunition, and other war material is kept in serviceable condition. [\[XXXI-45\]](#) Costa Rica formerly had a navy of three steam vessels and one schooner. The latter is all she has now, besides two small steamers used for the protection of the revenue.

ARMY AND NAVY.

In Nicaragua the army continued in the biennial period of 1881-2, as formerly organized, in three divisions of 3,200 men each, which might easily be increased, but that number was deemed sufficient to cover the garrisons. [\[XXXI-46\]](#) The republic is provided with artillery and other arms, as well as with the requisite ammunition. Invalided men, and widows and orphans of the soldiers, receive pensions. [\[XXXI-47\]](#)

Nicaragua may in the course of time become a maritime nation. At present there is no Nicaraguan navy. The naval service is reduced to the mere police of the ports of San Juan del Norte, San Juan del Sur, and Corinto.

Honduras has but a small number of men under arms in time of peace, but all male citizens from 18 to 50 years must do military service in time of war. [\[XXXI-48\]](#)

The men do not make a fine display, but will march from 50 to 60 miles a day with no other food than a plantain and a little cheese, and when well officered, will fight desperately.

The government has had it in contemplation to introduce some order in the service, and to develop a sentiment of respect and appreciation of the military profession; but I am not aware that any change for the better has taken place. Honduras has forts at Omoa and Trujillo, the same which existed in the Spanish domination; they could offer resistance to scarcely any force bombarding them from the sea.

The government of Salvador, in May 1879, ordered a complete reorganization of the army, fixing its force at 20,000 men in four divisions, [\[XXXI-49\]](#) whose commander-in-chief should be the president of the republic, [\[XXXI-50\]](#) who allowed himself four aides-de-camp of the rank of colonel, four of the grade of lieutenant-colonel, and eight others from captains to sub-lieutenants. The term of military service was fixed at six years, each man being credited with double time for active service. The cost of the force doing garrison duty, which in 1876 had been fixed at 1,427 men—exclusive of the general staff, other officers of all grades, and two music bands—was computed at \$31,788 per month. [\[XXXI-51\]](#)

An act of congress of January 1877 suppressed pensions of officials on retiring from service, and extended the rule to military men having means of their own for support. The retired pension was to be paid only to destitute ones, and in no case was it to exceed fifty dollars a month. [\[XXXI-52\]](#) A new military code was promulgated on the 1st of January, 1880. [\[XXXI-53\]](#)

In Guatemala military service is required of every male citizen of the ages of 18 to 50, excepting Indians, priests, 'students,' and those who pay fifty dollars a year for exemption. [\[XXXI-54\]](#) The strength of the army is estimated at 16,000, but there is no doubt that a larger force can be raised when needed. The following are the grades of commissioned officers in the service: generals of division and of brigade, [\[XXXI-55\]](#) colonel, lieutenant-colonel, first and second comandantes, captain, lieutenant, and sub-lieutenant. [\[XXXI-56\]](#)

GUATEMALA
AFFAIRS.

The government of President Barrios labored assiduously in providing the country with a well-disciplined militia, having competent officers, as well as with the other necessary elements of a perfectly organized army. The military school has already furnished useful officers. [\[XXXI-57\]](#) The ranks are filled without dragging men from their usual vocations; garrisons are

frequently relieved, the active service being distributed among the several departments. Citizens have since looked on the profession as one of honor and glory, instead of shunning it as in former times.[\[XXXI-58\]](#) A well-provided hospital was established in the capital, which went into operation on March 15, 1881.[\[XXXI-59\]](#)

The expenditures of the war department for the fiscal year 1883 were \$1,031,501.[\[XXXI-60\]](#)

CHAPTER XXXII.

INDUSTRIAL PROGRESS.

1800-1887.

EARLY AGRICULTURE—PROTECTION OF THE INDUSTRY—GREAT PROGRESS ATTAINED—COMMUNAL LANDS—AGRICULTURAL WEALTH—DECAY OF COCHINEAL—DEVELOPMENT OF OTHER STAPLES—INDIGO, COFFEE, SUGAR, CACAO, AND TOBACCO—FOOD AND OTHER PRODUCTS—PRECIOUS WOODS AND MEDICINAL PLANTS—LIVE-STOCK—VALUE OF ANNUAL PRODUCTION IN EACH STATE—NATURAL PRODUCTS OF PANAMÁ—NEGLECT OF AGRICULTURE—MINERAL WEALTH—YIELD OF PRECIOUS METALS—MINING IN HONDURAS, SALVADOR, AND NICARAGUA—DEPOSITS OF GUATEMALA AND COSTA RICA—MINTS—FORMER YIELD OF PANAMÁ—MINING NEGLECTED ON THE ISTHMUS—INCIPIENCY OF MANUFACTURES—PRODUCTS FOR DOMESTIC USE.

In the early part of the present century cattle were the mainstay of the large estates in Central America; but the great staple was indigo. [\[XXXII-1\]](#) Sugar and raspadura were also important crops, but the most valuable was that of Indian corn. Some tobacco was also grown. The cacao plantations had ceased to exist. The cultivation of jiquilite, cochineal, and vanilla had also declined. [\[XXXII-2\]](#)

GUATEMALA PLANTATIONS.

Guatemala passed, from time to time, laws for the protection and development of agriculture, [\[XXXII-3\]](#) and yet it made no notable progress down to the end of the seventh decade. [\[XXXII-4\]](#) But with the establishment of a more liberal system, a great change soon became manifest. The cultivation of cochineal having become unproductive, [\[XXXII-5\]](#) the government turned its attention to the development of coffee, [\[XXXII-6\]](#) until it became the first source of wealth

of the country. In Antigua Guatemala coffee, and in Amatitlan sugar, have taken the place of cochineal. [\[XXXII-7\]](#) Every possible encouragement has been given to other products, such as sugar, wheat, tobacco, cinchona, jiquilite, spices, and grapes, with good results in some of them, and prospects of the same in others. [\[XXXII-8\]](#) I give in note statistical data on the country's productions. [\[XXXII-9\]](#)

Honduras produces all the great staples of the tropics. The land on both coasts is adapted for cotton. [\[XXXII-10\]](#) A soft, slender, and juicy sugar-cane is indigenous; two and even three crops are taken annually. This cane requires replanting only once in ten or twelve years. Excellent coffee may be had in abundance if cultivated. Cochineal and grapes were obtained in former years. [\[XXXII-11\]](#) The nopal is indigenous and abundant in Comayagua. The tobacco of Honduras has a well-deserved reputation. Indigo is produced in quantities for commercial purposes. Food staples are varied and abundant. The country has also a wealth of precious woods, and indeed, of every variety common to the tropics. Of fruit-trees, there are many indigenous. Sarsaparilla, of which there is none superior, is found in abundance, particularly on the northern and eastern coasts. Vanilla grows in the same districts. [\[XXXII-12\]](#) Agriculture is progressing. The cultivation of fruit-trees on the northern coast has drawn the attention of capitalists. Coffee, indigo, sugar-cane, and tobacco are the chief staples. Neat cattle were the most obvious source of wealth, the interior country being favorable for their increase. [\[XXXII-13\]](#)

Salvador, Nicaragua, and Costa Rica enjoy the same advantages as the other two states already described, and have within the last thirty years developed agriculture in a remarkable degree. The great products of the first named are indigo, coffee, maize, sugar, and rice. A variety of other articles contribute to increase the country's wealth. [\[XXXII-14\]](#) The old system of communal lands prevails throughout Central America.

The chief staples of Nicaragua are cacao, sugar, indigo, tobacco, cotton, coffee, wheat, and other cereals, and plantains and fruits in great profusion. [\[XXXII-15\]](#) The departments of Rivas, Granada, Leon, and Chinandega supply trade with the most valuable staples. The government has endeavored to promote agriculture, particularly the cultivation of coffee and tobacco. [\[XXXII-16\]](#) Among other productions mention must be made of the inexhaustible quantities of medicinal plants, and valuable cabinet and dye woods. [\[XXXII-17\]](#) Cattle are another source of wealth, but cattle-raising has its drawbacks. [\[XXXII-18\]](#)

COSTA RICA AND
PANAMÁ.

Costa Rica produces indigo and sugar of excellent quality, and some of the best cacao in the Matina Valley. [\[XXXII-19\]](#) Wheat, potatoes, and other vegetables, apples, and other fruits of the temperate zone are also found; but the republic's chief staple and source of wealth is coffee. [\[XXXII-20\]](#) The plantations are small and looked to with the utmost care. The largest one of Costa Rica would be considered small in Guatemala; but on the other hand, men and women find occupation, and there is no actual poverty. The production of coffee has steadily increased, except when rains have been scanty or excessive, or locusts have caused devastation in the fields. [\[XXXII-21\]](#)

Fiscal monopolies have kept back, in a great measure, the development of the cultivation of sugar and tobacco. [\[XXXII-22\]](#) The country is well supplied with livestock of all kinds, and is also rich in valuable cabinet and dye woods as well as in medicinal plants.

The soil of the Isthmus of Panamá is well adapted for all tropical productions. The country only needs an industrious population and peace to develop its immense natural wealth. The chief productions are Indian corn, sugar-cane, rice, a great variety of fruits, vegetables, and nutritious roots, such as yam, yucca, etc. Agriculture has been limited to the supply of

edibles, and of late years to the shipment of some fruit to the United States. The cultivation of sugar and coffee might be made profitable, though requiring a large outlay, but for being dependent on an uncertain supply of labor. In 1862 and 1863, cotton culture was undertaken in the interior with fair success, and in 1864 had spread all over the country.^[XXXII-23] The plant is perennial, and yet, with this and other advantages, the natives have not become awake to the importance of it. Cacao is another article that might be grown to advantage. The government has tried to promote the culture of coffee and cacao.^[XXXII-24]

Coffee and sugar are cultivated, but not in sufficient quantity to meet even the home demand. I append in a note an official account of agricultural production for 1882, though not giving it much value.^[XXXII-25]

VERAGUA AND
CHIRIQUÍ.

Veragua and Chiriquí have good plains for raising neat cattle, goats, pigs, horses, asses, and mules.^[XXXII-26] Poultry, and a great variety of wild animals exist in abundance. The seas on the two coasts are well stocked with fish.

The Isthmus has plenty of timber of the best kinds and of enormous size, found in South Darien, and in all the mountains on both coasts, and in the islands; also cabinet and dye woods, and medicinal plants.^[XXXII-27]

Of the five states of Central America, Honduras appears to be the most plentifully supplied with mineral wealth. Mount Merendon was long celebrated for its silver and gold mines. Until about thirty or forty years ago, mining was the most prominent interest in the state, but wars and political disturbances caused the abandonment of the mines, and the works fell into decay, after which there was neither enterprise, capital, nor skill to restore them. The owners of the property afterward became owners of immense grazing estates. Some mines were continued in operation, however, on a small scale, and in a rude manner.^[XXXII-28] In 1860 and for

some preceding years the bullion export of Honduras amounted to about \$400,000 annually, most of it being gold collected by the Indians from shallow washings.

MINERALS AND
METALS.

The development of the mining wealth of Honduras is engaging the attention of foreign capitalists. [\[XXXII-29\]](#) Several companies have been organized in the United States, France, and elsewhere to work the mines in the departments of Tegucigalpa, Santa Bárbara, Yuscaran, and Juticalpa. [\[XXXII-30\]](#)

Guatemala has not been noted for mines. However, the district in the Alotepec mountains was rich toward the latter part of the eighteenth century, yielding large quantities of silver. [\[XXXII-31\]](#) The river sands of the department of Chiquimula are auriferous, and the Indians wash them for gold. [\[XXXII-32\]](#) Recently several deposits have been reported to the government, of lead, silver, gold, cinnabar, coal, kaoline, marble, etc. [\[XXXII-33\]](#)

Nicaragua possesses an immense wealth in minerals, which has not been developed as yet, except on a small scale, and generally, without any intelligence. Gold and silver and several useful metals are found in great abundance. [\[XXXII-34\]](#) There are also deposits of gypsum, marble, alabaster, lime, saltpetre, etc. Sulphur is sometimes found pure. The mining laws favor the industry by either natives or foreigners. A mint has existed in the republic for several years. [\[XXXII-35\]](#)

In Salvador there can be no mines of precious metals out of that portion of the state which is geologically dependent on the mountain system of Honduras. The silver mines of Tabanco, Encuentros, Sociedad, Loma Larga, Divisaderos, Capetilla, Santa Rosalía, etc., in the department of San Miguel, on the north-eastern part, and bordering on Honduras, have had a wide celebrity. Some of them were extensively worked, and with great profit. The

group called Minas de Tabanco, holding the ore in combination with galena and sulphuret of zinc, are easily worked. [\[XXXII-36\]](#)

Salvador has rich mines of iron near Santa Ana, and of brown coal throughout the valley of the Lempa, and in the valleys of some of its tributaries, over a region of 100 miles long by 20 miles broad. [\[XXXII-37\]](#)

Costa Rica has been less favored than the other states in mining wealth. Rich gold mines are supposed to exist near the border of Panamá. [\[XXXII-38\]](#) In the Aguate Mountains and at cuesta del Jocote gold mines were worked by foreigners with a moderate profit. It is stated that the country also possesses mines of silver, copper, nickel, zinc, iron, lead, and coal. [\[XXXII-39\]](#) The republic keeps a well-organized mint, the improvements having been first introduced by Chief Mora; since then none of his successors has neglected that establishment.

YIELD OF
PRECIOUS
METALS.

The yield of gold and silver of the five states of Central America for the years 1804-1868 is estimated at \$13,800,000 of the former, and \$7,400,000 of the latter, making a total of \$21,200,000. [\[XXXII-40\]](#) The yearly supply since has been roughly calculated at \$300,000 in gold, and \$200,000 in silver. [\[XXXII-41\]](#)

The Isthmus is reputed to have a great mineral wealth. The mines of Darien have been renowned from the earliest times after the conquest. Vasco Nuñez de Balboa speaks enthusiastically of them. [\[XXXII-42\]](#) They were not worked till the second half of the seventeenth century. The richest of them were those of Santa Cruz de Cana, where of the Espíritu Santo was the chief. [\[XXXII-43\]](#) In 1708 the king's fifths were equivalent to \$216,500. The mines had attained a high state of prosperity, when an end was put thereto by the Indian revolt in 1726 and 1727. [\[XXXII-44\]](#) Since then, though the mines have been granted from time to time to several parties, nothing

has been done worth mentioning. [\[XXXII-45\]](#) It is believed that the yield of these mines had reached 18,000 to 20,000 pounds of gold yearly. [\[XXXII-46\]](#)

According to a report addressed to the Colombian secretary of the treasury, and published in the Diario Oficial at Bogotá, the whole production of gold and silver in New Granada or Colombia, from 1537 to 1800 was \$414,000,000, and from 1801 to 1882, it was \$216,000,000; total, \$630,000,000, [\[XXXII-47\]](#) of which amount \$74,000,000 is credited to the Isthmus of Panamá, four millions of them being the yield of the present century. Cinnabar and manganese are reported to exist on the Isthmus, and coal in Chiriquí, Bocas del Toro, and the bottom of Colon harbor. [\[XXXII-48\]](#)

MANUFACTURES.

Manufacturers are as yet in their infancy in Central America. [\[XXXII-49\]](#) Since the separation from Spain, every inducement has been offered to develop them, and more especially after the change of governmental régime of 1871. [\[XXXII-50\]](#) In later times we find in Quezaltenango good factories for spinning and weaving textiles. In Chiquimula they manufacture palm-leaf hats, mats, and maguey-fibre baskets. In Vera Paz the natives make excellent hammocks, bags, rope, etc. But the fact stands officially acknowledged that Guatemala has not made a sufficient advancement to enable her to export any manufactures, or even to compete in her own markets with the better and cheaper productions of other countries. [\[XXXII-51\]](#)

In Honduras manufactures are at a low ebb, owing to the condition of affairs before and after her independence, not less than to the composition of her people.

There are in Salvador several factories at which cotton and silk rebozos are made, which meet with easy sale in all the Central American markets. [\[XXXII-52\]](#) Hammocks, earthen-ware, straw hats, cigarettes, sweetmeats, etc., are manufactured. Rum is made, as in Guatemala, from sugar-cane.

In Nicaragua mechanics are scarce. Manufacturing is yet in the incipient state. [\[XXXII-53\]](#) However, the Indians make excellent pottery and other articles for home consumption. [\[XXXII-54\]](#)

In Costa Rica there is hardly any domestic manufacturing. [\[XXXII-55\]](#) Efforts are made by the government to develop the industry. [\[XXXII-56\]](#)

As regards Panamá, it may be said that manufactures are almost unknown, save such as are imported. [\[XXXII-57\]](#)

CHAPTER XXXIII.

COMMERCE AND FINANCE.

1801-1887.

EARLY STATE OF TRADE—CONTINUED STAGNATION AFTER INDEPENDENCE—STEAM ON THE COASTS—ITS BENEFICIAL EFFECTS—VARIETY OF STAPLES—PORTS OF ENTRY AND TARIFFS—IMPORTS AND EXPORTS—FAIRS—ACCESSORY TRANSIT COMPANY—INTERNAL NAVIGATION—HIGHWAYS—MONEY—BANKING—POSTAL SERVICE—PANAMÁ RAILWAY TRAFFIC—LOCAL TRADE OF THE ISTHMUS—PEARL FISHERY—COLONIAL REVENUE IN FINANCES OF THE FEDERATION—SOURCES OF REVENUE OF EACH STATE—THEIR RECEIPTS AND EXPENDITURES—FOREIGN AND INTERNAL DEBTS.

During the first years of the present century, toward the end of the Spanish domination, after many restrictions to trade had been removed, and Central America had obtained leave to traffic direct with Mexico and other Spanish American colonies, there were only 30 or 35 mercantile houses throughout the country. Merchandise to the value of one million dollars was yearly imported from Spain through the bay of Honduras. The returns were chiefly in indigo, coin, and bullion. There was some trade also with Peru and Cuba. [\[XXXIII-1\]](#) Smuggling was carried on quite freely, even the officers of the revenue cutters taking a hand in it. The large amount of goods thus imported caused a drainage of specie. [\[XXXIII-2\]](#)

FOREIGN TRADE
DATA.

FAIRS AND
IMMIGRATION.

After the separation from Spain, there was little commerce for many years, [\[XXXIII-3\]](#) until the construction of the railway across the Isthmus, and the establishment of a line of steamers making periodical visits at the several Central American ports on the

Pacific coast, afforded facilities for the development of both agriculture and foreign trade, [\[XXXIII-4\]](#) which under liberal legislation has since assumed large proportions, commerce being free with all friendly powers. In a note [\[XXXIII-5\]](#) are given copious data on the foreign trade of each of the five republics, showing an invariable balance in their favor, which steadily increased their wealth. As to internal trade, there is very little to say. The several republics have regularly established fairs, which are attended by those wishing to purchase national or foreign products or manufactures. [\[XXXIII-6\]](#)

The republics, having special facilities for internal navigation, endeavored to make them available. Guatemala granted privileges with the view of having a steam line established between the fluvial port of Panzós and Livingston, and also on Lake Amatitlan. In Nicaragua, under a contract entered into on the 22d of September, 1849, and amended April 11, 1850, between the government and an American company, transit was formally established between the two oceans, by way of Lake Nicaragua. [\[XXXIII-7\]](#) The American Accessory Transit Company, as it was called, went into active operation and carried thousands of passengers to and from California. [\[XXXIII-8\]](#) The first interoceanic trip was made in August 1852, and the service continued successfully until February 18, 1856, when it was suddenly closed, and the company's charter was revoked by the government of Rivas, at the dictation of William Walker. [\[XXXIII-9\]](#) The transit continued for a time under Walker's control, mainly to furnish his army with recruits, until the steamers fell into the hands of his enemies. [\[XXXIII-10\]](#) Navigation on San Juan River and Granada Lake was regulated in June 1861. In 1868 a convention was concluded between Nicaragua and Costa Rica for the navigation of the rivers San Juan and Colorado. In 1870 a contract was made with Hollenbeck and his associates for steam navigation on Lake Granada, and it was inaugurated in 1872. [\[XXXIII-11\]](#)

The national highways of Costa Rica are not all in the best condition, which is due to the destructive force of the winter rains. The government, however, endeavors to render them serviceable. In Nicaragua, the public roads, prior to the construction of railways, were only fit for mule travel, except at short distances from towns, which wagons could traverse. In the rainy season they were impassable, owing either to mud or swollen streams. The same is to be said respecting those of Honduras. Much has been successfully accomplished in late years in the improvement of roads and construction of bridges. Salvador appropriated in 1876 funds for macadamizing the public highways. Guatemala is well provided with roads and bridges, and derives a considerable revenue from tolls to keep them in repair, and to construct new ones. [\[XXXIII-12\]](#) Railways and telegraphs are treated of elsewhere.

The monetary unit of Costa Rica is the peso of one hundred centavos, with 25 grammes of silver of the standard of 0.900. The government mint coins gold, silver, and copper. [\[XXXIII-13\]](#)

Gold coin became very scarce in Nicaragua. There was no copper, and the smallest of silver was the half-real. Gold coins of the United States, Great Britain, and France, and the silver money of those countries, Switzerland, Belgium, Mexico, Peru, and Spain, were current for their full value. [\[XXXIII-14\]](#) In Salvador nearly all foreign coins were received for their face value. In Honduras the currency was much vitiated by the introduction of the moneda provisional—copper slightly alloyed with silver—of the denominations of quarter and half dollars, of which probably \$1,500,000, nominal value, went into circulation since 1839. [\[XXXIII-15\]](#) Besides this coin there has been in circulation the cut money of the old kingdom, a portion of the Honduras government's own coinage, and that of the federal republic; all of which, together with English and American coins, make up the bulk of money in circulation. [\[XXXIII-16\]](#) In a decree of September 21, 1870, the government of Guatemala endeavored to introduce in its coinage the

decimal system, recognizing the peso as the unit.^[XXXIII-17] Another law of November 15, 1878, provided for the coinage of gold pieces of 1, 2, 5, 10, and 20 pesos, and silver pieces of 8, 4, and 2 reales, and half and quarter reales.^[XXXIII-18] Foreign coins circulated at the rates fixed by the government.^[XXXIII-19] There have been banks in most of the states of Central America for a number of years, several being now in successful operation.^[XXXIII-20]

BANKS AND MAILS

The states of Central America, including the Isthmus of Panamá, maintain communications by mail, not only with one another, but likewise with other nations of Europe and America, and through them with the rest of the world.^[XXXIII-21] The several republics use their best endeavors to perfect the internal mail service.^[XXXIII-22] They pay subsidies to steamship companies for bringing and carrying their mails, and are members of the Universal Postal Union.

ISTHMUS TRAFFIC.

The discovery of gold in California, as is well known, restored life to the Isthmus of Panamá. In December 1849, the first emigrants went across, bound for the new El Dorado. In 1850 there was a large travel,^[XXXIII-23] notwithstanding innumerable difficulties and discomforts. After the construction of the railway the traffic over it still increased; most of it was in transitu, but the local trade was not insignificant.^[XXXIII-24] The note at foot contains data mainly procured from official sources on the amount of transportation from the earliest days of the opening of the road to a recent date.^[XXXIII-25] It will be noticed that in the latter part of the sixth decade of this century the transit traffic through the Isthmus became greatly diminished. This was mainly due to the construction of the overland railway to the Pacific in the United States, and to the establishment of a British line of large and fleet steamers running

from Europe to ports in the south Pacific through the straits of Magellan, affording advantages over the Panamá railroad transportation.

The transportation of passengers and merchandise to and from the Isthmus has been mainly effected by steamship lines—American and British during the first fourteen or fifteen years, to which were subsequently added those of a French company; and still later those of a German one.

[\[XXXIII-26\]](#)

GOLD AND THE
ISTHMUS CANAL.

The Isthmus traffic, from the earliest days of Spanish occupation of South America, was carried on by pack-mules at excessive rates. [\[XXXIII-27\]](#) In the early part of this century, the condition of trade being unsatisfactory, reforms were loudly called for by both Spaniards and Americans. [\[XXXIII-28\]](#) A brisk contraband trade was constantly going on. [\[XXXIII-29\]](#) After the war of independence, the traffic between Spain and South America ceased. In 1825-30 trade was at a low ebb. [\[XXXIII-30\]](#) With the view of fostering it, the New Granadan government, in 1847, decreed the suppression of custom-houses at Panamá, Portobello, and Chagres. [\[XXXIII-31\]](#) I refer elsewhere to the great improvement wrought by the influx of travellers consequent upon the discovery of gold in California. The amount of business done in providing conveyances, accommodations, and supplies of all kinds for passengers was very large, and money became quite abundant. The opening of the railway in 1855 paralyzed the local trade. [\[XXXIII-32\]](#)

The local trade of the Isthmus in 1865 is set down to have been \$350,000 to \$400,000 of imports, and between \$500,000 and \$600,000 of exports. [\[XXXIII-33\]](#) With a few exceptions, the chief trade in foreign goods is carried on by foreigners, most of whom deal in almost every kind of merchandise; the United States furnishing the greater part of the provisions, and other commodities. With the works on the canal, and the large increase of population, the local trade became greatly augmented. Weights and

measures and money were based on the French decimal system.^[XXXIII-34] All kinds of money were current. American coin generally commanded a high premium. Bank notes or paper currency of any kind could be easily passed.^[XXXIII-35] Small silver coin was generally scarce, and there was no copper currency. There were no banks of issue, though some merchants did a banking business. Bills of exchange on England usually commanded a premium. Those on France were about par. The canal company sells exchange, receiving the existing currency in payment.

The Pearl Islands, comprising sixteen islands and numerous rocks, had a population of about 2,000 souls, about 700 of whom were engaged six months of the year in pearl fishing, which yielded about 1,000 tons of pearl shells valued at \$70 per ton, and pearls enough to raise the value of both to \$300,000 yearly. This industry had almost ceased to exist in 1873, owing to recklessness. Fishing for pearl oysters was forbidden by law on the 7th of May, 1872, for the term of five years, in order to allow the mollusk time to renew its vitality, which was in danger of destruction; but so far the measure has had no visibly good effects, and the fishery has not been revived. Pearl fishing was carried on with success by the Indians of Costa Rica on the coast of Nicoya, the shell being an established article of export.^[XXXIII-36] Pearl oysters are also found near the south of Caroon Island, but yield so few pearls as to make it unprofitable to search for them.^[XXXIII-37]

REVENUE AND DEBT.

As to finances prior to the separation from the mother country, and the disruption of the Central American confederacy, it can scarcely be said that the country had any.

A sketch of the revenue of the so-called reino de Guatemala, made in 1818 for the five years 1817-1821,^[XXXIII-38] shows the various sources. The ordinary imposts yielded 462,944 pesos, and the special 256,975 pesos, making an aggregate of 719,919 pesos.^[XXXIII-39] The scale of expenditure to the day of independence had been kept down; financial wants being few,

the needed resources were easily collected, and did not weigh heavily on the people. The ruin of the treasury began in 1821, but was not felt till later, during the period Central America was harnessed to the Mexican empire. [\[XXXIII-40\]](#)

On the 2d of July, 1822, the congress of the Provincias Unidas de Centro América decreed the recognition of the public debt. In December 1824, the government, duly authorized by congress, contracted a loan with Barclay, Herring, Richardson, and Company, of London, [\[XXXIII-41\]](#) recognizing an indebtedness of \$7,142,857, and the receipt of a net sum of about \$5,000,000. [\[XXXIII-42\]](#) The banking house agreed to advance \$200,000 at the end of two months, and \$150,000 at the end of seven and nine respectively. To make the story short, the federal government received only \$328,316, notwithstanding which its debt had risen in the early part of 1830 to one million dollars. [\[XXXIII-43\]](#) After the dissolution of the Central American union, the several states assumed a share of the foreign debt, and adopted measures to provide their governments with means to cover their expenses. Most of them depended chiefly on receipts from customs, and the monopoly of spirituous liquors and tobacco, stamped paper, excise, and a few other sources. [\[XXXIII-44\]](#)

The gross receipts for the fiscal year 1883, including a balance of \$104,327 on hand from the preceding year, were \$6,728,607. [\[XXXIII-45\]](#) The expenditures amounted to \$6,613,607, of which \$3,027,511 was the actual expenses of administration, and \$3,586,096 went toward extinguishing the internal debt. [\[XXXIII-46\]](#)

GUATEMALA INDEBTEDNESS.

The indebtedness of Guatemala at the end of 1883 was as follows: Internal, including interest, \$4,257,631. It is understood that on the 30th of September, 1885, it was estimated at \$6,138,000. [\[XXXIII-47\]](#) The foreign debt resulted from the loan made in March 1869, in London, for the nominal sum of £500,000 at 6

per cent annually, and 3 per cent for a sinking fund.[\[XXXIII-48\]](#) The government remitted to London from 1870 to 1876, on account of that debt, for interest and sinking fund, \$1,377,000, which was somewhat more than it had received. No further payments were made after October 1876. Consequently, at the end of 1885 the nation was owing, on account of that loan, £468,600 of principal, and £276,474 for interest, aggregating £745,074, which with exchange at 20 per cent make \$4,470,444. Moreover, there is due by Guatemala, on account of her share of the federal indebtedness—she having assumed £100,000 of it—a very large sum. The debt had been reduced in 1873 to £70,600 to which must be added the dividends accrued to the present time.[\[XXXIII-49\]](#)

The national assembly voted on the 5th of July, 1886, for the fiscal year from July 1, 1886, to June 30, 1887, appropriations for expenditures of administration, aggregating \$2,252,471, and afterward granted the extra sum of \$326,800 for contingent expenses.[\[XXXIII-50\]](#) No provision was made as regards the foreign debt.

The revenue of Honduras in 1886 has been estimated at about two and a half million dollars, being considerably in excess of the expenditures.[\[XXXIII-51\]](#)

Honduras has a foreign and a home debt. The latter is partly consolidated and the rest floating. The consolidated, which was one million dollars, had been in 1883 reduced to \$885,000. All treasury notes had been cancelled. The floating debt, amounting in 1880 to \$578,609, had been reduced in 1883 to \$244,694.[\[XXXIII-52\]](#) The indebtedness to British subjects, including the portion of the old federal debt which Honduras assumed, was finally extinguished by the payment of \$50,000 in 1882, and the country was freed from the burden long weighing on the custom-house at Trujillo. The rest of the foreign debt, amounting in 1876 to \$29,950,540, is held in London and Paris, having been issued at high rates of interest and at a low valuation. Since that time the accumulated interest has never been paid.

[\[XXXIII-53\]](#) It is unknown what portion of the bonds issued has been negotiated. The actual indebtedness may fall short of the above amount after a thorough investigation of the financial affairs connected with the railroad.

RECEIPTS AND
EXPENDITURES.

The revenue receipts of Salvador from all sources, according to President Zaldívar's messages of 1883 and 1884, were, for 1882, \$4,549,209, and for 1883, \$4,061,020. The expenditures as stated by the same authority were \$4,416,454 in 1882, and \$4,001,654 in 1883. [\[XXXIII-54\]](#) In 1866 the budget presented by the executive to congress estimated the receipts at \$2,211,613, and the expenditures at \$2,716,505, leaving a deficit of \$501,869.

Salvador had in 1853 a foreign debt not far from \$325,000. [\[XXXIII-55\]](#) Between 1861 and 1863 the government made an arrangement for the foreign debt, giving bonds to the amount of \$405,260 to cover principal and interest. They were paid in due time, and since then the republic has kept itself free from foreign indebtedness. Her internal debt, consolidated at the end of 1882, was \$1,589,861, and became slightly increased in 1883. [\[XXXIII-56\]](#) In June 1885 it was \$7,147,359.

The financial condition of Nicaragua at the present time is quite easy. Her revenue has been steadily on the increase for several years past, except when interrupted by political disturbances, such as that of 1875, which caused a considerable diminution. The receipts from all sources in the biennial term of 1883-4 were \$3,238,363, an excess of \$359,426 over the two preceding years. [\[XXXIII-57\]](#) The expenditures in the biennial term of 1881-2 were \$3,240,940, as itemized below. [\[XXXIII-58\]](#)

NICARAGUA AND
COSTA RICA.

At the end of 1880 Nicaragua's share of the old federal indebtedness to British creditors—£31,510, [\[XXXIII-59\]](#) as per adjustment made in London on the 27th of March, 1874—had been reduced to £4,170 15s. 6d., which

remained unpaid because the holders had failed to produce their claims. Since then the balance was further reduced to £4,011 15s. 6d., and the funds were on hand to pay it off on demand. This was the sum total of the republic's foreign liability. At the end of 1882 the internal debt was \$920,258, of which \$644,218 were subsequently paid, leaving a balance due of \$328,667; adding thereto balances of special accounts, the whole debt of the republic at the end of 1884 was \$908,707; but as the amount of consolidated bonds was being met, the whole indebtedness would really be \$802,310. [\[XXXIII-60\]](#)

Costa Rica's financial condition is anything but an easy one. The receipts of the treasury for the fiscal year 1883-4 amounted to \$1,586,561. [\[XXXIII-61\]](#) The receipts for the fiscal years 1884-5, and 1885-6, were estimated at about \$2,559,866 and \$2,936,756, respectively. [\[XXXIII-62\]](#) The expenditures for the fiscal years 1882-3, and 1883-4 were respectively \$2,796,468 and \$1,985,426; the former leaving a deficit of \$1,246,448, and the latter of \$398,865. Congress voted for expenses of the fiscal year 1885-6, \$2,936,756, and for 1886-7, \$2,607,613. [\[XXXIII-63\]](#)

FOREIGN
INDEBTEDNESS.

The following statement exhibits the financial condition of the republic at the end of 1882, as represented by the secretary of the treasury. It will be well to state here that until 1871 Costa Rica was free from foreign debt, her proportion of the old federal indebtedness in London having been paid off at an early day of her independent life. [\[XXXIII-64\]](#) The government owed, on the 30th of April, 1871, \$92,878; adding thereto the disbursements of eleven years—1871-82—\$30,251,284, and \$2,110,905 paid the railway, in bills of exchange on the national agent in London, and not included in the aforesaid outlay, we have an aggregate of \$32,455,067; and deducting therefrom the revenue of the same eleven years, a deficit results of \$6,524,516, which is made up of \$1,454,086, excess of expenditure over receipts at the end of 1882, and \$5,070,430, the equivalent in Costa Rican

money of £895,221 3s. 11d., net proceeds of loans negotiated in London at 6 and 7 per cent. [\[XXXIII-65\]](#) However, the council of bondholders formed in 1883 the following statement of Costa Rica's foreign debt, namely: outstanding of six per cent loan of 1871, £941,200; overdue interest, £564,720, making £1,505,920. Outstanding of seven per cent loan of 1872, £1,460,200; overdue interest, £1,073,175 10s., making £2,553,273 10s. Grand total, £4,039,193 10s. The home debt was set down in 1885 at \$519,000. [\[XXXIII-66\]](#)

In Panamá the receipts of the treasury from all sources in 1812, a few years previous to the separation from Spain, this nation being then at war with her American colonies, were \$746,241. [\[XXXIII-67\]](#) In 1827, six years after the independence, the receipts were \$241,683, [\[XXXIII-68\]](#) and the expenditures \$238,929. Under the law suppressing custom-houses in the ports of the Isthmus, the revenue of the province in 1847 became reduced \$77,880. The amount appropriated by the provincial legislature in October 1849, for expenses of the fiscal year 1840-59, was \$51,220. [\[XXXIII-69\]](#)

After the organization of the Isthmus as a state of the Colombian confederation, there being no receipts from customs, the chief portion of the expenses has been met with a tax assessed on merchants and shop-keepers, estimated on the amount of business done by each, the legislative assembly fixing annually the sum required for the next year's expenditures, and the proportion of it to be covered by the commercial tax. The state received \$50,000 out of the annual subvention of \$250,000 paid by the railway company to the Colombian government. Other sources of revenue have been the taxes levied on steamship agencies, consumption, slaughter of cattle, ice, distilleries, and several others which in the aggregate are not insignificant.

DEBT OF PANAMÁ

The republic of Colombia being on the point of changing her organization, Panamá, consequent upon recent political events, was at the end of 1885 under a military government,

the chief of which, exercising his extraordinary powers, ordered the continuance after January 1, 1886, of the appropriations that had been decreed for 1885, with a few modifications.[\[XXXIII-70\]](#) The financial condition of the state on the 30th of June, 1878, was an indebtedness of \$214,317.[\[XXXIII-71\]](#)

CHAPTER XXXIV.

INTEROCEANIC COMMUNICATION.

1801-1887.

ANCIENT IDEAS ON THE NORTH-WEST PASSAGE—FROM PERU TO LA PLATA—CAPE HORN DISCOVERED—ARCTIC REGIONS—MCCLURE'S SUCCESSFUL VOYAGE—CROZIER'S DISCOVERY—FRANKLIN'S ATTEMPTS—FINDING BY NORDENSKIÖLD OF THE NORTH-EAST PASSAGE—PROJECTS TO UNITE THE ATLANTIC AND PACIFIC OCEANS ACROSS THE ISTHMUSES—PLANS ABOUT TEHUANTEPEC—EXPLORATIONS FOR A SHIP-CANAL ROUTE IN NICARAGUA, PANAMÁ, AND DARIEN—THE NICARAGUA ACCESSORY TRANSIT COMPANY—CONSTRUCTION OF THE PANAMÁ RAILWAY, AND ITS GREAT BENEFITS—FURTHER EFFORTS FOR A CANAL—ORGANIZATION OF A FRENCH COMPANY—A SHIP-CANAL UNDER CONSTRUCTION ACROSS THE ISTHMUS OF PANAMÁ—DIFFICULTIES AND EXPECTATIONS—CENTRAL AMERICAN RAILROADS AND TELEGRAPHS—SUBMARINE CABLES.

No sooner had lands been discovered to the westward of Europe than the minds of cosmographers became fixed in the idea of short routes to India in that direction; [\[XXXIV-1\]](#) nor would they abandon it until long after both shores of the western continent had been explored from the Arctic sea to Cape Horn. [\[XXXIV-2\]](#)

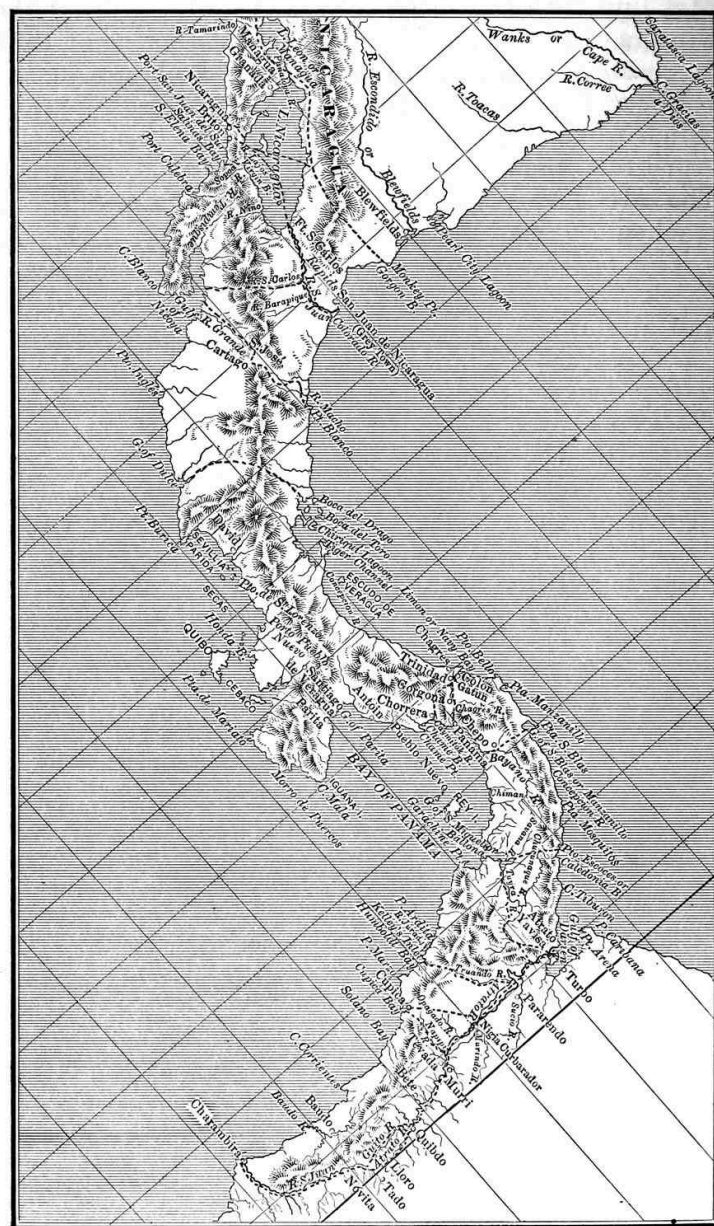
EARLY EXPLORATIONS.

I have elsewhere presented a full account of explorations by land and sea to establish communications between the Atlantic and Pacific oceans prior to the opening of the present century. [\[XXXIV-3\]](#) The most important of the earlier discoveries, since Magalhaes' time, was that of the open polar sea south of Cape Horn, which was named by the Dutch navigators Le Maire and Van Schouten. [\[XXXIV-4\]](#) The north-west passage, so long the object of search, was at last found in 1851 by an English

expedition. The discovery was effected by Robert Le Mesurier McClure, who, in command of the *Investigator*, sailed, together with the *Enterprise* under Richard Collinson, from England in 1850. Before the close of the year, McClure passed Point Barrow, pushed along the continent, doubled the south end of Banks Island, and sailed through Prince of Wales' Strait, where he wintered near Melville Sound. In 1851, the west side of the peninsular part of Wollaston Island to Prince Albert's Sound was surveyed. By finding the strait connecting the continental channel with Melville Sound, McClure became the discoverer of the north-west passage, and was the first navigator to pass from Bering Strait to Baffin Bay.^[XXXIV-5] Yet he gave to Captain Crozier, second in command of Franklin's expedition, the credit of prior discovery. McClure with the *Investigator* was shut in during the winters of 1851-2, and 1852-3. In the spring of 1853 he resolved to abandon the ship and seek Mackenzie River and Lancaster Sound in two parties, a journey which would have been disastrous. At this moment, April 6th, Lieutenant Pym of the *Resolute* appeared.^[XXXIV-6] The McClure party were taken to the *Resolute*, and reached England in 1854.

NORTH-EAST
PASSAGE.

The north-east passage was discovered by Adolf Erick Nordenskiöld in 1879, after 326 years from the first attempt by Hugh Willoughby in 1553.^[XXXIV-7]



INTEROCEANIC COMMUNICATION.

The necessity of shorter communication between the two oceans becoming more evident from day to day, with the increase of traffic with the western coast of America, with China, and with the numerous islands of the Pacific, various projects were entertained to establish such communication

either by canal or railway. At Tehuantepec, Honduras, Nicaragua, and the isthmus of Panamá were formed the most favorable conditions for a forced or artificial transit. [\[XXXIV-8\]](#)

TEHUANTEPEC
ISTHMUS.

The breadth of the isthmus of Tehuantepec between the bays of Campeche and Tehuantepec at the narrowest point is 130 miles. It is drained by the rivers Coatzacoalcos and Tehuantepec, the former running northward, discharging its waters into the first-named bay, and extending over three fourths of the width of this isthmus; the latter flowing into the bay of Tehuantepec. There are several lakes and lagoons. At one time it was proposed to cut a canal across this isthmus, and to improve the navigation of the Coatzacoalcos, to which end surveys were made. [\[XXXIV-9\]](#) But no action having been taken toward constructing a canal by the parties to whom franchises had been given, the scheme of a railroad across this section has been also contemplated, [\[XXXIV-10\]](#) and finally a grant was made to James B. Eads, to construct a ship railway between the two gulfs, capable of having transported over it the largest ships with their cargoes. [\[XXXIV-11\]](#) The scheme has been declared by Eads, and by other engineers of high repute in Europe and America, to be practicable. His opponents deride it. He applied, without success, to the United States government for assistance. [\[XXXIV-12\]](#)

NICARAGUA
ISTHMUS.

The idea of uniting the two oceans, by means of a canal across the isthmus of Nicaragua, occupied the attention of the Spanish court from a very early day after the conquest to the last years of its occupation of the country. [\[XXXIV-13\]](#) Since the separation of Central America from the crown, the canal scheme has ever been uppermost in the minds of her rulers and thinking men, and many scientific engineers and capitalists of Europe and America have taken a deep interest therein. But for divers reasons nothing was accomplished toward establishing an adequate interoceanic communication, in any form, down to 1849. [\[XXXIV-14\]](#) This year a new arrangement was made with

Cornelius Vanderbilt and Joseph L. White of New York, in which the government of the United States, through its representative, E. George Squier, became concerned. This arrangement gave rise to complications with Great Britain, which were finally settled by the Clayton-Bulwer treaty to perpetually guarantee the neutrality of the canal to be constructed. The contractors failed to carry out their agreement as regarded the construction of a canal, but established the Accessory Transit Company, and by means of steamers on the two oceans, and on the river San Juan and Lake Nicaragua, rendered valuable service in the transportation of passengers. The matter was given in detail, in connection with the relations of that company with the Nicaraguan government, including its history from the date of the foundation till 1869, when it ceased to exist. However, their engineer, O. Childs, made a survey of the route for a canal in 1851, and recommended one from the mouth of Lajas River to Port Brito, traversing the Rio Grande Valley.^[XXXIV-15] Since that time many schemes have been contemplated, and contracts entered into, but none of them have given the desired result.^[XXXIV-16]

ACROSS
MOSQUITIA.

I have yet to mention Pim's scheme, advanced in 1853, of building a railway from Punta Mico on the Atlantic to San Miguelito, on the eastern shore of the lake, traversing Mosquitia. A company was formed, but the project was soon found to be impracticable.^[XXXIV-17]

No efforts have been spared ever since by Nicaragua and American citizens to bring about the accomplishment of the long-expected canal, under the impression that it is the most desirable, feasible, and least expensive route. The assistance of the United States government has been solicited, and treaties made to afford facilities, but the American congress has thus far refused to do anything, except send commissions to explore the several lines, and their reports seem to be favorable.^[XXXIV-18] The last treaty concluded between the two governments with reference to a canal was rejected by the United States senate. The last survey made under the

auspices of the American government was that of Engineer Menocal, of the United States navy, who, with other officers, visited Nicaragua in January 1885. His report was presented in November of that year. The plan of this commission had been at first to convert the river San Juan above its junction with the Sarapiquí into an extension of the lake by constructing a dam 74 feet high, but it was found impracticable. The proposed route extends from San Juan del Norte to Brito. The total length is 169.8 miles, of which 38.98 miles will be excavated canal, and 130.82 navigation by Lake Nicaragua, the river San Juan, the basin of the river San Francisco, and seven locks. Lake Nicaragua will be connected with the Pacific by a canal, and with the Atlantic by slackwater navigation in the river San Juan, by a short section of canal from the San Juan to the basin of the San Francisco, by navigation through this basin, and by a canal thence to the Caribbean Sea. The route has been divided into three divisions, the western, eastern, and middle. [\[XXXIV-19\]](#) The cost was carefully estimated, including a contingent of 25 per cent, at \$64,043,697. De Lesseps is of opinion, however, that a canal with locks would be inadequate to pass the traffic that will frequent it, and would suffer from uncertainty of sufficient water to supply the lockage and evaporation. [\[XXXIV-20\]](#)

PANAMÁ
ISTHMUS.

One of the four routes suggested by Antonio Galvao to the king of Spain, for cutting a canal to join the two oceans, was the Isthmus of Panamá. [\[XXXIV-21\]](#) Soon after New Granada threw off the Spanish yoke, several surveys of Panamá and Darien were made, and canal projects recommended; [\[XXXIV-22\]](#) two of them, deemed the most important, were that of Lloyd's to build a railroad from Panamá or La Chorrera to the Trinidad River, a tributary of the Chagres; and that of a sluiced canal recommended in 1843 by Garella and Courtines, who studied the Isthmus under a commission of the French government. And there were other projects. [\[XXXIV-23\]](#)

The attention of the United States government was directed to the subject of interoceanic routes as early as 1825. In 1835 the executive was requested by the senate to enter into negotiations with the Central American states and New Granada, conducive to treaties for the protection of Americans who might attempt opening the communication between the two oceans. A treaty was made by the United States with New Granada on the 12th of December, 1846, under which the latter guaranteed to the former "the right of way or transit across the Isthmus of Panamá, upon any modes of communication that now exist, or that may be hereafter constructed." The United States government on its part guaranteed to New Granada the neutrality of the Isthmus, and the rights of sovereignty and property over its territory. [\[XXXIV-24\]](#) At last an American company, being stimulated by the great traffic across the Isthmus, took up the matter of a railway. [\[XXXIV-25\]](#)

PANAMÁ
RAILWAY.

The termini resolved on were Colon on the Atlantic, and on the Pacific, a little to the eastward of the city of Panamá, quite clear of the suburbs. The work was begun in January 1850, and finished on the 28th of January, 1855. Its total length is 47 miles, 3,020 feet. The line is a single one, but has four very commodious sidings; namely, Gatun, 7½ miles from Colon; one near Barbacoas, 22 miles; one at Matachin, 30 miles; and one at the summit, 37 miles. There are stations at every four miles. The undertaking was a bold one, and was successfully carried out under the able and energetic superintendence of George M. Totten. [\[XXXIV-26\]](#) The actual cost, as per construction account, was eight million dollars. The road has been improved from year to year. Articles of the coarsest and heaviest description, as well as ordinary merchandise, have been constantly conveyed over it. The road began to yield some income since 1852, when it had reached Barbacoas. I give in a note some statistics on receipts and expenditures. [\[XXXIV-27\]](#) The company from the beginning of its operations had a line of telegraph between Panamá and Colon. In 1881 the railway was sold to the company organized to construct a canal for \$17,500,000, being

at the rate of \$250 per share. Adding other items, and interest on annual instalments, the share-holders received about twenty million dollars. [\[XXXIV-28\]](#)

A survey made by United States officers in 1866, through Chiriquí, showed that it was practicable to build a railway through the cordillera. The harbors of Chiriquí and Sheperd on the Atlantic, and of Golfito in Golfo Dulce, were favorably reported upon by Commodore F. Engle. [\[XXXIV-29\]](#)

VARIOUS
SCHEMES.

But the idea of an interoceanic canal was ever present. [\[XXXIV-30\]](#) Nothing was practically done, until the whole subject was discussed in 1875 at the congress of geographical sciences held in Paris, and a company was organized under General Türr for effecting the requisite explorations. Lucien N. Bonaparte Wyse, a lieutenant of the French navy, assisted by other engineers, was sent out to the Isthmus. The exploring commission effected their work thoroughly, and the section from Colon to Panamá was given the preference. [\[XXXIV-31\]](#) The Colombian government granted on the 18th of May, 1878, to the Civil International Interoceanic Association, residing in Paris, the exclusive privilege for ninety-nine years of constructing a canal between the two oceans, at the same time establishing the neutrality of the ports at the termini, and of the canal itself. [\[XXXIV-32\]](#)

De Lesseps, of Suez Canal fame, undertook in 1879 the task of constructing the canal, and the first meeting of the company, now called Compagnie Universal du Canal Interocéanique de Panama, took place in 1881. It was calculated that six hundred million francs, or be it \$120,000,000, would cover the expense of construction and completion. One of the company's first acts was to establish in New York a branch board of directors, and another was to purchase the Panamá railway. [\[XXXIV-33\]](#) The works were commenced in October 1881. [\[XXXIV-34\]](#) The canal in course of construction follows the route of the railway, though keeping closer to the

bed of the Chagres, which it is to cross again and again; on the Pacific side it will descend the Rio Grande Valley, and continue seaward to the island of Perico, a total length of fifty-four miles. [\[XXXIV-35\]](#)

DIFFICULTIES TO
OVERCOME.

The works have been prosecuted with more or less vigor, by the use of powerful dredges, until the capital became exhausted, and their operations declined for many months, seeming to confirm predictions of failure. [\[XXXIV-36\]](#) However that may be, De Lesseps and his friends are confident that the opening of the canal will become an accomplished fact within eight years from the time of commencement. [\[XXXIV-37\]](#) There can be no doubt that a large portion of the original capital was wasted, and if rumor is not at fault much was misappropriated. But public confidence in De Lesseps remains unshaken in France, and he has been able to obtain by subscription abundant funds to continue the work, [\[XXXIV-38\]](#) and it is now being vigorously pushed. His calculation is that there will be business for the canal to the extent of 7,250,000 tons, yielding 6 or 7 per cent on 2,000 million francs, or 108,000,000 francs, equivalent to \$21,600,000.

This is not the place in which to speak of the several northern railways across the continent. The Central American states—exclusive of Panamá, which has had that benefit since 1855—have made some progress in late years toward establishing railway communication between the two seas. Guatemala has one line from Port San José, on the Pacific, to the capital, [\[XXXIV-39\]](#) and another from Port Champerico, also on the Pacific, to Retalhuleu. [\[XXXIV-40\]](#)

CENTRAL
AMERICAN
RAILWAYS.

Measures had likewise been taken to communicate the capital by railroads with the northern sea, contemplating at the same time to build another line from Coban to the Polochic River. However, these projects, so far as I know, have been, since President Barrios' death, in

abeyance. The Spanish court was repeatedly urged to open communications between Puerto Caballos and the bay of Fonseca. [\[XXXIV-41\]](#) Traffic on mule-back was carried on between both seas in colonial times; but what we know of the isthmus of Honduras is derived from the surveys made by the British Honduras Interoceanic Railway Company, and reported by their agent, E. G. Squier. As a practicable route for a ship canal, Honduras is out of the question; but the construction of a railroad was begun between Puerto Caballos or Cortés, on the Caribbean Sea, and Amapala in the bay of Fonseca, [\[XXXIV-42\]](#) through the valley of the Goascoran and Humuya rivers—232 miles. The road was graded, and a narrow-gauge track was built from Port Cortés to San Pedro, of about 37 miles in length. The work was suspended in 1871, and abandoned in 1873. Civil disturbances and lack of means have prevented its resumption. Several franchises have been granted in later years for continuing it; but nothing of a practical nature has resulted. [\[XXXIV-43\]](#)

Salvador has no territory on the Atlantic slope. She has a railroad between San Miguel and Port La Union; another line is being built from Port Acajutla to the heart of the coffee region of Santa Ana. It is possible that in the future the republic may be placed in communication, by railway, with the Atlantic, through the territory of her neighbors.

In Nicaragua the line between Corinto and Chinandega, and hence to Leon, was in operation in 1881-2. The work steadily progressed. The western section was opened to public service in 1884, connecting it with the steam-ship line on the lake. Thus was Managua, the capital, placed in rapid and cheap communication by steam with Corinto, the chief port of the republic. The whole line from Momotombo to Corinto was yielding six and four fifths per cent on the capital invested. In the eastern section the work was going on rapidly at the end of 1884, and 20 miles to Masaya would soon be finished. The government contemplated to have a direct railway line from Villa de la Paz to Managua, thus establishing a continuous communication between Managua and Granada. [\[XXXIV-44\]](#)

Costa Rica, thus far, has three lines, or rather divisions or sections; namely, the Central, running between San Jose and the interior provinces, via Cartago, Heredia, Alajuela, Tres Rios, and San Joaquin; the Atlantic, from Limon to the interior, which is the route through which most of the country's foreign trade is carried on; and the Pacific which runs from Puntarenas to Esparta. [\[XXXIV-45\]](#)

TELEGRAPH
LINES.

The five Central American republics are intersected by telegraph lines belonging to their respective governments, and communicating their chief towns with one another within themselves, and with the sister republics. [\[XXXIV-46\]](#) The isthmus of Panamá has a communication by submarine cable with Central America and Mexico at the port of La Libertad and Acapulco. The cities of Panamá and Colon are in direct communication by wire. The Isthmus is further connected by cable, on the Pacific, with Peru, via Buenaventura, which also places it in telegraphic communication with Bogotá and the rest of Colombia. A cable to Jamaica affords another connection, via Cuba, with the United States and Europe. [\[XXXIV-47\]](#)

The question of interoceanic communication by ship-canal across the isthmuses of Central America occupying, as it does, general attention, I have concluded to append hereto information on the subject by several competent authorities; namely, the British explorer, Dr Edward Cullen, and E. George Squier.

IGNORANCE RESPECTING DARIEN.—It is a very singular circumstance that the coast of Darien, the first settled in America (Santa Maria having been founded in 1509, and Acla in Caledonia Bay in 1514), within eighteen days' steaming from England, close also to such frequented ports as Chagres, Carthagena, and Kingston, Jamaica, should be at the present day as unknown as the coasts of Patagonia or of New Guinea, and that the vast advantages of this tract of country,

for a canal, should have escaped the penetration of the great Humboldt, who, after having examined all the maps in the Depósito Hidrográfico of Madrid, appears to suggest the Chuquanaqua. He says: 'On the Pacific coast, also, the deep Golfo de San Miguel, into which falls the Tuyra with its tributary, the Chuchunque, runs far into the Isthmus; the river Chuchunque, too, in the upper part of its course, runs within sixteen geographical miles of the Antillean shore of the Isthmus, westward of Cape Tiburon.' *Views of Nature*, Potsdam, June 1849, p. 432 of Bohn's translation.

The Atrato route labors under the disadvantage of a bad harbor, on the Pacific side, Cupica being of very small extent, and open to the s. w.; and the Atrato has a bar with only five feet of water on it, while the rise of tide in the Gulf of Darien is only two feet.

The Chagres, or Limon Bay and Panama route, surveyed in 1829 by Col Lloyd and M. Falmarc, under a commission from the Liberator, Simon Bolívar, and subsequently by M. Garella, has such bad harbors that the idea of a canal by that line has been totally abandoned.

The route from Chepo mouth to Mandinga Bay, proposed by Mr Evan Hopkins, [\[XXXIV-48\]](#) who attempted to survey it in 1847, for the New Granada government, although the narrowest line across the Isthmus, being only twenty-seven miles across from Chepo to Carti, has the disadvantages of bad coasts, a very high cordillera, of from 2,000 to 6,000 feet elevation, and a large population of Indians.

The bar at the mouth of Chepo River is quite dry at low water, as is also a sand bank which extends several miles out into the bay of Panamá; the part of the Atlantic coast on the other side is beset with reefs, shoals, and kays, and is dangerous of approach.

Capt Fitzroy, R. N., in his *Considerations upon the Great Isthmus of Central America*, suggests a line from the upper course of the Tuyra to the Atrato, or the coast of Darien above its mouth, as an

improvement of the route proposed by me; but this would be nearly twice the distance of the Port Escocés, and gulf of San Miguel route; there would be the mountain of Chacargun or the Sierra de Maly to cross, and should the canal open into the Atrato, there would be the very formidable obstacle of the bar to remove, while of the coast above the Atrato mouth, the *Columbian Navigator* says: 'All this coast from Tarena Kays to Cape Tiburon is high and precipitous, with deep water off it; and it is very wild in the season of the breezes. It is very advisable, therefore, at these seasons, to shun it.' Any route, however, in this direction, would be included in the privilege granted, on the 1st of June, 1852, by the New Granada government, to Edward Cullen, Charles Fox, John Henderson, and Thomas Brassey, for cutting a canal from Port Escocés to the gulf of San Miguel, which gives power to select any place from the west mouth of the Atrato to Punta Mosquitos, for the Atlantic entrance of the canal.

DISCOVERY OF
THE SAVANA
RIVER.

DISCOVERY OF THE SAVANA RIVER AND THE ROUTE FOR THE SHIP-CANAL. I imagine that the river Savana was not delineated in the maps which Humboldt saw. [\[XXXIV-49\]](#) Such, indeed, was the case with the map which I had on my first journey into Darien in 1849, so that I was totally ignorant of its existence until I actually saw it, after entering Boca Chica, when, finding the great depth of water at its mouth, and that it flowed almost directly from the north, I became convinced that I had at last found the object of my search, viz., a feasible route to the Atlantic, and thereupon immediately ascended it, and crossed from Cañasas to the sea-shore at Port Escocés and back, and subsequently, in 1850 and also in 1851, crossed and recrossed, at several times and by several tracks, the route from the Savana to Port Escocés and Caledonia Bay, notching the barks of the trees as I went along, with a *machete* or cutlass, always alone and unaided, and always in the season of the heaviest rains. I had previously examined, on my way from Panamá, the mouths of Chepo, Chiman, Congo, and

several other rivers, but found them all obstructed by bars and sand banks, and impracticable for a ship passage, so that upon seeing the Savana, I had not the least hesitation in deciding that that must be the future route for interoceanic communication for ships.

THE DARIEN CANAL ROUTE.—Port Escocés, or Scotch Harbor, and the bay of Caledonia, on the Atlantic coast of the Isthmus of Darien, present an extent of six nautical miles, from s. e. to n. w., of safe anchorage in all winds. These harbors are situated between Carreto Bay and the channel of Sassardi, and are 140 miles e. s. e. of Limon Bay, and twenty-one miles w. n. w. of Cape Tiburon, the n. w. boundary of the Gulf of Darien. Port Escocés extends to the s. e. to lat. $8^{\circ} 50'$ and long. $77^{\circ} 41'$; and Golden Island, or Isla de Oro, or Santa Catalina, which forms the n. w. boundary of Caledonia Bay, is in lat. $8^{\circ} 54' 40''$, and long. $77^{\circ} 45' 30''$.

The channel of Sassardi, also, extending from Caledonia Bay n. w. five miles to the Fronton, or point of Sassardi, is sheltered from the winds and seas of both seasons, and has good depth of water.

Twenty-two miles s. w. of Port Escocés is the site of the old Spanish settlement of Fuerte del Príncipe, on the river Savana, established in 1785, and abandoned in 1790. From thence the river Savana has nearly a s. by e. course for fourteen miles to its mouth, which opens into the river Tuyra, Santa Maria, or Rio Grande del Darien, three miles above Boca Chica and Boca Grande, the two mouths by which the latter discharges itself into the Gulf of San Miguel on the Pacific.

Thus the distance from the Atlantic to the Pacific Ocean, by the route from Port Escocés or Caledonia Bay, to the gulf of San Miguel, by way of the river Savana, would be thirty-nine miles. In a direct line, from Port Escocés to the gulf, the distance is thirty-three miles.

In *Considerations on the Great Isthmus of Central America*, read before the Royal Geographical Society of London, on the 11th and 25th Nov., 1850, Captain Fitzroy, R. N., says: 'Any route that could be made available between San Miguel Gulf and Caledonia Bay, or the Gulf of Darien or Choco, would have the advantage of excellent harbors at each end, and a great rise of tide in one of them (San Miguel). The river Savana is recommended by Dr Cullen from personal examination, as being more navigable (for canoes^[XXXIV-50]), and approaching nearer the north coast than the Chuquanaqua does; though this does not appear in the Spanish maps. From the head of the Savana, a ravine, about three leagues in length, extends to Caledonia Bay, and there (Dr Cullen says, having passed through it) *he* thinks a canal might be cut with less difficulty than elsewhere, if it were not for the opposition of the natives. He also speaks of the Indians transporting their canoes across at this ravine, and of the comparative healthiness of this part of the Isthmus.'

The whole work to be done, in order to make a ship-canal communication between the Atlantic and Pacific oceans by this route, would be to cut from Príncipe or from Lara mouth to Port Escocés or Caledonia Bay, a distance of from twenty-two to twenty-five miles, of which there would be but three or four miles of deep cutting.

The canal, to be on a scale of grandeur commensurate with its important uses, should be cut sufficiently deep to allow the tide of the Pacific to flow right through it, across to the Atlantic; so that ships bound from the Pacific to the Atlantic would pass with the flood, and those from the Atlantic to the Pacific with the ebb tide of the latter. Such was the plan recommended in my report to Lord Palmerston. By such a canal—that is, one entirely without locks—the transit from sea to sea could be effected in six hours, or one tide.^[XXXIV-51]

For the engineering details, and estimates of the cost of the work, I beg to refer to the valuable report of Mr. Lionel Gisborne, C. E., who,

with his assistant, Mr. Forde, was commissioned, last April, by Messrs Fox, Henderson, and Brassey, to survey this route, which they found to be perfectly feasible for a ship-canal communication, and fully as eligible as I had represented it.

PASSAGE FOR THE
PACIFIC TIDE.

It is needless to say that, under the auspices of Messrs. Fox, Henderson, and Brassey, who, with that clear discernment and prompt decision, which have placed them in the elevated position which they occupy, adopted this route in December 1851, after a careful examination of my statements, the great work of an interoceanic canal is sure, ere long, to be accomplished.

I trust that an attentive consideration of the advantages of this route—viz., its shortness, the excellence of its harbors, the low elevation of the land, the absence of bars at the Savana and Tuyra mouths, the depth of water and great rise of tide in the former, its directness of course and freedom from obstructions, the healthiness of the adjacent country, the exemption of the coasts from northers and hurricanes, the feasibility of cutting a canal without locks, and the absence of engineering difficulties—will fully justify me in asserting it to be the shortest, the most direct, safe, and expeditious, and in every way the most eligible route for intermarine communication for large ships.

An examination of the physical aspect of the country from Port Escocés to the Savana—presenting, as it does, but a single ridge of low elevation, and this broken by gorges, ravines, and valleys, and grooved by rivers and streams, with a champaign country extending from its base on each side—will prove the feasibility of making the canal entirely without locks, a superiority which this route possesses over others, which all present insurmountable physical obstacles to the construction of such a canal.

In fact, a glance at the map ought to convince the most sceptical that nature has unmistakably marked out this space for the junction of the two oceans, and the breaking of the continuity of North and South America; indeed, so narrow is the line of division, that it would almost appear as if the two seas did once meet here.

DETAILS OF THE ROUTE PROPOSED.—I shall now enter into a more detailed description of this route, which I discovered in 1849, and proposed for a ship-canal communication between the Atlantic and Pacific oceans in the *Panamá Echo* of February 8, 1850, in the *Daily News and Mining Journal* of May 1850; [\[XXXIV-52\]](#) in a paper presented to the Royal Geographical Society, and read at the Edinburgh meeting of the British Association in July 1850; and in a report to Lord Palmerston, of January 15, 1851.

PORT ESCOCÉS.—Of Port Escocés, Caledonia Bay, and the channel of Sassardi, the *Columbian Navigator*, vol. 3, p. 218, says:

'Port Escocés, or Caledonia, lat. $8^{\circ} 51'$, long. $77^{\circ} 44'$, is a noble harbor; very safe, and so extensive that a thousand sail of vessels may enter it.

'Punta Escocés is the s. e. point of Caledonia Bay, the greater islet of Santa Catalina, or de Oro (gold), being the n. w. Between point and point the distance is four miles, and the points lie n. w. and s. e. ($N. 40^{\circ} W.$, and $S. 40^{\circ} E.$), from each other; and in respect to this line the bay falls in one mile and two thirds. In the s. e. part of this bay is Puerto Escocés (or Scottish Harbor), which extends inward two miles in that direction, and forms good shelter. There are various shoals in it, which are represented in the particular plan of the harbor, by which plan any vessel may run in, for the depths are five, six, seven, and eight fathoms of water over a bottom of sand.

'Between Piedras Islet to the north, the west point of Aglatomate River to the south, and that of San Fulgencio to the S. W., is formed

the Ensenada, or bay of Caledonia, and the channel of Sassardi.

CALEDONIA BAY.—'The Ensenada, or cove of Caledonia, is, strictly speaking, formed by the points already mentioned, which lie with each other N. N. W. $\frac{3}{4}$ W., and S. S. E. $\frac{3}{4}$ E. (N. 25° W., and S. 25° E.), one mile distant. This bay is clean, and has good deep water; the greater part of its coast is a beach, and near the middle of it disembogues the river Aglaseniqua. The point of San Fulgencio is salient, scarped, and clean, and it also forms an indent with little depth of water, bordered by mangroves and various kays at its western part.

THE CHANNEL OF SASSARDI.—'Between San Fulgencio point, the great Oro Island, Piedras Islet, and the Mangrove Kays, which are to the west of them, the channel of Sassardi is formed; the S. E. entrance to this channel is off and on, with four cables' length in extent, from edge to edge, and with from nine to twelve fathoms depth on oaze; and farther in, from eight to ten fathoms; as also between the turn of the bank off Piedras Islet, and the bay of Caledonia, the depth is from seven to fifteen fathoms; and the piece of sea which intervenes between this bay and the Puerto Escocés is of a good depth of water; but at a short mile S. E. by E. $\frac{1}{2}$ E. (S. 55° E.), from Piedras Islet the sea breaks when the breeze blows fresh.'

From its entrance the channel of Sassardi extends N. W. five miles.

The engineer has here, then, a wide scope for selecting a locality for the Atlantic mouth of the canal, which may thus open anywhere from the S. E. end of Port Escocés to the N. W. entrance of the Channel of Sassardi, an extent of eleven nautic. miles.

Along a great extent of Port Escocés and Caledonia Bay, vessels can lie so close in shore that no boats would be necessary in the taking in or discharging cargo; the same great advantage also presents itself at several points in the channel of Sassardi.

SOURCES OF
FRESH WATER.

Good fresh water may be obtained in abundance from any of the numerous streams which fall into these harbors, particularly from the Aglaseniqua or Aglatomate.

Port Escocés is entirely uninhabited, nor is there any settlement in and of it; at Caledonia, near the mouth of the Aglaseniqua, there are five huts, inhabited by a few Indians of the Tule tribe, and about two leagues up the river is another small settlement; this, however, is at a considerable distance westward of the projected line of canal.

From the sea-shore a plain extends for nearly two miles to the base of a ridge of hills, which runs parallel to the coast, and whose highest summit is about 350 feet. This ridge is not quite continuous and unbroken, but is divided by transverse valleys, through which the Aglaseniqua, Aglatomate, and other rivers have their course, and whose highest elevations do not exceed 150 feet.

The base of this ridge is only two miles in width; and from its south side a level plain extends for thirteen miles to a point on the river Savana, called Cañasas, which is about twenty miles above its mouth.

The river Savana, at Cañasas, has a depth of six feet of water, but is obstructed by ledges of a slate, called *pizarra*, or *killes*, for four miles, down to the mouth of La Villa, up to which the tide reaches. At Cañasas, there is a forest of a species of bamboo, so dense as to be impenetrable; and above it there is a fall of two feet, when the river is low, but after rains this entirely disappears. The first fall, in ascending the river, occurs at Caobano, a little above La Villa.

From La Villa, where there is a depth of ten or twelve feet, the river is perfectly free from obstructions down to Príncipe.

At Fuerte del Príncipe, two miles below La Villa, there is a single ledge of slate, visible only in a very low state of the river, which has

here a depth of three fathoms, and a rise of tide of six feet. The banks of the river are elevated about ten feet above the level of the water, and are quite free from swamp. The site of the old Spanish settlement is here indicated by a patch of very dense scrubby bush, without high trees, on the west bank of the river; but the only remains to be met with are some fragments of *botijas*, or water-jars. Príncipe is in lat. 8° 34', and long. 77° 56', by my observations; it is only two or three hours' journey from the mouth of the river.

The Savana River, called by the Indians Chaparti, is very direct in its course, from Príncipe to its mouth, and free from sinuosities, *playas*, deep elbows, shoals, rocks, snags, or other obstructions.

Its banks, elevated several feet above the level of the water, are quite free from swamp and malarious miasmata, consequently the endemic fevers caused by these in Chagres, Portobello, Limon, and Panama, would not prevail in any settlements that may be formed in the neighborhood of the Savana. Indeed, it cannot be inferred that the Isthmus of Darien is unhealthy, because the towns on the Isthmus of Panama have all been settled in swampy localities, and in the most unfavorable positions in a sanatory point of view. A convincing proof of the freedom from swamp of the whole tract of country, from Port Escocés to the gulf of San Miguel, is the total absence of mosquitoes, which invariably infest all swampy grounds in the tropics. The great longevity of the people of Darien, and the large proportion of very old men, also attest the healthiness of the climate.

From Príncipe to the mouth of Matumaganti, one mile s. s. w., the river increases greatly in width and depth; there are some islands in this reach; and on the west bank a very large cuipo-tree stands conspicuous, towering above the adjacent forest.

From Matumaganti to the mouth of Lara, two miles, the river has a depth of four fathoms, and a rise of tide of ten feet.

From Lara mouth to the islands in the second reach, four miles, the river is very direct in its course, with a depth of five or six fathoms. A ridge of hills runs parallel to each bank, at about two miles' distance. Just below this mouth, and above a widening of the river, called Revesa de Piriaki, is Cerro Piriaki, a hill of about 400 feet elevation, and above this there is no hill near either bank of the Savana. Above the islands, Estero Corotu, Rio Corredor, and other streams fall into this, the Calle Larga, or Long Reach.

From the islands to Areti mouth, s. s. e., three miles, the river has great width and depth; a ridge of hill here runs along each bank, at about two miles' distance.

RELATIVE WATER
DEPTHS.

JUNCTION OF THE SAVANA AND TUYRA.—From Areti mouth to the junction of the Savana and Tuyra rivers, S., four miles, the river has a uniform width of two miles, and a depth of from eight to nine fathoms.

On the west bank of this reach is Punta Machete, with a small shoal above it, called Bajo Grande, and one below it, Bajo Chico. Both of these are close in shore, and oysters are found on them.

THE SAVANA MOUTH.—From the west point of the Savana mouth, in lat. $8^{\circ} 21'$, long. $77^{\circ} 54'$, the land rises into a ridge of hills of about 309 feet elevation, running N. for about four miles parallel to the river, from which it is separated by a strip of level land half a mile wide. There is a quebrada, or rivulet, in the ridge, called Laguadilla, which has plenty of fresh water in the driest season.

Behind Nisperal, the east point of the Savana mouth, there is a low ridge of hills; from the north bank of Iglesias, also, a narrow ridge follows the course of the Savana for about three miles. This is the Cerro Titichi, which gave its name to a mission of Indians at the mouth of the Chuquanaqua, the last survivor of whom is a man named Marcellino, who resides at Pinogana, on the Tuyra. On the north bank

of Iglesias is Quebrada de Tigre, and on the Savana, above its mouth, is Quebradita la Monera, where fresh water may be obtained.

At the mouth of the Savana there are nine fathoms, at low water, and the tide rises from twenty-one to twenty-seven feet.

Boca Chica and Boca Grande, the mouths of the Tuyra, are perfectly safe entrances, and have a depth of thirteen to twenty fathoms of water respectively.

The gulf of San Miguel has good depth of water, and would hold the shipping of the world. Its mouth, between Cape San Lorenzo on the north, and Punta Garachiné on the south, is ten miles across, and opens into the Pacific, quite outside the bay of Panama. Its direction inward is N. E. fifteen miles to Boca Chica. Inside the bay of Garachiné, the shores of the gulf approach each other, and the width diminishes to four miles, between Punta Brava and Morro Patiño, with a depth of from nine to twenty fathoms, but again increases, and then diminishes to Boca Chica.

Close to Cape San Lorenzo is a small shoal, called El Buey, which may be easily avoided. There are several islands in the gulf, as Iguana, Cedro, Islas de San Diego, etc., etc., which are all safe of approach. On the north side, the rivers Congo, Buenavista; and on the south the Moguey, Guaca, Taimita, and Sambú, open into the gulf; while the Tuyra and Savana fall into its eastern end, the Ensenada del Darien, called by the Granadians 'Boca de Provincia,' or Mouth of the Province. *Cullen's Isth. of Darien.*

From what has been said, it sufficiently appears that Nicaragua is a country of great beauty of scenery and vast natural resources. She has, however, attracted the attention of the world less on these accounts than because she is believed to possess within her borders the best and most feasible route for a ship-canal between the two great

oceans. The project of opening such a canal began to be entertained as soon as it was found that there existed no natural communication between the seas, as early as 1527. Since that period it has furnished a subject for much speculation, but beyond a few partial examinations, until very lately, nothing of a practical or satisfactory character had been attempted. In 1851 a careful survey was made of the river San Juan, Lake Nicaragua, and the isthmus intervening between this lake and the Pacific, by Colonel O. W. Childs, previously engineer-in-chief of the state of New York, under the direction of the now extinct Atlantic and Pacific Ship-canal Company. Until then, it had always been assumed that the river San Juan, as well as the lake itself, could easily be made navigable for ships, and that the only obstacle to be overcome was the narrow strip of land between the lake and the ocean. Hence, all the so-called surveys were limited to an examination of that part of the line. One of them was made under the orders of the Spanish government, by Don Manuel Galisteo, in 1781; another, and that best known, by Mr. John Baily, under the direction of the government of Central America, in 1838. An intermediate examination, quoted by Thompson, [\[XXXIV-53\]](#) seems to have been made early in the present century. The following table will show the results of these surveys as regards this particular section:

Authorities.	Distance from Lake to ocean.		Greatest Elevation above Ocean.	Greatest Elevation above Lake.
Galisteo, 1781	17	200	272 feet.	134 feet.
	miles,	feet.		
Quoted by	17	320	296 feet	154 feet
Thompson,	miles,	feet		
1829				
Baily, 1838	16	730	615 feet	487 feet
	miles,	feet		

Childs, 1851	18 3,120 miles, feet	159 feet	47½ feet
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As the survey of Colonel Childs is the only one which can be accepted as conforming to modern engineering requirements, it will be enough to present the detailed results to which he arrived. The line proposed by him, and on which all his calculations and estimates were based, commences at the little port of Brito, on the Pacific, and passes across the Isthmus, between the ocean and lake, to the mouth of a small stream called Rio Lajas, flowing into the latter, thence across Lake Nicaragua to its outlet, and down the valley of the Rio San Juan to the port of the same name on the Atlantic. The length of this line was found to be 194⅓ miles, as follows:

	Miles.
WESTERN DIVISION.—Canal from the port of Brito on the Pacific, through the valley of a small stream called Rio Grande, falling into the Pacific, into that of the stream called Rio Lajas, to Lake Nicaragua	18.588
MIDDLE DIVISION.—Through Lake Nicaragua, from mouth of Rio Lajas to Fort San Carlos, at the head of San Juan River	56.500
EASTERN DIVISION.— <i>First Section.</i> —Slack-water navigation on San Juan River from San Carlos to a point on the river opposite the mouth of the Serapiqui River	90.800
<i>Second Section.</i> —Canal from opposite mouth of Serapiqui to port of San Juan del Norte	28.505
Total, as above	194.393

ORIGIN OF THE CANAL GRANT.—The charter of this company under which Colonel Childs carried on his investigations is dated September 22, 1849, and was obtained for a term of eighty-five years from the completion of the proposed canal. The surveys were to be commenced within one year, and the whole to be completed in twelve years. The

canal, by the terms of the charter, was to be of dimensions sufficiently great to admit and pass vessels of all sizes with speed and safety. The company was to pay to the state, during the period assigned for the construction of the work, the annual sum of \$10,000; to give to the state \$200,000 of stock in the canal, on the issue of stock; the state to receive, for the first twenty years, twenty per cent annually out of the net profits of the canal, after deducting the interest on the capital actually invested, at the rate of seven per cent; and for the remaining sixty-five years, twenty-five per cent of the profits. The company, on the other hand, were to receive fifteen per cent annually out of the net profits of the canal for the first ten years after it should revert to the state, provided it did not cost over \$20,000,000; but if it should cost more than that sum, the company to receive twenty per cent for twenty years. During the period of constructing the canal (twelve years), the company had the exclusive right of navigating the waters of the state by steam, and also the privilege of opening a transit route through its territories, upon the principal condition of paying ten per cent of the net profits to the state. There were some other provisions as to lands, tolls, etc., of no special importance.

Under this charter, the company perfected its organization. It divided its original shares into a considerable number, called 'canal rights,' which were sold, and their holders brought into the organization. The first instalment was paid, and in August 1850, just in time to meet the stipulation providing that the surveys should be commenced within one year from the date of the contract, a party of surveyors was sent out to Nicaragua. They were under the direction (as already said) of Colonel O. W. Childs as chief engineer. He arrived in Nicaragua on the 27th of August, 1850, and so far as his report is concerned, we are left to infer that he at once commenced the surveys for the canal. His report is dated March 9, 1852.

THE LINE OF SURVEY.—In the various projects for uniting the two seas, the line of the river San Juan has always been contemplated as

DIVERSIONS OF
THE CANAL.

that by which the great lake of Nicaragua is to be reached. From that lake to the Pacific, various routes have been suggested:

1. From Lake Nicaragua via the river Sapoa to the bay of Bolaños, in the gulf of Salinas, on the Pacific.
2. Via the Rio Lajas to the port of San Juan del Sur, or some point not far from it, on the Pacific.
3. Via the Rio Tipitapa into the superior lake of Managua, and from this lake to the Pacific at the little port of Tamarindo, the port of Realejo, or into the magnificent gulf or bay of Fonseca.

By his instructions, Colonel Childs was limited to a survey of the direct routes from Lake Nicaragua to the Pacific, provided either of them should prove practicable. As a consequence, finding a route which, in his opinion, was practicable, he made no surveys from the superior lake of Managua to the Pacific. He, however, made some observations on the line of the connection between the two lakes by the river Tipitapa—if a channel dry for most, if not all, of the year can be called a river. This is a source of great regret, especially in view of the deficiency, on the surveyed routes, of a good harbor on the Pacific, while both Realejo and the gulf of Fonseca are all that can be desired as ports.

Lake Nicaragua is estimated by Colonel Childs to be one hundred and ten miles in extreme length by thirty-five in (average) width. Its nearest approach to the Atlantic is at its southern extremity, from which, on a right line, it is about eighty miles distant. The point of its nearest approach to the Pacific is near the middle of its length, where, by the shortest line, the distance is about eleven miles.

The San Juan River was found by Colonel Childs to be, following its sinuosities, 119 miles in length. It has a great number of tributaries,

generally small, with the exception of the San Carlos and Serapiqui, which come in from the mountains of Costa Rica on the south. The first of these enters the San Juan at sixty-five miles, and the second ninety miles below the lake. These streams flow through valleys transversely to that of the San Juan, which is further intersected by ranges of hills, coming in both from the north and the south, at the Rapides del Toro, Castillo, Machuca, etc.

The lake of Nicaragua lies longitudinally, nearly parallel to the Pacific Ocean, and is separated from it, for nearly two thirds of the length of the lake, by hills of comparatively moderate acclivity and elevation, in most cases capable of cultivation to their summits. Within this distance, also, are several transverse valleys, extending nearly (Colonel Childs says quite) across, with summits varying in height, and furnishing generally good opportunities for direct communications by ordinary roads or by canal.

ROUTE VIA RIVER SAPOA.—This line lies chiefly in the department of Guanacaste, now in dispute between Nicaragua and Costa Rica, and actually occupied by the latter.

The examination of this line by Colonel Childs only proved its impracticability for the purpose of a canal. He found that to pass the summit a cut 119 feet in depth would be required, and an up-lockage from the lake of 350½ feet, and a down-lockage to the Pacific of 432 feet. Water to supply the upper locks, it was ascertained, could only be obtained with difficulty, and at great cost. Besides, a long rock cut of three fourths of a mile would be required from low-tide mark in the bay of Salinas to deep water. In short, the physical difficulties on this line, if not of a nature to make the construction of a canal impossible, were nevertheless such as to make it impracticable.

ROUTE FROM MOUTH OF THE RIO LAJAS TO BRITO.—The line from Lake Nicaragua to the Pacific, to which public attention has been most

directed, is one starting from the mouth of the Rio Lajas, a few miles below the town of Rivas, or Nicaragua, to the port of San Juan del Sur, or Concordia, on the Pacific. As already stated, not less than three surveys had been made over this line; one in 1781 by Galisteo, a Spanish engineer, and the last by Mr. Baily, an Englishman, under the republic of Central America, published in Stephens' *Incidents of Travel in Central America*. The line pursued by both Galisteo and Baily was governed by the circumstance of a measurably good port on the Pacific—that of San Juan del Sur, the best on the whole line of coast from the bay of Salinas northward to Realejo. Baily's line is sixteen miles and 730 feet in length, and the greatest elevation above the lake 487 feet. That of Galisteo is seventeen miles 200 feet in length, and the greatest elevation above the sea 272, and above the lake 134 feet. Baily's line, for half of its distance, involved 209 feet of average vertical cutting; that of Galisteo, for half of its length, an average vertical cutting of 108 feet. These facts, and others, among which the absolute impossibility of supplying the summit levels with water, and the necessity of tunnels, combined to make the construction of a canal on this line wholly impossible.

EXPLORING FOR A
LINE.

Colonel Childs seems to have been satisfied of the impracticability of this line, after a very rapid examination, and to have devoted himself to the discovery of one more feasible. In doing this, however, it was found necessary to abandon San Juan del Sur as the western terminus.

Starting at the point on the lake to the eastward of Rivas, levelling westward, through a transverse, moderately undulating plain, he ascended, on a distance of six and a half miles, 326 feet, to the summit of a broad valley, passing between the hills (which are here of moderate height), and connecting with another valley on the west side, which extends to a place on the Pacific called Brito, where a stream, named Rio Grande, flows into the sea. The quantity of water available for this summit being entirely inadequate, and the cut altogether too

formidable, on the plan of carrying through the level, this route was abandoned. Another line, not far from this, was attempted, with very nearly the same result.

Colonel Childs next started from the mouth of the Rio Lajas, the same point with his predecessors, and carried a line of levels to the summit of a transverse valley lying about six and a half miles south of Rivas, and reaching between the valley of Rio Lajas and that of the Rio Grande, already mentioned as flowing into the Pacific at Brito. This summit was found to be only forty-seven and a half feet above the surface of the lake, as it stood on the 23d day of December, 1850, at which time it was three and a half feet above its lowest stages, and one and a half feet below the level at which it ordinarily stands at the height of the rainy season. The length of this line from lake to sea is about twenty miles. This is the route, and the only direct one, between the lake and sea, regarded by Colonel Childs as feasible, and upon this all his calculations respecting the proposed canal are based. In his own language: 'The conclusion was arrived at that the line leading from the lake, at the mouth of the river Lajas to the Pacific at Brito, presented more favorable conditions for the construction of the canal than any other; it was therefore determined to survey and carefully to locate a line across upon this route.'

This line, then, runs through the valley of the river Lajas, the waters of a principal branch of which interlock with those of the Rio Grande, and, through the valley of the latter, reaches the sea. The stream first named has its origin about ten miles south-westerly from its entrance into the lake, on the eastern slope of the dividing ridge, and after running north-westerly two miles, along the base of the hills, takes a northerly direction through comparatively level savannas, a distance of six miles or eight miles, when it bends to the east, and in a mile and three fourths enters the lake. The Rio Grande rises on the eastern slope of the same range of hills, and two or three miles north-west from the sources of the Lajas, and, after flowing some three or

four miles at the foot of their slope, bends to the west, and by a narrow and somewhat irregular valley passes through the ridge, and thence, in a more capacious and uniform valley, into the Pacific.

WESTERN SECTION OF PROPOSED CANAL BETWEEN LAKE NICARAGUA AND THE PACIFIC.—The entire line of the canal proposed by Colonel Childs, and upon which all his calculations and estimates are based, is therefore through the valley of the river San Juan into Lake Nicaragua, across Lake Nicaragua to the mouth of the Rio Lajas, through the valley of that stream, and across the summit of forty-seven and a half feet which separates it from that of the Rio Grande, and down the valley of the Rio Grande to Brito, where that stream enters the Pacific.

Now, in order to understand Colonel Childs' conclusions, and appreciate the data which he gives, we must know what kind of a work he proposes. He contemplates a canal but seventeen feet deep; and as he intends to supply the western section, from the lake to the sea, by water from the lake, it would be necessary to commence construction in the lake at a point where the water is seventeen feet deep at mean stage. This point is opposite the mouth of the Lajas, and twenty-five chains from the line of the shore. From this point, for a mile and a half, partially along the river Lajas, the excavation will be principally earth; but beyond this, for a distance of five and a half miles, which carries the line beyond the summit, three fourths of the excavation will be in a trap rock. That is to say, the deepest excavation, or open cut, will be sixty-five feet, and involve the removal of 1,879,000 cubic yards of earth, and 3,378,000 cubic yards of rock. The excavation and construction in this five and a half miles alone are estimated at upward of \$6,000,000.

The summit passed, and the valley of the Rio Grande reached, the excavation, as a general rule, will be only the depth of the canal. Colonel Childs found that the lake, at ordinary high water, is only 102 feet 10 inches above the Pacific at high and 111 feet 5 inches above it

at low tide, instead of 128 feet, as calculated by Mr. Baily. This descent he proposes to accomplish by fourteen locks, of eight feet lift each, placed at proper points in the valley of the Rio Grande, thus bringing us to Brito, the terminus on the Pacific.

The harbor of Brito, as it is called, or the point where the Rio Grande enters the sea, is at best only a bad anchorage. There is here a small angular indentation of the land, partially protected by a low ledge of rock, but nothing adequate for the terminus of an important work like the proposed canal, or capable of answering the commonest requisites of a port. To remedy this deficiency, Colonel Childs proposed to construct an artificial harbor, of thirty-four acres area, by means of moles and jetties in the sea, and by extensive excavations in the land. If, as he supposes, the excavations here would be in sand, it is obviously almost impossible to get proper foundations for the immense sea-walls and piers that would be necessary for a work of this kind. On the contrary, if these excavations should be chiefly in a rock, as seems most likely, the cost and labor would almost surpass computation. Assuming the excavations for the purpose to be in earth and sand, Colonel Childs estimates the cost of making a harbor at a little over \$2,600,000.

MIDDLE SECTION OF PROPOSED CANAL—LAKE NICARAGUA.—Proceeding from seventeen feet depth of water in the lake, opposite to the river Lajas, in the direction of the outlet of the lake at Fort San Carlos, there is ample water for vessels of all sizes for a distance of about fifty-one miles, to a point half a mile south of the Boacos Islands. Here the depth of water diminishes rapidly to fourteen feet. For the remaining five and a half miles to the fort, the water is variable, averaging only about nine feet at low and about fourteen at high water. For this distance of five and a half miles, therefore, an average under-water excavation of eight feet would be required to make the channel, at low water, of the depth of the canal, or seventeen

feet. But if the lake were kept at high level, the under-water excavation would be but an average of three feet.

Colonel Childs proposed to protect this portion of the channel by rows of piles driven on each side, along its whole extent, and thinks, after the excavation were made, a sufficient current would be established to keep the channel clear.

THE RIVER SAN
JUAN.

EASTERN SECTION—THE RIVER SAN JUAN.—We come now to the section between Lake Nicaragua and the Atlantic, through or along the river San Juan. Excepting a small settlement at the Castillo Viejo, at the Castillo Rapids, thirty-seven miles from the lake, the valley of the San Juan is wholly uninhabited. This section, hitherto supposed the easiest, is, nevertheless, by far the most difficult part of the proposed enterprise.

Colonel Childs carried a line of levels from the lake at San Carlos to the port of San Juan, on the northern bank of the stream. The whole distance from San Carlos to seventeen feet depth of water in the harbor of San Juan is $119\frac{1}{3}$ miles; and the whole fall, from the surface of high lake to the surface of highest tide in the harbor, is $107\frac{1}{2}$ feet—to lowest tide, $108\frac{3}{4}$ feet.

Of the above distance, the first ninety-one miles, or from San Carlos to half a mile below the Serapiqui River, Colonel Childs proposed to make the river navigable by excavating its bed, and by constructing dams, to be passed by means of locks and short canals; the remaining twenty-eight miles of the canal to be constructed inland, or independently of the river. Of the whole fall, sixty-two and a half feet occurs on that portion which it is proposed to improve by dams, and on which there were to be eight locks, and the remaining forty-six and a quarter feet occurs on the inland portion of the canal, on which were to be six locks—fourteen locks in all.

Colonel Childs proposed to place the first dam at the head of the Castillo Rapids, a distance of upward of thirty-seven miles from the lake, and to pass the rapids by means of a lateral canal. By means of this dam he proposed to raise the water, at that point, twenty-one and a half feet, and the entire level of Lake Nicaragua five feet above its lowest stages, or in other words, to keep it at high-water mark. The fall at this dam would be sixteen feet. He proposed also six other dams, four of eight feet fall, one of fourteen and a half feet, and one of thirteen and a half feet. Between all of these there would be more or less excavation in the bed of the stream, sometimes in earth, and often in rock.

Colonel Childs proposed further to improve the harbor of San Juan by moles, etc., and to construct an artificial harbor in connection with it of the capacity of thirteen acres.

In respect of the amount of water in the San Juan, we have some interesting statistics. This amount, of course, varies greatly with the different seasons. The quantity of water that passed from the lake at its lowest stage, on the 4th of June, 1851, was 11,930 cubic feet per second. The greatest rise of the lake is about five feet. When it stood at 3.43 feet above its lowest level, the flow of water was 18,059 cubic feet per second, being an increase of about fifty per cent. Supposing the same ratio of increase, at high lake the amount of water in the river would be doubled.

The river receives large accessions from its tributaries. Below these, and above the point of divergence of the Colorado, flowing direct into the sea from the San Juan, which falls into the harbor of the same name, the flow of water was 54,380 cubic feet per second, of which 42,056 passed through the Colorado branch into the ocean, and 12,324 through the San Juan into the port.

DIMENSIONS OF THE PROPOSED CANAL.—Where the excavation is in earth, Colonel Childs proposed (and all his estimates are founded on these dimensions) that the canal shall have a depth of 17 feet; that it shall be 50 feet wide at the bottom, 86 feet wide at 9 feet above the bottom, and 118 feet wide at the surface of the water. Where the excavation is in rock, the canal is to be 50 feet wide at bottom, 77 feet at 9 feet above bottom, and $78\frac{1}{3}$ feet at the surface of the water.

LENGTH OF PROPOSED CANAL.—The total length of the line proposed by Colonel Childs, from San Juan del Norte on the Atlantic, to Brito on the Pacific, is $194\frac{1}{3}$ miles, as follows:

	Miles.
Canal from port of San Juan to its point of intersection with the river, near the mouth of the Serapiqui	28.505
Slack-water navigation on the San Juan River, from the above point to San Carlos, at the outlet of the lake	90.800
From San Carlos, across Lake Nicaragua, to the mouth of the Rio Lajas	56.500
From mouth of Rio Lajas to Brito	18.588
Total, as above	194.393

ESTIMATED COST.—The cost of the work is estimated by Colonel Childs in detail. The recapitulation, by divisions, is as follows:

Eastern Division (i. e., from port of San Juan to lake)	\$12,502,346
Middle Division (through lake)	1,025,676
Western Division (from lake to Pacific)	13,896,603
	\$27,424,625
Add, for contingencies, 15 per cent	4,113,693
Total estimated cost of canal	\$31,538,318

The canal company published a pamphlet, in which the estimates for the canal were made at New York prices, and in which the total was put down at \$13,243,099. 'The prices adopted in the estimate of \$31,500,000,' says Colonel Childs, 'are made up with reference to the completion of the work within six years from the time of breaking ground, and a commencement of the settlement of the country in the vicinity of the line previous to letting the contracts.'

CAPACITY OF THE PROPOSED CANAL.—The charter of the canal company provided that the capacity of the work should be sufficiently great 'to admit vessels of all sizes.' And it is obvious that a work which will not pass freely the largest vessels can but imperfectly answer the purposes of its construction, or meet the requirements of commerce. But Colonel Childs proposed only one 17 feet deep, 50 feet wide at bottom, and 118 feet wide at top—a capacity wholly inadequate to pass the larger classes of vessels, and one which fails to meet the stipulations of the charter. The larger merchant-ships, such as are generally employed in the eastern trade, have a draught of from 20 to 25 feet, and would require, to say nothing of war vessels and large steamers, a canal of from 25 to 30 feet in depth, which would involve more than double the amount of excavation proposed, and probably treble the amount of cost, and carry it up from \$31,500,000 to \$100,000,000. Here is the fatal deficiency in the whole proposition of Colonel Childs.

To make the canal capable of passing vessels drawing 20 feet of water, Colonel Childs says, would increase to a very great degree the amount of the excavation on the river section, and still more the expense. 'Any considerable increase in the depth proposed (17 feet) would require under-water excavations between the lake and the Toro Rapids, a distance of 27 miles, to be almost continuous; it would very much lengthen the cuts on the other portions of the river, and the liability of these artificial channels to receive deposits of earth to such an extent as to obstruct navigation would be very much greater. On the

inland portion of the canal,' continues Colonel Childs, 'a depth of 22 feet of water would, with fifty feet bottom-width, give a transverse water-section about 45 per cent greater than a depth of 17 feet, with the same bottom-width; and the expense of the inland portions would also, by reason of the greater depth of excavation, be increased in a still higher ratio.'

THE VIEWS OF
COLONEL CHILDS.

Colonel Childs seems sensible of the inadequacy of a canal of the proposed dimensions, but thinks that by changes in model, etc., ships of great size could be built to pass a 17-foot canal. That is to say, the world may build ships for the canal, instead of the canal company a canal for the ships of the world! He states that most steamers draw less than 17 feet, and quotes from Murray's *Treatise on Marine Engines* to show that of 261 steam-vessels, principally English, 15 draw over 17 feet, 21 have 17 feet draught, and 225 less than 17 feet. But he neglects to tell us that experience and economy point to the construction of larger steamers than those now in use, and that such as would be used in the eastern trade, in the event of the construction of the canal, would be still larger than those of the Collins line, which draw over 22 feet. Besides, a canal of 17 feet is only adequate to the passage of vessels of 15 feet draught. No canal ought to be contemplated with a less depth than 25 feet, and with proportionate top and bottom width.

The Chesapeake and Delaware Canal has a depth of 10 feet.

The Welland Canal is 28 miles long, 9 feet deep, 35 feet wide at bottom, and 71 feet at top. It passes vessels of 350 tons.

The Caledonian Canal, between the eastern and western shores of Great Britain, is 59 miles in length, of which 21½ miles is inland and 37½ through lakes. It is 50 feet wide at bottom, 110 feet at top, and is 20 feet deep. It is capable of passing frigates of 32 guns, and merchant-vessels of 1,000 tons.

The canal from Amsterdam to New Dieppe, in Holland, is 50 miles long, 36 feet wide at bottom and 124 at top, and is 20 feet 9 inches deep.

In respect of navigating the canal, according to Colonel Childs' suggestions, steamers will propel themselves, and sail-vessels will be moved by tugs constructed for the purpose, except on the portion west of the lake, and between the river and port of San Juan, where the delay of the driving steamers in passing the locks would make the use of animal-power advisable. Calculating 24 minutes as the time required for a vessel to pass each lock, 60 vessels, it is calculated, could be passed in a day. The average rate of speed with which steamers might safely move in the inland portions of the canal is calculated at $2\frac{1}{2}$ miles per hour, on the river portions 7 miles an hour, and on the lake, 11 miles an hour. Sailing vessels propelled by horse-power might move on the canal at the rate of two miles an hour, and on the river and lake with an average speed of 4 miles per hour. For steamers, therefore, the passage from sea to sea is estimated at $46\frac{1}{2}$ hours, or about two days; for sailing vessels, 77 hours, or $3\frac{1}{4}$ days.

FACILITIES FOR CONSTRUCTING THE CANAL.—There are many considerations connected with an enterprise of this kind besides its feasibility in a mere engineering point of view, such as labor, materials, etc., etc. To all of these Colonel Childs seems to have devoted some attention.

Timber.—As compared with those of the United States, the original forests of Nicaragua are inferior in size, and the kind and quantity of timber proper for use less in proportion. The tree called the 'cedro,' or cedar, is produced in considerable abundance, and can be usefully applied. It grows to a great height, and will produce timber 36 to 40 feet long, and 12 to 18 inches square. The 'roble,' a species of oak, is also a tall tree, and furnishes timber equal to the cedar in size. The 'níspero,' 'laurel,' 'madera negra,' and others, answer a very good

purpose. The 'níspero' is 29 per cent stronger than white oak, and may be procured in sufficient quantities, in the opinion of Colonel Childs, to be relied on as a substitute for all the purposes in which oak is required. He thinks that, in the aggregate, the forests of Nicaragua, in the sections traversed by the canal, will probably produce all the lumber required.

Stone.—Along the river San Juan, the rock is chiefly trap, graywacke, and shale; in many localities too friable for use, but in others, Colonel Childs thinks, it may be found fit for the purposes required. On the west side of the lake limestone quarries were found, capable of producing good lime in abundance. The stone, generally, between the lake and Pacific, on the proposed canal line, is not good, but it was thought that in case of need it might be obtained from Granada, sixty miles to the north-west, and from a lower point on the Isthmus. Very good and abundant clays were found, and a stone from which water-lime of a fair quality may be obtained.

Labor.—Colonel Childs concedes that the prosecution of the works of the canal would be attended with vast difficulties, resulting from a lack of all the essential requisites in the shape of mills, roads, carriages, etc., etc. He thinks the oxen of the country may be obtained in sufficient numbers to do all the necessary hauling of materials. But there is yet a consideration of vastly more importance, viz., labor. Colonel Childs apprehends that it would be necessary to rely chiefly on foreigners. He says that, although the laboring population of the country, when under compulsory circumstances, are capable of great activity and of enduring much fatigue, in their ordinary avocations they are tardy and irregular in their labor. An exception is, however, made in favor of a class of boatmen employed on the river, some 400 in number, in whom we have an example of physical labor and exposure to the elements scarcely equalled in any country, endured by them with no perceptible prejudice, but apparently with advantage to their health. These men sleep on a narrow plank across their boats,

with no other protection than a single blanket; yet there is probably in the world no class of men of more athletic forms, and notwithstanding their indifferent attention to the conditions of health, more capable of hard service. So far as can be gathered from Colonel Childs' observations, it seems that he would rely chiefly on foreign labor for the construction of the proposed work.

CLIMATIC TRIALS.

He seems to think it is not unlikely that foreigners, already accustomed to hard labor, may, when thoroughly acclimated, and under no unnecessary exposure, be capable of a fair amount of labor in this country, although not as great an amount as in higher latitudes. He states that of the party engaged in the survey west of the lake, nine were unaccustomed to the climate. After a few months, a slight fever, followed by ague, prevented some of the number from continued daily exercise; but being in all cases under the control of medicine, it was of short duration. During seven months in this part of the state, illness in the party at no time interrupted a daily prosecution of the survey. Upon the San Juan River, the surveying party consisted of twelve persons, exclusive of native citizens. The survey occupied six and a half months, from March to September. 'The party generally enjoyed good health, and no individual was prevented by indisposition, beyond a day or two, from full service. Of those engaged as axemen in clearing the line, two were northern men, whose daily exercise exceeded that usual to men in canal-work, without detriment to health or constitution.'

Soil.—From San Juan Harbor to where the proposed canal would strike the river, the soil is vegetable mould, coarse sand, and sandy loam. Along the river it is of a more mixed character, clay and loam predominating in the valleys, and a gravelly clay, with detached stones, on the hills. West of the lake, the central portion of the summit is principally clay; the remainder, together with the soil through the valley to Brito, has a very nearly uniform and equal intermixture of

clay, sand, and gravel. The surface soil is generally fine, and contains enough of vegetable mould to render it capable of great production.

Food.—Among the staple articles of food that would, during the construction of the canal, be most required for consumption, may be named maize, plantains, and beans. Of the former and latter two crops are annually raised on the same ground, and the supply of plantains is constant. Besides these are bananas, oranges, lemons, pineapples, cocoanuts, squashes, melons, tomatoes, and other garden vegetables. Colonel Childs, while considering these sources of supply in food, is nevertheless of opinion that salt meat and flour would have to be brought in large quantities from abroad. Fresh beef, pork, and poultry are abundant in the country.

OPINION OF COLONEL ABERT AND LIEUTENANT-COLONEL TURNBULL.—Although a different impression has been sought to be produced in the public mind, yet the government of the United States had no direct interest in the proposed canal, nor manifested any other than might naturally attach to any enterprise of supposed general importance. The surveys of Colonel Childs seem, nevertheless, to have been sent to the secretary of war, with a request for the opinion of the government engineers. Mr Conrad politely referred it to Colonel Abert and Lieutenant-colonel Turnbull, of the bureau of topographical engineers, who give their opinion in a brief letter, dated March 20, 1852. Proceeding upon Colonel Childs' data, they think his plan practicable, that his estimates for a canal of seventeen feet are liberal, and that some reductions might possibly be made. They think that a shorter line might be traced between the port of San Juan and the point of intersection with the river, and recommend another survey of that portion.

OPINION OF ENGLISH ENGINEERS.—The American minister in England, at the request of the company, appears to have transmitted Colonel Childs' surveys to the earl of Malmesbury, with a wish that he

would submit it to competent English engineers for their opinion. James Walker, Esq., civil engineer, and Edward Aldrich, captain of the royal engineers, were named for this service. They seem not only to have examined Colonel Childs' survey, but to have subjected that gentleman, who was then in England, to a very close personal examination. Taking his plans, measurement, and statements to be correct, their opinion is, on the whole, favorable. They think that his estimates for work are ample, but regard the amount set down for 'contingencies' (fifteen per cent) too small by at least ten per cent, that is to say, that it should have been twenty-five instead of fifteen per cent. Of all the works of the proposed navigation, they regard the Brito or Pacific harbor as least satisfactory. To use their own language: 'Presuming Colonel Childs' statements and conclusions to be correct, the Brito harbor is in shape and size unworthy of this great ship navigation, even supposing the Pacific, to which it is quite open, to be a much quieter ocean than any we have seen or have any information of.'

They also object to the proposed size, and suggest a canal twenty feet deep instead of seventeen, sixty feet wide at the bottom instead of fifty, and the locks 300 feet instead of 250, as being one 'more efficient for the general purposes of trade, by steam or sailing vessels.' This would, of course, be attended with great additional cost; but, as they truly observe, 'if the junction of the Pacific with the Atlantic be worth doing at all, it is worth doing well.' They conclude that, judging from the data, without presuming to vouch for their accuracy, the work is practicable, 'and would not be attended with engineering difficulties beyond what might naturally be expected in a work of this magnitude;' that the surveys have every appearance of accuracy, and they are satisfied of the perfect fairness and candor of Colonel Childs; that the works are generally sufficient for the purpose they are intended to answer; and 'that the estimates upon the present value of money are

adequate, in a general way, so far as judgments can be formed from the documents produced and the explanations of Colonel Childs.'

OPINION OF BRITISH CAPITALISTS.—We come now to a point not indicated in the report of Colonel Childs, viz., the refusal of the leading capitalists of England to engage in the projected work.

It is well known that at least two expeditions or missions to England were undertaken by agents of the canal company. At their first visit in 1851, they were unable to present any specific data upon which to solicit the aid of capitalists; they, however, made out a hypothetical case, which they submitted, and received for answer, 'Substantiate your statements by facts, and no difficulty will be experienced in securing the financial aid which you desire; until then, we can return you no definite answer.' This reply was not made public in terms, but the agents, on their return, proclaimed that the 'great European capitalists had engaged to furnish half the capital for the enterprise.' A few, and it is believed only a few, persons, considering the precise source whence this vaunt came, attached the slightest importance to it.

REASONS FOR
DECLINING.

The second expedition was made in 1852, and this time the agents took out with them both Colonel Childs and his surveys. The opinion of certain British engineers (as we have seen) was procured, and the whole matter resubmitted to the great capitalists, who now, for the first time, thought it sufficiently advanced to merit their serious attention. The result of their examination was communicated to the company in a letter from Mr Bates, head of the house of Baring Brothers, in August 1852, and consisted in a declension to embark in the enterprise, for a variety of reasons, chiefly, of course, financial.

1. The dimensions of the canal were not such as, in their opinion, to meet the requirements of commerce, and the work could not be used except by medium-sized steamers and small vessels.

2. That the proposed dimensions were not in conformity with those required by the charter of the company, and that it could not be built of the proposed dimensions without securing a modification of the charter, which, in the existing state of feeling in Nicaragua, it was not likely could be effected.

3. That, supposing the work not to exceed the estimated cost of \$31,000,000, the returns, to meet the simple interest of the investment at six per cent, must be at least \$1,860,000 over and above its current expenses; or, to meet this interest, and the percentage to be paid to Nicaragua, it must reach, over and above its expenses, \$2,269,200. Estimating the expenses of repairs, superintendence, cost of transportation, etc., at \$400,000 a year (a sum regarded as too small), then the gross returns to make the work pay must be \$2,670,000.

4. But it is found, by inquiry and calculation, that little, if any, of the European trade with the Orient would pass through the canal, inasmuch as the passage by the way of Cape Good Hope is, on an average, 1,500 miles nearer than by way of the proposed work.

5. That even if the distance were in favor of the proposed canal, its small size would prevent nearly, if not quite, two thirds of the vessels engaged in the Indian trade from passing it; and this objection would equally lie against most of the vessels employed in the trade with western America, the only trade in which the canal would prove serviceable to Europe.

6. That the heavy toll of \$3 a ton on ships would prevent such vessels as could pass the canal from doing so, inasmuch as on a vessel of 1,000 tons the toll would be \$3,000, or more than the average earnings of such vessels on their voyages.

7. That a canal of the proposed size could only be used by small passenger-steamers, the returns from which would not be adequate to pay the current expenses of the enterprise.

While unhesitatingly conceding the immense local advantages of a canal to the United States, these capitalists confessed themselves utterly unable to discover how it could prove of compensating value to the men who should invest their money in the enterprise. They therefore, for these and other reasons, declined to meet the views of the projectors and their agents.

GUARANTEE OF THE UNITED STATES, ETC.—By the convention of 1850 between the United States and Great Britain, a qualified guaranty was extended to this enterprise, in common with several others. There was also a clause inserted with direct reference to this company, which provided that it should 'have a priority of claim over every other company to the protection of the United States and Great Britain,' on condition that it should, within 'one year from the date of the ratification' of the convention, 'conclude its arrangements and present evidence of sufficient capital subscribed to accomplish the undertaking.' The treaty was ratified, and the ratifications exchanged July 5, 1850. No subscription of stock having taken place, and no evidence of capital having been presented in the time specified, or indeed at any other time, the company forfeited this special protection in July 1851; and as the twelve years within which the work was to be constructed will expire in 1861, it may be assumed that its prosecution will depend upon new conditions and combinations. Indeed, it may be questioned if the opening of railways between the oceans may not indefinitely postpone the project of a canal; for, however desirable such a work may be, its realization will depend upon precisely those practical considerations which apply to the simplest works of public utility. It will not do to foot up the commerce between Europe and Asia, and assume, as has generally been the case, that the totals will pass through the canal, if constructed. Now, the simple truth is, that, so far as Europe is concerned, that part of her trade which goes to ports on the Pacific coast of America, to the Sandwich Islands, Japan, the northern ports of China, to New Zealand and Australia, is all that will

be materially benefited by the construction of a canal. As regards Australia, the principal advantage would be in having a safer, easier, and consequently quicker and surer means of communication than is afforded by the Cape of Good Hope; for the Pacific Ocean is preëminently the sea of steamers, and where steam navigation, in respect of speed at least, is destined to achieve its most brilliant success. So far as the United States is concerned, the advantages of such a work would naturally be greater than to Europe.

Assuming a canal to be built across the Isthmus of Nicaragua, the following table will illustrate the relations of Liverpool and New York with the principal ports of the east, in respect of distance:

	Via Cape of Good Hope.	Via Proposed Canal.	Net Loss.	Net Gain.
From Liverpool—				
To Canton	12,900	13,800	900	
Calcutta	11,440	15,480	4,040	
Singapore	11,880	15,120	4,240	
Sydney	14,980	12,550		2,320
From New York—				
To Canton	14,100	11,820		3,280
Calcutta	12,360	13,680	1,320	
Singapore	12,700	11,420		280
Sydney	15,720	9,480		5,240

[The distances to Sydney are calculated via Torres Straits.]

THE COURSE OF
TRAFFIC.

The following table will illustrate the relations of Liverpool and New York in respect to the principal western ports of America:

	Via Cape Horn.	Via Proposed Canal.	Gain.
From Liverpool—			
To Valparaiso	8,700	7,500	1,200
Callao	10,020	6,800	3,220
Sandwich Islands	13,500	8,640	4,860
From New York—			
To Valparaiso	8,580	4,860	3,720
Callao	9,900	3,540	5,360
Sandwich Islands	13,200	6,300	6,900

But it is not to be assumed that all the trade, much less all the travel, treasure, and mails to the points which I have indicated, will, under any circumstances, pass through a canal. The passengers between New York and San Francisco, amounting annually to nearly 100,000, would never consent to make a voyage of from 1,000 to 2,000 miles out of their way, to Nicaragua, Panamá, Darien, or Atrato, for the sake of passing through a canal, however grand, when by a simple transshipment at Honduras, for instance, and a transit of 209 miles by railway, they would be able to avoid this long detour, and effect a saving of from 5 to 8 days of time; for even if steamers were to run to any canal which might be opened, and supposing no detention on account of locks or other causes (calculated by Colonel Childs at 2 days), even then it would be necessary for them to stop, for coals and other supplies, more than quadruple the time that would be occupied by the passengers over the railway in effecting their reëmbarkation. And what is true of passengers is equally true of treasure, the mails, and light freight of small bulk and large value.

I do not wish to be understood as arguing against a canal; what I mean to illustrate is this: that, open a canal wherever we may, it will always stand in the same relation to a railway as does the baggage-

train to the express. A canal would be chiefly, if not wholly, used by ships and vessels carrying heavy and bulky freights; but as most articles of this kind are kept in stock in all the principal ports of the world, it is not of so much consequence to have rapidity as constancy of supply, and hence, unless the canal shall be constructed so economically as to admit of a moderate tonnage rate, it is not improbable that ships of this kind would find it more economical to follow the routes now open. *Squier's States of Cent. America.*

In tracing, or attempting to trace, the routes of recent travellers in Darien, there is extraordinary difficulty, although the locality in question does not exceed a space of 40 miles by 30. Strange to say, the routes of the old buccaneers, of Dampier, Ringrose, Sharp, Wafer, and Davis, the inland journey of that remarkable man Paterson, and of the Spanish officer Don Manuel Milla de Santa Ella, [\[XXXIV-54\]](#) can be followed on the old Spanish maps, but not in our modern ones, even the best; while there are no data hitherto published that afford more than a guess at the tracks of modern explorers after leaving the sea-coast. Mr Gisborne has compiled, or rather copied, the principal part of the map, on which he has shown, *in red*, those portions which he himself saw and was enabled to lay down. No surveyor who reads his *Journal and Report* can doubt that he has given eye-sketches, aided by compass bearings and estimated distances; but the estimation of a practised eye is not to be undervalued. Dr Cullen can be traced up the Tuyra to Yavisa, and up the Paya; also up the Savana, but no farther inland.

The state of our geographical knowledge of that exceedingly interesting region is the following:

All examinations, all surveys, of the Great Isthmus were made by Spain alone, while she held the country (till the years 1821-31). Very good maps of much of the Spanish territory existed at that time; but

they have been copied and recopied by all manner of hands; scales and bearings have been altered, not intentionally, but by mistake; names omitted or misspelled; and absolute longitudes applied erroneously. Thus good original work came to be so deteriorated by its transmutations as to be almost useless.

No surveys need be better than some of the Spanish works undertaken toward the end of the last and during the beginning of this century. Methods and instruments were used by Tofiño, Malaspina, Espinosa, Bauza, Córdova, and others, that were not adopted, if known, by French or English surveyors until afterward. Triangulation without the compass, bases obtained by angular measurements of known objects, [\[XXXIV-55\]](#) and the most perfect style of plan-drawing on true principles, were practised by Spaniards before this century commenced.

The south coast of the Great Isthmus and the interior of Darien were not explored and mapped sufficiently, because of the hostile Indians, and political reasons connected with the gold mines in that district. There was also another source of error in that particular vicinity which has only recently been eliminated; namely, the great difference of longitudes, according to the maps, between places on opposite sides of the Isthmus which are really in the same meridian. This amounted to more than 30 miles along all the coast from Chiriquí to Darien with respect to the corresponding southern coast-line.

Thanks to the far-seeing and indefatigable hydrographer to the admiralty, Admiral Sir Francis Beaufort, the British surveys have included much of the coasts of Central America, and they are now placed in relatively correct positions on our latest maps. Having therefore exact coast-lines, or boundaries, we can avail ourselves more readily of much Spanish interior detail; but it is exceedingly difficult to get at the *original* works.

A very neatly engraved and *apparently* complete map of the Isthmus has been lately published at New Orleans by Dr Autenreith, but in reality it is only a copy of Spanish documents and recent surveys made by England; it is not an original work. There are in this country at present more materials for a map of Darien than exist elsewhere. Bauza brought copies of all the Spanish-American documents to this country, with many original maps; but there is still a great extent, nearly all the interior of the Isthmus of Darien, unexamined by the eye of a surveyor.

In the last century (1780), a Spanish party of five engineers and surveyors, under Donoso, escorted by a large body of troops, [\[XXXIV-56\]](#) was stopped by the Indians in the Chucunaque River, and obliged to return without executing their orders to survey the region near Caledonian harbor; and *this* was the *last* attempt by Spain, or by *any one*, to make a regular survey of the interior of that part of the Isthmus.

In the valuable collection of Mr Arrowsmith are many Spanish documents, among which one plan, dated 1774, shows all the Spanish establishments, military and religious, as well as mining, at that date, in Darien. Others show details of a previous century, and a few give the earliest settlements of the 16th century.

INJURY TO
TRUTHFUL
GEOGRAPHY.

And here allow one word to be said of the injury to *truthful* geography, caused by copying all materials without acknowledgment, or by adding imaginary topography without explanation. The map by Dr Autenreith has much the appearance of an exact survey; there is no distinction made between those parts for which there is authority and those which are partly the results of imagination (the interior hill-work).

The public in general being unaware of the *authorities* for a map, the mere copyist is often supposed to be the *author* of the work. Maps

or charts that are not original ought always to show from what data they have been compiled.

In order to assist in now forming a correct opinion of Darien, a retrospective historical glance at a few points is necessary.

The first settlement in all America was founded in 1509 at the mouth of the Atrato. It was called Santa Maria de la Antigua. The next settlement on the Isthmus was at Acla, or Agla, in 1514, a few miles inland^[XXXIV-57] from that port or bay now famed in history and romance, called by Paterson Caledonian Harbor. It was from Agla that Balboa crossed to the South Sea, and that the earliest expeditions to Peru were despatched.

In 1532 these two settlements were abandoned, and their population transferred to Nombre de Dios and Panamá. This is said to have been done on account of the unhealthy site of Santa Maria de la Antigua, surrounded by marshes and mangrove jungles; but why Agla was abandoned does not appear, except by Paterson's narrative, whence it may be inferred that the settlers there were harassed by the Indians, and were too far from the sea-shore. Besides which, as intercourse increased with places on the Pacific coasts it became, no doubt, more convenient to have a principal rendezvous on the southern shore more accessible from the Pacific.

In those early days so famed was Darien for gold, that the province was called 'Golden Castile'^[XXXIV-58] (Castilla del Oro). It was the principal portion of that 'tierra firme,' so famed afterward as the 'Spanish Main,' the real 'El Dorado' to which Sir Walter Raleigh went in 1517-18, Sir Francis Drake in 1557, troops of buccaneers in the 17th century, and the Scotch colony in 1698.

Repeated aggressions on this auriferous district, where abundance of gold was procured by black slave labor, after the aborigines had

been diminished in numbers by oppressive cruelties, induced Spain to close and abandon the mines for a time (early in the 18th century)—even those famous ones in the mountains of Espíritu Santo near Cana, from which alone more gold went through Panamá in a year than from all the other mines of America taken together. These Cana mines were sacked in 1702 and 1712 by English, in 1724 by French, and by the Indians in 1727. Nevertheless, in 1774 the mining operations were again going on, having been reestablished a few years previously.

When Cana was taken by the expedition (as narrated by Davis) sent from Jamaica by Colonel Beckford in 1702, there were about '900 houses' (probably most of them mere huts); therefore, the population could hardly have been less than 3,000 at that time. From 1719 to 1727 there was a great and general resistance of the Indians, who attacked the Spaniards in all directions, and drove them out of all the detached settlements. Some years afterward peace was made (in 1740), missions of the Jesuits advanced among the natives, and by their aid not only much topographical knowledge was acquired, but Spanish settlements in the interior were renewed and mines worked. But the Indians again rebelled; therefore, small forts were reestablished at Yavisa, Molineca, and Santa Maria Real, with a new post (in 1780) at *El Príncipe*, or Ocubti, from which a road was cut by Arisa, leading toward Caledonian Harbor. The fort El Príncipe does not appear in the Spanish MS. map of 1774; it was built about 1785, when the Spaniards had again advanced into the interior Indian territory.

In 1788 Milla de Santa Ella, an officer of Spain, went from Caledonian Harbor to El Príncipe direct by the road then recently opened by the Spaniards; but as he did not think it advisable to return the same way, he went down the Savana, and up the Chucunaque to the Tubuganti and Chueti rivers, whence he crossed to his station at Caledonian Harbor by the same route, undoubtedly, that Paterson traversed on his visit to the Indian great chief at Ponca in 1698.

The examination of no traveller, except Humboldt, previous to 1850, induced a belief that a canal might be cut directly through Darien. Dr Cullen's personal inspection of Caledonian Harbor, and of the Savana River, with their neighborhood, added to the information he obtained orally and by reading, led him to the conclusion that the lowest summit level between those places did not exceed 300 or 400 feet, while it might be very much less. Feeling so confident that a lower level existed, he went there again to explore; but while collecting further information and arranging preliminaries, at Bogotá, the seat of government in New Granada, Mr Gisborne (an engineer employed by Messrs Fox and Henderson) made short excursions from each side of the Isthmus, which satisfied him that the lowest summit level does not exceed 160 feet above the sea.

According to the most authentic map of this district, Mr Arrowsmith's last printed, not yet published, the distance across in a direct line—between deep water on each side—is about 33 miles. The windings of a canal may require nearly a third more, and if so, the whole distance to be canalized is about 40 miles—*a shorter distance than can be found elsewhere.*

Mr Gisborne's examination of the principal features of this line across Darien, however incomplete, is a material advance toward certainty. We have his two bases of operations, at Caledonian Harbor and San Miguel (entrance), nearly determined by recent government surveys, and we have his character as a guaranty for the value of those details which he has given in his *Report*. There may be a few miles of distance to settle, and there may be doubts whether the river near his watershed, or summit level, called by him *Caledonia*, may not be another river, perhaps the Chucunaque, or one of its tributaries; and moreover, that the range of heights supposed by him to separate those rivers is not truly placed, while his river Caledonia (otherwise the Golden River, or Aglatomate) winds through a more northerly area. But these are trifles compared with his barometric measurement of the

summit level, and his own overlapping eye-views of the country which he did not traverse.

If indeed the mouth of the Savana be not accurately laid down, or assumed by him, if it be much farther west than he supposed, his surveys may not have overlapped; and he may have looked across two different plains; in which case there may be yet another ridge or watershed beneath the rivers which he actually touched. The expedition employed by our government to survey this coast did not examine the mouths of rivers running into San Miguel. Only the western part of that gulf was examined in continuing the coast line. Hence the position of the Savana may be less accurately known than is generally supposed.

A HASTY
SCRAMBLE.

It is hardly necessary to remark here that to make independent observations for latitude, longitude, distance, and accurate triangulation requires more time and instruments than can be carried in a hasty scramble through a wild country.

Mr Gisborne's examination of the geology and mineralogy is valuable. Far from discovering any remarkable impediments to cutting a canal, he states that there are *no* particular engineering difficulties with respect to the *ground*; that there is much stratified shale-rock, easy to quarry, and fit to line a canal. There is abundance of fine timber. Mangrove forests, rather than jungles, surround the waters of the gulf. Densely matted underwood follows on drier ground; and then, on the elevated country, there are magnificent timber-trees very little encumbered by underwood.

Having thus endeavored to take a general view of this question, we may perhaps ask ourselves what are the greatest impediments to the excavation of a canal—impediments exceeding those that would attend any corresponding work in Europe.

Supposing that political arrangements are satisfactorily completed, the claims of other parties compromised or barred, and adequate funds disposable, the only peculiar and important impediments will be two—the natives and the climate. The native or Indian question, as connected with the independence and rights of the aborigines, should be considered deliberately. That the Indians may be overawed and conciliated by proper management, there is no doubt; but their reasonable claims must be satisfied, irrespective of all jurisdiction assumed over them by New Granada—a jurisdiction which the natives of Darien repudiate. Fair dealing, while an overpowering force is in sight, will prevent any attempt to have recourse to arms, or to molest the parties employed about a canal, and would therefore obviate any irritating and probably prolonged guerrilla hostilities.

It is estimated that there are about 5,000 independent Indians on the Isthmus east of Costa Rica. Of these, it may be presumed that there are not 2,000 capable of bearing arms; a small number when dispersed in the highlands between Costa Rica and Chocó, but quite enough to molest small parties of workmen very seriously.

For defensive purposes, as well as for the general order and discipline of very large bodies of laborers, in a wild country, some degree of military organization and an acquiescence in military discipline would seem to be indispensable.

Whether convicts might be employed advantageously may be a subject for grave consideration. In clearing the wood of a tropical forest, and exposing ground to the sun's rays for the first time, much pestilential sickness may be caused, as has been repeatedly proved (at Pulo Penang, Fernando Po, and many other places). It cannot be doubted that convicts would be peculiarly liable to the influence of such diseases, and therefore it might be unwise to make such an experiment. Natives of tropical climates, or Chinese, would probably

be able to stand the malaria of newly cleared ground far better than Europeans.

The most formidable, because permanent and irremediable, obstacle is unquestionably the climate. There is no doubt that rain prevails about two thirds of the year, even on the higher grounds of Darien; while it is no less certain that in the gulf of San Miguel (where mangrove jungles bound low, muddy shores, and the great fall of tide exposes extensive mud-banks) there is a continued succession of rains, more or less heavy, except during short intervals. Examine any travellers' accounts, read their narratives—they themselves bear witness to the undeniable fact, although in *general* terms they may say there is not *so much* rain, and it is not so unhealthy, as has been supposed.

Many Europeans state they did not suffer, although much and continuously exposed to the rains and heat. Active and temperate men have not found the climate very detrimental. Persons who have had many years' experience there assert that care and regularity will ward off such attacks of fever or dysentery as are common among thoughtless Europeans unaccustomed to tropical regions.

It is possible that the great rise of tide on the south side of the Isthmus may tend to purify the air on its shores, and this effect, in such a place as San Miguel Gulf, may be very beneficial.

On the Atrato, at Chagres, at Portobello, and other notoriously unhealthy places, there is little or no rise of tide; and the air among the mangrove jungles becomes at times pestilential. Seemann, in his *Voyage of the Herald*, recently published, gives so correct a description of such places that it deserves attention. He says (vol. i. p. 249): 'The sea-coast, and those parts influenced by the tides and the immediate evaporation of the sea, produce a quite peculiar vegetation, which is generally characterized by a leathery, glossy foliage, and leaves with

entire margins. In all muddy places, down to the verge of the ocean, are impenetrable thickets formed of mangroves, which exhale putrid miasmata, and spread sickness over the adjacent districts. Occasionally, extensive tracts are covered with the "Guagara de puerco," its fronds being as much as 10 feet high. Myriads of mosquitoes and sand-flies fill the air. Huge alligators sun themselves on the slimy banks, lying motionless, blinking with their great eyes, and jumping into the water directly any one approaches. To destroy these dreaded swamps is almost impossible.'

Again (pp. 251, 252), he says: 'Forests cover at least two thirds of the whole territory. The high trees, the dense foliage, and the numerous climbing plants, almost shut out the rays of the sun, causing a gloom which is the more insupportable as all other objects are hidden from view. Rain is so frequent, and the moisture so great, that the burning of these forests is impossible.' 'From reading the highly colored accounts with which many travellers have endeavored to embellish their narratives, the European has drawn, in imagination, a picture of equinoctial countries which a comparison with nature at once demolishes.'

Speaking of the 'vegetable ivory,' and referring to the climate, Mr. Seemann says (p. 222): 'It grows in low, damp localities, and is diffused over the southern parts of Darien and the vicinity of Portobello, districts which are almost throughout the year deluged by torrents of rain, or enveloped in the thick vapor that constantly arises from the humidity of the soil and the rankness of the vegetation.'

Describing the appearance of one of these mangrove forests, as they may be called, the same author observes (p. 73): 'The trees were actually in the water. The tall mangroves, with roots exposed for 12 or 14 feet, formed a huge tangled trellis-work, from which the tall stems rose to a height of 60 or 70 feet.' *Fitzroy's Further Considerations on*

the Great Isthmus of Cent. Am. March 1853, in *Jour. Roy. Geog. Soc.*, xxiii. 176-87.

THE LONG-
SOUGHT WAY.

The project of uniting the Atlantic and Pacific oceans by a canal large enough to permit the passage of sea vessels has attracted the attention and enlisted the earnest sympathies and efforts of the Old and New World, from the discovery of the Isthmus of Panamá down to the present time. The great historian Prescott says: 'The discovery of a strait into the Indian Ocean was the burden of every order from the government. The discovery of an Indian passage is the true key to the maritime movements of the fifteenth and the first half of the sixteenth centuries.' The desire to discover this passage, which was confidently believed to exist, and thus give to Spain the dominion of the seas, and pour into her treasury all the wealth of that marvellous land of exaggeration, the Spice Islands, sent Columbus, Pizarro, Cortés, Balboa, Gil Gonzalez, and the other Spanish mariners and adventurers, upon their long, arduous, and eventful voyages, and resulted in the discovery, conquest, and settlement of the American continent.

However long the voyage; however great the discovery; however boundless and rich the new countries that were subjected to the Spanish crown; however brilliant the prowess of a chivalrous soldiery—the emperor always asked, 'Have you discovered the way to the Spice Islands?' If not, he was unsatisfied, and the discovery and conquest were robbed of half their value. He was constantly reminding his brave and adventurous mariners that he desired above all things to discover the way to the Spice Islands, and promised great honors and rewards to the fortunate adventurer who should make the discovery. In 1523 the Emperor Charles the Fifth wrote to Cortés, earnestly urging him to search for a shorter way to the 'Indian Land of Spice,' and for a shorter and more direct passage between the eastern and western coasts of Central America. In answer to the emperor, Cortés wrote: 'It

would render the king of Spain master of so many kingdoms that he might consider himself lord of the world.' In 1524, in obedience to the emperor's wishes, he fitted out an expedition to discover it. Columbus wrote to the emperor: 'Your Majesty may be assured that as I know how much you have at heart the discovery of the great secret of a strait, I shall postpone all interests and projects of my own for the fulfilment of this great object.' It was for the purpose of making this discovery that Gil Gonzalez fitted out the expedition that resulted in the discovery of Nicaragua.

The interest in the interoceanic communication was not confined to the Spanish emperor, or his adventurous mariners. It extended to the learned men of Spain, and seriously engaged their attention. Francisco Lopez de Gomara, one of the earliest writers on America, in his chapter on 'the possibility of a shorter passage to the Moluccas,' in his work on the *Two Indies*, published in 1551, says: 'The passage would have to be opened across the mainland from one sea to the other, by whichever might prove the most profitable of these four lines; viz., either by the river Lagartos (Chagres), which, rising in Chagres, at a distance of four leagues from Panamá, over which space of territory they proceed in carts, flows to the sea-coast of Nombre de Dios; or by the channel through which the lake of Nicaragua empties into the sea; up and down which (the Rio San Juan) large vessels sail; and the lake is distant only three or four leagues from the sea; by either of these two rivers the passage is already traced and half made. There is likewise another river which flows from Vera Cruz to Tecoantepec, along which the inhabitants of New Spain (Mexico) tow and drag barks from one sea to the other. The distance from Nombre de Dios to Panamá is seventeen leagues, and from the gulf of Urabá to the gulf of San Miguel twenty-five, which are the two most difficult lines.' Cortés was in favor of the first of these routes, Gil Gonzalez of the second, and Pizarro of the third. Herrera, royal historiographer of Spain, writing of the events of 1527, refers to the routes via Nicaragua and Panamá, and

the possibility of other connections between the two oceans. Martin Behaim, a geographer of Nuremberg, Germany, was probably the first who suggested the possibility of a natural communication between the Atlantic and Pacific. So Magellan stated in his memorial of November 28, 1520, to the court of Valladolid, asking permission to search for such a channel. It was granted, an expedition was fitted out, and he discovered the Straits of Magellan, bearing his name.

Soon after the discovery of Nicaragua by Gil Gonzalez, it was declared and believed by many that there existed a navigable channel, connecting Lake Nicaragua with the Pacific, and that vessels would be enabled to pass from one ocean to the other. But no systematic attempt was made to ascertain the truth of this conjecture until 1529, when Pedrarias de Ávila, then governor of Nicaragua, sent an expedition of soldiers and Indians, under Martin Este, to explore lakes Nicaragua and Managua; when they had penetrated into a province called Voto, a little north of Lake Managua, they were attacked by a large body of Indians, and compelled to return. They reported that they saw from a mountain top a large body of water (doubtless the gulf of Fonseca), which they supposed to be another lake. Don Diego Machuca soon afterward fitted out another expedition in the same year, which he accompanied and commanded. It resulted in the discovery of the river San Juan as the true outlet of the lakes. He sailed down that river to the Atlantic. Machuca Rapids take their name from him.

OVIEDO'S
ACCOUNT.

Oviedo says that in 1540, at St Domingo, he met Pedro Cora, a pilot who had been attached to the expedition of Martin Este, and subsequently to that of Captain Diego Machuca. He gives a long and interesting account of the second expedition, as narrated to him by Cora. Cora said that at the port of Nombre de Dios he met with some old friends who had built a felucca and brigantine on the shores of Lake Nicaragua at an expense of several thousand dollars. Among them was Diego Machuca, who had been commandant of the country of the

Tenderí, and of the district about Lake Masaya. They embarked on these vessels on Lake Nicaragua for the purpose of exploring it. Captain Machuca, with two hundred men, advanced along the shore, keeping in sight of the boats, which were accompanied by several canoes. After some days they entered the San Juan River, and passed down to where its waters appeared to flow into the sea. Being ignorant of their locality, they followed the sea-coast in an easterly direction, and finally arrived at Nombre de Dios, where the pilot Cora met them. They were arrested at this place by Doctor Robles, who desired to found a colony at the mouth of the San Juan River, and thus reap the benefit of their labor and discoveries, 'as is the custom,' says Oviedo, 'with these men of letters; for the use they do make of their wisdom is rather to rob than to render justice.' For this outrage he was deprived of his office. The pilot, though strongly importuned, refused to tell Oviedo where the river emptied into the ocean.

Oviedo says: 'I do not regard the lakes as separate, because they connect, the one with the other. They are separated from the South Sea by a very narrow strip of land.... This lake (Nicaragua) is filled with excellent fish. But what proves that they are both one lake is the fact that they equally abound in sea fish and turtles. Another proof is, that in 1529 there was found in the province of Nicaragua, on the banks of this lake, a fish never seen except in the sea, and called the sword-fish. I have seen some of these fish of so great size that two oxen attached to a cart could hardly draw them.... The one found on the shores of this lake was small, being only about twelve feet in length.... The water of the lake is very good and healthful, and a large number of small rivers and brooks empty into it. In some places the great lake is fifteen or twenty fathoms deep, and in other places it is scarce a foot in depth; so that it is not navigable in all parts, but only in the middle, and with barks specially constructed for that purpose.... It has a large number of islands of some extent, covered with flocks and precious woods. The largest is eight leagues in circumference, and is inhabited by Indians. It

is very fertile, filled with deer and rabbits, and named Ometepe, which signifies *two mountains*. It formerly contained a population much more numerous than now, divided into eight or ten villages. The mountain in this island toward the east (Madeira) is lowest; the other (Ometepe) is so high that its summit is seldom seen. I passed a night at a farm belonging to a gentleman called Diego Mora, situated on the mainland'—probably near the site of Virgin Bay. 'The keeper told me that during the two years he had been in that place he had seen the summit but once, because it was covered with clouds.'[\[XXXIV-59\]](#) There are many evidences that the channel of the San Juan River was once much deeper and freer from rapids and obstructions than it is at present. At one time, sea vessels passed regularly up and down the river. It would be impossible for them to do so now. The river is too shallow, and the rapids are too many and difficult. In 1648 a Spanish brig from Carthagená (de la Indias) arrived at Granada, and discharged her cargo, reloaded, and started on her return. On her voyage back, the river was found unnavigable at one point, and the vessel returned to Granada; the cargo was taken out, and the ship laid up, and finally broken to pieces. Thomas Gage, an English monk, who visited Nicaragua in 1665, says that vessels often arrived at Granada, from South America, Spain, and Cuba, and reloaded and returned to those countries by way of the San Juan River and Lake Nicaragua.

In 1781 Manuel Galisteo, by order of the Spanish government, examined the country, and carefully surveyed a route for a canal between Lake Nicaragua and the Pacific. He estimated the level of the lake above the Pacific to be one hundred and thirty-four feet. The route selected by him was from the mouth of the Rio Lajas in the lake to San Juan del Sur. Early in the present century, a survey was made by an engineer name Thompson, of which we have no details, further than that he adopted the report made by Galisteo.

In 1837 Mr Baily was employed by the federal government of Central America, and made a careful survey of a route for the canal. He spent much time and a considerable sum of money in making the surveys, but was never paid for his services. Dr Andreas Örsted, of Copenhagen, made a survey in 1848, and published a map of the country. He selected the bay of Bolaños, thirteen and a half miles from Lake Nicaragua, as the Pacific terminus of the canal. In 1851 Colonel Childs, an Englishman, made a thorough survey and estimate of the whole work. He selected Brito as the Pacific terminus. According to his estimates, the actual length of water navigation, including the San Juan River and Lake Nicaragua, would be one hundred and ninety-four and one half miles. He submitted his plan and surveys to the British government, by which it was referred to James Walker and Edward Aldrich, royal engineers, who reported unfavorably. The plan and reports were then laid before a committee of English capitalists, with the purpose of raising the necessary capital for the work. But after a careful investigation, the committee declined to recommend the enterprise, believing it would be unprofitable, and more for the benefit of the United States than of Great Britain. This survey, and the action of the British government upon it, furnish strong confirmation of the general opinion, as to the purpose of that government, in seizing Greytown and the bay of Fonseca. A survey was made in 1850 by the Central American Transit Company.

After the independence of the Central American states had been established, Manuel Antonio de la Cerda, afterward governor of Nicaragua, represented to the federal congress, in July 1823, the urgent necessity for opening the canal without delay. But no action was then taken in the matter. During the next year several propositions relative to the construction of the canal were made to the federal government by parties in Europe. Barclay & Co., of London, made a proposition, on the 18th of September, 1824, to open a canal, between the Atlantic and Pacific, by way of the San Juan River and Lake Nicaragua, at their

own cost, if the government would assist them in certain particulars. On the 2d of February, 1825, Charles Bourke and Matthew Llanos addressed a communication to the government, stating that in the preceding December they had sent an armed brig with a party of engineers to Greytown, to survey the route, and praying that they might be granted: 1. An exclusive proprietorship and control of the canal; 2. An exclusive right to navigate the lakes and dependent waters by steam; 3. Free permission to use all natural products of the country necessary for the work; 4. Exemption from duty for the goods and materials introduced by the company during the pendency of the work. They offered to pay the government twenty per cent on the tolls received, and to surrender the work at the end of a certain number of years.

MR. CLAY'S
ASSURANCE.

On the 8th of February, 1825, Don Antonio José Cañas, then minister from the federal government to the United States, addressed a communication to Henry Clay, then secretary of state, upon the subject of the canal, soliciting the coöperation of our government in the work, upon the ground that 'its noble example had been a model and protection to all the Americas,' and entitled it to a preference over any other nation in the 'merits and advantages of the proposed undertaking.' He proposed by means of a treaty to effectually secure its advantages to the two nations. Mr Clay instructed Colonel John Williams, U. S. chargé d'affaires in Central America, to assure that government of the great interest taken by the United States in an undertaking 'so highly calculated to diffuse a favorable influence on the affairs of mankind,' and to carefully investigate the facilities afforded by the route, and transmit the intelligence acquired to our government. Colonel Williams never made any report of his action under these instructions.

During the year 1825, many other propositions for the construction of the canal were received by the federal government

from Europe. The attention of the government was thus strongly attracted to the importance and value of the proposed canal, both as affording a considerable revenue to the government, and aiding in the settlement of the country, and development of its resources. In June 1825, the federal congress passed a decree defining the terms and conditions upon which the canal might be constructed. Another decree, published at the same time, fixed the period of six months for receiving proposals for the work. The time was much too short, and but few offers were received. Among them was one from Mr Baily, the surveyor, as agent for the English house of Barclay, Herring, Richardson, & Co., which was conditional, and one from Charles Beninske for Aaron H. Palmer, of New York, which was accepted. The contractors, under the name of 'The Central American and United States Atlantic and Pacific Canal Company,' agreed to open a canal through Nicaragua, which should be navigable for large ships, and to deposit two hundred thousand dollars in the city of Granada, within six months, for the preliminary expenses of the work; to erect fortifications for its protection; and to commence work within one year. The contractors were to receive two thirds of the tolls from the canal until they had been reimbursed for the full cost of the work, with ten per cent interest; afterwards to have one half of the proceeds for seven years, with the right to introduce steam-vessels. The government agreed to place at their disposal all the documents in its possession relating to the canal; to furnish laborers at certain wages; and to permit the cutting and use of the timber in the country. If the canal was not completed, all the work done was to be forfeited to the government. This contract was dated June 14, 1826. The contractors had not sufficient capital for the construction of the canal, and failing to obtain it in New York, addressed a memorial to the United States congress, praying the assistance of the government in their work, which they represented to be of national importance. The memorial was referred to a committee, but never reported on. The enterprise excited considerable attention in New York, and the grant obtained from the

federal government of Central America was believed to be valuable. Mr Palmer executed a deed of trust to De Witt Clinton, Stephen Van Renssalaer, C. D. Clinton, Phillip Hone, and Lynde Catlin, constituting them directors of the company which was being organized for the construction of the canal. Mr Palmer went to England in 1827, and endeavored, but without success, to obtain the coöperation of English capitalists. All his efforts were ineffectual, the necessary capital could not be raised, and the enterprise was abandoned. Mr Clay, then secretary of state, earnestly advocated the construction of the canal, believing it would be of great advantage to this country.

In 1828 an association of capitalists in the Netherlands, under the patronage of the king of Holland, undertook the construction of the canal. In 1829 the king sent General Verveer, as plenipotentiary to Guatemala, with special instructions relative to the canal. In October of the same year, commissioners were appointed by the federal government to confer with General Verveer, and on the 24th of July, 1830, they agreed upon a plan, which was to be laid before the federal congress for its approval. The conditions were much the same as in the contract with Mr Palmer. The revolution in Belgium, and the separation of Holland, terminated this enterprise. The federal congress had been stimulated to greater anxiety for the construction of the canal by these various proposals and contracts, and believing that there was more likelihood of its being made by the Dutch company than any other, in 1832 made ineffectual efforts to renew negotiations with Holland for reviving that company, and enabling it to complete its contract.

In the mean time, the efforts and representations of Mr Clay, De Witt Clinton, and other distinguished men had awakened public interest in the people and government of the United States in the proposed canal, and convinced them that it was important that our government should, if possible, control the work, and reap the benefits and advantages which it was believed would result to our commerce

from it. On the 3d of March, 1835, the United States senate adopted a resolution, requesting the president to consider the expediency of opening negotiations with the Central American states and New Granada for protecting by treaty stipulations companies undertaking to open a canal across the Isthmus, connecting the two oceans, and of securing its free and equal navigation to all nations. By virtue of this resolution, President Jackson appointed Charles Biddle, and directed him to go to San Juan del Norte, and thence across the Isthmus to the Pacific, by the proposed route; to proceed to Guatemala, the capital, and with the aid of Mr De Witt Clinton, U. S. chargé d'affaires, obtain all public papers, and copies of the laws passed, and all papers and information relating to the canal. He was also to go to Panamá, and ascertain all about that route. Mr Biddle did not go to Nicaragua, and died soon after his return to the United States. His mission was a failure.

ACTION OF THE
GOVERNMENT.

The government of Central America now determined to survey the route for the canal, and thus demonstrate to the world its practicability. In 1837 President Morazan employed Mr John Baily to survey the route, which he did, as already stated. In 1838 a convention between Nicaragua and Honduras authorized Peter Bouchard to make an agreement in France for the organization of a company to construct the canal. He did not succeed in accomplishing anything. Don Jorge Viteri, bishop of San Salvador, was sent as ambassador to Rome, and make like efforts, but without success. In the same year, a company of Americans in New York and New Orleans sent Mr George Holdship to Central America. He made a contract with Nicaragua, which had seceded from the federal republic, for the construction of a canal, the establishment of a bank, and the introduction of colonists. This scheme was extensive, but amounted to nothing, as the enterprise was soon abandoned.

In 1838, Aaron Clark, Herman Leroy, William A. Duer, Matthew Carey, and William Radcliff, citizens of New York and Philadelphia, addressed a memorial to congress, representing the necessity for the opening of the interoceanic canal. It was referred to a committee, of which Hon. Charles F. Mercer was chairman, who, upon the 2d of March, 1839, reported upon it, recommending the following resolution, which was adopted:

'Resolved, That the president of the United States be requested to consider the expediency of opening or continuing negotiations with the governments of other nations; and particularly with those the territorial jurisdiction of which comprehends the Isthmus of Panamá, and to which the United States have accredited ministers or agents, for the purpose of ascertaining or effecting a communication between the Atlantic and Pacific oceans, by the construction of a ship-canal; and of securing forever, by suitable treaty stipulations, the free and equal rights of navigating such canal to all nations, on the payment of reasonable tolls.' The president and senate, acting under this resolution, negotiated and made a treaty between the United States and New Granada, by which our government guaranteed the neutrality of the Isthmus, and New Granada conceded a free transit across it. The Panamá Railroad Company was organized by virtue of this treaty; and, as we all know, the existing railroad across the Isthmus was built by them; with what labor, and cost in money and human life, it is foreign to our purpose to inquire.

Between the years 1838 and 1844, Central America was distracted by civil wars, and all action relative to the canal was suspended. In 1844, Don Francisco Castellon, minister from the republic of Nicaragua to France, made a contract with a Belgian company, acting under the patronage of the king of Belgium, for the construction of the canal. But this contract was as unsuccessful as its predecessors. In 1846, Mr Marcoleta, Nicaraguan chargé d'affaires to Belgium, made a contract with Louis Napoleon (the present French emperor), then a

prisoner at Ham, for its construction. With his characteristic vanity, he stipulated that it should be called 'Canal Napoleon de Nicaragua.' Napoleon wrote and published a pamphlet in London, upon the subject, and made a feeble attempt to awaken the attention of capitalists, but without success. His pamphlet had only a limited circulation, but was afterward republished by M. Belly. On the 16th of February, 1849, William Wheelright made a proposition in behalf of an English company for the construction of the canal, but it was not acted upon.

On the 14th of March, 1849, Mr D. T. Brown, in behalf of certain citizens of New York, and General Muñoz, commissioner for Nicaragua, entered into a contract for the construction of a canal, but it was neither ratified by the executive of that republic nor by the company in New York, within the stipulated time. The seizure of Greytown by the English, in 1848, and the pretext of a Mosquito protectorate, were rightly regarded by the Nicaraguan government and our own, as directed to obtaining command and permanent control and dominion over the only possible route for an interoceanic canal.

On the 21st of June, 1849, Mr Hise, U. S. chargé d'affaires to Nicaragua, concluded a convention with commissioners appointed by that republic, giving the United States a perpetual right of way through that republic, of erecting forts, and protecting the transit. This convention was not approved by our own government, or by that of Nicaragua. On the 4th of March, 1850, General Taylor was inaugurated president of the United States, and soon after sent Mr E. G. Squier to Central America to supersede Mr Hise, as chargé d'affaires to Guatemala, with special commissions to the other states of Central America, "with full power to treat with them separately on all matters affecting their relations with this republic." Upon his arrival in Nicaragua, Mr Squier found an agent of Cornelius Vanderbilt, and others of New York, who was endeavoring to obtain a grant from that government for the construction of a canal. The government was at

first indisposed to listen to his overtures, until assured by Mr Squier that the United States government would guarantee any charter, not inconsistent with our public policy, that might be granted by Nicaragua.

On the 27th of August, 1850, a contract was signed between the government of Nicaragua and the agent of the New York company, and afterward ratified on the 23d of September following, containing the following provisions, viz.:

1. That the American Atlantic and Pacific Ship Canal Company may construct a ship-canal, at its own expense, from San Juan to Realejo, or any other point within the territory of Nicaragua, on the Pacific, and make use of all lands, waters, or natural materials of the country for the enterprise.

2. The canal shall be large enough to admit vessels of all sizes.

3. The grant is for eighty-five years from the completion of the work; the surveys to be commenced within twelve months; the work to be completed within twelve years, unless interrupted by unforeseen events. If not completed within the stipulated time, the charter will be forfeited, and all work done shall revert to the state. At the end of eighty-five years the canal shall revert to the state; the company, nevertheless, shall receive fifteen per cent annually of the net profits for ten years thereafter, if the entire cost of the canal does not exceed twenty million dollars; but if it does, then it shall receive the same percentage for twenty years thereafter.

4. The company to pay the state ten thousand dollars per annum, during the progress of the work, and to give it two hundred thousand dollars of the capital stock, and to pay twenty per cent of the net profits for twenty years, and twenty-five per cent thereafter.

FURTHER
CONTRACT
PROVISIONS.

5. The company to have the exclusive right to navigate the interior waters of Nicaragua by steam, and within twelve years to open any land or other route, by means of transit or conveyance across the state, and pay ten per cent of the net profits of such transit to the state, and transport on such transit, and the canal, when finished, the officers and employés of the republic free of charge.

6. The canal to be open to the vessels of all nations.

7. The contract and the rights and privileges conceded by it to be held inalienably by the individuals composing the company.

8. All disputes shall be settled by commissioners appointed in a specified manner.

9. All machinery and other articles introduced by the company into the state, for its own use, to enter free of duty; and all persons in its employ to enjoy all the privileges of citizenship, without being subject to taxation or military service.

10. The state concedes to the company, for purposes of colonization, eight sections of land, on the line of the canal, in the valley of the river San Juan, each six miles square, and at least three miles apart, with the right of alienating the same under certain reservations. All settlers on these lands to be subject to the laws of the republic, being, however, for ten years exempt from all taxes and from all public service so soon as each colony shall contain fifty settlers.

On the same day Mr Squier negotiated a treaty with Nicaragua, which provided that citizens, vessels, and merchandise of the United States should be exempt from duty in the ports of Nicaragua; and that citizens of the United States should have a right of way through the republic. The government of the United States agreed to protect the company in the full enjoyment of its rights from the inception to the

termination of its grant. The rights, privileges, and immunities granted to the government and citizens of the United States shall not accrue to any other government, unless it first enter into the same treaty stipulations with Nicaragua as the United States has done. This treaty was ratified by the Nicaraguan legislative chambers on the 23d of September following, but was not acted upon by the United States senate, to which it was sent by President Taylor. This treaty was opposed by the British minister at Washington, who energetically exerted himself to secure its defeat.

The Clayton-Bulwer treaty between the United States and England guaranteed the neutrality of the canal, and both governments agreed to protect any company undertaking the work. The object of our government in this convention was to put an end to the Mosquito protectorate.

In August 1850 the company sent a party of engineers from New York to Nicaragua to survey a route from Lake Nicaragua to the Pacific, near the line taken by Galisteo and Baily. Soon afterwards the steamer *Director* was sent from New York to Lake Nicaragua, and smaller boats were sent to the San Juan River. A new road was opened to the Pacific from Virgin Bay on the lake to San Juan del Sur. A line of steamers was established from New York to Greytown, and from San Juan del Sur to San Francisco.

The new contract made with United States citizens, and ratified and enforced by treaty with our own government, was not consistent with the wishes or policy of Great Britain, but the generosity of our government in throwing open the proposed canal to all nations disarmed hostile criticism, and deprived Europe of any pretext for opposition or protest. It quickened England into new energy, in the assertion of her claims under the Mosquito protectorate. On the 15th of August, 1850, the British consular representative in Central America addressed a note to the Nicaraguan government, in which he stated the

boundary claimed by his government as follows: 'The undersigned, her Britannic Majesty's chargé d'affaires in Central America, with this view, has the honor to declare to the minister of foreign relations of the supreme government of Nicaragua, that the general boundary line of the Mosquito territory begins at the northern extremity of the boundary line between the district of Tegucigalpa in Honduras, and the jurisdiction of New Segovia; and after following the northern frontiers of New Segovia it runs along the south-eastern limits of the district of Matagalpa and Chontales, and thence in an easterly course, until it reaches the Machuca Rapids, to the river San Juan.' If this boundary line had been allowed, as claimed, it would have placed the only possible route for the proposed canal in the occupation and control of Great Britain. *Daniel Cleveland's Across the Nicaragua Transit*, MS., 118-42.

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FOOTNOTES

[1-1] See *History of Mexico*, this series. The masses of the people were kept in utter ignorance, to be used, if necessary, as the blind tools of the ruling oligarchy. *Montúfar, Reseña Hist.*, i. 6.

[1-2] I have told in my *History of Mexico* how Carlos IV. was forced to abdicate, and his son Fernando raised to the throne.

[1-3] There were the governor, archbishop, oidores of the real audiencia, Marqués de Aycinena, high officials of the treasury, dean and chapter of the archdiocese, alcaldes and regidores of the 'muy noble ayuntamiento,' officers of the university, prelates of the religious orders, prior and consuls of the real consulado, intendente of Comayagua, temporarily sojourning in the city, secretary of the audiencia, commandant of the artillery, and colonels of the militia regiments. *Diario Méx.*, ix. 316-18; *Guat. por Fern. VII.*, 2-6, 83-94; *Saravia, Manif.*

[1-4] His last position in Europe had been that of teniente de rey of Palma, in the island of Majorca. *Juarros, Guat.*, i. 273.

[1-5] *Guat. por Fern. VII.*, 50. In 1866 their descendants were living in Guatemala.

[1-6] Dec. 13, 1808.

[1-7] The acts were performed with great solemnity and magnificence, the people manifesting much joy. This evidence of loyalty was warmly acknowledged, May 27, 1809, by the Junta Suprema Gubernativa of Spain, sitting at Seville and acting for the imprisoned king. Most glowing descriptions of the ceremonies appear in *Diario Méx.*, xi. 279-80; *Guat. por Fern. VII.*, 7-82, 94-101, 158-9.

[I-8] 'No son propiamente colonias, ó factorías, como los de otras naciones, sino una parte esencial é integrante de la Monarquía Española.' *Guat. por Fern. VII.*, 163-6; *Dublan and Lozano, Leg. Mex.*, i. 326-7.

[I-9] Ayuntamientos of head towns were to choose three honorable and competent men, from among whom each ayuntamiento had to draw by lot one elector, whose name, country, age, profession, and political and moral qualifications must be at once made known to the president of the audiencia. After the names of all the nominees were in his possession, he, jointly with the electors, had to select by secret ballot three candidates of the highest recognized character and ability, out of which three the audiencia, presided over by the governor-general, was to choose the deputy, to whom all the ayuntamientos must forthwith send their powers and instructions. The deputy, duly provided with means to journey decorously, was required to embark for Spain, his yearly pay being fixed at \$6,000. *Alaman, Hist. Méj.*, i. 291-2. A later order of Oct. 6, 1809, required the deputy to be a native of Spanish America and a resident of the province choosing him; he was not to be the holder of any of the chief offices therein, such as governor, intendente, oidor, etc., nor a debtor to the royal treasury. The right of election was also given to minor ayuntamientos; and for the choice by plurality from among the candidates of cities a board was constituted, with two members of the audiencia, two canons, and two citizens named by the ayuntamiento. *Guat. por Fern. VII.*, 165-6.

[I-10] His competitors were José de Aycinena and Lieut-col Antonio Juarros.

[I-11] He was not to give assent to the transfer of the Spanish dominions to any foreign power; the nation's rights must be upheld at all hazards; and the last drop of blood shed for the catholic religion, and for king and country.

[I-12] Feb. 14 and June 26, 1810. *Diario Méx.*, xiii. 549-51.

[I-13] The American suplentes were lawyers or ecclesiastics seeking preferment at court, or military officers with a long residence there. *Alaman, Hist. Méj.*, iii., ap. 4; *Bustamante, Defensa*, 16; *Dispos. Varias*, ii. fol. 10; *Zamacois, Hist. Méj.*, viii. 450-1. The second named proxy in Nov. 1811 gave up his seat to the regularly chosen deputy. *Córtés, Diario*, 1811, 93.

[I-14] October 15, 1810. *Alaman, Hist. Méj.*, iii. 10; *Zamacois, Hist. Méj.*, viii. 458-9.

[I-15] Installed June 9, 1810. Its first members were the Spaniards José Mendez, an artillery officer, Oidor Joaquin Bernardo Campuzano, and Auditor de Guerra Joaquin Ibañez. *Marure, Bosq. Hist. Cent. Am.*, 5.

[I-16] Saravia died like a soldier, and his fate was deplored even by the enemies of his cause. *Hist. Mex.*, iv. 486, this series. The Mexican writer Bustamante, who was not prone to praise Spanish officers, said of Saravia, 'hombre de bien, humano, religioso, de un corazon recto, digno de mejor fortuna.' *Cuadro Hist.*, ii. 217; *Alaman, Hist. Méj.*, iii. 325. He was accused, however, though it is believed the charge was slanderous, of having connived at smuggling by the treasury officials. The charge appears in *Cancelada, Tel. Mex.*, 107-9.

[I-17] One was a cruise round the world under Malaspina, being the next in rank and commanding the corvette *Atrevida*. *Juarros, Guat.*, ii., adv. ix.; *Marure, Bosq. Hist. Cent. Am.*, i. 6; *Zamacois, Hist. Méj.*, vi. 134; viii. 569; *Los Anales*, Sept. 1872, 30; *Salv., Diario Ofic.*, 1874, ap. 1.

[I-18] These were restrictions enforced by the crown against agriculture, mining, fisheries, manufactures, and commerce, despotism of rulers, and disregard of the merits of Americans, in keeping them out of public offices. See *Hist. Mex.*, iv. 441-67, this series.

[I-19] In the first half of the 18th century.

[I-20] In the matter of appointments to office, an early royal order prescribed that American descendants of Spaniards should have the preference for the position of curate; and yet, during the last thirty years, the most lucrative curacies were given to European Spaniards. Of the 170 viceroys that ruled in America, four only were of American birth, and those were reared or educated in Spain. Out of 602 captain-generals, governors, and presidents, only 14 were Americans. Of 982 bishops and archbishops, 703 were Europeans, and 279 Creoles. Most of the latter were nominated in early times, when Europeans were few, navigation difficult, and mitres afforded more work than money. *Guerra, Rev. N. Esp.*, i. 278-85.

[I-21] We are assured that Antonio Larrazábal, a clergyman, Antonio Juarros, and José M. Peinado were the chief authors of the instructions for Central American deputies in Spain. The Central American deputies whose names were appended to the constitution were: Larrazábal for Guatemala; José Ignacio Ávila for Salvador; José Francisco Morejon for Honduras; José Antonio Lopez de la Plata for Nicaragua; and Florencio Castillo for Costa Rica. *Córtés, Col. Dec.*, ii. 158-62; iii. 201-2; *Córtés, Diario*, 1813, xvii. 240; *Pap. Var.*, ccx. no. 1, 109-17; *Const. Polít. Monarq.*, 1-134. Larrazábal ably defended in the córtés the rights of the Americans, specially of the aborigines, and above all, the national sovereignty. For this, after Fernando VII. returned to Spain in 1814, he was denounced by the absolutists, Conde de Torre Muzquiz and Marqués de Mata Florida, and confined in a fort in Spain. Pineda de Mont, in *Guat. Recop. Leyes*, iii. 348.

[I-22] *Méx., Col. Ley. Fund.*, 34-91.

[I-23] The junta preparatoria, Nov. 12, 1812, designated only 12 deputies to the Spanish córtés from Central America (Chiapas included), based on the inaccurate census of 1778, which gave the whole country—with 101,506 for Chiapas—949,015 inhabitants in 881 towns. It was fixed that the 12 provinces of Guatemala, Chimaltenango, Quezaltenango, Ciudad Real de Chiapas, Vera Paz, San Salvador, San Miguel, Chiquimula, Sonsonate, Leon, Costa Rica, and Comayagua should each choose one deputy; and Guatemala, Ciudad Real, Leon, and Comayagua the four suplentes. Only two diputaciones provinciales were at first established, one in Guatemala and one in Leon. *Córtés, Act. ord.*, i. 1813, Oct. 12, 62; *Mendez, Mem. in Pap. Var.*, ccxv. no. 17, 16-17; *Conder's Mex. and Guat.*, ii. 310; *Modern Traveller's Mex. and Guat.*, ii. 309-10. Later, under the constitutional régime, Chiapas was represented in the Spanish córtés, and had a diputacion provincial. *Larrainzar, Discurso*, 12. In 1812 a census was formed to ascertain how many deputies Chiapas should have in the córtés. Pineda, in *Soc. Mex. Geog. Boletín*, iii. 400.

[I-24] Quezaltenango had already, by its ayuntamiento of Aug. 12, 1812, expressed approval of the provisions of the instrument, promising loyal obedience to it. In Honduras Gov. Juan Antonio Tornos granted leave for the erection of a monument in the plaza of Comayagua, which was carried out. *Córtés, Diario*, ii., March 17, 18, 1822.

[I-25] Some authors give the 19th as the date of this defeat. *Alaman, Hist. Méj.*, iii. 343-4; *Bustamante, Cuad. Hist.*, ii. 269-73; *Zamacois, Hist. Méj.*, ix. 9-10, 110-11. The last-named authority asserts that Dambrini again invaded and took the town of Tehuantepec, February 1814. During the revolutionary wars of Mexico, Chiapas, owing to her isolated position, was not a seat of war; and even when Morelos' troops from Oajaca visited Tonalá, as above stated, there was no resistance. This country enjoyed peace during the struggle in New Spain. *Larrainzar, Chiapas*, in *Soc. Mex. Geog. Boletin*, iii. 100.

[I-26] Letters were constantly sent to the Spanish government, and to private persons, which were published in the newspapers friendly to the Spanish cause, representing the independents as banditti and murderers, and the Spaniards as exemplars of moderation. It was the emissaries of Bonaparte who had induced the Americans to rebel, they said. Trumped-up miracles and punishments from heaven, anathemas, and every means suggested by foul fanaticism were used to make the friends of freedom odious. Archbishop Casaus granted 80 days' indulgences to Guatemalans not participating in the revolutionary movements of Mexico. *Puerto, Convite*, pt iii., 2-3.

[I-27] The invitations sent the people of San Miguel to coöperate were burned in the plaza by the hands of the public executioner. Nor were these towns left without the usual cheap reward of monarchs. San Miguel received the title of 'muy noble y leal;' San Vicente was made a city, which title was confirmed Jan. 15, 1812. According to Juarros, *Guat.* (Lond. ed., 1823), 257, many noble families dwelt in the place, and among its founders were some descendants of Gonzalo and Jorge Alvarado, brothers of Pedro, the conqueror. Santa Ana was raised to the rank of villa. The parish priests of the several places were promoted to be canons of the chapter of Guatemala. *Córtes, Diario*, 1812, xiv. 38, 167; *Marure, Bosq. Hist. Cent. Am.*, i. 8.

[I-28] The archbishop sent priests to preach against the insurgents. *Marure, Bosq. Hist. Cent. Am.*, i. 9. Bustamante, *Cuadro Hist.*, ii. 270, says that the whole country would have been driven into rebellion but for the advice of the able secretary of government, Alejandro Ramirez.

[I-29] Aycinena was, on the 7th of Feb., 1812, made by the Spanish córtes a councillor of state, and in Aug. 1813, entered upon his duties at Cádiz. *Córtes, Diario*, 1812, xvi. 16; 1813,

xxii. 216. According to Zamacois, the appointment was made only after the adoption of the constitution; it is possible that the appointment was then renewed or confirmed. *Hist. Méj.*, viii. 557; *Ayon, Apuntes*, 15-16; *Rev. Cent. Am.*, 2-3; *Salv., Diario Ofic.*, Feb. 11, 1875; *Valois, Mex.*, 213-16.

[I-30] In 1813 he was elected a deputy to the Spanish *córtes*, but declined the position on account of ill health. *Córtes, Diario*, 1813, xxii. 216.

[I-31] A person writing from Guatemala, and referring to a document issued August 1811, in secret session held in London by 33 Spanish Americans, after registering his disapproval of its purpose, positively asserted that the masses were well disposed, fond of peace, and respectful to authority, if some agent of Satan did not turn their heads and make them believe they were superior beings, who needed no ruler over them. *Cancelada, Tel. Mex.*, 438.

[I-32] Before the attack the city was visited by Father Benito Soto, as pacificator and commissioner from the bishop governor. He tried to fulfil his mission without degrading his countrymen; but seeing the object of the war was to crush liberal Americans, he made common cause with the Granadinos. *Marure, Bosq. Hist. Cent. Am.*, i. 11-12. *Ayon, Apuntes*, 17, gives the attack as occurring in August, which is an error.

[I-33] Miguel Lacayo, Telésforo and Juan Argüello, Manuel Antonio de la Cerda, Joaquin Chamorro, Juan Cerda, Francisco Cordero, José D. Espinosa, Leon Molina, Cleto Bendaña, Vicente Castillo, Gregorio Robledo, Gregorio Bracamonte, Juan D. Robledo, Francisco Gomez, and Manuel Parrilla were to suffer death. Among those sentenced to hard labor for life were Juan Espinosa, the adelantado of Costa Rica, Diego Montiel, and Pio Argüello. *Ayon, Apuntes*, 17-18; *Marure, Bosq. Hist. Cent. Am.*, i. 12-14; *Rev. Cent. Am.*, 3.

[I-34] One of them, Manuel Antonio de la Cerda, refused to accept the pardon unless coupled with leave to prefer charges against Bustamante. But an influential friend of the general's prevented its being granted, and Cerda, to get out of the country, escaped on a vessel bound to Sweden; thence he went to Cuba, and lived there several years under an assumed name. *Los Anales*, Sept. 1, 1872, 30. The noted Nicaraguan statesman, Tomás Ayon, justly bewails the seeming ingratitude of some of his country's

writers in saying that Nicaragua's independence had cost nothing. The history of that period, 1811-21, it is true, records no bloody fields, no brilliant feats of arms; but it presents an array of victims to the cause, of men who sacrificed their lives, liberty, and fortunes to secure their country's freedom; and these sacrifices, Ayon claims, should be remembered, and the sufferers' memory held in reverence. *Apuntes*, 18. Squier, in *Travels*, ii. 378, speaks of a suppressed revolution in Leon in 1815, giving that city the whole credit of the first impulse to liberal sentiment in Central America. There was no such movement in that year, and he probably had reference to that of 1811, though to Salvador certainly belongs the honor of the first attempt for independence. *Pim's Gate of the Pac.*, 38, prints the same error.

[I-35] More empty rewards for Leon. In 1812 the *córtes* acceded to the bishop's petition for the creation of a university in this town. It was long delayed, however. The *ayuntamiento* had conferred on it the title of 'muy noble y leal;' and that of Nueva Segovia was similarly honored. The dean of Nicaragua was much commended in the *córtes*, Aug. 1813, for his loyal and judicious conduct. *Córtes, Diario*, 1811-12, xi. 198; 1813, xvii. 247, xxi. 45-6; *Córtes, Col. Dec.*, ii. 47-8, iii. 177; *Juarros, Guat.* (Lond. ed., 1823), 335-8; *Belly, Nic.*, i. 227; *Conder's Mex. and Guat.*, ii. 309. Bishop Jerez had written the captain-general a warm letter on behalf of the Leonese, for whom he had a special predilection, and said, 'Si me desterrasen un Leones dejo de ser obispo.' *Perez, Biog. Sacasa*, 7.

[I-36] This bitterness originated bloody wars, and did much harm to Nicaragua. *Rev. Cent. Am.*, 3; *Ayon, Apuntes*, 15, 18-19; *Registro Ofic.*, Nov. 21, 1846, 381.

[I-37] The \$43,538 went on the ship *Venganza* to Cádiz, and the arrival was announced, Feb. 15, 1813, to the *córtes* by the deputies of Guatemala. *Córtes, Diario*, 1813, xvii. 239-40.

[I-38] Marure, on the authority of the *Gaceta de Guatemala*, xiii. no. 112, and xiv. no. 191, assures us that nearly one and a half million dollars had been remitted by Central America to Spain, from donations and other sources, to cancel royal warrants. *Bosq. Hist. Cent. Am.*, i. 18. This work, that I have occasion to quote so often, bears the title *Bosquejo Histórico de las Revoluciones de Centro América desde 1811 hasta 1834*. Its author, Alejandro Marure, who was a professor of history and geography in the university of Guatemala, and otherwise a

prominent citizen, issued in Guatemala his 1st volume, sm. 4to, 295 pp., with designs on the frontispiece, in 1837; containing events to 1826 only. The publication of the other two volumes, it is understood, he was obliged to withhold by order of his government. Montúfar, *Reseña, Hist. Cent. Am.*, i., preface pp. iii. and iv., tells us the circulation of the 2d vol. was not allowed; 'un solemne auto de fé devoró la edicion entera.' One copy escaped, however, from which another edition was printed in later years. It scathes the so-called conservative party, more properly entitled to the appellations of fanatical and servile, for the infamous acts of its men that for many years misgoverned the country. Its contents have been fully used by Montúfar. The 3d volume has not been published, and the author's heirs long refused to allow any one to see the manuscript. This work furnishes an interesting account of political affairs in Guatemala from the first attempt at separation from the mother country in 1811 to its accomplishment in 1821, from an American standpoint; the intrigues by which Central America was yoked to Iturbide's Mexican empire, and subsequent events culminating in the second and final enforcement of independence, followed by the organization of the federal government; rupture between Guatemala and the general government, and victory of the latter; church and military affairs; intrigues of parties; authorities being freely quoted to sustain statements. The author does not enter into much detail on military operations, but is quite full in his description of party workings, which affords a clear understanding of their antagonistic interests. Under the title of *Efemérides de los hechos notables ... de Centro América*, the same writer gave to the press at Guatemala, in 1844, a 12mo of 77 pp., furnishing a very brief synopsis of the chief events that occurred from 1821 to 1842, with tabular lists; quite useful as a chronology.

[I-39] Among the implicated were a number of military officers whose role was to win over the troops, and gain possession of their arms.

[I-40] The plan was to seize Bustamante, Auditor de Guerra Ibañez, Archbishop Casaus, and all the high military officers; after which the Granadan prisoners were to be liberated, and the country's independence proclaimed. The royal officials chose to add that the parties had harbored 'incendiary and horrible schemes of plunder and devastation.'

[I-41] *Marure, Bosq. Hist. Cent. Am.*, i. 16; *Romero, Bosq. Hist.*, 42; *Mem. Hist. Cent. Am.*, 2, 3.

[I-42] Julian Ibarra, Andrés Dardon, Manuel de San José, Manuel Yot. The names of the other six do not appear. *Pineda de Mont*, in *Guat., Recop. Leyes*, iii. 347-8; *Rodriguez, Problema Hist.*, in *Salv., Diario Ofic.*, 1875, Apr. 1 and May 23. The author of *Mem. Rev. Cent. Am.*, 7, who was evidently blinded by prejudice against Barrundia and against the cause, says that the latter lost credit for being mixed up in the Betlen affair with 'hombres sin luces, sin crédito, y sin costumbres;' and forfeited the character for firmness he had held in public estimation by needlessly petitioning for a pardon when he had not been imprisoned, and could at any time have left the country without risk. Lorenzo Montúfar, a statesman and writer, tells us, in rebuttal, that these men were of good intelligence and position; that Barrundia's peril was imminent all the time of his concealment, and as only Spanish vessels visited the ports, it would have been risky to attempt escape upon one of them. Moreover, it was impossible to foresee when independence would be attained. Under the circumstances, Barrundia had to ask for pardon when he could get it. *Costa R., Gaceta*, Sept. 2, 1854. Villar, the prosecuting officer, became notorious in 1817 for cruelties and wanton murders of unfortunate inhabitants of Petén-Itzá, when he was commandant there. *Fajardo, Inf. al Min. de Rel.*, Campeche, 1828, sm. 4to, 17 pp.

[I-43] He was the father of Alejandro Marure, born in Guatemala, and one who had attained a respectable rank in letters, at a very early age, in his country. At the time he began to figure in its political affairs he was a master of philosophy. *Bosq. Hist. Cent. Am.*, i. 14-15.

[I-44] Arce began to figure in the rebellion of 1811. After the organization of the federal régime he was the first constitutional president of the republic. *Rev. Cent. Am.*, 3; *Salv., Diario Ofic.*, 1875, Feb. 13.

[I-45] In disregard of the rank and standing of the 'excelentísima diputacion,' he would append only his media firma, or surname, to its decrees and documents, when he should have used his name and surname—a serious breach of etiquette in those times.

[I-46] The chamber now had but a short time to live. Manuel Micheo had presented his credentials in Jan. 1814, and been admitted to his seat as deputy from Chimaltenango, Guatemala. Luis Aguirre's claim to admission was referred back on the

petition of citizens of Chiquimula for his election to be declared null. *Córtes, Act. ord.*, 1814, Jan. 21, i. 487, March 20, ii. 121.

[I-47] Several accusations had been preferred hitherto against Bustamante; all remained unheeded, so far as it ever became known. One more was that of Juan Argüello of Granada, in Nicaragua, who charged the governor with unjust treatment of him in 1814, and demanded his trial and punishment. This case was before the *córtes* Oct. 20, 1820. But as the second constitutional epoch was so short-lived, Argüello's demand for justice had no better result than preceding ones. A memorial of the ayuntamiento of Guatemala, on the political condition of the province, expressing fear that the harshness extended to men for political opinions might lead to evil consequences, and asking for the pardon of prisoners, was presented March 24, 1814, to the *córtes*. It was referred to a committee, and that was all the action taken, till the king in 1817 granted an amnesty. *Córtes, Act. ord.*, March 24, 1814, ii. 152; *Id.*, *Diario*, Oct. 20, 1820, ix. 4.

[I-48] Concluded Dec. 11, 1813.

[I-49] Upon the news of the king's acts becoming known in Guatemala, the archbishop and his clergy, and the other authorities, offered thanks to God for his release and restoration to the throne. *Juarros, Guat.*, ii., adv. xii.

[I-50] The pope lent his support with an encyclical letter of Aug. 15, 1814, against freemasonry and other secret societies, which was published June 2, 1815. All persons affiliating in such organizations were required to sever their connection with them. *Fern. VII.*, *Decretos*, 27-32.

[II-1] A native of Habana, Cuba. He had filled several high offices, the last being that of governor of Santo Domingo. *Juarros, Guat.*, ii., adv. ix.-x.; *Salv.*, *Diario Ofic.*, Apr. 1, 1875, 4.

[II-2] Convulsions of nature had been constantly occurring in Quezaltenango during two months, which greatly alarmed the population. On the 17th of Jan., 1818, a hill on the south of the town burst open and threw out enormous quantities of ashes, covering the whole country, even to the distance of 35 leagues, and flames were occasionally seen. *Cózar, Carta*, in *Noticioso Gen.*, March 16, 1818, 4.

[II-3] The Spanish official account published by the government of Guatemala, May 1 and 13, 1820, and copied in the *Gaceta* of Mex. of June 17th, same year, has it that the attempt resulted in the discomfiture of the assailants.

[II-4] The commander's ship hoisted a flag with two blue bars and a white one between them showing an escutcheon.

[II-5] The Spanish official account sets the enemy's casualties at 40 killed and wounded on shore; those on board could not be ascertained. The Spanish loss is given at one killed and two wounded.

[II-6] *Córtes, Diario*, 1820, ii. 19; Apr. 30, 1821, extra, xvi. 15-16; *Id.*, *Act. Púb.*, i., June 26, 1820, 6; Aug. 2, 1820, 2.

[II-7] A congratulatory address from the newly created corporation was received with marks of satisfaction. *Córtes, Diario*, June 17, 1821, xxii. 6.

[II-8] From the ecclesiastic state, Juan José Batres and José María Álvarez, with Pedro Ruiz de Bustamante for a substitute. From the secular class, Pedro Molina, José Barrundia, and Lic. Venancio Lopez. Secular substitutes, licenciados Francisco Javier Barrutia, Felipe Neri del Barrio. *Córtes, Diario*, 1820, ii. 228-9.

[II-9] A native of Choluteca, in Honduras. *Rev. Cent. Am.*, 1. He was auditor de guerra. Valle was undoubtedly an able man; a speech of his on equality before the law is spoken of with high commendation. *Observ. de la Rep. Mex.*, ii., Oct. 3, 1827, 128-33. Subsequently was a deputy to the imperial congress of Mexico, and when Iturbide was on the eve of succumbing under the blows of the republicans, he appointed Valle his minister of state, which office ceased with the fall of the empire. Valle returned to Guatemala and figured prominently in the government. In 1826-29 he was a federal deputy, and died on the 2d of March, 1834, soon after being elected president of the republic. The assembly on the 21st of March of the same year decreed honors to his memory. *Guat., Recop. Ley.*, iii. 338-9, 348. Salvador did the same in April. A likeness of Valle is given in *Montúfar, Reseña Hist. Cent. Am.*, ii. 160. Valle had been honored with the friendship of Bentham and other European savans; and he was a member of the French Academy of Sciences. *Marure, Efemérides*, 35.

[II-10] The same man who afterward appointed himself bishop of Salvador. *Suarez y Navarro, Hist. Méj.*, 386.

[II-11] They cajoled the artisans with the promise of checking the trade with Belize, and of prohibiting the importation of foreign manufactures.

[II-12] He was born in Guatemala on the 29th of Apr., 1777; studied humanities under Father Goicoechea, one of the lights of his time, and received his diploma of a licentiate of medicine and surgery at the age of 22; served in Nicaragua as surgeon of the batallon fijo early in the century, and returned with it to his native city in 1811. He afterward filled the position of professor of medicine in the university. The degree of doctor was given him in 1817, and the office of protomédico, or head physician of the province of Guatemala. *Salv., Gaceta*, Oct. 12, 1854.

[II-13] He adjured all to free themselves from party influences, and to give their suffrages only to men who had their country's interests at heart. He demanded of all citizens to love their country, to be true to the constitution, and to respect the legitimate authorities.

[II-14] *Urrutia, Modelo*, 2-3. Constant complaints had been made to the national government since 1813 against the foreign trade. The regulations of 1778 had been made to appear advantageous to Spain and her American colonies. Foreign trade was declared a means of corruption which placed arms in the hands of Spain's foes. In the report now before me, the mechanics of the country are represented as hostile to the foreign trade. *Arrillaga, Informe*, in *Cedulario*, 66-7.

[II-15] The latter had three suffragans—Leon, Comayagua, and Ciudad Real de Chiapas. It had also 20 vicars, 161 curacies in 424 towns, 85 valleys, 23 doctrinas under missionaries, of which 16 were in charge of Dominicans, 4 of Franciscans, and 3 of the order of Mercy.

[II-16] Deputy José Mariano Mendez, from Sonsonate, gave the province of Guatemala 116 leagues from the Pacific to Santo Tomás, and a width of 100 leagues in some parts, and less in others, with two cities and about 294 towns. *Mem.*, 12-13, 20; *Memoria del estado político y eclesiástico de la capitanía general de Guatemala*, Mad., 1821, sm. 4to, 30 pp., gives data on the economical, political, and ecclesiastical condition of Central

America in general, and of each of the divisions or provinces, including Chiapas in particular, and proposing to the Spanish government reforms deemed advisable.

[II-17] A native of Habana, at which university he received the degree of doctor. *Juarros, Guat.*, i. 296-7.

[II-18] He consecrated in his cathedral, on the 12th of Sept., 1802, the treasurer of the diocese, the licentiate of theology, Ambrosio Llano, as bishop of Ciudad Real de Chiapas.

[II-19] He had been bishop of Santa Cruz de la Sierra, in Peru. At the time of his death he was 55 years old. The remains were interred in the cathedral. *Juarros, Guat.*, i. 297; *Diario Méx.*, xii., Jan. 26, 1810, 104.

[II-20] He was a native of Jaca, in Aragon; took the Dominican habit in Zaragoza, and completed there his education; joined the province of Santiago in Mexico at the age of 23; became a lecturer in Porta Coeli college, and a professor in the university of Mexico, by which he was made a doctor, and by his order a maestro. On the 9th of Nov., 1806, as bishop of Rosen in partibus infidelium, he was made bishop-coadjutor of Oajaca, and consecrated on the 2d of Aug., 1807. *Juarros, Guat.*, ii., adv. p. xi.-xii.; *Córtes, Diario*, xviii. 395; *Puerto, Convite*, p. iii. 1.

[II-21] The payments were to begin no later than one year after the installation of the autonomic government. The allowance was to be increased when the condition of the two countries should become improved.

[II-22] Positive news of Iturbide's defection had not yet reached Guatemala. *Mem. Rev. Cent. Am.*, 2.

[II-23] He is represented as a fickle man, one easily influenced, and likely to act under the impressions of the moment. *Marure, Bosq. Hist. Cent. Am.*, i. 21; *Salv., Diario Ofic.*, 1875, Apr. 1, 4. Events showed he was a man of no settled principles or character, who proved himself, first a traitor to his king and country, and next, for self-aggrandizement, betrayed the men that in an evil hour placed their trust in him.

[II-24] This plan is described in *Hist. Mex.*, iv. 709-10, this series.

[II-25] The order was a dead letter, however. Gainza evidently issued it to cover his responsibility in Madrid; at any rate, no one was arrested, and the manifesto was soon after retired, public affairs being allowed to take their course. *Mem. Rev. Cent. Am.*, 4; *Marure, Bosq. Hist. Cent. Am.*, i. 21-2.

[II-26] Gainza on the 13th had exacted of all the superior military officers a renewal of their oath of fidelity to the king. *Id.*, i. 23.

[II-27] The diputacion, on motion of Simeon Cañas, had acted at the instance of the ayuntamiento, whose síndico, Mariano de Aycinena, had called for an extra session to petition for immediate independence. Gainza, with the view of averting such a declaration, attended personally to preside over the meeting; but he finally submitted to the inevitable, and weakly assented to the convocation of the authorities, without first obtaining Urrutia's approbation. He thus ignored the real chief authority in the country. *Mem. Rev. Cent. Am.*, 4-5; *Ayon, Apuntes*, 21.

[II-28] Archbishop Casaus, oidores Miguel Moreno and José Valdez, Luis Escoto, prelate of the Dominicans, Félix Lagrava, Juan Bautista Jáuregui, José Villafañe, and others of less note. *Marure, Bosq. Hist. Cent. Am.*, i. 23-7.

[II-29] The supporters of this resolution were: Canon Doctor José María Castilla, Dean Doctor Antonio García Redondo; Regente of the audiencia Francisco Vilches, oidores Miguel Larreinaga and Tomás O'Horan; deputies from the university, doctors Mariano Galvez and Serapio Sanchez; deputies from the college of lawyers, José Francisco Córdoba and Santiago Milla; Antonio Rivera Cabezas, Mariano Beltranena, J. Mariano Calderon, Rev. Doctor J. Matías Delgado, M. A. Molina, members of the diputacion provincial; Mariano and J. Antonio Larrave, Isidoro Castriciones, Pedro Arroyave, and Mariano de Aycinena, members of the ayuntamiento; Lorenzo Romaña, government secretary; Domingo Dieguez, secretary of the meeting; Friars Mariano Perez and José Antonio Taboada, prelates respectively of the Recollects and Franciscans. Some Spaniards also recorded their names in favor of such action. *Id.* The *Memorias de las Revoluciones de Centro América* give among the members of the diputacion José Valdés, and leave out M. A. Molina, 5.

[II-30] 297 years, 3 months, and 19 days from June 24, 1524, when Pedro de Alvarado arrived with his 300 conquistadores.

[II-31] Article 2d, speaking of the congress, says: It is to decide upon the point of 'independencia general y absoluta, y fijar, en caso de acordarla, la forma de gobierno y ley fundamental que deba regir.' Marure, who gives the text of the acta, asserts that the declaration actually was for an 'independencia absoluta de Méjico y de cualquiera otra nacion;' and that Gainza, who favored annexation to Mexico, had beforehand prepared an oath to support it. *Bosq. Hist. Cent. Am.*, i. 27, and ap. ii., iii.; *Alaman, Hist. Méj.*, v. 346-8; *Ayon, Apuntes*, 21; *Squier's Trav.*, ii. 378; *Squier's Cent. Am.*, 67; *Cuevas, Porvenir de Méx.*, 252. Another vital clause in the instrument was that the Roman catholic religion which the Central Americans had professed in past centuries, 'y profesaremos en los siglos venideros,' must be preserved 'pura é inalterable,' its ministers respected, and protected in their persons and property. The prelates of the various religious communities were invited to coöperate in behalf of peace and harmony, endeavoring to do away with personal passions. The whole proceeding was novel, this of Spanish officials, presided over by the chief agent of the king, meeting with natives of the country to decide whether Guatemala should cast off the old mother country or not. Several other things worthy of notice happened then among them. Canon Castilla, though a friend of the archbishop, his prelate, who had advocated anti-independence, favored the separation. Many of the officials declared for secession, chief among their number the gazista leader José del Valle, who held the high office of auditor de guerra. *Mem. Rev. Cent. Am.*, 5-6.

[II-32] The following names appear in the acta: Gavino Gainza, Mariano de Beltranena, José Mariano Calderon, José Matías Delgado, Manuel Antonio Molina, Mariano de Larrave, Antonio de Rivera, José Antonio de Larrave, Isidoro de Valle y Castriciones, Pedro de Arroyave, Mariano de Aycinena. Secretaries, Lorenzo de Romaña, Domingo Dieguez. *Pineda de Mont, Recop. Ley. Guat.*, i. 1-14. The news of this declaration reached Spain, and mention was made of it in the córtes Dec. 15, 1821, by Deputy Navarrete. *Córtes, Diario extraord.*, vi., 1821, Dec. 15, 34; *Córtes, Diario*, viii., 1822, Feb. 12, 5; *Romero, Bosq. Hist.*, 43-4, 66-130; *Mem. Rev. Cent. Am.*, 6-9.

[II-33] This clause gave rise to much trouble afterward.

[II-34] The authorities were to be apprised of any plots against the new régime by persons becoming aware of them, or the latter would be held as aiders and abettors of treason. Carrying concealed weapons, ringing of bells other than for religious service, and injuring or destroying public or private property, under any pretext, would be severely punished. *Méx., Gac. Imp.*, Dec. 1, 1821, 260-3.

[II-35] The additional members were Miguel de Larreinaga, José del Valle, J. Antonio Alvarado, Marqués de Aycinena, José Valdés, José M. Candina, and Antonio Robles. Domingo Dieguez and Mariano Galvez were made the secretaries. *Marure, Efemérides*, 59.

[II-36] The acta was signed at Gainza's house on the 16th, and the extra members were appointed. *Mem. Rev. Cent. Am.*, 6.

[II-37] Ciudad Real, the capital, had in the city proper 6,000, chiefly Spaniards; the outside districts and suburbs swelled the population to 14,000. *Mazariegos, Mem. Hist. Chiapa*, 51. The canon of Chiapas, Mariano Robles Dominguez de Mazariegos, being the deputy from his province in the Spanish córtes in 1813, laid before the chamber an interesting memorial, which was afterward given to the press at Cádiz, in one volume, 18mo, of 71 pages, under the title of *Memoria Histórica de la Provincia de Chiapa*. He suggested means to develop the commerce of the province on its navigable rivers, and particularly with Guatemala and Vera Cruz. His recommendations were heeded, and several ports and rivers were opened to trade. *Id.*, 33-4, 54-9; *Córtes, Diario*, 1813, xix. 392; *Noticioso Gen.*, Aug. 30, 1816. Mazariegos' successor was also a clergyman, Fernando Antonio Dávila, who took his seat in November, 1813. *Córtes, Act. ord.*, i. 275.

[II-38] From the time of the conquest there existed in all Indian towns ayuntamientos called cabildos, and composed as follows: a gobernador, who was a cacique or noble Indian, generally for life, though 'sin jurisdicción,' appointed formally in writing by the principal executive of the province; two alcaldes; four, six, or eight regidores, according to population; and some officers called in some places mayores, and in others alguaciles, who aided the regidores, took care of the cabildos' houses, and furnished supplies to travellers going through their towns. They were elected on the first day of January of each year, and were subject to the alcalde mayor and the teniente of each town, by

whom they were too frequently badly treated. *Mazariegos, Mem. Hist. Chiapa*, 28-29.

[II-39] In some Indian towns, so-called maestros were salaried from the community funds of the inhabitants. Such maestros could scarcely read and write, and most of them were immoral and given to drunkenness. Of course no good results could be obtained from such teachers. The Spanish *córtes* in 1813 decreed the adoption of measures for promoting public instruction, and on the 24th of October enacted the establishment of a university in the province. *Mazariegos, Mem. Hist. Chiapa*, 51-53; *Córtes, Diario*, 1813, xix. 392; *Id., Act. ord.*, 1813, i. 113, 141.

[II-40] The cathedral chapter was composed of four dignitaries, one simple canon, six choir chaplains. The revenue of the diocese was limited. The number of its parishes was forty-seven, which included the eleven of the capital and suburbs. *Mazariegos, Mem. Hist. Chiapa*, 48. From 1819 to 1836, according to Larrainzar, religious, educational, and general affairs had attained much improvement. In the diocese there were, besides the cathedral, three convents of friars and one of nuns; a hospital, founded by Bishop Juan Álvarez de Toledo; an ecclesiastic college, founded by Bishop Bravo de la Serna; primary schools and a university. Since 1819 existed the Sociedad de Amigos del País, to develop agriculture, industry, and learning. The inhabitants of the capital were quite cultured. *Discurso*, 17-18. In 1813 the Spanish *córtes*, among other measures for the benefit of Chiapas, decreed that the friars of Guatemala should undertake the conversion of the Indians of Palenque. *Córtes, Diario*, 1813, xix. 392.

[II-41] Soconusco cacao being considered the best of America, some loads of it were sent every year to Spain for the use of the royal family.

[II-42] On the 20th of Dec., 1817, he congratulated the viceroy of Mexico on the triumphs of the royal arms. The capture of Mina and other successes were enthusiastically celebrated in Ciudad Real. *Noticioso Gen.*, Feb. 14, 1818, 4; *Gaz. de Méx.*, 1818, ix. 141-2.

[II-43] The bishop of Chiapas, Salvador San Martin, incurred the wrath of the *córtes*, when he was acting as deputy from Porto Rico, for his support of the royal decree of 1814, that overthrew

the national constitution. San Martin was dead when Chiapas followed the example of Mexico in 1821. *Alaman, Hist. Méj.*, v. 344; *Méx., Gaceta Imp.*, i. 11, 173.

[II-44] In Ciudad Real, Iturbide was called 'padre salvador de la religion y de la patria.' *Id.*, 10-12.

[II-45] The act of independence was signed by Juan N. Batres, José Ignacio Larrainzar, José Diego Lara, Julio José Flores, José Nicolás Osuna, Estévan Gordillo, and Lic. José Vives.

[II-46] Soon after this act that desire began to assume proportions. *Larrainzar, Notic. Hist. Soconusco*, 28.

[II-47] For particulars on the final separation of Chiapas, and incorporation as a state of the Mexican confederation, see *Hist. Mex.*, v. 22-4, this series. The clergyman Pedro Solórzano was the agent appointed under the resolution referred to in the text, and he accordingly repaired to the city of Mexico. *Larrainzar, Notic. Hist. Soconusco*, 29; *Méx., Gaceta Imp.*, i. 169-73, 270-1, 319-23, 337-9.

[III-1] They were Lorenzo Romaña, who was made colonel of the battalion of regulars, superseding the Spaniard Félix Lagrava, and Manuel Arzú, who obtained the command of the artillery, with the same rank. *Marure, Bosq. Hist. Cent. Am.*, i. 28.

[III-2] A writer of the opposite party asserts that the practice caused much confusion, arising from ignorance. The populace abused the privilege, and had finally to be excluded from the chamber. The same author speaks disparagingly of the three leaders. *Mem. Rev. Cent. Am.*, 7. It is said of them that they often addressed from the gallery petitions to the junta, demanded removals of officials, and had disputes with its members or with Gainza. I have already given some account of Barrundia and Molina. Córdoba had suffered imprisonment and prosecution for being concerned in the revolutionary movements of 1811.

[III-3] 'Acorde al fin en sus sentimientos, se reunió últimamente en la opinion que debió siempre ser el vínculo estrecho de su voluntad. Así consta del testimonio que acompaño á V. E.' The last sentence must refer to a copy of the acta de independencia. *Mex., Gaceta Imp.*, i. 60-2. And yet, another journal of Mexico, alluding to that letter, after erroneously giving

the writer's name as Gabriel Quinia, actually asserted its contents to be that Guatemala, like Chiapas, had submitted to Mexico, party spirit having been powerless to disturb the peace or general will of the inhabitants! *Méx., Noticioso Gen.*, Oct. 19, 1821.

[III-4] Decree of Sept 20, 1821.

[III-5] Decrees of Sept. 26 and 27, 1821. They were given two months' extra pay. *Mem. Rev. Cent. Am.*, 6-7.

[III-6] This act was effected amidst great enthusiasm, and rejoicing at its accomplishment without bloodshed. Persons then residing in the city who had favored the movement had their names inserted in a book. *Marure, Bosq. Hist. Cent. Am.*, i. 27-30.

[III-7] Another committee was to count the population in order to apportion the deputies to congress. *Gracias, Cuad. Estad.*, 28.

[III-8] Before the news reached Spain of the change in Guatemala, Deputy Milla spoke, on the 18th of Nov., in the *córtes* of the insufficiency of Spanish bottoms for the transportation of American produce, and demanded the privilege of using foreign vessels therefor. He alluded also to the inability of the royal navy to protect Spanish merchantmen, in proof of which he stated the fact that five vessels had been carried off by insurgent privateers from Nicaraguan ports. *Córtes, Diario Extraord.*, Nov. 18, 1821, iv. 12-13.

[III-9] Men who had relations with Delgado, one of the junta in Guatemala. *Mem. Rev. Cent. Am.*, 9-10.

[III-10] Delgado assumed authority on his arrival at Santa Ana, and used it effectively, though without violence. *Marure, Bosq. Hist. Cent. Am.*, i. 36-7. The extent of the province of Salvador was 50 leagues long and 30 wide; it was divided into the *partidos* of Santa Ana, San Salvador, San Vicente, and San Miguel, with three cities, five villas, and 140 pueblos. *Mendez, Mem.*, 9-10. The following were the signers of independence: Pedro Barriere, Casimiro García Valdeavellano, José Ignacio Saldaña, José Rosi, Millan Bustos, Gerónimo de Ajuria, Francisco del Duque, Santiago Rosi, Trinidad Estupinian, Juan B. de Otonto, Francisco Ignacio de Urrutia, Narciso Ortega, and Pedro Miguel Lopez, secretary. *Ruiz, Calend. Salv.*, 67-8; *Salv.*,

Diario Ofic., Jan. 26, 1875, 5; *Bustamante, Cuad. Hist.*, vi., no. 187, 1-29; *Mem. Rev. Cent. Am.*, 2, 9-10. Alaman has it that Delgado seized the government by a revolution in 1822. *Hist. Méj.*, v. 474-5.

[III-11] In the Spanish *córtes*, March 29, 1813, was read and passed to a committee a petition of the *ayuntamiento* of Comayagua, objecting to the limited scope of the decree of May 24, 1812, which authorized the establishment of only two *diputaciones* in the whole of Guatemala, and asked for one in Comayagua with Omoa, Trujillo, and the *partido* of Tegucigalpa, and that of San Miguel in Salvador, within its jurisdiction, which would give the new *diputacion* a territory of 140 leagues from N. to S., and as many from E. to W. *Córtes, Diario*, 1813, xviii. 61. I have no evidence as to when Honduras was granted the *diputacion*, but the fact appears that it had such a corporation in September 1821. The province was larger than Nicaragua, and divided into the *partidos* of Comayagua and Tegucigalpa, and the nine sub-delegations of Gracias á Dios, San Pedro Zula, Tencoá, Yoro, Olanchito, Olanchó Viejo, Tegucigalpa, Choluteca, and Trujillo, having within it the ports of Omoa, Puerto Caballos, Puerto Sal, Triunfo de la Cruz, Trujillo, and Cartago. The bishopric of Comayagua embraced the whole *intendencia*, with 35 parishes, one mission, and 145 churches. *Mendez, Mem.*, 8, 21. In 1821 there lived in Trujillo about 2,500 Caribs, the original inhabitants of Saint Vincent, later occupying the island of Roatan, whence they removed to Trujillo. They were a rather industrious, honest people. *Coggeshall's Voy.*, 2d ser., 161-3.

[III-12] Omoa by Captain Bernardo Caballero, P. Pedro Brito, and others, who seized and imprisoned the commandant, Antonio Prado. *Marure, Bosq. Hist. Cent. Am.*, i. 35.

[III-13] The junta in Guatemala passed an act on the 11th of Dec. to reward the villa of Tegucigalpa, raising it to the rank of a city, and bestowing on its *ayuntamiento* the title of 'patriótico.' *Marure, Bosq. Hist. Cent. Am.*, i. 35.

[III-14] As a matter of fact, ill feeling had always existed in the provinces against the capital. This hatred was intensified by the respective *intendentes* in forwarding their ambitious purposes. *Mem. Rev. Cent. Am.*, 2. Lieut-col Miguel Gonzalez Saravia, son of the old lieut-gen. shot in Oajaca, was the gov.-*intendente* of Nicaragua since 1818. Naturally he hated the independents for his father's execution. *Marure, Bosq. Hist. Cent.*

Am., i. 34; *Ayon, Apuntes*, 22; *Juarros, Guat.* (Lond. ed. 1823), 337-8.

[III-15] They would remain independent of the Spanish crown, they said, until the clouds disappeared. *Mem. Rev. Cent. Am.*, 8; *Marure, Bosq. Hist. Cent. Am.*, i. 34; *Ayon, Apuntes*, 22; *Suarez y Navarro, Hist. Méj.*, 387; *Bustamante, Cuad. Hist.*, vi., no. 187, 1-29; *Alaman, Hist. Méj.*, v. 346-8; *Wells' Hond.*, 468. Tomás Ayon, *Apuntes sobre algunos de los acontecimientos políticos de Nicaragua*, Leon, 1875, 8vo, 50 pp., gives a few important memoranda on the political events of Nicaragua in 1811-24, in a clear, concise, and apparently impartial manner.

[III-16] Saravia kept up a sort of underhanded war against Granada, obstructing her relations with Guatemala. *Marure, Bosq. Hist. Cent. Am.*, i. 35. The extent of the province of Nicaragua was 85 leagues long by 75 wide; detaching Nicoya, there were four partidos, Leon, Realejo, Sutiaba, and Matagalpa, with 88 towns in all. *Mendez, Mem.*, 7. According to Miguel G. Saravia, *Bosquejo político estadístico de Nicaragua*, its population in 1813 was of 149,751, a very imperfect census. *Squier's States Cent. Am.*, 50. The bishopric of Leon comprised all the intendencia of Costa Rica, with 40 parishes, 3 missions, and 88 churches. *Mendez, Mem.*, 20. A considerable military force had been, since 1796, kept at San Juan del Norte; and in 1821 additional defences were erected, by government order of May 2d. This force was expelled after the declaration of independence by the patriots. *Squier's Trav.*, i. 83.

[III-17] On the 11th of Nov. he answered in similar terms the diputacion at Comayagua. *Marure, Bosq. Hist. Cent. Am.*, i. 44-6.

[III-18] Its members were to be chosen by electors appointed by the ayuntamientos supporting the Granada régime. These members to choose every month from their own number the president. *Perez, Biog. Sacasa*, 5-6. *Perez, Jerónimo, Biografía del coronel Don Crisanto Sacasa*, 1875, fol., 18 pp., furnishes important data on the origin and life of a man who figured prominently and honorably in the affairs of Nicaragua from 1821 to his death in 1824. In connection with them appear several official letters on events during the period between secession from Spain and annexation to Mexico.

[III-19] The people acted prudently; they could but reap trouble from the political complications. *Mem. Rev. Cent. Am.*, 2;

Molina, Bosq. Costa Rica, 4-5, 17-18; *Salv., Diario Ofic.*, May 23, 1875; *Lond. Geog. Soc.*, vi. 135.

[III-20] It had, from the time of the conquest, a civil and military government of its own, but under dependence of the audiencia and captain-generalcy at Guatemala. In matters ecclesiastic and financial it had been under Leon. *Molina, Bosq. Costa Rica*, 92; *Mem. Rev. Cent. Am.*, 2. The Spanish constitution gave it, together with Nicoya, a diputacion provincial. *Astaburuaga, Cent. Am.*, 54. In 1812 the province had 22 towns—12 of Indians and 10 of white and black men—besides farms, large estates, etc. The extent in 1821 was 160 by 60 leagues. The cities were Cartago and Esparza; the villas, San José de Ujarráz, Villa Vieja, and Villa Hermosa; the villages, Espíritu Santo, Pueblo Nuevo, Escasu, Alajuela, Bagasses, Las Cañas, Barba, San Fernando, and the Indian towns and settlements; adding Nicoya and Guanacaste, there would be 27 towns. The population was computed at between 60,000 and 70,000, besides the three nations of heathen Indians in the mountains and northern coasts, and known respectively as indios de la Talamanca, indios del norte, and indios Mosquitos, all quite numerous. *Córtes, Diario*, 1813, xix. 404-5. In 1813 the deputy from Costa Rica in the Spanish córtes petitioned for a bishopric; but at the time of the separation the matter had not been acted on. *Mendez, Mem.*, 7.

[III-21] Juan de Dios Mayorga and the provincial of la Merced, Fray Luis García, were selected for Comayagua; the prelate of the Franciscans, Fray José Antonio Taboada, for Leon; the prebendado José María Castilla, Pedro Molina, and José Francisco Barrundia, for Mexico. *Marure, Bosq. Hist. Cent. Am.*, i. 37-9.

[III-22] Some of them asked for titles, decorations, and other rewards for their services in harnessing their country to Mexico's imperial car. *El Progreso*, Apr. 11, 1850. The organ of the empire spoke of the chimerical ideas of the republicans and federalists, adding that the opposition to them was large, and to be found in the officials, the higher classes, and indeed all sensible persons, who well knew how small was the number of the educated among them. It claimed that the journals published in Guatemala expressed the views of only a few deluded men, whose ranks were becoming thinner every day. That same organ had given to the public certain letters from the ayuntamiento of Comitán, in Chiapas, objecting to the 2d art. of the Guatemalan acta of Sept. 15th, on the ground that the country had no resources to sustain a

separate government, which had been evident since the yearly allowance of \$12,000 ceased; superadded to which, they said, the safety of Mexico might be imperilled should Spain at some future time recover possession of Cent. Am., which the latter, if independent, could not prevent, and vindicate her authority over the former. *Méx., Gaceta Imp.*, i., Nov. 24 and Dec. 8, 1821, 202-7, 281-2.

[III-23] Dated Oct. 19th, and brought by José de Oñate.

[III-24] 'Guatemala no debia quedar independiente de Méjico, sino formar ... un gran imperio bajo el plan de Iguala, y tratados de Córdoba: que Guatemala se hallaba todavía impotente para gobernarse por sí misma, y que podría ser por lo mismo objeto de la ambicion extranjera.' *Marure, Bosq. Hist. Cent. Am.*, i. 39-41. The aristocrats, now sure of Iturbide's aid, grew bolder in their plotting. *Squier's Trav.*, ii. 378; *Montúfar, Reseña Hist.*, iv. 35-9. Iturbide directed the conde de la Cadena, on the 20th of Nov., to write very courteously to Mariano de Aycinena, who was well connected and had addressed a communication to the liberator. *Bustamante, Cuad. Hist.*, vi., no. 187, 28; *Montúfar, Reseña Hist.*, iv. 20-2, 35-9.

[III-25] The circular directed the ayuntamientos to read at a public sitting Iturbide's letter, and express their opinion upon each point embraced in his proposal. Their answers as to whether they wanted annexation at once, or to await the action of congress, were to be in Guatemala city on or before the 31st of Dec., 1821. *Petén-Itzá, Manif. de la Just.*, 2. This circular was drawn up by Valle. The elections for members of the congress that had been called to meet in February were to be made as formerly directed. In Guatemala the votes of heads of families were taken at each house by municipal agents in the presence of a notary public, and duly registered. *Mem. Rev. Cent. Am.*, 10-11; *Alaman, Hist. Méj.*, v. 475-6.

[III-26] The exile of Barrundia, Molina, and others was demanded by Pedro Arroyave, síndico of the ayuntamiento. Gainza was suspected of inciting certain imperialists to prefer charges against these parties.

[III-27] A number of republicans, when acclaiming their principles near San José church, were fired upon by an armed force patrolling the town with the alcalde Mariano Larrave, and two killed outright, Mariano Bedoya and Remigio Maida. Several

were wounded; some arrests were made. *Salv., Gaceta*, Oct. 12, 1854; *Marure, Bosq. Hist. Cent. Am.*, i. 41-2, 47; *Dicc. Univ. Hist. Geog.*, app., i. 342; *Dunlop's Cent. Am.*, 157.

[III-28] *Marure, Bosq. Hist. Cent. Am.*, i., ap. v.; *Mem. Rev. Cent. Am.*, 11; *Alaman, Hist. Méj.*, v. 474.

[III-29] His arguments were not founded on fact. Subsequent events proved it. Men of greater weight than Gainza, such as Mora, Pecchio, and Zavala, have since contradicted his assertions. Zavala said that Guatemala gained nothing by the union, and that it had resources of its own to exist as an independent nation. He added that the provinces viewed with dislike the course of the aristocrats at the capital. It could not be otherwise. Where was the advantage of a connection with the city of Mexico, which was almost inaccessible to them? But the rich men of Guatemala would have it, regardless of consequences. *Ensayo Hist. Revol. Mex.*, i. 186-7.

[III-30] See *Hist. Mex.*, iv. 710, 728-9, this series.

[III-31] The junta had on the 3d indicated to Iturbide that its duty was to annex the country to Mexico; 'como ya se le indicó en oficio de tres del corriente.' Other reasons were given by it for the action taken, the chief one being the necessity of preserving the country's entirety and repose, which had been in danger of a rupture. The names affixed to the manifesto are: Gavino Gainza, Marqués de Aycinena, Miguel de Larreinaga, José del Valle, Mariano de Beltranena, Miguel Antonio Molina, Antonio Rivera, José Mariano Calderon, José Antonio Alvarado, Angel M^a Candina, Eusebio Castillo, José Valdés; José Domingo Dieguez and Mariano Galvez, secretaries. *Guat., Recop. Leyes*, i. 14-16; *Marure, Bosq. Hist. Cent. Am.*, i., ap. iv.-vi.; *Montúfar, Reseña Hist.*, iv. 18-23, 40-2; *Mem. Rev. Cent. Am.*, 8-9, 11; *Bustamante, Cuad. Hist.*, vi., no. 187, 1-29; *Alaman, Hist. Méj.*, v. 476; *Suarez y Navarro, Hist. Méj.*, 386-7; *Lastarría*, in *La América*, 249; *Salv., Diario Ofic.*, Feb. 13, 1875, 4, and March 28, 1876, 603; *Rivera, Hist. Jalapa*, ii. 218; *Squier's Trav.*, i. 383; *Kewen's Nic. and Walker*, MS., 33-6; *Romero, Bosq. Hist.*, 103-6.

[III-32] 'Las ideas de prosperidad, objeto de la independencia, van á substituirse á los partidos ominosos ... neutralizar las tentativas del poder arbitrario y de los movimientos populares.' *Gainza, Manifiesto, Gaceta Gob.*

Guadal., 1822, March 2, 302-4; *Méx.*, *Gaceta Imp.*, ii. 657-9; *Kewen, Nic. and Walker*, MS., 30-6.

[III-33] He now gives himself a long list of titles, viz.: knight of justice of the sacred religion of St John of Jerusalem; lieutenant-general by acclamation of the independent army of Guatemala; decorated with the banda nacional; her captain-general; inspector-general of all her arms; superior political chief, intendent-general, and president of the junta provisional consultiva. *Méx.*, *Gaceta Imp.*, i. 557-9; *Gaceta Gob. Guadal.*, March 2, 1822, 304.

[III-34] Only two months earlier the diputaciones of Comayagua and Leon were told that neither the junta consultiva nor any other body then existing had any such power.

[III-35] It was rumored, and doubtless believed by the people, that a formidable force was on the way—5,000 men—which Central America in its present divided condition could not resist; hence the premature submission with an apparent good grace. *Mem. Rev. Cent. Am.*, 10-11.

[III-36] *Gaceta Imp.*, i. 162-3. According to Bustamante, *Cuad. Hist.*, vi., no. 187, 1-29, the party in favor of absolute independence in Guatemala sustained itself till a Mexican force was sent, and it was by this means the absorption was effected. The force had not arrived, but was certainly expected. Luis G. Cuevas, a Mexican senator, tells us that the people of Cent. Am. were mostly very enthusiastic for Iturbide, and at the same time anxious to rid themselves of the liberal party, whose members he calls an unbridled set of demagogues. Moreover, they wanted to belong to a nation having so much credit abroad, and such large resources to aid them. *Porvenir de Méx.*, 252.

[III-37] Conde de la Cadena was first in command, but he resigned it on account of sickness. *Alaman, Hist. Méj.*, v. 474-8; *Suarez y Navarro, Hist. Méj.*, 387-8; *Filisola á la Junta Soberana*, note 3.

[III-38] Squier, *Guat.*, 580-1, has it 700.

[III-39] The 3d. It was installed March 29, 1822. *Marure, Bosq. Hist. Cent. Am.*, i. 47; *Id.*, *Efemérides*, 5.

[III-40] Among them were José del Valle, Juan de Dios Mayorga, and Marcial Zebadúa. *Zavala, Ensayo Hist. Rev. Mex.*,

i. 187. Suarez y Navarro says that Mayorga had a secret mission from Salvador near the Mexican government. *Hist. Méj.*, 387.

[III-41] *Mem. Rev. Cent. Am.*, 11-12. The province was ruled by a junta gubernativa, one of whose members was Antonio José Cañas, one of the most distinguished among Cent. Americans. He soon after became the second in command of the 'batallon fijo,' organized to resist Iturbide's pretensions. *Salv., Diario Ofic.*, Feb. 13 and 19, 1875.

[III-42] Gainza had meantime stationed troops in Sonsonate, a town which hitherto belonged to the province of Guatemala proper, and afterward became a part of Salvador.

[III-43] *Mem. Rev. Cent. Am.*, 12-13.

[III-44] The rest of the province had accepted that arrangement. Gov. Tinoco had made himself master of Omoa, but a revolution released it from his grasp. His authority over Trujillo ceased about the middle of January 1822. *Id.*, 7-9.

[III-45] The inhabitants were influenced to that course by Canon Nicolás Irias and Juan Lindo. The diputacion sent Tinoco to Mexico to report the state of affairs in Honduras. *Marure, Bosq. Hist. Cent. Am.*, 37.

[III-46] There was, in consequence, a bitter correspondence between Saravia and Gainza. *Mem. Rev. Cent. Am.*, 14.

[III-47] This man was of the lowest class; had been a common servant, and afterward an artilleryman. He was once confined in a dungeon at Trujillo, from which he escaped. When he began to figure in politics his wit made him popular with the citizens. It was said that he had some knowledge of medicine, and had written some creditable poetry. He was, however, given to cards and free-love, but abstained from the bottle. He was twice married, but left no children. *Perez, Biog. Sacasa*, 8; *Mem. Rev. Cent. Am.*, 14; *Marure, Bosq. Hist. Cent. Am.*, i. 73-4.

[III-48] Ordoñez had Sacasa and others confined in irons in Fort San Carlos. Public opinion accused him of being the most active instigator of hatred between the white and other races. *Id.*, 74; *Mem. Rev. Cent. Am.*, 14; *Salv., Diario Ofic.*, Feb. 19, 1875.

[IV-1] His orders were to take the city of San Salvador on or before the 5th of April. *Mem. Rev. Cent. Am.*, 12.

[IV-2] They claimed that their declaration of independence did not imply hostility to Guatemala, and in support of it expressed a willingness to furnish hostages. Their representations were of no effect, however; 'habia empeño en sojuzgar á San Salvador, y á este interés se sacrificaba todo.' *Marure, Bosq. Hist. Cent. Am.*, 51.

[IV-3] Against Filisola's expressed wishes. That general was then in Chiapas, and had forbidden all military operations till his arrival. *Mem. Rev. Cent. Am.*, 13; *Alaman, Hist. Méj.*, v. 478; *Filisola á la Junta Soberana*, note 6.

[IV-4] He went in by the road sloping from the volcano to the west, from which quarter, owing to the roughness of the ground, no attack had been expected.

[IV-5] The casualties were not heavy on either side. *Mem. Rev. Cent. Am.*, 12-13.

[IV-6] It was chiefly on the superiority exhibited on this occasion that Salvador subsequently based her claim to a prominent place in the councils held upon Cent. American affairs. Many of the internal wars which for a number of years ravaged the country may be traced to this pretended superiority.

[IV-7] To answer charges preferred against him. *Id.*, 15; *Marure, Bosq. Hist. Cent. Am.*, i. 53, followed by *Alaman, Hist. Méj.*, v. 478. Cuevas, *Porvenir de Mex.*, 253-4, makes the doubtful assertion that Gainza went of his own accord. At any rate, he afterward was made a lieut-gen. of the imperial army, and an aide-de-camp of Iturbide's.

[IV-8] His proclamation of July 8, 1822, expressed his desire to be guided only by the best interests of the country. *Méx., Gaceta Imp.*, 1822, 657-9.

[IV-9] Duly authorized agents of Salvador were to go for that purpose to Mexico in Nov. 1822; the districts of San Miguel and Santa Ana being permitted to recognize the government at Guatemala till an understanding should be arrived at in Mexico. Other clauses referred to the surrender of arms seized by Arce in Sonsonate, to the commercial interests of the two provinces, and to rules to be observed before renewing hostilities. *Marure, Bosq. Hist. Cent. Am.*, 56-7.

[IV-10] Oct. 31, 1822. See *Hist. Mex.*, v., this series.

[IV-11] *Filisola á la Junta Soberana*, notes 9, 10.

[IV-12] His force consisted of about 2,000 men, chiefly from Guatemala, Santa Ana, San Miguel, Sonsonate, and Honduras.

[IV-13] *Marure, Bosq. Hist. Cent. Am.*, 60-1; *Molina, Costa Rica*, 93; *Squier's Travels*, ii. 383. The decree never went into effect, however.

[IV-14] The principal conditions were: establishment in Mexico of a representative government; Salvador's absolute independence from Guatemala; participation of her delegates in framing the national constitution; continuation in office of the present incumbents; and erection of an episcopal see. For less important terms demanded on that occasion, see also *Mem. Rev. Cent. Am.*, 16-17; *Marure, Bosq. Hist. Cent. Am.*, 62.

[IV-15] It seems that he again asked for instructions from the emperor, who peremptorily directed him not to lose more time in negotiations. 'V. S. no es mas que un soldado que debe atacar la ciudad, posesionarse de ella y tratar á los cabecillas como perturbadores del órden.' *Mem. Rev. Cent. Am.*, 17. Filisola himself confirmed the above in his address to the junta soberana of Cent. Am. of June 24, 1823, note 10.

[IV-16] Squier, in his *Travels*, ii. 383-4, rather emphatically comments on this 'step expressive of sympathies and sentiments which still exist.'

[IV-17] 'With a declaration that he was not waging war on the U. S., he continued his operations.'

[IV-18] Feb. 7, 1823. *Mem. Rev. Cent. Am.*, 17-18.

[IV-19] Filisola issued passports to all who wished to quit the country, and even furnished them money to leave. To the poor soldiers he afforded every facility to reach their homes.

[IV-20] It must be acknowledged that to the gallantry and constancy of the sons of this little province, Central America owed to a great extent its existence as a sovereign commonwealth. *Zavala, Rev. N. Esp.*, i. 142. See also *Alaman, Hist. Méj.*, v. 476; *Marure, Bosq. Hist. Cent. Am.*, i. 47; *Suarez y Navarro, Hist. Méj.*, 387; *Mem. Rev. Cent. Am.*, 11-12.

[IV-21] Col Felipe Codallos was appointed governor of the province.

[IV-22] Tinoco had gone to Mexico.

[IV-23] *Hist. Mex.*, v., this series.

[IV-24] Filisola's course has been open to criticism. Some attributed it to a conviction that Cent. Am. could not be held as a province dependent from a republic, which was practicable as a dependence of an empire. Others have supposed that he was prompted by personal ambition. Marure, *Bosq. Hist. Cent. Am.*, 73, and *Mem. Rev. Cent. Am.*, 19, claim that it was the unavoidable result of the situation, which is not exactly true. With the force at his command, he might have maintained supremacy for a considerable time at least. Filisola himself said that his object had been to avert civil war. In his address of July 24, 1823, to the junta of Guatemala, he assured that body that his recognition of its sovereignty had been with the sanction of the supreme executive government of Mexico, communicated to him on the 18th of June. *Filisola á la Junta Soberana de Guat.*, 1-8; *Id.*, *El Ciudadano*, 16-17.

[IV-25] Among others, that of seizing, without any legal formality, the Spanish vessel *Sinacam*, whose cargo he sold to procure provisions and other supplies for his garrison. Marure, *Bosq. Hist. Cent. Am.*, i. 75; *Ayon, Apuntes*, 22-3.

[IV-26] It was installed at Leon on the 17th of April, 1823. Marure, *Efem.*, 6.

[IV-27] On the 15th of April. Marure, *Efem.*, 6.

[IV-28] Several of the conspirators were imprisoned at the capital, though only for a short time. *Molina, Costa Rica*, 94; *Astaburuaga, Cent. Am.*, 12.

[IV-29] According to Marure, *Efemérides*, 6, reserving the liberty of recognizing anew Iturbide as the legitimate emperor, should he be again restored to the imperial throne.

[IV-30] Deputies from Cent. Am. to the Mexican congress complained of outrages committed by Filisola's soldiers, to which his attention was called to correct them by the executive of that republic.

[IV-31] Cuevas, *Porvenir de Méx.*, 254-6, laments it, considering it an act injurious to Cent. America's best interests.

[IV-32] The imperialists 'se limitaron á oponerles algunas maniobras sordas, no teniendo ánimo de disputarlas á cara descubierta.' *Marure, Bosq. Hist. Cent. Am.*, 82-3. The independents 'contrajeron sus planes á ganar las elecciones, y á hacer odiosas las tropas mejicanas, procurando á toda costa, y por todos los medios posibles, hacerlas evacuar la república.' *Mem. Rev. Cent. Am.*, 20.

[IV-33] The 1st of June had been the date originally fixed upon, but some preliminary work not having been completed in time, the installation was necessarily delayed. *Marure, Bosq. Hist. Cent. Am.*, i. 83.

[IV-34] Chiapas was not represented, that province having continued detached from Cent. Am.

[IV-35] It is said that Filisola installed the congress, the Mexican troops taking part with the native ones in paying honors to the national representatives. Till the organization of an executive, the first decrees were addressed to Filisola, as superior political chief, for their execution. *Mem. Rev. Cent. Am.*, 20. That body, the first as well as the most numerous, was at the same time the most enlightened that the republic ever had. *Marure, Bosq. Hist. Cent. Am.*, i. 83; *Id., Efem.*, 7; *Guat., Recop. Leyes*, i. 16-24.

[IV-36] The full text with the names of the delegates present appears in *Marure, Bosq. Hist. Cent. Am.*, i. xiii.-xviii.; and *Rocha, Código Nic.*, i. 19-23. Its principal clauses were: 'That the said provinces ... are free and independent from old Spain, from Mexico, and every other power, alike of the old and the new world, y que no son ni deben ser el patrimonio de persona ni familia alguna.' Translations into other languages may be seen in *Revue Américaine*, i. 377-97; *Democratic Rev.*, i. 486-7. The act was drawn up by the deputy José Francisco Córdoba, who was a member of the committee to whom the matter had been referred. *Mem. Rev. Cent. Am.*, 21.

[IV-37] *Guat., Recop. Leyes*, i. 24-32.

[IV-38] Aug. 20, 1824. *Dublan and Lozano, Leg. Mex.*, i. 713; *Alaman, Mem. á las Cám.*, 9.

[IV-39] Decree of July 15, 1823. *Guat., Recop. Leyes*, i. 32-3.

[IV-40] The party was mainly composed of members of the so-called noble families, Spaniards, civil and military officers, the clergy, and the most ignorant class of the population. It was therefore the most numerous. *Montúfar, Reseña Hist.*, iv. 259.

[IV-41] As he was then in the United States, the canon Antonio de Larrazábal was to be his substitute during his absence. Larrazábal having declined the position, it was given to Antonio Rivera Cabezas. *Guat., Recop. Leyes*, i. 164-70; *Marure, Bosq. Hist. Cent. Am.*, i. 88; *Id., Efem.*, 8; *Mem. Rev. Cent. Am.*, 22.

[IV-42] The moderados wanted José Dionisio Herrera of Honduras, in the triumvirate, to avoid the undue influence Salvador would exercise, having two of her citizens in the executive, and because they considered Herrera intellectually superior to Villacorta. No one thought of José del Valle, who was then in Mexico. Cuevas, *Porvenir de Mex.*, 256-7, erroneously states that the supreme authority was offered Filisola and he declined it. He declined the office of jefe político of Guatemala.

[IV-43] Just in some instances, no doubt; but it became known that Guatemalans disguised as Mexicans committed hostile acts to bring the soldiers into discredit. Filisola certainly strove to maintain order and discipline. *Marure, Bosq. Hist. Cent. Am.*, i. 89-93; *Filisola, El Ciudadano*, 22-8.

[IV-44] José Francisco Barrundia, of whom prominent mention is made in this history, severely attacked Filisola's course in a pamphlet, which was replied to in a small book entitled *El Ciudadano ... Vicente Filisola á José Francisco Barrundia*, Puebla, 1824, 132 p. The author defends himself, employing strong invective against his accuser, charging him with hypocrisy and cowardice. The book gives some historical data, but owing to its bitterness, must be received with caution. Filisola after that time figured as a prominent soldier of the Mexican republic in Texas, and during the war of the U. S. and Mexico in 1846-8.

[IV-45] *Guat., Recop. Leyes*, i. 877-8.

[IV-46] Practically, the word 'don' never fell into disuse. The manner of ending official letters was changed from the former 'Dios guarde á ... muchos años,' to 'Dios, Union, Libertad.' *Marure, Bosq. Hist. Cent. Am.*, i. 94; *Id., Efem.*, 7.

[IV-47] Decrees of the national assembly of Aug. 21 and Nov. 5, 1823. *Rocha, Código Nic.*, i. 162; *Guat., Recop. Leyes*, i. 54-5.

[IV-48] *Guat., Recop. Leyes*, i. 33-8, 461-3; *Méx., Col. Dec. Sob. Cong.*, 219.

[IV-49] Even the statistics that might have served as a basis for establishing imposts were not to be found. It was said that they had all been forwarded to Mexico during the imperial rule.

[IV-50] He was offended at not being appointed commanding officer of the battalion.

[IV-51] The author of *Mem. Rev. Cent. Am.*, 23-7, accused the government of allowing the conspiracy to assume serious proportions with the view of obtaining larger powers, including that of levying forced loans.

[IV-52] The 14th and 15th had been designated to commemorate the independence.

[IV-53] A number of persons were killed and others wounded in the street fight. *Marure, Bosq. Hist. Cent. Am.*, i. 102-3. On the 10th of Jan. following those who perished in defence of the assembly were declared 'beneméritos de la patria en grado heróico.' *Id., Efem.*, 8.

[IV-54] *Marure, Bosq. Hist. Cent. Am.*, i. 104, gives the almost incredible account that the soldiery behaved in an orderly manner.

[IV-55] His principal assistant and second in command, Manuel Estrada, was imprisoned and executed. An erroneous account of Ariza's revolt is given by Puydt and Binckum, *Colonisation*, 118-19, who place it in 1825, and assert it was effected by order of the government in Spain.

[IV-56] It found support among some of the deputies who had not been present at the election of the members of the executive. *Mem. Rev. Cent. Am.*, 25.

[IV-57] The last named being a foreigner, congress repealed the law which admitted only natives to the executive power, passed July 8th, when Filisola had been proposed as a candidate. Foreigners who had rendered services to the republic were made eligible. *Marure, Bosq. Hist. Cent. Am.*, 107.

[IV-58] Villacorta at first declined the position, on the ground that to exercise, as a mere substitute, the functions he had just been discharging as proprietary in the office, affected his honor, 'era un paso que lastimaba su honor.' A unanimous resolution, however, of the congress, directing him to fill the office, induced him to accept it. *Id.*, 107-8. It has been said of him for his final acceptance: 'Tuvo la falta de delicadeza de admitir la suplencia.' *Mem. Rev. Cent. Am.*, 26.

[IV-59] The Salvadoran commander alleged instructions from his government not to go back till he became convinced that the assembly could continue its labors without hindrance in the future. In Guatemala it was said that he had been prevailed on by the liberal party, somewhat displeased at the last elections for executive, not to heed the command to retire. In consequence of the events of Sept. 14th in Guatemala, the diputacion provincial at San Salvador on the 27th of Oct. assumed the powers of a junta gubernativa, and exercised them till the constituent congress of the state was installed. *Marure, Efem.*, 8.

[IV-60] 'No sin algunos aparatos escandalosos y hostiles de parte de los salvadoreños.' *Mem. Rev. Cent. Am.*, 27.

[IV-61] They had been reported to the chamber by its committee on the 25th of Oct. *Marure, Efem.*, 8.

[IV-62] The states had already constituted their governments by Sept. 1824. Chiapas was not included among the new states. Her admission was left open for such a time as she should apply for it, the belief in Cent. Am. being that the province had not voluntarily attached itself to Mexico. *Guat., Recop. Leyes*, i. 40-2, 59-62, 68, 96-7; *Mem. Rev. Cent. Am.*, 27; *Marure, Bosq. Hist. Cent. Am.*, i. 120-1, 149; *La Tribuna*, ii., no. 2.

[IV-63] *Marure, Efem.*, 12, gives the date as April 10th.

[IV-64] *Cent. Am., Informe sobre la Constituc.*, 1-73, and 1-30. This constitution has been called 'el bello ideal de copiantes y

teoristas que soñaron un pueblo para constituirlo, y que no conocían el país en que nacieron.' *Mem. Rev. Cent. Am.*, 36.

[IV-65] The asamblea, foreseeing this, had designed La Antigua as the meeting place of the local congress; but the latter at its first sittings selected for future times the capital. *Marure, Bosq. Hist. Cent. Am.*, 179.

[IV-66] Such as to determine the military and financial budgets, superintend the education of the people, declare war and conclude peace, and regulate the financial and commercial interests of the country. Its members were to be elected at the rate of one for every 30,000 inhabitants. *Id.*, 174-5. There were 17 representatives for Guatemala, nine for Salvador, five for Honduras, six for Nicaragua, and two for Costa Rica. *Astaburuaga, Cent. Am.*, 13. Dunlop, *Cent. Am.*, 164, says Honduras had six representatives.

[IV-67] *Astaburuaga, Cent. Am.*, 13. Molina, *Costa Rica*, 19, criticises this organization as follows: 'Se estableció un senado nulo, un Ejecutivo impotente y un congreso absoluto.' Necessarily the greater number of representatives of Guatemala would outweigh those of the other states, and thus make the constitution only an imperfect copy of that which had originally served as a model.

[IV-68] Part of the constitution is given in *Rocha, Código Nic.*, i. 37-9; on the following pages will be found such clauses of the old Spanish constitution as were retained under the new system. See also *Peralta, Costa R.*, 5; *Astaburuaga, Cent. Am.*, 13-5.

[IV-69] 'Se hacen libres los esclavos que de reinos extranjeros pasen á nuestros Estados, por recobrar su libertad.' *Rocha, Código Nic.*, i. 212-13; *Guat., Recop. Leyes*, i. 217-9; *Marure, Bosq. Hist. Cent. Am.*, i. 133-5; *Id., Efem.*, 10.

[IV-70] Holders of slaves thus emancipated were to be indemnified. We are assured that no one ever applied for such indemnification.

[IV-71] In 1840 Great Britain, would-be champion of the world's high morality, on one occasion claimed the return of some fugitive slaves from Belize, and supported the demand with the presence of a man-of-war. Notwithstanding her weakness,

Central America refused to comply, on the ground that under her constitution there were no slaves in the country. *Crowe's Gospel*, 121-2; *Squier's Travels*, ii. 385-6; *Revue Américaine*, ii. 550; *Dunlop's Cent. Am.*, 163. According to Molina, the number of slaves thus emancipated was about 1,000.

[IV-72] 'Una confederacion general que representase unida á la gran familia americana.' *Marure, Bosq. Hist. Cent. Am.*, 138.

[IV-73] Barclay, Herring, Richardson, & Co., whose agent was J. Bailey. *Thompson's Guat.*, 266; *Marure, Bosq. Hist. Cent. Am.*, i. 143.

[IV-74] One of the conditions was that the republic should not contract for another loan within two years. It was estimated that the debt could be paid in 20 years. *Asamblea Nac., Decreto*, Dec. 6, 1824, in *Marure, Bosq. Hist. Cent. Am.*, i. 144. That expectation was not realized. Details will appear in connection with the finances of the republic, elsewhere in this volume.

[IV-75] The total number of decrees passed was 137, and of orders 1186. *El Indicador de Guat.*, 1825, no. 16.

[V-1] He is represented as an able man, who had formerly favored the union with Mexico, but afterward joined the liberal party, becoming one of its most prominent members. The author of *Mem. Rev. Cent. Am.*, 39-41, 46, while acknowledging his ability, says that he was 'de poca delicadeza ... de un carácter falso, y afectando una franqueza y una moderacion que no le es propia.'

[V-2] The delegates of the different states were in the following proportion: Guatemala 17, Salvador 9, Honduras and Nicaragua 6 each, Costa Rica 2. The total number being 40, and not 34 as Squier erroneously has it. *Travels*, ii. 388.

[V-3] Arce had in his favor the prestige of past services, and his sufferings in the cause of independence. Valle had the support of those who objected to Salvadoran predominance. Moreover, he had been educated in Guatemala, and had property there; from which circumstances it was surmised that he would be more in sympathy with that state and the so-called serviles. *Marure, Bosq. Hist. Cent. Am.*, i. 150; *Mem. Rev. Cent. Am.*, 28-9.

[V-4] The total number of votes for the whole republic was 82, but three had been rejected by congress for various reasons.

Marure, Bosq. Hist. Cent. Am., i. 210-11; *Mem. Rev. Cent. Am.*, 40-1.

[V-5] Salvador insisted on having an episcopal see, in order to be independent of Guatemala in ecclesiastical affairs. This was the chief question at issue. Arce promised to leave its decision to the next congress. *Arce, Mem.*, 3. Valle really had obtained more votes than Arce, and congress defrauded him of his election. *Montúfar, Reseña Hist.*, i. 268.

[V-6] Barrundia had been elected upon Valle's refusal to accept the office, and likewise declined it. Valle protested against Arce's election as illegal, in several writings, apparently to little purpose. *El Indicador*, 1825, no. 26 et seq.; *El Liberal*, 1825, no. 7, 8; *Nulidad de la prim. elec.*, passim; *Marure, Bosq. Hist. Cent. Am.*, i. 212-13; *Id., Efem.*, 13.

[V-7] Arce, *Mem.*, 4, has it April 30th, but in view of the numerous misprints in his work, the date given in the text is probably more correct. It is the one supported by *Marure, Bosq. Hist. Cent. Am.*, i. 213; *Squier's Travels*, ii. 388; *Dunlop's Cent. Am.*, 164. Its first president was Tomás Antonio O'Horan. This court superseded the audiencia founded in 1544 at Gracias á Dios, and transferred in 1549 to Guatemala. *Marure, Efem.*, 14.

[V-8] It was for a defensive and offensive alliance and equal privileges of trade. It was ratified by the Cent. Am. govt Sept. 12, 1825. The full text is given in *Rocha, Código Nic.*, i. 95-9; *Marure, Bosq. Hist. Cent. Am.*, i. xxxviii.-xlvii. See also *Ayon, Consid. Lím.*, 28-9; *Gaceta de Salv.*, Oct. 12, 1854.

[V-9] It was therein stipulated that the citizens of both republics should enjoy all the rights granted by one or the other to the most favored nation. The same rights for political purposes were also agreed upon, that of free exercise of religion being included. All clauses of a commercial character were to be in force 12 years; the others perpetually. Privileges and rights enjoyed by the citizens of either republic were to be also allowed to those immigrating from the other. This treaty was ratified by the younger republic on the 28th of June, 1826. The text in both English and Spanish may be seen in *U. S. Govt Doc.*, U. S. Acts, Cong. 19, Sess. 2, Sen. Doc. 1, i. 149-70; *Am. St. Pap.*, For. Rel., v. 774-82; *Gordon's Digest of Laws*, 328-35; *Marure, Bosq. Hist. Cent. Am.*, i. xlvii.-lxv.

[V-10] Arce's Mess., March 1, 1826, in *Repertorio Am.*, i. 274-9; *Santangelo, Congreso Panamá*, 73-5.

[V-11] Their newspapers, *El Liberal* and *Don Meliton*, charged him with partiality and incapacity. The latter, for its satire and ridicule, was the more formidable foe, as Arce himself acknowledges. *Mem.*, 5.

[V-12] The departmental chief of Guatemala claimed that he was not under Arce's authority, but under that of the state, then residing at La Antigua. Congress empowered the executive to compel the local authorities to attend the celebration, and it was done. *Arce, Mem.*, 8.

[V-13] The total number of decrees enacted was 92, and that of orders submitted to the executive 308. For more details, see *El Centro Americano*, 1826, 38.

[V-14] One half of the representatives of every state had to retire, according to the constitution.

[V-15] He had at first declined the connection, but afterward accepted it 'para dar rienda suelta á sus resentimientos y pasiones contra el presidente Arce.' *Mem. Rev. Cent. Am.*, 48.

[V-16] Text in *Repertorio Am.*, i. 273-89.

[V-17] He brought letters of recommendation from Pedro Molina, who was representing Cent. Am. at Bogotá, and had a high opinion of him, as he had served under Napoleon. *Marure, Bosq. Hist. Cent. Am.*, i. 230.

[V-18] After he completed that work he was ordered to remain on the coast till further orders from the government. The congress tried in vain to prevent it.

[V-19] The reasons adduced by him in his *Mem.*, 22-4, and comments on the same in *Marure, Bosq. Hist. Cent. Am.*, i. 236-7.

[V-20] 'Este asunto se renovaba cada vez que á los diputados ministeriales convenia paralizar algun golpe contra el ejecutivo.' *Mem. Rev. Cent. Am.*, 51.

[V-21] The deputies of Salvador defended their course in a long argument, June 8, 1826, calling it an inevitable result of the

unlawful conduct of the majority of congress. *Doc.*, in *Arce, Mem.*, 10-17.

[V-22] Restricting the archbishop's powers, and placing him to some extent under civil authority; suppressing the subventions of curates, and abolishing certain privileges the clergy had till then enjoyed; tithes were reduced, and persons under 25 years of age were not allowed to take monastic vows. *Marure, Bosq. Hist. Cent. Am.*, i. 244-5.

[V-23] The full text of the resignation is given in *Arce, Mem.*, 25-7.

[V-24] 'Pondrá sobre las armas toda la fuerza que crea necesaria.... En caso de resistencia repelerá la fuerza con la fuerza.' *Id.*, 32.

[V-25] On the ground that only Guatemala had paid such contingent, and even more, and the other states had arbitrarily eluded payments. Arce was accused, not without foundation, it seems, of allowing such discrimination.

[V-26] On September 3, 1826; the document merely stipulates a temporary suspension of hostilities, without further entering into the question. *Arce, Mem.*, 39. It has been asserted that Espínola held a favorable position, and adds: 'A pesar de esto, capituló vergonzosamente'—a charge without much foundation, in view of the numerical superiority of the Guatemalan forces. *Mem. Rev. Cent. Am.*, 52-3.

[V-27] *Arce, Mem.*, 39-41, gives a lengthy account of his deliberations, and doubts whether it would or not be just, and consistent with his duties, to imprison Barrundia, all of which is at least doubtful.

[V-28] *Mem. Rev. Cent. Am.*, 53. *Crowe's Gospel*, 127, and *Squier's Travels*, ii. 395, confound the jefe with his brother José Francisco. The orders were, 'Que en el caso de resistencia obre fuertemente hasta concluir el arresto y ocupacion de las armas.' *Arce, Mem.*, 41-2.

[V-29] This non-resistance is attributed to treachery on the part of Vera, a Mexican commanding the state forces, who subsequently entered the federal service. *Marure, Bosq. Hist. Cent. Am.*, i. 254-5.

[V-30] *Doc.*, in *Arce, Mem.*, 26.

[V-31] It is a long doc., giving details, and dwelling specially on the part Raoul had played. *Id.*, 27-31.

[V-32] Comments and details on the subject in *Marure, Bosq. Hist. Cent. Am.*, i. 255-8; *Mem. Rev. Cent. Am.*, 53-4.

[V-33] 'Este desenlace hizo ridículo todo lo que antes habia parecido un golpe maestro.' *Mem. Rev. Cent. Am.*, 54.

[V-34] To save appearances, Arce pretended to induce his supporters to assume their positions in the chamber, but there is little doubt of its being mere sham. It has been intimated that even some liberals declined to sit, from apprehension that an investigation of Arce's conduct might lead to civil war.

[V-35] Still declaring its allegiance to the federation. *Gaz. de Méx.*, Jan. 25. 1827; *Arce, Mem.*, 51.

[V-36] The impossibility of obtaining a quorum of members chosen to the 2d congress, and impending civil war, were among the reasons assigned for his action. The elections were to be made on the basis of two deputies for every 30,000 inhabitants, and Cojutepeque in Salvador was appointed as the place of meeting. This measure was at first well received by the states, but afterward rejected in consequence of a decree of the Salvador government on the 6th of Dec., inviting the federal deputies to meet at the villa of Ahuachapan. *Marure, Efem.*, 17; *Mem. Rev. Cent. Am.*, 56.

[V-37] Oct. 11, 1826. *Marure, Bosq. Hist. Cent. Am.*, i. 273; *Corres. Fed. Mex.*, Nov. 27, 1826.

[V-38] He sought refuge in the parish church, but was pursued by the crowd. His only safety lay in the pulpit, the remonstrances of the religious, and the presence of the host. The religious succeeded at times in calming the rabble, promising that Flores should be sent into exile. But Antonio Corzo, who was in the court-yard with a few poorly armed militiamen, fired a volley upon the mob, which became still more excited. The women dragged Flores from the pulpit, took him out of the temple, 'y le inmolaron en un claustro bárbara y horrorosamente.' *Mem. Rev. Cent. Am.*, 57-8. *Squier's Travels*, ii. 396, has it that the Indians had been infuriated by the harangues of a friar from the pulpit, and that the rabble slaughtered Flores at the very foot of the altar,

literally rending his body in pieces; the apparent cause of this vindictiveness of the priests being that in the general levy of taxes for the state the property of the convents had not been spared. 'And thus was the movement started by the aristocrats, seconded by their allies, the priests.' Ex-president Morazan, referring to that catastrophe, uses these words: 'Puesto en manos de un feroz populacho, instigado por las funestas ideas que le inculcaron sus sacerdotes, pereció al pié de las imágenes de los santos, á la vista de sus inicuos jueces, y en presencia de la eucaristía, que estos cubrieran.' *Apuntes*, MS., 4. Flores had been noted for his charity to the poor, specially to the Indians, to whom he constantly gave medical aid, medicines, and other necessities. The state assembly, after being restored in 1829, decreed honors to his memory, and ordered placed in its hall of sessions an inscription in letters of gold, as follows: 'Al inmortal Vice-jefe Ciudadano Cirilo Flores, mártir de la Libertad, sacrificado en Quezaltenango, en las aras de la ley.' In May 1831 the name of Ciudad Flores was given in his honor to the head town of the district of Peten. *Marure, Efem.*, 17, 28.

[V-39] The liberals looked upon it as the result of an arrangement of Arce and his partisans; the latter declared it to have resulted from an accident, or rather from violent acts on the part of liberals in Quezaltenango, such as forcibly taking horses in the night from private houses and the Franciscan convent. Marure states that he thoroughly examined every document bearing on the subject, and found no evidence against Arce or his party. *Bosq. Hist. Cent. Am.*, i. 275-85. The author of *Mem. Rev. Cent. Am.*, 58, acquits Arce, attributing the act to a sudden popular excitement. See also *Astaburuaga, Cent. Am.*, 15; *Crowe's Gospel*, 127-8; *Pineda, in Guat., Recop. Leyes*, iii. 348; *Corres. Fed. Mex.*, Nov. 9, 1826; *Doc.*, in *Arce, Mem.*, 32-3.

[V-40] There was an effort toward reconciliation, the liberals offering to make concessions, and Arce favoring their proposals; but the serviles haughtily refused.

[V-41] Owing, it was said, to the publication of a pontifical bull, which, under Arce's exequatur, had been restricted to Guatemala by the archbishop, a step that Delgado supposed to have been by Arce's instigation, or at least a lack of interest on his part for San Salvador. *Mem. Rev. Cent. Am.*, 60. Arce himself attributed the estrangement to party intrigues. *Mem.*, 60. Dunlop, *Cent. Am.*, 165, assigns disputes about the erection of the bishopric as the cause of the rupture.

[V-42] Arce, *Mem.*, 61, finds fault with Prado's act, when his own had been just as illegal.

[V-43] Colonel Milla invaded the state with a federal force, captured Comayagua on the 9th of May, 1827, and arrested the jefe of the state, Herrera. The whole was a wanton proceeding. *Morazan, Apuntes*, MS., 6-9.

[V-44] The commander of the Salvadorans was unable to explain his illegal proceeding. *Doc.*, in *Arce, Mem.*, 45-6.

[V-45] Detailed accounts, with copies of the official exaggerated reports, are given in *Gaz. de Méx.*, Apr. 26 till May 1 and May 22, 1827; *Marure, Efem.*, 19; *Mem. Rev. Cent. Am.*, 62-4. Decree of government of Guatemala on the subject, March 28, 1827. *Guat., Recop. Leyes*, i. 250.

[V-46] Beltranena and several of Arce's officers disapproved the retaliatory plan. Aycinena, on the contrary, favored it, though willing to abide by Arce's decision.

[V-47] Both districts had seceded from the state government of Salvador, attaching themselves to the federal cause.

[V-48] He committed the error of entertaining peace proposals, which were made only to gain time. He endeavored to explain it away on the plea of Cent. Am. brotherhood: 'Puedo yo dejar de tener un corazon Centro Americano? No es posible.' *Arce, Mem.*, 69. On the same and following pages is a detailed account of the action, carefully worded and extolling the bravery of his Guatemalan soldiers. The official reports are in *El Sol, Mex.*, July 3, 1827; *Marure, Efem.*, 19.

[V-49] The government of Salvador had in May made peace proposals, but the federal authorities rejected them. *Docs.*, in *Arce, Mem.*, 47-57.

[V-50] It was decided in secret session of the state assembly on the 16th of Oct. that the state had a right to intervene, and if it was ignored, and treaties displeasing to the state were concluded, the latter should detach itself from the federation, and its troops continue occupying the towns they then held. Arce's letter of Oct. 17, 1827, to Brig. Cáscaras, in *Montúfar, Reseña Hist.*, i. 22.

[V-51] It may have been of his own seeking, for he must have seen ere this the great difficulty of conquering San Salvador

with his small force, and that to continue longer in the field would only bring him into further disrepute.

[V-52] Ex-marqués de Aycinena, brother of the jefe of Guatemala, called the decree impolitic, illegal, and arbitrary. The serviles could see that it would restore the old congress, so hostile to them; and with a majority against them in both houses, they might have to resort to the dangerous expedient of driving away the senators and deputies at the point of the bayonet. It was ridiculous in them to rail against arbitrariness, when they had arbitrarily deposed Barrundia in Guatemala and Herrera in Honduras. It was arbitrary to keep the nation without a congress, which was their work. *Montúfar, Reseña Hist.*, i. 9, 23.

[V-53] Three brothers Merino, and a Frenchman named Soumaestra. Rafael Merino was made commander-in-chief. *Mem. Rev. Cent. Am.*, 75; *Arce, Mem.*, 77.

[V-54] Near the hill of La Trinidad the federal forces which had control of Honduras were defeated by Nicaraguans and Salvadorans under Lieut-col Remigio Diaz. *Marure, Efem.*, 20.

[V-55] It is difficult to see how the Guatemalans could place faith on pledges so often violated; evidently given to gain time.

[V-56] This ended the second campaign between Salvadorans and Guatemalans.

[V-57] This army was to be used, first in subduing Salvador, and next Guatemala, where Arce encountered more and more opposition to his plans. *Mem. Rev. Cent. Am.*, 81-2.

[V-58] The commissioners, as agreed upon, were to meet at Jutiapa. Those of the general government went there and waited several days; no Salvadorans appeared.

[V-59] The mutiny took place at Xalpatagua on the 9th of Feb. *Marure, Efem.*, 20; *Mem. Rev. Cent. Am.*, 83-5. Aycinena wrote his cousin Antonio, who was in the theatre of war, that in order to hinder all peace arrangements, measures would be resorted to that were unknown even to Machiavelli. The mutiny against Perks was evidently one of these measures.

[V-60] He alleged as a reason the unwillingness of Salvador to enter into negotiations as long as he remained at the head of affairs. *Arce, Mem.*, 84-7. The real cause, however, was a

resolution of the assembly of Guatemala demanding his resignation, and he was unable to disregard it. This course of the assembly was altogether illegal, but the time for the expiation of Arce's political sins had arrived. According to his own statement, he retired to his plantations at Santa Ana.

[V-61] This was the most bloody fight of the war of 1826-9, and opened the third campaign between Guatemala and Salvador. *Marure, Efem.*, 21.

[V-62] Their supply of ammunition had been destroyed by fire, and their commander had received a serious contusion. This fight has been since known as the 'ataque del viérnes santo,' having taken place on good-friday, March 12, 1828. *Id.*, 21.

[V-63] April 13th, action of Quelepa, in which the Salvadorans were defeated. With that victory, and another at Guascoran on the 25th of the same month, the whole department of San Miguel was brought under subjection to the federal government. June 12th, peace stipulations were signed at the house of Esquibel, Manuel F. Pavon acting for the federal government and Matías Delgado for Salvador, by which the former was to be recognized by the latter, a general diet was to meet at Santa Ana, and a federal force occupy San Salvador; but the Salvador government refused to sanction the arrangement, and the war continued with more fury than ever. Details on those preliminaries are given in *Mem. Rev. Cent. Am.*, 100-1. July 6th, battle of Gualcho, on the banks of the Lempa, in the department of San Miguel, between Hondurans and Guatemalans. The latter, under Col. Dominguez, hitherto victorious, were utterly defeated. *Marure, Efem.*, 21-2; *El Espíritu Púb.*, Jan. 18, 1829.

[V-64] Arzú had abandoned them to their fate. *Montúfar, Reseña Hist.*, i. 47-51.

[V-65] *Morazan, Apuntes*, MS.; *Montúfar, Reseña Hist.*, i. 53-4. Thus ended disastrously for the federal forces their third invasion of Salvador territory. The actions of Gualcho and San Antonio were the first in which the great Central American soldier and statesman Francisco Morazan figured as a general. Morazan will stand in history in many respects as the best, and in all as the ablest, man that Central America had. He was born in Honduras in 1799, his father being a French creole from the W. I., and his mother of Tegucigalpa, in Honduras. His education was such as he could obtain in the country at that time; but his

quickness of apprehension and thirst for knowledge soon placed him far above his countrymen. He was of an impetuous temperament, and possessed at the same time great decision and perseverance. His bearing was free and manly, and his manner frank and open. These qualities could not fail to and did secure him the love and respect of his fellow-citizens, giving him an immense influence over them. In 1824 he was already occupying the position of secretary-general of Honduras, and later was senator, and for a time acting jefe of that state; but his temperament soon made him turn his attention to martial affairs. He ever after was noted as a republican of very liberal views. *Squier's Travels*, ii. 400; *Dunlop's Cent. Am.*, 170-1; *Astaburuaga, Cent. Am.*, 17. The writer of *Mem. Rev. Cent. Am.*, 92, says that Morazan had been at one time a clerk in a notary's office at Comayagua, where he 'habia dado á conocer disposiciones muy felices, pero poco honrosas, para la imitacion de letras ó firmas.' It has been said that Morazan joined the party opposed to the existing federal government at the instigation of Pedro Molina. *Gaceta de S. Salv.*, Oct. 3, 1851. A portrait of Morazan is given in *Montúfar, Reseña Hist.*, i. 72.

[V-66] It has been asserted that he offered his services to Salvador, and was slighted, *Mem. Rev. Cent. Am.*, 97-8, which finds confirmation in Arce's own statement. *Mem.*, 88-9. Squier has it that Arce went to Mexico, *Travels*, ii. 402; but this seems to be a mistake, for he was in Guatemala in 1829.

[V-67] A few days previously, on the 20th, the assembly of Guatemala decreed a renewal of all the powers of the state, with the vain purpose of removing one of the obstacles to the termination of the war. *Marure, Efem.*, 22.

[V-68] Prado and Morazan offered peace to the Guatemalans on condition that the federal government should be fully restored. *El Espíritu Púb.*, Feb. 14, 1829.

[V-69] He established his general headquarters in Ahuachapan, whence raids were constantly made into the enemy's territory.

[V-70] This took place on the 22d of Jan., 1829. The sedition, though soon quelled, rather hastened the action of Morazan with his allied Salvador and Honduras force.

[V-71] The repulse was so unimportant, however, that Morazan does not even mention it in his memoirs. *Marure, Efem.*, 23; *Montúfar, Reseña Hist.*, i. 61.

[V-72] *Mem. Rev. Cent. Am.*, 123; *Marure, Efem.*, 23, gives the 18th as the date. Morazan, *Apuntes*, MS., 14, says with reference to that defeat, 'Cerde acreditó en esta derrota su ineptitud y cobardía y el enemigo su crueldad con el asesinato de los vencidos.' After that the town was given the title of Villa de la Victoria; but later resumed its original name. This defeat was exaggerated in San Salvador, where it was reported that Morazan was besieged in La Antigua, and preparations to meet another invasion were hastily made.

[V-73] Morazan might have been besieged in La Antigua; for during his stay there he despatched a force to Quezaltenango, that should have been followed by another from Guatemala, and destroyed between the latter and the few forces that Irisarri might have brought against it in the hard roads of Istaguacan and Laja; instead of which, Irisarri retreated toward Soconusco, to be afterward undone and taken prisoner. Morazan's force occupied Los Altos, took many prisoners, levied contributions which Irisarri had failed to get from the Quezaltecs, and left the enemy powerless to recuperate. *Mem. Rev. Cent. Am.*, 124; *Morazan's Memoirs*, quoted in *Montúfar, Reseña Hist.*, i. 63.

[V-74] March 6, 1829. The disaster occurred at San Miguelito. *Morazan, Apuntes*, MS., 15. The place received, for that reason, the name of San Miguel Morazan. The Frenchman Raoul, now a general under Morazan, figures prominently in the military operations at this time.

[V-75] On the 15th of March. *Marure, Efem.*, 23; *Morazan, Apuntes*, MS., 15; *Montúfar, Reseña Hist.*, i. 62-3.

[V-76] The federal force that succumbed in Las Charcas was commanded by their mayor-general, Agustín Prado, not Col Pacheco, as supposed by some. The federals had no general now. Cáscaras had lost his reputation, and was distrusted by the serviles. Arzú would not take the command, or was not trusted on account of his ill success in the third invasion of Salvador. Morazan had defeated Milla, Domínguez, Aycinena, Pacheco, and Prado. *Id.*, 63-4.

[V-77] The representatives were, Arbeu for Vice-president Beltranena, Pavon for Guatemala, Espinosa for Salvador, and Morazan for Honduras and Nicaragua. The last propositions of Espinosa and Morazan were the following, namely: 1st. That a provisional government should be formed in Guatemala, composed of the chief of the state Mariano Aycinena, Mariano Prado, and Morazan; 2d. That the two armies should be reduced to 1,000 men, Guatemalans and Salvadorans in equal parts; 3d. That the provisional government should be installed in Pinula, and afterward enter Guatemala with that force to give it strength and preserve order in the state; 4th. A general forgetfulness of the past. *Morazan, Apuntes*, MS., 5, 16; *Montúfar, Reseña Hist.*, i. 65. It is claimed, on the other hand, that Morazan really wanted the federal vice-president and the chief of the state of Guatemala to throw up their offices, the legislative assembly and representative council to cease exercising their functions; and that of 1826, sitting at La Antigua, and which had made Zenteno chief, was also to dissolve; the supreme court of justice was to stop acting. Meantime, and until new elections took place, Morazan was to be clothed with executive, representative, and judicial powers. Under the pretext of restoring the sway of law and constitutional order, a dictatorship, emanating from a war treaty, would have been created, whose sole object was to reward the victor with an unlimited authority. The commissioners of the federal and Guatemalan governments refused to accede, and presented counter-propositions of a different nature, namely, to the effect that the existing high functionaries should resign their powers, and a provisional government be established, with one representative from each state, to govern till new elections and the restoration of the constitutional régime. There were also propositions respecting the government of the state of Guatemala. Full details in *Mem. Rev. Cent. Am.*, 125-9, 231-6, which are widely different from those in *Morazan, Apuntes*, MS., 16. The government of Mexico, at the request of that of Guatemala, tendered its mediation on the 20th of February, but it arrived too late, and there was nothing left for it to do but to tender the hospitalities of the Mexican soil to the victims of persecution. The full correspondence is to be found in *Méx., Mem. Rel.*, 1830, 2-3; also in *Suarez y Navarro, Hist. Méj.*, 407-14; this authority claims that Mexican mediation might have been finally successful in restoring peace but for the opposition of the new chief of Guatemala.

[V-78] A long account of the alleged outrages of Morazan's forces appears in *Mem. Rev. Cent. Am.*, 132-3. Marure, *Efem.*, 24, in referring to the capture of Guatemala, makes no mention of any such abuses.

[V-79] Morazan's answer was addressed to Gen. Aycinena, not recognizing the latter as chief of Guatemala, Juan Barrundia's term not having expired when Arce deposed him, in consequence of which act Aycinena rose to that position. The dissolved authorities of 1826 were now assembled in La Antigua, and Morazan held relations with them. Aycinena had changed his tone; he was no longer the man of the manifestoes of 1827, of the proscriptive decrees, nor of the stringent military orders of the first months of 1829. He did not now call his opponents 'un puñado de enemigos del orden, descamisados y forajidos.' *Montúfar, Reseña Hist.*, i. 72-5, 79-86.

[V-80] Astaburuaga, *Cent. Am.*, 18, erroneously places the surrender on the 20th. The terms of the capitulation are given in *Arce, Mem.*, 98-4; *Montúfar, Reseña Hist.*, i. 76-7. Only the life and property of the inhabitants were guaranteed; the vanquished were in all else subject to the good-will of the victor. José Milla y Vidaurre, in his biographical sketch of Manuel Francisco Pavón, who figured in these events, claims that the capitulation was contrary to Aycinena's wishes, who was ready to defend the place foot by foot. Montúfar, quoted above, denies the statement, adding that it was advanced solely to make the chief of the serviles and head man of the nobles appear as a hero, and refers to the correspondence, which will show Aycinena quite anxious to accept the guarantee of life and property.

[V-81] According to Miguel García Granados, who in later years was a liberal leader and acting president of Guatemala, Arce had remained unmolested at his house in sight of the besiegers during the three days' attack. *Id.*, 103.

[V-82] This was done pursuant to orders from the governments of the states. So says Morazan himself, adding that the measure was in consonance with his own views, to reduce the number of prisoners to a minimum, 'y tenia tambien por objeto poner en absoluta incapacidad de obrar á los principales jefes que habian llevado la guerra á los Estados.' *Apuntes*, MS., 16-17.

[V-83] He took charge of the provisional government at the end of April. Mariano Zenteno, who had held the position ad int.,

was given a vote of thanks for his patriotism and courage. *Montúfar, Reseña Hist.*, i. 127.

[V-84] The federal authorities alleged that their soldiers only had 431 muskets, and not 1,500, as demanded from them. *Mem. Rev. Cent. Am.*, 236-9. Morazan says that soldiers were allowed to leave the city with their arms, infringing the 4th clause of the capitulation, and he could get only evasive answers. *Apuntes*, MS., 17; *Arce, Mem.*, 58-9, 98-103, from which the conclusion will be drawn that the charges against the federal party were not unfounded. *Montúfar, Reseña Hist.*, i. 109-17. On this subject Morazan himself said: 'No one was put to death, or had money exacted from him by me. The capitulation was faithfully carried out, even after being annulled. Duty gave way to magnanimity, and there was no cause to regret it. Not that there was no blood to avenge, grievance to punish, and reparation to demand. Among many other victims sacrificed, there were, calling for vengeance, generals Pierzon and Merino, the one shot, without even the form of a trial, the other taken out of a Chilian vessel on which he intended to return to Guayaquil, his country, to be murdered in the city of San Miguel. There were, besides, the burning and plundering of the towns of Salvador and Honduras, which demanded a just reparation.' *Apuntes*, MS., 10, 17.

[V-85] He called them to the palace, and some of them mistaking the object of the summons made their appearance in full uniform. When all were assembled they were taken to prison and kept in confinement till July 9th, when most of them were sent out of the country. *Marure, Efem.*, 24.

[V-86] *Marure, Efem.*, 24.

[V-87] Among its acts was one recognizing the services of Morazan, to whom was due its reinstallation. He was voted a gold medal, with the word 'benemérito' before his name. A full-length portrait was ordered placed in the hall of sessions. The decree, however, was never carried out. *Montúfar, Reseña Hist.*, i. 129; *Marure, Efem.*, 25.

[V-88] 'Son reos de alta traicion, y como tales, acreedores á la pena capital.' *Arce, Mem.*, 108; *Mem. Rev. Cent. Am.*, 151; *Montúfar, Reseña Hist.*, i. 130.

[V-89] The text is given in full in *Id.*, 131-4; *Mem. Rev. Cent. Am.*, 253-7; *Guat., Recop. Leyes*, i. 254-6.

[V-90] 'Y por lo mismo sujetos á la jurisdiccion militar de los mismos Estados.' *Montúfar, Reseña Hist.*, i. 134-5.

[V-91] Crowe, *Gospel Cent. Am.*, 131, erroneously asserts that all their property was confiscated.

[V-92] Arce addressed to Morazan a most virulent protest. He afterward boasted that he had bearded the tyrant. The very fact that he dared to send such a document, and did not lose his head, proves that Morazan was not a tyrant. *Arce, Mem.*, 113-14. Antonio José Irisarri, Manuel and Juan Montúfar, protested before the assembly and government of Salvador, before the assemblies of all the states of the union, before Gen. Morazan, before all the republics of America, and before all the free people of the world. The document was drawn up by Irisarri, who was not a soldier, though a colonel of militia; the language was pure and elegant, but it was virulent and full of sophistry. Irisarri also in several publications boasted of his courage in having sent such a document. He must have known that it would not have any effect on Morazan. The latter was a generous man. The effect would have been different on Rafael Carrera, whom the serviles at a later period made their master, as well as of the whole country. *Montúfar, Reseña Hist.*, i. 135-6.

[V-93] Marure has it in *Efem.*, 25; *Montúfar, Reseña Hist.*, i. 137-9.

[V-94] Portrait in *Montúfar, Reseña Hist.*, i. 138.

[V-95] The senate, dissolved in 1826, was reinstalled July 9th. *Marure, Efem.*, 25.

[V-96] *Arce, Mem.*, 122-3, and *Mem. Rev. Cent. Am.*, 167-9, assert that they were not even allowed to make preparations for the journey, and many had furthermore to start on foot. The decree of expatriation was not, however, issued till August 22d, and José del Valle is said to have been its author. The persons thus exiled for life were Arce and Beltranena, and their ministers, Aycinena and his secretaries, Cáscaras, Villar, and other high military officers, Spaniards not naturalized that served the usurping governments, and many other prominent officers. Others were expatriated for various terms of years. *Montúfar, Reseña Hist.*, i. 144-50; *Marure, Efem.*, 26. Arce and Aycinena left Guatemala on the 7th of Sept. They were required to reside in

the U. S. of Am.; embarked at Omoa for Belize, and thence went to New Orleans.

[V-97] Dunlop, *Cent. Am.*, 177, and Squier, *Travels*, ii. 408, speak of plots against the republic as the reason, but it was probably what the liberal party alleged.

[V-98] This step was subsequently approved by the federal congress. *Marure, Efem.*, 25; *Rocha, Código Nic.*, ii. 373. The friars sent away were the Dominicans, Franciscans, and Recollects. Those of the order of Mercy were not banished; they were but few, and had not been active against the liberal cause. The Bethlehemite hospitallers, who devoted their time to teaching and to the care of convalescents, were also allowed to remain. The author of *Mem. Rev. Cent. Am.*, 170, says that the exiled priests were on the passage vilely treated, for they were allowed only sailors' rations. Montúfar confesses that it is not likely that the 289 friars had the succulent viands that were usually prepared for them in their convents, nor the dainty dishes they were so often favored with from the nuns, beatas, and all the daughters of confession. As for the archbishop, he journeyed with every comfort. Juan B. Asturias, who made the inventory of his property, reported on 31st of Dec., 1829, that \$218 had been paid for a saddled mule to take the archbishop to the coast; he was allowed \$2,000 for the expenses of his journey, and \$1,008.50 were given to the pages for conveying him and his effects. A person having all that cannot be said to be unprovided with edibles. Saint Peter would not have needed so much. *Reseña Hist.*, i. 156-7.

[V-99] In June 1830 he was declared a traitor. It has been said that it was because he accepted a pension of \$3,000 from the Spanish government at Habana. Archbishop Casaus was later appointed to administer the vacant see of Habana, and held the office till his death. The above-mentioned law was revoked by the constituent assembly on the 21st of June, 1839, and Casaus was restored to all his former rights, and recognized as legitimate archbishop. He was repeatedly invited to return, but never would do so. *Guat., Recop. Leyes*, i. 242-3.

[V-100] This declaration was subsequently confirmed by all the states. At a later time—Feb. 27, 1834—a further step was taken to consummate the suppression of monastic establishments, ordaining that the authorities should not retain the nuns refusing to reside in the convents where they professed. These measures

continued in force till June 21, 1839, when the second constituent assembly of Guatemala repealed them, decreeing, consequently, the reëstablishment of the suppressed convents. *Marure, Efem.*, 25.

[V-101] He had been declared elected on the 22d of Aug., 1829. Antonio Rivera Cabezas had been chosen vice-jefe. *Montúfar, Reseña Hist.*, i. 172-4, giving also a portrait of Molina.

[V-102] Because the number of Guatemalan representatives in the federal congress would be greatly decreased. Moreover, several of the best public buildings in the city would become national property. *Mem. Rev. Cent. Am.*, 200.

[V-103] By his plan a congress representing the entire union was to wield the executive powers in foreign affairs. The scheme fell through, owing to the little interest shown by the states, and to the powerful opposition of persons holding or aspiring to federal offices, among the most prominent being Morazan. *Mem. Rev. Cent. Am.*, 201-3, dwells extensively and comments on the subject.

[V-104] Full particulars in *Montúfar, Reseña Hist.*, i. 205-17.

[V-105] This report came from Gen. Mariano Mantilla, commanding the Colombian district of the Magdalena, dated Jan. 8, 1829, and addressed to the jefe of Nicaragua. It was a long time in getting to Guatemala, and the government and Gen. Morazan at once made preparations for the defence of the coast.

[V-106] See my *Hist. Mex.*, v. 72-6.

[V-107] Under this decree some of the Spanish property was sold; but after a while, upon the receipt of favorable news from Mexico, and when there was a quasi certainty that Spain would not again make such attempts as that against Tampico, the law was revoked. But property already sold was declared to be legally disposed of, adding that the former owners should not be indemnified therefor till Spain had recognized Central American independence. The texts of both the federal and Guatemalan decrees may be seen in *Montúfar, Reseña Hist.*, i. 182-7.

Memorias para la Historia de la Revolucion de Centro América. Por un Guatemalteco. Jalapa, 1832. 16mo, 257 pp. The authorship of these memoirs was attributed by well-informed men, namely, Morazan, ex-president of Central America, and the

distinguished statesman and diplomate of that country, Lorenzo Montúfar, to Manuel Montúfar, who had been chief of staff of the first president of the republic, Manuel José Arce. The work begins with the geography and political and ecclesiastical divisions of the country, accompanied with data on each of the states and territories; namely, Costa Rica, Nicaragua, Poyais, Honduras, Salvador, Guatemala, and Chiapas, together with some remarks on mining and other industries, military defences, and financial condition. The political portion, as the author himself acknowledges, is loosely put together, and lacks many necessary details, which he attributes to absence from home when the first sheets went to the press. He claims, however, to have impartially and correctly narrated the events of Cent. Am. history from 1820 to 1829. This to some extent is true; nevertheless there crops out in places class-bias, particularly in describing the events from 1826 to 1829, by the ideas which prevailed in the moderado, otherwise called servile, party, in which he was affiliated and serving, and for whose acts he, like many others, was driven into exile after the defeat of that party on the field of battle.

Manuel José Arce, Memoria de la Conducta Pública y Administrativa de ... durante el período de su presidencia. Mex., 1830. 8vo, p. 140 and 63. This work purports to be a defence of his administration by the first president of the republic of Central America, against what he calls the slanders heaped upon his name by those who rebelled against the government and the nation, with documents bearing on the revolts, the whole having been prepared while the author was in exile. The book is a disconnected, disjointed patchwork, incomplete in its various records of events, and indicates, as does Arce's career, a weak character. A number of meaningless and inapt quotations from the old classics and from law-books help to confuse the narrative still more.

[VI-1] Most of them had been agents of Milla, and contributed to the overthrow of the state government. A number had moved to Guatemala, Salvador, and elsewhere. The most prominent in the list were the ex-provisor, Nicolás Irias, and Pedro Arriaga. The latter was sent out of the country from the port of Omoa. He had been Milla's chief agent and adviser, and brought about the destruction by fire of Comayagua, his native place. This will account for his hostility in after years to liberals, and for his active coöperation with the despots of Guatemala. *Montúfar, Reseña Hist.*, i. 190.

[VI-2] The pretext for the movement was to resist a moderate tax established by the legislature; the real object was to bring on a reaction.

[VI-3] The friendship existing between Barrundia and Molina, from the earliest period of their political life, previous to the independence, became weakened, threatening a disruption of the liberal party. The disagreement was increased by Molina's opposition to the federal government remaining in Guatemala.

[VI-4] The same who made the revolt of Xalpatagua, murdered Gen. Merino at San Miguel, and was defeated at Gualcho.

[VI-5] *Marure, Efem.*, 26.

[VI-6] Forty-one of them, including the clergyman Antonio Rivas, were sentenced to military duty in the castle of San Felipe for five years. Father Rivas, after serving out his term, said that he was an innocent victim and a martyr of religion, and prayed upon the liberals all the maledictions of the 108th psalm. *Montúfar, Reseña Hist.*, i. 196.

[VI-7] Composed of the citizens Nicolás Espinosa, José Antonio Larrave, Manuel José de la Cerda, and Jacobo Rosa.

[VI-8] Barrundia did not want the position, and did not work for it. He wished Morazan to be elected. Morazan had in his favor the prestige of a victorious general. He was somewhat in the position of Bonaparte when he returned from Egypt. Valle was recognized to be the best informed man of Central America; none could compete with him in literary or scientific attainments. In politics he was always an opponent of the aristocracy, who execrated his memory, and even impudently pretended to deny his literary merits. But we have seen elsewhere that he was not, like Barrundia, an uncompromising opponent of all governments not based on democracy and republicanism. He compromised with the Mexican empire, was a deputy to the imperial congress, where he made a brilliant record, and became a minister of the emperor, who sent him to prison when he dissolved the congress. After the emperor's overthrow, Valle maintained that the provinces of Central America were free to act their own pleasure. He was a popular man, but Morazan's victorious sword eclipsed all else just then. *Id.*, 268.

[VI-9] It was the same question that occurred in 1825 between Arce and Valle. The congress at that time, in order to exclude Valle, decided in favor of the former. Valle published pamphlets in favor of the latter principle, and the congress of 1830 acted upon his arguments.

[VI-10] Among the warmest were those of the legislature of Guatemala. The spokesman for the committee presenting them was Alejandro Marure.

[VI-11] This was a common course with our brethren across the Atlantic. *Marure, Efem.*, 27; *Squier's Travels*, ii. 414.

[VI-12] This was on the 21st of Nov., at about 11 p. m.

[VI-13] *Larrainzar, Soconusco*, 80; *Morazan y Carrera*, MS., no. 3, 9, say troops from Mexico, which is doubtful.

[VI-14] Details on this campaign are given in *Montúfar, Reseña Hist.*, i. 348-65.

[VI-15] The national armed schooner *Deseada* took the *Ejecutivo*. The Spanish flags that waved over the fort and the latter vessel were dragged through the streets of Guatemala, tied to the tails of horses, on the day of the national anniversary. Ramon Guzman was executed at Omoa on the 13th of Sept., by order of Col Agustin Guzman, who commanded, Terrelonge being bedridden by a serious illness. *Montúfar, Reseña Hist.*, i. 377-81; *Marure, Efem.*, 29.

[VI-16] A man who, though amenable to exile under the law of expulsion, had been pardoned at his repeated supplications.

[VI-17] Duplessis died like a hero. His execution was a murder, similar to that of Gen. Merino. Both instances served as an example of what the liberals might expect if the serviles got the upper hand again.

[VI-18] Among them were a number of rosaries and prayers to the virgin of Guadalupe, supposed to possess the power of benumbing the enemy in the fight.

[VI-19] He is said not to have shown at the hour of his execution that courage which was manifested by his victims at the scaffold.

[VI-20] It was probably unfounded; and yet the fact stands that though often requested to make Arce reside farther in the interior, the Mexican authorities never did it. Arce recruited his men, issued proclamations, and built forts undisturbed by the Chiapanec officials, who, on the other hand, exerted themselves to hinder the action of the government forces.

[VI-21] This man was a servile at heart, and undoubtedly had secret relations with the invaders; as was shown in the proclamation of Dominguez and Father Herrera, in the praises the serviles awarded him, and in his rebellion. *Montúfar, Reseña Hist.*, i. 334, 382.

[VI-22] It is understood they were jealous in Salvador of Guatemala's influence in the federal policy. Cornejo claimed that what he wanted was reforms in the national constitution. Reforms were certainly necessary, and if they had been adopted in good faith by the states, the union might have been saved. The executive had no participation in the framing of laws, either directly or indirectly; he had not the sanction of them, nor could he veto or suspend. It was the senate, as the council of the government, that sanctioned the laws. That body, elected very like the chamber of deputies, was the judge of ministers and other functionaries. It nominated the officials, and at the same time had legislative, administrative, and judicial powers. The president of the republic had no independent place of abode, and was ever at the mercy of the state where the federal government had its seat; at best, he was the object of that state's benevolent hospitality. On the other hand, he was the target of all the assaults promoted by the spirit of localism for or against that state. It was therefore evident that a federal district was a necessity; one which the states would look upon as common property, and would foster and advance.

[VI-23] Galvez' record is not clean in the eyes of many liberals. He had belonged to the imperial party, and had been leagued with the aristocracy. He was a patriot, it is true, but his patria was Guatemala; his patriotism did not embrace all Central America. Such is the opinion given of him, with his portrait, by Montúfar, in *Reseña Hist.*, i. 296.

[VI-24] Besides, Cornejo had officially said that Morazan had neither supporters nor prestige in Salvador.

[VI-25] Galvez had wanted arrangements made to repel invaders, but leaving Cornejo, though he disliked his indiscreet acts, in his position. Morazan was, on the contrary, impressed with the idea that Cornejo's deposal was a necessity.

[VI-26] The act outlawed all persons who having been expelled from Nicaraguan territory should uphold the authorities of Salvador. Correspondence with the enemies of the country, or any expression, verbal or written, favoring them, were made punishable by death. *Montúfar, Reseña Hist.*, i. 338.

[VI-27] Cornejo had consented to negotiate, believing the force on the frontier to be controlled by Guatemala; but on ascertaining that it was under Morazan's orders, and that Galvez had merely intended a mediation without being recreant to his federal obligations, his commissioners broke off the conferences under various pretexts.

[VI-28] It was a great mistake, perhaps, not to have given the state time to reflect, when it might have gone back quietly to the union. As it was, liberals were for the first time arrayed against liberals, and the shedding of blood begat animosities that never could be healed. The serviles, of course, gladly fanned the flame.

[VI-29] In fact, they hardly made any resistance. The president's casualties were trifling. *Marure, Efem.*, 30; *Montúfar, Reseña Hist.*, i. 340.

[VI-30] The following facts are taken from *Bosq. Hist. Cent. Am.*, lib. iii., chap. 14. Filisola in 1823 needed 2,000 bayonets to take San Salvador. In 1827-8, Arce, Arzú, and Montúfar failed to do it with an equal, if not a larger force. In 1832 Morazan with only 800 men made himself master of the place in less than two hours. The object of these remarks was to show that no credit should be given to Morazan's detractors in their attempts to lessen his military reputation. *Montúfar, Reseña Hist.*, i. 343.

[VI-31] There were 38 of them, including Cornejo and Antonio J. Cañas.

[VI-32] The new rulers, raised to power under the auspices of the victor, declared those of 1831 and the beginning of 1832 to have been illegitimate, and organized courts for the trial of treason. The decrees of June 7 and 26, and July 28, 1832, were

severe; fortunately, they were not executed with the same animosity displayed in enacting them. *Marure, Efem.*, 30.

[VI-33] Nicaragua seceded Dec. 3, 1832; Guatemala, Jan. 27, 1833; Salvador repeated her declaration on Feb. 13, 1833; Honduras and Costa Rica separated themselves, respectively, on the 19th of May and 18th of Sept., 1833. *Marure, Efem.*, 32; *Guat., Recop. Leyes*, i. 42-3; *Astaburuaga, Cent. Am.*, 20; *Dunlop's Cent. Am.*, 184; *Crowe's Gospel*, 134; *Squier's Travels*, ii. 417.

[VI-34] 'Todos los habitantes de la república son libres para adorar á Dios segun su conciencia, y que el gobierno nacional les protege en el ejercicio de esta libertad.' *Marure, Efem.*, 31. José F. Barrundia is said to have effectively fathered this resolution. *Salv., Gaceta*, Oct. 12, 1854.

[VI-35] July 8, 1833. Barrundia's speech in closing the congress is given in *El Centro Americano*, July 11, 1833, 57-69.

[VI-36] This jealousy had developed during the states' rights agitation.

[VI-37] Guatemala rejected this convocation by an act of June 2, 1833. *Guat., Recop. Leyes*, i. 240-1. A project appeared in the *Centro Americano* of June 11, 1833, 28-30, to terminate the question of equal numerical representation in congress for the five states. It was proposed to divide the territory into three states of about the same population each, the executive authority to be alternately held by the presidents of the three states. The plan was impracticable.

[VI-38] The adoption of such a plan by the federal congress could not be secured until July 18, 1838. The decree of convocation issued on that date was generally accepted, and yet the diet never met till March 17, 1842. *Marure, Efem.*, 33.

[VI-39] The correspondence between the state governments for the strict vigilance on the coast of that state appears in *El Centro Americano*, Oct. 18, 1833; *Montúfar, Reseña Hist.*, ii. 41-2.

[VI-40] Pursuant to a resolution of the national congress of June 25, 1833. As early as 1826 the government of Salvador had tried to have the federal authorities reside at least 40 leagues from Guatemala. Similar requests had been subsequently made by

other states; and even in the legislature of Guatemala reiterated motions had been presented to the same effect. But the federalist party, as long as it was in the majority in congress, strenuously opposed the removal, believing that it would bring about, as it actually did, the downfall of the federal system, and the dissolution of the federal authorities. *Marure, Efem.*, 34. *Montúfar, Reseña Hist.*, ii. 58-9, remarks that Marure when he wrote the first two volumes of his *Bosquejo Histórico* was a liberal; in his *Efemérides*, written later, he speaks like a conservative. The change of tone is attributed to the iron influence of the government from whom he had a salary as a professor. Lastarria, in *La América*, 250, erroneously attributes the transfer to Morazan's action to break up the influence of the oligarchical party in Guatemala.

[VI-41] The affray lasted five hours; the federal force being under Gen. Salazar, and that of Salvador under Col. José D. Castillo. *Marure, Efem.*, 36.

[VI-42] Decree of vice-president of Sept. 1, 1834.

[VI-43] The legislature of the state had made a cession of the territory for the purpose on the 28th of Jan., 1835. On the 9th of March, 1836, the district was enlarged by the addition of Zacatecoluca. The national government had its capital in San Salvador till the 3d of May, 1839, when the assembly of San Salvador resumed possession of the whole territory that had been ceded. *Id.*, 37; *Montúfar, Reseña Hist.*, ii. 165-7. Dunlop, *Cent. Am.*, 187, says that the district occupied San Salvador and ten leagues of territory surrounding it. *Squier's Travels*, ii. 419; *Crowe's Gospel*, 136.

[VI-44] The opposition came not only from the serviles, but from not a few liberals. It contained many liberal and equable modifications. *Marure, Efem.*, 37, says it did not contain 'las alteraciones sustanciales que reiteradas veces se habian propuesto por las legislaturas de los estados,' for which reason it was not accepted by the states, except Costa Rica, which expressed assent May 7, 1835. *Squier, Travels*, ii. 422, also says that only Costa Rica expressed an acceptance of the proposed constitution, adding that the opposing states wanted different, and in most cases irreconcilable, reforms. *Montúfar, Reseña Hist.*, ii. 169-73, giving details, asserts that both Nicaragua and Costa Rica accepted the reforms.

[VI-45] The assembly of Guatemala decreed, after hearing several eulogistic motions, that all the state officials residing in the capital should wear the badge of mourning three days; that the bells of the churches should be tolled morning, noon, and eve of each day; that a portrait of Valle, contributed by the members of the legislature, should be placed in its hall of sessions; and that the other states should be requested to make manifestations of sorrow for the loss of their distinguished statesman and savant. Salvador, on the 9th of Apr., 1834, decreed similar honors. Marure, in his *Efemérides*, 35, bestows the highest praise on Valle. 'Perdió Centro América, con el fallecimiento del licenciado José del Valle, uno de sus mas distinguidos hijos.' This remark is followed by a sketch of Valle's career, which has been given by me elsewhere. Montúfar, *Reseña Hist.*, ii. 95-9, also eulogizes Valle and gives his portrait.

[VI-46] It was so formally declared by the federal congress, Feb. 2, 1835, with the clause that he should be placed in possession of the office on the 14th. *Id.*, 155-7.

[VI-47] Feb. 15, 1835. *El Correo Atlántico*, May 9, 1835.

[VI-48] The first colonists, 63 in all, arrived from London on the schooner *Mary Ann Arabella*, under a Mr Fletcher. Their settlement took the name of Abbotsville. Marure, *Efem.*, 38.

[VI-49] Many of the immigrants died, while others returned to England or went to the West Indies, but few remaining. Dunlop, *Cent. Am.*, 191, makes appropriate remarks on the 'infatuation in Europeans to attempt colonizing on pestiferous shores, under a burning sun, where no native of a temperate region, not even those of the interior of the same country, can enjoy tolerable health.' See also Astaburuaga's comments on the undertaking. *Cent. Am.*, 25. A glowing and favorable account of the enterprise was issued as late as 1839. See *Cent. Am.*, *Brief Statement*, 1 *et seq.*

[VI-50] On the 6th of March, 1837. Marure, *Efem.*, 39; Montúfar, *Reseña Hist.*, ii. 353.

[VI-51] B. Lambur, commissioned by Galvez, jefe of Guatemala, to report on the origin and progress of the disease, wrote from Aceituno April 3d: 'There can be no doubt that cholera came by way of Omoa to Gualan, thence went to Zacapa and to Esquipulas, this last-named town being the focus whence

it has irradiated with such velocity to the towns at present infested.' Esquipulas is a species of Mecca which people from all parts of Central America and Mexico visit in January of each year, to worship an image of Christ, to which countless miracles have been attributed. In the *Boletín de Noticias del Cólera* of Apr. 4, 1837, appear the following words, 'En San Sur han muerto muchos romeristas de Esquipulas.' *Id.*, 351-3. The fact is, that the disease had been doing havoc in the towns near the northern coast since Feb., and gradually spread throughout the rest of the state and republic till toward the end of the year, when it abated. The first case in the city of Guatemala occurred on the 19th of April. The mortality in that city during the invasion was 819, or a little over the 44th part of the population, which was much smaller than in other less populated cities. *Marure, Efem.*, 40. See also *Dunlop's Cent. Am.*, 193-4; *Salv. Diario Ofic.*, Feb. 14, 1875; *Rocha, Código Nic.*, i. 215-16; ii. 163-4.

[VI-52] *Squier's Travels*, ii. 427-8. Montúfar, *Reseña Hist.*, ii. 370-2, gives copies of the documents that were circulated.

[VI-53] Such as making them swallow the contents of their medicine-chests, or pouring water down their throats till they died, a circumstance that was always looked upon as an evidence of guilt. *Crowe's Gospel*, 141. Montgomery, *Guat.*, speaks of an Englishman who was nearly killed by the water torture inflicted by an enraged Indian mob.

[VI-54] On the plains of Ambelis, near Santa Rosa, accompanied with imprecations against the ley de jurados and the so-called 'envenenadores.' It was the beginning of a struggle which, in less than two years, wrought a complete change in public affairs. *Marure, Efem.*, 41, copied by Montúfar, *Reseña Hist.*, ii. 353; *Squier's Travels*, ii. 428.

[VI-55] Tempsky, *Mitla*, 337, says that Carrera was born in Santa Rosa, misled probably by the circumstance that the first Indian outbreak under his lead occurred there. He was born about 1815 or 1816, and was the illegitimate offspring of Antonio Aycinena, a member of one of the chief families of Guatemala, and of Manuela Carrillo, a servant in the paternal mansion. Through the influence of the Aycinenas he was immediately after his birth adopted by one Juana Rosa Turcios, whose husband's name of Carrera the boy subsequently was given. Such is the version of the author of a manuscript written in July 1844, and entitled *Orígen de Carrera*, in *Morazan y Carrera*, no. 4, 1 et

seq., the authenticity of which is made doubtful by some inaccuracies in other statements, the object evidently being to give Carrera's descent a little respectability. Stephens, *Cent. Am.*, i. 225, says that in 1829 he was a drummer-boy, leaving the army after the capture of Guatemala by Morazan, and retiring to Mataquescuintla, where he became a pig-driver, or, as Montgomery, *Guat.*, 143-4, has it, a dealer in hogs, having risen in the federal army as high as corporal. Dunlop, *Cent. Am.*, 195, followed by *Crowe's Gospel*, 141, and *Squier's Trav.*, ii. 429, essentially confirms Stephens' statements. Belly, *Nic.*, i. 75, adds that Carrera was for a time employed in the plantation of a Frenchman named Laumonier, near La Antigua. Montúfar says of him: 'Un joven como de 25 años, sin ninguna educacion, ni conocimientos de ningun género, pues no conocia siquiera el abecedario. Los primeros años de su vida los empleó, ya de sirviente doméstico, ya de apacentador de cerdos, ya de peon en los trabajos de campo.' The same authority refers to Milla's eulogies of Carrera, where the words occur, 'Carrera á pesar de su falta de educacion, y de los hábitos de la vida del campo,' which might have secured for Milla lodgings in the dungeons of the castle of Guatemala. The same writer repeats the assertion often made against the jesuit Paul, later bishop of Panamá, and raised to the position of archbishop of Bogotá, that he said at Carrera's death, in his funeral oration, that the man whose corpse was descending into the tomb was on the right side of God the father. All repentant villains are given some such post-mortem place by sympathizing ministers of the gospel.

[VI-56] In the early days they assured the Indians that he was their protecting angel Rafael, and resorted to tricks to favor the delusion. *Squier's Travels*, ii. 429-30.

[VII-1] On the 15th of June. *Marure, Efem.*, 41. Gen. Carrascosa's report of his victory, with details, in *Montúfar, Reseña Hist.*, ii. 356-9.

[VII-2] Among the sufferers was Carrera's wife, which circumstance, it is said, awakened in him an implacable hatred. *Stephens' Cent. Am.*, i. 226; *Crowe's Gospel*, 142. Montgomery, *Guat.*, 144, states that Carrera was then commanding a few men of the military cordon established because of the epidemic, which he induced to rebel.

[VII-3] The hostilities now carried on partook more of the character of highway robbery than of orthodox war, both parties

being plundered; but the liberals were the greater sufferers.

[VII-4] The provisional government constituted at La Antigua placed itself under the protection of the federal authorities. *Marure, Efem.*, 42.

[VII-5] The division was created by José Francisco Barrundia. It is said that he joined the discontented because the jefe Galvez refused him a high office for one of his relatives. *Stephens' Cent. Am.*, i. 227. But looking over the correspondence that passed between them in June 1837, the conclusion is that the cause of the disagreement was not a personal one. Barrundia opposed the convocation of the assembly to an extra session, and all the decrees enacted by it. The correspondence produced much sensation. Galvez ended accusing Barrundia of having adopted, when he was president of the republic, some measures similar to those he had now censured. The most serious charge against Barrundia was his persecution of Padre Rojas, to which the former answered that the priest had been at the head of the insurgents who proclaimed the Spanish domination on the Atlantic coast, and though outlawed for that offence, was not executed. *Montúfar, Reseña Hist.*, ii. 377-407.

[VII-6] The battalion La Concordia mutinied on the 26th of January.

[VII-7] Stephens, loc. cit., places these events in February, but he is evidently mistaken. *Marure, Efem.*, 43, gives the 29th of Jan. as the date.

[VII-8] At 4 p. m. of Jan. 28, 1838. *Id.*, ii. 543.

[VII-9] Galvez well knew of the relations existing between Carrera and the revolutionists of La Antigua. The convention of Guarda Viejo would have saved the situation. Had the forces of the city, consisting of 411 men, been placed under Morazan, they with those of Sacatepequez would have been too strong for Carrera, and he would not have entertained the idea that a powerful party looked to him for aid.

[VII-10] Full details appear in Gen. Carrascosa's correspondence given in *Montúfar, Reseña Hist.*, ii. 589-97.

[VII-11] Among them were Miguel García Granados, the brothers Arrivillaga, and their relations the Zepedas, together with the Barrundias.

[VII-12] He was in all this affair guided by the priests. Barrundia was accused throughout Central America of having brought about Carrera's invasion of the capital. The serviles, who were responsible for all Carrera's iniquities, have endeavored to place some of the odium on that patriot, who had nothing to do with it. Indeed, had Barrundia gone to Carrera's headquarters, he would probably have been shot. *Montúfar, Reseña Hist.*, ii. 573; *Squier's Travels*, ii. 432.

[VII-13] The chiefs of Sacatepequez had become convinced of their inability to take the city, or even to properly besiege it.

[VII-14] Dunlop, *Cent. Am.*, 198, and Crowe, *Gospel*, 143, erroneously say it was on the 30th of January.

[VII-15] *Marure, Efem.*, 43, places this event on the 2d of Feb., 1838.

[VII-16] Carrera himself is described as having on a pair of coarse frieze trousers, and a fine coat with gold embroidery belonging to Gen. Prem, which had been taken by Monreal. For a chapeau the new general wore a woman's hat with a green veil, the property of Prem's wife, who was known as La Colombiana. In lieu of decorations Carrera had on his breast a number of 'escapularios del Cármén,' symbolizing the religion he had come to protect. *Montúfar, Reseña Hist.*, ii. 574.

[VII-17] It seems that a large portion of the men and women had never seen a city before.

[VII-18] The physician Quirino Flores, who belonged to the opposition party, and was an intimate friend of Carrascosa and Carballo, believing that his house would be a place of safety, induced the vice-president and his family to use it. It so happened that a small force of Galvez entered the house, fired upon the invaders from the windows and retired. The men fired upon were not of the force from La Antigua, but some of Carrera's savage horde, called from that time 'cachurecos,' who rushed into the house, fired upon the family, wounding one of the women and a child, and killing José Gregorio Salazar, the vice-president. Salazar was born in San Salvador in 1793, and had two brothers, Carlos, the general, and Francisco, who as a captain was killed in action on the 23d of June, 1834. José Gregorio Salazar was one of the leaders in whom Morazan reposed the highest trust. As senator, president of the senate, jefe of Salvador, vice-president

of the republic, and acting executive at such times as Morazan assumed personal command of the troops, Salazar unswervingly supported progressive principles. His portrait shows a fine and intelligent face. The murder of the vice-president, instead of calling for execration on the part of the priests, Duran, Lobo, Nicolás Arellano, Antonio Gonzalez, and others, only brought out their diatribes against the victim. *Id.*, 576-9.

[VII-19] It was found at first difficult to elicit a satisfactory answer from him. The pillaging, though not officially decreed, had been carried on mostly in the houses of foreigners. Charles Savage, U. S. consul at Guatemala, has been highly praised for his intrepidity in protecting from the infuriated Indians the foreign residents and their property. *Montgomery's Guat.*, 146; *Stephens' Cent. Am.*, i. 233-4.

[VII-20] There being no money in the treasury, it was borrowed from private persons. *Stephens' Cent. Am.*, i. 227 et seq., copied by Larenaudière, *Mexique et Guat.*, 298-9. The facts appear in the records of the asamblea.

[VII-21] Had he resisted, the reënforced troops of La Antigua would in all probability have defeated his undisciplined rabble. This would not have suited Father Duran and the other priests, who expected their own triumph through Carrera's success. Those same priests aided Barrundia and Valenzuela to rid the city of himself and his men. *Montúfar, Reseña Hist.*, ii. 584.

[VII-22] The priest who seemed to exercise the greatest influence on Carrera was named Lobo, a man of dissolute character, who always accompanied him as a sort of counsellor.

[VII-23] *Los Altos, Manif. Document.*, 1-28. The federal congress ratified the separation on the 5th of June, 1838; the departments were, however, reincorporated a year after. *Marure, Efem.*, 43; *Dunlop's Cent. Am.*, 198; *Astaburuaga, Cent. Am.*, 28. *Montúfar, Reseña Hist.*, iii. 9-23, furnishes a detailed account of the events preceding and following the separation. The provisional government then established was a triumvirate formed by Marcelo Molina, José M. Galvez, and José A. Aguilar.

[VII-24] Stephens, *Cent. Am.*, i. 239-42, details some of the military movements, which are not of sufficient interest to reproduce here. Marure, *Efem.*, 43-4, says that Morazan attacked the rebels on the hill of Mataquescuintla; 'pero despues de tres

meses de combates, marchas, contramarchas, y todo género de maniobras, el ejército de operaciones tiene que replegarse á la capital ... sin haberse adelantado nada en la pacificacion de aquellos pueblos.'

[VII-25] On the 18th of June, 1838, the vice-jefe Valenzuela, and the deputies Pedro Molina, José Gándara, José F. Barrundia, Bernardo Escobar, Pedro Amaya, Felipe Molina, and Mariano Padilla, laid a paper before the federal congress on the war and its consequences. In this document they say, among other things, that it had been moved in the asamblea of Guatemala to authorize the restoration of the archbishop and of the religious orders, to abolish divorce, and to declare void the decrees of 1829, 'decretos que sostuvieron entonces la revolucion en favor de las instituciones y de la libertad.' They accuse the serviles of perversely attempting to render the representatives of liberalism and progress hateful in the eyes of the ignorant populace. *Montúfar, Reseña Hist.*, iii. 47.

[VII-26] Arguments, cajolery, entertainments, and every other possible means were employed to induce him to swerve from the principles he had always upheld. Barrundia looked aghast on their proceedings, and describing them, says it is impossible to realize 'el envilecimiento, la miseria ruin de este partido noble aristocrático.' The haughty patricians, represented by Pavon, Batres, Aycinena, and their confreres, fawned at his feet, covered him with flowers, disgusted him with their flattery, feasted him to satiety, and patiently bore his contemptuous rebuffs as long as they hoped to win him over. After their failure, sarcasm, ridicule, and abuse were heaped upon him and his name. Had Morazan's morals been equal to those of the serviles, he might have accepted the dictatorship, assumed the full powers, and then crushed them; but he was an honest man, who always acted in good faith. *Id.*, 175-9.

[VII-27] On the 30th of May it passed an act declaring the states free to constitute themselves as they might deem best, preserving, however, the popular representative form of government. This amendment to the 12th art. of the constitution of 1824 was accepted by all the states, excluding the restrictions contained in the federal decree of June 9, 1838, which was rejected by a majority of the legislatures. *Marure, Efem.*, 44-5. The federal congress passed, on the 7th of July, 1838, an act as follows: 'The federated states of Cent. Am. are, and by right

should be, sovereign, free, and independent political bodies.'
Guat., Recop. Leyes, i. 69.

[VII-28] It was the spontaneous act of the citizens of the capital, who, in view of the progress made by the rebels of Mita, deemed it necessary to provide for their own safety. Valenzuela resigned, on the 23d, the executive office into the hands of the asamblea. *Marure, Efem.*, 45; *Montúfar, Reseña Hist.*, iii. 181-5. Crowe, *Gospel*, 144, attributes to Morazan the authorship of the act adopted by the citizens.

[VII-29] On the 20th of July, 1838, he was required to give himself up; failing to do so, a reward was offered for his apprehension, alive or dead—\$1,500 and two caballerías of land, besides a full pardon for any offences against the laws his captor or captors might have committed. *Stephens' Cent. Am.*, i. 242.

[VII-30] Squier, *Travels*, ii. 435, says that Carrera entered Guatemala; he probably meant Old Guatemala, or La Antigua. Carrera, at Jalapa, had 2,000 men, while his opponent, Col Manuel Bonilla, had about 500. The latter were nearly annihilated. The few officers and soldiers who escaped with life found refuge in Salvador territory. Carrera's excesses at this time knew no bounds. He not only ravished women, but amused himself cutting off their tresses and ears. Some of these earless women entered the city of Guatemala, and their stories produced great indignation. *Montúfar, Reseña Hist.*, iii. 204; *Marure, Efem.*, 45.

[VII-31] This action took place early in the morning of Sept. 11th. Salazar at once despatched a courier to Guatemala with the news of his success, which caused the utmost joy. *Montúfar, Reseña Hist.*, iii. 206-8; *Marure, Efem.*, 46. Dunlop, *Cent. Am.*, 201, asserts that no mercy was shown by the federal troops in this encounter. By a decree of Sept. 13, 1838, pensions were granted to the wounded, and to the widows and orphans of the slain federals. Badges of honor were also conferred on the survivors. *Guat., Recop. Leyes*, ii. 636-7.

[VII-32] This man's life was then spared, but some time afterward he was shot, for which the serviles called Morazan a

murderer. *Montúfar, Reseña Hist.*, iii. 208.

[VII-33] His resignation was made before the body of his officers, which implied a disregard of the authority of the government. The officers eluded all responsibility, alleging that they had nothing to do with his resignation. The government then revoked the extraordinary powers conferred on him two months previously. *Marure, Efem.*, 46.

[VII-34] In the *Observador* and the *Apéndice*.

[VII-35] *Exhortacion cristiana que el vicario capitular ... dirige á los pueblos, etc.*, 17 p.

[VII-36] Text of his funeral oration on the 14th of Sept. in honor of the slain on the government side at Villanueva, in *Montúfar, Reseña Hist.*, iii. 216-21.

[VII-37] José Francisco Barrundia, who fought in that action, said: 'He [Carrera] could have been captured or annihilated had he been forthwith pursued; but no advantage was derived from such a glorious victory, and in a few days vandalism became again menacing.' Salazar was blamed, Montúfar thinks unjustly. According to him, the victorious troops were not in condition to pursue. This authority, partly on the testimony of Gen. Carballo, lays the blame on Rivera Paz, who had no interest in destroying a faction on which his party relied in the emergency of Morazan refusing his aid to the serviles. Morazan, on the 24th of Oct., declared martial law in portions of Guatemala, peremptorily refused to listen to the proposals of the recalcitrants, and marched to Guatemala, leaving the government in charge of the vice-president, Diego Vijil, whom congress had chosen to succeed the murdered Salazar. *Id.*, 223-6.

[VII-38] His hordes committed all sorts of outrages in these departments of Salvador. *Barrundia*, in *El Progreso* of S. Salv., 1850, no. 3.

[VII-39] 'Les causó un descalabro de entidad la division del coronel Carballo.' *Marure, Efem.*, 46.

[VII-40] Once he was almost starved to death on the top of a mountain, surrounded at its base by a large force; but owing to some neglect he escaped.

[VII-41] Stephens, *Cent. Am.*, i. 244, erroneously has it that the delivery was to be of only 1,000 muskets.

[VII-42] The president of the republic ratified the agreement on the 25th of Dec.

[VII-43] The fact was that the arrangement at Rinconcito was prompted to Gen. Agustin Guzman by Manuel Pavon, whom he believed to be a friend that would give him nothing but honorable advice. He had good reason at a later date to think differently, when he was taken into Guatemala in rags, tied on a mule, as a trophy of Carrera's success. *Montúfar, Reseña Hist.*, iii. 228-9.

[VII-44] After that Diego Vijil represented the unity in the federal district as vice-president. The conventicle of the four nobles, Pavon, Batres, and the two Aycinenas, had, however, during Rivera Paz's rule in Guatemala, arranged matters to their own satisfaction, in order to break up the union, having at their disposal the requisite number of municipal districts. Their emissaries supported the separation in Honduras and Nicaragua. Costa Rica was governed by Carrillo, a declared foe to Central American nationality. They were now working with Rivera Paz's successor, Gen. Carlos Salazar, with almost a certainty of carrying their point. Salazar was a good soldier, but as a politician, without guile, and easily deceived. *Id.*, 241-3.

[VII-45] And also to protect other states against all interference on the part of the late federal government. Full text of the convention in *Cent. Am. Constitutions*, no. 4, 1-5. By virtue of this arrangement, the combined forces of the two states invaded Salvador. *Marure, Efem.*, 47. This treaty brought about Morazan's ruin, and the disruption of the federal union. Francisco Ferrera, commander of the forces of Honduras, himself made it known to Carrera, and it prompted the latter's rebellion on the 24th of March, 1839, and his march against Guatemala. It enabled Pavon, Batres, and the Aycinenas to take Carrera in triumph into that city on the 13th of Apr., 1839.

[VII-46] The jefe of Guatemala, on the 17th of April, 1839, declared the federal compact dissolved, and the resumption by the state of its absolute sovereignty. This declaration was ratified by the constituent assembly on the 14th of June of the same year. Guat. on the 11th of May entered into a treaty of amity and alliance with Honduras; on the 5th of June, 24th of July, and 1st of Aug., made similar treaties with Salv., Nic., and Costa R.,

respectively. July 1st, Hond. and Costa R. for the first time made a treaty of friendship and alliance as sovereign states. Aug. 10th was signed at Quezaltenango the first treaty of a similar nature between the new state of Los Altos and Salv. *Marure, Efem.*, 48-50. Costa Rica had in Nov. 1838 assumed the plenitude of her sovereignty. In obedience to a decree of Braulio Carrillo, the supreme chief of the state, dated Aug. 4, 1838, her representatives and senators had left their seats in the federal congress. The state recognized its share of the federal debt and paid it at once. Carrillo's decree shows that the Costa Ricans were dissatisfied with the inequality of their representation in the national lower house, where Guatemala had 19 more deputies than Nicaragua, 17 more than Honduras, 15 more than Salvador, and 23 more than Costa Rica, which had only four representatives in the 'congreso,' as the lower house was called. The representation in the senate was equal to that of the other states; but if the latter chamber refused its sanction to any bill adopted, the former could, under the 83d art. of the constitution, make it a law by three fourths of the votes present. Thus was Costa Rica made a nonentity in the legislative body. There were other reasons for complaint. By a good management of her finances, Costa Rica always had available resources, and punctually paid her contingent to the national treasury in money. She was therefore taxed while virtually without representation. *Montúfar, Reseña Hist.*, iii. 266-73, 310, 313-41.

[VII-47] It was a force from Leon, under Col B. Mendez, who had entered by the frontier of San Miguel. *Montúfar, Reseña Hist.*, iii. 292-3.

[VII-48] The allied commander was Francisco Ferrera, an Hondureño, who had been connected with the incendiaries of Comayagua. This victory was mainly due to Morazan's daring. He was seriously wounded in the right arm. Col Benitez, who was a Colombian, was slain. *Marure, Efem.*, 48; *Montúfar, Reseña Hist.*, iii. 293-5.

[VII-49] Brigadier Cabañas occupied the capital Aug. 28th. He defeated the Hondurans at Cuesta Grande Sept. 6th, and then entered Tegucigalpa. On the 25th, after quelling a revolt which took place on the 16th, in San Salvador, Morazan was again victorious at San Pedro Perulapan with 600 Salvadorans over a double force of Hondurans and Nicaraguans, who, under Ferrera, had entered that town on their way to San Salvador, to destroy the 'simulacro de gobierno federal que existia aun en aquella capital.'

Cabañas triumphed again at Soledad on Nov. 13th. *Marure, Efem.*, 48-51; *Montúfar, Reseña Hist.*, iii. 354-6, 446.

[VII-50] Ferrera was without a command for some time, owing to his continual defeats. Quijano was another 'notabilidad del partido servil aristocrático.'

[VII-51] Cabañas' official report of Feb. 3d from San Antonio del Sauce says that the enemy's force being superior, he had resolved to retire to San Miguel in Salv. *Montúfar, Reseña Hist.*, iii. 451-2.

[VII-52] Stephens, *Cent. Am.*, i. 245, quaintly remarks, 'It must have been quite new to him, and a satisfaction to find out what principles he sustained.'

[VII-53] Among them were Mariscal and Del Rio. War had been declared between Guatemala and Salvador. The fiction of Atescatempa, Carrera's proclamations against Morazan the chief magistrate of Salv., the movement of the 16th of Sept., 1839, against the lawful authorities of Salvador prompted and aided by Carrera, the destruction of Los Altos the friend and ally of Salv., and many other causes, constituted a real state of war. *Montúfar, Reseña Hist.*, iii. 456.

[VII-54] Their head men sought refuge with the nuns of La Concepcion.

[VII-55] Made up exclusively of Indians, as Carrera wanted no white soldiers or officers. *Stephens' Cent. Am.*, ii. 111.

[VII-56] The worshippers of Carrera have said that he intentionally allowed Morazan to enter the city, with the view of besieging him, which is absurd. The city was full of war material, and was plentifully supplied with meat.

[VII-57] His officers who distinguished themselves in the operations were Generals Cabañas and Rivas, colonels Antonio Rivera Cabezas and Ignacio Malespin, and Lieut-col Bernardo Rivera Cabezas.

[VII-58] Carrera's official report is dated at Guatemala on the 23d of March. He does not speak of the assassination of Col Sanchez, Morazan's aide-de-camp, by order of his brother, Sotero Carrera; nor of the wanton massacre of many others; nor of the maltreatment of women, followers of the Salvadoran camp,

which caused the French consul to raise his voice in protest. Carrera gave full sway to his ferocious instincts on that day, taking the greatest delight in butchering the vanquished. Many of the pursued sought an asylum in the house of Chatfield, the British consul, and a word from him on their behalf would have saved their lives; but he did not utter it, and they were put to death. *Id.*, 460-7; *Marure, Efem.*, 52.

[VII-59] Their hatred against Morazan was shown in their cries, accompanying those of 'Viva la religion! Guanacos, entreguen á ese canalla, entreguen á ese hereje; nosotros, defendemos á Dios y á sus santos.' They called their opponents 'guanacos, pirujos, malvados, ladrones,' and declared that they were going to bring back the archbishop, and the friars who were sent away in 1829.

[VII-60] Stephens, who was then on his way from San Salvador to Guatemala, met the defeated troops, and in his *Cent. Am.*, ii. 69 et seq., gives a graphic description.

[VII-61] Miguel Álvarez Castro, José Miguel Saravia, Isidro Menendez, Carlos Salazar, Máximo Orellana, Nicolás Angulo, Trinidad Cabañas, Enrique Rivas, Gerardo Barrios, Pedro Molina, with his sons Felipe and José, and his son-in-law Manuel Irungaray, Antonio and Bernardo Rivera Cabezas, José M. Silva, Máximo, Tomás and Indalecio Cordero, Antonio Lazo, and others. Pedro Molina refused to go at first, but was prevailed on by his sons and son-in-law, who saw that his fate would be sealed if he remained. *Montúfar, Reseña Hist.*, iii. 484.

[VII-62] Pedro Molina and his sons Felipe and José, Manuel Irungaray, Isidro Menendez, Gen. Enrique Rivas, Doroteo Vasconcelos, Gerardo Barrios, Indalecio Cordero, José Prado, Dámaso Lonza, and others. They were made afterward the objects of abuse on the part of Carrillo and his coarse wife, Froilana Carranza. *Id.*, iii. 600-1.

[VII-63] July 16, 1841. He details the acts of the serviles, enemies of their country's independence and freedom. Carrera's career of crime is also fully discussed. *Morazan, Manif.*, in *Id.*, 585-96; *Id.*, in *Cent. Am. Pap.*, no. 3.

[VII-64] The serviles had said that they waged war, not against Salvador, but against Morazan.

[VII-65] The embassy brought an escort of 200 men, and Salvador had to pay all the expense. See the note of Minister Manuel Barberena to the minister-general of Guatemala, dated May 18, 1840. Carrera was lodged in one of the best houses of Salvador, and his deportment clearly indicated what his early training had been. His first diplomatic utterances were threats, and the general conduct of himself and his soldiers was so abusive that the people of the liberal district of Calvario in San Salvador finally resolved to fall upon and annihilate them. Cañas saw the danger, and called to it the attention of Duran, who prevailed on his colleague to leave the state with his troops. *Montúfar, Reseña Hist.*, iii. 487-8, 492.

[VII-66] The convention was signed by Joaquin Duran, secretary of the sup. gov., and Lieut-gen. Rafael Carrera, on the part of Guatemala, and by Manuel Barberena and Juan Lacayo for Salvador. Under art. 1st Salvador was not to have in office any man who had coöperated with Morazan. Art. 2d required of Salvador to surrender to Guatemala a number of persons, named in a list furnished, to be retained until Salvador should be fully reorganized. Art. 3d forbids Salvador to permit the return to its territory of any of the persons who went away with Morazan. Should any return, they must be given up to Guatemala, as prescribed in the 2d article. Art. 4th and 7th refer to the return of certain armament and of prisoners of war taken in the action of 18th and 19th of March last. Art. 5th says that the constituent assembly of Salvador having been called, her government must see at once to the appointment of deputies to the convention which was to organize the republic. Under art. 6th Salvador agreed that Guatemala and the other states should appoint agents, who, together with her own, were to have in their charge the archives and other effects of the federation. *Id.*, 489-91.

[VIII-1] *Guat. Recop. Leyes*, i. 42, 62-9, 178.

[VIII-2] The title given the chief magistrate was that of jefe. That of president was not decreed till Nov. 29, 1839. *Marure, Efem.*, 51.

[VIII-3] He is represented as a man of excitable temperament and harsh manners. He was a brother of José Francisco Barrundia.

[VIII-4] The prelate of the order was summoned to the palace of the federal government, and a compromise was agreed

to. Meantime the mob had assembled, shouting, 'Mision queremos! Viva la religion! Muera la herejía! Mueran los que no quieren misiones!' *Marure, Bosq. Hist. Cent. Am.*, i. 182-3.

[VIII-5] It was solemnly promulgated Dec. 26, 1825. This constitution was in full force till the meeting of a second constituent assembly, when it ceased to rule. *Marure, Efem.*, 15; *Guat., Recop. Leyes*, i. 201-2.

[VIII-6] Vera Paz with Peten; Chiquimula, Guatemala, and Escuintla; Sacatepequez with Chimaltenango; Suchitepequez with Sololá; Quezaltenango and Soconusco; Totonicapan and Huehuetenango. *Id.*, 463-70.

[VIII-7] Barrundia induced seven of the deputies to abandon their seats, and to protest against resolutions enacted by the legislature after they had quitted it. *Marure, Bosq. Hist. Cent. Am.*, i. 242.

[VIII-8] This step was taken Sept. 6, 1826. *Marure, Bosq. Hist. Cent. Am.*, i. 260; *Mem. Rev. Cent. Am.*, 53-4. A demand from the fed. gov. to muster out the troops was refused in round terms.

[VIII-9] He had once been a resident there, and knew it to be the most bigoted place in all Cent. Am. Liberal ideas had not taken much root there, and fanaticism ruled.

[VIII-10] He afterward attempted to recover his office, but the course events had taken impeded it. *Mem. Rev. Cent. Am.*, 57-8.

[VIII-11] A creole from Sto Domingo, who had been formerly a federal officer; but having been arbitrarily removed from the position, he joined the state cause.

[VIII-12] Near Quezaltenango he endeavored to capture his former command, now under Manuel Montúfar, but the latter escaped. *Mem. Rev. Cent. Am.*, 55-6. He had been forewarned by some serviles of Quezaltenango of the ambushade prepared for him. *Marure, Bosq. Hist. Cent. Am.*, i. 262.

[VIII-13] Abandoning the plan he had formed of attacking the federals under Francisco Cáscaras.

[VIII-14] He allowed four hours for the surrender: 'si en el término de cuatro horas, no efectúan Vds. lo referido, la hermosa ciudad de Quezaltenango desaparecerá.' *Marure, Bosq. Hist. Cent. Am.*, i. 288; *Id., Efem.*, 18; *Mem. Rev. Cent. Am.*, 57-8.

[VIII-15] Among them, one of Oct. 19, 1826, to punish attempts at propagating sedition among the soldiers; another, of Oct. 25th, to impose the penalty of death on all Guatemalans taking up arms against the state government. *Gaz. de Méx.*, Dec. 14, 1826; *El Indicador de Guat.*, of same year, no. 106; *Guat., Recop. Leyes*, i. 248-50.

[VIII-16] Afraid of falling into the hands of the federal troops then marching toward Los Altos, he retired to Retalhuleu, where he lived till 1829.

[VIII-17] Oct. 28, 1826. Cáscaras' vainglorious report is in *Guat., Gac. Gob.*, Nov. 2, 1826, and *Méx. Gac. Gob.*, Dec. 14, 1826; *Marure, Efem.*, 18; *Mem. Rev. Cent. Am.*, 59-60.

[VIII-18] All persons affording them aid were declared, on the 5th of March, guilty of high treason. *Guat., Recop. Leyes*, i. 250-4. Decree reiterated March 28, 1827; *Marure, Efem.*, 19.

[VIII-19] All authorities agree that the execution was effected upon the mere order of Aycinena, the then jefe of Guat., and without legal formalities. *Arce, Mem.*, 68; *Mem. Rev. Cent. Am.*, 70; *Astaburuaga, Cent. Am.*, 16; *Squier's Travels*, ii. 397. This last-named writer severely condemns the affected piety of Aycinena, who made confession before a priest and took the communion before signing the death-warrant. In 1829 the liberal party awarded extraordinary honors to Pierzon's memory, ordering that his name should be placed by the side of Cirilo Flores, with this inscription, 'Viva el ilustre Coronel Pierzon en el corazon de los buenos patriotas.' *Marure, Efem.*, 19.

[VIII-20] Aycinena retained his position uninterruptedly till the 12th of Apr., 1829, when he was deposed by Morazan. A legislative act expatriated him, and he was in exile till early in 1836, when he returned to the bosom of his family; but a second legislative order compelled him to leave the country again. Finally, an amnesty decree of July 25, 1838, restored him to his country in Sept. *Marure, Efem.*, 18, 61. Mariano Córdoba was chosen, in March 1827, vice-jefe, and when he resigned the

office, Manuel Montúfar was called to succeed him. *Mem. Rev. Cent. Am.*, 60.

[VIII-21] It was the first of its class in Cent. Am., but by no means the last.

[VIII-22] Lieut Isidro Velazquez was executed March 30, 1827.

[VIII-23] Leniency toward the proscribed Antonio Rivera Cabezas, whose death-penalty he had commuted to exile, and prohibition of certain books, pursuant to decrees of the ecclesiastical authorities, were among the chief causes which alienated him many of his former supporters. *Montúfar, Reseña Hist.*, i. 236; *Mem. Rev. Cent. Am.*, 114. On the 6th of December, 1828, he ordered such books to be burned. *Marure, Efem.*, 22.

[VIII-24] It purposed with this measure, which turned out to be unavailing, to remove one of the obstacles to the termination of the war by means of a peaceful arrangement.

[VIII-25] They were reëlected, though succeeding events prevented the counting of the votes. *Mem. Rev. Cent. Am.*, 115.

[VIII-26] A revolt at Quezaltenango, Nov. 5, 1828, had been summarily suppressed. *Marure, Efem.*, 22.

[VIII-27] The districts of Sacatepequez and Escuintla recognized the authorities that were installed in La Antigua.

[VIII-28] His brother José Francisco having been made acting president, he resigned for the second time the office of jefe, urging obvious reasons, but he was required by the assembly to continue discharging his duties till the election should have been effected. *Montúfar, Reseña Hist.*, i. 167-9.

[VIII-29] The dispersed representative council of 1826 had been reorganized at La Antigua Feb. 11, 1829, and its senior member, Mariano Zenteno, recognized as acting jefe of the state.

[VIII-30] This body voted Morazan a gold medal, and declared him a benemérito. It also decreed that his portrait should be placed in the hall of sessions. This, however, was a spark of enthusiasm which died out.

[VIII-31] Nicolás Espinosa presided, as he had done at the last sitting at San Martin Jilotepec, Sept. 26, 1826.

[VIII-32] Cayetano de la Cerda was the administrador de recursos, and he acted without restriction. Mariano Galvez, Barrundia's secretary of state, is credited with the invention of the financial schemes by the author of *Mem. Rev. Cent. Am.*, 136-7.

[VIII-33] *Montúfar, Reseña Hist.*, i. 131-3, 143-51.

[VIII-34] Antonio Rivera Cabezas was chosen vice-jefe in March 1830. He was succeeded by Gregorio Marquez in Feb. 1831; Francisco X. Flores was consejero Aug. 1831.

[VIII-35] Molina was impeached on trivial and inconsistent charges by the legislative body. Twice tried and twice acquitted; but meantime the term for which he was chosen had expired, and new elections were ordered. Marure, *Efem.*, 61. Full details of the trials in *Montúfar, Reseña Hist.*, i. 205-17, 229-33.

[VIII-36] Rivera Cabezas wielded a powerful pen, and in a playful way ridiculed the servile party. His Don Meliton dialogues did it more harm than José del Valle with his grave and erudite speeches in congress. He won himself the bitter hatred of that party. The political change of 1839 placed him in the hands of his enemies, and he lost much of his property. He left the country, but family affairs necessitated his return some years after. In his last years his intellectual faculties declined, and the serviles no longer feared him, but their hatred remained, and their insults and abuse hastened his death. His portrait is also given. *Montúfar, Reseña Hist.*, i. 235-7, 246.

[VIII-37] The most violent felt since 1773. *Marure, Efem.*, 26.

[VIII-38] Several buildings were damaged, among them the churches of Santa Teresa, San Francisco, and Recoletos. Since the end of March shocks had been experienced in the vicinity of the Pacaya volcano, several villages being almost entirely reduced to ruins. *Id.*

[VIII-39] The nun Teresa called them the effects of God's displeasure for the banishment of the archbishop and friars. *Montúfar, Reseña Hist.*, i. 225-6.

[VIII-40] The liberals were certain that with Morazan at the head of the federal government, and Barrundia as chief of Guatemala, there would be no disagreements. Barrundia now made a cession for the benefit of public instruction of nearly \$7,000—due him for salaries during the time he acted as president. This was a generous act on the part of a man who had no private fortune. He later ceded one half of his senatorial pay for the same purpose. *Montúfar, Reseña Hist.*, i. 273-6.

[VIII-41] Galvez was reëlected Feb. 9, 1835, and held the position till Feb. 2, 1838, when he was forced to resign it. During his first term Simon Vasconcelos was vice-jefe, and Juan Ant. Martinez consejero; during the second, Pedro J. Valenzuela, who superseded him; Mariano Sanchez de Leon was consejero in 1836, and Mariano Rivera Paz in July 1838. The latter also held the executive office. *Salv., Gac.*, Oct. 12, 1854; *Marure, Efem.*, 43, 45, 61-2.

[VIII-42] Galvez was not in league with the clergy or aristocracy, on one side; nor with Barrundia or Morazan, on the other. He wanted to form a party of which he should be the sole chief. This prompted him to oppose all parties, and brought upon him many reproaches.

[VIII-43] In July 1832 tithes were abolished. On the 16th of Sept. an academy of sciences, to take the place of the old university, was established, and to it were attached the colegio de abogados, and the protomedicato. This academy was suppressed March 6, 1840, and the university of old was restored. *Marure, Efem.*, 32. Among other measures were the reduction of holidays to seven, aside from Sundays, and the prohibition of religious processions in the streets on working days. *Montúfar, Reseña Hist.*, i. 307-19, ii. 76-84.

[VIII-44] Even the offspring of priests were to be reputed as legitimate in cases of inheritance, where the father had died intestate. *Id.*, ii. 346-7.

[VIII-45] This blow at the church was not favorably received by the people, and in July 1838 the resolution was suspended.

[VIII-46] They made the Indians believe that the cholera was the effect of Galvez and his friends having poisoned the springs, 'para destruir hombres que detestaba y poblaciones que aborrecia.' *Id.*, ii. 349.

[VIII-47] It was constantly brought forward that while other states had seceded from the confederation, Guatemala alone had contributed to the common budget, and furnished the national executive arms and money to wage war against the rebellious states.

[VIII-48] Martial law was proclaimed Jan. 16, 1838, in the departments of Sacatepequez and Guatemala. Two days later La Antigua rebelled, appointing a provisional government, and subsequently Chiquimula and Salamá followed the movement. *Marure, Efem.*, 42-3; *Squier's Travels*, ii. 431; *Guat., Recop. Leyes*, i. 858-9.

[VIII-49] The provisional government was placed in charge of Marcelo Molina, José M. Galvez, and José A. Aguilar. The assembly of Guatemala simply referred the matter to the federal congress, which recognized the new state. *Montúfar, Reseña Hist.*, iii. 9-23; *Guat., Recop. Leyes*, i. 43.

[VIII-50] *Marure, Efem.*, 47.

[VIII-51] The state comprised, on the north, the districts of Huehuetenango, Sacapulas, Malacatan, Tejutla, Cuilco, Jacaltenango, and Sololá, together with all the territory between the river Pasión and Chiapas, to where it touched the undefined boundaries of Tabasco and Yucatan; on the west, Ostuncalco and San Marcos; on the south, Cuyotenango and Mazatenango; on the east, Atitlan, Sololá, Joyabaj, Quiché; and in the centre, Totonicapan and Quezaltenango. *Montúfar, Reseña Hist.*, iii. 391-3.

[VIII-52] Dated July 12, 1839. *Id.*, 394-7.

[VIII-53] Galvez, José F. and Juan Barrundia, Simon Vasconcelos, and others.

[VIII-54] On the 28th of Jan. a body of Quezaltec troops, under Colonel Corzo, was defeated by the Guatemalans, under Gen. Monterrosa. It had been stationed in the hacienda of Bejucal, with the double object of guarding on the coast side the territory of Los Altos, and of forming a combination with the men of Salvador, who were about to invade Guatemala from the river Paz frontier. The treatment of the fugitives by the Indians was shocking. Corzo and Lieut-col Córdoba perished at their hands. Carrera, after defeating, on the 29th of Jan., the Quezaltec

troops that attempted to check him on the heights of Sololá, entered Quezaltenango unresisted, and put an end to that state. Its towns were taken under Guatemalan protection, on the fiction of their voluntary annexation, by decree of Feb. 26, 1840. *Marure, Efem.*, 52; *Guat., Recop. Leyes*, i. 43-50.

[VIII-55] It was claimed that Carrera could not prevent these abuses, which were committed by the very people of Los Altos who rose against the partisans of the government. The fact is, they were savage Indians under Carrera's protection. This chief returned in triumph to Guatemala, and was received amid the plaudits of his clerico-aristocratic supporters and the rabble. His victorious army brought in the rear the armament and spoils of Quezaltenango, and upwards of 100 prisoners, among them Guzman, Mariscal, and Soto. The first named was wounded, and tied to a mule. The rabble made him the special object of their scoff. *Montúfar, Reseña Hist.*, iii. 439-41.

[VIII-56] Deprived of the office Jan. 30, 1839; restored Apr. 13th of the same year; held it till Dec. 13, 1841. May 14, 1842, he assumed for the third time the executive office, with the title of president of the state. *Guat., Recop. Leyes*, i. 175; *Marure, Efem.*, 61-2. Stephens, who saw Rivera Paz in 1840, speaks well of him, saying that 'in all the trying positions in which he was afterward placed, he exhibited more than ordinary prudence and judgment.' *Cent. Am.*, i. 201.

[VIII-57] The 3d and last art. contained these words: 'Un olvido general sobre todos los acontecimientos políticos desde el quince de Setiembre de mil ochocientos veintiuno hasta la fecha; y se prohíba rigurosamente removerlos con ningun motivo.' Further than this, José F. Barrundia had moved that the initiative should be made urgent, and voted on without being referred to a committee. Montúfar, who gives full details on this affair, blames Barrundia for his excessive generosity and abnegation, which, he declares, always turned to the prejudice of that statesman and his party. He wanted his enemies pardoned, and to enjoy all personal guarantees, but there was no spirit of reciprocity on their part. When the serviles assumed the reins of power, they invariably abused and persecuted Barrundia. He was not only sent into exile, but insulted there in publications they would forward him. *Reseña Hist.*, iii. 188-90.

[VIII-58] The executive was authorized to support the petition of the clergy in order that the diocese should have a

bishop, and permitted that he should appropriate a portion of the public funds to that end. No mention was made of the person who was to be bishop. The idea was to flatter the several clergymen who were with Carrera hoping to earn a mitre. July 25th the people were called to elect a constituent assembly, of not less than fifty members, to reform, add to, or retain in whole or in part the constitution of Guatemala. This decree was supported by the liberals, who foolishly believed that their party would have the power to reconstitute the state. The serviles hailed it, being sure of controlling the situation with Rivera Paz at the head of the government, and three servile wings as his counsellors. Reactionary deputies would be plentiful in the constitutional convention. The capitation tax was reduced to four reales. The assembly, now converted into a law-maker by steam, on the 26th of July revoked the laws establishing civil marriage and divorce, freedom to bequeath property, reduction of the number of holidays, and the further admission of religious vows. *Id.*, 190-2.

[VIII-59] He ruled 2½ months, at the end of which he had to seek safety in flight, on Carrera occupying the capital. *Marure, Efem.*, 48, 62.

[VIII-60] The former political order of affairs now came to an end, and a new era began under Carrera's auspices. *Guat., Recop. Leyes*, i. 207.

[VIII-61] The texts of the several treaties may be seen in *Convencion*, in *Cent. Am. Constituciones*, 5-25, 28-31; *Guat., Recop. Leyes*, i. 382-95.

[VIII-62] Honors were paid to Carrera and Rivera Paz. Their portraits were to be placed in the hall of sessions. *Marure, Efem.*, 53. A few days later the 19th of March was decreed a civic feast-day. *Guat., Recop. Leyes*, iii. 348.

[VIII-63] Act of Nov. 9, 1840. *Id.*, 286.

[VIII-64] Not at Aguanqueterique, as the federal congress had decreed. *Astaburuaga, Cent. Am.*, 13; *Marure, Efem.*, 10. The last named, in his *Bosq. Hist. Cent. Am.*, 148, gives the name as Leypateric.

[VIII-65] Comayagua, Tegucigalpa, Gracias, Santa Bárbara, Olancho, Yoro, and Choluteca.

[VIII-66] Irias excommunicated Herrera, and the latter had him arrested. Both had many adherents.

[VIII-67] Arce claims that Gracias had called for the protection. *Mem.*, 64-5; *Mem. Rev. Cent. Am.*, 61. The truth is, he had no right to exercise jurisdiction there, the place not being on the frontier nor on the coast. *Morazan, Apuntes*, MS., 6.

[VIII-68] Herrera had a force to defeat Milla, but refrained from using it, in order that Honduras should not be accused of beginning hostilities against the national government. *Id.*, 7.

[VIII-69] Marure, *Efem.*, 19, gives the 10th as the date. Dunlop, *Cent. Am.*, 169, gives March 10th. Morazan attributes the surrender to the commander's treachery. *Apuntes*, MS., 8.

[VIII-70] Cleto Bendaña was made jefe provisional in Sept. 1827, Francisco Morazan being consejero in Nov. of that year. *Marure, Efem.*, 63.

[VIII-71] See his *Apuntes*, MS., 9-10.

[VIII-72] There was a sedition of the serviles, headed by Father Rivas and others, which was concluded by a peaceable arrangement with Morazan. *Montúfar, Reseña Hist.*, i. 191-3, 196.

[VIII-73] Martinez and Cori, implicated in a plot with negroes of Belize and Bacalar, and others were executed May 25, 1833. *Montúfar, Reseña Hist.*, ii. 132.

[VIII-74] They mostly affected the clergy. *Marure, Efem.*, 23-7, 35-6.

[VIII-75] Resulting from various causes. A law providing for a provisional currency checked foreign trade. In the interior it was at 50 per ct discount. A decree establishing a single tax never could be carried out. The abolition of tithes was a measure which caused trouble. Timid or fanatical rulers were afraid of 'cuatro canónigos viejos de Comayagua que amenazaban con el salmo 108 y las penas del infierno,' and fanaticism soon brought about the restoration of the tithes. *Montúfar, Reseña Hist.*, iii. 277.

[VIII-76] This was the second constituent assembly, and its first president was José Santiago Buezo. The town of Tegucigalpa demanded absolute independence, declaring itself seceded and

under the protection of Nicaragua until it should be declared. This was the work of the returned reactionists. *Id.*, 279-82.

[VIII-77] 'Art. Único. El estado de Honduras es libre, soberano, é independiente.' It was published by the acting jefe, Leon Alvarado. The declaration being deemed insufficient by the secessionists, another act was passed on the 5th of Nov., to say that Honduras was independent of the late federal government, of the governments of the other states of Cent. Am., and of any other government or foreign power. *Id.*, 282; *Marure, Efem.*, 47.

[VIII-78] Tegucigalpa had been twice taken, and Comayagua once, by the federal forces. *Id.*, 50-1.

[VIII-79] Gerónimo Zelaya, primer jefe, June 1828. His authority was never recognized outside of Santa Bárbara. His election was finally declared null, like all others effected pursuant to the convention by the president of the republic. Diego Vijil, vice-jefe, Apr. 1829. Juan Angel Arias, consejero, Dec. 1829. José Santos del Valle, consejero, July 1830. José Ant. Marquez, jefe, March 1831. Francisco Milla, consejero, March 1832. Joaquin Rivera, jefe, Jan. 1833 to Dec. 31, 1836. During his term, owing to illness, the executive was temporarily in charge of F. Ferrera, the vice-jefe, in Sept. 1833, and of J. M. Bustillo, consejero, in Sept. 1835. The latter was again in power as acting president in Aug. 1839. Ferrera again held the executive in Jan. 1841, with the title of president of the state. J. M. Martinez, consejero, Jan. 1837. Justo José Herrera, jefe, May 1837. Leon Alvarado, consejero, Oct. 1838. Felipe Medina, José Alvarado, and Lino Matute are also mentioned as having had charge of the executive in Nov. 1838; the last named till Jan. 1839. Juan F. Molina, consejero, Jan. 1839. José M. Guerrero, consejero, May 1839. Francisco Zelaya, consejero, Sept. 1839. *Id.*, 63; *Montúfar, Reseña Hist.*, ii. 133-6, 325-31; iii. 282-3.

[IX-1] March 5, 1824, the local constituent assembly met, and on the 4th of July, the state constitution, decreed on the 12th of June, was published, and its support sworn to. *Marure, Efem.*, 10-11.

[IX-2] Sonsonate had always belonged to Guatemala, but was annexed to Salvador on the return of the auxiliary force that was despatched to the former in 1823 to quell Ariza's revolt, of which I have given an account. By intrigue and force, the inhabitants were made to declare in favor of Salvador. The region

was later attached to the latter, though the change of jurisdiction has never been formally acknowledged by Guatemala. Some time after there was a plan of creating, with Sonsonate and Santa Ana, a separate state, but the federal congress did not sanction it. *Marure, Bosq. Hist.*, i. 149.

[IX-3] He assumed his office Dec. 13, 1824. During the period of organization the executive was in charge of Juan Manuel Rodriguez, who bore the title of director. *Id.*, *Efem.*, 13, 62; *Mem. Rev. Cent. Am.*, 32.

[IX-4] At this time Salvador became the asylum of the liberal party.

[IX-5] Arce alleged that Molina and others had induced Villacorta to believe he was the only man who could right political wrongs; but he found he could not do this, and so resigned. *Mem.*, 60-1.

[IX-6] Convents were abolished March 1, 1830. A college was established in July of the following year; and the state seemed to have recovered from the losses of the late war.

[IX-7] Cornejo could not be in accord with the federal authorities; he was a servile, and in league with their enemies. *Montúfar, Reseña Hist.*, i. 334.

[IX-8] The executive authority was held for a while by Morazan himself. *Marure, Efem.*, 30, 62.

[IX-9] To accept the position he resigned the vice-presidency of the republic. *Montúfar, Reseña Hist.*, ii. 6.

[IX-10] Tithes had been suppressed and trial by jury introduced.

[IX-11] The public archives and artillery were to be also removed. The comandante-general was to remain behind with four cannons and 200 muskets.

[IX-12] He had lost his wearing apparel, and in his smallclothes, and with a travelling cloak on, he took charge of the government. *Id.*, 20. He was chosen by the assembly first jefe on the 1st of July, 1833. In June 1834 he was removed from office and expelled. *Marure, Efem.*, 36, 62; *Guat., Gaceta*, Dec. 22, 1854, 7.

[IX-13] Aquino was a perfect savage, and invoked religion, as did Carrera somewhat later. He once entered San Vicente with the crown of an image of St Joseph on his head. His mode of sentencing prisoners to death was expeditious. The victim was placed before a group of his men, who were told he was their enemy. 'Shoot him,' they would say, and the thing was done. Aquino was in league with the serviles, but as they could not manage him, they persecuted their crowned ally. *Montúfar, Reseña Hist.*, ii. 21.

[IX-14] Crowe, *Gospel*, 135, and Squier, *Travels*, ii. 420-1, erroneously place it in 1832.

[IX-15] The defeat of San Martin by Gen. Espinosa was at Jiquilisco. *Guat., Boletín Ofic.*, 507-9. San Martin was now forsaken by Galvez, the jefe of Guatemala. In his old age he used to complain of 'las inconsecuencias del Doctor Galvez.' *Montúfar, Reseña Hist.*, ii. 27.

[IX-16] The latter ruled only from July to Oct., when he was temporarily succeeded, first by the consejero, Joaquin Escolan, and then by the vice-jefe, José M. Silva, the same month. Nicolás Espinosa became jefe in Apr. 1835, and was driven away in the following November, being accused of promoting a war of races, the consejero Francisco Gomez being his successor on the 13th of Nov. The next rulers were: Diego Vijil, Apr. 1836; Timoteo Menendez, vice-jefe, Sept. 1836; Antonio J. Cañas, consejero, May 1839. *Marure, Efem.*, 62; *Montúfar, Reseña Hist.*, ii. 193.

[IX-17] Carrera contemplated becoming the ruler of Central America, but had to abandon his plan on Nicaragua and Honduras forming a league against him. His Indians were not so efficient when off from their native ground. *Squier's Travels*, ii. 441-2.

[IX-18] Sept. 23, 1840. He had ruled since Apr. 8th of the same year. *Salv., Diario Ofic.*, Feb. 14, 1875. The revolutionary movement of Sept. 20th for his removal was promoted by Francisco Malespin, Carrera's tool, and a man who wielded a fatal influence in Salvador till Gen. Joaquin E. Guzman rid the country of him. Malespin was then acting for Carrera, who feared that a revolution of the Calvario ward of San Salvador would upset Cañas, who was without influence, and could no longer be useful to the aristocrats of Guat. Such a revolution would create a liberal government, and might bring back Morazan. Cañas was

put out of the way that his place might be occupied by a servile tool. *Montúfar, Reseña Hist.*, iii. 499.

[IX-19] He held the position only to the end of 1840. His successors with the same title were Juan Lindo, Jan. 1841; Pedro Arce, Apr. 1841; Senator Escolástico Marin, Feb. 1842. *Marure, Efem.*, 62.

[IX-20] 'En la ulterior contienda de los partidos políticos de esta Provincia, pues, no se encuentran mas que pasiones; las calificaciones de realistas, imperialistas, ó serviles solo servian para autorizar la persecucion.' *Ayon, Ap.*, 25.

[IX-21] April 17, 1823.

[IX-22] This movement was the precursor of the great calamities that were to befall Nicaragua. *Marure, Efem.*, 9.

[IX-23] The troops and the mob in Leon, on the 4th of May, deposed him, and placed his office in charge of the alcalde, Pablo Melendez, who in his turn was overthrown a few days later by another sedition headed by Ordoñez.

[IX-24] The villas of Managua and Nicaragua refused to recognize the revolutionary government at the capital, and established a junta gubernativa at the first-named town.

[IX-25] It was formed with the chief men of the 'partido de Managua.'

[IX-26] By order of Gen. Manuel José Arce, who afterward entered Leon. Details of battles and actions during this unhappy period of Nicaraguan history may be found in *Marure, Bosq. Hist. Cent. Am.*, i. 151-6; *Id., Efem.*, 11-12, 75; *Ayon, Apuntes*, 28-36; *Dunlop's Cent. Am.*, 160-2.

[IX-27] In the previous year Martin Arzú had been sent as a commissioner to restore peace in Nicaragua. He was ordered to use gentle means, but to employ force against parties opposing him. To support him, 500 Hondurans were stationed at Choluteca. He arrived after the siege of Leon had begun, and endeavored on the spot to bring about an arrangement between the belligerents; but he was treated disrespectfully by the besiegers, and even arrested and threatened with death by Salas. He afterward declared the junta at El Viejo revolutionary, and that its

commands should be disregarded. After that he conducted the defence of Leon. *Marure, Bosq.*, i. 157-9.

[IX-28] In the latter part of 1828 he was shot, under the sentence of a court-martial convened by order of the vice-jefe Argüello. *Id.*, *Efem.*, 63-4.

[IX-29] Its support was sworn to on the last day of that month.

[IX-30] The first representative council, or senate, was inaugurated at the same place on the 26th of Oct., 1826. *Id.*, 18.

[IX-31] Cerda would not, however, lay down his power, and continued exercising it at Managua. *Mem. Rev. Cent. Am.*, 43.

[IX-32] The dissolution was 'á consecuencia de una sedicion promovida por el Vice-jefe del mismo Estado Sr Juan Argüello.' *Marure, Efem.*, 18.

[IX-33] On the 14th of Sept., 1827. This was his third or fourth effort; all fruitless, however. *Id.*, 20.

[IX-34] He foretold at the time that 'muy luego vería el congreso arder otra vez la tea de la discordia en aquel Estado.' *Arce, Mem.*, 17.

[IX-35] Their project involved the annexation of Nicaragua to Colombia. *Los Anales*, 1872, 54.

[IX-36] He now proposed to surrender the government to Argüello or some one else. His friends dissuaded him, and he was finally the victim of treachery.

[IX-37] His friends had obtained that the trial should be at Granada, but the mob at Rivas opposed his removal at the moment of departure. *Id.*, 63.

[IX-38] Nov. 29, 1828. It is said that the vice-jefe, Argüello, decreed a suspension of the sentence; but purposely delayed the courier, so that the reprieve arrived too late at Rivas. A full biography of Cerda, with scattered historical items, is given in *Id.*, 29-72, *passim*.

[IX-39] The installation of the assembly was on Nov. 1, 1829. The elections had been decreed by the vice-jefe, Argüello, and his act, as well as the elections effected under it, were on the

23d of May, 1830, declared to be legitimate. *Rocha, Cód. Nic.*, i. 80. Herrera had been inducted in office on the 12th of May. *Montúfar, Reseña Hist.*, i. 199-203.

[IX-40] The services of the Nicaraguans were recognized by both the federal president and the state assembly. Honors were decreed to the survivors, and pensions to the wounded, and to the widows and orphans of the dead. *Rocha, Cód. Nic.*, i. 214-15.

[IX-41] This last action was attributed by the revolutionists to Herrera's machinations and Morazan's influence; but the truth was, that the people recognized Herrera's services as the pacificator, and his good qualifications as a ruler. *Montúfar, Reseña Hist.*, ii. 31-2.

[IX-42] A detailed account of this revolt is given in the *Centro Americano*, 89-97. It is said that a number of medals were found of tortoise-shell, gold, and other metals, with the image of Fernando VII., and bearing the inscription 'Viva Fernando VII. Rey de España y de las Indias, Año de 1828,' which gave rise to the supposition that the revolt had been in his interests. *Montúfar, Reseña Hist.*, ii. 36-8. Herrera issued a proclamation calling on the people to stand by the government. *Marure, Efem.*, 33-4.

[IX-43] The assembly, installed on the 21st of Aug., 1833, at Leon, approved all of Herrera's acts.

[IX-44] On the southern coast of Nicaragua, 12 leagues distant from Leon.

[IX-45] A dense yellow cloud rose suddenly, accompanied by a strong smell of sulphur and a shower of fine white dust. The alarmed inhabitants closed their doors and windows, but the dust could not be kept out. Breathing became difficult. This lasted nearly three days. On the 23d, at 1 A. M., a loud detonation, followed by heavy shocks of earthquake, rain of sand, and total darkness, rendered the terror of the people complete. Flocks of birds fell dead to the ground, and wild animals sought refuge in buildings. The frightened inhabitants ran to their yards, or hurried to the churches to implore divine mercy. Forty-three hours passed before the earth became quiet, when a strong wind cleared the atmosphere, enabling the people to ascertain the damage. The ashes in the vicinity of the volcano were several feet deep. The river Chiquito had been wholly dried up, and two new islands were formed. A large number of animals had perished, and the

living ones were in a state of starvation. Such had been the force of the convulsion that the detonations and the rain of ashes had reached a distance of hundreds of leagues, as far as Oajaca, Jamaica, and Bogotá in Colombia. Montúfar, *Reseña Hist.*, ii. 145-50, in giving an account of the event, adds that the priests called it a punishment from heaven because tithes had been abolished, freedom of conscience proclaimed, and the decrees of 1829 and 1830 upheld. The parish priests in several towns, during the prevailing darkness, preached from their pulpits that this shaking of the earth was a manifestation of God's wrath for the crimes of the liberals. Squier, *Trav.*, ii. 110-11, says that the superintendent of Belize, on hearing the explosions, mustered his troops, thinking that a battle was being fought somewhere near the coast. Stephens, *Cent. Am.*, ii. 38, relates a similar incident of the military commander of Guatemala.

[IX-46] Accounts of the catastrophe, differing more or less in details, according to the various points where it was observed, are given in *Marure, Efem.*, 36-7; *Stephens' Cent. Am.*, ii. 35-8; *Squier's Trav.*, ii. 110-14, 162-3, with a view of the volcano; *Byam's Wild Life*, 32-7; *Dunlop's Cent. Am.*, 15-17; *Lond. Geog. Soc. Journ.*, v. 387-92; *Astaburuaga, Cent. Am.*, 23; *Wells' Hond.*, 230-1; *Cor. Atlánt.*, May 9, 1835, 10; *Dicc. Univ. Hist. Geog.*, x. 919-20.

[IX-47] Not in 1836, as Dunlop has it. *Cent. Am.*, 191-2.

[IX-48] His minister-general for a time was J. N. Gonzalez, and on his resigning, Hermenegildo Zepeda, one of the first lawyers in the state, succeeded. *Montúfar, Reseña Hist.*, ii. 302.

[IX-49] On the 25th of Jan. *Marure, Efem.*, 39, 64; Montúfar, *Reseña Hist.*, ii. 306-10, gives the official documents describing the occurrences.

[IX-50] Father Solis, the president, and others attributed to Morazan and the constitution of 1824 the evils Nicaragua had suffered from, forgetting those preceding Morazan and the constitution.

[IX-51] Ratified by the executive Nov. 17th. Given in full in *Nic., Constit.*, in *Cent. Am. Constitutions*, 1-39. A brief synopsis in *Squier's Travels*, ii. 211-13. See also *Niles' Reg.*, 1839, lvi. 49.

[IX-52] During Herrera's term the following held the executive authority for short periods: Cárlos Ruiz y Bolaños, Aug. 1831; Benito Morales, Feb. 1834; José Nuñez, March 1834. I find that the government was also provisionally in charge of Gregorio Juarez, May 1835; F. X. Rubio, Jan. 1838; José Nuñez, as jefe, March 12, 1838; Evaristo Rocha, May 1838; Joaquin Cosio, June 1838; Patricio Rivas, director, June 1839; Joaquin Cosio, July 1839; Hilario Ulloa, Oct. 1839; Tomás Valladares, Nov. 1839. In 1840 he became director del estado; Pablo Buitrago, director, Apr. 1841. *Marure, Efem.*, 64.

[IX-53] Sept. 6, 1824. Molina, *Costa Rica*, 95, followed by Wagner, *Costa R.*, 545, gives it as May 6th, which is evidently a mistake. *Marure, Efem.*, 11, has it Sept. 6th, and that Agustin Gutierrez Lizaurzábal was its first president.

[IX-54] *Costa Rica, Ley Fundam.* (San Salv., 1825), 24 mo, 26 pp.; *Mem. Rev. Cent. Am.*, 32; *Astaburuaga, Cent. Am.*, 13; *Molina, Costa R.*, 18. This last-named author, on his p. 95, gives the date as Jan. 22d, evidently following *Marure, Efem.*, 13. Squier, *Travels*, ii. 388, makes it Jan. 2d.

[IX-55] Mariano Montealegre became the vice-jefe. Mora was reëlected in March 1829, and ruled till toward the end of 1832. *Marure, Efem.*, 64; *Id., Bosq.*, 149; *Mem. Rev. Cent. Am.*, 32.

[IX-56] Personal enmity between Pedro Muñoz, an influential man in Guanacaste, and Cerda was the main reason. *Los Anales*, 1872, 54.

[IX-57] The approval was merely provisional. The other four are Cartago, San José, Heredia, and Alajuela. *Molina, Costa R.*, 5-6.

[IX-58] *Nic. y Hond., Doc.*, 101-12; *Ayon, Consid. Límites*, 20-4; *Frisch, Mex.*, 73.

[IX-59] *Marure, Efem.*, 16, and *Bosq.*, i. 232-3, following *El Indicador*, 1826, no. 75, and *El Semanario*, 1826, no. 86, gives the date as Jan. 29th. Molina, *Costa R.*, 96, places it on the 28th.

[IX-60] He confessed to have acted under a commission from the court of Spain, and as a lieut-col in its service. Seventeen of his partisans were sent out of the country.

[IX-61] A detailed account of that mission may be seen in *Mem. Rev. Cent. Am.*, 112-14; *Molina, Costa R.*, 96-7.

[IX-62] 'Ocupa este lugar el ciudadano Ex-gefe Juan Mora, por sus virtudes, y le ocuparán sucesivamente, los que, en el mismo destino, se hagan dignos de él.' *Marure, Efem.*, 33. Mora was born in San José in 1784, and had filled several important trusts before his election to the chief magistracy. After his retirement he again held other offices till his exile in 1838. Returning to his country in 1842, he took a prominent part in public affairs. In Nov. 1848 he was declared a benemérito de la patria, and given a pension for life. In May 1850 he became president of the supreme court. Honesty and integrity were the prominent traits of his character, united with ability and liberal ideas, but free from exaggerations. *Molina, Costa R.*, 75-6, 98, 119-21.

[IX-63] Costa Rica had never been under the sway of bishops, clergymen, or monks. That fanaticism which has been so baneful to other states of Spanish America never existed here. *Montúfar, Reseña Hist.*, i. 305.

[IX-64] *Guat., Boletín Ofic.*, 1833, no. 34, 376; *Costa R., Col. Leyes*, iv. 4-5. Gallegos was an honorable man and father of a family, as well as a wealthy property owner. But he was not conversant with state affairs, nor with the intrigues of politicians. His chief aim was economy; he wished to see the public treasury full of money; he cared less to apply that money in the development of the country.

[IX-65] In proof of which were the newspapers *El Noticioso Universal*, *La Tertulia*, *El Correo de Costa Rica*, and the number of sheets that were constantly issued.

[IX-66] By the assembly and council, and published by the executive, Apr. 3, 1834. *Id.*, 198-201; *Costa R., Col. Leyes*, iv. 110-12, 120-1.

[IX-67] Juan José Lara became jefe provisorio, and in his turn was succeeded in June of the same year by the vice-jefe Agustín G. Lizaurzábal, who ruled till March 1835, when, because of ill health, he delivered the government to Manuel Fernández, who had it till the regularly elected jefe assumed his duties. *Marure, Efem.*, 64; *Molina, Costa R.*, 99; *Costa R., Col. Leyes*, iv. 134-5, 159-60.

[IX-68] He was born in Cartago in 1800, and studied in the university of Leon, Nicaragua. He had never been out of Cent. Am., and consequently his mind had never had the expanding influence of travel. He was accordingly full of petty prejudices. He could, however, appreciate men of merit, and avail himself of their abilities; but if he mistrusted a man, he proved a relentless foe. He rarely placed any trust in any one. *Montúfar, Reseña Hist.*, ii. 208; *Costa R., Col. Leyes*, iv. 206-7; *Molina, Costa R.*, 68 et seq.; *Wagner, Costa Rica*, 201-3.

[IX-69] Law of Apr. 11 and Aug. 25, 1835; *Costa R., Col. Leyes*, iv. 196-9, 235-9; *Salv., Diario Ofic.*, May 25, 1875.

[IX-70] Government issued a proclamation against the rebels on the 6th of Oct., 1835. *Costa R., Col. Leyes*, iv. 273-80.

[IX-71] The decisive action occurred on the 28th of Oct. About 50 persons perished. Details on those troubles appear in *Molina, Costa R.*, 99-100; *Marure, Efem.*, 38. The authors of the rebellion were mulcted in sums ranging from \$2,000 down to \$30. *Montúfar, Reseña Hist.*, ii. 208-27, 237-47.

[IX-72] Two thousand men came upon the invaders at the hacienda of Santa Rosa. Quijano escaped to Nicaragua. The government, by a decree of July 2, 1836, declared him and others outlawed, and one of them was executed. *Costa R., Col. Leyes*, iv. 325-30, 349-58. Guanacaste, later known as Liberia, and Nicoya, for their loyalty, were rewarded, the former being made a city, and the latter a villa. *Molina, Costa R.*, 100; *Montúfar, Reseña Hist.*, ii. 230-6.

[IX-73] Carrillo held the executive office till March 1837, when, his term having expired, he surrendered it to Joaquin Mora, a brother of the former jefe, Juan Mora, who ruled only one month, and began his administration by opposing some of Carrillo's measures. *Id.*, 312.

[IX-74] Aguilar had political enemies who accused him of friendship for Cartago, Heredia, and Alajuela, thereby exposing San José to new assaults. With this pretext a plan was formed to assault the barracks at San José on the night of Aug. 26th. *Id.*, 318-20.

[IX-75] Carrillo was recognized as jefe by a special decree of the assembly on the 26th of June, and remained at the head of

affairs till 1842, when he was overthrown in his turn. *Costa R., Col. Leyes*, iv. 241; *Marure, Efem.*, 64; *Montúfar, Reseña Hist.*, ii. 322-3. Miguel Carranza, Carrillo's father-in-law, became vice-jefe. *Stephens, Cent. Am.*, i. 359.

[IX-76] He established a reign of despotism, in which his will was law, restricting the press and punishing his political opponents with expatriation and otherwise, though they were pardoned in 1838. *Costa R., Col. Leyes*, iv. 320-1, v. 96-100, 193-4. His course made him many enemies, whom he treated with the utmost harshness. His change from a liberal ruler to an arbitrary one was quite marked. He was known by the sobriquet of Sapo de Loza. A number of charges against him appear in *Montúfar, Reseña Hist.*, iii. 561-79. During his former administration, in 1836, he restored the tithes and the excessive number of holidays of the church.

[IX-77] The assembly had, in April 1838, passed a resolution inviting the federal congress to call a national convention for the exclusive purpose of reforming the federal institutions. *Costa R., Col. Leyes*, v. 196-8.

[IX-78] Carrillo could not rule with the liberal constitution of 1825. To do away with this obstacle he used as a pretext the decree of the federal congress of May 30, 1838, empowering the states to reconstitute themselves. The assembly of Costa Rica accepted the decree on the 16th of July, 1838, and Carrillo seized the opportunity to get rid of a fundamental law that did not suit him. It was at his suggestion that the assembly, by decree of July 14, 1838, called the constituent convention. *Costa R., Col. Leyes*, iv. 248-51, 279-84; *Montúfar, Reseña Hist.*, iii. 266-7.

[IX-79] A treaty of friendship and alliance was concluded July 1, 1839, with Honduras; another of the same character one month later with Guatemala. Both are given in *Convencion*, in *Cent. Am. Constitutions*, 13-14, 23-5.

[IX-80] The coat of arms was a star with rays, placed in the centre of a sky-blue circle, and had at the circumference the inscription 'Estado de Costa Rica.' The flag consisted of three horizontal stripes, the uppermost and lowest white, and the central one sky-blue, with the coat of arms on the latter. The flag of the mercantile marine was not to have the coat of arms, but instead of it, in silver letters on the centre stripe, the inscription 'Estado de Costa Rica.' *Costa R., Col. Leyes*, vi. 316-20.

[IX-81] President Morazan's decree of April 20, 1842, restored the flag, arms, and coins as before the promulgation of Carrillo's.

[X-1] Articles 8th and 9th of this treaty stipulated that the ports of both states were to be closed to British trade until Great Britain should restore to Central America the island of Roatan, the seizure of which, together with its consequences, is treated of in another part of this volume. Chatfield, who had been favoring the views of Guatemala against Los Altos, declared to the latter that these articles were offensive to his government. The government of the new state, being anxious to avert any interruption of friendly relations, by its minister, Aguilar, assured the consul, on the 18th of Jan., 1840, that the objectionable articles would be rescinded.

[X-2] The state assembly passed a decree to that end April 17, 1841, and appointed the deputies to represent it, the appointees being Francisco Castellon, Gregorio Juarez, Benito Rosales, Ex-jefe José Nuñez, and Hermenegildo Zepeda. The last named was represented by Sebastian Salinas. Castellon's selection by the assembly was a blow at Buitrago, the two being bitter opponents.

[X-3] In the protest they set forth the machinations brought to bear to defeat them. Nicaragua and Salvador had asked Guatemala and Costa Rica to enter the convention. Ferrera, the executive of Honduras, played a double game. He had representatives in the convention, while he was leagued with the aristocrats of Guatemala, who spurned the idea of reorganization. *Montúfar, Reseña Hist.*, iv. 144.

[X-4] Meantime the convention named the supreme delegate and the members of the council. The duties of the executive officer were multifarious, involving foreign and internal affairs. Among the foreign affairs was the negotiating of a concordat with the pope, and of a treaty with Spain for her recognition of Central American independence. He was also to procure the reassembling of the American diet. *Squier's Trav.*, ii. 444-5; *Montúfar, Reseña Hist.*, iv. 147-8; *Reichardt, Nic.*, 73-4; *Salv., Diario Ofic.*, Feb. 14, 1875.

[X-5] Act of the constituent assembly, dated July 20, 1842. *Montúfar, Reseña Hist.*, iv. 304-5.

[X-6] The act consisted of 77 articles, and was an amplification of the former act. Art. 4 said that the confederate states recognized the principle of non-intervention by one or more states in the internal affairs of the others. They bound themselves never to resort to arms for the settlement of disputed points, nor to permit the annexation of towns of alien jurisdiction without the express assent of their sovereign. The other states of the late union were granted the privilege of joining the confederacy with equal rights and representation. Art. 14 prescribed that the government was to be exercised through delegates for the general objects of common benefit expressly set forth in the instrument. Art. 15. The executive authority was to be in charge of a supremo delegado, with a consultive council formed with one member from each state. Art. 16. The judicial power was intrusted to a court composed of members chosen by the state legislatures. The delegates who subscribed the act were: J. Nuñez, G. Juarez, Francisco Castellon, Pedro Zeledon, and Sebastian Salinas for Nicaragua; Manuel Barberena, and José M. Cornejo for Salvador; Manuel E. Vazquez, Mónico Bueso, and Jacobo Rosa for Honduras. *Cent. Am., Pacto de Confed.*, 1-12; *Niles' Reg.*, lxiv. 2; *La Union*, June 15, 1850; *Montúfar, Reseña Hist.*, iv. 266-82; *Pabellon Nac.*, Oct. 19, 1844, 27; *Froebel's Cent. Am.*, 143.

[X-7] An act was passed by the constituent assembly on the 28th of July, 1841, purporting to have in view a restoration of the union. *Guat., Recop. Leyes*, i. 454-5.

[X-8] *Costa R., Col. Leyes*, viii. 28-36. This treaty was called by the nobles 'tratado de union.' Carcache produced a note of June 17, 1843. from Aycinena reiterating his government's protest against the expediency and practicability of establishing in Central America 'una forma de gobierno unitario,' which in its opinion would entail upon the country still greater misfortunes. Castellon, for the Nicaragua executive, replied on the 5th of Aug., denying that any offence had been committed by entertaining opinions favorable to the late government. *Montúfar, Reseña Hist.*, iv. 151-2.

[X-9] Rivera Paz' decree, in *Guat., Recop. Leyes*, i. 46-8.

[X-10] Costa Rica appointed delegates to the diet. *Costa R., Col. Leyes*, viii. 57-9, 92-8, 188-9. The minister of Guat. had proposed to Costa Rica a convention of commissioners from all the states, appointed in the manner he suggested, namely, all the

commissioners were to be of Guatemala, and directed by him to review the compact of Chinandega. The proposition was rejected. The reports of the committees in the assemblies of Guatemala and Costa Rica are given in *Montúfar, Reseña Hist.*, iv. 283-97, 380, 407-9.

[X-11] This would save them from such blows as the lieutenant inflicted on them at Pinula and Villa de Guadalupe, early in 1844.

[X-12] They were to be paid for by the confederate states.

[X-13] These facts appear in the official report to the state government on May 6, 1844.

[X-14] José Antonio Azmitia became minister of the treasury, and Manuel Ubico under-sec.-gen.

[X-15] He could not deny Arce's invasion of Salvador, but pretended that no prominent man of the govt or of the aristocratic party had any knowledge of his intention to invade, or of the source from which he obtained his supplies. Pavon knew well enough, but prevarication was convenient. The fact is, Juan A. Alvarado, Guatemalan agent in San Salvador, had given his government timely information of the intended invasion. Arce's departure was open. In order to put an innocent appearance on the affair, the govt decreed, May 12, 1844, that Arce should leave the city within 24 hours, and the state within 20 days. In an address to the people on the 2d of June, Rivera Paz says that Salvador emissaries had been detected trying to rouse the people of Los Altos to insurrection, and that the plan was intended to avenge the defeat of 1840. This is hardly true; for Malespin had been then on Carrera's side against Morazan, and his tool in Salvador ever since. The aristocrats had, when it suited their purposes, published letters of liberal leaders falling in their hands; and yet they never brought out those said to have been taken from the emissaries at Los Altos.

[X-16] The two notes are given in *Montúfar, Reseña Hist.*, iv. 531-41.

[X-17] Col. Vicente Cruz, commanding the advance force of Carrera's army, attributed the defeat to fear, which was not altogether devoid of truth.

[X-18] The commissioners were: José D. Dieguez, Luis Batres, and José M. Urruela for Guat.; Bishop Viteri and Narciso Monterey for the sup. del.

[X-19] Art. 2 stipulated that all property removed from Guat. to Salv. by the latter's forces should be restored, or its value made good. This article was a hard one for Malespin, and yet Viteri accepted it. This arrangement was completed in May 1846. *Id.*, v. 18; *Guat., Recop. Leyes*, i. 408-15; *Crowe's Gospel*, 159; *La Abeja*, Oct. 18, 1844; *Defensor Integ. Nac.*, Nov. 2, 1844; *El Constituc.*, Apr. 23, 1844; *Pabellon Nac.*, Oct. 19, 29, 1844.

[X-20] He insisted on certain amendments, his commissioners having exceeded their instructions, and humiliated Salvador, which was irresponsible for the movement on Jutiapa. And yet Guatemala declared the convention to be obligatory.

[X-21] The object then in view was to unite Malespin and Ferrera for a dash upon Nicaragua. With the Guatemalan commissioners went Viteri, and he had a princely reception.

[X-22] He added that by sacrificing a great portion of her rights Salv. had obtained peace.

[X-23] The commissioners who negotiated it were: Cayetano Bosque for Salvador; Canon Doroteo Alvarenga and Juan Lindo for Honduras. The object of the arrangement was evidently a league against Nicaragua, though it cannot be said to have been against the party called 'coquimbos,' for generals Saget and Espinosa were now serving with Malespin. *Montúfar, Reseña Hist.*, iv. 567-8, 581-2.

[X-24] The confederate executive had ordered a force of Nicaragüenses to come into Salvador through the department of Choluteca, Lieut-col Aguado being charged with their transportation.

[X-25] The troops could not come by sea, the port of La Union being then blockaded by a British frigate. Copy of Aguilar's note, dated Aug. 11, 1844, in *Id.*, 569-71.

[X-26] Muñoz' report sets the enemy's loss at 156 killed, besides many prisoners, and over 200 muskets, etc.

[X-27] The place was defended by upwards of 700 men under Juan Morales.

[X-28] Guzman could not grant such authority, as it was of the exclusive province of the state congress. It was, besides, unnecessary, as neither Salvador nor Honduras was invaded.

[X-29] For his own security, in his absence, he placed his brother, Calixto Malespin, as comandante general, near Vice-president Guzman. This man used to open Guzman's correspondence, and deliver him only such despatches as he thought expedient. See circular of Jimenez, Guzman's minister, to governors of departments, of Feb. 12, 1845, in *Id.*, 717-18.

[X-30] He was the constitutional chief. *Ayon, Apuntes*, 4; *Semanario Nic.*, Apr. 24, 1873.

[X-31] A pompous title, which rendered him ridiculous in the eyes of many, while it excited jealousy on the part of others. *Squier's Trav.*, ii. 449. Fonseca is represented as a drunkard, ignorant, and the most brutal tyrant Nicaragua ever had. Life and property were subject to his nod. *Dunlop's Cent. Am.*, 224-5; *Wells' Hond.*, 494.

[X-32] It should be known that Chamorro had not been a Morazanista, or even a liberal. He was the chief of the conservative party in Nic. On March 29, 1845, his term having expired, and there being no legal successor, he decreed that the office of supremo delegado ceased to exist, and communicated the fact to the governments of the several states. *Montúfar, Reseña Hist.*, iv. 122.

[X-33] Oct. 31, 1844. The object of the war, he said, was to avenge the insult inflicted by Nic. on Hond., and it was to be waged till a lasting peace could be secured.

[X-34] Here the invaders were joined by Gen. Manuel Quijano and 64 dragoons who had deserted from Leon.

[X-35] The commissioners were Hermenegildo Zepeda and Gerónimo Carcache. Malespin himself acted for Salv. and Hond. Art. 1 required Nic. to pay Salv. and Hond. all the expenses of the present war, and to Salv. those incurred in the war of April last against Guat., because Nic. had failed to furnish her contingent of troops. This last payment was waived by Salv. in art. 6. Art. 2 calls for the surrender by Nic. of all arms within her territory

belonging to the allies. Art. 3 made it the duty of Nic. to deliver to the allied forces the 'facciosos' Joaquin Rivera, Máximo Orellana, Miguel Álvarez, Trinidad Cabañas, Gerardo Barrios, Diego and Ramon Vijil, if found in the state, and if they were out of it, not to allow them to reside therein without the consent of the allied governments. Art. 7 throws upon Nic. the expense of supporting the allied troops from the date of the ratification of the treaty till they should have reached their quarters in their respective states. *Montúfar, Reseña Hist.*, iv. 592-4.

[X-36] Guardiola became intoxicated and abused the deserters; whereupon half of them abandoned the allied camp, and he was placed under arrest.

[X-37] Among the slain was Cruz Guardiola, a brother of the general.

[X-38] It will be well to record here that Muñoz, to whom Leon owed her present tribulation, was a Nicaraguan by birth.

[X-39] The negotiators for Nic. were Canon Desiderio Cortés and Anselmo Alarcon; for Salv. and Hond., Gen. Nicolás Espinosa and J. T. Muñoz. Under this capitulation the terms agreed to in the former one at Zatoca were to be enforced as regarded payment of war expenses and surrender of arms. Nic. bound herself to expel from the state Casto Fonseca, Cabañas, Rivera, Orellana, Barrios, Álvarez, Diego, Ramon and José Antonio Vijil, Domingo Asturias, José Antonio Milla, and José Antonio Ruiz; and furthermore, to deliver to Malespin some Salvadorans who revolted against him at San Miguel on the 5th of Sept., 1844.

[X-40] Granada took Malespin's side, and was followed by Rivas and other places. It seemed as if all the actas had been written by the same hand. *Montúfar, Reseña Hist.*, iv. 600, 635-6.

[X-41] The most humiliating part of this arrangement was the 3d clause, wherein the eastern and southern departments recognize Malespin as 'protector de los Nicaragüenses,' and general-in-chief of the united armies, including one organized by those departments, till the end of the war. *Id.*, iv. 600-2; *Nic., Registro Ofic.*, 12, 14, 55-6, 65, 69, 110-15; *Sandoval, Rev. Polít.*, 9, 15-18.

[X-42] Several officers were shot, among them a number taken by Saget, on the vessel *Carolina*. Malespin issued stringent orders against rendering aid to the besieged. An official report from Nagarote of Jan. 23d, to the comandante at Managua, speaks of a defeat of troops of the govt at Leon, with the loss of 200 killed, 300 wounded, and many prisoners, together with 3 pieces of cannon and other arms, etc. *Nic., Registro Ofic.*, 4.

[X-43] It is related that Pedro Zeledon, a Costa Rican residing in Chichigalpa, Nic., wrote Muñoz, depicting the horrors of the war and the need of peace. Malespin made Muñoz invite Zeledon to a conference, and when he had him in his power, demanded a ransom of \$1,000, but did not get anything, and Zeledon obtained his liberty.

[X-44] The only house exempted from plunder was Manning's. Many houses were razed to the ground, or burned purposely.

[X-45] On the first day the acting director, Emiliano Madrid, Crescencio Navas, cols Francisco Lacayo and Balmaceda, Capt. Valle, José M. Oseguera, and Father Crespín were shot. Crespín's offence was to have begged the infamous Manuel Quijano, at the door of the hospital for the wounded, to spare them. Canon Cortés was put to death afterward. Casto Fonseca, captured on the coast, was tried by court-martial and shot. An eye-witness declared that 24 persons were executed by Malespin in Leon. *Montúfar, Reseña Hist.*, iv., table no. 5, 636; *Sandoval, Revista Polít.*, 7-15; *Dunlop's Cent. Am.*, 227, 230-3; *Nic., Registro Ofic.*, 4-6, 14; *Crowe's Gospel*, 159-61; *Niles' Reg.*, lxviii. 193. Bustamante, *Mem. Hist. Mex.*, MS., ii. 77, speaks of Malespin's acts of horrible cruelty, adding that according to the newspapers of Guat. Malespin had caused to be assassinated over 1,000 persons.

[X-46] Eighty-five prisoners were released from the jail, many of whom had been confined there for alleged political offenses.

[X-47] He was a son-in-law of Vice-president Guzman. They differed in politics, but Barrios fully believed that Guzman was the person to overthrow Malespin, and must be aided with some bold stroke.

[X-48] He called a large number of his friends to his house and armed them with pistols—he had not a single musket at his command. He then called the comandante general, and the mayor de plaza, Antonino Arévalo, and made prisoners of them without resistance. The two escaped afterward, but Malespin was recaptured, with a wound.

[X-49] Acta of the capital on Feb. 2, 1845. *Montúfar, Reseña Hist.*, iv. 719-24; *Monit. Constit. Indep.*, May 2, 1845; *La Minerva*, May 22, 1845.

[X-50] Costa R. had heard of it by a vessel from Acajutla, and sent her recognition before the circular reached her. The govt of Nic., created by Malespin, recognized Guzman. The nobles of Guat. had to do the same; and believing themselves endowed with extraordinary good sense, added their advice with all the gravity of pedagogues. *Montúfar, Reseña Hist.*, iv. 678.

[X-51] On the ground of unconstitutionality, he being in command of the state forces at the time the election took place. Circular Feb. 24, 1845, in *Id.*, 725; *El Salvador Regenerado*, no. 2.

[X-52] Guzman was a Costa Rican by birth, but had lived many years in San Miguel, Salv. He entertained liberal ideas from his earliest political life. His military service, under Morazan, began soon after the battle of Gualcho, and he was present as a captain in the actions of San Miguel and Las Charcas. He accompanied that leader to Guat. In the invasion of Cent. Am. from Mex. by Arce in 1832, Guzman did gallant service at Jocoro, and entered San Salvador with Morazan. Again during San Martin's rebellion he served under his chief as a lieut-col. The chambers of Salvador, on the 19th of May, 1845, declared Guzman a 'benemérito de la patria,' and awarded him a gold medal, at the same time promoting him to general of division. *Montúfar, Reseña Hist.*, iv. 693-4; *Salv., Diario Ofic.*, May 21, 1875. Dunlop, *Cent. Am.*, 116, says of him: He was 'more remarkable for cunning than honor or courage. His manners are gentlemanly; he has no mixture of colored blood, and is rather good-looking, though he appears to possess but little talent or education.' I am inclined to think that Dunlop misrepresented Guzman's character, for Guzman proved himself a good and pure ruler, and his name is revered in the state and throughout Cent. Am. by all lovers of freedom and enlightenment.

[X-53] On the 23d of Feb., 1845, grounded on the execution of priests at Leon. The decree forbids the faithful of the diocese to have any intercourse, verbal or written, with Malespin, or to uphold or defend him in any manner. Full text in *Montúfar, Reseña Hist.*, iv. 679-81; *Bustamante, Mem. Hist. Mex.*, MS., ii. 78.

[X-54] They were Cayetano A. Molina and Juan Antonio Alvarado. They asked not merely for Carrera's neutrality, but for his active aid, and were referred to the ministers, by whom they were dealt with as children. The ministers pretended that their request could not be acceded to without an express sanction of the legislature, which was not then in session for lack of a quorum. The plea was a ridiculous one, when we consider that Carrera had never before consulted the wishes of the assembly to act his own will.

[X-55] Malespin had been acting there as president, under Hond. support; but on Guzman's approach his troops disbanded, and he fled.

[X-56] In March 1845 the president of Hond. took Malespin and his companions under the protection of his govt. *Nic., Registro Ofic.*, 53-4.

[X-57] The commissioners of Hond. were Sebastian Salinas and Leonardo Romero; those of Salv., José Félix Quiroz and Nicolás Angulo. The treaty was ratified by Salv., but rejected by the other contracting party. Text of the treaty and Dueñas' additional clause, in *Montúfar, Reseña Hist.*, iv. 726-32.

[X-58] Concluded by Cayetano A. Molina and Juan A. Alvarado for Salv., and Alejandro Marure and José M. de Urruela for Guat., April 4, 1845; approved by the constituent congress of Guat. on the 23d of the same month, and published by Acting President Duran the next day. *Guat., Recop. Leyes*, i. 415-19; *Guat., Gaceta*, July 8, 1853; *Monit. Constit. Ind.*, May 21, 1845; *La Minerva*, May 22, 1845.

[X-59] Dueñas was then considered a liberal, though he was a Dominican friar when the convents were closed in 1839, for which reason the government of Guat. would not trust him. It was deceiving him. He was, however, the one most likely to succeed in keeping Carrera from aiding Hond. in the present emergency. Hond. had sent Felipe Jáuregui and Pablo Orellana to Guat. The

former was Ferrera's mentor, and in the councils of Pavon, Aycinena, and Batres. At first he was alarmed at the liberalism of the constituent congress, which had voted assistance to Salv. But he received assurances that no aid would be sent except to quell revolts in the interior; and, moreover, that the foes of Hond. would be stricken from the Salvador administration. Jáuregui now understood the game, and wrote his government that the vote of aid by congress practically amounted to nothing. A note containing these assurances was published in Comayagua. Guat. concluded a treaty of friendship and alliance with Hond. on the 19th of July, 1845. *Guat., Recop. Leyes*, i. 419-23.

[X-60] Dr Aguilar and Father Monterey. *Nic., Registro Ofic.*, 61-2, 123-34. Gen. Muñoz, who so efficiently aided Malespin at Leon, was now the com. gen. and most prominent man in Nic.

[X-61] Ferrera claimed another victory on the 7th at Santa Rosa, but it was unfounded. *Id.*, 83, 88; *Monitor Constit. Ind.*, May 21, 1845; *Crowe's Gospel*, 166-7.

[X-62] He demanded on the 11th of July, as compensation for alleged damages to Hond. by the invasion of Cabañas and Cordero, that Salv. should cede to Hond. all the arms and other war material deposited in the latter state by Malespin, and pay, besides, \$100,000 in specie, to be collected by Hond. in instalments at the port of La Union, which, until the payments should be completed, was to be held by Hond.; or, in lieu of that sum, cede to the latter the department of San Miguel, or that portion of the department of Cuscatlan lying outside of the territory enclosed by the Lempa on the south and south-west. He also required the exile from Cent. Am. of a number of persons. This note was published in *Guat., Gaceta Ofic.*, no. 15, Aug. 28, 1845. In July a project was entertained of a confederation of Hond. with Nic., Guat., and Salv. *Nic., Registro Ofic.*, 93-5, 102-8, 118-21, 136-8.

[X-63] One house containing British property was spared. The houses of two French merchants, whose nation's flag was flying over them, were plundered. *Dunlop's Cent. Am.*, 239.

[X-64] In his report he tried to cover up this serious disaster. But the fact was, that he escaped with only about 300 men, leaving on the field upward of 300 muskets, and a large number of slain, wounded, and prisoners. *Montúfar, Reseña Hist.*, iv. 700-1.

[X-65] Hond. troops entered Salv. after that and were defeated. Guardiola with 350 men attacked Carballo, who had only 39, and murdered them. It is said that this act was commended by Ferrera in his report to the chambers of Hond.

[X-66] Guzman then returned to Hond. a number of prisoners who had been represented by his enemies as murdered.

[X-67] So long as they remained in Hond. the latter was to compel them to live at a great distance from the Salv. frontier. *Montúfar, Reseña Hist.*, iv. 736-8; *Dunlop's Cent. Am.*, 239-43; *Nic., Registro Ofic.*, 132, 172, 221-2; *El Tiempo*, March 12, 1846.

[X-68] Each of the contracting parties was to appoint two commissioners to meet at Sonsonate on the 30th of Aug., and was to urge upon the other three states a consideration of the lamentable state the republic was in, suggesting how best to do away with such a condition of affairs; and proposing therefor the convocation and assembling of a constituent power, or such other measure as it might deem conducive to the desired end. *Montúfar, Reseña Hist.*, v. 30-1.

[X-69] Duran well understood the policy of his government. Padilla did not, and volunteered to represent in San Salvador the ardent wishes of Guat. for the restoration of the union. He did so in a patriotic speech that gave him a good name in Salv. and a bad one in Guat., where the *Gaceta* rebuked him.

[X-70] 'Un delirio de imaginaciones enfermas,' it was pronounced to be. Delegates from Costa R., Salv., and Guat. were at Sonsonate on the 17th of Feb., 1846, and fixed the 15th to the 20th of April for conferences, but they did not take place. On the 15th of June Costa R., Hond., and Salv. only were represented. Nic. and Costa R. signified their willingness to meet the other states at any place they might select, Hond. having suggested Nacaome, as Sonsonate was no longer deemed safe. The whole plan failed at last because of the action of Guat. Much interesting information on the subject and official correspondence appear in *Guat., Gac. Ofic.*, no. 26; *Costa R., Col. Leyes*, ix. 51-3, 58, 203-4, 212-14, 345-6; x. 115-17, 123-4; *Nic., Reg. Ofic.*, 236-350, passim; *Montúfar, Reseña Hist.*, v. 316-18, 334-5; *Froebel's Cent. Am.*, 143; *Dunlop's Cent. Am.*, 253-4; *Niles' Reg.*, lxxix. 34.

[X-71] Signed by Rafael Carrera, and countersigned by José Antonio Azmitia, minister of relations. *Guat., Recop. Leyes*, i.

73-6; *Costa R., Informe Relaciones, etc.*, 1848, 4; *El Universal*, June 8, 1849; *Niles' Reg.*, lxxii. 208; *The Californian*, S. F., Nov. 24, 1847, ii. 3.

[X-72] The document bore Carrera's name, but it was no production of his own mind. The authorship was attributed to Alejandro Marure; that is to say, he drew it up from the materials that had been collecting for years. *La Revista*, the organ of the Sociedad Económica, declared it the offspring of long meditation, and indeed it was, for the aristocrats of Guat. had been planning it since 1828. The full text is given in *Montúfar, Reseña Hist.*, v. 196-207.

[X-73] Manuel Pineda de Mont, compiler of *Guat., Recop. Leyes*, i. 453, claims, however, that Guat. was the last of the five states to set aside the federal govt, the last to secede, the last to continue bearing the general burdens of the system, especially the pecuniary ones to sustain even the semblance of authority; and that she only adopted the resolution of March 21, 1847, after exhausting every effort, and losing all hope of seeing her wishes realized. The reader will judge between his statements and the facts as they have been fairly given by me.

[X-74] Joaquin Bernardo Calvo and Juan Antonio Alvarado. The ruler of Costa Rica, Dr Castro, was, however, of the opinion that the five Central American states would be better off as separate nations. *Montúfar, Reseña Hist.*, v. 266-7; *Nacaome, Dictamen*, in *Cent. Am. Pamph.*, no. 5; *Froebel's Cent. Am.*, 143.

[X-75] Among them was the deputy Nazario Toledo, an intimate friend of the president. Felipe Molina was another, and his opinions are clearly defined in his *Bosq. Costa R.*, 108-9.

[X-76] The decree bears the signatures of Juan Rafael Reyes, vice-president, and Nazario Toledo and Santiago Fernandez, deputies and secretaries of congress. *Costa R., Col. Leyes*, x. 336-8; *Montúfar, Reseña Hist.*, v. 526-7.

[X-77] The arrangement looked to a consolidation for the purpose of conducting foreign relations, and to an early union on the plan of a federation. *Cent. Am. Miscel. Doc.*, 46; *Costa R., Gac. Gob.*, March 2, Apr. 20, 1850; *Hond., Gac. Ofic.*, Aug. 31, 1850; *El Siglo*, Apr. 22, 1851; *Nic., Corr. Ist.*, Dec. 16, 1849, March 21, Oct. 3, 1850; *La Union*, Jan. 1, 15, 1850; *Guat., Gac.*, Nov. 30, 1849; *Salv., Gac.*, Dec. 7, 1849.

[X-78] Consul-gen. Chatfield was officially advised of the new organization on the 21st Jan., 1851, and ignored Sec. Buitrago's note. On being reminded of it, May 22d, he returned an insulting reply July 13th, refusing his recognition, when the government decreed, on the 24th of July, to cancel his exequatur as consul-gen. in the states belonging to the confederation, and to inform his govt of the cause. *Cent. Am. Docs.*, 1-6. The British officials also resorted to other means to defeat what they called Am. policy. *Squier's Cent. Am.*, ii. 135; *El Universal*, Feb. 19, March 26, 1850; *Salv., Gac.*, Dec. 21, 1849; *Dem. Rev.*, Nov. 1850, 452.

[X-79] Guat. and Costa R. had refused to join. *Salv. Gac.*, March 8, 22, 1850, Oct. 12, 1854; *Nic., Corr. Ist.*, Jan. 16, 30, 1851.

[X-80] The act of installation was accompanied with religious and civic ceremonies, the govt of Hond., at whose head was Trinidad Cabañas, heartily joining them. Congratulatory messages came from all friends of the union. *El Siglo*, S. Salv., Oct. 29, 30, Nov. 1, 4, 10, 14, 16, 19, 1852; *Hond., Gac. Ofic.*, Oct. 30, Nov. 15, 1852; *Perez, Mem. Hist. Revol. Nic.*, 17; *El Porvenir*, nos. 6, 7.

[X-81] The assembly also elected a vice-jefe and four substitute councillors to fill the executive chair, in the event of the jefe or members of the executive council dying or becoming disabled.

[X-82] It set forth the duties of the jefe supremo and councillors, the independence between the federal and state authorities, the rights of citizens, responsibilities of public officials, and organization of the federal judiciary. *Hond., Gac. Ofic.*, Nov. 30, 1852.

[X-83] Salv. on the 21st of March, and Nic. on the 30th of April. The congress, acting too precipitately, overstepped the bounds of its powers. *Perez, Mem. Hist. Revol. Nic.*, 17-18.

[X-84] More details on the confederation scheme are contained in *Astaburuaga, Cent. Am.*, 110-16; *El Nacional*, Nov. 27, Dec. 25, 1858; *Nic., Bol. Ofic.*, July 30, 1869; *Id., Gac.*, March 2, 9, 1872; *Id., Seman. Nicar.*, Nov. 21, Dec. 12, 1872, Feb. 6, Oct. 16, 1873; *Los Anales*, Dec. 1, 1872; *Mex., Diario Ofic.*, Nov. 2, 1871; *U. S. Gov. Doc.*, H. Ex. Doc., 42d Cong. 2d

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[XI-1] Molina, who denies that Carrillo was disposed to be tyrannical, but on the contrary anxious for the good of his country, adding that he was 'severo y sencillo en su conducta, y que paliaba su arbitrariedad con el ejercicio de las virtudes mas relevantes en un mandatario,' confesses that on the present occasion this great man committed a grave error. *Bosq. Costa R.*, 103; *Costa R., Dec. de garan. y bases*, 24 mo.; *Id.*, *Col. Ley.*, viii. 15-36, 41-2; *Salv., Diario Ofic.*, May 25, 1875.

[XI-2] The former was constituted with as many members as there were departments, namely, four. The latter was composed of a president, two relatores fiscales, and four justices.

[XI-3] He insulted them, however, by providing that they should be under the surveillance of the authorities. *Costa R., Col. Ley.*, vii. 42.

[XI-4] He was married to a niece of Carrillo. Bonilla was faithful to him in life, and to his memory after death.

[XI-5] According to Col Bernardo Rivera Cabezas. Barrundia makes the force only 300. He had at first landed at La Union, in Salvador, with 22 officers of all ranks, and marched upon San Miguel, where he recruited 200 men, and then returned to La Union. He next visited Acajutla and Sonsonate, where he ascertained the state of public affairs in Salvador and Guatemala, after holding some correspondence with the chiefs of the former state and Nicaragua. The latter answered very offensively. *Montúfar, Reseña Hist.*, iv. 47-55, 145. Entertaining a favorable

idea of the invitation sent him by the Costa Ricans, he sailed for the isle of Martin Perez, in the gulf of Fonseca, where he finally organized his expedition and embarked it on the vessels *Cruzador*, *Asuncion Granadina*, *Josefa*, *Isabel II.*, and *Cosmopolita*.

[XI-6] *Astaburuaga*, *Cent. Am.*, 55-6; *Salv., Diario Ofic.*, Feb. 14, 1875.

[XI-7] *Costa R., Col. Ley.*, vii. 248-50.

[XI-8] Among them were Vicente Aguilar, Francisco and Mariano Montealegre, and Rafael Barroeta.

[XI-9] It is understood that Rafael Barroeta was the sole exception.

[XI-10] Carrillo was to leave the country with a full pledge of safety to his family and property. The convention was signed by Morazan, Villaseñor, generals Saget, Saravia, and Rascon, 5 colonels, and the other assenting officers of all ranks, including 5 Texiguas.

[XI-11] Carrillo left the state from Puntarenas. Bonilla was also guaranteed security. *Montúfar, Reseña Hist.*, iii. 615-19; *Niles' Reg.*, lxii., 275. Both Carrillo and Aguilar died out of Costa R.; the former was killed, and his murderer executed. Funeral honors were paid in Costa R. to Aguilar, Aug. 25, 1846. *Costa R., Col. Ley.*, ix. 289-90. The remains of both ex-chiefs were brought home by Presid. Castro's decree of Nov. 5, 1848. *Id.*, x. 365-8; *El Salvador Regenerado*, June 4, 1842.

[XI-12] Dated April 14, 1842. *Id.*, vii. 250-1.

[XI-13] A general order was given to prevent any interference with the elections on the part of the troops. Copies of Morazan's decrees to undo the evils of his predecessor, and to prepare for the reorganization of the state on liberal principles, are furnished in *Id.*, 236-342, *passim*; *Montúfar, Reseña Hist.*, iii. 621-31.

[XI-14] Again on the 30th of Aug. it authorized the continuation of his government till a new constitution should be framed. The same day it reaffirmed Morazan's extraordinary powers, and on the 2d of Sept. adjourned to reassemble April 1, 1843. Among the most noted acts of this convention were the

following: A vote of thanks and other honors to Morazan and Villaseñor, the latter being awarded a gold medal with an honorable inscription. Morazan was given the title of Libertador de Costa Rica; and on his refusing to publish the decree, the assembly specially requested him to do so. The army that brought about the change was honored with the name of Division Libertadora de Costa Rica. The assembly also made a formal declaration on the 20th of July, in favor of a federal republic. *Costa R., Col. Ley.*, vii. 342-51, 379-82, 403.

[XI-15] It was strictly in accordance with the military code. His brother Felipe, in relating the occurrence, says that a disappointment in love, and his removal from the comandancia of the department, preyed upon his mind, 'le sobrevino una fiebre, perdió la razon, y se hizo criminal.' But he subsequently declared his loyalty to Morazan, and while lying on a bed of sickness was arrested. *Molina, Bosq. Costa R.*, 104.

[XI-16] Molina did not hear of his son's fate till after the 15th of Sept. Greatly agitated, and shedding tears for Morazan's end, his son-in-law, Irungaray, told him not to bewail the fate of Morazan, for he had spilled the blood of Manuel Ángel. These words so shocked the aged patriot that he fell senseless to the ground.

[XI-17] He was a Portuguese who came to Costa Rica while still young. In his early years he had been in the naval service, and acquired some skill as an artilleryman. He married into a respectable family of San José, and had numerous descendants. By the cultivation of coffee he made himself wealthy, and this together with his connection with the Carrillo family enabled him to attain the position of comandante general, and to link his name with some important events. At his house the worst enemies of Morazan had always been welcomed. *Montúfar, Reseña Hist.*, iii. 647-8.

[XI-18] There were two barracks in San José; one his guard occupied; in the other were 150 men from Cartago who had no ammunition. *El Siglo*, Aug. 16, 1852.

[XI-19] Morazan tried to save his wife; but in traversing the street to reach the house of the Escalantes, amidst the deadly fire, she was taken by the enemy and conveyed to the house of Father Blanco, a brother of Luz Blanco, one of Morazan's mortal foes.

[XI-20] He would have met with no difficulty in obtaining security for Saravia, who was much esteemed by all. But the case was different with others, especially Villaseñor, against whom much animosity was felt.

[XI-21] Herrera was a student when he gained this unenviable notoriety. He afterward went to Guatemala to complete his studies, and was well treated and much aided by Juan José Aycinena and Manuel F. Pavon; and he became their most humble henchman. Returning to Costa Rica as a lawyer, he was appointed after a while a justice of the supreme court. On many occasions he proved himself unprincipled, treacherous, and contemptible.

[XI-22] Over 100 killed and 200 wounded.

[XI-23] He had wanted to go to Tárcos, expecting to find Saget there, but was dissuaded by Villaseñor and others.

[XI-24] The Spaniard Espinach, a reactionist of some standing who acted as a commissioner of the revolutionists, fearing that Morazan's popularity in Cartago might bring on a counter-movement, and in order to avert it, asked Morazan to instruct Cabañas to lay down his arms, and to command Saget to deliver those he had in Puntarenas. He assured Morazan his life was in no peril. His next step was to meet Cabañas at Chomogo, telling him Morazan was leaving the state by the Matina road with sufficient money, and advising him to disband his men. Cabañas was deceived, and went alone to Matina, where he was taken prisoner.

[XI-25] *Marure, Efem.*, 56. Saravia was a son of Miguel Gonzalez Saravia, the governor of Nicaragua, who attached that province to Iturbide's empire, and a grandson of General Saravia, president and captain-general of Guatemala, who had been appointed viceroy of Mexico, and was shot by Morelos in Oajaca. Young Saravia's mother, Concepcion Nájera y Batres, was of the leaders of Guatemalan society, for which reason the aristocratic party expected much from him. But after completing his education, with evidences of extraordinary talents, he often gave expression to the most liberal ideas. Before being admitted to the bar in 1834 he had served in the office of the secretary of the senate, and later as a chief of bureau in the department of foreign affairs. He afterward held a judicial appointment, being at all times noted for ability and eloquence, as well as for his

writings in *El Semanario*, which attracted the attention of Morazan, who made him auditor de guerra of the federal army. From that time Saravia followed Morazan's fortunes, taking part in several actions of war, and thus attaining the rank of general. He was also this leader's aide-de-camp, private secretary, and minister-general, both in Salvador and Costa Rica. A portrait of the young general gives him quite a distinguished air.

[XI-26] Among them were Mariano Montealegre, Juan de los Santos Madriz, and José M. Castro.

[XI-27] The most virulent were Luz Blanco and Herrera. They even worked upon the feelings of Pinto's family, and it is said that his daughter Petronila imagined that she saw her father sent to the scaffold by Morazan, and fell in a convulsion.

[XI-28] Morazan had demanded a trial. He also desired to address a circular to the governments of the states, but it was not permitted him.

[XI-29] He declared that he had expended the whole of his own and his wife's estate, besides \$18,000 due to Gen. Bermudez, in endowing Costa Rica with a government of laws. This was his sole offence, for which he had been condemned to lose his life, which was further aggravated by a broken pledge, for he had been assured by Espinach that his life would be spared. The forces he had organized were originally intended to defend Guanacaste against an expected attack from Nicaragua. Subsequently a number of volunteers were detached for the pacification of the republic. He reiterated his love for Central America, urging upon the youth of the land to imitate his example, and fight to redeem her. He finally disclaimed any enmity or rancor toward his murderers, forgiving them and wishing them every possible happiness. In that instrument, says Barrundia, 'se ve diáfana el alma, noble, tranquila, y generosa del héroe que descendia á la tumba.'

[XI-30] The remains lay in Costa Rica till, under a decree of Pres. Castro, Nov. 6, 1848, they were exhumed on the 27th, and after paying honors on the 4th of Dec., were surrendered, according to Morazan's wishes, to Salvador, by whose authorities they were received with high military and civic honors. *Costa R., Col. Ley.*, x. 368-9. Carrera afterward treated them with indignity. *Montúfar, Reseña Hist.*, iii. 656; iv. 219-20, 250-3; v. 650-2, 665-6; *Testam.*, in *Cent. Am. Pap.*, No. 2. Further particulars on

Morazan's rule in Costa Rica, and on his death and interment, may be found in *Nic., Correo Ist.*, May 1, 1849; *Niles' Reg.*, lxiii., 19, 176; *Nic., Registro Ofic.*, No. 2, 7; *Squier's Trav.*, ii. 444-9; *Wappäus, Mex. und Cent. Am.*, 361; *Reichardt, Cent. Am.*, 142; *El Progreso*, Oct. 3, 1850; *Crowe's Gospel*, 152-3; *Wagner, Costa R.*, 203-5; *Dunlop's Cent. Am.*, 217-22; *Belly, Nic.*, i. 73-4; *Wells' Hond.*, 484-93; *Salv., Diario Ofic.*, Feb. 14, 1875; *Robert Glasgow Dunlop, Travels in Central America*, London, 1847, 8°, 358 pp. and map, is a work purporting to be a journal of nearly three years' residence in Central America, and giving a sketch of the history of the republic, together with an account of the physical peculiarities, agriculture, commerce, and state of society. Much of the information therein is correct; but on historical and social topics the author, who was a Scotchman, displayed narrow-mindedness, and a judgment warped by British prejudices.

[XI-31] In the latter—his native state—his last will was published in the official journal in the column of varieties with offensive remarks. These notes, and indeed the whole conduct of the authorities, were disgraceful. *El Redactor, Ofic. de Hond.*, Sept. 15, 1843.

[XI-32] The priest Juan José Aycinena, who was the minister of state, hated Morazan with a deadly hatred from the day that his brother was defeated at San Antonio. This animosity became more intensified, if possible, upon Morazan contemptuously rejecting the dictatorship that was tendered him. Morazan said in his last will that his death was an assassination, as he had not been allowed any form of trial. But the worthy padre and his accomplice in iniquity, Carrera, attributed the crime to heaven, and made Rivera Paz, chief of state, accuse providence of aiding Vicente Herrera and Luz Blanco in its perpetration.

[XI-33] Honors were paid to his memory in the city of Guatemala in 1876; a statue was erected to him by Honduras in 1883. *La Regeneracion*, July 10, 1876; *Costa R., Mem. Relaciones*, 1884, 2-3, and doc. 1, 2.

[XI-34] Every abusive epithet was applied to him in the official press; tyrant, bandit, monster, were among the mildest. The aim was to make him appear in the eyes of the ignorant as the only obstacle to peace and reorganization; and the masses believed that he was the author of all the evils under the sun. *Gac. de Guat.*, Oct. 28, 1842.

[XI-35] The subscribing commissioners were Manuel F. Pavon, for Guatemala; Pedro Nolasco Arriaga, for Honduras; and Joaquin Duran, for the other two states. Inasmuch as Arriaga and Duran were Aycinena's and Pavon's humble satellites, the treaties might just as well have been signed Pavon, Pavon, Pavon. *Montúfar, Reseña Hist.*, iv. 129-33; *Guat., Recop. Leg.*, i. 395-408.

[XI-36] It is asserted that the Guatemalan government said that Costa Rica should appoint as her commissioner a resident of Guatemala. But José M. Castro, the young Costa Rican minister, thought differently.

[XI-37] They had led the revolt on the 11th and the following days. *Molina, Bosq. Costa R.*, 105.

[XI-38] So says Marure, now a confirmed 'conservador,' adding, 'y celebrados con entusiasmo en toda la república.' *Efem.*, 56.

[XI-39] The expeditionary force of 300 to 500 under Saget, on hearing of the trouble at San José, went on board their ships at Puntarenas, thence menacing the government. Subsequently arrangements were made for the surrender of the arms and disbandment of the men, but owing to misunderstanding were not carried out, and the expedition departed for La Libertad in Salv. on the *Coquimbo*. Costa R. afterward claimed the armament and ship, but Salv. invariably refused to return them, on the plea that they belonged to Morazan's family, 'como ganadas en ley de guerra por aquel caudillo.' Much indignation was felt in Guatemala and Honduras, and somewhat less in Nicaragua, against Salvador, because the latter, notwithstanding the treaties of 1840 and 1842, and the protest to the contrary, had allowed Saget, Cabañas, Barrios, and their companions, to reside in the state under the protection of its laws. The first two named governments saw that for all they had manœuvred to make of the executive of Salvador a mere submissive agent of the aristocracy, he had now emancipated himself from its control. *Montúfar, Reseña Hist.*, iv. 4-5, 115-33; *Molina, Bosq. Costa R.*, 105-6.

[XI-40] *Costa R., Col. Ley.*, vii. 404-16.

[XI-41] Art. 3 stated that the idea was not yet entertained, which later was formed, of declaring the state to be a sovereign and independent republic. Art. 5 resolved the question of

boundaries with Colombia and Nicaragua upon the principles sustained by Costa Rica. Arts. 4 and 10 established a fourth power under the name of Conservador, composed of no less than three councillors chosen by the people. Art. 9 places the legislative authority in an assembly of not less than 15 members. It does not establish two chambers. Art. 11 says that the executive office is to be exercised by a tribunal, out of four to be chosen by the electors. Art. 13 was condemned by the fanatics, though it merely allows religious toleration. The *Gaceta de Guat.* exclaimed, 'Ya volvemos á las andadas.' *Montúfar, Reseña Hist.*, iv. 383, 391-3, 417-18; *Molina, Bosq. Costa R.*, 106.

[XI-42] All these acts, dated respectively June 7-8, Sept. 13, 19, 1843, appear in *Costa R., Col. Ley.*, viii. 45-50, 63-7.

[XI-43] By the second jefe, Oreamuno, then in charge of the executive.

[XI-44] The govt was supported by the people and troops. Quiroz was promoted to gen. of brigade. *Molina, Bosq. Costa R.*, 106; *El Mentor Costarricense* gave an extensive account of the affair.

[XI-45] Pinto was an uncle-in-law of Castro, secretary-general, who under the circumstances surrounding the govt could not restore him to his office.

[XI-46] To give an idea of the situation: Cartago's deputies were three clergymen, Peralta, Campo, and Carazo. Heredia also sent the priest Flores. If the senators must be still more grave and circumspect, where could they be procured? *Montúfar, Reseña Hist.*, v. 173.

[XI-47] His successor was Juan Mora.

[XI-48] *Costa R., Col. L.*, viii. 352-3, 384-5.

[XI-49] He was a native of Cartago; a man of elegant manners, cultured without affectation, well informed on general subjects, and a highly respected citizen. Though not a member of the bar, he knew enough of law to successfully oppose the lawyers who constantly took advantage of the confusion existing in the old Spanish laws.

[XI-50] The chamber of deputies censured him, but his purpose of getting rid of the executive office was accomplished.

Costa R., Col. Ley., viii. 392-3; ix. 23-4.

[XI-51] A wealthy man and head of a large family which gave him much social importance. During his short administration he improved the public roads. *Molina, Bosq. Costa R.*, 107. He also gave impulse to education, though under the old ecclesiastical system. *Montúfar, Reseña Hist.*, v. 175.

[XI-52] Correspond. on the subject in *Id.*, 184-6.

[XI-53] Fault was found with the clause requiring the election by the people of all public functionaries, including the ministers of state and judges. It was said the people should not be molested with so many elections.

[XI-54] The manifesto issued by the leaders comprised the abolition of the constitution, and the framing of another better suited to the needs of the country, the immediate election of a new vice-jefe, who must be a native of Costa Rica, not under 25 years of age, married, or a widower with children, and possess property to the value of no less than \$10,000; one who had never been criminally punished, except by a pecuniary fine, nor attached for debts contracted in the state; he must have served in other public offices without taint, and must be in favor of independence and a separate government for the state. A new legislative chamber was to be immediately convoked, and the manner of election fixed by the chief; meantime, the present assembly was to continue its sittings. The chief was to select a good port on the north coast, and make a road from it to the capital with funds of the treasury. *Costa R., Pap. Suelos*, nos. 1, 2; *Dunlop's Cent. Am.*, 252-3.

[XI-55] His removal from the executive seat resulted from the intrigues of a few who knew that he could not be made a convenient tool.

[XI-56] It was divided into 14 sections, placed the executive in a president, and created a vice-president. The legislative authority was vested in a congress of a single chamber, presided over by the vice-president. The Roman catholic religion was the only one permitted, and it remained as that of the state and under its protection. *Costa R., Constit.*, 1847, 1-24; *Id., Constit. Polít.*, 1847, 1-118; *Id., Col. Ley.*, x. 1-56; *Astaburuaga, Cent. Am.*, 46-9.

[XI-57] Nov. 22, 1848, and promulgated by the executive on the 30th. A law regulating the election of the supreme authorities was passed Dec. 20th. *Costa R., Constit. Polít.* (ed. of 1850, 8°), 1-38; *Costa R., Col. Ley.*, x. 347-408, 422-52; *El Universal*, June 8, 1849.

[XI-58] *El Arco Iris*, Oct. 14, 1847. Alfaro was not pleased at being lowered to the second place, even though he had ex-officio the presidency of congress. He resigned on the 1st of Oct. of the same year, and Juan Rafael Mora became his successor. *Costa R., Informe Relaciones*, ap.; *Id., Col. Ley.*, x. 86-7, 160-1, 187-8.

[XI-59] Castro had enemies in San José. He was accused of bringing about Gallegos' dismissal. This assertion was repeated from mouth to mouth, and came to be believed by many. Moreover, some men that he looked on as his friends suggested to him unwise measures, with the view of damaging his administration. Unfortunately, congress began to show aristocratic tendencies, restoring the abolished compellations without opposition on Castro's part. The title of Excellency was voted to itself, the president, and the supreme court.

[XI-60] Castro and Mora differed on many points. The president's circle considered Mora a dangerous competitor. Congress treated Mora with marked indifference, though he had restored peace in Alajuela with only 200 men. He resigned the vice-presidency. An election being ordered, at the second attempt Manuel José Carazo, a friend of Castro, was chosen. Carazo was an able and well-informed man. He resigned the office on the 24th of Aug., but was reëlected Sept. 22d. *Id.*, 190, 306-7, 310-12, 327-9.

[XI-61] *Costa R., Inf. Relaciones*, 10-12, 23-5. In Nov. of the same year all political offenders were pardoned, and a war tax which had been levied on Alajuela was ordered refunded. *Costa R., Col. Ley.*, x. 269-90, 374-6, 410; *Id., Pap. Sultos*, nos. 3-5; *Molina, Bosq. Costa R.*, 107-8.

[XI-62] Congress took into consideration a number of petitions from influential sources highly commendatory of Castro's acts. Castro on the 16th of Nov. had been made a general of division. *Montúfar, Reseña Hist.*, v. 525-6, 530-8, 543-51.

[XI-63] The flag had five horizontal stripes, of which the centre one occupied one third the width of the flag, and the others

one sixth each. The centre stripe was red, the one above and the one underneath it were white, and the other two blue. *Costa R., Col. Ley.*, x. 354-6.

[XI-64] France sent in April 1847 the corvette *Le Génie* to make demands on behalf of her subject Thierriat, which Costa Rica settled by paying \$10,000.

[XI-65] Full particulars on the foreign relations are given in *Molina, Bosq. Costa R.*, 9-10, 61-2, 112-19; *Id.*, *Coup d'œil Costa R.*, 3; *Costa R., Col. Ley.*, x. 339-47; xii. 5-18, 94, 202-7; xv. 225; xvi. 195-6; xviii. 95-6, 171-88; xix. 107-9; xx. 24-8; xxiii. 184-200; xxiv. 171-97; *Id.*, de 1869, 216-22; *Id.*, de 1879, 61-3; *Id.*, *Gac. de Gob.*, Jan. 12, 26, Feb. 23, March 9, 1850; *Id.*, *Bol. Ofic.*, Dec. 8, 22, 26-7, 29, 1853; Jan. 5, Apr. 20, 1854; *Id.*, *Informes y Mem., Relaciones*, 1850-80; *Salv., Diario*, Nov. 5, 1875; *Cong. Globe*, 1860-1; *Smithsonian Rept*, 1863, 54; *Colombia, Diario Ofic.*, Feb. 14, 1874; *U. S. Govt Doc.*, 36th cong. 2d sess., sen. i., 19 vol. i.; *Id.*, 39th cong. 2d sess., For. Aff. (Mess. and Doc., Dept of St., pt ii.), 430-45; *Id.*, 40th cong. 2d sess., For. Aff. (Mess. and Doc., Dept of St., pt ii.), 277-80; *Id.*, 42d cong. 2d sess., H. Ex. Doc., 1 For. Rel., p. 7 (249-52); *Id.*, 42d cong. 3d sess., For. Rel., p. xxxv. (158-61); *Pan. Gac.*, Apr. 16, 1876, and numerous other works in various languages.

[XI-66] Nic. argued that the constitution of Costa R. of 1825 declared her boundary to be at El Salto, not at La Flor; to which Costa R. replied that the instrument alluded to was anterior to the federal decree, and therefore could not embrace Nicoya in Costa Rican territory; but after this decree the fundamental laws of Costa R. did take it in.

[XI-67] Nic. had demanded the restoration in 1843, which led to the making of a voluminous protocol, without any definitive result. *Montúfar, Reseña Hist.*, ii. 229-31; iv. 382-3; *Costa R., Col. Ley.*, viii. 3-4.

[XI-68] The treaty was made at San José, Costa R., on the 15th of Apr., 1858, and signed by José M. Cañas and Máximo Jerez, plenipotentiaries respectively of Costa R. and Nic., and by Pedro Rómulo Negrete, mediator on the part of Salv. The signatures of the secretaries of the three legations also appear to the instrument. The ratifications were made in due form, and exchanged by the two govts on the 26th of April, the same year. The treaty was approved by the Nicaraguan constituent congress

May 28th, and published by President Tomás Martínez and his secretary of state, June 4th. Under its 2d article the dividing line was to be as follows: Starting from the Atlantic Ocean, the line to begin at the extreme end of Punta de Castilla, at the mouth of the River San Juan, and continue on the right bank of that stream to a point in waters below the Castillo Viejo, at three English miles from the outer fortifications. Thence a curve was to commence, whose centre should be those works, and distant therefrom in all its course three English miles, and terminating at a point distant two miles from the bank of the river in waters above the fort. Thence the line should continue in the direction of Sapoá River, which empties into Lake Nicaragua, following a course invariably two miles distant from the right margin of the San Juan River, with its curves to its source in the lake, and from the right margin of the same lake to the said Sapoá River, where this line, parallel to said margins, ends. From the point where it may coincide with the Sapoá River, which must of course be two miles from the lake, an astronomical line should be drawn to the central point of the bay of Salinas on the Pacific Ocean, where the delimitation of the two contracting powers will terminate. The 6th art. gives Nic. the exclusive control over the waters of the San Juan River from its source in Lake Nicaragua to the point where it empties into the Atlantic Ocean; Costa R. retaining the right of navigation in said waters for trading purposes from the mouth of the river to a distance of three English miles from the Castillo Viejo. *Rocha, Cód. Nic.*, i. 137-41; *Costa R., Col. Ley.*, xv. 75-6, 182-8; *Id., Informe Gob.*, 1858, 12-13; *Id., Inf. Rel.*, 1860, 6; *Salv., Gaceta Ofic.*, June 7, 1877, 513-14; *El Nacional*, June 26, 1858, 10; *Peralta, Rio S. Juan*, 24-5; *Belly, Le Nic.*, i. 359-62.

[XI-69] The treaty, after being completed and published in the official journal of Nic., was communicated by both govts to the foreign diplomatic corps accredited near them, as well as to their own representatives abroad. All friendly nations came to look on it as an accomplished fact.

[XI-70] Ayón did not pretend to deny that the treaty had been concluded by his govt, and duly ratified by the legislative authority of the two republics. He alleged that the fundamental law of Nic. established the limits of the state, embracing within them the territory of Guanacaste; and that the treaty in question ignored the Nicaraguan constitution, which prescribed that an amendment of it by one legislature must be submitted to the next

for ratification; and this not having been done, there was a radical nullity. Costa R. replied that the legislative ratification in Nic. had been, not by an ordinary legislature, but by a constituent assembly fully empowered to amend the constitution or frame a new one. It had been called to make a new fundamental law, and therefore had a right to establish new boundaries. Moreover, that even if that assembly had not possessed constituent authority, but had been a merely ordinary congress, the fact still remained that a number of Nicaraguan legislatures had held the treaty to be valid and unobjectionable. Some attempts have been made in administration circles of Costa R., much against public opinion, to annul the treaty, in order to have for a boundary line the whole right bank of the San Juan, from Greytown or San Juan del Norte to San Carlos, and Lake Nicaragua to La Flor. Were this supported, and the treaty set aside, the questions between Costa R. and Nic. would assume a serious aspect. *Montúfar, Reseña Hist.*, ii. 231-4; *Ayon, Cuestion de Límites*, 1-26; *Id., Consid. sobre Límites*, 1-26.

[XI-71] Details may be found in *Nic., Mem. Relaciones*, 1871, 10-16, 29-39; *Id., Gaceta*, Oct. 3, 1868, May 4, 11, 1872, June 7, 1873; *Id., Seman. Nic.*, June 6, 1872; *Id., Correspond.*, 1872, 1-24; *Id., Continuacion de la Correspond.*, 1872, 1-16; *U. S. Govt Doc.*, H. Ex. Doc., 43d cong. 1st sess., pt 2, 732, 735, 739, 743; 44th cong. 1st sess., pt 1, 157, 168; *Costa R., Informe Rel.*, 1873, 1-6; *Id., Pap. Sueltos*, Doc. no. 15; *Salv., Gaceta Ofic.*, May 22, 1876; *Peralta, Rio S. Juan*.

[XI-72] Antonio Zambrana for Costa R., and Francisco Álvarez for Nic. *Pan. Star and Herald*, March 5, 1883; *Costa R., Gaceta*, Feb. 3, 1885; *U. S. Govt Doc.*, 48th cong. 1st sess., H. Ex. Doc., pt 1, 59-61.

[XI-73] An extract of that treaty is given in *Montúfar, Reseña Hist.*, i. 289-90.

[XI-74] The royal commission of Diego de Artieda Cherino, governor, captain-general of Costa R., issued in 1573, fixed the boundaries of the province from the 'embocadura del Desaguadero ó rio San Juan de Nicaragua hasta la frontera de Veraguas en el Mar Atlántico, y desde los linderos de Nicoya hasta los valles de Chiriquí en el Pacífico.' *Molina, Bosq. Costa R.*, 14; *Id., Costa R. y Nueva Granada*, 9-10, 16-35. Felipe Molina being in the service of Costa R., and intrusted with the defence of her interests, his assertions might be by some deemed

biased; but the testimony of Juarros, the historian of Guatemala, who wrote with the official docs before him, is not open to the same objection. He says, speaking of Costa R., 'sus términos por el mar del norte, son desde la boca del rio San Juan hasta el Escudo de Veraguas; y por el sur, desde el rio de Alvarado, raya divisoria de la provincia de Nicaragua, hasta el rio de Boruca, término del reino de Tierra Firme.' *Montúfar, Reseña Hist.*, ii. 230.

[XI-75] The territorial division recognized by him was that made in 1810, at which time no New Granadan authority had a footing in Cent. Am. territory. A representation of the ayuntamiento of Cartago to the Sp. córtes in 1813 says: 'Costa Rica tiene por límites de su territorio el rio de Chiriquí que la separa de la provincia de Panamá.' *Córtes, Diario*, 1813, xix. 404.

[XI-76] Contract of Col Galindo, as agent of the govt. *Molina, Bosq. Costa R.*, 100-1.

[XI-77] Copy of correspond. between the gov. of Veraguas and that of Costa R. *Montúfar, Reseña Hist.*, ii. 272-3; *Mosq. Correspond.*, 22-5; *Pan., Docs. Ofic.*, in *Pan. Col. Docs.*, no. 31, pp. 62, 66-70; *Id., Star and Herald*, Oct. 15, 16, 1880.

[XI-78] During the Walker war, a treaty was made at San José between P. A. Herran for Colombia, and Joaquin B. Calvo for Costa Rica, which does not follow the line on Molina's map. Modifications were made to it at Bogotá, and ratifications were never exchanged. Later on José M. Castro went to Bogotá and negotiated another treaty, which did not stipulate Molina's line. This treaty was not ratified by either govt. The next attempt was made by B. Correoso, on behalf of Colombia. His negotiations were mostly verbal, disregarding arguments for the straight line between Punta de Burica and the Escudo de Veraguas; and alleging that on the N., N. E., W., and N. W. of that line were Colombian settlements, which, under the constitution of his country could not be ceded. A treaty was entered into, however, which did not obtain the ratification of either government. In Costa R. it was considered a ruinous one. Correoso was charged in Colombia with having made a damaging arrangement. *Pan., Gaceta Istmo*, Oct. 20, 1841; *Id., Crón. Ofic.*, Feb. 6, 1853; *Id., Boletin Ofic.*, Dec. 25, 1870; *Pan., Gaceta*, June 15, 1871, June 19, 1872, Aug. 22, 29, Oct. 31, 1874, May 21, 1876, July 25, Aug. 4, 22, Sept. 26, Oct. 13, Nov. 10, 21, 1878, July 11, Sept.

12, Oct. 17, 28, 31, 1880; *Pan., Mem. Sec. Gob.*, 1879, 13-14, 35-42; *Colombia, Diario Ofic.*, Feb. 26, 1876; *Costa R., Mem. Rel.*, 1851, 5; *Id., Col. Ley.*, xiv. 54-5, 160-1; *Id., Informe Gobn.*, 1880, 2-4; *U. S. Govt Docs.*, H. Ex. Doc. 41, p. 64-5, vi. 35th cong. 2d sess.

[XI-79] Ratified by the executive, and sanctioned by the gran consejo nacional, of Costa R., Dec. 27, 30, 1880. *Pan., Gaceta*, Jan. 16, 1881.

[XI-80] Carazo, the vice-president, had done the same Oct. 26th. *Costa R., Col. Ley.*, xi. 216.

[XI-81] At the same time he was declared a benemérito, and the founder of the rep. of Costa R. *Id.*, 157-8, 224-5; *El Costaricense*, Nov. 17, 1849. The opposition, however, made severe comments on his policy as reviewed by himself. *Anot. á la renuncia*, in *Cent. Am. Miscel. Doc.*, no. 20.

[XI-82] Mora was a Costa Rican of rare intellectual powers, quite conversant with her affairs; a wealthy merchant, who had travelled abroad, and by his frankness and liberality won a well-deserved popularity. *El Costaricense*, Nov. 18, Dec. 1, 1849; *Costa R., Col. Ley.*, xi. 225-6, 234-5. Francisco M. Oreamuno was elected vice-pres. Jan. 30, 1850. *Id.*, 241-2; *Costa R., Gaceta*, Feb. 2, 1850.

[XI-83] *Nic., Cor. Ist.*, May 2, 1850. In an address Mora depicts the situation, and the attempts of Quiroz and others to disturb the peace in San José and Heredia, together with his measures to balk them. *El presid. de la rep. á la Nacion*, June 8, 1850.

[XI-84] The decree was issued at the Hacienda de Frankfort en las Pavas, and countersigned by Joaquin Bernardo Calvo, minister of govt. He based his action on the fact that congress having declined to accept his resignation, he was made responsible before God and the people of evils that might result from the existing order of things. *Costa R., Gaceta*, no. 165; *El Siglo*, March 10, 1852; *Costa R., Col. Ley.*, xii. 96-7.

[XI-85] José M. Castro, Bernardo Rivera, and Nazario Toledo. *El Siglo* (S. Salv.), March 4, 1852.

[XI-86] June 6, 1853, the president's salary was raised to \$5,000 a year. *Costa R., Col. Ley.*, xii. 236-7, 247-8; *Id., Gaceta*,

July 23, 1853; *Hond.*, *Gaceta Ofic.*, June 20, 1853; *Wagner, Costa R.*, 171-2, 506-8, 296-7.

[XI-87] Min. Calvo's rept to cong. May 16, 1854. The chamber on the 5th of June sanctioned all the acts of the govt, and passed a vote of thanks and congratulation to the president, 'por el acierto y prudencia con que la ha regido.' *Costa R., Mem. Rel.*, 15.

[XII-1] The following persons held the office ad int. before him: namely, Patricio Rivas, June 1839; Joaquin Cosío, July 1839; Hilario Ulloa, senator in charge, Oct. 1839; Tomás Valladares, senator, Nov. 1839; Patricio Rivas, Sept. 1840. *Marure, Efem.*, 64; *Montúfar, Reseña Hist.*, iv. 136; *Wells' Hond.*, 494.

[XII-2] There was much dissimilarity of views on political matters between the two men, though Castellon had contributed to Buitrago's election. Many bitter publications appeared subsequently from the pens of the two adversaries. *Perez, Mem. Hist. Rev. Nic.*, 48, 146.

[XII-3] They were not even allowed to enter the state, because of the treaty of Oct. 1842, signed by Pavon, Arriaga, and Duran.

[XII-4] The *Gaceta* eulogized him, and Pavon said that he was 'un hombre de orden que solo aspiraba á la justicia y al decoro.' Buitrago's position was becoming a difficult one. Morazan ruled in Costa Rica, had not a few friends in Nicaragua, and public opinion in the latter state favored a convention of states. On the other hand, he was anxious not to forfeit the good opinion of the nobles and nuns. Upon the news of Morazan's execution reaching Leon, he had it published with marks of satisfaction. He also objected, though not strenuously, to the landing of Saget and his companions, ycleped Coquimbos, in Salvador.

[XII-5] One of his first acts was to make Francisco Castellon his ministro general.

[XII-6] The new official journal, *Eco de la Ley*, in its first number declared that an Octavian peace reigned. And indeed, had Nicaragua been away from obnoxious influences, peace might have been maintained under republican institutions. But she was,

unhappily, surrounded by states where for a time brutal force held sway.

[XII-7] The claimants were Bridge, Glenton, and Manning. Full details on the claims of the last two are in *Nic.*, *Registro Ofic.*, 109-10, 121-3, 132-5; *Dunlop's Cent. Am.*, 55-6.

[XII-8] They embarked at San Juan del Norte on the 11th of March, 1844. Both have since figured prominently in political circles.

[XII-9] Selva had held the office by virtue of his position as senior senator to that date, when his senatorial term expired.

[XII-10] 223 votes were cast for him, the next highest receiving only 190. The other candidates were Juan José Ruiz, José Guerrero, Pablo Buitrago, Laureano Pineda, José Rosa Perez, G. Carcache, Patricio Rivas, and Rafael Machado. *Nic.*, *Registro Ofic.*, 47-8; *Sandoval, Revistas Polít.*, 19; *Dunlop's Cent. Am.*, 250.

[XII-11] To raise two loans of \$10,000 and \$30,000, respectively, and to regulate the financial system. Trial by jury was suspended. An amnesty was issued with many exceptions against the defenders of Leon. *Nic.*, *Registro Ofic.*, 69-70. Two portfolios were created; namely, that of war, intrusted to Lino César, and that of treasury, placed in charge of Jesus de la Rocha. José Montenegro was ministro general and of foreign relations. The administrative course of Fruto Chamorro, as supremo delegado of the late confederacy, was approved the 9th of May, long after Chamorro had vacated his office.

[XII-12] Under the decree of June 23d, the prisoners were confined respectively in Granada, Matagalpa, Acoyapa, San Fernando, and Nandayme, and subjected to prosecution by the courts. Many persons, specially the partisans of Cabañas, were given by Corral the advice—which was tantamount to an order—to quit Managua and not return. *Nic.*, *Registro Ofic.*, 90, 96-8, 101, 104.

[XII-13] The cause was the indignation at the sympathy of the government's agents for Malespin and Guardiola.

[XII-14] The treaty with Salvador bore date of May 6, 1845, and was ratified by the Salvadoran chambers June 3d.

[XII-15] The municipal authorities and citizens of the place, by an acta on the 29th of July, authorized Valle to take such action as he deemed best to upset the existing government and restore constitutional order. *Montúfar, Reseña Hist.*, v. 139-40; *Nic., Registro Ofic.*, 138-9.

[XII-16] Salvador was for a time suspected of connivance with Valle, but she proved the contrary.

[XII-17] Director Sandoval called them assassins and robbers.

[XII-18] The western department and Managua were mulcted in \$12,000 as punishment.

[XII-19] His official reports of July 8th and 17th are textually given in *Montúfar, Reseña Hist.*, v. 162-4; *Nic., Registro Ofic.*, 128-9, 133-4.

[XII-20] It is inexplicable how these two men could serve in the same cabinet, unless under some one of very superior mind and character, which Sandoval certainly did not possess. Jerez was a democrat, a friend of Central American union, and an admirer of Morazan. Buitrago was the opposite—a conservative, separatist, and opponent of Morazan.

[XII-21] Leaders surrendering were to be dealt with by the civil courts; otherwise, if captured, would be tried under military laws.

[XII-22] Every one refusing to return was heavily fined. Chief-of-bureau E. Castillo's instructions to the sub-prefect, in *Montúfar, Reseña Hist.*, v. 293.

[XII-23] Decree of Oct. 30, 1842. *Nic., Registro Ofic.*, 126, 128, 138, 143.

[XII-24] Official reports of Dec. 6th and 8th to the min. of war of *Nic., Id.*, 157-8; *El Tiempo*, March 12, 1846.

[XII-25] 'En cuanto al pasaporte, el Gobierno Supremo ama y desea mucho la felicidad del Estado, y no podría privarlo de su mas fuerte apoyo.' *Montúfar, Reseña Hist.*, v. 284-5; *Nic., Registro Ofic.*, 290.

[XII-26] He followed the example of Carrera in Guat.

[XII-27] Sandoval surrendered his office June 25th to the legislature in order that it might freely adjudicate upon his official acts. Once approved, he resumed the executive duties Sept. 2d.

[XII-28] Dec. 12th it voted an amnesty law with a number of limitations; namely, against persons entering the state with arms to disturb the peace; and against the guilty of murder or other atrocious crime. The govt issued, Jan. 9, 1847, a supplementary decree of amnesty. *Sandoval, Revista Polít.*, 57-9. *Nic., Registro Ofic.*, 390, 401, 407-8; *Montúfar, Reseña Hist.*, v. 298-9.

[XII-29] Sandoval returned to Granada and was received with great honor.

[XII-30] July 16, 1847. This measure awakened much acrimony outside of the benefited department.

[XII-31] *El Razonador*, Dec. 29, 1847.

[XII-32] See *Hist. Cent. Am.*, ii. 599-607, this series. In Nov. 1803, the whole north coast, including the island of San Andrés, and the Mosquito Coast extending from Cape Gracias á Dios to the Chagre River, was placed under the viceroy of Nueva Granada; but five years later the transfer was annulled, and the coast of Mosquitia restored to Nicaragua, to which it had been annexed by royal order of March 31, 1803.

[XII-33] He based his pretension on the following incident: The Caribs on the Trujillo line rebelled in 1807 betaking themselves to Mosq. territory, where they were captured by Sp. troops and brought back, together with some Mosquitians, as prisoners. King Stephen, successor to George, the man crowned by the British, threatened to burn Trujillo and to wage a border warfare if his subjects were not forthwith returned. The president of Guatemala, for prudential reasons, had the prisoners sent back. *Am. Cent., Reclam. de Interven.*, 8.

[XII-34] Altogether about 76,000 square miles. *Strangeways' Mosq.*, 4-5. Lord Palmerston, in his instructions to Brit. represent. in Nueva Granada and Cent. Am., spoke of a coast line of about 720 statute miles as belonging to Mosq. Squier, *Cent. Am.*, 629, has it that from 200 to 500 miles in length, and undefined breadth, have been claimed.

[XII-35] Capt. Geo. Henderson took some in 1807. The chiefs expected higher marks of regard, but had to be contented with what they got. *Henderson's Brit. Hond.*, 168, 204.

[XII-36] That was done, it is presumed, after the death of Stephen, George's successor, who was ruling in 1807. The govt, at the time of their going to Belize, was in charge of a sort of regency formed of the three principal chiefs, who divided the country into three separate departments. The first, extending from Roman River, near Cape Honduras, to Patook, was intrusted to Gen. Robinson. The second, from Caratasca, or Croata, to Sandy Bay and Duckwarra, including all the Mosquitians proper, was in charge of a brother of the late king, who bore the title of admiral. The third, from Brancmans to Rio Grande, including various tribes, was under Don Cárlos, called the governor. The three head chiefs had sub-governors. But the small colonies of Zambos, at Pearl Cay lagoon and Blewfields, could choose their own governors. *Roberts' Narr. of Voy.*, 146-7; *Stout's Nic.*, 168-71.

[XII-37] A regalia consisting of a silver-gilt crown, a sword, and sceptre of moderate value had been provided for the farce. The emblems of royalty were confided to the custody of Jack, an old negro, 'who, with wise precaution, kept them carefully concealed.' *Squier's Cent. Am.*, 640-1.

[XII-38] Col Arthur, the superintendent, gave him much good advice to guide him in his government. *Arthur's Letter*, in *Mosq. Doc.*, 122-3; *Disputes with Am.*, in *Brit. Quart. Rev.*, xcix. 242-3. But the good advice was lost upon his swarthy majesty. It is understood that every new king had been to Jamaica to receive a commission from the Brit. govt, his subjects refusing him recognition as their sovereign till he had done so. *Bonnycastle's Sp. Am.*, i. 171-2.

[XII-39] He became a confirmed drunkard. *Roberts' Narr. of Voy.*, 148-9.

[XII-40] Some parties accused of the crime are said to have suffered death.

[XII-41] *George Henderson's British Honduras*, London, 1811, 8°, 236 p., is a diary of the author's trip to and from the Mosquito shore, which also furnishes an interesting account of Belize and her resources, climate, etc., together with a map of Honduras, and ends with sketches on the manners and customs of

the Mosquito Indians. *Thomas Strangeways' Sketch of the Mosquito Shore*, Edinburgh, 1822, 8vo, 355 p. The author, who calls himself a K. G. C., captain of the first native Poyer regiment, and aide-de-camp to his Highness, the cacique of Payais, gives with a portrait of that cacique, Sir Gregor MacGregor, a historical preface, and a map of Mosquitia, and the Poyais territory. The book also contains a descriptive sketch of that country, its productions, mode of cultivation, and other facts, all compiled for the special use of settlers. *Peter F. Stout's Nicaragua, Past, Present, and Future*, Phila., 1859, 12°, 372 p. With the exception of a cursory glance at affairs in Mosquito, on interoceanic communication, and ancient history of Mexico, this work is confined to the resources, history, and general features of Nicaragua, the chief object being to furnish a general description of the country rather than its history. The author was U. S. vice-consul, and his opinion on questions between his country and Great Britain might be deemed by a subject of the latter not wholly impartial. *Orlando W. Roberts' Narrative of Voyages and Excursions on the east coast, and in the interior of Central America*, Edinburgh, 1827, 16°, 302 p., preceded by a map of a part of Cent. Am. showing the route from the Atlantic to the Pacific, via the river San Juan and lakes Nicaragua and Leon, with an index and a preface by Edward Irving, is a little book descriptive of the author's journey up the San Juan River to Leon through Lake Nicaragua, and of trading voyages in which he was many years engaged among the Indians of Hond., Nic., and Costa R. His opportunities for observation seem to have been good, and his manner of setting forth the information thus obtained is clear and apparently reliable. On Mosquitia and her govt and people he gives much that is really interesting and useful. *R. H. Bonnycastle's Spanish America, or a descriptive, historical, and geographical account of the dominions of Spain*, London, 1878, 8°, 2 vol., pp. xxix. 336, v. 359, map and engraving, is mostly a compilation, poor in style, divided into two parts. The first treats of the Spanish dominions in North America; the second of those in South America. Everything is treated in a cursory manner, and the part relating to Cent. Am. and the isthmus of Panamá is meagre and trifling.

[XII-42] More details in *Squier's Cent. Am.*, 641-3; *Mosquitoland*, 31-3, 38-40, 47-50, 225-9; *Nic. Nueva Discusion*, 6; *Crowe's Gospel*, 208-10; *S. Juan, Ocup.*, 33-5, 45-9; *Niles' Reg.*, lxiv. 130; *Frisch, Staaten von Mex.*, 94; *Reichardt, Cent. Am.*, 134, 140-1, 208-11.

[XII-43] At the court of Gracias á Dios, Apr. 19, 1820. The grantee called himself 'his Highness the cacique of Poyais,' and claimed absolute dominion over the Poyer district on the extreme west of Mosquitia, including the Rio Tinto.

[XII-44] The plan comprised well-equipped regiments of infantry and cavalry, a theatre and theatrical company, a band, and paper currency. *Crowe's Gospel*, 207-8; *Mosq.-Küste und Texas*, 28; *Mosquitoland*, 34-8; *Quart. Rev.*, xxviii. 160-1; *Eco, Hisp.-Am.*, July 31, 1860.

[XII-45] This settlement was called Fort Wellington, and was brought to ruin by a succession of calamities, including shipwrecks. *Mosq.-Küste und Texas*, 29-33; *Young's Mosq. Shore*, 53-9, 65-71.

[XII-46] It has an abundance of mahogany, rosewood, caoutchouc, and other valuable trees, and is capable of producing cotton, sugar, rice, indigo, and most of the tropical staples.

[XII-47] Slavery was abolished in 1841. *Nic., Gaceta*, Feb. 10, 1866.

[XII-48] There was neither church nor pastor in the place. *S. Juan, Ocup.*, 13-15; *Squier's Cent. Am.*, 661-2.

[XII-49] Macdonald answered Aug. 13th that the object of his visit to the coast had been to convey a message of H. B. M. to her ally the sovereign of the Mosquito nation, and to ascertain by his own observation the true boundaries of the Mosquito dominions, upon which point he wished to be enlightened by Quijano. He made further demands for a recognition of his

demand, but the Nicaraguan official invariably returned a refusal. *Mosquitoland*, 29, 223-5; *Niles' Reg.*, lxi. 98; lxii. 64, 275; lxiii. 19, 194; *U. S. Govt Doc.*, H. Ex. Doc. 75, vol. x., 31st cong. 1st sess.; *Young's Mosq. Shore*, 33-4.

[XII-50] An English writer says: 'This farce hardly seemed consistent with the dignity of a British officer, gov. of a settlement.' *Dunlop's Trav.*, 215-16. Crowe, also an Englishman, declares it to have been an infamous act. *Gospel*, 212. It was not disavowed by the Brit. govt. *Squier's Travels*, ii. 449; *Nouv. Annales Voy.*, xciv. 251-2.

[XII-51] He was left on a desert island on the coast. *Marure, Efem.*, 54; *Montúfar, Reseña Hist.*, iii. 612. Macdonald himself on the 15th made his acts known to the govt of Nic., alleging that he had been specially requested by many persons of San Juan to remove Quijano. The latter was undoubtedly a bad man, but no foreign authority had any right to interfere with him.

[XII-52] Consul Chatfield claimed that Quijano was removed from Mosq. and not Nic. territory; that he had himself notified the govt of Cent. Am. of the existence of the Mosq. nation, and that Great Britain would not look with indifference upon any usurpation of the territory of a monarch with whom she had close relations; that Spain had recognized the Mosq. nation when Prince Stephen visited San Salvador and Guatemala. His letter was dated Oct. 24, 1842. Further correspondence followed between Nic. and Chatfield without the former giving way to his pretensions. The whole correspond. may be seen in *Mosq. Doc.*, 5-23; *Nic., Cor. Ist.*, Sept. 26, 1850; *Montúfar, Reseña Hist.*, iv. 98-111.

[XII-53] In a treaty with Thomas Lowry Robinson, signed in Comayagua Dec. 16, 1843. *Montúfar, Reseña Hist.*, iv. 112-14. The aristocrats of Guat. wanted a protectorate of Great Britain over Cent. Am., and it was believed in Nic. for a while that Costa R. had given way to the influence of Pavon, Chatfield, and J. J. Flores of Ecuador, and had accepted the scheme. Chatfield having concluded, on the 26th of Nov., 1849, a treaty with Costa R., attempted on the strength of it, on the 1st of Dec., to dictate to Nic. He said that differences between Nic. and Costa R. must be amicably arranged in the understanding, that other means would not be looked on with indifference by Great Britain.

[XII-54] That was pursuant to orders from Lord Palmerston, in which for the first time a protectorate over the Mosquito shore was asserted by Great Britain. Chatfield and Walker had claimed rights over the entire eastern coast, from Cape Honduras to Chiriquí Lagoon, an extent of 700 miles, but Palmerston set the limits 'from Cape Honduras down to the mouth of the river San Juan.' Meantime the Nicaraguan authorities had obtained, Oct. 28, 1847, from the Princess Inez, believing her the heir of Robert Charles Frederick, a full recognition of the authority of Nic. over the shore of Mosq., and her command to all interloping foreigners to leave the country. The British officials of course paid no heed to this arrangement. *Squier's Cent. Am.*, 644-6; *Salv., Gaceta*, March 15, 1850.

[XII-55] *Squier's Travels*, i. 78-80; *Morelet, Voy.*, ii. 304; *Edinb. Rev.*, no. 211, 144; *Niles' Reg.*, lxxiii. 273; *Tucker's Monroe Doctrine*, 46-7, 52-4.

[XII-56] But the Nicaraguans never relinquished their claim of sovereignty over the port, nor even by implication recognized the king of Mosquito. *Nic., Manif. sobre Trat.*, 1-13; *Castellon, Doc. Rel.*, 27-8; *Nic., Doc. Dipl.*, 32-9; *Guerrero, Manif.*, 1-7; *Stout's Nic.*, 278; *El Siglo*, Nov. 22, 1852; *Nic., Gaceta Gob. Supr.*, Oct. 14, Nov. 4, 25, Dec. 2, 1848; *Niles' Reg.*, lxxiv. 100; *Squier's Cent. Am.*, 647; *Id., Trav.*, i. 101-2.

[XII-57] The other articles refer to the construction of an interoceanic communication, either in the form of a canal or of railroads, securing the neutrality of interoceanic ways. *Annals Brit. Legis.*, 97-110, 239-41; *Nic., Nueva Discov.*, 1-44; *Montúfar, Reseña Hist.*, iv. 87-91; *Costa R., Gaceta*, March 4, 1854; *Abbott's Mex. and U. S.*, 340-2; *Molina, Bosq. Costa R.*, 111; *Polynesian*, vi. 165-6; vii. 46; *Nic. y Hond., Doc.*, 122-5; *Am. Quart. Reg.*, iii. 310-13; *Brit. Quart. Rev.*, xcix. 237-70; *El Nacional*, July 31, 1858; *Nic., Seman Nic.*, Feb. 14, 1874; *Hunt's Merchants' Mag.*, xxiii. 109-11; *Wells' Walker's Exped.*, 125-33; *Caicedo, Lat. Am.*, 73-5.

[XII-58] The local chief was prevailed on to accept this arrangement with a pension of \$5,000 a year, during ten years, that is to say, till 1870, payable by the suzerain, but the last chief died in 1864 or 1865, and Nic. has never recognized his successor. *Nic., Gaceta*, Dec. 23, 1865; *Encyclop. Brit.*, xvii. 493; *Nic., La Union*, June 15, 1861; *Hond. Gaceta*, Feb. 20, 1861; *Rocha, Cód. Nic.*, i. 118-27, 132; *Belly, Nic.*, i. 297-301; *Nic.*,

Conv. Mosq., 1-8; *Pim's Gate of the Pac.*, 409-12. Further details on the Mosq. question, giving diplomatic correspondence and parliamentary discussions, in *Hansard's Parl. Deb.*, cxlv. 1003-7; *Annals Brit. Legis.*, x. 129-41; also in *U. S. Govt Doc.*, Ex., Sen. and House, which are too numerous to quote here; and likewise in *U. S. Cong. Globe*, 1855-6, 1857-8, 1859-60; *Diario de Avisos*, Apr. 24, 1857; *Nic.*, *Boletin Ofic.*, Jan. 23, March 4, 1857.

[XII-59] *Rocha*, *Cód. Nic.*, ii. 21-2; *Pan. Star and Herald*, Mar. 26, 1884; *Nic.*, *Mem. Rel.*, 1867, 3-12.

[XII-60] Autograph letters were exchanged in 1848, between Pres. Herrera of Mex. and Director Guerrero. *Nic.*, *Gaceta Gob. Supr.*, Sept. 16, 1848.

[XII-61] Ratified by *Nic.* March 21, 1851; *Rocha*, *Cód. Nic.*, i. 99, 103; *Nic.*, *Trat. de Paz*, etc., 1-13.

[XII-62] By Cardinal Antonelli, for the pope, and Fernando de Lorenzana for *Nic.* The treaty was published in the latter country as a law Aug. 28, 1862. *Nic.*, *Gaceta Gob. Supr.*, Oct. 7, 1848; *Rocha*, *Cód. Nic.*, i. 79, 132-7.

[XII-63] Full particulars will be found in *Id.*, 137-43; *Nic. Trat. etc. entre Nic. y Hond.*, 1-8; *Id.*, *Gaceta*, 1853-74, passim; *Id.*, *Col. Doc. y Acuerdos*, 1850-1872, passim; *Id.*, *Trat. con Costa R.*, 1-7; *Costa R.*, *Inf. Rel.*, 1876, 5-11; 1878, 1; 1880, 3-4; *Salv.*, *Gaceta*, Aug. 12, 1853, Oct. 26, 1876, March 21 to April 20, 1879, passim; *Nic.*, *Mens. del Presid.*, 1879, i.-v. 1-25; and numerous other authorities.

[XII-64] They first endeavored to regard the alleged Mosquito authority, but finally treated it as a mere fiction. *Squier's Cent. Am.*, 652.

[XII-65] Municipal ordinances for the place which had now taken the name of Greytown. *Reichardt*, *Cent. Am.*, 241-6, 251; *Munic. Ordinances*, in *Cent. Am. Affairs*, no. 4, 1-10.

[XII-66] He is said to have been acting under improper influences. *Squier's Cent. Am.*, 653.

[XII-67] The town authorities had refused to pay an indemnity. This was the first direct aggression by the U. S. in Cent. America. *Nic.*, *Doc. Diplom.*, 7-12; *Costa R.*, *Gaceta*, June 17, 22, 29, 1854; *Salv.*, *Gaceta*, Oct. 12, 1854; *Tribune Alm.*,

1857, 31; *U. S. Govt Doc.*, 33d cong. sess. 1, Sen. Doc. 8, vol. iv.; Doc. 85, vol. xii.; 126, xvi. 31 pp.; *Id.*, H. Ex. Doc. 1, vol. i., pt ii., 385-6.

[XII-68] *Lévy, Nic.*, 335. *Pablo Lévy, Notas Geográficas y Económicas sobre la República de Nicaragua*, Paris, 1873, Roy. 8°, 627 pp. and map, is a treatise on Nicaragua and its inhabitants. Beginning with an historical résumé of ancient and modern Nicaragua, it gives a review of the topography, climate, natural productions, government, people, and their institutions. The writer's information on the country's physical peculiarities may be set down as useful, though some deficiency is noted; but that on the political and administrative branches is unreliable, showing him to have had but little knowledge of Central American politics. He evidently had not the documents upon which to form a correct judgment. The question of a canal across the isthmus of Nicaragua is also reviewed, and a résumé of its history given. The last general treaty with the U. S. was negotiated in 1867. There was also a convention for the extradition of criminals in 1871. Nic. has made arrangements to pay Am. claims against her, and on her part asked compensation for the damages caused by the bombardment of San Juan, which the Am. govt refused. *Perez, Mem. Camp. Nac.*, 18-19; *Rocha, Cód. Nic.*, i. 93; *Nic., Trat. de Amistad, etc., entre Nic. y los EE. UU.*, 1-16; *San Juan del Norte, Las Cenizas*, 1874, 1-12; *Lévy, Nic.*, 235-9; *Salv., Diario Ofic.*, Nov. 10, Dec. 22, 1878; *Berruel, Frères et Cie, Petition*, 1-20; and a multitude of U. S. govt docs., and other papers.

[XII-69] Treaty with Belgium, May 18, 1858; with France, Apr. 11, 1859; with G. Britain, Feb. 11, 1860; with Italy, March 6, 1868; and a consular convention made in 1872; with Perú, 1879. *Trat. de Amistad entre Nic. y la Bélgica*, 1-15; *Id., entre Nic. y la Francia*, 1-26; *Nic., Ley. Emit.*, 11-30; *Rocha, Cód. Nic.*, 106-18; *Rouhaud, Régions Nouv.*, 365-86; *Trat. de Amistad, etc., entre Nic. y S. M. B.*, 1-15; *Annals Brit. Legis.*, ix. 378-81; *Trat. de Amistad, etc., entre Nic. y el reino de Italia*, 1-17; *Convention Consular entre Nic. y el reino de Italia*, 1-19; *Nic., Gaceta*, Sept. 7, 14, Oct. 26, Nov. 2, 1872; *Salv., Diario Ofic.*, Oct. 29, 1879.

[XII-70] Damages for the injured Germans \$30,000, and a fine of \$8,000, besides the punishment of the official accused of insulting German dignity. Thus the superior force dictates unjust terms to the inferior.

[XII-71] His term began Apr. 1, 1849.

[XII-72] He was tried by court-martial, sentenced, and shot June 17th. *Nic., Boletin Ofic.*, June 15-28, July 4, 5, 12, 1849; *Squier's Trav.*, i. 121, 166-72, 295-9; *Cent. Am. Miscel. Doc.*, no. 7. Muñoz was rewarded with a gold medal, and the friends of the soldiers who perished received pensions. *Rocha, Cód. Nic.*, i. 216-17.

[XII-73] Recognized by the assembly March 14th as duly elected. *Nic., Cor. Ist.*, March 20, 1851; *El Siglo*, March 28, 1851.

[XII-74] Nov. 10, 1851. Muñoz had been declared a traitor and deprived of his military rank. He was allowed to leave *Nic.*, and went to reside in Salv. Chamorro was made commander of the forces. *Nic., Dec. y Acuerdos*, 1851-3, 92-6, 116-18; *Hond., Gaceta Ofic.*, Jan. 15, 1852.

[XII-75] A new constituent assembly was convoked May 13, 1853. *Nic., Gaceta Ofic.*, May 28, 1853.

[XII-76] 'Se denominará República de Nicaragua.' *Rocha, Cód. Nic.*, i. 94-7; *Costa R., Gaceta*, March 4, Apr. 1, 1854; *Guat., Gaceta*, Apr. 7, 21, 1854; *El Eco Hisp.-Am.*, May 15, 1854.

[XII-77] In a circle bordered on the inside with two sprigs of laurel, was a volcano with its base laved by the two oceans. In the upper part of the volcano was a civic crown with the words Libertad, Orden, Trabajo. Around the circle, República de Nicaragua. The national flag was given three horizontal stripes, the centre one white, with the coat of arms in the middle; the upper one yellow, and the lower, 'nácar,' or light blue. Merchant vessels were to use the same flag, without the coat of arms, and had on the centre stripe República de Nicaragua, in golden letters. *Rocha, Cód. Nic.*, i. 163. During the Walker régime, 1856-7, his flag had two blue stripes divided by a white one double the width of the blue, and in the centre of the white a lone red star. *Stewart's Filibusters*, 12-13.

[XII-78] Among the members elected were Castellon, Jerez, Guerrero, diputados propietarios, and F. Diaz Zapata, suplente, from the western department. The govt reported them out of the state, having been expelled for their revolutionary attempts. The assembly on the 1st of March declared them disqualified to take

their seats. *Nic.*, *Gaceta Ofic.*, March 4, 1854; *Perez, Mem. Hist. Rev. Nic.*, 12.

[XII-79] It had 104 articles, and somewhat restricted the right of citizenship, created a single chamber, composed of an equal number of senators and representatives; priests were excluded from these positions. The terms of the president, senators, and representatives were to begin March 1, 1855, and last four years. After the expulsion of the filibusters, a junta de gobierno, composed of the leading men of the two opposing parties, was established, which declared the constitution of 1838 in force, and a constituent assembly was convoked, its members being from among the best and most talented men of the republic. *Id.*, 23-4; *Nic.*, *Semanal Nic.*, Apr. 17, 1873. The powers granted the executive, which were included in the fundamental law of 1854, though with the additional clause that when using them he should report the fact to the next legislature, greatly alarmed the opposition. *Perez, Mem. Hist. Rev. Nic.*, 24.

[XII-80] In Nov. 1853. *Id.*, 9-12; *Guat.*, *Gaceta*, Dec. 16, 1853; Jan. 6, 1854; *Salv.*, *Gaceta*, Dec. 30, 1853; *Hond.*, *Boletin Ofic.*, Dec. 5, 1853; *Costa R.*, *Boletin Ofic.*, Dec. 15, 1853; *Id.*, *Gaceta*, Dec. 12, 19, 24, 1853; Jan. 15, 30, 1854.

[XII-81] He thought Chamorro was evading the obligation of Nicaragua to aid Honduras with troops for the war with Guatemala.

[XII-82] His manifesto of June 12th was moderate in tone but significant in its substance. It promised a liberal policy, and to reconstruct, if possible, the federal republic. *Wells' Hond.*, 508-9; *Belly, Nic.*, i. 268-70; *El Rol*, Oct. 6, 1854.

[XII-83] They tendered their mediation. *Perez, Mem. Hist. Rev. Nic.*, 67-75.

[XII-84] Early in Jan. 1855, J. Trinidad Muñoz was made general-in-chief, Jerez having been disabled by a severe wound. *El Rol*, Feb. 9, 28, 1855; *Costa R.*, *Boletin Ofic.*, Feb. 28, 1855. The successes of the legitimist party—so called because of the motto on its colors, Legitimidad ó muerte—were obtained by Gen. Ponciano Corral and his subordinates, Chamorro being too ill for service in the field. *Perez, Mem. Hist. Rev. Nic.*, 30, 42-3, 108-20; *Eco Hisp.-Am.*, Apr. 30, 1855.

[XII-85] In the hacienda of Quismapa, south of Granada, March 12, 1855. Chamorro was a wealthy citizen, born in Granada. A brave, resolute man, firm in sustaining his political principles, but lacking discrimination, and easily duped. *Perez, Mem. Hist. Rev. Nic.*, 126; *Astaburuaga, Cent. Am.*, 67.

[XII-86] Perez, *Mem. Hist. Rev. Nic.*, 128, considered the act of the assembly as a serious blunder.

[XII-87] His propositions were: Corral and himself were to constitute themselves a junta de gobierno, and direct public affairs until a constitutional president could be elected. If Corral objected to this arrangement, he, Muñoz, would recognize the legitimate government, provided Corral became the head of it.

[XII-88] Facundo Goñi from Spain, and John H. Wheeler from the U. S. Wheeler was cordially received in Granada, but afterward was abhorred by the Nicaraguans.

[XII-89] Being too limited in its scope, the measure produced no good effect.

[XII-90] He had gone direct to Granada, saying nothing to Corral from Muñoz, which made the former suspect that Muñoz was deceiving him.

[XII-91] Ephraim George Squier, whose works I have often quoted, was born in Bethlehem, in the state of New York, June 17, 1821, and devoted most of his life to civil engineering, journalism, and the pursuit of science, winning for himself a distinguished name as an archæologist and author. His first distinction was awarded him for his labors on the archæology of the Mississippi Valley and the state of New York. Having been appointed in 1849 chargé d'affaires to the states of Central America, he employed much of his time in gathering data upon those countries, which he afterward embodied in several books. In 1853 he was engaged in the survey of a route across Honduras, and organized a company for the construction of an interoceanic railway. In 1863 and the following year he was employed by the U. S. govt as a commissioner in Peru for the adjustment of claims against that republic, and then devoted several months to the exploration of ancient monuments in that country. In 1868 he was for a time U. S. consul-gen. to Hond. He visited Europe several times both for pleasure and business. In addition to the works that will be herein enumerated, he contributed many papers on

antiquities and other subjects to American and European scientific periodicals. The following list comprises his principal works, most of which have been translated into several languages: *Monuments of the Mississippi Valley*, being vol. i. of the Smithsonian Contributions to Knowledge; *Aboriginal Monuments of the state of New York*, in vol. ii. of the Smithsonian Contributions; *Antiquities of the state of New York*, with a supplement on the antiquities of the west; *The Serpent Symbol, or Worship of the Reciprocal Principles of Nature in America*; *Waikna, or Adventures on the Mosquito Shore*, under the pseudonym of Samuel A. Bard; *Question Anglo-Américaine*; *Report of the survey of the Honduras interoceanic railway*; *Monograph on authors who have written on the aboriginal languages of Central America*; *Tropical fibres and their economic extraction*; *Is cotton king? Sources of cotton supply*; *Incidents of Travel and Explorations in the land of the Incas*. Other works of this author quoted in my volumes on Central America are: *Notes on the states of Honduras and Salvador*, with maps and illustrations, which gives valuable data on those countries. In treating of diplomatic relations he expatiates on manifest destiny and British intrigues, his conclusions not being probably palatable to the subjects of the British crown, and others disposed to oppose the absorption of more territory, or the exercise of exclusive influence by the U. S. The maps drawn by Hitchcock under Squier's directions are the best that to that time had been published. *Travels in Central America, particularly in Nicaragua*, N. Y., 1853, 8vo, 2 vol., pp. 424 and 452, maps and cuts, contains a description of aboriginal movements and scenery, together with a concise account of the history, agricultural and other resources, of Nicaragua, the language, manners, and customs of the people, with illustrations of the principal buildings, towns, ports, etc. The work also describes at length the proposed canal route, setting forth its advantages. The author had every facility as U. S. chargé d'affaires to obtain the most exact data, and used them conscientiously and with marked ability. *Nicaragua, its people, scenery, monuments, and the proposed interoceanic canal*, Lond., 1852, N. Y., 1856, 2 vol. This work is similar in all respects to—in fact a reprint of—*Travels in Cent. Am.* Another edition under the aforesaid title appeared in New York, 1860, 1 vol. of pp. 691, which with the exception of about 18 pp. in the append., and a few more illustrations, was similar to *Trav. in Cent. Am.* *The States of Central America*, N. Y., 1858, 8vo, p. 782, maps and illust. The author issued in 1855, with the title of *Notes on Central America*, an 8vo vol. of 397 pages, with

maps and cuts, intended to serve as a basis for this more extensive one, which treats of the physical peculiarities, population, productions, commerce, and other resources, political organization, aborigines, etc., of the country in general, and of the states separately, and also of Belize, the Bay islands, and Mosquito shore. Squier was evidently conversant with his subject. The style is vivid and interesting, as well as instructive, and the statements, as a rule, worthy of acceptance. In his treatment of diplomatic affairs between Great Britain and Cent. Am., in which his own country was interested on the side of the latter, he espouses the Central American side with so much warmth as to awaken a suspicion that his judgment may have been warped by his patriotism. The question of an interoceanic railroad having engrossed public attention since the publication of this work the author felt justified in reproducing, under the title of *Honduras*, Lond., 1870, 12º, 278 pp., with a map, in a more compact and accessible form, a description of this country. With the exception of a fuller information on the route, and its alleged advantages over all others, and an appendix relating to immigration, the contents of the book have been fully treated in the bibliographical notice on the *States of Cent. Am.*

Report to the Directors of the Honduras Interoceanic Railway, Lond., 1858, fol., 102 pp. and map. Four years previously a preliminary report was published on this subject, and in 1857 another containing no additional information, but in the appendix were given further correspondence and the charter in full. The present work gives a complete report with all details, presenting valuable statistics, and evidences of the feasibility of the proposed railway. *Compendio de la Historia Política de Centro-América*, Paris, 1856, 12º, pp. 7-114, as the title implies, is an outline of the political history of Central America from 1821 to 1851, that is to say, a sketch of the revolution and struggle between republicans on one side and monarchists on the other, by which Central America was annexed to Mexico, and of the subsequent wars between the federalists and the oligarchs, which culminated in the destruction of the federation, and the ultimate rise to unrestricted power of the latter with Carrera as their chief as well as tool. *Translation with notes of the letter of Don Diego de Palacio (1576) to the crown of Spain on the provinces of Guatemala, San Salvador, etc.*, N. Y., 1860, sq. 8º, pp. 132, is a report which in Spanish bears the title of *Carta dirigida al rey de España*, and was addressed by Palacio, a member of the royal audiencia of Guatemala, to the king, giving an account of the

ancient provinces of Guazacapan, Izalco, Cuzcatlan, and Chiquimula, together with their languages, customs, and religion of their aboriginal inhabitants, and a description of the ruins of Copan. Palacio evidently collected this information by order of his sovereign, and showed himself an intelligent as well as a kindly, well-meaning man; somewhat superstitious, but less so than most men of his time. His narrative is both readable and instructive, and his description of the ruins of Copan extremely interesting, its correctness being established in after years by the accounts of Fuentes and Stephens. Squier added numerous and interesting notes, but his translation is in places open to criticism, partly for erroneous meanings given to words, and partly for a not strict adherence to the spirit of the original. The book, though a beautiful specimen of typography, is disfigured with many misprints. Besides these I have in my library numerous valuable documents in manuscript relating to Central American history, from the earliest days after the Spanish conquest, which Mr Squier gathered from various sources and never published.

A Travers L'Amérique Centrale. Le Nicaragua et le Canal Interocéanique, Paris, 1867, 8º, 2 vol., maps, 427 and 480 pp., by Félix Belly, who was the director-general of a French canal company for opening a Nicaragua route. He was also a chevalier and a well-known writer. To him had been intrusted the task of obtaining a charter from Nicaragua for this canal, and with this object he visited Central America in 1858, obtained the charter, and made the necessary explorations for routes and resources. The delays and uncertainty of the undertaking caused Belly to visit the country more than once, and he thus became well acquainted with its resources, people, government, and institutions generally. This information he imparts in connection with the narrative of his journey and in articles, under the respective states, given in the first volume. The second volume is wholly devoted to the interoceanic projects, and particularly to a detailed history of his own canal scheme. The style is attractive, the observations clever, and the information excellent. A second edition, a reprint, appeared in 1870. *Belly, Carte d'études, etc.*, Paris, 1858, contains notes on the project of building a canal through Nicaragua, and the survey made for that purpose. *Félix Belly, Durchbruch der Americanischen Landenge. Kanal von Nicaragua. Übersetzt von Karl Schöbel*, Paris, 1859, 8º, 103 pp., one map, is the same as *Carte d'études ...* by Félix Belly, but enlarged with a few sketches of the country and people of Nicaragua and Costa Rica.

[XIII-1] At this time, in 1840, he could neither read nor write, and used, for appending his signature, a stamp. Later he learned to sign his name.

[XIII-2] He sent his resignation to the assembly, implying that it was condescension on his part to lay it before that body, as he owed his position directly to the votes of the people.

[XIII-3] He was wrathful at the thought that they had tendered a dictatorship to Morazan, and enlisted the Quezaltecs against himself. He did not forget Rivera Paz' proclamations calling him a bandit and an *antropófago*. He asked for the meaning of this last word, and on being told it, flew into a rage which threatened a repetition of the horrid scenes of Quezaltenango. *Montúfar, Reseña Hist.*, iii. 512.

[XIII-4] He referred to Pavon, Batres, and Aycinena. It was evident that he then knew of Juan Fermin Aycinena's bargain in Madrid which made him marqués de Aycinena.

[XIII-5] His press was called Imprenta del Ejército. He had brought it from Quezaltenango.

[XIII-6] Several deputies, under one pretext or another, tried to resign, but only the clergyman Lorenzana was permitted to do so. *Tempsky's Journey*, 341-56. A man named Andrade slightly wounded Carrera in the evening of Aug. 8, 1841. He was murdered by the troops, and Carrera, with the assent of the govt, had the body quartered in the presence of hundreds of persons, and the pieces placed on exhibition at the city gates. The order for so doing was signed by Rivera Paz, and his minister Viteri, afterward bishop of Salvador. *Id.*, 541-8; *Guat., Gac. Ofic.*, no. 22, 86-7; *Dunlop's Cent. Am.*, 248; *Nouv. Annales Voy.*, xcii. 375; *Niles' Reg.*, lxi. 177.

[XIII-7] He had promised, he said, to remain in private life. His voice would be unheeded. Without freedom or influence, he could no longer do the country any good. 'Ningun pensamiento hay aceptable en la crítica complicacion de sus negocios, y en el movimiento retrógrado que se le ha dado.' *Montúfar, Reseña Hist.*, iii. 528-9; *Gac. de Salv.*, Oct. 12, 1854.

[XIII-8] Rivera Paz did not escape insult; but not more than Carrera deemed needful to keep him humble.

[XIII-9] The *Gaceta*, no. 173, mentioned that number. Others made it larger. The Indian chief Ricardo Catzum and others on their way to the place of execution, in loud tones declared that they had only obeyed their general's orders.

[XIII-10] Carrera had threatened Viteri with 'la fuerza,' and the latter answered that he had on his side 'la fuerza de la razon.' Carrera understood this to mean cannons and muskets, and rushing out to the plaza came back soon after with troops and artillery, surrounded the government house—then opposite the Santa Rosa church—and furiously entered the building, demanding of Rivera Paz to show him his forces. Viteri then explained the meaning of fuerza de la razon. *Montúfar, Reseña Hist.*, iii. 536-7. Squier, *Travels*, ii. 443, describes something similar as done by Carrera to the assembly.

[XIII-11] Lopez was a Nicaraguan educated in Guat., an honorable man and an accomplished jurist; but owing to bad health, personal habits, and other causes, was unfit for the executive office.

[XIII-12] The assembly considered a bill granting him large tracts of land.

[XIII-13] The constitution to be framed was to be ratified by the first subsequent council of double the no. of representatives. The doc. had 12 articles. *Guat., Inf. Pavon*, 2-5; *Niles' Reg.*, lxvi. 242.

[XIII-14] On the 14th of March, 1844. *Guat., Recop. Ley.*, i. 114-16.

[XIII-15] 'Consejo constituyente' it was first called; afterward it adopted the name of 'congreso constituyente.'

[XIII-16] Being appointed early in 1849 corregidor of Jutiapa; while on his way there he was murdered with others.

[XIII-17] They had counted on Carrera's aid, and he failed them, for which they again at their secret conferences reapplied to him the name *antropófago*.

[XIII-18] A number of persons were blindly persecuted, particularly Brigadier Monterrosa and his family. *Barrundia, Rev. de los Partidos*, in *Montúfar, Reseña Hist.*, iv. 662.

[XIII-19] Duran's pledges went for nothing. Blood and extermination ended the drama of Feb. 1845. *Id.*, 663-9; *Dunlop's Cent. Am.*, 244-7.

[XIII-20] The most despotic captain-generals of the colonial period, without excepting the tyrant Bustamante, are not to be compared with these men. Barrundia, in trying to console the young men who bewailed the condition of the country, assured them that it was transitory, 'un régimen salvaje en pleno siglo XIX. no puede ser perpétuo en la América independiente. La luz nos viene por el Norte y por el Sur; solo el centro está en tinieblas, y esa noche lúgubre no puede ser eterna.' *Montúfar, Reseña Hist.*, v. 9.

[XIII-21] Azmitia was an enlightened man, and thirsted for no one's blood; but his influence, outside of the foreign department, was small, and men, unheard and untried, were shot before his eyes, without his being able to prevent it. His friends claimed, however, that through him Guat. was spared many more acts of barbarity.

[XIII-22] It consisted of 222 articles, and was drawn up at Quezaltenango; it came to nothing. *Pineda de Mont*, in *Guat., Recop. Ley.*, i. 86.

[XIII-23] Cruz had risen with Carrera, but had a mild disposition, and was liberal-minded. He learned ere long that the people had nothing to expect from the aristocrats.

[XIII-24] Barrundia left an account of all the proceedings. One man only, José Gándara, had the courage to back his convictions and vote for the constitution.

[XIII-25] The plan had been to shoot him as he came out of the cathedral. *Dunlop's Cent. Am.*, 248; *Iris' Españ.*, Dec. 12, 1846.

[XIII-26] The arms to be those Cent. Am. used on the obverse side of her coin, but so arranged that the sun and volcanoes should be in the centre of a shield, with the inscription, Guatemala en Centro América, 15 de Setiembre de 1821, having in the quiver an olive crown.

[XIII-27] A shield divided transversely into two quarters; the upper one on an open field azure with vertical bars argent; and the lower with three volcanoes on a light sky-blue field. Over the

shield was a sun, and on each side of it two flags with the national colors displayed, and the extremities gathered downward, and knotted on the poles. On the right side of the shield is an oak bough, and on the left, one of laurel. On a white waving ribbon is the legend in golden letters, Guatimalæ Respublica sub D. O. M. protectione.

[XIII-28] The man-of-war flag has the coat of arms on the yellow stripe. The mercantile flag does not show the coat of arms. The flag consists of seven stripes; the uppermost and lowermost, or be it the 1st and 7th, blue; the 2d and 6th white; the 3d and 5th red; and the 4th, which is the centre one, yellow. *Guat., Recop. Ley.*, i. 55-8; *Dublan and Lozano, Leg. Mex.*, vi. 119-20; *Mex., Col. Ley. Ord.*, 1850-1; i. 388-9; *Mex., Leg.*, 1851, 307-9. New national flag decreed Aug. 17, 1871. *Guat., Recop. Leges. Gob. Democ.*, i. 9.

[XIII-29] With France, March 8, 1848, and one for the settlement of French claims, Aug. 18, 1854; Costa R., March 10, 1848; G. Britain, Feb. 20, 1849; U. S., March 20, 1849; Belgium, Apr. 1849; Mex., Nov. 1850; the pope, Oct. 7, 1852; Peru, 1857; and others in later times.

[XIII-30] *Crosby's Events in Cal.*, MS., 103. It tried to avoid entanglements in the questions then pending between Spain and Peru. The time came, however, in 1875, when the govt was not afraid to make recognition of Cuba, then in the throes of revolution for independence from Spain as a nation.

[XIII-31] Full particulars on the foreign relations may be found in *Guat., Recop. Ley.*, i. 303-81, 423-30; *Id., Gob. Dem.*, i. 209-19; *Squier's Trav.*, ii. 451-2; *Annals Brit. Legis.*, 1866, 333; *Guat., Gac.*, Feb. 21, March 7, May 3, 1850; July 29, 1853; Jan. 27, Apr. 7, 1854; *Comm. Rel. Flagg's Rept.*, i. 792; *Derecho Intern. Mex.*, 2d pt, 325-8; *Mex., Mem. Rel.*, 1851, 10-11; *Dublan and Lozano, Leg. Mex.*, v. 755-7; *Nic. Corr. Ist.*, May 1, June 1, Aug. 1, 1849; *Id., Gac. Ofic.*, Feb. 25, 1854; Aug. 4, 1866; *Costa R., Gac.*, Feb. 13, March 13, June 10, 1854; *Salv., Gac.*, Jan. 13, 1854; *Crosby's Events in Cal.*, MS., 90-5, 102-4; *Rocha, Cód. Nic.*, i. 141-5; *Salv., Diario Ofic.*, Apr. 20, Sept. 9, 1875; *Guat., Mem. Rel.*, 1882, 26-7, and annex 8; *La Estrella de Occid.*, Dec. 2, 1864.

[XIII-32] Molina accepted this trust believing Minister Azmitia, with whom the committee would have to treat directly,

was a liberal; but Azmitia was not such, nor would the aristocrats have permitted him to control the situation.

[XIII-33] Molina accepted, under the pressure of circumstances, a number of clauses opposed to his own opinions, thinking that a conservative constitution would be better than an unbridled dictatorship.

[XIII-34] Some of the measures being imprudently executed only increased the trouble. To make matters worse, the monopoly of aguardiente in the departments of Guat., Sacatepequez, Escuintla, and Amatitlan, was given to a single company, in consideration of money advances to the treasury. Carrera was supposed to share in the profits.

[XIII-35] The Indians rose against the ladinos, who deprived them of their lands, and forced them to work at raising grain.

[XIII-36] 'La tranquilidad continúa inalterable.' *Guat., Gac. Ofic.*, Aug. 14, 1847. The archbishop was asked to instruct his priests to preach obedience to the authorities and laws; and with the view of winning the good-will of the Dominicans the govt restored them the large hacienda of Palencia, which had been theirs prior to 1829. The property had fallen into Carrera's hands by donation from the government, and now, in order to restore it to the friars, it was bought from him at his own price.

[XIII-37] Carrera's decrees of Jan. 12 and 22, 1848.

[XIII-38] Foreign relations, José Mariano Rodriguez; government, Luis Batres; treasury and war, José Nájera.

[XIII-39] His last words on that occasion were: 'Queda al público el sempiterno duo de la Revista y Gaceta, que daran solos la ley y seran la esclusiva ilustracion de Guatemala.' *Montúfar, Reseña Hist.*, v. 444; *Salv., Gac.*, Oct. 12, 1854. It must be borne in mind that those two organs were edited by Pavon and Milla for the express purpose of upholding the ideas of the middle ages.

[XIII-40] This affair was later settled, the assembly passing resolutions highly complimentary to France and her people, embodying also a desire to see the French flag again waving over the French consulate. A copy of the resolutions was transmitted to the consul. The flag waved again and was saluted with 21 guns. *Montúfar, Reseña Hist.*, v. 577; *Niles' Reg.*, lxxiv. 142-3, 415-16;

Nic., Gac. Gob. Suprem., Dec. 9, 1848; *El Herald*, Jan. 15, 1849.

[XIII-41] The members were to be at the capital on the 1st of the month. Decree of May 24, 1848. *Guat., Recop. Ley.*, i. 121-36.

[XIII-42] This was done by the advice of Batres, who told him the liberal party would soon commit suicide, and he might then return in triumph.

[XIII-43] A merchant or agent; he was sickly, and totally unfit for the position.

[XIII-44] The other two were his message on gen. affairs, and his greeting to the chamber on its installation. *Nic., Gac. Gob. Suprem.*, Sept. 16, 1848; *Salv., Gac. Ofic.*, Sept. 9, 1876; *Montúfar, Reseña Hist.*, v. 470, 494-508.

[XIII-45] His proscription was decreed on the 13th of Oct., 1848. *Reg. Cent. Am.*, Jan. 29, 1850. He went to Chiapa, and the Mexican govt was requested not to let him cross the frontier. *El Siglo*, Jan. 10, 1851.

[XIII-46] This was an unmerited slight to Vice-president Cruz, which he resented afterward.

[XIII-47] His ministers were Manuel J. Dardon of the govt; José M. Vidaurre of treasury and war, and Luis Molina of foreign relations.

[XIII-48] Francisco Carrillo, Serapio Cruz, Roberto Reyes, J. D. Nufio, and A. Perez.

[XIII-49] The chief being the convocation of a new constituent assembly; the recognition of Los Altos as independent, efforts to restore the Central Am. republic, and meantime Guat., Salv., and Los Altos, to be under one govt; the revolutionary army to hold the capital and other important points; Rafael and Sotero Carrera and their agents to make good with their property all damages caused by them to private persons; objectionable persons to be banished, and the Brit. govt to be asked to recall Consul Chatfield.

[XIII-50] Their only division was in open and covert serviles.

[XIII-51] A provisional govt was established at Quezaltenango on the 5th of Sept., 1848, consisting of a triumvirate; namely, Presbyter Fernando Antonio Dávila, Rafael de la Torre, and José Velasco, with Manuel J. Fuentes as secretary-gen. *Id.*, 588-9; *Guat., Gac.*, Sept. 22, 1848.

[XIII-52] The nobles, aided by the clergy, surrounded the brothers Cruz, and Luis Molina undertook to dissuade Nufio, who was a very ignorant man.

[XIII-53] The necessity of procuring money for the war, which could not be had except from partisans of the oligarchs, prompted it, as they made that act of ratification a sine qua non before loosening their purse-strings.

[XIII-54] *Guat., Col. Ley.*, i. 77-9; *Montúfar, Reseña Hist.*, v. 584-5. Gándara and Pineda de Mont, the other liberals trying to persuade themselves that the separation would be only temporary.

[XIII-55] By Col. M. Paredes. *Guat., Gac.*, Sept. 22, 1848; *Id., Col. Ley.*, 50-3; *Nic., Gac. Gob. Suprem.*, Nov. 18, 25, Dec. 9, 1848; *Montúfar, Reseña Hist.*, v. 606-8, 634-9.

[XIII-56] The attempt to gain over Nufio to the side of the govt proving successful, he had been appointed comandante general. On the other hand, Vice-president Vicente Cruz, smarting under the slight put upon him by the selection of Martinez for pres., joined his brother Serapio in his armed contest against the govt. *Id.*, v. 555, 570-1, 588, 591.

[XIII-57] Escobar was an orator, a true republican, and well disposed to deal fairly by all men, regardless of political affiliations.

[XIII-58] His ministers were Revd Narciso Monterey, of govt; Basilio Porras, of relations; Mariano Galvez Irungaray, of treasury; and Manuel Jonama, an old retired officer of Morazan, of war.

[XIII-59] The two opposing parties had not yet fixed upon his successor.

[XIII-60] The Molinas and Arrivillagas, Vidaurre, Dardon, Barrundia, and Martinez, who were held responsible for the blood already spilled.

[XIII-61] A large number of official docs. connected with the last two administrations are given in *Montúfar, Reseña Hist.*, v. 593-601, 611, 622-44, 695-715.

[XIII-62] In forming his cabinet he slighted Luis Molina and his party. His ministers were José Mariano Rodríguez, Raymundo Arroyo, José M. Urruela, and Manuel Tejada. Arroyo was succeeded in Aug. by Pedro N. Arriaga, and Cerezo became min. of war.

[XIII-63] The principal clauses were: the revolutionary forces to be incorporated with the army of the republic; Vicente Cerna to become general-in-chief of the army; elections of deputies to be made in unrepresented districts; damages caused private parties by the army to be paid by the government.

[XIII-64] The aristocrats made a great display of regret at his death, but it was well known that they did not love him. In eliminating him from the revolution, they had in view to weaken the latter, but still wanted it to continue as a means for Carrera's return.

[XIII-65] Paredes made him believe the govt really intended to oppose Carrera. He also pledged the govt to protect Los Altos, and provide for the advancement of education and commerce in that region. Under such pledges Guzman placed himself and his Quezaltecs at the service of the govt and proceeded to the capital. *Montúfar, Reseña Hist.*, v. 769-71.

[XIII-66] Jan. 24th he wrote the govt from Ayuto that he was on his march to the capital, not to avenge, he said, the insults heaped upon him by Martínez' administration, or rake up bygones, but to restore peace and justice. The assembly, before which his letter was laid, adopted no resolution.

[XIII-67] To raise a foreign loan of one million dollars; to procure troops from other friendly states; and if necessary to remove the capital. After granting such power the assembly adjourned, leaving in the city a 'comision permanente.'

[XIII-68] His govt said that aid afforded to Carrera was treason under the decree of Oct. 13, 1848. Ministers Arroyo and Tejada in a manifesto assured the people of the government's best efforts to defeat his projects. *Nic., Gac.*, March 17, 1849. It is astonishing that an ignorant man like Paredes could so easily

hoodwink Luis Molina and the rest. They soon opened their eyes to see the falseness of the man they had elevated from the command of a battalion to the chief magistracy, and who was on the point of consummating his treachery. Guzman saw through his plan, and escaped out of the city with a number of his Quezalteco officers and men, and succeeded in reaching Salvador. He first joined the mountaineers, and aided them to take Jutiapa, but on seeing the outrages of Leon Raymundo, he left them in disgust.

[XIII-69] Zavala was connected by blood and marriage with supporters of Carrera in the aristocratic clique.

[XIII-70] The first two decrees were of June 4th and 5th. His appointment to the chief command was on the 3d of Aug. *Nic., Corr. Ist.*, July 1, Sept. 1, 1849; *Montúfar, Reseña Hist.*, v. 779-80, 784-5.

[XIII-71] He had come disposed to do his duty, he said. The ayuntamiento of Guat. on the 10th of Aug. gave a banquet in honor of Carrera. The corregidor presided, having on his right Paredes, and on the left Carrera. *Guat., Gac.*, Aug. 23, 1849.

[XIII-72] The comision permanente had represented the danger to the govt before Carrera entered the city, and its representations remaining unheeded; it again on the 27th of July called the attention of the minister of government demanding requisite protection for the representatives. See Andrés Dardon's letter in *Montúfar, Reseña Hist.*, v. 811-12.

[XIII-73] Barrundia had gone to Salv. Luis Molina was now defeated, and had to go away. He wished to visit San Salvador, but could not face Vasconcelos, and went to Ahuachapan. Ex-president Escobar, who, as president of the assembly, signed the proscription act of Oct. 13, 1848, died in exile, poor and miserable; the two subscribing secretaries were Manuel Irungaray, whom Carrera caused to be shot some time afterward, and Lorenzo Montúfar, the author and statesman.

[XIII-74] Vasconcelos, president of Salv., Dec. 4, 1850, announced to his people that forces of Guatemala were about to invade the department of Sonsonate, with the view of inciting the inhabitants to rebel against their government. Again, Jan. 10, 1851, he sets forth the motives actuating the oligarchs, who had Carrera for their tool, and British Consul Chatfield for their ally,

which were to destroy Central American liberties, and to domineer over the other sections. *Cent. Am. Pamph.*, vi. nos. 2 and 3.

[XIII-75] The objective point was the city of Guat., which the allies felt sure of capturing, to judge from the context of a letter from Dueñas to Vasconcelos of Jan. 20, 1851. *Cent. Am. Pamph.*, iv. no. 17.

[XIII-76] Carrera's report from the field contained the following incredible result: a loss on the part of the confederates of 528 killed, 200 prisoners, 1,000 muskets, and 9,000 rounds of ammunition; while his casualties were only 20 killed and 42 wounded. That was probably one of his characteristic falsehoods. The Salvadoran minister called it 'desgracia sensible aunque pequeña.' But Carrera was promoted to be captain-general, and a memorial medal was struck in honor of his victory. *Frisch, Die Staaten*, 98; *Astaburuaga, Cent. Am.*, 80-1; *Salv., Mem. Sec. Gen.*, 1821-5.

[XIII-77] Feb. 6th, martial law was proclaimed; 13th, all men capable of bearing arms were called into service; those failing to obey, or aiding the invaders, were declared traitors; 22d, the assembly decreed a forced loan of \$20,000 monthly during the continuance of the war. *Nic., Cor. Ist.*, March 13, 1851; *Salv. Decreto*, in *Cent. Am. Pamph.*, iv. no. 16.

[XIII-78] He would return, however, if peaceful overtures were not made at once. *Guat., Boletín de Noticias*, March 1, 1851.

[XIII-79] The commissioners were Manuel F. Pavon for Guatemala, and Francisco Zaldívar for Salvador. It was a treaty of amity and commerce, calling also for extradition of army deserters and common criminals upon formal demand for them. Political refugees were to be made to live at a considerable distance from the frontier. Neither contracting party had to pay any pecuniary indemnity. *Guat., Recop. Ley.*, i. 431-3; *Costa R., Gaceta*, Sept. 10, 1853; Jan. 30, 1854; *Guat., Gaceta*, Aug. 5, 1853.

[XIII-80] Efforts were made by the sister states to avert a war, and even after it broke out Salvador continued her efforts. Preliminaries of peace had been agreed upon, and negotiations entered into at Cojutepeque by the two belligerents, Salvador

acting as mediator at the conferences; but this effort also failed because the commissioner at the last moment presented an ultimatum which neither Salvador nor Honduras deemed just. *Hond., Gaceta Ofic.*, Oct. 30, Nov. 15, 30, Dec. 15, 1852; *Id.*, *Boletin Ofic.*, Oct. 13, Nov. 11, Dec. 5, 1853; *Perez, Mem. Hist. Rev. Nic.*, 18; *Guat., Gaceta*, July 8 to Nov. 11, 1853, passim; Jan. 27, Feb. 24, Sept. 22, 1854; *Nic., Gaceta*, Aug. 20, 1853; Feb. 28, 1854; *Costa R., Gaceta*, Dec. 12, 1853; Jan. 7, 18, Feb. 24, March 4, 1854; *El Rol*, Oct. 13, 1854; Feb. 21, March 7, 1855; *Prelimin. de Paz*, in *Cent. Am. Pamph.*, i. no. 20; iv. no. 41. It seems from Guatemalan sources that the Hondurans invaded Guat., and were defeated at Atulapa July 12, 1853. *Guat., Boletin de Noticias*, Aug. 5, 1853.

[XIII-81] The commissioners being Pedro de Aycinena, min. of foreign affairs of Guat., and Florencio Castillo for Hond. This treaty bound the contracting parties to surrender deserters from either army, and common criminals, when claimed. Political refugees were to be kept away from the frontier. No pecuniary indemnity was stipulated. *Guat., Recop. Ley.*, i. 433-6; *Guat., Gaceta*, Feb. 16, 1856.

[XIII-82] Under this law the president was to be chosen for four years by a general assembly composed of the house of representatives, the archbishop, justices of the supreme court, and the members of the council of state. He might be reëlected. Before being placed in possession of the executive office, he was to be sworn by the archbishop who presided, for the occasion, over the house of representatives. The executive was clothed with almost absolute powers, being authorized, among other things, to issue, in accord with the council of state, decrees having the force of law, to raise loans, declare war, make peace, ratify treaties, etc. In the event of his death or permanent disability, the executive duties devolved temporarily on the ministers in their order of seniority; and in default of them, on the members of the council; until the house of representatives, to be forthwith summoned, could meet and make a choice in general assembly. During temporary absences of the president, the government devolved on the council of ministers. The council of state was formed of the cabinet ministers, eight members chosen by the congress, and such others as the executive might appoint. They held office for four years and might be reëlected. The following functionaries might also be called by the executive to take part in the deliberations and vote, namely: the archbishops, bishops

sojourning in the capital, regente of the supreme court, president of the ecclesiastical chapter, rector of the university, prior of the consulado, president of the sociedad económica, and comandante general. The house of representatives consisted of 55 deputies elected for four years. The cabinet ministers had seats in the house, which was to open its session Nov. 25th, and close it Jan. 31st. The administration of justice was intrusted to a supreme and lower courts. The former consisted of a regente, six justices, and one fiscal or attorney-general, all chosen by the congress for four years, one half being renewed every two years, but all might be reëlected. *Guat., Recop. Ley.*, i. 79-87; *Astaburuaga, Cent. Am.*, 181-2; *El Siglo*, June 18, 1852; *Squier's Cent. Am.*, 483.

[XIII-83] Those of the judiciary, consulado, university, and sociedad económica. *Guat., Recop. Ley.*, i. 140-50.

[XIII-84] *Salv., Gaceta*, Oct. 31, 1851.

[XIII-85] This was the result of public meetings held in the departments by the garrisons, officials, and parish priests, at which it was made to appear that it was the will of the people that Carrera should be president for life, with the privilege of selecting his successor, and that other amendments should be made to the acta constitutiva, as permitted by its 15th art. It is understood that at the meeting of officials in the capital there was but one dissentient vote to the proposition. He had in a manifesto of June 22d expressed a weak objection to the proposed change, but it was evidently a preconcerted plan of the aristocrats and the military element. *Guat., Gaceta*, May 12 to Sept. 15, 1854, passim; *Guat., Recop. Ley.*, i. 87-90; *Costa R., Gaceta*, July 1-29, 1854; *Id., Boletin Ofic.*, July 27, 1854; March 17, 1855; *Carrera, Manifiesto*, in *Cent. Am. Pamph.*, v. no. 21; *Squier's Cent. Am.*, 514. Carrera before this received honors from foreign governments; he was a knight grand cross of the papal order of St Gregory the Great; the same of the Mexican order of Guadalupe; and knight commander of the Belgian order of Leopold. *Guat., Recop. Ley.*, i. 90.

[XIII-86] This amendment conferred still larger powers on the president, and made the term of the representatives, and of the councillors chosen by them, seven years instead of four.

[XIII-87] As he had no knowledge of the science of government, the direct management of public affairs was left to those supposed to possess it. Carrera did not govern; he merely

represented the unity of government. 'Sin embargo que su voluntad prevalecia en todo.' *Astaburuaga, Cent. Am.*, 82. The reform in regard to the presidential tenure was personal, and exclusively in favor of Carrera. Thus at his death the constitutional provision was restored, the minister of relations, Pedro de Aycinena, assuming the reins, and at once summoning the legislative body, which was de facto and de jure a return to constitutional order. *Pineda de Mont, Nota, in Guat., Recop. Ley.*, i. 87.

[XIII-88] The govt decreed that their portraits should be placed in the hall of the council of state. Pavon's widow, Victoria Zebadúa, got a pension of \$900 a year. *Guat., Recop. Ley.*, ii. 638-9; iii. 351.

[XIII-89] The government, whose temporary chief was Pedro de Aycinena, as senior cabinet minister, decreed April 4th that the funeral should take place on the 17th at 9 A. M., the remains to be interred in the cathedral church. *Guat., Recop. Ley.*, iii. 351-2; *Nic., Gaceta*, Apr. 29, May 6-20, 1865.

[XIII-90] It has been asserted that even his ministers trembled for their lives when Carrera was in his cups. Though they knew he would commit outrages, they often induced him to visit the departments, in order to have a little peace themselves.

[XIV-1] They conclude offering to the assembly the 'swords which aided to triumph in Guat. and Los Altos over the tyrant Morazan.'

[XIV-2] Cañas, considering himself the only lawful executive, though set aside by the military on Sept. 20th, also made his resignation.

[XIV-3] The decree greatly displeased the people, and had no effect. But it revealed the plot of the aristocrats of Guat. They appointed commissioners to the diet of Cent. Am., who were to pretend that they favored a reformed union; but their real aim was an absolute separation. *Marure, Efem.*, 54.

[XIV-4] Its support was sworn to on the 11th of April.

[XIV-5] In a proclamation he stated that the expelled senators and deputies were working to restore the order of affairs existing at the time of Morazan's departure. His suspicions were partially confirmed on Morazan appearing at La Union about the

middle of Feb. 1842. *Montúfar, Reseña Hist.*, iv. 63-4; *Marure, Efem.*, 54-5; *Astaburuaga, Cent. Am.*, 74-5.

[XIV-6] They promised to confine their action to only such objects as were of absolute necessity, namely, to rid the government of surrounding obstacles, make amendments or additions to the constitution, and pass such laws as would conduce to its development. After doing this they purposed to close their ordinary session, and await the election of the constitutional chief of the state. It would then be the proper time to deliberate upon calling a constituent assembly to review the constitution.

[XIV-7] Cañas had been chosen on the 1st of Feb., but afterward resigned it. His health was poor, and he died at the hacienda del Jocó on the 24th of Feb., 1844. The assembly honored his memory in a special decree. *Salv., Diario Ofic.*, Feb. 14, 1875; *Montúfar, Reseña Hist.*, iv. 509.

[XIV-8] It was this govt that rejected Morazan's proposals when he appeared at La Union. While appreciating his patriotic purposes, it could not disregard its obligations toward the other states. Hence, together with Malespin, it set the other govts in motion against Morazan, whom Malespin called 'el enemigo comun.'

[XIV-9] Even private correspondence was forbidden. Postmasters had orders to deliver to governors of departments all letters received at their offices from Costa Rica.

[XIV-10] His ideas were commended as 'justas, sanas, salvadoras.' *Guat., Gac.*, Oct. 18, 1842.

[XIV-11] Even Malespin had favored the act of the govt; for though uncultured, he was a Salvadoran; and now that Morazan was dead, he began to listen to the advice of his more enlightened fellow-citizens, and to understand the Machiavelism of Aycinena, Pavon, and their ally Chatfield.

[XIV-12] J. J. Aycinena repeatedly said that the revolt could not be quelled, and it were better to accede to the wishes of the volcaneros. This will explain the object of a doc. dated Oct. 18, 1843, and published at Comayagua at the govt printing-office under the signature of Manuel José Arce. The ex-president had taken advantage of an amnesty decree to return to Central

America. He was now very old, but still ambitious of power. In that manifesto, addressed to the states of Cent. Am., he endeavors to demonstrate the necessity of their again uniting under one govt. He spoke of Guzman and Malespin trying to hold power for life; of intrigues to make the latter president, even if some of his opponents had to be shot; of abuses he had been subjected to; the war those men were planning, with the aid of Nic., against Guat. and Hond., on the false charge that Carrera intended to annex Salv. to Guat. He accused Malespin of atrocities, and yet praises Carrera, who placed Malespin in Salv. The full text of the manif. is in *Montúfar, Reseña Hist.*, iv. 222-5.

[XIV-13] The min. of state, Agustin Morales, reminded him that freedom of the press was a palladium of liberty in England, adding his surprise that her consul should want such a precious boon to disappear from Salvador. Chatfield threatened to refer the subject to his govt, and was told to do so, not failing to accompany the answers he had received.

[XIV-14] The circulation of *El Amigo del Pueblo* in Guat. was forbidden; but many numbers got out, and were read by artisans, students, officials. Chatfield often found it on his desk without knowing how it came there.

[XIV-15] Several Salvadorans were murdered, and it was proved that the murderers had come from Jutiapa. The govt of Guat. pretended to have had no agency in these acts.

[XIV-16] In later years he was bishop of Panamá, but much toned down.

[XIV-17] *El Amigo del Pueblo* invited him to discuss public questions, but not from the pulpit, where he could not be answered. Vazquez did not heed it, and went on with his wrathful sermons.

[XIV-18] In his letter of Dec. 5th, he uses these words: 'Jorge de Viteri no será obispo de farsa, ni permanecerá jamás en un suelo, en que la potestad humana coarte las amplias facultades que le conceden, y de que le hacen responsable los sagrados cánones.' The correspondence, and his secretary's address to the people, are given in *Id.*, 351-4, 373.

[XIV-19] The president blamed him for leaving the capital at a time of disturbance. He, on his part, demanded the

government's return to S. Salv. to attend to the bishop's complaints. He accused the president, in a manifesto, of attempting to disturb the public peace.

[XIV-20] The ecclesiastical fueros were restored; the govt was authorized to allow monasteries established, and the bishop to demand the aid of the secular arm to enforce his orders in ecclesiastical affairs. This last act was, however, issued, as it appears, with much reluctance, judging from the number of restrictive clauses in it.

[XIV-21] Guzman had waged war against Malespin, not for his own aggrandizement, but to do away with arbitrary rule, and to restore the authority of the constitution. This being accomplished, he resolved to return to private life.

[XIV-22] A physician by profession, and a modest, honorable citizen, actuated by the purest motives; an excellent family man and friend; but unfortunately, as events showed, he was weak when firmness and resolution were demanded to uphold his position. Aguilar, in his later years, after losing his wife, was ordained as a priest.

[XIV-23] Eustaquio Cuéllar, J. M. San Martin, J. M. Zelaya, the clergyman, Isidro Menendez, and Indalecio Cordero.

[XIV-24] He hinted that he had power to annex the state to the archdiocese of Guat. The text of his letter is in *Montúfar, Reseña Hist.*, v. 54-5.

[XIV-25] The officer Anjelino, sent to reënforce the guard of the jail, was waylaid, and nearly murdered, and in that condition taken to the bishop's house, where the bishop abused him by word of mouth, and turned him over to the rabble, by whom he was stabbed, beaten, and kicked. He was, however, rescued by the priest M. Serrano, and taken back into the bishop's house. These facts were testified to by Anjelino, in the criminal prosecution of Viteri.

[XIV-26] *Nic.*, *Registro Ofic.*, 330; *Dunlop's Cent. Am.*, 249-50; *Iris, Esp.*, Oct. 3, 1846.

[XIV-27] It is given in full in *Montúfar, Reseña Hist.*, v. 70-4.

[XIV-28] The decree was dated July 27, 1846, and referred to articles 210-13, 304-9.

[XIV-29] The Salvadoran govt published a decree against seditious persons from Hond. *Nic., Registro Ofic.*, 272-3. The authorities of Hond. solemnly promised that Viteri should not be allowed to reside near the Salv. frontier; but the promise went for nothing; Viteri and Malespin being aided from that state. They found material assistance in Nacaome, Tegucigalpa, Sensenti, and Guarita. Guardiola's note of Aug. 31, 1846, to the min.-gen. of Salv., in *Id.*, v. 87, 254-7.

[XIV-30] His decree of Feb. 23, and pastoral of June 10, 1845.

[XIV-31] His execution left a bad impression in the public mind. Ignacio Malespin had been a friend of Morazan, served with him in 1840, and was one of the heroes of the capture of Guatemala as well as of the subsequent escape. He was gentle, kind, and sociable, and but for Viteri's influence never would have joined the revolution. He ought to have been spared. The women of San Salvador, both old and young, pleaded for a commutation of his sentence, but the govt was relentless.

[XIV-32] The head was for some time exposed in an iron cage, to the disgust of the community. It was finally delivered to the family for interment.

[XIV-33] He obtained 13,222 votes out of a total of 19,215. Being governor of San Vicente, where he was exceedingly popular, he could not, under the constitution, be a candidate in that department.

[XIV-34] Vasconcelos had been a friend of Morazan, and prominent in Guat. at the time the liberal party was divided into ministerialists and oppositionists.

[XIV-35] Chatfield's pressure against Hond. and Nic. inspired them with hopes. Vasconcelos was a partisan of Central American unification for various reasons, not the least of which was that of checking the preposterous claims of the Brit. agent. This explains the origin of future questions between Chatfield and Pavon on one side, and Vasconcelos on the other. In 1849, the latter was made to appear before the other states as an innate foe of Guat., whose debasement and destruction he strove for.

The govt of Salv. gave explanations on its course denying the charges. *Montúfar, Reseña Hist.*, v. 801-8.

[XIV-36] Even Lindo of Hond., a militant in the reactionary ranks of Guat., though acknowledging the republic, did so with the proviso that Hond. left intact and in force Guatemala's engagements and duties toward other states as regarded the reestablishment of a gen. govt. Guardiola's note of Aug. 10, 1847, to min. of relations of Guat., in *Id.*, 260.

[XIV-37] He favored the restoration of the state of Los Altos, in order to divide the power of Guat., and counted on the coöperation of Guatemalan liberals; but the spirit of provincialism was strong with them, and a large portion opposed him.

[XIV-38] It was bitterly censured by the leading liberals of Salv., Nic., and Hond., and not a few of those of Guat., such as Pineda de Mont and Rivera Caberas.

[XIV-39] Gomez was a Salvadoran, educated abroad, and well versed in political economy and literature.

[XIV-40] He committed an error in supposing that Zaldaña would care more for him and his party than for Archbishop García Pelaez, who was influenced by Canon Larrazábal, the mouthpiece of Guatemalan aristocracy.

[XIV-41] The following is a brief synopsis of the constitution: No ecclesiastic or military man in active service could hold any civil office. Congress consisted of the house of representatives, chosen annually, and the senate, elected one half every second year; it met on the 1st of Jan. of each year, and its sessions were limited to 40 days. The president must not be under 32 years of age nor over 60; must have been a resident of the state for the five years preceding the election, and own property within the state worth at least \$8,000. He had to receive an absolute majority of votes; otherwise congress should choose one of the two candidates having the largest number of votes. Term of office two years, without the privilege of two terms in succession.

[XIV-42] Félix Quiróz was chosen his substitute. *Nic., Cor. Ist.*, Feb. 16, March 7, 1850; *Costa R., Gaceta Gob.*, March 2, 1850. Art. 44 of the constitution, prohibiting reëlections, was revived by an act of Feb. 25, 1851. *Cent. Am. Pamph.*, iv. no. 20.

[XIV-43] The minister of foreign affairs, in his annual report to the Salvador assembly, Jan. 29, 1850, speaking of Chatfield's course, says: 'Desatenciones, violencias, bloqueos; he aquí las relaciones y conducta que ha observado el Sr. cónsul inglés.' *Salv., Mem. Rev.*, 1850, 5.

[XIV-44] The British had also seized, with Tiger Island belonging to Hond., several isles of Salvador in the gulf of Fonseca. *Salv., Gaceta*, May 17, 1850; *Nic., Cor. Ist.*, Dec. 1, 1849; *Guat., Gaceta*, Nov. 30, 1849; *U. S. Govt Doc.*, 31st cong. 2d sess., Sen. Doc., 26-99.

[XIV-45] Immediate fulfilment of the convention of Nov. 12, 1849; and a formal contradiction in a note to him of all accusations in official organs of the Salvador government against Great Britain and her officials.

[XIV-46] It offered to submit the questions at issue to the arbitration of the U. S. or any of their agents, or to accept some other device that might promise an impartial decision. The note making the offer, dated Aug. 17th, was sent to Chatfield by special courier, but he refused to receive it because it had not been transmitted through the hands of Idígoras, the Brit. consular agent at San Salvador. *Nic., Cor. Ist.*, Sept. 5, 26, Nov. 7, 21, 1850; *Salv., Gaceta*, Aug. 23, Sept. 6, 1850; *Guat., Gaceta*, Nov. 16, 1850; *Cent. Am. Pamph.*, vi. no. 7; *El Progreso*, Sept. 5, 1850.

[XIV-47] *Salv., Mem. Relaciones*, 1851. The blockade was removed at the friendly mediation of the American and Prussian consuls and others. *Nic.; Cor. Ist.*, March 20, 1851.

[XIV-48] Besides arrangements with sister states, the republic maintained treaties of friendship, commerce, and navigation with Belgium, the U. S., France, Great Britain, Spain, Germany, and nearly all the nations of America. A concordat on ecclesiastical affairs was concluded with the pope in 1862. *Squier's Cent. Am.*, 313; *Cent. Am., Miscel. Doc.*, 48; *Costa R., Boletin Ofic.*, March 7, 1855; *El Rol*, Oct. 27, 1854; Feb. 9, 1855; *Nic., Cor. Ist.*, March 21, 1850; *Id., Gaceta*, Feb. 17, 1836; *Salv., Gaceta*, March 8, Apr. 12, 1850; Aug. 5, 12, Nov. 25, 1853; *Id., Diario Ofic.*, Feb. 24, 1875; *Id., Concordato*, 1-20; *Laferrière, De Paris à Guat.*, 319-37; *Annals Brit. Legis.*, 1866, 334; *Mex., Mem. Rel.*, 1878, 7, 11, 45-54, 119; *U. S. Govt Doc.*, 43d cong.

1st sess., H. Ex. Doc. 1, pt 1, 112, pt 2, 796, 821; *Id.*, 48th cong. 1st sess., H. Ex. Doc. 1, pt 1, 236-7.

[XIV-49] Congress was installed Feb. 18th, and one of the first acts of the house of deputies was to pass an act of impeachment against Vasconcelos, and the senate constituted itself as a court to try him upon the charge of violation of the constitution. On the 22d of February, pleading not guilty, he demanded a trial. The result was against him. *Salv., Sen. y Cám. de Dip ... á sus comit.*, in *Cent. Am. Pamph.*, vi. no. 9; *Vasconcelos al Sen.*, in *Id.*, no. 13.

[XIV-50] During Vasconcelos' absence the office had been in charge of Senator Francisco Dueñas.

[XIV-51] Thus we see that Dueñas, whose wont it was while he was working for popularity to use energetic language on behalf of liberalism, now that he has reached the goal of his ambition, changes his tune and calls for the assistance of Carrera against Honduras. *Hond., Gaceta Ofic.*, June 10, 1853.

[XIV-52] Public education was duly attended to, new codes and ordinances implanted to render more regular the national administration.

[XIV-53] This was the seventh time the capital was destroyed; the previous ones being in 1575, 1593, 1625, 1656, 1798, and 1839; none of these, however, were to be compared in violence with the one of 1854. It had been supposed at first that at least one fourth of the population had been buried under the ruins, but it was subsequently ascertained that the number of killed did not exceed one hundred, and of wounded fifty; among the latter were the bishop, Dueñas, and a daughter of Pres. San Martin. The wells and fountains were filled up or made dry. The cathedral and other churches were greatly damaged; the college of the Asuncion and the university building were ruined. Only a few dwelling-houses remained standing, and all were rendered uninhabitable. Money was raised by subscription for the benefit of the destitute, the government of Guat. sending a donation of \$5,000. *Pineda de Mont, Nota*, in *Guat. Recop. Ley.*, iii. 349-50; *Squier's Cent. Am.*, 304-7, 350; *Salv., Gaceta*, May 26, 1854; *Id., Diario Ofic.*, Jan. 26, 1875; *El Rol*, Dec. 1, 1854; *Guat., Gaceta*, Apr. 28, May 19, 1854; *Costa R., Gaceta*, June 10, July 29, 1854; *Packet Intelligencer*, June 17, 1854. The city and about 20 surrounding towns were destroyed March 19, 1873; *Pan. Star*

and Herald, Apr. 8, 1873; *El Porvenir*, Apr. 6, May 11, 25, 1873; *Nic.*, *Gaceta*, Apr. 5, 1873.

[XIV-54] Campo on the 10th of May, 1857, warmly congratulated his fellow-citizens on the end of the campaign in Nic. when the news came of Walker's surrender. *Nic.*, *Boletin Ofic.*, May 28, 1857.

[XIV-55] *Am. Cyclop.*, xiv. 611; *La Nacion*, Apr. 14, 1857. The Salvador flag is required to be 4 varas in length, with horizontal stripes, five blue and four white, the uppermost and lowermost being blue; and a red union with 14 white stars, covering a space up and down equivalent to that occupied by the four upper stripes, and to the extent of 1½ varas. The flag-staff is 20 varas high, exhibiting the same arrangement of colors as the flag.

[XIV-56] On the 10th Barrios and a committee of officers had demanded of Campo that the troops should be ordered to Cojutepeque to receive thanks for their services, adding that a dissolution of the force implied distrust of the general. Campo disregarded this, and also a number of propositions from Barrios, reiterating his order for the disbandment.

[XIV-57] Astaburuaga, *Cent. Am.*, 75-6, assures us it was so, highly commending Dueñas. The president was supported by public opinion, and many of the officers that had taken part in the pronunciamiento afterward tendered him their services. *Guat.*, *Boletin de Noticias*, June 18, 1857.

[XIV-58] 'No hizo otra cosa que rendir la espada ante la autoridad de Campo.' *Perez*, *Mem. Hist. Rev. Nic.*, 2d pt, 214.

[XIV-59] One half of the deputies were to be renewed every two years. The assembly was to meet biennially. *Salv.*, *Diario Ofic.*, Feb. 21, 1875.

[XIV-60] Convention concluded Aug. 9, 1859, between Guat. and Hond. to recognize the constitutional authority established in Salvador, and to repress any attempt to disturb it. Hond. declared herself disposed to keep the peace with Salv., and Guat. guaranteed reciprocity on the part of the latter. This convention was ratified by Carrera, Sept. 20, 1859, and by Barrios and his minister M. Irungaray, Sept. 30th, the same year. *Guat.*, *Recop. Ley.*, i. 439-43.

[XIV-61] In his inaugural address, Feb. 1, 1860, he promised a conservative policy: 'Órden, progreso, libertad bien entendida.... La paz y el órden en el interior, la amistad con los estados vecinos.' *Barrios, Discurso*, 6-7. But, as it will be shown, his policy both in the interior and in regard to the other states of Cent. Am. met with disastrous results from the animosity it engendered. He had had himself made a captain-general, and was accused by his enemies of inordinate vanity, insincerity, fondness for unrestricted power, and lukewarm patriotism; and finally came to be looked upon as a disturber of the peace for his own aggrandizement. He accepted, without leave of the assembly, a decoration tendered him by the king of Sardinia. *Nic., Cap. Gen. Barrios*, 3-14; *Arriola, Rep. del Salv.*, 2.

[XIV-62] May 13, 1862. *Nic., Boletín Ofic.*, July 19, 1862.

[XIV-63] Barrios was said to entertain the plan of partitioning Hond., which was not effected because of Carrera's disapproval; but the murder of Guardiola had afforded him an opportunity to harness Hond. to his car. He was likewise accused of scheming with the aid of Máximo Jerez to control Nic. *Barrios, El por qué de la caída*, 3-4; *Nic., Gaceta*, March 23, May 23, June 6, 1863. Barrios claimed that he was striving to secure the rights of Salvador, supporting at the same time the patriotic aims of the Nicaraguan liberals to establish a government in their country.

[XIV-64] The Capuchin friars had also been expelled.

[XIV-65] The course of the Salvadoran govt was not to the pope's liking. *Arriola, Rep. del Salv.*, 2. However, the bishop, at papal suggestion, offered to return to his diocese, and was told there had never been any objection to his exercise of episcopal functions. *Barrios, Procl. á los Pueblos*, 1-8.

[XIV-66] A treaty of alliance was concluded with him by Samayoa and Dueñas, both Salvador refugees, acting for Guat.

[XIV-67] Notes of E. O. Crosby, U. S. minister, Feb. 2, 1863, and Geo. B. Mathew, Brit. minister, Feb. 8, 1863, to Pedro de Aycinena, minister of foreign affairs of Guat. *Barrios' Manifesto*, 44-52.

[XIV-68] 'Il ne vit dans cette dernière lutte qu'un duel d'homme à homme.' *Belly, Le Nicaragua*, i. 118-19.

[XIV-69] This was on the 24th of Feb., 1863. *Salv., Diario Ofic.*, Apr. 8, 1876; *Belly, A Trav. l'Am. Cent.*, 119-20. Barrios, in his *Manifiesto*, 32, asserts that his own force was 4,000 men, and Carrera's 6,500.

[XIV-70] The army was in three divisions, two of which were under generals Zavala and Cruz.

[XIV-71] *Nic., Discurso ... prim. aniv.*, 3. The Salvadoran contingent in the action was 1,117 men under General Eusebio Bracamonte; but Jerez had the chief command of the allied force. *Nic., Gaceta*, Apr. 18, May 9, 16, 20, 23, June 6, Sept. 12, 1863; *Nic., Boletin del Pueb.*, July 11, 1863.

[XIV-72] June 16, 1863. *Nic., Boletin del Pueb.*, July 4, 1863.

[XIV-73] Sonsonate declared against Barrios June 29th, Cojutepeque July 27th, Zacatecoluca Aug. 14th.; *Nic., Gaceta*, Aug. 22, Sept. 19, 1863; *Id., Boletin del Pueb.*, July 23, 1863. For map of Hond. and Salv., see *Squier's Cent. Am.*

[XIV-74] It has been said that Tallien de Cabarrus, the French chargé, endeavored, after Carrera's defeat at Coatepeque, to persuade a number of French officers who were with Barrios to leave him, which they refused to do.

[XIV-75] Carrera's official report of July 4, 1863, in *Nic., Boletin del Pueb.*, July 17, 23, 1863; *Id., Gaceta*, Aug. 22, 1863.

[XIV-76] He established his headquarters in Coatepeque. Zavala marched on and occupied Santa Tecla, about 12 miles from San Salvador; Col Iraeta was stationed at Chalatenango; and Col Parker in Ilobasco. *Salv., Pronunc.*, 1; *Nic., Gaceta*, Oct. 8, 1863. Dueñas in a proclamation at Santa Ana, July 18th, promised that Carrera and his army, after fulfilling their mission, would return to Guat. leaving the Salvadorans to reorganize a friendly government, in lieu of the turbulent one of Barrios, with the assistance of Bishop Zaldaña. Barrios accused Dueñas, at Panamá Dec. 8, 1863, of having offered Carrera \$100,000 for his assistance to get him into the presidential chair; to pay which a forced loan was decreed. He added that at one time Carrera had made war against the govt of Hond. for \$30,000 that Guardiola offered him. *Barrios, El Presid. legít.*, 3-4.

[XIV-77] Sept. 18, 1863, Zavala, commander of the besieging army, and Dueñas demanded a surrender, and submission to the provincial govt. Dueñas claimed to be recognized as president by Guat., Nic., and Hond. *Nic., Boletín del Pueb.*, Oct. 3, 1863; *Id., Gaceta*, Oct. 17, 1863.

[XIV-78] Carrera not long after had M. Irungaray, minister of state, Yarzun, treasurer, Gen. Perez and his brother, and colonels Abelar and Luna shot, for the sole offence of having served in Barrios' administration.

[XIV-79] Carrera, Oct. 30th, called it a 'vergonzosa fuga.' *Carrera, Procl.*, 1. Barrios was subsequently in 1865 allowed by Costa R. to reside in her territory against the remonstrances of the other Cent. Am. states. These suspended relations with her. Previous to this time he had resided in N. York, where he made many friends. Nic. reopened, through the mediation of the U. S. of Colombia, on the 31st of May, 1865, relations with Costa R., Barrios having departed. *Guat., Recop. Ley.*, i. 458-9; *Nic., Gaceta*, June 17, 1865; *Id., Col. Dec.*, 1865, 8-9, 52-3.

[XIV-80] *Nic., Gaceta*, Nov. 6, 14, 1863. The outrages committed by Carrera and his men are said to have been almost beyond description. One of his acts was to cause Morazan's grave to be broke open, and his ashes to be scattered to the winds. He insulted, plundered, and persecuted citizens, and carried off the Salvadoran artillery and trophies. He took with him to Guat. the prisoners of rank, and confined them many months in the castle of San Felipe situated on the deadly northern coast.

[XIV-81] Cabañas had gone off to Pan. in the steamer *Guatemala*. Particulars of the rebellion, and measures against its authors, in *Nic., Gaceta*, May 6, June 10, July 1, 1865.

[XIV-82] The vessel was sailing without the papers required by law, as was certified by the U. S. consul in Corinto. *Nic., Col. Acuerd. y Dec.*, 61-2; *Id., Boletín del Pueb.*, July 4, 1863.

[XIV-83] The Salv. minister solemnly accepted this condition, and the Nicaraguan govt then delivered Barrios on board the brig *Experimento*. *Nic., Convenio 14 de Julio*, 1-18; *Nic., Docs. Rel. á la recl.*, 1-19; *Nic., Gaceta*, July 29, 1865.

[XV-1] He had been the sole candidate, obtaining 3,400 votes, which did not constitute a majority. Ferrera was of obscure

parentage, and of inferior ability. He was educated by a reactionary priest named Garin, who, wishing him to become a musician of the parish church at Cantarranas, sent him to Tegucigalpa to take lessons on the violin; but the boy made no progress in that direction, and finally was made sacristan of Cantarranas, which position he held a long time, till the revolutionary movements drew him into military life, and he began upholding liberal principles. He figured afterward as vice-jefe, hating his chief, Joaquin Rivera, because he was a democrat. Now we see the sacristan of Cantarranas made president of the state. Francisco Güell, Francisco Zelaya, and Santiago Bueso were recognized as his substitutes in the order named. It was also decreed by the chamber that in the event of a vacancy, absolute or temporary, if the substitutes should be unable to assume the executive duties, the latter should devolve on the ministers of state. *Montúfar, Reseña Hist.*, iv. 191-203. *Wells' Hond.*, 494; *Squier's Trav.*, ii. 449.

[XV-2] We are assured there were 44 te deum masses on that day.

[XV-3] He was credited with having, by his energy, wisdom, and disinterested patriotism, saved the state from civil war and anarchy.

[XV-4] The govt justly attributed the movement to Ex-jefe Rivera, Orellana, Álvarez, Castro, and others, believing the centre of it to be in Leon. It demanded satisfaction from Nic., but obtained none.

[XV-5] The whole was published in *El Descubridor*, official journal of Hond. Every one of Rivera's letters counselled discipline, moderation, and honorable dealing, so as to save the cause from obloquy.

[XV-6] Decree of Dec. 13, 1844.

[XV-7] I mentioned elsewhere the defeat this year at Nacaome of a Nicaraguan force by the garrison under Commandant Morales. The credit of this victory was given to Ferrera, who happened to be in the place at the time, by the ministers in charge of the executive office awarding him a gold medal with the inscription, 'A la heroicidad del General Ferrera en la batalla de Nacaome.' The supreme court had compared him with Alexander, Octavius, Augustus, and Napoleon. The soldiers

of Hond. made him a Miltiades, Temistocles, and Demosthenes. And finally, the official journal pronounced him superior to Julius Cæsar. *Montúfar, Reseña Hist.*, iv. 576-9.

[XV-8] Guardiola was a rough and cruel soldier.

[XV-9] His substitutes were Francisco Güell, Leonardo Romero, and Manuel Emigdio Vazquez.

[XV-10] Rivera, Landa, and Martinez were shot together.

[XV-11] Decrees of Feb. 4 and March 19, 1846.

[XV-12] This proceeding was communicated to the governor of Chiapa for the information of his government. The proclamations were published in Mexico, and probably elsewhere; but I am not aware that the American government took any action upon them. *Id.*, 236-7; *Sun of Anáhuac*, Sept. 14, 1847; *El Arco Iris*, Sept. 22, Oct. 4, 17, 1847; *El Razonador*, Oct. 30, 1847; *El Sonorense*, Nov. 12, 1847.

[XV-13] It provided for only one chamber, and he wanted another for the aristocracy. It recognized freedom of conscience and religion, which to his mind was heresy.

[XV-14] It contained 114 articles; recognized the people as the source of power and sovereignty. All persons born in the states of Cent. Am. and residing in Hond. were given the privileges of full citizenship. Foreigners might become naturalized. The right of suffrage was given to citizens over 21 years of age who could read and write. The state recognized no other religion than the Roman catholic, excluding the public exercise of all others. The government, declared to be popular and representative, was vested in three powers, namely, legislative, executive, and judicial. The executive was placed in charge of a president for four years, and not eligible for two consecutive terms. He appointed his ministers, who had a seat in the legislature. There was a council of state provided, its members being one senator chosen by the gen. assembly, one justice of the supreme court, the minister of the interior, the treasurer, and two citizens elected by the gen. assembly. The assembly was formed of one chamber with 14 deputies, being two for each department, and the senate with 7 members. The judiciary consisted of the supreme and lower courts. The supreme court was divided into two sections, of three justices each, one to

sit in Comayagua, and the other in Tegucigalpa. Each department had a jefe político at its head. *Hond., Constit. de 1848*, 1-21; *Squier's Cent. Am.*, 258-65.

[XV-15] The next term would begin on the 1st of Feb., 1852.

[XV-16] *Nic., Cor. Ist.*, Aug. 1, 1849; *La Union* (S. Salv.), June 15, 1849.

[XV-17] The following were the terms agreed upon: a general amnesty; the confederate diet was to meet at Nacaome, protected by 200 Salvadorans and as many Nicaraguans at the expense of Hond.; and the state assembly also to redress certain alleged grievances; and Jáuregui's conduct in Costa R. to be investigated. All of which was done. *Cent. Am., Miscel. Doc.*, nos. 29-33, 36-43, 50-5; *Salv., Gaceta*, March 15, Apr. 4, 18, May 10, 1850; *Costa R., Gaceta*, March 2, 1850; *Nic., Cor. Ist.*, Apr. 4, May 2, 16, 1850; *Guardiola, Carta Ofic.*, March 30, 1850; *Squier's Travels*, ii. 182. The chambers on the 29th of June declared Lindo a benemérito de la patria, conferring on him the rank of general of division for life, from the expiration of his presidential term. *Hond., Gaceta Ofic.*, Aug. 31, 1850.

[XV-18] The Spaniards knew but little of this region, believing it unhealthy, and had hardly made any attempts themselves to cut wood there. Cancelada, *Tel. Mexicano*, 104-11, computed at nearly twenty-two million dollars the loss sustained by Spain to 1812, including in that sum the original cost, and the resulting profits which had accrued, mostly to the English.

[XV-19] They were likewise forbidden to cultivate sugar, coffee, or cacao, or to engage in manufactures; and they were not to supply arms or ammunition to the Indians dwelling on the frontiers of the Spanish possessions. *España e Ingl. Covenio*, July 14, 1786, in *Cent. Am. Pamph.*, no. 4, 1-7.

[XV-20] Certain acts of that body in 1817 and 1819, in consequence of measures adopted to punish crimes committed in Belize, declared that the crimes could not be punished under British laws, because that territory was not a portion of the United Kingdom. *Peniche, Hist. Rel. Esp. y Mex. con Ingl.*, in *Ancona, Hist. Yuc.*, iv. 223.

[XV-21] The treaty of 1826, with the annexed treaties and conventions of Spain with England and other nations having any

bearing on the subject may be found in *Mex., Derecho Intern.*, i. 437-524.

[XV-22] Villiers, Brit. min. in Madrid, asked the Sp. govt in 1835, and again in 1836, to cede to England any right of sovereignty she might have over Brit. Honduras. The request was not granted, but it implied that England in 1836 did not consider herself to possess the full sovereignty over Belize. Villarta, Mexican min. of foreign affairs, refers to Villiers' efforts in a note of March 23, 1878, to the Brit. govt. The latter, however, in 1836, claimed a larger extent of territory, including the whole coast as far south as the River Sarstoon, and as far inland as the meridian of Garbutt's Falls on the Belize River.

[XV-23] Details in *Bustamante, Hist. Iturbide*, 161; *Squier's Travels*, ii. 412-14; *Id., Cent. Am.*, 582-4, 627-8; *Arrangoiz, Méj.*, ii. 306; *Méx. Soc. Geog., Boletin*, 2d ep., iv. 698-710; *Annals Brit. Legis.*, ii. 84; *Suarez, Informe*, 32-6; *U. S. Govt Doc.*, For. Aff. (Mess, and Doc., pt 1, 65-6, pt iii. 360-1), Cong. 39, Sess. 1.; *Id., Foreign Rel.*, i. 656-61, Cong. 43, Sess. 1.; *Salv., Diario Ofic.*, Nov. 21, 1878; *La Voz de Méj.*, Jan. 31, 1865; Sept. 19, Nov. 1, 1882.

[XV-24] The settlement, as it was called, for it had not even the name of a colony, was ruled by a code of laws established in 1779 by Sir W. Burnaby. Justice was administered by a board of seven magistrates chosen annually. The chief authority was the superintendent, a position always held by a military officer, combining the duties both of first civil magistrate and commander of the forces. *Henderson's Brit. Hond.*, 75-9.

[XV-25] He entitled himself then her Majesty's superintendent and commander-in-chief in and over her possessions in Hond.

[XV-26] M'Donald then appointed an executive council. He also assumed control of the finances. Not satisfied with the right of veto, he legislated in his own person by proclamation, assuming the right of punishing any one acting against his authority or obstructing his mandates. The inhabitants protested against his usurpation of powers, and appealed to the British government and parliament, obtaining some trifling relaxation. They also petitioned that the government should openly assume the sovereignty, so that they might possess their lands without reservation in respect to Spain or Mexico. Their petitions did not

receive any direct reply. However, the govt in 1845, sent out a chief justice, a queen's advocate, and other judicial appendages. *Crowe's Gospel*, 205-6.

[XV-27] The coat of arms of Belize is read as follows: Chief dexter-argent—the union jack, proper. Chief sinister, on the proper—the chief divided from the body of the shield by a chevron-shaped partition from the fess of the dexter and sinister base. Points—the intermediate space azure—a ship with set sails on the sea, passant proper. Crest, mahogany tree. Motto, 'Sub umbra floreo.' Supporters, negroes; that to the left, with a paddle; the other to the right, with an axe over his shoulder. *Stout's Nic.*, 258.

[XV-28] One of the superintendents—supposed to be Col Fancourt—had relations with the ferocious Cecilio Chí, which was officially communicated by Mexico to the Brit. chargé, Doyle, March 12, 1849. *Ancona, Hist. Yuc.*, iv. 234; *Yuc., Expos. Gob. Créditos*, 98-102.

[XV-29] The population about 1804 was set down at not more than 200 white persons, 500 free colored, and 3,000 negro slaves. The white pop. gradually decreased. In 1827-8, the pop. was between 5,000 and 6,000; in 1838, 8,000; in 1850, 15,000; in 1863, 25,000. *Squier's Cent. Am.*, 587-8; *Dunn's Guat.*, 13-14; *Osborne's Guide*, 234; *Valois, Mexique*, 150; *Pim's Gate of the Pac.*, 20. The town of Belize, at the mouth of the river of the same name, generally has 6,000 inhabitants. The dwellings of the wealthy class are large and comfortable. Besides the govt houses, court-house, barracks, and jail, there are several churches, episcopal, methodist, baptist, and presbyterian, and some large and costly fire-proof warehouses. The town has experienced two destructive conflagrations, one in 1854 and another in 1863. *Packet Intelligencer*, June 17, 1854; *Guat., Gaceta*, Sept. 7, 22, 1854; *La Voz de Méj.*, May 9, 1863.

[XV-30] It was effected without disturbance, and attended with the happiest results. *Crowe's Gospel*, 205.

[XV-31] Much smuggling was carried on to and from it.

[XV-32] *Annals Brit. Legis.*, iii. 368; v. 263; vii. 228; x. 386-7; 391-2; xii. 139-40; xiv. 304; *U. S. Comm. Rel.*, 1863-77, passim. *The Encyclop. Brittan.*, xii. 136-7.

[XV-33] He concluded to proceed to Jamaica for further instructions. *El Revisor*, Jan. 5, Feb. 16, 1850; *Hond., Gaceta Ofic.*, Oct. 19, 1849.

[XV-34] Chatfield, the Brit. chargé, was present at the act. *Id.*, Nov. 30, 1849; *Stout's Nic.*, 278; *Salv., Gaceta*, Feb. 15, 1850. The object of the seizure was to secure Honduras' proportion of the indebtedness of Cent. Am. to Brit. creditors.

[XV-35] Under a convention in three articles concluded at Leon Sept. 28, 1849. The cession was for 18 months, and had been made known the same date to all diplomatic agents in Cent. Am. *Hond., Gaceta Ofic.*, Oct. 19, 1849; *Nic., Cor. Ist.*, Nov. 16, 1849. The corresp. of the govt of Hond. with the Brit. chargé appears in *Cent. Am. Correspond.*, *Isla de Tigre*, 1-8; *Cent. Am., Miscel. Doc.*, nos. 21, 25, 28; *U. S. Govt Doc.*, Cong. 31, Sess. 2, Sen. Doc. 43, 1-26; *Id.*, Cong. 31, Sess. 1, H. Jour., 1739, 1801.

[XV-36] *Nic., Cor. Ist.*, Jan. 16 and suppl., Feb. 16, 1850.

[XV-37] 1st. Great Brit. recognized the independ. of Hond. as a sovereign republic, pledging her good offices to avert any attempts against that independ. Hond. at this time was a member of a confederacy with Salvador and Nicaragua, and was made to bind herself not to dispose of any portion of her territory before she had definitely settled Brit. claims. 2d. Hond. was to accredit within six months a commissioner in Guat. to conclude a treaty of friendship, commerce, and navigation with G. Brit. 3d. Hond. recognized the indebtedness of \$111,061. 4th. She bound herself to pay that sum in yearly instalments of \$15,000 at Belize. The other articles were of less importance. *Salv., Gaceta*, Apr. 5, 1850; *Hond., Ligeras Observ.*, 1-10.

[XV-38] Jáuregui, March 24, 1850, in a pamphlet issued at Leon, defended his conduct, alleging that he had ample powers. *Justific.*, in *Cent. Am. Pamph.*, i. no. 7.

[XV-39] Independent of £1,425 paid for her proportion of Cent. Am. indebtedness to Finlay, Hodgson, & Co. of London. *Hond., Gaceta Ofic.*, Jan. 30, 1853.

[XV-40] The British seized Roatan June 3, 1830, driving away the small Central American garrison. Similar attempts have been made since 1743 by British subjects, though unsuccessfully. The seizure of 1830 lasted only a short time, having been

disallowed by the British government. *Crowe's Gospel*, 212; *Montúfar, Reseña Hist.*, iii. 424-7; iv. 71-5.

[XV-41] 'Whose territorial right is indisputable,' he alleged. He based his action on the treaty of April 19, 1850, between the U. S. and Great Britain, under which neither power was to have colonies or settlements in Central America. The U. S. took part in defence of Honduras' rights and overthrew the British pretensions. *Squier's Cent. Am.*, 621-6, 740-8; *Democratic Rev.*, xxx. 544-52.

[XV-42] Under a decree of the superintendent of Belize. The comandante of Trujillo, by order of his government, protested against the occupation Sept. 13, 1852. *Hond., Gaceta Ofic.*, Dec. 15, 1852; *El Siglo*, Jan. 1, 1853.

[XV-43] Art. 1. Great Britain recognized the islands to belong to Hond. The latter pledged herself not to cede them to any other nation. Art. 2. The former power recognized as part of Hond. the country till then occupied or possessed by the Mosquito Indians within the frontier of the republic, whatever that frontier might be. *La Union de Nic.*, March 9, 1861; *Pim's Gate of the Pac.*, 412-15. Further details in connection with the Bay Islands question may be seen in *Bay Islands, Queen's Warrant, etc.*; *La Nacion*, Nov. 9, Dec. 26, 1856; *Brit. Quart. Rev.*, xcix. 270-80; *Caicedo, Lat. Am.*, 76-80.

[XV-44] The grounds alleged for this violent action were: 1st, That the Brit. vice-consul's residence had been broken into by Hond. troops, and robbed; 2d, That Omoa was sacked by these troops, and goods to the value of \$100,000 had been stolen from British subjects; 3d, That some British subjects had been drafted into the army, and an Englishwoman unjustly imprisoned. *Nic., Gaceta*, Oct. 25, 1873; *El Porvenir de Nic.*, Sept. 21, 1873; *Nic., Semanal Nic.*, July 27, 1874.

[XV-45] Streber, who commanded the troops accused of these abuses, defends the rights of Honduras in the controversy, in *Exposic. Doc. Suc. Omoa*, 30-44, 66-103.

[XV-46] She had to settle, in 1850, claims of French citizens, and in 1851 of Prussian subjects. *Hond., Gaceta Ofic.*, Aug. 31, 1850; Jan. 15, 1852; *Costa R., Gaceta*, Nov. 16, 1850.

[XV-47] Nic. had claimed on the N. E. the river Patuca to its mouth, Hond. claimed the Coco to its mouth. The commissioners agreed upon a compromise line between those rivers, namely, the summit of the Dilpito cordillera, from the point where it becomes detached from the main body, which divides the waters running to both oceans; and from the point where it and the line continues eastwardly to the waters of the Atlantic in lat. 15° 10' N., and long. 83° 15' W. of Greenwich. *Nic., Mem. Rel.*, 1871, 5-7.

[XV-48] About this time he was on the Nic. frontier mediating for peace between the belligerents of that state. His efforts proving successful, he was warmly congratulated by his friends on his return. *Hond., Gaceta Ofic.*, Nov. 26, 1851; *El Siglo*, Dec. 13, 1851; *Cent. Am. Pamph.*, vii. no. 2.

[XV-49] Cabañas, *El Presid ... á sus Conciud.*, 1-6. The office had been provisionally in charge of Senator Francisco Gomez. *El Siglo*, Feb. 21, March 19, 1852.

[XV-50] Cabañas was of diminutive stature, but of erect mien. He was aged about 50 at this time. His face was pale and mild; his gestures were in keeping with the intelligent play of his features; his manners gentle, almost womanly, but beneath this placid exterior was a stern, indomitable spirit. After many years of prominence as a leader, during an anarchical period, even his enemies never accused him of selfishness or rancor. *Squier's Trav.*, ii. 177; *Wells' Hond.*, 184. Cabañas was a brave soldier, but could not be called a successful general. Perez, a political opponent, speaking of him as the chief of the coquimbo party, says: 'Mal general, excelente soldado, nunca vencedor, siempre con prestigio, y uno de los mas fogosos promotores de la nacionalidad centro Americana.' *Mem. Hist. Rev. Nic.*, 16. The assembly, May 21, 1851, had conferred on him the title of 'soldado ilustre de la patria.' His death occurred Jan. 8, 1871. *El Siglo*, June 12, 1851; *Nic., Gaceta*, Aug. 19, 1851; Jan. 29, 1871.

[XV-51] Astaburuaga attributes this war to Cabañas' attempts to promote an insurrection in Guat. against his old enemy Carrera. *Cent. Am.*, 70-1.

[XV-52] The Guatemalans took the fort and city of Omoa, and carried away all the useful artillery, against the stipulations agreed upon at the surrender. *Wells' Hond.*, 507-8; *Guat., Gaceta*, Sept. 16, 23, 1853.

[XV-53] This Lopez commanded at Omoa when the place was given up in 1853 to the Guat. Col Zavala, since which he had been suspected of treachery. *Wells' Hond.*, 515; *Costa R., Gaceta*, Jan. 15, 1854; *Id., Boletin Ofic.*, Dec. 30, 1854; *Hond., Gaceta Ofic.*, May 10, 1854, to Feb. 10, 1855, passim; *Guat., Gaceta*, Nov. 3, Dec. 22, 1854.

[XV-54] He had received no aid from Salv., owing to Carrera having falsely reported his intention to sell territory to a foreign power.

[XV-55] The executive office went, Oct. 14, 1855, into the hands of Vice-president S. Bueso, who pleading ill health left it in charge of Senator Francisco Aguilar. *Guat., Gaceta*, Nov. 9, 1855, Feb. 16, 1856.

[XV-56] *Perez, Mem. Hist. Campaña Nac.*, 13.

[XV-57] Guardiola was a dark-colored, stout-built, and rather corpulent zambo, a man of fiendish instincts, but popular with his soldiers, whom he indulged in every way. He possessed all the vices and was guilty of about all the crimes known to man. When in his cups he would order men to be shot by way of pastime. At the mention of his approach to a town, the inhabitants would flee to the woods. He was the tiger of Cent. Am. *Dunlop's Cent. Am.*, 237; *Wells' Hond.*, 517; *Wappäus, Mex. und Cent. Am.*, 306-7. William V. Wells, *Explorations and Adventures in Honduras*, New York, 8vo, 588 pp., with maps and illustrations, went to Honduras with the object of obtaining from her government leave to work gold placers, and of opening commercial relations. He visited several places, both in Nicaragua and Honduras, which he describes quite accurately, together with the manners and customs of their inhabitants. His information on mines and mining is valuable. There are in the work three chapters devoted to history from 1821 to 1857, the groundwork of which is mostly from other authors, and one chapter is filled with data on commerce, revenue, debt, etc., and still another treats of coins and currency, weights and measures, and productions, with illustrations. The style is good, the work readable and instructive. Portions are evidently taken from Squier, and the illustrations are mostly identical with those of Squier's *States of Central America*. The same author gave to the press in New York, a 12mo, with 316 pp., map and portrait, under the title of *Walker's Expedition to Nicaragua*. This work, as the title implies, is almost entirely devoted to Walker's career in this country, which is justified as

well as praised. Here and there he mentions some historical facts on British pretensions in Mosquito, a short résumé on Nicaragua, the Nicaragua transit route, and a short review on colonization, commerce, and mining, compiled from several sources. There is no system or arrangement, having been, as the author alleges, 'written, published, and put in circulation in twenty days,' a feat few authors would go out of their way to boast of. But taken all in all, the book is well worth perusing.

[XV-58] Decree of Jan. 5, 1861. *La Union de Nic.*, Feb. 2, March 9, May 25, 1861.

[XV-59] Chiefly in Nacaome and Choluteca.

[XV-60] *Nic., Boletin Ofic.*, Jan. 25, March 22, 1862. This deed was said by the enemies of Pres. Barrios of Salv. to have been instigated by him. *Id., Boletin Pueb.*, July 11, 1863. There was no ground for the charge. The government of Guat. proposed to other states to recognize no administration of Honduras until the criminals, who had been arrested, should suffer punishment. *Costa R., Informe Rel.*, 1862, 24.

[XV-61] *Nic.* despatched P. Zeledon as mediator, but the motives of his gov. were bitterly denounced by the press of Comayagua.

[XV-62] Feb. 4, 1862. *Nic., Boletin Ofic.*, March 22, 1862.

[XV-63] Castellanos declined going to the capital, and Medina went to his residence and formally surrendered the executive authority to him.

[XV-64] This was the result of the defeat of the troops of Salv. and Hond. by the forces of Guat. and Nic. on the plain of Santa Rosa.

[XV-65] This decree is signed by Medina as 'presidente de la república de Honduras,' July 20, and rescinded Sept. 8, 1863. *Nic., Boletin Pueb.*, Aug. 9, Oct. 9, 1863.

[XV-66] His senatorial term having expired. *Nic., Gaceta*, Feb. 13, 1864.

[XV-67] The election of Xatruch was afterward declared unconstitutional, Feb. 26, 1865. *Nic., Gaceta*, April 1, 1865.

[XV-68] Its sittings lasted from Sept. 7th to Oct. 29th. The sovereignty of the people was recognized. The catholic, any other kind of public worship being forbidden, was declared the state religion. The executive authority was vested in a president for four years, with a council of state consisting of his two ministers, one senator chosen by both houses of the assembly, and the chief justice. The legislative power rested in a senate and house of deputies. The existing political division of the republic was left unchanged. *Id.*, Nov. 11, 1865; *Camp's Year-Book*, 1869, 527; *The Am. Cyclop.*, viii. 790.

[XV-69] He had temporarily, pleading ill health, left the executive in the hands of Crescencio Gomez. The assembly appointed, as substitutes of Medina, Saturnino Bogran, C. Gomez, and Francisco Medina.

[XVI-1] Also with the view of extending the area of African slavery, as had been successfully carried out in Texas.

[XVI-2] The expedition was antagonized by the Transit company, and arrested by the authorities of the U. S. as a violation of their neutrality laws. Kinney reached San Juan del Norte, after some mishaps, with only a few followers, and was unable to do any serious injury to Cent. Am. *Costa R., Inf. Rel.*, 1858, 4-6; *Id.*, *Boletin Ofic.*, March 16, 1854; *Nic., Doc. Dipl. Hist.*, 15-58. His arrival was after the destruction of the town by the U. S. sloop of war *Cyane*, and infused new energy into the inhabitants. At a public meeting held on the 6th of Sept., 1855, the necessity of establishing a provisional government for the maintenance of peace and order was recognized, and Kinney was chosen civil and military governor to rule by and with the advice of a council composed of five persons. Among the resolutions was one adopting as a basis to regulate the action of the govt, the former constitution of San Juan del Norte, or Greytown, which was modelled after that of the U. S. with a few exceptions. Kinney did not hold the position long. He was disappointed in his expectations, and resigned; he afterward visited Granada, and at William Walker's instance an order of expulsion was issued against him. *Stout's Nic.*, 177-82; *S. F. Alta*, Oct. 3, 1855; *S. F. Golden Era*, March 9, 1856.

[XVI-3] Jerez had made a similar arrangement at Jalteva with one Fisher, to bring 500 men; and Gov. Espinosa of Rivas stipulated with Hornsby and De Brissot for the capture of Fort San Juan from the legitimists. These parties tendered their

contracts to William Walker, the so-called ex-president of Sonora, who would not accept them.

[XVI-4] Under the contract the so-called colonists were to arrive at Realejo in Feb. or March 1855, and the time having elapsed, Castellon wrote Walker Apr. 9th authorizing him to land at that port 'la gente y municiones, ó tren de guerra que V. traiga á disposicion del gobierno provisorio.' *Perez, Mem. Hist. Rev. Nic.*, 136-7; *Sac. Union*, Feb. 15, 1855.

[XVI-5] *El Nicaragüense*, Aug. 3, 1856; *S. F. Alta*, May 5, 1855.

[XVI-6] William Walker was born in Nashville, Tenn., in 1824, being of Scotch descent. After receiving a classical education, he studied law, and later followed the medical profession for a time in Philadelphia. He then travelled in Europe one year, and on his return was connected with some of the important newspapers of the country, north, south, and west. Tiring of that, he successfully practised law in Marysville, Cal. In 1852 he visited Guaymas, and from the operations of Count Raousset, conceived the plan of creating with adventurers from California independent republics in some of the sparsely populated territories of Mexico. Hence his expeditions to Sonora and Lower Cal., of which I give full accounts in my vol. on the north-western states of Mex. Few persons, unacquainted with Walker, would suspect the presence of so much ability and energy beneath his plain exterior. He was but little more than 5 ft. 4 in. in height, with a rather dull and slow appearance; a man of few words, though an attentive listener, his aspect was that of a serious, thoughtful person. A remarkable feature of his face was a deep, intensely brilliant blue-gray eye, large and intelligent. Sincere and devoted to his friends, says a devoted adherent, his enmity, though not violent, was not easily appeased. He was indifferent to personal ease and comfort, and to the acquisition of wealth. *Wells' Walker's Exped.*, 21-3, 199-201. He was not incapable of lofty conceptions, and possessed courage and abnegation; but there was little of what might be called genius about him, though his mind was sufficiently unbalanced in certain directions to give him a title to that distinction. He wished to be a great man like Cæsar or Napoleon, but the elements of that quality of greatness were absent. He might have carved for himself a career of honor and usefulness, but for the restless ambition that possessed him to attain a place among the notabilities of the world, even by a disregard of law and justice.

The idea of manifest destiny, so prevalent among his countrymen, which implied the conquest of the Latin race in America by the Anglo-Saxon, afforded him, as he imagined, the opportunity for attaining the coveted renown, and at the same time securing, through his instrumentality, the future happiness of Spanish America. But unfortunately for him, he committed, at the inception of his career in Nic., acts which alienated him the men who had invited him to coöperate in the consolidation of democratic principles; and some of his later measures, whatever may be thought of his earlier ones, savored of recklessness, and of disregard for the good opinion of mankind.

[XVI-7] Muñoz had openly opposed all interference of foreigners in the affairs of Nic.

[XVI-8] They afterward returned to Leon, via Realejo, to continue serving. The legitimists had many killed and wounded, among the first being Col E. Argüello and F. Elizondo. Of Walker's foreign force, Col Achilles Kewen, Maj. Crockett, and eight others were killed, and 12 wounded. *Wells' Walker's Exped.*, 52; *Perez, Mem. Hist. Rev. Nic.*, 138; *S. F. Alta*, July 16, Aug. 14, 1855; *Astaburuaga, Cent. Am.*, 88; *Belly, Nic.*, i. 271; *Ferrer de Conto, Cuest. de Méj.*, 155.

[XVI-9] In his official report of the affair Walker laid the blame for his ill success on Muñoz, who had apprised Corral of the intended operations, and had induced Ramirez to forsake him during the action. He demanded an investigation into Muñoz' conduct, and if it were not granted he would quit the service. Castellon informed him in reply that in the present critical condition of the democratic cause it was unadvisable to displease Muñoz. After much correspondence and negotiation, Walker agreed to continue his services.

[XVI-10] Cholera spread rapidly throughout the country, causing great havoc everywhere.

[XVI-11] Muñoz' death never was attributed to the enemy's bullets. It was a regular case of assassination resulting from intrigues in his own party to rid themselves of him. The assassin was a young Honduran named José María Herrera, who later deserted from Walker's ranks, and being arrested and sentenced to death, confessed that he had killed Muñoz. A Nicaraguan named Santa María, who was shot at San Jorge in 1857, seems to have been an accomplice. *Perez, Mem. Hist. Rev. Nic.*, 141-3.

[XVI-12] He was suspected of treachery. He had displeased the officers by his coarseness, and had spread terror among the troops with his exaggerated reports of Yankee valor and skill with fire-arms. *Id.*, 145; *Wells' Walker's Exped.*, 55-8; *S. F. Herald*, Oct. 10, 1855; *Id.*, *Alta*, Oct. 10, 1855; *Sac. Union*, Oct. 19, 1855.

[XVI-13] He was joined by such men as T., C., and Daniel Canton, Máx. Espinosa, and Ramon Umaña. The last named brought troops and supplies from Leon.

[XVI-14] In the early part of Sept., Gen. José M. Ballesteros, Muñoz' successor, had sent two companies in the direction of Managua, who were undone by Col Tomás Martinez with 200 men; on the 12th Gen. Pineda marched afterward with a double force against the legitimists, but failed to meet them.

[XVI-15] Corral was in Rivas with his numerous army. Fulgencio Vega, the comandante of Granada, who was hated by the democrats as the author of persecutions, hid himself and was not discovered.

[XVI-16] The legitimists who were pent up in the city tendered their allegiance, among them the minister Mayorga. There were others who volunteered their coöperation; among them the naturalized citizens Charles and Emile Thomas, Fermin Ferrer, a wealthy citizen, and the beloved and respected clergyman, Agustin Vigil, noted for his virtues, learning, and eloquence, who from the pulpit called Walker the 'angel tutelar de Nicaragua,' or the north star that was to guide Nic. to her advancement. *Wells' Walker's Exped.*, 61-5; *Perez, Mem. Hist. Rev. Nic.*, 150-1; *Belly, Nic.*, i. 271-2; *Astaburuaga, Cent. Am.*, 89.

[XVI-17] The commissioners were Sebastian Escobar, José Argüello Arce, Hilario Salva, and R. Vives. *Perez, Mem. Hist. Rev. Nic.*, 152.

[XVI-18] The commissioners, Rosalío Cortés and Ramon Marengo, were imprisoned in irons at Leon.

[XVI-19] This person took asylum in the house of U. S. Minister Wheeler, who assured him that he was under the protection of the U. S. flag. But as Wheeler was mixed up in filibustering schemes, he broke his pledge and surrendered Mayorga. *Perez, Mem. Hist. Rev. Nic.*, 157.

[XVI-20] An American, who had been the recipient in Granada of many marks of consideration.

[XVI-21] Walker's organ gave a list of killed and wounded. *El Nicaragüense*, Nov. 17, 1855; *S. F. Herald*, Nov. 4, 1855; *S. F. Bulletin*, Nov. 5, 1855.

[XVI-22] It is claimed that he had been tried for treason by a court-martial of native officers. *Wells' Walker's Exped.*, 77.

[XVI-23] They reported, as coming from Walker, that he was resolved to shoot all the prisoners if he did not receive at 9 P. M. a satisfactory answer respecting arrangements. *Perez, Mem. Hist. Rev. Nic.*, 159; *Belly, Le Nicaragua*, 273.

[XVI-24] Walker claimed to have powers, and Corral was 'facultado omnímodamente.' The following is a synopsis of the convention: 1st. Peace and friendship between the contending parties; 2d. Patricio Rivas to be president for 14 months, unless he should resolve, with the advice of his ministers, to order elections before the expiration of that term; 3d. The president is to have four ministers, namely, for war, relations, treasury, and pub. credit; 4th. Govt to respect and cause to be respected chapters 2d, 3d, and 4th, and clauses 2d and 3d of the general regulations of the constitution of 1838; 5th. General forgetfulness of and amnesty for past political offences; 6th. Debts incurred by both belligerents to be recognized by the govt; 7th. Military grades of both belligerents to be recognized; 8th. All persons desirous of leaving the republic may freely do so, with full guaranty of persons and estates; 9th. The French legion may continue in service by becoming Nicaraguan; 10th. Walker to order the force in front of Managua to retire at once to Leon, reducing it to 150 men; after which Corral should reduce the force in Managua to 100, under Gen. Martinez, and that in Masaya to 50, under Col Lino César, or some other honorable officer; 11th. The Rivas force will remain under Gen. Florencio Xatruch; 12th. The govts existing in Nic. to cease acting upon being notified of this arrangement by the respective generals; any one refusing to comply was to be treated as a disturber of the peace. Additional articles: 1st. Twenty-four hours after Rivas' arrival in Granada, Corral's army from Masaya was to enter Granada, and together with Walker's, escort the president and the two generals to church to return thanks to God for the restoration of peace. Walker to be the general-in-chief of the army, appointed by a special decree. Corral should surrender the command, arms,

etc., unless otherwise ordered by the new govt; 2d. The govt must reside in Granada; 3d. The army was to use no other badge than a blue ribbon, with the inscription Nicaragua Independiente. *Id.*, 161-4; *El Nicaragüense*, Oct. 27, 1855; *Nic.*, *Boletin Ofic.*, Apr. 9, 1856; *Guat.*, *Gaceta*, Nov. 16, 1855; *Stout's Nic.*, 182; *S. F. Alta*, Nov. 17, 1855; *Wells' Walker's Exped.*, 77-80; *Guat.*, *Gaceta*, Nov. 16, 1855.

[XVI-25] A plan had been formed to proclaim Martinez their general, and to march against Granada, but the principal chiefs discountenanced it. Corral assured the troops that their former enemies were now friends and brothers, recommending strict discipline 'so pena de ser pasado por las armas el que de cualquiera manera violase la amistad y alianza prometidas.' *Perez, Mem. Hist. Rev. Nic.*, 166-7.

[XVI-26] 'Cedí únicamente al imperio de las circunstancias, Sin tener libre voluntad para ello.' *Nic.*, *Boletin Ofic.*, May 29, 1856.

[XVI-27] Sacaza, Dueñas, Pedro J. Chamorro, and two others.

[XVI-28] Norberto Ramirez, who favored its ratification as the least of two evils, said in the council: 'I know that we have before us two abysses; one close by, and the other a little farther off: that the disapproval of the treaty carries us to the nearest one, and its approval to the other somewhat more distant.' His advice was followed. *Perez, Mem. Hist. Rev. Nic.*, 168.

[XVI-29] Máximo Jerez, B. Selva, A. Orozco, Rafael Jerez, Justo Lugo, P. Fonseca, and José Salinas.

[XVI-30] Rivas was reputed an honorable, firm, and enlightened man. He had repeatedly been a candidate of the conservatives for the executive office.

[XVI-31] To Xatruch he said, 'Nosotros estamos muy mal, muy mal, muy mal. Acuértese de sus amigos. Ellos me han dejado esta pesada carga y espero su socorro.' To Guardiola, Nov. 1st: 'It is necessary that you write our friends of the peril we are in, and that they must go actively to work. If there is a delay of two months, it will then be too late. Think of us and of your offers.... Nicaragua, Honduras, San Salvador, and Guatemala will

be lost if they allow this to assume proportions; let them come quickly if they expect to find auxiliaries.'

[XVI-32] Benito Lagos, the man to whom they were intrusted for delivery, took them to Granada and gave them to Valle, who surrendered them to Walker.

[XVI-33] Walker had, after adopting precautions against resistance, made them stack their arms in the plaza, and disperse.

[XVI-34] It was a violation of the constitution of 1838, and of the laws. Corral, as a minister, could not be tried without a prior impeachment, and only by the senate; and as a private citizen, by the common courts.

[XVI-35] Hornsby was president of the court; Fry, auditor or judge-advocate; French, counsel for the prisoner; and Charles Thomas, interpreter.

[XVI-36] He died bravely, Father Vigil attending him to the scaffold. He was shot by a squad of American riflemen, commanded by Lieut-col C. H. Gilman. *Astaburuaga, Cent. Am.*, 91; *Perez, Mem. Hist. Rev. Nic.*, 171-3; *Stout's Nic.*, 197-8; *Wells' Walker's Exped.*, 92-4.

[XVI-37] As opportunity occurred, they all ran away, some to the mountains, and others to the neighboring states to work in saving their country from the ruthless foreign sway.

[XVI-38] Yankees, so called, were all foreigners, of whatever nationality, serving with Walker.

[XVI-39] José Hilario Herdocia, vicario capitular, having addressed him a congratulatory letter, he answered that 'el temor de Dios es el fundamento de toda organizacion política y social.'

[XVI-40] His contract with Castellon authorized him only to bring 300 immigrants; but he soon obtained leave to augment his forces, and to enlist men as best he could. A decree published Nov. 23, 1855, offered 250 acres of land to each immigrant, and 100 more to each family. The title deed was to be issued six months after arrival. Fabens was named director of colonization.

[XVI-41] Art. 1st required the return of those sojourning in the republic within 15 days, and of those who were abroad within

one month. Art. 2d imposed fines ranging from \$50 to \$10,000 on such as failed to obey. *El Nicaragüense*, Nov. 17, 1855.

[XVI-42] Among them Pres. Estrada, Gen. Martinez, and Col Fulgencio Vega.

[XVI-43] Hornsby went to Managua in the early part of December, and brought him to Granada, where he was treated as the guest of the nation.

[XVI-44] Diplomatic correspondence of the Salv. and Hond. govts Nov. 22 and 28, 1855, in *El Nicaragüense*, Jan. 5, 1856.

[XVI-45] 'Aunque sea en un rincon de Honduras.' Estrada well knew this was illegal; but following the advice, he applied to Guardiola for permission, and it was refused him.

[XVI-46] Though the Costa Ricans had a cordon sanitaire to prevent intercourse with cholera-stricken Nic., Gen. Cañas received orders to furnish resources to Gen. Florencio Xatruch, and other officials of the dept of Rivas, who fled to Costa Rica on hearing of Corral's execution.

[XVI-47] Bishop Llorente also warned them that their religion was in peril.

[XVI-48] Sec. of state Marcy wrote Dec. 21st, in answer to his communication of the 12th, that the president saw as yet no reason to hold diplomatic intercourse with the persons 'who now claim to exercise the political power in the state of Nicaragua.' He said that the persons chiefly instrumental in overthrowing the former govt were not citizens of Nic., 'nor have those citizens, or any considerable part of them, so far as is now known here, freely expressed their approval of, or acquiescence in, the present condition of political affairs in Nicaragua.'

[XVI-49] Wheeler was told, however, by the foreign minister of Nic. that though official relations were suspended, the utmost good feeling existed toward him. *El Nicaragüense*, Feb. 2, 1856.

[XVI-50] The assistance would have been given him but for Walker, 'no mandaban los democráticos, sino Walker.' It was not for Walker's interest just then to engage in hostilities against any neighboring power. *Perez, Mem. Camp. Nac.*, 2d pt, 21.

[XVI-51] He exerted himself there in promoting action for the expulsion of Walker from Cent. Am.

[XVI-52] His most influential opponent was a small club of conservatives, the leaders of which were Fernando Guzman, Agustin Avilés, and Ramon Alegría. Gerónimo Perez was also a member. *Id.*, 23-6.

[XVI-53] Hermenegildo Zepeda, G. Juarez, and N. Ramirez came from Leon to Granada to arrange it with Walker, who at once caused the decree to be issued. This journey brought Ramirez to his death, resulting from a fall, which broke a leg. He was an able, enlightened man, and had been chief of Salvador, and also of Nicaragua in 1849.

[XVI-54] The govt of Nic. was entitled to a share of the company's receipts, which it had never succeeded in getting. Chamorro had taken measures to force the company to pay their indebtedness, but was precluded by the revolution of 1854. The company was accused of aiding the revolutionists, and of having afterward encouraged the importation of the filibusters who overthrew the legitimist govt.

[XVI-55] Randolph, W. R. Garrison, and Macdonald had arrived at Granada from California, Dec. 17, 1855, bringing upwards of 100 recruits for Walker, contracted for with Crittenden, his friend and agent.

[XVI-56] This was done by Rivas, though firmly convinced that it was tantamount to a sale of Nicaragua.

[XVI-57] The decrees, orders, and editorial comments thereon, in the government's organ. *El Nicaragüense*, Feb. 23, 1856; *Astaburuaga*, *Cent. Am.*, 97-8; *Belly*, *Le Nicaragua*, 279-80; *Wells' Walker's Exped.*, 208-15; *S. F. Bulletin*, March 22, April 10, 1856; *S. F. Alta*, March 23, 1856; *Sac. Union*, March 24, April 25, 1856.

[XVI-58] 'Para que recabe de aquel gabinete una franca explicacion sobre la política que ha estado observando con respecto al actual Gobierno de Nicaragua.' *El Nicaragüense*, Feb. 16, 1856.

[XVI-59] Joaquin B. Calvo, min. of relations of Costa R., in his report to congress, Aug. 11, 1856, speaks of that mission with

contempt, 'porque desconocida aquí la mision del filibustero, se le hizo regresar de la frontera.' *Costa R., Mem. Rel.*, 1856, 4.

[XVI-60] Laws of Feb. 27 and 28, 1856; *Costa R., Col. Ley.*, xiv. 7-14, 16; *U. S. Govt Doc.*, Cong. 34, Sess. 1, Sen. Doc., 68, 121, 133-49, vol. xiii.

[XVI-61] Nominally; the real commander was a German officer named Baron Bulow. *Perez, Mem. Camp. Nac.*, 2d pt, 34; *Costa R., Pap. Sultos*, no. 8; *Wells' Walker's Exped.*, 169.

[XVI-62] Perez, quoted above, 42, gives the 21st.

[XVI-63] According to Costa Rican reports, only 480 of their men took part in the action, the enemy's defeat being the effect of a surprise and a bayonet charge. Their casualties were set down at 4 officers and 15 soldiers killed. The filibusters had upwards of 20 slain. *Id.*, 42-5; *Salv., Gaceta*, Apr. 3-24, 1856; *Nic., Boletin Ofic.*, Apr. 9, 16, 1856. In California the report received was of 90 killed in the fight and 19 executed. *S. F. Alta*, May 2, 1856; *Belly, Le Nicaragua*, 283; *Wells' Walker's Exped.*, 153-68.

[XVI-64] As armed invaders not serving under the flag of any recognized nation. *Costa R., Mem. Rel.*, 1856, 4; *Astaburuaga, Cent. Am.*, 94. However correct the logic, it was an imprudent act, as Walker might retaliate on Costa Rican and other Cent. Am. prisoners. Wheeler, without instructions from the U. S. govt, took upon himself to officially say to Mora that the execution of these men was a cold-blooded murder, assuming at the same time that the men serving under Walker were citizens of his own country. *Wells' Walker's Exped.*, 170-5. The fact is that only two or three were natives of the U. S.

[XVI-65] He was accused of cowardice and even of treachery, and arrested for trial, but escaping afterward from prison, was sentenced to death as a deserter. He turned up in Teustepe, where he was allowed to serve in the legitimist force. *Wells' Walker's Exped.*, 257-8.

[XVI-66] Commanded respectively by majors Alfaro Ruiz and Escalante, and Col Salvador Mora.

[XVI-67] 'Triunfó completamente sobre ellos, escarmentándolos, y poniéndolos de nuevo en vergonzosa fuga.' *Costa R., Mem. Rel.*, 1856, 5. According to *Astaburuaga, Cent. Am.*, 96, the Costa Ricans had 120 killed, and Walker upwards of

200. Perez, *Mem. Camp. Nac.*, 2d pt, 48, gives the Costa Rican casualties to have been 150 killed and 300 wounded; and Walker's 60 killed and 70 wounded. Wells, claiming a glorious victory for his hero Walker, says that the Costa Rican loss could not have been less than 600 killed; and that of the wounded and deserters no precise estimate could be formed. Walker's loss he sets down at 30 killed and as many wounded. There is no honor or profit in such mendacity. *Walker's Exped.*, 175-88, 245-7; *S. F. Bulletin*, June 2, 3, 1856; *S. F. Alta*, June 2, 1856; *Sac. Union*, June 4, 1856. Belly, *Le Nicaragua*, 283-4, states that though the battle cost the Costa Ricans 700 men, 'mais qui fit éprouver de telles pertes à l'envahisseur, qu'à dater de ce moment, il perdit confiance dans sa destinée.' His letter of April 15th to Senator Weller of Cal. proved this.

[XVI-68] Minister Salinas' circular Apr. 15, 1856. *Nic., Boletin Ofic.*, Apr. 16, 1856.

[XVI-69] Perez says: 'Trató con humanidad á los soldados que le fueron encomendados.' *Mem. Camp. Nac.*, 2d pt, 49-52. Jerónimo Perez, *Memorias para la Historia de la Revolucion de Nicaragua, y de la guerra nacional contra los filibusteros, 1854-1857*. Managua, 1865, 8vo, pp. 173, 21. This first part of this author's work is a historical account of the civil war in Nicaragua, in the years 1854-5, during which latter year the filibuster chief, William Walker, appeared on the scene, taking part with one of the two parties to the strife, and temporarily destroying the power of the other. The political and military events of this period are concisely though vividly depicted, so that the reader may become fully informed on the mode of carrying on the war, and on the miserable condition of the country, as well as bitter animosity exhibited by the opposing parties. *Memorias para la Historia de la Campaña Nacional contra el filibusterismo, 1856-1857*. Masaya, 1873, 8vo, i.-iv., and 216 p., is a sequel or second part to the preceding by the same author, in which he furnishes a detailed history of Walker's filibustering schemes and career in Nicaragua during 1856-7, till his final surrender and removal from the country; ending with a short account of Walker's two other attempts to invade Central America. Perez took a part in the operations against Walker, and later has occupied high positions in his country.

[XVII-1] Francisco Ugarte, a legitimist who came with the Costa Ricans, and remained in concealment.

[XVII-2] Goicouría was sent to put down a rebellion in Chontales, and had a number of men executed. *Perez, Mem. Camp. Nac.*, 2d pt, 55.

[XVII-3] 1st. To recognize no other govt than Estrada's, declaring the convention of Oct. 23, 1855, void, and Rivas' govt null; 2d. To support that govt; 3d. Vest the executive office in Fernando Guzman till Estrada's return to Nic.; 4th. Fernando Chamorro recognized as provisional commander of the forces.

[XVII-4] Walker discovered in Rivas a letter from the president to Mora treating of peace negotiations, of which nothing had been hinted to him.

[XVII-5] He issued June 4th a proclamation full of affected love for the Nicaraguans, and especially for the Leonese, whom he called illustrious sons of liberty and lovers of progress. *Nic., Boletin Ofic.*, June 5, 1856; *El Nicaragüense*, June 14, 1856.

[XVII-6] It was followed by a change of public opinion in the U. S. favorable to him, and stopped the official opposition to the rush of emigrants to Nic. The benefit was, however, retarded by the combined efforts of the old Transit company's agents in San Juan del Norte, and of the opposition from various sources to Walker's plans.

[XVII-7] During Walker's stay in the city he made several demands, to which the president refused his assent, which greatly angered him. It was soon discovered that he had it planned to dispossess Rivas of the executive office. Naztmer's act was in obedience to his orders. The native soldiers were sent away, and the capital was left with a garrison of 200 foreigners. *Nic., Boletin Ofic.*, Aug. 8, Oct. 24, 1856.

[XVII-8] Had it not been for an American resident, Dawson, they would have been brought back by Dolan, commandant at Chinandega, who had been ordered with his men to Leon. *Perez, Mem. Camp. Nac.*, 2d pt, 71. Gen. Mariano Salazar and others spread the report that the filibusters intended to murder the authorities. Salazar fell into Walker's hands later, taken by De Brissot in the gulf of Fonseca July 28th, and was shot at Granada Aug. 3d. *El Nicaragüense*, Aug. 9, 1856; *Nic., Boletin Ofic.*, Aug. 27, 1856; *Sac. Union*, Sept. 6, 1856.

[XVII-9] Decree of June 25th. Officers and men of the foreign phalanx were required to forsake Walker and submit to the government, when their rank would be recognized, their arrears of pay made good, and Nicaraguan citizenship conferred on them. Such as should disobey, whether native or foreign, were to be dealt with as traitors. Members of the foreign phalanx wishing to leave the country were to be, under another decree of the 28th, permitted to do so. Those who presented themselves with arms and ammunition, and prevailed on others to do the same, would be rewarded. Previously, on the 20th, the colonization decree of Nov. 23, 1855, was suspended. *Nic., Boletin Ofic.*, Aug. 8, 16, 1856.

[XVII-10] Walker assumed to act under the clauses of the convention of Oct. 23, 1855. His decree bears date of June 20th, and further declares Rivas' acts from the 12th null. *El Nicaragüense*, June 21, 1856; *Nic., Boletin Ofic.*, Aug. 8, 1856.

[XVII-11] The official organ published the returns showing this result. *El Nicaragüense*, July 12, 1856. Rivas' minister in a circular exposed the whole as a 'tejido de imposturas y supercherías.' *Nic., Boletin Ofic.*, Aug. 27, 1856.

[XVII-12] *S. F. Herald*, Aug. 15, 1856; *S. F. Alta*, Aug. 15, 1856.

[XVII-13] Minister Salinas' note of Aug. 12th to the secretary of state at Washington. *Nic., Boletin Ofic.*, Sept. 4, 1856.

[XVII-14] The other ministers were generals Mateo Pineda and Manuel Carrascosa. *El Nicaragüense*, July 19, 1856.

[XVII-15] This action was said to have been suggested to win the sympathies of the slave-owners in the southern states of the U. S. *Perez, Mem. Camp. Nac.*, 2d pt, 79.

[XVII-16] The convention was signed at Guat. July 18, 1856. The following is a synopsis of the chief clauses: 1st. Previous treaties of alliance for defence of their independence and sovereignty were confirmed; 2d. Stipulated the union of their forces to expel the adventurers; 3d. Recognized P. Rivas as the head of a de facto govt in Nic., promising aid and coöperation; 7th. Invited Costa R. to join the others in the enterprise. *Nic.*,

Boletin Ofic., Aug. 21, Sept. 10, 1856; *Guat., Recop. Ley.*, i. 436-9.

[XVII-17] Shortly afterward they were joined by Gen. Fernando Chamorro, some barefooted officers and soldiers, and 12 or 14 Frenchmen. A little later came the Hungarian, Gros, with 300 Indians. The only arms on hand were 300 muskets with 10 mule-loads of ammunition.

[XVII-18] Such was the end of this honorable, enlightened, and patriotic citizen, who had risen by his virtues, talents, and learning, from a lowly position to the chief magistracy of his country. *Perez, Mem. Camp. Nac.*, 2d pt., 98-100.

[XVII-19] The convention was signed Sept. 12, 1856. It contained among its clauses that the first legislature installed should convoke the constituent assembly of 1854, or issue the bases for the election of another; a gen. amnesty for past political offences; debts contracted or damages caused by both parties to be held as indebtedness of the republic. *Id.*, 114-17; *Nic., Boletin Ofic.*, Sept. 20, 1856.

[XVII-20] Pedro Cardenal, Sebastian Salinas, Nicasio del Castillo, and Francisco Baca were made ministers of foreign relations, government, war, and treasury respectively. Jerez left the cabinet, preferring to serve in the field.

[XVII-21] His troops retreated after setting fire to the casa de alto, former residence of the chief magistrates of Nic. The allied army celebrated in Managua the victory of San Jacinto, a hacienda, north of the plain of Oscotal, distant one day's march from Granada. It was only a small affair in reality—120 riflemen under Byron Cole on one side, and 160 natives under Col D. Estrada on the other—but it was important in its effects. Cole was captured and killed, this being the end of the founder of filibusterism in Nic. Twenty-seven riflemen were slaughtered; and the Nicaraguans had 55 killed and wounded. *Nic., Boletin Ofic.*, Sept. 26, 1856.

[XVII-22] Troubles between Salvadorans and Nicaraguans were common. The former fraternized with the democratic Leonese. The legitimists did the same with the Guatemalans, whose 2d chief, Zavala, by his language and actions, kept up a bad feeling, not only with the Salvadorans, but with the Nicaraguans. *Perez, Mem. Camp. Nac.*, 2d pt, pref. ii. and 108.

[XVII-23] Meantime several fights had taken place between the allied forces and Walker's.

[XVII-24] He had also a small and inefficient Cuban company, and very few, if any, Cent. Americans, aside from his ministers Pineda and Carrascosa.

[XVII-25] It has been calculated that from first to last he lost from 5,000 to 6,000 men by sickness. Several of his chief officers having died at about the same time, it was imputed to the natives selling poisoned edibles. A letter of Feb. 16, 1857, has it that Walker received 4,600 recruits since June 1855. The author sets down his deserters at 500, and his dead at no less than 3,600, there being from 1,500 to 2,000 buried in Granada. *Pan. Star and Herald*, Feb. 17, 1857; *Hayes' Scraps, Angeles*, ii. 255. However, an official report of P. R. Thompson, Walker's adj.-gen., dated Feb. 24, 1857, has the following figures, which do not seem to express the whole truth, as it might have been injudicious to have the real facts made known. Original number of men enlisted 2,288, of whom 61 were officers. Totals of death, 685, of whom 109 were officers; 37 resigned; 206 discharged; 9 dropped; 293 deserted, including 9 officers; leaving a total of 733 officers and men, with 141 unaccounted for. *Stout's Nic.*, 209.

[XVII-26] Four young Nicaraguans, accused in Masaya of enticing men to desert, were arrested July 30th, and shot in a few hours as traitors to the republic! *El Nicaragüense*, Aug. 3, 1856. Turley and 25 others escaped from Granada, and attempted to reach Blewfields by way of Chontales, where the natives, not believing them deserters from Walker, killed all but one or two who escaped. *Perez, Mem. Camp. Nac.*, 2d pt, 129; *S. F. Alta*, Oct. 20, 1856.

[XVII-27] Jerez distinguished himself in the defence, and the gen.-in-chief of the allies, Ramon Belloso, claimed a victory in his official report of Oct. 13th, adding that Walker 'huyó despavoridamente á la oscuridad de la noche,' leaving about 50 killed, and carrying off 200 wounded. *Nic., Boletin Ofic.*, Oct. 17, Nov. 7, 1856. On the other side, the victory was claimed for Walker. *S. F. Alta*, Oct. 31, 1856; *S. F. Herald*, Oct. 31. 1856.

[XVII-28] To look after the arms which had become wet. So says Perez, adding that Zavala, 'á mas de carecer de juicio, no conocia el terreno,' and Estrada went entirely by his directions. *Mem. Camp. Nac.*, 2d pt, 131.

[XVII-29] They became intoxicated, and scattered in the streets after plunder. They discovered an American merchant, friendly to the filibusters, and killed him forthwith.

[XVII-30] On Zavala and Estrada arriving at Diriomo, a young Cuban named F. A. Lainé, who had been sent by Goicouría to complete with Walker an arrangement to liberate Cuba, was brought to them as a prisoner. He was ordered shot.

[XVII-31] *S. F. Alta*, Nov. 21, 1856; *Hayes' Scraps, Angeles*, ii. 206-7, 222, 232.

[XVII-32] Salvadorans, 1,300; Guatemalans, 1,500 or more; Nicaraguans under Martinez, no less than 800. *Perez, Mem. Camp. Nac.*, 2d pt, 134.

[XVII-33] The allies discovered his flight early on the 19th. Several of his men were found asleep, and butchered. The allied commanders showed lack of generalship. *Perez, Mem. Camp. Nac.*, 2d pt, 135-9. About this time the Cent. Americans experienced a serious blow in the loss of the Costa Rican schooner *Once de Abril*, which had on board 110 men, money, and a large supply of arms, ammunition, etc. After a heavy gale, she encountered the *San José*, alias *Granada*, and after two hours' fighting, caught fire and was destroyed. Most of the wrecked men were picked up by the *San José*. *S. F. Alta*, Dec. 20, 1856; *S. F. Herald*, Dec. 20, 1856; *Sac. Union*, Dec. 23, 1856.

[XVII-34] Henningsen had been, it was said, an officer of the Brit. army, an aide of the Carlist chief Zumalacarregui, in Spain, and a good democratic writer. His report was as follows: He had assumed command in the afternoon of Nov. 22, 1856, and had carried out Walker's orders to destroy Granada, and leave the place, taking away the stores, artillery, sick, and the American and native families. Some of the church jewelry was saved by a priest. Gen. D. Sousa saw a filibuster urinate into a chalice, and then throw the contents at some women who were also witnesses of the act. *Perez, Mem. Camp. Nac.*, 2d pt, p. ii. 150-1, 161-3; *Nic., Gaceta*, May 2, 1868; *Id., Telég. Seten.*, March 7, 28, 1857; *Id., Boletin Ofic.*, Apr. 15, 22, 1857; *S. F. Alta*, Dec. 20, 1856; *Belly, Le Nic.*, i. 285-6; *Squier's Cent. Am.*, 372.

[XVII-35] At 6:30 they had upwards of 40 wounded, and no surgeons to attend to them. During the night it rained heavily.

[XVII-36] During the operations, the Guatemalan generals Paredes, ex-president, and Joaquin Solares died, the latter of fever on the 28th of November, and the former of cholera on the 2d of December.

[XVII-37] Several deserters from his camp in the plantain grove of Doña Sabina had made their appearance among the allies, so completely famished that they could hardly speak.

[XVII-38] In the southern part of Lake Nicaragua, eight or nine miles from the coast of Rivas. A large and productive island having two towns distant 12 miles from one another.

[XVII-39] Oct. 13, 1855, Walker arrived on the coast of Granada. Dec. 13, 1856, he left these shores never to see them again. In the small fort, known as El Fuertecito, his men left a pole with an inscription as a record that Granada had existed there.

[XVII-40] Xatruch was not credited with much ability; but he was patriotic and brave, and to his exertions was measurably due the coöperation of Hond. for the campaign.

[XVII-41] This expedition was promoted by Cornelius Vanderbilt, president of the Accessory Transit Co., through his agent Webster, as appeared in a letter from the commander of the Brit. naval force to the American consul. It was carried out, with the assistance of Spencer, an Am. engineer, who had been in the service of the company and was a pilot on the *San Juan*. The steamers thus taken were the *Wheeler*, *Morgan*, *Machuca*, and *Bulwer*. Perez, *Mem. Camp. Nac.*, 2d pt, 176-9; *Nic., Telég. Seten.*, Feb. 28, 1857; *Astaburuaga, Cent. Am.*, 100-1; *S. F. Herald*, Jan. 31, 1857; *S. F. Alta*, Jan. 31, 1857. Official reports and Mora's proclamation in *Nic., Boletin Ofic.*, Jan. 9, 13, 1857.

[XVII-42] This is recognized with shame in the *Telég. Seten.*, June 6, 1857. Meantime Mora had, on the 10th of Dec., tendered Walker's officers and soldiers a free passage to San Juan del Norte and New York; and the govt at Leon had, on the 22d, annulled the acts of the administration from Nov. 4, 1855, to June 12, 1856, with a few exceptions. A decree to close the transit between the two oceans was also issued. *Nic., Boletin Ofic.*, Dec. 29, 1856; Jan. 9, 23, 1857.

[XVII-43] Two assaults in force, one by Henningsen with 600 men, and another by Walker himself with 450, failed. Another was made on the Castillo Viejo, defended by Cauty, met with the same result, though the assailants took the steamboat *Scott*, and Cauty had to destroy the *Machuca*. Mora's rept, Feb. 24, 1857, in *Perez, Mem. Camp. Nac.*, 2d pt, 184-94.

[XVII-44] This selection was unfavorably received by the government, and was accorded but a temporary recognition till the allied governments should press their wishes. *Id.*, 182-4; *Nic., Boletin Ofic.*, Feb. 18, 1857.

[XVII-45] The following appointments were also made: Cañas, 2d in command; Zavala, adj.-gen.; Xatruch, inspector-gen.; Chamorro, quartermaster-gen.

[XVII-46] The casualties were 60 killed and 100 wounded. The survivors returned to Punta de Castilla, refusing to go on. Lockridge accused them of cowardice, and took away their arms. But the men claimed the protection of the British naval commander. Cauty went down in a steamer to the bay April 12th, and after conferring with the Brit. officer, occupied Punta de Castilla, securing the war material. He then tendered the men a passage to the U. S. at the expense of Costa R. This was the end of the famous Lockridge expedition. *Perez, Mem. Camp. Nac.*, 2d pt; *Nic., Telég. Seten.*, April 11, 1857; *S. F. Herald*, April 21, May 16, 1857; *S. F. Bulletin*, April 21, 1857; *S. F. Alta*, May 16, 1857; *Pan. El Centinela*, April 22, 1857; *Nic., Boletin Ofic.*, April 29, 1857.

[XVII-47] Upwards of 300 killed, wounded, and missing.

[XVII-48] He did so, even though he agreed with Xatruch, Martinez, and Chamorro that the capitulation should not be accepted unless Walker pledged himself not to commit hostilities in future against any of the allied states. He also wished to be away before the arrival, then expected, of Gen. Barrios with large reënforcements of Guatemalans and Salvadorans, who would doubtless claim the glory of ending the war. *Perez, Mem. Camp. Nac.*, 2d pt, 209.

[XVII-49] The terms agreed upon between Walker and Davis were: 1st. Walker and the 16 officers of his staff were to leave Rivas with side-arms, pistols, horses, and other personal effects, under Davis' guaranty that they should not be molested by the

enemy, but allowed to embark on the *Saint Mary's* at San Juan del Sur, whence she should convey them to Panamá; 2d. The other officers of Walker's army would leave Rivas, with their arms, under the same guaranty, and be sent by Davis to Panamá in charge of an officer of the U. S.; 3d. The rank and file, citizens and officials, both the wounded and well, were to surrender their arms to Davis on a vessel apart from the deserters, so that there should be no contact between the former and the latter; 4th. Davis pledged himself to obtain for Central Americans then in Rivas permission to remain in their country with protection of life, liberty, and property; 5th. The officers should be allowed to remain at San Juan del Sur, under the protection of the U. S. consul, until an opportunity offered to leave for Panamá or San Francisco. The instrument bears also the signatures of C. F. Henningsen, P. Waters, J. W. Taylor, and P. R. Thompson. *Id.*, 210-12; *Nic., Boletin Ofic.*, May 6, 17, 28, 1857; *Id., Telég. Seten.*, May 9, 16, 23, 1857; *Sac. Union*, June 16-18, 1857; *S. F. Alta*, June 17, 18, July 1, 2, 1857; *S. F. Herald*, June 16, 1857; *Belly, Le Nic.*, i. 287; *Pineda de Mont, Notas*, in *Guat., Recop. Ley.*, ii. 350, 745-6; *Democ. Rev.*, July 1857, 117-23; *Astaburuaga, Cent. Am.*, 102-3. *Francisco S. Astaburuaga, Repúblicas de Centro-América, ó Idea de su Historia y de su Estado actual*. Santiago (Chile), 1857, 8vo, map, dedic., and 116 pp. The author of this work held a diplomatic mission from Chile to Costa Rica, and being desirous of furnishing his countrymen some information on Central America, prepared his material, originally for the *Revista de Ciencias y Letras* of Santiago; succinctly giving the physical peculiarities, agriculture, commerce, and other resources of the country, together with a sufficiently instructive sketch of the history of Central America in general, as well as of each state comprised in that term, in readable form. At the end is added his official correspondence with the several governments of Central America on the projected union of the Spanish American republics.

[XVII-50] The official correspondence between Mora and the govt of Nic. shows the high appreciation given by the latter to the service rendered by Davis. *Nic., Boletin Ofic.*, May 6, 1857.

[XVII-51] A full account of the affair was published in the government's organ. *Nic., Boletin Ofic.*, May 28, 1857.

[XVII-52] He had furnished war material to both parties, and tendered Costa Rica's aid to Martinez. His own words at embarking expressed the Machiavellian plot: 'Esta república

estará pronto en guerra; dejó las navajas amarradas á los gallos.' Cañas disapproved in toto of those plans. *Perez, Mem. Camp. Nac.*, 2d pt, 212-13.

[XVII-53] Pres. Martinez of Nic. pronounced it a 'guerra injusta y traidora.' *Nic., Discurso ... Inaug.*, 1.

[XVII-54] Full particulars on this war and the terms of peace, in *Costa R., Informe Rel.*, 1858, 2-3; *Id., Expos. Mot. del Cambio*, 36-7; *Nic., Dec. y Acuerdos*, 1857-8, 10-12, 30-1, 135-6; *Nic., Manif. Disc. Inaug.*, no. 5, 3; *Rocha, Cód. Nic.*, i. 92; *Ayon, Consid. Límites*, 30-2. Perez, while reverting to Costa Rica's plan to rob Nic. of the River San Juan, and a portion of the lake, mentions what Nic. had to suffer from the allied forces during the war. 'Cuántas exigencias, cuántos insultos, cuántas cosas teníamos que sufrir.' The allies appropriated as booty Nicaraguan movable property that was taken from the filibusters. *Mem. Camp. Nac.*, 2d pt *Carta* (Pref.), p. ii.

[XVII-55] The official documents connected with the affair clearly prove that the U. S. govt was desirous of maintaining an honorable position before the world. *U. S. Govt Doc.*, Cong. 35, Sess. 1, vol. vii., H. Ex. Doc., no. 24, 1-82, no. 26, 1; *Id., Id.*, H. Jour., 165-73, 1302, 1368; *Id.*, Cong. 35, Sess. 1, vol. i., Sen. Ex. Doc., no. 13; *Id., Id.*, vol. xiii., Sen. Doc., no. 63; *Id.*, Cong. 35, Sess. 2, vol. vii., no. 10; *Cong. Globe*, 1857-8, 1858-9, Index 'Cent. Am.,' 'Paulding,' 'Walker,' 'Neutrality Laws,' 'Clayton-Bulwer Treaty,' etc.; *Stout's Nic.*, 211-21; *Belly, Le Nic.*, i. 294-7; *S. F. Bulletin*, Dec. 29, 1857; *S. F. Alta*, Jan. 14, 1858; *Sac. Union*, Feb. 3, 1858.

[XVII-56] To Paulding were voted thanks, a sword of honor, and 20 caballerías of land. *Nic., Boletín Ofic.*, Aug. 2, 1862; *Id.*, *Leyes Emit.*, 1830, 3-5; *Rocha, Cód. Nic.*, i. 217-20; *Costa R., Col. Ley.*, xv. 3; *Id., Informe Rel.*, 1858, 1-2.

[XVII-57] His ultimate destination was Nicaragua, whose government hastened preparations for the defence of her territory, as well as to aid Hond. in the event of her needing assistance. *Nic., Mem. Gobern.*, 1861, 9; *Id., Mensaje del Presid.*, Jan. 16, 1861.

[XVII-58] He received the consolation of religion from a catholic priest, having joined that faith to become president of Nic. His remains were buried in Trujillo. Among his effects was found the seal of Nicaragua, which with his sword the government of Hond. transmitted to that of the former. *La Unión de Nic.*, Jan. 12, Sept. 28, 1861; *Nic., Informe Gobern.*, no. ii. 7-9; *El Nacional*, Sept. 8-Oct. 27, 1860; *Perez, Mem. Camp. Nac.*, 2d pt, 215-16; *Belly, Le Nic.*, i. 382; *Eco, Hisp.-Am.*, Sept. 15-Nov. 15, 1860; *Diario de Avisos*, Oct. 4, 1860; *Pim's Gate of the Pac.*, 49-50; *Harper's Mag.*, xxi. 693, 836; *S. F. Bulletin*, Sept. 3, 8, 17, 19, Oct. 3, 29, Nov. 12, 1860.

[XVII-59] The members were: Vicario capitular, J. H. Herdocia, J. de la Rocha, H. Zepeda, Gregorio Juarez, and G. Lacayo; substitutes, J. Baca, F. Diaz Zapata, and Joaquin Perez. *Nic., Boletín Ofic.*, Jan. 23, 1857.

[XVII-60] The legitimists claimed it to be for the public weal, whereas the democrats thought it would damage them. *Perez, Mem. Camp. Nac.*, 2d pt, 170-6.

[XVII-61] But for arbitrary measures, on the 12th of June, the state would have divided into two parts, each following its own bent, even to incorporation with other states, which would have been the death of the republic. *Nic., Mensaje del Poder Ejec.*, 1857, 2-3.

[XVII-62] *Nic., Dec. y Acuerdos*, 1857, 135-8.

[XVII-63] In the decree of convocation the members of the executive and the ministers were made ineligible for seats in that body.

[XVII-64] Only two electoral votes were not cast for him. The constituent assembly, which had been installed Nov. 8th, declared him to have been the people's choice. *Nic., Gaceta*, Apr. 18, 1863.

[XVII-65] *Discurso Inaug.*, 3. Tomás Martínez was a native of Leon, and had been engaged in trade and mining without taking part in the political agitations of his native place until the revolution of 1854, which did not meet his approval. It is believed that his reserve had made him an object of suspicion on the part of the democrats, which circumstance forced him to seek a refuge in the ranks of the conservatives, and to embrace, much against his liking, the military profession. Martínez was a lineal descendant of an heroic woman, Rafael Mora, who in 1780 distinguished herself in the defence of San Juan del Norte against Nelson's attack. He was in 1857 about 45 years old, tall of stature, and of reserved deportment. Self-instructed, plain, and unambitious of popularity, he cared not for honors or display, and abhorred sycophancy. He never used more words than were necessary to express his thoughts, and his whole aim, after he entered public life, was to serve his country. Moreover, he possessed a kindly disposition, and in his family relations was affectionate.

[XVII-66] During the war with Costa Rica he commanded the forces in the field; meantime the executive office was in charge of Deputy Agustín Avilés. He resumed the latter Jan. 25, 1858. In the course of his term he several times provisionally surrendered the office into the charge of others, on account of illness. *Nic., Dec. y Acuerdos*, 1858, 3-7, 32; 1859, ii. 136, 137; 1860, iii. 71, 83-4, 177.

[XVII-67] The several portfolios were also for more or less time in charge of Pedro Zeledón, J. de la Rocha, Eduardo Castillo, Gerónimo Pérez, Miguel Cárdenas, Nicasio del Castillo, and H. Zepeda.

[XVII-68] A number of decrees acknowledging the indebtedness appear in *Nic., Dec. y Acuerdos*, 1859, ii. 132-54.

[XVII-69] The catholic religion was placed under state protection. The government was constituted in three branches; namely, executive, legislative, and judicial. The executive authority was vested in a president for four years, without reëlection for the next term. In his absence or inability, the office was to go into the hands of the senator called by congress to fill it. The president was to be a native and resident of Nic., 30 years of age or upwards, not having lost the rights of citizenship within five years of the election, and possessing real estate valued at no less than \$4,000. The legislative power was to consist of a senate and house of deputies. The senators' term was to be of six years; they were to be at least 30 years old, and to possess no less than \$2,000 in real estate, one third of their number to be renewed every two years. The deputies were to be upwards of 25 years old, and hold for four years, one half their number being renewed every two years. The natives of the other Central American states were eligible to the senate or house, after a residence in Nic. of ten or five years respectively. No churchman could be chosen president, senator, or deputy. The justices of the supreme court had to be lawyers of recognized ability and integrity. They were to hold office four years, the members being renewed every two years. The court was divided into two sections with at least four justices each. The constitution recognized liberty of thought, speech, writing, and the press; also the rights of property and emigration. Torture in any form, cruel punishments, confiscation of property, invasion of private domicile, and establishment of special courts were strictly forbidden. It was promulgated Sept. 15, 1858. *Rocha, Cód. Legis. Nic.*, i. 25-42; *Lévy, Nic.*, 309-27; *El Porvenir de Nic.*, Feb. 11, 1872; *Nic., Mem. Gubern. y Guerra*, 1859, 3. The bishop and his chapter took the oath to obey it on the 15th of Apr., 1861. *La Union de Nic.*, May 11, 1861.

[XVII-70] Because its acts tended to the organization of the country. But on the 25th of June, 1858, the government of José M. Estrada was also exempted from that annulment. *Rocha, Cód. Legis. Nic.*, i. 82, 89-90.

[XVII-71] He was appointed minister plenipotentiary, first in Costa Rica, next in Washington, and was empowered to negotiate a treaty with the Spanish minister at the latter place. *Nic., Dec. y Acuerdos*, 1857-8, 117, 243, ii. 21.

[XVII-72] Presid. Barrios of Salv. complained of the plots carried on against him in Nic. by refugees, and made demands, such as their being denied the use of the press, to which the Nic.

govt could not accede. *Nic., Mens. del Presid.*, in *La Union de Nic.*, Jan. 19, 1861; *Id., Mem. Rel.*, in *Id.*, March 2, 1861.

[XVII-73] 'Ningun Nicaragüense preso, ni confinado, ni expulso por causas políticas; todos son libres, sin restriccion alguna.' *Nic., Gaceta*, Jan. 24, 1863.

[XVII-74] Official corresp. in *Id.*, Feb. 7, 1863.

[XVII-75] Treaty of amity, defensive alliance, commerce, etc., duly ratified. *Id.*, April 18, 1863.

[XVII-76] Jerez, Fernando Chamorro, and J. D. Estrada, for taking part against their government, were degraded to the ranks. *Id.*, May 23, 30, 1863.

[XVII-77] Congress, Feb. 14, 1863, approved all his administrative acts to date. It had been represented to the people that Martinez, notwithstanding the clause in the constitution forbidding reëlection, could be reëlected, because the powers he had exercised in the past years had come to him, not under the constitution which was of subsequent date, but from the convocation decree of Aug. 26, 1857, and his choice was approved by the constituent assembly.

[XVII-78] *Nic., Decretos*, 1867-8, pt ii. 10-11; *Rocha, Cód. Leg. Nic.*, i. 220. The cong. of Salv. voted him a sword of honor for aiding to defeat Barrios and the federalists. *Nic., Gaceta*, June 17, 24, 1865.

[XVII-79] During his second term the following persons acted as his ministers: E. Castillo, B. Selva, B. Salinas, B. Portocarrero, R. Alegría, R. Cortés, P. Zeledon, J. F. Aguilar, J. J. Lescano, and Antonio Silva. *Nic., Semanal Nic.*, April 24, 1873.

[XVII-80] 'Quedan fuera de la amnistía todos aquellos que como autores principales.' *Nic., Gaceta*, April 29, May 28, 1864.

[XVII-81] Congress had not only approved his acts, but gave him two votes of thanks, March 11, 1865, and Jan. 19, 1867. *Nic., Gaceta*, March 18, 1865; *Id., Dec. Legisl.*, 1865-6, 21-2; 1867-8, 5.

[XVII-82] By 433 electoral votes against 139 cast for Juan B. Sacasa; necessary for a choice, 285. *Id.*, Oct. 27, 1866; *Id., Decretos*, 1867-8, pt ii. 4-5; *Pan. Star and Herald*, Feb. 19, 1867.

[XVII-83] Decrees of Jan. 22 and Feb. 28, 1867. *Nic., Dec. Legisl.*, 1867, 10-11, 25-6.

[XVII-84] 'Por estar en oposicion con las atribuciones del Poder Ejecutivo.' Decree of Jan. 20, 1868. *Id.*, 1868, 3.

[XVII-85] *Nic., Gaceta*, March 15, 1873; *Id., Semanal Nic.*, March 27, 1873.

[XVIII-1] Oct. 22d. *Album Semanal*, Sept. 26, 1856; *Costa R., Col. Ley.*, xiv. 41-2, 51-2.

[XVIII-2] The other ministers were Joaquin B. Calvo, of government and eccles. affairs; and Rafael G. Escalante, of treasury and war.

[XVIII-3] Dec. 11, 1856. *Costa R., Mem. Gobern.*, 1857, 2-3.

[XVIII-4] In 1854 the pope bestowed on him the honor of Knight grand cross of the order of Gregory the Great, and the Costa Rican congress authorized him to accept it. *Costa R., Col. Ley.*, xiii. 28; xiv. 147-9.

[XVIII-5] Dec. 29, 1857, a medal was voted. Again, Feb. 26, 1858, a cross of honor was decreed to the generals and field-officers. *Id.*, 207; xv. 3.

[XVIII-6] Escalante had been vice-president since Oct. 1857, and at the present time was temporarily in charge of the executive office. *Id.*, xvi. 30-1.

[XVIII-7] Political grievances and private animosities were brought into action for his overthrow. He was accused of intending to keep himself in power for life, like Carrera in Guatemala, as was evidenced by his second reëlection, which violated both the spirit and letter of the national institutions; of his having imposed the weight of his own will on the financial department, the judiciary, and even the legislature, with the view of setting up the rule of one family over the ruins of republican liberty; of his having usurped the property and labor of others for his own benefit. Even the organization of an army, and his campaign against Walker, were made to appear as intended to improve his own pecuniary interests, which were said to be in a very bad state. The charge of assumption of dictatorial powers does not seem to be sustained by facts. The opposition journal, the *Album Semanal*, freely published strong articles against his

administration. Pamphlets filled with vituperation, and traducing his character, circulated without hindrance; one of the publications called him the tzar of Costa Rica. This opposition was fanned by the hatred of persons who had private grudges against Mora. Among them Vicente Aguilar, his former partner, who had been made to disgorge \$100,000 or more, of which he had wrongfully deprived Mora. Capitalists were hostile because the president had chartered a bank. The sale of a tract of public land near San José, upon which many persons had settled, was made the subject for much trouble. The exile of the bishop did not fail to have a powerful influence. Bishop Llorente had refused to pay, or to allow his clergy to pay, an equitable tax decreed by congress Sept. 29, 1858, for the support of hospitals. He not only refused compliance, but incited the populace to revolt. For this he was expelled. He was, however, after Mora's overthrow, recalled by the provisional government, and ruled the diocese till his death, which took place Sept. 23, 1871. *Costa R., Mem. Interior*, 1859, 9; 1860, 4; *Id., Col. Ley.*, xvi. 87-8; *Nic., Gaceta*, Oct. 7, 1871; *El Nacional*, Jan. 15, 1859; *Belly, Le Nicaragua*, i. 379-81. One of the publications which came out after Mora's downfall, not only charged him with abuse of power, speculation, and almost every conceivable offence, but of his having brought himself into political prominence by intrigue, and by treachery to Morazan, and to his relations and friends, who, it was asserted, had been ruined by him. This publication is dated San José, April 2, 1860, but is anonymous. *Costa R., Expos. ... Motivos ... Cambio Polít.*, 37 pp. and 1 l.

[XVIII-8] The provisional administration claimed that the revolution had not merely changed the personnel, but also the principles on which the government was based, the people demanding greater freedom with clearly defined rights and duties, and a more extended suffrage. *Costa R., Mem. Interior*, 1860, 4; 1863, 2.

[XVIII-9] The govt was divided into three branches—legislative, executive, and judicial—each independent of the others. The legislative was vested in a congress of two chambers, the senate and house of representatives, and was to meet once a year in ordinary session, and also to hold extraordinary sessions when called for specified purposes. The senate was composed of two senators for each province; the house was composed of deputies chosen by the provinces in the ratio of population. The term of the members of both houses was fixed at four years. The

executive authority was vested in a president for three years, without reelection for the immediate following term. He had a council of state to deliberate upon such affairs as the executive referred to it for advice. The judiciary consisted of a supreme court, and such other lower courts as might be established by law. None but a native citizen, in full possession of his civil and political rights, could be president, or member of the supreme court. Churchmen were ineligible. *Costa R., Constituc. Polít.*, 1-35; *Id., Col. Ley.*, xvi. 110-45.

[XVIII-10] First designado, Francisco Montealegre; second, Vicente Aguilar. *Id.*, xvi. 169-71.

[XVIII-11] In January, Prudencio Blanco and others attempted a revolution in Guanacaste, now called Moracia, and failed. A decree of outlawry was issued against them Jan. 20, 1860, and their property was made amenable for the government's expenses. Another insurrection took place in Esparza with the same result, the govt issuing a decree of similar nature Sept. 16th, and on the 18th another, suspending the constitution. This last decree was revoked March 18, 1861. *Id.*, xvi. 153-4, 188, 218-21; xvii. 9.

[XVIII-12] This place had been heavily intrenched, and a battery mounted in it, which was protected on both flanks by armed boats in the estuary, etc.

[XVIII-13] *Belly, Le Nic.*, i. 382; *El Nacional*, Oct. 13, 27, Nov. 10, 1860; *Eco Hisp.-Am.*, Oct. 31, 1860; *S. F. Bulletin*, Oct. 24, 25, 29, Nov. 14, 27, 1860; *S. F. Herald*, Oct. 29, 1860; *Harper's Monthly Mag.*, xxii. 113; *Laferrière, De Paris à Guatémala*, 59-60.

[XVIII-14] The *Gaceta Oficial*, evidently inspired by President Martinez, forgot past grievances, only to bear in mind affectionately the promoter of the holy war for independence. In fact, Mora was in the eyes of both foreigners and natives the personification of Central American patriotism.

[XVIII-15] It will be remembered that Cañas served with distinction in the war against Walker.

[XVIII-16] Apr. 29, 1860. *Costa R., Col. Ley.*, xvi. 172-3; xvii. 87. A more gen. one was decreed May 1, 1862.

[XVIII-17] During this administration national industries were developed, and the country became more prosperous than ever. *Belly, Le Nic.*, i. 383-6.

[XVIII-18] May 1, 1863. Men of all parties voted for him. *Costa R., Mem. Min. Interior*, 1863, 1; *Id., Col. Ley.*, xviii. 15-16.

[XVIII-19] Congress afterward decreed that Montealegre's portrait should be placed in the office of the president. *Belly, Le Nic.*, i. 386-7; *Costa R., Informe Min. Interior*, 1864, 4; *Id., Discurso, Dr J. M. Montealegre*, 1863, 1.

[XVIII-20] *Costa R., Programa Admin.*, 1863, 1. Jimenez adopted the high-handed measure of dissolving congress. In a proclamation to the people he stated that a majority of the members had established a systematic opposition to his government, and usurped all power in direct violation of the constitution. *Id., Prod. del Presid.*, Aug. 1, 1863.

[XVIII-21] Ending May 8, 1869. *Id., Col. Ley.*, 1876, 111-12; *Nic., Gaceta*, Feb. 17, Apr. 21, May 26, 1866. Castro in his inaugural address used these words: 'Quiero que mi patria, ya que no pueda ser temida por su fuerza, sea considerada por su justificacion y cordura.... No tenemos escuadras; tengamos la simpatía de las naciones.' *Costa R., Discurso Inaug., Presid. J. M. Castro*, 1-3.

[XVIII-22] May 15, 1866. They were 2 for each department, making together 16, besides the ministers. *Costa R., Col. Rey.*, 1866, 114-16.

[XVIII-23] *Nic., Gaceta*, May 25, 1867.

[XVIII-24] Castro's enemies averred that his course was very mysterious, and some even suspected an intention on his part to retain power in his hands, though he supported the candidacy of his minister, Julian Volio. They said that the barracks assumed a menacing attitude, and Castro was on the point of decreeing several military promotions of members of his own family, and concentrating all the forces of the republic in and about his own residence. It came to be believed that he intended to nullify Salazar first, and Blanco next. But the former had in his favor most of the wealthy families, as well as a large support in Alajuela, Heredia, and Cartago. To make the story short, Salazar and Blanco concluded to act together. *El Quincenal Josefino*, no.

32, in *Star and Herald*, Dec. 24, 26, 1868. The editor of this publication was Lorenzo Montúfar. Whatever may be asserted against Castro, he had proved himself a liberal, enlightened, and upright ruler. His administration had given conclusive proof that the president valued liberty of the press and speech as necessary to the existence of a republican government. The country had been enjoying those privileges, and prospering as it had never done before. *U. S. Minister J. B. Blair, to Sec. Fish*, June 23, 1873.

[XVIII-25] The troops and people seemed to acquiesce in the new order of things. There was no bloodshed. Castro was left perfectly free in his own house. *Nic., Gaceta*, Nov. 28, Dec. 5, 1868; Jan. 23, March 20, 1869; *Pan. Star and Herald*, Nov. 17, 1868; *Costa R., Col. Ley.*, xvii. 202-9; *U. S. Mess. and Doc.* (Dept of State, pt ii.), p. xii.; *Laferrière, De Paris à Guatém.*, 60-2.

[XVIII-26] Art. 5th, after declaring the Roman catholic religion to be that of the state, recognizes toleration of other forms of worship; 6th, makes primary education of both sexes obligatory, free, and to be provided by the nation, placing it under the direction of the municipal authorities; 17th, declares the military subordinate to the civil authority, strictly passive, and forbidden to deliberate on political affairs; 72d, grants eligibility for the position of deputy to naturalized citizens after four years' residence from the date of the certificate of naturalization. *Costa R., Col. Ley.*, 1869, 24-59. Art 31st recognized freedom of the press, and yet it was considerably modified by a press law issued by the provisional govt. *Nic., Gaceta*, May 8, 1839.

[XVIII-27] *Costa R., Informe Gobern.*, etc., 1869, 12-15, 26-7; *Id., Informe Hac., Rel. etc.*, 1869, 1-2. J. M. Montealegre had been the other candidate. *Pan. Star and Herald*, Dec. 19, 1868.

[XVIII-28] May 29, 1869. The action of the courts was restored May 31st. But the president had now unrestricted powers. *Costa R., Col. Ley.*, 1869, 94-5, 100-1, 103. *Nic., Gaceta*, June 19, 1869.

[XVIII-29] Those men drove to the barracks in an ox cart, covered by grass, and dashed in. It looks as if there must have been connivance on the part of the guard. Biscoubi had been, it is understood, invited to join the movement, but refused to lend himself.

[XVIII-30] Among the charges contemplated were that they had appropriated large sums out of the public treasury for personal purposes, and that upwards of \$20,000 had been given Eusebio Figueroa to go on a trip of pleasure to Europe.

[XVIII-31] The ministers were then placed under bonds. *Id.*, June 18, July 9, 1870.

[XVIII-32] April 29, 1870, Tomás Guardia was promoted to gen. of division, and Victor Guardia to gen. of brigade. The two Quirozes and Próspero Fernandez were made colonels. Other officers also rose in rank. *Costa R., Col. Ley.*, xix. 41-4, 50-1.

[XVIII-33] This person was a captain early in 1856, and went as Gen. Cañas' aide-de-camp to the Nic. campaign against Walker. On his return he was made a maj. As comandante of Alajuela he revolted against Presid. Castro Nov. 1, 1868. We have seen how he came to be made a general of division.

[XVIII-34] Guat. had several times attempted interference in Costa Rican affairs, insisting on the suppression of liberty of the press, and on other violations of law, all of which had been refused. *Nic., Gaceta*, Aug. 27, 1870.

[XVIII-35] Report, Aug. 22, 1870, by Minister Lorenzo Montúfar to the national constituent assembly. *Costa R., Mem. Rel.*, 1870, 1.

[XVIII-36] His ministers who countersigned that decree were B. Carazo, Pedro García, Lorenzo Montúfar, and in the absence of J. Lizano, sec. of the treasury, Salvador Gonzalez as under-secretary. García and Carazo were made brigadiers. García resigned Oct. 28th, and was succeeded by José Antonio Pinto. *Costa R., Col. Ley.*, xix. 124-6, 150.

[XVIII-37] Vicente Herrera, Aniceto Esquivel, Jesus Salazar, Carlos Sancho, and Rafael Barroeta. *Id.*, 127-31.

[XVIII-38] For supposed revolutionary schemes. It was even alleged that there was a plot to murder Guardia. *Costa R., Gac. Ofic.*, May 12, 1871; *Nic., Gac.*, May 27, June 3, 1871.

[XVIII-39] Excluding the president, his ministers, and the bishop from being electors. *Costa R., Col. Ley.*, xx. 118-22.

[XVIII-40] The legislative consisted of a chamber of deputies chosen for four years. During recess it was to be represented near the executive by a comision permanente of five deputies. All citizens able to read and write, and possessing property to the value of \$500, or an occupation yielding \$200 a year, could be chosen deputies, excepting the president, his ministers, members of the supreme court, and governors. Deputies could accept no offices except ministerial or diplomatic, and then they must resign the elections. The executive was vested in a president for four years, who must be a native, thirty years and upwards, and could not be reelected for the next immediate term. He was allowed a council of state, composed of his ministers, the members of the comision permanente, and others that he might invite to join the deliberations. The judicial authority was vested in a supreme court, whose members must be natives of the country, and such other courts as might be established by law. *Id.*, xx. 171-206; *El Porvenir de Nic.*, Jan. 14, 1872; *Nic., Gaceta*, Jan. 13, 1872.

[XVIII-41] Guardia went to Europe, where he was treated with marked consideration. *Costa R., Col. Ley.*, xxi. 48-51; xxii. 6. During his absence there was no harmony between the acting president and the chief of the forces, Victor Guardia, nor between the latter and the commandant of artillery. *Nic., Semanal Nic.*, Oct. 17, 1872.

[XVIII-42] Guardia was accused of affording aid to the supporters of retrogression against the liberal governments existing in those states; and of openly permitting an expedition to sail on the *Sherman* to commit hostilities against the other Cent. Am. states. *El Porvenir de Nic.*, Aug. 10, 1873; *Aguirre, Recortes de un Períód.*, 5-6. Circular of Nic. Foreign Min., Sept. 5, 1876, in *Salv., Gaceta Ofic.*, Oct. 26, 1876.

[XVIII-43] As an open infringement of previous conventions, international law, and Costa Rica's rights. *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 2, i. 113, 116.

[XVIII-44] A. H. Rivas, foreign minister of Nic., Nov. 11th, in doing so, added that they were guarding their interests against Costa Rica's insidious projects, in gathering large quantities of war material to favor disgruntled Nicaraguans, which his govt well knew, though not officially. *Nic., Gaceta*, Nov. 15, 1873; *Id.*, *Informe Min. Delgadillo*, 1-14; *Nic., Mem. Gobern.*, 1875, 6-7.

[XVIII-45] *Nic., Gaceta, App.*, Dec. 3, 1873; *Nic., Semanal Nic.*, Nov. 29, 1873.

[XVIII-46] It passed a decree on the 29th of November to check all violations of neutrality, and in a note to the other governments expressed itself in terms of conciliation, tantamount to a withdrawal of the circular of Oct. 24th. *Id.*, suppl., Dec. 2, 13, 1873; *El Porvenir de Nic.*, Dec. 11 1873; *Nic., Semanal Nic.*, Dec. 11, 1873.

[XVIII-47] As stated in his organ, *El Costaricense*, no. 17, suppl.

[XVIII-48] A number of persons who had promoted the new policy, particularly some members of the cabinet, for their credulity and good intentions became the victims of Guardia's wrath, and were banished from their homes. Gonzalez had been let down easy, as having declined to continue in charge of the executive. *Costa R., Pap. Suelos*, nos. 11, 12; *Id., Col. Ley.*, xxii. 194, 197, 200; 1874, 34-5, 53; *Nic., Gaceta*, Dec. 20, 1873; *Nic., Semanal Nic.*, Dec. 11, 20, 1873.

[XVIII-49] He resumed control of the govt Nov. 4-5, 1875. *Costa R., Col. Ley.*, xxiii. 75-6, 275.

[XVIII-50] *Costa R., Pap. Suelos*, nos. 13, 14; *Id., Informe Gobern.*, 1875, app. 16-21; *Nic., Correspond. sobre Recl.*, 3-17; *Nic., Mens. Presid.*, 1875, 5-6.

[XVIII-51] *El Costaricense*, March 24th, said that the mission of Jerez was from Barrios, president of Guat., to Guardia. The *Quincenal Josefino*, March 26th, gave it as a certainty that Nic. would propose the withdrawal of both forces from the frontier as a conciliatory measure. The whole trouble arose from the boundary dispute. *Pan. Star and Herald*, Apr. 4, 1876.

[XVIII-52] *Costa R., Mensaje*, 1876, 2; *Id., Col. Ley.*, xxiv. 24-5.

[XVIII-53] He assumed the office on the 8th, and formed his cabinet with Juan R. Mata, S. Lizano, M. Carazo Peralta, and B. Morales. *Id.*, 36-8; *Id., Discurso ... Presid.*, 1876, 1-4; *Salv., Gaceta Ofic.*, May 22, 1876.

[XVIII-54] He had been declared a benemérito, and given a vote of thanks. *Costa R., Col. Ley.*, xxiv. 62. Guardia's administration during the past six years was highly extolled in the *Gaceta Oficial* of San José. It said that his surrender of power proved the falsity of the charge that he had intended holding it for life. We shall see how much this statement was worth. It claimed for him that he had at all times blended leniency with firmness, which facts fail to establish. He was equally credited with increasing the revenues by his successful measures to repress smuggling; with protecting industry and labor; endeavoring to provide the country with a railroad between the two oceans; improving the morale of the country; spreading public education; promoting political and commercial relations with other countries; forwarding public works; and lastly, vigorously defending Costa Rica's rights against Nicaragua's pretensions. *Salv., Gaceta Ofic.*, May 22, 1876. On the other hand, we are told that Costa Rica's revenues were squandered in keeping 2,000 men on the frontier as a menace to Nicaragua. *Pan. Star and Herald*, June 1, 1876. Guardia has been justly called a tyrant, because of his arbitrary acts and violations of the constitution. Electoral and parliamentary freedom, under his rule, was a farce; results at elections being what his will dictated, and congress being mostly made up of his immediate friends and a number of puppets. There were some honorable exceptions, like that of Zacarías García, who, for acting as a real representative of the people, was imprisoned without protest on the part of his colleagues. The independence of the three powers, personal rights, freedom of the press, and other constitutional guaranties, were repeatedly trampled upon by Guardia, by his favorite, Pedro Quiroz, and by other satellites. Justices of the supreme court and numerous other prominent citizens were either imprisoned, banished, or mulcted in heavy sums of money, without any form of trial having preceded. José M. Castro, chief justice, and Salvador Jimenez, justice of the supreme court, were by Guardia's autocratic command made to live for a time on the Pacific coast. Even his brother, Victor Guardia, was harshly treated for showing an independent spirit; and his brother-in-law, Leon Fernandez, was several months kept in irons for some mysterious offence that was never brought to trial, and afterward transferred to a horrible dungeon in Limon, where he was cruelly treated until he succeeded in effecting his escape. Other infringements of the laws are also mentioned, and not a few cases of brutality, even the use of the lash on respectable citizens, which Guardia and his myrmidons were challenged to contradict

to the face of Costa Ricans. *Aguirre, J. M., Recortes ... Corresp. Hist. Polít.*, 1-21. This is a letter dated and published at Panamá May 1, 1876, and addressed to Francisco Chavez C., editor of *El Costaricense*, Guardia's press organ, whom he handles without gloves for his defence of Guardia's acts and abuse of Guardia's opponents. The writer had been one of the victims of both, and was evidently well posted on the history of Guardia's rule. Making allowance for exaggeration in some instances, the conclusion to be arrived at is that Guardia acted like an autocrat who would brook no opposition. It does not appear, however, that he was sanguinary.

[XVIII-55] The people took no part. It was a result of the abuse by the salaried press of the government, of the violation of pledges, and the tacit authorization of crimes against good and loyal servants of the country. *Salv., Gac. Ofic.*, Aug. 20, 1876. Nepotism was also probably a cause. Esquivel's min. of pub. works, and the superintendent of the railroad were brothers-in-law of his. Incompetency, mismanagement, and waste were said to prevail. *Pan. Star and Herald*, June 1, Aug. 18, 1876. The government of Nic. attributed Esquivel's downfall mainly to his friendly policy toward her, which did not suit Guardia. Circular of Nic. Foreign Min., Sept. 5, 1875, in *Salv., Gaceta Ofic.*, Oct 26, 1876.

[XVIII-56] He represented himself as free from political animosities, and promised to maintain order, and to push the work of the railroad. He created a council of state of five members, one of whom was Víctor Guardia. *El Costaricense*, Aug. 4, 10, 1876; *Costa R., Col. Ley.*, xxiv. 145.

[XVIII-57] Because her govt had refused him recognition. *Costa R., Informe Rel.*, 1877, 1-3. Guardia had been appointed plenipotentiary to Guat. and Salv. He visited Guat. first, and arrived at San Salvador Aug. 3d. In presenting his credentials he said that he had been instructed to pave the way for the fusion of the positive interests of Cent. Am. The real object of his mission seems, however, to have been to enlist the two governments in his projects of war against Nic. Both failed him. *Salv., Gac. Ofic.*, Aug. 5, 15, Dec. 7, 1876; Feb. 25, 1877; *Pan. Star and Herald*, Jan. 17, 1877; *Nic., Mem. Rel.*, 1879, p. iii.-iv. 23-5. Relations with Nic. were not restored till June 30, 1878. *Costa R., Col. Ley.*, xxiv. 168-9; xxv. 97-8.

[XVIII-58] Almost his first act was to dismiss from the educational establishments the able teachers who had been brought out at great expense, replacing them with jesuits. For this act he was rewarded with an autograph letter from the pope. He removed the competent foreigners from the management of the railroad on the plea of economy, employing in their places inefficient, because inexperienced, natives; the result being deterioration of rolling stock, and general mismanagement. He forbade cutting rubber on the waste lands, and imposed a duty of 3 cents per lb . He tried to force Great Britain to recall one of her consular agents. *Pan. Star and Herald*, Jan. 20, 1877.

[XVIII-59] He pretended to temporarily do so on the plea of ill health.

[XVIII-60] He chose Pedro Quiróz and Rafael Barroeta his substitutes. *Costa R., Informe Gobern.*, 1878, 2.

[XVIII-61] Appointing members of the supreme court, enacting laws, and discharging the functions of a consultive council. *Id.*, 1878, 1-2; *Salv., Diario Ofic.*, Sept. 25, Oct. 11, 1878.

[XVIII-62] Promulgated the 18th by Guardia. *Costa R., Col. Ley.*, xxv. 186-7, 210-11, 217-19, 228-30; *Id., Col. Disp. Legis.*, 1878, 16-17.

[XVIII-63] Decree of Dec. 19, 1877. *U. S. Gov. Doc.*, H. Ex. Doc., 45th Cong., 3d Sess., i. 76-9. Relations with Hond. were also interrupted in 1878. *Costa R., Informe Min. Rel.*, 1879, 2; *Id., Col. Ley.*, xxv. 237.

[XVIII-64] *Costa R., Col. Disp. Legis.*, 1878, 19-20, 25-6; *Id., Procl.*, Jan. 24, 1878; *Id., Informe Gobern.*, 1878, 2-3; *Id., Inf. Guerra y Marina*, 1878, 2.

[XVIII-65] Finally Mora was forbidden by the Nicaraguan government to reside within the eastern and southern departments. *Nic., Mem. Rel.*, 1879, p. iv.

[XVIII-66] Sept. 12, 1878. *Salv., Diario Ofic.*, Oct. 11, 1878.

[XVIII-67] *Costa R., Instal. Asamblea Legis.*, 1880, 7 f.

[XVIII-68] Abolition of capital punishment adopted; also the following clauses: laws to have no retroactive effect; all persons,

not convicted of crime, were free, and to have the privilege of entering and leaving the republic; right of congregating unarmed to discuss public affairs, and the conduct of officials, of petitioning individually or collectively, and of expressing political opinions, together with freedom of the press fully recognized. *Pan. Star and Herald*, Oct. 16, 1880.

[XVIII-69] Free expressions of opinion were an open road to persecution. *Id.*, Nov. 6, 1880.

[XVIII-70] *Costa R., Honores Fún.*, 1882, 1-59; *Pan. Star and Herald*, July 20, 1882.

[XVIII-71] Fernandez was born in San José July 18, 1834. He received a portion of his education in Guat., and at 18 years of age entered the Costa Rican army. In 1854 he was a sub-lieutenant, and in 1856 served in Nic. against Walker. In 1860 he fought against the invaders under Ex-presid. Mora at Angostura. In 1870 he was one of the few men that captured the artillery barracks, thereby causing the overthrow of Presid. Jimenez. During Guardia's rule he held several positions of trust and rose to gen. of division. His wife was named Cristina Guardia. *Costa R., Boletin Ofic.*, March 14, 1885; *Id., Gaceta*, April 30, 1885.

[XVIII-72] Aug. 11, 1882, a gen. amnesty for political offences to date was decreed.

[XVIII-73] A sort of compromise was agreed to; a few officials were removed, and the *Quincenal Josefino*, Montúfar's journal, ceased publication. *Pan. Star and Herald*, Feb. 24, 1883.

[XVIII-74] They were embarked the 19th at Limon; and the fact was telegraphed the same day to the other Cent. Am. governments by Sec. of State Castro. *El Guatemalteco*, July 30, 1884; *Costa R., Informe Rel.*, 1885, 17, 89-91; *Pan. Star and Herald*, Sept. 18, 1885.

[XVIII-75] July 19th, cemeteries were secularized. July 22d, religious orders were suppressed. All these executive decrees were countersigned by Minister Bernardo Soto, who later became president. *Costa R., Gaceta*, June 9, 1885.

[XVIII-76] The federation plan had been opposed in 1883 by Costa Rica refusing to accredit delegates. *Costa R., Gaceta*, Feb. 3, 1885; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 48, Sess. 1, pt 1, 54.

[XVIII-77] *Costa R., Gaceta*, March 9-12, 1885.

[XVIII-78] Further honors to his memory at a later date. Aug. 3, 1885, it was ordered that his bust should be placed in the public square of San José. *Id.*, March 13, 14, Aug. 5, 1885; *La Estrella de Pan.*, March 28, 1885; *El Universal* (Pan.), March 17, 1885; *Pan. Star and Herald*, March 23, Sept. 9, 1885.

[XVIII-79] Soto is a native of Alajuela, Feb. 12, 1854; his parents being Gen. Apolinar de J. Soto, and Joaquin Alfaro. He was educated in Costa Rica, and in 1877 was admitted to the bar, and practised the legal profession till 1880, when he travelled in the U. S. On his return he was made governor of the province of Alajuela, in which position he exerted himself for the advancement of the province. He did not complete his term, having to make a visit to Europe. On his return in April 1882, he was again appointed governor of Alajuela, and in August of the same year the executive called him to fill a position in his cabinet as minister of government, police, and public works. Apr. 19, 1885, he married Pacífica, a daughter of Ex-president Fernandez; and May 15th, congress declared him a benemérito, and gen. of division. *Costa R., Gaceta*, May 16, June 9, 1885.

[XVIII-80] The first named was given the portfolio of foreign affairs. *Id.*, March 13, 14, 1885.

[XVIII-81] Circular of March 17, 1885. It also explained the motives prompting Costa R., Salv., and Nic. to resist Barrios' projects. *Id., Manif. del Gob.*, 1885-6. Costa R. sent a contingent of troops to Nic., Hond., and Salv. Her troops, however, had no opportunity to fight. Presid. Soto tendered his resignation on the 5th of June, but it was not accepted, and extraordinary powers were conferred on him for sixty days. *Id., Gaceta*, May 22, 23, June 6, 1885.

[XVIII-82] He was also deprived of his political rights, 'por el delito de conspiracion para rebelion, cometido en servicio activo de las armas.' *Costa R., Gaceta*, Nov. 27, 1885.

[XIX-1] In 1829, when convents were closed in Guat., he had to leave the cloister, and afterward obtained a papal dispensation from his vows. He then studied law, and received the degree of licentiate in 1836.

[XIX-2] Slowness and procrastination ruled supreme. A citizen of Salvador said of Dueñas to describe his policy: 'El mejor caballo para Dueñas es el que no anda.'

[XIX-3] In Jan. 1866 he married a wealthy widow, who had been educated in the U. S. That same year the university conferred on him the degree of doctor of laws. *Nic., Gaceta*, Feb. 3, March 3, 1866.

[XIX-4] The Hondurans claimed on the strength of art. 8th of the treaty concluded at Santa Rosa on the 25th of March, 1862, the concentration in the interior of Salvador of Gen. Florencio Xatruch, the priest Miguel Bustillo, and José Manuel Selva, Hondurans; and also of certain Nicaraguans, who after their rebellion against the government of Fernando Guzman in their own country, had found a refuge in Salvador, and made common cause with the enemies of President Medina, because he had supported Guzman with the moral and diplomatic influence of his government. The Salvadoran negotiator denied that Xatruch was a political refugee. He was sent by Nic. in 1863 to Salv. at the head of an auxiliary force. Later with Nicaragua's permission he was employed by Salv., he being since 1858 a general of division of her army, a rank conferred on him for his services against Walker and his filibusters; and was therefore entitled to all the rights of a Salvadoran citizen. Salv. pledged, however, that he would do no hostile act against Hond. As to adopting any action against the Nicaraguans, the demand could not be acceded to, because they did not come under the provisions of the treaty with Honduras, nor were they political refugees at all. The commissioner of Salv. made counter-charges: 1st. Hond. had violated art. 9 of the treaty of Santa Rosa, in that her legislature had empowered the executive to declare war against Salv. without first complying with the terms of that clause. 2d. She had allowed asylum to Salvadoran refugees, giving them employment on the frontier of Salv., where they had been constantly plotting and uttering menaces against their govt, using arms obtained from Honduran govt warehouses. All remonstrances against such proceedings had been disregarded. 3d. Hond., heeding false reports, had raised 1,500 men, keeping a portion on the Salv. frontier, and maintaining a warlike attitude. The Honduran commissioners denied the correctness of the charges, and quoted instances in which their government had given proofs of deference and friendship toward its neighbor. *Salv., Protocolo de las Conf.*, 1-16.

[XIX-5] Nic. had mediated on behalf of peace, accrediting H. Zepeda and M. Montealegre as commissioners at Amapala. But an affair of arms at Pasaquina frustrated the efforts of the legation. Circular of Nic. Foreign Min., Sept. 5, 1876, in *Salv., Gaceta Ofic.*, Oct. 26, 1876.

[XIX-6] The oligarchs pretended contempt for Medina's action; some said, 'Medina es un loco, y Honduras un esqueleto;' others, 'La quijotesca actitud de Honduras afianzará mas nuestro poder.' Uriarte, *Observ. ... Union Rep. Cent. Am.*, 3.

[XIX-7] It was said that Medina was enticed into assisting the liberals, under the delusion that they would call him to rule over the united states of Guat., Salv. and Hond.

[XIX-8] San Salvador, the capital, had been several days fortified awaiting an assault, but the invaders, not knowing how much force there might be at hand for its defence, preferred to march on to Santa Ana.

[XIX-9] *Hond., Boletin Ofic.*, no. 2, contains the official report of the action, copied in *Nic., Gaceta*, March 13, 1871.

[XIX-10] A guard was kept around the minister's house as long as Dueñas was his guest.

[XIX-11] He was kept there, treated with respect and consideration till after his trial. The particulars of his surrender appear in the official correspondence of Min. Torbert with both his own and the Salvadoran governments. *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 42, Sess. 2, i. 693-5.

[XIX-12] There was no reason to keep him a prisoner. He could no longer injure Medina, and moreover, the government took into account his valuable services to Cent. Am. in 1856-7 against Walker. *Laferrière, De Paris à Guatémala*, 197-8.

[XIX-13] The process was accordingly passed to the cámara de 2d instancia. *El Porvenir de Nic.*, June 2, 1872.

[XIX-14] The revolution was declared one for the restoration of the people's rights, Gonzalez being recognized as provisional president. His recall of the supreme court was approved of.

[XIX-15] Freedom to meet peaceably for the discussion of public affairs and the conduct of the rulers; freedom of speech

and of the press were fully recognized and established, as also the inviolability of life, personal liberty, property, and honor, which no man could be deprived of except for cause after undergoing a fair trial. A citizen's domicile and private papers were also declared inviolable. Primary instruction was to be uniform, gratuitous, and obligatory. Secondary and superior education were to be free, though subject to the supervision of the civil authorities. Passports were abolished. The Roman catholic was declared to be the state religion, but other christian sects not repugnant to morality and good order were tolerated. Foreigners could become naturalized after two years' residence, and Spanish Americans after one year. All Salvadorans of 21 years or upwards, and of good moral character, were citizens, provided they had either one of the following qualifications: being father of a family, or head of a household; knowing how to read and write; possessing an independent livelihood. Those of only 18 years of age having a literary degree were also voters. The military in active service could neither vote nor be voted for. The government was vested in three distinct powers: legislative, composed of a senate, renewable yearly by thirds, each senator owning at least \$2,000 in real estate, and a house of deputies, the whole renewed yearly; the executive, vested in a president owning at least \$10,000 in real estate, his term being for only two years; and the judiciary, consisting of the supreme and lower courts. No ecclesiastic was eligible. The president, vice-president, and members of both houses of congress were to be chosen by electoral colleges. *Laferrière, De Paris á Guatémala*, 199-202; *El Porvenir de Nic.*, Nov. 26, 1871; Jan. 7, 1872; Ruiz, *Calend. Salv.*, 70.

[XIX-16] Full Sp. text in *Laferrière, De Paris á Guatémala*, 343-82; *U. S. Govt Doc.*, H. Ex. Doc., Cong. 43, Sess. 1, For. Rel., ii. 788-94, 811-20; *Nic.*, *Gaceta*, Nov. 30, 1872; *Nic.*, *Semanal Nic.*, Nov. 28, 1872.

[XIX-17] Salvador's acceptance of the war declared by Hond. March 25th was signed by President Gonzalez, and countersigned by his cabinet; namely, Gregorio Arbizú, min. of foreign rel.; Manuel Mendez, min. of pub. instruction; Borja Bustamante, min. of the treasury and war; and Antonio G. Valdés, acting min. of govt. *El Porvenir de Nic.*, May 12, 1872.

[XIX-18] A plot was to break out simultaneously in San Salvador, San Vicente, Sensuntepeque and Cojutepeque, with

ramifications in Guatemala. The Indians of Cojutepeque rose against the garrison and were beaten off.

[XIX-19] The report was dated Oct. 4th, and signed by the ministers, G. Arbizú, J. J. Samayoa, and Fabio Castillo. The legislative sanction was given Oct. 14th. Report of Thomas Biddle, Am. minister, in *U. S. Govt Doc.*, H. Ex. Doc., For. Rel., Cong. 43, Sess. 1, ii. 784-7.

[XIX-20] Mendez held also the position of minister of public instruction, justice, and ecclesiastical affairs. He was an honorable, energetic, and talented man, and his loss was much deplored by the country, and particularly by Pres. Gonzalez. *U. S. Govt Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 547-8. The republic also lost this year, Dec. 10th, one of her most gifted and valuable sons, Gregorio Arbizú, who had likewise been vice-president, and for many years minister of foreign relations. His funeral was conducted and the expenses defrayed by the government, as a mark of respect and appreciation of his services. *Nic., Semanal Nic.*, Dec. 26, 1872.

[XIX-21] He was captured in Jan. 1875, and shot on the 29th of Apr. *Salv., Diario Ofic.*, Jan. 20, May 1, 1875.

[XIX-22] Such was the flattering account given by the government to the national congress, on the opening of its labors Jan. 18th. *Salv., Mensaje del Presid.*, Jan. 20, 1875; *Id., Mem. Sec. Rel. Exter.*, 1875, 1-12; *Id., Diario Ofic.*, Jan. 20, 1875.

[XIX-23] Under a decree of amnesty of Nov. 2, 1875. *Salv., Diario Ofic.*, Nov. 4, 1875.

[XIX-24] The governments of Guat., Nic., and Hond. tendered aid. The rebels were eventually pardoned after some months' imprisonment. *Pan. Star and Herald*, July 6, 28, 1875; *Salv., Diario Ofic.*, June 23 to July 21, 1875.

[XIX-25] This intervention was apparently on the ground of humanity, to stop the civil war raging there. But the main reason recognized was that the situation in Hond. was a menace to Salv., and might lead to an interruption of friendly relations between the latter and Guat. Salv., on being accused of violating the compact, alleged that by strict rights it had become obsolete after the action of Naranjo, when Leiva's administration demolished its

foes and recovered its full authority. However, Salv. was disposed to fulfil her agreement. *Salv., Diario Ofic.*, March 23, 1876.

[XIX-26] These decrees were countersigned by the other ministers, J. Barberena, F. Lainfiesta, and Joaquin Macal. *Guat., Recop. Ley., Gob. Democ.*, 202-6; *Pan. Star and Herald*, Apr. 17, 1876.

[XIX-27] It denies all the charges of Barrios and his govt as unfounded in fact and slanderous, and imputes to Barrios the intent to conquer Cent. Am., beginning with Salv. and Hond. This decree is countersigned by the ministers Manuel Cáceres, Dositeo Fiallos, Julian Escoto, and Carlos Bonilla. *Salv., Diario Ofic.*, March 29, 1876; *Pan. Star and Herald*, Apr. 8, 1876.

[XIX-28] Uraga acted under orders, and wonders why the Salvadorans did not fall upon Chingo and capture all the supplies there. *Réplica*, 12-16.

[XIX-29] The victors did not occupy Apaneca because the enemy, though defeated, was still much superior in numbers. The Salvadoran general-in-chief claimed a victory over 2,500 well-disciplined Guatemalans. The *Diario Ofic.* of San Salv., Apr. 18, 1876, had it that 4,000 Guatemalans were put hors de combat in the two fights of Apaneca—evidently an exaggeration.

[XIX-30] The Salvadoran army of the east was annihilated. Gen. Delgado, and colonels Henriquez and Jerez were killed, Gen. Figueroa and Col Benj. Molina wounded. A large number of prisoners, about 1,500 Remington rifles, and much other war material fell into the victors' hands. *El Guatemalteco*, Apr. 25, 1876; *Pan. Star and Herald*, May 1, 2, 1876. According to a Salvadoran account, the eastern expeditionary force consisted of 1,500, while that of Solares was of 2,500. The former claimed a victory on the 17th, confessing, however, that they had finally to retreat. *Salv., Diario Ofic.*, Apr. 19, 23, 25, 1876.

[XIX-31] He had thrown into it 900 bombs without other result than destroying a few buildings. *Un Guatemalteco, Cartas*, 26; *Salv., Diario Ofic.*, Apr. 21, 1876. Gen. Gonzalez told a different story.

[XIX-32] Gonzalez said that during the negotiations there were 2,300 men in Ahuachapan and 2,000 in Santa Ana; of the latter only one half were well armed. The Guatemalans had every

advantage—numbers, arms, discipline, and abundant resources of every kind. They had but few desertions, whereas from the Salv. ranks there had been many. Barrios' army on entering Santa Ana exceeded 9,000 men. Salv. still had a chance of obtaining honorable terms. If these were refused, she could, after providing for the defense of the capital, concentrate the remainder of her forces in Santa Ana, and trust to the chances of a battle. *Gonzalez, Rel. de los Hechos Ocurr.*, 1-18, in *Pap. Var.*, ccxxvii. no. 14.

[XIX-33] The commissioners were José Valle, Jacinto Castellanos, and E. Mejía for Salv., and Gen. Lopez Uraga for Guat. The terms are here epitomized: 1st. Presid. Valle was to resign the executive office to the person hereafter named. 2d. Gen. Gonzalez to give up the command of the forces to Valle. Both were to have full guaranties for their persons and property. 3d. The Salv. forces now at Santa Ana were to retire to San Salv.; Santa Ana to be evacuated by 12 M. of the 27th inst. War material that could not be removed in time was to be delivered to Uraga under inventory. 4th. Santa Ana, and territory within two leagues of the town, were to be occupied by the Guatemalans, the civil authorities being allowed to exercise their functions therein, but expected to furnish supplies; Barrios guaranteeing security of persons and property to the inhabitants. The Guat. forces in the east were to occupy San Miguel, and territory within one league, under the same guaranties allowed the civil authorities and people of Santa Ana. 5th. Presid. Valle was to convoke a junta of notables, within four days from the ratification of this convention, to meet at Santa Ana, and choose in accord with Barrios the person in whose hands Valle must resign his offices. 6th. The acting executive must, within ten days, convoke the people of Salv. to freely choose, a month later, the president of the republic. 7th. The person designated by the notables shall have organized his government and issued the convocation, the forces of Guat. will leave the Salv. territory. 8th. Barrios and the provisional executive of Salv. will make a treaty of peace between the two republics. 9th. This convention must be ratified by Barrios at once, and by telegram within twenty-four hours by Valle, the ratifications to be exchanged within six hours after. An additional article made free the transit between the two countries. The convention was duly ratified. Upwards of 200 persons at Santa Ana sent Barrios, after the occupation of the town by his troops, April 30th, an address of thanks for his magnanimity and generosity, adding that no Salvadoran could justly complain of

the behavior of the Guat. army. *Guat., Boletin de Noticias*, no. 8; *Barrios, Mensaje*, Sept. 11, 1876, 7-11; *Salv., Diario, Ofic.*, May 4, 7, 1876; *Id., Gaceta Ofic.*, May 26, 30, 1876; *Costa R., Informe Sec. Rel.*, 1876, 11-12; *Pan. Star and Herald*, May 16, 1876.

[XIX-34] Cruz Ulloa, min. of foreign relations, justice, eccles. affairs, and pub. instruction; José Lopez, of govern.; Estanislao Perez, of war; and Fabio Moran, of treasury. *Salv., Diario Ofic.*, May 6, 1876.

[XIX-35] By Cruz Ulloa and Marco Aurelio Soto. The treaty provided also for the surrender of common criminals, the concentration away from the frontier of political refugees; fostering legitimate and checking illicit trade; excluding Jesuits. In the event of misunderstandings, the parties must resort to arbitration. The treaty of Jan. 24, 1872, and the Rivas-Carazo with Nic., were repealed. Honduras and Costa Rica were to be invited to join it. *Salv., Gaceta Ofic.*, May 11, 1876; *La Regeneracion*, May 16, 1876; *Salv., Diario Ofic.*, April 1, 1879; *Pan. Star and Herald*, June 1, 1876.

[XIX-36] *Costa R., Pap. Sultos*, no. 17. Gen. Indalecio Miranda, who had been proclaimed president in some parts, recognized Zaldívar.

[XIX-37] A native of Salv., he studied medicine in Cent. Am. and completed his professional studies in Paris. On his return home he soon had a remunerative practice, and came to be considered one of the best physicians in Cent. Am. His professional duties did not, however, keep him out of politics.

[XIX-38] He effected his escape from the capital disguised as an Indian with a load of grass on his head.

[XIX-39] In Feb. 1879 congress thanked the emperor of Germany for the honor of knighthood conferred on Zaldívar. In France he was given the title of officer of pub. instruction. The same month and year congress gave him a vote of thanks for his services. *Salv., Diario Ofic.*, March 6, 8, 1879.

[XIX-40] He therefore saw good reason to tender congratulations to the representatives of the people on the promising condition of Salvador and the other Cent. Am.

republics. *Zaldívar, Mensaje*, Jan. 5, 1883; *Pan. Star and Herald*, Jan. 17, 1883; *Pan. El Cronista*, Jan. 20, 1883.

[XIX-41] Among the persons taken as leaders of the movement were Gen. Francisco Menendez, Dr Manuel Gallardo, Marcial Estevez, and Manuel A. Loucel. *Salv., Diario Ofic.*, Apr. 16, 17, 1883; *Pan. Star and Herald*, May 5, 7, 1883.

[XIX-42] June 1st. This decree caused much satisfaction among all classes.

[XIX-43] The grounds for the convocation as stated were that the people had almost unanimously declared that some of the clauses of the constitution of 1880 were not suited to the national requirements. The *Diario Oficial* expressed the hope that the revision would give a more judicious application of the principles of a republican government, thus strengthening the public liberties without weakening the principle of authority.

[XIX-44] The govt was vested in three distinct powers: legislative in two chambers; executive in a president for four years; and judicial in a supreme court.

[XIX-45] He constituted his cabinet with the following ministers: Salvador Gallegos, of foreign affairs; Domingo Lopez, interior; Pedro Melendez, treasury and navy; Asun. Mora, war and public works; Luciano Hernandez, education; and Antonio J. Castro, justice. *Guat., Mem. Sec. Rel. Exter.*, 1884, p. 6; *Costa R., Mem. Sec. Rel. Exter.*, 1884, 5-6; *Pan. Star and Herald*, Jan. 16, Feb. 23, 26, 1884.

[XIX-46] He visited the U. S. and France, being received with the honors due his rank as chief magistrate of a friendly nation. *La Estrella de Pan.*, Aug. 14, Sept. 11, 1884; *El Guatemalteco*, Apr. 29, 1884.

[XIX-47] Proclamations and manifestoes of Pres. Zaldívar and the assembly of Salv., March 14, 15, 17, 1885. *Costa R., Boletin Ofic.*, March 21, April 1, 1885; *La Estrella de Pan.*, March 28, 1885.

[XIX-48] The Salv. official reports claimed victories at Coco and San Lorenzo. The attack against the latter was made at 10 p. m. of the 31st, and repulsed. Repeated the next day from 5 a. m. to 3 p. m.; the assailants were driven back by Gen. Monterosa. *Costa R., Boletin Ofic.*, April 2, 1885.

[XIX-49] According to a Guat. account, an error was committed in not bombarding the Salv. stronghold, Casa Blanca. Barrios at 8 A. M. of the 2d led the assault on the N. E. side of the fortification with the Jiron brigade of Jalapas, which on that day behaved cowardly. Shortly after the assault, a little past 9, Barrios was mortally wounded, and forthwith removed. The Jalapas gave way, divulging to other troops the death of the president. Thus it came to pass that the first who saw Barrios fall were the first to take to flight, followed by men of several other brigades. To avert a disaster, the troops operating on the N. side were recalled. The firing ceased on both sides at 4:30, and the retreat to the Magdalena began at 6:30, the Salvadorans not pursuing. The same authority claimed that if the firing had been kept up an hour longer, the Guatemalans would have won the day, several bodies of troops having abandoned the town, and the supply of ammunition in the place being already scanty. He asserts that the Guat. loss in all the fights was in killed, besides the president, and his son Gen. Venancio Barrios, colonels A. Jiron, V. Bonilla Cruz, Urbano Sanchez, Major Gonzalez, a few other officers, and 200 rank and file. *Campaña de la Union Cent. Am.*, in *La Estrella de Pan.*, May 30, 1885.

[XIX-50] Further details may be seen in Zaldívar, *Mensaje*, May 4, 1885; *Costa R., Informe Sec. Rel. Exter.*, 1885, 1-4; *Id.*, *Boletin Ofic.*, Apr. 5, 1885; *La Estrella de Pan.*, Apr. 4, May 2, 9, 1885; *Pan. Star and Herald*, Apr. 10, 24, 27, 1885; *S. F. Cronista*, Apr. 4, 11, 15, 25, May 2, 1885; *Mex., Diario Ofic.*, Apr. 4, 1885; *Id.*, *Monitor Rel.*, June 20, 1885; *Id.*, *La Prensa*, supl. no. 162.

[XIX-51] The gov. of Salv. proclaimed peace on the 15th of April, and granted a full amnesty to all who took part in the war against Salv., and generally to all in exile for political offences.

[XIX-52] Though the gov. had made common cause with Barrios, it manifested a disposition to cut loose from the alliance after the late events.

[XIX-53] *Costa R., Gaceta*, May 19, June 24, 1885. Zaldívar well knew that there was a powerful opposition to him.

[XIX-54] Menendez was a man of energy and courage. He possessed good common sense and natural shrewdness. His habits were simple. Polite and unassuming, he always made a favorable impression.

[XIX-55] *Costa R., Gaceta*, July 1, 1885; *Pan. Star and Herald*, July 18, 1885; *La Estrella de Pan.*, July 25, 1885.

[XIX-56] Nov. 26 and 27, 1885. *Pan. Star and Herald*, Sept. 9, Dec. 7, 1885. This state of things still existed in March 1886. Correspondence of March 1st, to *S. F. Post*, April 2, 1886.

[XIX-57] The supreme court would not recognize the right of the Salv. courts to demand it. *Costa R., Gaceta*, Nov. 1, 1885; *Pan. Star and Herald*, Sept. 18, 1885.

[XX-1] A general officer then filling the position of civil and military chief of the department of Chiquimula. It has been said that Carrera, shortly before his death, suggested him for the succession. The conservative element claimed that for his abilities and meritorious services Cerna had won himself popular regard. *Nic., Gaceta*, May 20, 1865. Events will show that his mental calibre was very ordinary, being a religious fanatic, and retrogressionist of the old oligarchic school of the Aycinenas, Pavons, and Batres. He was a warm friend and constant associate of the jesuits, to whom he went to confession, if reports did not belie him, about once a week; so he must have had a tender conscience, or else was a confirmed sinner.

[XX-2] 'Su probidad, rectas intenciones, inteligencia, y larga práctica de los negocios merecen la estimacion y confianza de todos los buenos guatemaltecos.' *Guat., Boletin de Noticias*, no. 3.

[XX-3] It is understood that his father, a peaceable citizen of Los Altos, for some unguarded words against the govt, was taken as a prisoner to the capital, and cruelly treated. The son then had gone off to Chiapas, whence he had made occasional raids.

[XX-4] The govt deprived Cruz of his rank as a mariscal de campo, suspended constitutional guaranties, such as they were, and declared traitors all persons implicated in the rebellion, or holding relations with the insurgents. On the 5th of Feb. troops were despatched to the disturbed districts. *Pan. Mercantile Chronicle*, March 3, 1867.

[XX-5] One of his plans was to destroy the rum-stills belonging to a monopoly, from which the treasury derived a large revenue. The cry of Down with the aguardiente company! raised

by any popular man would bring him staunch followers. Carrera himself had used it in his early days.

[XX-6] He had signed a pledge not to return to Guat. without leave of the govt, and neither directly nor indirectly to disturb the public peace. *Nic., Gaceta*, Apr. 27, May 25, 1867; *Pan. Star and Herald*, Apr. 20, 1867; *Pan. Mercantile Chronicle*, May 22, 1867.

[XX-7] Cruz and some of his officers were executed; others were sentenced to ten years' confinement in San Felipe castle. J. Rufino Barrios escaped, and his hacienda, El Malacate, being partly in Guat. and partly in Soconusco, an active pursuit of him was not easy. *Guat., Boletin de Noticias*, Aug. 16, 1867; *Pan. Merc. Chronicle*, Sept. 4, 18, Oct. 4, 1867. Barrios made another raid from his hacienda in Apr. 1868, which also failed in effecting his purpose. *Guat., Gaceta*, Apr. 29, 1868; *Nic., Gaceta*, May 23, 1868.

[XX-8] May 8th, suspended certain clauses of the constitution. The decree alleged that Cruz had been inveigling the Indians of Los Altos 'con promesas peligrosas de distribucion de tierras.' Cruz was declared amenable to the laws for his seditious acts of 1867 as well as for the present ones. All others concerned with him were made indictable for treason, if after the public. of the decree they did not surrender. Passports had to be obtained to travel. *Guat., Gaceta Ofic.*, Apr. 9, 1869; *Pan. Star and Herald*, Apr. 17, 1869; *Salv., Constitutional*, May 20, 1869.

[XX-9] The distillery was destroyed as a matter of course.

[XX-10] The official report added that the insurgents left 24 dead and 16 prisoners; and that it was rumored Cruz had been shot in the heart.

[XX-11] *Nic., Gaceta*, June 12, 19, Aug. 7, Sept. 18, Dec. 18, 1869; *Pan. Star and Herald*, June 17, Sept. 17, 1869; *Guat., Boletin de Noticias*, Nov. 24, 1869.

[XX-12] Zavala was accused by the conservatives of political inconsistency, in that he had all along claimed to be a supporter of Cerna. *Pan. Star and Herald*, Feb. 2, 1869.

[XX-13] The vote stood 31 for Cerna, 21 for Zavala, 5 scattered. Not a bad showing for the liberals, if we consider that the electors had been chosen under the influence of the oligarchic government. *Id.*, Feb. 23, June 17, 1869.

[XX-14] In his message to congress Nov. 25th, Cerna acknowledged that the country was in a sad plight. He called his account 'un cuadro desconsolador,' and requested a postponement of the session.

[XX-15] The govt had raised a loan in London, and for a few months was able to tide over many of its difficulties, internal debts, and arrears due the army and officials being settled, and the treasury still having a surplus.

[XX-16] The government had supposed him in a distant department fleeing from its troops, when he quietly slipped into Palencia, a town distant 8 or 9 miles from Guatemala, in the night of Saturday. Feeling certain that the govt was ignorant of his whereabouts, and confident that the people of Palencia were friendly, he failed to adopt proper precautions, and even had high mass chanted for his troops in the small hours of the morning. But it so happened that the authorities of Guatemala received late in the night information of his arrival, and of the number of his men. An overwhelming force of Santa Rosa Indians, devoted to Cerna and hostile to Cruz' Indians, was despatched under command of Brig. Solares, who surrounded Cruz and attacked him before he had begun to prepare for his own attack of the capital. He made a desperate fight of two hours, however, behind the adobe walls of a corral, but it availed naught. His only chance of escape was in flight. A rush carried him and his remaining men to the edge of a ravine, and he had gone down half of the steep descent when a ball struck him in the thigh and broke it. No quarter was asked or given. He was slain while fiercely fighting to the last. His fleeing men were relentlessly pursued for several days, and such as were not killed in the ravines were captured and executed. *Peatfield's Glimpse at a Cent. Am. Rep.*, in *Overland Monthly*, xiv. 163-5; see also *Guat.*, *Boletin de Noticias*, Jan. 15, 1870; *Id.*, *Gaceta*, Jan. 28, 1870; *Nic.*, *Gaceta*, Feb. 5, 19, 1870; *Nueva Era*, Paso del Norte, Apr. 3, 1885. The victorious Solares was promoted to mariscal de campo; his officers also received promotion, and the rank and file one month's extra pay; but he lived to enjoy his new honors less than a year, his death occurring in Nov. 1870. *Nic.*, *Gaceta*, Dec. 3, 1870.

[XX-17] It was exposed to the public gaze at the door of the hospital, where a photograph of it was taken, copies of which were sold at half a dollar each.

[XX-18] On parole not to return without permission of the govt. He and some members of his family had to sign a \$10,000 bond.

[XX-19] Silas A. Hudson, the Am. minister, claimed that much had been due to his advice, and the favorable opinion had of his friendly course. *U. S. Govt Doc.*, H. Ex. Doc., For. Rel., Cong. 41, Sess. 3, 444.

[XX-20] Cerna was blind himself, or tried to throw dust into the eyes of the representatives of the people when in his message of Nov. 25, 1870, he assured them that peace had been fully restored. *Nic., Gaceta*, Dec. 17, 1870.

[XX-21] The particulars of this revolution appear in another chapter.

[XX-22] The *Boletin de Noticias* said, respecting his movement, 'cometió el acto de demencia.'

[XX-23] So said the *Boletin de Noticias* of Guat., copied by *Nic., Gaceta*, June 3, 1871.

[XX-24] The preamble said that Cerna's govt had become intolerable by its arbitrary and cruel acts in violation of the constitution and other laws; that it had usurped powers, and had assailed the representatives of the people; it had ruined the public treasury, and compromised the independence of the country by contracting without authority of law a ruinous loan in Europe. Consequently, the people would no longer forbear with its tyrannical domination, and had resolved to set it aside. The following are the resolutions epitomized: 1st. To depose the tyrant and usurper Cerna; 2d. To appoint Miguel García Granados provisional president with full authority to reorganize a government on the bases proclaimed by him May 8, 1871; 3d. He was also instructed when expedient to convoke a constituent assembly for framing a new fundamental law; 4th. The officers solemnly bound themselves not to lay down their arms until these purposes were effected. Signed by Gen. of Brigade J. Rufino Barrios, Colonel Francisco del Riego, lieut-colonels Juan Viteri, Julio García Granados, etc. *Guat., Recop. Ley., Gob. Democ.*, i. 1-3 et seq.

[XX-25] He had been, he said, for 20 years energetically opposing the government's illegal proceedings in the chamber of

deputies; and it had never dared to touch him until after its triumph over Cruz in Jan. 1870. *García Granados, Procl.*, June 2, 1871.

[XX-26] A contemporary gives the following lists of bequests left by the conservative rule of thirty years. A large number of jesuits, well fed on the sweat of the people, and their acolytes and choristers; another large quantity of Capuchin friars who preyed on the inhabitants of Antigua, Guat.; about 200 friars and lay brothers in the capital, most of them lazy and stupid; nearly 200 useless nuns, of whom some 40 were in a state of insanity or idiocy, and in condition to be canonized; one archbishop, 2 bishops, 12 or 15 vicars and canons, and a high steward of church property, etc; a foreign debt of five million dollars; a nearly complete absence of public education, necessitating the establishment of at least 500 schools and colleges adequately supplied; few, if any, roads or bridges; no steam vessels; no adequate postal service; no telegraphs; no public lands, for immense tracts of unproductive lands were held by the church and by a few aristocrats. *Juan Álvarez, Dos Palabras*, 12-13. Prior to the revolution of 1871, which regenerated the country, the capital wore a monkish and funereal look. After the triumph of this movement, abuses were eradicated, anachronisms disappeared, and modern ideas began to prevail. *Batres, A Sketch of Guat.*, 16-17.

[XX-27] The men had been pressed into the service, and moreover, dreading the superior arms of their opponents, in several instances fled at the first onset, throwing down their arms.

[XX-28] It has been averred that he partook of some coffee which had been drugged.

[XX-29] Cerna must either pursue, giving him a vantage-ground, or rush to the defence of the capital, making the success of the revolution equally certain, for the whole country would then rise against his detested rule.

[XX-30] An unfortunate circumstance occurred. A portion of the troops with which Julio G. Granados had forced the passage of the ravine, going toward the farm of Dieguez, encountered two companies of Solares' men, and the two forces mistaking one another for the enemy, fought some minutes; some men were wounded, and a field-officer named Juan Solórzano was slain.

Guat., Boletin de Noticias, Aug. 4, 1871; *Nic., Gaceta*, Sept. 16, 1871.

[XX-31] They all behaved well; but special credit must be given, not only to the chief and Barrios, but to Solares and Viteri, who struck decisive blows.

[XX-32] Cerna fled to Chiquimula with a few followers. The Indians were still faithful to him, and begged he should lead them to the field in defence of his cause; but he knew any such effort must end in disaster, and refused. He then continued his flight to Honduras. Most of his ministers also escaped. Indeed, no effort was made to detain them, or other men of the fallen administration, it being considered a better policy not to be hampered with the responsibility of disposing of them. The old minister of war remained behind and was not molested. Full particulars on the campaign are given in *Salv., El Republicano*, July 3, 1871; *Id., Diario Ofic.*, July 11, 12, 1879; *Nic., Gaceta*, July 21, 1871; *Costa R., Informe Min. Rel.*, 1872, 14; *Id., Boletin Ofic.*, March 22, 1885; *J. J. Peatfield's Glimpse at a Cent. Am. Rep.*, in *Overland Monthly*, xiv. 166-7; *Un Guatemalteco, Cartas*, 6-9; *Uriarte, Observ.*, 4-6.

[XX-33] There were not wanting men who reproached García Granados for his generosity to the vanquished.

[XX-34] Congress had ceased to exist; the heads of important offices had fled; the treasury was empty. There was danger to be apprehended from the radical element among the liberals, composed of a large portion of the mechanics and artisans, who claimed that the change had mainly resulted from their influence, and they now wished to dictate measures which the new government could not decree. Their violent feeling was manifested specially toward the jesuits and other religious orders. Their discussions in the club de los artesanos, and elsewhere, often disclosed a marked suspicion of and conveyed warnings to the authorities. There were also misgivings about Barrios' intentions. Indeed, many believed that though not actually at the head of affairs, he had the control; even after leaving the city, he was supposed to aspire to the presidency, to which he would have himself elected as soon as the constituent assembly should meet. Meantime, it was said, he would allow García Granados to put the disrupted state in order, and enact the needed measures.

[XX-35] *Guat., Recop. Ley., Gob. Democ.*, i. 3-4. It recognized freedom of speech and of the press, though requiring publications to bear the signatures of their authors. Champerico was made a port of entry for both export and import, which the people of Los Altos had loudly demanded. The cultivation and sale of tobacco were declared free to all; and the importation of Chiapas rum was permitted. *Nic., Gaceta*, Aug. 5, 1871.

[XX-36] He denied that his government had ever contemplated wounding the religious feelings of the nation.

[XX-37] The power of the church had been almost as great as that of the government. Under the constitution the church nominated a number of deputies to the assembly, and was the only one recognized or tolerated. Its influence in the assembly had been large, and its interests were well represented. *Crosby's Statement*, MS., 91, 110-11. This influence had always been exercised to uphold the despotic sway of the oligarchs.

[XX-38] The rebels were routed Sept. 24th at Santa Rosa by the forces under Barrios, and again the 28th at Jalapa. They lost their artillery, other arms, and much ammunition. *Guat., Recop. Ley., Gob. Democ.*, i. 13-15; *Nic., Gaceta*, Nov. 4, 1871; *El Porvenir de Nic.*, Oct. 1, 1871.

[XX-39] *Id.*, Nov. 26, 1871; *Guat., Recop. Ley., Gob. Democ.*, i. 24-5.

[XX-40] Decree no. 59, in *Boletín Ofic.*, no. 52. The order had been removed from Guat. by command of King Carlos III., in 1767, its members leaving the capital on the 1st of July for the coast, and being embarked for Spain. *Hist. of Mex.*, iii. 432-3, this series. But a law of June 7, 1851, sanctioned by the assembly Nov. 5th, authorized their permanent reestablishment, revoking all other laws or decrees to the contrary, notably one of 1845, notwithstanding the many protests made against the measure. The most plausible pretext for the restoration of the jesuits had been the alleged scarcity of competent priests for the work of spreading the gospel; which was equivalent to saying that the 300 priests living in the republic were both insufficient and incapable. The real object of the hasty reintroduction of the order was said to be the aggrandizement of the house of Canon Juan José Aycinena, closely connected by family ties with Manuel F. Pavón and Luis Batres. Aycinena had pledged himself to bring the order in, and in exchange for this service it was to influence his

appointment as archbishop of Guatemala. It was a well-understood bargain. *Guat., Carta al Ilmo. Sr. Arzob. por un Catól. Apostól. romano*, Guat., Aug. 20, 1851, in *Cent. Am. Pamph.*, v. no. 12.

[XX-41] Report of the comandante of San José, in *Boletin Ofic.*, Sept. 25, 1871; *Guat., Recop. Ley.*, iii. 290; *Id., Gob. Democ.*, i. 89-90; *El Porvenir de Nic.*, Oct. 22, 1871; *Costa R., Gaceta*, June 9, 1885; *Mex., Diario Ofic.*, Oct. 15, 1871.

[XX-42] The jesuits fared no better in Salvador, where the constituent assembly, being consulted as to whether they should be allowed to enter, resolved that their presence in the country would not be beneficial. Only four votes were cast in their favor. *El Porvenir de Nic.*, Oct. 1, 1871. A few who lived in Salv. were made to depart in 1872, and forbidden to reënter. A treaty was made with Guat., under which neither government was ever after to allow jesuits to reside within their respective territories. *Id.*, March 24, 1872; *Ore. Uana, Refutacion*, 1-11.

[XX-43] The decree was issued with the clause that any deficit experienced by the archdiocese in consequence should be covered out of the pub. treasury. Decree of Dec. 22, 1871, in *Guat., Recop. Ley.*, iii. 290; *Id., Gob. Democ.*, i. 23-6, 70-1.

[XX-44] The decree contained nine articles, and regulated the manner of disposing of the property which had belonged to these associations. The religious orders thus suppressed were those of the Franciscans, and recolects, dominicans, mercedari, clergymen of the oratory of Saint Philip de Neri, jesuits, paulists, and lastly the capuchins, otherwise called bethlehemites. These capuchins were natives of Spain, most of whom had been partisans of the pretender called Cárlos V. They occupied a convent which had belonged to the bethlehemites, when they were taken by a military guard to the coast and shipped away, with orders never to return. They had made themselves particularly obnoxious, and not being citizens of the country, the gov. was free to make them leave. Friars who were natives of Cent. Am. were permitted to remain, and given a monthly allowance for their support; but forbidden to show themselves in public with their habits on. *Nic., Semanal Nic.*, July 4, 1872; *Id., Gaceta*, Aug. 3, 1872; *El Porvenir de Nic.*, July 14, 1872; *Guat., Recop. Ley.*, iii. 290-1; *Id., Gob. Democ.*, i. 91, 101-2; Peatfield's *Glimpse*, in *S. F. Overland Monthly*, xiv. 159; *S. F. Post*, July 2, 1872.

[XX-45] With toleration of all religious sects throughout the republic. This subject was being discussed in the constituent assembly, with much opposition to the clause being inserted in the fundamental law. The govt then cut the gordian knot. Later other decrees were passed, further curtailing eccles. jurisdiction, including the secularization of cemeteries. *Guat., Mem. Sec. Gob., Justicia, etc.*, 1880, 2-5; *Id.*, 1882, 11-12; *Guat., Recop. Ley., Gob. Democ.*, i. 159-61; *El Porvenir de Nic.*, Apr. 27, 1873.

[XX-46] Placing a notice on the convent door that any one entering it without permission of the ecclesiastic authority would be excommunicated. The nuns had been kept away from intercourse with their relatives, and the civil authorities had been debarred access to them. The official journal said, March 6th, that history and indisputable facts proved they had not always been the abode either of justice, morality, or true religion. The removal of the teresas, capuchinas, and claras to the Santa Catarina was made under the personal inspection of the jefe político of the department. Their number was about 126, and most of them were natives of the other Cent. Am. republics. *Pan. Star and Herald*, March 24, 1873.

[XX-47] The property of all religious houses having been confiscated, each one of these ex-nuns was allowed a life pension of \$12 per month. *Guat., Recop. Ley., Gob. Democ.*, ii. 13-14, 58, 64-5, 205.

[XX-48] The work was against Guat. and Salv. Costa R. was expected to side with the latter. Nicaragua's administration was not well disposed toward them. *Guat., El Centro Americano*, Feb. 19, 1872; *El Porvenir de Nic.*, May 5, 1872.

[XX-49] Martial law was established, together with stringent rules for dealing with rebels. Freedom of the press was temporarily suspended. This last measure was repealed in May. *Guat., Recop. Ley., Gob. Democ.*, i. 73-5, 80-1, 95-100; *Nic., Gaceta*, Feb. 24, 1872.

[XX-50] García Granados' decree of May 8, 1872. *Guat., Recop. Ley., Gob. Democ.*, i. 87-8; *U. S. Govt Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 518; *Nic., Semanal Nic.*, May 30, 1872.

[XX-51] *Salv., Diario Ofic.*, March 19, 1876; *Nic., Semanal Nic.*, May 30, June 6, July 4, 1872; *Guat., Recop. Ley., Gob. Democ.*, i. 88, 102.

[XX-52] F. Alburez, in treasury; José M. Samayoa, in fomento; Víctor Zavala, in war; Ramirez ad int., in foreign relations; M. A. Soto ad int., in government, justice, and eccles. affairs.

[XX-53] Notwithstanding that his conduct had been seditious in 1871, he had been given the rank of col, and the offices of jefe político and comandante de armas of Amatitlan. *Barrios, Procl.*, at Quezaltenango, Jan. 23, 1873.

[XX-54] Cerna had declined to take any part in the movement. The defeat of the rebels by Solares at Las Arrayanas and Cumbres de los Ajos on March 10th, with the loss of several prominent men, reduced them to straits. *Id.*, i. 155-6, 177-80; *Nic., Semanal Nic.*, Feb. 20, March 6, May 8, July 24, Aug. 21, 1873; *El Porvenir de Nic.*, Feb. 23, March 28, Apr. 6, 27, 1873; *Pan. Star and Herald*, March 11, 22, May 13, June 12, 1873; *El Monitor Repub.*, Apr. 18, 1873.

[XX-55] The office had been in charge of Barrios since Feb. 11th. *Guat., Recop. Ley., Gob. Democ.*, i. 155. During this tenure Barrios called for a forced loan. On the 15th he summoned to his presence at the comandancia general a number of citizens, one of whom imprudently said that he would go armed to punish any insult. Barrios accused them of hostility to the government, and of rendering pecuniary assistance to the insurgents. He warned them of their danger, and suggested the expediency of their aiding the govt to bring the insurrection to an end. It is said that the armed one, Rafael Batres, a son of the late minister of state, two or three times laughed in a contemptuous manner, enraging Barrios, who walked up to him, tore open his coat, and pulled out of it a revolver, upbraiding him as a coward and would-be murderer; then ordered that 100 blows should be inflicted on his back with a supple stick or rod, such as was used to punish private soldiers. Batres received his punishment, and was afterward sent to jail. The other men were also confined in the common jail, and the next morning were brought with shackles on through the streets to the comandancia, and told that they would not be released till they signed bonds to pay their respective shares of the forced loan; after doing which they were set at liberty. Julian Volio, ex-minister of Costa R. and Guat., did not receive any ill treatment, but was made to leave the country. Batres was also banished. Referring to this incident in a message to congress, he said that the rebellion had been instigated with the pretext that religion was menaced. His measures he confessed

had been severe, but necessary. The result realized his expectations, for as soon as these men ceased furnishing resources to the rebellion it collapsed. *Barrios, Mensaje*, Sept. 11, 1876, 5-6.

[XX-56] It was called Dec. 11, 1871. *Id.*, i. 53-69, 83-4; *El Porvenir de Nic.*, Feb. 11, May 5, 1872; *Salv., Gaceta*, Sept. 9, 1876.

[XX-57] All proposed amendments to the old constitution had been rejected as not adequate to the present requirements of the country. *Nic., Semanal Nic.*, Oct. 10, 1872.

[XX-58] García Granados, who on the 2d of June had been declared a benemérito de la patria, after surrendering the presidency, made a visit to Europe, returning in March 1874, when he was cordially welcomed by all classes. His death occurred Sept. 8, 1878, and was much deplored. *Guat., Recop. Ley., Gob. Democ.*, i. 182-3; *Salv., Diario Ofic.*, Sept. 12, 1878; *Pan. Star and Herald*, Oct. 6, 1880.

[XXI-1] *Costa R., Boletin Ofic.*, March 22, 1885.

[XXI-2] He rose to prominence by military prowess, and yet knew but little of the military art. His enemies would not even concede him courage, or that he had risen by any effort of his own, but merely by circumstances. *Un Guatemalteco, Cartas*, 6-8.

[XXI-3] I will quote in corroboration what foreign correspondents said. Barrios' administration in 1875 was enjoying the confidence of the people, and had the support of public opinion. He had in his favor not only the testimony of the liberal portion of the Cent. Am. press, but of intelligent travellers just from the theatre of his so-called atrocities against the liberty of his people. He had more: the direct as well as tacit testimony of the property holders, both native and foreign. The guiding principle of Barrios' govt was to check evil practices, and to encourage good deeds. Again in 1880 Barrios continued as indefatigable as ever, travelling over the country, devising measures for the benefit of his fellow-citizens. The country was at peace. Foreigners, in comparing Dec. 1870 with Dec. 1880, can scarcely realize that they are living in the same country, and that only one decade has elapsed since the terrors of 1870. Since then Guat. has seen progress in every respect, and all due to the

energy of this man, who has not wavered in his efforts to educate his fellow-citizens to the standard of the times. *Pan. Star and Herald*, Jan. 12, 14, 1875; Jan. 12, 1881.

[XXI-4] In 1876 there were primary schools in all the towns for the compulsory and gratuitous education of children of the poor. *Boddam Whetham's Across Cent. Am.*, 39. Later there were established three high schools: the Politécnica, for the education of officers at the expense of the state; alumni were also admitted at their own charge, who were not bound to accept commissions in the army; the Normal, for the training of teachers; and the Belen, for the instruction of females. All those schools were in charge of teachers from the U. S. and Europe; the Belen being conducted on the plan pursued in the U. S.

[XXI-5] He was a man of the people, flattered the lower classes and the soldiers, especially those of Los Altos, and won their good-will.

[XXI-6] Espionage existed. Domestic servants even were used as spies. The postal service was like an office of the old inquisition. These charges are probably true, and the system, one of long standing, may have been demanded by the political situation. It has been said that he had a young Spanish priest named Félix Pagés murdered in cold blood. The other side of the story is that Pagés shot at him Sept. 14, 1877, in San Pedro Jocopilas, missed him, a scuffle ensued for the possession of the weapon, when other persons entered the room, one of whom was Barrios' body-servant, Inés Cruz, who seeing Pagés again trying to discharge the revolver at his master, drew out his own weapon, and shot the priest dead. This version is the official one, and was communicated by U. S. Minister Williamson to his government. *U. S. Gov. Doc.*, H. Ex. Doc., 45th Cong., 3d Sess., i. pt 1, 73-4; *Star and Herald*, Oct. 20, 1877. It is that some women were gagged, confined in the common jail, and afterward banished to distant towns. *Un Guatemalteco, Cartas*, 24. I have no space for the innumerable accusations of anonymous and irresponsible persons. The following are given because made by a prominent Mexican general who served some time under Barrios: Innocent men of respectable position were whipped by his order, and women confined in the common jail. A judge was set to sowing grass. A distinguished lawyer was made to march in a religious procession through the streets dressed as a private soldier. An ecclesiastic, for failing to salute him, was kept for hours opposite his balcony with head uncovered and erect, and treated with

contumely. He had the head of a city councilman shaved like a priest's, and then shut him up in a convent. It was Barrios' practice to have men beaten till they told what he wanted of them, and he invented a cruel torture called el apreton, which was compressing the person's temples. His assassinations were wanton and cold-blooded. This general, however, was a considerable time in Barrios' service, and had a falling out with him. His statements may be the result of spite. As a ruler who had in his hands during nearly 12 years the destinies of his country, he undoubtedly committed many errors, and as a man he had defects; but how deny, speaking with truth, the benefits his abilities, patriotism, constancy, and energy bestowed? *Uraga, J. L., Réplica á J. R. Barrios*, 6-7, 33-4. Another Mexican who says horrible things of Barrios, whom he called La Pantera de Guat., signed himself I. Martinez, in *S. F. El Cornista*, March 4, 1885; *La Estrella de Pan.*, May 2, 1885.

[XXI-7] Decree of Nov. 4, 1873, requiring them to surrender with their arms. *Guat., Recop. Ley., Gob. Democ.*, i. 203; *Pan. Star and Herald*, Oct. 23, Nov. 22, 1873; *Barrios, Mensaje*, Sept. 11, 1876, 5. For his complicity in the insurrection, the guardian of the archdiocese had to leave the country, and remained absent till he was permitted to return. *El Porvenir de Nic.*, Aug. 17, 1873.

[XXI-8] Gonzalez was expelled in disgrace from the army, and sentenced, moreover, to confinement for ten years in the fortress of San Felipe. He was also deprived of all right to hold office. Bulnes was also deprived of this right, and condemned to three years imprisonment. And yet he had instigated Gonzalez to commit the outrage, and was morally the guiltier of the two. *U. S. Govt Docs.*, H. Ex. Doc., For. Rel., Cong. 43, Sess. 2, Doc. 1, pt 1, 177-83.

[XXI-9] There were present on shore, upon that occasion, the commanding gen. of the Guat. forces, the British rear-admiral, Cochrane, and officers of four of his ships lying at San José, the British chargé, the Am. minister, and others, besides 200 Guat. troops, and a like number of marines and sailors from the British ships. *U. S. Govt Doc.*, H. Ex. Doc., Cong. 44, Sess. 1, Doc. 1, pt 1, 128-9.

[XXI-10] The victim of Gonzalez' brutality declined to receive any portion of the money. Scolfield, the British representative at Guatemala, for the manner in which he conducted the affair, was knighted.

[XXI-11] Butler had several conferences with the min. of foreign affairs, insisting on the revocation of that decree, which the min. invariably refused. *El Progreso*, Aug. 29, 1875. However, it seems that Guat. gave way, and declared her recognition of Cuban independ. to be null. *The Mexican Financier*, Apr. 18, 1885.

[XXI-12] In 1876 the Sp. gov. recognized that the captain-gen. had exceeded his powers, and must be censured. But in March 1880 it asked Guat. as a favor to forego that clause, which the latter acceded to on being reassured that in future the usages of international etiquette should be observed in the relations between the two governments. *Guat., Recop. Ley., Gob. Democ.*, ii. 129; *Id., Mem. Min. Rel. Est.*, 1881, 13-14.

[XXI-13] Circular of Nic. foreign min., Sept. 5, 1876, in *Salv., Gaceta Ofic.*, Oct. 26, 1876.

[XXI-14] Both places within Guat. territory, but near the boundaries of the other two states.

[XXI-15] Barrios reviewed in Guat. 11,000 men, and ostensibly disbanded them. He really had about 18,000 under arms, and it would have been easy for him to make the number 20,000 in eight or ten days. Salv. went slow in the work of disarming. She had 2,300 men in Santa Ana, 3,000 in San Salvador, and 2,000 in other places; and the government had decreed a forced loan of half a million dollars, of which one half had been collected. Having taken the laboring men from their peaceful vocations, the govt feared a revolution if it desisted from war with Guat. *Pan. Star and Herald*, Feb. 14, 16, 1876.

[XXI-16] Neither cajolery, argument, nor movement of troops produced the desired effect, for the delegates could only see in his propositions the destruction of their several nationalities.

[XXI-17] The war cost Guat. about 2,000 lives, and one and a half million dollars, however. The events connected with Salvador and Honduras appear in the history of those states for this period.

[XXI-18] Nicaragua in 1877 joined the three in treaties to act in concert, and harmonize 'las tendencias de la familia Centro-Americana.' *Salv., Gaceta Ofic.*, Oct. 3, 1877.

[XXI-19] Gregorio Solares, to whom the successes were chiefly due, entered the city quietly, receiving no share of the popular plaudits, which were all bestowed on Barrios as the victor.

[XXI-20] Sept. 9, 1876. It was revoked March 22, 1885, when Barrios undertook to establish the Cent. Am. republic by force. *Costa R., Boletin Ofic.*, March 23, 1885.

[XXI-21] The sword was delivered him Sept. 15, 1877. *Salv., Gaceta Ofic.*, Sept. 26, 1876; Feb. 25, March 21, Sept. 28, 1877; *Pan. Star and Herald*, Nov. 1, 1877.

[XXI-22] He would not go to the palace, but made the ministers come to his residence, and adopted measures without consultation with them. He was in fear of being poisoned. *Uruga, J. L., Réplica*, 18-20.

[XXI-23] It had been originally convoked Oct. 21, 1875, the date of meeting being left for future consideration. Its first meeting was Aug. 31st, when its officers were chosen. This was the seventh constituent assembly in 55 years of national existence. *Guat., Recop. Ley., Gob. Democ.*, ii. 159-68; *Salv., Gaceta Ofic.*, Sept. 9, 24, 1876.

[XXI-24] In the temporary absence of the president, the council of ministers was to take charge of the executive office. In case of his death or other inability, the council of state was to convoke an assembly. The president was called upon to appoint a council of state composed of competent and upright men, which he did. *Id.*, Nov. 3, 9, Dec. 8, 1876.

[XXI-25] Samayoa gave way to J. M. Barrundia, and went to Europe; Alburez, min. of the treasury, was succeeded by J. A. Salazar; Lainfiesta in fomento by M. M. Herrera; Barberena was min. of the interior, and Macal of foreign affairs, who later was replaced by Lorenzo Montúfar.

[XXI-26] With the evidence obtained during the day and night of the 1st, several persons said to be implicated were arrested, and the judicial investigation was initiated. The plan of the sedition was ascertained from the acknowledgments and confessions of its promoters and others. The priest, Gabriel Aguilar, José Lara Pavon, Enrique Guzman, and others, as appeared in the testimony, had organized themselves as a society,

recognizing one another by means of signs, to promote a revolt. The execution of their plan was left to A. Kopeski, commander of the artillery, and his second, Capt. Leon de Rodas, at whose quarters assembled in the night of the 1st a number of men who were then armed, to be ready for relieving the guards at the palace and comandancia general, after they had been narcotized with wine and morphine furnished by Aguilar. This part of the plot once accomplished, the commanders of other bodies of troops were to receive forged orders to bring their men, without arms, into the city, when others in the conspiracy stationed outside would seize the arms. One of these orders, ostensibly signed by Barrios, was sent Oct. 31st to the comandante at Palencia, who, not doubting its genuineness, was on the point of obeying it; but despatched an officer to inquire where he was to station his men, and the object of the call. The president at once telegraphed to other commanders, and was advised that they had similar orders. One man was arrested, and then another, until the plot was unravelled. A large portion of the criminal element, as well as of the lower classes, were mixed up in the affair. The president, his family, ministers, and friends were to be assassinated. Rich men would have to ransom their lives with sums ranging from \$50,000 down to \$10,000. Daggers, gags, and morphine were discovered. Barrios decreed, Nov. 5th, that the parties should be tried by court-martial. This decree was countersigned by all his ministers; namely, J. Barberena, José Ant. Salazar, Lorenzo Montúfar, and under sec. of war A. Ubico, then in charge of the portfolio. Foreigners as well as natives realized their narrow escape from a fearful catastrophe, and commended Barrios and his ministers for their action. The justice of the sentences was fully acknowledged. Barrios, in his message to the constituent assembly, in March 1879, alluding to the affair, said: 'La sociedad guatemalteca se vió por un momento al borde de un abismo de sangre y devastacion.' The reactionists, he added, unable to demand the abolition of the reforms which had so greatly improved the condition of the people, 'pedian al puñal y al veneno, á ese recurso traidor y alevoso, una hecatombe suprema, una montaña de cadáveres.' *Barrios, Mensaje*, March 15, 1879; *Salv., Gaceta Ofic.*, Nov. 13, 18, 1877; *Pan. Star and Herald*, Dec. 1, 1877; *La Voz de Méx.*, S. F., Feb. 23, 1878.

[XXI-27] In the preamble he alludes to the declaration of the last assembly on Oct. 23, 1876, adding that he accepted the dictatorship as a necessity, because of the unsettled condition of the country, though well aware that unrestricted powers are

incompatible with republican principles. The election of deputies was to begin Jan. 10th, and all citizens were made eligible, excepting only such as held certain offices, as *jefes políticos*, revenue officials, judges, and military commandants, who could not be candidates in their official departments or districts. *U. S. Gov. Doc.*, Cong. 46, Sess. 2, i. pt 1, 140; *Salv., Diario Ofic.*, Nov. 22, 1878; Jan. 22, 1879; *La Voz de Méx.*, May 6, 1879.

[XXI-28] He had endeavored, he said, to maintain friendly relations with the other Cent. Am. governments, and as for those with Salv., Hond., and Nic., 'jamás se han cultivado con el verdadero espíritu de fraternidad con que hoy se mantienen y fomentan.'

[XXI-29] The same course was pursued by Guat. toward Mexican citizens residing in her territory, who were causing in 1879 and 1880 disturbances in Soconusco and Chiapas. The correspondence and proceedings of the governments in both affairs appear in *Mex., Correspond. Dipl.*, ii. 221-91; *El Guatemalteco*, Sept. 7, 1879; *Mex., Diario Ofic.*, Nov. 8, Dec. 2, 1879.

[XXI-30] Every principle won with the loss of so much blood was secured. The legislative authority was vested in a chamber of representatives, and the executive in a president, whose term of office was six years. *Guat., Mem., Sec. Gobern.*, 1880, 7. Objections were made by foreign representatives, including the minister of Mexico, to art. 5th of the constitution respecting Guatemalan nationality. On this point a constituent assembly in 1885 authorized the government to settle it by treaties, which was equivalent to nullifying the clause. There were exceptions also to the 14th, intended to set down as a principle that neither citizens nor foreigners were entitled to indemnity for damages accruing to them during civil wars from the acts of revolutionary factions. The right of Guat. to insert in her fundamental law every principle or rule she might deem proper for her internal administration was fully recognized; but as regarded those dependent for their sanction on the consent of nations, in their intercourse with one another, the representatives reserved their respective country's rights. *Mex., Correspond. Dipl.*, ii. 293-8; *Guat., Mem. Sec. Rel. Est.*, 1880, 6.

[XXI-31] The new constitution was to have effect from March 1, 1880. Thus Barrios had the glory of endowing his country with a political constitution of its own, and with a

republican and democratic form of government. It will be borne in mind that after the disruption of the Cent. Am. confederation, since 1840, Guat. had been under a dictatorship, or under institutions which greatly curtailed the political rights of the ruled.

[XXI-32] A treaty of peace, amity, commerce, and extradition was concluded July 17, 1880, between Guat. and Hond., giving to Guatemalans in Hond., and Hondurans in Guat., the same civil and political rights enjoyed by the natives of the respective country, though exempting them from military service and forced loans. Refugees could be allowed asylum, but were not to use the privilege to promote hostile acts against their own or other governments. Merchandise, excepting such articles as were subject to estanco, or monopoly, were to be allowed free entry. *Guat., Mem. Min. Rel. Exter.*, 1881, 28-34.

[XXI-33] *Star and Herald*, Jan. 23, 1883; *Guat., Mem. Min. Rel. Exter.*, 1881-5; *Id., Gobern. y Just.*, 1881-5; *Id., Hac. y Créd. Púb.*, 1881-5; *Id., Guerra*, 1881-5; *Id., Formento*, 1881-5; *Id., Instruc. Púb.*, 1881-5. The following persons acted as ministers of state during some portion of Barrios' present term: Lorenzo Montúfar, Fernando Cruz, Cayetano Diaz Mérida, Delfino Sanchez, J. M. Orantes, J. Martin Barrundia, M. M. Herrera, Ángel Peña, R. A. Salazar, Ramon Murga, and F. Lainfiesta.

[XXI-34] The Guat. govt manifested its high appreciation of those courtesies on the part of the authorities and people of the U. S., in a note to the Am. minister, H. C. Hall. *U. S. Govt Doc.*, H. Ex. Doc., Cong. 47, Sess. 2, i. no. 1, pt 1, 46-7.

[XXI-35] This question is fully treated of in *Hist. Mex.*, vi. chap. xix., this series; *U. S. Govt Doc.*, H. Ex. Doc., Cong. 47, Sess. 2, i., For Rel. no. 1, pt 1, 326-33.

[XXI-36] He did not resume his office till the 6th of January, Gen. Orantes continuing at the head of the government.

[XXI-37] He added that he wished to stand aloof, and observe the working of the free institutions he had contributed to establish on a firm basis as he hoped; without neglecting, however, the duty he owed at all times to his country, and to those who, like himself, shed their blood in their efforts to the same end. He would be ever found ready to support the liberal government, and hoped that no credence would be given to the

slander that he desired to leave the country, and thus shirk responsibility. This charge was made when he left for the U. S. to settle the boundary question with Mexico. *Barrios, Mensaje*, Dec. 29, 1882. Even more had been said, to wit, that he had the plan of annexing Guat. to the U. S., which was an absurd charge.

[XXI-38] It was beyond question that he had a strong hold on the affections of those who did not belong to the reactionary party, and 'even among the latter he would be preferred to any one who would be likely to succeed him.' U. S. Min. Hall's desp. to sec. of state, Jan. 8, 1883, in *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 48, Sess. 1, no. 1, pt 1, 32-3.

[XXI-39] A measure might be adopted in the next ordinary session, when, perhaps, 'events may have occurred in regard to the Cent. Am. union.'

[XXI-40] He urged them to labor for the development of the country, whose progress and prosperity were certain, if all would coöperate to that end.

[XXI-41] Barrios addressed, Feb. 24, 1883, an extensive circular to the liberal party of Cent. Am., to assure them that his motives in working for the consolidation had been to promote the general weal, and not his personal aggrandizement. He repeated that he did not wish, nor would he accept, the presidency of Cent. Am., disclaiming that he had ever tried to impose his will on the other states, and pledging his word never to attempt it in the future. *Pan.*, *El Cronista*, March 10, et seq., 1884; *U. S. Gov. Doc.*, Cong. 48, Sess. 1, no. 1, pt 1, 49-53.

[XXI-42] As appears in a telegram of March 28th from Nic. govt to Guat. foreign min., who replied next day, that if Costa R. refused to join the diet, the meeting of delegates from only four states could have no practical effect. *Guat.*, *Mem. Sec. Rel. Exter.*, 1844, 3-5, annexes A to D; *Costa R.*, *Mem. Min. Rel.*, 1883, 3, ann. 1 and 13; *Id.*, *Gaceta*, Feb. 3, 1885; *Pan. Star and Herald*, March 5, 20, 23, 1883; *Pan. Canal*, Feb. 16, March 21, 22, 1883.

[XXI-43] 'Tantas ambiciones pequeñas, tantos menguados intereses de localidad, y tantas miras estrechas.' *Barrios, Mensaje*, March 1, 1884; *El Guatemalteco*, March 4, 1884.

[XXI-44] It was to be perpetual as to peace and friendship; and as regarded the other clauses, its duration was to be of ten

years. *Guat., Mem. Sec. Rel. Exter.*, 1884, annex 3.

[XXI-45] Barrios published an address to the inhabitants expressing gratitude for their sympathy. He made special mention of the cordial manifestation of the diplomatic corps, and the foreign residents. *El Guatemalteco*, Apr. 18, 22, 1884; *Salv., Diario Ofic.*, Apr. 17, 1884; *Hond., Gaceta*, Apr. 21, 1884; *Méx., Clamor Púb.*, June 2, 1884.

[XXI-46] Four to death, two to the chain-gang with hard labor for life, one to simple imprisonment for 10 years, and two others were acquitted. One of the chief implicated made a full confession, the plot being to cause a change in the govt by killing Barrios. *El Guatemalteco*, May 16, July 5, 12, 1884. The chief person implicated has, since the death of Barrios, made a representation to the assembly declaring the accusation false, and that the real authors of the bomb plot were in the process made to appear as the victims. *Rodriguez, G., Expos. y Docs.*, pp. i.-iii., 1-120, 3-17.

[XXI-47] The president of Costa R. also received an invitation, but being unable to leave the state, expressed through his min. of foreign affairs warm congratulations. *Costa R., Informe Sec. Rel. Exter.*, 1885, 19-20.

[XXI-48] It was countersigned by all his ministers, to wit: J. Martin Barrundia, of war; Fernando Cruz, of foreign affairs; Francisco Lainfiesta, of fomento; Delfino Sanchez, of treasury and pub. credit; Cayetano Diaz Mérida, of govt and justice; and Ramon Murga, of pub. instruction. The following is a synopsis of the decree. Art. 1. The ruler of the rep. of Guat. proclaims the union of Cent. Am.; to which end he assumes the rôle of supreme military chief with absolute control. Art. 2. He will accept the coöperation of such govts, communities, and rulers, as, within the terms laid down, should acquiesce and make common cause with them. Art. 3. A gen. assembly of 15 members from each state, freely chosen by popular suffrage, should meet at Guatemala May 1st to enact the political constitution of Cent. Am., and establish the manner, time, and form of choosing the president, his official term, date upon which he was to receive the executive authority from the assembly, and the place where the supreme federal authorities were to reside. Art. 4. Any person attempting by word or deed to oppose this decree would be dealt with as a traitor to the cause of Cent. Am. Art. 5. The people of Cent. Am. are urged to aid the accomplishment of this project. Art. 6.

Suitable rewards offered to officers of army and militia efficaciously aiding. Art. 7. Rewards also offered to the rank and file. Art. 8. Establishes the flag of the rep.: three vertical stripes, the middle one white, the other two blue; the white stripe exhibiting the coat of arms, a quetzal perched upon a column, with the following inscription: 'Libertad y Union—15 de Setiembre de 1821-28 de Febrero de 1885.' Art. 9. No negotiations relating to territory, international treaties, foreign or national loans, or other stipulations of analogous nature or importance, entered into by the other states of Cent. Am. after the date of this decree, would be recognized. Art. 10. The minister of foreign affairs was directed to lay this decree before the assembly of Guat., the other govern. of Cent. Am., and all powers of Am. and Europe with which Guat. had relations of friendship and trade. *La Estrella de Pan.*, March 28, 1885; *El Cronista* (S. F.), March 14, 21, 1885; *S. F. Chronicle*, March 10, 13, 1885; *S. F. Call*, March 13, 1885. It will be well to mention here the reasons which prompted the legislative assembly to proclaim the unity of Cent. Am. in the manner adopted by Barrios: 'El inmenso prestigio de que gozaba aquel memorable jefe, el civismo de que siempre habia dado inequívocas muestras, y los muchos elementos de que disponia para hacer práctico aquel pensamiento, acariciado por todos los buenos hijos de la América Central. This was said after Barrios was dead. *Costa R., Informe Sec. Rel. Exter.*, 1885, 21-5, 35.

[XXI-49] 'Bastante he saboreado, por triste experiencia, todas las amarguras del poder.'

[XXI-50] Art. 1. The people of Hond. proclaim the union of Cent. Am. Art. 2. Gives the executive full power to render Barrios every possible aid. Art. 3. Congress and the executive were to frankly explain the true motives of the revolution.

[XXI-51] Zaldívar then, as well as afterward, denied having betrayed Barrios. The circular of Feb. 24, 1883, to the liberal party, was issued by the latter after a conference with the former at Asuncion Mita. In that famous manifesto, Barrios pledged his honor not to attempt effecting the unification, except by peaceful means, and with the concurrence of the five republics. His message to the Guat. assembly in 1884 indicated that violent means were out of the question. A correspondent of a Panamá paper, who seemed to have personal knowledge of the negotiations, both public and confidential, assures us that at every interview between the two rulers the Salvadoran had opposed

without ambiguity all propositions, open or implied, to employ force; and that Barrios had every time admitted the weight of the reasons adduced by him. Indeed, only 20 days before his attempted assumption of supreme command over Cent. Am. Barrios assured of Salvadoran minister of foreign affairs, Gallegos, who had gone to Guat. upon a confidential mission from Zaldívar, of his conviction that never had the plan of reconstructing Cent. Am. by compulsion been so unpropitious and dangerous as at the present time; adding these words: 'Poner hoy la mano en este asunto equivaldría á meterla en un avispero.' *La Estrella de Pan.*, May 9, 1885; *S. F. Chronicle*, June 5, 1885.

[XXI-52] 'El gobierno de Vd. no responde, y no necesito decir por qué no lo hace.' These words would seem to imply that there had been an understanding between the two, and treachery was suspected.

[XXI-53] Menendez, calling himself a soldier of the union, had urged all Central Americans to aid Barrios. Zaldívar on March 15th promulgated an act of the Salv. congress declaring Menendez a traitor to his country. This decree was in force only a short time.

[XXI-54] Melchor Ordoñez, Spanish minister accredited to both republics, had in a telegram assured him that Zaldívar was his sincere friend, but was in a difficult position, having to act in accord with public opinion. He should bear in mind the Salvadorans had been led to believe that he, Barrios, intended to deprive them of their nationality to gratify his own ambition.

[XXI-55] 'Las medidas á que toda nacion prudente apela durante el estado de guerra en que se colocan sus vecinos.'

[XXI-56] The govt issued a stirring manifesto to friendly powers on the 17th of March, 1885, against Barrios' coup d'etat, signed by J. M. Castro, sec. of foreign relations. *Costa R., Informe Sec. Rel. Exter.*, 1885, 27-9; *Id., Manif. del Gob. Rep.*, 1-6.

[XXI-57] The telegraphic despatches and diplomatic notes which passed between the two governments appear in *Mex., Diario Ofic.*, March 12, Apr. 1, 29, May 5, 1885; *Id., Siglo XIX.*, March 13, 25, 30, 1885; *Costa R., Boletin Ofic.*, March 14, 1885.

[XXI-58] The treaty was signed in the city of Santa Ana, Salv., by the plenipotentiaries José Duran for Costa R., Buenav. Selva for Nic., and Salv. Gallegos for Salv. It was to be in force until Barrios should be overthrown, and another govt established entirely disconnected with him and offering guaranties of peace for Cent. Am., after which the issue of Cent. Am. union might be considered by the parties in a proper spirit, and at an opportune occasion. Costa R. pledged herself to furnish 3,000 men at her own cost, but if only 1,000 were called for, she would contribute also \$100,000, and 1,000 Remington rifles with 500 cartridges for each. Nic. agreed to furnish 4,000 troops also at her own cost. Salv. would contribute her whole available military force. The command-in-chief was vested first in the president of Salv., next in that of Nic., and third in that of Costa R., or of such persons as one or the other might designate. Costa R., however, supplied 2,000 men, and offered to loan money to Salv. *Costa R., Informe Sec. Rel. Exter.*, 1885, 31-3. Mex. placed a force near the Guat. frontier as soon as hostilities began in Cent. Am.

[XXI-59] In an unsuccessful assault against the fortifications of Chalchuapa. He was slain between 9 and 10 o'clock in the morning. One of his sons also perished fighting at his side. *La Estrella de Pan.*, May 9, 1885; *Méx., La Prensa*, suppl. ap. 4, 1885; *S. F. Chronicle*, Apr. 3, 5, 10, 1885; *S. F. Alta*, Apr. 23, 1885; *S. F. Chronicle*, Apr. 23, 1885.

[XXI-60] Barrios' last will executed at Guatemala on the 23d of March, 1885, which was filed Dec. 7th of said year in the office of the surrogate in New York, declared his wife to be the sole heir of all his property and interests. He had full confidence that she would deal fairly by each of their seven children. He desired her to pay \$25,000 to his nephew Luciano Barrios as a memento of his good services. She was also to continue providing for Antonio Barrios, then in the U. S. *Pan. Star and Herald*, Dec. 21, 1885.

[XXI-61] Sinibaldi, chosen by the assembly Apr. 30, 1884, 1st designado, vice J. M. Orantes resigned, had been in charge of the executive office since Barrios prepared to go to the front.

[XXI-62] On the following grounds: 1st. The decree of Feb. 28th having been revoked, and Barrios being dead, the causes which placed Guat. at war with Salv., Nic., and Costa R. had ceased to exist; 2d. It was a patriotic duty to promote feelings of fraternity and concord; 3. That the governments of the republics

of Cent. Am. were prompted by the same sentiments, and those of Salv., Nic., and Costa R. had already made peace with Hond., which had seconded the movement of the late president of Guat.; 4. That through the friendly mediation of the foreign corps an understanding with Salv. had been easily arrived at, and honorable terms agreed upon for a firm and stable peace between the two republics and Salvador's allies.

[XXI-63] Salv., Nic., and Costa R., also made similar declarations in regard to Guat.

[XXI-64] The same decree included a national vote of thanks to the diplomatic body accredited to the governments of Cent. Am. for their friendly intervention to bring the war to an end, and appointed Sunday the 19th to solemnize the peace thus restored. Countersigned by the four ministers, to wit: Ángel M. Arroyo, of foreign relations and pub. instruction; Antonio Aguirre, of treasury and pub. credit; Manuel J. Dardon, of governm. and justice; and E. Martinez Sobral, of fomento. *Costa R., Informe Sec. Rel. Exter.*, 1885, 35-8; *La Estrella de Pan.*, May 23, 1885; *Pan. Star and Herald*, May 23, 1885.

[XXI-65] Pres. Diaz also in a telegram to Zaldívar manifested a desire to see cordial relations restored between Salv. and Guat. *Mex., Diario Ofic.*, Apr. 11 1885; *La Nueva Era* (Paso del Norte), Apr. 17, 1885.

[XXI-66] *Costa R., Informe Sec. Rel. Exter.*, 1885, 55-7; *La Estrella de Pan.*, May 23, 1885.

[XXI-67] Decrees of June 23d and 27th. All subsidies were suspended for one year. The purpose of calling a convention was to effect some amendments to the constitution, and to enact some needed laws.

[XXI-68] Notwithstanding the great necessity of allaying the excitement still existing, there were riotous scenes on several occasions in the chamber. *Pan. Star and Herald*, Sept. 9-30, 1885, *passim*.

[XXI-69] The president's inauguration was on the 15th of March, 1886.

[XXII-1] Feb. 9th. He was to draw from the pub. treasury as pay \$200 monthly when in actual service. *Nic., Gaceta*, April 14, 1866. Later he was made a captain-general.

[XXII-2] The escutcheon was to be the same as formerly, with the sole exception of exhibiting a rising sun in lieu of the Phrygian cap. The flag was to be as follows: Two blue stripes with a white one between them, all three running horizontally, three to four varas in length, and nine inches in width; with the national coat of arms in the centre of the white stripe, and a group of five blue stars in a semicircle under it. Merchant vessels were to use the same dimensions and colors without the coat of arms.

[XXII-3] Under the constitution of 1865 the congress consisted of a senate with seven members, and a legislative assembly of eleven. The council of state was constituted with the ministers and seven other members.

[XXII-4] For the bestowal of decorations of the order was created a senate of six members to reside in the capital. This body was also empowered to dismiss any member of the order for good cause. The president was authorized to frame the statutes and appoint the senators, conferring grades of the order before its installation. The senate, once installed, was to grant decorations. The same right was reserved for congress, and the president of the republic, who was made ex-officio president of the senate of the order. A copy of the decree in Spanish is given in *Nic.*, *Gaceta*, May 23, 1868; *Laferrière*, *De Paris à Guatémala*, 427-8.

[XXII-5] In connection with the subject is mentioned the name of Bustelli Foscolo, an agent of the Hond. govt, sentenced to imprisonment in Paris for fraudulent transactions.

[XXII-6] This body was called by the regular congress at the solicitation, as it was made to appear, of the several municipalities, and was installed Aug. 8, 1869. On the 13th it declared that in view of the popular actas in the several towns proclaiming Medina president for the next term, he was actually elected. The same day the 33d article of the fundamental law was amended to read thus: 'The presidential term shall be of four years, commencing on the 1st of Feb. in the year of renewal.' On the 19th the convention adjourned sine die; Medina having warmly thanked it for the trust reposed in him, and accepted it, with the pledge of not holding the office a day after the expiration of his term. *Nic.*, *Gaceta*, Sept. 11, 18, 1869; Feb. 5, 1870; *Pan. Star and Herald*, Sept. 18, 1869.

[XXII-7] I will, however, repeat here in a few words the causes alleged by Hond. Salvador had violated the treaty of Santa

Rosa of March 25, 1862, in refusing to surrender the perpetrators of two atrocious murders. She had abetted the refugees who, in the last six years, had been fanning the flame of discord in Hond.; had refused to heed the remonstrances of the latter; and on the contrary, had placed a force on the frontier, and generally assumed a hostile attitude.

[XXII-8] The guaranty was given as a consideration for certain advantages, which could not accrue till after the road was finished. The Am. gov. could not therefore be required to repel an invasion of the route from abroad. The correspondence between ministers Baxter and Torbert with the govts of Hond. and Salv., and with their own, appears in *U. S. Govt Doc.*, H. Ex. Doc., Cong. 42, Sess. 2, i. no. 1, pt 1, 575-8, 685-93.

[XXII-9] *Hond.*, *Clarín Ofic.*, March 26, 1871; *Nic.*, *Gaceta*, Apr. 22, 29, May 13, 1871.

[XXII-10] Particulars in Salv. historical chapter.

[XXII-11] This course was doubtless adopted because of the dissatisfaction appearing, and of a revolution which was attempted during the last war. *El Porvenir de Nic.*, Oct. 1, 1871.

[XXII-12] A full amnesty was granted to all the insurgents. *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 300-2; *Nic.*, *Gaceta*, Sept. 2 to Nov. 4, 1871; Feb. 3, 1872; *El Porvenir de Nic.*, Oct. 1 to Nov. 12, 1871; Jan. 7, 1872.

[XXII-13] Convention signed at Leon Dec. 18, 1871, by Manuel Colindres, on behalf of Medina, Ex-pres. Martinez of Nic., Miguel Velez, Nicasio del Castillo, Rosalío Cortés, R. Alegría, Buenav. Selva, Seferino Gonzalez, and three others. This doc. at first was considered apocryphal, but proved to be genuine. *El Porvenir de Nic.*, June 23, 1872.

[XXII-14] With the avowed object of bringing Hond. under republican institutions. *El Porvenir de Nic.*, Apr. 28 to Aug. 14, 1872, passim; *Nic.*, *El Semanal Nic.*, May 30, 1872.

[XXII-15] After this victory the presidents of Guat. and Salv. had an interview with Arias, and returned with their troops to their respective countries, leaving 800 men to aid Arias in reorganizing the country. The campaign had lasted 24 days from the date on which Langue on the Hond. side of the frontier was occupied.

[XXII-16] *Id.*, Aug. 1, 1872; *Guat., Recop. Ley., Gob. Democ.*, i. 116-17.

[XXII-17] Juan A. Medina, Gen. Miranda, and a few friends succeeded in escaping. *Nic., El Semanal Nic.*, Aug. 8, 29, 1872.

[XXII-18] Further details may be found in *Costa R., Informe Sec. Rel.*, 1873, 7-8; *El Porvenir de Nic.*, May 26, June 2, 1872; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 303-6; *Nic., Gaceta*, June 15 to Nov. 30, 1872; *Id., Col. Dec. y Acuerdos*, 1872, 50-1; *Mex., Diario Ofic.*, Aug. 9, 1872. Circular of Nic. Min. of For. Rel., Sept. 5, 1876, referring to his government's fruitless efforts at mediation between the belligerents, adds that it finally accepted accomplished facts, and opened relations with Arias' govt. *Salv., Gaceta Ofic.*, Oct. 26, 1876.

[XXII-19] Crescencio Gomez, Máx. Arango, Casto Alvarado, Jesús Inestrosa, and a few others were also pardoned, but required to stay away from Hond. until after the promulgation of a new constitution. *Nic., Gaceta*, Nov. 30, 1872; *Id., Semanal Nic.*, Nov. 26, 1872.

[XXII-20] Life, liberty, equality, security, property, inviolability of domicile, and correspondence, and writings, freedom of transit, of peaceable assembling, and of the press, rights of petition, and of preferring against public officials.

[XXII-21] Juan N. Venero, of treas. and for. affairs; Miguel del Cid, of justice, govt, and pub. worship; Andrés Van Severen, of war.

[XXII-22] Any Honduran in full possession of his civil rights, having besides property worth \$1,000, or upwards, or being a licentiate, could be chosen. The only exceptions were the president of the repub., and the military in active service.

[XXII-23] That expedition sailed from Colon, and was led by Enrique Palacios, Casto Alvarado, Miranda Baraona, and others. It landed at Utila, one of the Bay Islands, and organized a govt for Hond., Colindres and Padilla, ministers of Medina, assuming the executive under art. 30 of the constitution of 1865, in view of the events of July 1872 at Omoa. From Utila the exped. proceeded to Trujillo, which was surrendered June 9th. That part of the plan failed, and the expedition then went to Puerto Cortés. The invaders had an understanding with Betancourt, the officer in

command at Omoa, who toward the end of June rebelled with the garrison of 150 men; but he was attacked and defeated by Streber, of Arias' govt. It was during this trouble that Streber's troops pillaged, in July, the mercantile houses of Omoa, foreign as well as native, which culminated in the bombardment afterward of the port by a British man-of-war, of which I gave the details elsewhere. The house of the Am. consul having been likewise invaded, the government had to give satisfaction, saluting the U. S. flag March 22, 1874, in the plaza of Comayagua, in the presence of their representative, troops, the ministers of state, and others.

[XXII-24] *Nic., Semanal Nic.*, June 28, July 17, 1872.

[XXII-25] The remnants of the insurgents fled by the railroad. *Id.*, Aug. 7, 21, 28, Sept. 18, 1873.

[XXII-26] The constituent congress, called by Arias, assembled Dec. 14th, and refused to accept his resignation. It also adopted other measures, which it is unnecessary to recite here, as they never took effect.

[XXII-27] A circular of the Nic. minister of foreign affairs of Sept. 5, 1876, alludes to these events. Further particulars appear in *Arias, Mensaje*, Dec. 14, 1873; *U. S. Govt Docs.*, H. Ex. Doc., Cong. 43, Sess. 2, i. 141; *Barrios, Mensaje*, Sept. 11, 1876; *Nic., Semanal Nic.*, Jan. 18, 24, Feb. 19, 1874; *Salv., Gaceta Ofic.*, Oct. 26, 1876.

[XXII-28] Leiva seemed to be a non-partisan, a man of intelligent and liberal views, and a popular favorite.

[XXII-29] Guat. objected to the treatment awarded Arias, and sent Ramon Rosa as confidential agent to Leiva to represent that Arias had been solemnly pledged security for his life and liberty, and respect for his high character and personal merits; against which pledge Arias had been kept in prison and subjected to prosecution. The gov. of Guat. believed that the men composing that assembly were not competent to try Arias, for they were reactionists, and he one of the truest liberals in Cent. Am. Leiva answered, July 8th, that he had exerted himself in Arias' favor, and that the exile he was sentenced to he would have undergone of his own accord; for he could not live in the country for some time. It was for his own benefit that the terms of the

surrender had been modified. *U. S. Gov. Docs.*, H. Ex. Doc., For. Rel., Cong. 43, Sess. 2, Doc. 1, pt i. 179-80.

[XXII-30] *Salv., Diario Ofic.*, Feb. 5, 12, March 3, 11, Apr. 4, 1875; *Mex. Mem. Min. Rel.*, 1875, annex 3, Doc. 7, p. 36; *Nic., Mem. Sec. Rel. Est.*, 1875, vi.-xi., app. 7-10.

[XXII-31] The grounds alleged for the revolt were: 1st, that the liberties of Hond. were under thralldom to Salv., which had failed to carry out the objects of the revolution of 1871; 2d, the deplorable state of the finances, because Amapala had been made a free port; 3d, that the die of Hond. had been given to Salvador. *Salv., Diario Ofic.*, Jan. 4, 5, 21, 30, March 26, 1876; *La Regeneracion*, Oct. 9, 1876.

[XXII-32] Further particulars in *Pan. Star and Herald*, March 2 to June 1, 1876, passim; *Salv., Gaceta Ofic.*, June 8, Oct. 26, 1876.

[XXII-33] At this time war broke out between Guat. and Salvador, and the former sent an army under Solares through Honduras to operate against Salvador's eastern departments. Details on these events are given in other chapters on treating of the relations between the two belligerents. At the conclusion of peace, Hond. joined them in a treaty of alliance.

[XXII-34] He resigned his portfolio Feb. 26th, with the understanding that he was to be president of Honduras.

[XXII-35] Negotiated by Cruz Lozano, on behalf of both Salvador and Medina, and M. Vigil and Luis Bogran for Leiva, both contestants giving up their claims, and agreeing to recognize Marcelino Mejía as the provisional president, which was done. *Id.*, June 24, 1876.

[XXII-36] It was said that Soto had been proclaimed in several places, and that he enjoyed the confidence of the governments of Guat., Salv., and Costa R.

[XXII-37] Another version is that Roderico Toledo arrived at Comayagua, as commissioner from Guat. and Salv., and demanded of Gomez the surrender of the executive to Soto, which is quite possible, Gomez affecting the surrender through his former chief, Medina.

[XXII-38] The garrison had declared in his favor on the 21st, the comandante Col Salvador Ferrandis losing his life.

[XXII-39] *El Porvenir de Nic.*, March 18, 1876; *Pan. Star and Herald*, Apr. 4, 1876; *U. S. Gov. Doc.*, H. Ex. Doc., 44th Cong., 2d Sess., i. 36-9; *Costa R., Informe Min. Rel.*, 1876, 11-14.

[XXII-40] *Soto, Mensaje*, May 27, 1877; *Salv., Gaceta Ofic.*, June 22, 1877.

[XXII-41] The order for their trial was issued by the comandante general of the republic Dec. 12th, the executive having first, on the 10th, asked the advice of the supreme court of justice, which was given on the next day. The crimes preferred against the prisoners were conspiracy, instigation to rebellion, high treason, and concealment of government arms. The officers forming the court-martial were Gen. Emilio Delgado, president, generals Eusebio Toro and Luis Bogran, colonels Inocente Solís, Belisario Villela, Manuel Bonilla, Antonio Cerro; auditor de guerra, Justo Cáliz; prosecuting officer, Gen. Agustin Aguilar. *Salv., Diario Ofic.*, suppl., Feb. 28, 1878; *Voz de Méx.*, July 17, 1878.

[XXII-42] U. S. Minister Geo. Williamson, in reporting these executions to his gov., Feb. 16, 1878, uses these words: 'Medina's lack of wisdom in yielding to the selection (as president) of a man who from the dictates of a cowardly or cruel policy thought it necessary to select so illustrious a victim as himself, has led to this deplorable event.... It is said neither the victims nor any one else believed the sentence of the council of war would be either approved or executed.' *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 45, Sess. 3, i. 79-80. It has been said that the execution of Medina, now aged and infirm, was in obedience to orders from Barrios. *Un Guatemalteco, Cartas*, 25.

[XXII-43] Had generals Juan Lopez and J. A. Medina carried out the order to the letter, every inhabitant of Olancho would have been annihilated. As it was, 200 men were shot and 500 hanged, all without trial. *El Porvenir de Nic.*, Nov. 26, 1871.

[XXII-44] *Diario Cent. Am.*, Dec. 27, 1880.

[XXII-45] The exhibit of the state of affairs, both present and prospective, was encouraging, and appeared to be well founded.

A synopsis of the address is given in *Pan. Daily Canal*, March 20, 1883; *Pan. Star and Herald*, March 23, 1883.

[XXII-46] He was permitted to visit the U. S. and Europe, where, as the majority of the committee to whom the subject had been referred said, free from official cares he might place himself under medical treatment, if necessary. Some members of the committee favored the acceptance, claiming it as a matter of justice, but the majority thought it would cause inconveniences in the orderly march of affairs. A journal, *La Paz* of Tegucigalpa, remarked: 'Friends and enemies of Dr Soto, men and parties the most opposite in ideas, join in considering that the withdrawal of Dr Soto would be the precursor of political misfortunes and catastrophes.' *Id.*, Apr. 18, 1883.

[XXII-47] To adjust Honduras' share of the old federal debt, which was still unpaid; and to make some settlement respecting the loans contracted in London and Paris for constructing the interoceanic railway.

[XXII-48] A little later Barrios of Guat. claimed that it was due to his own constant support rather than to Soto's administration, which he declared to have been bad and ruinous to Hond.

[XXII-49] In his journey he was accompanied by his kinsman and former minister of relations, Ramon Rosa.

[XXII-50] 'Hasta el punto de valerse de mi, como del pretexto mejor para justificar el paso de fuga y desercion que ha dado y se propone consumir; no piense que ese plan tan ruin se oculta á ninguno.' Both letters are given in full in *Pan.*, *El Cronista*, Aug. 25, 29, 1883; *La República* (S. F.), Sept. 1, 8, 1883.

[XXII-51] *Pan. Star and Herald*, Nov. 17, 1883; *La República* (S. F.), Sept. 15, 24, 1883; *Diaz, Miscel.*, no. 12, 3.

[XXII-52] Bogran was quite young, energetic, and frank in his manners, open-hearted and unpretentious. His character was in keeping with his appearance. He was master of the political situation.

[XXII-53] Rafael Alvarado, of war, education, and justice; Jerónimo Zelaya, of foreign affairs; Crescencio Gomez, of govt; Abelardo Zelaya, of treasury and public credit; and Francisco

Planas, of public works. *Guat., Mem. Sec. Rel. Ext.*, 1884, 8; *Costa R., Mem. Min. Rel.*, 1884, 3; *El Guatemalteco*, Jan. 19, 1884; *Pan. Star and Herald*, Jan. 18, 1884.

[XXII-54] So said *La República*, of Tegucigalpa, official organ. *Pan. Star and Herald*, Sept. 10, 1885.

[XXIII-1] All appropriations had been covered, and a portion of the foreign debt paid. *Presid. Martinez' Mess.*, in *Nic., Gaceta*, Jan. 19, 1867.

[XXIII-2] 'Donde la libertad, la seguridad, y el órden no sean una quimera.' *Nic., Manif.*, 1867, 1-7.

[XXIII-3] *Nic., Decretos*, 1869-70, 3, 26. It will be well to mention here that on the 4th of Jan. an attempt had been made to poison the president with arsenic placed in pine-apple preserve, of which he, together with his son and two or three others, partook.

[XXIII-4] It was remarkable that Martinez, an old conservative, should be acting in conjunction with and under Jerez, the confirmed radical democrat.

[XXIII-5] The grounds alleged by the insurgents were: 1st. Violation by Guzman of the pledges given at his inauguration. It was said that as he had detached himself from the party which raised him to the presidential chair, and on the other hand, had not shown any predilection for the old conservatives, who had tried to surround him, the true liberals had reposed faith in him, but he had not realized their expectations. Jerez and his associates, on their return from Costa Rica, had awaited an invitation to effect a fusion of parties, in order that the people should see the govt pursuing a liberal and generous policy. Jerez' advances had been coldly, and even disdainfully, met. Hence his letter to Guzman of June 26th, telling him that while he had pretended sympathy for the liberal cause, its friends had never seen any tangible proof of it. 'Muchas veces V. ha manifestado simpatías por las causas liberales; pero no las hemos visto eficaces.' Other charges were: usurpation of powers, inefficiency, illegal expenditures of public moneys, nepotism, encouragement to smugglers, etc. At a subsequent date, after his arms had proved victorious, Guzman denied that he had done any of the things imputed to him, proudly asserting that no government had in these latter days respected the rights of all citizens as his

administration had done, and he challenged one and all to bring forward proofs that he had before the revolution broke out deprived any citizen of his life, liberty, or property. Faults may have been committed by the govt, but it was folly to deny that republicanism had not become a reality under it. The knowledge of this by the people confined the revolution within narrow bounds, and gave victory to Guzman; and it was by his generosity that the promoters of the rebellion escaped the consequences of their ill-advised step.

[XXIII-6] 1. Special attention to primary instruction supported by the gov.; 2. Freedom to teach; 3. Suppression of monopolies, and establishment of a single tax; 4. Protection to industry and trade; 5. Americanism, or unity on the American continent, for the support and progress of republican liberty; 6. Restoration of the Cent. Am. union, by force of arms if necessary; 7. Encouragement of immigration by liberal measures; 8. Liberal principles in religious matters, as far as willingly accepted by the gen. convictions of the people; 9. Abolition of the death penalty; 10. Trial by jury; 11. Direct elections. This plan was signed by M. Jerez, T. Martinez, Buenav. Selva, and Francisco Baca. *Nic., Boletin Gob.* (Leon), July 1, 1869.

[XXIII-7] Holding it till Aug. 11th, when for ill health, as was made to appear, he turned it over to Martinez. *Id.*, July 30, Aug. 4, 1869. The latter in joining the revolution said that he had left his retirement 'para ponerme á cubierto de las demasías y violencias de la administracion.' It appears, however, that the govt of Guzman had tendered him the position of minister plenipotentiary in London. *Nic., Gaceta*, June 8, 1867.

[XXIII-8] Martial law established throughout the republic; passports were required to leave the same, and to go from one department to another; a forced loan of \$100,000; and a board created to procure resources for the army. *Nic., Gaceta*, July 3, 1869. A number of citizens known or suspected to favor the rebellion were arrested and their property seized. Their friends accused the government of having confined the prisoners 'en calabozos inmundos, oscuros, y malsanos,' which is not unlikely. Others fled, among them being Gerónimo Perez.

[XXIII-9] 'Proclamar con los revolucionarios la libertad de cultos, la separacion de la Iglesia y el Estado, la enseñanza libre.' *Nic., Inf. Min. Neg. Ecles.*, 1870, 8.

[XXIII-10] Text of Min. Delgadillo's note in *Nic., Gaceta*, Aug. 14, 1869.

[XXIII-11] At any rate, no step was taken to check them, nor effort made on behalf of peace. When the govern. won a signal victory, and was on the point of attacking Leon, the bishop went off to Rome, leaving his flock in tribulation. At the end of the war the vicar acknowledged the guilt of the parish priests, and by his edict of Nov. 6th suspended them. But after a while he allowed them one third of the parochial fees, and the privilege of exercising priestly functions. The consequence was that they kept up their disorderly behavior, as well as their hostility to the govt.

[XXIII-12] Once because the terms proposed by the insurgents were declared by the government inadmissible; again a convention was signed Sept. 25th at Masaya, which had no effect because the authorities at Leon insisted on amendments. *Nic., Boletin Gob.* (Leon), Aug. 4, 19, 28, Sept. 4, 1869; *Id., Informe Min. Gobern.*, Doc. no. iv. 5-6; *Id., Doc. Mediacion*, 1-32; *Id., Gaceta*, Aug. 28-Oct. 23, passim; Nov. 6, 1869.

[XXIII-13] They claimed a signal victory, for which their commander, Seferino Gonzalez, wounded in the fight, was promoted to gen. of division. *Nic., Boletin Gob.* (Leon), July 30, Aug. 4, 1869; *Id., Gaceta*, Aug. 28, 1869.

[XXIII-14] According to Gen. Jerez' report of Aug. 31st, the fight lasted from 3 o'clock till dark; Medina's defeat was complete, losing 360 rifles and 4 pieces of artillery. The victors also had several prominent officers killed and wounded. *Nic., Boletin Gob.* (Leon), Aug. 31, 1869.

[XXIII-15] Sept. 12th. The former gen.-in-chief, J. D. Estrada, an officer who distinguished himself in the campaign against Walker, had died Aug. 12th. *Nic., Gaceta*, Sept. 18, 1869.

[XXIII-16] *Nic., Informe Min. Gobern.*, 1870, Doc. iv. 6, 14-15.

[XXIII-17] He also asked them to forsake the cause of those men. The govt had on the 21st, decreed a full pardon to all who should voluntarily surrender. *Nic., Gaceta*, Oct. 23, 1869.

[XXIII-18] Convention of Oct. 24th, between Guzman and Riotte, associated with Francisco Zamora, the representative of the insurgent chiefs. 1. Full amnesty. 2. Gen. Sebastian Gutierrez,

one of the two officers asked for by the revolutionists, was to be made military governor of the dept of Leon. 3. A constituent congress to be convoked within six months, or earlier, if possible. 4. The constituent congress to resolve upon the recognition and payment of the debt contracted by the revolution, the govt being willing to place it on the same footing with that incurred by it since June 25th. 5. The insurgents were to surrender all public arms and war material of every kind to the person appointed by Guzman to receive them. Riotte was authorized to do so. 6. Perfect freedom in the elections about to be made. 7. The government to place at the head of the departments only peaceably disposed men, to promote and maintain conciliation between political parties. 8. The convention to be definitive from the moment of its being signed, Riotte promising that the delivery of arms by the insurgents should begin on the 26th. This convention was ratified at Managua Oct. 25th by Acting Pres. Chamorro, countersigned by Antonio Falla, sec. of govt and war. *Nic., Gaceta*, Jan. 8, March 19, 1870; *Nic., Semanal Nic.*, Jan. 2, 1873; *Nic., Informe Min. Gobern.*, 1870, Doc. iv. In 1870 congress rejected the 3d clause and approved the 4th. During these troubles the rights of foreign residents were protected by Min. Riotte. *Id., Informe Min. Rel.*, 1870, 1-24. Credit is also due to the efforts of the commissioners from the other Cent. Am. states to bring about peace. The revolutionists began the surrender of arms on the 27th, placing at Riotte's command 20 pieces of artillery, 2,292 other fire-arms, etc.

[XXIII-19] *Nic., Gaceta*, Oct. 30, Nov. 20, Dec. 4, 1869.

[XXIII-20] 'Por el tino, firmeza, y energía que supo desplegar en la emergencia por que acaba de pasar Nicaragua.' *Id.*, Jan. 29, 1870; *Nic., Decretos Legisl.*, 1869-70, 94.

[XXIII-21] In his inaugural speech, he promised to follow in the footsteps of his predecessor, whose policy he extolled, expressing his acknowledgments. His words were: 'Dejando en práctica principios políticos, y mejoras materiales, que antes de él apenas se habian ensayado.' *Id.*, March 4, 11, 1871; *Id., Manif. Disc. Inaug.*, no. ix.; *Id., Mensaje*, March 1, 1871, 1-10.

[XXIII-22] Message and reply in *Nic., Gaceta*, Apr. 8, 1871.

[XXIII-23] The gov. encountered much difficulty to effect a loan, except on ruinous terms. Meantime, the utmost economy was observed; nearly all public works were at a stand-still.

[XXIII-24] Their supporters believed that their example would be beneficial to the morals of the native clergy, which made a writer remark: 'Debe hacerle mucha cosquilla á nuestros clérigos, que casi todos son doblemente padres.' *El Porvenir de Nic.*, Dec. 3, 1871.

[XXIII-25] Its opponents abused Quadra for doing what the condition of the country required. Easing the treasury, reforming the administrative system, and restoring public credit. For this they called him a retrogressionist, a despot, and a fool; for being a respecter of the laws they claimed he should be censured.

[XXIII-26] It was insinuated that the Pan. R. R. Co. might be underhandedly promoting discord, to throw obstacles in the way of an interoceanic canal being made in Nic. The company had been also suspected of doing so in the late war between Salv. and Hond., to prevent, or at least retard, the construction of an interoceanic railway in the latter state. Such reports probably had no foundation in fact.

[XXIII-27] In Subtiava, dept of Leon, there was a sedition of Indians, accompanied with murders, and finally the authorities had to resort to force. *Salgado, Mem.*, 1-18; *Nic., Gaceta*, Oct. 12, 19, 1872. There were scandalous proceedings in Rivas, Chinandega, Chichigalpa, island of Ometepe, Matagalpa, and elsewhere. In some places the priests headed the drunken rabble, armed with clubs and crying Viva la religion! Mueran los herejes! To the native priests and jesuits were imputed all the troubles. *El Porvenir de Nic.*, Oct. 20, 1872.

[XXIII-28] He spoke of certain exiles, 'individuos de órdenes monásticas, cuyo establecimiento definitivo en el país no permiten las leyes, pero que permanecen aún asilados.' *Id.*, Jan. 12, 1873; *Nic., Gaceta*, Jan. 11, 1873; *Id., Semanal Nic.*, Jan. 2, 1873.

[XXIII-29] Several members visited him to congratulate him on the second anniversary of his accession to the executive office. *Nic., Renuncia*, 1-3; *Id., Gaceta*, March 8, 1873.

[XXIII-30] By a vote of 10 against 5 in the chamber of deputies. *El Porvenir de Nic.*, Feb. 16, 1873; *Nic., Gaceta*, Apr. 12, 1873.

[XXIII-31] Congress acknowledged that Nic. could not remain a passive spectator of those events. *Nic., Mensaje*, 1-8; *Nic., Semanal Nic.*, Aug. 28, 1873; *El Porvenir de Nic.*, Sept. 7, 1873; *Nic., Gaceta*, Sept. 27, Oct. 4, 18, 1873.

[XXIII-32] The Costa Rican officer Ramon Tinoco was implicated. The money—some \$22,000—was brought by P. Salamanca, apparently for the purchase of cattle, but really for revolutionary purposes. Both Salamanca and Tinoco, when their plan became known, escaped. *Nic., Semanal Nic.*, Aug. 28, 1873.

[XXIII-33] The memorandum of B. Carazo, minister of Guatemala and Salvador, had for its main objects the overthrow of the existing govt of Costa R., and the expulsion of the jesuits from Nicaraguan territory. After a discussion on the latter point, Carazo no longer insisted on that action. *Nic., Informe Min. Rel.*, in *Nic., Gaceta*, Oct. 18, 1873. In the last preceding chapter this subject was also mentioned.

[XXIII-34] *Guat., Recop. Ley., Gob. Democ.*, i. 198-200; *U. S. Govt Doc.*, H. Ex. Doc., Cong. 43, Sess. 2, 112, 117, 123.

[XXIII-35] Máximo Jerez, though a champion of unity, opposed the treaty on the ground that it violated that of friendship with Costa Rica, wherein it was stipulated that neither party should wage war against the other, nor enter into offensive alliances without first having asked for explanations; which formality he claimed had not yet been complied with. *Nic., Gaceta*, Oct. 18, Nov. 8, 1873. The treaty was approved in the senate by nine votes against two, the two nays being those of Jerez and Seferino Gonzalez. *Nic., Semanal Nic.*, Oct. 9, 1873; *El Porvenir de Nic.*, Oct. 12, 1873.

[XXIII-36] The loyal people of Nic. at once manifested their resolve to sustain the govt. *Nic., Semanal Nic.*, Nov. 20, 29, Dec. 4, 6, 11, 20, 1873; Jan. 3, 10, 1874.

[XXIII-37] Dec. 6th, to Gen. F. Espinosa, the Salvadoran commander. *Nic., Mem. Min. Gobern*, 1875, 3-5; *Id., Semanal Nic.*, Nov. 6-20, 1873; *Id., Gaceta*, Nov. 15, Dec. 20, 1873; *Pan. Star and Herald*, Dec. 16, 1873.

[XXIII-38] The troops were congratulated on their good fortune in not being used as 'instrumentos inocentes de venganzas y pasiones ajenas,' as so many before them had been. *Nic.*,

Semanal Nic., Jan. 31, 1874. The proprietor and editor of this journal was A. H. Rivas, the min. of foreign affairs.

[XXIII-39] There were a few local riots, and the government was made the subject of violent abuse in flying sheets. *Nic.*, *Mem. Min. Gobern.*, 1875, 7-12; *Id.*, *Gaceta*, Oct. 10, Nov. 21, 1874.

[XXIII-40] *Nic.*, *Mensaje del Presid.*, 1-11; *Id.*, *Contestacion*, 1-2; *Pan. Star and Herald*, Feb. 3, 1875.

[XXIII-41] No policy was laid down by him to be pursued without deviation, except that in general terms he assured congress and the people of his disposition to respect the laws, maintain peace, and do his best for the happiness and prosperity of his country. *Salv.*, *Diario Ofic.*, Apr. 10, 11, 1875.

[XXIII-42] She placed a large force in Guanacaste, and *Nic.* had to station another on the frontier under Gen. Joaquin Zavala. A plot was discovered in March 1876, and about 20 prominent persons concerned in it were expelled, some going to Costa R., and others to Hond. *Salv.*, *Diario Ofic.*, March 22, 26, 1876.

[XXIII-43] The govt had endeavored to maintain and develop the harmony which Quadra had established with the ecclesiastical authorities. The bishop and his clergy efficaciously impressed on the masses respect for pub. authority, love for their institutions, and a spirit of independence. *Nic.*, *Mensaje del Presid.*, Jan. 24, 1877.

[XXIII-44] Nov. 15, 1876. Later on the govts of Guat. and Salv. united their efforts to restore a friendly feeling betw. *Nic.* and Costa R., and finally succeeded in their purpose. *Salv.*, *Gaceta Ofic.*, June 7, 12, 1877. Relations were reopened in June 1878.

[XXIII-45] A visitation of locusts did great havoc in the corps; and a succession of gales from the 3d to the 5th of October caused heavy damages in the city and department of Managua, in Granada, Rivas, and other parts, including a large portion of Mosquitia, ruining many valuable estates.

[XXIII-46] *Chamorro*, *Discurso en el acto de entrega*, March 1, 1879.

[XXIII-47] He based his conclusion on this ground: 'La trasmision legal y tranquila del Mando Supremo, que viene repitiéndose desde tantos años en Nicaragua.' *Nic., Discurso Inaug. del Presid. Zavala*, March 1, 1879; *Salv., Diario Ofic.*, Sept. 28, Nov. 12, Dec. 12, 22, 1878; Jan. 22, March 13, 1879; *Voz de Méj.*, May 6, 1879.

[XXIII-48] The following measures were passed: law of civil registration; penal code; mode of procedure in criminal cases; creation of justices of the peace, and military courts of first resort, to take the place of the governors of departments, where for greater economy it has been deemed expedient to suppress these officers, as well as the respective military garrisons; restoration of the universities; and the appropriations for the current fiscal biennial term. It also sanctioned the treaty concluded with Guat. and Salv. in 1877, and the treaties and conventions lately entered into with Hond.; namely, amity, commerce, extradition, exportation of cattle, postal, and telegraphic.

[XXIII-49] Those on the railway decreed by the assembly of 1876, and begun by the former administration, were progressing. Two important contracts were made, one for navigation on the lake by fair-sized steam vessels, and another for the construction of a railroad from Chinandega to Moábita or Leon Viejo, and thence to Granada. The section between Corinto and Chinandega went into operation Jan. 1st. Telegraphic lines were in working order. A contract had also been concluded to lay a submarine cable to connect with the Mexican telegraphs.

[XXIII-50] Excise tax on real estates, export duties, and certain monopolies were abolished.

[XXIII-51] *Pan. Star and Herald*, March 5, 1881.

[XXIII-52] Among them were one for amending the constitution, and for abolishing judicial fees, in order to have gratuitous administration of justice. An act to seize private lands, by paying for it, for facilitating the construction of railroads, was passed. *Id.*, Apr. 1, 1881.

[XXIII-53] It was proved beyond a doubt. *El Porvenir de Nic.*, May 28, 1881.

[XXIII-54] In exhorting the young to avail themselves of the advantages the institute would afford them, he said that christianity was the true basis of education, and added that liberty of conscience and of speech was necessary for the perfect education of free men.

[XXIII-55] Several prominent citizens, among whom were Ex-president Chamorro, and Ex-minister Rivas, urged the govt to let the jesuits remain; but their arguments could not stand against Zavala's determination to rid his country of a dangerous religious and political body. *Nic., Mem. Min. Gobern.*, 1883, 5-6, annexes A and B; *Costa R.*, June 9, 1885; *Pan. Star and Herald*, May 21, June 16-18, 1883; *S. F. Bulletin*, July 6, 16, 1881.

[XXIII-56] He was a man about 55 years of age, of small stature, gray-haired, and wearing spectacles. His sharp, intelligent eyes showed the man of culture and shrewdness.

[XXIII-57] He organized his cabinet with the following ministers: Teodoro Delgadillo, of justice and religion; Francisco Castellon, of foreign affairs and pub. instruction; Jose Chamorro, of pub. works; Joaquin Elizondo, of war and marine. *Nic., Mem. Min. Rel.*, 1884, 8; *Pan. Star and Herald*, Oct. 20, Dec. 1, 1882; March 20, Apr. 17, 1883.

[XXIII-58] Vicente Navas, Enrique Guzman, Gilberto Larios, and Ladislao Argüello were appointed to represent Nic. at the conference of delegates of the five republics.

[XXIII-59] Small-pox and dysentery broke out in several districts, destroying many lives. The town of San Carlos was burned down; and the eruption of Ometepe volcano drove the inhabitants of that island from their homes. The govt afforded relief to the sufferers. Other places have been lately injured by earthquakes. *Nic., Mensaje Pres. Cárdenas*, Jan. 15, 1885; *Costa R., Gaceta*, Feb. 3, 4, 1885.

[XXIII-60] On the 13th and 14th of March they issued manifestos to Central Americans in general, as well as to their own people, inviting them to resist Barrios, who, as they said, claiming to seek the reconstruction of the old union, really was bent on conquest for his own aggrandizement. *Costa R., Boletin Ofic.*, March 13, 23, 29, Apr. 2, 1885; *U. S. Gov. Doc.*, Sen Jour., 1884-5, 568-71; *S. F. Call*, March 13, 1885; *S. F. Chronicle*, March 13, 1885.

[XXIII-61] *Costa R., Gaceta*, June 2, 1885.

[XXIII-62] They fled in disorder on the approach of govt troops. Costa R. and Hond. had placed forces on the frontiers to secure their neutrality. *Id.*, Nov. 4, 8, 10, Dec. 4, 1885; *Pan. Star and Herald*, Dec. 29, 1885.

[XXIV-1] Urbina was made a brigadier a few months after he became governor, and died Feb. 22, 1805, on which day the *teniente rey* Mata took the govt. *Pan. Star and Herald*, Oct. 3, 1868.

[XXIV-2] Each province was ruled by a governor and *comandante de armas*, and the *partidos* by *alcaldes mayores*, all being, however, under the governor at the capital, in whose hands were the superior civil government, the real patronato, and the superintendency of the treasury. *Pan. Docs.*, in *Pan., Col. Docs.*, MS., no. 36, 6; *Arosemena, Apunt. Hist.*, 3-4; *Id.*, in *Pan. Bol. Ofic.*, Feb. 25, 1868; *Arosemena, Mariano, Apuntamientos Históricos con relacion al Istmo de Panamá*, Pan., 1868, 8vo, 48 pp. The author, one of the prominent citizens who took an active part in the affairs related by him, and was one of the signers of the independence, kept a diary of events occurring on the Isthmus during many years, and in 1868, as he tells us, purposed the publication of his memoranda from 1801 to 1840. I have succeeded in obtaining a portion of his writings, and find them important for the period embraced. Mariano Arosemena died at Panamá on the 31st of May, 1868. He had several sons and daughters, one of the former being the distinguished Colombian statesman, Justo Arosemena, who has held high diplomatic positions in Europe, the United States, and South American republics, besides some of the most important offices in his own country.

[XXIV-3] *Arosemena, Apunt.*, 5; *Bol. Of.* (1868), 32. For the district of Panamá proper, there was, moreover, a high justice, '*justicia mayor de cruces*,' who on entering the city had power to take cognizance of all affairs laid before the *alcaldes*.

[XXIV-4] In addition to the regular troops of one company of artillery and one battalion of infantry, distributed in various places, there were militia forces comprising one battalion of white and one of colored soldiers at Panamá, an equal force at Natá, one battalion of whites in Veragua, and seven companies infantry and artillery scattered in different places. *Bol. Of.* (1868), 32.

[XXIV-5] *Arosemena, Apunt.*, 10-11, gives several titles of such books, of which as specimens may be mentioned *Las Fábulas de Samaniego*, *El Año Cristiano*, *El Semanario Santo*.

[XXIV-6] There was a college de propaganda fide of Franciscans; convents of barefooted Augustinians, Dominicans, and the order of Mercy; nunneries of la Concepcion and San Juan de Dios; moreover a hospital, and a charitable institution, dedicated to Santo Tomás de Villanueva, for poor women. Hospitals belonging to the order of San Juan de Dios existed likewise at Natá and Portobello. *Bol. Of.* (1868), 32.

[XXIV-7] The transportation into town was effected at night, and generally in packages, similar in size and shape to those used for carrying country products to market. *Arosemena, Apunt.*, 8.

[XXIV-8] Prompted by the Franciscans, public processions were held, at which some persons wore crowns of thorns, others carried heavy crosses on their shoulders, or ropes round their necks, etc.

[XXIV-9] Full particulars on this point have been given in connection with the histories of Mexico and Guatemala for that period.

[XXIV-10] Distinctions of classes, resulting from differences of color, were natural enough; but the rivalry was now intense between natives of Spain, and Americans of pure Spanish descent.

[XXIV-11] The permission was granted by the governor of Panamá, and never revoked even though its political influence became apparent, because of the increase of revenue resulting from that trade. *Bol. Of.* (1868), 72.

[XXIV-12] A detailed account of the occurrences at Cartagena is given in *Restrepo, Hist. Col.*, ii. 165-8.

[XXIV-13] The governor of Panamá had hastened to send an auxiliary force of several hundred men, but it arrived too late. *Arosemena, Apunt.*, 19.

[XXIV-14] 'Una expresion indiscreta que el español Don José Llorente dijo á Don Francisco Morales ... por la que despreciaba á los americanos.' *Restrepo, Hist. Col.*, ii. 174.

[XXIV-15] In August the same junta obliged the viceroy to go to Cartagena, and thence to Spain. *Id.*, 191.

[XXIV-16] Indeed, the authority of the Spanish *córtes* was formally recognized by the several provinces as late as 1811, and it was only afterward that thoughts of absolute independence were expressed.

[XXIV-17] The Spanish party ridiculed the aspirations of the patriots, because of certain dissensions already cropping out among them. *Bol. Ofic.*, 1868, 75.

[XXIV-18] 'Deben ser el primer objeto de la defensa y de la tierna solicitud del congreso ... redimiendo las segundas de las cadenas que hoy las oprimen.' *Arosemena, Apunt.*, 22; *Bol. Ofic.*, 1868, 75.

[XXIV-19] He assumed the government at Portobello, Feb. 19th, and somewhat later transferred himself to Panamá. *Restrepo, Hist. Col.*, viii. 28, followed by Perez, *Jeog.*, 109.

[XXIV-20] A letter from the vice-president of the junta gubernativa at Cartagena to Commandant Ríbon at Mompós let out the object of the mission. *Arosemena, Apunt.*, 24.

[XXIV-21] Gov. Mata had died in 1812, soon after his promotion to mariscal de campo. He was succeeded by Brigadier Victor Salcedo, who ruled only a few days.

[XXIV-22] The cause was dissatisfaction of the regency at Cádiz because he had remained in Panamá instead of selecting some other place from which he might have reached Bogotá.

[XXIV-23] 'Arrancó el ayuntamiento de Panamá con insidiosos manejos del gobierno de Cádiz el decreto de que fuese el R. Obispo removido de su silla.' *Torrente, Hist. Rev.*, ii. 69. The name of the bishop was Joaquin Gonzalez, who died in July 1813. His successor was José Higinio Duran y Martel, mentioned as bishop for the first time in 1814, who was one of the signers of the independence—*Bol. Of.* (1868), 88—and still in office in 1821. See also *Pan. Col. Doc.*, no. 125, MS.

[XXIV-24] Other distinctions, among which an addition to the coat of arms, were also resolved in the same session. *Córtes, Actas Ord.* (1814), ii. 206.

[XXIV-25] His decree of May 4, 1814, was carried out on the Isthmus in August of the same year. *Pan., Doc. Hist.*, in *Pan., Col. Doc.*, no. 36, MS., 8-19.

[XXIV-26] Bustamante, *Cuad. Hist.*, iv. 161-3, gives the number as 10,473, which agrees with the figures given by Restrepo, *Hist. Col.*, vi. 49; but this authority refers only to the troops.

[XXIV-27] This was the principal object; 'asegurar este istmo en sujecion perpetua á la España, fuera cual fuese el éxito final de la guerra de la independencia de las colonias de S. M. C. en el Nuevo Mundo;' which is confirmed by the words of the royal order of May 9, 1815, speaking of the expedition as made in view of 'la importancia de poner en el respetable pié de defensa que conviene, al Istmo de Panamá, llave de ambas Américas.' *Arosemena, Apunt.*, 29-30.

[XXIV-28] The vessel carrying Hore and part of his force was captured near Cartagena by two small ships belonging to the revolutionists. *Restrepo, Hist. Col.*, vi. 95-6; *Torrente, Hist. Rev.*, ii. 178-9.

[XXIV-29] It had been held ad interim by Juan Domingo Iturralde, *Arosemena, Apunt.*, 30-1, who was the governor of Veragua and adjoining districts. *Pan., Doc. Hist.*, in *Pan., Col. Doc.*, no. 36, MS., 8.

[XXIV-30] *Arosemena, Apunt.*, 31, speaks of his 'detestacion de los principios de gobierno representativo,' and says on page 42 that he was the man employed by Fernando VII. to dissolve in 1814 the Spanish córtes.

[XXIV-31] The king had decreed the reëstablishment of the order in Spanish America, but it was not carried out on the Isthmus, there being no members of the society here, nor any one willing to join it. 'Andábamos ya algo despreocupados,' says an authority. The society was already looked on as an agent of despotism and perpetual state of vassalage. *Bol. Ofic.*, 1868, 112.

[XXIV-32] 'Prometiéndoles ganancias enormes, pero propias de las circunstancias.' *Restrepo, Hist. Col.*, vii. 168.

[XXIV-33] While the assailants had all their attention centred on Portobello, a Spanish vessel, with \$70,000 on board, passed the port unperceived. *Weatherhead's Darien*, 29.

[XXIV-34] MacGregor had probably never read the adventures of Vasco Nuñez de Balboa.

[XXIV-35] Weatherhead, *Darien*, 43, says that Spanish officers in disguise fearlessly walked the streets, and entered the fort to drink with the men. They had passports issued by the former alcalde, who had returned after the occupation of the city, and in whom MacGregor foolishly placed confidence.

[XXIV-36] Such is Weatherhead's version. *Darien*, 57-62. Hore denied having agreed to the capitulation, adding that he regarded the men as bandits; and had demanded their surrender at discretion. Restrepo, giving no credence to Hore's assertion, declares his proceeding 'accion vil, digna de los jefes españoles de América.' Arosemena says: 'Bajo capitulacion, ó sin ella, pues esto no es del todo conocido, se sindieron.' *Apunt.*, 38-9. Santa Cruz, who was made governor of Portobello, shortly after Hore went to Panamá captured two vessels which had on board about 100 men brought from England to reinforce MacGregor; but it is unknown what became of the prisoners. *Restrepo, Hist. Col.*, vii. 173-4, 176.

[XXIV-37] 'Terminó por la ineptitud del gefe esta espedicion que hizo mucho ruido,' observes Restrepo, *Hist. Col.*, vii. 175. Weatherhead, *Darien*, 63-7, though admitting the general's incompetency, tries to apologize for his behavior.

[XXIV-38] This was pursuant to general orders from the king. The same treatment was to be awarded to persons captured under similar circumstances, 'sin dar cuenta, ni consultar á esta superioridad hasta despues de haberlo verificado.' *Doc.*, in *Restrepo, Hist. Col.*, x. 190.

[XXIV-39] Weatherhead, *Darien*, 96, speaks of 14, while Restrepo, *Hist. Col.*, vii. 177-8, mentions only 10.

[XXIV-40] Restrepo says that only 40 had survived, while Weatherhead gives the figures as in the text. I have in most cases preferred to follow the latter authority in his *An Account of the Late Expedition against the Isthmus of Darien*, London, 1821, pp. 134, map, by W. D. Weatherhead, as the work was written under the fresh impression of the events described, and by one whose position and participation in the expedition as a surgeon enabled him to obtain the most reliable information. This is furnished, together with such other historical data as the author, by means of slight investigation, could procure in addition to the narrative of the expedition and descriptions of different places on the Isthmus.

Appended is professional information on diseases, climates, and state of medical science in the province of Tierra Firme.

[XXIV-41] The constitution of the Spanish monarchy was published on the Isthmus about May 1821. Its publication in Alange took place in that month. *Pan., Doc. Hist.*, in *Pan., Col. Doc.*, MS., no. 36, fol. 26.

[XXIV-42] Alcaldes—Luis Laso de la Vega, and Mariano Arosemena. Regidores—Manuel de Arce Delgado, Juan Manuel Berguido, Pedro Jimenez, Carlos Icaza, Juan José Calvo, Remigio Laso, José Pablo Jimenez, and Tadeo Perez. Secretary—Manuel Maria Ayala. *Arosemena, Apunt.*, 41-2.

[XXIV-43] He died July 8, 1820. Arosemena, *Apunt.*, 42, places the death in Aug. Another trouble was his inability to pay the soldiers, who clamored for their dues. *Weatherhead's Darien*, 116-17.

[XXIV-44] The application of municipal revenue to local purposes; and that the police be composed of citizens under the control of the cabildo; the military patrols should be discontinued.

[XXIV-45] Many families abandoned the city to escape his persecutions.

[XXIV-46] His influence was to be seen, nevertheless, in the low tone of the press, and in the discontinuance of political meetings.

[XXIV-47] Their names are given in *Bol. Of.* (1869), 31.

[XXIV-48] *Restrepo, Hist. Col.*, viii. 28; *Arosemena, Apunt.*, 47.

[XXIV-49] Perez, *Jeog.*, 110, calls him Murjea.

[XXIV-50] His arrival at Chagres is set down by Arosemena, *Apunt.*, 47-8, on the 2d of Aug., 1821; others place him in Panamá on the 17th. *Restrepo, Hist. Col.*, viii. 29; Perez, *Jeog.*, 110.

[XXIV-51] Porras had been transferred to Yucatan, and his successor, Brigadier Tomás Cires, had been detained at Puerto Cabello. *Arosemena, Apunt.*, 48. Fábrega was the governor of

Veragua and adjoining districts. *Pan., Doc. Hist.*, in *Pan., Col. Doc.*, MS., no. 36, 25.

[XXIV-52] The church lent him some money, and he obtained \$20,000 more from the sale of armament to Peru. *Bol. Ofic.*, 1869, 31.

[XXIV-53] Mourgeon had the idea of taking with him some persons whom he suspected of disloyalty, but desisted. *Arosemena, Apunt.*, 48.

[XXIV-54] 'No declararon el gobierno que se daban, ni cosa alguna sobre los negocios de la transformacion política: novicios, se contentaron con llamarse independientes.' *Bol. Ofic.*, 1869, 31.

[XXIV-55] The commissioners were José María Chiari and Juan de la Cruz Perez.

[XXIV-56] Mollien, *Colombie*, ii. 140-1, asserts that the officers were induced to desert, partly by threats, and partly by paying them two months' arrears due them by the government.

[XXIV-57] Blas, Mariano, and Gaspar Arosemena, and José María Barrientos.

[XXIV-58] The deserters became so many recruits for an independent army.

[XXIV-59] 'Panamá, espontáneamente, y conforme al voto general de los pueblos de su comprension, se declara libre é independiente del Gobierno español.' *Bol. Ofic.*, 1869, 32. The anniversary of the independence has been ever since celebrated with due honors on the 28th of November.

[XXIV-60] Some had favored absolute independence, and others union with Peru.

[XXIV-61] The military were left free to stay or leave the Isthmus. In the latter event they would be furnished means to go to Cuba, provided they pledged themselves not to use arms against the independent states of America. Similar provisions were made for soldiers and officers detained by sickness. Another document speaks only of defraying the expenses to Chagres or Portobello, the transfer to be made as soon as the forts there surrendered. *Pan. Doc.*

[XXIV-62] In the *Bol. Of.* (1869), 32, the names of 25 are given, whereas a printed copy of the act in *Pan. Doc.* gives four more. Other copies of the text will be found in the *Gac., Imp. Mex.* (1821), ii. 110-12; *Gac., Guad.* (1822), 315-16; *Am. St. Pap.*, iv. 832-5; *Pan. Star and Herald*, Nov. 28, 1883.

[XXIV-63] Niles, *S. Am. and Mex.*, ii. 118, gives the day as Dec. 15th, a date also vaguely indicated by Scheffer in *Revue Amér.*, i. 183.

[XXIV-64] The motion had been made by the inhabitants of Natá, and was adopted by the citizens assembled at Santiago under the presidency of Casimiro del Bal, the political chief ad interim. The oath of independence included also the condition to uphold the Roman catholic religion, and to defend the purity of the virgin Mary. The full text is given in *Veraguas, Acta de Independencia*, in *Pan. Col. Doc.*, no. 54, a certified manuscript copy of the original record in the archives of Santiago.

[XXIV-65] 'Otros pensaron que viniera otra espedicion española sin que tuviéramos previo conocimiento de ella.' *Bol. Ofic.*, 1869, 32.

[XXIV-66] 'Con esta clase de pasaporte zarparon del puerto, diciendo, sin embargo, que no podian llevar á efecto el convenio.... Pero mas tarde se entregaron, al fin, al Gobierno republicano del Perú.' *Bol. Ofic.*, 1869, 32. From that time, it is believed no Spanish war vessel visited the Isthmus till August 1863, when, though Spain had not as yet recognized Colombia's independence, a squadron of that nation entered Panamá Bay. The visit was altogether friendly. *Bidwell's Isth. Pan.*, 71.

[XXIV-67] Copies of the various constitutions framed from 1811 to 1821 will be found in *Restrepo, Hist. Col.*, i. 135-42; viii. 5-19, 221-44; ix. 5-31; x. 37-54. A French translation of the last of Aug. 30, 1821, appears in *Colombia Const.*, in *Ancillon, Mélanges Pol.*, 9-120, and commented on in *Revue Amér.*, i. 186-215.

[XXIV-68] *Veraguas, Decretos del Libertador Bolívar, Presidente de Colombia*, 1827-8, in *Pan. Col. Docs.*, MS., no. 64.

[XXIV-69] *Pan. Comand. gen. del istmo*, in *Pan. Col. Doc.*, MS., no. 30, p. 3-8, 11. The Spanish córtes, not knowing what had occurred on the Isthmus, authorized the government, Apr. 30,

1822, to create an intendencia in Panamá. *Córtes, Diario*, , 1822, v. Apr. 30, 2.

[XXIV-70] *Alaman, Hist. Méj.*, v. 581-2; *Méx., Col. Órd. y Dec.*, ii. 38-9.

[XXIV-71] *Seemann's Voy.*, i. 301. In Veragua orders were issued, July 23, 1822, to register in future as free all colored children born of slave mothers. In 1847 there were only about 380 slaves in the province of Panamá. The national government in April of that year prohibited the importation and exportation of slaves. In the latter part of 1849 there were left in the province of Chiriquí only 32 slaves, and measures were proposed for their manumission. *Gov. Herrera's mess.*, Sept. 15, 1847, in *Bogotá, Gaceta Ofic.*, Feb. 6, 1848; *Pan. Col. Doc.*, MS., nos. 81, 82; *Chiriquí, Mem. de su prim. gobr*, in *Id.*, no. 85, p. 10-11.

[XXIV-72] Soon after there were no slaves in the country. *Bidwell's Isth. Pan.*, 32-3; *Pan., Crón. Ofic.*, Jan. 22, March 29, Aug. 29, 1852; *S. F. Daily Herald*, Feb. 9, 1852. It was currently reported, and indeed with good foundation, that a plot was carried out by certain parties from Cartagena, in or about 1862, who ran off a number of colored men and women of Panamá to Cuba, where they were sold into slavery. *Pan., Boletin Ofic.*, Nov. 27, 1862.

[XXV-1] It was supposed that France, now under an absolute king, by the prompting of the alliance, had conceived a vast plan for the conquest of the Spanish American countries, which till within a few years had been under the catholic king's domination. Many eminent men in Europe and the U. S. approved the idea of the American congress, and bestowed high encomiums on its author. Abbé de Pradt championed it in his work, *Congrés de Panamá*, saying: 'The congress of Panamá will be one of the greatest events of our times, and its effects will be felt to the remotest posterity.' *Pradt, Cong. de Pan.* (Sp. Transl.), 171.

[XXV-2] The plenipotentiaries of the U. S. were R. G. Anderson, then minister to Bogotá, and J. Sergeant. Anderson died at Cartagena while on his journey to the Isthmus. Sergeant arrived too late, but afterward proceeded to Mexico for the purpose of carrying out his instructions. Full particulars on the course of the U. S. government will be found in *Niles' Reg.*, xxviii. 131-2; xxix. index 'Panamá' and 'Congress,' subhead 'Pan.:' xxx. index, p. iv., p. vii., 54-172, passim, 248; xxxi. index

'Pan.,' 263, 318, 400, 16, 38, 44-7, 65, 129, 312-16; xxxii. 214, 282, 308; xxxvi. index 'Pan.', p. iii., 23-80, passim; *Benton's Thirty Years*, i. 65-9; *Am. St. Pap.*, For. Rel., v. 834-40, 899-905, 916-20; vi. (new set) 356-65, 383-4, 555; *U. S. Cong. Debates*, 1825-6, i. index, p. ii. iii. viii. x.; ii., app. p. 43-105; *Id.*, 1828-9, Index, p. i.; *U. S. Gov. Doc.*, Cong. 19, Sess. 1, H. Doc., 740; *Id.*, H. Ex. Doc. 144, viii.; *Id.*, Cong. 19, Sess. 2, H. Ex. Doc. 23, ii. St. Pap.; *Id.*, Cong. 19, Sess. 2, Sen. Doc., i. p. 9, vol. i.; *Id.*, Cong. 19, Sess. 1, Sen. Jour., 411-70; *Id.*, Cong. 19, Sess. 1, Rept Commit., ii. Doc. 137, app. nos. 36-41; *Pan. Miss. Speeches*; *Johnson's Speech on Pan. Miss.*; *Hayne's Speech on Pan. Miss.*, *Mayer's Mex. as it was, etc.*, 368; *Rev. Amér.*, 111-25, 542-8; *Dem. Rev.*, i. 489; *Young's Am. Statesman*, 352-61; *Lafond, Voy.*, i. bk. i. 289-90; *N. Am. Rev.*, xxi. 162-76; *Am. Annual Reg.*, 1825-6, 79-126; *Pub. Doc.* 49, 103.

[XXV-3] Dawkins, the British commissioner, according to Restrepo, *Hist. Revol. Colombia*, acted with commendable frankness. He limited himself to imparting good advice, assuring the Sp. Am. plenipotentiaries that his government would assuredly mediate with Spain; meantime they should avoid all cause of offence to European powers. Col Van Veer, the gentleman from Holland, held no public capacity; his mission was a private one, confined to the expression of his sovereign's warm wishes for the happiness of the American republics. *Bidwell's Isth. Pan.*, 186-90.

[XXV-4] Their representatives were: for Colombia, Pedro Gual and Pedro Briceño Mendez; for Central America, Pedro Molina and Antonio Larrazábal; for Peru, Manuel de Vidaurre and Manuel Perez de Tudela; and for Mexico, José Mariano Michelena and José Dominguez. *Santangelo, Cong. Pan.*, 1-166.

[XXV-5] In proof of the assertion, Colombia was to furnish 15,250 men of the three arms, one line-of-battle ship of 70 to 80 guns, one frigate of 64, and two of 44. These vessels would cost her nearly two and a quarter million dollars, besides the expense to maintain them armed, manned, and otherwise thoroughly equipped. Where was Colombia, already burdened with a considerable annual deficit, to get the means for supporting such an army and navy?

[XXV-6] On the 8th of Aug., 1826, he wrote to Gen. Paez from Lima: 'The congress of Panamá, an admirable institution were it more efficacious, resembles the Greek lunatic that wanted

to direct from a rock the sailing of ships. Its power will be but a shadow, and its decrees mere counsels.' *Caicedo, Union Lat. Am.*, 33-10, 97-110.

[XXV-7] There were doubtless other reasons, such as the agitations menacing Colombia, fear of an invasion by France in the name of the holy alliance; or the bad climate and lack of facilities in Panamá. *Méx., El Sol*, no. 1203; *Guat., Redaitor Gen.*, suppl. to no. 27; *Marure, Bosq. Hist. Cent. Am.*, i. 138-9.

[XXV-8] The enemies of Bolívar accused him of aiming, through an American league, at the control of all Spanish America to make himself its ruler. The following authorities have also treated more or less fully of the Panamá congress: *Mora, Revol. Mej.*, i. 354-8; *La Palanca*, Sept. 14, Oct. 26, 1826; *Zavala, Revol. Mex.*, i. 389-90; *Cuevas, Porvenir*, 387-497; *Mex., Mem. Rel.*, 1827, Doc. 2, 11-13; *Bustamante, Voz de la Patria*, ii. no. 15, 2-3; *Amigo del Pueblo*, ii. no. 5, 132-3; iii. 395-419; iv. 223-4; *Cor. Fed. Mex.*, Nov. 28, 1826; *Rivera, Hist. Jalapa*, ii. 395-6; *Tornel, Breve Reseña*, 48-50; *Gaz. Mex. Extraord.*, 1826, i. no. 5; *Mex., Gac. de Gob.*, July 4-Sept. 21, 1826, passim; *Tucker's Monroe Doctrine*, 23-36.

[XXV-9] The capital of Spanish Guiana, near the Orinoco and Old Guiana.

[XXV-10] Among the governors of Veragua were, in Jan. 1823, José M. Chiari; in June 1823, Miguel A. Figueredo; in 1824-5, Pedro Guillen; and in 1828, F. Fábrega. Gov. of Panamá, 1826, J. J. Argote. Intendente and comandante general of the departm. of the Isthmus in 1827, Col Man. Muñoz; in June 1828, J. Sardá. *Veraguas, Gob.*, in *Pinart, Pan. Col. Doc.*, MS., no. 29, 34; *Pinart, Pan. Col. Doc.*, MS., no. 2, 80, et seq.

[XXV-11] José Vallarino of Panamá was one of its members, and soon after was made vice-president, and a little later councillor of state. A popular man in his section, he was at one time thought of for a senatorship, and at another for the presidency of the republic. In 1816 he had been the royal treasurer, an office conferred on him as a reward of his own past services, as well as of those of his father, Bernardo, and his uncle, Bruno, who had been a member of the council of the Indies. At the separation from the mother country he joined the independent movement, afterward holding several honorable positions. His descendants live on the Isthmus. *Id.*, no. 1, 1-8.

[XXV-12] Since 1829 Nueva Granada had been divided into departments with a prefect at the head of each. The prefect of Panamá was J. Sardá. His rule was despotic, involving the abuse of prominent citizens, and levying a forced loan for pretended defence of the Isthmus. *Sardá, J., Decreto*, May 25, 1829. He was executed at Bogotá in 1833 under sentence of the law for a plot to murder the president. *Necrología*, in *El Constitucional del Istmo*.

[XXV-13] Their functions were those of the former prefect. *Pinart, Pan. Coll. Doc.*, MS., no. 62.

[XXV-14] The constitution of 1830, of the old republic, had been in force till now. *Obando, J. M., Decreto*, in *Pinart, Pan. Coll. Miscell. Pap.*, no. 14; *El Constitucional del Istmo*, Jan. 14, 28; Apr. 21, May 7, 14, 28, 1832; *Veraguas, Recop. Ordenanzas*, 20.

[XXV-15] The following authorities appear in official documents: Province of Panamá, 1832-3, Gov. Juan José Argote; in 1834, acting gov., M. A. Hurtado; in 1836-8, Gov. Pedro Obarrio. Prov. of Veragua, in 1874, Gov. M. J. Guisado; in 1835-7, Gov. Manuel de Ayala. In 1836 Veragua had a provincial legislature. *Pinart, Pan. Col. Doc.*, MS., no. 25, no. 31, p. 4, 12, 18, 38, 40, 75, 91; nos. 59, 65, 78, 104; *El Constitucional del Istmo*, May 7, 14, 1832; Oct. 30, 1824; Aug. 30, 1836; *Registro Ofic., N. Gran.*, 8; *Veraguas, Esposic.*, in *Pinart, Pan. Col. Doc.*, MS., no. 76.

[XXV-16] For which he was awarded thanks. *El Constitutional del Istmo*, Dec. 28, 1831.

[XXV-17] Dec. 3, 1831. *Id.*, Dec. 21, 1831.

[XXV-18] Lieut Melchor Duran, and Brevet Sub-lieutenant F. Casana of the battalion No. 9. *Id.*, March 14, 1832.

[XXV-19] During the past nine years the Isthmus seems to have enjoyed comparative quiet. In Sept. 1833, the provincial legislature chose Agustin Tallaferro deputy to the national congress, and Juan de la Cruz Perez his suplente. *Id.*, Sept. 15, 1833.

[XXV-20] He accompanied resolutions of the officials, heads of families, and other citizens of Santiago to remain under the national authority, and lend no aid to any attempt to sever the

connection or promote public disturbance. *El Constitucional de Cundinamarca*, March 27, 1842.

[XXV-21] He said: 'Marcharé hasta donde sea necesario para arreglanos con Veraguas definitivamente.' Though hoping that for the common interest, the voice of peace will be heeded, 'la fuerza alcanzará lo que se le ha negado á la fraternidad y á los principios.' *Gaceta del Istmo*, Sept. 15, 1840, in *Pinart, Pan. Coll. Doc.*, no. 3; *Herrera, Decreto*, in *Pinart, Miscell. Pap.*, no. 13.

[XXV-22] Costa Rica recognized the independence of the Isthmus, and entered with Obarrio into a convention of amity and trade. The boundary question was left open for future settlement. *Gaceta del Istmo*, Oct. 20, 1841; *Costa R., Col. Ley.*, vii. 234-6.

[XXV-23] This was acknowledged on the 16th of October, 1841, by F. W. Byrne, acting Brit. consul, in a note to Sec. Arosemena.

[XXV-24] Meantime José Agustin Arango, sec. of war, had been engaged in regulating the national guard. *Id.*, Sept. 20, 1841.

[XXV-25] It is understood that the commissioners were not even clothed with sufficient powers; but the chief men surrendered the Isthmus to them. The men of the revolution, José Obaldía, Pedro de Obarrio, Mariano Arosemena, Cárlos de Icaza, José Agustin Arango, and others, now left Herrera to the consequences.

[XXV-26] Gen. Herrera fell in battle, not in the state of Panamá, on the 4th of Dec., 1854, in defence of liberal institutions. The legislature of Pan., Sept. 22, 1855, decreed that several of his portraits should be placed in official halls. In Oct. 1857 it appropriated \$3,000 to bring his remains to Panamá; in May 1868 a monument was decreed. A statue of the general was placed in the cathedral plaza of the city of Panamá. *Pan., Gaceta del Est.*, Sept. 29, 1855; *Id.*, Oct. 15, 1857; *Pan., Boletin Ofic.*, Jan. 8, May 12, 1868.

[XXV-27] Gen. Tomás C. Mosquera, commander-in-chief of the forces on the coast, Aug. 1, 1842, at Panamá, granted in the name of his government an amnesty to the revolutionists. Again, March 15, 1845, congress passed a general amnesty law,

including all persons who participated in the rebellion from 1839 to 1842. *Pinart, Pan. Col. Doc.*, MS., no. 31, 183-5; *N. Gran., Ley. y Dec.*, 1-2; *Seemann's Hist. Isth. Pan.*, in *Pan. Star and Herald*, May 14, 1868. The rulers of the provinces of Panamá and Veragua in the following years are given in continuation: Gov. of Panamá in 1843, Miguel Chiari; in 1844-5, Col Anselmo Pineda; in 1845, Joaquin M. Barriga, with José Agustin Arango as government secretary. Intendente gen. de hacienda in 1848, Mariano Arosemena. Gov. of Veragua in 1840-2, Cárlos Fábrega; acting-gov. in 1843, José Fábrega Barrera; in 1843-5, Antonio del Rio; in 1845-9, Escolástico Romero; in June 1849, Diego García; in Aug. 1849, Ricardo de la Parra; in 1850-2, J. Fábrega Barrera; in 1852, Francisco de Fábrega; in Oct. 1853, Eustasio Fábrega; in 1855, Agustin Lopez; May 15, 1855, Francisco Fábrega. Appointed gov. Aug. 1855, Agustin Lopez. *Pinart, Pan. Col. Docs.*, MS., nos. 17, 21, 31, 53, 57-8, 68-75, 79, 105; *El Movimiento*, Dec. 29, 1844; *Veraguas, Recop. Ordenanzas*, 2-66; *Pan., Gaceta del Est.*, Aug. 28, 1855; *N. Gran., Ley. y Dec.*, 1-3.

[XXV-28] Aug. 1, 1849, the electoral junta chose one proprietary senator, Antonio Villeros, and his suplente, Nicolás Lopez; one deputy, Domingo Arosemena, and his substitute, Gabriel Diez, to the national congress; seven deputies and an equal number of suplentes, to constitute the provincial legislature. The first local legislature met Sept. 15th, and closed the session on the 24th of Oct. From this time the new province had the following governors, namely: July 24 to Dec. 20, 1849, Pablo Arosemena; Dec. 20, 1849, acting gov. Juan Man. Gallegos; June 1850, P. Arosemena again in office till Aug. 1851, when Rafael Nuñez succeeded ad int.; Sept. 1851 to 1852, Francisco Esquivel; Sept. 1852, Escolástico Romero; 1854, Santiago Agnew; Aug. 1855, Domingo Obaldía, against whom complaints were made of abuses of power. *Pinart, Pan. Coll. Doc.*, MS., 2-11, 31, 46-8, 83-93; *U. S. Govt Doc.*, Cong. 36, Sess. 2, House Ex. Doc., vi. 41, p. 59; *Pan., Gaceta del Est.*, Dec. 1, 1855.

[XXV-29] The first official doc. I have found with the name of Fábrega in a decree of the gov. of July 25, 1850. *Pinart, Pan. Coll. Doc.*, MS., no. 89, p. 59-60.

[XXV-30] Chiriquí's capital, David; Veragua's, Santiago; Azuero's, Villa de los Santos. The first gov. of Azuero, receiving like the rest his appointment from the gen. government, was Juan

Arosemena, in 1851. Antonio Baraya became gov. in April 1852. *Gobn. Prov. Azuero*, in *Pinart, Pan. Coll. Doc.*, MS., no. 43.

[XXV-31] Annexed to Veragua. *Sac. Daily Union*, May 18, 1855; *Veraguas, Ord. y Resol.*, in *Pinart, Pan. Coll. Doc.*, no. 6; *Pan., Gaceta del Est.*, Sept. 15, 1855.

[XXV-32] Dated June 22, 1850. *Chiriquí, Ofic. de la Gobn.*, in *Pinart, Pan. Coll. Doc.*, MS., no. 84; *Chiriquí, Decretos*, in *Id.*, MS., no. 89; *Chiriquí, Inf. Gen. del Canton*, in *Id.*, MS., no. 41.

[XXV-33] The local authorities were paid out of the national treasury. Chiriquí could not tax the inhabitants.

[XXV-34] The vice-consul's release; restoration with all respect and publicity to the consulate of its archives and other effects, together with satisfaction to the British government, and a compensation of £1,000 to Russell. *Peña y Peña, Práctica Forense*, iii. 375-94; *Scarlett's S. Am.*, ii. 257-9; *Mensaje, Presid. N. Gran.*, 1837.

[XXV-35] British war vessels made a demonstration at Panamá the following year. *S. F. Alta Cal.*, Dec. 1, 1856; *S. F. Even. Bulletin*, Jan. 2, May 16, 1857.

[XXV-36] They said it was notorious that no passenger arrived at either end of the route without being abused, robbed, or otherwise maltreated; many had been wounded, and not a few murdered; hardly a party passed without their baggage being plundered; women were insulted, and even outraged. No effort had been made by the authorities to ferret out the perpetrators of such crimes. *Pan., La Crónica Ofic.*, March 1, 1854.

[XXV-37] The governor did not fail to mention that in several instances his troops had done valuable service in protecting treasure and recovering stolen property, without claiming or receiving pay.

[XXV-38] Runnels acted with characteristic energy. Without scandal or noise, he captured one by one the banditti that infested the roads, and out of sight and without witnesses, other than his own men, had the criminals hanged and buried. Those of this class that did not fall into the hands of the Isthmus guard made haste to leave the country, which soon was cleared of foreign evil-doers. This object being accomplished, the guard was

dissolved, its valuable services being fully appreciated. The governor had no authority for his action, but no fault was found with him. The measure had been one of absolute necessity; 'fué redentora.' *Maldonado, Asuntos Polít. Pan.*, 9. Runnels in after years lived in Nicaragua, and died of consumption in Rivas, July 7, 1882, aged 52. *Pan. Star and Herald*, July 22, 1882.

[XXV-39] Jefe Superior Justo Arosemena wrote Consul Ward a courteous letter of explanation on the 29th of Sept. *Pan.*, *Gaceta del Est.*, Oct. 3, 1855.

[XXV-40] Ships and passengers had been paying a moderate sum, and when the official's greed was aroused to levy a burdensome tax, formal objection to it was made.

[XXV-41] It added that the policy of demanding such a tax would be detrimental to the interests of the Isthmus. The whole correspondence appears in *Pan. Crón. Ofic.*, March 10, Apr. 10, May 23, 1854; *Pan.*, *Gaceta del Est.*, Nov. 3, 10, 18, 1855; *Id.*, Dec. 11, 1856; *S. F. Alta*, Sept. 20, 1856; *Sac. Union.*, Sept. 22, 1856; *S. F. Bulletin*, Sept. 30, 1856; Minister Herran to Sec. Marcy, Dec. 8, 1856, in *Pan.*, *Gaceta del Est.*, March 28, 1857.

[XXV-42] It must be confessed that the impression caused by the influx of foreigners, parading the streets, many of them armed with bowie-knives and revolvers, often incited by intoxication and gambling to acts of lawlessness, was not a favorable one. They often appeared to the natives as lawless invaders. The laws were not framed for the emergency, and the authorities were powerless to stop the scandals occurring every day in the streets. Robberies and other crimes among the foreigners themselves were common. Gambling-houses, in violation of law, were publicly kept, exhibiting strange signs, such as Card Room, Owls' Club, etc. Once a crowd of Americans fell upon the small guard of the jail, disarmed it, and set free some of their countrymen. *Maldonado, Asuntos Polít. Pan.*, MS., 2, 5-6. A writer relates that he saw ruffians in 1850 throw filth on religious processions. Once an American rode a mule into the cathedral, and tried to make it drink from the baptismal font. Fortunately Theller, an American resident, interfered. 'Often the dirty red-shirted fellows would stride into the chapels and light their cigars at the altar.' *Cal. Chronicle*, May 20, 1856.

[XXV-43] The trouble originated in the act of a drunken man named Jack Oliver, who seized a slice of watermelon from a fruit

stall, and refused to pay for it. Simultaneously and without preconception, fights occurred between parties of passengers and the colored population in various parts of the town. The city was soon in commotion. Residents retired to their homes and barred themselves in. The fights lasted about three hours, when the foreigners were driven into the depot. The negroes, who had formerly been humble and submissive to the whites, remembered on that day the abusive treatment often received by them at the hands of transient foreigners; but did not confine their expressions of hatred to foreigners only, for they transversed the streets crying, *Mueran los blancos!* They were now ungovernable. They rushed to the Panamá depot—at a moment when from 250 to 300 passengers of both sexes and all ages, landed at Colon from the steamship *Illinois*, were procuring their tickets for San Francisco—and began firing at the building, hitting one man. The doors were then closed, and some of the passengers armed themselves. It has been stated by eye-witnesses that some of the armed passengers went out and discharged their arms at the black mob before any shot had been fired at the building; but the weight of testimony is against this assertion. U. S. Consul Ward came on horseback, saying that the government at his request would soon send a force to quell the disturbance. The force did come, but instead of affording protection to the passengers huddled in the depot, fired a volley of musketry in their midst, and followed it by others, besides stray shots. The only reasons assigned for this conduct of the force were that it sympathized with the mob, or was awed by it. The latter was the real cause. The active firing from the outside continued about one and a half hours even after it had ceased from the inside. The mob for a time did not succeed in entering the building, but finally broke into the baggage-room, killing and wounding several persons. Fortunately, the rabble was bent more on plunder than slaughter. It is said that even the wounded had their boots pulled from their feet and carried away. Many robberies had also been committed by the negroes in the city, principally in shops and barrooms. *S. F. Bulletin*, May 1-3, 17, Aug. 30, Oct. 14, Dec. 17, 1856; *Cal. Chronicle*, May 20, 1856; *Sac. Union*, May 5, 13, 1856; *S. F. Alta*, May 2, 3, 18, 1856.

[XXV-44] Totten, chief engineer of the railroad, and Ward, in their protests held Fábrega's government responsible, and claimed damages. They also demanded protection for the passengers and treasure then expected from California on the *Golden Gate*. Fábrega, upon the latter point, gave the required

assurances, recommending that the railroad officials should also adopt precautionary measures. In his report to the supreme government on the 22d of April, 1856, he denied the charges preferred against him by Totten and Ward, declaring that the whole affair had been sudden and unpremeditated; and he, as well as the gens d'armes had the best intentions to protect the passengers, and the firing upon them had been unauthorized, though resulting from the fact that the passengers had continued shooting. He kept to himself, however, that fear for the lives of himself and the few other white people of the city, which were in great peril from the infuriated blacks, had deterred him from attacking the mob. The latter was calmed and dispersed only through the good offices, called for by Fábrega, of the influential men among the negro population. *Pan., Gaceta del Est.*, Apr. 26, May 3, 10, 27, 1856.

[XXV-45] On their landing at Colon, the other steamship was ready at Panamá to receive them and put off as soon as they were on board. They traversed the Isthmus without scarcely setting foot on the soil. *Maldonado, Asuntos Polít. Pan.*, MS., 11-12.

[XXV-46] *Corwine's Rep. and Coll. of Evidence*, 1-69; *U. S. Govt Doc.*, Cong. 34, Sess. 1, vol. xi., H. Ex. Doc., no. 103, 154-76.

[XXV-47] It stipulated a board of arbitration composed of commissioners of both governments to award upon claims presented prior to Sept. 1, 1859. The total amount of awards N. Granada would pay in equal semiannual instalments, the first, six months after the termination of the commission; and the whole payment to be completed within eight years; each of the sums bearing interest at 6 per cent per annum. To secure said payments, N. G. govt appropriated one half of the compensation accruing to her from the Panamá railroad company; if such fund should prove insufficient, it was then to provide for the deficit from its other sources of revenue. *U. S. Govt Doc.*, Cong. 36, Sess. 2, Sen. Miscell., no. 13, 1-7. After the riot the federal government endeavored to have a force on the Isthmus to protect foreign interests, which it should have done before. *Maldonado, Asuntos Polít. Pan.*, MS., 10-11.

[XXV-48] *U. S. Govt Doc.*, Cong. 35, Sess. 2, H. Ex. Dec., no. 2, 21, 22, vol. ii. pt i.; *Id.*, *Id.*, Sen. Doc., no. 33, x. 1-3.

[XXV-49] Thomas Savage, U. S. acting consul-general at Habana, had sent timely notice of their plans. They were taken with arms, munitions of war, and written proof of their intent.

[XXV-50] Calancha, president of Panamá, pleaded that he had no authority to allow it; the national constitution reserving to the general government of Colombia the control of the foreign relations. *Bidwell's Pan. Isth.*, 207-11.

[XXV-51] They were sentenced by court-martial, their chief to death, and the others to imprisonment at hard labor; the sentence of the first was commuted, and all were released at or before the termination of the war. *Hogg et al. v. U. S.*, 1-22; *S. F. Call*, Nov. 26, 1864; May 25-31, June 6-8, July 6, 16, 1865; *S. F. Bulletin*, Nov. 28, 29, Dec. 7, 1864; May 22, 1865.

[XXV-52] This affair took place about one month prior to that of the prisoners arrested on the *Salvador*. *Bidwell's Pan. Isth.*, 206.

[XXV-53] Questions of neutrality with Spain during the Cuban revolution in 1871-2; and in 1880, at the time of the war of Chile against Peru and Bolivia, on the subject of contraband of war passing through for the uses of either belligerent. *Gaceta de Pan.*, Sept. 21, 1871; Apr. 12, 1872; July 4, 15, Sept. 2, 16, Nov. 7, 1880.

[XXV-54] *Pan. Star*, March 29, 1850; *Polynesian*, vii. 42, 50; *Holinski, La Californie*, 83; *S. F. Alta*, Mar. 22, Apr. 3, 1851; *S. F. News*, Apr. 3, 1851. The most serious one was on the 22d and 23d of Oct., 1851, at Chagres, among boatmen and passengers, in which several lives were lost, and the town was much damaged. *Pan. Star*, Oct. 28, 1851; *S. F. Alta*, Nov. 18, 20, 1851; *S. F. Daily Herald*, Nov. 18, 1851. The official report of the jefe político on the 3d of Nov. said there were two or three killed and a number wounded. *Bogotá, Gaceta Ofic.*, Dec. 3, 1851. The vigilants of the Isthmus had a thief well flogged at Chagres in 1851. *S. F. Courier*, Jan. 21, 1851. Another case of lynch law occurred on the island of Tabogá in 1855. The carpenter of the American steamship company was one morning dragged out of bed and murdered. As there was no police on the island, the employés of the company captured the murderers, one of whom made full confession, and their captors without more ado hanged them. The state authorities took no notice of the matter, other

than issuing, some time after, a full pardon to the executioners. *Bidwell's Isth. of Pan.*, 216; *Pan., Gaceta del Est.*, Sept. 29, 1855.

[XXV-55] This occurred on the Cruces route. The escort was fired upon, two arrieros were mortally wounded. The banditti endeavored to run off one of the laden mules, but were prevented by the escort and passengers. *Holinski, La Californie*, 83-4; *S. F. Alta*, Oct. 18, 1851; *S. F. Daily Herald*, Oct. 18, 1851.

[XXV-56] A mere alcalde met with no difficulty whatever to have his orders carried out.

[XXV-57] Judges and alcaldes were not only civil officials, but also agents of the ecclesiastical authorities. Their double rôle insured them great influence with a people 'barbarizado por la ignorancia y el fanatismo.' *Maldonado, Asuntos Polít. Pan.*, MS., 3.

[XXV-58] Public documents speak in general terms of outrages committed by the revolutionists. They marched from Veragua against Los Santos in Azuero, and were defeated. *Pan. Gobern.*, in *Pinart, Pan. Coll. Doc.*, MS., no. 43, 5-9. An amnesty was decreed in favor of the revolutionists Sept. 29, 1856, excepting a few leaders, who were finally pardoned in a later one of Sept. 12, 1857. *Pan., Gaceta del Est.*, Sept. 16, 23, 1857. The following authorities appear in pub. docs. July 23, 1852, Gen. Manuel M. Franco, appointed from Bogotá, comandante general, in place of Gen. Antonio Morales, deceased. Aug. 6, 1852, Gov. Manuel M. Diaz summoned the provincial legislature to hold its yearly session. Sept. 1, 1853, Bernardo Arce Mata took possession of the office of gov. Jan. 1, 1854, José María Urrutia Añino, who had been chosen gov. of the prov., assumed his duties. *Pan., Crón. Ofic.*, Aug. 22, 29, 1852; Sept. 4, 1853; Jan. 4, 1854; *Pan. Gobern.*, in *Pinart, Coll. Doc.*, MS., no. 43, 11. This governor seems to have been elected wholly by votes of the interior departments, which greatly displeased the citizens of the capital, who had hitherto controlled affairs. Añino was an honorable and just man, and fairly intelligent; but was made the object of ungenerous hostility and ridicule, and on one occasion, at least, his life was in danger. In 1855, under the pretext of an official visit in the interior, he went to his home and never returned. *Maldonado, Asuntos Polít. Pan.*, MS., 10. The vice-gov., Manuel M. Diaz, took the executive chair on the 19th of May, and occupied it till the 18th of July. *Pan., Gaceta del Est.*, July 28, 1855.

[XXV-59] This arrangement seems to have been against the wishes of the three last named. The national congress having asked the provinces for their opinion, the legislature of Chiriquí, on the 19th of Oct., 1852, approved a report of Nicolás Lopez to the effect that Veragua, Chiriquí, and Azuero should not be harnessed to the car of Panamá. *Chiriquí, Ordenanzas*, in *Pinart, Pan. Coll. Doc.*, MS., no. 96, p. 64.

[XXV-60] The gen. govt ceded to Panamá the buildings that had been used as custom-houses till 1849 in Portobello and Panamá; also two others in the plazuela de armas and calle de Jirardot in Pan.; and likewise the fortresses of Panamá, Chagres, and Portobello, excepting the esplanades and artillery. *Pan., Gaceta del Est.*, July 20, 1855.

[XXV-61] The governor's salary was fixed at \$400 per month. The new order of things was formally communicated to the foreign consuls, all of whom offered their congratulations, etc. *Id.*, July 28, Aug. 4, 1855; *Veraguas, Ordenanzas y Resol.*, in *Pinart, Pan. Coll. Docs.*, MS., no. 68, p. 68; *Correoso, B., Statemt*, MS., 3; *Heraldo de Lima*, Oct. 10, 1855. A decree of the assembly of Sept. 12, 1855, divided the state into seven departments: Colon, Panamá, Coclé, Herrera, Los Santos, Fábrega, and Chiriquí. Their respective chief towns were to be Colon, Panamá, Natá, Pesé, Los Santos, Santiago, and David. Governors were appointed by the executive, to enter upon their duties on the 1st of Aug. *Pan., Gaceta del Est.*, Sept. 15, 1855.

[XXV-62] This assembly was the most able and responsible body of men that ever came together in Panamá, excepting only that which proclaimed the independence from Spain. *Maldonado, Asuntos Polít. Pan.*, MS., 12-13. The officers on the day the constitution was signed were: Mariano Arosemena, president; Dionisio Facio, vice-president; Santiago de la Guardia, designado; Manuel Morro, deputy for Panamá, secretary. Among the other signers were Bernardo Arce Mata, José Arosemena, Bartolomé Calvo, Jil Colunje, Fermin Jované, José de Obaldía, Ramon Vallarino, four Fábregas, nearly all of whom have since held high office in the republic and the state. A general amnesty was also decreed on the 6th of Oct., for all political offences to Sept. 30th, whether the persons were sentenced or not. This included some who had in July last disturbed the peace in Azuero. *Pan., Gaceta del Estado*, Sept. 20, Oct. 13, 1855.

[XXV-63] It is understood that Fábrega accepted the jefatura superior only on condition that Bartolomé Calvo should assume the government secretaryship, which had been thrown up by Icaza Arosemena. Calvo became the secretary. *Id.*, Oct. 3, 10, 27, 1855; *Correoso, Statemt*, MS., 3.

[XXV-64] Previous to it the executive had to go with troops to quell a disobedience to the authorities in Los Santos. No opposition being encountered, some prisoners were made, who afterward received a pardon on the 6th of March. *Pan., Gaceta del Est.*, Feb. 2, 25, March 24, 1856.

[XXV-65] Some deputies of the opposition were arrested in the legislative chamber, and despotically exiled.

[XXV-66] This vessel hauled into shore and landed her marines to protect the whites. *S. F. Alta*, Oct. 2, 14, 1856.

[XXV-67] *Pan. Star*, Sept. 16, Oct. 1, 1856; *Pan., Gaceta del Est.*, Nov. 20, 1856; *Correoso, Statemt*, MS., 3-4.

[XXV-68] 'Dejó el puesto sin haber merecido imputacion de que hubiese tomado del tesoro público otra cosa mas que sus sueldos.' *Maldonado, Asuntos Polít. Pan.*, MS., 14.

[XXV-69] He had been meantime elected attorney-general of the republic, and his residence had to be in Bogotá. *Pan., Gaceta del Est.*, May 20, 1858.

[XXV-70] He showed weakness during his short occupancy of the presidential seat at Bogotá, and afterward as governor of Panamá. He was also lazy and negligent.

[XXV-71] Capt Navarro and one soldier were killed, and two others wounded. The governor himself was struck on the head with a stone. An Am. force of marines landed from their ship, but had no occasion to use their arms. No damage was done to property. *Id.*, Apr. 24, 1859; *S. F. Alta*, May 8, 1859.

[XXV-72] On the 29th it being feared that there would be another disturbance, the more timid of the citizens sought refuge in the foreign consulates. The intendente general, J. M. Hurtado, then asked the commanders of the *Clio*, and U. S. sloop of war *St Louis*, to land 100 men. It was done, and the trouble was warded off for the time. *S. F. Bulletin*, Oct. 29, Nov. 14, 1860; *U. S. Govt*

Doc., Cong. 36, Sess. 2, Sen. Doc., 1, p. 15, vol. iii., pt. 1; *Pan Scraps*, 31.

[XXV-73] Member of a respectable family in the interior; he was an honorable man, and much respected by the whites. He was conservative, and became the victim of politics when exerting himself to develop every branch of his country's resources. *Bidwell's Isth. of Pan.*, 200-2; *Maldonado, Asuntos Polít. Pan.*, MS., 15-16.

[XXV-74] The gov. was authorized by the legislature on the 15th of Oct., 1861, to join the state to the new confederacy. The state was therefore thus annexed, and the foreign consuls were formally apprised of it. Justo Arosemena was appointed on the 8th of Jan., 1862, its plenipotentiary to the convention. *Pan.*, *Gaceta del Est.*, Sept. 27, 1861; Feb. 26, March 8, 1862.

[XXV-75] The Am. government, though willing to interpose its aid for the benefit of all nations in the execution of the neutrality treaty of 1846, feared to become involved in the revolutionary strife going on in Nueva Granada, besides incurring danger of misrepresentation by other powers if it should act without consulting them. The 35th art. of the treaty of December 12, 1846, says: 'And in order to secure to themselves the tranquil and constant enjoyment of these advantages, and as an especial compensation for said advantages, and for the favors they have acquired by the 4th, 5th, and 6th art. of this treaty, the U. S. guarantee positively and efficaciously to N. Granada, by the present stipulation, the perfect neutrality of the before-mentioned Isthmus, with the view that the free transit from the one to the other sea may not be interrupted or embarrassed in any future time while this treaty exists; and in consequence, the U. S. also guarantee in the same manner the rights of sovereignty and property which N. Granada has and possesses over the said territory.' Sec. Seward laid the request of Gen. Herran before the British and French governments to ascertain their views. Earl Russell thought there was no occasion as yet for armed intervention. Should it occur, his government would coöperate with the U. S. Thouvenel, French minister of foreign affairs, said if the railway should be in danger of interruption, he would not deem it improper for the U. S. to interfere. *U. S. Govt Doc.*, Foreign Affairs, 1862, pp. 132, 164, 380-1.

[XXV-76] This occurred on the 25th of July, 1862. *Pan.*, *Boletin Ofic.*, July 27, 1862; *La Voz de Méj.*, Aug. 26, 1862.

[XXV-77] At Paso de las capellanías del Río Chico, or Matapalo. Towns were shamefully sacked by the victorious liberals, and several families, especially those of Guardia and Fábrega, were ruined. *Maldonado, Asuntos Polít. Pan.*, MS., 16; *Gaceta de Pan.*, Aug. 11, 1870. Santiago de Veragua was plundered Aug. 22. *Pan., Boletín Ofic.*, Sept. 6, 1862. The constituent assembly of the state, sitting Aug. 9, 1865, passed an act recognizing that Guardia had lost his life in defence of right, and honoring his memory. *Id.*, Sept. 11, 1865. Correoso, who served among his opponents, speaks of Guardia in the highest terms of commendation, and bewails the loss Panamá suffered with his death. *Sucesos de Pan.*, 3.

[XXV-78] A decree was issued in Sept. for election of deputies; another calling to arms, for the defence of the state, all citizens between the ages of 18 and 60. Panamá was on the 2d of that month declared the provisional capital of the state. On the 20th of Oct. was convoked a constitutional assembly which met on the 28th of Nov., on which date the governor, in a message, made a statement of events. On Oct. 28th was issued an amnesty excepting only such persons as still refused to recognize the provisional government. *Id.*, Sept. 6, 19, Oct. 1, 22, Nov. 3, 10, Dec. 11, 1862; *S. F. Bulletin*, Sept. 17, Nov. 26, 1862.

[XXV-79] May 8, 1863. Ratified the same day, by the representatives of Panamá, who were Justo Arosemena, Guillermo Figueroa, G. Neira, J. E. Brandao, Guillermo Lynch, and Buenaventura Correoso. *Colombia, Const. Polít.*, 1-42; *Correoso's Statemt*, MS., 2-3; *Pan., Boletín Ofic.*, June 25, 1863.

[XXVI-1] Its officers were: Pablo E. Icaza, president; Juan Mendoza, vice-president; J. J. Maitin, designado; Quintin Miranda, sec. by appoint. *Id.*, May 11, 1863.

[XXVI-2] Dated July 4, 1863, and published the 6th of the same month. It contained 21 titles covering 112 articles, and was a most liberal fundamental law, intending to give, if honestly administered, every possible guaranty of life, liberty, property, and political rights. The death penalty, torture, and other cruel punishments were done away with. Corporal punishment in no case was to exceed ten years. Nearly all the public functionaries, representative, executive, and judicial, were made elective by popular vote. *Id.*, July 11, 1863; *Bidwell's Isth. Pan.*, 364-88.

[XXVI-3] Goitia took the presidency on the 5th of July, and soon after received the congratulations of several foreign consuls. *Pan., Boletín Ofic.*, July 17, 1863.

[XXVI-4] Correspond. with foreign consuls and others. *Id.*, Aug. 30, 1863.

[XXVI-5] *Correoso's Statemt*, MS., 4.

[XXVI-6] By the battalion Tiradores, of national troops. Calancha had no popularity in the country. He has been accused of scandalous corruption and connivance at robbery. However, he seems to have confined his speculation to the public revenue, a practice which was not new since Guardia's fall. Some time after, Calancha together with Gabriel Neira invaded the state with a force from Cauca; but while crossing the river Santa María in the hacienda Las Cruces, they were met by the government troops under Col Vicente Olarte, and routed with the loss of many killed, wounded, and prisoners, Neira being one of the latter. Calancha was again defeated at San Francisco near Natá, and delivered by his men to the victors. His brother Francisco was also taken. It is recorded that Mrs Jane White Ball, an American, together with other women, provided a hospital and nursed the wounded of both bands. *Pan., Boletín Ofic.*, Apr. 22, June 7, Sept. 18, Oct. 10, 1865; *Correoso's Statemt.*, MS., 4; *Bidwell's Isth. Pan.*, 211.

[XXVI-7] A colored man of good political ability, as he proved in the high official positions filled under the national government. He has been accused, however, of immoral practices. His administration was peaceable, but left evils that were never eradicated. He inaugurated the corrupt system of extorting contributions from political opponents, whereby, as the latter averred, he materially improved his own financial condition, though he had decreed himself only the modest salary of \$200 per month. *Pan., Boletín Ofic.*, Apr. 1, 1865. Every citizen who had a competency was made to contribute. One day he had all the respectable citizens arrested to extort money, for which he never accounted. The majority of the public employés had to sell their salary warrants for one half or one fourth of their value. The country derived no other fruit from his administration than poverty.

[XXVI-8] The assembly met, and its first act was to confirm all that Colunje had done. A pardon was decreed to political

offenders on the 28th of Nov. *Pan.*, *Boletin Ofic.*, Apr. 20, 22, July 20, 25, Dec. 6, 1865; *Pan.*, *Informe Sec. Est.*, 1866, 1-4.

[XXVI-9] An attempted outbreak in March at Panamá, and one in August at David, were quelled. *Pan.*, *Mensaje Presid. Est.*, 1866, 1-3; *Gaceta Nic.*, Apr. 7, 1866; *Pim and Seemann's Dottings*, 1-11.

[XXVI-10] He belonged to the liberal party; a well-disposed man, and a friend of peace, which he endeavored to foster, by trying to heal dissensions. He made himself popular among the better class of the community by his just proceedings, and efforts to better the condition of the country, though not a native of the Isthmus. *Maldonado, Asuntos Polít. Pan.*, MS., 20. It has been, however, said of him that he appropriated considerable amounts from the public treasury, and placed them in London through the agency of a Jamaican who lived in Colon.

[XXVI-11] 'Ante la imponente autoridad de su sable á la cabeza del batallon Tiradores.' *Id.*

[XXVI-12] They plotted an assault on the battalion in its barracks, but were detected by Olarte. The assault was made at midnight, and a fight ensued, in which the negroes lost heavily, including almost all their leaders, and among them Gregorio Sigurvia. *Id.*, 20-1.

[XXVI-13] It must be borne in mind that whatever the words liberal and conservador may mean in other Spanish American countries, in Panamá the former has been appropriated by the colored portion of the inhabitants, who have been joined by a few whites for their own political and pecuniary aims. The conservador party was made up mostly of white men and property holders, and they have often been victimized by the gamonales, or leaders of the other party, whenever the latter has been in power.

[XXVI-14] The circumstances connected with the sickness and death of Gen. Olarte and Manuel M. Morro afford presumptive evidence of foul play. After a banquet in San Miguel, on the last day Olarte was to be there, wine prepared with fish poison was served him and his secretary, José M. Bermudez. The latter, by accident, escaped the fate prepared for him, and Morro, being invited by Olarte to join him, partook of the wine. Olarte, having his stomach full of food and wine,

immediately threw up all. Morro, on feeling the effects, took two doses of ipecacuanha, and succeeded in vomiting. But neither victim saved himself. Both were taken to Panamá, where Olarte died in five days, and Morro in about eleven. The facts have been strenuously denied. Correoso, *Statem.*, MS., 5, asserts that Olarte contracted a fever in his visit to Darien. The first diagnosis of the physicians, it is understood, was that the patients were suffering from yellow fever, or some other malignant disease. Morro was a talented young man belonging to one of the prominent families of the city, and much liked by all.

[XXVI-15] Details on his funeral in *Pan.*, *Mercantile Chronicle*, March 4, 1868; *Pan. Star and Herald*, March 5, 7, 12, 1868; *Pan.*, *Boletin Ofic.*, March 7, 1868.

[XXVI-16] Amador finally declined the office. *Id.*, March 7, 1868.

[XXVI-17] He was afterward exiled, and went to California. *S. F. Times*, Aug. 3, 1868; *S. F. Bulletin*, Aug. 1, 1868. The negroes declared Diaz a traitor, but the public never saw any evidence of it. *Maldonado, Asuntos Polít. Pan.*, MS., 23.

[XXVI-18] The acta appears in full in *Boletin Ofic.*, July 8, 1868; *Nic.*, *Gaceta*, July 25, 1868; *S. F. Times*, July 25, 28, 31, 1868; *S. F. Call*, July 25, 1868; *S. F. Bulletin*, July 25, 27, 1868.

[XXVI-19] Ponce's first act was to declare martial law by a decree of July 6th, countersigned by Dídimo Parra, as secretary of state. The superior court, in view of the situation, on the same date adjourned, to escape participation in the infringement of the constitution, which had been just perpetrated.

[XXVI-20] Even Chiriquí, which had held back, finally recognized the new government. *Pan.*, *Boletin Ofic.*, July 30, 1868; *Nic.*, *Gaceta*, Aug. 22, 1868.

[XXVI-21] The Panamá assailed the barracks of the other troops, and captured it, Captain U. Meza being killed, and Alejandro Arce and Rafael Aizpuru slightly wounded. Ponce was seized and carried to the barracks, where much enthusiasm for him, it is said, was manifested; but he was not satisfied with the condition of affairs, resigned, and left the state. *Pan.*, *Boletin Ofic.*, Sept. 5, 1868; *Correoso's Statement*, MS., 5; *Nic.*, *Gaceta*,

Sept. 19, 1868; *Pan. Star and Herald*, Sept. 1, 10, 1868; *Maldonado, Asuntos Polít. Pan.*, MS., 24.

[XXVI-22] His public life began when he was 18 years old, and he has, in the civil service of the state, held every office from alderman to president or governor, both inclusive. In the judiciary, he has served as district judge and member of the superior court. In the military service he began as a lieut in 1854, and rose to be gen. of division. He was a deputy of the state legislature, and a senator in the national congress, and also for a while vice-president of the republic, besides being a member of several conventions. He represented his country as minister plenipotentiary near the five republics of Central America, and always belonged to the liberal party, and fought for it. *Correoso's Statem.*, MS., 1-2.

[XXVI-23] In assuming the executive office, Correoso found no money in the treasury. He at once resorted to the device employed by his predecessor Colunje of arresting the prominent citizens of the capital, whom he kept in confinement till they paid the amounts severally demanded. The same outrage was afterward practised in the interior. The result was an increase of poverty from day to day.

[XXVI-24] The government was left for the transaction of local affairs in charge of Juan Mendoza, governor of the capital. *Pan., Boletin Ofic.*, Oct. 9, 1868. During this revolution, the U. S. consul was directed by his government to warn Am. citizens from taking part in the broils of the country. He was also to see that unoffending Americans were not compelled to do military service, or to contribute in the form of forced loans or otherwise. *S. F. Call*, Dec. 4, 1868; *S. F. Times*, Dec. 4, 1868. Nevertheless, the government doubled the commercial tax against the solemn protests of foreign consuls, and much foreign property was seized. *Pan. Star and Herald*, Oct. 24, 1868; *Pan., Boletin Ofic.*, Nov. 14, 1868.

[XXVI-25] The fighting took place between 9 and 12 o'clock of the 12th of Nov. Both sides behaved well, but Correoso's men, having better arms, were victorious. According to Correoso's account there were in all about 200 killed and wounded, Gen. P. Goitia being among the latter. *Correoso's Statemt*, MS., 6. The negroes with relentless ferocity gave no quarters to the greater part of the prisoners, who were shot. They also plundered to their heart's content. *Maldonado, Asuntos Polít. Pan.*, MS., 25.

Arístides Obaldía was slain and his untimely end was much regretted. He was severely wounded early in the action, and his friends took him out of harm's way; but during the route some of Correoso's men discovered and put him to death. His remains were interred with military honors by Correoso's orders. *Pan. Star and Herald*, Nov. 19, 1868; *Pan., Mercantile Chronicle*, Nov. 17, 1868; *S. F. Times*, Dec. 4, 11, 1868; *Nic., Gaceta*, Nov. 28, 1868.

[XXVI-26] Cervera appointed J. M. Lleras his secretary of state, and on the same day called several officers of the militia to active service, the chief, Col. Rafael Aizpuru, being made comandante gen. of the forces of the state. *Gaceta de Pan.*, Apr. 19, 1873.

[XXVI-27] The farce was performed to have Neira chosen president, and Correoso 1st designado; and then it was expected that the former would after a while resign, and enable the latter to again assume the presidency without violating the constitution. The elections took place as desired. *Pan. Star and Herald*, Apr. 8, 1873.

[XXVI-28] One hundred men occupied the railway station, and 100 were stationed in the town hall. Capt. Kennedy, of the Brit. war ship *Reindeer*, offered his coöperation if needed.

[XXVI-29] This arrangement was arrived at through commissioners; namely, Gregorio Miró and Francisco Ardila for the Pichincha no. 8; José Agustin Arango and Florentino Dutari, for Cervera. *Pan. Star and Herald*, May 10, 13, 1873. Correoso claims that upon hearing in Costa Rica, where he was then accredited as Colombian minister, of the revolution against Neira, he returned in haste to Panamá, and by his influence induced the revolutionists to replace Neira. *Statement*, MS., 6; *S. F. Bulletin*, May 19, 26, June 6, 1873; *S. F. Alta*, May 20, 1873; *S. F. Chronicle*, May 20, 26, June 7, 18, 1873.

[XXVI-30] The latter resigned the command June 23d, *Gaceta de Pan.*, June 7, July 5, 1873. Aizpuru, who had been kept a prisoner was afterward released.

[XXVI-31] Senators: Pablo Arosemena, B. Correoso, and Agustin Arias. Representatives: Fernando Casanova, Man. de J. Bermudez, Juan C. Carranza, Marcelino Villalaz, and José de la

Rosa Jurado. A corresponding number of suplentes or substitutes was also chosen. *Gaceta de Pan.*, July 19, 1873.

[XXVI-32] During its occupation over 500 women and children sought its protection. The whole force retired about the 7th or 8th of October. *Pan. Star and Herald*, Sept. 25-30, 1873.

[XXVI-33] The minister reminded the executive of Colombia that though the American government guaranteed by the treaty of 1846 the neutrality of the Isthmus, it did not imply protection to the road against such factions. *Pan., Informe Sec. Est.*, 1874, 9-10, annex A.

[XXVI-34] 1st, Gregorio Miró; 2d, J. M. Bermudez; 3d, Mateo Iturralde; 4th, Tomás Herrera; 5th, Joaquin Arosemena. All Neira's acts were approved; and thanks were voted to both the national and state troops for their services. *Gaceta de Pan.*, Oct. 2, 1873.

[XXVI-35] The assembly granted the president additional powers to restore peace, among which was that of obtaining \$60,000 by means of voluntary or forced loans. Those powers were rescinded on the 14th of Nov. *Id.*, Oct. 11, 18, Nov. 1, Dec. 5, 1873; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 1, 351.

[XXVI-36] Under this constitution the legislative assembly appoints the five substitutes of the president of the state, and also the three justices of the superior court. A council of state is created, to be composed of the president of the state, the last president of the legislative assembly, the president of the superior court, and the attorney-general of the state. For all important affairs, the executive is to consult the council. *Id.*, Nov. 15, 1873.

[XXVI-37] He made the pledge required by law before the assembly, the foreign consuls, public functionaries residing in the city, and a large number of citizens. *Id.*, Dec. 5, 1873; Jan. 17, 1874; *Mex., Mem. Min. Rel.*, 1875, 10.

[XXVI-38] *Id.*, Aug. 7, 15, 1874; *Pan., Informe Sec. Est.*, 1874, 30.

[XXVI-39] The persons appointed to fill them were José M. Bermudez, who had been acting as secretary-general for sec. of state, and Dionisio Facio for sec. of the treasury. *Gaceta de Pan.*, Apr. 17, 1875.

[XXVI-40] The president on the 25th of Aug., 1875, delegated his powers to J. M. Bermudez to preserve order in the interior or restore it as the case might be. *Id.*, Sept. 4, 1875; *Pan. Star and Herald*, Aug. 24, 1875.

[XXVI-41] He had been on the 2d of July declared elected president of the state. At the same time the following persons were declared to have been chosen to represent Panamá in the national congress: Senators, Justo Arosemena, José M. Bermudez, and Marcelino Villalaz; representatives, Juan J. Diaz, Juan J. Miró, Joaquin Arosemena, B. Asprilla, and M. R. de la Torre. These were subsequently annulled by the constituent assembly, Dec. 11th. *Gaceta de Pan.*, July 24, Dec. 16, 1875.

[XXVI-42] Particulars of the insurrection and arrest of Arosemena appear in Camargos' despatch, in *Colombia, Diario Ofic.*, Nov. 13, 15, 1875; *Gaceta de Pan.*, Oct. 5, 7, 16, 23, Nov. 13, 17, 23, 1875; *S. F. Call*, Nov. 5, 1875; *Correoso's Statem.*, MS., 7.

[XXVI-43] Oct. 18th, he empowered B. Correoso, comandante gen., to use his best endeavors to restore order in the departments of Coclé, Los Santos, Veragua, and Chiriquí. His government was recognized at once by the foreign consuls. *Gaceta de Pan.*, Oct. 16, 23, 1875.

[XXVI-44] The executive is vested in a president, to be elected by popular vote for two years. The legislative assembly elects the justices of the superior court and their suplentes, the five substitutes of the president, the attorney-general, and his suplente; also the administrator-gen. of the treasury, and the contador by absolute majority. No change was made in the council of state. *Gaceta de Pan.*, Jan. 1, 1876; *Pan., Constit. Polít. del Est. Sobo.*, 1-20.

[XXVI-45] His government was soon after recognized by the national executive. On the 13th of Dec., 1876, the legislative assembly chose Dámaso Cervera, Francisco Ardila, José R. Casorla, Quintin Miranda, and M. Losada Plisé, designados for the presidency, in the order named. *Gaceta de Pan.*, Jan. 8, Feb. 20, Dec. 17, 1876.

[XXVI-46] *Pan. Leyes*, 1876-7, 11.

[XXVI-47] *Pan., Mem. Sec. Est.*, 1876, 1-6. On Sept. 25, 1876, the president assumed personal command of the state troops. *Gaceta de Pan.*, Oct. 15, 1876.

[XXVI-48] The president attempted both recourses; till on the 10th of March the citizens tendered a loan of \$30,000. *Id.*, March 1, 8, 22, 1877; *Salv., Gaceta Ofic.*, Feb. 18, 1877.

[XXVI-49] Dec. 30, 1878. *Correoso's Statem.*, MS., 9; *Pan., Mem. Sec. Hacienda*, 1878, i.-xl.; *Gaceta de Pan.*, March 10, May 30, July 21, 28, Sept. 26, Oct. 13, Nov. 17, Dec. 8, 19, 1878; *Pinart, Pan. Col. Docs.*, MS., no. 101; *Colombia, Diario Ofic.*, Jan. 31, 1879; *Pan., Mem. Sec. Gob.*, 1878.

[XXVI-50] The object was to upset the state government; but it was defeated by the state troops, after a fight that lasted till the 18th, and caused great havoc. Among the killed were the commander of the battalion, Col Carvajal, and his son, Lieut Carvajal, who were trying to check the infuriated soldiery. *Pan., Mem. Sec. Gob.*, 1879, 5-6.

[XXVI-51] The government sent troops against the revolutionists, and some fighting ensued without decisive results. At last the contending parties came to an arrangement by which Aizpuru agreed to surrender the person of Casorla, and to recognize the 2d designado as the provisional president. He also agreed to lay down his arms. The government consented to pay Aizpuru's war expenses, and to issue a general amnesty. *Pan., Mem. Sec. Gob.*, 1879, 7-12; *S. F. Chronicle*, June 19, 25, 1879.

[XXVI-52] Mateo Iturralde was made secretary of government, and Juan José Miró of the treasury. Several changes took place afterward, and the final secretaries were: of government, Benjamin Ruiz, and of the treasury, Juan B. Amador. José Vives Leon was government secretary in Sept. 1881.

[XXVI-53] The assembly to be formed of one deputy for every 6,000 inhabitants, and every fraction of 3,500 and upwards. *Gaceta de Pan.*, June 17, 1881.

[XXVI-54] His candidature had been opposed by Correoso, Icaza Arosemena, Ardila, Ortega, and others, for the sake of union in the liberal party. *Pan. Canal*, June 25, 1881.

[XXVI-55] His election as first designado by the legislature was on the 28th of June, 1881. The other substitutes chosen were

the following, in the order named: Miguel Borbúa, Benjamin Ruiz, José M. Vives Leon, and Antonio Casanova. *Pan., Mem. Sec. Fomento*, 1882, 1; *Correoso, Sucesos de Pan.*, 5, 6.

[XXVI-56] *Pan. Canal*, Nov. 20, Dec. 6, 1882; *Pan. Star and Herald*, Nov. 20, 1882; Jan. 29, 1883.

[XXVI-57] *Pan. Cronista*, Jan. 3, 1883. Dec. 3, 1882, a deputation composed of Correoso, Iturralde, and Diaz had waited on him to request that he should resign his position of 1st designado and acting president, which he declined. *Pan. Canal*, Dec. 5, 1882.

[XXVI-58] Nuñez had been chosen for a term ending Oct. 31, 1884. On the other hand, the constitution said that the president elect should assume office on the 1st day of Nov. following his election. *Pan. Star and Herald*, Jan. 29, 1883.

[XXVI-59] His sec.-gen., Victor Dubarry, countersigned the decree. This measure was intended to rid the government of an incubus, and to effect a yearly saving of about \$16,000. *Pan. Canal*, March 19, 1883.

[XXVI-60] At Popayan, Aug. 27, 1883. Joaquin M. Perez was Panamá's commissioner. The convention was ratified Sept. 10th, by Cervera, countersigned by J. M. Casís, sec.-gen. *Pan., El País*, Sept. 21, 1883.

[XXVI-61] He adopted for all his confidence precautionary measures to preserve public order. *Pan. Cronista*, Oct. 24, 1883.

[XXVI-62] In the first part of 1884 there were about 14,000 men on the canal-works. Still another source of danger was the mongrel population of Santa Ana and Calidonia districts, in the city of Panamá, ever disposed to seize opportunities for plunder, as was made evident in the last fire. J. M. Rodriguez, of Panamá, moved in the national senate that the federal force should be increased to 800 or 1,000 men. *Cent. Am. Miscel.*, no. 1.

[XXVI-63] The representatives were, S. Jurado, J. del C. Pino, Leonidas Flores, Waldino Izasa, and Cárlos Otálora. *Pan. Cronista*, Oct. 20, 1883.

[XXVI-64] By Juan P. Jaen, president of the superior court. *Id.* Jan. 2, 1884.

[XXVI-65] Cervera had likewise claimed immunity from prosecution, as a senator elect.

[XXVI-66] Correoso stated in the *Pan. Star and Herald* of July 12th that Ruiz' government had been upset 'á punta de sable' by Porto, whose authority sprang from the condescension of Ibañez in recognizing as authentic a telegram received that morning by Porto. He repeats the charge in his *Sucesos de Pan.*, 7. The fact was that Ibañez' brigade was by the telegram incorporated with the 3d division, and thus came to be under the control of Porto, who was chief of staff of that division. *Pan., Cronista*, July 9 to Aug. 2, Aug. 13, 1884.

[XXVI-67] In Coclé, Chiriquí, and Panamá. *Gaceta de Pan.*, Oct. 15, 1884; *Cent. Am. Miscel.*, no. 2.

[XXVI-68] The *Morro* was a British boat, which the rebels seized in the night from the 14th to the 15th, and then went on her alongside the *Alajuela*, which was a Costa Rica vessel, seized her, and proceeded to sea, leaving the *Morro* behind. *S. F. Cronista*, Oct. 18, 1884; *La Estrella de Pan.*, Oct. 23, 1884; *Pan. Star and Herald*, Oct. 17, 23, Nov. 26, Dec. 30, 1884; *Cent. Am. Miscel.*, nos. 3, 9, 10.

[XXVI-69] A Colombian armed steamer was ordered to Panamá; and Gen. Santodomingo Vita was despatched to coöperate with the commander of the federal forces. The decree was issued Oct. 22, 1884. Gen. Benjamin Ruiz was on the 28th dismissed from the Colombian army. *Bogotá, Diario Ofic.*, Oct. 30, 1884.

[XXVI-70] The assembly, being notified that the legally constituted authorities were now recognized, passed a vote of thanks to Cervera, his secretaries, Victor Dubarry and J. F. Ucrós, and Gen. C. A. Gónima, for their successful efforts for peace. *La Estrella de Pan.*, Nov. 6, 13, 1884; *Pan. Star and Herald*, Nov. 6, 1884; *Pan. Cronista*, Nov. 8, 1884.

[XXVI-71] 27,505 votes against 1,550 for Justo Arosemena, and 95 in Colon for B. Ruiz. An attempt had been made by what was called the Alianza Liberal to have Justo Arosemena as its candidate, but he virtually declined it, and his name was retired from the field early in July. *Id.*, July 30, Oct. 18, 1884; *La Estrella de Pan.*, Sept. 4, 1884.

[XXVI-72] Gónima telegraphed Nuñez at Bogotá, on the 30th of Sept., the day before the assembly met, that it would call a convention, and adds that, thanks to the patriotic efforts of Cervera, 'Lambert no será presidente. Sus indicaciones oidas.' *Bogotá, Diario Ofic.*, Oct. 8, 1884; *Bogotá, La Luz*, Oct. 8, 1884. Lambert, on the 12th of November, in an address to the Colombian people, protested against the unjustifiable interference of the federal govt in the internal affairs of Panamá, by which he had been prevented from assuming the chief magistracy he had been chosen to by the suffrages of his fellow-citizens. At the same time he made known his intention to cause no disturbance, but to remain peaceably in private life. *La Estrella de Pan.*, Oct. 30, Nov. 20, 1884.

[XXVI-73] Details may be found in *Pan. Star and Herald*, Oct. 23, 1884; *Pan. Cronista*, Oct. 22, 1884.

[XXVI-74] The assembly adjourned sine die on the 13th of Nov.

[XXVI-75] The convocation was not made according to the requirements of the constitution; and moreover, martial law existing in many parts of the state, no free elections could be effected in such localities.

[XXVI-76] Gen. Lorenzo Segundo was made comandante gen., and Col F. Figueroa his second in command. *La Estrella de Pan.*, Jan. 8, 1885.

[XXVI-77] *Pan. Cronista*, Nov. 29, 1884; *La Estrella de Pan.*, Dec. 4, 1884.

[XXVI-78] He took possession the next day. *Pan. Cronista*, Jan. 7, 10, 1885; *Gaceta de Pan.*, Jan. 9, 1885; *Pan., Actualidad*, Jan. 8, 1885; *La Estrella de Pan.*, Jan. 15, 1885; *Cent. Am. Miscel.*, no. 20; *Correoso, Sucesos de Pan.*, 7-8.

[XXVI-79] *Pan. Cronista*, Jan. 7, 1885.

[XXVI-80] Isidoro Burges, sec. of gov.; L. C. Herrera, of treasury; José M. Aleman, of fomento. *Gaceta de Pan.*, Jan. 9, 1885; *Cent. Am. Miscel.*, no. 22.

[XXVI-81] The government had now only a small force in Colon or Panamá, having on the 9th sent away the federal troops

to uphold the general government at Barranquilla, against rebels in arms. *Pan. Cronista*, Jan. 21, 24, 1885.

[XXVI-82] It seems that some of its members were implicated in this plot, and orders for their arrest were issued. That body alleged that legislation had been hampered by the government. *Pan. Star and Herald*, Feb. 11, 1885; *Pan., El Cronista*, Feb. 14, 1885; *Correoso, Sucesos de Pan.*, 11.

[XXVI-83] *Id.*, Feb. 18, 1885; *Cent. Am. Miscel.*, no. 28; *Gaceta de Pan.*, Feb. 18, 1885.

[XXVI-84] During that morning the revolutionists compelled merchants having arms in their warehouses to deliver them. They thus provided themselves with upwards of 600 rifles.

[XXVI-85] There had been many killed and wounded on both sides. An outsider, a French citizen, who imprudently put out his head, also lost his life. Much property was stolen, destroyed, or injured. At midday on the 16th the prisoners in the jail effected their escape, and made themselves conspicuous with their cries of Viva la libertad! The government force made several prisoners, and seized a number of arms in the arrabal. A number of young Panameños formed themselves into a guard to protect the city during the night of the 17th. *Pan. Cronista*, March 18, 21, 25, 1885.

[XXVI-86] A mulatto from Cartagena. In 1881, when a member of the legislative assembly from Colon, he was concerned in a personal rencontre with and killed M. Céspedes, and an Englishman. He was tried and acquitted, and his immediate release from prison was demanded by the assembly. *Pan. Canal*, June 7, 1881.

[XXVI-87] *Correoso* blames Gónima for leaving Colon utterly defenceless. *Sucesos de Pan.*, 12.

[XXVI-88] Those who refused to furnish the supplies were imprisoned, and their goods confiscated. *La Estrella de Pan.*, March 19, 1885; *El Universal de Pan.*, March 20, 1885; *Pan. Star and Herald*, March 31, 1885.

[XXVI-89] The object of the notifications was to allow time for non-combatants to get out of harm's way. Families accordingly abandoned the city, and business houses were closed.

About 8 o'clock Gen. Ibañez visited Aizpuru's camp, and brought back assurance that no assault would be made that night.

[XXVI-90] Gónima despatched Correoso and Jerardo Ortega as commissioners, the former to Aizpuru, and the latter to Prestan. Both missions resulted in nothing satisfactory. Aizpuru proposed the following terms: 1st. Recognition of Gónima as civil chief of the state; 2d. Aizpuru to have the command of the troops, which were to be increased to 1,000 men. Prestan to be the prefect at Colon. After reflecting a moment, Gónima, rejected the proposals. Correoso then resigned the office of secretary-general. *Pan. Star and Herald*, Apr. 9, 1885; *La Estrella de Pan.*, March 28, Apr. 4, 1885; *Pan. Cronista*, March 28, 1885; *S. F. Cronista*, Apr. 4, 1885; *Correoso, Sucesos de Pan.*, 13-16.

[XXVI-91] Prestan demanded the arms on the *Colon*, and being refused, first arrested Connor, then after grossly insulting Mr Burt, the superintendent of the Panamá R. R. Co., took possession of the wharf, placed a guard on the *Colon*, and made a search for the arms, but could not get at them. *Pan. Star and Herald*, March 31, 1885; *La Estrella de Pan.*, Apr. 4, 1885; *Pan. Cronista*, Apr. 4, 1885.

[XXVI-92] They had been taken to Monkey Hill at 3 A. M. on the 31st, and placed in a dangerous position under guard, but in the mêlée that followed they escaped.

[XXVI-93] At 1:30 A. M. of the 30th 160 men, under cols Ulloa and Brun, were despatched from Panamá to attack Prestan at Colon.

[XXVI-94] Prestan succeeded in joining the rebels against the national government, who were beleaguering Cartagena, and was received into their service, even though their chiefs had been made aware of his conduct at Colon. He was afterward captured, brought to Colon, tried by court-martial, and hanged on the 18th of August. Two of his principal men, captured by the *Galena's* force, had been also tried by a Colombian court-martial, convicted of incendiarism, and publicly hanged on the 6th of May. They were named Geo. Davis, a West Indian negro, and Antoine Portuzelle or Pautrizelle, a native of Hayti, who left a letter charging Prestan with the infamous act of destroying Colon. Three other accomplices, Grant and Guerrero, and a Cuban named F. G. de Peralta, were subsequently sentenced to imprisonment for a number of years. *La Estrella de Pan.*, May 9,

16, Aug. 15, 1885; *Pan. Star and Herald*, Aug. 19, 22, Dec. 11, 25, 1885.

[XXVI-95] The only buildings that remained standing were those of the railway, Pacific mail, and canal company. Ten thousand persons were left without shelter.

[XXVI-96] *Pan. Star and Herald*, April 10, 1885. Burt and the canal company's officers caused supplies to be brought to Colon. Their houses and offices offered shelter to the destitute inhabitants. Kane and his officers and men labored day and night to relieve suffering, and won themselves the gratitude of the distressed community. *La Estrella de Pan.*, Apr. 4, 1885. According to later accounts, the losses by the burning of Colon were 18 lives, and about \$6,000,000. *Pan. Ev'g Telegram*, Apr. 3, 1886.

[XXVI-97] The number killed probably did not exceed 25. The prisoners were treated with every consideration, and soon after released. Much property was damaged. *Pan. Cronista*, Apr. 11, 1885; *Nueva Era*, of Paso del Norte, Apr. 1, 1885; *La Estrella de Pan.*, Apr. 4, 1885.

[XXVI-98] Sec. of gov., C. A. Mendoza; of war and fomento, Jerónimo Ossa; of treasury, Carlos Icaza Arosemena. The last two declined the appointments. Commander of the state forces, B. Correoso. *Gaceta de Pan.*, Apr. 7, 1885; *Pan. Star and Herald*, Apr. 9, 1885; *Cent. Am. Miscel.*, no. 29, 41-3.

[XXVI-99] Toward the latter part of April, there were about 400 in Panamá city. Total number of marines on the Isthmus 600, their commanding officer being Brevet Lieut-col. Charles Heywood, who commanded at Panamá. McCalla held command in Colon. In case of need, the Am. squadron could place on shore 1,800 men, and 30 pieces of artillery. *Pan. Star and Herald*, Apr. 23, 1885; *La Estrella de Pan.*, May 2, 1885.

[XXVI-100] Aizpuru expected soon to be attacked by a superior force from Cauca. He despatched B. Correoso and A. Clément as peace commissioners to Buenaventura, but they were arrested there. *Pan. Star and Herald*, Apr. 25, 27, May 4, 1885.

[XXVI-101] After which it was to proceed to Cartagena. *La Estrella de Pan.*, May 4, 1885.

[XXVI-102] Aizpuru's terms were as follows: 1st. To resign his powers into the hands of Vives Leon, Pablo Arosemena, or any other constitutionally entitled to receive them. 2d. General pardon for all offences of a strictly political character, but the punishment of the guilty of crimes in Panamá, Colon, or elsewhere on the Isthmus. *Id.*, Apr. 29, 1885.

[XXVI-103] On the 4th he claimed to have delivered a larger number of arms than his commissioners had bound him to surrender. *La Estrella de Pan.*, May 3, 9, 1885.

[XXVI-104] *La Estrella de Occid.*, May 16, 1885. Both Aizpuru and Correoso were subsequently deprived of their military rank. The former, being tried by court-martial in Bogotá, was sentenced, Nov. 3, 1885, to 10 years' exile, with loss of offices, income, and political rights during that time, and payment of costs and of damages caused by his rebellion. *Pan. Star and Herald*, Oct. 1, Dec. 10, 24, 1885.

[XXVI-105] Upon which they were publicly complimented by Rear-admiral Jouett in general orders.

[XXVI-106] 'No siembran mas que lo que justamente consumen por temor de ser robados en la forma de contribuciones.' *Maldonado, Asuntos Polit. Pan.*, MS., 25.

[XXVI-107] Witness the proceedings of the troops brought by Santa Coloma, and later, at different times, by the battalions Tiradores, Pichincha, 3d de línea, and others. Upon the subject of undue federal interference with the domestic affairs of the Isthmus, the following charges preferred by M. J. Perez from Panamá in a letter of Oct. 22, 1884, to Aníbal Galindo, are worthy of notice: 1st. Public intervention of the general government in internal affairs of the state; 2d. Barefaced protection by the gen. govt to rebels in arms against the constitutional govt of the state; 3d. Intimate alliance of the federal force with the opposing conservatives and with the radicals to disarm the government, and exercise pressure on the assembly, forcibly hindering its performance of constitutional functions; 4th. Consequences of the foregoing course; acts of piracy on the part of the rebels, violence, bloodshed, international claims, humiliation. *Pan. Cronista*, Oct. 25, 1884. Correoso corroborates all this in his remarks on the conduct of the Guardia Colombiana on the Isthmus, in 1860, 1865, 1868, 1873-5, 1878, and subsequently. *Sucesos de Pan.*, 3-8.

[XXVI-108] 'No solo es víctima de sus propios males, sino tambien de los que le vienen de fuera.' *Maldonado, Asuntos Polít. Pan.*, MS., 26.

[XXVI-109] Discussions in the national Consejo de Delegatarios, in Nov. and Dec. 1885, and law of Dec. 11, 1885, to regulate the gov. of Panamá. *Pan. Star and Herald*, Jan. 6-15, 1886.

[XXVI-110] *Id.*, March 20, 29, suppl., 1886. The publication of the journal was restored after the term of suspension expired. Vila's course was disapproved by the general government, and he was peremptorily recalled for disobedience of orders. The proprietors of the journal have made a claim for heavy damages. *Buenaventura Correoso, Sucesos de Panamá Informe á la Nacion*, Buga, 1886, 4to, 24 pp. The writer, one of the prominent political men of Panamá, in this pamphlet purposes, as he assures us, to point out the source of the almost continuous disturbances that have occurred on the Isthmus since 1860, laying particular stress on the events from 1880 to 1885. It might be expecting too much that he should express an impartial and wholly unwarped judgment on those events, and on his political opponents. It must be acknowledged, however, that his statements appear to be fair enough, and that his assumption of responsibility for some of the acts which he censures is frank. *Simon Maldonado, Asuntos Políticos de Panamá*, MS., 42 pp. The author of this review is a native of Panamá, and has filled responsible positions in his country, more especially in the judiciary. His views of affairs there are impartial, and entitled to consideration for their soundness.

[XXVII-1] An official doc. of the U. S. govt gives 174,800; *Am. Cyclop.*, of 1873-6, 178,277; Crowe, *Gospel in Cent. Am.*, roughly computes it at 200,000. Other authorities widely differ. I refer the reader to the following maps, namely: John Baily's, 1850; Max. Von Sonnenstern's offic. maps of Salv., 1858, and Guat., 1859; Herman Au's, of Guat., 1875; Paul Levy's, of Nic., 1873; Molina's map of Costa R. in his *Bosquejo*.

[XXVII-2] 'Never so great as during the summer months in England.' *Dunlop's Cent. Am.*, 258; *Crosby's Statem.*, MS., 114-17; *Guat., Mem. Min. Hac.*, 1883, 15-16.

[XXVII-3] The same may be said, though in a less degree, of the northern and eastern coast of Hond. from Omoa to Gracias á

Dios.

[XXVII-4] La Union, San Miguel, Acajutla, Sonsonate, etc., owing to local causes.

[XXVII-5] The average temperature at Tegucigalpa, Comayagua, Juticalpa, and Gracias is about 74°. *Squier's Notes on Cent. Am.*, 25-7; *Belly, A travers l'Amér. Cent.*, i. 53-4.

[XXVII-6] Cold and salubrious on the table-lands in the interior, the thermom. ranging from 65° to 75° Fahr. *Molina, Bosq. Costa R.*, 28. The climate of Costa R. varies from 50° to 60° Fahr., according to elevation. *Galindo, in Journ. Royal Geog. Soc. of London*, vi. 134; *Laferrière, De Paris à Guatém.*, 47-8.

[XXVII-7] This is by far the pleasanter season, the forenoons being usually cloudless, with a clear, elastic, and balmy atmosphere. Owing to local influences in some portions of the eastern coasts it rains more or less the whole year. *Crowe's Gospel*, 1-12.

[XXVII-8] Consisting of three groups; viz, the Costa Rican traversing that republic and Panama, the Honduran and Nicaraguan, and the Guatemalan.

[XXVII-9] Some of the summits are 17,000 ft high. Several spurs from the Sierra Madre—the main ridge—cut the plains at right angles, and sometimes reach the sea-shore.

[XXVII-10] All the volcanoes of Cent. Am. are on the Pacific coast, almost in a line, and running due north-west and south-east, beginning with the Cartago or Irazú, in Costa Rica, which is 11,480 ft high, and has left traces of violent eruptions before the historic period; the only proof of its present activity being a small rill of smoke visible from the foot of the mountain. There are hundreds of other volcanic peaks and extinct craters on the line, the most notable being the Turrialba, which was in active eruption in 1866, the ashy matter from it having been beneficial to the coffee plantations; Chirripó, Blanco, Závalo, Barba, Los Votos 9,840 ft high, also in Costa R. Abogado, Cerro Pelado, Tenorio, Cucuilapa, Miravalles, Rincon de la Vieja, La Hedionda, Orosi, Madera, Ometepe, Zapatera, Guanapepe, Guanacaure, Solentinami, Mombacho, Chiltepe, Masaya or Nindirí; this last said to have been in a state of eruption upwards of 250 years ago, and still continues active; it had a small eruption Nov. 10, 1858;

Managua; Momotombo, 6,500 ft high, near the Managua or Leon Lake, about which the Indians had a tradition of a tremendous eruption some 100 years before the coming of the Spaniards, the lava running into the lake and destroying all the fish; the latter part of the story seems to be incorrect, there being evidence that the lava did not reach the lake shore; it partially revived in 1852; Las Pilas, Asososca, Orotá, Telica, Santa Clara, El Viejo 6,000 ft high; El Chonco; Cosigüina, whose first eruption was Jan. 20, 1835, believed to have been the most violent ever recorded in history; and Joltepec—all in Nic. El Tigre, Nacaome, and Amapala, or Conchagua, in Hond. In the republic of Salv. are several; namely, the San Salvador, which had not broken out in upwards of three centuries; but in old times it ejected immense masses of lava and scorïæ to a distance of more than 18 miles. It is of great depth, computed by Weems, an American who descended it, at about 5,000 varas; the bottom is occupied by a lake; San Miguel, about 15,000 ft high. In old times it ejected large quantities of cinders and half-melted stones of immense size. The country for 30 miles or more, including the site of San Miguel, one of the oldest towns in Am., being covered with lava and scorïæ; San Vicente; Izalco, which broke out about 100 years ago, is in constant activity, but has not caused any serious damage; Paneón, and Santa Ana. In Guat. are the Pacaya; the Volcan de Agua; the Volcan de Fuego constantly smoking with occasional explosion and shocks, its last eruption being in 1880; Encuentro, Acatenango; Atitlán so remarkable at one time for frequent and violent eruptions, the last ones being in 1828 and 1833, which caused much destruction on the coast of Suchitepequez; Tesamielco, Zapotitlán, Amilpas, Quezaltenango, and Cerro Quemado whose last eruption was in 1785. There are many other nameless ones. Near a number of the active and extinct volcanoes are small and almost circular openings in the ground, through which is ejected smoke or steam. The natives call them *ausoles* or *infiernillos*, little hells. *Dunlop's Cent. Am.*, 3, 13-17, 52-5, 91-2, 118-20, 284-90; *Squier's Trav.*, ii. 101-19; *Squier's Cent. Am.*, 359-61, 492-8. Other authorities speaking of the volcanoes of Cent. Am. are: *Stout's Nic.*, 143; *Silliman's Journal*, xxviii. 332; *Levy, Nic.*, 75-85, 147-53; *Guat.*, *Gaceta*, Feb. 10, 1854; *Diario de Avisos*, Nov. 22, 1856; *Nic.*, *Gaceta*, June 5, Aug. 7, 1869; March 18, 1871; *Salv.*, *Diario Oficial*, Oct. 11, Nov. 15, 1878; *Overland Monthly*, xiii. 324; *La Voz de Méj.*, March 17, 1866; *Pim and Seemann's Dottings*, 39-40; *Baily's Cent. Am.*, 75-8; *Wells' Hond.*, 231-2; *Harper's Mag.*, xix. 739;

and the *Encyclopædias*; *Guat.*, *Revista Observatorio Meteor.*, i. 21-3.

[XXVII-11] About 300 have been recorded in 3½ centuries, which are probably the hundredth part of the actual number.

[XXVII-12] *Hist. Cent. Am.*, ii. 719-21, this series.

[XXVII-13] June 20th, at 3 A. M., was felt a heavy shock in Guat.; no great damage was done. In Comayagua and Tegucigalpa the shocks continued from the 20th to the 25th; the people abandoning their dwellings. Many buildings, both public and private, were much injured. The shocks were also felt in Trujillo.

[XXVII-14] Apr. 23, 1830, Guat. experienced one said to have been the most severe since that of 1773. Feb. and Sept. 1831, a great part of San Salvador was ruined. The authorities and most of the people fled to Cojutepeque. This was the sixth time the city had been more or less damaged by earthquakes. Sept. 2, 1841, Cartago, in Costa R., was nearly levelled to the ground; of 3,000 houses previously existing, not 100 remained entire; of the 8 churches, the smallest and ugliest was the only one escaping uninjured. May 1844, the city of Granada was nearly ruined; the town of Nicaragua was greatly damaged, the lake of this name rising and falling several times, as if having a tide. Amatitlan, Petapa, Palin, and other places near the volcano of Pacaya, hardly had a house left standing in the end of March and in beginning of April 1845. In the repub. of Guat. shocks have been repeatedly experienced, those of 1884 and 1885 causing devastation in Amatitlan. San Salvador experienced heavy ones in 1575, 1593, 1625, 1656, and 1798, and was completely ruined in 1839, 1854, and 1873, and several other towns in the republic fared almost as badly in the latter year. Oct. 2, 1878, there was loss of life. Dec. 27-29, 1879, Ilopango, Candelaria, and other places were demolished. In Costa R. the destruction of Puntarenita occurred Aug. 4, 1854; and in 1882 the towns of Alajuela, San Ramon, Grecia, and Heredia were damaged, with heavy loss of life. In Dec. 1867, a tidal wave swallowed the island of Zapotilla, in Golfo Dulce, drowning all the inhabitants. The earthquake shocks seem to be of two kinds, namely, the perpendicular, which are felt only in the vicinity of volcanoes, and the horizontal, reaching great distances from the places where they originate, being very unequal in their progress, in some parts rocking the ground violently, and in others, in their

direct line, nearer their source, being but slightly felt. *Dunlop's Cent. Am.*, 290-3; *Squier's Cent. Am.*, 298, 304-7, 465; *Squier's Travels*, ii. 85, 120-6; *Ponton's Earthquakes*, 69, 76-7; *Reichardt, Cent. Am.*, 83-4; *Nouv. Annales Voy.*, clxv. 360-1; lxxxv. 264; lciii. 121; *Montúfar, Reseña Hist.*, iii. 608-9; *Wagner, Costa R.*, Pref. viii.; *Costa R., Col. Ley.*, vii. 101-3; *Id.*, *Gaceta*, Sept. 10, 1853; July 15, Aug. 5, 26, Sept. 2, 1854; *Id.*, *Boletín Ofic.*, Aug. 31, Dec. 23, 1854; *Niles' Reg.*, lxi. 257; *Pim's Gate of the Pac.*, 26; *Mission Scient. au Mex. Geol.*, 13-16, 511-12; *Wells' Hond.*, 233; *Salv., El Siglo*, May 28, June 3, 1851, Sept. 3, 1852; *Id.*, *Diario Ofic.*, Oct. 5-27, 1878; Jan. 13, 14, 1880; *Id.*, *Gaceta*, May 20, 1854; *Id.*, *El Rol*, Oct. 13, 20, Nov. 10, 17, Dec. 1, 1854; Feb. 9, 1855; *Guat., Gaceta*, Oct. 21, 1853; May 5, 1854; *Nic., Gaceta*, March 26, 1864; Feb. 10, 1866; Jan. 18, May 9, Oct. 31, 1868; Jan. 8, June 18, Aug. 20, 1870; *La Union de Nic.*, Jan. 12, 1861; *El Porvenir de Nic.*, Oct. 15, 1871; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 1, i. pt 1, 796, 808, 814; *Id.*, Cong. 44, Sess. 1, i. pt 1, 129; *Uriarte, Terremotos de Cent. Am.*, in *Mex. Soc. Geog., Boletín*, ii. 189-95; *Mex., Eco Mercantil*, Apr. 24, 1882; *Pan. Star and Herald*, Jan. 5, 7, 11, 1886. Very full information from 1469 to 1882 in *Guat., Revista Observatorio Meteor.*, i. 24-39.

[XXVII-15] Worthy of mention were the shocks of July 11, 1854, felt throughout the Isthmus, Sept. 11th, the same year, felt in Chiriquí; 1857, 1858, 1868, and Sept. 7, 1882; this last was a heavy one, damaging public and private buildings; also delaying the transmission of passengers and merchandise over the railway. *Salv., El Rol*, Dec. 1, 1854; *Costa R., Gaceta*, Oct. 21, 1854; *S. F. Alta*, Oct. 2, 1857; *Sac. Union*, Aug. 2, 1858; *S. F. Call*, June 23, 1868; Sept. 8, 9, 25, 1882; *S. F. Chronicle*, Sept. 9, 1882; *La Estrella de Pan.*, Sept. 14, 1882; *Pan. Star and Herald*, Sept. 14, 1882.

[XXVII-16] The most important ones are the Usumasinta, known also under the names of Lacandon, Pasion, etc., in Guat., of about the size of the Garonne or Elbe in Europe, or the Hudson in the U. S., which drains nearly half of the state, and pours its waters through several mouths into the bay of Campeche and the laguna de Términos. The Dulce unites the bay of Hond. with the Dulce Gulf. The Hondo; the Belize, or Old River, famous for the fine mahogany its banks have yielded; the Motagua and the Polochic; the Black or Tinto in the Poyais country; the San Juan del Norte, Coco, also named Telpaneca and Wanks, Grande or

Chocoyos, and the Mico or Blewfields; the Tipitapa, uniting lakes Nicaragua and Managua; the Paz, separating Guat. and Salv.; and the deep and rapid Lempa, the largest on the western shore, at its lowest ebb exceeds 140 yards in breadth.

[XXVII-17] The following are the notable ones: Atitlan, in Guat., covering upwards of 250 square miles; declared to be unfathomable, a line of 300 fathoms not reaching the bottom. Though receiving the waters of many rivers, no outlet has been found for its dark and benumbing waters; still, it is probable that a subterraneous outlet exists, as in the lakes of Guijar and Metapa in Salv., which are united by a subterraneous communication. Golfo Dulce, or Izabal Lake, of about 50 miles in circuit, subject to violent agitations, and forming the port of Izabal on the Atlantic coast of Guat. The small Amatitlan, about 20 miles from the city of Guat., which, notwithstanding its hot springs and brackish waters, abounds in a delicate fish called mojarra, in other small fish, and in wild fowl. In Hond. is the Yojos. In Nic., the lake of the same name, whose surplus waters run to the Atlantic by the San Juan del Norte River; an inland sea, 96 miles long, and 40 miles in its greatest breadth, forming an ellipse with its main axis due N. W. to S. E. Its depth in some parts is of 45 fathoms, and its area must be at least 2,000 square miles. It contains a small archipelago. Lake Managua is 38 or 35 miles in length, and 16 in its greatest breadth. It has little depth, and several sand banks render navigation difficult. The laguna de Masaya, 340 ft lower than the city of the same name, which is 750 ft above the sea level. Its area is of about 10 square miles. *Lévy, Nic.*, 86, 95-8.

[XXVII-18] From 8° to 11° 16′ N. lat., and 81° 40′ to 85° 40′ long. W. of Greenwich. *Molina, Bosq. Costa R.*, 25. Between 8° and 17° 30′ N. lat., and 11° 50′ to 22° 32′ W. of Santiago de Chile, which is situate in meridian 70° 38′ 6″ west of Greenwich. *Astaburuaga, Cent. Am.*, 2. *Am. Cyclopædia*, v. 393, gives it betw. 8° 11′ and 11° 8′ N. lat., and long. 82° 28′ to 85° 45′ W. of Greenwich. Between about 8° and 11° N. lat., and 82° to 86° W. long. *Encyclopædia Britannica*, vi. 397.

[XXVII-19] By the law of March 27, 1835, the country was divided into three departments; namely, Cartago, Alajuela, and Guanacaste, with a jefe político at the head of each. Repealed by executive decree of April 28, 1843, after having had several amendments. *Costa R., Col. Ley.*, iv. 180-3.

[XXVII-20] San José has 9 regidores, Cartago and Heredia 7. Each municipality chooses a president and vice-president from among its own members, and a secretary. At each cantonal head town there are alcaldes, and in each barrio a juez de paz. *Costa R., Id.*, iii. 226-40; x. 465-92; xi. 89-138; xvii. 161-98; xix. 168-74; *Costa R., Mem. Instruc. Púb.*, 1884, annexes 12-17; *Id., Mem. Gobern.*, 1852-84; *El Costaricense*, Nov. 24, 1849; *Costa R., Gaceta*, Feb. 9, 16, March 2, 1850.

[XXVII-21] San José, the national capital, was founded a little more than 100 years ago, owing its existence to the earthquakes which nearly destroyed Cartago, the old capital. San José is situated on an elevation of about 4,500 ft., upon the tableland formed between the mountains of Dota or Herradura on the south, and those of Barba on the north. On one side flows the river Torres, and on the other the María Aguilar. Its streets are paved, straight, and forming right angles. The dwellings are mostly of a single story, with spacious courts; there are, however, a good many buildings of two stories. The majority are made of adobe, plastered over; but the national palace is of stone, and a fine building. An aqueduct supplies the city with water from the Torres, though a large portion of the fluid consumed is drawn from the wells existing in almost every house. Besides, the government palace, the university, Mora theatre, some of the churches, and a few other buildings, do honor to the city. The electric light was introduced in 1884. Cartago, the oldest town in the state, though it has lost its political importance, and has been shattered by earthquakes, retains some traces of its former magnificence. It is gradually improving. *Molina, Bosq. Costa R.*, 51; *Astaburuaga, Cent. Am.*, 50; *Squier's Cent. Am.*, 463-4; *Boyle's Ride Across a Continent*, ii. 217; *Laferrière, De Paris à Guatém.*, 47; *Wappäus, Mex. und Cent. Am.*, 364-5; *Costa R., Informe Gobern.*, 1874, 2-3; *El Cronista*, S. F., Oct. 18, 1884.

[XXVII-22] It is situated between lat. 10° 45' and 14° 55', and between long. 83° 15' and 87° 38'. *Am. Cyc.*, xii. 420. Between 10° 30' and 15° lat., and from 83° 11' to 87° long. *Encyclop. Brit.*, xvii. 490. Between 9° 45' and 15° lat. N., and between 83° 20' and 87° 30' long. W. *Squier's Cent. Am.*, 348. Between 10° 50' and 15° N. lat., and between 83° 13' and 87° 37' long. W. of Greenwich. *Nic., Gaceta*, Jan. 18, 1868.

[XXVII-23] That is the civilized region. There is, besides, a wild portion comprising about 24,000 geographical miles. *Lévy, Nic.*, 372.

[XXVII-24] In the absence of the prefecto the first alcalde of the head town acts in his place ad int., with the full pay of the office. *Nic., Acuerdos y Dec.*, 1857-8, 70-8, 203-5; *Rocha, Cód. Nic.*, i. 58-77, 145-8, 195-6; ii. 5-20; *Nic., Boletín Ofic.*, Apr. 16, 1856; Feb. 8 to Nov. 15, passim, 1862; *Id., Gaceta*, March 5, 1864; *Id., Informe Gobern.*, 1863-83.

[XXVII-25] The corporations are formed, according to the importance of the locality, with one or two alcaldes, and their respective suplentes, regidores, one secretary, one síndico, and the agricultural judge, all serving without pay. The prefecto controls the municipal affairs of his whole department, and especially those of the chief town. He presides ex-officio over all the municipalities, and in case of a tie has a casting vote. He cannot be accused except before the senate, and is consequently a petty president in his department. *Lévy, Nic.*, 331-5.

[XXVII-26] It was made a city in 1846, and special ordinances were provided for it from time to time. *Rocha, Cód. Nic.*, i. 148; *Sandoval, Rev. Polít.*, 58; *Nic., Registro Ofic.*, 342; *Id., Dec. y Acuerdos*, 1863, 2, 46, 118-19; *Id., Dec. y Acuerdos de la Junta*, 12-13, 145-8.

[XXVII-27] It has been greatly damaged by military operations, but never burned down, like Granada.

[XXVII-28] Leon was connected in 1881 with Corinto by rail; and the line has been afterward extended to Leon Viejo, on Lake Managua, and thence to Granada. Notable places in the department of Leon are Telica, birthplace of Miguel Larreyuaga, an oidor of the last Spanish audiencia, or superior court of judicature, who drew up the declaration of independence; El Sáuce, Santa Rosa, El Jicaral or San Buenaventura, and San Nicolas.

[XXVII-29] Granada has a good commercial position on the N. W. end of Lake Nicaragua, and at the foot of the Mombacho volcano. It was burned by pirates in 1665, nearly ruined by the freebooters in 1670, the raiders having come on both occasions by the San Juan River and the lake; and a third time destroyed by fire in 1685, the work of pirates who landed at Escalante on the Pacific. In 1844 it was greatly damaged by earthquakes. In 1856 it was burned by William Walker, the filibuster. But it has risen from its ashes, and become prosperous. The city is irregular in its construction, the streets not being straight or rectangular. They

are mostly unpaved, and generally in a bad condition. The city obtains water for consumption from the lake, distant about a mile, brought by men on their shoulders; and its food supplies, not from the surrounding fields, but from numerous Indian pueblos on the S. E. Masaya was an Indian town, but raised to the rank of a city in 1839. *Rocha, Cód. Nic.*, i. 148. It is supplied with water from the deep lagoon south of and near the city. There were women who for 80 cents monthly supplied two large jars of water every day. A steam-pump was put up in 1872 to raise the water of the lake to the plaza. There is no building worthy of mention in the place. Other notable towns in the department of Granada are Nandaimé, Jinotepe, San Rafael de la Costa, Diriomo, Tipitapa, Nindirí, and Zapatera Island. The towns of San Carlos and El Castillo, on the San Juan, belong to the same department, though governed in a special manner. San Juan del Norte, alias Greytown, has little importance now; its houses are of wood and palm-thatched. Rivas bore the name of Nicaragua till the early part of the present century. The city has suffered greatly from earthquakes, particularly in 1844. It was partially destroyed during the Walker war. A real curiosity in the department of Rivas is the island of Ometepe in the lake, having two towns, the Pueblo Grande, or villa de Altagracia, and the Moyogalpa, united by a good wagon road. Chinandega is one of the most beautiful spots in Nic. It is a perfect garden. In the wild or uncivilized portion of the territory lies the Mosquito region, whose chief town is Blewfields, having two wooden buildings; the rest being mere huts. *Lévy, Nic.*, 373-90; *Laferrière, De Paris á Guatém.*, 73-6; *Saravia, Bosq. Polít. Estadist.*, 10-11; *Marure, Bosq. Hist. Cent. Am.*, 153-4; *Froebel's Cent. Am.*, 19, 29-47, 62-75, 92-104; *Froebel, Aus Amerika*, i. 250-80, 311-17, 350-4; *Squier's Trav.*, i. 138-40, 146-50, 211-15, 258-67, 339, 353-6, 365; *Squier's Cent. Am.*, 346-7, 356-9, 366-76; *Squier's Nic.*, 646; *Belly, Nic.*, i. 196-9, 212, 225-9, 249; *Stillman's Golden Fleece*, 206-8; *Dunlop's Cent. Am.*, 6-8; *Stout's Nic.*, 27-9, 41-5, 98-100, 156-64; *Baily's Cent. Am.*, 117-18; *Bates' Cent. Am.*, 131-2; *Marr, Cent. Am.*, i. 158-9, 165-71, 228-30; *Boyle's Ride*, i. 13, 83-91; ii. 8; *Reichardt, Nic.*, 6-18, 20-7, 59, 62-3, 71-2, 81-9, 105-6, 129-31, 134, 155-9, 165-9, 231; *Wells' Hond.*, 39, 42, 72-4.

[XXVII-30] Hond. is therefore betw. 13° 10' and 16° lat. N., and within 83° 20' and 89° 30' long. W. *Squier's Cent. Am.*, 68; *Encyclop. Brit.*, xii. 133. Between 13° 10' and 16° 5' N. lat., and within 83° 12' and 89° 47' W. long. *Am. Cyclop.*, viii. 787.

[XXVII-31] The towns have their municipal corporations, whose members are required by law to be able to read and write.

[XXVII-32] Before 1827 it was a prosperous city; but the serviles burnt it that year. Since then it has suffered several times, especially in 1872 and 1873.

[XXVII-33] *Squier's Cent. Am.*, 129-30; this authority also gives a cut of the cathedral on p. 261; *Wappäus, Mex. und Cent. Am.*, 310-11; *Huston's Journey*, 24-7.

[XXVII-34] The town stands on the right bank of the Choluteca River in an amphitheatre among the hills. It has a fine stone bridge of ten arches spanning the river. *Wells' Hond.*, 186-8; *Laferrière, De Paris á Guatém.*, 95-6; *Squier's Cent. Am.*, 155.

[XXVII-35] Omoa is situated about a quarter of a mile from the beach on level ground, but the back country rises rapidly into a chain of high mountains, beginning abruptly at Puerto Caballos, now called Puerto Cortés. Owing to its position, Omoa is generally cool and healthy, has seldom been visited by epidemics. The place is defended by the San Fernando castle. Trujillo lies close by the sea at the foot of a lofty mountain covered with vegetation, and reaching to the very edge of the water. The town was at one time of considerable importance, both in a commercial and military point of view; but now it has an antique, dilapidated, and abandoned appearance. Amapala, on the island of Tigre, was in old times a favorite resort of pirates; it was here that Drake had his depot during his operations in the Pacific. Owing to the visits of those marauders, the Indian population of Tigre and Zacate Grande retired to the mainland, and the islands remained almost entirely deserted till 1838, when Amapala was made a free port, since which time it has become a very important place. It has a salubrious climate. Further details on the towns of Honduras may be found in *Montgomery's Narr. of a Journey to Guat., etc., in 1838*, 31; *Squier's Cent. Am.*, 98-129, 142-161; *Squier's Hond. R.*, 74-84, 99-102; *Squier's Trav.*, ii. 164-8; *Young's Resid. Mosq. Shore*, 138-40; *Wells' Hond.*, 324-5, 574-9; *Reichardt, Cent. Am.*, 89-90, 93-5; *Wappäus, Mex. und Cent. Am.*, 311-19; *Froebel's Cent. Am.*, 177-83; *Pim's Gate of the Pac.*, 28-9.

[XXVII-36] It is comprised within lat. 13° and 14° 30' N., and long. 87° 30' and 90° 20' W. *Am. Cyclop.*, xiv. 610. Between 13° and 14° 10' N. lat., and between 87° and 90° W. long. *Squier's Cent. Am.*, 279; *Laferrière, De Paris á Guatém.*, 111.

[XXVII-37] By decree of President Gonzalez, July 14, 1875, the department of San Miguel was cut up, and that of Gotera created with the districts of Gotera and Osicala. San Miguel was compensated with Chinameca, detached from Usulután. *Salv., Diario Ofic.*, July 20, 1875.

[XXVII-38] It is made a part of the governor's duty to keep the gen. govt apprised of every important occurrence within his department or its vicinity; in addition to which he must furnish annually a gen. report on every branch of the public service, with suggestions for the further improvement and progress of the communities under his charge. His subordinates in districts and towns report to him. A number of governors' reports may be seen in *Salv., Gaceta*, Sept. 3 to Dec. 24, 1876; Jan. 2 to Dec. 18, 1877; *Id., Diario Ofic.*, May 17 to Dec. 3, 1879; Jan. 15, 1880, etc.

[XXVII-39] Towns of from 200 to 2,000 inhabitants two regidores, of upwards of 2,000 to 10,000 four, and those exceeding the latter number six. Each corporation elects a competent clerk to authenticate its acts and those of the alcalde.

[XXVII-40] *Id.*, May 1-16, 1875; March 5-22, 1879.

[XXVII-41] Like other Spanish towns, it covers a large area in proportion to the population. The houses are built low, of a single story, and adapted to resist the constant shakes of the earth. Each house has an inner court, frequently containing a fountain and garden. The dwellers run out to the court on feeling a temblor of some force. When the shocks are heavy and continuous, they seek safety in the plazas and open fields, where they erect tents.

[XXVII-42] It is situated between N. lat. 13° 50' and 18° 15', and within W. long. 88° 14' and 93° 12'. *Am. Cyclop.*, viii. 288. Between 13° 42' and 18° lat. N., and between 88° and 93° 5' W. long. *Encyclop. Brit.*, xi. 211.

[XXVII-43] The chief towns have the same names as the departments to which they belong, excepting those of Sacatepéquez, Quiché, Peten, Baja Verapaz, Alta Verapaz, and Santa Rosa, whose respective names are Antigua, Santa Cruz del Quiché, Flores, Salamá, Cobán, and Cuajiniquilapa. *Salv., Gaceta Ofic.*, June 6, 1877; *Guat., Mem. Sec. Gobern. y Just.*, 1884, 4-5, annex 4; *El Guatemalteco*, May 10, 1884.

[XXVII-44] Under the old system the department was under a corregidor who was not only civil governor, but also military chief, judge, revenue collector, and postmaster. *Berendt*, in *Smithsonian Rept*, 1867, 424.

[XXVII-45] Under art. 34 of this organic law the jefes were required to send the supreme gov. for approbation police regulations, under the instructions furnished them for the sake of uniformity. They did not fail to comply. *Guat., Mem. Sec. Gobern. y Just.*, 1880, 1-2.

[XXVII-46] The law determined with precision the manner of organizing the municipalities, and the functions of the councilmen, increasing at the same time the number of committees; at that time they had committees of finance, supplies, water, police, health, ornamentation, schools, vaccination, roads, and statistics. Further information on internal administration, police, and gen. condition of the departments may be found in *Guat., Recop. Ley.*, i. 492-512, 527-75; *Barrios, Mensaje*, 1876; *Salv. Diario Ofic.*, May 13 to 16, 1875; *Guat., Mem. Sec. Gobern.*, 1880, 1881, 1882, 1884; *Batres' Sketch Guat.*, 23; *Conkling's Guide*, 341.

[XXVII-47] With only three exceptions every department had a surplus. The three excepted had deficits amounting together to \$3,578.

[XXVII-48] I will name a few of the authorities: *Dillon, Beautés de l'hist.*, 218-38; *Thompson's Guat.*, 465-9; *Stephens' Trav. Cent. Am.*, i. 192-4; *Nuevo Viajero Univ.*, iii. 602-7; *Baily's Cent. Am.*, 49-54; *Valois, Mexique*, 291-6; *Reichardt, Cent. Am.*, 54; *Crosby's Statem.*, MS., 86-90; *Belly, Nic.*, i. 114-16; *Laferrière, De Paris à Guatém.*, 259-60; *Dicc. Univ. Hist. Geog.*, iii. 724-7; *Dunlop's Cent. Am.*, 76-86; *Squier's Cent. Am.*, 497-50; *U. S. Gov. Doc.*, H. Ex. Doc. Cong. 43, Sess. 1, i. 444-5; *Astaburuaga, Cent. Am.*, 78-9; *Am. Cyclop.*, viii. 290-2; *Encyclop. Brit.*, xi. 214.

[XXVII-49] There are two fortresses, the Matamoros and San José. Among the open places are the plaza mayor, and the recently laid out plaza de la Concordia, now the favorite resort of the inhabitants. There is another plaza containing a fine theatre.

[XXVII-50] San Francisco, La Releccion, La Merced, and Santo Domingo are among the notable ones.

[XXVII-51] The govt in late years has provided for an increase of the water supply to meet the future requirements of a town whose population is rapidly growing. *Guat., Mem. Sec. Fomento*, 1884, 43-4; 1885, 49-51, 56-8.

[XXVII-52] With government aid, a jockey club was also established in 1882. *Guat., Mem. Sec. Fomento*, 47-50, 75.

[XXVII-53] Antigua, or Old Guat., presents its majestic ruins, much the same as they were left by the earthquakes of 1773. Many of the buildings appear like fortresses. Among the best preserved are the old government palace and the university. The place was much damaged by an earthquake in 1874. Thompson in his *Cent. Am.* has a description of the ruins as they were in 1825, 245-9; others have described them at later dates. *Stephens' Trav.*, i. 266-71, 278-80; ii. 204; *Reichardt, Cent. Am.*, 53-5; *Macgregor's Prog. of Am.*, i. 791-2; *Valois, Mexique*, 376-8, 390; *Squier's Cent. Am.*, 456, 504-10; *Batres' Sketch*, 27-9, 40. Quezaltenango is 8,130 feet above the sea. It is every day growing in importance and wealth. Living is cheap there; the climate is cool and healthy. Most of the streets are narrow, but they are well paved and have flagstone sidewalks. The houses are of good appearance, some of them of two stories. Among the public buildings are the penitentiary, on the plan of that in Philadelphia, the Indian cabildo of two stories, the hospital, national institute, and other educational establishments, some fine churches, etc. *Boddam Whetham's Across Cent. Am.*, 66-7; *Conkling's Guide*, 334, 337, 343. The city of Flores, head town of the department of Peten, is worthy of mention for its picturesque position on one of the islands of Lake Itzal, and its charming view from a distance. The place is hot, however, and uncleanly.

[XXVII-54] Occupying the Isthmus which connects North and South America, between lat. N. 6° 45' and 9° 40', and within long. W. 77° and 83°. The area is of about 31,921 square miles. In its general form it is an arc curving from east to west, with the convex side toward the north. In the widest part from sea, to sea it is about 120 miles, in the narrowest from the gulf of San Blas to the mouth of the Bayano River about 30, and along the line of the railway 47½ miles. *Am. Cyclop.*, xiii. 31.

[XXVII-55] In addition to these are Taboguilla, Urabá, Naos, Perico, Culebra, San José, Tórtola, Tortolita, Iguana, Washington, Napoleon, Stanley, and many smaller ones. *Tavares, Gulf and*

Isthmus of Darien, March 31, 1761, MS., 52-65; *Imray's Sail. Directions*, 6-12; *Humboldt, Tableau*, 710.

[XXVII-56] The largest being the Tuira, 160 miles long, navigable about 102 for barges, empties into the gulf of San Miguel; the Chagres, navigable for bungos about 30 miles, runs into the Caribbean Sea; the Chepo flows into the bay of Panamá.

[XXVII-57] The principal town of Coclé is Penonomé; of Chiriquí, David; and of Veragua, Santiago. The rest bear the same names as their respective departments.

[XXVII-58] The governor and prefectos report yearly to the chief of the Isthmus the state of their respective departments. *Pan., Mem. Soc. Jeneral*, 1877, etc.

[XXVII-59] Just prior to the influx of the foreign element, upon the discovery of the gold placers in California, the town had a gloomy and ruinous aspect. There was nothing to be seen all around but ruin and poverty; whole blocks and streets of old, dilapidated buildings, propped-up houses with people living in them, and luxuriant vegetation in the plazas, walls, etc. With the coming of foreigners a great change took place within the short space of three or four years. Nearly all the old dwellings underwent repairs, and new ones were built. In lieu of the old sad appearance and silence, all was now bustle and movement. *Maldonado, Asuntos Polít. Pan.*, MS., 7.

[XXVII-60] The cathedral has nothing to recommend it except its two fine towers. It is in a ruinous condition, and though repaired a few years ago and reduced to a single nave, further repairs are loudly called for. This building as well as the cabildo face the main plaza.

[XXVII-61] Efforts have been made in late years by the state government for the construction of an aqueduct; but without success. *Pan., Gaceta*, May 16, 1874; Apr. 9, 30, 1876; *Pan. Star and Herald*, May 19, 1874; Feb. 14, Apr. 13, 1876.

[XXVII-62] The following are among the authorities giving more or less detailed descriptions of the city of Panamá: *Cash's Sketch*, 54-61, 29-71; *Bidwell's Pan.*, 1-9, 75-7, 119-35, 341-8; *Beechy's Voy.*, i. 11-17, 23-4; *Scarlett's South Am.*, ii. 189-211, 221-9, 254-69; *Seemann's Narr.*, 84-8, 275-95, 289-94; *Wilson's*

Trav. in Cal., 9-10, 17-19; *Wortley's Trav.*, 320-2; *Scherzer, Narr.*, ii. 424-5; *Pim's Gate*, 209-20.

[XXVII-63] *Gisborne's Darien*, 160-70, 205-9; *Otis' Isth. Pan.*, 70-127; *Harper's Mag.*, xvii. 19-28, 32-9; *Tomes' Pan.*, 40-66. The following contain descriptions of other places as well as of the transit between the two seas: *London Geog. Soc. Jour.*, i. 69-101; xxiii., 184; *Niles' Reg.*, xxxviii. 141; *Reichardt, Cent. Am.*, 201-2; *Willey's Person. Mem.*, 37-8; *Masset's Exper. of a '49er*, MS., 1; *Lachapelle's Raousset-Boulbon*, 43-7; *Champagnac, Voyageur*, 175-6; *Froebel, Aus Amerika*, 211-31; *Nic., Cor. Ist.*, May 30, 1850; *Marryatt's Mountains*, 1-17; *Holinski, La Californie*, 45-61; *Rouhaud, Reg. Nouvelles*, 167; *Nouv. Annales des Voy.*, cxxiii. 220-2, 226-7; cxlv. 17-22; cxlvii. 15-17; *Polynesian*, v. 29; vi. 121; *Thornton's Or. and Cal.*, ii. 348-54; *Oswald Cal. und Seine*, 87-92; *Kelley's Canal Mantimera*, 27-8; *Auger, Voy. en Cal.*, 35-92; *Saint-Amant*, 25-62, 80-97; *Griswold's Pan.*, 41-7; *Rossi, Souvenirs*, 47-50; *Esguerra, Dicc. Geog. Colombia*, 2-275; *Pan., Gaceta*, Jan. 23, 1881.

[XXVII-64] Department of Pan., including 18,378 in the city, 43,462; Coclé, 33,134; Colon, including 4,000 in that port, 1,057 in Chagres, and 1,319 in Portobello, 8,276; Los Santos, 37,670; Veragua, 36,210; Bocas del Toro, 5,250; Darien, 1,036. *Pan., Mem. Sec. Fomento*, 1882, 43-6. The population at the time the Isthmus seceded from Spain was variously estimated at from 80,000 to 111,550; 1843, 129,697; the census of 1863 yielded 180,000; but it is believed the population was made to appear larger than it really was, so as to gain one more representative in the national congress. The best informed citizens computed it at only 150,000. In 1868, 220,542, authorities keeping the same figures till 1879, excepting one estimate for 1874 reducing it to 174,000. *Humboldt, Pers. Narr.*, vi., pt i. 142; *Seemann's Voy.*, i. 296; *Imray's Sail. Dir.*, 14; *Bidwell's Isth. Pan.*, 178-80; *Pan. Star and Herald*, Feb. 18, 1868; *Mex. Soc. Geog. Boletin*, 3d ép. i. 728; *Colombia, Diario Ofic.*, Sept. 6, 1872; Aug. 4, 1874; March 1, 1876; *Esguerra, Dicc. Geog. Colomb.*, 171.

[XXVII-65] *Veraguas, Decr. de la Cám.; Id., Notas Ofic.; Id., Ordenanzas*, 1853; *Chiriquí, Corresp. Gob. Nac.*, 1851; *Id., Ofic. del Gob.; Id., Comp. de Fomento*, 1855; all in *Pinart, Pan. Coll. Doc.*, MSS., nos. 63, 65, 69, p. 25-7, no. 39, 4-9, no. 88, p. 22, no. 40, 1-4; besides other doc. in the same Coll., no. 31, p. 40-1, nos. 49, 50, 52, 103; *U. S. Gov. Doc.*, H. Ex. Doc. 41, Cong. 36,

Sess. 2, vi. 55; *El Noticioso del Istmo Am.*, in the *Californian*, S. F., ii., June 12, 1847.

[XXVII-66] For their dwelling-places I refer to *Native Races of the Pac. States*, i. 795-7, this series.

[XXVII-67] In 1835. *Veraguas, Dec. de la Cám.*, in *Pin., Pan. Col. Doc.*, MS., no. 57, 17-22; *Id., Informe*, in *Id.*, MS., no. 78.

[XXVII-68] Their chief at times visited the British consul at Panamá, but never agreed to his returning the visit at their homes. *Seemann's Voy.*, i. 321. Neither would they accept presents from any white person. One of their chiefs who accepted a present was degraded by his tribe, and the present was sent back. *Bidwell's Isth. Pan.*, 36.

[XXVII-69] Many persons were killed by the Bayanos in Oct. 1870; and their hostilities were repeated in 1874. *Pan., Gaceta*, Nov. 10, 1870; Dec. 23, 1873; Apr. 14, 1874; *Id., Star and Herald*, Feb. 17, March 12, 1874; *Id., Informe Sec. Est.*, 1874, 18-19.

[XXVII-70] The lower classes are improvident and fond of dress and finery.

[XXVII-71] Low dresses without sleeves, and with lace trimmings on the bust.

[XXVII-72] There are many of them given to gossiping and propagating scandalous reports even about their friends. Politics and the bottle have in late years debauched many a fine young man, the vice of drunkenness of late gaining ground.

[XXVII-73] There are associations of various kinds, including secret ones, like the masonic, of which there are several lodges, with many native Panamanians among their members. The natives still observe the custom of long mournings as of old. In a community where families are more or less connected by ties of blood or marriage, the result is that mourning often seems to be the common dress.

[XXVII-74] Details in *Constitucional del Istmo*, Nov. 21, 1832; *Colegio de Pan.*, *Decreto*, 1-2; *El Movimiento*, Dec. 1, 1844; *N. Granada, Gaceta*, Feb. 22, 1846; *Bogotá, Gac. Ofic.*, Feb. 6, 1848; *Chiriquí, Decretos*, MS., 1849; *Pan., Crón. Ofic.*,

Nov. 9, 1849, to March 1, 1854, passim; *Chiriquí, Inf. del Gob.*, MSS., 1851-2; *Pan., Gaceta Extraord.*, Dec. 23, 1857; March 30, 1858.

[XXVII-75] In 1869 there were no public primary schools in the state. Parents with means had teachers at home, or sent their children to the few private schools then existing, to Bogotá, the national capital, or abroad. Children of poor parents had to grow in utter ignorance.

[XXVII-76] In 1874 there were in the state 17 primary schools with 1,065 pupils. The numbers steadily increased till 1882, when the schools were 59 and the pupils 2,167. There were appropriated for supporting the schools in 1873 \$14,191, and every year after there was an increase; the amount allowed in 1882 being \$33,310, and in 1883 \$63,962, the govt now becoming alive to the fact that the funds formerly supplied were insufficient, as appeared in the report of the educational bureau on Nov. 15, 1881. *Pan., El Elector*, May 1, 1883; *Pan., Inf. Sec. Est.*, 1866; *Id., Mensaje*, 1872; *Id., Mem. Sec. Est.*, 1876; *Id., Informe Direct. Gen. Instruc. Púb.*, 1877-80; *Id., Leyes*, 1876-7, 26-32; *Id., Mem. Sec. Gob.*, 1877; *Id., Min. Sec. Gob.*, 1879; *Pan., Boletin Ofic.*, May 28, 1863, to Sept. 8, 1869, passim; *Id., Gaceta*, July 28, 1870, to Feb. 20, 1881, passim; *Colombia, Diario Ofic.*, Feb. 18, Aug. 14, 1874; Jan. 27, March 2, 1876.

[XXVII-77] It began its existence as the *Panamá Star*, a very small sheet, in 1849; now it has eight large pages. *S. F. Times*, March 13, 1869; *S. F. Alta*, March 13, 1869; *Pan. Star and Herald*, Jan. 11, 1886.

[XXVII-78] I have had occasion to quote both publications repeatedly on narrating events on the Isthmus and in Central America.

[XXVII-79] The bull is led by a rope into the most public streets. A number of men challenge the brute, which occasionally rushes at its tormentors; but as the rope holds it, only by a rare chance is any one hurt. The bull is thus worried by the men-brutes till it is ready to drop.

[XXVII-80] Games of chance and night orgies having become prevalent, in 1878 a heavy tax was levied on gambling-houses, and a severe decree issued to check orgies and brawls. *Pan., Gaceta*, Jan. 31, Aug. 15, 1878.

[XXVII-81] The following authorities have spoken of the manners and customs of the Isthmus, and character of its people at different periods from 1845 to late years: *Macgregor's Progress of Am.*, i. 820-34; *Seemann's Narr.*, i. 140-1, 299-310, passim; *Oliveira*, in *Nouv. Ann. Voy.*, cxxiii., 216-27; *McCollum's Cal.*, 16-26; *Worthy's Trav.*, 335-6; *Johnson's Sights*, 11-87; *Foote's Recoll.*, 135-47; *Merrill's Statem.*, MS., i.; *Fremont's Am. Trav.*, 57-65, 166-7; *Griswold's Isth.*, 130-68, 179-80; *Gisborne's Darien*, 170-216, pass.; *Delano's Chips*, 80-92; *Helper's Land of Gold*, 209-23; *Mollhausen's Diary*, ii. 374-9; *Harper's Mag.*, xix. 433, 437-54; *Trollope's W. Ind.*, 240, 248-50; *Pim's Gate of the Pac.*, 210-14; *Gazlay's Pac. Monthly*, i. 17-30; *Baxley's What I Saw*, 30-45; *China Route, Sketch of New*, 54-74; *Gordon's Guide*, 14-15; *Eardley-Wilmot's Our Jour.*, 66-71; *Pan. Star and Herald*, Feb. 7, 1875.

[XXVII-82] In 1840 small-pox prevailed in Chagres among the natives; foreigners, being mostly vaccinated, escaped unscathed. It visited the Isthmus again as an epidemic in 1863, 1880, and 1881, with great ravages each time, owing to neglect of the common rules of hygiene, or aversion of the lower classes to vaccination. *Niles' Reg.*, lix. 17; *Bidwell's Isth. Pan.*, 222-3; *Cash's Sketch*, 62-3; *Pan.*, *Gaceta*, March 14, Aug. 1, Oct. 17, 1880; Sept. 22, 1881; *El Coclesano*, Aug. 5, 20, 1881; *S. F. Bulletin*, July 16, 1881.

[XXVII-83] The Isthmus seems to have been spared on its first visit to Am. in 1832-4. *Pan.*, *Doc. Ofic.*, in *Pinart, Col. Doc.*, MS., no. 31, 41-4.

[XXVII-84] The havoc, however, was greater among transient foreigners and the native colored population. *Maldonado, Asuntos Polít. Pan.*, MS., 7-8. It was most virulent from Jan. to July 1849. There were cases nearly to the end of 1850. *Williams' Statem.*, MS., 2; *Willey's Pers. Mem.*, MS., 48-53; *Roach's Statem.*, MS., 1; *Cannon's Statem.*, MS., 1; *S. F. News*, Nov. 8, 1850. Chiriquí escaped the infliction by the timely establishment of a rigorous quarantine against Pan. *Chiriquí, Dec. Gobern.*, in *Pinart, Pan. Col. Doc.*, MS., 89, 2-5, 25; *Veraguas, Dec.*, in *Id.*, MS., nos. 70-2.

[XXVII-85] If we except Colon, Chagres, and Portobello, the climate is healthy. Men abstaining from the abuse of alcoholic drinks, and observing the common rules of hygiene, need not be apprehensive of the climate.

[XXVII-86] The symptoms were cramps, severe pain in the spine, vomiting, and fever, followed by loss of consciousness. The attack generally lasted several days.

[XXVII-87] *Pan., Gaceta*, Oct. 11, 1877; Apr. 29, 1880.

[XXVII-88] There was, however, a private hospital, mainly supported by the French and Italians, where sick foreigners found good attendance. Many a life has been saved in it.

[XXVII-89] Four disastrous conflagrations visited the present city of Panamá prior to 1825; namely, in 1737, 1756, 1781, and 1821, the first being the work of incendiaries from Guat. *Seemann's Voy.*, 288. Chagres was nearly all burned down Dec. 9, 1847. *Polynesian*, in *S. F. Californian*, iii. no. 4, Aug. 14, 1848. Gorgona was ruined in 1851. Panamá had property destroyed in 1856 valued at half a million dollars. Colon was afflicted in 1863 and 1868, and finally ruined by the incendiaries Prestan and others in 1885. Panamá had three great conflagrations; viz., June 5, 1870, Feb. 19, 1874, and March 6, 1878. The loss of property in the three probably exceeded four million dollars. *Pan., Merc. Chronicle*, March 29, 1868; *Nic., Gaceta*, Feb. 7, 1863; Apr. 25, 1868; June, 1870; *Id., Boletin Ofic.*, June 18, Dec. 25, 1870; *Jülfs, Die Seehäfen*, 3; *S. F. Chronicle*, June 21, 30, 1870; March 10, 1878; *S. F. Alta*, July 1, 1870; Feb. 28, March 9, 1874; *S. F. Call*, June 9, 1870; March 9, 1874; Apr. 2, 1878; *Pan. Star and Herald*, Feb. 21, 24, 1874; *Pan., Gaceta*, July 10, 1874; March 17 to July 1, Dec. 15, 1878; *Colombia, Diario Ofic.*, May 30, 1874, p. 1749; *S. F. Post*, Feb. 28, 1874; March 8, 1878.

[XXVIII-1] Being an estimated increase since 1877 of 245,847. *Salv., Gaceta Ofic.*, Dec. 4, 1877. The population was computed in 1810 at different figures, none reliable. The one deemed most accurate was as follows: 646,666 Indians, 313,334 mulattoes and some negroes, 40,000 whites, making a total of 1,000,000, probably including 100,000 for Chiapas. *Guat., Apuntam.*, 105, 110; *Salv., Diario Ofic.*, July 2, 1879; *Lastarría*, in *La América*, 445; *Baily's Cent. Am.*, 28, 32; *Nouv. Annales des Voy.*, iv. 1820, 36; *Ocios de Esp. Emig.*, v. 2. In 1823 the whole was set down at 1,600,000. *Humboldt's Pers. Narr.*, vi. pt 1, 127, 131. Marure computed it in 1824, giving Costa R. 70,000, *Nic.* 207,269, *Salv.* 212,573, *Hond.* 137,069, and *Guat.* 660,580; total, 1,287,491. *Bosq. Hist. Cent. Am.*, 148, and app. no. 6. G. A. Thompson, Brit. commissioner to Cent. Am., in 1823 estimated

2,000,000 in the following proportions: one fifth of whites, two fifths of mixed classes, and two fifths of Indians. *Narr. Official Visit*, 451. Galindo, an intelligent officer of the Cent. Am. govt, about 1837 set the population at 685,000 Ind., 740,000 ladinos or mestizos, and 475,000 whites; total, 1,900,000. He evidently overestimated the number of whites. Crowe, *Gospel*, 40, referring specifically to Guat., estimated the number of pure whites at not over 5,000, which seems to be short of the truth. The proportions he gave were: Indians, three fifths; ladinos or mestizos, one fourth; whites, one fortieth; mulattoes, one eighty-third; negroes, one fiftieth; zambos, one hundredth. It is unnecessary to burden this note with figures for each year after 1837. I will merely append those for 1866, given by a writer who must have got his data from reliable sources: Costa R., 150,000, mostly white, and including from 5,000 to 10,000 Talamanca Indians. According to a Costa Rica census, there were in the republic in 1864 112 persons of 90 years and upwards; of whom 14 were of 100, 4 of 102, one of 103, one of 104, one of 111, one of 117, one of 118, and one of 122. The majority of cases of great longevity were of women. *Costa R., Censo*, 100-3. Nic., 380,000, of whom 80,000 pure Indians, 30,000 whites, 30,000 negroes, and the rest of mixed breeds, the mestizos of white and Indian predominating on the Pac. coast, and the zambos, or mixture of negro and Indian, on the Atlantic; there were probably 30,000 in Mosquitia; Salv., 750,000; Hond., 300,000; Guat., 1,219,500. *Laferrière, De Paris á Guatém.*, 47, 71, 93, 189, 251; *Pim's Gate of the Pac.*, 37, 75. Other publications treating of the subject from time to time: *Costa R., Boletin Ofic.*, Feb. 9, March 30, 1854; *Id., Gaceta*, July 15, 1854; *Id., Mem. Sec. Interior*, 1860 and 1861; *Id., Informe Gobern.*, 1868 and 1874; *Id., Censo*, 1864; *Id., Col. Ley.*, xxxii. 250-2; *Squier's Cent. Am.*, 21, 45-57, 279, 348, 449, 465, 648-9; *Id., Travels*, i. 32-3; *Molina, Bosq. Costa R.*, 28-9; *Belly, Nic.*, i. 138-42, 249-54; *Rocha, Cód. Nic.*, i. 185-6; *Nic., Registro Ofic.*, 270, 312, 316, 382; *Id., Boletin Ofic.*, March to Aug. 1862, pass.; *Id., Gaceta*, Jan. 1863 to Apr. 11, 1874, pass.; *Lévy, Nic.*, 234 et seq.; *Salv., Gaceta*, Jan. 26 to Nov. 18, 1850; Feb. 3, March 3, 1854; Apr. 1, 1876; May 28 to Nov. 28, 1878; May 18 to Nov. 29, 1879; *Crosby's Statem.*, MS., 93; *Wells' Hond.*, 554-7; *Guat., Recop. Ley.*, i. 473; *Guat., Mem. Sec. Fomento*, 1880-5, with tables; and numerous others.

[XXVIII-2] The departments of Guat. having the largest numbers were Totomicapam, 144,312; Guat., 130,581; Huehuetenango, 121,123; Alta Verapaz, 93,407. The rest range

from 76,103 in Lalolá and 75,553 in Quiché, to 31,637 in Jalapa. Peten is put down with 8,297, Izabal with 3,761, and Livingston with 1,471. *Costa R., Gaceta*, July 11, Aug. 13, 1885; *Guat., Mem. Sec. Fomento*, 1884, 40, annex 6; 1885, 43-4, annex 12; *El Guatemalteco*, Jan. 1 to Dec. 5, 1884, pass.; *Pan. Star and Herald*, Feb. 9, 1884; Sept. 30, 1885.

[XXVIII-3] The proportions in 1880 were, white and mixed, men, 183,536, females, 196,292; pure Indians, men, 421,518, females, 423,256. Grand total, 1,224,602. *Guat., Mem. Sec. Fomento*, 1885, annex 12, table 16.

[XXVIII-4] The first law to promote colonization was issued Jan. 22, 1824, by the national constituent assembly of Cent. Am. *Marure, Bosq. Hist. Cent. Am.*, 133, app. xviii.-xxvii.; *Guat., Recop. Ley.*, i. 815-20; *Id., Boletin Ofic.*, June 22, 1835; *Nic., Corr. Ist.*, Aug. 8, 1850; *Hond., Gaceta Ofic.*, March 20, 1854; *Rocha, Cód. Nic.*, i. 42-3, 53; *Baily's Cent. Am.*, 43-5.

[XXVIII-5] Containing upwards of 14,000,000 acres of virgin soil, and affording every climate. *Brief Statem. of the Important Grants Conceded to ... by the State of Guat.*, Lond., 1839; *Guat. Charte de Concession du territ. de Vera Paz*, Bruxelles, 1840, 8vo, 1-34; *Guat., Mem. Concession*, 17-130; *Marure, Efem.*, 38; *Squier's Travels*, i. 422-4; *Id., Compend. Hist. Cent. Am.*, 77-9.

[XXVIII-6] It was first formed out of, or at least originated from, the débris of the Poyais bubble, of which I spoke elsewhere in connection with Mosquitia.

[XXVIII-7] They talked of their ability to spread Brit. influence in the country. They even threatened to sell their charter to some other government.

[XXVIII-8] Details on the subject will be found in *Dunlop's Cent. Am.*, 160, 190-1; *Niles' Reg.*, li. 36; *Reichardt, Cent. Am.*, 39, 238; *Guat., Memoria*, 1837, 17-19; *Id., Comm. and Agric. Co.*, 1-132; *Anderson's Cent. Am.*, 5-93, 97-138.

[XXVIII-9] It stipulated a conditional sale of the lands lying between the left bank of the river Motagua and the right bank of the river Cahabon to where it runs into the Polochic, including all the coast and neighboring islands within these limits; and inland as far as Gualan, and the interior limits of the province of Santo

Tomás. The company was to pay for the computed 8,000 caballerías at the rate of \$20 for each caballería, in ten yearly instalments of \$16,000. It was also to present the Guat. govt 2,000 muskets, similar to those used by the Belgian army, and four large guns; likewise pay one fifth the expense of erecting a city at Santo Tomás, make a cart road to the river Motagua, and introduce steamers for navigating the river. *Guat., Recop. Ley.*, i. 824-38; *Reichardt, Cent. Am.*, 239-43; *Belly, Nic.*, ii. 36-7; *Dunlop's Cent. Am.*, 303-6; *Crowe's Gospel*, 169-70; *Amerique Cent. Cie. Belge*, pt i. 5-64, pt ii. 110-13; *Valois, Mexique*, 438-42; *Claquet, Rapport S. Tomás*, 7-9; *Cuelebrouk, Blondeel van, Colonie de Santo Tomas*, 1-240 pp., with maps and plans; *Laferrière, De Paris á Guatém.*, 250-1; *Brouez, Colonie Belge*, 103-29.

[XXVIII-10] With a few exceptions, however, they were to be governed by their own laws, and were, besides, to enjoy a number of exemptions. The custom-house of Izabal was to be removed to Santo Tomás.

[XXVIII-11] The grants were repealed in April 1854. *Guat., Recop. Ley.*, i. 838-9; *Belize, Packet Intelligencer*, June 17, 1854; *Squier's Cent. Am.*, 512-13; *Payne's Hist. Europ. Colonies*, 327; *Crosby's Statem.*, MS., 98.

[XXVIII-12] See laws and decrees of Feb. 29, 1868, Oct. 2, 1873, Aug. 19, 1878, June 27, 1884, and a decree of Presid. Barillas in 1885; also official correspond with the U. S. govt. *Guat., Recop. Ley.*, i. 841-5; *Id., Id., Gob. Democ.*, i. 197-8; *Nic., Gaceta*, Apr. 18, 1868; *S. F. Times*, May 9, 1868; *Mex., Diario Ofic.*, Sept. 18, 1878; *Manero, Doc. Interes.*, 105-6; *U. S. Govt Doc.*, Cong. 42, Sess. 2, H. Ex. Doc. 1 (For. Rel.), 542-3; *El Guatemalteco*, June 30, 1884; *S. F. Bulletin*, June 15, 1885.

[XXVIII-13] Cultivating one half, and becoming a citizen, provided he had not been imprisoned meanwhile for crime. The concession involved several other facilities, and privileges. *Guat., Mem. Sec. Fomento*, 1884, 7-8; *Pan. Star and Herald*, July 23, 1883.

[XXVIII-14] On the ground that a large number of English-speaking negroes thus introduced could never become assimilated with their already mixed population, and would soon create a balance of power in their hands, as against the remainder of the population. The rulers saw in the plan danger to their

institutions and customs. *U. S. Govt Docs.*, Cong. 35, Sess. 2, Sen. Miscel. Doc., 26; *Foreign Affairs*, 1862, 881-4, 897-910; *Crosby's Statem. of Events in Cal.*, MS., 95-100; *Pim's Gate of the Pac.*, 138-46.

[XXVIII-15] *Squier's Cent. Am.*, 275-6; *Squier's Hond.*, 267-78; *Nic., Gaceta*, Sept. 21, 1867; Jan. 4, 25, Nov. 14, 1868; *Pan. Star and Herald*, Sept. 17, Dec. 4, 1885.

[XXVIII-16] The government granting 500,000 square varas of land to each family, and specifying the number of families to be settled. It was to guard against improper persons being introduced, that is to say, only those of good moral character and industrious habits, professing the catholic religion, and willing to sever their connection with and throw off the protection of their former nationalities, were to be received. Upon complying with the required conditions, they would be granted the rights of citizenship. *Rocha, Cód. Nic.*, i. 167-8. A number of Prussians, among whom were several families, arrived in September 1846 on the brig *Frisch* at San Juan del Norte, desiring to settle in the country. The government tendered them facilities to settle in the interior, provided they would first relinquish their allegiance to Prussia. Only six men remained; the rest went away. *Nic., Boletín Ofic.*, 345-6, 367. In 1851 it was contemplated to establish, under liberal grants, a French colony in Nic.; but it was not carried out. *Dupuy, Nic.*, 8-27.

[XXVIII-17] Congress on Feb. 13, 1862, declared the former null and void, and refused to sanction the latter. *Rocha, Cód. Nic.*, i. 187; *Nic., Boletín Ofic.*, March 1, 1862.

[XXVIII-18] The deed of full ownership was to be executed six months after the immigrant's arrival. He was also exempted from import dues on everything he brought to enable him to settle. Fabens, Walker's friend, was named director of colonization. *Perez, Mem.*, 7; *El Nicaragüense*, Jan. 5, 1856; *Wells' Walker's Exped.*, 106-11; *Nic., Boletín Ofic.*, Apr. 16, 1856.

[XXVIII-19] The govt declared it null in 1866. *La Union de Nic.*, May 18, 1861; *Nic., Decretos*, 1865-6, 74-5.

[XXVIII-20] The govt has not ceased to promote immigration. In 1873 concessions were made to the colony in Gattel Valley, and in 1878 efforts were made to bring colonists from Alsace-Lorraine. *Nic., Gaceta*, Feb. 11, 1865; Apr. 6, Aug.

24, 1867; *El Porvenir de Nic.*, Apr. 13, Aug. 3, 1873; *Salv., Diario Ofic.*, Dec. 12, 1878.

[XXVIII-21] It has refrained from introducing the African element, though men of that race can alone be advantageously employed in her low-lying hot region. The immigration of Chinese has been prohibited as injurious. *Bates' Cent. Am.*, 140; *Costa R., Informe Sec. Hac.*, 1875, 7-8.

[XXVIII-22] With the same civil and political rights enjoyed by natives. Those desiring to retain their nationality are equally protected, and are exempted from military service and extraordinary taxation. They may freely dispose of their property, which at their death goes to their legal heir, whether by will or ab intestato. *Costa R., Col. Ley.*, v. 114-16; *Molina, Bosq. Costa R.*, 44.

[XXVIII-23] They were exempted from imposts for 15 years.

[XXVIII-24] The settlement was effected where there were no ready means to procure supplies, or to dispose of products without great trouble and expense. Besides, the settlers were unfamiliar with tropical agriculture.

[XXVIII-25] Nineteen died at San José. One was killed by a tiger on the way there, and his remains, with those of his wife and child, were buried under the evergreens of San Miguel; the rest went up the Sesapiqui River, where 9 were soon after put under the sod; 9 died at Miravalles, and 4 at Alajuela.

[XXVIII-26] Concession to Sir Henry Bulwer. *Costa R., Boletin Ofic.*, July 20, 1854.

[XXVIII-27] The grant covered 54 square miles in the Reventazon Valley, between Cartago and the Atlantic Ocean; the company were to settle 7,000 adult colonists within 20 years. An additional absolute concession of 32 acres for each colonist was also made. But the principal grant was to be forfeited if the main condition was not fulfilled. *Bülow, Nic.*, 124-39; *Costa R., Boletin Ofic.*, March 9, 1854; *Calvo, Memoria*, 8; *Costa R., Mem. Sec. Rel.*, 1851, 7-8; 1854, 8; *Id.*, *Informe Gobern. y Rel.*, 1853, 13-14; *Id.*, *Doc. Soc. Itin.*, 1-102; *Wagner, Costa R.*, 181-3, 332-5; *Marr, Cent. Am.*, ii. 172-3, 179-81, 218-19, 228-9.

[XXVIII-28] Each family was to have 10 acres, a temporary dwelling, provisions for six months, the use of a cow and ox for

one year, all for \$80, reimbursable in equal annual instalments during 10 years. *Wagner, Costa R.*, 250-6, 473-93.

[XXVIII-29] Further details on the subject may be found in *Squier's Cent. Am.*, 462, 473-80; *Belly, Nic.*, i. 355-6; *Reichardt, Nic.*, 245-8, 290-6, ix.-xiv.; *Molina, Bosq. Costa R.*, 126; *Id., Coup d'œil Costa R.*, 30-3; *Id., Der Freistaat Costa R.*, 67-83.

[XXVIII-30] That same year the colonization of Golfo Dulce was contemplated. *El Nicaragüense*, July 19, 1856; *Lafond, Golfo Dulce*.

[XXVIII-31] *Costa R., Col. Ley.*, xv. 176-9.

[XXVIII-32] In 1878 with Barreto to introduce Canary Islanders, and in 1881 with Perera. *Voz de Méj.*, Aug. 30, 1878; *Mex., Diario Ofic.*, Sept. 2, 1878; *Costa R., Col. Ley.*, 1881, 94-8.

[XXVIII-33] Mestizo is the offspring of white and Indian; mulatto of white and black; quadroon of white and mulatto; octoroon of white and quadroon; zambo is an offspring of Indian and negro, more extended intermixtures are given elsewhere.

[XXVIII-34] For examples, in *Nic.*, Gen. Corral, Walker's victim, Gregorio Juarez and Rosalío Cortez, ministers of state, were mulattoes. Anselmo Rivas, also a minister, resembled an Abyssinian; Fruto Chamorro, the conservative president, showed evidences of many mixtures. *Belly, Nic.*, i. 255.

[XXVIII-35] The whites in their social intercourse maintain a certain exclusion, but in other respects equality prevails. Knowing their numerical inferiority, they have followed the policy of concession. *Squier's Travels*, i. 268.

[XXVIII-36] According to Trollope, pure Spanish blood is an exception. He thinks there must be a great admixture of Indian blood with it. The gen. color is that of a white man, but of a very swarthy one. *W. Ind. and the Sp. Main.*, 275.

[XXVIII-37] *Belly, Nic.*, ii. 132. Trollope, *West Ind.*, 275-6, speaks disparagingly of Costa Rican women's personal appearance. Another Englishman treats them with more gallantry: 'Blonde hair, gray eyes, and red cheeks are rare in no class; and many a pretty face may be seen on market-day, scarcely darker or

more Spanish-looking than a west-country girl's. *Boyle's Ride Across a Continent*, 225.

[XXVIII-38] Being a compact population, and constantly thrown into the company of one another through family or business relations, a certain fraternity became established, and the practice obtained of calling each other hermano and hermanitico at every meeting. *Astaburuaga, Cent. Am.*, 52-3. Owing to that practice, the Costa Ricans have been nicknamed hermaniticos.

[XXVIII-39] That is to say, they are not given to stealing or barefaced cheating; but at a bargain they will take all the advantage they can; and if a lie will help, their conscience is elastic enough to use it. In this they are neither better nor worse than other nations claiming a high standard of honesty. Their sense of morality, in sex relations, is not what it should be. Divorces and separations are common, and concubinage quite prevalent. The superintendent of the census for 1864 recorded '1,200 separados de hecho, quienes sin equivocarme puedo decir que viven en concubinato, sin contar la frecuencia de este entre solteros y solteras.' *Costa R., Censo*, 1864, xxv.

[XXVIII-40] They dislike wasting their resources in wars or war material, preferring the arts of peace, and to welcome those bringing them wealth from other countries. *Lafferrière, De Paris à Guatémala*, 45-6, 57.

[XXVIII-41] A large number of houses in Cent. Am. are made with tapial, which is common earth put moist into boxes of the dimensions of the walls, and beaten with mallets. Another sort of building is made by driving a number of poles into the ground at a yard or two from each other, to which long canes are tied, the space between the canes being filled up with mud, or with mud and stones. When dry, the outside is plastered over with mortar. The houses are protected by projecting roofs. There are likewise many houses built with thick adobe walls, covered with concave tiles.

[XXVIII-42] Dirty and slovenly. *Trollope's W. Ind.*, 260, 268. The only articles of furniture in them are a hammock, a table, a

bedstead without mattress, and two or three of the commonest wooden chairs.

[XXVIII-43] *Belly, Nic.*, i. 367-8.

[XXVIII-44] Hence the constant use of emetics, castor oil, soda purgante or refrescante, rhubarb, quinine, sarsaparilla, and florida water, which are looked upon as universal panaceas. *Laferrière, De Paris à Guatém.*, 57. The large revenue derived by the government from the monopoly of the sale of spirituous liquors shows how great must be the consumption. *Boyle's Ride Across a Continent*, ii. 225.

[XXVIII-45] The Indians are never found in the cities. *Laferrière, De Paris à Guatém.*, 42-4.

[XXVIII-46] Belly speaks of the great variety and abundance of commodities exhibited in the market on such days. Cacao nibs were used as small change. The sales of one Saturday that he visited the market exceeded \$100,000. *Nic.*, i. 392.

[XXVIII-47] Some of these rebozos are of silk, made in San Salvador, and sold in Costa Rica at \$18 or \$20 apiece.

[XXVIII-48] All classes seem to be given to the vice. At the club a minister of state or some other high functionary presides over the faro-bank. *Boyle's Ride*, 226.

[XXVIII-49] There is a good deal of heresy and infidelity exhibited by the higher class; but the poor people are very devout.

[XXVIII-50] A favorite amusement of all Cent. Am. *Laferrière, De Paris à Guatém.*, 56-7; *Reichardt, Nic.*, 123-5. In connection with the manners and customs of Costa Ricans, see also *Frisch, Staaten von Mex.*, 88; *Wagner, Costa R.*, 170-8, 189-92, 194.

[XXVIII-51] The native women when carrying a jar of water on their heads present the sculptural profiles of caryatides. *Belly, Nic.*, i. 198. Beautifully moulded and unobtrusive in their manners; kind and hospitable to strangers. *Squier's Travels*, i. 284, 294.

[XXVIII-52] The women are not well educated; but they are simple and unaffected, quick of apprehension, and ready at good-

natured repartee. *Id.*, 269.

[XXVIII-53] Cemeteries being generally in bad condition. Squier has it that the priests have perpetuated the practice, because they derive a considerable fee from each burial. *Travels*, i. 383-4.

[XXVIII-54] 'The aristocracy keeps the shops, and there it dozes;... the lower orders keep the plaza, and there they doze.' *Boyle's Ride Across a Continent*, 102.

[XXVIII-55] Belly, *Nic.*, 217, speaking of those of mixed blood, says they are the victims of traditional indolence, and of the absence of moral light rather than of actual depravity. The nearer to the pure Indian type, the more reliable and faithful they are. Stout, *Nic.*, 118, says that the Nicaraguans are possessed of many virtues.

[XXVIII-56] Such offences which in other countries would be indelible blots, throwing their authors out of the company of honorable people, are after a while overlooked, and the perpetrators reinstated in society. *Lévy, Nic.*, 275.

[XXVIII-57] The waistcoat and cravat are often dispensed with. Gloves are rarely worn. Loud colors, with large chains and trinkets are too often displayed.

[XXVIII-58] The ordinary saddle or albarda is a cheap affair and uncomfortable. There are horses of an easy amble, which are quite rapid and yet gentle. *Squier's Travels*, i. 157; ii. 91.

[XXVIII-59] *Lévy, Nic.*, 272; *Belly, Nic.*, i. 198; *Wells' Explor.*, 74-5. The people generally are clean in their persons except when travelling, or when ill, and in the latter case the touch of water is prohibited. *Squier's Travels*, 59, 153-4, 269, 271, 289.

[XXVIII-60] For a hot climate the adobe, warm in winter and cool in summer, is not to be surpassed as a dwelling. In the courts are shade trees, making the corridors upon which all the rooms open exceedingly pleasant. *Id.*, i. 33-4; *Id., Cent. Am.*, 365; *Id., Nic.*, 649; *Stout's Nic.*, 38, 62-4, 66. Doors and windows are wide. The windows have no glass, being enclosed on the outside with an iron railing constructed sometimes like a balcony. The floors are of soft brick. The roof, sloping considerably, is of

concave tiles. The yard often has a flower garden, or is used for raising poultry, or maybe pigs.

[XXVIII-61] Kitchen, laundry, stables, etc., are at the end of the yard, or when possible, in a separate yard.

[XXVIII-62] In late years some foreign furniture has been imported. Most parlors are furnished as follows: Chairs with leather seats, easy chairs of the same, mostly rockers. In houses of the wealthy is a round or oval centre-table, and other tables fitting into the corners, and possibly a piano, a hanging lamp, and small mirrors, together with framed lithographs or paintings hanging on the walls. The bedrooms have similar chairs, a hammock, and a bed of rawhide extended and nailed to a wooden frame, supported by four legs. At each end rises a pillar to sustain a sort of awning which covers the whole bed, and answers also for a mosquito net. The appurtenances of the bed are a mat, sheets, and pillows. No mattresses are ever used. Some persons prefer a common cot. *Levy, Nic.*, 262-7; *Belly, Nic.*, 197.

[XXVIII-63] In some places coyol oil or lard in tin lamps are used, with or without a glass chimney. In Segovia the people often have no other light than that emitted by a burning piece of resinous pine.

[XXVIII-64] Quite simple. *Squier's Travels*, 120, 272-5. Breakfast invariably comprises eggs, roast meat, beans, and cheese, to which other dishes may be added or not; finishing with chocolate or coffee, the former mixed with roasted corn, and the latter with milk. The dinner consists of soup, boiled meat and greens, followed by a stew of beef, pork, fish, or fowl, with some vegetables, and dessert in the form of a variety of dulces. Rice is as necessary at dinner as beans at breakfast. Between breakfast and dinner, fruits or some cooling beverage are partaken of. Supper is a frugal meal, accompanied with chocolate, or tiste, which is the national beverage of Nic.—a mixture of cacao, and ground roasted corn, beaten in cold water with sugar. Wheaten bread is made of imported flour; but it is too expensive for general use, and is generally sweetened. The tortilla of Nic. is larger, thicker, and of coarser dough than in other parts. In many places it is considered 'artículo de lujo,' and instead of it, boiled or roasted green plantains are used. Wine is rarely brought into requisition. The only fermented liquor in common use is the aguardiente distilled from molasses, which only the lower classes drink, and not to excess. The poorer classes are very irregular in

their eating, for they eat at all hours; living mostly on plantains, beans, cheese, and chicharrones and other fat portions of pork. Fruit in superabundance is eaten. *Lévy, Nic.*, 267-72; *Stout's Nic.*, 130-2; *Squier's Travels*, i. 271.

[XXVIII-65] The govt has at the capital a fine military band, which gives public concerts in the open air twice a week. The marimba and old Spanish guitar are much used. Occasionally a Spanish dramatic or zarzuela company, or a troupe of acrobats or other artists, visit the country.

[XXVIII-66] In Leon some of the élite do not frequent the place, but they, not excepting the priests, practise it in their corridors. Little parties are got up of afternoons to have chicken-fights, and at times large sums change hands.

[XXVIII-67] Govt has from time to time passed laws to prohibit gaming. *Rocha, Cód. Nic.*, ii. 81-3; *La Union de Nic.*, March 9, 1861; *Nic., Gaceta*, Jan. 15, 1870; *Pan. Star and Herald*, March 20, 1886.

[XXVIII-68] Occasionally those who take part in the dangerous amusement receive fatal injuries. *Lévy, Nic.*, 288-94; *Squier's Travels*, i. 331-3. The following authorities also treat of the character, and manners, and customs of the Nicaraguans. *Reichardt, Nic.*, 80-1, 88-90, 102-25; *Heine, Wanderbilder*, 96-107, 187-204, passim; *De Bow's Rev.*, xiii. 236-58; *Wells' Walker's Exped.*, 44-79, 84-5, 106-7, 241-2, 422.

[XXVIII-69] 'Whatever may be the future history of Cent. Am., its most important part, in all that requires intelligence, activity, concentration, and force, will be performed by San Salvador.' *Squier's Cent. Am.*, 315.

[XXVIII-70] Aboriginal names of places have been generally preserved; and there are a few towns, exclusively inhabited by Indians, who use their own language among themselves. *Squier's Cent. Am.*, 318-23.

[XXVIII-71] About 50 miles in length, and 20 to 25 miles in breadth, lying between La Libertad and Acajutla.

[XXVIII-72] Nevertheless, in business transactions he is indisposed to trust others.

[XXVIII-73] This garment is elaborately but rudely embroidered about the neck and shoulders with colored thread. It is often laid aside in the country towns. *Montgomery's Narr.*, 98-9; *Squier's Cent. Am.*, 321.

[XXVIII-74] *Laferrière, De Paris à Guatém.*, 211-21.

[XXVIII-75] Upon the death of an infant, all rejoice, dance, and carouse, the parents also taking part, presumably on the belief that it has joined the choir of angels in heaven. If the child is a male one, they paint whiskers and a mustache on its face to make it resemble that of Jesus, and call it a *jesusito*.

[XXIX-1] A large number of the priests are blacks, and they regard with ill-concealed jealousy the advance of Americans in Cent. Am. Every measure of the liberals to promote foreign immigration meets with opposition on the part of the black priests.

[XXIX-2] Lying between the Rio Roman and Cape or Segovia River, an area of some 15,000 square miles.

[XXIX-3] Their ancestors had favored the French in the squabbles with England, and in 1796 were, by order of the British government, transported en masse, to the number of about 5,000, and at heavy expense, to the then deserted island of Roatan, in the bay of Honduras. They were subsequently invited by the Spanish authorities to the mainland; and aided to found settlements near the port of Trujillo. Since then they have rapidly increased, extending themselves both to the eastward and westward of that port. *Squier's Cent. Am.*, 232.

[XXIX-4] The black Caribs are represented as tall and stout, and more mercurial and vehement than the pure Caribs; the latter are shorter, but powerfully built.

[XXIX-5] Leaving out the dignified and courteous members of the old and wealthy families, the people show a strange mixture of politeness, simplicity, shrewdness, and effrontery, and above all, an indescribably passive indifference of countenance. *Wells' Hond.*, 202-3.

[XXIX-6] It has been said of the Cent. Am. woman, 'she nursed, made tortillas, and died.' *Id.*, 215.

[XXIX-7] The women of this class lead a degraded life. If the man has large means, his mistress has menials under her; if not, she is maid of all work. *Bates' Cent. Am.*, 115.

[XXIX-8] Notwithstanding this lack of education, Cent. Am. women never fail to interest the traveller by the peculiar gentleness and dignity of their demeanor. *Wells' Hond.*, 227-8.

[XXIX-9] 'Sitting at the window in the afternoon and evening to recover from the fatigue of it.' *Id.*, 195.

[XXIX-10] Breakfast bill of fare: boiled rice and beans, salads, bread, butter, cheese, tortillas, coffee and milk, fruit. Dinner: soup, beef, salad, a variety of vegetables. There are other dishes, such as ollas fried with garlic, piccadillo of half-cooked lights, oil, rice, and plantains, baked slices of liver, salchichas or blood puddings with plenty of garlic, catamales filled with bits of fat meat and cheese, boiled meat, broth, etc.; the repast concludes with sweetmeats and coffee. Wines and liquors are generally of poor quality. The rum of the country is the most harmless. Cooking is generally done on an adobe fogon, or range, in a small building behind the dwelling-house. *Id.*, 192-4.

[XXIX-11] The couriers, wearing leathern caites, travel that distance every day, at a gait between a fast walk and a run.

[XXIX-12] Gloves fringed around the cuffs with silver, and a small riding-whip, complete the attire. To ride and dance well are parts of the Central American's education. *Id.*, 201, 227.

[XXIX-13] Religious feasts are common, and the people seem to be close observants of the ceremonies, and yet cannot be said to be as much priest-ridden as other Central Americans.

[XXIX-14] Even manacled prisoners are permitted, under guard, to beg for money to relieve their condition.

[XXIX-15] Good colored servants brought in from abroad soon fall into the indolent habits of the blacks surrounding them. The stranger then finds that his man 'Bob Long has become Don Roberto Longorio.'

[XXIX-16] An official document sets the whole population on the 1st of Jan., 1886, at 1,322,544 souls. *Guat., Mem. Sec. Fomento*, 1886, annex no. 1.

[XXIX-17] Among those traders are a number of European Spaniards, who are every year joined by some of their relations from the old country.

[XXIX-18] Of mild disposition, good natural talents, aptitude for learning, and lively imagination. Hospitality is one of their virtues. *Montgomery's Narr.*, 157-60.

[XXIX-19] Belly, who wrote before the upsetting of the old conservative régime, says: 'Un population que son beau climat sollicite à l'inertie, et qui sort à peine de la plus abominable éducation religieuse et morale que jamais un peuple ait subie.' *A trav. l'Amér. Cent.*, i. 153-4. Laferrière visited the country some years later, and fully confirms the above. *De Paris à Guatém.*, 263.

[XXIX-20] 'Those of the better class will compare well with any people for good morals, discreet conduct, and admirable behavior.' *Min. Hudson's Rept*, in *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 1, i. 446.

[XXIX-21] Most of the women smoke, the elder ones cigars, and the young cigarettes. They do it, however, in a pretty and refined manner. *Stephens' Trav. Cent. Am.*, i. 256.

[XXIX-22] 'A natural roving appetite inclines them to favor and to freely indulge such intercourse.' *Min. Hudson's Rept*, in *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 1, i. 445.

[XXIX-23] Every Ind. village has its own authorities, most of whom are chosen from among the inhabitants.

[XXIX-24] The old system attempted to improve their condition by enacting laws believed to be conducive to that end. Witness clauses of a decree of the constituent assembly of Nov. 8, 1851, giving force to certain laws of 1839, and reviving others of the old Spanish Recop. de Indios, which were intended to prevent the maltreatment of Indians. *Guat., Recop. Ley.*, i. 246, 512-15, 846-53. On the 6th of Sept., 1879, a decree was passed, acknowledging the lamentable condition of ignorance and abjectness the Indian had been kept in, and providing that at least a portion of them should attend the pub. schools already established in nearly all the departments. *Salv., Diario Ofic.*, Sept. 20, 1879.

[XXIX-25] The German writers Scherzer and Von Tempski, and the American Stephens, have occupied themselves with those people. According to them the inhabitants live isolated, and render no service to Guat. They practise a religion which is a mixture of catholic and heathen rites. The only ladinos allowed to live with them are the priest and his attendants.

[XXIX-26] The towns conquered by the Spaniards did not contain all the Lacandones. According to Pinelo, the Lacandones and Manchés were computed, in 1637, at 100,000. This was subsequent to the invasion of their territory by Quiñones. Squier, *Cent. Am.*, 568-72, gives much information on the subject.

[XXIX-27] Now and then a few of them visit the Mexican states of Chiapas, Tabasco, and Campeche to procure tobacco and other things, and suddenly disappear by unknown paths, and never allow strangers to visit them.

[XXIX-28] The eastern Lacandones are tillers of the soil, hunters, and fishermen. Though occasionally baptized by catholic missionaries, and fond of saying prayers, they still adhere to their old heathen worship, and indulge in polygamy. They visit the whites and settled Indians to sell their produce. *Berendt's Explor. in Cent. Am.*, in *Smithsonian Rept*, 1867, 425.

[XXIX-29] Fine and costly tortoise-shell combs were at one time much used. Women wear hats only when riding on horseback. The Guat. female is fond of embroidered articles, costly fans, rich jewelry, and every other finery. There are other women in the world like them.

[XXIX-30] It being starched into stiff folds, it supplied in some measure the place of a jacket.

[XXIX-31] Wealthy women objected to their female servants wearing other than naguas, and would have none that wore shoes.

[XXIX-32] Such places are convenient, though not agreeable, owing to the variety and abundance of fleas, jiggers, etc. *Laferrière, De Paris à Guatém.*, 267; *Stephens' Trav. Cent. Am.*, i. 163-81.

[XXIX-33] In bull-fights they merely worry and torture the animal, but never kill it in presence of the public.

[XXIX-34] The vice is not prevalent among the Indians who live apart in their villages. During the bathing season in Amatitlan, for instance, the time is spent in gambling, and intrigues between the sexes, and among the visitors are always a number of veritable sharpers. The native generally bears his losses with hardly a sign of impatience. *Dunlop's Cent. Am.*, 152-3; *Stephens' Trav. Cent. Am.*, i. 261, 298-301; *Boddam Whetham, Across Cent. Am.*, 136-8.

[XXIX-35] *Barrios, Mensaje*, 1876, 55-6; *Guat., Mem. Sec. Fomento*, 1880, 35-6; 1883, 59-60; 1884, 40-1; 1885, 44-6.

[XXIX-36] *Bates' Cent. Am., etc.*, 110.

[XXIX-37] The fevers of the country are the intermittent, resembling the worst form of fever and ague in the western U. S.; the calentura, which is a type of the same. It is not common in the interior, and yields usually to strong cathartics, followed by quinine, which physicians are wont to administer in heavy doses. *Wells' Hond.*, 547-8. Yellow fever breaks out with more or less virulence some years at the ports, particularly on the Atlantic side; it has occasionally spread to the interior. *Diario de Méx.*, 539-40, 569-71; *Amér. Cent. Cie Belge*, ii. 48-52; *Disturnell's Infl. of Clim.*, 252; *Costa R., Informe Sec. Gobern.*, 1869, 15; *Nic., Gaceta*, May 9 to Aug. 8, 1868; *Laferrière, De Paris à Guatém.*, 47-8, and table 444 B. Measles and scarlet fever have also made their appearance epidemically, destroying many lives. *Salv., El Siglo*, May 28 to Aug. 14, 1851; *Id., Diario Ofic.*, July 31, 1875; *Costa R., Mem. Sec. Guerra, etc.*, 1867, doc. D, 31.

[XXIX-38] *Nic.* adopted timely precautions to escape it, by having the people vaccinated. *Nic., Boletin Ofic.*, Aug. 2, 1862.

[XXIX-39] *Rocha, Cód. Nic.*, ii. 165; *Costa R., Mem. Min. Gobern.*, 1852-3; *Id.*, 1884, annex A.

[XXIX-40] Elephantiasis is not common, but occasionally found in the upland regions. Only one leg is stricken; the swelling often reaches above the knee. It is considered incurable and fatal. *Costa R., Informe Sec. Interior*, 1864, 9-10; *Nic., Informe Min. Gobern.*, 1871, 7; *Guat., Recop. Ley., Gob. Democ.*, ii. 21; *Wells' Hond.*, 548.

[XXIX-41] *Journ. of a Voy., in Am. Register*, iii. 147; *Soc. Mex. Geog., Bol.*, viii. 507; *Costa R., Col. Ley.*, xxiii. 259-63; *Id.*,

Mem. Sec. Gobern., 1884, 99-100.

[XXIX-42] But few cases appeared in Hond. down to 1856. *Wells' Hond.*, 549. A malady presenting some of the symptoms of cholera did considerable havoc in Costa R. in 1845, and it was apprehended that it might degenerate into the Asiatic type, but it fortunately did not. In the same state the government, to ward off an expected invasion of the disease on the 9th of Feb., 1849, established a strict quarantine, which was raised on the 9th of April. *Nic., Registro Ofic.*, 107; *Costa R., Col. Ley.*, xi. 14-15, 20.

[XXIX-43] We have seen how previous to and during the Walker war cholera destroyed a conservative army in Managua, and later one from Costa Rica, and how for a long time it hindered military operations. *Perez, Mem. Hist. Rev. Nic.*, 140; *Costa R., Mem. Min. Rel.*, 1856, 9-11; *S. F. Herald*, Sept. 5, 1855; *Id., Bulletin*, June 6, 1856; *Id., Alta*, Oct. 2, 1857; *El Tiempo*, Aug. 14, Sept. 15, 1857; *El Estandarte Nac.*, Sept. 15, 1857; *El Eco Nac.*, Oct. 1, 1857.

[XXIX-44] Costa R. by timely precautions escaped the infliction. *Nic., Gac.*, Dec. 22, 1866; March 9 to Nov. 9, 1867, passim; Jan. 25, 1868; *Id., Decretos*, 1867, 50; *Id., Mem. Min. Fomento*, 1869, 7; *Costa R., Mem. Sec. Guerra*, etc., 1867, 8, doc. A, 23, D, 31; *El Porvenir de Nic.*, Feb. 18, 1872.

[XXX-1] Thus were established in Salv. the Colegio Seminario, which subsequently assumed the name of Colegio y Universidad del Salvador, in Nic., the Universidad de Leon, and in Guatemala was founded the Academia de Estudios, with which became incorporated the old university of San Cárlos, the Colegio de Abogados, and the Protomedicato, which had existed several years of the colonial period. *Squier's Trav. Cent. Am.*, ii. 390-1; *Squier, Compend. Hist. Cent. Am.*, 36-7; *Astaburuaga, Cent. Am.*, 22; *Dunlop's Cent. Am.*, 181; *Montúfar, Reseña Hist.*, i. 333; *Guat., Recop. Ley.*, i. 798-806; iii. 11-214. The Colegio de Abogados y Junta Académica de Jurisprudencia had been installed June 5, 1810. *Diario de Méx.*, Sept. 22, 1810; *Juarros, Guat.*, ii., p. vii.

[XXX-2] See laws, official reports, and statements of travellers. *Costa R., Col. Ley.*, iii. 223-6; xi. 158-215; xii. 156; *Montúfar, Resumen Hist.*, iii. 562-4, 640-1; Ministerial annual reports, 1848-54; *El Costaricense*, Nov. 10, 17, 1849; *Molina*,

Bosq. Costa R., 46-7; *Squier's Cent. Am.*, 468-9; *Wagner, Costa R.*, 186-8, 219-29; *Costa R., Bol. Ofic.*, Jan. 10, 1856.

[XXX-3] There was a normal school for training teachers, at San José, and institutes for secondary instruction in several cities.

[XXX-4] It was created May 3, 1843, made pontifical in 1853 by Pius IX. *Costa R., Col. Ley.*, viii. 25-8, 121-82; xi. 9-12; xii. 268-75; *Montúfar, Reseña Hist.*, iv. 412-14, 419; *El Costaricense*, Dec. 1, 1849; *Wagner, Costa R.*, 220-3.

[XXX-5] The percentage of each dept given in *Costa R., Gaceta*, July 11, 1885, suppl. See also *Annual Repts of Min. of Pub. Instruc.*, 1858-83; *Wappäus, Mex. und Cent. Am.*, 359-60.

[XXX-6] Early in 1872 the university of Leon, the former Colegio Tridentino, had but three chairs and 66 alumni, and four classes of secondary instruction attended by 102 pupils; that of Granada had only a chair of law, and seven classes of secondary instruction attended by 160 pupils. In primary instruction, there were at that time only 92 schools for boys and 9 for girls, a number of them private, and one missionary in Cuapa, attended by 3,871 boys and 532 girls, out of a population of 205,500, or say 20 children out of 1,000 inhabitants; only 532 girls out of 18,000 of school age, and 4,000 boys out of 12,000, were receiving instruction. *Lévy, Nic.*, 360-3. Teachers of pub. schools are paid \$12 a month and a little extra in larger towns. That state of things was due mainly to the neglect of parents. The funds appropriated for education were constantly tampered with and defrauded; this was acknowledged by the minister of instruction. There were no schools for adults, no professional institutes. As a rule, wealthy families sent their sons to be educated abroad, or at least in Guat. There was in 1873 no scientific course provided with the requisite materials, no laboratories, no museum, no public or private collections, no observatory, nothing; not even a small library. The conclusion to be drawn from the above is that the general intellectual level could not be high.

[XXX-7] 'Fuera de la multitud de causas dependientes del carácter, y del estado social de nuestros pueblos ... no tenemos nuestros idóneos suficientes.' *Mensaje*, in *Costa R., Gaceta*, Feb. 4, 1885.

[XXX-8] The newspapers often contain fine poetical compositions by native writers.

[XXX-9] The following authorities contain further details: The official reports of ministers from 1850 to the present time; *Nic., Dec. y Acuerdos*, from 1851 down; *Id., Gaceta*, Oct. 14, 1848; March 31, 1849; and for years 1862 to 1874 passim, and others.

[XXX-10] Even in the dark days, when her affairs were in the hands of despotic rulers, education was not neglected as much as might have been expected.

[XXX-11] *Montúfar, Reseña Hist.*, v. 52-3, 270.

[XXX-12] The Am. min., Jan. 8, 1872, says: 'Primary instruction is expanding yearly in its numbers and area.' Min. Biddle's Desp., in *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 511-12.

[XXX-13] At San Salvador, Santa Ana, and San Miguel.

[XXX-14] In 1875 there were 333 primary schools for boys, 50 for girls, 23 mixed, 29 high schools, one normal for males and one for females, one telegraphic, one lithographic, and one academy of fine arts. The appropriations for teachers in 1874 were nearly \$69,000. It must be also remarked that many are teaching without compensation to benefit their country. Secondary and higher instruction are free. The primary is uniform, gratuitous, and obligatory. *Laferrière, De Paris à Guatém.*, 202, 206, 282.

[XXX-15] The press, though not fully developed, has, nevertheless, given at times evidences of ability, when not hampered by restrictions on the part of would-be despotic rulers. *Salv., Gac.*, Dec. 21, 1849; Dec. 5, 1877; *Salv., Diario Ofic.*, Jan. 2, 1875, to Oct. 23, 1879, passim; *Pan. Star and Herald*, March 4, May 10, 1875; Sept. 18, 1882; Sept. 9 and 18, 1885.

[XXX-16] Montúfar gives the causes, speaking on the subject for 1838. *Resúmen Hist.*, iii. 278-9.

[XXX-17] In chemistry, engineering, the higher mathematics, they are deficient, and cannot compete with the universities of Nic., Salv., or Guat. They are, in fact, but little in advance of the common schools in the U. S. Still, they give promise of greater usefulness and advancement in the future. *Squier's Cent. Am.*, 267-8.

[XXX-18] Hond. has furnished more than her quota of the distinguished men of Cent. Am.; among them soldiers, statesmen, and orators. *Wells' Hond.*, 549.

[XXX-19] Such as exist with only a feeble life are generally engaged in acrimonious political wranglings.

[XXX-20] President Soto in his message of 1877 enumerates the improvements made, but confesses that they do not satisfy his aspirations. *Salv., Gaceta Ofic.*, June 19, 20, 1877.

[XXX-21] In 1881 about \$64,000, and in 1882 nearly \$74,000, were expended for public instruction. A number of teachers arrived early in 1883 from Europe, as also a complete outfit for a scientific college. *Pan. Star and Herald*, March 23, 1883.

[XXX-22] At the end of 1882 there were 811 primary schools; namely, 528 elementary for boys and 226 for girls, 5 complementary for boys, 3 for girls; one Sunday school for working-women, and 48 night schools for artisans, etc. This was an increase of 26 over 1881. The attendance was of 26,773 boys and 10,696 girls, an increase of 2,166 of both sexes over 1881. Early in 1884, the primary schools were 844, including 47 night schools for men, one for women, one Sunday school for women, and 16 mixed schools. The attendance had also greatly increased. The buildings confiscated from the church in 1872 were applied to education. There were likewise several private and municipal schools. *Barrios, Mensaje*, Sept. 11, 1876, 33-8; *B. Whetham's Across Cent. Am.*, 39; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 44, Sess. I, i. pt i. 137-8, 148, 175; *Guat., Recop. Ley., Gob. Democ.*, ii. 81-192, passim; *Belly, A trav. l'Amér. Cent.*, i. 131-4; *Salv., Gaceta*, Aug. 18, Oct. 7, Nov. 8, 1876; Feb. 11 to Nov. 27, 1877, passim; *Id., Diario Ofic.*, Aug. 15, 1878; *Guat., Mem. Sec. Instruc. Púb.*, 1880-4; *Reichardt, Cent. Am.*, 57, 227; *La Estrella de Pan.*, Jan. 10, 1884; *Batres, Sketch of Guat.*, 19-20, 40-72, passim; *El Guatemalteco*, Jan. 26, Feb. 2, Dec. 24, 1884; *Conkling's Guide*, 337, 341.

[XXX-23] *Pan. Ev'g Telegram*, May 26, 1886.

[XXX-24] The academy has pupils who pay their own expenses, and are not obliged to join the military service; and others placed therein by the govt, and intended to be commissioned as officers of the army. *Pan. Star and Herald*, Jan.

11, 1877; *Guat., Mem. Sec. Guerra*, 1882-4; *Guat., Recop. Ley.*, ii. 692-700; *Id., Id., Gob. Democ.*, i. 141-54; ii. 125-8; *Salv., Diario Ofic.*, Sept. 19, 1877; July 5, 1878.

[XXX-25] Besides having a school of drawing, painting, and modelling, and a night-school for artisans, it is provided with a cabinet of physics, with the view of establishing a school of chemistry applicable to industry. The museum installed in 1866 is every day enriched with new acquisitions.

[XXX-26] 1872-4, paid by municipalities, \$16,051; by national govt, \$112,048; 1879-83, paid by municipalities, to whom had been ceded the urban tax, \$36,242; by the national treasury, \$1,773,899. It seems that the total amount paid for pub. instruction from 1860 to 1870 had not much exceeded \$60,000. *Guat., Mem. Sec. Fomento*, 1885, annex 12, table 16.

[XXX-27] Under the former régime books objectionable to the church, for sustaining liberal ideas on social or religious topics, were placed, by a decree of the national assembly of Oct. 16, 1841, in the list of the forbidden; and the church was authorized to proceed against them. *Guat., Recop. Ley.*, iii. 286-7.

[XXX-28] This was made evident in several acts. The clergy were daily abused; the liberal leaders constantly inveighing against their fanaticism and intolerance, and ridiculing many things which the populace looked upon as sacred. Friars were held up in a multitude of anecdotes, and otherwise, as so many destructive insects. *El Liberal*, nos. 28-30, 41, 45, 49. The arts and objects of priestcraft were exposed to ridicule, contempt, and reprobation. A play called 'La Inquisicion por dentro' had a great run, and brought that institution into effectual and lasting odium. *Squier's Travels Cent. Am.*, i. 372. The inquisition of Mex. had had jurisdiction over Cent. Am. After its final abolishment, the king of Spain decreed, March 9, 1820, that all cases pending before its courts should be referred to the ordinaries for determination. The inquisitors failed to obey, and removed from the archives of Guat. all the cases pending there, alleging complicity on the part of the archbishop. The matter was laid before the córtes by Deputy Mendez of Salv. May 14, 1821. *Dispos. Var.*, iii. 152; *Fernando VII., Decretos*, 285-6; *Córtes, Diario*, xviii. 1821, May 14, 6.

[XXX-29] One on pastorals; another required the archbishop's appointments of parish priests to be previously

submitted for confirmation to the chief of the state. *La Tertulia Patriótica*, no. 4. By law of Nov. 8, 1824, the clergy were deprived of their privilege to import goods free of duties; another of June 9, 1826, reduced the tithes to one half. *El Liberal*, no. 36. Others of May 3, and June 9, 1826, gave natural children the right to inherit either extestamento or abintestato, and those of ordained priests and professed nuns were placed in the same category; one forbidding, Sept. 1, 1826, the prelates of religious orders to recognize obedience to or hold relations with their respective generals in Spain; and finally, the famous decrees of June 10 and July 20, 1826, forbidding the admission into convents or nunneries of persons under 23 years, or to profession any under 25. *Marure, Bosq. Rev. Cent. Am.*, i. 244-6; *Guat., Gaceta*, Feb. 16, 1856; *Squier's Cent. Am.*, 265-7.

[XXX-30] Such writings appeared in *El Indicador*, nos. 90, 94, 95, 149, 152.

[XXX-31] This was almost unanimously sanctioned by the people, and at once carried into effect. *Rocha, Cód. Nic.*, i. 373; ii. 373-80; *Guat., Recop. Ley.*, i. 273; *Id., Montúfar, Reseña Hist.*, i. 156-8; *Squier, Compend. Hist. Cent. Am.*, 61; *Squier's Trav. Cent. Am.*, i. 370-1; ii. 390-4; *Thompson's Guat.*, 145-50; *Stout's Nic.*, 149-51; *Crowe's Gospel*, 123-32, 135; *Reichardt, Cent. Am.*, 39; *Cal. Overland Monthly*, xiv. 160-1; *Dunlop's Cent. Am.*, 178, 181, 186; *Nic., El Porvenir*, Oct. 22, 1871; Feb. 16, 1873.

[XXX-32] Under this law Fred. Crowe, an English protestant missionary, and the author of the *Gospel in Central America*, resided several years in Guat., till he was driven away by the serviles.

[XXX-33] Pursuant to which Father Delgado was chosen and acted as bishop of San Salvador, though without confirmation by the pope, for about four years. He was never confirmed, but retained as vicar-general, under the archb. of Guat. *Montúfar, Reseña Hist.*, ii. 13-17; *Marure, Bosq Hist. Rev. Cent. Am.*, 196-9, and Docs, xviii.-xix., xxx.-xxxii.; *Id., Efem.*, 14; *Mem., Hist. Rev. Cent. Am.*, 32-7; *Cabildo, Ecles. Informe*, 54-5; *Squier's Trav. Cent. Am.*, i. 370-1; *Niles' Reg.*, xxix. 39.

[XXX-34] *Guat., Recop. Ley.*, iii. 273, 294-324; *Montúfar, Reseña Hist.*, iii. 522-4; iv. 146, 205-7, 552; *Crosby's Statem.*, MS., 91, 105-7, 110-11; *Squier's Cent. Am.*, 515-16; *Belly, Nic.*, i. 162-3.

[XXX-35] Infidelity spread extensively among the mestizos, and the white people also, so that the requirements of the church became constantly neglected. Obnoxious books were in the hands of all classes. Some of the more candid priests avowed deistical and atheistical notions. *Crowe's Gospel*, 256-7.

[XXX-36] A large number were charged with libidinous practices; even unnatural crimes were among the number. Excesses in eating and drinking, gambling, rioting, and bad language were quite common with them. Exorbitant fees, and extorting personal services, and grinding the poor were of daily occurrence. And yet the offenders were not punished, nor even suspended.

[XXX-37] At Habana, Cuba, whose diocese he had charge of for many years, never resigning the see of Guatemala, though he repeatedly refused to return thereto. His remains were taken there, however, by the Spanish war schooner *Polka*, and interred in Santa Teresa church, June 1846, with the utmost pomp of church and state. *Montúfar, Reseña Hist.*, v. 12-13, 19-25.

[XXX-38] The Marquis José de Aycinena, who had expected the appointment, was balked in his ambition, but was made bishop of Trajanapolis in part. infid.; he died Feb. 17, 1865. A few months earlier, Aug. 23, 1864, occurred the death of another prelate, a native of Guat., named José M. Barrutia y Cróquer, bishop of Camaco in part. infid. *Nic., Gaceta*, Sept. 24, 1864; March 18, 1865. Antonio Larrazábal, who had also been made a bishop in part. infid., had died Dec. 2, 1853. *Costa R., Gaceta*, Jan. 7, 1854; *Belly, A trav. l'Amér. Cent.*, i. 136-7.

[XXX-39] *Nic., Gaceta*, Feb. 16, 1867; *Pan. Mercantile Chronicle*, Feb. 17, 1867.

[XXX-40] Piñol died at Habana, June 24, 1881; Urruela's demise was on June 8, 1873, at Leon. *Nic., Gaceta*, June 14, 1873; *Voz de Méj.*, July 28, 1881.

[XXX-41] In 1872 the Capuchin friars of La Antigua, who were natives of Spain, were sent out of the country; all convents of friars were closed, and the property of the several orders was confiscated. In 1873 the consolidation of mortmain property, proceeding from pious endowments, capellanías, and legacies to the church and benevolent establishments, was decreed. In 1874 nunneries were closed, and the confiscation of their estates went

on. The government agreed to allow pensions to the nuns and native friars for their support. At the same time all communities of religions of either sex under any form whatever were forbidden forever. The fuero eclesiástico was abolished, and the most unlimited freedom of religion proclaimed. Civil marriage was declared legal, and where the parties desired a religious ceremony the former must precede it. Ecclesiastics were forbidden to appear with frocks or other official insignia in public out of the church. Cemeteries were secularized. *Barrios, Mensaje*, Sept. 11, 1876; *Guat., Recop. Ley. Gob. Democ.*, i. 159-61, 192-6; ii. 13-14, 23-7, 58, 64-5, 205; *El Porvenir de Nic.*, Apr. 20, 27, 1873; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 43, Sess. 2, i. 99-101, 106, 147; *Pan. Star and Herald*, Oct. 23, 1873; *Salv., Diario*, Dec. 21, 1878; *Guat., Mem. Sec. Gobern. y Just.*, 1880, 2-5; 1882, 11-12.

[XXX-42] In 1883 a protestant chapel was established in the capital, in charge of Rev. Mr Hill. *Pan. Star and Herald*, March 23, 1883.

[XXX-43] There had been before him, from 1539 to 1810, twenty bishops, the immediate predecessor of Barranco being Manuel Julian Rodriguez, who ruled till 1810. Bernardo Pavon was appointed but died before his consecration. *Juarros, Guat.*, i. 181; *Mex., Compend. Concilio III. en Mex.*, 418-21; *Morelli, Fast. Nov. Orb.*, 107.

[XXX-44] *Nic., Corr. Ist.*, Dec. 1, 1849; *Guat., Gac.*, Nov. 30, 1849.

[XXX-45] Formerly there were convents of Franciscan, Merced, and Carmelite orders.

[XXX-46] The church has no property whatever; the priests are generally poor, and entirely dependent on fees, and on contributions of the devout for festivals, etc.

[XXX-47] *Wells' Hond.*, 551-2, 555; *Wappäus, Mex. und Cent. Am.*, 305.

[XXX-48] The papal bull to erect the diocese of San Salvador is dated 4th day of the Kalends of Oct., 1842. *Montúfar, Reseña Hist.*, iv. 171-85.

[XXX-49] He was a strong, finely formed, and pretentious individual; a count palatine, and attendant on the pontifical

throne, one who had a right to be preceded by a tintinnabulum. He was not like the poor, meek man who was born in a stable at Bethlehem.

[XXX-50] *Id.*, *Reseña Hist.*, v. 649, 661-2; *Salv., Gac.*, July 29, 1853; *Id.*, *Diario Ofic.*, Nov. 4, 1875; *Nic., Corr. Ist.*, May 23, 1851.

[XXX-51] *Salv., Diario Ofic.*, Aug. 8, 13, 1875.

[XXX-52] The most noted were: Friar Benito de Baldonado, 1620-9, who founded two hospitals; he died in Leon; Diego Morsillo Rubio de Auñon, 1704-9, who being afterward transferred to La Paz, was twice viceroy and captain-general of Peru; Isidro Marin de Bullon y Figueroa, 1746-8, who began the construction of the cathedral of Leon, and died in Guatemala; Estévan Lorenzo de Tristan, 1775-83; in 1780 he finished and inaugurated the cathedral, and it is added that through his exertions Cent. Am. obtained the privilege of free trade; José Antonio de la Huerta Casso, 1795-1804, notable for his efforts in developing education. Montúfar makes severe comments on some of the prelates. *Reseña Hist.*, iv. 136-9. Nicolás García Jerez, a Dominican, became bishop in 1810, and figured prominently in the revolutionary period. He had to emigrate in 1824 to Guatemala, where he died in 1825. Vicar Cuadra was guardian till 1851, when under a reconstruction of the diocese, Costa R. having been detached, Jorge Viteri y Ungo was transferred to it from Salvador. He died July 25, 1853. The see had no bishop till the appointment of Bernardo Piñol y Aycinena. It took place in Nov. 1855, and the papal bulls reached Granada in 1856, where, owing to Walker's war, they were kept in the parish church, and finally destroyed with the city. Piñol was consecrated in Guat. July 17, 1859, and performed his functions till Sept. 14, 1868, when he departed for Guat. as archb. During his rule Manuel Ulloa was made bishop of Lemira, in part. infid., and coadjutor; he was made bishop of Nic. in 1871, and resigned the office in 1883. *El Costaricense*, Nov. 10, 1849; *Salv., Gaceta*, March 8, 1850; Aug. 12, 1853; *Pio IX., Carta; Squier's Trav. Cent. Am.*, i. 391; *Nic., Corr. Ist.*, Feb. 6, March 7, June 20, Dec. 12, 1850; *Id., Gac.*, Aug. 13, Sept. 3, 1853, Dec. 16, 1865; Jan. 6, Apr. 21, 1866; *Id., Semanal Nic.*, Oct. 10, 1872; *Id., Boletin Ofic.*, Apr. 12, 1862; *Id., Dec. y Acuerdos*, 1859, ii. 162; 1863, 215; 1865, 136; *El Rol*, March 15, 1855; *Decreto sobre la bula de S. S.*; *Perez, Mem. Rev. Nic.*, i. 8-9; *El Porvenir de Nic.*, Feb. 25, 1872; *Levy, Nic.*, 62-6; *Pan. Star and Herald*, July 2, 1883.

[XXX-53] In 1871 a number of jesuits expelled from Guat. managed to get into the country, and were allowed to remain several years, but were finally sent away. Details have been given in a former chapter. In 1872 several friars expelled from other parts tried to enter the country, but were not permitted to stay. *El Porvenir de Nic.*, Oct. 1, 1871, to Feb. 16, 1873, passim; *Nic.*, *Semanal Nic.*, June 18, 1872; *Id.*, *Mem. Min. Gobern.*, 1875, 23-4; 1883, 25-6, annex B, 27-8, F, 1-4.

[XXX-54] For the seminary \$2,000; the bishop \$3,000; the chapter and other ecclesiastics \$4,158; music \$1,000; other expenses about \$4,000. The chapter consists of dean, archdeacon, chancellor, three canons, and six or seven other officials. The church gets the first-fruits from farmers. Tithes have been abolished since 1862. 300 or 400 priests without parishes depend entirely on fees. The cathedral has no valuables, having been sacked several times. *Nic.*, *Boletin Ofic.*, Dec. 6, 1856; March 1, 1862; *Union, Nic.*, March 2, 1861; *Nic.*, *Dec. y Acuerdos*, 1857-8, 261-5; *Id.*, *Gac.*, Aug. 6, 1870; *Lévy, Nic.*, 383-4.

[XXX-55] See treaty with France of Apr. 11, 1859.

[XXX-56] Appointments of parish priests, and publications of papal bulls or briefs, and decrees of ecclesiastical councils must first obtain an exequatur from the president of the republic. Parish priests before assuming their offices must take the oath to support the constitution, and to do no act against the nation's independence or the public peace. *Nic.*, *Mem. Min. Fomento*, 1869, 13-16; 1871, 9-10; *Id.*, *Mem. Min. Rel.*, 1871, 7-10, 25-8; *Id.*, *Gaceta*, May 30, 1868; Oct. 29, Nov. 5, 1870.

[XXX-57] Anselmo Llorente y Lafuente was the first called to fill the position of bishop of San José de Costa Rica, April 10, 1851. He had not been long in office when he tried to collect tithes on coffee, but failed, and his course greatly displeased the people and lowered their regard for the church. The matter was finally settled by a concordat entered into at Rome, Oct. 2, 1852, and tithes were declared abolished. He died in 1872; and the government soon after proposed a successor, who was not approved of by the Roman curia. Finally, Oct. 11, 1879, the government nominated Bernard August Thiel, a native of Germany, and professor of the university of Costa Rica, for the office, and he was confirmed by the pope Feb. 27, 1880. During the vacancy the see was under the guardianship of the bishop of Abydos, in part. infid. *Costa R.*, *Col. Ley.*, v. 155-60; *Marure*,

Bosq. Hist. Rev. Cent. Am., 208; *Montúfar, Reseña Hist.*, ii. 247-9; *Costa R., Mem. Min. Rel.*, 1851, 1-2, 10-12; 1854, 11-12; *Id.*, *Informe Sec. Rel.*, 1872, 19-20; 1873, 19; 1874, 12; 1880, 19-20; *Molina, Bosq. Costa R.*, 63, 111-12; *El Siglo*, July 18, 1851.

[XXX-58] For the bishop \$3,000, the ecclesiastical chapter \$3,000, and the Colegio Tridentino \$3,000. *Montúfar, Reseña Hist.*, ii. 207; *Costa R., Mem. Min. Rel.*, 1859, 11; *Id.*, *Gac. Gob.*, July 16, 23, 30, 1853; *Hond.*, *Gac. Ofic.*, Jan. 24, 1853, suppl.; *Salv.*, *Gac.*, Aug. 12, 1853; *Guat.*, *Gac.*, Sept. 16, Oct. 14, 1853; *Astaburuaga, Cent. Am.*, 49-50.

[XXX-59] *Costa R., Mem. Sec. Rel.*, 1884, 31.

[XXX-60] The clergy have, indeed, lost much of their influence. The mode of life of the majority of them cannot inspire respect. Letter from Costa R. by a British consul, quoted in *Squier's Cent. Am.*, 468-9; *Wappäus, Mex. und Cent. Am.*, 360. Laferrière, writing for 1873, gives a discreditable picture of the church, its priests and feasts. *De Paris à Guatém.*, 56.

[XXX-61] There is a protestant church and cemetery in San José. The government cordially upholds the liberal laws on the subject of religion. *Costa R., Mem. Sec. Rel.*, 1884, 32.

[XXX-62] His salary was also suspended. *Costa R., Mem. Sec. Rel.*, 1885, 17.

[XXX-63] Of whom 39 received their offices during the colonial period, the last one being Friar Higinio Duran, of the order of Mercy and a native of Lima. He took possession in 1818, and died in Chepo on the 22d of Oct., 1823. This bishop was one of the signers of the declaration of independ. of the Isthmus in 1821. His successors were Manuel Vasquez, Juan J. Cabarcas Gonzalez, Juan F. del R. Manfiedo y Ballestas, Friar Eduardo Vasquez, who died in Rome, Jan. 2, 1870, Ignacio Antonio Parra, who took possession June 3, 1871. *Hernaez, Extracto del Libro de la Comp. de Jesus*, in *Maldonado, Asuntos Polít de Pan.*, MS., 34-5; *Pan., Col. Docs.*, MS., nos. 125-6; *Pan. Docs.*; *Montúfar, Reseña Hist.*, iv. 344; *Nic., Boletín Ofic.*, Nov. 1, 1862; *Pan., Boletín Ofic.*, March 4, 1869; *Id.*, *Gaceta*, June 6, 1871. Parra held the office only a few years, and was succeeded by Telésforo Paúl, who occupied it till Dec. 1884, when he repaired to Bogotá, his native city, to fill that archepiscopal see. The assembly of the state on the 22d of Dec., 1884, adopted a resolution recognizing

his efforts to promote harmony, and appointed a committee to escort him as far as Barranquilla. *La Estrella de Pan.*, Jan. 1, 1885; *El Cronista* (Pan.), Jan. 3, 1885.

[XXX-64] *Bidwell's Isth. Pan.*, 242. The congress of Nueva Granada in 1837 fixed the bishop's salary at \$4,000. *N. Granada, Registro Ofic.*, 21.

[XXX-65] Originally there were 11 churches, 4 convents of friars, one nunnery, a cathedral, and one ecclesiastical college established by the government of Old Colombia under a rector, vice-rector, and assistant, with a sufficient revenue. A law of New Granada provided for the sale at auction of all property that had formerly belonged to the jesuits not required for national use. *Pan., Crón. Ofic.*, Aug. 5, 1852. Stories are related of buried treasures having been disinterred in after years by jesuit agents, from the ground of their old house, and from the orchard of T. M. Feuillet. These stories bear some semblance of truth. See Memoranda, in *Maldonado, Apuntes*, MS., 36 et seq.

[XXX-66] The bishops in the exercise of their functions, and administration of church property, had the assistance of the civil authorities, who carried out their orders without questioning them.

[XXX-67] Every New Granadan or Colombian assigned, to the prejudice of his heirs, a certain amount to the church for masses and other supposed benefits it could do to his soul. Successive descendants followed the example. The priests often threatened the dying with the penalties of hell if they did not purchase their salvation. Clerical intolerance knew no limits.

[XXX-68] Excepting only cathedrals, the chief church of each parish, and the sacred vessels and ornaments. *Maldonado, Asuntos Polít. Pan.*, MS., 3-5, 15, 17.

[XXX-69] The bishop of Panamá left, and his priests followed his example one by one. Panamá was thus left without a priest; the dead had to be buried without the offices of a minister; for more than a year the churches had no bell-tolling or officiating minister. An English catholic missionary, passing to San Francisco, ventured to say mass and baptize in private. He was arrested, though finally allowed to embark. *Bidwell's Isth. Pan.*, 238-43.

[XXX-70] The laws were modified in May 1864. The govt reserved the right of inspection, but made the oath of submission obligatory on the chief of the church having authority as such. Bulls or orders emanating from any one residing in a foreign country could not be published or enforced without first obtaining permission from the national executive. *Pan., Boletin Ofic.*, Jan. 16, 1868.

[XXX-71] Under Mosquera's decrees when he was dictator, the few nuns—four aged and one young—occupying the convent of La Concepcion in Panamá were made to abandon it in Sept. 1862. *Nic., Boletin Ofic.*, Oct. 4, 1862. These women would not forsake the cloister, but sought an asylum in Lima. With tearful eyes they exiled themselves from their home, and from friends, many of whom had received their education from them. Their departure caused no little feeling in the pub. heart. *Maldonado, Asuntos Polít. Pan.*, MS., 18.

[XXX-72] Dec. 15, 1868, a charter was granted by the state govt to a protestant church association. *Pan., Boletin Ofic.*, Feb. 18, 1869.

[XXXI-1] Some of the *alcaldes mayores* had in 1810 only \$300 allowed them yearly, others \$500, and the highest paid received \$1,200. The system did not recommend itself. *Guat., Apunt.*, 65-71. There was also a *consulado* or tribunal of commerce established in Guat. April 30, 1794. *Juarros' Stat. and Comm. Hist. Guat.*, 142-3.

[XXXI-2] Royal decree of July 25, 1814. *Fernando VII.*, Dec., 12.

[XXXI-3] The king ratified it June 4, 1820. The Indians were benefited thereby, for even priests were strictly forbidden to flog them. *Id.*, 301-2.

[XXXI-4] Those desirous of studying the judiciary of Guat. as it existed down to 1872 may find information in *Guat., Recop. Ley.*, i. 241-2, 603-4; ii. 21-45, 51-69; iii. 215-29, 365-6; *Rocha, Cód. Nic.*, ii. 242-3; *Montúfar, Reseña Hist.*, ii. 336-41; *Guat., Boletin Ofic.*, 132-7.

[XXXI-5] The first complete reorganization was by the law of May 22, 1872. The creation of the superior court at Quezaltenango was by law of July 29, 1872. *Guat., Recop. Ley.*

Gob. Democ., i. 88-9, 114-15. On the 15th of Oct., 1876, a supreme court, composed of a president and four magistrados, was established, because the organization of the superior courts hindered the prompt administration of justice. *Salv., Gaceta Ofic.*, Oct. 13, 14, 1876. Subsequently, there was an increase in the number of justices, the court was divided into five sections or chambers, of which the fifth was suppressed March 29, 1882.

[XXXI-6] Trial by jury had been decreed, on the promulgation of the Livingston code in Jan. 1837, under the law of Aug. 27, 1836. It was suspended by decree of March 13, 1838, on the ground of its impracticability in a country so unprepared for it as Guat. then was. *Montúfar, Reseña Hist.*, ii. 289-343; iii. 63-84; *Salv., Diario Ofic.*, Feb. 14, 1875; *Pineda de Mont, Nota*, in *Guat., Recop. Ley.*, i. 464; *Dunlop's Cent. Am.*, 192; *Squier's Trav. Cent. Am.*, ii. 419, 426.

[XXXI-7] In consequence 350 reformatory articles were adopted in connection with the civil code, and the reforms to the code of procedure in civil cases were almost as extensive; a few were also made to the commercial; and a considerable number to the penal code, and to that of procedure in criminal causes. *Guat., Mem. Sec. Gobern., etc.*, 1880-3.

[XXXI-8] *Guat., Mem. Sec. Fomento*, 1880, 38-9, 65-6, 1885, 53, and annex 13.

[XXXI-9] During 1881 the supreme court, issued 1,995 sentences in criminal cases, only two of them were capital, one of which was commuted; in 1882, 1,467; 1883, 1,726; 1884, 2,489 offences were classified as crimes, and 10,130 as mere misdemeanors; of the former 1,321, and of the latter 1,460, were acquitted; 1,168 of the former and 8,670 of the latter were sentenced, none to death, and only two to extraordinary imprisonment.

[XXXI-10] It was notorious that escaped criminals freely moved, menacing the lives of those who had had any agency in their arrest. The facility for evading the action of the law was such that criminals did not fear it. *Hond., Mem. Ministro Gen.*, 1852, 9-10.

[XXXI-11] A robber and murderer named Umansor, who effected his escape from the fort at Omoa, survived under 400 blows on two occasions; but 200 blows on the bare back

generally ended the sufferings of the culprit when applied with that design. *Wells' Hond.*, 229-30.

[XXXI-12] *Presid. Soto, Mensaje*, May 27, 1877.

[XXXI-13] *Salv., Mem. Sec. Gobern.*, 1875; *Id., Diario Ofic.*, March 17, 1875.

[XXXI-14] Trial by jury in criminal cases was first established in Aug. 1832, but being found impracticable, owing to the ignorance of the masses, it was abolished. *Dunlop's Cent. Am.*, 186. The system was restored by the constitution of 1872. *Salv., Diario Ofic.*, Oct. 17, 1875.

[XXXI-15] The supreme court is composed of eleven magistrados, one of whom is the president. In San Salv. there are two chambers of 2d resort with two justices in each, and one of 3d resort composed of the president and the two senior justices. A majority of the magistrados constitutes the full supreme court. There is also a chamber of 2d instance in San Miguel, and another in Santa Ana. Seven suplentes or substitutes fill temporary absences of the incumbents, three for the capital, and two for each of the others. No magistrado, or judge of a court of first resort, can hold office in the executive or legislative departments of the government. The supreme court-martial was abolished by law of Aug. 31, 1875. Military courts of first instance existing in the depts were suppressed, excepting that in the capital, and their functions devolved on the comandantes. *Salv., Diario Ofic.*, Sept. 3d-8th; *Id., Gaceta Ofic.*, Sept. 13, 1876.

[XXXI-16] *Presid. Zaldívar, Mensaje*, Jan. 14, 1878.

[XXXI-17] The 1st chamber of 2d instance in the capital, 1,736; the 2d, 1,889; that of Santa Ana, 2,323; and the one at San Miguel, 1,370. *Salv., Mem. Sec. Rel. Just., etc.*, 1879; *Salv., Diario Ofic.*, June 26, 28, July 4, 13, 1878.

[XXXI-18] The Livingston code of Louisiana with trial by jury was established in 1836, but suspended in 1845. *Dunlop's Cent. Am.*, 192; *Sandoval, Rev. Polít.*, 22. The organic law of the courts is dated July 4, 1857, and underwent modifications Sept. 3, 1858. *Rocha, Cód. Nic.*, ii. 167-98; *Nic., Dec. y Acuerdos*, 1859, ii. 27-8; *Informe, Min. Gobern.*, 1859.

[XXXI-19] The former has jurisdiction over the depts of Leon, Chinandega, and Segovia; and the latter over those of Granada, Rivas, Chontales, and Matagalpa. *Lévy, Nic.*, 344.

[XXXI-20] There is in each department or district a court for civil and criminal affairs; but in largely populated departments there is also a court of criminal jurisdiction. *Rocha, Cód. Nic.*, ii. 217, 244-316. There should also be a juez de agricultura, and a juez de la mesta, under existing laws. Cases involving only \$100 are acted upon verbally; all others in writing.

[XXXI-21] *Nic., Informe Min. Fomento*, 1869; *Id., Dec. y Acuerdos*, 1871, 123-33; *Id., Gaceta*, March 18, Apr. 1, 22, June 3, 1871; *El Porvenir de Nic.*, Oct. 22, 1871; Feb. 25, 1872; *Nic., Mem. Min. Hac.*, 1872; *Id., Informe Min. Gobern.*, 1875.

[XXXI-22] 'Los pleitos, por decirlo así, se eternizan, y es muy raro ver uno que llegue á concluirse.' *Mensaje del Presid.*, Marzo 1871.

[XXXI-23] *Nic., Semanal Nic.*, Oct. 16, 1873.

[XXXI-24] *Marure, Efem.*, 49. It has been asserted that as a rule offenders are not vigorously prosecuted, and for various reasons often go unpunished.

[XXXI-25] *Ley de presidios*, Aug. 18, 1858; *Ley de Palos*, Sept. 1, 1858. Prisoners sentenced to hard labor serve out their terms on the works in forts San Juan and San Carlos, by president's order of Oct. 6, 1880. *Nic., Mem. Min. Gobern.*, 1883, 22-3, and annex B, 27.

[XXXI-26] Of which 578 resulted in conviction; 244 were dismissed; and 1,087 were pending. *Id.*, annex G, no. vi.

[XXXI-27] *Costa R., Col. Ley.*, iii.-xxii., passim; *Id., Mem. Min. Gobern.*, 1857 and 1859; *Montúfar, Reseña Hist.*, v. 344, 348.

[XXXI-28] The yearly salaries are: chief president, \$2,160; the other presidents, \$2,040 each; justices, \$1,800 each; secretary, \$1,200. The yearly appropriation for the supreme court is nearly \$43,000. *Costa R., Mem. Sec. Gobern.*, 1884, annex D.

[XXXI-29] Suits for sums not exceeding \$100 and trivial offences are attended to by alcaldes and jueces de paz. There is

also a special court of hacienda to adjudicate upon claims of the treasury against private parties, and for the trial of offences against the revenue, including also the counterfeiting of coin. The expense of this court is nearly \$700 per month. In Limon there is an alcalde who acts as judge. The civil and criminal judges of San José receive \$105 a month each; the other judges, \$125; the alcalde at Limon, \$50. The yearly expenditure of the judiciary, including the supreme court, fiscal agencies, casa de reclusion \$720; presidio de San Lucas \$11,560; and contingents for the year 1884 was a little over \$90,100. In former years, when the ecclesiastic and military fueros were recognized, each had its own courts, the system being an inheritance from the old Spanish rule. It has been abolished.

[XXXI-30] *Costa R., Informe Sec. Int.*, 1860 and 1865.

[XXXI-31] This was recognized by the min. of justice in his report of May 15, 1884. *Costa R., Mem. Soc. Just. y Gracia*, 1884, 29.

[XXXI-32] The commissions began their labors at once, but had not completed them in July 1885. *Costa R., Mem. Just. y Gracia*, 1872-85.

[XXXI-33] A law of July 10, 1873, introduced the jury system in criminal causes. *Costa R., Col. Ley.*, xxii. 52-69; *Id.*, *Informe Sec. Just.*, 1873, 23-4; 1876, 19-20.

[XXXI-34] The prison on Coco was first decreed July 3, 1874, but the law not having been carried out, it was reiterated Jan. 21, 1878. The regulation of Feb. 25, 1874, for San Lucas placed it under the control of the governor of the comarca of Puntarenas. *Costa R., Col. Ley.*, xxii. 35-48, 89-90; *Id.*, *Inf. Sec. Gobern.*, 1874, 28; 1879, 16-18; *Id.*, *Col. Dispos. Leg.*, 1878, 92-3.

[XXXI-35] Composed of three justices, whose terms of office are of four years. There are substitutes to fill temporary vacancies.

[XXXI-36] The alcaldes and regidores have charge of the preservation of order in their respective districts, and initiate proceedings for offences against the laws, and after the investigation has been completed, pass the papers to the proper court. These officials also have jurisdiction over civil causes not

exceeding \$200 in value. When the claim does not exceed \$25, the court's decision is final. If it does, the court hears the parties, receives the testimony of witnesses, and renders a decision, which may be appealed from to the superior court. Judges and alcaldes in former years were greatly respected by the people, and their decrees obeyed without demur. *Maldonado, Asuntos Polít. Pan.*, MS., 2, 5.

[XXXI-37] Other penalties: imprisonment, banishment, deprivation or suspension of political rights, surveillance of the authorities, fines, etc. Credits are allowed prisoners for good behavior. Trial by jury in criminal cases exists. A jury of seven meet at the chief town, hear the evidence, and by an absolute majority convict, qualifying the offence, or acquit. *Pan., Gaceta*, Aug. 30, to Sept. 24, 1863; Feb. 19, 1880; *Id.*, *Boletin Ofic.*, Nov. 18, 1865.

[XXXI-38] The civil, penal, procedure, military, and commercial codes. *Id.*, Sept. 5, 1868; *Id.*, *Inf. Mem. Sec. Est.*, 1872, 13; 1877, 33.

[XXXI-39] He drew the conclusion that the jury system, in the state of ignorance so general among the masses, instead of being a safeguard for society served to afford impunity to criminals. *Id.*, *Mem. Sec. Jen. Est.*, 1876, 19-22; 1879, 102-3.

[XXXI-40] *Pan., Ley.*, 1879-80, 52-5.

[XXXI-41] *Pan., Informe Gobernador*, 17-19.

[XXXI-42] A decree of Dec. 23, 1879, fixed the force at 140 with the officers; a second of March 1, 1880, ordered the organization of the battalion Ancon no. 1 with 95 to 125; another of Feb. 22, 1881, reduced it to 75. The pay of the rank and file was fixed in 1880 as follows: 1st sergt, \$27; 2d sergt, \$24; 1st corporal, \$21; 2d corp., \$18; private, \$15. No rations allowed. *Pan., Gaceta*, Jan. 8, March 21, May 9, June 24, 27, 1880; Sept. 15, 25, 1881. The force was greatly augmented during the disturbances of 1885. *Pan. Star and Herald*, Dec. 22, 1885.

[XXXI-43] A law of 1881 established the ranks of gen.-in-chief, gen. of division, gen. of brigade, colonel, lieut-col, major, capt., lieut, and sub-lieut. On the 1st of Dec., 1877, there were 8 generals, 43 colonels, lieut-col, and majors, and 254 from captains down. The appropriations for 1877 and 1878 were

\$64,000 each, of which \$45,000 was for pay. *Pan., Mem. Sec. Jen. Est.*, 1878, p. xxvii.-xxxii.; *Id., Id., Hacienda*, 1878, annex X.

[XXXI-44] Laferrière, writing for 1873, says that the regulars did not count for much as to numbers, though the country had been of late years under a military gov. *De Paris à Guatém.*, 55-6.

[XXXI-45] *Costa R., Mem. Min. Guer.*, 1883 and 1884.

[XXXI-46] There were garrisons in Managua, Granada, Leon, Corinto, San Carlos, Castillo Viejo, and Matagalpa, aggregating with the officers 506 men. The revenue guards and police number about 460. *Nic., Mem. Min. Guer.*, 1883. The battalions stationed at Managua, the capital, bears the name of guardia de los supremos poderes, being the guard of honor of congress or the executive. The officers and soldiers are well dressed. The other troops merely get a pair of pants and a shirt. The bright trimmings distinguish them from civilians. As to pay, the general of division in active service receives \$5 per day; the private only 30 cts per day and no rations. *Lévy, Nic.*, 343-4.

[XXXI-47] In 1882 the monthly appropriation for pensions was \$1,188. *Nic., Mem. Min. Guer.*, 1883.

[XXXI-48] The army might be raised to 30,000 or 40,000 men. *Pan. Star and Herald*, June 2, 1886. The practice has been to send out press-gangs, to seize men and force them into the ranks, thus forming as motley a set as can well be imagined; some have shirts, some jackets, and others neither. Most of them probably have breeches, but exceedingly short at the legs. *Wells' Hond.*, 238-40; Laferrière, *De Paris à Guatém.*, 100-1; *Squier's Trav.*, ii. 183-4.

[XXXI-49] The eastern, furnished by the departments of San Miguel, Usulután, La Unión, and Gotera; the central, by San Vicente, Cabañas, Cuscatlán, and Chalatenango; the western, by Santa Ana, Sonsonat, and Ahuachapán; and the reserve, by San Salvador, La Paz, and La Libertad. Each division was formed with four brigades, and another of artillery; each brigade to have 1,000 men in two battalions; five companies of 100 men to form a battalion. *Salv., Diario Ofic.*, Apr. 6, May 16, July 9, 10, 1879.

[XXXI-50] Divisions to be commanded by generals of division, brigades by generals of brigade; battalions to have colonels and lieutenant-colonels; and each company a captain, 1st lieutenant, 2d lieutenant, and 2 sub-lieutenants, 5 sergeants, and 8 corporals. Brevets were recognized in all grades of commissioned officers, under an executive decree of 1875. *Id.*, Aug. 13, 1875.

[XXXI-51] The pay of a general of division was \$150 per month, of a general of brigade \$125, colonel \$100, lieutenant-colonel \$90, captain \$57, lieutenant \$45, sub-lieutenant \$37.50, sergeant \$15, corporals \$13½, and private \$11.25. The new organization given the army at that time was said to secure a saving of \$200,000 a year. *Salv., Gaceta Ofic.*, Oct. 7, 11, 1876.

[XXXI-52] The scale was fixed in March 1877, from \$50 for a general of division down to \$10 for a sub-lieutenant, sergeants \$7 and \$6, corporals \$5, and privates \$4. The same scale standing for widows and orphans to whom pensions might be allowed. *Id.*, Feb. 16, March 6, 1877.

[XXXI-53] It went into effect on the 15th of that month and year. *Salv., Diario Ofic.*, Jan. 2-14, 1880.

[XXXI-54] A few paid for their exemption till 1892. *Guat., Mem. Sec. Hac.*, 1883, 24, and annex 19.

[XXXI-55] The ranks of captain-general and lieutenant-general, created for Miguel García Granados and J. Rufino Barrios respectively, soon after the overthrow of the oligarchs, were suppressed by the latter in his decree of Feb. 9, 1873, together with the grade of mariscal de campo formerly existing. He likewise annulled the grade of sargento mayor, creating in lieu thereof those of segundo comandante and primer comandante. *Guat., Recop. Ley. Gob. Democ.*, ii. 12-13, 25.

[XXXI-56] The pay of a private is three reales per day, out of which he supports and clothes himself.

[XXXI-57] The secretary of war said of it: 'Este establecimiento promete mucho para el porvenir.' And indeed, a number of its graduates were already engaged in engineering work on the northern railroad, in running the boundary line with Mexico, and in instructing the several battalions. Some had been also assigned to the artillery department. *Guat., Mem. Sec. Guer.*, 1884, 6, annex no. 1.

[XXXI-58] Officers in active service cannot marry without leave from the sec. of war, which is not granted if their marriage may prove detrimental to the service. *Id.*, 1882, 5, 13-14.

[XXXI-59] It has been properly kept, with beneficial results. *Id.*, 1882, 15; 1883, 6-7, annex 3; 1884, 9-10, doc. 3.

[XXXI-60] *Id.*, 1884, annex no. 1. Other authorities containing information on military affairs of Guat. from 1822 to 1873: *Thompson's Guat.*, 496-504; *Dunlop's Cent. Am.*, 168-9; *Guat., Recop. Ley.*, ii. 639-759, passim; *Id., Gob. Democ.*, i. 6, 103-5, 132-7; *Id., Decretos*, nos. 11, 23, 36-7; *Id., Mem. Sec. Guer.*, 1837, 24-6, table 6; *Squier's Cent. Am.*, 516-17; *Boddam Whetham's Across Cent. Am.*, 205-8.

[XXXII-1] Humboldt estimated the production at the value of \$4,500,000. *Essai Polit.*, ii. 446; *Guat., Apunt.*, 17-20; *Guat., Gaceta*, vi. 70-1, 293-337, passim.

[XXXII-2] The yearly products of Cent. Am. were estimated in 1826 at \$52,529,450. *Ocios Esp. Emigr.*, v. 3-11.

[XXXII-3] *Guat., Recop. Ley.*, i. 658-89, 744-60.

[XXXII-4] Though land was free to all, agriculture was so low that even on the richest soil staples were scarcely produced in sufficient quantities for the consumption. *Berendt*, in *Smithsonian Rept*, 1867, 424.

[XXXII-5] The annual export was estimated at nearly \$1,100,000, but chemical substances having been discovered to take its place for coloring, the decadence of the industry soon followed. Cochineal could not fetch over 2 to 3 francs per kilogr. in France. *Laferrière, De Paris à Guatém.*, 247.

[XXXII-6] It had young trees planted in every department, and for the further increase of the staple, exempts the product from interior taxation and export dues. *Pan. Star and Herald*, May 29, 1886.

[XXXII-7] *Presid. Barrios, Mensaje*, Sept. 11, 1876.

[XXXII-8] *Guat., Mem. Sec. Gobern. y Just.*, 1880; *Id., Mem. Sec. Fomento*, 1880-2; *Id., Sec. Hac.*, 1882-3; *Pan. Star and Herald*, March 2, May 29, 1886.

[XXXII-9] Cochineal, reduced from 67,709 qls in 1860-4 to 2,845 in 1879-83. Coffee, 1860-4, none; crop of 1883-4 was 495,385 qls; next year's estimated 520,000, valued at \$5,291,074. Sugar, 1860-4, 115,486 qls; the production of 1883 of sugar, panela, muscovado, and molasses valued at \$976,902; 1884, \$1,058,551; 1885, \$915,789. Rubber, 1879-83, 9,074 qls. Sundries, 1879-83, 115,999 qls. Flour, 1884, probable production 931,144 qls. Tobacco cult. progressing. Live-stock, 1884, horses, 107,187; mules and asses, 41,386; neat cattle, 441,307; sheep, 417,577; goats, 27,618; swine, 177,118. Total value, \$15,112,233. *Guat., Mem. Sec. Fomento*, 1885-5; *El Guatemalteco*, Jan. 1, Sept. 15, 1884; *Pan. Ev'g Telegram*, May 26, 1886.

[XXXII-10] As early as 1800 there were 9,600 trees of China cotton. *Quinta Junta Púb.*, 14-15; *Juarros, Guat.*, i. 38-46.

[XXXII-11] *Viag. Univ.*, xxvii. 172-4. The Sp. gov. had all the vines destroyed for fear of injury to the wine industry of the mother country. *Squier's Cent. Am.*, 273; *W. Ind., Descr. Sp. Settlers*, 45.

[XXXII-12] *Squier's Cent. Am.*, 192-204; *Laferrière, De Paris à Guatém.*, 97.

[XXXII-13] They do not yield a high income, however, the consumption at home being comparatively small, and the demand of the neighboring states limited. *Id.*, 209-11, 272. Gov. is endeavoring to improve the breed.

[XXXII-14] Comparative values: Indigo—as early as 1630 the yield was 10,000 quintals a year; the production from 1791 to 1800 was 8,752,562 lbs. at \$2 a lb.; 1864, \$1,129,105; 1877, \$2,146,423. Coffee—1864, about \$80,000; 1877, \$2,115,669. Maize—1877, \$2,786,433. Sugar and muscovado—1877, \$334,361. Rice—1877, \$154,728. Hides and deer-skins—1876, \$444,805. Cattle—1876, \$672,948. Aggregate values for 1876-7—including rum made from molasses, and set down at \$925,457—were \$15,448,794. These figures are from official sources, but may not be altogether reliable. *Salv., Diario Ofic.*, Oct. 21, 1875; *Id., Gaceta Ofic.*, Feb. 7, 24, 1877; Feb. 19, 1878.

[XXXII-15] The cotton is of superior quality, and grown in considerable quantities; the cacao is second only to Soconusco; the sugar-cane is indigenous, and yields beautiful sugar; the indigo has a high reputation; the coffee is fully as good as Costa

Rica's, and flourishes well in the higher grounds. The same may be said of tobacco. Maize and rice grow in perfection and abundance. *Stout's Nic.*, 73-85, 345-53; *Dunlop's Cent. Am.*, 265-7; *Baily's Cent. Am.*, 120-4; *Squier's Cent. Am.*, 363-4, 377-8, 663; *Id.*, *Trav.*, i. 34-9, 158-63; *Id.*, *Nic.*, 620-2; *Lévy, Nic.*, 458-81; *Wells' Hond.*, 141-3; *Id.*, *Walker's Exped.*, 116; *Laferrière, De Paris à Guatém.*, 77-80; *U. S. Gov. Doc.*, H. Ex. Doc., 75, 210-12, 216, vol. x. Cong. 31, Sess. 1; *Pan. Star and Herald*, March 13, 1886.

[XXXII-16] Exempting them from taxation and otherwise. *Rocha, Cód. Nic.*, i. 191-4, 206-11; ii. 106-11; *Nic., Reg. Ofic.*, 328-9; *Id.*, *Dec. y Acuerdos*, vol. for 1851-61, passim; *Ley de Agric.*, Feb. 18, 1862; *Nic., Boletín Ofic.*, Feb. 15, 1862; *Id.*, *Gaceta*, years 1865-74, passim.

[XXXII-17] Mahogany abounds, especially on the margins of the branches of the large rivers. The cutters are mostly Mosquitos and Caribs, who hire themselves for the season at \$10 to \$15 a month and fed. In 1862-9 the govt adopted the plan of farming out the privilege of cutting mahogany. The caoutchouc trees were by law declared in 1860 govt property. *Nic., Mem. Min. Hac.*, 1862; *Id.*, *Gaceta*, Apr. 1, 1865; *El Nacional*, Nov. 10, 1860.

[XXXII-18] Nutritious grasses and water are scarce in the summer. On the other hand, an immense quantity of vermin constantly torment the animals, and disease takes hold of them, killing many. Cows yield only a small quantity of milk. A dairy possessing 150 to 200 milch cows is said to do well if they yield 50 lbs. of cheese per day. *Lévy, Nic.*, 478.

[XXXII-19] Said to be as good as that of Soconusco; but the country is generally too high and cold for cacao culture; nor is the climate favorable for cochineal, cotton, or grape, owing to excessive rains. *Molina, Bosq. Costa R.*, 30-1; *Astaburuaga, Cent. Am.*, 37. Spec. laws have been passed for the promotion of cacao and indigo culture. *Costa R., Col. Ley.*, xi. 299-301; xii. 216-17; *Id.*, *Col. Ley.*, 1866, 161-2; *Id.*, xix. 184-6.

[XXXII-20] As late as 1829 her sole article of export was Brazil wood. The miserable condition of the country made its name ridiculous. But in a few years the situation became changed. An act was passed Sept. 7, 1831, to promote coffee culture, and in 1835 the first export of the article took place.

Another decree for the same purpose was issued in 1843. *Id.*, iii. 94-6; *El Nicaragüense*, Jan. 9, 1856. In 1845 no less than 45,000 quintals were produced; in 1848 double that quantity; and in 1850, 140,000 qls; from 1854 to 1856 there was no increase, owing to cholera, locusts, and the Walker war in Nic. However, the crop of 1856 was about 55,200 qls. *Costa R., Gaceta*, Jan. 26, 1850; July 1 to Sept. 23, 1854; *Id., Boletín Ofic.*, June 29, 1854; *Id., Mem. Sec. Rel.*, 1856, 10-12; *Guat., Gaceta*, Oct. 7, 1853; *Wagner, Costa R.*, 41, 307-21; *Squier's Cent. Am.*, 454-72; *Laferrière, De Paris à Guatém.*, 48-9; *Belly, A trav. l'Amér. Cent.*, i. 397-400.

[XXXII-21] In 1862 there was a fair crop: 1873, 333,843 qls; 1874, about 300,000 valued in Puntarenas port at \$15.50 per quintal of 100 lbs.; 1876, a scanty crop; 1877, 186,000; 1877, 180,652; 1879, excessive rains caused heavy loss; 1884, about 375,000 quintals; but 1885 only yielded 125,000 or 130,000. *Costa R., Informe Sec. Interior*, 1862, 10-11; *Id., Sec. Agric.*, 1874, 28; 1876, 20-1; 1878, 14; 1879, 22; *Laferrière, De Paris à Guatém.*, 34; *Jülfs, Die Seehäfen*, 18; *Pan. Star and Herald*, Apr. 9, 23, 1885.

[XXXII-22] The manufacture of rum from sugar-cane is a government monopoly. The cultivation of tobacco has been for many years under the strictest regulations; its manufacture and sale was exclusively in the hands of govt agents. In 1850 it was declared free from Jan. 1, 1852, but the law was repealed June 23, 1851. In 1869 the monopoly was abolished, but restored again by law of Feb. 4, 1884. *Molina, Bosq. Costa R.*, 30; *Costa R., Col. Ley.*, x. 132-40; xi. 331-3; *Id., Col. Ley.*, 1869, 15-17, 219-20; *Id., Mem. Sec. Hac.*, 1852-3; *Id., Mem. Sec. Gobern. Hac., etc.*, 1884, 25-6.

[XXXII-23] The U. S. govt evinced in 1863 a disposition to promote its cultiv. See correspond. of agric. dept. with U. S. consul in Pan. *Bidwell's Isth. Pan.*, 268-70.

[XXXII-24] Exempting from taxation, and by other privileges. *Pan. Ley.*, 1876-7, 7; *Id., Gaceta*, Jan. 7, 1877; *Bidwell's Isth. Pan.*, 264-72; *U. S. Gov. Doc.*, H. Ex. Doc. 113, vol. vi. 1-2, 35-7, Cong. 41, Sess. 2.

[XXXII-25] Tobacco, 2,770 quintals; grain, 197,320 qls; cacao, 261 qls; sugar, 155 qls; panela, 29,445 qls; molasses, 4,694 jugs; coffee, 2,853 qls; rubber, 80 qls; sundries, 354,285

qls; medicinal roots, 390 qls. Total value, \$518,662. *Pan., Mem. Sec. Fomento*, 1882, annex L.

[XXXII-26] No sheep are raised, and the goats, sometimes killed, are a poor substitute. The pork is excellent. Live-stock said to exist on the Isthmus in 1882: neat cattle, 114,157; mules and asses, 470; horses, 9,942; goats, 24,732; hogs, 203,209. Total value, \$1,270,945. *Id.*

[XXXII-27] It would take too much space to enumerate them; but a list may be found in the report on the physical and polit. geog. of the state of Pan., drawn up by a commission despatched thither for that purpose, by the govt of New Granada, in 1859. See also report of Martin, New Granada minister in London, May 1858, in *Bidwell's Isth. Pan.*, 322-40.

[XXXII-28] Silver ores are the most abundant, and chiefly located on the Pac. group of mountains, whereas the gold washings, if not the gold mines proper, are most numerous on the Atlantic side. The mineral districts in the departments of Tegucigalpa, Choluteca, and Gracias are very rich in silver in various combinations. The upper or old mine of Coloal yielded 58 per ct. of copper, and 78 to 84 ounces of silver to the ton; the ores of the new mines of Coloal, a combination of chloride of silver, a little sulphuret of silver, oxide of iron, and antimony, mixed with earthy matter, yielded 8,470 ounces per ton of 2,000 lbs. Gold mines abound in Hond., but only a few have been worked. The chief supplies have been drawn from the washings of Olancho. The rivers of Guayape and Jalan, as well as the streams running into them, are decidedly the richest in auriferous sands. The finest gold is from the Guayape, Jalan, and Mangualil, and from the Sulaco, Caimito, and Pacaya, in the dept of Yoro. The southern districts bordering on Nic. have rich placers. Hond. has also mines of copper, iron, platina, cinnabar, zinc, and coal. Very productive opal mines are worked to some extent in Gracias. Amethysts are said to be found in Campuca. *Squier's Cent. Am.*, 145-51, 178-89; *Id.*, *Hond. R. R.*, 85-94; *Montgomery's Narr.*, 1134; *Baily's Cent. Am.*, 100-2; *Hond. Gac. Ofic.*, Feb. 20, March 10, 1853; *Wells' Hond.*, 233-539, passim.

[XXXII-29] Foreigners are allowed to work and own mines, under the federal law of June 27, 1825. The ordenanzas of New Spain regarding mines were declared to be in force June 17, 1825. *Rocha, Cód. Nic.*, i. 209; *Guat., Recop. Leyes*, i. 238.

[XXXII-30] The absence of roads and difficulty of travel make mining unprofitable as yet. *Presid. Soto, Mensaje*, Feb. 19, 1883; *Pan. Star and Herald*, March 23, 1883; Feb. 23, 1886; *H. S. Davys' Gold Fields along the Guayape, etc.*, in *Cincinnati Enquirer*.

[XXXII-31] Combined with lead and copper, and also as a sulphide of silver. Materials convenient for working them were at hand. The Central Am. Mining Co. operating on the locality sold between 1858 and 1865 ore and bar silver to the amount of 621,000 ounces, worth over \$700,000. *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 40, Sess. 2, pt 1, 212-14; *Squier's Cent. Am.*, 526; *U. S. Land Off. Rep.*, 1867, 116-17, 131-2, 188-90; *Nic., Gaceta*, Apr. 28, 1866.

[XXXII-32] Early in the present century nuggets of 22 carats were found near Chol. In some mines the ore treated with quicksilver yielded one ounce of gold to the 100 lbs., or \$320 to the ton of 2,000 lbs. *Blazquez, Opinion*, in *Doc. Orig. Chiapas*, 5.

[XXXII-33] Gold placers in the dept. of Izabal were being worked on a large scale. Several silver mines promise large yields when they become exploited. The Indians of Zunil repeatedly offer for sale in Quezaltenango quicksilver obtained from a mine which they keep strictly secret. In the departments of Quiché, Alta, Vera Paz, and Huehuetenango are salt springs and deposits; in Chimaltenango peat and lignite; between Guastoya and Izabal, marble; and in several places on the Atlantic slope, coal. The government had a mineralogical survey of the country made. *Guat., Mem. Sec. Hac.*, 1882, 28; 1883, 34, 72-4; *Id., Mem. Sec. Fomento*, 1884, 42; *Wagner, Costa R.*, 36; *Pan. Star and Herald*, Jan. 17, 1883.

[XXXII-34] Among them must be mentioned zinc, iron, copper, lead, tin, antimony. The mines of lead, iron, and copper are believed to be inexhaustible. They are situated in a fertile, cool, healthy, and picturesque region, affording every other facility for working them. The whole northern frontier abounds in silver, a little of it being obtained by primitive processes. Quicksilver mines, though not rich, are common. The gold veins of Nic. come from Hond., running along the cordillera to the San Juan River, where they become somewhat ramified before crossing it, and reappear in Costa R. The chief one crosses the Machuca River. The gold is almost pure when washed from riverbeds, and more or less mixed with silver when dug out of the

earth. In the districts of Juigalpa and Libertad hundreds of mines have been entered. The Jícaro mines near Trinidad, and those of Santa Rosa, Achuapa, San Francisco, etc., have been famous. The Potosí and Corpus in colonial times yielded large quantities of gold. The whole upper region of the Coco River is rich. It may be asserted that the mines of Nic. are excellent, but the miners are generally incompetent. They use the crowbar, avoiding gunpowder as too expensive. Men are easily procured, who work steadily though slowly and by primitive methods, earning \$8 to \$10 per month, and their rations. The mills are mostly poor. Sixteen carat gold is worth at the mine \$12 an ounce, but the average price paid by factors was \$8 or \$9. Considerable quantities of gold are taken by the Indians from river sands and bed, and washed in pans. *Lévy, Nic.*, 160-6, 482-6; *Squier's Cent. Am.*, 364, 392-400; *Id., Nic.*, 653-6; *Nic., Mem. Min. Fomento*, 1871; *Id., Mem. Min. Rel.*, 1875; *U. S. Gov. Doc.*, H. Ex. Doc., 212-13, vol. x., Cong. 31, Sess. 1; *Belly, Nic.*, i. 340-6; *Nic., Gaceta*, Nov. 11, 1865; May 26, 1866, suppl.; Sept. 7, 1867; Jan. 11, July 18, Aug. 8, 1868.

[XXXII-35] *Nic., Gaceta*, March 1, 1873; *Rocha, Cód. Nic.*, i. 163-72; *Nic., Correo Ist.*, Aug. 29, 1850.

[XXXII-36] It is said their yield was 47 to 2,537 oz. of silver to the ton. Dunlop has it that they yielded at one time \$1,000,000 annually, though worked rudely and without machinery, and the chief one of them once produced \$200,000 annually. *Trav. in Cent. Am.*, 277. A French company undertook to work the Tabanco and Encuentros, invested a large capital, and sustained losses. The Loma Larga and Divisaderos, though represented as richer, probably fared not much better. *Dunn's Guat.*, 225-6; *Baily's Cent. Am.*, 92-3; *Squier's Cent. Am.*, 291-4; *Salv., Diario Ofic.*, Dec. 1, 2, 1875; Jan. 23, 1876; Jan. 28, 1879; *Id., Gaceta Ofic.*, Oct. 24, 1875; Jan. 30, Aug. 15, Nov. 11, 1877.

[XXXII-37] *Squier's Coal-mines of Riv. Lempa*, 3-13.

[XXXII-38] It is believed that the Tisingal, which gave the country its name, lies near the Colombian frontier on the Atlantic. *Molina, Bosq. Costa R.*, 33.

[XXXII-39] *Squier's Cent. Am.*, 457; *Lond. Geog. Soc., Jour.*, vi. 128; *Thompson's Guat.*, 214-15; *Dunlop's Cent. Am.*, 42; *Costa R., Gaceta*, July 15, 1854; *Id., Inf. Sec. Hac.*, 1872; *Laferrière, De Paris à Guatém.*, 36; *Wheelright's Isth. Pan.*, 7.

[XXXII-40] Information for the years preceding 1800 may be gleaned from *Juarros, Guat.*, 16-79, passim; *Id., Stat. and Com. Hist. Guat.*, 21-105, passim; *Montanus, Die Nieuwe Weereld*, 275-7; *Arevalo, Compend.*, 175; *Russell's Hist. Am.*, 191, 391-2; *Churchill's Coll.*, viii. 764-5; *Dunn's Guat.*, 222-5; *Squier's Trav.*, i. 39-40; *Id., Guat.*, 586-7. To the end of the Spanish rule most of the precious metals from Hond. were smuggled out through Belize and Mosquito, probably one third only reaching the mint at Guat. The coinage in 1817-18, was \$983,225; 1820-4, \$1,319,106. *Thompson's Guat.*, 217, 520. The superintend. of the old Guat. mint calculated the coinage in gold and silver for the 15 years anterior to 1810 at \$2,193,832, and for the 15 years posterior at \$3,810,382, adding that much of the production had been exported in its native state or manufactured. He estimated the actual products of the mines in those 30 years at ten times the amount coined; his estimate could probably bear some deduction. *De Bow's Review*, Jan. 1855, 77-8.

[XXXII-41] The Guat. mint has coined in the years 1879-83 \$974,957, all in silver pieces from one dollar down to 3¼ cents. *Guat. Mem., Sec. Hac.*, 1880-4, in tables 6, 11, 14, 20, 18, respectively. The coinage of the Costa Rican mint from 1829 to 1880, both inclusive, was as follows: gold, \$2,351,808; silver, \$568,648; copper, \$1,682; total, \$2,922,138. *Costa R., Mem. Min. Hac.*, 1883, table 11.

[XXXII-42] 'Hay oro en mucha cantidad; están descubiertos veinte rios, y treinta que tienen oro salen de una sierra que está fasta dos leguas de esta villa.' *Carta, Eno 20, 1513*, in *Navarrete, Col. Viages*, iii. 363.

[XXXII-43] They were several times plundered by buccaneers. Harris in 1684 took away 120 lbs. of gold. Dampier speaks glowingly of them in that year; 'the richest gold mines ever yet found in America.' *New Voy. round the World*, i. 158-9. Another exped. in 1702 carried off 50 lbs.

[XXXII-44] An extensive and able report by the governor, many years after, gives much information on the whole Darien region, especially on its mineral wealth, making particular mention of the Cuque gold mine, and of a silver one in the country of the Curias Indians, who allowed no whites to visit it. *Ariza, Comentos de la rica y fertilísima Prov. del Darien*, Apr. 5, 1774, MS., 2, 12, 19-21, 32-7; *Id.*, in *Anales Instruc. Púb. Colombia*, May 1883, 369, 380, 687-9, 397-401.

[XXXII-45] *Gisborne's Isth. Darien*, 173; *Pan.*, *Boletin Ofic.*, July 4, Aug. 1, 1867.

[XXXII-46] *Restrepo, Minas de Oro y Plata de Colombia*, in *Anales Instruc. Púb. Colombia*, Mar. 1884, 230-45. Many rivers are represented to contain abundance of gold, namely, Marea and Balsas in Darien, Coclé, Belen, Indios, and their tributaries. Their are mines in Las Tablas, etc. Gold has also been taken from Indian graves. *Seemann's Narr.*, i. 242-3; *Pan.*, *Crón. Ofic.*, March 6, 1853; *Id.*, *Gaceta del Est.*, Dec. 15, 1855; June 14, 1856; June 22, 1857; Sept. 23, Oct. 22, 1859; May 4, 1860; *Id.*, *Gac.*, Sept. 6, 1873; Feb. 20, 1876, to May 8, 1881, passim; *U. S. Govt Doc.*, 54, 169-72, vol. ix., Cong. 40, Sess. 3.

[XXXII-47] Six hundred and four millions in gold and auriferous silver, and 26 millions in silver. *Restrepo, Vicente, Industria Minera*, in *Pan. Star and Herald*, Jan. 2, 1884.

[XXXII-48] *Bogotá, Gaceta Ofic.*, Feb. 6, 1848; *Pan.*, *Gac. Estado*, Aug. 4, 1855; Jan. 5, 1856; May 10, 1862; *Id.*, *Gac.*, Aug. 22, 1874; Feb. 27, 1875; Jan. 12, 1876; Nov. 7, 1880; *Id.*, *Boletin Ofic.*, Dec. 7, 1867; *Id.*, *Star and Herald*, Feb. 28, 1876; *Wheelright's Isth. Pan.*, 8; *Pan. Rept on Coal Bocas del Toro*, in *Costa R. Bound*, 3-19; *Selfridge's Explor.*, 177-80; *U. S. Gov. Doc.*, H. Ex. Doc., 41, 45-53, vol. vi. Cong. 36, Sess. 2; *S. F. Bulletin*, July 26, 1873.

[XXXII-49] They were known, however, from the earliest times, and the needs of the inhabitants in cotton and woollen goods, pottery, etc., were mostly supplied at home. The decline of cotton manufactures began in 1773, after the destruction of old Guat. city, and was completed when permission was given a little previous to 1799, for the importation of foreign manufactured goods. *Diario, Méx.*, March 29, 1806; *Juarros, Guat.*, i. 16-82, passim; *Saravia, Bosq. Polít. Est.*, 12; *Guat., Apuntam.*, 12, 138-9.

[XXXII-50] Exempting from taxation, establishing schools of mechanic arts, introducing skilful mechanics, granting subsidies, etc. *Montúfar, Resumen Hist.*, i. 321; *Guat., Mem. Sec. Fomento*, 1880-4; *Batres, Sketch*, 53, 60.

[XXXII-51] Guat. has been creditably represented at several international exhibitions; she has also entered into conventions with several foreign powers to secure patents for inventions.

Costa R., Mem. Sec. Rel., 1884, annex 8; *El Guatemalteco*, Sept. 24, Oct. 12, Nov. 1, 1884; *Voz de Méj.*, Sept. 14, 1878; *Guat., Mem. Sec. Fomento*, 1885, 36-8.

[XXXII-52] A cotton rebozo may be had for \$4 or \$5, and a silk one for \$12, the finest selling at from \$16 to \$20. *Laferrière, De Paris à Guatém.*, 209-10.

[XXXII-53] Some machinery for refining sugar, ginning cotton, distilling liquors, cleaning coffee, sawing lumber, and extracting fibres have been introduced. *Nic., Mem. Min. Fomento*, 1871, 3.

[XXXII-54] Mats, baskets, palm-leaf and maguey hats, and cordage. The hammocks of Masaya and Sutiaba are much esteemed. Cotton fabrics are coarse but strong, and dyed with permanent colors, and of original design. They also make good rebozos, but the silk in some of them is imported. Hides enter into the manufacture of several common articles. Rum is made and sold by the govt. The miller's art is in its infancy. *Lévy, Nic.*, 486-91; *Squier's Cent. Am.*, 373; *Rocha, Cód. Nic.*, i. 188-90; *Nic., Reg. Ofic.*, 328-9; *Sandoval, Rev. Polít.*, 58.

[XXXII-55] Aside from some furniture, arms, etc., their hammocks, nets, cotton goods, and pottery, are all made in a very primitive manner. There is no skill whatever. *Fernandez, Col. Doc.*, iii. 366-8; *Costa R., Censo*, 1864, p. xxv. Beer and rum are also made, the latter said to be a good imitation of Jamaica; distilling rum is a govt monopoly. *Laferrière, De Paris à Guatém.*, 53; *Costa R., Col. Ley.*, v. 122-45; xi. 331-46.

[XXXII-56] Subsidies granted in 1885 for silk culture and manufacturing paper, rebozos, cotton goods, and sacks. *Costa R., Gaceta*, Aug. 2, 5, 12, 13, 1885; *Pan. Star and Herald*, Sept. 9, 1885.

[XXXII-57] An official report for 1882 gave the following as about the extent of such industry in that year: 1,600 rush hats and 1,600 of jipijapa, 200 M tiles, 7 M jars, 525 M bricks. *Pan., Mem. Sec. Fomento*, 1882, annex L. It is said that a factory for making carriages was opened in 1885. *Pan. Star and Herald*, Jan. 5, 1886.

[XXXIII-1] Two or three vessels at most came every year to Acajutla from Peru with wines, olive oil, and other articles for the

table, and 200,000 or 300,000 pesos in specie for the purchase of indigo. From Cuba came eight or ten vessels with petty cargoes of rum, onions, etc., the average worth being \$5,000 or \$6,000. They each took back, besides indigo, 30,000 or 40,000 pesos in coin and in gold and silver bullion. *Mex., Gaceta*, 1804-5, xii. 178-80; *Cancelada, Ruina N. Esp.*, 48-9; *Córtes, Col. Doc.*, ii. 341; *Henderson's British Hond.*, 30-1, 35; *Guat., Apuntam.*, 136-41; *Nic. y Hond., Docs.*, 11-12; *Arrillaga, Informe*, in *Cedulario*, iv. 60-1; *Urrutia, Modelo*, 2-3; *Guat., Gaz.*, vii. 293-320, passim; iii. 70, 464, 504.

[XXXIII-2] This hybrid commerce was effected through Belize and Curaçoa; and also by foreign whalers at Realejo and Acajutla, where they were wont to enter with the pretext of procuring water and fresh stores, and while in port sold English goods, receiving in return copper, wool, sugar, cacao, etc. *Humboldt, Essai Polít.*, ii. 467-73.

[XXXIII-3] *Bustamante, Voz de la Patria*, iv. no. 18, 4-8; *Guat., Recop. Ley.*, i. 745-7; ii. 301; *U. S. Gov. Doc.*, H. Ex. Doc., 75, 215-16, x., Cong. 31, Sess. 1; *Squier's Trav.*, i. 44-5.

[XXXIII-4] In 1853 the several governments entered into contracts with the Central Am. Steam Navigation Co., an American concern, to run a line of steamers once a month between Iztapam in Guatemala and Panamá, touching at Acajutla, La Libertad, La Union, Amapala, Realejo, San Juan del Sur, and Puntarenas, for the conveyance of passengers, merchandise, and mails at fixed rates, each government paying a subsidy, and allowing exemptions from port dues and other privileges. The service began early in 1854, and continued with repeated trips in each month, first by the Panamá Railway Company's steamers, and subsequently by those of the U. S. Pac. Mail Steamship Company. *Costa R., Boletin Ofic.*, Feb. 16, 1854; *Id., Col. Ley.*, xii. 256-7; *Salv., Gac.*, Jan. 20, 1854; *Id., El Rol*, Dec. 1, 1854; *Cent. Am. Miscel. Doc.*, 44; *Hunt's Merchants' Mag.*, xxiii. 113.

[XXXIII-5] Guatemala: chief articles of export, cochineal, coffee, cotton, wool, sugar, India-rubber, hides, and indigo; also rice, mules, cacao, pork, horns, timber, sarsaparilla, vanilla, tobacco, etc. Cochineal at one time was a great staple, the export being nearly 68,000 centals in 1860-4, and about 59,000 centals in 1870-4; reduced to about 2,845 in 1879-83. The principal importations were comestibles, wines and liquors, cotton, linen, woollen, and silk fabrics, clothing, hats, fancy goods, furniture,

arms, articles for agric., arts, and sciences. Arms, lead, and gunpowder might not be imported without special permission of the govt. Some articles were exempt from duty, such as material for ship-building, instruments for medicine, surgery, science, schools, arts, implements of agric., machinery, and tools for manuf., steam-engines, money, gold, silver, guano, mineral, coal, etc. Articles of luxury paid an import duty; foreign manufactures entered with a high duty. Small amounts should be paid at the time of entry in cash; and larger sums, part at the adjustment of the duties, and the rest in instalments of from one to three months. The republic has several ports open to foreign commerce on both oceans; namely, Santo Tomás, Livingston, and Golfo Dulce, which is navigable only for vessels of light draught, on the Atlantic, and San José, San Luis, Champerico, and Ocos on the Pacific. Iztapam or Independencia was closed in 1853, and the custom-house removed to the roadstead of San José, which is sheltered by a bold breakwater. Actual value of foreign trade: imports, 1851-7, \$7,672,682; 1860-4, \$6,268,227; 1871-5, \$12,304,289; 1876-80, \$15,054,152. The average of importations in the five years 1880-4 was \$2,700,000. The largest importations in 1883 were from G. Britain, including Belize, \$884,205; U. S., \$529,458; France, \$149,687; Germany, \$128,296; Switzerland, \$76,278; Spain, \$65,470; China, \$54,855. The rest from Belgium, Cent. Am., Italy, Colombia, and Denmark. The war between Guat. and Salv., and revolution in Pan., paralyzed trade in 1885. It is noticed that notwithstanding the greater proximity and wealth of the U. S., Guatemala's commercial relations are greater with England. Exports: 1851-7, \$9,613,099; 1860-4, \$7,386,541; 1870-4, \$12,418,083; 1879-83, \$22,552,867. Coffee loomed up from none in 1860-4, 695,671 centals in 1870-4, to 1,519,494 centals in 1879-83. Sugar was also a prominent staple, followed by India-rubber. The number of merchant vessels which visited Guat. ports on the Pac. during 1883 were 7 steamers of the Pac. Mail S. Co., which made their periodical trips; 3 stmr. of the Kosmos (German) line, to which special privileges were granted by the Guat. govt, in 1882. Sailing vessels, 6 Am., 1 Eng., 6 French, 3 German, and 1 Salvadoran. To Livingston, on the Atlantic, came monthly 4 Am. and one Eng. steamer. Seven vessels did coasting trade under the Eng. flag. Vessels arrived in 1884, 171 with 173,982 tons; departed 168 with 173,758 tons, carrying away 109,402 packages of merchandise and products of the country.

Honduras: exports consisted of bullion, mahogany, and other woods, hides, sarsaparilla, tobacco, cattle, and indigo; the imports, of cottons, silk, hardware, etc. The chief ports are Omoa and Trujillo on the Atlantic, and Amapala on the Pacific. Values of imports: 1856, \$750,000, chiefly from Great Britain; 1867, \$750,000; 1873, \$1,000,000; 1877, \$640,000; 1880, \$750,000; 1882-3, \$2,885,000; 1886, from \$2,000,000 to \$2,500,000. The tariff was low. Exports: 1856, \$825,000; 1867, \$825,000; 1872-3, \$2,370,000; 1876, \$1,234,983; 1877, \$595,000; 1880, \$650,000; 1882-3, \$3,415,000; 1886, \$2,000,000 to \$2,500,000. British Hond. or Belize: imports: 1873, \$1,183,074; 1878-81, \$1,923,000, nearly two thirds from G. Britain, and the rest from the U. S. Exports: \$1,251,000, about two thirds to G. Britain, and the rest to the U. S. The principal exports to the latter country were woods, raw sugar, fruits, nuts, coffee, drugs and dyes, rubber, hides, etc.

Salvador: articles of export, indigo, coffee, sugar, tobacco, caoutchouc, rebozos, balsam, hides, and cotton. Imports: comestibles, wines and liquors, cotton, linen, woollen, and silk fabrics, hardware, etc. The ports of entry were La Union, La Libertad, and Acajutla. Imported goods pay duties according to the tariff, which were mostly specific, but many articles paid, besides, 20 per cent ad valorem. Products of the other Central American states on being imported, reciprocity existing, paid only 4 per cent ad val. Articles intended for the development of industries and education were exempt. The importation of arms, without special leave of the government, alcohol and common rum, cognac, gin, absinthe, aniseed, coriander, sassafras, saltpetre, and obscene images was forbidden. Products of the country were free from export dues, except indigo, ores, gold and silver bullion, and jewelry. Import values: 1855-61, \$6,816,879; 1864, \$1,233,711; 1866-8, \$5,799,912; 1871-4, \$12,869,514; 1877, \$2,186,000; 1880-3, \$5,750,000. Exports: the greater part to Great Britain, the U. S. occupying the second place: 1855-61, \$8,831,990; 1864-8, \$13,931,675, cotton counting somewhat among the exports during the war in the U. S.; but after its termination this staple ceased to figure; 1871-8, \$29,206,953; 1880-3, \$8,708,000.

Nicaragua: principal markets, U. S., Eng., France, and Cent. Am.; chief exports, coffee, India-rubber, cattle, hides, and gold; also cabinet and dye woods, indigo, sugar, rum, cacao, dairy products, gums, pearl and tortoise shells, etc. Ports San Juan del

Norte, San Juan del Sur, and Realejo or Corinto. The first named was declared a free port in 1860. Import values: 1861-73, \$3,355,600, exclusive of coin, and not including the years 1870-2. *Nic., Gaceta*, Feb. 21, 1874. Lévy, a good authority, gives the imports for 1865-71 at \$6,275,324, adding that in the first two years the balance of trade was against Nic. to the amount of \$453,429; 1873-6, \$4,313,876; 1877-80, \$5,117,661; 1881-4, \$7,157,525; these figures include about half a million dollars in coin. Wholesale merchants sold at long terms, often 18 months; most of the buyers disposed of the goods at once, with 20 per ct loss, but for cash, and during 17 months' use of the capital making as much as 50 per ct profit, which enabled them to pay for the merchandise originally bought. Exports: 1861-73, \$4,153,677, without including for 1871-2. Lévy has for 1865-71, \$6,789,841; 1873-6, \$5,694,009; 1877-80, \$6,303,589; 1881-4, \$8,926,965. In view of the fall in the price of coffee in late years in foreign markets, and of the decrease in the production of rubber, there was cause to fear that the day was not distant when the balance of trade would be against Nic., unless with the facilities afforded by the railroads the exportations of timber and dye-woods should be greatly developed, as expected. The exports of cattle to the other states of Cent. Am. have become quite considerable. The two chief centres of internal trade were Granada and Leon, which supplied their own departments. Chontales was supplied from the former, Segovia from the latter, Matagalpa from both. Rivas and Chinandega imported a portion of their supplies, buying the rest respectively at Granada and Leon. Rivas furnished cacao; Jinotepeque and Chinandega, sugar; Leon, corn and salt; Masaya and other towns, edibles.

Costa Rica imported cotton, linen, woollen, and silk fabrics, fancy articles, comestibles, wines, liquors, and other things, from England, France, U. S., etc., and exported chiefly coffee, tortoise-shells, hides, rubber, vanilla, sarsaparilla, timber, etc. Her ports for foreign trade are at present Limon on the Atlantic, and Puntarenas on the Pacific; the latter being, down to 1883, almost the only port of Costa Rica; but of late the former, owing to railroad facilities, has obtained the first rank; shipments through Puntarenas being mainly of produce from Esparta, and other places near it. It was a free port at one time, but ceased to be such in Jan. 1861. In earlier years Matina and Caldera had been open ports, and even Guanacaste was made a free port in 1848. Port Limon was created in Oct. 1852; it has a free zone under decrees passed in 1883. Costa Rica's import values: 1845, \$463,000,

through Matina and Puntarenas; 1852-9, \$7,330,398; 1864, \$1,718,000; 1871, \$2,225,000; 1873-4, \$6,980,000; 1877, about \$2,000,000; 1880-3, \$7,220,000. Exports: 1845, \$631,700; 1852-9, \$7,458,913; 1864, \$1,812,682; 1868, \$2,189,118; 1871, \$2,288,450; 1873-4, \$8,192,517; 1877, \$5,308,000; May 1, 1879, to Apr. 30, 1881, \$7,724,810; 1882-3, \$6,470,000. The exports of coffee from Puntarenas and Limon in 1884 were 191,719 centals. Large quantities of bananas were also exported from Limon. Vessels arrived in 1882-3, at Limon 86, at Puntarenas 75; in 1883-4, at Limon 77, at Puntarenas 110. *Marure, Bosq. Hist. Cent. Am.*, i. 147; *Baily's Cent. Am.*, 158; *Squier's Cent. Am.*, 269-70, 310, 458-9, 471-2, 526; *Squier's Travels*, i. 83; *Molina, Bosq. Costa R.*, 31-3, 64-6; *Belly, Nic.*, i. 93; *Laferrière, De Paris à Guatém.*, 34-7, 51-4, 168-9, 261-3, 436; *Am. Cyclop.*, v. 290, 395; viii. 790; xiv. 610; *Montúfar, Resumen Hist.*, v. 519; *Encyclop. Brit.* (Am. ed.), vi. 398; xii. 135-6; *El Guatemalteco*, March 19, May 19, 1884; *Wappäus, Mex. und Cent. Am.*, 322, 359; *Jülfs, Die Seehäfen*, 36; *Lévy, Nic.*, 512, 516-17; *Batres' Sketch Guat.*, 862-6, 73; *Camp's Year-Book*, 1861, 527; *Salv., Constitucional*, no. 6; *Id., Diario Ofic.*, June 3, 7, Oct. 21, 1875; March 4, 1876; Sept. 17, 1878, suppl.; Jan. 11, May 3, 1879; *Id., Gac.*, Aug. 12, 1853; Oct. 27, 1876; Feb. 27, 1877; *Nic., Gaceta*, Dec. 23, 1865; Dec. 15, 1866; Aug. 22, 1868; March 12, 1870; *Id., Decretos*, 1869-70, 141-4; *Id., Boletin Ofic.*, March 8, 1862; *Id., Mem. Min. Fomento*, for years 1867-71; *Id., Mem. Min. Hac.*, 1871-83; *Presid. Cárdenas, Mensaje*, Jan. 15, 1885; *Guat., Recop. Ley.*, i. 771, 785-92; *Id., Gob. Democ.*, i. 2-3; *Guat., Mem. Sec. Hac.*, for years 1880-4; *Id., Mem. Sec. Fomento*, for years 1883-5; *U. S. Gov. Docs., Comm. Rel.*, for years 1856-77; *Id., H. Ex. Doc., Cong. 43, Sess. 1, vol. i. years 1873-4*, 440-7; Sess. 2, xvi. 188-95, 200; Cong. 46, Sess. 2, xxv. pt 1, 27; Cong. 47, Sess. 1, xiv. 38; *Costa R., Col. Ley.*, iv. 112-14; v. 232-4; vi. 301-3; x. 78-9, 142-4, 148-57; xvi. 199-200; xvii. 135-6; *Id., Col. Dispos. Legisl.*, 1878, 113-14; *Id., Mem. Sec. Hac.*, 1853, 11-12; 1875, 34; 1880, annexes 15-23; 1883, annexes 11-12; 1884, 24, 246-66, 304, 308; *Id., Informe Sec. Obras Púb.*, 1878, 15-17; *Id., Informe Sec. Agric.*, 1879, 22, and table 4; 1880, 23-4; *Id., Gaceta Gob.*, Jan. 26, Feb. 16, 1850; *Id., Mem. Sec. Marina*, 1883, 7, and two tables, annex 5; *Id., Regl. Franquicias*, 1883, 1-15; *Pan. Star and Herald*, March 23, 1881; Sept. 13, 1882; Jan. 17, Feb. 1, 17, March 23, 1883; March 8, 15, Dec. 16, 1884; March 9, Oct. 24, 1885; June 2, 1886; *La Estrella de Pan.*, Nov. 6, 1884; *Samayoa, J. M., Apuntam.*, 1885, 5.

[XXXIII-6] The principal fairs were held at Chalatenango, San Vicente, and San Miguel, in Salvador. That of San Miguel took place in November, and lasted two weeks. There was another fair at the same town about the beginning of Feb., to which, as well as to the former one, large numbers of cattle were taken from Hond. and Nic. In Guat. annual fairs were held in several places; namely, Esquipulas, where large quantities of merchandise were sold; it was also a cattle fair; Rabinal in Vera Paz, for dry goods; Mazatenango, for cattle, cacao, dry goods, etc.; San Pedro Ayampuk; Sololá, for dry goods, fruit, and stock; Quezaltenango and Chimaltenango, for woollen manufactures. In Jocotenango a fair was held every Aug. In later times fairs have been authorized at several other places, to wit, at the hippodrome, near the capital, Salcajá, Santa Cruz del Quiché, Jalapa, Santa Rosa, and San Pedro Pinula. *Squier's Cent. Am.*, 309-530; *Guat., Mem. Sec. Fomento*, 1882, 38; 1885, 39-40; *Pan. Star and Herald*, Sept. 14, 1885.

[XXXIII-7] The Am. Atlantic and Pacific Ship Canal Co. of New York, of which Vanderbilt and White were the chief owners, undertook to construct an interoceanic canal. Their contract with the Nic. govt involved the privilege to the company of exclusive steam navigation in the interior waters, meaning Lake Nicaragua. The company concluded to separate this privilege from the rest of the contract, and succeeded, Aug. 1851, in obtaining from the Nic. govt the monopoly of transit from San Juan del Norte to San Juan del Sur. It is unnecessary to go into details as to how this was consummated; suffice it to say, it was by fostering the intestine war then raging. *U. S. Gov. Doc.*, H. Ex. Doc., 75, 141-5, x., Cong. 31, Sess. 1; *Id.*, Sen. Doc., 68, 84-103, xiii., Cong. 34, Sess. 1; *Cent. Am. Miscel. Doc.*, 45; *Stout's Nic.*, 272-91; *Wells' Walker's Exped.*, 203-5; *Reichardt, Cent. Am.*, 210-11; *Scherzer, Cent. Am.*, 245-6.

[XXXIII-8] The first steamboat used in Nic. waters was the *Orus*, wrecked on the Machuca rapids; the next, the *Director*, was worked over the rapids, and plied on the lake for several years, being the sole transport for passengers from San Carlos to La Virgen. The increase of the Transit company's business brought the *Central America* and other steamers. *Nic., Corr. Ist.*, Sept. 5, 1850; *Stout's Nic.*, 65-6.

[XXXIII-9] The particulars of this transaction appear elsewhere. Previous to this, in 1854, there had been serious differences between the gov. of Nic. and the company, about the

settlement of accounts, and even then the govt threatened to cancel the charter. *Guat., Gaceta*, May 13, July 8, 1853; *Perez, Mem. Hist. Rev. Nic.*, 55-6; *Id., Mem. Camp. Nac.*, 27-30; *El Nicaragüense*, Feb. 23, 1856.

[XXXIII-10] In 1858 the Nic. govt confiscated the company's property, and the next year made the transit free to all nations. However, under a subsequent arrangement between it and the original Transit co., under the name of Cent. American Transit Co., ratified in March 1861, the latter agreed to reopen the route; but failing to do it within the required time, the govt seized all the property, as agreed in the contract. The matter was settled in diplomatic correspond. with the U. S. govt in 1863. *Rocha, Cód. Nic.*, ii. 133-4, 141-2; *Nic., Dec. y Acuerdos*, 1857-8, 44-5; 1859, ii. 78-9; *Id., Gaceta*, Jan. 16, 1864. The company renewed its operations, and continued them until annihilated by the overland railway to S. F., in 1869. *Lévy, Nic.*, 434.

[XXXIII-11] Costa R. in 1872 forbade the navigation of the Colorado River by Hollenbeck & Co. *Nic., La Union*, June 29, 1861; *Id., Dec. y Ac.*, 1861, iv. 57-68; 1869-70, 100-6; *Id., Gaceta*, Aug. 8, 1868; March 12, July 23, Aug. 20, 1870; Dec. 7, 1872; *Id., Mem. Min. Guerra*, 1872, 12; *Semanal Nic.*, Dec. 5, 1872; *El Porvenir de Nic.*, May 26, June 2, 1872. Trade between Granada and San Juan del Norte was continued in piraguas and steamers, the former measuring from 15 to 25 tons. There were river and lake steamers. Merchandise was first transferred at San Carlos, and often in the summer a second time at the Castillo. For some time the steamboat plying in the lower part of the river passed by the Colorado branch because of scanty water in the San Juan.

[XXXIII-12] *Costa R., Informe Obras Púb.*, for years 1876-80; *Id., Mem. Sec. Fomento*, years 1883-4; *Belly, Nic.*, i. 321; *Lévy, Nic.*, 412; *Nic., Mem. Min. Guerra*, 1875, pp. x.-xv.; *Pan. Star and Herald*, Apr. 2, 1881; Feb. 1, 2, 1883; *Id., Cronista*, Jan. 20, 1883; *Salv., Gac. Ofic.*, Sept. 5, 7, 1876; *Presid. Barrios, Mensaje*, 1876, 39-60; *Guat., Recop. Ley., Gob. Democ.*, 10-12; *Id., Mem. Sec. Fomento*, for years 1880-5.

[XXXIII-13] Gold pieces of 10, 5, 2, and one dollar, the first named having the weight of 16,120 grammes. In former years it coined gold ounces with the weight of 25,836 grammes, worth \$16, and halves, quarters, eighths, and sixteenths; silver peso, and its subdivisions worth 50, 25, 10, and 5 cts. Copper one-cent

pieces containing 95 parts of copper and 5 of nickel. Silver in coins of 10 and 5 cts in legal tender only to the sum of \$100; and cents not exceeding 100. The money coined in Costa Rica in the years 1829-82 has been as follows: gold, \$2,351,808; silver, \$56,648; total, \$2,922,138. *Astaburuaga, Cent. Am.*, 41; *Costa R., Gaceta*, Nov. 21, 1885; *Id., Mem. Sec. Hac.*, 1883, annex no. 10.

[XXXIII-14] There is a nominal money used in retail trade called peso sencillo, worth 80 cents. The old Costa R. doubloon passes for \$14.40 only, and the subdivisions in proportion. The new Costa R. piece of \$5 is worth only \$4.50. Chilian and Colombian condors pass for \$9. *Lévy, Nic.*, 370-1, 521.

[XXXIII-15] It paralyzed foreign trade, became depreciated, and caused other evils. *Montúfar, Res. Hist.*, iii. 277. The govt endeavored to retire this coin by a gradual redemption every year.

[XXXIII-16] Foreign coins pass at their true valuation. Very little money leaves Honduras. *Hond., Gaceta Ofic.*, May 20, 1853; *Squier's Cent. Am.*, 272; *Wells' Hond.*, 567-72.

[XXXIII-17] In former times there was the ounce of \$16 and its subdivisions, and the silver peso with its subdivisions down to medio real, or 6¼ cents. Most of the silver coin in circulation was the macuquina or cut, which was a nuisance. The government in 1873 ordered it retired, which was in the course of time done. The system established in the law of 1870 found favor with the people as regarded gold coin. Not so with silver; the public clinging to the old denominations, and refusing to accept base metals which this law had also provided for.

[XXXIII-18] Standard of the coin 0.900. Weight of the peso 25 grammes.

[XXXIII-19] Mex. eagle \$20; its subdivisions in proportion. Peruvian pieces of \$20 and \$10, and Colombian condors of \$20 and \$10, at their face value. Chilian condors of \$10, \$9.50. German gold piece of 20 marks, \$4.93¾. American, French, and English gold coins have their full value; though they generally command a high premium. Further details may be found in *Guat., Recop. Ley.*, ii. 578-82; *Id., Gob. Dem.*, i. 83, 197; *Salv., Diario*, Dec. 14, 1878.

[XXXIII-20] There were in 1883 two banks, the Internacional and Colombiano, in the city of Guatemala; both having ample capital for a time stood high. The former, founded in 1878, suspended in 1885. The latter, founded in 1879 by capitalists who were mostly Colombians, has no agencies, and limits its operations within the capital of the republic, and to the sale of bills of exchange on foreign markets. There was also the Banco de Occidente at Quezaltenango with a capital of \$100,000; its main object being to assist agriculture and manufactures in the wealthy departments of Los Altos. Its standing was somewhat shaken by its bills having been largely counterfeited in Sept. 1882; but it managed to weather the storm. The Banco de Nicaragua, a bank of issue, loans, and discounts, with a capital of \$600,000, has been quite successful. It was chartered in May 1871. The Banco Anglo-Costaricense went into operation at Managua in 1873, with a capital of \$100,000, under the management of Allan Wallis. The Banco Internacional of Salvador began business on the 20th of Aug., 1880, and has since been prosperous, excepting in 1885, owing to the war with Guatemala, and a subsequent revolution. However, the results of the first six months were satisfactory. In 1867 the Banco Nacional de Costa Rica went into operation at San José, with a capital of \$500,000, and power to increase it to one million dollars, under a contract for ten years between John Thompson and the government. Dec. 1, 1876, the government decreed the statutes of the Banco de Emision, with a capital of \$500,000 secured with mortgages on real estate to the amount of \$1,000,000. But the stockholders failing to pay in the capital, the government suspended the bank, which had been operating, and ordered the books transferred to the Banco Nacional of San José, which was to redeem all notes of that bank in circulation. The Banco Nacional had been created by a decree of Dec. 25, 1877, with a capital of \$250,000. Its operations were not to include the issue of notes. A charter was granted in Jan. 1881, to establish a Banco Hipotecario Franco-Costaricense with a capital of \$500,000. The by-laws were approved by govt in July 1881. The bank was to have a branch in Paris. *Batres' Sketch Guat.*, 24; *S. F Cronista*, Feb. 3, 1883; Jan. 31, Apr. 25, 1885; *Nic., Gaceta*, Aug. 3, 1867; July 8, 1871; *Id., Semanal Nic.*, Apr. 10, 1873; *Pan. Star and Herald*, Aug. 3, 1867; Sept. 2, 1885; *Costa R., Col. Ley.*, xvii. 45-50, 51-5; xx. 4-19, 110-16, 295-7, 304-6, 311-12; xxiv. 197-205; xxv. 245-60; *Id.*, 1878, 104-6; 1881, 17-26, 64-6, 143-68; *Guat., Mem. Sec. Fomento*, 1882, 37.

[XXXIII-21] In 1809 there was a postal service between Guatemala and David in Panamá, via Cartago in Costa Rica, by which route correspondence was kept up with South America. In 1811 a tri-monthly mail was established between Guat. and Mex., Merida, the Windward Islands, and Spain. In 1829 there was a monthly packet between New York and the Isthmus. After that, some sort of mail service was kept up till it became regular with the establishment of steamship lines. In 1844 the first mail steamer touched at Chagres, and in 1845 a line was established between Panamá and Valparaiso. In 1846 a post-route between the two oceans was established under a grant of the Brit. govt. At this time the U. S. contemplated establishing a line of steamers from Pan. to Or. via Cal. The present Pacific Mail Steamship Company was organized in 1847 for that purpose, and on the 5th of Oct. their pioneer steamship, the *California*, went to sea, followed at short intervals by the *Panamá* and *Oregon*. At the inception of the enterprise, success was looked for only from the agricultural resources of the Pacific coast. The discovery of gold in Cal. secured that success. The company kept up the service between N. Y. and Colon, and between Panamá and S. F. via Acapulco and Manzanilla, and later sent ships to China. *Niles' Reg.*, xxxvii. 242; *Pan. Constitucional del Istmo*, Oct. 30, 1834; *Mayer's Mex. as it Was, etc.*, 369-74; *Pan.*, *El Movimiento*, Dec. 22, 1844; *Seemann's Hist. Ist. Pan.*, in *Pan. Star and Herald*, Apr. 17, 1847; *Crosby's Statem.*, MS., 3-10.

[XXXIII-22] Costa R. has been quite successful. The number of pieces received at and forwarded by the main office at San José in 1883 were 1,377,243, against 549,096, in 1880, and 1,172,259, in 1882. In Nic. the service is a source of considerable expense to the govt. In 1861-2, the expenses were only \$5,349. In 1881-2, \$39,327; the receipts \$19,476, leaving a deficit of \$19,851. This is owing to long distances and sparse population. In Hond. the exchange of mail matter amounted in 1880 to 937,331 pieces; the expenses of the department, \$17,102. In Guat. the aggregate amount of mail matter was as follows: 1880, 835,906; 1881, 1,039,652; 1882, 1,400,043; 1883, 2,111,366; 1884, 2,912,411. The receipts in 1884, \$48,342; expend. \$46,017. The appropriation for the fiscal year 1886-7 was computed at \$58,812. *Costa R.*, *Mem. Sec. Gobern.*, years 1883-4; *Id.*, *Guerra*, 1880, 1883; *Id.*, *Hac.*, 1884; *Id.*, *Gaceta*, Feb. 3, 1885; *Pan. Canal*, Jan. 13, 1883; *Id.*, *Star and Herald*, July 2, 1881; Feb. 8, 1883; Sept. 9, 1885; *Nic.*, *Informe Sec. Hac.*, 1875; *Id.*, 1883; *Id.*, *Mem. Sec. Gobern.*, 1883; *Salv.*, *Diario Ofic.*, Feb.

18, Nov. 30, 1875; July 12, Nov. 2, 1878; March 5, 1879; *Guat., Mem. Sec. Fomento*, 1880-5; *Id., Presupuesto Gen.*, 1886, 18-19; *Encyc. Brit.*, xvi. 492; *El Guatemalteco*, Feb. 2, Sept. 24, 1884; *Batres' Sketch Guat.*, 69-76.

[XXXIII-23] Crosby's *Statem.*, MS., 3-10. At the sailing of the *Panamá* there were 2,000 persons to embark for S. F.; four steamships to sail for the same destination; namely, *Sarah Sands*, *Carolina*, *Isthmus*, and *Gold Hunter*. Early in the summer of the same year there were 4,000 passengers waiting for vessels to take them to Cal., in a place which could hardly afford accommodations for 100. Hundreds of deaths occurred. *Pan. Star*, March 29, 1850; *Sac. Placer Times*, i., Apr. 26, 1850; *Advent. of a Capt.'s Wife*, 18; *Cal. Courier*, Sept. 14, 1850. The steamer *W. H. Aspinwall* then began to ply on the River Chagres, between Chagres and Gorgona, which did away with the bongos nuisance. *Sac. Transcript*, March 14, 1851.

[XXXIII-24] 1850-5 were years of brisk business for the Isthmus. Gold circulated so abundantly that few did not handle gold coin. Provisions ruled high. Silver was so scarce that in 1850 a five-dollar gold piece could buy only 40 dimes. Americans said that Panamá was a better place for business than S. F. *Maldonado, Anales Polít. Pan.*, MS., 7.

[XXXIII-25] 1852-66: passengers, 517,852; gold and silver, \$849,157,076; paper money, \$19,062,567; jewelry, \$513,001; 1855-66: merchandise, mail matter, baggage and coal, 614,535 tons. Mail matter averaged 380 tons yearly. Merchandise steadily increased from 10,658 tons in 1856, the lowest, to 93,414 tons in 1866, the highest; and coal from 8,934 in 1856 to 13,418 in 1866. In 1860 and 1861, the coal transportation exceeded 16,000 tons a year. The total tonnage transported across the road in 1856 was 20,053, which increased every year till it reached 107,590 tons in 1866. The largest number of passengers crossed was in 1859, 46,976, nearly 5,000 in excess of 1858; the smallest number was in 1862, 26,420, being 5,280 less than in 1866. The large travel of 1859 was due to great reduction of passage money by steam lines running in opposition. The gold transported in 1856 was \$48,047,692; in 1866, \$48,234,463; at no other period did it equal these amounts. Silver showed a gradual increase from \$9,439,648 in 1856 to \$18,653,239, declining in 1866 to \$14,331,751. Paper money was transported by the U. S. govt during the war. Jewelry varied from \$192,718 to \$844,490, but gradually declined. The tariff rates established by the company

Jan. 1, 1865, were as follows: passengers, foreign, \$25 each, children of 6 to 12 years one half, under 6, one quarter; Colombians, \$10 each. Baggage exceeding 50 lb., 5 cts per lb. Merchandise, special rates: 1st class paying 50 cts per cubic foot; 2d to 6th 1½ cts to ¼ cent respectively per lb. All payments in Am. gold, or its equivalent. *Otis' Hist. Pan. R. R.*, 139-45; *Bidwell's Isth. Pan.*, 277-86, 389-93. In 1867, the value of the transit trade in merchandise and treasure over the route was \$92,191,980, and 35,076 passengers. In 1872 the road conveyed 194 millions pounds of weight, 2½ millions of feet, besides 215,000 gallons of oil, 13,952 of wine, and 13,952 passengers. *Jülfs, Die Seehäfen*, 11. 1878-9, merchandise, 314,220 tons; 1880-4, 1,033,596 tons; the quantity in 1884 was 287,243, not including 10,000 tons of bananas, an increase of 71,518 over 1883. 1880-4, passengers, 1,024,128; the number in 1884 was 515,520, an excess of 75 per cent over 1883; the large increase being mainly due to the operations of the interoceanic canal company, and the transportation of their vast material. *Pan. Star and Herald*, May 2, 14, 1867; May 17, Sept. 5, 1877; June 23, 1881; Apr. 22, 1885; *S. F. Ev'g Bulletin*, Apr. 12, 1878; Apr. 2, 1884; *S. F. Chronicle*, Apr. 3, 1884; *Superint. Burt's Report*, March 7, 1885; *U. S. Govt Doc.*, Comm. Rel., years 1857-77.

[XXXIII-26] The steamship lines doing such service in 1867 were the following: 1st. The Pacific Mail Co. of N. Y., whose capital in 1847 was \$400,000; raised in 1850 to \$2,000,000; in 1860 to \$4,000,000; and in 1866 to \$20,000,000; the lowest estimate of its property being set down in 1867 at \$30,000,000. This company has passed through many vicissitudes, as indicated by the stock market. The highest rates attained by its shares were 248 in 1863, 325 in 1864, 329 in 1865, 234 in 1866. Every other year they have been under 200, the highest being in 173½ in 1867. From that time they sank very low, even to 16¼ cents in 1876, the highest that year being 39¼. 2d. Brit. and W. India and Pac. running between Liverpool, W. Ind., W. coast of S. and Cent. Am., and Colon. 3d. Brit. Royal Mail, between Southampton, W. Ind., eastern coast of Mexico, S. and Cent. Am., and Colon. 4th. Brit. Pan., New Zealand, and Australia. 5th. Brit. Pac. Steam Navigation Co., between Pan. and ports of Colombia, Ecuador, Peru, Bolivia, and Chile. 6th. Pan. R. Road Co.'s steamers between Pan. and Acapulco, touching at all Cent. Am. ports. This line finally was merged in the Pacific Mail Co. 7th. Am. Cal. Or. and Mex. Co.'s line running between S. F. and Mex., and between S. F. and Portland, Or., and Island of Vancouver. It was afterward

discontinued. 8th. French Transatlantic Co. running between St Nazaire in France, W. Ind., Mex., and Colon. 9th. German line. In 1871 the following arrivals of vessels occurred: steamers, Brit., 84, with 158,579 tons; Am., 25, with 66,813 tons; German, 36, with 42,740 tons; French, 24, with 15,782. Sailing vessels, 56 Brit., 43 Am., 12 German, 4 French, 8 Italian, 112 Colombian, mostly small. Grand total of tonnage, 316,271 tons. *Otis' Hist. Pan. R. R.*, 50-6, 148-60, 169-232; *Pan. Star and Herald*, May 2, 1867; Apr. 14, 1877; *U. S. Gov. Doc.*, Comm. Rel., 1871-2, 252, 263; *Bidwell's Isth. Pan.*, 353-7. The author of the last-quoted work was British vice-consul at Panamá, and enjoyed leisure and opportunity for gathering facts from many sources, concerning the past and present history of Panamá, as well as on her resources, trade, etc. The arrangement of the book, as he acknowledges, is defective, there being no order—chronological or other—in the information he gives. The description of the social and political condition of the city and country, to the time of his writing, is quite accurate.

[XXXIII-27] Between 1825 and 1830 the expense of conveying a bale of goods overland, including duties and taxes, was \$10 or \$12.

[XXXIII-28] In 1820 it was deplorable. *Córtés, Diario*, 1820, iv. 180-2; *Gordon's Hist. and Geog. Mem.*, 48-9.

[XXXIII-29] It was said that \$45,000,000 of English manufactures unlawfully crossed the Isthmus for Sp. Am. between 1810 and 1817. *Arrillaga, Inf.*, in *Cedulario*, iv. no. 1, 72; *Alaman, Hist. Méj.*, iv. 473-4.

[XXXIII-30] Communication was kept up on the Atlantic side with Jamaica by a Brit. man-of-war which twice a month carried letters and specie; with Cartagena by government vessels bimonthly; and with the same and other points by independent traders. On the Pacific traffic was better along the whole coast. In 1825 the spirit of enterprise was rash. Exclusive of small coasters, there came to Chagres 1 ship, 7 brigs from France, 21 schooners from the W. Indies, 6 schooners from the U. S., and 3 from Cartagena. In 1828, these numbers were reduced to about 20 all together. In the same years the entries at Panamá were respectively 17 and 24 vessels. In 1830 trade was in a state of stagnation. *Lloyd's Notes Isth. Pan.*, in *Roy. Geog. Soc.*, i. 96-7; *Niles' Reg.*, xxxviii. 141.

[XXXIII-31] Bocas del Toro was also made a free port. *El Arco Iris*, July 25, 1847; *Molina, der Freistaat, Costa R.*, 58-9; *S. F. Californian*, ii., Sept. 29, 1847.

[XXXIII-32] The passengers from Cal. no longer remained in Pan., but were hurried off to Colon; thus the expenditure formerly made by the thousands of passengers ceased. Many business houses had to close in 1855 and 1856. Later the influx of passengers from Europe, who stop longer at Panamá, helped to support the hotels, etc. *Bidwell's Isth. Pan.*, 263.

[XXXIII-33] A portion of the imports was paid for in remittances of specie, or in bills on Europe, sold from time to time by foreign men-of-war and steamship companies. The amount of exports may be augmented some \$100,000 by produce sold to steamship companies. Besides pearls and pearl shells, ivory, nuts, and India-rubber figured considerably among the exports. The recklessness with which the rubber-trees have been cut down has reduced the production in 1886 to an insignificant quantity. The imports from 1856 to 1863 inclusive reached \$6,386,135; the exports from 1857 to 1863 probably \$5,000,000 or \$6,000,000. Data on this point are unreliable. *U. S. Govt Doc.*, Comm. Rel., 1859-61; *Bidwell's Isth. Pan.*, 265-7, 277-8; *Pan. Star and Herald*, May 2, 1867.

[XXXIII-34] Adopted in 1853. *Pan.*, *Crónica Ofic.*, Aug. 20, 1853.

[XXXIII-35] The national government of Colombia, on the 3d of May, 1861, decreed that the notes of the National Bank, silver coin of the fineness of 0.500, and nickel coin, should be the only legal tender receivable at public offices of the nation, states, and department of Panamá. The enforcement of the decree in Panamá, where the money in circulation is sufficient for all purposes, is deemed ruinous, as the paper thus forced into circulation is irredeemable. There are no manufactures nor products that merchants can send abroad in payment of the articles of daily necessity which are imported. *Pan. Star and Herald*, May 31, 1886.

[XXXIII-36] *Dunlop's Cent. Am.*, 39-40; *Wagner, Costa R.*, 458-65; *Squier's Cent. Am.*, 457. The exportation of shells on a large scale upon the coasts of the mainland, gulfs, and islands was farmed out in Oct. 1885, to a private party for 16 years, the lessee paying for the privilege as follows: 1st. \$1,000 a year

during the first six years, and \$2,000 a year for each of the other ten. 2d. \$6 for every 1,000 kilog. of pearl shells taken out in the first six years, and \$8 per 1,000 kilog. the next ten years. *Costa R., Gaceta*, Nov. 7, 1885.

[XXXIII-37] Findlay, *Directory*, i. 236. J. Laferrière, *De Paris à Guatémala; Notes de Voyages au Centre Amérique*, Paris, 1877, fol. 448 pp., 4 sheets, and wood-cuts, is a narrative of a commercial traveller of three journeys to and through the five republics of Cent. Am., in 1866, 1870, and 1874-5, containing general information on their history and resources, agriculture, and other industries, and the character, manner, and customs of their inhabitants. Statistical tables, and numerous cuts of important towns and of natives are accompanied. The style is plain, clear, and concise, and the mode of treatment shows an intelligent observer. In an unpretentious manner the author gives much that is valuable on those countries.

[XXXIII-38] The information which has reached us for the years previous to 1817 is both meagre and contradictory. One authority has it that Spain undoubtedly received every year till 1809 a net revenue of a little over 50,000 pesos; another claims that a yearly allowance of 150,000 pesos came from the treasury of New Spain. *Torrente, Revol. Hisp. Am.*, i. 23-5; *Mex., Mem. Sec. Hac.*, 1875, 65. In 1812 the Sp. córtes abolished the tribute till then exacted from the Indians. *Córtes, Diario*, 1811-12, xi. 376.

[XXXIII-39] Including 157,681 pesos from excise, 3,872 pesos from gunpowder, and 256,975 from tobacco. During those five years the tobacco monopoly had sales amounting to 2,920,316 pesos, the expenses being 1,325,869 pesos, leaving a clear profit to the treasury of 1,594,447 pesos, or an average of 318,890 pesos a year. *Dunn's Guat.*, 214.

[XXXIII-40] 'Habia desaparecido durante la esclavitud del imperio.' *Marure, Bosq. Hist. Cent. Am.*, i. 140.

[XXXIII-41] The public debt amounted to \$3,726,144, and the yearly expenses were nearly \$900,000, to meet which the revenue was totally inadequate. The several states were in no better condition, inasmuch as the revenue from stamped paper, rum, excise, and other small sources, which had been assigned them, was not enough for their needs.

[XXXIII-42] A security for the payment of the interest and of the sinking fund to extinguish the principal, the revenue from tobacco and customs was hypothecated. Under the contract the interest was payable quarterly together with \$50,000 for the sinking fund. It was calculated that the debt would be extinguished in twenty years, and that the interest would come to \$482,571. *El Indicador de Guat.*, Apr. 21, May 18, 1826; *Guat., Mem. Min. Hac.*, 1830-1.

[XXXIII-43] A natural result of selling \$100 bonds at \$30, and paying \$100 the next year. The govt was shamefully swindled by the few men who had a share in the transactions. *Id.*, 1846, 51-6. On the other hand, the funds received from the loan were misapplied. *Marure, Bosq. Hist. Cent. Am.*, 142-7.

[XXXIII-44] Direct imposts: Guatemala's sources of revenue were 3 per thousand on the assessed value of real estate, military, and road taxes. Several others existing as late as 1882, such as a tax on sugar-cane, were suppressed. Indirect duties on imports and exports, and port charges paid by ships. Stamped paper, slaughtering cattle, imposts on native flour, salt, inheritances, and endowments, and 5 per ct on sales and transfers of real estate. Monopoly of spirituous liquors, tobacco since 1879, gunpowder, and saltpetre. To these are to be added a number of other means of lesser import, but which in the aggregate yield considerably over \$100,000.

[XXXIII-45] From the following sources, namely: direct taxation, \$176,908; indirect ditto, \$1,916,987; govt monopolies, \$1,549,173; special revenue, \$323,212; divers and extraordinary receipts, \$88,577; contracts and divers negotiations, \$2,569,418, being for temporary loans, etc. The total amount of revenue from customs included in the item of indirect taxation was \$1,485,280, mostly collected at the general custom-house in Guatemala city; to which must be added \$52,793 collected on the frontiers, \$3,734 for export duties, and \$1,530 for port charges. The revenue from imports in the four preceding years were: 1879, \$1,501,729; 1880, \$2,008,237; 1881, \$211,765; and 1882, \$1,679,047. The total revenue from all sources from 1852 to 1862 footed up \$8,442,835; from 1863 to 1871, \$8,547,529; 1871 yielded only \$750,848; 1872-9, \$19,571,233; 1880, \$4,158,199; 1881, \$4,423,964; 1882, \$4,131,945. The net proceeds or actual revenue from the sale of spirituous liquors for 1878-83 was \$6,178,095; from tobacco, 1879, for licenses, \$8,656; 1880, two months, \$32,232; 1881-3, \$484,263. The total amount of

municipal revenue throughout the republic was \$485,622 in 1883, and \$535,364 in 1884. *Guat., Mem. Sec. Hac.*, 1873, 1880-4; *Id., Fomento*, 1885.

[XXXIII-46] The outlay in 1855 appears to have been \$993,522, including \$317,094 applied to payment of the public debt; 1864, \$1,130,708; 1879, \$4,526,263, as follows: Ordinary expenses, \$2,728,457; public works, \$27,837; advance to the railway company, \$200,000; payment of warrants, reimbursement of temporary loans, etc., \$1,569,969; 1881, \$7,313,889, of which only \$3,333,470 was for expenses; \$163,241 was for purchase of tobacco, powder, and saltpetre; the balance to payment of debts; 1882, \$6,503,422, of which \$3,414,747 was for the actual expenses. *Astaburuaga, Cent. Am.*, 84-5; *Camp's Year-Book*, 1869, 1527; *Guat., Mem. Sec. Hac.*, 1880-4.

[XXXIII-47] In order to be enabled to meet expenses, and payments of the internal debt, the rate of duties on imports was raised in 1873 and again in 1879. It also established an export duty of 12½ cents per quintal on coffee. In 1879, after consolidating the whole debt, 40 per cent of the customs revenue was reserved for its gradual payment.

[XXXIII-48] The interest and portion of the sinking fund were made payable twice a year; viz., April 1st and Oct. 1st. After several deductions, the amount actually received in Guat. was \$1,351,069. One of the deductions was of £15,000 for retiring from the London market £20,000 five per cent bonds of the federal loan, purchased at 75 per cent. *Samayoa, Apuntam.*, 1885, 29-37; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 48, Sess. 1, pt 1, 72; *Mex., Informe Sec. Hac.*, 1873, 24-5; *Pan. Canal*, Jan. 13, 1883; *Id., Cronista*, Feb. 21, 1883; *Guat., Mem. Sec. Hac.*, 1880-4.

[XXXIII-49] According to the calculation of the secretary of the treasury, it had become increased on Apr. 1, 1880, to \$3,404,967.

[XXXIII-50] *Guat. Presupuesto Gen.*, 1886, 111-14.

[XXXIII-51] The chief sources are import duties and port charges, export duty on woods, tax on spirituous liquors, stamped paper, tobacco, and gunpowder monopoly, etc. Squier, *Cent. Am.*, 271, estimated the revenue in 1856 at about \$250,000; but Astaburuaga, *Cent. Am.*, 71-3, sets it down at \$154,248, and

deducting \$37,713 for loans and other receipts not belonging to ordinary revenue, and \$24,000 for two years' interest on the English debt, there remained \$92,535 to meet an expenditure calculated at \$116,898. The assembly voted for 1857, \$134,253; 1858, \$119,852; 1859, \$132,912. In 1857 and 1858 \$40,000 more had to be added, owing to political disturbances. *Wappäus, Mex. und Cent. Am.*, 306. In 1867 the receipts seem to have been about \$200,000, exceeding the expense some \$17,000. *Camp's Year-Book*, 1869, 527. Those of 1869 are set down at about \$560,000. *Mex., Informe Sec. Hac.*, 1873, 88. For 1872 they were estimated at \$400,000. *Am. Cyclop.*, viii. 791. According to President Soto's message in 1883, the revenue in 1881 was \$1,120,175, and in 1882, \$1,298,878. *Pan. Star and Herald*, March 23, 1883; June 2, 1886.

[XXXIII-52] It is understood that President Bogran, in his efforts to diminish the expenditures, reduced in 1886 his own and other salaries. *Id.*, June 2, 1886.

[XXXIII-53] Pres. Soto, in his message of 1883, says that the opinion prevailed in Europe that Honduras had been victimized; he believed that in truth and justice the republic cannot be held responsible for the enormous debt. Indeed, it is of a very questionable origin. It was contracted for the alleged purpose of constructing an interoceanic railway. There were four loans negotiated; namely, two in London, in 1867, for the nominal amount of £1,000,000, issued at 80 with 10 per cent interest; another in 1868 at Paris for the nominal sum of 62,252,700 francs, issued at 75 and 6 per cent interest, and the last in London in 1870, for £2,500,000, issued at 80 and 10 per cent interest. *Am. Cyclop.*, viii. 791; *Pan. Star and Herald*, March 23, 1883; *La Estrella de Pan.*, Jan. 10, 1884.

[XXXIII-54] The chief sources were customs, monopoly of spirituous liquors, tobacco, and gunpowder, stamped paper, etc. The receipts of 1848-56, including \$175,419 for loans in 1856, were \$3,408,068, averaging \$359,183 a year; for 1866-9, \$3,224,348, or \$806,087 per year; for 1870-4, \$4,930,238, or \$1,232,560 yearly; for 1875-8, \$7,880,316, or an average of \$1,970,079. Expenditures: 1848-56, \$3,251,802; 1867-8, \$1,468,850; 1873-8, \$9,269,113. *Squier's Cent. Am.*, 307; *Salv., Gaceta*, Oct. 31, 1851; March 20, 1877; *Id., Diario Ofic.*, March 24, 25, 1875; March 13, 14, 1878; *Costa R., Boletin Ofic.*, March 14, 1855; *Nic., Gaceta*, March 23, 1867; Feb. 22, 1868; *Astaburuaga, Cent. Am.*, 76; *Camp's Year-Book*, 1869, 527; *Pan.*

Star and Herald, Apr. 1, 1869; Aug. 29, 1874; May 10, 1875; Feb. 26, 1884; Sept. 29, 1886; *Id.*, *Cronista*, Jan. 20, 1883; *Jülfs*, *Die Seehäfen*, 36; *Mex.*, *Informe Sec. Hac.*, 1873, 88; *Salv.*, *Mem. Min. Hac.*, 1875-9; *Laferrière*, *De Paris à Guatém.*, 190-1.

[XXXIII-55] The greater portion was Salvador's share of the federal debt; which was augmented by several foreign claims aggregating about \$100,000. No interest on the federal debt had been paid since 1848. *Squier's Cent. Am.*, 308.

[XXXIII-56] I find that the republic paid up in 24 years, prior to 1875, \$4,833,775 to cover both the federal debt and its own—an equivalent of about a million and a quarter every five years by a population of only 600,000 souls. *Salv.*, *Diario Ofic.*, Apr. 6, Aug. 4, Oct. 28, 1875; Oct. 17, 1878; *Id.*, *Gaceta Ofic.*, Feb. 15, 1878; *Am. Cyclop.*, xiv. 610; *Mex.*, *Informe Sec. Hac.*, 1873, 25; *Laferrière*, *De Paris à Guatém.*, 191; *Salv.*, *Mem. Min. Hac.*, 1875; *Nic.*, *Semanal Nic.*, Apr. 16, 1874; *Pan. Star and Herald*, Feb. 26, 1884.

[XXXIII-57] The chief sources of revenue are those of customs, slaughtering cattle, and sales of spirituous liquors, tobacco, gunpowder, and stamped paper. The total revenue of 1845 amounted to \$74,911, a sum entirely inadequate to meet the most necessary expenses of the government. The import duty was 20 per cent ad valorem, to which was added 8 per cent. The only export duty was 1 to 3 per cent on gold, silver, and precious stones. A transit duty of 5 per cent was levied on goods passing through Nic. to the other states. Merchant vessels paid 50 cts per ton. The total revenue from customs in 1846 was \$51,818; from internal taxation, \$3,626; from rum, etc, \$24,260. The revenue from tobacco was pledged to the Brit. govt, in order to ransom the port of San Juan del Norte. Other sources were insignificant. Receipts of 1851, \$122,686; 1857-60, \$1,327,637; 1861-70, \$5,665,877. The tariff of imports was modified in Dec. 1868, and increased 10 per cent in Feb. 1870. Agricultural implements, materials for mining, and other articles, were exempted from import duty by a law of Nov. 2, 1869. The revenue from customs became flourishing, and yielded in 1883 \$1,275,506, due to the law of Sept. 25, 1879, which raised the duties on several articles, and changed the mode of collecting from ad valorem to weight. It seems that most goods paid no more under the new system than formerly; but much fraud was averted. Imports generally paid 50 per cent ad val. The port of San Juan del Norte and the Mosquito reservation have a free zone, the merchants of San Juan paying a

tax in lieu of import duties. Receipts of 1871, \$958,922; 1873-80, \$8,416,879; 1881-2, \$3,351,767, an increase of \$951,674 over the preceding two years. *Belly, Nic.*, i. 311; *Lévy, Nic.*, 353-8; *Nic., Gaceta*, March 6, 1863; March 18, Apr. 29, 1865; Jan. 20, 1866; March 21, 1868; Jan. 2, 23, 30, Nov. 6, 1869; May 27, 1871; Jan. 20, 1872; *Id., Decretos*, 1869-70, 123; *Pan. Star and Herald*, Feb. 1, 1883.

[XXXIII-58] Expenses of the supreme powers, \$112,548; departments of the interior, \$513,069; war, \$389,466; treasury, \$1,353,612; foreign relations, \$762,457; sundries, \$109,787. During this term was paid \$57,586 outstanding from the preceding, the ordinary expenses of administration; for improvements, \$563,918; and extraordinary expenses caused by disturbances. The expenditures in 1846 and 1851 were \$106,145 and \$173,646, respectively, in both cases creating deficits; in 1859-60, \$652,515; 1861-70, \$5,316,951; 1871-2, \$1,721,355; 1873-4, \$1,995,040. Those of the following years kept pace with the increased revenues; but large sums were appropriated to internal improvements, education, and other purposes conducive to the intellectual and material advancement of the republic. *Nic., Mem. Sec. Hac.*, for years 1846 to 1883; and the *Gacetas* quoted in the preceding note.

[XXXIII-59] She had on the 15th of Sept., 1867, recognized £45,000 as her proportion. *Nic., Gaceta*, March 28, 1868.

[XXXIII-60] *Presid. Cárdenas, Mensaje*, Jan. 15, 1885, in *Costa R., Gaceta Ofic.*, Feb. 4, 1885. For further information, see the biennial reports of the minister of the treasury; *Lévy, Nic.*, 358-60; *Am. Cyclop.*, xii. 424; *Pan. Star and Herald*, Feb. 1, 1883.

[XXXIII-61] From customs, \$427,395, which was less than had been expected; liquor monopoly, \$200,168; stamped paper and stamps, \$63,033; paper money issued, \$310,764; the balance from sundry sources. The receipts in specie were \$1,046,967. The law of Dec. 10, 1839, first established the sources of revenue for the state govt as follows: Maritime and internal duties on merchandise; purchase and coinage of bullion; sales of public lands; monopoly in cultivation and sale of tobacco; sale of gunpowder, stamped paper, domestic and foreign liquors; postage, excise, confiscation of contraband goods, and fines. *Montúfar, Reseña Hist.*, iii. 272, 570.

[XXXIII-62] A new tariff, to go into effect Jan. 1, 1886, was decreed, subjecting imported merchandise to specific duties, and considerably modifying the tariff of 1877. Gold and silver in bullion, bars, dust, or coin, as also fence wire, lightning rods, machinery for agriculture, material and tools for ship-building, ships, and animals were exempted from duty. *Costa R., Gaceta*, Sept. 12, 13, 1885; *Id., Col. Ley.*, xxv. 15-47. The following figures show approximately the receipts of the government for about forty years past, to wit: 1845, \$132,000—there is no published history of the finances of Costa R. prior to 1845; 1847-50, \$1,006,207; 1851-60, \$5,956,873; 1861-70, \$8,518,636; 1871-82, \$30,475,828, less amounts included, which were merely casual receipts, \$4,545,277, leaving for actual revenue, \$25,930,551. *Molina, Bosq. Costa R.*, 45; *Squier's Cent. Am.*, 470-1; *Astaburuaga, Cent. Am.*, 43; *Encyclop. Brit. (Am. ed.)*, vi. 398; *Costa R., Informe Sec. Hac.*, 1852-85.

[XXXIII-63] As near as I have been able to ascertain, the outlay of the Costa Rican treasury has been, for 1847-50, \$986,245; 1851-60, \$6,637,124; 1861-70, \$9,682,265; 1871-82, \$32,362,189. *Id.; Pan. Star and Herald*, Aug. 14, 1886.

[XXXIII-64] 'Se logró la total cancelacion de la deuda inglesa.' *Costa R., Informe Min. Hac., etc.*, 1848, 16.

[XXXIII-65] The history of these loans, as furnished in the reports of the Costa Rican treasury department, is the following: In 1871, Costa Rica contracted with Bischoffsheim and Goldsmidt for a loan of the nominal amount of £1,000,000, at 72 with 6 per cent interest, and 2 per cent for a sinking fund; however, per agreement of May 5, 1871, the rate was reduced to 56, and only yielded £560,000. Bischoffsheim and Goldsmidt retained £105,000, which reduced the proceeds to £455,000, and this sum was further diminished £42,000, leaving only £413,000, or somewhat less than 42 per cent. A new loan was negotiated in 1872, with Knowles and Foster of London, which appeared as for £2,400,000, but did not exceed £2,226,500, the difference not having been taken up. The negotiation was at 82, with interest at 7 per cent, and 1 per cent for a sinking fund. This loan actually yielded to Costa Rica £598,611 18s. 5d., which is explained thus: Knowles and Foster paid over to E. Erlanger and Co. of London in money £1,576,240 9s. 1d., the difference between this sum and that taken up being £650,259. Erlanger and Co. were the syndics of the loan under the 8th clause of the contract with Knowles and Foster, and had bound themselves to take up £800,000 of it.

Under the 3d and 4th clauses, they were empowered to repurchase bonds for account of Costa Rica, though subject to the following conditions: 1st. That the repurchasing should be indispensable to secure the success of the loan; 2d. It was not to be done with the £800,000 Erlanger and Co. were bound for; and 3d. The operations were not to be effected but within 30 days of the issue. This condition was violated. Erlanger and Co. claimed to have repurchased with the money received by them bonds of both the 6 per cent and 7 per cent loans to the value of £1,426,500. The result of this transaction was that the loan, save the £800,000 taken up by Erlanger and Co., was exhausted; and yet it was said, in and out of Costa Rica, that her government had received \$17,000,000. *Encyclop. Brit.* (Am. ed.), vi. 398. The whole yield of both loans was but £1,011,611 18s. 5d., or \$5,058,060. Besides the £105,000 retained by Bischoffsheim and Goldsmidt, under the pretext of securing the interest of the 6 per cent loan, the government remitted for interest and sinking fund £135,000, which were taken from the very funds received, and reduced them to £876,611 18s. 5d. Moreover, under an agreement with Erlanger and Co., the government of Costa Rica was authorized to draw on them for £150,000. Its drafts were allowed to go to protest, and the amounts drawn for had to be replaced. The government felt that it had been victimized, and in order to protect the country's good name, after consultation with legal lights of London, established suits at law against the parties. The suit has cost a great deal of money; early in 1877 \$373,380 had been paid for expense. *Costa R., Mem. Sec. Hac.*, 1874-7. Should the decisions of the British courts be against Costa Rica, her financial situation should not be deemed very alarming, as is made apparent. The 7 per cent loan, reduced to Costa Rican money at 9 per cent, £2,226,500, nominal \$12,134,425.

Bonds repurchased, £1,026,500	\$5,594,425
Received from Erlanger and Co., and appearing among the liabilities, £598,611 18s. 5d.	3,262,435
Amount not appearing among the liabilities, £601,388 1s. 7d.	3,277,565
	\$12,134,425

Accepting the responsibility for the whole 7 per cent loan, it would amount to \$12,134,425, deducting \$3,262,435, and \$5,594,425 for repurchased bonds, the total sum not included in the liability in 1876 would be reduced to \$3,277,565, to which

must be added \$13,517, balance of the 6 per cent loan, making \$3,291,082. Advantageous offers were received from Europe to extinguish the debt, which, if accepted, would reduce the nominal indebtedness of \$11,990,000 to \$2,398,000. This loan was negotiated for funds to build a railway. The road has cost \$12,239,296, and its three sections are valued in 1883 at \$6,600,000. *Id.*, 1872-5, 1883, annexes 7 and 8.

[XXXIII-66] *Pan. Star and Herald*, March 29, 1884; *Costa R., Gaceta*, Sept. 4, 1885. Half a million dollars was voted by congress in July 1886 to the extinction of the internal debt. *Id.*, Aug. 14, 1886.

[XXXIII-67] From customs, \$145,000; rum, \$24,000; loans, \$42,500; received from Spain, \$10,000; voluntary and forced contributions, \$150,000; judicial deposits, \$101,000; papal dispensation bulls, \$27,000—were among the items. *Lloyd's Notes Isth. Pan.*, in *Roy. Geog. Soc., Jour.*, i. 99.

[XXXIII-68] Including \$4,527, balance from the preceding year; \$86,820 of loans; \$70,000 from customs; \$15,820, duties on tobacco. *Id.*, 98.

[XXXIII-69] The general government decreed in 1849 the suppression of tithes; requiring of the several provinces of the Isthmus to make up the amount which the suppressed tax yielded the previous year. The aggregate was to be applied to cover national expenses. *Pinart, Pan. Col. Doc.*, MS., no. 86, p. 14; *Pan., Crónica Ofic.*, Oct. 23, 1849.

[XXXIII-70] The commercial tax was not to be more than double that assessed in 1885. The general govt on the 1st of April, 1885, established a salt monopoly, and in the same year decreed the reestablishment of custom-houses at the Isthmus ports. This decree was subsequently suspended. *La Estrella de Pan.*, May 16, 1885; *Pan. Star and Herald*, Nov. 2, 4, Dec. 30, 1885. The budgets for the ten years from 1867 to 1876 amounted together to \$3,018,391, and the appropriations voted for the same year were \$3,335,084. The absence of regular accounts for the period 1867-75 renders it impossible to find out what were the actual receipts and expenditures. The revenue from Jan. 1, 1876, to June 30, 1877, was \$339,526, and the expenses reached \$356,483, though only \$274,298 were paid. The revenue collected from July 1, 1877, to June 30, 1878, \$218,095; the assembly voted for expenses of that fiscal year \$382,841, but the

government seems to have paid out only \$226,278. For 1880-1 the legislature computed the revenue at \$300,628. It had the preceding year authorized the executive to increase the commercial tax 25 per cent. The expenditures for the year were estimated at \$316,077. *Pan., Mem. Sec. Jen.*, 1878, 43-6, 48; 1879, 3, 32-3; *Id., Leyes*, 1879-80, 8, 9, 64-78.

[XXXIII-71] \$81,375 of it bore interest at 6 per cent. *Pan., Mem. Sec. Hac.*, 1879, 37. Dec. 19, 1879, the legislature authorized the executive to borrow \$50,000 at 12 per cent. For further information, see *Pan., Gaceta*, Nov. 17, 1870, to Sept. 1, 1881, *passim*.

[XXXIV-1] See summary of geographical knowledge and discovery from the earliest records to the year 1540. *Hist. Cent. Am.*, i. 68-154, [this series](#).

[XXXIV-2] They thus argued from the first: Quintus Metellus Celer, proconsul of Rome in Gaul, was presented by the king of Suevia with a number of red men, who had been thrown upon his coast. So said Cornelius Nepos, and Pliny repeated it. Now these savages, having no knowledge of ships or navigation, could not have come from America; they were not black, and consequently were not from Africa. There were no people in Europe like them; so they must have come from Asia. But how? Either from the east or from the west; they could not have rounded the eastern hemisphere either by its northern or southern side, for obvious reasons; therefore they must have come from the north-west, and hence there must be a way from Asia north-eastward to Europe, running round the north pole. Upon this logic were staked thousands of lives and millions of money. Dominicus Marius Niger, the geographer, speaks of men who were driven from India through the north sea to Germany, while on a trading expedition. As late as 1160, some strange persons arrived on the coast of Germany. Humboldt thought they might have been Eskimos. Othon, in his *Storie of the Gothes*, speaks of such arrivals, arguing that they must have drifted in through a north-west passage. Gilbert's Discourse, in *Hakluyt*, iii. 16-17. Again, Hakluyt finds it recorded that some 200 years before the coming of Christ, the Romans sent a fleet against the Grand Khan, which, crossing the strait of Gibraltar, and steering toward the N. W., in lat 50° found a channel, in which it sailed to the westward until it reached Asia, and after fighting the king of Cathay, returned by the way it went.

[XXXIV-3] *Hist. Cal.*, i. 1-109; *Hist. Northwest Coast*, i. 1-342; *Hist. North Mexican States and Texas*, i. 1-201; *Hist. Oregon*, i. I will add, in this connection, that Juan de Ayola, with 200 Spaniards, in 1535 crossed from the Paraguay River to Peru. Irola, twelve years later, ascended the Paraguay River to 17° S., crossed the mountains to the Guapay River, and succeeded in establishing communications between Peru and her dependency, La Plata. *Lardner's Cabinet Cyclop.*, ii. 90.

[XXXIV-4] They fitted out two vessels, Le Maire advancing most of the money, and going on the voyage as supercargo, Van Schouten as commander. They doubled the cape with one remaining ship in Jan. 1616. The Spaniards afterward completed the exploration, and their forts in Magellan Sound became useless. The straits of Magellan have been, however, used in late years as the transit of an English steamship line.

[XXXIV-5] Previously several attempts had been made. Kotzebue, of the Russian navy, went in 1815 to Bering Strait, and the next year discovered the sound bearing his name. Golovnin made a voyage also, but accomplished nothing. The English made a number of efforts, which, if unsuccessful in not attaining the main object, added much to geographic knowledge. Herewith I give the expeditions fitted out in England, or under English auspices. In 1818 two ships, the *Dorothea* and *Trent*, under Buchan and Franklin, went to the Spitzbergen waters, but could not advance far. Two other ships, the *Isabella* and *Alexander*, under John Ross and W. E. Parry, were ordered to Davis Strait and verified Baffin's exploration of Baffin Bay. Ross entered Lancaster Sound, and reached 81° 30' W. by 74° 3' N. Parry made three other voyages, in 1819, 1821, and 1824, in the last of which one of his ships, the *Fury*, was wrecked in seeking a passage through Regent Inlet. In 1827 he attempted the polar voyage in sled-boats from Spitzbergen, reaching 82° 40' 30", the farthest point hitherto attained. Capt. John Franklin tried to find the passage overland from York Factory on the west coast of Hudson Bay. He wintered at Fort Chepeweyan in 1819, and in the *Enterprise* in 1820. In July 1821 he navigated the Arctic sea, east of Coppermine River, a considerable distance, hoping from the trend of the coast to reach Hudson Bay. Want of provisions compelled the abandonment of the expedition, and after severe hardships, and journeying 5,500 miles, reached Great Slave Lake in Dec. 1821. Lyon in 1824 attained Sir Thomas Rowe's Welcome. Franklin renewed his land survey of the Arctic coasts,

1825-7. He wintered in 1825 on Great Bear Lake, descended the Mackenzie, and surveyed the coast line westward to Return Reef in 70° 26' N., and 148° 52' W. Meanwhile Richardson and Kendall of his party made a voyage from Mackenzie to Coppermine River, doubling several capes, and completing the survey of the coast through 60 degrees of longitude. Beechey in 1826 in the *Blossom* explored the coast from Kotzebue Sound to Icy Bay. One of his parties reached Cape Barrow. He waited for Franklin till Oct. 1827, and returned home via Cape Horn. Ross in 1829 tried to find a passage through Regent Inlet, but had to abandon his ship in Victoria Harbor, near 70°. P. W. Dease and T. Simpson in 1837-9 made important explorations between Point Barrow and Mackenzie River; the portion on the east side between Point Turnagain and the estuary of the Back's Great Fish River; and also the south sides of Victoria Land and King William Land. John Rae of the Hudson's Bay Company surveyed a part of the Arctic coast east. In 1845 he surveyed Regent Inlet east and west, found an isthmus between Regent Inlet and the sea explored by Dease and Simpson. Franklin and Crozier were despatched in May 1845 with two stout ships, the *Erebus* and *Terror*, well supplied for three years. The expedition sent letters from Whalefish Island, near Disco, and was last seen on July 26th waiting to cross the 'middle ice' on to Lancaster Sound, 220 miles distant. The orders were to proceed to about 74¼° N. lat. and 98° W. long.; thence take a S. and W. course for Bering's Strait, the passage west from Melville Island being precluded. A number of expeditions were despatched in search of Franklin; namely, one under John Richardson and Rae, 1847-9; ships *Enterprise* and *Investigator* under Ross and Bird, 1848-9; *Herald* and *Plover* under Kellet and Moore, 1848-52; *North Star*, commanded by Saunders, 1849-50; the *Investigator* and *Enterprise*, in 1850, under McClure and Collinson; whaler *Advice*, under Goodsir; a squadron commanded by Austin, consisting of the *Resolute* and the *Assistance*. Capt. Ommaney with two steam tenders under lieuts Osborn and McClintock; several ships sent by Franklin's wife; Rae in 1851; expedition under Edward Belcher, 1852-4; ships *Amphitrite* and *Plover*, 1852-5; McCormick in 1852; Rae in 1853-4; Anderson in 1855; and several others, among which deserve mention the American expeditions under lieut De Haven and S. P. Griffin, E. K. Kane, Hayes, Hall, and Schwatka; most of whom made important geographical discoveries and found relics of Franklin's party. It was ascertained beyond a doubt that Franklin sailed up Wellington Channel to 77°, descended by the west side of

Cornwallis Island, and wintered 1845-6 at Beechey Island. The wintering positions of the ships were in 1846-7-8 off the north end of King William's Island. Franklin died June 11, 1847, and the ships were abandoned near the above spot Apr. 22, 1848, Capt. Crozier intending to lead the 105 survivors to Great Fish River. Only 40 men reached the vicinity of this river, and all died, according to Eskimo accounts. On this journey Lancaster Strait was connected with the navigable channel along the continent, and the existence of the north-west passage proved. *Richardson's Polar Regions*, 136-7, 146-9, 151-202; *Lardner's Cabinet Cyclop.*, iii. 176-7, 198-247; *Tytler's Hist. View*, 133-4, 283-92; *Franklin's Narr.*, i. ii.; *Quarterly Rev.*, xviii. 219; *Am. Jour.*, xvi. 130-2; *Encyclop. Brit.*, xi. 347; xviii. 329-30; xix. 331-2, 335-8; *Dictionnaire de la Conversation*, xii. 2; xiii. 608-10.

[XXXIV-6] Sent by Capt. Pellet on Barrow Strait, and was guided by a message left by McClure at Winter Harbor on Melville Island.

[XXXIV-7] Nordenskiöld, a Swedish professor and experienced navigator, with the steamer *Vega*, commanded by Lieut Palander, on the 19th of August, 1878, reached Cape Severo or Tchelyusken, the most northern point of Siberia and of the Old World in 77° 41' N., and steered a south-easterly course, the sea free from ice and quite shallow. Aug. 27th the mouth of the Lena River was passed, the *Vega* parting company with her tender, the *Lena*, and continuing her course eastward; she almost accomplished the passage that first season; but toward the end of Sept. the *Vega* was frozen in off the shore of a low plain in 67° 7' N. and 173° 20' W. near the settlement of the Chugaches. After an imprisonment of 294 days, the *Vega* on the 18th of July, 1879, continued her voyage, and on the 20th passed Bering Strait. Nordenskiöld, without loss of life or damage to his ship, arrived at Yokohama Sept. 2, 1879. *Encyclop. Brit.* (Am. ed.), xix. 337.

[XXXIV-8] For canal: I. Tehuantepec, connecting the rivers Coatzacoalcas and Chimilapa. II. Honduras. III. River San Juan de Nicaragua: 3. River San Carlos, Gulf of Nicoya. Nicaragua Lake: 4. Rivers Niño and Tempisque, Gulf of Nicoya; 5. River Sapoa, Bay of Salinas; 6. San Juan del Sur; 7. Port Brito. Managua Lake: 8. River Tamarindo; 9. Port Realejo; 10. Bay of Fonseca. IV. Panamá: River Chagres: 11. Gorgona, Panamá; 12. Trinidad, Caimito; 13. Navy Bay, Rivers Chagres, Bonito and Bernardo; 14. Gulf of San Blas, and River Chepo. V. Darien: 15. Bay of Caledonia, Port Escocés, Gulf of San Miguel; 16. Rivers

Arguia, Paya, and Tuyra, Gulf of San Miguel. River Atrato: 17. River Napipi, Bay of Cupica; 18. River Uruando, Kelley's Inlet. Overland. 1st. Coatzacoalcos, Tehuantepec; 2d. Bay of Honduras to Bay of Fonseca; 3d. River San Juan, Nicaragua, Managua, Bay of Fonseca; 4th. Port Limon to Caldera, Costa Rica; 5th. Laguna de Chiriquí on Golfo Dulce; 6th. Colon, Gorgona, and Panamá; 7th. Gorgon Bay, Realejo; 8th. Gorgon Bay and San Juan del Sur. *Nouv. Annales des Voy.*, cliii. 9-10; *Davis' Rept*, 20.

[XXXIV-9] A survey made in 1715 was sent to the secret archives of Madrid, where other like documents lie hidden. In 1774 the Spanish officers Corral and Cramer, after inspecting the route reported that a canal of about eight leagues might join the Chimalapa and Malpaso rivers, and establish a communication between the two streams. The Spanish general Orbegoso in 1821 explored this isthmus, and formed a map, which was not published till 1839. In 1825 he showed that it was not easy to carry a through-canal across Tehuantepec. In 1842-3 a survey was made under the auspices of José de Garay by C. Moro and others, to determine the practicability of a ship canal by way of the Coatzacoalcos to the gulf of Tehuantepec. The objections to the route were shown to be the expense of cutting, the uncertainty of water upon the summit level, and inadequate ports at the termini. Garay, however, announced as practicable a canal of the same size as the Caledonia, in Scotland, and was put in possession of lands, etc.; but nothing came of the transaction but diplomatic complications resulting from Garay's transfer of his grant to a foreign company. Finally, the Mexican congress in 1851 declared the grant forfeited. *Nouv. Annales des Voy.*, ci., iii., 8-9; *Duflot de Mofras, Explor. de l'Oregon*, 119; *Reichardt, Cent. Am.*, 183-4, 188-9; *Córtés, Diario*, 1813, xix. 392; *Robles, Prov. Chiapa*, 70; *Chevalier, Pan.*, 61-2; *Mex. Col. Dec. y Ord.*, 115; *Id., Col. Ley., Ord. y Dec.*, iii. 113-14; *Bustamante, Med. Pacific*, MS., ii., suppl. 15; *Mex. Mem. Sec. Rel.*, 47-8; *Rivera, Govern. Mex.*, ii. 116; *Id., Hist. Jalapa*, ii. 362; iv. 211, 225, 236; *Dublan and Lozano, Legisl. Mej.*, i. 738-9; *Instituto Nac. de Geog.*, Bol. No. 1, 30-43, with map and profile; *Ward's Mex.*, i. 311; *Liot's Pan., Nic. and Tehuan.*, 6-12; *Ramirez, Mem.*, 1-108; *Garay, Privilegio*, 1-28; *Id., Survey Isth. Tehuan.*, 3-188; *Manero, Notic. Hist.*, 51-6; *Id., Apunt. Hist.*, 12-13; *Mex. Mem. Sec. Guerra*, 1852, 19-22; *Id., Mem. Instruc. de los derechos*, etc., in *Mexican Financier*, no. 1, 1-39. In 1850-1 an American commission headed by Maj. Barnard, U. S. Engineers, surveyed the route, who reported it to possess but little 'merits as a practicable line for the construction of a ship canal.' *Davis' Report*, 5-6. In 1869 officers of the U. S. surveyed the route, and

made a favorable report. In 1870 Capt. R. W. Shuffeldt, of the U. S. navy, made another survey, which confirmed the conclusions of the former, to the effect that no extraordinary engineering difficulties existed, as sufficient water could be had from rivers in the Sierra Madre to supply the canal. The route begins about 30 miles above the mouth of the Coatzacoalcos, and after traversing a long distance, rises to a level of about 680 ft, then descends to the lagoon on the Pacific, a total distance of 120 miles. The distance from New Orleans to Hongkong would be 8,245 miles less than by Cape Horn, and 1,588 less than by way of Panamá. *Am. Cyclop.*, iii. 690; *Manero, Apunt. Hist.*, 13-15.

[XXXIV-10] By resolution of the Mexican congress, the contract of the American company was declared void in Oct. 1882, and soon after the govt made an arrangement to have the road built on its own account. *Id.*, *Artículos, Soc. Arquít.*, 7-10; *S. F. Call*, Oct. 5, 1882; *Mex., Diario Ofic.*, Oct. 10, 17, 18, 20, 1882.

[XXXIV-11] *Mex., Diario Debates*, 10th Cong., i. 273-1930, passim.; *Id.*, *El Noticioso*, Nov. 29, 1880; *Id.*, *Col. Ley.*, xxxvi. 320-4; *Id.*, *Diario Ofic.*, June 2, 1881; Aug. 10, 23, 1882; *Mex'n Financier*, Dec. 13, 20, 27, 1884; Jan. 10, 24, 1885.

[XXXIV-12] The Mexican govt guaranteed in 1885 one and a quarter million dollars per annum for 15 years. *Pan. Star and Herald*, Jan. 16, 1886.

[XXXIV-13] Gov. Pedrarias Dávila had the outlet of lakes Nicaragua and Managua discovered. His officers Este and Rojas favored the plan of a canal round the falls of the San Juan, and another on the Pacific slope. The project occupied the court and colony for many years. *Herrera*, iv., iii., ii.; *Cent. Am., Extractos Suelos*, in *Squier's MS.*, xxii. 108; *Fröbel, Aus. Am.*, i. 144, 241. The plan not only engaged the Spaniards but the French and English, the latter contemplating the conquest of the country. The royal engineer Manuel Galisteo in 1781, the system of locks being little known then, declared the connection of the lake with the Pacific to be impracticable. In 1791 La Bastide proposed widening the river Sapoa between the lake and Papagayo Gulf, and cutting a canal between that river and the gulf of Nicoya; but the French revolution caused the matter to be forgotten. In 1814 the Spanish *córtes* decreed the survey and construction, but subsequent political events made that decree inoperative. *Saravia, Bosq. Polít. Est.*, 13-17; *Viajero, Univ.*, xxvii. 180-4;

Bastide, Mém. Sur. Nouv. Passage, 1-70; *Humboldt, Essai Polít.*, i. 1-17; *Bourgoane's Trav.*, in *Pinkerton's Coll.*, ii. 498-9; *Reichardt, Cent. Am.*, 169-70; *Duflot de Mofras, Explor. de l'Oregon*, i. 137; *Squier's Nic.*, 658.

[XXXIV-14] Herewith I give a synopsis of what occurred. In 1823 a franchise was given to John Baily for a house in London, who did nothing, and the privilege was granted to parties in New York, who also failed to carry out the stipulations. Numerous proposals came between 1825 and 1829, which were successively accepted, but neither of them had effect. In 1829 a franchise was decreed to the king of Holland, and there was some prospect of a canal being constructed; but the war which detached Belgium from Holland broke out, and the king abandoned the project. President Morazan then contemplated doing the work on Central American account, and the survey was begun in 1837, interrupted by Morazan's fall, but continued in 1838 for account of Nicaragua. This same year Edward Belcher, of the Brit. navy, suggested the possibility of an artificial communication between Lake Managua and the bay of Fonseca. Baily's explorations along the line from Rio Lajas to San Juan del Sur were terminated in 1843, and their publication furnished exact data on the canal. Meanwhile, P. Rouhand (1839), Viteri (1840), Castellon and Jerez (1842), had unsuccessfully tried to raise funds for the work in Europe. The king of France in 1844 refused his coöperation. In 1846 Louis Napoleon became warmly interested for a time. Great Britain in 1847 seized San Juan del Norte on the north, and Tiger Island on the south. Louis Napoleon turned his thoughts to other subjects. Örsted studied, in 1847-8, for the Costa Rican govt, a canal project which differed from Baily's in choosing a low line south of San Juan del Sur along the Sapoa River into Salinas Bay. Nicaragua in 1848 entered into a contract to build the canal with a house in New York, which, however, surrendered it. *Baily's Cent. Am.*, 127-50; *Annales des Voy.*, cliii. 14-17; clvii. 16-17; *Nouv. Annales des Voy.*, xxviii. (1825), 370-82; xxxii. (1826), 369-74; *Squier's Trav.*, ii. 251-80, 405-20; *Id., Nic.*, 658; *Liot's Pan. Nic. and Tehuan.*, 13-16; *Niles' Reg.*, xxx. 447; xxxi. 2, 72-3; lxiv. 130-1; lxv. 57-61; lxvii. 148; *Salv., Diario Ofic.*, Dec. 16, 1879; *Reichardt, Cent. Am.*, 171-3; *Lond. Geog. Soc., Jour.*, xiv. 127-9; xx. 172; *Scherzer, Cent. Am.*, 241; *Belly, Nic.*, i. 84-7, 137; *Id., Carte d'études*, 35-45; *Strain's Int. Comm.*, 7-8; *Garella, Projet*, 182-8; *Sampson's Cent. Am.*, 7-18; *Marure, Mem. Hist.*, 1-47; *Bülow, Nic.*, 44-57; *U. S. Comm. Rept*, 145, p. 230-65; *U. S.*

Gov. Doc., Sen. Miscel., Cong. 30, Sess. 1, no. 80, 69-75; *Id.*, H. Ex. Doc., Cong. 31, Sess. 1, no. 75, 50-326, passim.

[XXXIV-15] This survey was considered reliable. English engineers pronounced Brito 'unworthy of this great ship navigation.' *Davis' Report*, 6-7.

[XXXIV-16] S. Bayley in 1852 proposed a route from La Virgen to San Juan del Sur, nearly following that of the Transit Co. without passing through the valley of the Lajas, which Baily recommended in 1843. In 1853 E. G. Squier tried to revive Belcher's plan of utilizing both lakes, and reaching Fonseca Bay through the Conejo Valley and the Estero Real. Squier's proposed Honduras railway also was to reach that bay; and it is quite possible that he contemplated connecting the two works. Felix Belly, for Belly, Millaud, and Company, in a contract of May 1858 with the Nicaraguan government, purposed carrying into execution Örsted's proposition; but after several years' waiting without Belly or his assigns, the International Canal Co., accomplishing anything, or offering better prospects for the future, the government, in 1868, declared his contract forfeited, and entered into another with Michel Chevalier, from which better expectations were entertained; but they were destined not to be realized. Chevalier required, as a condition sine qua non, that the contract should be ratified by the Costa Rican congress. This took place a year later, and then came the war between France and Prussia, and Nicaragua's last effort, like all former ones, was frustrated. *Belly, Nic.*, i. 31-50, 170-4, 401-6; ii. 1-13, 27-36, 59-464; *Id.*, *Carte d'études*, 19-27, 49-91; *Nic. Canal de*, 1-21; *Col. Dec. y Acuerdos*, 1863, 39-40, 118; 1869-70, 8-23; *Pim's Gate of the Pac.*, 1-14, 58, 116-34, 221-30, 322-70, 394; *Nic., Gaceta*, Jan. 7, Apr. 8, 1865; March 20, Apr. 17, 1869; *Id.*, *Informe Sec. Rel.*, 1869, 8-9; *Id.*, *Id.*, *Hacienda*, 1869, 3-5; *Marcoleta, Min. Nic.*, 1-32; *Hunt's Merch. Mag.*, lv. 31-48; lvi. 32-4.

[XXXIV-17] *Nic., Gaceta*, Dec. 12, 24, 1863; Nov. 9, 1867.

[XXXIV-18] The exploration by Com. Lull, of the U. S. navy, established the existence of a practicable route for a canal with Lake Nicaragua as its summit level, 107 ft above mean tide. It was proposed to connect the lake with the Pacific by a canal 16.3 miles in length, from the mouth of the Medio River to Port Brito. The first 7.5 miles would require an excavation averaging 54 ft in depth, which would be the most costly part of the work.

The plan calls for ten locks, and one tide-lock between the lake and the sea. The lake navigation is of 56 miles. The river San Juan would be improved by means of four dams; namely, at the rapids of Castillo, Balas, and Machuca, and at the mouth of the San Carlos River, all of which places are suitable for dams. A short section of canal with one lock would be needed to get around each of the upper three dams. From the fourth dam to San Juan del Norte, an independent canal 41.4 miles long with 7 locks must be constructed, which presents no apparent engineering difficulty. The total length of the canal would be 61.7 miles. No tunnelling needed. The harbor of San Juan del Norte must be dredged, and otherwise improved, to insure that no water but that of the canal shall run into the harbor. Short breakwaters must be built to protect the entrances from the surf. Lake Nicaragua with a surface of 2,700 sq. miles, and a drainage area of 8,000 sq. miles, will supply 38 times the maximum possible demand of water. The depth of water would be 26 ft; the width at bottom 72 ft, and at surface 150 ft. The locks, 21 in number, with a lift of from 8 to 10 ft, would be 400 ft long, 72 ft wide. The cost was estimated at about eighty million dollars. *U. S. Gov. Doc., Sen. Jour.*, 916, Cong. 41, Sess. 2; *Id.*, H. Ex. Doc., Cong. 42, Sess. 2, i. no. 1, pt. 1, 670-8; *Id.*, 3d Sess., i. p. 160, 462-5; *Id.*, *Sec. Navy Rept*, Cong. 43, Sess. 1, p. 10-12; *Id.*, *Nic. Ship Canal Route*, Cong. 43, Sess. 1; *Lévy, Nic.*, 428-40; *Nic.*, *Gaceta*, Aug. 20, 27, Oct. 22, Dec. 24, 1870; Oct. 21, 1871; Jan. 11, Feb. 22, July 12, 1873; March 21, June 6, Nov. 28, 1874; *Id.*, *Mem. Sec. Rel.*, 1871, 10-16, 29-39; 1875, xiii.-xiv.; 1879, xxvii.-viii.; *Costa R., Col. Ley.*, xix. 17-34, 180-1; *Id.*, *Informe Sec. Rel.*, 1872, 2-5; 1877, 2; 1885, 4-6, 47-54; *Guat., Mem. Sec. Rel.*, 1884, 6, 8, 9; *Pan. Canal*, March 5, 1883; *Id.*, *Star and Herald*, Feb. 12, 14, 1883; *La Estrella de Pan.*, Jan. 15, 1885; *El Guatemalteco*, March 4, 1884. It has been asserted that formidable obstacles exist to a permanent deep-water entrance at San Juan del Norte, owing to sand and other detritus carried into it by the San Juan River, rendering it shallow and dangerous. *Gisborne's Isth. Darien*, 8-11.

[XXXIV-19] The report of course gives in minute detail the engineering features of the three divisions. The proposed locks have a uniform length of 650 ft between gates, and at least 65 ft of width. The canal is to have a depth of 28 or 30 ft. It is anticipated that a ship can pass from San Juan to Brito in 30 hours. Thirty-two vessels can pass the canal in a day. Excellent

materials for construction are at hand. *Pan. Star and Herald*, Dec. 5, 1885, and San Francisco newspapers.

[XXXIV-20] This latter objection seems to be disproved by the researches of the American engineers. But the great difficulty still remains about the establishment and future maintenance of a deep-water entrance to the canal at San Juan del Norte. *Encyclop. Brit.* (Am. ed.), iv. 701.

[XXXIV-21] This Isthmus was surveyed in 1520 by two Flemish engineers, who reported adversely. The king for politic reasons would not have the subject mentioned again. So it has been said. *Duflot de Mofras, Explor. de l'Oregon*, i. 119. The section was repeatedly explored. In 1534 preliminary work for a ship canal was done, under royal order, by Gov. Gama. The Chagres River was made navigable to where the wagon road began. *Pan. Céd.*, in *Squier's MSS.*, xi. 1-6; *Andagoya, Carta al Rey.*, in *Id.*, 8; *Garella, Isth. de Pan.*, 3-5; *Datos Biog.*, in *Cartas de Ind.*, 761. Various schemes were broached in the 17th century, meeting with no encouragement. In 1687 Lionel Wafer was guided by Mandinga Indians from the gulf of San Miguel to Concepcion on the Atlantic side. W. Paterson, from his settlement at Caledonia Harbor, made several journeys into the interior, recommending it to his company for interoceanic traffic. Ulloa and Jorge Juan explored Panamá for a route in 1736. *Juan and Ulloa Voy.*, i. 94; *Fitz-Roy*, in *Lond. Geog. Soc., Jour.*, xx. 170, 178; *Reichardt, Cent. Am.*, 164-5. A road was opened on the isth. of Darien by Gov. Ariza from Puerto Escocés to Puerto del Príncipe on the Sabana River, which enters the Pacific. *Ariza, Darien*, MS., 11-12; *De Puydt*, in *Lond. Geog. Soc., Jour.*, xxxviii. 69; *Cullen's Darien*, 192-204; *Pim's Gate of the Pac.*, 183-4; *Scherzer, Cent. Am.*, i. 248-9. In 1820 Capt. Illingsworth of the Chilian corvette *La Rosa* (a) *Andes* had his shallop drawn across the cordillera, and launched in the Napipi, whence it proceeded to Quibdó or Citerá, near the mouth of the Atrato, where it was found in 1824 by Cochrane, who in examining Darien for a canal route found the obstacles almost insurmountable. *Annales des Voy.*, cliii. 8, 22, 36. Domingo Lopez, a Colombian, traced a line for a canal between Panamá and Portobello. *Arosemena, Apuntes Hist.*, 4. In 1827, C. Friend of the British navy made an excursion from the banks of the Atrato to the bay of Cupica. But the first formal exploration was made, shortly after Friend's tour, by Lloyd of Pres. Bolívar's staff, and Capt. Falmarc, a Swede in the Colombian service, under

Bolívar's auspices. After completing their labors in 1829, they declared that a railway, if not a canal, was feasible between Chagres and Panamá. The notes of the expedition were published in *Philosophical Trans.*, for 1830, and in *London Geog. Soc., Jour.*, i. 69-101; *Chevalier, Pan.*, 112-13; *Bull. Société Geog.*, xiv. 88, 53-66; *Democ. Rev.*, vi. 297-8; *Nouv. Annales des Voy.*, xlviii. 380-1; *Garella, Isth. de Pan.*, 8-9.

[XXXIV-22] Thierry's canal project, 1835; Biddle's survey for a canal, 1836; Morel, soon after Lloyd's survey, in 1837-8, sought a canal route somewhat south of the line from Chagres to Pan. in the angle between the rivers Chagres and Trinidad, through Vino Tinto Lake. In a later survey he kept more to the left; Watts' explorations in 1838; Barnet's survey of Chiriquí in 1839. *Niles' Reg.*, xlviii.; *Arosemena, Exámen*, 8-34; *Pinart, Misc. Papers*, no. 1, Decrees 113-17; *Pan. Star and Herald*, Oct. 4, 1882; *Interoc. Canal and Monroe Doct.*, 23-4; *Chevalier, Pan.*, 117-22; *Barnet's Surv.*, in *Chiriquí Imp. Co. Coll.*; *Pan.*, *Gaceta Ist.*, Sept. 20, 1841; *G. B. Watts*, in *Am. Geog. and Stat., Soc. Bull.*, i., pt. iii. 64-80.

[XXXIV-23] Garella's canal, beginning at Limon Bay, was to pass under the Ahogayegua ridge by means of a tunnel 120 ft high and 17,390 ft long, to the bay of Vaca del Monte, 12 miles west of Panamá. The route follows the Bernardino and Caimito valleys on the southern slope, and those of Quebrado and Chagres on the northern. The highest elevation 459 feet above the sea level, the mountain being tunnelled 324 feet 9 in. below its highest point; so that the canal would at the summit be 135 feet above the sea, and require 35 locks. Lloyd, acting for the British government, arrived at the same conclusions. *Garella, Projet d'un canal*, 11-194, 230; *Nouv. Ann. des Voy.*, cvi. 36-40; *U. S. Gov. Doc.*, H. Com. Rept, 145, p. 70-7, 506-71, Cong. 30, Sess. 2; *Arosemena, Exámen*, 5-6, 11. Hellert, in 1844-5, explored the Darien from Rio Paya to the Atrato. W. B. Liot, of the Brit. navy, proposed in 1845 a macadamized road, or a railroad from Portobello to Panamá. Capt. Kellet, being informed by Indians that the Napipi River, a tributary of the Atrato, approached very closely to the bay of Cupica, crossed on foot in 1847 till he reached a river which was supposed to flow into the Atlantic. Cullen claimed to have crossed the Darien. In 1849 he found the Sabana River, ascended it, crossed from Cañasas to the sea-shore at Port Escocés and returned. In 1850 and 1851 he crossed several times alone by different routes from the Sabana to

Escocés, convinced that this must be the future route for ships. Here are the requisite secure harbors; the highest elevation of the valleys through the ridges is not over 150 feet, which is lower than any level as yet found; locks and tunnel might be avoided; the canal need be only 26 or 27 miles long, two miles through hard rock. Unfortunately, Cullen gave no notes or measurements to prove this. Capt. Fitz-Roy, of the British navy, published a memoir on a communication between the Atrato, by way of its tributary the Napipi or Naipi, and Cupica Bay. Greiff, a Swedish engineer, confirmed his observations. In 1850-1 Chevalier explored the Isthmus for information on interoceanic routes. *U. S. Coast Survey*, 1868, 260-7; *Liot's Pan., etc.*, p. iii.; *Seemann's Voy.*, i. 220; *Davis' Rept*, 9-14, and several maps; *Cullen's Isth. Darien Ship Canal*, 2d ed., 19; *Annales des Voy.*, cliii. 23; *Chevalier*, in *Soc. Géog. Bull.*, ser. iv., tom. iv., no. 19, pp. 30-70.

[XXXIV-24] The U. S. had the country surveyed in 1833-4 between the Chagres and Panamá. *Fairbairn*, in *United Serv. Jour.*, 1832, pt ii. 207-9; *U. S. Gov. Doc.*, 4 Ex. Doc. 228, vol. iv., Cong. 25, Sess. 2; *Id.*, Id. 77, vol. iv., Cong. 28, Sess. 1; *Id.*, U. S. Comm. Rep. 145, p. 3, 265-332, Cong. 30, Sess. 2; *Pub. Treaties*, 1875, p. 558; *Nic.*, *Gaceta*, Nov. 18, 1848; *Niles' Reg.*, i. 440; *Tucker's Monroe Doc.*, 43-4.

[XXXIV-25] The parties forming the company were William H. Aspinwall, Henry Chauncey, and John L. Stephens, all of New York, who on the 15th of April, 1850, made a contract with the New Granadan government, binding themselves to construct within a given time a railway between a point on the Atlantic and Panamá, for the transportation of travellers, cattle, merchandise, etc., under a fixed tariff of rates. Certain advantages were allowed New Granadan citizens. It is not necessary to state here all the terms of the contract. It was to be in force 49 years, and the New Granadan government was to receive three per centum of the net profits. It subsequently received \$10,000 a year additional on the mails. Passengers, merchandise, and everything else passing in transitu over the railroad, were to be free of duties and imposts. The contract was amended July 5, 1867. Under the new arrangement the company was to own the railway for 99 years; and pay the Colombian government one million dollars in gold, and thereafter \$250,000 a year in quarterly instalments, Colombian mails passing over the road free of expense. Large grants of land were made to the company, who further bound themselves to carry the railroad to the islands of Naos, Culebra,

Perico, and Flamenco, or to some other suitable place on the bay. The prolongation has never been carried out. *Bidwell's Isth. Pan.*, 299-308, 397-417; *Pan.*, *Boletin Ofic.*, Nov. 15, 1867; *Id.*, *Gaceta*, Oct. 31, 1880; *Arosemena, Pan. Prolong. Ferrocarril*, 1-18; *Pan. Star and Herald*, Sept. 3, Oct. 5, 1867; Sept. 12, 13, 28, 1877; *Rouhaud, Régions Nouv.*, 1878-9, p. 343-51; *Pan. Mem. Sec. Jen.*, 1877, 21-2.

[XXXIV-26] The difficulties of the ground and climate, together with scanty resources of the country and scarcity of labor, were overcome. The road runs on the easterly bank of the Chagres River as far as Barbacoas, where it crosses the river over a bridge 625 ft long, 18 ft broad, and 40 ft above the mean level. A full account of the construction may be found in *Otis' Hist. Pan. R. R.*, 1-46; *Thornton's Oregon and Cal.*, ii. 349-52; *Pim's Gateway*, 192-209, 415-28; *Nic., Corr. Ist.*, May 30, June 12, 1850; *De Bow's Encyc.*, pt ii. 493-4; *Fremont's Am. Trav.*, 171-2, and other authorities too numerous to name here. The construction cost many lives of all nationalities, owing to the climate; and was finally completed with negroes of the Isthmus, Jamaica, the coast of Cartagena and Santa Marta. *Maldonado, Asuntos Polít.*, MS., 6.

[XXXIV-27] Receipts from 1852 to Dec. 31, 1854, \$1,026,162; 1855-60, \$8,748,026; 1861-6, \$12,369,662. Total, \$22,143,850. Expenses to end of 1855, including share of profits paid the New Granadan govt, \$1,123,081; of 1856-66, \$8,748,318. Total, \$9,871,399. Net proceeds, \$12,272,451. The transit trade has been the main business of the Isthmus. For many years, till the Brit. steamship trade by the straits of Magellan developed, and the overland railway between Omaha and S. F. was completed, almost all merchandise going to or from Europe and the eastern ports of the United States, Cuba, etc., to California, the west coast of South America, and Central America, was sent by way of the Isthmus, including even copper from Bolivia and Chile. Receipts of the railroad 1883-4, \$6,306,760. Expenses in same years, \$3,979,144. Net proceeds \$2,327,616; a net increase of earnings in 1884 over 1883, of \$24,032. Further information in the last preceding chapter connected with the Isthmus transit trade. *Bidwell's Isth. Pan.*, 286; *Otis' Hist. Pan. R. R.*, 59-69; *Superint. Burt's Rept*, March 7, 1885, in *Pan. Star and Herald*, Apr. 22, 1885; *La Estrella de Pan.*, May 2, 1885.

[XXXIV-28] *Pan. Star and Herald*, June 23, 1881; Sept. 18, 1882; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 48, Sess. 1, i. pt 1, 217-19.

[XXXIV-29] *Davis' Rept*, 8; *U. S. Gov. Doc.*, H. Journ., 1345, Cong. 36, Sess. 1; 541, Cong. 36, Sess. 2; *Id.*, Sen. Doc. 1, pp. 17, 36-44, iii. pt 1, Cong. 36, Sess. 2; *Harper's Mag.*, xxii. 193-209.

[XXXIV-30] New Granada granted, in 1852, to Fox, Cullen, and others, the privilege of opening a canal between Caledonia Bay and the gulf of San Miguel. *Cullen's Darien Ship Canal*, 1-146. Gisborne thought it was a mere matter of excavation costing about sixty million dollars. After having spent a great deal of time on the examination of the Atrato and San Juan rivers since 1852, F. M. Kelly, of N. Y., in 1864 explored the route from Chepo River to the gulf of San Blas, which is only 30 miles long, but calls for a tunnel. Several surveys followed; namely, Strain, of the U. S. navy, early in 1854, with a party explored the Darien. After several weeks' toil they lost themselves; five men perished, the rest reaching Yavisa on the east coast. About the same time a New Granadan expedition under Codazzi made a similar attempt, but meeting with disaster, after losing several men, gave up the enterprise. The same year English and French officers made explorations. Cullen and Gisborne were with them, and saw their former statements proved false. Next in order is Kennish's examination, followed by Michler and Cravens, of the U. S. navy, who confirmed his report in all essential points. *Scherzer, Cent. Am.*, 250-1; *Mex. Anales Min. Fomento*, i. 83-8; *Strain's Inter. Comm.*, 18-27. La Charme, in 1865, by order of the merchant Gogorza, surveyed from the south of the gulf of Darien to the gulf of San Miguel by way of the Tuyra River. De Puydt, for the International Colombia Co., reported having found a favorable route from Puerto Escondido to the Tuyra, and thence to the gulf of San Miguel. *Abert's Ship Canal*, 63-9, 72-9; *La Charme*, in *Putnam's Mag.*, iii. 329-41; *Pan.*, *Gaceta*, July 2, 1876; *Lond. Geog. Soc., Jour.*, xxiv. 249; xxxviii. 69-99. Bourdivl, in 1864, passed from the Pacific with 25 men to the mouth of the Lara, and thence across the Isthmus to Chucunaque River, reaching it just below the Sucubti. Here the natives left him for fear of the savages, and he had to return. Rear-adm. C. H. Davis, supt of the U. S. Naval Observatory at Washington, issued a *Report* on Interoceanic Canals and Railways, for his government, in 1867, reviewing modern explorations of the continent from Darien to

Honduras for canals and railroad routes, and giving maps thereof, and a list of authorities thereon. His work is quite thorough to its date. *Davis' Rept*, 15-19. The secretary of the U. S. navy thus summarized in 1873 the report of Com. Selfridge, who, in 1870-2, made a thorough exploration of several lines in the narrower portion of Darien. This route includes 100 miles of navigation of the Atrato River, which is capable of being navigated by the largest steamers. Between the Atrato and the Pacific, a canal must be made of 28 miles in length, of which it would pass 22 through a plain with a gradual rise of 90 feet. Of the other 6 three would be in moderate cutting, the other three would be of tunnelling. The estimated cost was between \$52,000,000 and \$63,000,000, and the time for completing the work ten years. The tunnel would be 112 ft high, 60 feet wide, and have 87 ft of clear headway above the surface of the water. The canal would have 25 ft in depth, 50 ft of width at the bottom, and 70 at surface. The locks, 20 in number, were to be 427 ft long, 54 ft wide, with a lift of 10 ft. The water supply, much in excess of the requirement, would be derived from the Napipi River. Two alternative schemes were also presented, increasing the length of tunnelling, and diminishing the number of locks, at an estimated cost of \$85,000,000 to \$90,000,000. He proved De Puydt's line impracticable. Selfridge's full report, with maps and illustrations, etc., in *U. S. Gov. Doc.*, Darien Explor., Cong. 42, Sess. 3; Brief reports by sec. of the navy and Selfridge, in *Id.*, H. Ex. Doc., i. p. 3 (sec. of navy), vol. iii., pp. 9-10, 133-41, Cong. 41, Sess. 3; *Harper's Mag.*, xlvii. (Nov. 1873), 801-20; *Encyclop. Brit.* (Am. ed.), iv. 700-1. In 1873 Selfridge surveyed the valley of the Bojaya, another tributary of the Atrato, more to the north, which was regarded as more favorable. The Am. govt despatched two other expeditions in 1874, one of which surveyed a line between the Atrato and the Pacific across the state of Cauca; the other a line parallel with the Panamá railway.

[XXXIV-31] It affords a much shorter route than that of Darien, and the cordillera is there less than 290 ft high. The watershed being nearer the Pacific than the Atlantic, the streams running into the former ocean are of little importance, whereas the Chagres on the Atlantic slope, with its tributary, the Obispo, forms a navigable channel, which in the rainy season attains to formidable proportions.

[XXXIV-32] A copy of the contract and grant appears in *Bogotá, Diario Ofic.*, May 22, 1878; an English translation in *U.*

S. Gov. Doc., H. Ex. Doc., Cong. 46, Sess. 2, i. pt i. 243. Under the contract the Colombian govt will receive at certain periods of it from 6 to 8 per cent of the net receipts; but its share is never to be under \$250,000 a year.

[XXXIV-33] The U. S. govt tried to secure by treaty with Colombia the right to establish forts, arsenals, and naval stations on the Isthmus, though no forces were to be kept there in time of peace. A protocol was signed in New York by representatives of both governments in Feb. 1881, to amend the treaty of 1846, but failed of ratification at Bogotá. *Diario de Cundinamarca*, Apr. 28, 1881; *Pan. Star and Herald*, May 20, 24, June 24, 25, 1881.

[XXXIV-34] De Lesseps, Wyse, and other officials of the canal, received the highest marks of regard from the people of the Isthmus. *Pan. Ley.*, years 1879-80, 9-11, 30; *Id.*, *Gaceta*, Feb. 1, 12, 19, 22, 1880; Jan. 27, Feb. 13, 17, 1881. The company at once made provision for a health service, in spacious and well-regulated hospitals, etc. *Companyo, Projet d'organiz. du serv. de santé*, 1-137, and a map.

[XXXIV-35] The bottom throughout its length, 8½ metres below the mean level of both oceans; width, 22 metres at bottom, 50 metres at top; except through the Culebra ridge, where the depth will be 9 metres, with the width of 24 metres at bottom and 28 metres at top. It must be observed that the levels of the two oceans are not alike at all times; at Colon the difference in the tides never exceeds 23 inches, whereas in Panamá it is usually 13 ft, and at times nearly 20. This must produce a current in the canal sufficient to impede navigation for several hours at each tide. The great difficulties to overcome are the mountain and the river Chagres. The company contemplated at first to tunnel the mountain, but gave up the plan, and resolved to cut down through the solid strata—fortunately soft and otherwise easy—for a depth of between 300 and 400 ft over a long distance. The next task—by far the most difficult one—is to deal with the eccentricities of the Chagres, which discharges at Matachin a volume of water averaging 100 cubic metres per second, which at low water may sink to 15 or 20 cubic metres, and at flood rise to 500 or 600. Several plans have been contemplated, one of which was to construct an enormous dam at Gamboa, between the Obispo and Santa Cruz hills, 960 metres at the base, 1,960 at the top, with a width at bottom, of 1,000 metres, and a height of 45 metres. But it is understood that the engineers have finally concluded to make no use of the waters of the Chagres, but to change their course

and let them run to the ocean through the desert; this will be left to the last. Moreover, locks will be built to control the tides. De Lesseps, confident that the canal will be finished in 1889, says there will be no time in the interval to construct the locks; that they can be made later. The chief point being that shipping shall pass through the canal. See *Bulletin du Canal Océanique*, issued since 1879; *Engineering*, 1883-4; *Reclus, Explor.*, in *Tour du Monde*, for a series of views; *Sullivan's Problem of Interoc. Communic.*, Washington, 1883; *Ammen's Interoc. Ship Canal*, Phila., 1880; *N. Y. Herald*, Feb. 6, 1882; *Encyclop. Brit.* (Am. ed., 1885), xviii. 213.

[XXXIV-36] It is estimated that the excavation of the canal proper demands the removal of about 122,000,000 metres, and up to Jan. 31, 1886, only 15,000,000 metres had been done, at an expense of \$30,000,000.

[XXXIV-37] Charles D. Jameson, a member of the Boston Society of Civil Engineers, thinks there is no insurmountable obstacle. The following newspapers contain information on the canal's affairs. *Pan. Canal*, July 12, 1881; *Id.*, *Star and Herald*, July 20, 1881; July 11, Nov. 10, 1882; and in almost every issue till 1886 inclusive. *La Estrella de Pan.*, July 31, 1884; *S. F. Bulletin*; *Id.*, *Alta Cal.*; *Id.*, *Morning Call*; *Id.*, *Chronicle*; and every other published on the Pacific coast, as well as in the whole United States; *Mex. Financier*, July 5, 1884; *Correoso's Statement*, MS., 9-11.

[XXXIV-38] To raise the original capital the liabilities of the company became \$150,000,000, which at 4 per cent equals \$6,000,000 annual interest. If ships crossing the canal be charged \$3 per ton, \$5,780,000 will be yearly required to pay the interest. *S. F. Call*, Nov. 9, 1886. De Lesseps reckoned the monthly output of excavation, which in 1885 was 658,000 metres and in 1886 1,079,000, should reach 2,000,000 metres a month in 1887, and 3,000,000 metres a month in 1888, and up to the completion of the work in 1889. *Pan. Star and Herald*, Aug. 5, 7, 11, 12, 1886.

[XXXIV-39] It is well to say in this connection that tramways have also been built in the capital, under the auspices of the govt. It was also planned to have another from the department of Sacatepequez, to run from the town of Ciudad Vieja, through Antigua Guatemala, to the town of Pastores.

[XXXIV-40] *Guat., Mem. Sec. Fomento*, for years 1880-5; *Id., Sec. Rel.*, year 1884; *Id., El Guatemalteco* (official), March 4, May 10, 22, Oct. 12, 1884; July 19, 1885; *Batres' Sketch Book*, 8-10, 43; *Pan. Star and Herald*, Nov. 24, Dec. 16, 1882; March 8, 1884; *Id., Canal*, Jan. 17, 1883.

[XXXIV-41] *Aniñon, Discurso, Izaguirre, Relacion, Duarte, Relacion*, and *Criado de Castilla, Descub.*, all in *Squier's MSS.*, v., vii., viii., and xvii., respectively.

[XXXIV-42] Loans were raised in Europe for the purpose, the particulars of which are given in connection with Honduran finances.

[XXXIV-43] For further information, see *Squier's Cent. Am.*, 74-9, 680, 729-30, 756-9; *Id., Hond.*, 207-16, 225-35; *Id., Hond. Interoc. Railway*, 1-102; *Reichardt, Nic.*, 284-6; *Wells' Hond.*, 130-1; *Fitz-Roy's Rept Railway*; *Guat., Gaceta*, Jan. 27, 1854; *Hond., Gaceta Ofic.*, May 10, 1854; *Costa R., Gaceta*, March 4 to Oct. 21, 1854, *passim*; *Nic., Gaceta*, July 25, Nov. 21, 1868; March 20, Nov. 13, 1869; Feb. 19, 1870; Feb. 11, Aug. 19, 1871; *Id., El Porvenir*, Oct. 1, 1871; *U. S. Gov. Doc.*, H. Ex. Doc., Cong. 42, Sess. 3, i. 306; *Nic., Semanal Nic.*, May 15, 1873; *Am. Cyclop.*, viii. 790; *Froebel's Cent. Am.*, 189-90; *Belly, Nic.*, ii. 22-7; *Pim's Gate of the Pac.*, 313-21; *Laferrière, De Paris à Guat.*, 101-6; *Pan. Star and Herald*, March 23, Oct. 4, 1883; March 20, 1886; *Id., Canal*, March 28, 1883; *Mex. Financier*, Dec. 8, 1883.

[XXXIV-44] *Nic., Mem. Min. Hac.*, 1883, pp. vii.-viii.; *Presid. Cardenas, Mensaje*, Jan. 15, 1885, in *Costa R., Gaceta Ofic.*, Feb. 4, 1885.

[XXXIV-45] The termination of the Atlantic and other lines depends on the arrangement of the republic's foreign indebtedness. The cost of the three sections was \$12,239,296; and in 1883 they were valued at \$6,600,000. *Costa R., Mem. Sec. Hacienda*, 1883, Table no. 10; Annexes 8 and 9; 1884, 152-3, 287; *Id., Id., Fomento*, 1883, 1-4; 1884, 29-30; *Pan. Star and Herald*, Dec. 8, 1883; July 23, Oct. 24, 1885; *Costa R., Gaceta*, May 16, Aug. 12, Sept. 1-27, 1885.

[XXXIV-46] For particulars, see *Costa R., Informe Sec. Gobern.*, years 1873-4; *Id., Id., Obras Púb.*, 1879-80; *Id., Id., Hac.*, 1880, 1883; *Id., Id., Fomento*, 1883; *Id., Col. Ley.*, 1880, 85-9; 1881, 55-9; *Nic., Semanal Nic.*, Jan. 15, 1884; *Salv., Diario*

Ofic., Aug. 18, Sept. 12, 1878; *Id.*, *Gaceta Ofic.*, Aug. 12, 1876; Jan. 9, Feb. 22, June 29, 30, 1877; Apr. 19 to Nov. 13, 1879, passim; *Nic.*, *Mem. Sec. Hac.*, 1883; *Id.*, *Id.*, *Gobern.*, 1883; *Id.*, *Id.*, *Interior*, 1883; *Guat.*, *Recop. Ley.*, *Gob. Democ.*, ii. 81; *Id.*, *Mem. Sec. Fomento*, years 1880-5; *Id.*, *Presupuesto Gen.*, 19-29.

[XXXIV-47] *Eardley-Wilmot's Our Journal*, 69; *Colombia*, *Diario Ofic.*, Feb. 26, Sept. 10, 1874; *Pan.*, *Gaceta*, Jan. 11, Aug. 12, 1880. The connection at La Libertad was established on the 1st of Oct., 1882. *U. S. Gov. Doc.*, H. Ex. Doc., For. Rel., Cong. 47, Sess. 2, i. 51-4.

Scattered through this third volume have been given bibliographical notices of about twenty of the chief works consulted in its preparation. I have now to add a few others deserving of special mention. *The Gospel in Central America* was written by Frederick Crowe, an Englishman, and a Baptist preacher, who resided some time in Central America in the interest of his church. The book—a 12mo of 588 pages, published in London, 1850—contains, as its title implies, a sketch of the country, including British Honduras, physical and geographical, historical and political, moral and religious. The author did his task as well as circumstances permitted, in view of the fact that at his violent deportation much of the material he had gathered was left behind and never recovered. At all events, it afforded much which till then was little known of that country. The statements contained therein not original are credited to the sources from which they were taken; for events after the declaration of independence the author relied on the book of travels by Robert C. Dunlop, from which I have also culled some important facts. *Centro-Amerika*, and *Nicaragua*, both written in German by the traveller C. F. Reichardt, and published in Braunschweig, in 8vo form, respectively in 1851 and 1854; the former being of 256, and the latter of 296 pages, one and the other provided with maps. The two works contain valuable data, entitled to credit. *Aus Amerika*, by Julius Fröbel, issued in 1855 at Leipzig, and *Geographie und Statistif von Mexico und Centralamerika*, by J. G. Wappäus, published at Leipzig in 1863, have also afforded much useful knowledge. In writing this chapter on interoceanic communication, I am indebted to the *Cabinet Cyclopædia*, directed by Dionysius Lardner, and to John Richardson's *Polar Regions*, the first-named giving in its first three volumes all that was known to 1830-1, on the geography of the ancients and middle ages, and on modern voyages and

discoveries. The latter narrates the voyages made to discover the north-west passage, furnishing likewise a view of the physical geography and ethnology of the polar regions north and south; the whole subject, though treated in a summary way, brings it out quite comprehensively. The *Report on Interoceanic Canals and Railroads*, between the Atlantic and Pacific oceans—an 8vo of 37 pages with numerous maps printed in Washington, 1867—by Charles H. Davis, superintendent of the U. S. Naval Observatory, contains all that was known on the subject to the time of its publication. The *Encyclopædia Britannica*—American edition, issued, 1875-86, at Philadelphia—has also afforded valuable data on the voyages in the polar seas, and on explorations and surveys connected with canal matters. None of those works, however, nor the numerous others consulted, have furnished the required information from the beginning of the 19th century to the present time; and those of later years do not usually, to any extent, go back to early ones, or if they do, it is only to give some meagre information.

But my researches have not been confined to books. Aside from the important facts obtained directly from the lips of intelligent natives and other persons conversant with Central American and Panamanian affairs, I have had before me presidential messages, reports of ministers and other officials of the several states, U. S. govt reports, official journals, statements of explorers and surveyors, cyclopædias, magazines, reviews, and a host of newspapers of different countries and in various languages, among which special credit should be given to the *Star and Herald* of Panamá for an ever well-informed and reliable gatherer and transmitter of news to and from the countries on both oceans over this bridge of the nations. Important data, wheresoever found, have been brought into requisition.

[XXXIV-48] 'Mr. Hopkins,' says Capt Fitzroy, p. 23, 'was lately prevented by the Indians from ascending the Chepo River toward Mandinga or San Blas Bay; Mr Wheelwright was also stopped there in 1837; and Dr Cullen was likewise stopped by the aborigines while endeavoring to ascend the Paya River, that runs from near the mouths of the Atrato to the Tuyra, which falls into the gulf of San Miguel.'

I learned in Darien that Mr Hopkins and Don Pepe Hurtado, a Granadian engineer, made a present of a scarlet military coat to an Indian on the Chepo, and that as soon as the Indian chief of

the district learned it, he flogged the Indian who accepted the present, and summoned his people to arms, and Mr H. and Don Pepe had to fly for their lives. Most probably the chief looked upon the acceptance of gaudy trappings as an acknowledgment of submission to foreigners. I have mentioned elsewhere my having learned subsequently that the reason of the Indians having stopped me was the fear of small-pox being introduced amongst them rather than any dislike to foreigners.

[XXXIV-49] This I attribute to the jealousy of the Spaniards, who were careful to withhold any information that might lead the English to the discovery of an easy communication between the two seas. Alcedo, in his *Diccionario Histórico de las Indias Occidentales*, says that it was interdicted, *on pain of death, even to propose* opening the navigation between the two seas. 'En tiempo de Felipe II. se proyectó cortarlo, y comunicar los dos mares por medio de un canal, y á este efecto se enviaron para reconocerlo dos Ingenieros Flamencos, pero encontraron dificultades insuperables, y el consejo de Indias representò los perjuicios que de ello se seguirían á la monarquía, por cuya razon mandò aquel Monarca que nadie propusiese ó tratase de ello en adelante, *pena de la vida*.' The navigation of the Atrato also was interdicted, on pain of death.

[XXXIV-50] In its upper course, as it is navigable for large vessels nearly to Príncipe.

[XXXIV-51] 'It is ascertained,' says Captain Fitzroy, 'that there is only a trifling difference between the levels of the ocean at this Isthmus. A rise of tide not exceeding two feet is found on the Atlantic side, while in Panama Bay the tide rises more than eighteen feet; the mean level of the Pacific in this particular place being two or three feet above that of the Atlantic. It is high water at the same hour in each ocean.'

Colonel Lloyd says that the Pacific at high water is thirteen feet higher than the Atlantic, while the Atlantic is highest at low water by six feet. Baron Humboldt said, in 1809: 'The difference of level between the Caribbean Sea and the Pacific Ocean does not, probably, exceed nine feet; and at different hours in the day, sometimes one sea, sometimes the other, is the more elevated.' But this difference would be no hindrance, but, on the contrary, a most important advantage in a ship-canal, since it would create a current from the Atlantic to the Pacific during the ebb, and one from the Pacific to the Atlantic during the flood-tide of the

Pacific, and these alternate currents would enable each of the fleets to pass through at different times, those bound from the Atlantic to the Pacific during the ebb-tide of the latter, and those from the Pacific to the Atlantic during the flood-tide of the former. This arrangement in the periods of transit would afford many advantages, such as obviating the meeting of the vessels, and the necessity of their passing one another, and preventing their accumulation or crowding together in the canal, as each fleet could be carried right through in one tide, if not by the current alone, at least with the aid of tug steamers. The alternation of the currents would have the further beneficial effect of washing out the bed of the canal, and keeping it free from the deposition of sand or mud, so that dredging would never become necessary; and would also render the degree of width necessary for the canal less; though I do not reckon this to be a point of moment, as the wider and deeper it is cut the better, and the work once finished will last to the end of the world, since the natural effect of the alternate currents will be a gradual process of deepening and widening, which will convert the canal into a strait.

[XXXIV-52] And subsequent months, in a controversy with Evan Hopkins, Esq., C. E. & M. E.

[XXXIV-53] *Narrative of an Official Visit to Guatemala*, by G. A. Thompson. London, 1829, p. 512.

[XXXIV-54] March 13, 1788.

[XXXIV-55] Masthead angles were taken in Córdoba's voyage, 1785-6.

[XXXIV-56] Four hundred.

[XXXIV-57] Five leagues from the shore. *Sp. MS.*

[XXXIV-58] The arms of Santa Maria de la Antigua were a *golden castle* between a jaguar and a puma.

[XXXIV-59] Squier's Nicaragua, vol. i. p. 195.

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